SUPPLEMENT NO. 103
June 2026

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19834, passed April 22, 2026.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
25—28	25—28.1
1303, 1304	1303, 1304
1412.21	1412.21—1412.23
1443—1446	1443—1446.1
1570.1—1570.4	1570.1—1570.4
2681	2681
2753—2757	2753—2757
2803—2874	2803—2874

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SUPPLEMENT NO. 102
February 2026

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19677, passed November 25, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1—SH:6	SH:1—SH:5
27—48.6	27—48.6.2
1301—1303	1301—1304
1402.29—1402.32	1402.29—1402.32.2
1402.39—1402.41	1402.39—1402.42
1412.13	1412.13—1412.21
1705—1712.1	1705—1712.1
2681	2681
2753—2757	2753—2757
2803—2873	2803—2874

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SUPPLEMENT NO. 101
September 2025

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19541, passed May 28, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
177—178.1	177—178.1
194.3—196.3	195—196.7
1303	1303
1412.11	1412.11—1412.13
2681	2681
2755—2757	2755—2757
2803—2873	2803—2873

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SUPPLEMENT NO. 100
March 2025

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19355, passed September 25, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
7—10.2.1	7—10.2.1
175—178.1	175—178.1
183—186	183—186.6
1297, 1298	1297, 1298
1307—1309	1307—1310
2681	2681
2803—2873	2803—2873

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SUPPLEMENT NO. 99
March 2024

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19085, passed December 13, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
35, 36	35—36.2
507—509	507—510
522.1—530	523—539
644.1—646	645—646.1
652.3—654.2	653—654.2.2
1402.17—1402.20	1402.17—1402.20
1951, 1952	1951, 1952
2681	2681
2753—2757	2753—2757
2803—2872	2803—2873

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SUPPLEMENT NO. 98
August 2023

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18849, passed May 10, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
5, 6	5, 6
58.1—58.2.1	58.1—58.2.1
71	71, 72
637—638.1	637—638.1
659—660.2	659—660.8
967—972	967—972.1
1301—1303	1301—1303
1405—1410	1405—1409
1412.4.1—1412.8	1412.5—1412.8.1
1444.1—1452	1445—1452.5
1555, 1556	1555, 1556
1578.1—1582.2	1579—1582.3
1609—1610.2	1609—1610.2
1832.1—1832.3	1832.1—1832.3
1844.1—1846	1845—1846.1
2679, 2680	2679—2681
2753—2757	2753—2757
2827, 2828	2827—2828.1
2863, 2864	2863—2864.1

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SUPPLEMENT NO. 97
March 2023

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18720, passed December 14, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
3—6	3—6
23—48.16	23—48.19
52.1—58.2.1	53—58.2.1
175—178.1	175—178.1
189—192.33	189—192.45
951—1101	951—993
1187—1199	1187
1298.1—1303	1299—1303
1385—1398	1385—1387
1549—1560.2	1549—1560.5
1567—1568.2	1567—1568.2.1
1570.1—1570.3	1570.1—1570.4
1578.1, 1578.2	1578.1, 1578.2
1599—1600.2	1599—1600.2
1705—1707	1705—1707
1718.3, 1718.4	1718.3—1718.5
1819, 1820	1819, 1820
1843, 1844	1843—1844.1
2679	2679, 2680
2753—2757	2753—2757

Remove Old Pages	*Insert New Pages*
2803—2873	2803—2872

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SUPPLEMENT NO. 96
July 2022

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18539, passed June 15, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title Page	Title Page
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3—SH:5
5	5, 6
58.7	58.7—58.10
636.1—638.3	637—638.3
655—660.1	655—660.2
959—966	959—966
973—976.1	973—976.1
983—984.1	983, 984
1003—1004.1	1003, 1004
1015—1019	1015—1019
1447—1450	1447—1450
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1705—1707	1705—1707
1718.1, 1718.2	1718.1—1718.4
2055, 2056	2055, 2056
2067, 2068	2067—2068.1
2679	2679
2813, 2814	2813—2814.1
2818.1—2828	2819—2828.1
2835—2844.1	2835—2844.1

Remove Old Pages	*Insert New Pages*
2849—2856.1	2849—2856.1
2861, 2862	2861, 2862
2867—2868.2	2867—2868.2

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SUPPLEMENT NO. 95
January 2022

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18344, passed November 23, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
178.1	178.1
233, 234	233—236
1414.1	1414.1
1453—1455	1453—1464
1549—1556	1549—1556
1568.4.5—1570	1569—1570.3
1582.3—1584.1	1583—1584.4
1817, 1818	1817, 1818
1827, 1828	1827—1828.3
1851—1856.2	1851—1856.3
2679	2679
2753—2757	2753—2757
2805—2818	2805—2818.1
2835—2840	2835—2840.1
2842.1—2844.1	2843—2844.1
2847—2856	2847—2856.1
2859—2868	2859—2868.2

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SUPPLEMENT NO. 94
July 2021

CODE OF ORDINANCES

City of

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Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18095, passed April 28, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
177—178.1	177—178.1
211—216	211—234
509	509
522.3—526	523—526.1
1301—1303	1301—1303
1383—1390	1383—1385
1402.1—1402.28	1402.1—1402.41
1555, 1556	1555, 1556
1608.1—1610	1609—1610.2
2679	2679
2753—2757	2753—2757
2805, 2806	2805, 2806
2817, 2818	2817, 2818
2823—2826	2823—2826
2835—2836.1	2835—2836.1
2847—2858.2	2847—2858.2
2863, 2864	2863, 2864

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SUPPLEMENT NO. 93
January 2021

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17952, passed November 4, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
10.1, 10.2	10.1—10.2.1
1303	1303
1412.7	1412.7—1412.11
1551—1556	1551—1556
1582.1, 1582.2	1582.1—1582.4
2679	2679
2755—2757	2755—2757
2835—2836.1	2835—2836.1
2839, 2840	2839, 2840
2851—2854	2851—2854.1
2861, 2862	2861—2862.1

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SUPPLEMENT NO. 92
September 2020

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17885, passed August 12, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
58.1, 58.2	58.1—58.2.1
1414.1	1414.1
1453—1461	1453—1455
1981, 1982	1981—1982.1
2679	2679
2753—2757	2753—2757
2803, 2804	2803, 2804
2806.1—2808	2807—2808.1
2851—2852.1	2851—2852.1
2869—2870.1	2869—2870.1

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SUPPLEMENT NO. 91
January 2020

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17171, passed October 9, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
33, 34	33—34.2
1413—1414.1	1413—1414.1
1443, 1444	1443—1444.3
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2822.1—2824.1	2823—2824.1
2835, 2836	2835—2836.1
2841—2842.1	2841—2842.1
2867—2870.1	2867—2870.1

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SUPPLEMENT NO. 90
June 2019

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17073, passed May 22, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
1—5	1—5
10.3, 10.4	10.3—10.5
56.1—58.3	57—58.7
1301—1303	1301—1303
1402.3—1402.24	1402.3—1402.24.4
1552.1—1556	1553—1556.3
1588.1, 1588.2	1588.1, 1588.2
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2679	2679
2753—2757	2753—2757
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2815—2820.1	2815—2820.1
2825, 2826	2825, 2826
2831—2834	2831—2834
2843, 2844	2843—2844.1
2849, 2850	2849, 2850
2860.1—2864.1	2861—2864.2

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SUPPLEMENT NO. 89
December 2018

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16924, passed November 14, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
211—216	211—216
635—636.1	635—636.1
643, 644	643—644.1
652.1, 652.2	652.1—652.3
1413—1414.1	1413—1414.1
1443—1458	1443—1456
2677, 2678	2677—2679
2809, 2810	2809, 2810
2821, 2822	2821—2822.1
2827—2832	2827—2832
2839, 2840	2839, 2840
2851—2852.1	2851—2852.1
2867, 2868	2867, 2868

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SUPPLEMENT NO. 88
July 2018

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16827, passed May 23, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
9, 10	9, 10
647—648.2	647—648.2
654.1, 654.2	654.1, 654.2
1303	1303
1412.5	1412.5—1412.7
1707	1707
1723—1724.5	1723—1724.5
1831—1832.3	1831—1832.3
1845—1848	1845—1848.1
1859—1861	1859—1861
2677, 2678	2677, 2678
2813—2814.1	2813—2814.1
2831—2842.1	2831—2842.1

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SUPPLEMENT NO. 87
December 2017

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16684, enacted November 8, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
177, 178	177—178.1
209, 210	209—216
1707	1707
1723—1724.2	1723—1724.5
1851, 1852	1851—1852.1
2677, 2678	2677, 2678
2753—2757	2753—2757
2813, 2814	2813—2814.1
2835—2842	2835—2842.1
2847—2852	2847—2852.1
2857—2858.2	2857—2858.2

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SUPPLEMENT NO. 86
August 2017

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16492, enacted April 26, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
1, 2	1, 2
9—10.4	9—10.4
951—956.1	951—956.1
2677, 2678	2677, 2678
2807—2816	2807—2816.1

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SUPPLEMENT NO. 85
December 2016

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16381, enacted November 9, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
192.25—192.30	192.25—192.30.1
1457—1461	1457—1461
1554.1, 1554.2	1554.1, 1554.2
1606.1—1608.1	1607—1608.1
1853—1856.2	1853—1856.2
2055, 2056	2055, 2056
2069—2075	2069—2076
2677, 2678	2677, 2678
2853, 2854	2853, 2854
2863, 2864	2863—2864.1

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SUPPLEMENT NO. 84
July 2016

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16217, enacted April 13, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:3	SH:3
54.1—56	55—56.3
58.3	58.3
175—178	175—178
188.3—192.6.4	189—192.33
1297—1298.1	1297—1298.1
1355—1358	1355—1358.1
1843—1848	1843—1848
2651	2651
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2753—2757	2753—2757
2803—2808	2803—2808.1
2813—2818	2813—2818.1
2829—2840	2829—2840.1
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2853—2858	2853—2858.2
2869, 2870	2869—2870.1

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SUPPLEMENT NO. 83
January 2016

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16144, enacted December 9, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
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2753—2757	2753—2757
2815—2820	2815—2820.1
2831, 2832	2831, 2832
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2853, 2854	2853—2854.1
2870.1—2873	2871—2873

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SUPPLEMENT NO. 82
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CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15996, enacted June 10, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:3	SH:3
1, 2	1, 2
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1371, 1372	1371, 1372
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2677, 2678	2677, 2678
2755—2757	2755—2757
2806.1—2810	2807—2810.1
2815—2824	2815—2824.1
2843—2846	2843—2846
2854.1—2856	2855—2856.2

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January 2015

CODE OF ORDINANCES

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15835, enacted November 25, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
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1413—1414.1	1413—1414.1
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1713—1716.2	1713—1716.2.1
1826.1—1832	1827—1832.3
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1981—1985	1981—1985
2067—2070.1	2067—2070.1
2675—2677	2675—2678
2753—2757	2753—2757
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SUPPLEMENT NO. 80
July 2014

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15702, enacted May 28, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
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1578.1, 1578.2	1578.1, 1578.2
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2842.1—2854.1	2843—2854.2
2858.1—2860	2859—2860.1
2865, 2866	2865, 2866

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January 2014

CODE OF ORDINANCES

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15629, enacted December 11, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
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1304.1—1304.3	1304.1—1304.3
1402.7—1402.12	1402.7—1402.12.2
1413—1414.1	1413—1414.1
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1716.7—1718	1717—1718.2
1722.1—1724.1	1723—1724.2
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2755—2757	2755—2757
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2853, 2854	2853—2854.1
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CODE OF ORDINANCES

City of

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Parish of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15509, enacted June 12, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
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SH:1, SH:2	SH:1, SH:2
54.3—54.5	54.3—54.5
1402.1—1402.27	1402.1—1402.28
1849—1854	1849—1854
1945—1984	1945—1985
2675, 2676	2675—2677
2753—2757	2753—2757
2805, 2806	2805, 2806
2835, 2836	2835, 2836

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CODE OF ORDINANCES

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15407, enacted October 24, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1—5	1—5
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22.1—38	22.1—37
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195—196.1	195—196.3
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645—648.1	645—648.2
652.1—654.2.1	652.1—654.2
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1402.1—1402.3	1402.1—1402.27
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1721—1722.1	1721—1722.1
1819, 1820	1819, 1820
1847—1852	1847—1852
1945—1979	1945—1984

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2753—2757	2753—2757
2803—2842	2803—2842.2
2847—2858.1	2847—2858.1
2866.1—2873	2867—2873

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15227, enacted November 22, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
54.3—54.5	54.3—54.5
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1846.1—1848	1847—1848.1
1959, 1960	1959, 1960
2675	2675
2815, 2816	2815—2816.1
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SUPPLEMENT NO. 75
July 2011

CODE OF ORDINANCES

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Parish of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15138, enacted May 25, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1 (following Checklist of up-to-date pages)
1297, 1298	1297—1298.1
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1435—1438	1435—1438
1551—1554.2	1551—1554.2
1578.1	1578.1, 1578.2
1599, 1600	1599—1600.1
1845, 1846	1845—1846.1
2675	2675
2810.1—2812	2811—2812.1
2833, 2834	2833—2834.1
2843—2846	2843—2846
2853, 2854	2853—2854.1
2863—2866	2863—2866.1

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SUPPLEMENT NO. 74
March 2011

CODE OF ORDINANCES

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15094, enacted February 23, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
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1413—1414.1	1413—1414.1
1425—1442	1425—1442.4
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1568.3, 1568.4	1568.3—1568.4.5
1588.4.1—1588.7	1588.5—1588.8
1601—1606	1601—1606.1
1831—1836	1831—1836.3
1843, 1844	1843, 1844
2673—2675	2673—2675
2753—2757	2753—2757
2809—2810.1	2809—2810.1
2815, 2816	2815, 2816
2829—2836	2829—2836.1

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2849—2850.1	2849—2850.1
2856.1—2858.1	2857—2858.1
2865—2872	2865—2873

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August 2010

CODE OF ORDINANCES

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14937, enacted June 9, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
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2753—2757	2753—2757
2805—2806.1	2805—2806.1

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Ordinance No. 14937, enacted June 9, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1554.1	1554.1
1568.3—1568.6	1568.3—1568.6
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1716.1—1716.4	1716.1—1716.4
1953, 1954	1953—1954.1
2673—2675	2673—2675
2809—2810.1	2809—2810.1
2817—2820.1	2817—2820.1
2833—2834.1	2833—2834.1
2837—2844	2837—2844
2847—2850.1	2847—2850.1
2863—2866	2863—2866.1

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October 2009

CODE OF ORDINANCES

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14769, enacted September 9, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
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1447—1448.1	1447—1448.1
1553—1554.1	1553—1554.1
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2863, 2864	2863—2864.1
2868.1—2872	2869—2872

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SUPPLEMENT NO. 70
May 2009

CODE OF ORDINANCES

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Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14654, enacted April 22, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
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SUPPLEMENT NO. 69
April 2009

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14586, enacted February 11, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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1840.1, 1840.2	1840.1, 1840.2
2673, 2674	2673, 2674
2755, 2756	2755—2757
2805, 2806	2805—2806.1
2832.1—2834	2833—2834.1

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SUPPLEMENT NO. 68
October 2008

CODE OF ORDINANCES

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14473, enacted August 27, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
15—20	15—20.1
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SUPPLEMENT NO. 67
May 2008

CODE OF ORDINANCES

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14403, enacted April 23, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
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SUPPLEMENT NO. 66
January 2008

CODE OF ORDINANCES

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Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14203, enacted October 24, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1607, 1608	1607, 1608
1945—1950	1945—1950.1
1954.1—1966	1955—1966.5
2673, 2674	2673, 2674
2805—2810	2805—2810.1
2829—2832	2829—2832.1
2847, 2848	2847—2848.1

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SUPPLEMENT NO. 65
October 2007

CODE OF ORDINANCES

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14100, enacted August 8, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
509	509
529	529—531
1299, 1300	1299, 1300
1367—1388.1	1367—1383
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1567—1568.1	1567—1568.6
2673, 2674	2673, 2674
2753—2756	2753—2756
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2822.1—2826	2823—2826.1
2865, 2866	2865, 2866

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SUPPLEMENT NO. 64
May 2007

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13998, enacted April 25, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xv	xiii—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1573, 1574	1573—1574.1
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1979	1979
2673	2673, 2674
2805, 2806	2805, 2806

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SUPPLEMENT NO. 63
April 2007

CODE OF ORDINANCES

City of

BATON ROUGE

PARISH of

EAST BATON ROUGE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13865, enacted January 10, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
28.1—30	29—30.1
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1847, 1848	1847, 1848
1852.1—1855	1853—1856.2
1951—1954	1951—1954.1
1956.1—1956.3	1956.1—1956.3
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2673	2673

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2753—2756	2753—2756
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2839—2842	2839—2842

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SUPPLEMENT NO. 62
October 2006

CODE OF ORDINANCES

City of

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Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13721, enacted August 23, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
7—10.3	7—10.3
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1709, 1710	1709, 1710
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2753—2756	2753—2756
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SUPPLEMENT NO. 61
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CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13568, enacted April 26, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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983, 984	983—984.1
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SUPPLEMENT NO. 60
October 2005

CODE OF ORDINANCES

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Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13362, enacted August 24, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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2847—2854	2847—2854.1
2856.1—2858	2857—2858.1

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SUPPLEMENT NO. 59
June 2005

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13268, enacted May 11, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 58
January 2005

CODE OF ORDINANCES

City of

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Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13098, enacted October 27, 2004.

See the Code Comparative Table for further information.

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September 2004

CODE OF ORDINANCES

City of

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Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13042, enacted August 25, 2004.

See the Code Comparative Table for further information.

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June 2004

CODE OF ORDINANCES

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Parish

of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12936 enacted April 28, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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2818.1—2820	2819—2820.1
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2855—2856.1	2855—2856.1
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SUPPLEMENT NO. 55
January 2004

CODE OF ORDINANCES

City of

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Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12813, enacted November 25, 2003.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xi—xv	xi—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1839—1840.1	1839—1840.2
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2814.1—2818	2815—2818.1
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2843—2844.1	2843—2844.1

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SUPPLEMENT NO. 54
October 2003

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12725, enacted August 25, 2003.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1413—1414.1	1413—1414.1
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1848.1—1852.1	1849—1852.3
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SUPPLEMENT NO. 53
August 2003

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of July 23, 2003.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
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3—5	3—5
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2843—2844.1	2843—2844.1
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SUPPLEMENT NO. 52
September 2002

CODE OF ORDINANCES

City of

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Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of August 14, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xi, xii	xi—xii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
649—652.1	649—652.2
1577—1580	1577—1580
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SUPPLEMENT NO. 51
June 2002

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of June 12, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
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1839—1840.1	1839—1840.1
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2836.1—2840	2837—2840
2843—2844.1	2843—2844.1

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SUPPLEMENT NO. 50
February 2002

CODE OF ORDINANCES

City of

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Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of December 12, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
14.1—16	15—16.1
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SUPPLEMENT NO. 49
October 2001

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of October 10, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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June 2001

CODE OF ORDINANCES

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of May 9, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xv	xiii—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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2851—2856.1	2851—2856.1

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SUPPLEMENT NO. 47
March 2001

CODE OF ORDINANCES

City of

BATON ROUGE

Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of January 24, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
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SUPPLEMENT NO. 46
October 2000

CODE OF ORDINANCES

City of

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Parish of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of August 23, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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June 2000

CODE OF ORDINANCES

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Looseleaf Supplement

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Ordinance of April 26, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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1859—1861	1859—1861
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SUPPLEMENT NO. 44
January 2000

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of November 10, 1999.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 43
June 1999

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of March 24, 1999.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 42
October 1998

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of September 9, 1998.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 41
July 1998

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of May 13, 1998.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 40
February 1998

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

December 10, 1997.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 39
September 1997

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 10949, enacted July 23, 1997.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 38
March 1997

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

January 22, 1997.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 37
November 1996

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

PARISH OF EAST BATON ROUGE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

September 11, 1996.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 36
July 1996

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

April 24, 1996.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 35
March 1996

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

November 15, 1995.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 34
November 1995

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

September 13, 1995.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 33
August 1995

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

April 26, 1995.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 32
March 1995

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

December 14, 1994.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 31
November 1994

CODE OF ORDINANCES

City of

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Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

August 31, 1994.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 30
July 1994

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

May 31, 1994

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 29
May 1994

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Loosleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

February 28, 1994.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 28
January 1994

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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September 1993

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BATON ROUGE, LOUISIANA

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SUPPLEMENT NO. 25
October 1992

CODE OF ORDINANCES

City of

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Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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March 1992

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SUPPLEMENT NO. 23
September 1991

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

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EAST BATON ROUGE, LOUSIANA

Looseleaf Supplement

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SUPPLEMENT NO. 22
May 1991

CODE OF ORDINANCES

City of

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SUPPLEMENT NO. 21
January, 1991

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SUPPLEMENT NO. 18
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SUPPLEMENT NO. 17
August, 1989

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Tallahassee, FL 32316
(904) 576-3171
1-800-262-CODE (National)
1-800-342-CODE (Florida)

SUPPLEMENT NO. 16

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

December 31, 1988.

See Code Comparative Table, page 2659.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
23, 24	23—24.1
1551, 1552	1551, 1552
1563, 1564	1563, 1564
1579—1582	1579—1582.1
1705, 1706	1705, 1706
1711—1714.1	1711—1714.1
1819—1823	1819—1823
1827, 1828	1827, 1828
1830.1—1832	1831—1832.2
1838.1—1840	1839—1840.4
1845—1847	1845, 1846
2659	2659, 2660
2753—2755	2753—2755
Index pages	Index pages
2842.1—2844	2843—2844.1
2855—2858	2855—2858.1
2871, 2872	2871, 2872

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

February, 1989

SUPPLEMENT NO. 15

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

August 31, 1988.

See Code Comparative Table, page 2659.

Remove old pages	*Insert new pages*
ix, x	ix, x
xiii, xiv	xiii, xiv
3—4.1	3—4.1
67—78	67—78.1
85	85—87
801—804	801—804
813, 814	813, 814 ✓
962.1—964.1	963—964.1
981, 982	981—982.1
1413, 1414	1413, 1414
1451, 1452	1451, 1452
1551—1554	1551—1554
1579—1586	1579—1586
1597—1598.3	1597—1598.3
1609	1609
1711, 1712	1711, 1712
1821—1824.1	1819—1823
1833, 1834	1833—1834.1
1847	1847
2659	2659
2755	2755
Index pages	Index pages
2805—2808	2803—2807
2813—2816.1	2813—2816.1
2869—2874	2869—2874.1
2877—2878.1	2877—2878.1

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

December, 1988

SUPPLEMENT NO. 14

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

April 30, 1988.

See Code Comparative Table, page 2659.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
3, 4	3—4.1
21, 22	21, 22
75	75—85
177, 178	177, 178
192.3—192.6	192.2.1—192.5
635, 636	635, 636
651—654	650.1—653
1445, 1446	1445, 1446
1551, 1552	1551, 1552
1587—1588.5	1587—1588.6
1705—1708.1	1705—1708.1
2653, 2654	2653, 2654
2659	2659
2753—2755	2753—2755
Index pages	Index pages
2812.1—2816	2813—2816.1
2820.1	2820.1
2823, 2824	2823—2824.1
2829, 2830	2829, 2830
2838.1	2838.1
2841, 2842	2841—2842.1
2865, 2866	2865, 2866
2871, 2872	2871, 2872

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

July, 1988

SUPPLEMENT NO. 13

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

December 31, 1987.

See Code Comparative Table, page 2659.

Remove old pages	*Insert new pages*
1, 2	1, 2
25—30	25—30.2
635, 636	635, 636
643, 644	643, 644
651, 652	651—652.1
655—656.1	655—656.1
1553, 1554	1553, 1554
1564.1—1564.3	1564.1—1564.3
1588.3—1588.5	1588.3—1588.5
1593—1596	1593—1596
1607—1609	1607—1609
2657, 2658	2657—2659
2753, 2754	2753, 2754
Index pages	Index pages
2829, 2830	2829, 2830
2835, 2836	2835, 2836
2845—2846.1	2845—2846.1
2871, 2872	2871—2872.1

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

March, 1988

SUPPLEMENT NO. 12

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

September 30, 1987.

See Code Comparative Table, page 2658.

Remove old pages	*Insert new pages*
xi—xv	xi—xv
1, 2	1, 2
24.1—26	25—26.1
507—510	507—510
520.1—524	521, 522
529—534	529—534
654.1, 654.2	654.1, 654.2
785—786.1	785—786.1
789, 790	789—790.1
799—814	799—814.1
819, 820	819—820.1
824.1—832	825—832.12
1298.1—1300	1299—1300.1
1309, 1310	1309—1310.1
1312.3—1312.6	1312.3—1312.6
1317—1320	1317—1326
1439—1442	1439—1442
1445, 1446	1445, 1446
1821—1824.1	1821—1824.1
1829, 1830	1829—1830.1
1845, 1846	1845—1847
2653—2658	2653—2658
2753—2755	2753—2755
Index pages	Index pages
2817—2820	2817—2820.1
2824.1—2828	2825—2828
2835—2838.1	2835—2838.1
2845, 2846	2845, 2846
2858.1—2860.1	2859—2860.1
2869, 2870	2869, 2870

2879—2882	2879—2882
2887	2887

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

December, 1987

SUPPLEMENT NO. 11

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

April 30, 1987.

See Code Comparative Table, page 2658.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
5, 6	5, 6
58.1	58.1
192.6.1, 192.6.2	192.6.1—192.6.3
775, 776	775, 776
779, 780	779—780.4
947—950	947—950.1
961, 962	961, 962
1077—1080	1077—1080.1
1089	1089—1098
1297—1298.1	1297—1298.1
1311—1312.13	1311—1312.12
1553—1562	1553—1562.1
1822.1—1824	1823—1824.1
1845, 1846	1845, 1846
2657, 2658	2657, 2658
2755	2755
Index pages	Index pages
2811—2812.1	2811—2812.1
2818.1	2818.1
2826.1—2828.1	2827—2828.1
2833, 2834	2833, 2834
2837—2838.1	2837—2838.1
2843, 2844	2843, 2844
2855, 2856	2855, 2856
2857, 2858	2857, 2858
2867, 2868	2867, 2868

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

August, 1987

SUPPLEMENT NO. 10

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

December 31, 1986.

See Code Comparative Table, page 2658.

Remove old pages	*Insert new pages*
xii.i—xv	xiii—xv
33—44	33—44.2
403—407	403—408
961, 962	961—962.1
970.1—974	971—974.1
991, 992	991, 992
997—1000	997—1000
1067, 1068	1067, 1068
1077—1082	1077—1082
1085, 1086	1085, 1086
1297, 1298	1297—1298.1
1311, 1312	1311—1312.13
2657	2657, 2658
2755	2755
Index pages	Index pages
2805, 2806	2805, 2806
2810.1—2812	2811—2812.1
2817, 2818	2817—2818.1
2821—2824	2821—2824.1
2835, 2836	2835, 2836
2845—2846.1	2845—2846.1
2849—2852	2849—2852
2855—2856.1	2855—2856.1
2869, 2870	2869, 2870

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

February, 1987

SUPPLEMENT NO. 9

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

August 31, 1986.

See Code Comparative Table, page 2657.

Remove old pages	*Insert new pages*
xi, xii	xi—xii.i
509, 510	509, 510
519, 520	519—520.1
533, 534	533, 534
801, 802	801, 802
809—812.1	809—812.1
964.1	964.1
1413, 1414	1413, 1414
1451	1451, 1452
1597, 1598	1597—1598.3
1705, 1706	1705, 1706
1717—1720	1717—1720.1
1821—1822.1	1821—1822.1
1838.1—1838.3	1838.1—1838.3
2651	2651
2653—2657	2653—2657
Index pages	Index pages
2813, 2814	2813, 2814
2817, 2818	2817, 2818
2825, 2826	2825—2826.1
2836.1—2838	2837—2838.1
2841, 2842	2841, 2842
2877—2878.1	2877—2878.1

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

October, 1986

SUPPLEMENT NO. 8

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

April 30, 1986.

See Code Comparative Table, page 2657.

Remove old pages	*Insert new pages*
507, 508	507, 508
511, 512	511—512.2
635, 636	635, 636
654.3—656.1	655—656.1
947, 948	947—948.1
1065—1066.1	1065—1066.4
1300.1—1302.2	1301—1302.2
1413, 1414	1413, 1414
1437—1440	1437—1440
1449—1451	1449—1451
1551—1554	1551—1554.1
1574.1—1588.1	1575—1588.5
1603, 1604	1603—1604.1
1821, 1822	1821, 1822
1827—1838	1827—1838.3
2657	2657
2753—2755	2753—2755
Index pages	Index pages
2806.1—2810.1	2807—2810.1
2823—2828.1	2823—2828.1
2849—2856	2849—2856.1
2859, 2860	2859—2860.1
2869—2878	2869—2878.1

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

August, 1986

SUPPLEMENT NO. 7

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

December 31, 1985.

See Code Comparative Table, page 2656.

Remove old pages	*Insert new pages*
xiii, xiv, xv	xiii, xiv, xv
3, 4	3, 4
43, 44	43, 44
53 through 58.1	53 through 58.1
73, 74	73, 74, 75
403 through 406	403 through 406.1
643 through 654	643 through 654.3
962.1, 963, 964	963, 964, 964.1
969, 970	969, 970, 970.1
1299, 1300	1299, 1300, 1300.1
1313	1313 through 1320
1413, 1414	1413, 1414
1435, 1436	1435, 1436
1441, 1442	1441, 1442, 1442.1
1445 through 1448	1445 through 1451
1821, 1822	1821, 1822
1829, 1830	1829, 1830, 1830.1
2655, 2656	2655, 2656, 2657
Index pages	Index pages
2805, 2806	2805, 2806, 2806.1
2809, 2810	2809, 2810, 2810.1
2821 through 2824	2821 through 2824.1
2829, 2830	2829, 2830
2835, 2836, 2836.1	2835, 2836, 2836.1
2845, 2846	2845, 2846, 2846.1
2855 through 2858.1	2855 through 2858.1
2877 through 2880	2877 through 2880
2883, 2884	2883, 2884

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

March, 1986

SUPPLEMENT NO. 6

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

August 31, 1985.

See Code Comparative Table, page 2656.

Remove old pages	*Insert new pages*
ix, x	ix, x
29 through 44	29 through 44
177, 178	177, 178
192.5, 192.6	192.5 through 192.6.2
403, 404	403, 404, 404.1
805 through 812	805 through 812.1
1711, 1712	1711, 1712
1821, 1822	1821, 1822
1835, 1836	1835, 1836, 1836.1
2655, 2656	2655, 2656
Index pages	Index pages
2821, 2822	2821, 2822, 2822.1
2824.1, 2825, 2826	2825, 2826, 2826.1
2855, 2856, 2856.1	2855, 2856, 2856.1
2865, 2866	2865, 2866, 2866.1

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

October, 1985

SUPPLEMENT NO. 5

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

April 30, 1985.

See Code Comparative Table, page 2656.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv, xv
13 through 16	13 through 16
23, 24	23, 24, 24.1
31 through 42	31 through 42
773, 774	773, 774
777 through 780	777 through 780
785, 786	785, 786
789 through 794	789 through 794.1
807, 808, 808.1	807, 808, 808.1
1299, 1300	1299, 1300
1313	1313
1447, 1448	1447, 1448
1549, 1550	1549, 1550
1553, 1554	1553, 1554
1569, 1570	1569, 1570
1587, 1588	1587, 1588, 1588.1
1593 through 1596	1593 through 1596
1713, 1714	1713, 1714, 1714.1
1717, 1718	1717, 1718
1823, 1824	1823, 1824
1841 through 1845	1841 through 1846
2655, 2656	2655, 2656
Index pages	Index pages
2807, 2808	2807, 2808
2823, 2824, 2824.1	2823, 2824, 2824.1
2835, 2836	2835, 2836, 2836.1
2839, 2840	2839, 2840, 2840.1
2870.1 through 2879	2871 through 2880

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

June, 1985

SUPPLEMENT NO. 4

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 7744, enacted December 31, 1984.

See Code Comparative Table, page 2656.

Remove old pages	*Insert new pages*
xi through xiv	xi through xiv
31 through 42	31 through 42
69, 70	69, 70, 70.1
636.1, 637, 638	637, 638, 638.1
659, 660	659 through 660.2
771, 772	771, 772
793 through 796	793 through 796.2
803 through 808.1	803 through 808.1
811 through 816	811 through 816
819, 820	819, 820
1713 through 1716	1713 through 1716.1
2655	2655, 2656
Index pages	Index pages
2831, 2832	2831, 2832, 2832.1
2845, 2846	2845, 2846
2866.1 through 2870	2867 through 2870.1

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

February, 1985

SUPPLEMENT NO. 3

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

September 1, 1984.

See Code Comparative Table, page 2655.

Remove old pages	*Insert new pages*
ix through xiv	ix through xiv
3, 4	3, 4
13 through 18	13 through 17
67, 68	67, 68
71 through 75	71 through 75
175 through 178	175 through 178.1
189 through 192	189 through 192.8
403 through 407	403 through 407
649, 650, 650.1	649, 650, 650.1
653 through 656	653 through 656.1
781, 782	781, 782, 782.1
785, 786, 786.1	785, 786, 786.1
789, 790	789, 790
817 through 820	817 through 820
995 through 998	995 through 998
1065, 1066	1065, 1066, 1066.1
1297 through 1302.1	1297 through 1302.2
1309 through 1312	1309 through 1313
1445, 1446	1445, 1446
1549 through 1564	1549 through 1564.3
1569, 1570	1569, 1570
1579 through 1605	1579 through 1609
1951, 1952	1951, 1952, 1952.1
2653, 2654	2653, 2654, 2655
2753, 2754, 2755	2753, 2754, 2755
Index pages	Index pages
2807, 2808	2807, 2808
2815 through 2824	2815 through 2824.1
2830.1 through 2836	2831 through 2836
2855, 2856	2855, 2856, 2856.1
2863 through 2866	2863 through 2866.1
2869 through 2880	2869 through 2879

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

October, 1984

SUPPLEMENT NO. 2

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 7429, enacted February 8, 1984.

See Code Comparative Table, page 2654.

Remove old pages	*Insert new pages*
53, 54	53, 54
301, 302	301, 302
807, 808	807, 808, 808.1
811, 812	811, 812
977, 978	977, 978
981, 982	981, 982
1071, 1072	1071, 1072
1297 through 1302	1297 through 1302.1
1553, 1554	1553, 1554
1577 through 1580	1577 through 1580
1601, 1602	1601, 1602, 1602.1
1821, 1822	1821, 1822, 1822.1
1827 through 1832.1	1827 through 1832.1
2653, 2654	2653, 2654
Index pages	Index pages
2807, 2808	2807, 2808
2813, 2814	2813, 2814
2817, 2818	2817, 2818, 2818.1
2827, 2828	2827, 2828, 2828.1
2839 through 2842	2839 through 2842
2875, 2876	2875, 2876
2879, 2880	2879, 2880

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

March, 1984

SUPPLEMENT NO. 1

CODE OF ORDINANCES

City of

BATON ROUGE, LOUISIANA

Parish of

EAST BATON ROUGE, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 7400, enacted December 14, 1983.

See Code Comparative Table, page 2654.

Remove old pages	*Insert new pages*
Title page	Title page
	v through viii
ix through xiv	ix through xiv
15 through 18	15 through 18.1
57, 58	57, 58, 58.1
509 through 512	509 through 512
635, 636	635, 636, 636.1
649, 650	649, 650, 650.1
785, 786	785, 786, 786.1
789, 790	789, 790
807 through 812	807 through 812.1
823, 824	823, 824, 824.1
827 through 830	827 through 830
947, 948	947, 948
961, 962	961, 962, 962.1
967 through 984	967 through 984
999, 1000	999, 1000
1077, 1078	1077, 1078
1413, 1414	1413, 1414
1417, 1418	1417, 1418, 1418.1
1441 through 1449	1441 through 1448
1549, 1550	1549, 1550
1553, 1554	1553, 1554
1561 through 1568	1561 through 1568.1
1571 through 1574	1571 through 1574.1
1595, 1596	1595, 1596, 1596.1
1603, 1604	1603, 1604
1705 through 1708	1705 through 1708.1
1831, 1832	1831, 1832, 1832.1
1843, 1844, 1845	1843, 1844, 1845
1951 through 1955	1951 through 1955

2653	2653, 2654
2753, 2754, 2755	2753, 2754, 2755
Index pages	Index pages
2805 through 2808	2805 through 2808
2811 through 2814	2811 through 2814
2821, 2822	2821, 2822, 2822.1
2829, 2830	2829, 2830, 2830.1
2841, 2842	2841, 2842
2857, 2858	2857, 2858, 2858.1
2869 through 2880	2869 through 2880
2885, 2886, 2887	2885, 2886, 2887

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

February, 1984

CODE OF ORDINANCES

OF THE

CITY OF BATON ROUGE, LOUISIANA

AND

EAST BATON ROUGE PARISH, LOUISIANA

Recodified by

Donald Nijoka
Council Administrator

and

Randal M. Beach
Parish Attorney's Office

Under the Supervision of
Lynn E. Williams
Parish Attorney

Adopted: October 12, 1983
Effective: October 12, 1983

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PREFACE

This Code constitutes a complete recodification and consolidation of the ordinances of Baton Rouge and East Baton Rouge Parish of a general and permanent nature.

Source materials used in the preparation of the Code were the 1951 City Code, as supplemented through May 12, 1982, the 1962 Parish Code, as supplemented through May 12, 1982, and subsequent ordinances adopted through May 11, 1983. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the Comparative Tables appearing in the back of this volume, the reader can locate any section of either Code, as supplemented, and any subsequent ordinance included herein.

The titles of the Code have been arranged in the same order as the prior Codes. Footnotes which tie related sections of the Code together and which refer to relevant state laws have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this volume.

Numbering System

The numbering system used in this Code is the same system used in the Louisiana Revised Statutes. Each section number consists of two component parts separated by a colon, the figure before the colon referring to the title number and the figure after the colon referring to the position of the section within the title. Thus, the first section of Title 1 is numbered 1:1 and the fourth section of Title 3 is 3:4.

Index

The index has been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology, and still others in language generally used by municipal officials and employees. There are numerous cross references within each index which stand as guideposts to direct the user to the particular item in which he is interested.

Looseleaf Supplements

A special feature of this Code to which the attention of the user is especially directed is the looseleaf system of binding and supplemental servicing for the Code. With this system, the Code will be kept up-to-date periodically. Upon the final passage of amendatory ordinances, they will be properly edited and the appropriate page or pages affected will be reprinted. These new pages will be distributed to holders of copies of the Code, with instructions for the manner of inserting the new pages and deleting the obsolete pages. Each such amendment, when incorporated into this Code, may be cited as a part hereof.

The successful maintenance of this Code up-to-date at all times will depend largely upon the holder of the volume. As revised sheets are received, it will

then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publishers that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

The publication of this Code was under direct supervision of George R. Langford, President, and Bill Carroll, Supervising Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publishers are most grateful to the Council Administrator, Mr. Donald Nijoka and the Assistant Parish Attorney, Mr. Randal M. Beach, for their cooperation assistance during the progress of the work on this Code. It is hoped that their efforts and those of the publishers have resulted in a Code of Ordinances which will make the active law of the City-Parish readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the City-Parish's affairs.

MUNICIPAL CODE CORPORATION

Tallahassee, Florida

ORDINANCE 7296

Adopting a Code of Civil and Criminal Ordinances of the City of Baton Rouge and Parish of East Baton Rouge, To Be Known as the "Code of Ordinances of the City of Baton Rouge and the Parish of East Baton Rouge"; Providing for the Repeal of Certain Ordinances Inconsistent Thereto or in Conflict Therewith; for the Printing and Distribution Thereof; for the Effect and Maintenance Thereof; for Inclusion of Additions and Amendments Thereto; for the Reference and Interpretation Thereof; and for the Effective Date Thereof.

WHEREAS, the City of Baton Rouge and the Parish of East Baton Rouge have the authority under the Plan of Government and under and by virtue of the general laws of the State of Louisiana to revise, compile and recodify their existing ordinances, which Code, when adopted, shall have the force and effect of an ordinance regularly enacted with the usual prerequisites of law; and

WHEREAS, the City of Baton Rouge and the Parish of East Baton Rouge, acting through the City Council and Parish Council (Metropolitan Council), have authorized the revision, compilation and recodification of their existing ordinances; and

WHEREAS, Donald Nijoka, Council Administrator, and Randal Beach, Parish Attorney's Office, under the supervision of Lynn E. Williams, Parish Attorney, have so revised, compiled and recodified the existing ordinances of the City of Baton Rouge and the Parish of East Baton Rouge, into the CODE OF ORDINANCES OF THE CITY OF BATON ROUGE AND THE PARISH OF EAST BATON ROUGE; and

WHEREAS, such Code, containing Titles 1 to 15, both inclusive, has been presented to the City Council of the City of Baton Rouge and the Parish Council of the Parish of East Baton Rouge (Metropolitan Council of the City of Baton Rouge and the Parish of East Baton Rouge), and examined, considered and approved by said Council(s):

NOW, THEREFORE, BE IT ORDAINED by the City Council of the City of Baton Rouge and the Parish Council of the Parish of East Baton Rouge (Metropolitan Council of the City of Baton Rouge and the Parish of East Baton Rouge) that:

ADOPTION AND REPEAL OF INCONSISTENT AND CONFLICTING ORDINANCES

SECTION 1. Pursuant to the authority vested in the City Council of the City of Baton Rouge and the Parish Council of the Parish of East Baton Rouge (Metropolitan Council of the City of Baton Rouge and the Parish of East Baton Rouge), the Code prepared by Donald Nijoka and Randal Beach, under the supervision of Lynn E. Williams, Parish Attorney, and containing Titles 1 to 15, inclusive, shall be known as the "CODE OF ORDINANCES OF THE CITY OF BATON ROUGE AND THE PARISH OF EAST BATON ROUGE" and shall be treated as a new and original comprehensive ordinance, which shall completely supersede all civil ordinances of a general and permanent nature adopted through May 31, 1983, and all criminal ordinances adopted through May 31, 1983, which are inconsistent or in conflict herewith except as herein provided. This "CODE OF ORDINANCES OF THE CITY OF BATON ROUGE AND THE PARISH OF EAST BATON ROUGE" shall be effective as of October 12, 1983. All amendments adopted after May 31, 1983, shall be included in supplements to be printed from time to time.

EXCEPTIONS AND LIMITATIONS ON REPEAL OF INCONSISTENT AND CONFLICTING ORDINANCES

SECTION 2. (a) All ordinances in effect on October 12, 1983, not inconsistent with any provision of this revised Code which are omitted from such revision and recodification shall not be deemed to have been repealed, but shall be continued in full force and effect unimpaired by this revised Code.

(b) That the repeal of any ordinance or any portion thereof by this or the preceding section shall not affect or impair any act done or right vested or accrued, or any proceeding, suit or prosecution had or commenced in any cause before such repeal shall take effect; but every such act done, or right vested or accrued, or proceeding, suit or

prosecution had or commenced shall remain in full force and effect to all intents and purposes as if such ordinance or part thereof so repealed had remained in force. No offense committed and no liability, penalty or forfeiture either civilly or criminally incurred prior to the time when any such ordinance or part thereof shall be repealed or altered by this revised Code shall be discharged or affected by such repeal or alteration; but prosecution and suits for such offenses, liabilities, penalties or forfeitures shall be instituted and proceeded with in all respects as if such prior ordinance or part thereof had not been repealed or altered.

(c) No general or special ordinance or resolution heretofore enacted validating or legalizing the acts or omissions of any officer or validating ordinance, act or proceedings whatever shall be affected by the repealing clause of this ordinance; but all validating or legalizing ordinances whatsoever now in force are hereby continued in force.

(d) No ordinance relating to the public debt or the public credit or any annexation of territory shall be affected by the repealing clause of this ordinance.

(e) No ordinance relating to a contract to which the City or the Parish is a party or any contract made for their benefit shall be affected by the repealing clause of this ordinance.

(f) All ordinances and resolutions making specific appropriation of public funds are continued in force and effect.

(g) Nothing in the repealing clause of this ordinance shall be construed as releasing any person, firm or corporation from any duty enjoined in the limitation or condition imposed by any ordinance that may be repealed by said repealing clause.

(h) Nothing herein shall be construed as a repeal or modification of any ordinance levying a special benefit assessment or creating a lien and debt against the owner of any property improved by the opening, widening, extension or paving of any street or public thoroughfare within the City of Baton Rouge or the Parish of East Baton Rouge.

(i) Nothing herein shall be construed as a repeal of any franchise, license or right granted by the City of Baton Rouge or the Parish of East Baton Rouge to any person, firm or corporation which license, grant, power or franchise was legally in force and effect at the effective date of this revised Code. Every such license, grant, power or franchise shall expire as originally provided by ordinance.

PRINTING AND DISTRIBUTION

SECTION 3. After promulgation of this Code as is required by law, 400 copies of this Code shall be printed in loose-leaf form under the supervision of the compilers and codifiers, Donald Nijoka and Randal Beach, and distributed by the Council Administrator as directed by the City Council of the City of Baton Rouge and the Parish Council of the Parish of East Baton Rouge (Metropolitan Council of the City of Baton Rouge and the Parish of East Baton Rouge). Periodically, the Council Administrator shall prepare and cause to be published revised sheets of every loose-leaf page in need of revision by reason of amendment, addition or repeal, as directed by the City Council of the City of Baton Rouge and/or the Parish Council of the Parish of East Baton Rouge (Metropolitan Council of the City of Baton Rouge and the Parish of East Baton Rouge).

EFFECT OF CODE OF ORDINANCES OF THE CITY OF BATON ROUGE AND THE PARISH OF EAST BATON ROUGE

SECTION 4. This Code shall be admitted in evidence without further proof, and shall be prima facie evidence in all courts of the existence and regularity of the enactments of the particular ordinance(s) of said Code.

MAINTENANCE OF CODE

SECTION 5. The Council Administrator shall keep two copies of this Code. These copies shall be preserved by the Council Administrator in a book or binder in loose-leaf form, or in such other form as the Council Administrator may consider most

expedient, so that all amendments thereto and all general ordinances hereafter adopted may be inserted in their appropriate places in such volumes, and all sections of this Code repealed from time to time may be extracted therefrom for the purpose of maintaining said two copies in such condition that they will show the Code and all amendments adopted up to date at any time in such manner that ready reference may be had thereto.

In determining whether or not any Ordinance hereafter adopted, or any part thereof, shall be inserted in such volumes, and in determining the form, chapter, or section in which it shall be inserted, and in determining what shall be taken out of this Code, the Council Administrator shall be guided by the advice of the Parish Attorney.

ADDITIONS AND AMENDMENTS

SECTION 6. Any additions or amendments to this Code, when adopted in such a form as to indicate the intention of the City Council of the City of Baton Rouge and/or the Parish Council of the Parish of East Baton Rouge (Metropolitan Council of the City of Baton Rouge and the Parish of East Baton Rouge) to make the same a part hereof, shall be deemed to be incorporated in this Code so that reference to the "CODE OF ORDINANCES OF THE CITY OF BATON ROUGE AND THE PARISH OF EAST BATON ROUGE" shall be understood as including them.

CITATION OF SECTIONS

SECTION 7. Sections in this Code shall be cited as "CODE OF ORDINANCES OF THE CITY OF BATON ROUGE AND THE PARISH OF EAST BATON ROUGE" followed by the number of the Title and the number of the section in the Title separated by a colon. Example: Section 1 of Title 12 shall be cited as Code of Ordinances of the City of Baton Rouge and the Parish of East Baton Rouge 12:1.

INTERPRETATION OF THE CODE

SECTION 8. The following rules shall govern in the interpretation of the "CODE OF ORDINANCES OF THE CITY OF BATON ROUGE AND THE PARISH OF EAST BATON ROUGE":

(a) Unless a caption line designates otherwise, all sections of this code apply throughout the Parish of East Baton Rouge, including the City of Baton Rouge. If a Section applies only within the City of Baton Rouge, the caption line of such Section will include the word "City" in parentheses. If a Section applies only in those areas of the Parish outside the City of Baton Rouge, the caption line of such Section will include the word "Parish" in parentheses.

(b) Unless the context requires other interpretations, the following words and terms are defined for the purpose of this Code as follows:

(1) City—City of Baton Rouge;
(2) Parish—Parish of East Baton Rouge;
(3) State—State of Louisiana;
(4) Council—Should the amendments to the Plan of Government adopted by the voters of the City of Baton Rouge and the Parish of East Baton Rouge on September 11, 1982, be finally approved by the United States Department of Justice, or by the Courts of the United States, the term Council shall mean the Metropolitan Council of the City of Baton Rouge and the Parish of East Baton Rouge. Until such approval shall occur, the term Council shall mean either the City Council of the City of Baton Rouge or the Parish Council of the Parish of East Baton Rouge, or both, whichever is appropriate under the Plan of Government as it existed prior to the adoption of the amendments of September 11, 1982.
(5) Person—Any natural individual, firm, trust, partnership, association, corporation or other legal entity in his, her or its own capacity or as administrator, conservator, executor, trustee, receiver, or other representative appointed by the court. Whenever the word "person" is used in any section of this Code prescribing a penalty or fine as applied to partnerships or associations, the word shall include the individual partners or members thereof, and such word as applied to corporations shall include the officers, agents or employees thereof

who are responsible for any violation of said section;

(6) Public Way—Any sidewalk, street, alley, highway or other public thoroughfare;

(7) Code—The Code of Ordinances of the City of Baton Rouge and the Parish of East Baton Rouge and all amendments thereto.

(c) Whenever any words in any section of this Code import the plural number, the singular shall be deemed to be included, and whenever the singular number shall be used, it shall be deemed to include the plural, unless otherwise specified.

Whenever the masculine gender is used in this Code, females as well as males shall be deemed to be included.

Words in the present tense shall be deemed to include the future tense, unless otherwise specified.

The words "written" and "in writing" may include printing.

The word "shall" as used in this Code is mandatory.

(d) Reference to any section of this Code shall be understood to refer to and include the appropriate penalty section relating thereto, unless otherwise expressly provided.

(e) In case of the amendment of any section of this Code containing provisions for which a penalty is provided in another section, the penalty so provided in such other section shall be held to relate to the section so amended whether re-enacted in the amendatory ordinance or not, unless such penalty is specifically repealed therein.

(f) Whenever in any section of this Code the doing of an act or the omission of any act or duty is declared to be a breach thereof, and there shall be no fine or penalty declared for such breach, any person who shall be convicted of any such breach shall be fined not less than twenty-five dollars nor more than five hundred dollars for each such breach.

(g) Whenever in this Code a minimum fine but no maximum fine or penalty is imposed, the court may in its discretion fine the offender any sum of money exceeding the minimum fine or penalty so fixed, but not exceeding the sum of five hundred dollars.

(h) In all cases where the same offense is made punishable or is created by different clauses or sections of this Code, the prosecuting attorney may elect under which to proceed; but not more than one recovery shall be had against the same person for the same singular offense.

(i) When any Section, Part, Chapter or Title repealing a former Section, Part, Chapter, Title, clause or provision shall be itself repealed, such repeal shall not be construed to revive such former Section, Part, Chapter, Title, clause or provision.

(j) All general provisions, terms, phrases, and expressions contained in this Code shall be liberally construed in order that the true intent and meaning of the Council may be fully carried out.

(k) Clerical and typographical errors shall be disregarded when the meaning of the Council is clear.

(l) The classification and organization of the Sections, Parts, Chapters and Titles, and the subject headings or titles thereof are made for the purpose of convenience, reference and order arrangement, and no presumption of legislative construction shall be drawn therefrom except as is clearly stated therein, and with the exception of the designations (City) and (Parish) as set forth in part (a) of this section.

ADOPTED:
Metropolitan Council, Oct. 12, 1983
/s/ Donald Nijoka
Council Administrator

ADOPTED:
By City Council, Oct. 12, 1983
/s/ Donald Nijoka
Council Administrator

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(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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Title 1

MUNICIPAL AND PARISH ORGANIZATION*

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CHAPTER 1. GOVERNING BODY*

PART I. RULES OF PROCEDURE

Sec. 1:1. Regular meetings; budget meetings; organizational meetings; zoning meetings.

(a) Until otherwise provided, regular meetings of the council shall be held on the second and fourth Wednesdays of each month, in room 348 of the governmental building, in the City of Baton Rouge, Louisiana. Except as hereinafter provided, the meetings of the council shall commence at 4:00 p.m. Presentations and special recognitions shall begin at 3:30 p.m. for regularly scheduled full council and council zoning meetings. Should the date fixed for any regular meeting fall on a holiday, the regular meeting scheduled therefor shall be held at the hour and place mentioned above on the next succeeding business day. If required for the purpose of adopting the budget, as provided in the plan of government, a meeting may be held for this purpose on the fourteenth day of December each year, which meeting shall also be fixed and designated in the event of its being so held as a regular meeting of the council; provided, however, that where a regular meeting as hereinabove fixed falls on the fourteenth day of December, it shall not be necessary to have an additional meeting for budget purposes only.

(b) The organizational meeting of the council required by Section 2.07 of the Plan of Government to be held on the second day of January, 1985, and the second day of January every fourth year thereafter, shall be held at the place designated by the council as its place of meeting for that specific occasion. If such meeting is held at the place hereinabove set forth as the regular meeting place of the council, then no further designation shall be required or necessary.

(c) Notwithstanding any other subsections of this section to the contrary, there shall be a regularly scheduled zoning meeting of the council for the purpose of conducting any and all public hearings dealing with zoning. These meetings shall be referred to as the regular zoning meetings. The regular zoning meetings shall be held on the third Wednesday of each month, commencing at 4:00 p.m. The regular zoning meetings shall be held at the same place as the regular meetings referred to in subsection (a) of this section. The rules prescribed in sections 1:2, 1:5, 1:6, 1:7, 1:8, 1:9 and 1:10 shall apply to the regular zoning meetings as applicable.

(City Code 1951, Title 1, § 1; Parish Code 1962, Title 1, § 1; Ord. No. 8383, § 1, 4-8-87; Ord. No. 8895, § 1, 4-26-89; Ord. No. 15598, § 1, 10-23-13)

Sec. 1:2. Order of business at regular meetings; agenda.

(a) Unless this section of these rules of procedure is suspended at any regular meeting by the unanimous vote of all members present, the following shall be the order of business at all regular meetings of the council, provided that the president pro tempore will determine which items on the agenda are of particular interest to persons who may be present in the council chamber at the beginning of the meeting and the council will consider such items prior to calling those items upon which no person interested is present:

(1) Call to order;

(2) Roll call;

(3) Invocation;

(4) Pledge of Allegiance;

(5) Presentations and special recognitions;

(6) Action on minutes of any previous meeting, regular or special, which have not yet been disposed of (a reading of the minutes may be dispensed with, and the minutes may be approved or corrected, by a majority vote of the members present);

(7) Introduction of and permitted action on, proposed ordinances and resolutions;

(8) Committee actions;

(9) Condemnation proceedings;

*__Cross references—__Retirement benefits for part-time council members, § 1:267; code of government ethics, title 1, ch. 7.

(10) Public hearings called by the council to be held at the same time and place as the regular meetings;

(11) Adjudicated properties;

(12) Administrative matters;

(13) Appointments;

(14) Items to be acted on;

(15) Adjournment.

(b) Prior to each regular meeting, the council administrator shall prepare an agenda as hereinafter provided of all matters which he knows may be considered at the meeting, arranged in the order set forth in subsection (a) in sufficient detail to explain the nature of the item and the name of the person placing it on the agenda. A copy of this final agenda shall be electronically mailed to each member of the council not later than the Saturday preceding the particular meeting.

(c) No matter shall be placed on the agenda unless the following procedure has been followed:

(1) Only the mayor-president, members of the council, and the heads of departments, and other agencies, boards, and commissions of the local government may place items on the agenda. Items seeking authority to settle or compromise claims shall not be submitted to the agenda without previously going through the claims review process.

(2) Any request for an item to be placed on the agenda must be received in writing by the council administrator prior to 12:00 noon on Thursday preceding the next regular meeting of the council. Such request shall include a brief affirmative statement of the subject matter of the item together with a statement of what action the council is being requested to take, and may refer to only one (1) item.

(3) The council administrator is prohibited from placing an item on the agenda unless the above conditions are met and the council administrator shall not place items on the agenda if he deems the information relating thereto to be insufficient.

(4) The council administrator shall transmit the final agenda (containing the status of subject matter, etc., and name of the person placing each item on the agenda) to the council members by electronic mail, not later than the Saturday immediately preceding the council meetings.

(5) Any items received after 12:00 noon Thursday immediately preceding the council meetings shall be placed on the agenda for the next following regular council meeting.

(6) Except by unanimous vote of the council to do so, no item not on the regular agenda or item on the agenda, which by its nature requires the passage of an ordinance or resolution, may be considered by the council unless the council members and interested department heads have been previously provided with typewritten copies of the proposed ordinance or resolution approved by the parish attorney.

(7) Any matter not covered by the statement of fact submitted by the department heads, and other agencies, boards and commissions of the local government placing the item on the agenda, may not be considered by the council. The chairman shall rule on the question considered by the council, of whether the matter was covered upon request of any member of the council, and his ruling shall be final unless appealed from and overturned as set forth hereinafter.

(8) The items entitled "administrative matters" shall remain as permanent items on the agenda; provided, however, that any matter considered under these items shall be approved by unanimous vote of the members present, and identified in the motion to take up the matter with reasonable specificity, including the purpose for the addition to the agenda, and entered into the minutes of the

meeting. Prior to any vote on the motion to take up a matter not on the agenda, there shall be an opportunity for public comment on any such motion in accordance with R.S. 42:5 or 5.1. Copies of all communications received by the council administrator and requiring the attention of the councils shall be transmitted to the members. Where any communication request involves administrative action, a copy of the communication will be forwarded to the department, board or agency for subsequent distribution to the members of the council. For the purpose of this section, agenda items and accompanying explanation given by the members of the council to employees of the council administrator's office either by telephone or by verbal dictation shall be considered to have been in writing.

(9) Any action required by law to be introduced for a public hearing at the next or any other subsequent meeting of the council shall not be discussed at the meeting at which it is introduced.

(10) The agenda as prepared by the council administrator and submitted to the council not later than the Saturday immediately preceding the council meetings shall be the final official agenda.

(11) Each department head or other official appointed by the president pro tempore and the council and the heads of the administrative staffs appointed by boards and commissions under the jurisdiction of the council, including, but not limited to, the planning director, the director of aviation and the librarian, (except where absent from the city-parish, on vacation or absent because of illness, in which case such official may send a designated representative), shall attend every regular and special meeting of the council where the agenda for any such meeting contains an item or calls for a public hearing on any resolution or ordinance in which a department or agency shall have an interest or be responsible in any way for the carrying out and execution of legislative action resulting from the adoption of any such agenda item or resolution or ordinance. The council administrator shall transmit to all such department heads and heads of the administrative staffs copies of the agenda of each regular and special meeting of the council prior to the date of said meeting in order that the officials may be acquainted with the various items, resolutions and ordinances to be considered and prepared to furnish necessary information and data relating thereto as requested by the members of the council.

(12) The finance and executive committee, heretofore established, shall adopt its own rules of procedure, and shall review all requests for expenditures and personnel changes, which requests represent a departure from the current expense budget and which, by failure of the council to take affirmative action, will result in that amount of money involved reverting to the general fund at the close of the fiscal year; provided however, that in the case of allocations, the monies in question shall remain in the previously designated account.

(13) The finance and executive committee and the council shall be guided by the provisions of City Ordinance 2356, and Parish Ordinance 3128, adopted August 13, 1969, as may be amended from time to time, but subject to the limitations of the provisions of Section 8.18 of the Plan of Government.

(City Code 1951, Title 1, § 2; Parish Code 1962, Title 1, § 2; Ord. No. 11652, § 1, 2-9-00; Ord. No. 13319, § 1, 6-22-05; Ord. No. 13624, § 1, 5-30-06; Ord. No. 14274, § 1, 1-9-08; Ord. No. 14457, § 1, 8-13-08; Ord. No. 16064, § 1, 8-26-15; Ord. No. 19312, § 1, 8-14-24)

Sec. 1:2.1 Introduction of ordinances and resolutions required.

(a) Except for the items listed in subsection (b), no matter shall be added for discussion and no ordinance or resolution may be adopted at the

same meeting at which it was introduced, but must be read by title a first time and a time, not less than six (6) days after such introduction, fixed, at which the metropolitan council or a committee thereof shall hold a public hearing on the matter.

(b) Exceptions.

(i) In cases of emergency declared by two-thirds (⅔) vote of the metropolitan council, an ordinance or resolution may be adopted at the same meeting at which it was introduced.

(ii) Any item that is a change order, final acceptance, and acceptances of low bid for a public works construction or procurement may be adopted at the same meeting at which it was introduced.

(Ord. No. 16442, § 1, 3-8-17; Ord. No. 16827, § 1, 5-23-18)

Sec. 1:3. Special meetings; notices.

(a) The mayor-president or any three (3) members of the council may call a special meeting of the council, to be held at the place and at the time (not less than forty-eight (48) hours after issuance of notice thereof) set forth in the notice of the special meeting. All notices of a special meeting shall be issued by the council administrator and shall contain a statement of the specific item or items of business to be transacted, and shall be posted by the council administrator in the United States mail, addressed to the respective member of the council at his/her proper postal address. The certificate of the council administrator, setting forth the language of the notice and certifying that a copy thereof was posted to all members of the council by United States mail, properly addressed and with sufficient postage affixed, shall be prima facie evidence of proper and timely notice of the special meeting to all members of the council.

(b) Any member of the council present at the special meeting, at that time may acknowledge orally the receipt of a proper and timely notice thereof, or may waive orally such notice, or any and all obligations thereto or the time and place of the meeting. Any member of the council absent from the special meeting, in writing filed with the council at any time prior to the convening of the meeting, may make the acknowledgment, or any of the waivers, enumerated in the preceding sentence.

(c) In the case of all special meetings of the council, the council administrator shall notify the mayor-president and the president pro tempore of the council of the call of such special meeting. If either the mayor-president or the president pro-tempore cannot attend such special meeting, each of such officers shall notify the council administrator of this fact. If neither the mayor-president nor the president pro-tempore can be in attendance at any such meeting, the council may proceed to elect a temporary presiding officer for the purpose of conducting the business of the meeting. If neither the mayor-president nor the president pro-tempore is present at a regular meeting of the council and has not designated a council member to sit as chairman of the meeting, the council may elect one of its members to act as temporary chairman of the meeting.

(d) In cases of extraordinary emergency, which shall be limited to natural disaster, threat of epidemic, civil disturbances, suppression of insurrections, the repelling of invasions, or other matters of similar magnitude, such notice shall not be required; however, the public body shall give such notice of the meeting as it deems appropriate and circumstances permit.

(City Code 1951, Title 1, § 3; Parish Code 1962, Title 1, § 3; Ord. No. 13419, § 1, 10-12-05)

Sec. 1:4. Order of business at special meetings.

The following shall be the order of business at all special meetings of the council:

(1) Call to order;

(2) Roll call;

(3) Proof of notice of the meeting, or waiver thereof by members not proven to have been notified properly;

(4) Consideration of the specific item or items of business stated in the call for the special meeting;

(5) Adjournment.
(City Code 1951, Title 1, § 4; Parish Code 1962, Title 1, § 4)

Sec. 1:5. Quorum.

(a) A majority of the entire membership of the council shall constitute a quorum at any regular or special meeting of the council.

(b) Unless another provision of the Code of Ordinances or the plan of government specifically provides for a higher number of votes as to a particular matter, all ordinances, resolutions, motions or votes, including those of a purely procedural nature, must receive the affirmative vote of a majority of all the members of the metropolitan council in order to be adopted, or for any appointment or removal to be made.

(c) When more than seven (7) votes are required for approval of an item, the item will be deferred until such time as the required number of members are present or applicable.
(City Code 1951, Title 1, § 5; Parish Code 1962, Title 1, § 5; Ord. No. 11652, § 2, 2-9-00; Ord. No. 13418, § 1, 10-12-05)

Sec. 1:6. Journal of proceedings; publication.

(a) The council administrator shall keep a journal of the proceedings of the council at all regular and special meetings. The journal of the proceedings of the council among other things shall record the roll call and the yeas and nays at any voting by the council on any ordinance, resolution, motion, or vote; set forth in full all ordinances, resolutions or motions adopted by the council; and set forth the title of all ordinances or resolutions introduced but on which no final action is taken and all ordinances and resolutions which failed of adoption.

(b) The proceedings of all regular and special meetings shall be published by the council administrator in the official journal of the city-parish.

(c) The council administrator shall publish in the official journal of the city-parish at least four (4) days prior to the time fixed for a public hearing: an official public notice setting forth by title all ordinances and resolutions introduced at the meeting, the publication of which is required under the provisions of Section 2.12 of the Plan of Government.
(City Code 1951, Title 1, § 6; Parish Code 1962, Title 1, § 6)

Sec. 1:7. Conducting of meetings; public hearings.

(a) In view of the many items appearing on the agenda, each councilman will be allowed a maximum of five (5) minutes to express his views on any one (1) subject without interruption from the other members upon initial consideration and five (5) minutes for rebuttal. No member will speak until recognized by the chair. In compliance with R.S. 42:5(D), members of the public will be allowed to speak on any item included on the agenda. Members of the public who wish to speak, must request permission to do so when such time is announced by the chairman. The chairman will allocate time to all nonmembers of the council speaking before the council. Members of the public who wish to submit public comments electronically prior to regular meetings of the council may do so using the mechanism provided by the council.

(b) Any question to be directed from a member of the council to any other person present must be directed through the chair.

(c) The council administrator is to be sergeant-at-arms and shall keep time and advise the chairman as to the time on all speakers. In order to continue beyond the allowed maximum, persons speaking must secure unanimous consent of the council.

(d) All council regular meetings, regular zoning meetings, and special meetings shall last for a period not to exceed four (4) hours to be computed from the time a quorum is present for the purpose of conducting the meeting. A meeting may be extended for specific periods not to exceed an aggregate of thirty (30) minutes, but only by unanimous consent of all members of the council then present.

(e) A ruling of the chairman that the item on the agenda being discussed by the person placing such item on the agenda was not properly covered by the affirmative statement shall be sustained unless overruled by the vote of two-thirds (2/3) of the members then present. All other rulings of the chairman from which appeals are taken shall be sustained unless overturned by a majority of those members present.
(City Code 1951, Title 1, § 7; Parish Code 1962, Title 1, § 7; Ord. No. 12601, § 1, 4-9-03; Ord. No. 17952, § 1, 11-4-20)

Sec. 1:8. Ruling on points of order.

Any point of order or procedure shall be ruled on by the chair in accordance with the rules set forth in these ordinances, the plan of government, and applicable state law when the point of order or procedure is raised. The ruling of the chair on the procedural point shall be final.
(City Code 1951, Title 1, § 8; Parish Code 1962, Title 1, § 8; Ord. No. 16008, § 1, 7-22-15)

Sec. 1:9. Voting.

(a) *Roll call:*

(1) Unless a motion is approved by unanimous consent, all voting shall be by roll call, show of hands, or electronic voting and the ayes and nays shall be recorded in the journal.

(2) In roll calls upon the electric voting board, green lights shall indicate "aye" votes; red lights shall indicate "no" votes and the white lights shall indicate "not voting."

(3) When roll call has been completed and the voting board locked, the minute clerk shall announce the vote, as reflected by the roll call shown upon the voting board. The clerk shall announce the names of those members who vote "no" and "not voting."

(4) The minute clerk shall then proceed to record the vote in the journal and upon completion thereof shall clear the voting board. The minute clerk only shall have authority to clear the voting board.

(5) Any member of the council has the right to change his vote up to the time the vote is finally announced. A change of vote shall be called to the attention of the chairman and no attempt shall be made to record a change of vote upon the voting board. After the vote has been finally announced, no member shall be permitted to change his vote except by unanimous consent.

(6) Malfunction of the voting board shall be called to the attention of the chairman before the vote is finally announced. In the event of malfunction, the roll call shall be taken verbally. Malfunction within the meaning of this section shall mean a complete failure of the voting board to record the votes cast. If the machine fails to record or properly record the vote of an individual member but is otherwise in operating order, then the member or members of the council affected may declare their vote prior to the time the vote is finally announced by calling it to the attention of the chairman, in which case the voice of that member or members shall constitute his vote to the same extent as if shown on the voting board.

(b) *Reconsideration:*

(1) Any member who is on the prevailing side of a question may, before adjournment of the meeting at which the question was considered, move to reconsider the vote.

(2) A motion to reconsider requires a second.

(3) If the motion to reconsider receives a second, the matter shall be reconsidered prior to the adjournment of the meeting.

(4) A motion to reconsider requires a majority vote regardless of the vote necessary to adopt the question reconsidered.

(5) If a motion to reconsider is lost it cannot be repeated except by unanimous consent.

(c) *Future consideration.* Any item which has been considered and voted upon twice shall not be considered by the council for a period of one (1) year following the date on which the item was last acted upon, except upon the vote of two-thirds (2/3) of the entire membership of the council. A vote on a motion to postpone action on an item or to defer action on an item to a

subsequent meeting shall not be considered when counting the number of times the item has been considered and voted upon by the council.

(d) *Postpone action or defer action.*

(1) Any member may make a motion to postpone action on an item or defer action on an item on the agenda to a future meeting.

(2) A motion to postpone action or defer action requires a second.

(3) A motion to postpone action or defer action requires a majority vote of the entire metropolitan council regardless of the vote necessary to adopt the item.

(4) A motion to postpone action or defer action on an item may be made by a member at any time prior to the chair moving to the next order of business.

(City Code 1951, Title 1, § 9; Parish Code 1962, Title 1, § 9; Ord. No. 7001, § 1, 1-12-83; Ord. No. 16008, § 1, 7-22-15)

Sec. 1:10. Subpoena of witnesses and documents.

(a) *Authority.* The council or any committee thereof may, in the investigation of any matter before it, summon witnesses and compel their attendance, may compel witnesses to testify under oath, and to produce books, papers, titles or documents in their possession which may be necessary to the matter or matters under investigation.

(b) *Oath.* Witnesses shall be sworn by the president pro tempore or the chairman of any committee of the council, or in his absence, by any member of the council present at the hearing.

(c) *Service.* All subpoenas shall be issued to witnesses by the council administrator and signed by him. The services of subpoenas may be made by the sheriff of the parish, or any of his deputies, or by any officer or employee of the city-parish, in person or by domiciliary service.

(d) *Penalty.* Any person having been duly summoned to appear before the council, or any committee thereof, who fails to appear without just cause at the appointed time and place shall, upon conviction thereof, be fined not more than two hundred dollars ($200.00), or imprisoned for not more than sixty (60) days, or both.

(e) *Contempt.* Any person summoned as a witness who refuses to answer any question put to him, except such as might lead him to accuse himself of some crime, shall be guilty of contemptuous behavior in the presence of the council in session, and the council may, instanter, by resolution cause him to be arrested and imprisoned for not more than ten (10) days.

(f) *Interested parties.* Any person interested as a party in any matter pending before the council, or any committee thereof, may obtain the compulsory attendance of witnesses and production of documents by submitting to the council administrator, within a reasonable time prior to any hearing, a written list of the names and addresses of the witnesses and a description of the books, papers, titles or other documents necessary.

(g) *Witness fees.* Witnesses summoned to testify before the council, or any committee thereof, shall receive three dollars ($3.00) per day while in attendance, and five cents ($0.05) per mile travel expenses in going to and returning from the place of appearance. Witnesses shall present their subpoenas to the council administrator, who shall present them, together with his certificates of the miles traveled, to the director of finance for payment.

(City Code 1951, Title 1, § 10; Parish Code 1962, Title 1, § 10)

Sec. 1:11. Executive sessions.

A public body may hold executive sessions upon an affirmative vote, taken at an open meeting for which notice has been given pursuant to R.S. 42:7, of two-thirds (⅔) of its constituent members present. An executive session shall be limited to matters allowed to be exempted from discussion at open meetings by R.S. 42:6.1; however, no final or binding action shall be taken during an executive session. The vote of each member on the question of holding such an executive session and the reason for holding such an executive session shall be recorded and

entered into the minutes of the meeting. Nothing in this section or R.S. 42:6.1 shall be construed to require that any meeting be closed to the public, nor shall any executive session be used as a subterfuge to defeat the purposes of R.S. 42:4.1 through R.S. 42:8.
(City Code 1951, Title 1, § 11; Parish Code 1962, Title 1, § 11; Ord. No. 11652, § 3, 2-9-00)

Sec. 1:12. Motions and amendments.

(a) *Motions generally.*

(1) After the item on the agenda is read aloud, the public hearing shall be held.

(2) At the conclusion of the public hearing the floor shall be opened for motions.

(3) All main motions, substitute motions, and subsequent motions require a second and unless otherwise specified by law, must be approved by a majority vote of the entire metropolitan council.

(b) *Main motion.* A main motion is a motion that is made while no other motion is pending. Unless otherwise specified by law, a main motion requires seven (7) affirmative votes in order to be approved.

(c) *Substitute motions.* A substitute motion is considered to be a total replacement of the original motion if seconded and shall be voted on prior to the main motion. Only one (1) substitute motion may be considered at a time. If the substitute motion passes, no further votes are required and the item is adopted according to the provisions of the substitute motion. If the substitute motion fails to pass, other amendments, either complete substitutes or minor amendments, may be offered and voted upon prior to consideration of the main motion.

(d) *Amendments.* Amendments require a vote in order to amend the main motion. If the amendment passes, the main motion will stand as amended and will have to be voted on as amended.

(e) *Subsequent motions.* If a main motion fails to receive seven (7) affirmative votes, other motions, including a motion to postpone action on an item or defer action on an item to a subsequent meeting, may be entertained before the chair proceeds to the next order of business on the agenda.
(Ord. No. 11652, § 4, 2-9-00; Ord. No. 16008, § 1, 7-22-15)

Sec. 1:13. Filling council vacancy.

(a) The filling of a council vacancy under this section shall occur when the following time periods exist:

(1) If the unexpired term of the former member is one (1) year or less, or

(2) If the unexpired term of the former member is more than one (1) year, the vacancy shall be filled until the next scheduled election of the former member's office.

(b) The remaining members of the council shall appoint a person to fill the vacancy within twenty (20) days from the date of vacancy pursuant to R.S. 18:602.

(c) Notice of the vacancy shall be published on the official website of the city and the parish, advising that a vacancy on the council exists and that applications shall be accepted from qualified voters residing in the same district as his/her predecessor.

(d) Each person who has submitted an application and who meets the qualifications for the office shall be considered as nominated for the position, along with any person nominated by a member of the metropolitan council.

(e) The nominee who receives a majority of votes of the remaining members of the council shall be the appointee to the vacancy.
(Ord. No. 16970, § 1, 1-23-19)

Editor's note—Section 2 of Ord. No. 16970, adopted Jan. 23, 2019, states that the ordinance from which section 1:13 is derived shall be effective 30 days following adoption by the metropolitan council.

PART II. NUMBERING AND INDEXING OF ORDINANCES; ORDINANCE BOOKS

Sec. 1:20. Powers and duties of council administrator.

The council administrator is hereby authorized and directed and required to perform the following duties relative to the maintenance of ordinance and resolution books on a current basis:

(1) Make additional copies of all ordinances and resolutions adopted, showing on each copy the date adopted and its appropriate number, each copy to be bound in a temporary binder, to be kept in the council administrator's office;

(2) Maintain a complete copy index and cross index on all ordinances and resolutions since January 1, 1979, by means of the computer system available to the council administrator's office and all others on microfilm;

(3) Periodically, as is necessary, have the ordinances permanently bound, to complement the indexed material maintained through the computer system. The computer index is to be maintained as a current index, so that each time an ordinance book is permanently bound the computer index will correspond to all bound volumes.

(City Code 1951, Title 1, § 21; Parish Code 1962, Title 1, § 21)

Sec. 1:21. Numbering of ordinances and resolutions.

(a) Numbering of ordinances and resolutions, commencing with number one (1) in January, 1951, is approved and required. The council administrator is required to maintain a list showing an

abbreviated title of all ordinances and resolutions passed by the council; and immediately upon an ordinance or resolution being adopted by the council, it shall be the duty of the council administrator to assign that ordinance or resolution the next consecutive number not yet assigned.

(b) No number shall be omitted, and no ordinance or resolution shall be assigned the number of another ordinance or resolution.

(c) Ordinances and resolutions introduced or referred to in the minutes by title alone, prior to actual adoption, will be entitled "PROPOSED ORDINANCE" or "PROPOSED RESOLUTION" as the case may be.

(d) Ordinances and resolutions finally adopted shall be entitled "ORDINANCE _____" OR "RESOLUTION _____," as the case may be, showing the consecutive number assigned to that ordinance or resolution.
(City Code 1951, Title 1, § 22; Parish Code 1962, Title 1, § 22)

Sec. 1:22. Minutes.

(a) Minutes are to be typed as soon as possible after each meeting.

(b) The present method of putting the date of the meeting at the top of each page containing the minutes of that meeting is approved and required.

(c) After minutes are adopted, pages will be placed in a temporary binder until permanently bound.

(d) Upon adoption of the minutes, signatures are to be obtained from the president pro tempore or chairman, as the case may be, and the council administrator.
(City Code 1951, Title 1, § 23; Parish Code 1962, Title 1, § 23)

Sec. 1:23. Computerization.

As soon as practicable after adoption, all ordinances, resolutions and motions will be entered into the computer by title and made a part of the permanent computer records maintained in the council administrator's office.
(City Code 1951, Title 1, § 24; Parish Code 1962, Title 1, § 24)

Sec. 1:24. Intention of council.

It is the intention of the council that the above provisions regulating the methods of maintaining the ordinance and resolution books; the numbering of ordinances and resolutions; and the keeping, adopting and indexing of ordinances and resolutions be strictly complied with for the purpose of properly maintaining the records of this body and making them available to the public and members of the city-parish government; but failure to do so shall in no way affect the validity or effect of any ordinance, resolution or other action of the council that would be valid or effective if it were not for the provisions of this part.
(City Code 1951, Title 1, § 25; Parish Code 1962, Title 1, § 25)

CHAPTER 2. COMMISSIONS AND DEPARTMENTS*

PART I. CITY COURT†

Sec. 1:50. Jurisdiction. (City)

There shall continue to be a city court of the city, which shall exercise such jurisdiction as may be conferred by law.

Sec. 1:51. Number of judges. (City)

The city court shall be composed of five (5) judges, unless such member shall be increased in accordance with law.
(Ord. No. 9255, § 1, 3-13-91)

*Cross references—Regulation of departments, 1:500 et seq.; police department, title 4; organization, §§ 5:150 et seq., 5:501 et seq.; organization of health unit, § 6:1; metropolitan board of adjustment, § 7:8.1 et seq.; rural members of planning commission, § 7:275; heating and air conditioning board, § 8:12; board of electrical examiners, § 8:300.

†Cross references—Justice of the peace districts, 1:750 et seq.; police department, title 4; traffic code, title 11; criminal law, title 13.

Sec. 1:52. Clerk of court/judicial administrator. (City)

The clerk of court/judicial administrator shall be appointed by the city judges and may be removed in the manner provided in the Plan of Government. The specific responsibilities of the clerk of court/judicial administrator shall be listed in the job description on file with the personnel department.

Sec. 1:53. Additional personnel. (City)

The city court shall have such additional personnel as may be authorized by law. Except as otherwise provided, all such personnel shall be members of the classified service and shall be regulated in selection, promotion, salary, and other respects by the regulations and rules of the personnel board as prescribed by the Plan of Government.

Sec. 1:54. Collection of fines, bond forfeitures and other court-imposed assessments. (City)

The clerk of court/judicial administrator shall collect all fines, bond forfeitures, and other court-imposed assessments and pay the same over to the department of finance not later than 2:00 p.m. the next business day following collection in the manner prescribed by the director of finance with the approval of the treasurer. The clerk of court/judicial administrator shall install and keep a system of fiscal books and records as prescribed by the director of finance with the approval of the treasurer. The chief of police may be appointed as the court's agent for collection of such fines, bond forfeitures, and other court-imposed assessments as the city judges deem appropriate.

Sec. 1:55. Audit of traffic tickets and forms. (City)

The treasurer shall audit all traffic citations and other forms charging crime and account for the disposition of all such cases.

Sec. 1:56. City constable. (City)

The city constable shall perform the duties of his office in the manner provided by law, and shall perform all other duties assigned to him by the city judges.

Sec. 1:57. Bailiff. (City)

The city constable shall detail a deputy city constable to act as bailiff for each city judge, the deputy to be assigned by the mutual understanding between the judge and constable. The bailiff shall be responsible for maintenance of courtroom equipment, courtroom security, and such other duties as may be assigned.

Sec. 1:58. Vacations, sick leave and compensation. (City)

(a) The city judges shall be entitled to such vacations as are provided by law. Vacation accrual and severance pay shall be allowed in accordance with the personnel rules for classified employees of the City of Baton Rouge, Parish of East Baton Rouge.

(b) Sick leave shall be granted city court judges without the loss of pay. No sick leave accrual or severance pay shall be allowed.

(c) An acting or ad hoc judge appointed to sit in the absence of a city judge under the supervision of the Louisiana Supreme Court shall be compensated on a pro-rata basis according to the judge's daily city-parish salary.

(d) All other court personnel, including the city constable, shall be allowed the vacations provided in accordance with the personnel rules for classified employees of the City of Baton Rouge, Parish of East Baton Rouge.

(e) All modifications in past practices shall become effective January 1, 2001.

(Ord. No. 11212, § 1, 9-9-98)

PART II. CIVIL DEFENSE*

Sec. 1:75. Director authorized to prescribe and issue decals.

The civil defense director is hereby authorized to prescribe decals or other appropriate markings to identify civil defense vehicles and personnel.

***Cross reference**—Civil emergencies, 15:1 et seq.

State law references—State civil defense agency, R.S. 29:601 et seq.; Louisiana Disaster Act of 1974, R.S. 29:701 et seq.

The director is further authorized to issue such decals or other markings to identify such personnel and vehicles.
(City Code 1951, Title 1, § 93)

Sec. 1:76. Unauthorized use of decal.

Any person who, without proper authorization from the civil defense director, displays or uses any civil defense decal or marking upon any vehicle or upon his person shall be fined not more than one hundred dollars ($100.00) or imprisoned for not more than thirty (30) days, or both.
(City Code 1951, Title 1, § 94)

PART III. BATON ROUGE AREA CONVENTION AND VISITORS BUREAU*

Sec. 1:100. Created; purpose.

(a) Pursuant to the authority granted under Article VI, Sections 19 and 30 of the Constitution of Louisiana of 1974, and pursuant to R.S. 33:4574 et seq., the legislature of the State of Louisiana has created and established the Baton Rouge Area Convention and Visitors Bureau (currently known as "Visit Baton Rouge") for the purpose of, directly or indirectly, developing and/or carrying out programs and activities designed to attract and promote conventions and tourism in and to the City of Baton Rouge and the Parish of East Baton Rouge, all as authorized in Act No. 47 of the Louisiana Legislature of 1995 and as further provided in this Part. Said creation was effective July 1, 1996.

(b) Pursuant to the provisions of Act 256 of the Louisiana Legislature of 2012 changing the name of the Baton Rouge Area Convention and Visitors Bureau to Visit Baton Rouge, the bureau shall henceforth be known as Visit Baton Rouge.
(Ord. No. 15407, § I, 10-24-12)

*__Editor's note—__Ord. No. 15407, § I, adopted October 24, 2012, amended the Code by, in effect, repealing former pt. III, §§ 1:100—1:106, and adding a new pt. III. Former pt. III pertained to similar subject matter, and derived from the City Code of 1951, Title 1, §§ 111—113, 115 and 116; Ord. No. 9429, adopted May 13, 1992; Ord. No. 10657, adopted June 26, 1996; Ord. No. 11060, adopted January 28, 1998; Ord. No. 12570, adopted February 26, 2003; and Ord. No. 12914, adopted March 24, 2004.

Sec. 1:101. Political subdivision; authority.

Visit Baton Rouge is a political subdivision of the state as set forth in R.S. 33:4574 (B)(6), with all rights, powers, and authority set forth in applicable state law.
(Ord. No. 15407, § I, 10-24-12)

Sec. 1:102. Membership; appointment; terms.

(a) The governing body of Visit Baton Rouge shall be composed of ten (10) members, who shall be known as directors. Any director appointed herein shall serve a term of three (3) years in accordance with R.S. 33:4574(E)(b)(iv) and (v). The ten (10) directors shall be chosen and appointed as follows:

(1) One (1) director appointed by the mayor-president of the city and parish;

(2) Two (2) directors appointed by the metropolitan council of the city and parish, one of whom may be a member of the metropolitan council;

(3) Two (2) directors nominated by Baton Rouge Lodging Association;

(4) One (1) director nominated by the Louisiana Restaurant Association, Baton Rouge Chapter;

(5) One (1) director nominated by the Baton Rouge Area Chamber;

(6) One (1) director nominated by the Downtown Development District of the city;

(7) One (1) director nominated by Foundation for Historical Louisiana; and

(8) One (1) director nominated by Arts Council of Greater Baton Rouge.

(b) Each of the groups or entities authorized to make nominations for appointments to Visit Baton Rouge shall submit the name(s) of the nominee (s) to the council administrator on or before thirty (30) days prior to the time the term of office commences. All the directors shall be subject to approval and appointment by the metropolitan council, except for the director appointed by the mayor-president.
(Ord. No. 15407, § I, 10-24-12)

PART IV. MUNICIPAL FIRE AND POLICE CIVIL SERVICE BOARD*

Sec. 1:125. Creation. (City)

There is hereby created a Municipal Fire and Police Department Civil Service Board in accordance with R.S. 33:2471.
(City Code 1951, Title 1, § 160)

Sec. 1:126. Composition; qualifications of members; terms of office; vacancies; organization, etc. (City)

The composition, qualifications of members, terms of office, vacancies, organization, etc., of the board, shall be as fixed by R.S. 33:2476.
(City Code 1951, Title 1, § 161)

Sec. 1:127. Functions. (City)

The board shall function as provided by R.S. 33:2477 and 33:2478.
(City Code 1951, Title 1, § 166)

PART V. ALCOHOLIC BEVERAGE CONTROL BOARD†

Sec. 1:150. Created; members; officers.

(a) There is hereby created an alcoholic beverage control board for the city-parish, such board to be composed of nine (9) members to be designated by the metropolitan council.

(b) The board, at its first meeting following the effective date of this amendment shall elect one (1) of its members to be chairman for the remainder of the year. The chairman so elected shall be eligible for re-election. Thereafter, at its first meeting in January of each year the board shall elect a chairman for a term of one (1) year who shall also be eligible for re-election.

(c) The board of alcoholic beverage control, hereinafter referred to as the board, shall have the control and exclusive local jurisdiction for the regulation of all premises licensed or permitted under title 9, chapter 1, part I, relative to wine, beer and liquor regulations. The board, as such, shall have the authority to do all acts necessary, useful and lawful to diligently discharge its duties, in the regulation of all premises and persons licensed under the provisions of title 9, chapter 1, part I, entitled Wine, Beer and Liquor, and to enforce the provisions under title 26 of the Louisiana Revised Statutes, as well as to enforce all rules and regulations which are promulgated by the board. The specific powers of the board include but are not limited to:

(1) The authority to issue, decline the issuance of, to revoke, or suspend all permits or licenses issued under this part as it deems necessary subject only to compliance with specific provisions of this part and subject only to review by the courts of the state as is hereafter provided.

(2) The board shall specifically have the right to warn a permit holder or licensee in lieu of denying, revoking or suspending any permit issued under provisions of title 9, chapter 1, part I, except as provided in title 9, chapter 1, section 9.B. relative to mandatory suspensions for selling to minors.

(3) The board may adopt for its internal government such reasonable bylaws, regulations, rules and modes of procedure which shall have the effect of law for the administration of this part. Any rules and regulations must be written and compiled by the director of the alcoholic beverage control office (hereafter referred to as the director) for inspection, use at hearings, and as public records.

(4) The director may appoint or employ such legal counsel, investigators, special agents or field representatives as prescribed by the council, and may compensate such personnel under conditions and terms prescribed by the council, and the plan of government. The director and the special

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***Cross references—**Police department, title 4; organization of fire department, § 5:100 et seq.

State law reference—Fire and police civil service law, R.S. 33:2471 et seq.

†**Cross reference—**Wine, beer and liquor licensing, Title 9, Ch. 1, Pt. I.

State law references—Alcoholic beverage control law, R.S. 26:1 et seq.; board of alcoholic beverage control, R.S. 26:21 et seq.

agents appointed by the director shall be full time, commissioned law enforcement officers, P.O.S.T. certified, and shall be responsible for general law enforcement or both state and local laws throughout the parish, with authority to make arrests, issue citations, testify in court and carry a weapon.

(5) The board shall have the authority to assess costs of proceedings against applicants, permit holders or licensees who are found by the board to have violated provisions of title 9, chapter 1, part I, or of this part or of R.S. title 26.

(6) The director shall have the power in the discharge of its duties to issue subpoenas to any person, which subpoena may require the person, subject or entity subpoenaed to physically appear and may require that subject or entity to produce documents, records, invoices, receipts, contracts, agreements, employment records and information, and any financial information or record which pertains to the subject of any complaint, hearing or proceeding of the board. Any objection to the legality or issuance of a subpoena for persons, entities, documents, records or information may be raised at the time of its issuance, either before the board or in a court of proper jurisdiction.

(7) It shall be unlawful for any person to fail to obey any subpoena compelling attendance or the production of documents; and the board or director may, by motion to the 19th Judicial District Court or the City Court of Baton Rouge, as the case may be, obtain an order to enforce compliance with its subpoena process.

(d) Administrative nature of board:

(1) All proceedings and hearings by the board shall be conducted by the chairman of the board. All proceedings by the board shall be conducted in accordance with any applicable bylaws, regulations or rules. All actions taken by the board shall be in the form of a motion, which must be seconded and voted upon and approved by a simple majority of the quorum present when the motion is made.

All hearings of the board shall be public hearings unless otherwise requested by those charged with violations of title 9, chapter 1, part I of this Code, or of R.S. title 26 or of this part. A recording of all proceedings shall be made and maintained by the director for a period of three (3) years plus current year from the date of the proceedings.

(2) All motions to deny, revoke or suspend a permit held by a permit holder or his agent, employee or servant shall not pass and no action shall be taken unless a majority of the board present finds as a fact and by a preponderance of the evidence received at a hearing upon a com-

plaint that a specific ground or grounds for the denial, revocation or suspension have occurred.

(3) Action of the board must be taken only upon evidence which is in the record of the proceeding.

(4) Conviction by any court of a violation of any provision of this part or any provision of state law is not a condition precedent to any action taken by the board. Evidence of such a conviction as well as an acquittal upon such a prosecution is admissible but is not binding upon the board.

(5) Upon the passage of a motion by the board to deny, revoke or suspend a permit held by a permit holder or his agent, employee, or servant, the ground or grounds upon which the denial, revocation or suspension is based shall be communicated to the applicant, permit holder or his agent, employee or servant or his representative at the hearing by the director.

(6) Written notice of the denial, revocation or suspension shall be sent to the applicant, permit holder or agent, employee or servant; and such notice shall be sent to the permit holder or his agent, employee or servant at the address of his place of employment as designated in his permit or license application if one exists. The notice of the action by the board shall be mailed within seven (7) calendar days of the hearing or proceeding.

(7) Upon finding by a majority of the board present that a cause for denial, revocation or suspension exists but where a majority of the board feels the violation is of a minor nature or that there are extenuating or mitigating circumstances, the board may issue a warning to the applicant, permit holder, agent, employee or servant.

(8) The parish attorney and the district attorney shall notify the director of any convictions in any court relative to violation of the alcohol control laws, and such notification shall be considered a formal complaint to the director.

(City Code 1951, Title 1, § 167; Parish Code 1962, Title 1, § 100; Ord. No. 7004, § 1, 1-12-83; Ord. No. 7104, § 1, 4-13-83; Ord. No. 7203, 7-13-83; Ord. No. 7484, § 1, 4-11-84; Ord. No. 7761, § 1, 1-9-85; Ord. No. 9619, § 4, 5-12-93; Ord. No. 12173, § 1, 11-28-01; Ord. No. 13266, §§ 1—3, 5-11-05; Ord. No. 14473, § 1, 8-27-08)

Sec. 1:151. Procedure, quorum and powers of director.

(a) The alcoholic beverage control board may adopt rules of procedure, but in any event the board shall hold regular meetings twice monthly at a definite time and place to be designated by the board. Such other meetings may be called and held as may be deemed necessary for the transaction of business in the manner provided in the rules of procedure.

A majority of the appointed members of the board shall constitute a quorum, and no business shall be transacted by the board unless a quorum is present.

No permit or license shall be issued by the board except where the applicant therefor demonstrates compliance with all statutory and other legal requirements and receives the affirmative vote of a majority of the board members present at the meeting. The board shall be governed in the issuing of permits and licenses by the provisions of title 9, chapter 1, part I.

(b) The director of the alcoholic beverage control office shall have the authority to inspect or have inspected any premises licensed under this part by agents or representatives of the alcoholic beverage control office, the treasurer's office, the parish attorney's office, the department of public works, the city police department, the sheriff's office, the health unit or the office of the district attorney. Investigators established under this office shall have investigative powers and may seek commissions as peace officers from law enforcement agencies to enforce the provisions of this chapter.

(c) Any person who observes a violation of this part or of state law which occurs in any premises licensed under the provisions of this part may report the violation to the director and file a complaint against the permit holder, licensee or his agent, employee or servant. The director may file complaints based upon violations observed by others if the other person supplies the director with an affidavit stating the violation, date, place of violation and identity of any violator if known.

If the director decides to accept the complaint and summons the applicant, permit holder or licensee and any of his agents, employees or servants, then the director shall require the complainant to file an affidavit stating the violation, date, place and the identity of any violator if known.

Upon acceptance of the complaint and receipt of the affidavit, the director shall issue a subpoena, as herein prescribed, to the applicant, permit holder, licensee and his agent, employee or servant who is charged with the violation. The notice may have attached a subpoena which shall require him to appear along with any documents or records requested, at a specific date, time and place. The notice of complaint shall state the alleged violation, the date and place it occurred and the identity of the person who committed the violation if known. The notice of complaint shall require the subject to appear to show cause why his application should not be denied, his permit or license suspended or revoked.

All subpoenas and notices of complaints shall be sent by the director by certified mail or hand delivered to the applicant, permit holder, licensee or his agent, employee or servant at the address of his place of business or place of employment as given in his application for the permit or license if any.

Nothing in this part shall be construed to prevent the director from having any subpoena or notice of complaint served by any legal means or by any of its representatives.
(City Code 1951, Title 1, § 168; Parish Code 1962, Title 1, § 101; Ord. No. 7204, 7-13-83; Ord. No. 7256, § 1, 8-24-83; Ord. No. 7523, 4-25-84; Ord. No. 9698, § 1, 8-25-93; Ord. No. 14473, § 1, 8-27-08)

Sec. 1:152. Penalty power.

In addition to any causes enumerated in title 9, chapter 1, part I, the alcoholic beverage control board and/or ABC office shall have the authority to deny, revoke or suspend any permit or license or levy any fine for any one of the following causes or when any of the following conditions is found to occur:

(1) *Lack of qualifications.* If any applicant or any of the persons who must possess the same qualifications fail to possess or maintain the qualifications required in R.S. 26:79 or in title 9, chapter 1, part I, of this Code.

(2) *Misrepresentation.* If there was a misstatement or suppression of fact in the information required to be given by the applicant, under this part, in applying for his license or permit.

(3) *Interposed persons.* If the permit was issued to any person who is an interposed person for the owner or proprietor of a business.

(4) *Business associations.* If the permit was granted to any person who is or has been engaged in an alcoholic beverage business with a person whose application for a permit or license has been revoked or suspended by the ABC board or the state ATC commission.

(5) *Acts prohibited on premises.* If the board finds as a fact that any of the following acts occurred on the premises when such act was committed by the applicant, permit holder, licensee or any of his agents, employees or servants:

a. Violation of any provisions of this part or any ordinance of the city-parish which regulates the sale or distribution or processing of any alcoholic beverage or which regulates premises licensed by the city-parish to sell, distribute or process any alcoholic beverage;

b. Permit or allow any act which violates any provisions of title 26 of the Louisiana Revised Statutes;

c. Failure to acquire and maintain a valid health permit for any premises licensed under this part;

d. Permit or allow any act which fails to comply with requirements or orders by local and state authorities to remedy or eliminate fire, plumbing or electrical code violations;

e. Failure to timely pay sales taxes, property or occupational licenses to the city-parish;

f. Permit or allow any act which violates any local ordinance or state statute pertaining to gambling on premises, letting premises for gambling, possession of gambling paraphernalia, or conspiracy to violate any of these, distribution of or possession of with intent to distribute any controlled substance controlled by title 14 or title 40 of Louisiana Revised Statutes;

g. Permit or allow any act which violates any local ordinance or state statute which pertains to prostitution, indecent exposure, obscenity, contributing to the delinquency of juveniles, pandering, soliciting for prostitution, letting premises for prostitution, or conspiracy to violate any of these.

(6) *Consumption on premises.* If, without a proper license, a retailer allows any person to consume any alcoholic beverage on the licensed premises or on any parking lot.

(7) *Violations by certain persons.* If any dealer or any person listed in subsection B of R.S. 26:79 violates or has violated any provision of that statute.

(8) *Revocation or suspension of low alcoholic content permit.* Revocation or suspension of any permit for beverages of low alcoholic content automatically suspends or revokes, as the case may be, any permit held by the same individual for beverages of high alcoholic content.

(9) *Violation by licensee, agent, servant, etc.* Violation of, or failure to comply with any of the provisions of this part by any person licensed under this part, or by such person's manager, agent, servant or employee.

(10) *Operation adverse to public health, safety or morals.* If, based upon specific facts in the record which can reasonably be anticipated to have an adverse effect on the public health, safety or morals, the ABC board and/or ABC office finds the opening or continued operation of the establishment or activity will have an adverse effect on the public health, safety or morals. By "public" is meant not just the immediate area surrounding the licensed premises to be licensed, but may also mean the city-parish as a whole.

All of the above grounds for denial, revocation, suspension or fine are hereby deemed to be severable and independent of any other grounds; and the illegality, invalidity or ineffectiveness of one shall not in any way affect the others.

Additionally, all findings of violations by the board shall be valid and independent and in no way related to any criminal prosecution. There is no requirement that any conduct which could be criminally prosecuted under this part be so prosecuted before any action can be taken by the board.

(11) *Notification of the police.* Failure of the licensee, permit holder, or the designated manager in the absence of the licensee or permit holder to immediately notify the police of any disturbance, fistic encounter or similar incident occurring on the licensed property or violation of any criminal statute or ordinance occurring on the licensed property of which the owner, manager or person in charge had knowledge of or which he should have known.

(12) *Distribution to intoxicated persons or persons under the influence of drugs.* Sell, serve or dispense in any manner any alcoholic beverages covered by this part to

any person whose actions, mannerisms and general conduct would reasonably indicate that the person is intoxicated or under the influence of drugs.

(City Code 1951, Title 1, § 169; Parish Code 1962, Title 1, § 102; Ord. No. 14473, § 1, 8-27-08)

Sec. 1:153. Appeals.

Any applicant, permit holder, licensee or his agent, employee or servant, who is aggrieved by a decision of the alcoholic beverage control board shall have the right to appeal the decision of the board. All appeals from decisions of the board shall be directly to the Nineteenth Judicial District Court and shall be devolutive appeals. There shall be no suspensive appeal from a decision of the board. Any appeal to the district court shall be taken within ten (10) days of receiving written notice provided for in section 1:150. The court shall determine the appeal in a summary manner. The decision of the board shall be final unless appealed within the time and in the manner sat forth.

(City Code 1951, Title 1, § 170; Parish Code 1962, Title 1, § 103; Ord. No. 10156, § 1, 1-25-95; Ord. No. 11922, § 1, 12-13-00; Ord. No. 14473, § 1, 8-27-08)

Sec. 1:154. Term of board members.

The term of alcoholic beverage control board members shall be four (4) years, which will expire all at the same time.

(City Code 1951, Title 1, § 170.1; Parish Code 1962, Title 1, § 104; Ord. No. 14473, § 1, 8-27-08)

PART VI. MISCELLANEOUS

Sec. 1:171. Qualification to public boards and commissions.

(a) All appointees to public boards and commissions under the jurisdiction of the council and to which boards and commissions the council makes appointments as required by the provisions of the Plan of Government, the general laws of the state or ordinances and regulations adopted by the council, shall have and meet all qualifications required by applicable provisions of the Plan of Government, the general laws of the state or ordinances and regulations under which the appointment is made; and no appointment shall be made of any person who does not meet and have such qualifications.

(b) Such appointees shall have and meet such qualifications for and during the entire term of office to which they are appointed. If during the term of such appointment, the appointee ceases to possess such qualifications, the appointee shall immediately forfeit the office and his office shall at once become vacant, without further action on the part of the council; and the council shall fill the vacancy as required by law.

(c) For the purpose of ensuring compliance with the provisions of this section, the council administrator is hereby designated, authorized and directed to review all appointments proposed to be made and to advise the council of any qualifications applicable thereto. In order to insure that all of the requirements of the office are met, the council administrator shall, prior to the making of any appointment by council administrator, advise the council in writing that the person proposed to be appointed has been determined to meet all requirements and qualifications for the office. The council administrator shall further annually review the various appointments made by the council for the purpose of determining that the persons holding such appointments continue to meet the qualifications and requirements of the office during the entire term of their appointment, in order to insure full compliance with the provisions of subsection (b).

(City Code 1951, Title 1, § 171; Parish Code 1962, Title 1, § 171)

CHAPTER 3. PERSONNEL*

PART I. NUMBER OF EMPLOYEES

Sec. 1:180. Fixing number of employees.

The number of employees within the various departments and agencies established under the Plan of Government, and to which appropriations

*__Cross references—__Police department, title 4; organization of fire department, § 5:100 et seq.

are made by the council, shall be as fixed, from time to time by the council and on file in the office of the council administrator.
(City Code 1951, Title 1, § 180; Parish Code 1962, Title 1, § 180)

Sec. 1:181. Employment authorized.

The heads of the departments are hereby authorized to employ personnel to perform the jobs indicated but not to exceed the total number for the department concerned as fixed by the council.
(City Code 1951, Title 1, § 181; Parish Code 1962, Title 1, § 181)

Sec. 1:182. Additional employees.

Where additional employees become necessary in the public interest, their employment shall be in accordance with section 9 of the Plan of Government, after approval of an increase in the number of employees for the department concerned by the council.
(City Code 1951, Title 1, § 182; Parish Code 1962, Title 1, § 182)

Sec. 1:183. Temporary employees.

Where temporary employees are required as replacement, and their services are necessary at a time prior to the departure of the regular employees for orientation purposes, then in that event the head of the department concerned may exceed the total number of employees herein authorized; provided, however, that such excess shall not be for a longer period than ninety (90) days, and provided further that the department concerned has sufficient appropriation within the current budget with which to pay this salary of such temporary employee.
(City Code 1951, Title 1, § 183; Parish Code 1962, Title 1, § 183)

PART II. PAY PLAN FOR CLASSIFIED EMPLOYEES

Sec. 1:200. Pay plan.

The pay plan containing the salary ranges for each class of position in the classified service of the council-parish as amended from time to time by the council, is on file in the office of the council administrator.
(City Code 1951, Title 1, § 200; Parish Code 1962, Title 1, § 200)

Sec. 1:201. Implementation of plan authorized.

The personnel administrator, the director of finance and the treasurer are hereby authorized and directed to take all necessary action to carry into effect the minimum salaries and wages required by the pay plan.
(City Code 1951, Title 1, § 201; Parish Code 1962, Title 1, § 201)

Sec. 1:202. Reference to number of employees.

Nothing in this part shall be construed as authorizing a greater number of employees in any of the various departments and offices of the city-parish than is provided for in section 1:180 or as approving the specific compensation of all city-parish employees.
(City Code 1951, Title 1, § 202; Parish Code 1962, Title 1, § 202)

Sec. 1:203. Increases.

Increases in the salary, of wages of any employee shall be made only in accordance with the rules and regulations of the personnel board or personnel administrator.
(City Code 1951, Title 1, § 203; Parish Code 1962, Title 1, § 203)

PART III. LEAVE AND LONGEVITY FOR UNCLASSIFIED EMPLOYEES AND ELECTED OFFICIALS*

Sec. 1:230. Leave for unclassified employees and elected officials.

A. Vacation leave and sick leave for unclassified employees of the city-parish and elected officials, except the mayor-president commencing with the term of office on January 1, 2017,

*__Editor's note—__Ord. No. 16040, § 1, adopted August 12, 2015, amended the title of Part III.

shall be granted in the same manner and subject to the same rules provided for employees in the classified service, as set forth in Rule IX, of the Rules Governing Employees in the Classified Service, as same may be amended from time to time.

B. Unclassified employees shall not receive payment for accrued but unused sick leave for the purpose of severance pay unless they:

(1) Retire; or

(2) Are terminated without cause and as a result of a change of administration or appointing authority.

The termination of an unclassified employee with or without cause shall not be considered a "lay-off" for the purpose of sick leave severance pay. Unclassified employees who are terminated for cause shall receive no severance pay for accrued but unused sick leave.
(Ord. No. 16040, § 1, 8-12-15; Ord. No. 16144, § 1, 12-9-15)

Editor's note—Ord. No. 16040, § 1, adopted August 12, 2015, has been treated as repealing former § 1:230, and adding a new § 1:230. Former § 1:230 pertained to vacation time, and derived from the City Code of 1951, Title 1, § 230; and the Parish Code of 1962, Title 1, § 230.

Sec. 1:231. Leave for designated unclassified positions hired after June 1, 2015.

Any person hired in an unclassified position which is in a pay range of 2300 or above on or after June 1, 2015, may make an irrevocable decision upon appointment to accrue leave in the manner set forth in section 1:230 herein, or alternatively, as follows:

(1) Five (5) weeks of paid leave for all purposes shall be granted per calendar year upon the employee's appointment and on January 1 of for each calendar year thereafter.

(2) If the employee's initial appointment is after January 1 the employee's first year of leave shall be in proportion to the time remaining in the year. If the employee is on unpaid leave, workers compensation or suspension during any year, the annual accrual shall be adjusted accordingly.

(3) All leave for the unclassified employees electing this option must be approved by his or her appointing authority and/or designee. Documents deemed necessary for such approval may be requested by the appointing authority and/or designee at any time.

(4) No leave shall be carried over to the following year unless there are extraordinary circumstances which are approved prior to the ending of the year by the appointing authority; however, in no case may more than one (1) week be carried over.

(5) Upon termination of employment for any reason, the employee (or in the case of death, the employee's heirs or estate) shall not be entitled to be paid for any unused leave. An employee who is eligible for retirement benefits may not exercise the option to convert any unused leave to retirement credits in accordance with the ordinance governing the retirement system of the city-parish.

(6) An employee who is in the city-parish classified or unclassified service immediately prior to his or her appointment to an unclassified position which is in a pay range of 2300 or above shall not be eligible for this election.

(7) Any employee hired in an unclassified position which is in a pay range of 2300 or above between June 1, 2015 and the effective date of this section shall have ten (10) days from the effective date to make his or her irrevocable decision.

(Ord. No. 16040, § 1, 8-12-15; Ord. No. 16144, § 1, 12-9-15)

Editor's note—Ord. No. 16040, § 1, adopted August 12, 2015, has been treated as repealing former § 1:231, and adding a new § 1:231. Former § 1:231 pertained to sick leave, and derived from the City Code of 1951, Title 1, § 234; the Parish Code of 1962, Title 1, § 234; and Ord. No. 13268, adopted May 11, 2005.

Sec. 1:232. Holidays and special leave.

Unclassified employees and elected officials, except the mayor-president commencing with the term of office on January 1, 2017, shall be

granted special and regular holidays, civil leave, leave of absence without pay, military leave, funeral leave, family/medical leave and administrative leave in the same manner and subject to the same rules provided for employees in the classified service, as set forth in Rule IX of the Rules Governing Employees in the classified service, as same may be amended from time to time, and/or as the same may be established by the council or mayor-president.
(City Code 1951, Title 1, § 235; Parish Code 1962, Title 1, § 235; Ord. No. 16040, § 1, 8-12-15; Ord. No. 16144, § 1, 12-9-15)

Sec. 1:233. Longevity benefits for designated elected officials.

(a) The persons in the positions of mayor-president and constable as of April 4, 2015 shall receive longevity under the following schedule:

(1) The designated elected official with a total of ten (10) years of service shall receive longevity pay at the rate of five (5) percent of that official's current base rate of pay;

(2) An additional one (1) percent shall be granted for each year of service thereafter up to a maximum of twenty (20) percent.

(b) The director of finance and the personnel administrator shall certify the eligibility of the designated elected official for benefits, and the payment of such benefits shall be in addition to the current base rate of pay of any such elected official.
(Ord. No. 15914, § 1, 3-25-15)

Editor's note—Ord. No. 15914, § 1, adopted March 25, 2015, amended the Code by repealing former §§ 1:233—1:236, and adding a new § 1:233. Former § 1:233 pertained to longevity benefits for unclassified personnel, and derived from the City Code of 1951, Title 1, § 236; the Parish Code of 1962, Title 1, § 236; Ord. No. 10128, adopted December 14, 1994; and Ord. No. 10499, adopted November 8, 1995. Former § 1:234 pertained to benefits for personnel of the family court, and derived from Ord. No. 8849, adopted January 25, 1989. Former § 1:235 pertained to benefits for personnel of the juvenile court, and derived from Ord. No. 9194, adopted December 12, 1990. Former § 1:236 pertained to benefits for personnel of the coroner's office, and derived from Ord. No. 9588, adopted February 24, 1993.

Secs. 1:234—1:236. Reserved.

Note—See editor's note, § 1:233.

PART IV. EMPLOYEES' RETIREMENT SYSTEM*

Subpart 1. General Provisions

Sec. 1:250. Short title.

This part shall be known and cited as the "Employees' Retirement System of the City of Baton Rouge and Parish of East Baton Rouge." This retirement system was originally created by Ordinance No. 235 and Ordinance No. 276, effective December 31, 1953.
(Ord. No. 18720, 12-14-22)

Sec. 1:251. Definitions.

The following words and phrases as used in this part shall have the following meaning, unless a different meaning is plainly required by context:

Accumulated contributions shall mean the sum of all the amounts deducted from the earned compensation of a contributing member, and credited to his individual account in the member mandatory contribution account.

Actuarial equivalent shall mean a benefit of equal actuarial value as calculated using such interest and mortality assumptions as shall be adopted by the board of trustees from time to time for this purpose. The interest and mortality assumptions approved by the board at any particular time shall be attached as an exhibit to the pension plan created by subpart 2, and any changes in those assumptions shall not reduce the benefit that any member had accrued as of the date of the change.

Average compensation shall mean the average annual earned compensation of a member,

*__Editor's note—__**Ord. No. 18720, adopted December 14, 2022, repealed part IV, §§ 1:250—1:288, and enacted a new part IV as set out herein and later amended. Former part IV pertained to similar subject matter and derived from Ord. No. 18639, § 1, adopted October 12, 2022.

State law reference—Municipal employees' retirement system, R.S. 33:7151 et seq.

exclusive of severance pay, during which the earned compensation was the highest, for a period of thirty-six (36) successive months of service, in the case of members whose date of hire is prior to September 1, 2015, or for a period of sixty (60) successive months of service, in the case of members whose date of hire is on or after September 1, 2015. In the case of interruption of employment, the thirty-six (36) month period or the sixty (60) month period, whichever is applicable, may be computed by joining the employment periods immediately preceding and succeeding the interruption. The computation of average compensation for members hired on or after January 14, 2023 shall be in accordance with the following guidelines: The earnings to be considered for the first through the twelfth month shall not exceed the compensation for the immediately preceding twelve (12) months by more than fifteen (15) percent. The earnings to be considered for the thirteenth through the twenty-fourth months shall not exceed one hundred fifteen (115) percent of the earnings for the first through the twelfth months. The earnings to be considered for the twenty-fifth through the thirty-sixth months shall not exceed one hundred fifteen (115) percent of the earnings for the thirteenth through the twenty-fourth months. The earnings to be considered for the thirty-seventh through the forty-eighth months shall not exceed one hundred fifteen (115) percent of the earnings for the twenty-fifth through the thirty-sixth months. The earnings to be considered for the final twelve (12) months shall not exceed one hundred fifteen (115) percent of the earnings of the thirty-seventh through the forty-eighth months.

"Average salary" shall have the same meaning as "average compensation," except as to period of service. The burden of providing the earned compensation or salary for any period of thirty-six (36) successive months or sixty (60) months, or for any other period of service required by the terms of this part shall be on the member. The board's decision as to the amount shall be final and conclusive.

Beneficiary shall mean any person or persons, or trusts, designated by a member, in receipt of or entitled to a member's accumulated contributions or DROP account.

Benefit reserve shall mean that fond necessary to meet current pension obligations.

Board of trustees or board shall mean the board of trustees provided for in the Charter (Plan of Government) and in section 1:253 of this subpart.

City-parish shall mean the consolidated government of the City of Baton Rouge and Parish of East Baton Rouge.

Code shall mean the Internal Revenue Code of 1986, as amended, and any successor thereof

Creditable service shall mean membership service for which credit is allowable under the provisions of this part.

Date of hire shall mean the most recent date of hire for an active member, inactive member, or vested nonmember, or the date of hire on which a service retiree's or a disability retiree's original pension calculation was based.

Disability retiree shall mean a former member who has terminated employment and is in receipt of a disability retirement allowance.

DROP shall mean the Deferred Retirement Option Plan.

DROP interest shall mean interest at such rate or rates as shall be determined in accordance with section 1:271.

DROP rehired retirees shall mean those service retirees who have been re-employed by an employer and had participated in the DROP.

Earned compensation shall mean the annual compensation paid to any member for employment covered by this system, and on which member and employer contributions have been received by this system. No employer shall include in earned compensation any form of compensation not allowed by the city-parish for retirement purposes. Effective for years beginning on or after January 1, 1996, the annual dollar limit on compensation imposed by section 401(a)(17) of the code for any year shall apply to the earned compensation of each eligible and non-eligible participant, as applicable, to the extent required by guidelines issued by the Internal Revenue Service. For purposes of this paragraph, an

eligible participant is any individual who first became a member of the retirement system before January 1, 1996. A non-eligible participant is any member who is not an eligible participant.

Effective date of the 2022 payroll amendments shall mean the payroll period beginning on or after the next quarter after the passage of the 2022 Amendments, October 12, 2022 and shall be the date on which all amendments at sections 1:253(n), 1:265(b)(1)b., 1:265(b)(2)b. and e. and 1:271(c)(1) take effect.

Employer shall mean the consolidated government of the City of Baton Rouge and Parish of East Baton Rouge, and includes the Office of the District Attorney for the Parish, the Family Court of the Parish, the Juvenile Court of the Parish, the Recreation and Park Commission, the Office of the Coroner for the Parish, Baton Rouge Regional Airport Authority (upon approval and change of sponsorship by the Federal Aviation Administration), Brownsfield Fire Protection District No. 3, Central Fire Protection District 4, Fire Protection District No. 6, East side Fire Protection District No. 5, and St. George Fire Protection District No. 2; provided that Central Fire Protection District No. 4, East side Fire Protection District No. 5, Fire Protection District No. 6 and St. George Fire Protection District No. 2 shall not be considered an employer for purposes of this part with respect to all employees hired after December 31, 1998, with the exception that any employee hired between January 1, 1999 and the date which is sixty (60) days after June 28, 2000, who was a member of the retirement system on or immediately prior to his date of hire, shall maintain membership in the retirement system.

Employer contribution percentage shall mean the rates of contribution paid by employers, calculated by the addition of (1) the percentage required by subsection 1:253(n) to this pension plan; (2) the adjusting percentages which are representative of a pro rata allocation of the obligation of any employer to any public retirement system, fund, or plan maintained primarily for officers and employees of the state or of any political subdivision thereof for the discharge of actuarial accrued liability of this pension plan as a result of the transfer of members of this pension plan to such other retirement system, fund or plan, or bonds issued in discharge of such an obligation; and (3) the adjusting percentage, if any, which is representative of an extraordinary actuarial gain or loss as determined by the board of trustees, and identifiable with an employer of the retirement system.

Excess benefit plan shall mean the unfunded, non-qualified plan created by the employer to provide benefits to members which would be provided under the pension plan but for the limitations imposed by section 415 of the code.

Maximum employer contribution percentage shall mean the greater of the rates of contribution paid by employers, calculated as provided under this section.

Member shall mean any person who is regularly employed by the employer, or who is participating in the deferred retirement option plan (DROP), but excluding DROP Rehired Retirees, and shall include the mayor-president, city constable, and coroner of the city-parish; and part-time council members under section 1:266. Provided, however, that any police employee as defined in R.S. 11:2213(11) initially employed by the employer on or after February 26, 2000, shall be excluded from membership in this retirement system, and shall be enrolled into the Municipal Police Employees' Retirement System of Louisiana. Any employee of the Recreation and Park Commission for the Parish of East Baton Rouge, as defined in subsection 1:259(h), shall be excluded from membership in this retirement system. In all cases of doubt, the board of trustees shall have authority to decide who is a member within the meaning of subpart 2, and its decision shall be final and conclusive.

Except as provided below and as provided in subsections 1:259(a), (b), (c), and (d), and in section 1:265, no member shall be deemed regularly employed on or after July 1, 1991, within the meaning of this definition, if such member (1) normally works less than thirty (30) hours per week; or (2) normally works less than five (5) months in a calendar year, regardless of the number of hours worked per week. The restrictions of this paragraph shall not apply,

however, to any member who was, on or prior to June 30, 1991, both (1) an actual member of the retirement system for whom all required contributions were made; and (2) regularly working fewer than thirty (30) hours per week.

Membership service shall mean service as a member rendered after the date of establishment of the retirement system and since last becoming a member, and on account of which all contributions have been made as required by this part.

Part-time rehired retirees shall mean those service retirees who have been rehired by an employer other than those service retirees who are regularly employed (as that term is defined above within the definition of "member").

Pension shall mean a series of periodic payments for life, payable in monthly installments, and shall refer both to benefits received on the basis of service and to benefits received during disability.

Pension plan shall mean the defined benefit plan created by the employer within the retirement system to provide monthly retirement allowances for its eligible members. The pension plan is intended to be a qualified plan within the meaning of section 401 of the code.

Public safety employee shall mean an employee/member who meets the definition of a public safety employee/officer as defined by the Pension Protection Act of 2006.

Retirement shall mean withdrawal or separation from employment with the right to a retirement allowance as provided for by this part.

Retirement allowance shall mean any pension payable by the retirement system.

Retirement system shall mean the employees' retirement system of the City of Baton Rouge and Parish of East Baton Rouge, as defined in section 1:252.

Service shall mean employment as an employee and shall include all service as set forth in sections 1:260, 1:261, 1:262, and 1:263.

Service retiree shall mean a former member who has terminated employment and is in receipt of a service retirement allowance. Supplemental pay shall mean extra pay to certain members paid by the state on a regular monthly basis, pursuant to Louisiana law, and on which member and employer contributions are paid into the retirement system.

Survivor shall mean a surviving spouse, minor child, or unmarried dependent parent of a member, as provided for in section 1:270.

Vested member shall mean a contributing member whose date of hire is prior to September 1, 2015, who has not terminated employment with the employer, and (1) has completed not less than ten (10) years of creditable service; (2) has not reached the age of fifty-five (55) years, or has reached the age of fifty-five (55) years but has not retired; and (3) has not received a refund of member contributions from the system. For members whose date of hire is on or after September 1, 2015, vested member shall mean a contributing member who has not terminated employment with the employer, and (1) has completed not less than ten (10) years of creditable service; (2) has not reached the age of sixty (60) years for non-public safety employees; or fifty-five (55) years for public safety employees, or has reached the age of sixty (60) years for non-public safety employees or fifty-five (55) years for public safety employees but has not retired; and (3) has not received a refund of member contributions from the system.

Vested non-member shall mean a former member whose date of hire is prior to September 1, 2015, who has terminated employment with the employer, and (1) has completed not less than ten (10) years of creditable service; (2) has not reached the age of fifty-five (55) years, or has reached the age of fifty-five (55) years but has not retired; and (3) has not received a refund of member contributions from the system. For members whose date of hire is on or after September 1, 2015, vested non-member shall mean a former member who has terminated employment with the employer, and (1) has completed not less than ten (10) years of creditable service; (2) has not reached the age of sixty (60) years for non-public safety employees, or fifty-five (55) years for public safety employees,

or has reached the age of sixty (60) years for nonpublic safety employees or fifty-five (55) years for public safety employees but has not retired; and (3) has not received a refund of member contributions from the system.
(Ord. No. 18720, 12-14-22; Ord. No. 19834, § 1, 4-22-26)

Sec. 1:252. Enactment and name.

A retirement system has been established and placed under the management of the board of trustees for the purpose of providing service retirement allowances and disability retirement allowances under the provisions of this part for all members as herein provided. The retirement system shall be known as the Employees' Retirement System of the City of Baton Rouge and Parish of East Baton Rouge and shall include all pension plans and other retirement plans created by the employer. The retirement system began its operations as of December 31, 1953.
(Ord. No. 18720, 12-14-22)

Sec. 1:253. Administration.

(a) The general administration and the responsibility for the proper operation of any retirement plans included within the retirement system and for making effective the provisions of this part are hereby vested in the board of trustees of the system.

(b) The board shall consist of seven (7) members, as follows:

(1) Two (2) members, other than police or fire service, who are elected by those members other than police or fire service; one (1) police service member elected by police service members; one (1) fire service member elected by fire service members. Each of the above members shall be elected under the rules and regulations adopted by the board to govern such elections, to serve a term of four (4) years, or until his employment terminates, whichever occurs first.

(2) One (1) person appointed by the mayor-president.

(3) Two (2) persons with business and accounting experience, who shall be appointed by the metropolitan council to serve for a term of four (4) years.

(c) Reserved.

(d) The members of the board shall serve without compensation, but they shall be reimbursed for all necessary expenses that they may incur through service on the board. The board shall employ classified and/or unclassified personnel as may be necessary to properly administer this system. In addition, the board may hire other persons such as accountants, actuaries, legal advisors, consultants, contract employees, and/or others as may be deemed necessary.

(e) Each member of the board shall be entitled to one (1) vote on matters coming before the board. Four (4) concurring votes shall be necessary for a decision by the trustees at a meeting of the board, and four (4) members shall constitute a quorum of the board.

(f) Subject to the limitations of this part, the board may establish from time to time such rules and regulations for the administration of the retirement system as may be necessary.

(g) The board shall keep in convenient form such data as shall be necessary for actuarial valuations.

(h) The board shall have prepared and submitted annually to the metropolitan council an audit report by an independent firm of certified public accountants, and an actuarial report.

(i) The board shall arrange for necessary physicians to review and perform all medical examinations required under the provisions of this part; such physicians shall be persons who are not eligible for membership in the retirement system. It shall be the physicians' duty to investigate all essential statements and certificates by or on behalf of members in connection with applications for disability retirement and to conduct any additional physical examinations they may deem necessary, and such physicians shall report in writing to the board their conclusions and recommendations on all matters referred to them.

(j) The board shall designate an actuary who shall be the technical advisor to the board in matters regarding the operations of the funds created by the provisions of this part and who shall perform such other duties as are required in connection therewith.

(k) The board shall cause an independent actuarial valuation of each plan within the retirement system to be conducted annually.

(l) At least once in each five-year period, the board shall cause an actuarial experience study to be made of each funded plan within the retirement system.

(m) From time to time, the board shall adopt for the pension plan set forth in subpart 2 such mortality, service, and other tables as shall be deemed necessary, and shall certify the rates of contribution payable under the provisions of this part. On the basis of such tables, the actuary annually shall make an actuarial valuation of the assets and liabilities of the pension plan set forth in subpart 2 and of any other funded plan within the retirement system.

(n) There shall be paid annually by each employer a percentage contribution, as defined in section 1:251, on the earned compensation of all contributing members, on the earned compensation of all members entering the DROP on or after the effective date of the 2022 payroll amendments, on the earned compensation of all part-time rehired retirees, on or after the effective date of the 2022 payroll amendments, and as otherwise required in section 1:265, said contribution to be approved by the board of trustees and certified to be deemed appropriate by the actuarial valuation. The portion, if any, necessary to meet the payments, due for the year, to members under the excess benefit plan shall be paid by separate check and deposited into a separate account until paid out at the direction of the board. The remaining funds shall be paid to the pension plan and credited to the pension accumulation account; provided, however, that no amount shall be paid to the pension plan to the extent that such amounts will never become distributed to members because of the limits under section 1:272.

(o) Appropriations. On or before the first day of September in each year, the board shall file with the metropolitan council its certification of the amount of the appropriation necessary to pay the employer contributions, which are creditable to the pension accumulation account of the pension plan for the year, the amount necessary to make payments under the excess benefit plan during the year, and the expense budget required to cover the expenses necessary in connection with the administration and operation of the retirement system. The amount so certified for the employer contributions shall be included as an appropriation in the annual budget. The metropolitan council shall appropriate such amount as shall be necessary to cover the benefits payments of the retirement system as provided for in the plan of government.

(p) Management of funds.

(1) The board shall be the trustee of the funds created by this part and shall have full power to invest and reinvest such funds, subject to all terms, conditions, limitations and restrictions of the "Prudent Man Rule." The prudent-man rule shall require each fiduciary of the retirement system and each board of trustees acting collectively on behalf of each system to act with the care, skill, prudence, and diligence under the circumstances prevailing that a prudent institutional investor acting in a like capacity and familiar with such matters would use in the conduct of an enterprise of a like character and with like aims. This standard requires the exercise of reasonable care, skill, and caution, and is to be applied to investments not in isolation, but in the context of the trust portfolio, and as part of an overall investment strategy, which shall include an asset allocation study and plan for implementation thereof, incorporating risk and return objectives reasonably suitable to that trust. The asset allocation study and implementation plan shall include the examination of market value risk, credit risk, interest rate risk, inflation risk, counterparty risk, and

concentration risk. The investment policy of each system, plan, or fund shall preserve and enhance principal over the long term

and provide adequate liquidity and cash flow for the payment of benefits. The investments shall be diversified to minimize the risk of significant losses unless it is clearly prudent not to do so.

(2) The board of trustees of the retirement system shall be the custodian of all the funds. All payments from such funds shall be made only upon regular vouchers signed by two (2) persons approved by the board. All expense vouchers and retirement allowance payroll shall be certified by the retirement system administrator or his designated representative.

(3) Except as otherwise herein provided, no member or employee of the board shall have any direct interest in the gains or profits of any investment made by the board, nor shall any member of the board as such receive any pay or emolument for services. No member or employee of the board shall, directly or indirectly, for himself or as an agent, in any manner use the same, except to make such current and necessary payments as are authorized by the board of trustees.

(4) The board shall prescribe which of its members and employees shall be adequately bonded and in what amount, pursuant to regulations adopted by the board. The premiums of the bonds shall be paid as an expense of the retirement system.

(q) The funds of the pension plan and the excess benefit plan shall not be commingled, nor may expenses attributable to one (1) of those plans be paid from the assets of the other.
(Ord. No. 18720, 12-14-22; Ord. No. 19677, § 1, 11-25-25)

Sec. 1:254. Assignments.

(a) Except as provided in subsection (b) of this section, relating to Division of Benefits Orders (DBO) or Division Orders (DO), the rights of a person to a retirement allowance, a refund of contributions, or any other right accrued or accruing to any person under the provisions of any plan established under this part shall not be assigned and shall not be subject to execution, garnishment, or attachment, nor shall any amounts ever be transferred from one (1) plan established under this part to any other plan established under this part.

(b) Subsection (a) of this section shall not preclude the payment to an alternate payee of all or a portion of a particular member's interest under the plan pursuant to a domestic relations order; provided, however, that any payment to an alternate payee shall reduce the retirement allowance or refund of contributions available to the member by the amount of such payment. For purposes of this section, "alternate payee" shall mean a spouse, former spouse, child, or other dependent of a member who is recognized by a domestic relations order as having a right to receive all, or a portion of the benefits under a plan established by this part.
(Ord. No. 18720, 12-14-22; Ord. No. 19677, § 1, 11-25-25)

Sec. 1:255. Protection against fraud.

Whoever with intent to deceive shall make any statements or reports, or give any notices required under this part which are untrue, or shall falsify or permit to be falsified any record or records of this retirement system in any attempt to defraud this system as a result of such, shall be guilty of a misdemeanor, and on conviction thereof by any court of competent jurisdiction, shall be punishable by a fine not to exceed five hundred dollars ($500.00) or imprisonment in the parish jail not to exceed six (6) months, or both, at the discretion of the court.
(Ord. No. 18720, 12-14-22)

Sec. 1:256. Errors.

Should any change or error in the records be discovered or result in any member, retiree, survivor or beneficiary receiving from the retirement system more or less than he would have been entitled to receive had the records been correct, the board shall have the power to correct such error, and as far as possible, to adjust the payments in such manner that the actuarial

equivalent of the benefit to which such member, retiree, survivor, or beneficiary was properly entitled is paid.
(Ord. No. 18720, 12-14-22)

Sec. 1:257. Amendments.

The metropolitan council shall have continuing power to amend this part, but no amendment shall be adopted that will reduce the then-accrued benefits of members of the retirement system, or their survivors or beneficiaries, as established by this part.
(Ord. No. 18720, 12-14-22)

Subpart 2. Pension Plan

Sec. 1:258. Amendment of plan.

There is hereby established within the retirement system a separate defined benefit pension plan containing the provisions set forth below to hold the assets and continue to provide the benefits at the same level previously provided under the retirement system. The pension plan is intended to be a qualified pension plan within the meaning of section 401 of the code and exempt from federal income taxes and shall always be construed in a manner consistent with ensuring the qualification of the plan under that section. The provisions of this part shall be effective on April 1, 1997, unless another effective date is provided, except that any provision required to comply with the qualification requirements of the code shall be effective no later than the prospective date required by the relevant code provision or any applicable Internal Revenue Service guideline.
(Ord. No. 18720, 12-14-22)

Sec. 1:259. Membership.

(a) Membership of the pension plan shall consist of any person who was a member of the retirement system on March 31, 1997, and any person who becomes a member after that date. Such persons shall become members of the pension plan as a condition of their employment. Any person who simultaneously holds more than one (1) position of full-time employment with the employer shall be considered, for the purposes of pension plan participation, on both an employee and employer basis, as being employed in only one such position, at the irrevocable option of the member.

(b) Membership in the pension plan shall cease when the member terminates employment.

(c) Membership in the pension plan shall include, as of July 1, 1991, the positions of anti-drug task force coordinator, assistant to the anti-drug task force coordinator, research assistant to the anti-drug task force coordinator, clerk typist III for the anti-drug task force coordinator, program field coordinator of the street and road rehabilitation program, program manager for the street and road rehabilitation program, and recycling coordinator. Those positions were contractual positions before July 1, 1991, and individuals holding those positions shall not be entitled to have or to obtain any credit for any service for any time spent in those contractual positions prior to July 1, 1991.

(d) Membership in the pension plan shall include, as of December 14, 1988, the positions of three (3) assistant chief administrative officers; two (2) confidential secretary IIIs; and one (1) confidential secretary II, all within the office of the mayor-president of the city-parish.

(e) Membership in the pension plan shall not include the position of judicial administrator of the district court for the parish; provided, however, that any person holding this position as of March 31, 1997, shall be allowed to continue membership until his termination of employment.

(f) Membership in the pension plan shall not include assistant district attorneys employed by the office of the district attorney for the parish.

(g) Membership in the pension plan shall not include student interns who by agreement or contract perform services for any department of the city-parish.

(h) Membership in the pension plan shall not include any construction trade employees of the recreation and park commission for the parish during any period for which such employee is covered by a collective bargaining agreement

that requires the employer to make contributions on his or her behalf to a multiemployer pension plan that is subject to the Employee Retirement Income Security Act of 1974, and any amendment thereto.
(Ord. No. 18720, 12-14-22)

Sec. 1:260. Service credit, in general.

A member shall receive service credit based on actual time worked for which both member and employer contributions have been made. Periods of leave without pay are not included in service credit unless authorized by the board of trustees, and provided that both member and employer contributions have been remitted to the system. In no case shall more than one (1) year of service be creditable for all service in one (1) calendar year. A member may also receive service credit under section 1:261, 1:262, or 1:263.
(Ord. No. 18720, 12-14-22)

Sec. 1:261. Uniformed service creditable.

(a) Notwithstanding any provision in this part to the contrary, effective January 1, 1974, any member who has not previously been granted credit for retirement purposes for active military service and who has attained three (3) years as a member of any plan within the retirement system shall, on presentation to the retirement board of satisfactory evidence of honorable discharge from the United States military, be granted up to three (3) years' credit for retirement purposes for his or her active military service from date of induction to date of separation. This credit shall be granted regardless of whether the member was employed prior to entering military service or was employed after leaving military service. Such military service shall be recognized and credit for the same given in only one (1) municipal, parochial, state, or federal retirement system.

(b) Notwithstanding any other provision of this part IV to the contrary, a member shall receive the contributions, benefits and service required with respect to qualified military service by section 414(u) of the Internal Revenue Code if such contributions, benefits or service are not provided under subsection (a) of this section. In no case may any member receive credit for the same service under both this subsection and subsection (a) of this section.

(c) If a member dies while performing qualified military service as defined in Section 414(u) of the Internal Revenue Code, the beneficiaries of the member are entitled to any additional benefits (other than benefits relating to the period of qualified military service) that would have been provided if the member had returned to service and then died.
(Ord. No. 18720, 12-14-22)

Sec. 1:262. Separation benefits for unused accumulated vacation time and sick leave; conversion/payment.

(a) Upon written agreement by a member or his surviving spouse, separation benefits relative to unused accumulated vacation time and sick leave shall be provided by the retirement system, as specified by this section. The aforesaid written agreement shall provide, in order to attain eligibility for separation benefits relative to unused accumulated vacation time and/or sick leave provided by the retirement system, for the waiver of severance benefits provided by the employer relative to the same unused accumulated vacation time or sick leave. No such separation benefits shall be provided by the retirement system if separation benefits relative to the same unused accumulated vacation time or sick leave are provided by the employer.

(b) The provisions of this section shall be applicable only with respect to members of the retirement system whose application for retirement has been signed and processed by the system, who elect to participate in the deferred retirement option plan, or who die, all as further provided herein below. In the determination of separation benefits provided by this section, ordinances and/or rules and regulations, and contractual provisions, of and relative to the employer, or any of its agencies, including civil service boards and/or commissions, relative to amounts of vacation time and sick leave that are earned, accumulated, and used, shall be applicable hereto, except that separation benefits so

determined shall not exceed that determined by the application of said ordinances and/or rules and regulations, and contractual provisions, as such existed and read on April 1, 1997; however, the foregoing restrictions shall not be construed to prohibit the conversion of unused accumulated vacation time or sick leave (determined subject to said restrictions) to credit as provided by subsection (c)(2) of this section. Limitations relative to vacation time or sick leave as allowed by the city-parish shall be used for retirement purposes in those cases where limitations for the employer are greater than those of the city-parish.

(c) When a member applies for retirement, and is found to be eligible for such with or without the application of this section, or dies while still a member and before retirement, leaving a surviving spouse who is entitled to benefits under this part, the member or the surviving spouse may elect to have all unused accumulated vacation time and sick leave treated under either subsection (1) or (2) below.

(1) If this paragraph is chosen, an election shall be made to be paid by the retirement system for a portion of accumulated vacation time and sick leave, and to have a portion thereof converted to retirement credit, as follows. If this option is selected, the member, or his surviving spouse, shall be paid for that portion allowable; and the member's unused accumulated vacation time and sick leave which do not exceed the maximum amounts earned and accumulable, for which no payment is allowable, and which was earned while in employment covered by this system, all as certified by the department head of the member's department, shall be added to the member's membership service, the addition to be on the basis of one (1) service hour for each two (2) hours of unused accumulated vacation time or sick leave, adjusted on a calendar-year basis. The member, or his surviving spouse, shall have the option of selecting the hours for which to receive payment and for which to receive additional credit.

(2) If this paragraph is chosen, an election shall be made to waive all payment for such unused accumulated vacation time or sick leave and convert same or all of such to retirement credit as follows. If this option is selected, that portion of unused accumulated vacation time or sick leave, as designated by the member or his surviving spouse, shall be added to the member's membership service, the addition to be on the basis of one (1) service hour for each hour of unused accumulated vacation time or sick leave.

(d) Any unused accumulated vacation time or sick leave which is chosen to be converted to service credit shall be used in determining eligibility for retirement and benefits under this part. The added service shall also be used in calculating average compensation. For purposes of computing average compensation, it shall be assumed that the member's earned compensation at the time of retirement, entry to the deferred retirement option plan, or death, continues for the period of added service, with no increases in earned compensation for the period of added service. For purposes of this paragraph, earned compensation is limited to that compensation provided for:

(1) Under the position of the member in the applicable pay plan of the employer; or

(2) Under a bona fide conditional appointment to another position while on leave from the position of subsection (1) above.

(Ord. No. 18720, 12-14-22; Ord. No. 19677, § 1, 11-25-25)

Sec. 1:263. Service credit following administrative error.

Whenever it is shown, to the satisfaction of the board, that, because of administrative error on the part of the employer, a contributing member of the retirement system has not received service credit, upon application of the member for all such credit, within ninety (90) days of his being officially informed by the retirement system of the error, and his payment to the retirement system of an amount equal to the member contributions that he should have made, he shall

be credited with such service. If the member fails to so apply and commence payment within the aforesaid ninety (90) day period, or within any longer period necessary to comply with the limitations under section 415 of the Internal Revenue Code, his right to the service credit shall be forfeited. Upon application and payment by the member, the employer shall pay the retirement system an amount equal to the employer contributions that should have been made, plus interest at the actuarial valuation rate with respect to both member and employer contributions.
(Ord. No. 18720, 12-14-22)

Sec. 1:264. Method of financing.

All assets of the pension plan shall be credited, according to the purpose for which they are held, among the various accounts of the pension plan, including, but not limited to, the member mandatory contribution account, the pension accumulation account, the benefit reserve account, and the deferred retirement option plan account.

(1) *Member mandatory contribution account.*

a. 1. The member mandatory contribution account shall be the account in which shall be accumulated all contributions by members. Except as provided by subsections 1:264(1)a.1 or 2, the contribution of each member of the retirement system shall be eight (8) percent of his earned compensation.

2. Should the maximum employer contribution percentage provided under section 1:251 be set at seventeen (17) percent or more for any calendar year, the member contribution percentage for that calendar year shall be fifty (50) percent of the employer contribution percentage, rounded to the nearest one-hundredth (0.01) percent, but not more than nine and one-half (9½) percent. The provisions of this subsection shall be effective for calendar years after December 31, 2001.

3. Should the maximum employer contribution percentage provided under section 1:251 be set at eight (8) percent or less for any calendar year, the member contribution percentage for that calendar year shall be set at the percentage identical to the employer contribution. The provisions of this subsection shall be effective for calendar years after December 31, 2001.

b. The board shall certify to the proper authority or officer responsible for making up the payroll, and the proper authority or officer responsible for making up the payroll shall cause to be deducted from the compensation of each member on each and every payroll, the percentage of his earned compensation, as stated in subsection a.

c. Every member shall be deemed to consent and agree to the deductions made and provided for herein, and receipt for his full salary or compensation and payment of salary or compensation, less the deduction, shall be a full and complete discharge and acquittance of all claims and demands whatsoever for the services rendered by such person during the period covered by such payment, except as to the benefits provided under this part. The proper authority responsible for making up the payroll shall certify to the board on each and every payroll the amounts to be deducted; and each of such amount shall be deducted by the proper fiscal officer, and, when deducted, shall be credited in the member mandatory contribution account to the individual account of the member from whose compensation said deduction was made.

d. In addition to the contributions deducted from compensation as hereinbefore provided, any member may redeposit into the member mandatory contribution account, by a single payment or by an increased contribution, an amount equal to all or part of the total amount which he previously withdrew therefrom as provided in this subpart, subject to approval of the board, and under such rules as the board shall adopt regarding interest to be paid thereon.

e. The contributions withdrawn by a member, or paid by reason of his death or withdrawal from service, shall be charged to the member mandatory contribution account. Upon the retirement of a member, his accumulated contributions shall be transferred from the member mandatory contribution account to the benefit reserve account.

f. Member contributions otherwise required to be made to the pension plan shall be picked up by the employer. The employer shall pay the picked-up contributions to the retirement system from the same source of funds that is used in paying earnings to the members and such payments shall be in lieu of contributions by the employees. The employer shall pick up these contributions by a corresponding reduction in the cash salary of the employees, by an offset against future salary increases, or by any combination of salary reduction and offset against future salary increases. Members do not have the option of choosing to receive the contributed amounts directly instead of having them paid by the employer to the pension plan. Contributions picked up as provided herein shall be treated as employer contributions in determining the tax treatment of the amounts under the Code; however, they shall be treated for all other purposes as if they are part of the member's compensation which is deducted from his salary. Pick-up of member contributions shall be effective on the last to occur of the following:

1. November 25, 1997 (the date of the ordinance originally adding this language, Ordinance 11019).
2. The recommendation of an ordinance by the board of trustees of the employees' retirement system of the city-parish forwarded to the metropolitan council;
3. The issuance of a ruling by the Internal Revenue Service, or a decision by a federal court, that, pursuant to section 414(h) of the code, these picked-up contributions are not included in the gross income of the members until such time as they are distributed; and
4. The first payroll of the employer paid after January 1, 1998.

(2) *Pension accumulation account.*

a. The pension accumulation account shall be the account in which shall be accumulated all income except contributions by members, payments made to the deferred retirement option plan, and allocations made to other accounts.

b. On the basis of the actuarial valuation, the board shall determine the rate of contributions necessary to provide sufficient funds for payment of all future retirement benefits throughout the remainder of the member's life (his benefit reserve).

c. All interest, dividends, and income earned or realized on the funds or property of the retirement system shall be credited to the pension accumulation account, which shall be a control account, and there shall

also be credited to this account all gifts, bequests, or devices of money or property made for the benefit of the retirement system.

d. Upon the retirement of a member, an amount equal to his benefit reserve shall be transferred from the pension accumulation account to the benefit reserve account.

(3) *Benefit reserve account.* The benefit reserve account shall be the account to which shall be charged the benefits and pensions on account of retired members, and benefits in lieu thereof. Should a retiree be restored to membership, his benefit reserve shall be transferred from the benefit reserve account to the member mandatory contribution account, to the extent member contributions remain, and his remaining benefit reserve shall be transferred from the benefit reserve account to the pension accumulation account.

(4) *DROP account.* The deferred retirement option plan account shall be the account in which shall be accumulated all payments, and interest allowed thereon, made pursuant to section 1:271.

(5) *Expenses.* All administrative expenses of the retirement system shall be paid directly from the pension accumulation account of the retirement system.

(6) *Withdrawal liability payments for withdrawal of geographical area.*

a. Should any geographical area of the city-parish currently under management of the city-parish successfully remove itself from the management of the city-parish and become a new municipality or part of another governing area, causing a loss of revenue sources (including, but not limited to, ad valorem, property taxes, or sales taxes), that government servicing this geographical area ("new government") shall remit to this retirement system that portion of the unfunded accrued liability existing on the December 31 immediately prior to:

1. The date of which the new government begins collecting the full revenue from its geographical area (if the new government became a part of another governing area); or

2. The date two (2) years from the date of incorporation of the new municipality (if the new government becomes a new municipality), in an amount, which is equal to the pro rata share of general fund revenue to be derived from this geographical area averaged over the prior two (2) years ending on such December 31 (calculated by taking a reasonable and good faith estimate of revenues for any year where the actual revenue numbers are unavailable) as a percentage of the actual total general fund revenue to the city-parish averaged over the prior two (2) years ending on such December 31 ("new government general fund revenue") . This revenue calculation shall be provided by the city-parish.

b. The data to be used for the revenue calculation in subsection a. above is subject to verification by the payer. The city-parish shall provide such revenue data to the new government within ninety (90) days of the applicable date within subsection a. above (with an estimate to be provided at sixty (60) days). Thereafter the new government has a thirty (30) day period within which to review and approve this data. If it fails to object within this thirty (30) day period, it will be deemed to have accepted this data. If it objects, then the city-parish' s finance depart-

ment and the new government's accountant shall agree on a third accountant to review this revenue data. That accountant shall make an independent revenue calculation as provided in subsection a. That decision will be binding as to the revenue data to be used in the calculation of pro rate share.

c. The new government's share of the unfunded accrued liability (UAL) (the "amount due") calculated pursuant to the provisions of this subsection (6) shall include interest at the system's valuation interest rate as of the date of the determination of the unfunded accrued liability. The amount due shall be determined by the system's actuary. This calculation of the amount due shall be provided to the new government, who may have its own actuary review the calculation and confer with the system's actuary, within thirty (30) days of presentation, on any basis for deviation from the original calculation prior to presentation to the system's board for final approval as noted below. The amount due shall be paid at the option of the payer either in a lump sum or amortized over fifteen (15) years in equal monthly payments with interest at the retirement system's valuation interest rate. The payments shall commence in January of the year following the adoption of the annual valuation report on which this amount due is calculated. The new government's share of the UAL, and amortization payments, if applicable, shall be fixed as of the date of the determination and shall not increase or decrease by post determination actuarial assumption changes, including, but not limited to, any change in the retirement system's valuation interest rate. The new government may pay the remaining amount due, as reasonably determined by the system's actuary, at any time. If the city-parish contractually obligates itself to pay any or all of the amount due by the new government, and a true and correct copy of that contract is presented to the system, then the system will look to the city-parish for payment of these sums.

d. The actuary for the system shall keep a record of the declining value of the UAL obligation for the new government.

e. Nothing in this provision otherwise restricts the power of the board of trustees for the system to adopt reasonable actuarial assumptions for the management and funding of the plan.

f. Should the payer fail to make payment timely, the amount due shall be collected as follows:

   1. Any tax collecting agency that otherwise owes collected tax funds to the government servicing this geographical area shall be authorized without further executive or legislative action to forward these funds to the retirement system up to the amount then due to the system as withdrawal liability under this subsection.

   2. Without further executive or legislative action, any state revenue sharing money may also be paid directly to the system to satisfy any withdrawal liability then due under this subsection.

   3. Delinquent payments due under this paragraph may, with interest, at the retirement system's valuation interest rate compounded annually, be recovered by action in a court of competent jurisdiction against the entity represent-

ing this new geographical area as an alternative or additional remedy for collection all sums due.

g. For the purposes of determining the withdrawal liability owed, the actuary for the retirement system shall recommend the amount to the board of trustees.

(7) *Withdrawal liability payments for employer removal of group of employees or position for privatization of positions.*

a. The provisions of this section shall apply to an employer that takes either of the following actions:

1. The employer terminates a group of employees belonging to this system by eliminating the positions held by those employees through permanent workforce reduction such as privatizing, outsourcing, contracting the service with a private employer, or any other means that replaces this group of employees with contract workers or with services from an entity not employing members of the system.

2. The employer eliminates any position through privatizing, outsourcing, contracting the service with an individual or a private employer, or any other means that replaces a position previously held by a member of the system with services from either an individual for whom employer contributions are not made or an entity not employing members of the system.

b. Any employer to which this section applies shall remit that portion of the unfunded accrued liability existing on December 31, immediately prior to the date of termination attributable to the employees being terminated or attributable to the employee in that position.

c. The amount due shall be paid at the option of the employer either in a lump sum or amortized over ten (10) years in equal monthly payments with interest at the retirement system's valuation interest rate, in the same manner as regular payroll payments to the system.

d. Should the employer fail to make payment(s) timely, then the amount due shall be collected as follows:

1. Any tax collecting agency that otherwise owes collected tax funds to the employer shall be authorized without further executive or legislative action to forward these funds to the system up to the amount then due to the system as withdrawal liability under this sub-section.

2. Without further executive or legislative action, any state revenue sharing money may also be paid directly to the system to satisfy any withdrawal liability then due under this subsection.

3. Delinquent payments due under this paragraph may, with interest at the retirement system's valuation interest rate compounded annually, along with any associated legal and/or court fees, be recovered by action in a court of competent jurisdiction against the employer as an alternative or additional remedy for collection of all sums due.

e. For the purposes of determining the withdrawal liability owed, the actuary for the retirement system shall recommend the amount to the board of trustees.

f. The CPERS Board of Trustees shall have the authority to review each withdrawal on a case-by-case basis and create any procedures necessary to ensure enforcement of this section.

g. The provisions of this section shall supersede and control in case of a conflict with any other applicable ordinance or any applicable law, rule, or regulation.

(Ord. No. 18720, 12-14-22; Ord. No. 18947, § 1, 8-23-23)

Sec. 1:265. Benefits.

(a) *Service retirement allowance.*

(1) Any member of the system whose date of hire is prior to September 1, 2015, and who has reached the age of fifty-five (55) years, and who has not less than ten (10) years of service, or any member of the system whose date of hire is on or after September 1, 2015, and who has reached the age of sixty (60) years for non-public safety employees, or fifty-five (55) years for public safety employees, and who has not less than ten (10) years of service; or any member of the system who has not less than twenty (20) years of service, regardless of age, is eligible to retire under the provisions of this part, and may submit his written application to the board setting forth at what time, not less than thirty (30) days nor more than ninety (90) days subsequent to the execution and filing thereof that he desires to be retired. Vested non-members shall not be subject to the time limitations on retirement applications contained in this subsection.

(2) In the case of retirement from service of any member of the system whose date of hire is prior to September 1, 2015, his retirement allowance shall be computed in accordance with the applicable provisions of subsection (3) below with full retirement, regardless of age, with twenty-five (25) years of service, but the total retirement allowance therein provided for members with less than twenty-five (25) years' service shall be reduced three (3) percent for each attained year of age below fifty-five (55).

In the case of retirement from service of any member of the system whose date of hire is on or after September 1, 2015, his retirement allowance shall be computed in accordance with the applicable provisions of subsection (3) below with full retirement at age fifty-five (55) for non-public safety employees with twenty-five (25) years of service, or at age fifty (50) for public safety employees with twenty-five (25) years of service, but the total retirement allowance therein provided for members with less than twenty-five (25) years' service shall be reduced to an actuarial equivalent benefit for commencement prior to the attained age of fifty-five (55) years for non-public safety employees and fifty (50) years for public safety employees.

(3) Service retirement allowances for members of the system: For all members of the system whose date of hire is prior to September 1, 2015, having not less than twenty-five (25) years of service at any age, service retirement allowances shall be computed at three (3) percent of their average compensation multiplied by the number of their years of creditable service. Members of the system who do not have twenty-five (25) years of service credit, but who have a minimum of ten (10) years' service at age fifty-five (55), shall receive a retirement allowance equal to two and one-half (2½) percent of their average compensation multiplied by the number of their years of creditable service.

For all members of the system whose date of hire is on or after September 1, 2015, having not less than twenty-five (25) years of service at age fifty-five (55) for non-public safety employees, or age fifty (50) for public safety employees, service retirement allowances shall be computed at three (3) percent of their

average compensation multiplied by the number of their years of creditable service. Members of the system who do not have twenty-five (25) years of service credit, but who have a minimum of ten (10) years' service at age sixty (60) for non-public safety employees, or age fifty-five (55) for public safety employees shall receive a retirement allowance equal to two and one-half (2½) percent of their average compensation multiplied by the number of their years of creditable service.

(4) The sum of the service retirement allowances set forth in paragraph (3) of this subsection shall not exceed an amount equal to ninety (90) percent of the member's average compensation.

(b) *Employment of retirees in receipt of benefits by employer.*

(1) *Employment of service retirees on a full-time basis.*

a. Service retirees in receipt of benefits who become regularly employed shall have their retirement benefits suspended during the period of re-employment except in the following circumstances: if (i) the service retiree is required to contribute to a governmental pension plan other than the retirement system by virtue of such employment, or (ii) the service retiree would be required to contribute to a governmental pension plan other than the retirement system by virtue of such employment, but is ineligible for membership under the provisions of the particular governmental pension plan. Upon final separation from service, retirement benefits will recommence but no payment shall be made of suspended benefits. Service retirees who become regularly employed and have their retirement benefits suspended shall not have access to their DROP account during the period of re-employment, unless prior to re-hire the retiree was required to be receiving mandatory distributions under Internal Revenue Code section 72(t). In that case only, required minimum distributions may be made from the DROP account. Interest shall be credited to the DROP during the re-hire period.

b. If the service retiree's retirement benefit was suspended pursuant to this subsection (b)(1), the rehired retiree who did not participate in DROP shall resume contributing membership the employer shall resume employer contributions, whether or not the rehired retiree resumes contributing membership. A rehired retiree who participated in DROP shall not resume active membership in the system and shall not receive credited service during the re-hire period, but the employer shall make contribution to the system during the re-hire period. This subsection (b)(1)b. becomes effective on the effective date of the 2022 payroll amendments.

c. Upon subsequent separation from service, the retiree's original retirement benefit shall resume, without change. The retiree may not change any optional allowance that was originally selected.

d. Upon subsequent re-retirement, and provided contributing membership in the retirement system was allowed during such employment, the retiree shall receive an additional retirement benefit based on the retiree's additional service, using the normal method of computation of benefits, subject to the following:

1. Benefits accrued during the rehire period shall be calculated separately. If the period of re-employment was less than thirty-six (36) months if originally hired prior to September 1, 2015, or less than sixty (60) months if originally

hired on or after September 1, 2015, the average compensation used to calculate the original benefit shall be used for the additional period of employment.

(i) If the period of re-employment was for a period in excess of the number of months in subparagraph d.1., above, the average compensation for the period of re-employment or the original period of employment, whichever is greater, shall be used.

(ii) The benefit multiplier shall be three (3) percent if used in the original benefit. If the original and rehire periods combined would entitle the member to the three (3) percent multiplier, the three (3) percent multiplier shall be used.

(iii) If the original benefit and the rehire periods combined entitles the member to the two and one-half (2.5) percent multiplier, the benefit shall be calculated using that multiplier.

(iv) If the original benefit multiplier was anything other than two and one-half (2.5) or three (3) percent, the percentage factor used to compute the additional benefit shall be that which would be applicable to a person of the same age who has credit for the sum of the re-retiree's years of original plus additional creditable service.

(v) Re-hired service retirees may not alter the optional form of retirement benefit originally selected. The aggregate benefit for the original and re-hire periods may not exceed ninety (90) percent of average compensation used to calculate the re-hire period.

(vi) If the re-hired service retiree dies or becomes disabled, the service retiree will be deemed to have finally retired on a service retirement on the date of death or disability.

(2) *Employment of part-time rehired retirees.* The provisions of this subsection govern the consequences of the employment by an employer of this pension plan of a part-time rehired retiree.

a. When a part-time rehired retiree is employed by an employer of this pension plan, the part-time rehired retiree's retirement benefit shall be suspended, except in the following circumstances:

1. If (i) the part-time rehired retiree is required to contribute to a governmental pension plan other than the retirement system by virtue of such employment; or if (ii) the part-time rehired retiree would be required to contribute to a governmental pension plan other than the retirement system by virtue of such employment but is ineligible for membership under the provisions of the particular governmental pension plan; or

2. If the part-time rehired retiree meets all of the following requirements:

(i) The part-time rehired retiree is reemployed up

to a maximum of forty-nine (49) percent of the annual earnings the retiree had at retirement (the part-time rehired retiree shall be paid the hourly rate for his re-employed position in accordance with the employer's pay plan, but the number of hours worked cannot produce annual earnings that would exceed this limitation. The employer and the part-time rehired retiree are responsible for compliance with this requirement.

(ii) There was no expectation that the retiree would be rehired in any capacity upon separation, and the retiree signed such an acknowledgement at the time of retirement.

(iii) There was at least a six (6) month waiting period after retirement prior to reemployment.

(iv) If the member has a date of hire prior to September 1, 2015, the member has thirty-two (32) years or more of creditable service and DROP participation combined at the time of final termination of employment.

(v) If the member has a date of hire on or after September 1, 2015, the member has thirty-seven (37) years or more of creditable service and DROP participation combined at the time of final termination of employment.

b. The employer shall pay employer contributions on the pay received by the part-time rehired retiree, as of the effective date of the 2022 payroll amendments, unless:

1. Contributing membership in a governmental pension plan other than the retirement system is mandated; or

2. Contributing membership in a governmental pension plan other than the retirement system would be mandated but for ineligibility for membership under the provisions of the particular governmental pension plan.

c. The rehired retiree shall not pay employee contributions on the pay received.

d. If the rehired retiree is entitled to continue to receive his retirement benefit under subsection (b)(2)a., then that also entitles the rehired retiree to full access to the rehired retiree's DROP account provided such access is allowed by Internal Revenue Service rules; to the extent access is limited thereby for qualified plans, then access by the rehired retiree shall likewise be limited; to the extent minimum monthly payments are required in order to avoid the section 72(t) penalty, or any other such penalties of the Internal Revenue Code, then such minimum monthly payment shall be required.

e. The employer shall report earnings to the retirement system on a quarterly basis for all part-time rehired retirees who have returned to work and any such who exceed the hours allowed in this section or who otherwise fail to meet any requirement in this section shall owe a refund of overpayment of benefits by this system as appropriate with the dollar-for-dollar offset

being made against the benefit payments to be paid thereafter. This reporting requirement begins on the effective date of the 2022 payroll amendments.

f. Upon subsequent re-retirement, if the retiree's benefit was suspended pursuant to the terms of subsection (b)(2), the original retirement benefit shall resume, without change. The part-time rehired retiree may not change any optional allowance that was originally selected nor shall the part-time rehired retiree receive any additional service credit.

g. If the service retiree has participated in the DROP and, pursuant to the terms of subsection (b)(2)a., the retiree's benefit was suspended, then the retiree shall also not be entitled to any distribution of the retiree's DROP account during the period of re-employment. Interest on DROP accounts shall be credited during the period of re-employment.

h. The provisions of this subsection (b)(2) shall not apply to a part-time rehired retiree who was hired as a part-time rehired retiree prior to the effective date of this ordinance amendment, except for the provisions in subsection (b)(2)b. and c. and, otherwise, they shall continue to have access to their retirement benefits to the same extent they had prior to the effective date of this ordinance amendment.

(c) *Optional allowances.*

(1) Any member entitled to a service retirement allowance or a service-connected disability retirement allowance may elect to receive optional allowances, provided that any such elections must be made before the first payment of his retirement allowance normally becomes due, or before the first payment into the member's deferred retirement option plan account has been made.

(2) The optional allowance is the actuarial equivalent of the member's regular retirement allowance at the time of his retirement and consists of a reduced retirement allowance payable throughout his life, with the provision that:

a. *Option 1.* If he dies before he has received retirement benefits exceeding the amount of his member contributions as of the date of his retirement, the balance shall be paid to such person or persons as he shall nominate by written designation duly acknowledged and filed with the board or, if none, to his legal representative.

b. *Option 2.* Upon his death, one-half (½) of his reduced retirement allowances shall be continued through the life of and paid to such person as he shall have nominated by written designation duly acknowledged and filed with the board at the time of his retirement.

c. *Option 2A.* Upon his death, one-half (½) of his reduced retirement allowance shall be continued through the life of and paid to such person as he shall have nominated by written designation duly acknowledged and filed with the board at the time of his retirement, provided that if the designated beneficiary predeceases the retiree, the retiree's reduced benefit shall change to the maximum benefit effective on the first day of the next month following the death of the designated beneficiary.

d. *Option 3.* Upon his death, seventy-five (75) percent of his reduced retirement allowance shall be continued through the life of and paid to such person as he shall have nominated by written designation duly acknowledged and filed with the board at the time of his retirement.

e. *Option 3A.* Upon his death, seventy-five (75) percent of his reduced retire-

ment allowance shall be continued through the life of and paid to such person as he shall have nominated by written designation duly acknowledged and filed with the board at the time of his retirement, provided that if the designated beneficiary predeceases the retiree, the retiree's reduced benefit shall change to the maximum benefit effective on the first day of the next month following the death of the designated beneficiary.

f. *Option 4.* Upon his death, his reduced retirement allowance shall be continued through the life of and paid to such person as he shall have nominated by written designation duly acknowledged and filed with the board at the time of his retirement.

g. *Option 4A.* Upon his death, his reduced retirement allowance shall be continued through the life of and paid to such person as he shall have nominated by written designation duly acknowledged and filed with the board at the time of his retirement, provided that if the designated beneficiary predeceases the retiree, the retiree's reduced benefit shall change to the maximum benefit effective on the first day of the next month following the death of the designated beneficiary.

h. *Option 5.* Upon his death, benefits may be paid to such person or persons as he shall have nominated provided such other benefit or benefits, together with the reduced retirement allowance, shall be certified by the retirement system actuary to be of equivalent actuarial value to his retirement allowance, and approved by the board.

(3) No option shall become effective until thirty (30) days after application for retirement, and no change in the option selected shall be permitted thirty (30) days after the application has been signed.

(4) When an amount is to be determined on the basis of actuarial assumptions that are not specifically prescribed by part IV or by the Code or related income tax regulations, the actuarial assumptions shall be the earnings and mortality assumptions being used on the date of the determination. These assumptions may be changed only upon recommendation of the retirement system's actuary and approval by the board and shall be attached as an addendum to a copy of this part IV.

(d) *Disability retirement allowances.*

(1) Disability retirement, service-connected.

a. In the case of retirement from service of any contributing member of the system as a result of disability incurred in the course and scope of such member's employment with the employer, the member shall receive a service-connected disability retirement allowance equal to fifty (50) percent of the member's average compensation.

b. Additionally, any contributing member who is entitled to the benefit provided by subsection (d)(1)a., and who has not less than ten (10) years of service, shall receive a supplemental disability retirement allowance of one and one-half (1½) percent of the member's average compensation for each year of service in excess of ten (10) years, this additional benefit not to exceed forty (40) percent of the member's average compensation.

(2) Disability retirement, ordinary. In the case of retirement from service of any contributing member of the system which is not as a result of disability incurred in the course and scope of such member's employment with the employer, and provided the member has not less than

ten (10) years of service, the member shall receive an ordinary disability retirement allowance equal to two and one-half (2½) percent of the member's average compensation for each year of service, this benefit at a minimum to be fifty (50) percent of the member's average compensation.

(3) Application for disability retirements shall be submitted by contributing members, along with a report from the member's physician certifying that the member's disability totally incapacitates the member from further performance of his normal duties. Upon such application, the retirement system shall notify the member's employer of the application for the purpose of compliance by the employer with the requirements of section 1:470 of this Code. Provided that the board's physician or physicians shall certify that the member is mentally or physically totally incapacitated from the further performance of his normal duties, that such incapacity is likely to be permanent, and that the member should be placed on disability retirement, the board shall approve the member's application for a disability retirement allowance. Any disability must have been incurred after commencement of membership service, and disabilities existing prior to becoming a member shall not be approved.

(4) In the case where an individual is eligible for a normal service benefit, he may, at the time of application for retirement, elect to receive either the disability retirement or the service retirement if he is found eligible for disability retirement.

(e) *Re-examination of disability retirees.*

(1) The provisions of subparagraph (a) of this paragraph shall apply to disability retirees whose application for disability was filed with the retirement system on or before April 30, 2004, whereas the provisions of subparagraph (b) of this paragraph shall apply to disability retirees whose application for disability was filed with the retirement system after April 30, 2004.

a. Once each year during the first five (5) years following retirement of a member on a disability retirement allowance, and once in every three-year period thereafter, the board shall require any disability retiree to undergo a medical examination by the board's physician or physicians unless future medical examinations are deemed unnecessary by the board's physician or physicians. Should any disability retiree refuse to submit to such medical examination(s), his retirement allowance may be suspended; and at the expiration of six (6) months, all his rights in and to a pension, including that portion previously suspended, shall be revoked by the board.

b. Disability retirees shall be subject to periodic reexaminations by the board's physician or physicians to determine if a disability has ceased to exist. Reexaminations shall not be required of a disability retiree more than twice in any calendar year.

(2) Should it appear from a medical examination that a disability retiree is able to return to employment in accordance with the provisions of section 1:470. then his disability allowance shall be discontinued, and he shall be returned to employment; but the disability allowance shall continue until the employee is actually restored to such employment.

(f) *Pension offset by compensation benefits.*

(1) Any amounts that may be paid or payable under the provisions of any worker's compensation statute or similar state law to a member or to the dependents of a member on account of any accidental disability or accidental death, shall, in such manner as the board shall approve, be offset against and payable in lieu of

any pension payable out of funds provided by the employer under the provisions of the retirement system on account of the same accidental disability or on account of death.

(2) The board of trustees shall have complete discretion and authority to determine the extent and application of the provisions of this section and shall have authority to terminate the pension if the employee fails to famish fall and complete information. The decision of the board shall be final and conclusive.

(g) *Pension offset by earned income.*

(1) The provisions of this subsection shall apply to disability retirees whose application for disability was filed with the retirement system after April 30, 2004.

(2) All disability retirees shall submit to the board by May 1 of each year a notarized annual earnings statement disclosing earned income from all employment in the prior calendar year. Should a disability retiree fail to submit the required statement, his disability retirement allowance shall be suspended, without retroactive disbursement, until such time as the earnings statement is filed. In the event the disability retiree fails to submit the required statement before the end of the calendar year, his disability retirement allowance may be permanently revoked by the board. The board shall have the authority to audit the required statement, including additional requirements to submit the retiree's federal income tax return and reporting documents associated therewith, and any other information required in the discretion of the board.

(3) Should the board determine that a disability retiree is engaged in gainful employment earning more than the difference between his gross disability retirement allowance and average compensation, then the amount of the disability retirement allowance shall be reduced one dollar ($1.00) for each dollar earned in excess of any such difference. This offset shall be computed independently for each calendar year.

(4) A disability retiree whose application for disability was filed with the retirement system on or before April 30, 2004 may elect at any time, in writing, to voluntarily subject himself to the provisions of this subsection, and as a consequence, reexaminations for that disability retiree shall be governed by subsection (e)(1)b. in lieu of subsection (e)(1)a.

(h) *Honorable service.* For a member hired, rehired, or elected on or after January 1, 2013, the receipt of a public retirement benefit is conditioned upon honorable service as a public official or employee, and retirement benefits of a member, spouse, and child(ren) may be forfeited if the employee is convicted of a public corruption crime under the provisions of Louisiana Legislative Acts 479 and 868 of the 2012 regular session of the Louisiana legislature.
(Ord. No. 18720, 12-14-22; Ord. No. 19677, § 1, 11-25-25)

Sec. 1:266. Part-time council members.

(a) Retirement allowances shall be provided for part-time metropolitan council members, or any predecessor council members, retroactive to December 31, 1976, in the following manner:

(1) Fifty (50) percent retirement allowance accrued after attaining eight (8) years of service and age fifty-five (55);

(2) Seventy-five (75) percent retirement allowance accrued after attaining twelve (12) years of service and age fifty-five (55);

(3) Ninety (90) percent retirement allowance accrued after attaining sixteen (16) years of service and age fifty-five (55).

(b) If a metropolitan council member becomes employed in a full-time position eligible for membership under this part, he shall be eligible for the benefits provided under the pension plan for members who are not part-time council members, and shall no longer be eligible for the benefits provided for in subsection (a) of this section.

(c) Council members retain eligibility for all benefits provided under the pension plan for members who are not part-time council members if greater than those provided for in subsection (a) of this section.

(d) The retirement allowances provided for by this section shall not be applicable to any person who first serves as a part-time council member on or after January 1, 1997.
(Ord. No. 18720, 12-14-22)

Sec. 1:267. Accumulated contributions following termination of employment—General.

(a) Whenever a member terminates employment, but does not retire, he shall be entitled, upon demand, to receive from the pension plan a sum equal to his accumulated contributions without interest.

(b) Under such regulations as may be prescribed by the board, a member who terminates employment and has not completed at least ten (10) years of creditable service, may, for not more than five (5) years after his termination of employment, leave his accumulated contributions on deposit with the pension plan, thereby retaining his creditable service. If he dies while his contributions are on deposit, and he has not returned to service, an amount equal to such contributions shall be paid without interest to his designated beneficiary or beneficiaries, if any, or otherwise to his estate.

(c) Purchase of service credit.

(1) A member who has an amount equal to his accumulated contributions refunded to him by the pension plan, who then re-enters service, may repay, under such regulations as may be prescribed by the board, the amount previously received by him as a refund, together with interest from date of refund to date of commencement of repayment. Upon such payment, the creditable service relative to the refund shall be restored.

(2) Effective January 1, 2002, purchase of service credit under this section shall be allowed by a trustee-to-trustee transfer of funds from a code section 403(b) annuity or a code section 457 plan to the pension plan; provided that no purchase of service credit under this section shall be allowed by a trustee-to-trustee transfer of funds from a code section 403(b) annuity or a code section 457 plan to the pension plan after December 31, 2010.

(d) A member shall not be charged interest from the date of commencement of the refund repayment, provided he repays at a rate of at least fifty dollars ($50.00) per pay period for a period not to exceed four (4) years, and further provided that the four (4) year repayment is in equal installments that result in no more than one-third (⅓) of the beginning repayment balance remaining due after such four (4) year period. Any amount that remains unpaid at the end of the four (4) year period shall be paid with interest at the assumed actuarial investment rate of return in equal installments over the immediately following two (2) year period. If the member, prior to completing the repayment, dies, his surviving spouse shall have the option to complete the repayment, under the same terms as were set for the member, and receive benefits on account of the restored credit, once paid in full. If the entire refund repayment and any required interest is not made in accordance with this subsection, any amounts that have been paid shall be returned to the member or surviving spouse and no service credit shall be allowed for the original period of the member's employment; and the member or surviving spouse shall not be allowed to repay the contributions refunded unless payment is made in one (1) lump sum representing the refund plus interest.

(e) Notwithstanding any provisions to the contrary contained in subsection (c) of this section, but otherwise in accordance therewith, whenever a member who terminates employment as the result of a reduction in force, as referenced in section 4 of rule X of the Rules Governing Employees in the Classified Service of the City of Baton Rouge and Parish of East Baton Rouge, is re-employed, he may repay an amount previously received by him as a refund, without any interest being due for the period of

time commencing with the date the refund was made and terminating one (1) year after the date of re-employment.

(f) Whenever a contributing member dies, and benefits under subsection 1:270(a), (b), (c), or (d), are paid to a surviving spouse, minor child, or unmarried dependent parent of the member, his accumulated contributions shall be paid to his designated beneficiary or beneficiaries, if any, or otherwise to his estate, but only to the extent that contributions remain after the payment of such benefits.

(g) Whenever a contributing member dies and a refund of the member's contributions is paid to a surviving spouse under subsection 1:270(a) or (b), no refund of member contributions shall be paid to any designated beneficiary or beneficiaries.
(Ord. No. 18720, 12-14-22)

Sec. 1:268. Accumulated contributions following termination of employment—Vested non-members.

(a) Except as provided by subsection (d) of this section, whenever a member who has completed at least ten (10) years of creditable service terminates employment, but does not retire, he may leave his accumulated contributions on deposit with the pension plan, and any service certificate issued to him shall remain in effect.

(b) A member who participates in the pension plan and who leaves his accumulated contributions on deposit as allowed by subsection (a) of this section, and whose date of hire is prior to September 1, 2015, shall be eligible to receive a benefit when he attains the age of fifty-five (55) years. For a member whose date of hire is on or after September 1, 2015, he shall be eligible to receive a benefit when he attains the age of sixty (60) years for a non-public safety employee, or fifty-five (55) years for a public safety employee. The retirement allowance shall be the benefit earned and accrued at the date of withdrawal from service.

(c) An amount equal to the accumulated contributions of a member who leaves such contributions on deposit in the pension plan and who dies prior to eligibility for retirement shall be paid to his designated beneficiary or beneficiaries, if any, otherwise to his estate.

(d) The provisions of subsection (a) of this section shall be inapplicable with respect to a member who is dismissed from service because of conviction of a felony in the performance of his official duties. For a member hired, rehired, or elected on or after January 1, 2013, the receipt of a public retirement benefit is conditioned upon honorable service as a public official or employee, and retirement benefits of a member, spouse, and child(ren) may be forfeited if the employee is convicted of a public corruption crime under the provisions of Louisiana Legislative Acts 479 and 868 of the 2012 regular session of the Louisiana legislature.
(Ord. No. 18720, 12-14-22)

Sec. 1:269. Retirement benefit adjustments.

(a) Except as excluded by the provisions of subsections (b) and (c) of this section, and subsection 1:270(h) of this subpart, during July of each year, any person who has, on July 1 of that year, been receiving benefits from this pension plan, as a retiree of this pension plan, or as a surviving spouse of a retiree of this pension plan in an individual capacity, for at least one (1) year, shall receive a lump-sum retirement benefit adjustment payment from this pension plan. This payment shall be in a base amount of six hundred dollars ($600.00) annually, effective July 1, 1992. Also, for each additional year beyond one (1) year for which the person has been receiving benefits from this system on July 1 of that year, the base amount shall be increased by thirty dollars ($30.00). The payments originally provided for hereby were initiated in July, 1989.

(b) The provisions of this section shall be inapplicable with respect to any person receiving benefits from this system if the person whose membership resulting in the benefits being paid participates or participated in the deferred retirement option plan of the pension plan.

(c) The provisions of this section shall be inapplicable relative to any person who retired from this system after December 31, 1989.
(Ord. No. 18720, 12-14-22)

Sec. 1:269.1. Supplemental benefit payments.

(a) The board of trustees is authorized to use actuarial returns on retirement system assets in excess of the assumed actuarial rate of return, as determined by the retirement system actuary, and certain payments formerly made under section 1:269, and payments received by the retirement system under R.S. 11:1862(B)(3) commencing in 2006, for the purpose of providing certain eligible retirees and survivors of retirees with a lump sum supplemental benefit payment, to be paid in September if declared payable in June, subject to the requirements of this section.

(1) The benefits authorized by this section may be reserved under one (1) or more of the following circumstances:

a. One-tenth (1/10) of up to the first two (2) percent of actuarial returns in excess of the assumed actuarial rate of return for any calendar year, provided the aggregate experience of the retirement system is positive as certified in the applicable actuarial report.

b. One-twentieth (1/20) of actuarial returns above the first two (2) percent in excess of the assumed actuarial rate of return for any calendar year, provided the aggregate experience of the retirement system is positive as certified in the applicable actuarial report.

c. The difference between the payments made under section 1:269 in July of each calendar year and the payments made under section 1:269 in July, 2002.

d. The payment received by the retirement system under R.S. 11:1862(B)(3) commencing in 2006.

(2) The benefits authorized by this section may be paid only when the board of trustees in its discretion determines that a supplemental benefit payment be declared from the reserve established herein, and any payments made in a prior year or years are not guaranteed by either the amount paid, or the formulation utilized to compute such payments.

(b) The board of trustees shall adopt such rules, regulations, and procedures as it may deem necessary to effect the provisions of this section.

(c) A retiree, or his survivor, shall have been retired for at least one (1) year as of June 30 of the calendar year in which a supplemental benefit payment is declared in order to be eligible. Eligibility shall not guarantee payment, and is dependent on the formulation utilized to compute such payments.

(d) Any supplemental benefit payment declared by formal action of the board of trustees as authorized herein shall be considered as an amendment to the provisions of the retirement system.

(e) Funds reserved as authorized by this section shall be held for the exclusive purpose of payment of the benefits provided herein.
(Ord. No. 18720, 12-14-22)

Sec. 1:270. Survivor benefits.

(a) Whenever a contributing member who either is eligible for retirement, or has at least twenty (20) years of creditable service, dies prior to retirement, or prior to the effective date of an election to participate in the deferred retirement option plan, and who is survived by a spouse to whom the member was legally married immediately prior to the death of the member, the surviving spouse shall, at the surviving spouse's election—the election to be designated in writing and notarized either receive benefits under subsection 1:265(c) as if the member had elected a one hundred (100) percent joint and survivor option and retired on his date of death, with no adjustment for commencement before age fifty-five (55) for non-public safety employees, or age fifty (50) for public safety employees, or receive a refund of the member's contributions without interest.

(b) Whenever a contributing member dies on or after May 24, 1989, and the provisions of subsection (a) of this section are inapplicable, a surviving spouse who was legally married to the member immediately prior to his death shall either receive the sum of six hundred dollars ($600.00) per month for as long as, and providing that, the surviving spouse does not remarry, or receive a refund of the member's contributions without interest; provided, however, that the surviving spouse of a contributing member who died prior to May 24, 1989, shall receive, effective July 1, 2002, an increase from two hundred fifty dollars ($250.00) to six hundred dollars ($600.00) per month for as long as, and providing that, the surviving spouse does not remarry.

(c) If a contributing member is survived by one (1) or two (2) children who are under the age of eighteen (18), the sum of one hundred fifty dollars ($150.00) per month shall be paid on behalf of each child until the child reaches the age of eighteen (18) years. If the member is survived by more than two (2) such children, the sum of three hundred dollars ($300.00) per month shall be paid on their behalf equally among them for so long as benefits are being paid on behalf of more than two (2) children, the payments to become the sum of one hundred fifty ($150.00) per month per child whenever payments cease to be paid on behalf of more than two (2) such children.

(d) If neither subsection (a) nor (b), nor subsection (c), of this section is applicable, but a contributing member is survived by an unmarried parent claimed as a dependent on the member's last federal income tax return, the unmarried parent, for so long as, and providing that, the parent does not remarry, shall be paid the sum of one hundred fifty dollars ($150.00) per month.

(e) The refund option provided for in subsection (a) or (b) of this section shall be limited to that amount that remains after the payment of minor child or unmarried dependent parent benefits, if any, under subsections (c) or (d) of this section.

(f) Whenever a service retiree, whose date of hire on which his retirement was based was prior to September 1, 2015, dies leaving a surviving spouse to whom the service retiree was legally married for at least two (2) years immediately prior to death, the surviving spouse shall be entitled, for life, to a monthly benefit equal to fifty (50) percent of the monthly benefit that was being paid to the service retiree; provided, however, that a surviving spouse to whom the service retiree was legally married immediately prior to his death shall be entitled to the benefit provided for under this subsection if the surviving spouse was legally married to the service retiree on his date of service retirement. The provisions of this subsection shall be inapplicable with respect to any former regular plan service retiree who retired prior to July 1, 1972, and with respect to any former police or fire service plan retiree who retired prior to January 1, 1974, and with respect to any service retiree whose date of hire on which his retirement was based was on or after September 1, 2015.

(g) Whenever a member, whose date of hire on which his deferred retirement was based was prior to September 1, 2015, and who has participated in the deferred retirement option plan, but has not retired, dies, leaving a surviving spouse to whom the member was legally married for at least (2) years immediately prior to death, the surviving spouse shall be entitled, for life, to a monthly benefit equal to fifty (50) percent of the monthly benefit that was being credited to the member's DROP account; provided, however, that a surviving spouse to whom the member was legally married immediately prior to his death shall be entitled to the benefit provided for under this subsection if the surviving spouse was legally married to the member on the effective date of his DROP participation. The provisions of this subsection shall be inapplicable with respect to any member participating in the deferred retirement option plan whose date of hire on which his deferred retirement was based was on or after September 1, 2015.

(h) Whenever a service-connected disability retiree, whose date of hire on which his retirement was based was prior to September 1, 2015, dies leaving a surviving spouse to whom the

service-connected disability retiree was legally married for at least two (2) years immediately prior to death, the surviving spouse shall be entitled, for life, to a monthly benefit equal to fifty (50) percent of the monthly benefit that was being paid to the service-connected disability retiree; provided, however, that a surviving spouse to whom the service-connected disability retiree was legally married immediately prior to his death shall be entitled to the benefit provided for under this subsection if the surviving spouse was legally married to the service-connected disability retiree on his date of service-connected disability retirement. Retirement benefit adjustments provided under section 1:269 shall be inapplicable with respect to a surviving spouse receiving benefits under this subsection. The provisions of this subsection shall be inapplicable with respect to any former regular plan service-connected disability retiree who retired prior to July 1, 1972, and with respect to any former police or fire plan service-connected disability retiree who retired prior to January 1, 1974, and with respect to any service-connected disability retiree whose date of hire on which his retirement was based was on or after September 1, 2015.
(Ord. No. 18720, 12-14-22)

Sec. 1:271. Deferred retirement option plan.

(a) *Establishment; applicability; purpose; citation.*

(1) As governed by the provisions of this section, there exists, as a part of this pension plan, an optional account known as the deferred retirement option plan.

(2) The provisions of this section are somewhat different with respect to those otherwise eligible members of the retirement system whose election to participate in the deferred retirement option plan occurred before July 1, 1991, than for those whose election occurred on or after July 1, 1991.

(3) The purpose of the DROP is to allow, contractually, in lieu of immediate termination of employment and receipt of a service retirement allowance, continued employment for a specified period of time, coupled with the deferral of receipt of retirement benefits until the end of such specified period of participation, at which time employment is to terminate.

(b) *Eligibility for participation; limitations.*

(1) Participation in the DROP is an option available to any member of this pension plan as follows:

a. For members whose date of hire was prior to September 1, 2015:

1. Has not less than twenty-five (25) nor more than thirty (30) years of creditable service at any age; or

2. Effective July 1, 2002, has not less than ten (10) years of creditable service and has reached the age of fifty-five (55) years.

b. For members whose date of hire was on or after September 1, 2015:

1. Has not less than twenty-five (25) years of creditable service at fifty-five (55) years of age for non-public safety employees, or at fifty (50) years of age for public safety employees; or

2. Has not less than ten (10) years of creditable service at sixty (60) years of age for non-public safety employees, or at fifty-five (55) years of age for public safety employees.

c. Applications for DROP participation must be filed with the retirement system not less than thirty (30) nor more than ninety (90) days before the effective date of DROP participation.

(2) For purposes of this subsection, creditable service shall not include service in another retirement system which is

reciprocally recognized by this retirement system under authority of state law (R.S. 11:142, as amended).

(3) For members whose date of hire was prior to September 1, 2015, the election to participate in the DROP, under the provisions of either subsection (b)(1)a. or b., shall be exercised prior to the applicant's attaining thirty (30) years of creditable service, or the option to so participate is forfeited.

For members whose date of hire was on or after September 1, 2015, the election to participate in the DROP, under the provisions of subsection (b)(1)a., shall be exercised prior to the applicant's attaining thirty-three (33) years of creditable service, or the option to so participate is forfeited, except that members who do not reach the minimum required retirement age, as provided in subsection (b)(1) must exercise the option to participate in the DROP no later than sixty (60) days following the attainment of fifty-five (55) years of age for non-public safety employees, or fifty (50) years of age for public safety employees, in order to participate the full five (5) years. The election to participate in the DROP, under the provisions of subsection (b)(1)b. shall be exercised prior to the applicant's attaining thirty (30) years of creditable service, or the option to so participate is forfeited.

(4) A member shall participate in the DROP only once, except as provided in subsection (b)(6) of this section.

(5) For a member whose date of hire was prior to September 1, 2015, and who has not less than twenty-five (25) nor more than thirty (30) years of creditable service at any age, the duration of participation in the DROP shall be for a specific period, which shall not exceed either of the following:

a. Five (5) years.

b. A number of years which, when added to the number of years of creditable service for which the member has credit in this pension plan, equals thirty-two (32).

For a member whose date of hire was on or after September 1, 2015, and who has not less than twenty-five (25) nor more than thirty-three (33) years of creditable service, the duration of participation in the DROP shall be for a specific period, which shall not exceed:

1. Five (5) years; or

2. A number of years which, when added to the number of years of creditable service for which the member has credit in this pension plan, equals thirty-five (35); or

3. For members who are not eligible to participate in DROP at thirty (30) years of service because of age, a number of years representing the difference between:

(i) The member's earliest date to participate in DROP (defined as the no more than sixty (60) days following attainment of age fifty-five (55) for non-public safety employees, or age fifty (50) for public safety employees) plus five (5) years; and

(ii) The effective date of election to participate in DROP, provided this difference equals at least two (2) years.

The duration of participation in the DROP for a member whose date of hire is prior to September 1, 2015, and who has not less than ten (10) years of creditable service and has reached the age of fifty-five (55) years shall be for a specific period, which shall not exceed three (3) years. The duration of participation in the DROP for a member whose date of

hire was on or after September 1, 2015, and who has not less than ten (10) years of creditable service, and has reached the age of sixty (60) for nonpublic safety employees or the age of fifty-five (55) for public safety employees shall be for a specific period, which shall not exceed three (3) years.

(6) Should the participation period be interrupted by termination of employment for any reason, upon re-establishment of membership, provided the member has not received any distributions from his DROP account not based on his life expectancy, the member shall be immediately eligible for resumption of participation for the balance of the maximum period or the balance of his original DROP participation period, if any.

(7) Any member whose election to participate in the DROP occurs on or after July 1, 1991, shall contractually agree with the retirement system to be bound by the provisions of this section. The member shall specifically agree in such contract to terminate employment at the end of the specified period of participation, and shall specifically agree to the results stipulated for failure to abide by such terms of the contract. Prior to sixty (60) days before the end of the specified period of participation, the board shall give notice of same, by United States Postal Mail, to the member.

(c) *Conditions of participation; effects.*

(1) Upon commencement of participation in the DROP, although the participant shall remain a member of this pension plan, neither member nor employer contributions shall thenceforth be payable, even if an election was made to continue employment following the specified period of participation as was permitted for members whose election to participate was made before July 1, 1991. However, employer contributions shall be payable on the earned compensation of employees entering DROP as of the effective date of the 2022 payroll amendments and shall continue until termination of employment. Employee contributions shall not be payable if the member violates the terms of any contract to terminate employment at the end of the specified period of participation. No additional service credit or additional benefits shall be earned.

(2) Upon commencement of participation, the service retirement allowance that would have been payable to the member had the member elected to terminate employment and receive a service retirement allowance, shall be paid into the DROP account in lieu of being paid to the member.

(3) The DROP account shall not earn interest or be credited with interest during the specified period of participation. However, a percentage rate shall be determined annually, not later than December 31, in the manner set forth in this subsection, and DROP interest shall be computed as a derivative of this rate.

a. The percentage rate from which DROP interest is computed will be certified by the retirement system actuary in accordance with a calculation averaging five (5) years of market rates of return, compounded quarterly, on retirement system investments. Each five (5) year period shall end on September 30, with the percentage rate so certified being applicable for the twelve (12) month period beginning on January 1 of the following calendar year, computed one (1) year in arrears. Provided, however, that the percentage rate certified by the actuary for the period from July 1, 1996 to December 31, 1997, shall be computed using market rates of return, compounded quarterly, for the period from April 1, 1991 through September 30, 1996, said rate to be determined not later than December 31, 1997.

b. The DROP interest rate that is credited to individual accounts before January 1, 2005 shall be calculated in accordance with subsection (c)(3)b.1. of this section; and on or after January 1, 2005 shall be calculated in accordance with subsection (c)(3)b.2. of this section.

1. The DROP interest rate that is credited to individual accounts shall be either a long-term or a short-term earnings rate. The long-term rate shall be equal to the percentage rate as certified by the actuary, less one (1) annual percentage point (one hundred (100) basis points); whereas the short-term rate shall be equal to the percentage rate as certified by the actuary, less two (2) annual percentage points (two hundred (200) basis points);

The long-term rate applies to all DROP accounts during the member's specified period of participation, on accounts after the specified period of participation when amounts withdrawn during the remainder of the first annual period, or any subsequent annual period, do not exceed twenty (20) percent of the balance at the beginning of such an annual period, and to all accounts with beginning of period balances of ten thousand dollars ($10,000.00) or less. The short-term rate applies to all DROP accounts after the member's specified period of participation when amounts withdrawn during the remainder of the first annual period, or any subsequent annual period, exceed twenty (20) percent of the balance at the beginning of such an annual period.

2. The DROP interest rate that is credited to individual accounts shall be equal to the percentage rate as certified by the actuary, less one (1) annual percentage point (one hundred (100) basis points).

c. The method of computation of the percentage rate from which DROP interest is derived, as set forth in this subsection, and the manner of monthly compounding of DROP interest on a nominal basis of computation, shall be used, unless the metropolitan council establishes an alternative method of determining the rate or of compounding DROP interest, and the metropolitan council enacts by ordinance such an alternative method.

(4) The board of trustees shall have the authority to develop and implement rules and procedures to carry out the intent of this subsection.

(5) Interest shall be credited to the DROP account of a member whose election to participate in the DROP occurred before July 1, 1991, and paid in the same manner as the principal of his account.

(6) If the member's election occurred on or after July 1, 1991, the following procedures apply:

a. If the member dies, or terminates employment during or at the end of the specified period of participation as contractually agreed, a sum equal to the amount the individual account would have earned, if interest, as compounded, had been applicable to such account, shall be added to the account. Such interest and manner of compounding shall be equal to the interest and compounding in effect for the same period of time.

b. If the member does not abide by the terms of the contract and does not terminate employment at the end of the period of participation as

contractually agreed, payments into the DROP account shall cease and the member shall receive a distribution representing a lump-sum payment (either directly or as a rollover to another qualified retirement plan) from the member's individual account in the DROP equal to its balance, without the addition of any sum representing interest, and such member's account shall be terminated only at the earlier of the member's actual termination of employment or attaining age fifty-nine and one-half (59½). Such member's individual account shall not earn interest. However, if that member had signed a DROP contract and entered DROP prior to the effective date of this ordinance amendment, then payments into the DROP account shall cease and the member shall immediately receive a distribution representing a lump-sum payment (either directly or as a rollover to another qualified retirement plan) from the member's individual account in the DROP equal to its balance, without the addition of any sum representing interest, and such member's account shall be terminated. In either case, such member shall not be considered retired, but shall remain as a member of the pension plan. Only upon actual termination of employment shall the member be considered a retiree and entitled to the receipt of retirement benefits.

(7) This account shall not be subject to any fees or charges of any kind for any purpose, except as otherwise provided in this subsection.

(d) *Termination of participation.*

(1) If the member remains an employee for the specified period of participation in the DROP and then immediately thereafter terminates employment, the member shall become a retiree and shall receive, at the retiree's option, any one (1) of the following:

a. A lump-sum distribution from the retiree's individual account in the DROP equal to its balance, provided that such lump-sum distribution must be received prior to the retiree's receiving his first regular pension.

b. A method of distribution based on life expectancy.

c. Any other method of distribution as approved by the board of trustees.

The payments that were being made into the DROP account in lieu of a retirement allowance shall thenceforth be paid to the retiree.

(2) If the member terminates employment prior to the end of the specified period of participation, the member shall immediately become a retiree and shall receive, at the retiree's option, any one (1) of the following:

a. A lump-sum distribution from the retiree's individual account in the DROP equal to its balance, provided that such lump-sum distribution must be received prior to the retiree's receiving his first regular pension.

b. A method of distribution based on life expectancy.

c. Any other method of distribution as approved by the board of trustees.

The payments that were being made into the DROP account in lieu of a retirement allowance shall thenceforth be paid to the retiree.

(3) If the member dies during the period of participation or after the end of the period of participation, but before total distribution of his DROP account, and the member's named beneficiary is the member's surviving spouse to whom the member was legally married at the time of the member's death, the surviving

spouse shall receive, at the surviving spouse's option, any one (1) of the following:

a. A lump-sum distribution from the retiree's individual account in the DROP equal to its balance.

b. A method of distribution based on life expectancy.

c. Any other method of distribution as approved by the board of trustees.

(4) If the member dies during the period of participation, or after the end of the period of participation, but before total distribution of his DROP account, and the member's named beneficiary is someone other than the member's surviving spouse to whom the member was legally married at the time of the member's death, the named beneficiary shall receive a lump-sum payment equal to the member's individual account balance in the DROP account.

(5) If the member dies during the period of participation and a beneficiary was not named, the member's estate shall receive a lump-sum payment equal to the member's individual account balance in the DROP account.

(6) If, at the end of the specified period of participation, a member who has not contractually agreed to retire at such time does not terminate employment, retirement system membership shall continue, and payments into the DROP account shall immediately cease. Such member's individual account shall not continue to earn interest until the member has terminated employment. No funds shall be payable from the account so long as the member's employment is not terminated. Upon termination of employment, the member shall immediately become a retiree and shall receive, at the retiree's option, any one (1) of the following:

a. A lump-sum distribution from the retiree's individual account in the DROP equal to its balance, provided that such lump-sum distribution must be received prior to the retiree's receiving his first regular pension.

b. A method of distribution based on life expectancy.

c. Any other method of distribution as approved by the board of trustees.

The payments that were being made during the period of participation into the DROP account in lieu of a retirement allowance shall thenceforth be paid to the retiree.

(7) If, at the end of the specified period of participation, a member who has not contractually agreed to retire at that time does not terminate employment and then dies while still employed, and the member's named beneficiary is the member's surviving spouse to whom the member was legally married at the time of the member's death, the surviving spouse shall receive, at the surviving spouse's option, any one (1) of the following:

a. A lump-sum distribution from the retiree's individual account in the DROP equal to its balance.

b. A method of distribution based on life expectancy.

c. Any other method of distribution as approved by the board of trustees.

(8) If at the end of the specified period of participation, a member who has not contractually agreed to retire at that time does not terminate employment and then dies while still employed, and the member's beneficiary is someone other than the member's surviving spouse to whom the member was legally married at the time of the member's death, the named beneficiary shall receive a lump-sum payment equal to the member's individual account balance in the DROP account.

(9) If at the end of the specified period of participation, a member who has not

contractually agreed to retire at that time does not terminate employment and then dies, and a beneficiary was not named, the member's estate shall receive a lump-sum payment equal to the member's individual account balance in the DROP account.

(10) In any situation under subsections (c) or (d) in which a distribution is allowed or required, a rollover shall be permitted if the distribution qualifies for one under the Internal Revenue Code and its applicable regulations.

(Ord. No. 18720, 12-14-22; Ord. No. 19677, § 1, 11-25-25)

Sec. 1:271.1. Supplemental funding of drop accounts; member not subject to early distribution penalty on date of retirement.

(a) Eligibility for the application of this section is limited to those members who have participated in DROP and are not subject to penalty on early distributions from qualified plans under section 72(t) of the Internal Revenue Code on date of retirement.

(b) In addition to funding deferred retirement option plan (DROP) accounts pursuant to section 1:271, those members eligible under subsection A of this section shall be required to have:

(1) Any severance pay or compensatory time payable by an employer funded directly to the retirement system for credit to the eligible member's account; and/or

(2) Any separation benefits payable by the retirement system funded directly to the eligible member's account, all funding to occur immediately upon termination of employment.

(c) Limitations relative to vacation time, sick leave, or compensatory time as allowed by the city-parish shall be used for purposes of this section in those cases where limitations for an employer are greater than those of the city-parish. In such cases, the employer shall certify compliance with the applicable city-parish limitations.

(d) This section shall not apply to a member who:

(1) Elects funding of amounts payable under this section to an eligible deferred compensation plan; or

(2) Is subject to a community property settlement or court order which is dispositive of any amounts payable under this section.

(e) The administration of this section shall be subject to any provision of the Internal Revenue Code which would mandate limitation on its operation.

(f) The provisions of this section shall be effective May 1, 2001.
(Ord. No. 18720, 12-14-22)

Sec. 1:271.2. Supplemental funding of DROP accounts; member subject to early distribution penalty on contracted date of retirement.

(a) Eligibility for the application of this section is limited to those members who are electing participation in DROP and are scheduled to be subject to penalty on early distributions from qualified plans under section 72(t) of the Internal Revenue Code on the contracted date of retirement.

(b) In addition to funding deferred retirement option plan (DROP) accounts pursuant to section 1:271, those members eligible under subsection A of this section shall have the option, to be made not less than thirty (30) days nor more than ninety (90) days prior to termination of employment, to irrevocably contract to have:

(1) Any severance pay or compensatory time payable by an employer funded directly to the retirement system for credit to the eligible member's account; and/or

(2) Any separation benefits payable by the retirement system funded directly to the eligible member's account, all funding to occur immediately upon termination of employment.

(c) If a member who has contracted amounts payable under this section into his DROP account dies prior to termination of employment, the election shall be voidable at the option of the member's named beneficiary. In the event multiple beneficiaries have been designated, all must agree on the disposition of the affected funds, or the election shall be void.

(d) Limitations relative to vacation time, sick leave, or compensatory time as allowed by the city-parish shall be used for purposes of this section in those cases where limitations for an employer are greater than those of the city-parish. In such cases, the employer shall certify compliance with the applicable city-parish limitations.

(e) This section shall not apply to a member who:

(1) Elects funding of amounts payable under this section to an eligible deferred compensation plan; or

(2) Is subject to a community property settlement or court order which is dispositive of any amounts payable under this section.

(f) The administration of this section shall be subject to any provision of the Internal Revenue Code which would mandate limitation on its operation.

(g) The provisions of this section shall be effective May 1, 2001.
(Ord. No. 18720, 12-14-22)

Sec. 1:272. Limits on benefits.

A member of the pension system may not accrue a retirement pension, or any other benefit under this subpart, in excess of the benefit limits applicable to this pension plan under section 415 of the Internal Revenue Code. The board shall reduce the amount of any benefit that exceeds those limits by the amount of the excess. If total

benefits under this pension plan and the benefits and contributions to which any member is entitled under any other qualified plans maintained by the employer would otherwise exceed the applicable limits under section 415 of the Internal Revenue Code, the benefits the member would otherwise receive from this pension plan shall be reduced to the extent necessary to enable the benefits to comply with section 415. The limits shall be adjusted annually in accordance with section 415(d) of the Internal Revenue Code. The annual adjustment shall apply to the benefits of both active and terminated members and shall apply without regard to whether a terminated member is receiving retirement benefits.

The total salary taken into account for any purpose for any member of the pension system may not exceed the dollar limit imposed pursuant to section 401(a)(17) of the Internal Revenue Code for any year for an eligible participant, or an ineligible participant, as applicable. These dollar limits shall be adjusted from time to time in accordance with guidelines provided by the United States Secretary of the Treasury. For purposes of this subsection, an eligible participant is a person who first became an active member before 1996, and an ineligible participant is a member who is not an eligible participant.
(Ord. No. 18720, 12-14-22)

Sec. 1:273. Direct rollover of eligible rollover distributions.

(a) This section applies to distributions made on or after January 1, 1993. Notwithstanding any provision of this subpart to the contrary that would otherwise limit a distributee's election under this section, a distributee may elect, at the time and in the manner prescribed by the plan administrator, to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

If a distributee should receive an eligible rollover distribution that exceeds one thousand dollars ($1,000.00) and fails to elect whether the distribution shall be received directly by the distributee or rolled over into an eligible retirement plan, the distribution shall be rolled over into an individual retirement account or individual retirement annuity.

(b) Definitions. In this section;

(1) Eligible rollover distribution means any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include:

a. Any distribution that is one (1) of a series of substantially equal periodic payments (not less frequently than annually) made for the life or life expectancy of the distributee or the joint lives or joint life expectancies of the distributee and the distributee's designated beneficiary or for a specified period of ten (10) years or more;

b. Any distribution to the extent such distribution is required under section 401(a)(9) of the Internal Revenue Code; or

c. Any distribution that is made upon hardship of the employee.

(2) Eligible retirement plan means an individual retirement account described in section 408(a) of the Internal Revenue Code, an individual retirement annuity described in section 408(b) of the Internal Revenue Code, an annuity plan described in section 403(a) of the Internal Revenue Code, an eligible deferred compensation plan as defined in section 457(b) that is maintained by an eligible employer described in section 457(e)(1) of the Internal Revenue Code, an annuity contract described in section 403(b) of the Internal Revenue Code, or a qualified trust described in section 401(a) of the Internal Revenue Code, that accepts the distributee's eligible rollover distribution. In the case of an eligible rollover distribution for a designated beneficiary that is not the spouse or a former spouse who is an alternate payee under a qualified domestic relations order, an eligible

retirement plan means only an individual retirement account or individual retirement annuity.

(3) Distributee means an employee or former employee. In addition, the employee or former employee's surviving spouse or designated beneficiary are distributees and the employee or former employee's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in section 414(p) of the Internal Revenue Code, are distributees with regard to the interest of the spouse or former spouse.

(4) Direct rollover means a payment by the plan to the eligible retirement plan specified by the distributee.

(Ord. No. 18720, 12-14-22)

Sec. 1:274. Internal Revenue Code qualification requirements.

(a) *Diversion.* The assets of the pension plan shall be held for the exclusive benefit of the employees who are or become participating members of the pension plan and their survivors and beneficiaries, and of retirees and their survivors and beneficiaries. It shall be impossible for any part of the corpus or income of the pension plan to be used for or diverted to purposes other than the exclusive benefit of such members and retirees, or their survivors or beneficiaries, whether by operation or-natural termination of the plan, by power of revocation or amendment, by the happening of a contingency, by collateral assignment, or by any other means.

(b) *Vesting.* The retirement benefit earned by a member shall be fully vested and nonforfeitable no later than the date he becomes eligible to retire. Benefits of affected members shall also become vested (nonforfeitable) to the extent funded, upon the termination or partial termination of the pension plan or the complete discontinuance of contributions thereunder.

(c) *Forfeitures.* Forfeitures resulting from a termination of employment or a withdrawal of a member's own contributions may not be used to increase benefits to remaining members. This shall not preclude an increase in benefits by amendment to the benefit formula made possible by favorable investment results or for any other reason.

(d) *Latest date for commencement of benefits.* A member's benefits shall be distributed, or commence to be distributed, to the member not later than the date required by section 401(a)(9) of the Internal Revenue Code and the regulations thereunder and any other applicable federal law imposing rules and regulations on commencement of benefits for qualified plans. Distributions to a member and the member's beneficiary shall be made in accordance with section 401(a)(9) of the code, including section 401(a)(9)(D) thereof relating to incidental death benefits, and the regulations thereunder. Except as otherwise provided in this subsection, payments of death benefits to the survivor of a member who dies before any retirement benefits have been paid shall commence no later than one (1) year after the death of the member. Payments on behalf of any deceased member, including lump-sum payments, need not commence within the one-year period if all such payments on behalf of the deceased member are completed within five (5) years after the member's death. Furthermore, if the deceased member's spouse is the sole survivor, benefits to the spouse may begin as late as the date allowed by section 401(a)(9) of the Internal Revenue Code and the regulations thereunder and any other applicable federal law imposing rules and regulations on commencement of benefits for qualified plans. If a member dies after retirement benefits have commenced, benefits must continue to be distributed to the survivor at least as rapidly as provided for under the option elected by the member before his death.

(e) *Limitation on termination of the pension plan.*

(1) In the event of a termination of this pension plan, the benefit of any highly compensated member or former member is limited to a benefit that is nondiscriminatory under section 401(a)(4) of the code. Benefits distributed to any member who was one of the twenty-five (25) most highly compensated active and most highly compensated former

employees of the employer are restricted such that the annual payments are no greater than an amount equal to the payment that would be made on behalf of the member under a single-life annuity that is the actuarial equivalent of the sum of the member's accrued benefit and the member's other benefits under the pension plan.

(2) Subsection (1) above shall not apply if, after payment of the benefit to a member described in that paragraph, the value of plan assets equals or exceeds one hundred ten (110) percent of the value of the current liabilities, as defined in section 412(1)(7) of the code, or if the value of the benefits for a member described in that paragraph is less than one (1) percent of the value of all current liabilities of the plan.

(3) For purposes of this subsection, benefit includes loans in excess of the amount set forth in section 72(p)(2)(A) of the code, any periodic income, any withdrawal values payable to a living member, and any death benefits not provided for by insurance on the member's life.

(Ord. No. 18720, 12-14-22)

Subpart 3. Excess Benefit Plan

Sec. 1:275. Establishment of plan.

There is hereby created a separate, unfunded, non-qualified excess benefit plan containing the terms and provisions set forth in this subpart and intended to be a qualified governmental excess benefit arrangement, as defined in section 415(m)(3) of the code.
(Ord. No. 18720, 12-14-22)

Sec. 1:276. Definitions.

(a) All definitions prescribed in subpart 1 of this part are applicable to the plan created pursuant to this subpart unless a different definition is set forth in this subpart, or the context in which a term is used in this subpart indicates a different meaning than that prescribed in subpart 1.

(b) Maximum benefit shall mean the retirement benefit a member is entitled to receive from the pension plan set forth in subpart 2 or the police guarantee trust set forth in subpart 4 in any month after giving effect to section 1:272 and any similar provisions of any other qualified plan or plans maintained by the employer and designed to conform to section 401 of the code.

(c) Excess benefit participant shall mean any member whose retirement benefit as determined on the basis of all qualified plans without regard to the limitations of section 1:272 and comparable provisions of other qualified plans of the employer would exceed the maximum benefit permitted under section 415 of the code.

(d) Unrestricted benefit shall mean the monthly retirement benefit a member, or the spouse, child, or single dependent parent of a member, would have received under the terms of all qualified plans of the employer, except for the restrictions of section 1:272 and any similar provisions of any other qualified plans designed to conform to section 415 of the code.
(Ord. No. 18720, 12-14-22)

Sec. 1:277. Benefit provided.

(a) An excess benefit participant who is receiving benefits from the pension plan or the police guarantee trust is entitled to a monthly benefit under this excess benefit plan in an amount equal to the lesser of:

(1) The member's unrestricted benefit less the maximum benefit; or

(2) The amount by which the member's monthly benefit from the pension plan or the police guarantee trust has been reduced because of the limitations of section 1:272.

(b) A retirement benefit payable under this excess benefit plan shall be paid in the form and at the time it would have been paid as a monthly pension under the pension plan or the police guarantee trust except for the limitations under section 1:272 and section 415 of the code. Each optional benefit form permitted under this excess benefit plan shall be the actuarial equivalent of each other permitted benefit form.

(c) This plan shall be administered by the board. Except as provided to the contrary by this subpart, the rights, duties, and responsibilities of the board shall be the same for this excess benefit plan as for the pension plan set forth in subpart 2.

(d) The actuary employed by the board is responsible for determining the amount of benefits that may not be provided under the pension plan or the police guarantee trust solely because of the limitations of section 1:272 and section 415 of the code and thus the amount of contributions that will be made to this excess benefit plan rather than to the pension plan.

(e) The actuaries and legal advisors described in subsection 1:253(d) shall also provide advice to the board for this excess benefit plan.
(Ord. No. 18720, 12-14-22)

Sec. 1:278. Contributions.

Contributions may not be accumulated under this excess benefit plan to pay future retirement benefits. Instead, each payment of contributions by the employer that would otherwise be made to the pension plan or the police guarantee trust shall be reduced by the amount determined by the board as necessary to meet the requirements for retirement benefits under this excess benefit plan until the next payment of contributions is expected to be made to the pension plan or the police guarantee trust by the employer. The employer shall then pay to this excess benefit plan, out of the contributions that would otherwise have been made to the pension plan or the police guarantee trust, no later than the fourteenth day before the date of each distribution of monthly retirement benefits is required to be made from this excess benefit plan, the amount necessary to satisfy the obligation to pay monthly retirement benefits under this excess benefit plan. The board shall satisfy the obligation of this excess benefit plan to pay retirement benefits out of the employer contributions so transferred. The employer contributions otherwise required pursuant to subsections 1:253(o) or 1:282(d) and any other qualified plan shall be divided into those contributions required to pay retirement benefits pursuant to this subpart and those contributions paid into and accumulated to pay the maximum benefits required under the qualified plans. Employer contributions made to provide retirement benefits pursuant to this part may not be commingled with the monies of the pension plan or any other qualified plan, nor may this plan ever receive any transfer of assets from the pension plan.
(Ord. No. 18720, 12-14-22)

Subpart 4. Police Guarantee Trust

Sec. 1:280. Establishment of police guarantee trust.

There is hereby established within the retirement system a separate trust governed by the provisions set forth below to hold assets and pay certain retirement benefits to those members who have voluntarily elected a transfer to the Municipal Police Employees' Retirement System of Louisiana. This trust is intended to be a qualified trust within the meaning of section 401(a) of the code and exempt from federal income taxes, and shall always be construed in a manner consistent with insuring its qualification.
(Ord. No. 18720, 12-14-22)

Sec. 1:281. Definitions.

(a) All definitions prescribed in subpart 1 of this part are applicable to the trust created pursuant to this subpart unless a different definition is set forth in this subpart, or the context in which a term is used in this subpart indicates a different meaning than that prescribed in subpart 1.

(b) Eligible police employees shall mean those members of the retirement system, including those members who are participating, or have participated, in the deferred retirement option plan of the retirement system, who voluntarily elected a transfer to the Municipal Police Employees' Retirement System of Louisiana pursuant to R.S. 11:2225(A)(11)(a)(ii).

(c) Guarantee account shall mean that account of an eligible police employee in which shall be accumulated amounts payable under the police guarantee trust.

(d) Guarantee of benefits contract shall mean that agreement executed between the city and the individual eligible police employee, and the spouse of the eligible police employee if legally married, which provides for the retention of certain retirement benefits and rights which the eligible police employee, or his survivors and/or beneficiaries, would have had in the retirement system had the eligible police employee not voluntarily elected a transfer to the Municipal Police Employees' Retirement System of Louisiana, said agreement entitled "Agreement and Guarantee of Retirement Rights and Benefits."

(e) MPERS shall mean the Municipal Police Employees' Retirement System of Louisiana.

(f) Original retirement system trust shall mean that tax-qualified trust established within the retirement system to hold assets and provide the retirement benefits set forth in subpart 2 of this part to members other than eligible police employees.

(g) Police guarantee trust shall mean that trust established within the retirement system by this subpart 4 to hold assets and pay amounts due under the guarantee of benefits contract to eligible police employees, or their survivors and/or beneficiaries.

(h) Transfer agreement shall mean that agreement by which the eligible police employees are transferred from this retirement system to the Municipal Police Employees' Retirement System of Louisiana, and shall provide for payment from the city to the Municipal Police Employees' Retirement System of Louisiana of an amount equal to sixty (60) percent of the accrued liability for all members so transferred.

(i) Transfer date shall mean the 26th day of February, 2000.
(Ord. No. 18720, 12-14-22)

Sec. 1:282. Administration.

(a) The police guarantee trust shall be funded initially by a trust to trust transfer of assets from the original retirement system trust, and funded subsequent to establishment as provided in subsection (d) of this section.

(b) The assets of the police guarantee trust shall be held for the exclusive benefit of eligible police employees, or their survivors and/or beneficiaries, and the assets of the original retirement system trust shall be held for the exclusive benefit of members other than eligible police employees.

(c) The board of trustees of the retirement system shall have fiduciary responsibility over the assets of the police guarantee trust, and the exclusive authority for the investment of those assets. The board shall administer the police guarantee trust in a manner that will assure prompt payment of benefits to the eligible police employee, or his survivor and/or beneficiary. The board shall charge the police guarantee trust for all direct and indirect costs associated with the establishment and administration of that trust.

(d) The city agrees to cause an independent actuarial valuation of the police guarantee trust annually, and to make such contribution, if any, which may be deemed appropriate by such valuation.
(Ord. No. 18720, 12-14-22)

Sec. 1:283. Benefits provided; generally.

(a) An eligible police employee who is receiving benefits from the police guarantee trust is entitled to the difference, if any, where the benefits that would have been payable by the retirement system had the transfer agreement not been executed, calculated in accordance with the benefit provisions of the retirement system in effect on the transfer date, exceed the benefits payable under MPERS, except as specifically provided herein or in the guarantee of benefits contract.

(b) The retirement system service retirement allowance utilized in subsection (a) above shall be the benefit calculated pursuant to subsection 1:265(a).

(c) The service retirement allowance of MPERS utilized in subsection (a) above shall be the actual benefit paid by MPERS, but not less than the actuarial equivalent of the benefit calculated

pursuant to R.S. 11:2224(A), option 3, increased by cost-of-living adjustments authorized by R.S. 11:2225(A)(7).
(Ord. No. 18720, 12-14-22)

Sec. 1:284. Survivor benefits.

(a) Survivor benefits shall be payable from the police guarantee trust only in those circumstances when the eligible police employee has timely elected one (1) of the forms of payment specified as options 2, 2a, 3, or 3a of R.S. 11:2224(A), and then only to the extent of payment to the survivor of such eligible police employee of the difference, if any, where the survivor benefits that would have been payable by the retirement system had the transfer agreement not been executed, calculated in accordance with subsections 1:270(f) or (g) as it was in effect on the transfer date, exceed the benefits payable under R.S. 11:2224(A), option 3, except as specifically provided herein or in the guarantee of benefits contract.

(b) The retirement system survivor benefit utilized in subsection (a) above shall be the benefit calculated pursuant to subsection 1:270(f) or (g).

(c) The survivor benefit of MPERS utilized in subsection (a) above shall be the actual survivor benefit paid by MPERS, but not less than the actuarial equivalent of the benefit calculated pursuant to R.S. 11:2224(A), option 3, increased by cost-of-living adjustments authorized by R.S. 11:2225(A)(7).

(d) Notwithstanding any provision of this section to the contrary, no survivor benefit shall be payable from the police guarantee trust to a surviving spouse who was not legally married to the eligible police employee prior to his commencement of DROP participation or retirement, whichever is earlier.
(Ord. No. 18720, 12-14-22)

Sec. 1:285. Deferred retirement option plan.

(a) Members participating in the deferred retirement option plan on the transfer date.

(1) Any period of participation by an eligible police employee in the DROP of the retirement system prior to the transfer date shall be considered as constituting an equivalent period of participation in the DROP maintained by MPERS.

(2) Any period of participation by an eligible police employee in the DROP of the retirement system prior to the transfer date shall be credited against and deducted from the maximum period of DROP participation allowed in the DROP provisions of MPERS.

(3) In accordance with the above requirements, an eligible police employee participating in the DROP of the retirement system on the transfer date shall continue with such DROP participation as follows:

a. Where the interval of the eligible police employee's participation in the DROP of the retirement system is, on the transfer date, less than three (3) years, such eligible police employee shall:

1. Immediately commence participation in the DROP maintained by MPERS, and shall thereafter participate in MPERS' DROP until such time as the eligible police employee shall have exhausted all eligibility to participate in the DROP maintained by MPERS; and

2. Shall thereafter participate in the DROP of the retirement system, until such time that the eligible police employee has completed the maximum period of DROP participation allowed under the DROP provisions of the retirement system; or

b. Where the interval of the eligible police employee's participation in the DROP of the retirement system is, on the transfer date, equal to or greater than three (3) years, such eligible police employee shall be deemed to have exhausted all eligibil-

ity to participate in the DROP maintained by MPERS and shall continue participation in the DROP of the retirement system until such time that the eligible police employee has completed the maximum period of DROP participation allowed under the DROP provisions of the retirement system.

(b) Members not participating in the deferred retirement option plan on the transfer date.

(1) An eligible police employee eligible to participate in DROP of the retirement system, but not in the DROP maintained by MPERS, who elects to participate in DROP on or after the transfer date, shall be enrolled in the DROP of the retirement system and shall commence participation in the DROP maintained by MPERS on the later to occur of the following dates:

a. The date on which such eligible police employee first becomes eligible for participation in the DROP maintained by MPERS; or

b. The date on which such eligible police employee completes two (2) years of participation in the DROP of the retirement system.

(2) In the event that an eligible police employee does not attain eligibility to participate in the DROP maintained by MPERS prior to completing the maximum period of DROP participation specified under the DROP provisions of the retirement system, the entire five (5) years of DROP participation allowed shall be undertaken solely in the DROP of the retirement system and such eligible police employee shall never participate in the DROP maintained by MPERS.

(3) An eligible police employee eligible to participate both in the DROP of the retirement system and in the DROP maintained by MPERS, who elects to participate in DROP on or after the transfer date, shall be enrolled in the DROP of the retirement system, and shall commence participation in the DROP maintained by MPERS on the date that such eligible police employee completes two (2) years of participation in the DROP of the retirement system.

(c) No provision of this section prohibits an eligible police employee from terminating DROP participation prior to the end of the specified period of participation.

(d) Unused accumulated vacation time and/or sick leave may be used to establish an eligible police employee's eligibility for participation in the DROP of the retirement system in accordance with section 1:262.

(e) An eligible police employee who voluntarily elected a transfer to MPERS shall be credited with interest on DROP funds deposited into his guarantee account as provided herein. The DROP interest rate(s) payable under the police guarantee trust shall be either the long-term or short-term rate computed under subsection 1:271(c)(3), being the identical percentage rate paid under the original retirement system trust for an applicable annual period.

(f) Without regard to whether an eligible police employee participates in the DROP of the retirement system or the DROP maintained by MPERS, the police guarantee trust will credit the guarantee account of an eligible police employee the interest payable on the DROP of the retirement system at all times, and on MPERS DROP until such time as interest becomes payable under the DROP provisions of MPERS, provided that interest would have been payable under the DROP of the retirement system.

(g) The penalty provisions set forth in subsection 1:271(c)(6)b. requiring forfeiture of DROP interest due to continued employment after the specified period of participation shall be continued and maintained in full force and effect as to an eligible police employee transferred into MPERS, and all interest earned on the guarantee account of such an eligible police employee shall be forfeited if employment is not terminated upon the expiration of a maximum five (5) years of total or combined DROP participation.
(Ord. No. 18720, 12-14-22)

Sec. 1:286. Retirement without DROP participation.

Should an eligible police employee elect to retire from the retirement system on or after the transfer date, the police guarantee trust will pay to that retiree, until such time that the retiree is eligible to receive benefits under MPERS, the benefit to which the retiree is otherwise entitled under the retirement system.
(Ord. No. 18720, 12-14-22)

Sec. 1:287. Earned compensation; contributions to police guarantee trust.

Any earned compensation not allowed by MPERS for retirement credit shall be included in the computation of earned compensation for the retirement benefit under this subpart, provided such compensation was included in the computation of earned compensation by the retirement system on the transfer date, and contributions shall be payable to the police guarantee trust at all times on any such compensation by the city and the eligible police employee at the rate of contribution(s) required by subsections 1:253(n) and 1:264(a)(1).
(Ord. No. 18720, 12-14-22)

Sec. 1:288. Retirement system; interrelationship of subparts.

The provisions of subparts 1 and 2 of this part (including, but not limited to sections 1:261, 1:272, 1:273 and 1:274 of subpart 2 which are expressly incorporated herein by reference) are applicable to the trust created pursuant to this subpart, unless the context of such a provision is inconsistent with the purposes for which this police guarantee trust was established.
(Ord. No. 18720, 12-14-22)

PART V. TRAVEL REGULATIONS

Sec. 1:300. Prescribed rules and payments.

The director of finance is hereby authorized to prepare and issue any necessary rules prescribing the details of the policies herein established and any necessary exceptions thereto. In addition, the director of finance shall make payments for travel expenses in accordance with the provisions of this part.
(City Code 1951, Title 1, § 300)

Sec. 1:301. Rate of reimbursement.

Any person who is authorized to use his private automobile or other motor vehicle in the performance of public business in any branch, office or agency of the city-parish government shall be reimbursed at the rate allowed by the Internal Revenue Service for business expense mileage. This sum shall constitute a reimbursement to the owner of the vehicle for its use and for all fuel, oil, depreciation or costs of any type or kind in connection with its use.
(City Code 1951, Title 1, § 301; Ord. No. 8921, § 1, 5-24-89)

Sec. 1:302. Reports required for local travel.

Each employee, officer or other person claiming reimbursement for local travel provided for by section 1:304 must submit a sworn report of such travel to the director of finance. This report must be made on the prescribed travel expense voucher report and should be submitted on a regular basis, which may range from once every month to once within every fiscal year or grant accounting period. However, monthly reports are recommended. Each report must include the following information:

(1) Trips, including point of origin, destination and purpose;

(2) Date of each trip;

(3) Mileage for each day; and

(4) Approval of the division manager or department head authorizing payment for the travel to be charged against his appropriation.

(City Code 1951, Title 1, § 302)

Sec. 1:303. Insurance coverage required.

No authorization shall be granted for use of a private automobile or other motor vehicle unless the vehicle is covered by a policy or policies of the

minimum insurance required by state law for public liability per person, public liability per accident and property damage coverage.
(City Code 1951, Title 1, § 303; Ord. No. 8921, § 2, 5-24-89)

Sec. 1:304. Computation of mileage reimbursement.

(a) When computing the local travel allowance due to an individual for use of a personal automobile, excluding those situations where a fixed monthly allowance is paid, the current authorized reimbursable rate is to be applied. As a general rule, the individual should only be reimbursed for mileage in excess of his daily commuting mileage to and from his normal work site. The individual should not profit nor be penalized for working at alternate work sites on city-parish business.

(b) This rule is especially applicable to situations where the individual does not report directly to his regular work site at the beginning of the day, or returns directly to his residence from a work site other than his regular work site at the end of the day. Specific situations are to be interpreted as follows:

(1) Where the distance between the alternate work site and the individual's residence is less than or equal to the individual's normal commuting distance, no mileage reimbursement is due;

(2) Where the distance between the alternate work site and the individual's residence is greater than the individual's normal commuting distance, the individual will only be reimbursed for the difference in mileage;

(3) All mileage incurred on city-parish business, when the individual leaves from and returns to his regular work site, is reimbursable;

(4) No reimbursement is due on travel to and from lunch.

(c) Therefore, when an individual is on city-parish business, and actually travels a distance greater than his normal daily commuting mileage, he is due reimbursement for the difference between the actual mileage traveled and the normal mileage traveled.
(City Code 1951, Title 1, § 304)

Sec. 1:305. Other travel.

(a) Any employee, officer or other person duly authorized to travel on behalf of any unit, branch or agency of the city-parish government by bus, airplane or otherwise shall be reimbursed the exact cost of such fare or shall be furnished the necessary voucher or tickets to perform such travel. The city-parish shall pay transportation costs, no greater than tourist class air fare, for all individuals traveling. Also the cost of air life insurance at regular premium rates, in an amount not to exceed one hundred fifty thousand dollars ($150,000.00) of coverage, will be reimbursed.

Where travel is made by private automobile and is in excess of two hundred (200) miles round trip, payment shall be the lesser of direct route mileage to the destination at the authorized city-parish rate, or the equivalent tourist class air fare which would otherwise be payable if travel was by air. If travel involves a round trip distance less than two hundred (200) miles, reimbursement shall be made for direct route mileage at the authorized rate.

(b) Where travel distance is greater than one hundred (100) miles round trip from the city-parish and overnight lodging is required, the employee is to be paid a per diem amount not to exceed forty-four dollars ($44.00) to cover all miscellaneous expenses. The individual may be paid a per diem rate less than forty-four dollars ($44.00) at the discretion of the immediate supervisor. If travel distance is greater than one hundred (100) miles round trip and overnight lodging is not required, an individual may be paid a maximum per diem rate of twenty-two dollars ($22.00) at the election of the supervisor. When the travel distance is less than one hundred (100) miles round trip from the city-parish, the individual will not be paid a per diem allowance nor will the city-parish pay for any lodging expense.

Miscellaneous expenses to be covered by a per diem allowance will normally include such costs

as transportation after arriving at the hotel, tips, meals, laundry, personal telephone calls, and room service. Receipts for miscellaneous expenses need not be maintained unless required by the supervisor.

The maximum number of days for which per diem and lodging will be reimbursed without special justification is as follows:

(1) *Per diem:* The number of days the individual was involved in business activities plus two (2) days; and

(2) *Lodging:* The number of days the individual was involved in business activities plus one (1) day.

If an individual chooses to drive an automobile rather than fly, the number of days per diem and lodging which will be reimbursed shall not exceed the number which would have been reimbursed had the travel been made by air.

(c) In addition to the per diem allowances, an individual will be reimbursed for certain other incurred expenses, only if they are properly receipted and documented. These expenses include:

(1) Registration fees for a seminar, conference, etc.;

(2) Hotel or motel accommodations not to exceed a double room rate;

(3) Parking at the hotel or airport and transportation expense while traveling between the airport and hotel;

(4) Mileage expense incurred if personal car is used for travel to and from the airport;

(5) Telephone calls if business related;

(6) Rental vehicle and related expenses if it is the most economical means of providing transportation for business activities and information is submitted to substantiate this fact;

(7) Special expenses specifically authorized by resolution.

(d) The individual is expected to exercise the same care in incurring expenses that a prudent person would exercise if traveling on personal business. Each department or agency head and division managers are responsible for authorizing only such travel allowances as are justified by the specific circumstances of the travel and directly related to business purposes. All rates and expenses which are authorized must not conflict with reimbursable allowances and expenses as stated herein, unless special approval is granted by the director of finance.

(e) For purposes of out-of-parish travel in excess of one hundred (100) miles round trip, the starting point of such travel shall be considered the city-parish governmental building. For travel involving less than one hundred (100) miles round trip, section 1:304 of the local travel rules will apply.
(City Code 1951, Title 1, § 305; Ord. No. 8921, § 3, 5-24-89)

Sec. 1:306. Reports required for other travel.

Each person performing travel provided for by section 1:305 shall execute a travel expense voucher report as prescribed by the director of finance. A separate report must be submitted for each trip and must be sworn to by the person who performed the travel. In addition to the destination, purpose and date of the trip, a summary of expenses and the required receipts must be provided. Also, all direct payment requisitions relating to a trip must be listed on the travel expense voucher report. This report must be certified by the division manager or department head.
(City Code 1951, Title 1, § 306)

Sec. 1:307. Travel advances.

The director of finance is hereby authorized to make travel advances to any employee or official duly authorized to travel on behalf of any unit, branch or agency of the city-parish government. Advances will not be issued to any persons whose payroll is not processed by the city-parish. Whenever possible, a copy of the seminar brochure itinerary, etc., must accompany the request for the advance. Such advances are not to exceed the maximum allowances provided herein. All settlements for advances made as authorized

herein shall be placed in the hands of the director of finance on or before thirty (30) days after the travel has been completed; otherwise the treasurer, upon request of the director of finance, shall withhold the amount of the advance from the wages or paychecks of those employees who fail to settle their advances within the prescribed period of time. Also, no further travel allowances shall be advanced until and unless settlements have been made as provided for herein.
(City Code 1951, Title 1, § 307; Ord. No. 8921, § 4, 5-24-89)

Sec. 1:308. Penalty.

Any person who shall falsely execute the documents prescribed by section 1:302 or 1:306 shall be fined not more than five hundred dollars ($500.00) or given a jail sentence of not more than one hundred eighty (180) days, or both, at the discretion of the court, and will be subject to further city-parish disciplinary action.
(City Code 1951, Title 1, § 308)

Sec. 1:309. Reserved.

Editor's note—Ord. No. 15323, § 1, adopted June 13, 2012, amended the Code by repealing former § 1:309 in its entirety. Former § 1:309 pertained to restrictions on travel by city-parish personnel, and derived from Ord. No. 15312, adopted May 23, 2012.

PART VI. MEDICAL EXAMINATIONS

Sec. 1:450. Medical information and examination.

(a) For purposes of ascertaining the presence of preexisting conditions relative to the right to receive disability retirement benefits from the employees' retirement system of the city-parish, as a condition of employment and as provided herein, all prospective employees shall provide requested medical information and undergo prescribed medical examinations prior to employment.

(b) The personnel department shall require each prospective employee to complete a medical questionnaire, which questionnaire shall be approved by the board of trustees of the retirement system.

(c) The personnel department shall require each prospective employee to undergo medical examination by physicians chosen by the department. With respect to each prospective employee, the examining physician shall complete an examination form, which form shall be approved by the board of trustees of the retirement system.
(City Code 1951, Title 1, § 450; Parish Code 1962, Title 1, § 450; City Ord. No. 4688, § 1, 5-26-82; Parish Ord. No. 5915, § 1, 5-26-82)

PART VII. PARTICIPATION IN STRIKES

Sec. 1:460. Strikes, engaging in, abetting, failing to cross pickets; prohibited; penalty.

(a) It shall be unlawful for any person in the service of the city-parish to engage in or participate in or to aid, abet, advocate or encourage any strike or work stoppage against any governmental agency.

(b) It shall be unlawful for any person in the service of the city-parish to engage in or participate in any strike or picketing arising out of a labor dispute or to loiter in the vicinity of any strike, labor dispute or picket line unless required to do so by public duty.

(c) It shall be unlawful for any person in the service of the city-parish to fail or refuse to cross any picket line where his public duty requires such crossing.

(d) It shall be unlawful for any person to advocate, aid, abet or encourage any strike against any public agency or authority of the city-parish, or the state.

(e) Any person who violates any of the provisions of this section shall upon conviction thereof, be fined not more than two hundred dollars ($200.00) or be imprisoned for not more than sixty (60) days or both, such fine and imprisonment at the discretion of the court. A separate offense shall be deemed committed on each day during or on which a violation occurs or continues.
(City Code 1951, Title 1, § 460; Parish Code 1962, Title 1, § 460)

PART VIII. DISABLED EMPLOYEES

Sec. 1:470. Disabled employees.

(a) Subject to the provisions of this section, employees who become disabled shall be entitled to disability retirement benefits in accordance with the provisions of this Code governing the employees' retirement system of the city-parish.

(b) If an employee becomes physically or mentally incapable of performing his normal duties, but is qualified and capable of performing the normal duties of some other employment position within the city-parish government under the existing applicable civil service rules, which position is compensated at the same or a higher rate of remuneration, and for which position a vacancy exists, he shall be transferred to this position. This transfer shall be in lieu of the receipt of disability retirement benefits from the retirement system. If the employee refuses to accept such a transfer, he shall be ineligible to receive disability retirement benefits from the retirement system.

(c) If no vacancy, as referenced in subsection (b) exists, the employee shall receive disability retirement benefits from the retirement system if he is eligible for same in accordance with the provisions of this Code governing the system. However, in lieu of applying for disability retirement benefits, the employee may, at his option, be transferred to a vacant employment position within the city-parish government, the normal duties of which he is qualified and capable of performing under the existing applicable civil service rules, which position is compensated at a lesser rate of remuneration. If, while serving in the lesser compensated position, a position as referenced in subsection (b) becomes vacant, the employee may, at his option, be transferred to such position.

(d) If no vacant position, as referenced in subsection (b) existed, and the employee went on disability retirement from the retirement system, and such a position becomes vacant, he shall be placed in such position in lieu of the continued receipt of disability retirement benefits. Refusal to accept appointment to such position shall result in the employee being ineligible to continue to receive such benefits.
(City Ord. No. 4687, § 1, 5-26-82; Parish Ord. No. 5914, § 1, 5-26-82)

PART IX. INSURANCE COVERAGE FOR RETIREES

Sec. 1:480. Health and dental insurance coverage for retirees and former members of the metropolitan council who have served 12 consecutive years.

A. All retirees of the city and parish and former members of the metropolitan council who have served 12 consecutive years on the council shall be entitled to participate in any health or dental insurance program sponsored or administered by the city and parish on identical terms and provisions made available to employees of the city and parish, except as provided otherwise in this part.

B. A retiree or former member of the metropolitan council shall not be entitled to the benefit of this part in the event any of the following apply:

1. The retiree or former member of the metropolitan council was not a participant in

such a health or dental insurance program for the one (1) year period immediately preceding his termination of employment.

2. At any time after termination of employment or end of final term of office in the case of a member of the council, the retiree voluntarily withdraws from participation in such a health or dental insurance program.

3. The retiree or council member fails to avail himself of any and all coverages provided by Medicare Part A and Part B after having become eligible for Medicare coverage.

(Ord. No. 11624, § 1, 12-8-99; Ord. No. 14654, § 1, 4-22-09)

PART X. MISCELLANEOUS

Sec. 1:490. Use of social security numbers.

(a) Social Security numbers shall only be required and utilized by the city-parish government for law enforcement purposes, or to the extent mandated by state or federal law.

(b) Any use of Social Security numbers by the city-parish government, other than as provided in this section, shall be eliminated within the next twelve (12) months and another form of identification shall be substituted therefore.

(c) All documents containing Social Security numbers shall be shredded when no longer needed. Until such time as these documents are disposed of, they must be kept in a locked or secure environment at all times.

(d) Social Security numbers shall never be given out by city-parish employees over the telephone. Proper documentation or a signed release must be on file before the city-parish can disseminate this information to inquiries.

(e) Each department shall implement safeguards to protect Social Security information, including limiting access and practicing due diligence on employees who have access to such information.

(Ord. No. 12552, § 1, 1-22-03)

CHAPTER 4. REGULATION OF DEPARTMENTS*

PART I. FINANCE DEPARTMENT

Sec. 1:500. Claims.

The treasurer is instructed and authorized to withhold payment on any bond, warrant or other obligation of the city-parish from any person against whom the city-parish has claims for taxes, licenses, etc., or who may be otherwise indebted to the city-parish until such claims are liquidated.

(City Code 1951, Title 1, § 500)

Sec. 1:501. Allocation of funds from "reserve fund" appropriations.

Allocations of funds from "reserve fund" appropriations, as contained in the current expense budgets of the city-parish, shall be made only on an affirmative vote of two-thirds of the entire membership of the council. Prior to establishing any allocation out of "reserve fund" appropriations, in accordance with resolutions or ordinances adopted by the council, the director of finance shall procure from the council administrator a certificate showing the vote of the council thereon, and further certifying that the resolution or ordinance allocating such funds was adopted by a vote of two-thirds of the entire membership of the council concerned.

(City Code 1951, Title 1, § 501)

Sec. 1:502. Budget supplements—Definitions.

The following definitions shall apply in the interpretation, application and enforcement of sections 1:502—1:506:

(1) *Budget supplement* shall mean:

a. A supplementary appropriation made necessary by reason of a change of work program or unanticipated expenditure which requires that additional funds be made available from

*__Cross references—__Commissions and departments generally, Title 1, Ch. 2; code of governmental ethics, Title 1, Ch. 7; police department, Title 4; organization of fire department, Title 5, Ch. 2.

the unappropriated surplus in accordance with Sections 2.12 and 8.18 of the Plan of Government, the term including, but not limited to, supplemental appropriations to existing budget items, those for the purpose of establishing special accounts and for items or purposes not included in the budget;

b. The allocation of funds out of budgeted reserve accounts to specific purposes.

(2) *Office* means any official, department head, agency, department, division, office, board or commission to which appropriations are made by the council in the annual current expense budget of the city-parish.

(3) *Transfers* shall mean the transfer of an unencumbered balance of an existing budget appropriation to supplement another appropriation made in the same budget to the same office, as provided in Section 8.17 of the Plan of Government.

(City Code 1951, Title 1, § 502)

Sec. 1:503. Same—Policies and procedures.

For the purpose of making supplemental appropriations under the provisions of Section 8.18 of the Plan of Government and transfers under provisions of Section 8.17 of the Plan, and allocations from budgeted reserve accounts, the following policies and procedures are hereby established:

(1) Before any office shall submit a request for an appropriation, transfer or allocation to the mayor-president, the request shall be reduced to writing and submitted on forms prescribed by the director of finance, with the concurrence of the council budget officer, such forms to contain instructions as to use and such other information as may be deemed appropriate to fully explain the request. Requests shall be forwarded to the director of finance, with a copy of the council budget officer.

(2) The director of finance shall consult with the council budget officer and forward the request for a budget supplement to the mayor-president for consideration, but only after certifying thereon that there is available either an unappropriated cash surplus or budgeted reserve fund sufficient to meet the request, together with such other recommendations concerning the making of the appropriation or allocation from funds available therefor as the director of finance may deem appropriate. The director of finance shall likewise transmit all requests for transfers to the mayor-president, together with any comments or recommendations with respect thereto. The mayor-president shall approve or deny all such requests for transfers and return the request to the director of finance for appropriate action thereon.

(3) Upon receiving the report and recommendation of the director of finance with respect to any request for a budget supplement to be made from surplus, the mayor-president shall thereupon consider the request and either:

a. Forward the request to the council budget officer, recommending council consideration; or

b. Return the request to the office originating same, indicating that the mayor-president does not recommend council consideration, or requesting further facts and information based upon which further consideration of the request would be in order.

(4) With respect to a request for a budget supplement to be made from a budgeted reserve account, the mayor-president shall in all cases forward the request to the council budget officer along with his recommendations to the council.

(5) The council budget officer shall study and analyze the request for the purpose of making specific recommendations thereon to the finance and budget committee and councilmen, and shall place the item on the agenda of the next regular meeting of

the council, for introduction, if required, and referral to the finance and budget committee for its consideration and recommendation.

(City Code 1951, Title 1, § 503)

Sec. 1:504. Same—Emergencies.

Except as hereinafter provided, in the case of emergency matters, the council shall consider a request for a budget supplement until the procedures outlined above have been complied with and appropriate recommendations have been made as therein provided. In all cases where the council finally approves any request for a budget supplement the funds shall be transferred out of the designated reserve account, or out of the unappropriated surplus, into the proper budget account of the office requesting such budget supplement. If the budget supplement is designated for a specific item not contained in the original current expense budget, but is for a similar purpose for which funds were allocated in the budget, the director of finance shall transfer the budget supplement to the appropriate budget account of the office originating the request or receiving the funds to be expended; otherwise the director of finance shall establish a special account therefor. The director of finance, in either case, shall provide such accounting procedures as may be required to assure that the funds are used only for the purpose specified in the council resolution authorizing the budget supplement.

(City Code 1951, Title 1, § 504)

Sec. 1:505. Same—Rules and regulations.

The director of finance and the council budget officer are further hereby authorized to prescribe and promulgate such other rules and regulations as may be required or necessary in order to carry out the policies and procedures set forth in section 1:503, and to further the purpose and intent of sections 1:502—1:506, including, but not limited to, regulations with respect to any variance from the procedures in unusual or emergency situations.

(City Code 1951, Title 1, § 505)

Sec. 1:506. Same—Void budget supplements.

Any budget supplement made contrary to or without compliance with the procedures established by section 1:503, shall be null and void, and the director of finance will make no transfer of funds to any such budget supplement, or approve any expenditure therefrom.

(City Code 1951, Title 1, § 506)

Sec. 1:507. Refunds for fees paid erroneously.

(a) The director of finance is hereby authorized to make refunds of city-parish collections not in excess of fifty thousand dollars ($50,000.00) for fees, taxes, permits or any other collections paid erroneously, with such refunds to be made out of current year revenues.

(b) It is the responsibility of the director of finance to be satisfied that the claim presented is valid and one that falls within the purview of the purposes of this section.

(City Code 1951, Title 1, § 507; Ord. No. 14684, § 1, 6-10-09)

PART II. PUBLIC WORKS*

Sec. 1:601. Definitions.

For the purpose of this part and the various sections hereof:

Department shall refer to and mean the department of public works and the various divisions thereof as established by Chapter 5 of the Plan of Government.

Director shall refer to and mean the director of public works, as provided for by the provisions of Section 5.01 of the Plan of Government.

Employee shall refer to and mean any person employed by the city-parish pursuant to the provisions of Chapter 9 of the Plan of Government.

(City Code 1951, Title 1, § 608; Parish Code 1962, Title 1, § 608)

*__Cross reference—__Streets, alleys, sidewalks, battures and sewers, Title 2.

Sec. 1:602. Organization and functions.

The organization and functions of the department of public works shall be as outlined in and established by the provisions of Section 5.02 of the Plan of Government, and no additional divisions or functions shall be established or undertaken except as prescribed by applicable ordinances of the council, as the case may be, adopted under and in pursuance of the authority of Section 5.02(h).
(City Code 1951, Title 1, § 601; Parish Code 1962, Title 1, § 601)

Sec. 1:603. Authority of director.

(a) The department of public works, its various divisions, functions and operations, shall be under the direct supervision and control of the director of public works, as provided for by the provisions of Section 5.04 of the Plan of Government. To the end of providing for the proper administration of the department, the director of public works is hereby authorized and directed to immediately prepare and cause to be promulgated and enforced, rules and regulations prescribing standards of conduct for the employees thereof; establishing and fixing a table of organization, including lines of authority, and responsibility, and outlining the policies and procedures of the department, which rules and regulations shall be supplemental to but not inconsistent with the Plan of Government, the provisions of this part or any other applicable ordinances or resolutions of the council. Such rules and regulations shall be applicable to all employees of the department, classified or unclassified, and violation thereof shall be cause for suspension or removal in accordance with the provisions of Section 9.05 of the Plan of Government.

(b) The Director shall have the authority to approve any change orders for modifications to public works contract documents up to an aggregate total for the entire project which does not exceed fifty thousand dollars ($50,000.00). Change orders reaching or exceeding the aggregate total must be approved by the council before additional change orders can be authorized.
(City Code 1951, Title 1, § 602; Parish Code 1962, Title 1, § 602; Ord. No. 15037, § 1, 11-23-10)

Sec. 1:604. Director responsible to mayor-president.

Subject only to the provisions of the Plan of Government and of this part, the director of public works shall be directly responsible to the mayor-president for the proper conduct and operation of the department. He shall keep the mayor-president and the council informed as to the business of the department and shall make such periodic reports on the activities thereof as may be from time to time requested by the mayor-president, the council, or proper committee thereof.
(City Code 1951, Title 1, § 603; Parish Code 1962, Title 1, § 603)

Sec. 1:605. Appointment and removal of employees.

Subject to the applicable provisions of the Plan of Government and the "Rules Governing Employees in the Classified Service of the City of Baton Rouge and the Parish of East Baton Rouge," the director of public works shall appoint and remove all of the officers and employees of the department. All employees, classified or unclassified, shall be directly responsible to the director of public works. In the case of other than division heads, employees shall also be responsible to an immediate superior, or the director of public works, as the case may be.
(City Code 1951, Title 1, § 604; Parish Code 1962, Title 1, § 604)

Sec. 1:606. Policies.

The following specific policies are hereby declared to be the policies of this government with respect to matters of public works:

(1) *Paving.* There shall be no paving, blacktopping or other surface treatment applied to any dedicated street within the city-parish by the department, for other than maintenance and repair purposes, except upon specific authorization by the council or the inclusion of such street in the capital expenditure budget. The work of the maintenance division of the department shall be restricted to the maintenance of existing streets in their present condition of improvement except in cases

where costs of the continued maintenance exceeds the costs of blacktopping or other surface treatment as determined by the director of public works. To this end, city-parish personnel, equipment and material shall not be used in placing oil or other dust preventive on any streets or roads, except in cases where gravel streets or roads are necessarily used as detours during the construction or paving of thoroughfares, or major streets, that must be barricaded during such construction or other improvement, or except where a stated emergency requires that such preventive be applied, in which case the council shall be advised as to the emergency and shall give prior approval therefor.

No street, not now dedicated to public use and accepted by the department for maintenance, shall be opened up or improved, without specific authorization of the council or the inclusion of such street improvements in the capital expenditure budget.

Existing surface gravel or dirt streets shall not be improved in beyond normal maintenance, except as specified above or in accordance with the stated paving policy of the council, and at the sole cost of the abutting property owners.

(2) *Drainage.* Except as hereinafter provided, personnel and equipment of the department shall not be utilized for the purpose of installing privately purchased pipe, either for driveway purposes or in order to eliminate an open ditch bordering private property but within the street right-of-way. The department, however, shall furnish grades and elevations, as well as pipe sizes, wherever practical.

The department is authorized to use its personnel and equipment in the correction of minor erosion problems in dedicated drainage rights-of-way or servitudes where, in the discretion of the director, the erosion problem justifies participation by his department under the following conditions:

a. The property owner is willing to provide all materials required to carry out the corrective work at no cost to the department.

b. The size of the pipe shall be established by the department based upon approved drainage design and requirements of the area to be served, and the pipe shall be installed to proper grade and elevation.

c. Upon completion of the work the department shall have the right, but not the obligation, of maintaining the improvement so installed, and such participation shall not be construed as imposing any obligation on the department to participate in future improvements, it being the intention of the council that this authorization shall be limited to those instances where erosion conditions justify, in the opinion of the director, participation by public equipment and personnel.

The department is also authorized to use its personnel and equipment in the correction of road conditions in dedicated street rights-of-ways where, in the discretion of the director, the roadside ditches justify the participation by his department if all of the property owners are willing to provide all materials required to carry out the corrective work.

As a part of a planned drainage or street improvement program or project of the city-parish, the department is, of course, authorized to remove and/or replace existing street pipe or other drainage pipe blocking area or project drainage, or to make other drainage improvements. Except as part of a planned drainage or street improvement project, the personnel of the department shall not go upon private property for the purpose of removing or replacing existing pipe, or assist in the installation of drainage pipe, other than to provide grades and elevations, as well as pipe sizes, wherever practical.

(3) *Use of personnel and equipment.* Personnel of the department shall be assigned to their respective duties only by their immediate superior or by the director or his designated representative. No person-

nel, equipment or material shall be used on private property, or in connection with private works or improvements in front of, on, or adjacent to private property, except where such personnel, equipment or material is required to go upon private property in carrying out planned drainage or street improvement projects or programs.

The stated intention of the council in adopting and establishing the above policies is to avoid and prohibit the use of public funds for private purposes, at the same time recognizing that sufficient discretion must remain with the director to accomplish legitimate public improvements and to properly maintain existing public works. To this end, the director shall review all proposed matters of public works, and shall in the exercise of his sound discretion have full authority to approve such projects and programs as he deems necessary to accomplish legitimate public purposes. The mayor-president may at all times make appropriate recommendations for changes in the stated policy of this government, or seek approval of exceptions thereto where such approval is believed to be required or necessary in the public interest.

(City Code 1951, Title 1, § 605; Parish Code 1962, Title 1, § 605; Ord. No. 10505, § 1, 11-8-95; Ord. No. 11355, § 1, 2-10-99)

Sec. 1:607. Use of equipment, etc., contrary to stated policy.

Neither the director, nor any other employee of the government, whether classified or unclassified, shall give any instructions, or cause any work to be done, or equipment or material to be used contrary to the policies enumerated in section 1:606, or contrary to any of the rules and regulations established and promulgated by the director, nor shall the director, or any other employee of the government, whether classified or unclassified, perform any act or participate in the doing of work or the use of equipment and/or material contrary to the policies stated herein or contrary to the rules and regulations established and promulgated by the director under the authority of this part and Section 5.04 of the Plan of Government.

(City Code 1951, Title 1, § 606; Parish Code 1962, Title 1, § 606)

Sec. 1:608. Penalty.

The violation of any of the provisions of this part by any employee, whether classified or unclassified, or by any other person is hereby declared to be a misdemeanor and punishable as such by a fine of two hundred dollars ($200.00), or imprisonment not exceeding sixty (60) days, or both, in the discretion of the court. In addition, the violation of any of the provisions hereof by any employee, classified or unclassified, shall be cause for suspension or dismissal from the public service.

(City Code 1951, Title 1, § 607; Parish Code 1962, Title 1, § 607)

Sec. 1:609. Administrative adjudication.

Section 1:609—1:609.12 establish administrative procedure to enforce public housing and environmental health ordinances as defined herein.

(Ord. No. 14682, § 1, 6-10-09; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.1. Public health, housing and environmental ordinances.

In addition to any procedures now applicable, violations of the provisions of public health, housing and environmental ordinances, as defined herein, of the Code of Ordinances of the City of Baton Rouge and the Parish of East Baton Rouge shall be adjudicated pursuant to the provisions of Sections 1:609—1:609.12.

(Ord. No. 14682, § 1, 6-10-09; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.2. Division of administrative adjudication.

The division of administrative adjudication is hereby established within the department of finance.

(Ord. No. 14682, § 1, 6-10-09; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.3. Definitions.

The following definitions shall apply in the interpretation of sections 1:609—1:609.12:

Alleged violator shall mean the owner of the property and any known tenant or lessee of the property; and any person who has been determined by the enforcement agency to be responsible for a violation of any ordinance covered by this section.

Environmental code means the provisions of title 12, chapter 4; title 12, chapter 5; and title 12, chapter 6, sections 12:405 through sections 12:407 and chapter 7.

Public health code means the provisions of title 6, chapter 4, part I, part II and part III.

Housing violation means and encompasses building codes as adopted in title 8, zoning violations as adopted in title 7, vegetation, and nuisance ordinances as adopted in title 12. Which encompass only those conditions in privately owned structures which are determined to constitute a threat or danger to the public health, safety or welfare and to the environment.
(Ord. No. 14682, § 1, 6-10-09; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.4. Hearing officers.

(a) Hearing officers shall be appointed by the mayor-president, and shall serve at the pleasure of the mayor-president.

(b) The mayor-president may appoint as hearing officer an attorney licensed to practice law in the State of Louisiana, and who has practiced law for at least five (5) years.

(c) All hearing officers so appointed shall take an oath before the parish attorney to uphold the laws and the constitution of the State of Louisiana, and the Charter and ordinances of the City of Baton Rouge and Parish of East Baton Rouge, and to abide by the provisions of the Louisiana Code of Governmental Ethics prior to assuming office.
(Ord. No. 14682, § 1, 6-10-09; Ord. No. 16169, § 1, 1-27-16; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.5. Powers of hearing officers.

Each hearing officer appointed by the mayor-president shall have authority to:

(1) Administer oaths and affirmations.

(2) Issue orders compelling the attendance of witnesses and defendants and the production of documents.

(3) For each separate violation, levy fines, fees, penalties, and hearing costs, according to law.

(4) Order violators to correct violations within a stipulated time.

(5) Take necessary and lawful measures to effect correction of the violation if the violator fails to do so within the time allocated by the hearing officer including authorization to the department of public works to abate the nuisance.

(6) Record orders, judgments, notices of judgments, or liens in the mortgage office of East Baton Rouge Parish.

(7) Place liens and privileges upon property as authorized by R.S. 13:2575 and this part.

(8) It is intended to grant herein to the hearing officer all of the powers permitted by R.S. 13:2575. The council may, from time to time, declare to be subject to administrative adjudication.

(Ord. No. 14682, § 1, 6-10-09; Ord. No. 16169, § 1, 1-27-16; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.6. Authority of hearing officers.

Hearing officers who have been appointed and sworn in accordance with the provision of section 1:609.3 shall have authority to hear and decide alleged violations of public health, housing and environmental ordinances as such are defined herein, or any matters involving licensing and permits and violations of any other ordinances which the council may, from time to time, declare to be subject to administrative adjudication.
(Ord. No. 14682, § 1, 6-10-09; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.7. Hearing procedure.

(a) Prior to holding an administrative hearing for public health, housing and environmental ordinance violations, or violation of any ordinance subject to administrative adjudication, the city/parish department of development, department of environmental services, department of maintenance or department of transportation and drainage shall notify the person alleged to be responsible for the violation, and, where applicable, the property owner, of the violation alleged, a minimum of twenty (20) days prior to a hearing date, except where the alleged violation is of the provisions of section 6.442, section 12:300, or section 12:301 of the Code of Ordinances, the notice shall provide that if the described violation is abated within fifteen (15) days of delivery of the notice, the hearing may be canceled. Where a violation of section 6:442, section 12:300, or section 12:301 of the Code of Ordinances is alleged, abatement after notice of the violation shall not be a defense or cause for cancellation of the hearing. The notification shall state the time, date, and location of the hearing, and shall describe the alleged violation. The notice shall state that the violator is entitled to legal representation, shall state the amount or nature of possible penalties, the cost of clean-up if performed by the city/parish, and provide information to permit the violator to communicate with the enforcement department prior to the hearing. The notice shall also advise that the alleged violator may cause witnesses to be subpoenaed, and shall state that failure to appear at the hearing shall constitute an admission of liability for the charged violation. However, the hearing officer may vacate any order issued on the basis of a failure to appear if in the officer's sound discretion the interest of justice requires a hearing. The hearing officer shall vacate the order upon the request of the director of the department of development.

(b) The notice shall be served upon the alleged violator, and where applicable, upon the owner of the property, by certified mail, addressed to the alleged violator, and where relevant, to the owner at the address listed in the assessors office, or may be personally served upon the alleged violator, or the owner of the property. The date of the postmark shall be deemed to be the date of delivery. Any notification so sent and returned by the United States Post Office shall be considered as having fulfilled the notification requirement. Personal service may be made by any agent of the neighborhood revitalization division of the department of development, by the sheriff, or any other officer authorized by law to serve process in this state. In addition, a copy of the notice of violation(s) shall be affixed in a prominent location on the property upon which violation(s) are alleged or, if safe access to the property is not reasonably practicable, on some prominent fixture on the adjacent public right-of-way as near as possible to the property. It shall be unlawful for any person other than an agent of the city to remove a notice posted on the public right-of-way prior to the commencement of the hearing. In those instances in which the hearing is to determine whether an unoccupied property is blighted, if personal service is not successful and mailed notice is returned as undeliverable or as not accepted, notice shall be given once in the official journal of the city.

(c) Administrative adjudication hearings shall be conducted in accordance with the rules of evidence of the Louisiana Administrative Procedure Act. Testimony shall be under oath; the person charged with the violation may present any relevant evidence, but need not be present at the hearing, but may present duly verified documentary evidence. The violator may be represented by an attorney. Evidence on behalf of the city/parish shall be presented by the parish attorney's office. Any order compelling the attendance of witnesses or the production of documents may be enforced by the city court or the district court having jurisdiction over the witness.

The burden of proof shall be upon the city/parish, and a finding that the violator did violate the ordinance as charged must be based upon a preponderance of the evidence. Where finding of a violation is based upon the violator's failure to appear at the hearing, the decision must nevertheless be based upon a prima facie showing of violation.

If the violator cures the violation within fifteen (15) days of receipt of the notice of violation, the complaint shall be dismissed, and no costs or fees shall be imposed upon the violator.

If the violator cures the violation more than fifteen (15) days after receipt of the notice of violation, but prior to the date of the hearing, the violation shall not be dismissed, and the violator shall become liable for administrative hearing costs in the amount of not less than fifty dollars ($50.00), but more than one hundred dollars ($100.00).

(d) The hearing officer shall issue a written order within thirty (30) days, excluding legal holidays, of the hearing, stating whether or not the person charged is liable for the violation, and the amount of any fine, penalty, costs, or fee assessed against him, and a date by which the violation shall be corrected if such is ordered. The order may be served upon the violator either by personal service or by regular mail, or if the violator has counsel of record, by mailing or delivering the order to counsel. If the order requires that the violation be corrected, this order shall be an interlocutory order. If the order does not require abatement of the violation, this shall be the final order. If final, the order shall specify the penalties, costs, fees, and fines assessed, and shall notify the violator of his right to appeal.

(e) In addition to the remedy set out in R.S. 13:2575(B)(2), the parish attorney is authorized to file a civil action in the city court or the district court to enforce the orders of the hearing officer if the violator fails to pay the fines, costs, or penalties fixed by the hearing officer, or fails to correct the violation as ordered by the hearing officer within the time set by the hearing officer.

(f) Where the violator fails to abate the violation after being ordered to do so by the hearing officer, the city/parish may undertake to correct the violation, and the cost of such shall be included in the final order:

(1) Where the violator appears in response to the notice, and is found to be not in violation the complaint shall be dismissed, and no costs, penalties, or fines shall be imposed.

(2) Where the violator appears in response to the notice, and is found to be in violation of the ordinance charged, the hearing officer shall issue an interlocutory order ordering that the violation be remedied by a date certain and authorizing the city/parish to remedy the situation, with the exception of violations related to title 7 and 8 where the violation cannot be remedied by the city/parish on behalf of the property owner, should the violator fail to do so within the time allowed. Should the violator remedy the situation by the time fixed by the hearing officer, only court costs, fines, and penalties shall be imposed. Where the violator fails to remedy as ordered, with the exception of violations related to title 7 and 8 where the violation cannot be remedied by the city/parish on behalf of the property owner, the city/parish shall do so, and the hearing officer shall issue a final order which shall cast the violator for all fines, penalties, and costs which shall include the cost as set out in the notice served upon the violator at the commencement of the proceeding.

(3) Where the violator fails to appear either personally or through a representative, and is found to have violated the ordinance, the hearing officer shall authorize the city/parish to remedy the violation, with the exception of violations related to title 7 and 8 where the violation cannot be remedied by the city/parish on behalf of the property owner, and shall issue a final judgment which shall cast the violator for all fines, penalties, court costs, and the cost of abatement as set out in the notice of the complaint. If the violator abates the violation before the city/parish does so, the judgment shall be amended to remove the costs of abatement.

(4) The final order shall be served upon the violator in the same manner in which the notice was served.

(g) Penalties, fees and, costs shall be collected by the department of finance.

(h) The hearing officer may, for good cause, suspend or reduce the amount of the penalties to be imposed, but shall not reduce or suspend payment of the administrative hearing costs or the costs of the clean-up where the city/parish has performed the clean-up.

(i) In the performance of his or her duties, the agent of the city/parish department of development may enter any land, structure, or premises in the parish to enforce this Code, at any reasonable time. Prior to entering any land, structure, or premises to enforce this Code, the agent must give notice of his or her intent to enter. Notice shall be in writing and provide the date and time at which the agent will be present to make the inspection, and inform the person notified that he or she may request to reschedule the inspection to another date and time by contacting the neighborhood revitalization division before said date. After notice has been given, if the person notified fails to arrange for, denies, or unduly delays the entry, the agent may request that the office of the parish attorney file in a court of competent jurisdiction, a petition for right of entry to authorize entry for the inspection. Neither an order nor prior notice is required in any of the following named circumstances:

(1) Entry is by permission of an owner or occupant or at the request of an owner or occupant of the land, structure, or premises or by a person with apparent right of possession.

(2) If the land, structure, or premises is vacant, visibly open and obviously accessible to members of the general public and violations of this Code are in plain view.

(3) Immediately after an accident or disaster that causes the inspector to believe that immediate entry is necessary for investigative purposes or to protect property or public health and safety.

(Ord. No. 14682, § 1, 6-10-09; Ord. No. 16169, § 1, 1-27-16; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.8. Appeal.

Any person determined by the hearing officer to be in violation of a public health or environmental ordinance as such are defined herein, may appeal this determination to the 19th Judicial District Court, within ten (10) days of the date of the hearing officer's mailing the final order, by filing a petition with the clerk of the 19th Judicial District Court and paying the costs required by that court. The appeal shall be by trial de novo. The filing of such appeal shall not stay the enforcement and collection of the judgment unless the person who files the appeal furnishes security prior to filing notice of appeal with the finance department of the city/parish in the amount to be fixed by the hearing officer sufficient to assure satisfaction of the order of the hearing officer relative to the fine, fee, penalty, costs of the hearing, and costs, if any, of correcting the violation.

(Ord. No. 14682, § 1, 6-10-09; Ord. No. 16169, § 1, 1-27-16; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.9. Final order.

The director of the hearing officer may record a certified copy of a final order imposing a fine or other charge in the mortgage records of the parish. Once recorded, the certified copy of this order shall constitute a lien against the land on which the violation exists, and any lien placed against such immovable property under this chapter shall be included in the next annual ad valorem tax bill and must be paid along with such taxes, subject, however, to any valid homestead exemption.

(Ord. No. 14682, § 1, 6-10-09; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.10. Additional remedy.

In addition to the remedy set out in section 1:609.9 hereof, the recordation shall have the effect of a judicial mortgage against the immovable property described therein and may be enforced against the immovable property upon application of the city/parish to the clerk of the 19th Judicial District Court for issuance of a writ in accordance with Code of Civil Procedure Article 2253.

(Ord. No. 14682, § 1, 6-10-09; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.11. Records.

The record of administrative adjudicative proceedings undertaken pursuant to this part shall consist of the complaint, all responsive pleadings, the date and nature of service of the complaint, all documents and photographs introduced into evidence, and the orders issued by the hearing officer. The record shall be maintained by the department of finance.
(Ord. No. 14682, § 1, 6-10-09; Ord. No. 16169, § 1, 1-27-16; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609:12. Disposition of penalties and cost.

All fines, costs, penalties, interest, and reimbursement of abatement costs, after payment of all fees, shall be placed into the general fund of the city/parish.
(Ord. No. 14682, § 1, 6-10-09; Ord. No. 18600, § 1, 8-10-22)

Sec. 1:609.13. Non-exclusivity procedures.

The procedures and remedies established by this chapter shall not be deemed the exclusive remedy afforded to the city/parish that may be utilized in the civil enforcement of an ordinance before, during or after the invoking of any other civil enforcement remedy allowed by law, or before, during or after the commencement or conclusion of enforcement action in a civil or criminal court, unless the civil courts have definitively exonerated the alleged violator of the violation charged.
(Ord. No. 18600, § 1, 8-10-22)

PART III. DIVISION OF PURCHASING*

Sec. 1:701. Established; authority for purchases.

(a) The purchasing division, established by the plan of government (sections 4.07—4.12), is responsible for the purchase of materials, supplies, equipment and contractual services for the various user agencies of the city and parish. All purchases and contracts shall be made by the purchasing division in accordance with applicable state statutes, as supplemented by these regulations.

(b) Public works contracts and purchases of materials or supplies exceeding the threshold established, in accordance with the latest revision of R.S. 38:2181—38:2296, shall be awarded by the purchasing division.

(c) For public works contracts with an estimated value of twenty-five thousand dollars ($25,000.00) but not exceeding the threshold established, in accordance with the latest revision of R.S. 38:2212, written quotations shall be solicited from at least three (3) firms. Although not required, projects may be advertised at the discretion of the purchasing agent. All quotations will be received by the purchasing division, and contracts will be awarded by the purchasing division.

(d) Purchases of material supplies exceeding five thousand dollars ($5,000.00) and up to sixty thousand dollars ($60,000.00) shall be made by the purchasing division after obtaining at least three (3) telephone, facsimile, or written quotations. As a minimum, a written confirmation of the accepted offer shall be obtained and made a part of the purchase file for purchases exceeding five thousand dollars ($5,000.00). With approval of the purchasing division, user agencies may issue direct payments for items in this category provided quotations are received by the purchasing division as outlined above.

(e) Purchases of materials and supplies costing five thousand dollars ($5,000.00) and less may be made directly by the user agencies as hereinafter provided in section 1:707.

(f) Contracts for services (professional, consulting, personal, etc.) shall be obtained in accordance with current city-parish regulations, ordinances, or procedures with regard to the various types and levels of services. In the event the state enacts future legislation governing these types of services, such legislation shall supersede local regulations to the extent required by law.

*__Editor's note—__Ord. No. 16935, § 1, adopted Nov. 28, 2018, amended Part III in its entirety to read as herein set out. Former Part III, §§ 1:107—1:710, pertained to similar subject matter, and derived from Ord. No. 10168, 2-8-95; Ord. No. 10645, 6-12-96; Ord. No. 14638, 3-25-08; Ord. No. 15225, 11-22-11; Ord. No. 15509, 6-12-13; Ord. No. 15689, 4-23-14; Ord. No. 15799, 10-22-14; Ord. No. 15835, 11-25-14; Ord. No. 16217, 4-13-16; Ord. No. 9522, 11-10-92; Ord. No. 9620, 5-12-93.

(g) The purchasing division may purchase from commodity contracts made by the central purchasing agent of the state, in accordance with R.S. 39:1702, when the purchasing agent determines such purchases to be in the best interest of the city-parish. User agencies may also purchase from these contracts upon prior approval of the purchasing division.

(h) Unless otherwise noted, all terms used in this part, such as "public work," "work," etc., shall have the same meaning as defined in R.S. title 38.

(i) This part shall be supplemental to the provisions of the plan of government and the general laws of the state relating to public contracts; and all ordinances or resolutions in conflict herewith are hereby repealed. Any conflict between this part and applicable state statutes shall be resolved in favor of the current state statutes.
(Ord. No. 16935, § 1, 11-28-18; Ord. No. 18779, § 1, 3-8-23)

Sec. 1:702. Authority for contract awards.

(a) Contract approval levels are established based on type of contract and value of contract as enumerated in subsections (b)-(f) below.

(b) All regular contracts exceeding the sum of fifty thousand dollars ($50,000.00) which involve labor and the construction, maintenance and/or demolition of public works shall be approved by the council, the office of the parish attorney, and the mayor-president.

(c) All contracts for professional services exceeding the sum of fifty thousand dollars ($50,000.00) annually shall be approved by the council, the office of the parish attorney, and the mayor-president. Specific recurring professional services contracts may be listed in the annual operating budget, which shall constitute council approval.

(d) All regular contracts up to and including the sum of fifty thousand dollars ($50,000.00) which involve labor and the construction, maintenance and/or demolition of public works may be approved and signed by the purchasing agent, subject to the approval of the parish attorney, without the necessity of the approval of the council.

(e) The agency department head is authorized to make direct purchases for professional services costing two thousand dollars ($2,000.00) and less (considered small purchase contracts) on an annual basis in accordance with current finance and purchasing regulations governing direct purchases without the necessity of the purchasing division approval, subject to the restrictions shown in this section.

(1) Under no circumstances shall there be a division or separation of any procurement of professional services or projects which division or separation would have the effect of avoiding the approval process.

(2) The using agency shall submit an annual report to the purchasing division. This report shall contain a listing of all contracts costing two thousand dollars ($2,000.00) and less to include: the name of contractor, amount of contract, specific nature of services rendered, date of contract, and total dollar amount of all small purchase contracts entered into by the using agency for that fiscal year. If no such contracts have been entered into during this period, a report shall still be submitted notifying the purchasing division of same.

(f) All contracts for professional services exceeding the sum of two thousand dollars ($2,000.00) annually and up to and including the sum of fifty thousand dollars ($50,000.00) may be approved and signed by the purchasing agent, subject to the approval of the parish attorney, without the necessity of the approval of the council.

(g) All annual contracts (which merely establish price) and purchase orders or contracts for the purchases of materials, supplies and equipment may be approved and signed by the purchasing agent without council authorization. If there is a question as to whether a contract is

an "annual" or "regular" contract for approval purposes, the matter shall be referred to the parish attorney for resolution.
(Ord. No. 16935, § 1, 11-28-18; Ord. No. 17248, § 1, 2-12-20)

Sec. 1:703. Supplemental provision.

(a) Nothing contained in this part or in Louisiana Statutes shall prevent the city-parish from using their own regular maintenance employees from maintaining public properties; however, this shall not include the construction of buildings.

(b) All purchases shall be based on suitable bid specifications prepared by the purchasing division, with the advice and assistance of the user agencies, to assure fair and competitive bidding.

(c) All prices and conditions quoted or bid shall remain in effect for a period of at least sixty (60) calendar days. The city-parish reserves the right to increase quantities of materials and supplies as deemed necessary by the user agency. This provision is not considered to be in conflict with R.S. title 38, which only requires bids to be firm for thirty (30) days.

(d) Where bids or informal quotations are received, the purchasing division, at its discretion, may use the same quoted price for additional purchases of the materials from the same vendor for the following twelve (12) months without securing additional bids or quotations, provided all purchases made from the original informal quotations do not exceed the sum of sixty thousand dollars ($60,000.00).

(e) The purchasing division shall make a diligent effort to secure competitive quotations or bids where required. However, where sufficient bids or quotations are solicited, and no response is received from a vendor or a "no bid" is received, such responses shall be construed as quotations or bids for purposes of this part.

(f) Upon the public opening of bids by the purchasing division, the bids shall be checked for irregularities, tabulated and forwarded to the appropriate user agency for review and recommendation. The bids received shall be available for public inspection but shall not be considered final until the contract award has been approved.

(g) After approval of the award by the metropolitan council, the contract documents must be prepared within five (5) working days of the council approval; and the successful bidder on any public work shall be notified by the purchasing agent by certified mail that he has been awarded the contract. The contract must be executed and all required insurance, affidavits, and bonding must be completed within fifteen (15) calendar days after the receipt of notification as verified by the delivery date on the certified mail receipt or fifteen (15) calendar days from the date of first attempted delivery. Failure to execute the contract documents or to furnish other required information within the prescribed time shall result in automatic cancellation of the award and enforcement of the bid bond. The user agency shall refer the matter back to the metropolitan council for reconsideration in the event of such failure to execute the contract.

(h) Quotations or bids received, not requiring a public bid opening, shall not be considered public record until the contract is awarded or the purchase order issued to the successful vendor.
(Ord. No. 16935, § 1, 11-28-18; Ord. No. 18778, § 1, 3-8-23)

Sec. 1:704. Authority of purchasing agent.

(a) Advertisements for bids or requests for quotations shall not be made by the purchasing agent unless funds have been previously appropriated either in the expense budget or by specific council resolution sufficient to cover the estimated cost of such purchases. It is the responsibility of the user agency to certify that funds are available, subject to confirmation by the purchasing agent prior to advertisement or request for quotation. This requirement shall not apply to contracts for airport construction, sewer or street improvements or other similar projects where a portion or all costs of such work is to be recovered from

property owners as provided by law, or to ongoing programs such as sewer construction or street rehabilitation projects where funds are certified to be available for award of the contract.

(b) In order to provide uniformity in the bid procedure, the purchasing agent is hereby authorized and directed to establish such rules and regulations as he may consider necessary, provided such rules and regulations do not conflict with any ordinances in force, or any state statutes, covering purchasing procedures and requirements.
(Ord. No. 16935, § 1, 11-28-18)

Sec. 1:705. Exceptions.

(a) In accordance with R.S. 38:2212, the requirement for advertisement and awarding to the lowest responsible bidder shall not apply in cases of extreme public emergency where such emergency has been certified by the public entity. Notice of such public emergency shall, within ten (10) days thereof, be published in the official journal of the public entity proposing or declaring such public emergency. City-parish procedures applicable to emergency purchases are:

(1) The purchasing agent, after receiving a satisfactory written statement from the appropriate department head, may declare such an emergency to exist, and is authorized to proceed immediately with the purchase of materials or supplies or the execution of the contract for work. If time permits, emergency quotations may be received from at least three (3) bidders. In extreme emergencies, a qualified vendor/contractor may be selected to proceed with the work immediately.

(2) For those emergency purchases or contracts normally requiring council approval, the purchasing agent shall provide written notification to the council, mayor-president and parish attorney as soon as practicable after the emergency. Such notification is not required if the council has declared the emergency.

(3) The purchasing agent shall place public notice in the official journal of the city-parish within ten (10) days of the emergency in those cases where any provision of the public bid law has been waived.

(b) For emergency purchases required when the office of the purchasing division is closed, the following procedure applies:

(1) An agency department head is authorized to make direct purchases without the necessity for competitive quotations, where such purchases are absolutely necessary in the interest of protecting the public health and safety and competitive quotations cannot reasonably be obtained. The agency department head shall advise the purchasing division of such purchases as soon as practical after the emergency, and shall furnish a written statement as to the necessity of the purchases with the request for payment of the invoice.

(2) The purchasing agent will provide appropriate notification as required, in accordance with subsections (a)(2) and (3) hereinabove.

(c) Where original manufacturer's standard replacement parts for a particular piece of equipment can only be secured from the manufacturer or a single supplier, the purchasing agent is authorized to dispense with the formality of requesting competitive quotations. The purchasing agent must determine if the quoted price is reasonable, is no higher than published list price, and must have determined that the material definitely can only be supplied from one (1) particular supplier.

(d) Where a piece of machinery or equipment needs repairing, and the value of the parts and services cannot be determined without first breaking down the machinery or equipment, the following procedure shall apply:

(1) Prior approval of the vendor must be obtained from the purchasing division.

(2) The total estimated cost must be reviewed by the purchasing division prior to the work being done.

(e) With regard to purchases or procurement for the East Baton Rouge Parish Jobs Training Partnership Act, this part shall apply only to the extent that it is more restrictive than the published Louisiana Job Training Partnership Act Procurement Procedures and Policies. Otherwise, all purchases and procurement for the East Baton Rouge Parish JTPA Program shall be in accordance with the latest revision of the Louisiana Jobs Training Partnership Act Procurement Policies and Procedures as published by the Louisiana Department of Labor, which document is on file with the purchasing division and the East Baton Rouge Parish JTPA Office.
(Ord. No. 16935, § 1, 11-28-18)

Sec. 1:706. Exclusions.

(a) Utility services, such as water, gas and lights, and services rendered in connection with installation and maintenance of equipment such as fire hydrants, streetlights, and traffic signal lights provided under standard rate arrangements or contracts with local utility companies.

(b) The purchase of books, magazines, and other similar copyrighted printed material.

(c) The purchase of library collection materials for the East Baton Rouge Parish Library System, including, but not limited to, books, periodicals, newspapers, films, prerecorded video and audio cassettes, tapes, artworks or other specialized formats for library resources.

(d) Use of Louisiana authorized dealers. "Louisiana authorized dealer" means a company that satisfies the requirements of a resident business as defined in R.S. 39:1556(47), and is authorized by the manufacturer to sell and/or provide service for their products.

(1) Repair parts for equipment obtained from a Louisiana authorized dealer may be used if available. This provision does not apply to the stocking of parts;

(2) Equipment repairs obtained from a Louisiana authorized dealer may be used if available;

(3) Vehicle repairs not covered by a competitive contract or the city fleet maintenance repair contract obtained from a Louisiana authorized dealer may be used if available.

(Ord. No. 16935, § 1, 11-28-18)

Sec. 1:707. Direct purchases by user agencies.

(a) User agencies are authorized to make direct purchases of materials and supplies costing five thousand dollars ($5,000.00) and less in accordance with current finance and purchasing regulations governing direct purchases without the necessity of purchasing division approval, subject to the restrictions shown in this section.

(1) Purchases five thousand dollars ($5,000.00) and less may be made without competitive quotations being received.

(2) The purchasing division will assist user agencies in these small purchases upon request, utilizing procedures outlined in subsection (1) above.

(b) No direct purchases involving labor or operating services exceeding five thousand dollars ($5,000.00) annually are to be made without prior approval of the purchasing division.

(c) The purchasing agent, subject to the approval of the appropriate chief administrative officer, shall have the authority to reduce direct purchase authority limits for any user agency below the maximum of five thousand dollars ($5,000.00) for repeated abuse of the system.
(Ord. No. 16935, § 1, 11-28-18)

Sec. 1:708. Purchase of automobiles.

(a) All automobiles for city-parish agencies shall be purchased by the purchasing division in accordance with the provisions of this part.

(1) Except in highly unusual circumstances, which require specific approval of the metropolitan council, all automobiles shall be purchased under annual contracts competitively procured.

(b) The normal criteria for replacement of automobiles shall be sixty (60) months or seventy-five thousand (75,000) miles, whichever occurs first. However, this provision shall not apply to

public safety vehicles and wrecked vehicles where it is more economical to replace rather than repair.

(c) User agencies shall be required to indicate in their budgets whether a budgeted automobile is a replacement or an additional vehicle.

(d) If the automobile is a replacement vehicle, the user agency must declare an automobile as surplus, to be sold at auction by the purchasing division. Such vehicles may be utilized as replacements by other city-parish agencies upon approval by the purchasing agent, provided that another vehicle is declared surplus.

(e) Automobiles purchased for full-time police or investigative work for the police department, coroner's office, district attorney's office, city constable's office, the metropolitan airport and the parish attorney's office may be equipped with power plants and options that are deemed necessary for effective law enforcement work. Police undercover vehicles may be purchased with additional options not allowed on standard vehicles if requested by the chief of police.

(f) Unless otherwise provided by law, all automobiles for city-parish agencies shall conspicuously display the city-parish decal and public plates in accordance with R.S. 49:121.

(g) All automobiles purchased shall be standard (not deluxe) models, and equipped with factory standard equipment for the model purchased. Otherwise, a justification for adding non-standard options must be submitted in writing by the department head, to be approved by the purchasing agent.

(h) The purchasing agent shall have the authority to modify specifications as appropriate due to industry changes in vehicle configurations, size, power plants, etc.
(Ord. No. 16935, § 1, 11-28-18)

Sec. 1:709. Bonding requirements.

(a) Bid bonds and surety bonds may be required as provided by state statutes. If such bonds are required, failure to provide same shall result in rejection of the bid as provided by law.

(b) Bid bonds and surety bonds are not normally required for the purchase of materials and supplies or for services, but may be required in certain cases such as specialized items, extremely large purchases, or situations where an extended performance guarantee is required.

(c) Bid bonds and surety bonds are required for all public works bids exceeding the sum of twenty-five thousand dollars ($25,000.00). Bid bonds shall normally be five (5) percent of the price bid. Surety bonds shall be for one hundred (100) percent of the contract price. Bonds may be in the form of bid bond or surety bond written by an acceptable surety or insurance company as required by law, or in the form of a cashier's check or certified check.
(Ord. No. 16935, § 1, 11-28-18)

Sec. 1:710. Sale or lease of surplus equipment or property.

(a) Surplus movable property owned by the city-parish, including materials, supplies and equipment, shall be sold to the highest bidder at public auction or to the highest bidder submitting a sealed bid or quotation after public advertisement, in accordance with regulations established by the purchasing agent according to law.

(b) Surplus electronic devices may be transferred to certain nonprofit entities in accordance with the provisions of R.S. 49:125.1, as amended.

(c) Sale or lease of public buildings or immovable property owned by the city-parish shall be made only pursuant to a resolution by the metropolitan council authorizing the mayor-president to execute the sale or lease after public advertisement and according to law.
(Ord. No. 16935, § 1, 11-28-18)

Sec. 1:711. Lease of equipment.

(a) A comparative costs analysis shall be conducted when the purchasing agent determines that a lease or lease-purchase procurement option to be in the best interest of the city-parish.

(1) At a minimum, the following shall be considered:

a. Estimated time period the equipment is to be used and the frequency of use within that period.

b. Financial and operating advantages or alternate types and makes of equipment.

c. Cumulative rental payments for the estimated period of use.

d. Gross purchase price.

e. Transportation and installation costs.

f. Maintenance and other services costs.

g. Potential insurance coverage.

h. Availability of funds and cost of capital.

i. Potential obsolescence of the equipment because of technological improvements.

(2) The following should be considered, as appropriate, based upon the type, cost, complexity, and estimated period of use of the equipment:

a. Availability of purchase options.

b. Potential utilization of the equipment by others after its initial useful purpose has ended.

c. Trade-in or salvage value at the end of the lease term.

d. Imputed interest.

e. Availability and cost of servicing the equipment.

(b) A competitive bidding process shall be utilized and shall conform to the following requirements:

(1) Specifications for equipment and related services shall be prepared in advance and shall designate the specific class or classes of equipment desired and may include all features associated with such class or classes of equipment. The specifications may also include requirements for the maintenance of the equipment if desired.

(2) If a lease-purchase procurement is contemplated, the specifications shall require that the proposal contain the following:

a. The principal amount of any proposed lease.

b. The interest rate factor to be computed in the lease payments.

c. The right of the lessee to purchase the equipment at the termination of payments for such equipment as set forth in the lease-purchase contract for a sum not to exceed one dollar ($1.00).

(c) Any equipment leased or with lease-purchase option entered into shall contain an annual appropriation dependence requirement to the effect that the renewal and continuation of such contract is contingent on the appropriation of funds to fulfill the requirements of the contract. If a diligent and good-faith effort there isn't sufficient monies to provide for payments under the contract, the obligation to make payments under the contract shall terminate in accordance with the terms of the contract on the last day of the fiscal year for which funds were appropriated, provided the equipment is returned to the lessor or his agent as provided in the equipment lease or lease-purchase contract. In addition, in the equipment lease or lease-purchase contract, the lessor shall covenant and agree to indemnify and hold the lessee harmless against any loss, damage, liability, cost, penalty or expense, including attorneys' fees, which is not otherwise agreed to by lessee in the equipment lease-purchase contract and which is incurred and arises upon a failure to appropriate funds in the manner described herein for a continuation of the contract or exercise of the option to purchase the equipment.

(d) Any equipment leased or with lease-purchase contract entered into pursuant to this section shall be treated as a lease for all legal purposes without regard to the rights and obligations of the lessee at lease termination or to any interest factor payment, and without necessity of filing a chattel mortgage. The lessor shall be deemed owner of the equipment during the term

of the lease. In addition, the equipment shall be deemed to be movable property for all purposes and shall not become a component part of any immovable property, notwithstanding any provisions of law to the contrary, including but not limited to Civil Code Articles 465, 466, 467, 493.1, or 495.

(e) All lease or lease-purchase contracts entered into pursuant to this section shall provide that whatever interests, claims and rights, including warranties of the equipment, which the lessor may have against the selected vendor of the equipment which is the subject of such lease-purchase contract, shall be assigned to the lessee, and the lessee shall have full right to pursue any and all remedies available to the lessor for breach of any warranty against the vendor. In addition, the lease-purchase contract shall provide that the lessor shall join the lessee as a party plaintiff in any cause, if required under state law, for successful pursuit of such action. Upon termination of the lease-purchase contract, unless the option to purchase is exercised, all such interests, claims, and rights assigned to the lessee under this section shall revert to the lessor. In addition, the lease-purchase contract shall provide that lessee has no right to alienate or encumber the equipment during the term of the lease.
(Ord. No. 16935, § 1, 11-28-18)

Sec. 1:712. Socially and economically disadvantaged businesses; declaration of policy.

It is the policy of the city-parish to provide opportunities to businesses owned and controlled by socially and economically disadvantaged persons to participate meaningfully in the contracting activities of the city-parish that involve public spending or private projects that utilize public funding or incentives.
(Ord. No. 18097, § 1, 4-28-21)

Sec. 1:713. Definitions.

The following definitions shall apply to this part:

Socially and economically disadvantaged business or *SEDB* means an entity or individual certified as a socially and economically disadvantaged business through one (1) or more certification program(s)designated by the division of supplier diversity.

SEDB goal means the anticipated aggregate portion of work to be performed by SEDBs in connection with a contract subject to this part.

Vendor means any individual or entity in a contract, or seeking to be in a contract, with the city-parish involving public spending, public funding, and/or public incentives, including tax credits or waivers through which the city-parish forgoes its normal taxes and fees, except as otherwise provided in this part.
(Ord. No. 18097, § 1, 4-28-21)

Sec. 1:714. Establishment of the division of supplier diversity.

There is hereby established a division of supplier diversity governed by the provisions set forth below to help address the effects of past and present social and economic discrimination by increasing the utilization of certified socially and economically disadvantaged businesses in the procurement of goods and services by the City of Baton Rouge and the Parish of East Baton Rouge.

The division of supplier diversity will manage and oversee the city-parish's SEDB program. The division of supplier diversity will report to the director of purchasing.
(Ord. No. 18097, § 1, 4-28-21)

Sec. 1:715. Primary functions of the division of supplier diversity.

The division of supplier diversity is the city-parish's division to oversee activities, including certification, compliance, outreach, training and capacity building for local SEDBs.

It is the city-parish's objective to ensure that SEDBs are fully and properly participating in publicly-funded contracts and purchases, or where public spending is involved. In order to meet this objective, the city-parish will take necessary steps to ensure that SEDBs have equal opportunity to compete for and perform services

for the city-parish. The division of supplier diversity will therefore have the primary responsibilities, including but not limited to:

(1) Develop and use appropriate techniques to address SEDB concerns and increase access in contracts and purchases;

(2) Ensure that positive actions are taken to promote SEDBs and SEDB participation;

(3) Define eligible spending and spending goals for different services, materials, and supplies;

(4) Coordinate the SEDB program with key departmental staff and agencies;

(5) Define and establish guidelines on business eligibility for the SEDB program;

(6) Develop and administer certification and decertification processes for eligible SEDB entities;

(7) Review all bids and contracts for compliance with SEDB goals;

(8) Verify that substitutes are eligible for the SEDB program;

(9) Maintain a registry of SEDB firms available for possible contract and purchase opportunities;

(10) Monitor, track and report the performance of the SEDB program;

(11) Act as an arbitrator in disputes involving the SEDB program;

(12) Act as the single point of contact for interpretation of supporting rules and regulations governing the SEDB program;

(13) Serve as a liaison to local trade organizations and associations; and

(14) Establish additional rules as necessary to implement the provisions of section 1:711.

(Ord. No. 18097, § 1, 4-28-21)

Sec. 1:716. SEDB registry.

The city-parish shall create and maintain a publicly available registry of all businesses or individuals certified as SEDBs through a certification program or programs designated by the city-parish.

(Ord. No. 18097, § 1, 4-28-21)

Sec. 1:717. Participation goals.

(a) *City-parish funded goal.* There is an overall goal of twenty-five percent (25%) for the utilization of SEDBs for all city-parish public spending or private projects that utilize public funding or incentives, subject to any SEDB goal established pursuant to this part.

(b) *Other funded goals.* An overall goal will be set for participation in those contracts that are funded, in part or in whole, with funds received by the U.S. Department of Transportation (DOT) in accordance with 49 CFR Parts 23 and 26 and by the U.S. Environmental Protection Agency in accordance with their office of small disadvantaged business utilization guidance document and any other federal or state funded program that has an established DBE program or goals. Funds received from the U.S. Department of Transportation shall include the Office of the Secretary, the Federal Highway Administration (FHWA), the Federal Transit Administration (FTA), and the Federal Aviation Administration (FAA).

(Ord. No. 18097, § 1, 4-28-21)

Sec. 1:718. SEDB goal setting.

The division of supplier diversity shall implement a procedure for establishing individual SEDB goals for each contract or spend category subject to this part based on the availability of SEDBs in the relevant market sector.

(Ord. No. 18097, § 1, 4-28-21)

Sec. 1:719. Contracting requirements.

The city-parish shall reject any bid subject to this part and shall not award, enter into, or amend any contract subject to this part that is not supported by documentation establishing that the vendor has met the applicable SEDB goal or made good faith efforts to meet the applicable SEDB goal. Standards and criteria for evaluation and documentation of good faith

efforts shall be established in writing by the division of supplier diversity and may include, but not be limited to, the following:

(1) Solicitation of SEDBs through reasonable and available means;

(2) Identification of work to be performed by SEDBs;

(3) Provision of information about the requirements of work to be performed by SEDBs; and

(4) Negotiation with SEDBs in good faith.

(Ord. No. 18097, § 1, 4-28-21)

Sec. 1:720. Reporting.

(a) The purchasing division shall submit to the metro council a report identifying the city-parish's SEDB goals and attainment rates for the prior year.

(b) All city-parish departments and agencies shall prepare and submit an annual report to the division of supplier diversity by April 30 of each year identifying their SEDB participation goals and attainment rates for the prior year. The SEDB report shall include the following information:

(1) The total number and value of all contracts awarded during the reporting period;

(2) The total number and value of all contracts awarded to SEDBs as prime contractors (expressed as a percentage and dollar value of subsection (1) above);

(3) The total number and value of all contracts awarded by non-SEDB prime contractors to SEDBs as subcontractors (expressed as a percentage and dollar value of subsection (1) above);

(4) The overall number and value of all contracts awarded to SEDBs during the reporting period (the sum of subsections (2) and (3) above); and

(5) Whether the contract is a procurement, professional services, personal services, or construction contract.

(Ord. No. 18097, § 1, 4-28-21)

Sec. 1:721. Remedies for non-compliance.

In addition to any other corrective action allowed by law, contract, or city-parish policy, any vendor with a contract with the city-parish who fails to comply with the provisions of this part may be subject to corrective action, which may include but need not be limited to:

(1) Withholding of all or any portion of payments due to the vendor until the non-compliance is cured;

(2) Stipulated damages;

(3) Termination of any or all of the vendor's contracts with the city-parish; and

(4) Suspension, debarment, or determination of non-responsibility.

(Ord. No. 18097, § 1, 4-28-21)

Sec. 1:722. Application.

(a) Except as otherwise provided and subject to all local, state, and federal laws affecting the city-parish's procurement of goods and services or use of funds, this part shall apply to all contracts of the city-parish, including all departments and agencies.

(b) Exempt contracts. This part shall not apply to:

(1) The procurement of immovable property;

(2) The resolution of any legal claim;

(3) Cooperative endeavor agreements;

(4) Any procurement to satisfy declared emergency needs;

(5) Restoration tax abatement credits for owner-occupied residential properties not exceeding six (6) residential units; and

(6) Any procurement or contract, except those for public works, valued at less than the applicable formal competitive procurement threshold.

(Ord. No. 18097, § 1, 4-28-21)

CHAPTER 5. JUSTICE OF PEACE DISTRICTS*

Sec. 1:750. Established. (Parish)

There is hereby established six (6) justice of the peace districts within the parish, outside of the corporate limits of the city which justice of the peace districts shall be known as justice of the peace districts one, two and three of ward 2, and one, two and three of ward 3, and shall consist of all of the territory within the boundaries designated by the council for each respective justice of the peace district.

(Parish Code 1962, Title 1, § 657)

Editor's note—The boundaries of the justice of the peace districts are fixed by council from time to time. Copies of the current boundaries are available at the office of the council administrator.

***Cross reference—**City court, § 1:50 et seq.

State law reference—Justices of the peace courts, R.S. 13:2581 et seq.

Sec. 1:751. Election of justices and constables; powers and duties. (Parish)

There shall be elected from each of the above justice of the peace districts one justice of the peace and one constable, who shall have such powers and duties as are established for such officials under the constitution and general laws of the state, and who shall be authorized to exercise such powers and duties within the jurisdiction of the respective district from which they shall be elected.
(City Code 1962, Title 1, § 682)

CHAPTER 6. MISCELLANEOUS

Sec. 1:775. Holidays; every Saturday, certain Fridays.

Pursuant to the provisions of R.S. 1:55A(4):

(1) The whole of every Saturday is hereby declared and shall hereafter be a holiday within the parish;

(2) When December 25, or July 4, falls on a Saturday, the preceding Friday is declared a holiday; provided in the City of Baton Rouge, City of Baker and in the Town of Zachary, any bank or trust company at its option may remain open on the foregoing holidays and transact business and exercise all its legal banking functions to exactly the same extent as if such days were not otherwise legal holidays.
(Parish Code 1962, Title 1, § 685)

Sec. 1:780. Investment of special and trust funds—Authority.

The treasurer is hereby authorized, directed and empowered to invest all special and trust funds held in the various banks and banking institutions within the city-parish to the credit of the city-parish in short term government securities, bearing the highest available rate of interest, said funds to be invested under the terms and conditions hereinafter set forth in this chapter.
(Parish Code 1962, Title 1, § 686)

Sec. 1:781. Same—Approval of parish attorney and director of finance required.

Before the investment of any such funds, the treasurer shall confer with the director of finance and the parish attorney and shall secure from those officers their approval in writing of any program of proposed investments.
(Parish Code 1962, Title 1, § 687)

Sec. 1:782. Same—Deposit of interest and income.

Any interest or other income accruing from the investment of funds, as aforesaid, shall be deposited to the special account or trust fund to which the original funds are allocated or dedicated.
(Parish Code 1962, Title 1, § 688)

Sec. 1:783. Same—Authority to prescribe rules and regulations.

The treasurer, with the concurrence of the parish attorney and the director of finance, shall prescribe such additional rules and regulations as may be required to properly carry out the provisions of sections 1:780—1:782.
(Parish Code 1962, Title 1, § 689)

CHAPTER 7. RESERVED*

Secs. 1:800—1:811. Reserved.

*__Editor's note—__Chapter 7, §§ 1:800—1:811, the Code of Governmental Ethics, was repealed, effective Feb. 10, 1993, by Ord. No. 9575, § 1, adopted Jan. 27, 1993. The chapter was formerly derived from City Code 1951, title 1, §§ 726—736; City Ord. No. 4726; Parish Ord. No. 5960; and Consolidated Ord. Nos. 7062, 7525, 7640, 7987, 8690, 8926, 8991, 9064.

CHAPTER 8. DRUG-FREE WORKFORCE*

Sec. 1:901. Purposes of this chapter.

The purposes of this chapter:

1. To provide a safe and healthy work environment;
2. To eradicate drug and alcohol abuse and their effects in the city-parish workplace;
3. To protect the general public;
4. To deter the unlawful manufacture, distribution, dispensation, possession, and use of drugs and alcohol;
5. To maintain the efficient and orderly operation of the public services provided by the City-Parish;
6. To protect taxpayer property;
7. To investigate accidents in the workplace;
8. To investigate possible individual employee impairment in the workplace; and
9. To comply with applicable laws and regulations.

(Ord. No. 9877, § 2, 4-27-94; Ord. No. 11774, § 1, 6-28-00; Ord. No. 12268, § 1, 3-27-02)

Sec. 1:902. Definitions.

A. *City-parish* means the local governmental entity of the City of Baton Rouge and the Parish of East Baton Rouge as established in the Plan of Government of the City of Baton Rouge and Parish of East Baton Rouge (plan of government), any department, agency, subdivision office, commission, or board thereof, and any unit of local government provided for in, or the formation of which is authorized by, the plan of government.

B. *City-parish employee* or *employee* means any person:

1. Within the parish and city personnel system as defined in section 9.02 of the plan of government;
2. In the unclassified service as defined in section 9.05 of the plan of government; and
3. Providing services to the city-parish under a contract of employment.

C. *City-parish workplace* means, for a particular city-parish employee:

1. Any site, building, premises, or other location, including without limitation areas such as desks or work stations, lockers, storage areas, and parking lots;
2. Any automobile, truck, motorcycle, cart, or other vehicle, whether motor-driven or not;
3. Any mechanized equipment not considered a vehicle;

   at which that employee is performing city-parish work, or which that employee is using, occupying, driving, or otherwise operating while in the course and scope of city-parish employment; or
4. Any city-parish vehicle whether or not the employee is on or off duty.

D. *Drug* means:

1. Any controlled dangerous substance as defined in the Louisiana Uniform Controlled Dangerous Substances Law;
2. Any controlled substance as defined in the Federal Drug Abuse Prevention and Control Law or the Federal Drug Enforcement Administration's Schedule of Controlled Substances;
3. Any controlled substance analogue as defined in the Federal Drug Abuse Preven-

*__Editor's note—__Ord. No. 8894, adopted Apr. 26, 1989, repealed Ord. No. 8600, adopted Feb. 10, 1988, the 1988 Campaign Finance Disclosure Act, consisting of parts I—IV, §§ 1:900—1:902, 1:925—1:927, 1:950, 1:951, 1:975—1:977, as amended by Ord. No. 8692, §§ 1, 2, adopted July 27, 1988 Ord. No. 8691, adopted July 27, 1988, added part V, §§ 1:990—1:000, providing for the enforcement of the chapter. These sections were subsequently repealed by Ord. No. 8935, adopted June 14, 1989. Subsequently, Ord. No. 9451, § 1, adopted June 24, 1992, added ch. 8, §§ 8:1—8:9. This numbering system would have located the text in title 8. Therefore, the editor has redesignated the provisions as §§ 1:901—1:909. The chapter was amended in its entirety by Ord. No. 9861, § 1, adopted Mar. 23, 1994. This ordinance was in turn repealed by § 1 of Ord. No. 9877, adopted April 27, 1994. Section 2 of Ord. No. 9877 added new §§ 8:1—8:9, renumbered by the editor as 1:901—1:909.

tion and Control Law or the Federal Drug Enforcement Administration's Schedule of Controlled Substances; and

4. Anabolic steroids, which include all substances listed as such in the Federal Drug Abuse Prevention and Control Law or the Federal Drug Enforcement Administration's Schedule of Controlled Substances and the Louisiana Uniform Controlled Dangerous Substance Law;

as these provisions may be amended from time to time.

E. *Alcoholic beverage* means an fluid or any solid capable of being converted into fluid, suitable for human consumption, and containing more than one half of one percent alcohol by volume, including, malt, vinous, spirituous, alcoholic or intoxicating liquors, beer, porter, ale, stout fruit juices, cider, or wine.

F. *Positive test* means:

1. For a drug, when the drug or its metabolite is found in the employee's urine in concentrations greater than the applicable cutoff levels in a confirmatory testing procedure (as defined in the state drug testing law) and when a medical review officer (as defined in the state drug testing law) determines that there exists no legitimate explanation for the presence of the drug or metabolite in the urine.

2. For alcohol, when the employee's blood alcohol concentration is 0.05 percent or more by weight based on grams of alcohol per one hundred cubic centimeters of blood.

G. *Reasonable suspicion* means the observation of any one of the following facts:

1. Employee behavior that indicates that the employee may be under the influence of drugs or alcohol while in the city-parish workplace;

2. Direct observation by a supervisor of employee drug or alcohol use or possession while in the city-parish workplace;

3. Arrest or conviction of the employee for a violation of a criminal drug law, or the identification of the employee by the investigating authority as the focus of a current criminal investigation into illegal drug possession, use, or trafficking; or

4. Arrest or conviction of the employee for a violation of a criminal alcohol law.

5. Information received by a supervisor from an unidentified source or sources that the employee is using drugs or alcohol or is impaired in the city-parish workplace, when this information is corroborated by direct observation by any supervisor of drug or alcohol use by the employee or by other evidence from any supervisor with training and experience in the evaluation of drug-induced impairment.

H. *Serious incident* means:

1. Any occurrence involving a city-parish employee in the city-parish workplace which:
   a. Results in one or more deaths; or
   b. Results in bodily injury to any person, who, as a result of the injury:
      1. Immediately receives medical treatment away from the scene of the accident, or
      2. Receives professional medical treatment beyond first aid;
   c. Results in damage to property which renders the property inoperable or causes two thousand five hundred dollars ($2,500.00) or more in damages.
   d. Is caused by an employee's failure to wear protective equipment supplied, made available, required, or recommended by the city-parish or the employee's immediate supervisor; or

2. The discharge by an employee of a firearm while in the furtherance of his or her duties of city-parish employment, regardless of whether the firearm was discharged during the employee's normal duty hours, and excluding the discharge of firearms for practice or training purposes at an approved firing range.

I. *Safety- or security-sensitive* employees include, for purposes of this chapter:

1. All airport police ARFF;
2. All deputy city constables;
3. Certified emergency medical technicians (B, I, and P) employed by the department of emergency medical services;
4. All emergency communications division personnel, including the chief of operations, all emergency communications shift supervisors, assistant shift supervisors and officers;
5. Detention and probation officers in the department of juvenile services;
6. All employees who are assigned city-parish motor vehicles;
7. All employees who operate any city-parish mechanized equipment or motor vehicles in the performance of their city-parish duties;
8. All employees who operate commercial motor vehicles as defined in the Federal Highway Administration Regulations;
9. Employees who perform the duties listed in the Federal Aviation Administration Regulations relating to safety- and security-sensitive positions in the aviation industry;
10. All employees authorized to carry firearms; and
11. Licensed nursing personnel employed by emergency medical services.

J. *Criminal drug or alcohol law* means, for the purpose of this chapter, any local, state, or federal regulation which prohibits the following: operating a motor vehicle or watercraft while intoxicated or while under the influence of alcohol or of a controlled dangerous substance; the use, possession, manufacture, production, creation, sale, transport, or distribution of a controlled dangerous substance or of drug paraphernalia, or any attempt thereof, or conspiracy relating thereto; solicitation of others to distribute a controlled dangerous substance or any attempt thereof, or conspiracy relating thereto; obtaining a controlled dangerous substance by fraud, or any attempt thereof, or conspiracy relating thereto; unauthorized dispensing of a controlled dangerous substance, or any attempt thereof, or conspiracy relating thereto; possession of an open container of alcohol or consumption of alcohol while operating a motor vehicle; any offense involving the injuring of another when the proximate cause of the injury is caused directly or indirectly by operation of, or actual physical control of, a motor vehicle or watercraft, while the operator is under the influence of alcohol, the offender's blood alcohol concentration is 0.08 percent or more by weight based upon grams of alcohol per one hundred cubic centimeters of blood, the operator is under the influence of a controlled dangerous substance, or the operator is under the influence of a combination of alcohol and prescription or nonprescription drugs when the drugs are labeled to warn against combining the medication with alcohol, or the operator is under the influence of prescription or nonprescription drugs when the operator has knowingly exceeded the prescribed dosage or the dosage recommended by the manufacturer of the drug.

K. *High risk employee* means, for the purposes of this chapter, an employee who serves in a safety or security-sensitive position and commencing thirty (30) days from the effective date of this chapter has been convicted of two (2) or more violations of a criminal drug or alcohol law within a five-year period.

L. *Conviction* means, for the purposes of this chapter, a finding of guilty or a plea of guilty or no contest whether or not such conviction has been or may be dismissed pursuant to the Louisiana Code of Criminal Procedure Article 893 or 894.
(Ord. No. 9877, § 2, 4-27-94; Ord. No. 11774, § 1, 6-28-00; Ord. No. 12268, § 1, 3-27-02; Ord. No. 12945, § 1, 5-12-04)

Sec. 1:903. Prohibitions and requirements of this chapter.

A. *Drugs in the workplace.* The unlawful manufacture, distribution, dispensation, possession, or use (other than use in accordance with subsections C.1.a. and b. of this section) by a city-parish

employee of any drug in the city-parish workplace on or off duty or during the employee's working hours is prohibited;

B. *Consumption or possession of alcohol.* All city-parish employees are prohibited from:

1. Consuming alcohol beverages in the city-parish workplace; and
2. Possessing an unsealed container of an alcoholic beverage in the city-parish workplace, or otherwise possessing an alcoholic beverage under circumstances that indicate that the employee intends to consume the alcoholic beverage in the city-parish workplace; and
3. Possessing alcohol in a city-parish vehicle, on or off duty, whether or not it is unsealed.

Employees may be permitted, however, to engage in possession and moderate consumption of alcohol where such possession and consumption is a customary part of attendance at officially approved social functions, or events or functions such as conferences, receptions and conventions.

C. *Use of drugs and alcohol.* All city-parish employees are also prohibited from:

1. Working or reporting for work under the influence of any drug, or with a sufficient amount of any drug or metabolite thereof in their systems to result in a positive test as defined in subsection 1:902.F.1. of this chapter, unless:
    a. The drug was obtained directly, or pursuant to a valid prescription or order, from a practitioner as provided in the Louisiana Uniform Controlled Dangerous Substances Law, while acting in the course of his professional practice, and
    b. The employee is using the drug in a manner consistent with such prescription or order; and
2. Working or reporting for work under the influence of alcohol, or with sufficient alcohol in their systems to result in a positive test as defined in subsection 1:902.F.2. of this chapter.

D. *Convictions.*

1. It shall be a violation of this chapter for an employee to be convicted of a violation of any criminal drug or alcohol law, when the conviction:
    a. Arises out of a violation that occurred in the city-parish workplace and/or in a city-parish vehicle, or
    b. Prevents the employee from performing the regular duties of his of her classification because;
        1. The employee is incarcerated as a result of the arrest or conviction, or
        2. The crime committed bears such a relation to the employee's regular duties that the fact of its commission renders the employee unfit to continue to perform those duties, or
        3. The employee is declared to be a "high-risk employee" and therefore, unfit for his or her position because he or she serves in a safety or security-sensitive position and has been convicted of two or more violations of a criminal drug or alcohol law.
    c. Otherwise prevents the employee from performing the regular duties of his or her classification.
2. A city-parish employee who is convicted under any criminal drug or alcohol law for a violation occurring in the city-parish workplace or under any circumstances described in subsection D.1. herein shall, within seventy-two (72) hours of the conviction or before reporting for work, whichever occurs first, notify his or her supervisor of the conviction.
3. A city-parish employee whose duties require a driver's license must inform his or her supervisor of any revocation or suspension of his or her driver's license, within seventy-two (72) hours of the notification,

before reporting for work or if on duty immediately but in no event later than four (4) hours, whichever occurs first.

4. A city-parish employee whose duties are considered safety- or security-sensitive as defined herein must inform his or her supervisor of any arrest for a violation of any criminal drug or alcohol law, within seventy-two (72) hours of the arrest, before reporting for work or if on duty immediately but in no event later than four hours, whichever occurs first, and shall thereafter keep his or her supervisor informed regarding the status of the charges.

E. *Refusal to cooperate.* Compliance with this chapter, including participation in drug and alcohol testing, is a condition of continued employment with the city-parish. Any refusal to submit to a drug test or an alcohol test, or refusal to cooperate with the city-parish in any of the procedures involved in the drug and alcohol testing provided for by this chapter shall be a violation of this chapter. For purposes of this chapter, refusal shall include not only an express refusal to submit to a drug test or an alcohol test but also any failure to appear for any test, failure to report a serious incident, or any absence or departure from city-parish work:

1. That occurs without a verified legitimate reason

   a. After the employee learns that he or she is required to submit to the test or tests; or

   b. After an occurrence which, under this chapter, could result in the employee being required to submit to a drug test or an alcohol test; or

2. That is determined by the city-parish to have been a pretext for avoiding the test or tests.

F. *Interference with testing.* City-parish employees are prohibited from altering, tampering in any manner with, or substituting a sample for a drug test or alcohol test or otherwise interfering with any testing procedures. It shall also be a violation of this chapter for any city-parish employee to fail or refuse to enforce or otherwise to circumvent any provision of this chapter.

G. *Discipline for violations.* The violation of any of the above provisions shall constitute just cause for the disciplinary action set forth in section 1:907 of this chapter.
(Ord. No. 9877, § 2, 4-27-94; Ord. No. 11774, § 1, 6-28-00; Ord. No. 12268, § 1, 3-27-02)

Sec. 1:904. Drug testing procedure.

A. *General.* All collection, shipment, analysis, and review procedures conducted in connection with drug testing authorized or mandated by the provisions of this chapter shall comply with the Louisiana Drug Testing Law where applicable, as well as with any applicable regulations.

B. *Cutoff levels.* The cutoff levels for all drug testing shall comply with the Louisiana Drug Testing Law. The initial cutoff level for marijuana as determined by immunoassay testing shall be the lowest level authorized by any applicable statute or regulation.

C. *When conducted.* The city-parish shall require employees to submit samples for testing in order to:

1. Enforce the prohibitions of this chapter; and

2. Comply with applicable laws and regulations.

(Ord. No. 9877, § 2, 4-27-94; Ord. No. 11774, § 1, 6-28-00; Ord. No. 12268, § 1, 3-27-02)

Sec. 1:905. Enforcement of this chapter.

A. *General.* In order to enforce the prohibitions of this chapter against drugs and alcohol in the city-parish workplace, the city-parish may:

1. Perform drug and alcohol testing of applicants for city-parish employment;

2. Perform drug and alcohol testing and conduct searches of city-parish employees when circumstances provide reasonable, individualized suspicion of a violation of the prohibitions of this chapter;

3. Perform drug and alcohol testing of city-parish employees following serious incidents;

4. Perform random drug and alcohol testing of city-parish employees who occupy safety- or security-sensitive positions; and

5. Perform drug and alcohol testing of groups of employees who occupy safety- or security-sensitive positions.

B. *Drug testing of applicants.*

1. The city-parish may require any applicant for employment to submit to a drug test and an alcohol test.

2. The city-parish shall not employ an applicant who has tested positive on a drug test or an alcohol test conducted pursuant to this subsection. Such an applicant shall, where applicable, be considered physically unfit to perform city-parish work, within the meaning of section 3 of rule V of the Rules Governing Employees in the Classified Service of the city and the parish, as amended (Civil Service Rules).

3. Drug testing and alcohol testing are conditions of employment by the city-parish. Therefore, any applicant who refuses to submit to a test of either type shall be denied employment with the city-parish.

C. *Reasonable suspicion.*

1. The city-parish may search the person of any employee when there exists individualized reasonable suspicion that the employee is violating the prohibitions of this chapter. This search may include a drug test and an alcohol test. In addition, the search may encompass any areas of the city-parish workplace to which the employee has access. Without limitation, the city-parish may search desks or work stations, lockers, storage areas, parking lots (not including personal vehicles parked therein), equipment bags, lunch boxes, and city-parish vehicles and other motorized equipment. Employees should have no expectation of privacy in any such places.

2. The reasonable suspicion upon which the search is based shall be supported by specific, objective facts known or observed by a supervisor or other appropriate city-parish personnel or safety officer and reduced to writing prior to the search or test, and by any rational inferences the observer is entitled to draw from those facts based upon his or her experience.

D. *Post-incident.*

1. All city-parish employees shall report all serious incidents occurring in the city-parish workplace to their immediate supervisor, or to any city-parish representative if the immediate supervisor is unavailable, immediately and in no event later than four (4) hours of this serious incident. Any employee who fails to report an incident within the prescribed period shall be considered to have violated this chapter and shall be subject to the disciplinary action set forth in section 1:907 hereof, unless the employee is physically unable to make the report or such other extreme or extraordinary circumstances exist that justify the failure to report.

2. Any employee whose order, action, or failure to act the city-parish determines to be, or cannot rule out as, a causative factor in a serious incident occurring in the city-parish workplace, may be required to submit to a drug test and an alcohol test.

3. Additionally, any employee who sustains an injury in the city-parish workplace may be required to submit to a drug test and an alcohol test for purposes authorized by the Louisiana Worker's Compensation Act. When appropriate, a positive test under this subsection may also be considered a positive test for all other purposes of this chapter.

E. *Random drug testing.* All city-parish employees who occupy safety- or security-sensitive positions shall be subject to random drug and alcohol testing. The selection process shall be such that for each testing occasion, every city-

parish employee in the group selected for random testing has a substantially equal chance of being selected to provide a sample for testing.

F. *Group testing.* The city-parish may test all safety- or security-sensitive employees, or may test any groups of such employees when circumstances establish that or provide reasonable suspicion that one (1) or more of the employees in the group has violated or is violating the provisions of this chapter. The methods for determining an appropriate group for testing under this subsection shall be defined by regulations promulgated in accordance with section 1:909 of this chapter, and the determination shall be based on a rational connection between the circumstances giving rise to the reasonable suspicion and the identification of the group of employees to be tested.

G. *Anabolic steroids.* Safety- and security-sensitive employees shall be subject to reasonable suspicion testing only for anabolic steroid use under subsection C of this section.
(Ord. No. 9877, § 2, 4-27-94; Ord. No. 11774, § 1, 6-28-00; Ord. No. 12268, § 1, 3-27-02)

Sec. 1:906. Compliance with statutes and regulations.

The adoption of this chapter is intended to fulfill any and all state and federal statutory and regulatory requirements that the city-parish promulgate a written substance abuse policy. Where applicable, the city-parish shall conduct drug testing pursuant to this chapter and in accordance with:

A. Federal regulations. United States Department of Transportation Drug Testing Procedures, Federal Aviation Administration Anti-Drug Program Rules, and Federal Highway Administration Controlled-Substance Testing Rules;

B. The Louisiana Drug Testing Law;

C. The Louisiana Workers' and Unemployment Compensation Law; and

D. Other applicable rules. Any other applicable federal, state or local statutes, regulations, ordinances, or laws.

(Ord. No. 9877, § 2, 4-27-94; Ord. No. 11774, § 1, 6-28-00; Ord. No. 12268, § 1, 3-27-02)

Sec. 1:907. Discipline.

A. *Constitutional and other protections.* Neither this section nor any part of the this chapter is intended to deny or otherwise limit a regular employee's right to a pretermination hearing or to any other due process protections guaranteed the employee under the United States and Louisiana Constitutions, or to any appeal rights available to the employee under the applicable civil service system.

B. *General.* Violation of any provision of this chapter shall be considered: An act to the prejudice of the classified service, or an act which otherwise subjects an employee to removal from the service for the reasons set forth in Section 1 of Rule X of the Civil Service Rules; and

C. *Classification of violations.* Violations of this chapter shall be of two degrees, Class I or Class II, with Class I being the most serious. The classification of a violation has been made by considering the extent to which the violation impairs the orderly and efficient operation of the public service, and the probability that a violating employee can be successfully rehabilitated.

D. *Class I.*

1. An employee commits a class I violation of this chapter when the employee:

   a. Unlawfully manufactures, distributes, dispenses, possesses, or uses any drug in the city-parish workplace in violation of subsection 1:903.A. of this chapter;

   b. Consumes or possesses alcohol in the city-parish workplace in violation of subsection 1:903.B. of this chapter;

   c. Is convicted of a violation of any criminal drug or alcohol law under the circumstances defined in subsection 1:903.D.1. of this chapter;

   d. Refuses to submit to a drug test or alcohol test or otherwise violates subsection 1:903.E. of this chapter;

e. Interferes with any procedures associated with a drug test or alcohol test in violation of subsection 1:903.F. of this chapter;

f. Fails to report a conviction or arrest under any criminal drug or alcohol law as required by subsection 1:903.D of this chapter and such failure constitutes the third incident of failing to report under this chapter;

g. Fails to report a serious incident as required by subsection 1:905.D.1. of this chapter and such failure constitutes the third incident of failing to report under this chapter;

h. Works or reports for city-parish work under the influence of any drug in violation of subsection 1:903.C. of this chapter;

i. Reports for work or performs work with a sufficient amount of anabolic steroids, marijuana, cocaine, amphetamines, opiates or phencyclidine, or metabolites of these classes of drugs, in his or her urine to result in a positive test in violation of subsection 1.903.C. of this chapter.

2. An employee who commits a class I violation shall be dismissed from city-parish employment.

E. *Class II.*

1. An employee commits a Class II violation of this chapter when the employee:

a. Works or reports for city-parish work under the influence of alcohol in violation of subsection 1:903.C. of this chapter.

b. Is convicted of a violation of any criminal drug or alcohol law when the conviction arises out of a violation which did not occur in the city-parish workplace and/or in a city-parish vehicle is the first such violation and the employee is considered safety or security-sensitive herein.

c. Fails to report a conviction or arrest under any criminal drug or alcohol law as required by subsection 1:903.D.2. of this chapter and such failure constitutes the second incident of failing to report under this chapter;

d. Fails to report a serious incident as required by subsection 1:905.D.1. of this chapter and such failure constitutes the second incident of failing to report under this chapter;

e. Reports for work or performs work with a sufficient amount of alcohol in his or her blood, to result in a positive test in violation of subsection 1:903.C.1. or 2. of this chapter;

f. Fails to report a conviction or arrest under any criminal drug or alcohol law as required by subsection 1:903.D.2. of this chapter and such failure constitutes the first incident of failing to report under this chapter;

g. Fails to report a serious incident as required by subsection 1:905.D.1. of this chapter and such failure constitutes the first incident of failing to report under this chapter;

2. An employee who commits a class II violation, except an employee who commits a violation of subsections 1.f. and 1.g. above, shall enter into a rehabilitation agreement in accordance with subsections 1:907.F.3. and 1:907.G. of this chapter. If such an employee refuses to enter into a rehabilitation agreement, the employee shall be dismissed.

3. An employee who commits a class II violation as described in subsections 1.c. and 1.d. above shall receive a suspension of one month without pay, in addition to entering into a rehabilitation agreement.

4. An employee who commits a class II violation as described in subsections 1.f. and 1.g. above shall receive a suspension of

two (2) weeks without pay, and shall not be required to enter into a rehabilitation agreement.

5. The city-parish may refuse to allow an employee to enter into a rehabilitation agreement and dismiss the employee if:

   a. The employee is a probationary, seasonal, or temporary employee;

   b. The alcohol test arose out of circumstances in which the employee committed other violations of this chapter;

   c. The alcohol test arose out of the violation of any work or safety rule that alone would be cause for discharge;

   d. The employee's prior disciplinary record indicates that according to existing city-parish disciplinary procedures, any further infractions would have resulted in discharge;

   e. The employee has already entered into a rehabilitation agreement arising out of city-parish employment.

F. *Rehabilitation agreement.*

1. In this rehabilitation agreement, the employee shall:

   a. Agree to participate in a rehabilitation program under such terms and conditions as the city-parish may require;

   b. Agree to submit to future testing at the city-parish's discretion as part of a monitoring program for a period not to exceed thirty-six (36) months from the date of return to duty after evaluation, on the condition that a second positive test, a test that reveals the presence of alcohol, or any other violation of the chapter will result in the employee's discharge from employment with the city-parish; and

   c. Agree to all other terms and conditions, that the city-parish may determine are necessary to accomplish completely the purposes of this chapter.

2. The rehabilitation agreement shall be executed before a notary public and two witnesses.

3. If the employee violates any of the terms of the rehabilitation agreement, he or she will be discharged.

4. An employee shall be permitted to enter into only one rehabilitation agreement during all city-parish employment.

5. An employee who enters into a rehabilitation agreement shall not thereafter be permitted to return to work until such time as a physician or other health care provider acceptable to the MRO for the city-parish has evaluated the employee and certified that the employee has obtained rehabilitation or treatment (which is acceptable to the MRO) and is fit to return to the performance of the regular duties of his or her classification. The city-parish shall be under no duty to transfer the employee to a different position or otherwise to provide work for the employee during this period.

6. The employee may use any accrued vacation, sick leave, or compensatory time during the time he or she is not permitted to return to work; however, the employee shall be placed on leave without pay if all such leave or compensatory time is exhausted during this period and if the employee is eligible for leave without pay under the personnel rules and regulations.

G. *Appeal of positive test.*

1. If an appeal to the appropriate civil service board includes a positive test for drugs or alcohol, the city-parish may introduce a written report of the results of the test if:

   a. A notice of the report is filed with the appropriate civil service board and mailed to all parties twenty (20) days prior to the hearing date;

b. Verified documentation of the chain of custody is submitted with the expert's report with an affidavit that states the documentation was made at or near the time of the chain of custody in the course of regularly conducted business activity;

c. An employee may challenge the testing procedure and/or chain of custody by giving notice ten days from receipt of the above referenced documents to the city-parish and the civil service board. At the next scheduled hearing the civil service board will review the challenge and decide if it is necessary to have a full hearing on the validity and/or chain of custody of the drug or alcohol test results; and

d. If the board finds that there is a procedural error in the administration of the test, the board may deny admissibility of the test. If there is no challenge to the testing procedure or if the board finds that there is no procedural error in the testing procedure the certified report and affidavits will be admitted into evidence at the hearing as prima facie proof of its contents, provided that the party against whom the report is sought to be used may summon and examine those making the original of the report as witnesses under cross examination.

2. The employee may overcome this presumption of regularity by providing a preponderance of proof that the collection, shipping, testing, and medical review officer procedures contain irregularities. The board may order a full hearing on the validity of the documents if it deems necessary.

H. *Second positive test.* If an employee who has entered into a rehabilitation agreement subsequently tests positive and is discharged from employment with the city-parish because of such second positive test, the regularity of the positive test that led to the rehabilitation agreement shall not be at issue in any appeal from the discharge. The regularity of the second positive test may be established or challenged in the same manner as set forth in subsection G.1. of this section.

I. *Conviction.* A city-parish employee who is dismissed from city-parish employment because of conviction of a violation of a criminal drug or alcohol law shall, upon a final judgment of acquittal or a final dismissal of the charges alleging the violation, be eligible for reinstatement with back pay, provided that the employee would not otherwise have been terminated for other reasons, or laid off, in the interim.

J. Nothing in this chapter shall prohibit an appointing authority from taking disciplinary action if an employee's test shows the presence of alcohol or drugs which does not rise to the level of a positive test. Such disciplinary action should be consistent with the severity of the offense, the employee's work history and prior disciplinary action.
(Ord. No. 9877, § 2, 4-27-94; Ord. No. 11774, § 1, 6-28-00; Ord. No. 12268, § 1, 3-27-02; Ord. No. 15759, § 1, 9-10-14)

Sec. 1:908. Self-referral.

A. *When available.* An employee who has never tested positive for drugs or alcohol while employed by the city-parish may, at any time prior to:

1. The observation by an appropriate city-parish representative of facts that would justify reasonable, individualized suspicion for purposes of subsection 1:905.C. of this chapter;

2. The occurrence of a serious incident within the meaning of subsection 1:905.D. of this chapter;

3. Being selected for random testing in accordance with subsection 1:905.E. of this chapter;

4. The selection of a group of employees for testing in accordance with subsection 1:905.F. of this chapter, when the group selected includes the employee;

5. The commission or omission of an act which constitutes a class I or II violation under this chapter.

refer himself or herself for evaluation and treatment of a drug or alcohol abuse problem. An employee may only self-refer under this chapter one (1) time during all city-parish employment. An employee taking leave for alcohol or drug treatment shall constitute a self-referral.

B. *Consequences.* An employee shall not be disciplined solely because of the self-referral and shall, with respect, to any violations of this chapter that occur after the self-referral, retain all rights available to city-parish employees under this chapter.

C. *Procedure.*

1. The intent to self-refer shall be declared either to the head of the department in which the employee works, or his or her designee, or to the city-parish, in accordance with procedures established by the city-parish pursuant to this chapter. If an employee cannot be identified with a city-parish department, the declaration may also be made to the office of the mayor-president.
2. The employee shall execute a referral acknowledgment, in which the employee shall:
   a. Verify the intent to seek evaluation and treatment for a drug or alcohol abuse problem; and
   b. Acknowledge the consequences of the self-referral.
3. The referral acknowledgment shall be executed before a notary public.
4. The employee shall have no right of appeal from the execution of the referral acknowledgment.
5. An employee who executes a referral acknowledgment shall not thereafter be permitted to return to work until such time a physician or other health care provider acceptable to the MRO for the city-parish has evaluated the employee and certified that the employee has obtained rehabilitation or treatment (which is acceptable to the MRO) or is otherwise fit to return to the performance of the regular duties of his or her classification. The city-parish shall be under no duty to transfer the employee to a different position or otherwise to provide work for the employee during this period.
6. The employee may use any accrued vacation, sick leave, or compensatory time during the time he or she is not permitted to return to work; however, the employee shall be placed on leave without pay if all such leave or compensatory time is exhausted during this period and if the employee is eligible for leave without pay under the personnel rules and regulations.
7. The circumstances of the employee's self-referral, including the records of the employee's evaluation and treatment shall, to the extent practicable, be held confidential by the city-parish. The only records pertaining to the self-referral maintained in the employee's personnel file shall be the original referral acknowledgment.

(Ord. No. 9877, § 2, 4-27-94; Ord. No. 12268, § 1, 3-27-02; Ord. No. 12268, § 1, 3-27-02)

Sec. 1:909. Implementation.

A. *Personnel department; authority.* The council delegates all responsibility for implementation and administration of this chapter to the personnel department of the city-parish, in order to assure the uniformity of its enforcement throughout the city-parish workforce. This responsibility shall include, but not be limited to, the authority to develop regulations and procedures, for approval by the personnel board, which shall be accorded the same authority as the provisions of this chapter.

B. *Severability.* If any provision or item of this chapter or the application thereof is declared invalid, such invalidity shall not affect other provisions, items, or applications of the chapter which can be given effect without the invalid

provisions, items, or applications, and to this end the provisions of this chapter are hereby declared severable.

C. *Effective date.* This chapter shall become effective thirty (30) days after adoption.
(Ord. No. 9877, § 2, 4-27-94; Ord. No. 11774, § 1, 6-28-00; Ord. No. 12268, § 1, 3-27-02)

CHAPTER 9. FAIR CHANCE HIRING STANDARDS

Sec. 1:951. Ban the box policy.

As a condition of receiving a contract, cooperative endeavor agreement or any grant award, a contractor shall not request, verbally or through written form, the disclosure of criminal history information regarding an applicant for a position related to work under such contract, cooperative endeavor agreement or any grant award before the contractor extends an offer of employment to the applicant. This policy is known as "Ban the Box."
(Ord. No. 18844, § 1, 5-10-23)

Sec. 1:952. Sworn statement.

All contracts, cooperative endeavor agreements, and grant agreements shall provide a sworn statement relative to the requirement that the person, corporation, or entity responsible for executing the contract or agreement, or providing the service provide for therein, is compliant with the provisions of the fair chance hiring standards established in this chapter.
(Ord. No. 18844, § 2, 5-10-23)

Sec. 1:953. Compliance.

No payment shall be made under any new or renewal contract, cooperative endeavor agreement, or grant unless the recipient is compliant with this chapter.
(Ord. No. 18844, § 3, 5-10-23)

Sec. 1:954. Definitions.

"Criminal history" includes questions related to arrests, convictions, or pending charges.
(Ord. No. 18844, § 4, 5-10-23)

Sec. 1:955. Conformance with state law.

The prohibition under section 1:951 does not apply with respect to a contract, cooperative endeavor agreement, or grant if consideration of criminal history prior to an offer of employment with respect to the position is otherwise required by law. Consideration of criminal history at any point in the hiring process will comply with applicable Louisiana law.
(Ord. No. 18844, § 5, 5-10-23)

Sec. 1:956. Procedure.

The appropriate city-parish department shall establish and publish a procedure in which an applicant for a position related to a contract, cooperative endeavor agreement, or grant may submit a complaint relating to compliance, or lack thereof, with section 1:951 of this chapter.
(Ord. No. 18844, § 6, 5-10-23)

Sec. 1:957. Applicability.

This chapter shall apply to any contract, cooperative endeavor agreement, or grant executed on or after April 1, 2023, or to any renewal of any contract, cooperative endeavor agreement, or grant on or after April 1, 2023. This chapter shall not apply to any agreements executed before April 1, 2023.
(Ord. No. 18844, § 7, 5-10-23)

Sec. 1:958. Exceptions.

This chapter shall not apply to: the Baton Rouge Police Department; the Baton Rouge City Constable's Office working in a law enforcement capacity; the Baton Rouge Fire Department; emergency medical services; the department of human development services; the department of juvenile services; and the Greater Baton Rouge Airport Authority.
(Ord. No. 18844, § 8, 5-10-23)

Sec. 1:959. Effective date.

This chapter shall be effective May 10, 2023 following adoption by the metropolitan council.
(Ord. No. 18844, § 9, 5-10-23)

Sec. 1:960. Severability.

The provisions of this chapter are deemed to be separate and severable. The invalidity of any clause, sentence, paragraph, subdivision, section, or portion of this chapter, or the invalidity of the application thereof to any person or circumstance shall not affect the validity of the remainder of this chapter, or the validity of its application to other persons or circumstances.
(Ord. No. 18844, § 10, 5-10-23)

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Title 2

STREETS, ALLEYS, SIDEWALKS, BATTURES AND SEWERS*

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CHAPTER 1. GENERAL

PART I. OFFICIAL MAPS

Sec. 2:1. Official lot and block map adopted. (City)

The lot, block, subdivision and street map entitled Map of the City of Baton Rouge, Louisiana, prepared and made by F.F. Pillet, Civil Engineer, date October 21, 1930, is hereby adopted as the Official Map of the City of Baton Rouge, Louisiana, as of October 21, 1930, the same to be used and referred to in all official matters needing or requiring such a map.
(City Code 1951, Title 2, § 1)

Sec. 2:2. Official street and road maps designated.

(a) The 1959 edition of the E.R. Nilson Street Map of the City of Baton Rouge and its Suburban Area is hereby declared and accepted and designated as the official street map of the city and its suburban area. The names and locations of all streets, parkways, boulevards, alleys and other public ways indicated on the map shall be deemed prima facie correct, and accepted as such by all courts, by all public officers and offices, boards and agencies. However, the acceptance and designation of the map as the official street map of the city shall in no wise constitute an acceptance of any street by the city not approved by the planning commission, nor the dedication of any street where such street has not been formally dedicated by the owner of the property composing such street, and the following proviso shall be shown on the map: "Streets shown do not necessarily mean that they are dedicated to public use."
(City Code 1951, Title 2, § 2)

(b) The official road map prepared by the department of public works, dated November 20, 1951, and approved by L.J. Muse, director of public works, is hereby received and designated as the Official Parish Road Map, showing roads within the rural area of the parish accepted for repair and maintenance purposes. The list showing the names of the parish roads, and their designation by number, is made a part hereof and is on file in the office of the council administrator and the names and locations of all roads and other public ways indicated on the parish road map shall be deemed prima facie correct and accepted as such by all courts, by all public officers and offices, boards and agencies. (Parish Code 1962, Title 2, § 2)

PART II. OBSTRUCTING STREETS, ALLEYS, SIDEWALKS, ETC.

Sec. 2:50. Structures encroaching.

(a) No temporary or permanent structure or building or part thereof, or wall, fence, steps, posts or other obstruction shall be erected or permitted to remain after being erected, on any street, alley, sidewalk or other public place, except by permission of the council, and except as is provided in section 2:152(b). Nothing in this section shall be construed as prohibiting the display of wares as is provided for in section 2:152(a).

(b) A property owner wishing to construct a canopy, awning or other type shelter over a walkway, which covering extends from a building and would be closer to the street than is now permitted by the comprehensive zoning ordinance of the city-parish and will have supports which will project into or within the street right-of-way, may obtain a special permit for the installation of such covered walkway from the director of public works provided:

(1) The owner has otherwise complied with all applicable building regulations and furnishes to the city-parish his agreement that the covering and the supports thereto will be removed without cost to the city-parish at any time such removal becomes necessary for street, drainage or other similar public improvement purposes, or is required to improve the safety of traffic or to insure the safety of pedestrians. The covering and its supports shall be removed within ten (10) days after notice from the city-parish directing the owner to cause such removal. If the covering and its supports are not removed within the ten (10) day period given, the city-parish shall have the right to cause same to be removed without further notice or demand.

(2) The covering and its supports shall be constructed in accordance with plans and specifications approved by the department of public works but in no event shall the covering be less than a height of eight (8) feet minimum clearance from the sidewalk, and the covering and its supports shall not be closer than twenty-four (24) inches from the street curb.

(3) The owner shall further agree to hold the city-parish harmless from any damage resulting from the construction and maintenance of the covering and its supports, and shall provide evidence of liability insurance protecting against bodily injury and property damage in an amount not less than fifty thousand dollars ($50,000.00) through one hundred thousand dollars ($100,000.00) for bodily injury and five thousand dollars ($5,000.00) property damage.

(4) No permit authorized under the provisions hereof shall be issued until and unless all of the above requirements have been complied with and evidence of the owner's agreement and of the insurance coverage required hereunder filed with the building official.

(City Code 1951, Title 2, § 50; Parish Code 1962, Title 2, § 60)

Sec. 2:51. Rubbish and excess dirt. (City)

All rubbish and excess dirt arising from the erecting or repairing of any building, cutting of street, or other work, remaining on the streets, alleys, sidewalks or public places of the city after a reasonable time for the removal thereof shall have elapsed, shall constitute an obstruction.
(City Code 1951, Title 2, § 51)

Sec. 2:52. Procedure for removal and penalties. (City)

It shall be the duty of the director of public works to notify the owner of any structure or encroachment prohibited in section 2:50, or the owner or contractor responsible for any obstruction as defined in section 2:51, to remove same within a reasonable time specified by the director. It shall be unlawful to fail to comply with such removal order.
(City Code 1951, Title 2, § 52)

Sec. 2:53. Excavations.

It shall be unlawful for any person to build, dig or in any manner construct or cause to be constructed any obstruction, defacement or excavation on any street, alley, sidewalk or other public place in the city without first having obtained the permission of the council, or in the case of street cuts, a permit from the department of public works as is provided in sections 2:130—2:134.
(City Code 1951, Title 2, § 53)

Sec. 2:54. Barricading public places. (City)

The director of public works is authorized to bar off or barricade temporarily or cause to bar off or barricade temporarily any street, sidewalk, public square or public place, as required for its working or repair and until such work or repairing is completed.
(City Code 1951, Title 2, § 55)

Sec. 2:55. Lights on barricades. (City)

In all cases where barricading is done under section 2:54, it shall be the duty of the director of public works to cause adequate lights to be placed on such barricades from sunset to sunrise.
(City Code 1951, Title 2, § 56)

Secs. 2:56—2:58. Reserved.

Editor's note—Section 2:56, relating to rubbish disposal in the city, derived from City Code 1951, title 2, § 58; § 2:57, regulating disposal of glass containers in the city, derived from City Code 1951, title 2, § 60; and § 2:58, regulating dumping, derived from Parish Code 1962, title 2, § 61, were repealed by § 7 of Ord. No. 9340, adopted Sept. 25, 1991. See § 6:426 et seq.

Sec. 2:59. Dynamiting public roads. (Parish)

It shall be unlawful for any person to shoot or explode dynamite or other like explosive on the public roads or highways of the parish for the purpose of obtaining geophysical and/or geological information concerning any property located in the parish.
(Parish Code 1962, Title 2, § 62)

Sec. 2:60. Penalty.

Any person violating any of the provisions of this part shall be guilty of a misdemeanor and

upon conviction thereof shall be subject to a fine not to exceed two hundred dollars ($200.00) or imprisoned not more than sixty (60) days, or both, at the discretion of the court, and each day such violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder.
(City Code 1951, Title 2, § 62)

PART III. USE OF STREET RIGHT-OF-WAY BY PRIVATE PERSONS PROHIBITED

Sec. 2:65. Prohibition. (City)

No private person shall use any street right-of-way within the city for any private purpose and particularly for the purpose of storing or abandoning thereon any equipment or other material without the express permission of the city evidenced by a written permit to so do issued by the director of public works.
(City Code 1951, Title 2, § 65)

Sec. 2:66. Definition of street right-of-way. (City)

For the purpose of this part the term "street right-of-way" shall mean that property owned by the city, or dedicated to public use, which abuts a graveled, macadamized, blacktopped or paved street and which is not part of the street itself.
(City Code 1951, Title 2, § 66)

Sec. 2:67. Not to change other street regulations. (City)

This section is not intended to and shall not abridge or extend to any other provisions of this Code relating to the public streets, but is supplemental to such provisions.
(City Code 1951, Title 2, § 67)

Sec. 2:68. Exceptions. (City)

The director of public works is hereby authorized to make exceptions to this part in instances where he feels such action necessary in the public interest. The director shall issue a written permit in evidence thereof.
(City Code 1951, Title 2, § 68)

Sec. 2:69. Penalty.

Any person violating any of the provisions of this part shall, upon conviction thereof, be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00), or imprisoned not less than ten (10) days nor more than thirty (30) days, or both, at the discretion of the court.
(City Code 1951, Title 2, § 69)

PART IV. STREETS AND ROADS

Sec. 2:75. Policy established. (Parish)

A formal policy for the paving of streets or roads in the parish is hereby established.
(Parish Code 1962, Title 2, § 69)

Cross reference—General policy of department of public works as to paving, § 1:606(1).

Sec. 2:76. Major road plan; financing. (Parish)

The parish major road plan as hereafter adopted and amended by the planning commission will be the program for the development of major traffic arteries in the parish. All streets or roads on this major road plan when built to ultimate standards, as defined from time to time by the department of public works, shall be financed entirely by the parish, with state and federal assistance where available.
(Parish Code 1962, Title 2, § 69.1)

Sec. 2:77. First class area defined; minimum standard prescribed; financial assistance. (Parish)

(a) The "first class area" of the parish is defined as follows:

(1) All areas which have been provided with the use of complete sanitary sewerage facilities;

(2) All areas which are adjacent to existing sanitary sewer districts and which have been provided with the use of sanitary sewerage disposal facilities under contract with any of these sewer districts;

(3) All areas which have approved collection lines that are installed as part of the development. In such cases, the area would be

considered as a "first class" area for the purposes of street or road construction. Such sewer lines must be installed in accordance with a master plan for sewer collection and disposal even though no disposal facilities are available at the time of development.

(b) The minimum standard street or road for the entire first class area of the parish shall be twenty-seven (27) feet from face to face of curb and shall be composed of first grade, six (6) inch concrete, or second grade, six (6) inch soil cement base or its equivalent with one and one-half (1½) inch asphaltic concrete wearing surface and complete curbing, guttering, and storm drainage. It is the stated objective of this government that all streets in the first class area of the parish should be paved and that the government should encourage this development by providing a method of long-time financing, and parish financial assistance in the equalization of inequities.
(Parish Code 1962, Title 2, § 69.2)

Sec. 2:78. New subdivisions within first class area; approval of planning commission, etc., required for financial assistance. (Parish)

The same privileges accorded to abutting individual property owners shall be accorded to developers of new subdivisions within the first class area of the parish but this shall only be done after formal approval of the development by the planning commission and after a public hearing has been held to determine the public need for the development, if parish financial assistance is provided.
(Parish Code 1962, Title 2, § 69.3)

Sec. 2:79. Second class areas designated. (Parish)

All areas of the parish not designated as first class under the definitions set forth in section 2:77 shall be designated as second class areas.
(Parish Code 1962, Title 2, § 69.4)

Sec. 2:80. Minimum standards for second class area. (Parish)

In the second class area of the parish, as defined in section 2:79, minimum street requirements shall be those established by the ordinance adopted by the police jury of the parish dated November 12, 1946, and recorded in Minute Book 23, page 114, which ordinance is contained in full force and effect except gravel streets or roads shall not be allowed.
(Parish Code 1962, Title 2, § 69.5; Ord. No. 10502, § 1, 11-8-95)

Sec. 2:81. Temporary streets and roads—Permitted; conditions. (Parish)

(a) The parish may permit the construction of "temporary streets or roads" in the first class area of the parish under the following conditions:

(1) In areas where the character of the community is already clearly defined and at least seventy-five (75) percent of the lineal length of the streets in the area has already been paved with a lower than standard type of construction;

(2) In areas where unusual topographic features would prevent the reasonable enforcement of this policy;

(3) On major roads contained in the formally adopted major parish road plan of the parish where no funds are available for the improvement of such road by the parish.

(b) Approval to construct "temporary streets or roads" shall be granted only by ordinance of the council, which shall be introduced, advertised according to law, and a public hearing held thereon at least two (2) weeks after original introduction.
(Parish Code 1962, Title 2, § 69.6)

Sec. 2:82. Same—Defined; specifications. (Parish)

Temporary streets or roads are defined as streets or roads without curb and gutter and with open ditch storm drains. Temporary streets or roads shall be surfaced with a standard three (3) course bituminous surface treatment applied on a base composed of six (6) inches of compacted sand clay gravel. The base shall be one (1) foot wider than the paved surface.
(Parish Code 1962, Title 2, § 69.7)

Sec. 2:83. Same—Maintenance responsibility of parish; notice; rebuilding. (Parish)

(a) The maintenance responsibility of the parish in the case of "temporary streets or roads" shall be limited to the period of debt retirement or to five (5) years, whichever is the greater. Such streets or roads shall be eligible for public maintenance beyond this time limit only if such maintenance is declared to be "normal" by the department of public works. A list of such "extended" maintenance streets or roads shall be kept by the department of public works and a semi-annual report of them shall be submitted to the council. Whenever any such street or road is determined to be beyond normal maintenance, it must be reconstructed to the proper standard, as a part of the next following street or road paving program advertised by the parish government. It is the expressed policy of this government that temporary streets or roads are not eligible for indefinite maintenance.

(b) The above paragraph shall be included on each and every petition prepared by the department of public works for construction of a "temporary street or road" and shall be specifically called to the attention of the person requesting and securing such petition; it being the intention of the council that all persons authorized to build a temporary street or road as defined in section 2:82 shall be advised of the maintenance policy applicable to such street or road once constructed.

(c) In first class areas, streets or roads paved with temporary construction as defined in section 2:82, but completed prior to April 22, 1953, must be rebuilt with standard type construction when they have reached the limit of their useful life. The only exception shall be for the same reasons that exceptions would be granted under this part and then only after the process of public hearing has been satisfied.
(Parish Code 1962, Title 2, § 69.8)

Sec. 2:84. Records and maps to be maintained by department of public works. (Parish)

Complete, permanent records of all street paving projects initiated under the policy established in this part shall be maintained by the department of public works. In addition, current master maps of the parish shall be maintained by the department of public works showing:

(1) All developed streets or roads;

(2) All streets or roads improved by surfacing but without curb, gutter, and storm sewers;

(3) All complete streets or roads.
(Parish Code 1962, Title 2, § 69.9)

Sec. 2:85. Applicability of part. (Parish)

It is the intention of the council that this part shall apply to the improvement of streets in the parish which such improvement is requested by petition of the abutting property owners, under the provisions of any applicable laws of the state.
(Parish Code 1962, Title 2, § 69.10)

Sec. 2:86. City-parish Adopt-A-Spot Program.

(a) In order to promote litter prevention and control, there is hereby created a City of Baton Rouge and Parish of East Baton Rouge "Adopt-A-Spot Program." The program shall be under the control of the office of landscape and forestry, City of Baton Rouge, Parish of East Baton Rouge.

(b) The office of landscape and forestry shall be authorized to enter into agreements with business or civic organizations whereby such organizations may adopt a section of a public roadway or intersection owned by or maintained by the City of Baton Rouge for the sole purpose of controlling litter along that section of roadway or intersection.

(c) Any such agreement shall require that the business or civic organization adopt a minimum of one block of roadway or one entire intersection. Adoption shall be for a period of two (2) years which may be renewable and will require that the roadway or intersection be cleaned at least six (6) times per year.

(d) The department of public works for the City of Baton Rouge and Parish of East Baton Rouge is hereby authorized to fabricate signs identifying those organizations participating in the program. The department of public works shall determine where these signs may be placed. (Ord. No. 10622, § 1, 5-8-96)

PART V. COMPLETE STREETS*

Sec. 2:90. Complete streets.

(a) The city-parish seeks to improve the lives of community members by leveraging transportation investments to create communities that are safe, walkable, bikeable, and accommodate all potential users-especially the city-parish's most vulnerable people-through complete streets. Therefore, the city-parish will plan, design, construct, operate, and maintain appropriate transportation infrastructure and amenities that are safe, convenient, and fully integrated into a network for all users-automobile motorists, pedestrians of any age or ability, bicyclists, transit vehicles and riders, freight providers, emergency responders, children, and the elderly-in a balanced, responsible, and equitable manner consistent with and supportive of the surrounding community.

(b) A complete streets approach shall also enhance multi-modal access to destinations such as schools, parks, healthy food retail establishments, public transit, and other key locations.

(c) The department of transportation and drainage shall equitably implement, administer, and enforce this chapter, and may adopt rules consistent with this part as necessary to carry out the purpose of and enforce this chapter.

(d) Nothing in this chapter shall preempt or prevent any political subdivision from establishing additional or more rigorous requirements consistent with the purposes of this policy.

(e) This part only applies to public projects undertaken by or on behalf of the city-parish. All private construction projects must comply with requirements in the unified development code.

(f) If any portion of this chapter, any rule or regulation made under this chapter, or the application of this chapter to any person or circumstance is held invalid by any court of competent jurisdiction, the remainder of the chapter, rule or regulation, and the application of the provision to other persons or circumstances shall not be affected. (Ord. No. 19243, § 1, 6-12-24)

Sec. 2:91. Definitions.

The following words, terms and phrases, when used in this part, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Advisory committee means the complete streets advisory committee established by Ordinance 15933 and further described in this ordinance.

Complete streets means streets that are designed to enable safe access for all users, including pedestrians, bicyclists, motorists, and transit riders of all ages and abilities.

High need census tract means a United States Census Bureau designated census tract requiring prioritization for transportation improvements based on considerations such as safety and accessibility, economic factors, community connectivity, household car ownership, health factors, aging population, latent demand, and high transit use areas.

Policy means the policy enacted by this chapter requiring complete streets principles to be incorporated into all transportation projects.

Public participation rubric sets forth the framework for public participation by type and frequency for a transportation project. The public participation rubric will be drafted by the technical sub-committee.

Technical sub-committee means the complete streets technical sub-committee established in the 2014 Complete Streets Policy for the City of Baton Rouge and further described by this part.

*__Editor's note__—Ord. No. 19243, § 1, adopted June 12, 2024, repealed pt. V, § 2-90, and enacted a new pt. V as set out herein and as may later be amended. Former pt. V pertained to similar subject matter and derived from Ord. No. 15933, adopted April 8, 2015.

Transportation project means the construction, reconstruction, resurfacing, repair, rehabilitation, striping of streets, roadways, highways, bridges, tunnels, sidewalks, bike paths, and other parts of the transportation network.

Vulnerable user means a pedestrian, a person operating a wheelchair or other personal mobility device (motorized or non-motorized), and a person operating a bicycle (motorized or non-motorized) or other similar means of non-motorized vehicular transportation.
(Ord. No. 19243, § 1, 6-12-24)

Sec. 2:92. Application.

(a) The department of transportation and drainage of the city-parish shall:

(1) Make complete streets a routine part of everyday operations;

(2) Approach every transportation project and program as an opportunity to improve the transportation network for all users; and

(3) Work in coordination with other departments, agencies, and jurisdictions to achieve complete streets.

(b) This part applies to all transportation projects on city-parish roads to contribute to a transportation network that enables safe travel for all modes of transportation and which addresses the current and future needs of all users and all modes of transportation.

(c) For transportation projects that are a component of a development proposal, the unified development code (chapter 13 and relevant appendices) shall apply and supersede this part.

(d) A complete streets approach applies to:

(1) All phases of design, development, construction, and implementation of all transportation projects within the city-parish; and

(2) All aspects of identified roadway construction, reconstruction, operation, and maintenance-including planning, design, funding, right-of-way acquisition, engineering, and construction.

(e) Accommodations shall be made for all modes of transportation to continue use of the road safely and efficiently during any construction or repair work that infringes on the right-of-way and/or sidewalk.

(f) Adjacent land use shall be considered:

(1) To avoid unintended negative consequences, staff for the department of transportation and drainage shall work with policy makers and members of the development community to execute transportation projects in a thoughtful, context specific manner. Factors to be considered in executing transportation projects include complementary modes of transportation and land use, as well as development and zoning policies;

(2) To ensure that a complete street approach is observed in public transportation projects, the department of transportation and drainage, together with the city-parish planning commission shall consider reviewing and revising relevant policies and procedures as needed; and

(3) Upon revising or developing new design guidelines or plans, the department of transportation and drainage shall ensure that the guidelines or plans specify how transportation projects will serve current and future land uses.

(g) All transportation projects shall include performance measures, designated by the complete streets advisory committee, with measurable outcomes to determine the effectiveness of design.

(h) Phases and key milestones for all transportation projects shall be identified and reported to the advisory committee by a representative of the department of transportation and drainage.

(i) When considering opportunities to advance complete streets implementation, the department of transportation and drainage shall consult the prioritized lists of projects identified in plans such as but not limited to:

(1) East Baton Rouge Bicycle and Pedestrian Master Plan;

(2) East Baton Rouge Local Road Safety Plan;

(3) Capital Region Bike and Pedestrian Plan; and

(4) Metropolitan Transportation Plan.

(j) The incorporation of complete streets principles into transportation projects involving high need census tracts shall be prioritized when accompanying funding opportunities are available.

(k) Public participation is encouraged, and the department of transportation and drainage will abide by all public meeting laws. Public participation for all transportation projects shall be consistent with the public participation rubric developed by the technical sub-committee.
(Ord. No. 19243, § 1, 6-12-24)

Sec. 2:93. Complete street advisory committee.

The city-parish complete streets advisory committee shall have the following composition, powers, and duties:

(1) The complete streets advisory committee shall consist of eighteen (18) voting members as follows:

a. The director of planning for the East Baton Rouge Parish Planning Commission or his or her designee;

b. One (1) member nominated by the Federation of Greater Baton Rouge Civic Associations;

c. One (1) member nominated by Bike BR or other bicycle safety and advocacy group;

d. One (1) member nominated by Baton Rouge Area Chamber;

e. One (1) member nominated by the Baton Rouge Chapter of the AARP;

f. One (1) member nominated by The Advocacy Center;

g. One (1) member nominated by the Center for Planning Excellence;

h. One (1) member nominated by the board of the mayor's Healthy City Initiative;

i. One (1) member nominated by Louisiana State University;

j. One (1) member nominated by Southern University;

k. One (1) member nominated by the Downtown Development District;

l. One (1) member nominated by the Greater Baton Rouge Association of Realtors;

m. One (1) member nominated by the Baton Rouge Growth Coalition;

n. Two (2) members who are citizens of East Baton Rouge Parish who may be self-nominated; and

o. One (1) member appointed by the Mayor-President of East Baton Rouge Parish or his/her designee;

p. One (1) council member nominated by the metropolitan council;

q. One (1) member nominated by the North Baton Rouge Chamber of Commerce;

r. The executive director for the Baton Rouge North Economic Development District or their designee.

(2) Upon enactment of this part, the existing membership of the complete streets advisory committee established by Ordinance 15933 is empowered to continue and serve in said compacity until the conclusion of their term, provided they are willing and able to serve.

(3) The voting members of the complete streets advisory committee shall be appointed by the metropolitan council upon the recommendation of the nominating organization except for members who are appointed directly by the mayor-president.

(4) The terms of office of voting members shall be four (4) years. Vacancies caused by death, resignation, or otherwise shall

be filled for the unexpired term in the same manner as the original appointments were made. Members will continue to serve after the expiration of their term until replacements are made.

(5) The voting members of the complete streets advisory committee shall serve without compensation.

(6) The complete streets advisory committee shall have the following duties and powers:

a. Approve rules of order for the conduct of its meetings;

b. Review and make recommendations on the changes to ordinances, policies, design criteria, standards, procedures, and guidelines related to complete streets implementation prior to any action by the technical sub-committee;

c. Review and make recommendations on areas to be considered as priorities for development of complete streets;

d. Develop performance measures for evaluating the effectiveness of the complete streets program. Update the performance measures annually;

e. Receive quarterly reports on the city-parish's progress with regard to implementation of complete streets and provide feedback on the city-parish's progress;

f. Review and comment on complete streets exceptions;

g. Review meeting summary reports from the technical sub-committee and provide feedback;

h. Review and provide feedback on the technical sub-committee's annual complete streets progress report and provide related feedback to the planning commission regarding areas of strong progress, areas needing improvement, as well as equity considerations;

i. Identify low-cost or no-cost complete streets training for advisory committee members, with the purpose of ensuring baseline knowledge of complete streets principles; and

j. Provide an annual written report to the metropolitan council and the mayor-president evaluating the city parish's progress on implementation of complete streets and providing recommendations for improvement of the complete streets program.

(7) Meetings of the complete streets advisory committee will be held quarterly, at a minimum. The meetings shall be open to the public, held in accessible locations, and include a public comment period.

(Ord. No. 19243, § 1, 6-12-24)

Sec. 2:94. Complete streets technical sub-committee.

(a) The technical sub-committee shall guide the implementation of this part and shall be convened no more than six (6) months from ordinance adoption. The department of transportation and drainage will convene the technical sub-committee which shall meet biannually, at a minimum. The purpose of the sub-committee shall be to provide technical assistance to the city-parish regarding the development, design, and implementation of the complete streets ordinance.

(b) The technical sub-committee shall be comprised of:

(1) City-parish chief design and construction engineer or his/her designee.

(2) City-parish road rehabilitation program manager or his/her designee.

(3) City-parish chief traffic engineer or his/her designee.

(4) City-parish director of maintenance or his/her designee.

(5) City-parish planning director or his/her designee.

(6) A member of Capital Area Transit System Board (CATS).

(7) A member of the Capital Region Planning Commission.

(8) A member of the Park and Recreation Commission of East Baton Rouge Parish (BREC).

(9) Director of city-parish information service, GIS division, or his/her designee.

(10) Representative of the advisory committee or designee as a liaison to the technical sub-committee.

(11) City-parish director of the baton rouge metropolitan airport or his/her designee.

(c) The technical sub-committee shall be staffed by the department of transportation and drainage.

(d) Duties of the technical sub-committee shall include:

(1) Provide a multidisciplinary approach to:

a. Identify opportunities to expand the benefits of the complete streets ordinance through implementing a variety of projects;

b. Identify opportunities to collaborate with each other;

c. Identify potential barriers to project implementation; and

d. Ensure that implementation aligns with established priorities and best practices.

(2) Develop an inventory of complete streets infrastructure, both existing and planned, within the city-parish within one (1) year of ordinance adoption, then update annually.

(3) Evaluate new transportation projects, with prioritization given to projects from plans and/or projects that will improve upon one (1) or more factors identified in the high need census tract definition.

(4) Report on the progress of complete streets implementation relative to established performance measures, which report summary shall be included in the planning commission's annual report.

(5) Develop a public participation rubric within one (1) year of ordinance adoption that identifies they type and frequency of public engagement for transportation projects. To ensure transparency in the granting of a variance to the complete streets ordinance, the public participation rubric shall be presented to the public, as well as the complete streets advisory committee, with illustrations and/or exhibits which reasonably demonstrate the need for an exception to the complete streets guidelines, which exceptions are set forth in subsection 2:97(a)(1).

(6) Approve annual performance measures developed by the advisory committee to be used in evaluating the effectiveness of complete streets implementation.

(7) Conduct an annual review of policies, design criteria, standards, and guidelines to ensure that they reflect best practices of street design, construction, and operation, and recommend revisions, as needed.

(8) Identify barriers and solutions to the implementation of the complete streets ordinance, and form partnerships to help advance the policy as appropriate within the city-parish.

(e) Meetings of the technical sub-committee shall be open to the public, held in accessible locations, and include a public comment period. (Ord. No. 19243, § 1, 6-12-24)

Sec. 2:95. Design standards.

(a) All complete streets improvements shall be based on the best state-of-the-practice design guidance. In addition, street design and model street sections contained in the MOVEBR program should align with the best state-of-the-practice design guidance. Because complete streets design

is an evolving field, the latest edition of the following standards shall be referenced for design guidance:

(b) American Association of State Highway and Transportation Officials (AASHTO):

(1) A Policy on Geometric Design of Highways and Streets.

(2) Guide for the Development of Bicycle Facilities.

(3) Guide for the Planning, Design and Operations of Pedestrian Facilities.

(c) American Planning Association (APA):

(1) Complete Streets: Best Policy and Implementation Practices.

(2) U.S. Traffic Calming Manual.

(d) Federal Highway Administration (FHWA):

(1) Manual of Uniform Traffic Control Devices (MUTCD).

(2) PEDSAFE: Pedestrian Safety Guide and Countermeasures Selection System.

(3) Incorporating On-Road Bicycle Networks Into Resurfacing Projects.

(e) Institute of Transportation Engineers (ITE):

(1) Designing Walkable Urban Thoroughfares: A Context Sensitive Approach.

(f) National Association of City Transportation Officials (NACTO):

(1) Urban Bikeway Design Guide.

(2) Urban Street Design Guide.

(g) U.S. Access Board:

(1) Public Rights-of-Way Accessibility Guidelines (PROWAG).

(2) Accessible Public Rights-of-Way: Planning and Designing for Alterations.

(h) This section of the complete streets ordinance shall be reviewed and updated annually by the technical sub-committee to ensure that the listing of design standards is current and that their policies, design criteria, standards, and guidelines reflect best professional practices. The technical sub-committee shall also report any revisions to the complete streets advisory committee.

(i) All complete street design standards shall be posted on the complete street advisory committee's website or on a website accessible by the public.
(Ord. No. 19243, § 1, 6-12-24)

Sec. 2:96. Performance measures.

(a) The advisory committee, in collaboration with the technical sub-committee, shall establish general goals for implementation of the complete streets ordinance, as well as performance targets and performance measures to evaluate implementation of the complete streets ordinance, and more specifically how well the transportation network is being assessed by all users.

(b) Performance measures and metrics shall be reviewed and updated annually in accordance with best practices in the industry.

(c) Complete streets performance measures contemplate evaluating the performance of streets with respect to different objectives, including, but not limited to, safety, access, mobility, and sustainability, and the following criteria should be observed:

(1) *Identify the objectives.* Identify the goals and objectives of the complete streets ordinance.

(2) *Collect data.* Collect data related to the objectives, such as traffic counts, crash data, user satisfaction surveys, and air quality measurements.

(3) *Analyze data.* Analyze the data to identify trends and patterns in the data related to the objectives.

(4) *Set performance measures.* Set performance measures to track the progress of the program, which measures might include targets for reducing crashes, increasing bike and pedestrian infrastructure, and improving air quality.

(5) *Monitor performance.* Monitor the performance measures to ensure that the program is meeting its objectives.

(6) *Evaluate results.* Evaluate annually the results of the performance measures to identify areas for improvement, and adjust the measures accordingly.

(d) In choosing performance measures, the advisory committee shall:

(1) Consider available data and strategies for systematic collection of data over time, as well as the capacity of the city-parish to execute these strategies;

(2) Consider both quantitative and qualitative performance measures; and

(3) Include performance measures that track progress on complete streets implementation in high need census tracts.

(4) Establish performance measures that fall within the following categories:

a. Safety;

b. Mobility; and

c. Accessibility.

(e) The technical sub-committee shall be responsible for collecting and reporting baseline and subsequent annual data for selected performance measures.

(f) The technical sub-committee shall publish performance measures on the complete street advisory committee's website or on a website accessible by the public.
(Ord. No. 19243, § 1, 6-12-24)

Sec. 2:97. Exemptions and exceptions.

(a) Exemption and exception standards herein apply to transportation projects conducted, funded, and/or approved by the city-parish.

(1) The following transportation projects are exempt from this part:

a. Corridors where specific users are prohibited, such as interstate freeways or pedestrian malls.

b. Resurfacing activities where it is not possible to alter the current existing geometric design of a roadway or street, where the existing roadway capacity does not allow striping or to accommodate additional users, or where the existing right-of-way does not support the feasibility of adding additional complete streets elements. However, this exemption does not include the need to improve and maintain crosswalks, accommodate ADA requirements, and provide signage and signalization as needed.

c. Repair activities that would not provide complete street or connectivity benefits;

d. All private projects which will be governed by the unified development code;

e. Emergency utility repair requiring roadway reconstruction.

(2) The following criteria shall be considered when determining a transportation project exception from the provisions of this part:

a. A documented absence of current and future need; and

b. The cost of accommodation is excessively disproportionate to the need or probable use.

c. There shall be a transparent review process for all proposed exceptions to this part.

1. The department of transportation and drainage shall take a lead role in granting exceptions to this part and consult members of the technical subcommittee. The technical subcommittee shall create and retain a record that supports the exception decision.

2. All proposed exceptions must be mode-specific, specifying which complete streets principles should be exempted. The infeasibility of one mode

of transportation should not exempt a project from incorporating other complete streets principles.

3. Any decision to grant an exception must be reported to the complete streets advisory committee during the planning phase, and the advisory committee shall have access to inspect all records considered by the technical sub-committee in granting any such exception.

4. The documents supporting any request for an exception under the complete streets ordinance must be available for public inspection, and members of the public must also have an opportunity to provide comment pursuant to the public participation rubric, virtually or in-person as determined by the department of transportation and drainage, prior to finalizing the design exception process.

(Ord. No. 19243, § 1, 6-12-24)

Secs. 2:98—2:102. Reserved.

CHAPTER 2. STREETS AND ALLEYS

PART I. USE BY PUBLIC UTILITIES

Sec. 2:110. Streets to be paved. (City)

(a) On all streets upon which it has been determined under regular process of law to pave with asphalt, bithulitic or other material, all gas, water and other pipes shall be properly laid, and those already laid shall be made to conform to the details, levels and specifications as laid down by the department of public works, and approved by the council.

(b) All gas, water and other service pipe on all streets referred to in subsection (a) shall be laid to the property line of all lots facing on such streets, before the pavement referred to is laid, and after due notice by the director of public works to the appropriate firms or corporations furnishing water or gas, and installing mains within the street right-of-way.

(c) Any person violating the provisions of this section shall be fined not more than twenty dollars ($20.00) or imprisoned for not more than ten (10) days, and each day's violation shall constitute a separate and distinct offense.
(City Code 1951, Title 2, §§ 70—72)

Sec. 2:111. Telephone, telegraph and electric light poles. (City)

(a) Telephone, telegraph and electric light poles shall be erected in accordance with the following rules:

(1) All such poles shall be placed within one foot of the outside curb line.

(2) All such poles shall be placed directly on the corner of streets, and when necessary to have three (3) or more poles to one square, the poles shall be placed directly in line with a lot line.

(3) No lines carried on such poles shall cross over a street at less height than twenty-five (25) feet.

(b) All poles referred to in subsection (a) and guy wires, posts and other supports of the poles are required to be painted and repainted from time to time as the appearance of the poles or supports may warrant in the discretion of the director of public works.

(c) Failure by the owners or manager of companies erecting telephone, telegraph and electric light poles, after ten (10) days' written notice by the department of public works to comply with the provisions of this section, shall subject the owners or manager to a fine not to exceed fifty dollars ($50.00) or imprisonment not to exceed twenty (20) days. Failure to comply

with each separate notice by the director of public works shall be a separate and distinct offense and punishable as provided herein.
(City Code 1951, Title 2, §§ 73—75)

Sec. 2:112. Fire alarm system. (City)

On all telephone, telegraph, electric light or other poles or supports for wires hereafter to be erected within the city limits, the city reserves the right to place one cross arm to support the wires of the fire alarm system. Refusal to comply with the provisions of this section by the owners or manager of telephone, telegraph, electric light or other company shall be deemed a violation of the franchise granted such company and shall be sufficient ground for abrogating the same and taking from such company its right-of-way through the streets of the city.
(City Code 1951, Title 2, § 76)

Cross reference—Fire protection, Title 5.

Sec. 2:113. Damaging poles. (City)

Any person who shall cut, mar or deface posts, or place advertising matter upon or otherwise injure electric light, telephone or telegraph poles or supports, shall be deemed guilty of committing a public nuisance, and upon conviction before the court, be subject to a fine not exceeding fifty dollars ($50.00), or imprisonment not exceeding twenty (20) days, or both, at the discretion of the judge.
(City Code 1951, Title 2, § 77)

Cross reference—Simple criminal damage to property, § 13:56.

Sec. 2:114. Signs. (City)

All sign posts, traffic regulatory signs or other permitted posts or poles shall be erected in accordance with section 2:111(a)(1).
(City Code 1951, Title 2, § 78)

Sec. 2:115. Overhead electrical service prohibited. (City)

Overhead electrical service to property from street rights-of-way is prohibited within the area of the city bounded by the centerline of Front Street, the west boundary of I-112 right-of-way, the north boundary of North Street, and the south boundary of North Boulevard. Electrical service to property from street rights-of-way within this area shall be underground in accord with the electrical code of the city.
(City Code 1951, Title 2, § 79)

Cross reference—Electrical code, 8:300 et seq.

Sec. 2:116. Responsibility of the department of public works. (City)

The director of public works shall be charged with the responsibility of inspecting the area described in section 2:115 for the purpose of requiring removal of overhead electrical service and requiring the underground electrical connection of all property within this area to the nearest junction box on city streets provided for such connection in accord with the city electrical code.

Wherever the director of public works, or his representative, shall determine that property is being served with electricity through an overhead connection, the owner of the property shall be given notice by registered letter, directed to his last known address, to remove the overhead electrical connections and to make connection with the appropriate underground junction box as provided herein. If the work of making the connection with the underground junction box is not begun within ninety (90) days from the date the registered notice is deposited in the post office, the owner of the premises shall be guilty of a misdemeanor as hereinafter provided, and punishable in accordance with the provisions of section 2:117.
(City Code 1951, Title 2, § 80)

Sec. 2:117. Penalty for violation of section 2:115. (City)

All property owners whose property is served with electricity within the area described in section 2:115 shall remove all overhead electrical service connections and shall connect to the nearest junction box on city property or rights-of-way provided for such connection and the failure of such person to connect with the junction box after notice as provided herein shall be a misdemeanor, punishable, upon conviction, by a fine of not more than two hundred dollars ($200.00), or confinement in the jail for not more than twenty (20) days, or both, at the discretion of the judge.
(City Code 1951, Title 2, § 81)

Sec. 2:118. Failure to comply. (City)

In any case of a failure of the property owner to comply with the provisions of this part, in addition to other penalties provided herein, the director of the department of public works shall have authority, after the notice prescribed above, to cut off electrical current to any property, the owner of which refuses to remove overhead electrical services.
(City Code 1951, Title 2, § 82)

PART II. STREET CUTS

Sec. 2:130. Permit required.

(a) No cuts shall be made in any street, sidewalk, curb or neutral ground of the city-parish by any person for the purpose of service to any property abutting on or near the street, without first making application to the department of public works, and obtaining a permit therefor as hereinafter provided.

(b) Classification of streets in the city-parish, for the purpose of this part are hereby made as follows:

(1) *Class A:* All streets hard surfaced with concrete, blacktop or brick.

(2) *Class B:* All streets gravelled and with curb and gutter.

(3) *Class C:* All streets with gravel or earth and without curb and gutter.
(City Code 1951, Title 2, § 100; Parish Code 1962, Title 1, § 100)

Sec. 2:131. Fees.

(a) Except as is provided for in section 2:133, no permit shall be issued prior to the payment of the following fees for each cut and the repair thereof:

(1) *Class A streets and sidewalks:* A fee of fifteen dollars ($15.00) per square foot of the cut plus a flat fee (inspection) of ten dollars ($10.00).

(2) *Class B streets:* A fee of one dollar ($1.00) per square foot of the cut plus a flat fee (inspection) of ten dollars ($10.00).

(3) *Class C streets:* Permit required with a flat fee (inspection) of ten dollars ($10.00).

(b) If a reinspection is required, an additional fee of five dollars ($5.00) will be charged to the permit holder.

(c) After the work required in section 2:132 has been completed the department of public works will repave the cuts permitted by this part, the expense of repaving to be paid from the fees charged and received under this section.
(City Code 1951, Title 2, § 101; Parish Code 1962, Title 2, § 101)

Sec. 2:132. Procedure for repairing.

(a) Any cut on any street, sidewalk, curb or neutral ground made by any person under the provisions of this section shall be made promptly

after the permit is taken out and shall be backfilled without any delay as soon as the work is completed, a maximum period of ninety (90) days being allowed for the performance of such work subsequent to the issuance of the permit. All cuts shall be made in such a manner that the pavement repair will have a neat square or rectangular outline, and wherever possible the street shall be bored instead of cut. All trenches shall be backfilled with sand, or a mixture of sand, clay and gravel, placed in layers not over six (6) inches thick, thoroughly compacted by tamping. If more than one man is engaged in this operation, there shall not be less than one man tamping to each shoveling earth backfill in the trench, and the person shall protect the cut while making same and doing the work thereon, and all liability for any damages occurring from the cut and while the work and refilling is being done, shall be on the responsibility of the person obtaining the permit and doing the work, and as a condition of the issuance of a permit hereunder, the permittee shall agree to hold the city free and harmless of and from any and all claims arising out of any work undertaken pursuant to the permit. In the enforcement of the provisions of this section, the director of public works is authorized to establish and promulgate such additional regulations as he may deem necessary or appropriate to protect the public interest and safety, including a requirement for the furnishing of public liability insurance as follows:

(1) *Blanket permits:*

a. For each accident causing bodily injury, three hundred thousand dollars ($300,000.00) for each person so injured and five hundred thousand dollars ($500,000.00) for each accident; and

b. One hundred thousand dollars ($100,000.00) for property damage sustained in any one accident.

The policy shall remain in full force and effect so long as the permit holder is doing work in the city and parish servitudes and rights-of-way.

(2) *Individual permits:*

a. For each accident causing bodily injury, fifty thousand dollars ($50,000.00) for each person so injured and one hundred thousand dollars ($100,000.00) for each accident; and

b. Ten thousand dollars ($10,000.00) for property damage sustained in any one accident.

(b) From the commencement of any cut made pursuant to the provisions hereof, and at all times during the maintenance of the cut by the permittee, the permittee shall maintain such barricades and warning devices as may be necessary to adequately warn members of the traveling public and to safeguard against accidents.

(c) It shall be the duty of the person obtaining the permit and doing the work to notify the department of public works when ready to begin backfilling so that inspection can be called for, and it shall be the duty of the person to keep and maintain daily the trench and backfill to grade and in good condition and shape in order to afford the least possible obstruction to traffic, for a period of thirty (30) days, or until the cut has been repaved by the department of public works, whichever is sooner, after the backfill has been completed. (City Code 1951, Title 2, § 102; Parish Code 1962, Title 2, § 102)

Sec. 2:133. Public services.

(a) Any person doing public service work for and in the city-parish shall be permitted to cut any street, sidewalk, curb or neutral ground without the payment of the fee prescribed in section 2:131, provided that a written application be made and a permit for such work be obtained from the department of public works. In lieu of the fee prescribed in section 2:131 , the person obtaining the permit shall execute and deliver a bond in favor of the city-parish, in an amount to be fixed, and with sureties to be approved by the director of public works, the bond to be conditioned on the work being completed in a satisfactory manner, with all fills and cuts replaced and repaved, and all costs incurred paid.

(b) All work and repaving done under the provisions of this section shall be subject to all other provisions of this part and shall be constructed to the standards established by the director of pub-

lic works, and shall be maintained by the person doing the work for a period of five (5) years.
(City Code 1951, Title 2, § 103; Parish Code 1962, Title 2, § 103)

Sec. 2:134. Penalty.

Any person violating any of the provisions of this part shall be guilty of a misdemeanor and shall be subject to a fine of not more than fifty dollars ($50.00) or imprisonment for not more than twenty (20) days, or both, at the discretion of the court.
(City Code 1951, Title 2, § 104; Parish Code 1962, Title 2, § 104)

CHAPTER 3. SIDEWALKS

PART I. OBSTRUCTING SIDEWALKS

Sec. 2:150. Riding on sidewalks. (Parish)

(a) It shall be unlawful for any person to ride or drive horses, carts, carriages or any vehicle whatsoever, except baby carriages and children's tricycles, on any sidewalks of the city and parish.

(b) Any person violating the provisions of this section shall be fined in a sum not exceeding twenty-five dollars ($25.00) or imprisoned for not more than twenty (20) days, or both, at the discretion of the judge.
(City Code 1951, Title 2, §§ 150, 151; Ord. No. 9156, § 1, 10-10-90)

Sec. 2:151. Dangerous trees. (Parish)

It shall be the duty of the director of public works to give ten (10) days' notice to all owners of property having trees on the sidewalks abutting their property which shall have been condemned as a nuisance or as being dangerous to cut down and remove same. Upon the refusal or neglect of such owners to comply with such notice, the director shall cause such trees to be cut down at the expense of the owner.
(City Code 1951, Title 2, § 152; Ord. No. 9156, § 1, 10-10-90)

Sec. 2:152. Displaying of wares. (Parish)

(a) It shall be permissible for any person licensed as a retail merchant in the city and parish to display his goods, merchandise or wares on the sidewalks in front of his store for a distance not greater than two (2) feet from the building line. Nothing in this subsection shall be construed as permitting the erection of any obstruction as is prohibited by section 2:50.

(b) Show windows may extend not more than fourteen (14) inches on the sidewalks from the property line.

(c) Any person convicted of violating the provisions of this section shall be fined not more than ten dollars ($10.00) or imprisoned for not more than ten (10) days' at the discretion of the court, and shall also be required to remove the obstruction, or to pay the cost thereof.
(City Code 1951, Title 2, §§ 153—155; Ord. No. 9156, § 1, 10-10-90)

Sec. 2:153. Gasoline filling stations. (Parish)

(a) It shall be unlawful for any person to establish, erect or operate on any sidewalk or neutral ground in the corporate limits of the city and parish any filling station for sale or storage of gasoline, kerosene or oil, or to park cars serviced by such filling station thereon.

(b) Any violation of the provisions of this section shall be punishable by a fine of not more than fifty dollars ($50.00) or imprisonment not exceeding ten (10) days, or both, at the discretion of the judge.
(City Code, 1951, Title 2, §§ 156, 157; Ord. No. 9156, § 1, 10-10-90)

PART II. REPAIRING, MAINTAINING AND CONSTRUCTING SIDEWALKS

Sec. 2:170. Grade or level to be furnished by department of public works.

All sidewalks which may be constructed or repaired shall be constructed and repaired in accordance with the uniform grade or level to be furnished by the department of public works, who is required to furnish such grade or level on application.
(City Code 1951, Title 2, § 170; Parish Code 1962, Title 2, § 170)

Sec. 2:171. Duty of owners.

It shall be the duty of all owners of lots fronting on streets having paved sidewalks to:

(1) Pave, repair and keep in repair, the sidewalks in front of their said lots by removing all uneven and broken sections and replacing them with such materials as will level the surface and make it uniform;

(2) Provide sufficient drainage over or under the sidewalks to prevent the accumulation or standing of water on or near the sidewalks;

(3) Prevent the growth or accumulation of weeds, grass, dirt or other nuisance on the sidewalks, or the neutral grounds adjacent thereto.

(City Code 1951, Title 2, § 171; Parish Code 1962, Title 2, § 171)

Sec. 2:172. Penalties.

Any person who violates the provisions of this part shall be fined not more than one hundred dollars ($100.00) or imprisoned for not more than twenty (20) days, or both, at the discretion of the court and each day on which a violation occurs or continues shall be considered a separate offense.
(City Code 1951, Title 2, § 172; Parish Code 1962, Title 2, § 172)

Sec. 2:173. Notice of violation.

For the purpose of aiding in the enforcement of this part, the director of public works is hereby authorized to notify any person, either directly, or through their authorized agent, of any violation of the provisions of this part, which notice shall set forth the repairs or maintenance necessary on or to the sidewalk or pavement on or abutting their property or properties. This notice may be given either in writing or by publication in the official journal and the placing of such notice in the U.S. Mails, postage prepaid, addressed to the last record owner of the abutting property or properties, shall be sufficient. If notice is given by publication in the official journal, such notice shall set forth the names of the various persons found to be in violation of the provisions hereof, and shall generally outline the repair or maintenance work required to be done. The failure to make such repairs or to perform such maintenance within ten (10) days of the first publication of such notice in the official journal, or within ten (10) days after the above described notice is placed in the U.S. Mails, shall constitute a separate violation hereunder, and the sending or publishing of such notice shall not excuse the violation committed to continue or in anywise relieve the property owner from the obligations and responsibilities placed upon such owner by the provisions of this part.
(City Code 1951, Title 2, § 173; Parish Code 1962, Title 2, § 173)

CHAPTER 4. BATTURES

PART I. REGULATION OF BATTURES

Sec. 2:200. Sand. (City)

(a) It shall be unlawful for any person to remove, or cause to be removed, sand from the batture of the Mississippi River lying within the limits of the city, without authorization of the council.

(b) Any person violating the provisions of this section shall be fined in a sum not exceeding five dollars ($5.00) for each offense, or imprisonment not exceeding two (2) days, or both, at the discretion of the court.
(City Code 1951, Title 2, §§ 200, 201)

Sec. 2:201. Dirt. (City)

(a) It shall be unlawful for any person to remove, or cause to be removed, dirt from the batture of the Mississippi River lying within the limits of the city, without authorization of the council.

(b) Any person violating the provisions of this section shall be fined at the discretion of the court.
(City Code 1951, Title 2, §§ 202, 203)

CHAPTER 5. SEWERAGE*

PART I. PRETREATMENT OF POLLUTANTS BY INDUSTRIAL USERS

Sec. 2:250. Purpose.

The purpose of this part is to define the legal authority of the pretreatment program, which is to protect the publicly owned treatment works (POTW) and the environment from potential damage that may occur when wastes are discharged into the sewage system.

This chapter sets forth uniform requirements for users of the publicly owned treatment works for the city/parish (C-P) and enables the city-parish to comply with all applicable state and federal laws, including the Clean Water Act (33 United States Code (U.S.C.) section 1251 et seq.) and the General Pretreatment Regulations (Title 40 of the Code of Federal Regulations (CFR) Part 403), and Louisiana Administrative Code ("LAC") Title 33, Part IX, Chapter 61 the objectives of this part are:

(1) To prevent the introduction of pollutants into the POTW that will interfere with the operation of the POTW, or contaminate the resulting sludge;

(2) To prevent the introduction of pollutants into the POTW that will pass through the POTW, inadequately treated, into receiving waters, atmosphere, or otherwise be incompatible with the POTW;

(3) To protect both POTW personnel who may be affected by wastewater and sludge in the course of their employment and the general public;

(4) To enable the city-parish to comply with its NPDES or LPDES permit conditions, sludge use and disposal requirements, and any other federal or state laws to which the POTW is subject;

(5) To improve the opportunity to recycle and reclaim wastewater and sludges from the POTW;

(6) To monitor and regulate the generation, transportation, and disposal of industrial and hazardous waste;

(7) To enforce applicable EPA categorical standards;

(8) To reduce the health and environmental risk of pollution caused by discharges; and

(9) To provide for fees for the equitable distribution of the cost of operation, maintenance, and improvement of the POTW.

This ordinance shall apply to all users of the POTW. The ordinance authorizes the issuance of individual wastewater discharge permits or general permit; provides for monitoring, compliance, and enforcement activities; establishes administrative review procedures; and requires user reporting.
(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:251. Administration.

Except as otherwise provided herein, the director of environmental services shall administer, implement, and enforce the provisions of this part. The director may delegate powers and duties imposed or granted under this part to other city-parish personnel.
(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:252. National pretreatment standards.

(a) All categorical pretreatment standards found in 40 CFR chapter 1 subchapter N, parts 405-471, and LAC 33IX:4903, list of toxic pollutants, industrial categories and other standards and categories which have been or which will be promulgated by the EPA shall be incorporated as a part of this chapter, as will EPA regulations regarding sewage pretreatment established pursu-

*__Editor's note—__Ord. No. 18719, § 1, adopted December 14, 2022, in effect repealed pts. I—IE of ch. 5 (§§ 1:250—1:282) and enacted new pts. I—IE as set out herein and later amended. Former pts. I—IE pertained to similar subject matter and derived from Ord. No. 16120, adopted November 24, 2015; and Ord. No. 16381, adopted November 9, 2016.

__Cross references—__Public health, title 6; plumbing code, 8:101 et seq.

ant to the Clean Water Act; an amendment of this part to incorporate such changes shall not be necessary.

(b) The city-parish reserves the right to require more stringent wastewater discharge limits on permits based on conditions of the treatment facility.
(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:253. Definitions and abbreviations.

(a) *Definitions.* For the purpose of this part, the following words and phrases shall have the meanings ascribed to them in this section except where the context clearly indicates a different meaning.

Act or *the Act* means the Federal Water Pollution Control Act, also known as the Clean Water Act ("CWA") as amended 33 U.S.C. 1251, et seq.

Administrative fine means a punitive monetary charge unrelated to actual treatment costs which is assessed by the city-parish rather than a court.

Administrative order means a document which orders the violator to perform a specific act or refrain from an act. For example, the order may require users to attend a show cause meeting, cease and desist discharging, or undertake activities pursuant to a compliance schedule.

Approval authority means the Louisiana Department of Environmental Quality (LDEQ).

Approved POTW pretreatment program or *program* or *POTW pretreatment program* means a program administered by a POTW that meets the criteria established in the 40 CFR Part 403.8 and 403.9, and LAC 33IX:6115 and 6117 and which has been approved by a regional administrator or state director in accordance with 40 CFR and LAC 33 IX: 1621 of the regulation.

Authority means the director of the department of environmental services of the city-parish, or his/her duly authorized representative.

Authorized representative of industrial user means:

(1) If the user is a corporation:

a. The president, secretary, treasurer, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or

b. The manager of one (1) or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions that govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for individual wastewater discharge permit [or general permit {optional}] requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(2) If the user is a partnership or sole proprietorship: a general partner or proprietor, respectively.

(3) If the user is a federal, state, or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or their designee.

(4) The individuals described in subsections (1) through (3) above, may designate a duly authorized representative if the authorization is in writing, the authorization specifies the individual or position

responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the C-P.

Best management practices or *BMPs* mean schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in 40 CFR Part 403.5(a)(1) and (b)(and LAC 33:IX.6109). BMPs also include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

BOD_5, denoting *biochemical oxygen demand,* shall mean the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure in five (5) days at twenty (20) degrees C, expressed in milligrams per liter.

BOD_{30} shall mean the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure in thirty (30) days at twenty (20) degrees C, expressed in milligrams per liter. The BOD_{30} is 1.25 x BOD_3 on normal domestic sewage.

Building drain shall mean that part of the lowest horizontal piping of a drainage system that receives the discharge waste inside the walls of the building and conveys it to the building sewer, beginning five (5) feet outside the inner face of the building wall.

Building sewer shall mean the extension from the building drain to the public sewer.

Bypass shall be defined as the intentional diversion of wastestreams from any portion of any industrial user's treatment facility.

Capital charge shall mean that portion of the total wastewater treatment service charge which is levied for local capital costs, local investment in plant facilities and other local costs excluding operation, maintenance, and replacement costs.

Categorical industrial user (CIU) means any commercial or industrial user subject to a categorical pretreatment standard or categorical standard.

Categorical pretreatment standards or *categorical standard* means any regulation containing pollutant discharge limits promulgated by the United States EPA in accordance with section 307(b) and (c) of the Act (33 USC 1317) which apply to a specific category of users and which appear in 40 CFR chapter I, subchapter N, parts 405-471 and LAC 33:IX:4903.

Cease and desist order means an administrative order directing an industrial user to immediately halt illegal or unauthorized discharges.

Chain-of-custody means a written record of sample possession for all persons who handle (collect, transport, analyze, dispose of) a sample, including names, dates, times, and procedures followed.

Chemical oxygen demand, frequently denoted as COD, shall mean the measure of the oxygen required to oxidize all compounds, both organic and inorganic, in water, expressed as milligrams per liter.

City-parish means the City of Baton Rouge/ Parish of East Baton Rouge, Louisiana.

City engineer shall mean the chief of the division of engineering and technology of the city-parish.

Civil litigation means a lawsuit filed in a civil court. If the court ruled that the defendant industrial user violated the law the court may impose civil penalties, injunctions or other equitable remedies and/or cost recovery.

Civil penalty means a punitive monetary award granted by a court to the control authority against a noncompliant industrial user.

Compliance order means an administrative order issued by authority of federal, state or local regulation or law directing a noncompliant industry to achieve or restore compliance by a date specified in the order.

Compliance schedule means a schedule of required activities (also called milestones) necessary for an industrial user to achieve compliance with all pretreatment program requirements.

Composite sample means a sample resulting from the combination of individual wastewater samples taken at selected intervals based on an increment of either flow or time, to minimize the effect or the variability of the individual samples. This sampling should be in accordance with 40 CFR part 403, appendix E, subpart I, composite method.

Consent decree means a court supervised settlement agreement, the violation of which may be considered contempt of court.

Consent order means an administrative order embodying a legally enforceable agreement between the control authority and the noncompliant industrial user designed to restore the user to compliance status.

Control authority means the entity directly administering and enforcing pretreatment standards and requirements against industrial users. For purposes of this part the control authority is the approved pretreatment program of the city-parish.

Criminal prosecution means a criminal charge brought by the control authority against an accused violator. The alleged criminal action may be a misdemeanor or a felony and is defined as willful, negligent, knowingly, and/or intentional violations. A court trial-by-jury is generally required and upon conviction, punishment may include a monetary penalty, imprisonment, or both.

Criminal referral. The city-parish shall advise the appropriate prosecuting authority and regulatory agency of any violation of this part that it deems to be of a criminal nature. This notice of criminal conduct shall be made by the city-parish or his/her authorized representative by affidavit setting forth the specific violation and/or conduct.

Department of environmental services means the body or branch of the city-parish government that regulates wastewater and sanitation.

Director means the appointed authority having the power to make decisions.

Discharge means in its verb form: to deposit, conduct, drain, emit, throw, run, allow to seep, or otherwise release or dispose; or to allow, permit, or suffer any of these acts or omissions. In its noun form: discharge is the product of any of these acts.

Disposal means the discharge, deposit, injection, dumping, spilling, leaking or placing of industrial, liquid, or hazardous waste into or on land, water or the POTW.

Disposal site means a permitted facility or part of a permitted facility, including influent collection sewers and sludge handling facilities at which liquid wastes and septage is approved to be collected, transported, treated, and intentionally disposed of by conveyance to receiving waters and/or lands. These types of facilities must be classified as either a type I (landfill) or type V (other, i.e. liquid processing) municipal solid waste facility as defined under 40 CFR part 257 and LAC, part IX, chapter 330, subchapter D, section 330.41(b) and section 330.41(f).

Domestic sewerage means wastewater derived from communities of homes, businesses and institutions.

Domestic waste shall mean liquid waste from non-commercial preparation of cooking and handling of food, or containing human excrement and similar matter from sanitary conveniences (including, but not limited to toilets, sinks, washing machines, dishwashers, lavatories, and bathtubs).

Environmental protection agency or *EPA* means the U.S. Environmental Protection Agency, or, where appropriate, the regional water management division director, the regional administrator, or other duly authorized official of the agency.

Excessive strength sewage means any industrial waste having a total suspended solids or BOD content in excess of that found in normal domestic wastewater but which is otherwise acceptable into a sanitary sewer under the terms of this ordinance.

Excessive strength sewage surcharge means the charge levied against any person for services rendered during treatment of abnormal sanitary sewer or waste. This charge shall be in addition to the usual monthly charge of sanitary sewer service.

Excursion means a temporary incident (intentional/unintentional) in which a pollutant exceeds the range allowed by the applicable effluent limitation guidelines.

Existing source means any source of discharge that is not a new source.

Fee means a schedule of charges imposed to recover treatment costs (not punitive in nature).

Fine means monetary penalty assessed by the authority officials for violation of the law.

Flow discharge means the measured or estimated quantity of wastes discharged by users into the C-P's sanitary sewer system, expressed in one hundred (100) cubic feet (cf) or gallons (gal.).

Food service establishment means any restaurant, eatery, food caterer, cafeteria, or other institution processing and serving food such as but not limited to, motels, hotels, prisons, or daycares, schools.

Garbage shall mean solid wastes from the domestic and commercial preparation, cooking, and dispensing of food, and from the handling, storage, and sale of produce.

Generator means a person who causes, creates, generates, stores or otherwise produces liquid waste, including but not limited to grease trap waste, grit trap waste and septage as a by-product of some domestic or nondomestic activity.

Grab sample means a sample which is taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed fifteen (15) minutes.

Grease means a material either liquid or solid, composed primarily of fats, oils, and grease from animal or vegetable sources. The terms "grease," "fats, oils, and grease (FOG)," or "oil and grease," shall all be included within this definition.

Grease trap means a device utilized by commercial or industrial generators of liquid waste to intercept, collect and restrict the passage of grease and/or solid waste into the sanitary sewer to which the device is directly or indirectly connected. The terms "grease trap," "grease interceptor," or "grease recovery device," shall all be included within this definition.

Grease trap waste means any organic, inorganic, greasy or fatty liquid, semi-liquid, and/or solid wastes collected by and ultimately removed from a grease trap for proper disposal.

Grease waste handling means the collection, transportation, storage, transfer, processing or other handling of grease waste. The term shall not apply to the generator of grease waste or to the storage of grease waste in a grease interceptor.

Grit trap means a receptacle utilized by commercial or industrial generators of liquid waste to intercept, collect and restrict the passage of petroleum-based oil and grease wastes and inorganic or other solids into both private and public sanitary sewers to which the receptacle is directly or indirectly connected.

Grit trap waste means oil and grease wastes, and inorganic solids generated by commercial, industrial, automotive or heavy machinery repair and/or washing facilities that are collected by and ultimately removed from a grit trap for disposal.

Hazardous waste means any liquid, semi-liquid or solid waste (or combination of wastes), which because of its quantity, concentration, physical, chemical or infectious characteristics may:

(1) Have any of the following characteristics: toxic, corrosive, and irritant, a strong sensitizer, flammable or combustible, explosive or otherwise capable of causing substantial personal injury or illness;

(2) Pose a substantial hazard to human health or the environment when improperly treated, stored, transported, or disposed of, or otherwise improperly managed, and is identified or listed as a hazardous waste as defined by the state, or the

administrator, EPA pursuant to the Federal "Solid Waste Disposal Act," as amended by the "Resource Conservation and Recovery Act of 1976" and as may be amended in the future.

Indirect discharge means the introduction of pollutants into the POTW from any nondomestic source regulated under section 307(b), (c) or (d) of the Act (33 U.S.C. 1317) (including holding tank waste discharged into the system).

Industrial cost recovery means the system to recover from industrial users of the POTW, the grant amount allowable to the treatment of wastes from such users.

Industrial district waste means any domestic or nondomestic waste that originates, emanates, or otherwise is generated from any industrial area as set forth in section 1.08(b) and 1.10 of the Plan of Government of the City of Baton Rouge and Parish of East Baton Rouge.

Industrial user (IU) or *user* means any nonresidential user; a source of indirect discharge.

Industrial waste means all water-borne solids, liquids, or gaseous substances resulting from any process of industry, manufacturing, trade, business, food processing operation or any mixture of the waste with water or normal wastewater, or any waste which is distinct from normal domestic wastewater.

Injunctive relief means a court order which restrains or compels action by the industrial user.

Inspector means an authorized representative of the city-parish who examines the user and ensures and enforces compliance with the permit.

Instantaneous limit means the maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composited sample collected independent of the industrial flow rate and the duration of the sampling event.

Interference means any discharge which alone or in conjunction with a discharge or discharges from other sources, inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use or disposal which contributes to a violation of any requirement of the city-parish's NPDES or LPDES permit or any state or federal regulation, industrial waste and water pollution control chapter or causes the city-parish to violate any condition of the contracts for sewage sludge disposal. The term includes prevention of sewage sludge use or disposal by the POTW in accordance with section 405 of the Act, or any criteria, guidelines, or regulations developed pursuant to the Solid Waste Disposal Act (SWDA), the Clean Air Act, the Toxic Substances Control Act, or more stringent state criteria including those contained in any state sludge management plan disposal or use employed by the POTW.

Jurisdiction means the extent of authority of a governmental entity's power to make and enforce laws.

Legal authority means the source of a control authority's jurisdiction and regulatory powers.

Litigation means an enforcement action brought in a judicial (court) forum.

Liquid waste means all waste (and wastewater) removed from traps and tanks including, but not limited to, grease trap waste, and septage; but shall not include hazardous waste.

Liquid waste hauler means any individual engaged in the collection, transportation or disposition of liquid domestic or nondomestic waste and includes the owner/operator of any equipment, facilities, vessels or vehicles engaged in liquid waste hauling activities, and the employees, lessees, representatives or agents of such owner/operator.

Local limit means specific discharge limits developed and enforced by the city-parish upon industrial or commercial facilities to implement the general and specific discharge prohibitions listed in 40 CFR 403.5(a)(1) and (b) and in LAC 33:IX.6109.A (1) and (2).

Louisiana pollution discharge elimination system or LPDES permit means a permit issued pursuant to LAC 33: IX Chapter 23. A permit system for the direct discharge of pollutants into waters of the state.

Manifest means the written documentation required to be in the possession of the transporter enabling disposal of hauled grit trap waste, grease trap waste, and septage at a permitted or registered disposal site. Such documentation shall contain:

(1) The quantity and type of liquid waste being transported;

(2) The generator's name and address at the point of receipt of liquid wastes by the transporter;

(3) The transporter's corporate, business or trade name;

(4) The transport vehicle operator's name;

(5) The transporter's permit number issued by the city-parish' s environmental division;

(6) The registration number assigned to the transporter's vehicle by the state;

(7) The time of disposal; and

(8) The signature of the disposal site operator.

Manifest system means a record keeping and accounting system consisting of a multi-paged trip ticket booklet and other forms used to document specific data regarding the point of generation, transportation, volume and disposal of grit trap waste, grease trap waste, and septage.

May. The word "may" whenever used in this part, will be interpreted in its permissive sense.

Milligrams per liter (mg/l) means the same as parts per million (ppm) expresses as a weight-to-volume ratio.

Monthly average means the sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month.

Monthly average limit means the highest allowable average of "daily discharges" over a calendar month, calculated as the sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month.

Multifamily residential means sixteen (16) or more separate housing units with R-2 occupancy classification for residential inhabitants contained within one building or several buildings within one complex. Units can be next to each other or stacked on top of each other.

National categorical pretreatment standard or pretreatment standard means any regulation containing pollutant discharge limits promulgated by the EPA in accordance with section 307(b) and (c) of the Act (33 USC 1317) which applies to industrial users. This term includes prohibitive discharge limits pursuant to 403.5 and LAC 33: IX: 6109.

National pollutant discharge elimination system or NPDES permit means a permit issued pursuant to section 402 of the Act (33 USC 1342). A permit system for the direct discharge of pollutants into U.S. waterways.

Natural outlet means outlet into a watercourse, pond, ditch, lake, or other body of surface groundwater.

New source means:

(1) Any building, structure, facility or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

a. The building, structure, facility or installation is constructed at a site at which no other source is located; or

b. The building, structure, facility or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

c. The production or wastewater generating processes of the building, structure, facility or installation are substantially independent of an existing source at the same

site. In determining whether these are substantially independent, factors, such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

(2) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility or installation meeting the criteria of subsection (1) b. or c. above but otherwise alters, replaces, or adds to existing process or production equipment.

(3) Construction of a new source as defined has commenced if the owner or operator has begun or caused to begin as part of a continuous on-site construction program:

a. Any placement, assembly, or installation of facilities or equipment; or

b. Significant site preparation work, including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

c. Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this subsection.

Noncontact cooling water means water used for cooling that does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

Nondomestic waste means liquid waste that is not domestic waste including, but not limited to industrial users, regulated commercial facilities, businesses, schools, hospitals, restaurants, and funeral homes.

Normal domestic wastewater (sewage) means a discharge by a person into sanitary sewers in which the average concentration of TSS is not more than two hundred fifty (250) mg/l and BOD is not more than two hundred (200) mg/l, and which is otherwise acceptable into a sanitary sewer under the terms of the permit.

Notice of violation means a control authority document notifying an industrial user that it has violated pretreatment standards and requirements. Generally used when the violation is relatively minor and the control authority expects the violation to be corrected within a short period of time. Notice of violation can be interchangeably used with notice of noncompliance.

Overload means the imposition of organic or hydraulic loading on a treatment facility in excess of its engineering design capacity.

pH means the measure of the acidity or alkalinity of a solution expressed in standard units.

Pass through means a discharge which exits the POTW into waters of the United States in quantities or concentrations which alone or in conjunction with a discharge or discharges from other sources, is a cause of or significantly contribute to a violation of any requirement of the POTW's, NPDES or LPDES permit (including an increase in the magnitude or duration of a violation). An industrial user significantly contributes to such permit violation where it:

(1) Discharges a daily pollutant loading in excess of that allowed by contract with the POTW or by federal, state, or local law;

(2) Discharges wastewater which substantially differs in nature and constituents from the user's average discharge;

(3) Knows or has reason to know that the discharge, alone or in conjunction with discharges from other sources, would result in a permit violation; or

(4) Knows or has reason to know that the POTW is, for any reason, violating its final effluent limitations in its permit and that such industrial user's discharge either alone or in conjunction with discharges from other sources, increases the magnitude or duration of the POTW's violations.

Permit means a document issued to industrial users. This document is commonly known as the control mechanism for the industrial user.

Permittee means a person issued a permit under this part.

Person means any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, government entity or any other legal entity; or their legal representatives, agents or assigns. This definition includes all federal, state, and local governmental entities.

Polluted water means liquid waste containing any of the following:

(1) Free or emulsified grease, and/or oil;

(2) Acids or alkalis;

(3) Phenols or other substances producing taste or odor in receiving water;

(4) Toxic or poisonous substances in suspension, colloidal state, or solution;

(5) Noxious or otherwise obnoxious or odorous gases, liquids, or solids;

(6) More than ten (10) mg/l each of suspended solids or BOD, or both;

(7) Color, either "true" or "apparent," exceeding fifty (50) units as measured by the platinum-cobalt method;

(8) More than five hundred (500) mg/l of dissolved solids, or more than two hundred fifty (250) mg/l of chlorides or more than two hundred fifty (250) mg/l sulfates;

(9) A pH value of less than 6.0 or greater than 10.5; or

(10) Any water or waste not approved for discharge into a stream or waterway by the appropriate state authority.

Pollutant means any dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural and industrial wastes, and certain characteristics of wastewater (e.g. pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

Pollution means the manmade or man-induced alteration of the chemical, physical, biological, and radiological integrity of water.

Pretreatment means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical or biological processes, or process changes by other means, except as prohibited by an applicable pretreatment standard.

Pretreatment requirements means any substantive or procedural requirement related to pretreatment, other than a national pretreatment standard imposed on an industrial user.

Priority pollutants means a list of one hundred twenty-six (126) pollutants established by the EPA and considered hazardous to the environment and to humans. This list is found in 40 CFR 122, appendix D, and LAC 33: IX: 7107, appendix D, Table II.

Process wastewater means any water which during manufacturing or processing, comes into direct contact with or results from the production or use of any raw material intermediate product, finished product, by-product, or waste product.

Properly shredded garbage means that waste from the preparation, cooking, and dispensing of

food has been shredded to such a degree that all particles will be carried freely under the flow conditions normally prevailing in public sewer, with no particle greater than one-fourth (¼) inch in any dimension.

Public sewer means pipe or conduit carrying sanitary wastewater in which owners of abutting properties shall have the use, subject to control by the city-parish.

Publicly owned treatment works or *POTW means* a treatment works, as defined by section 212 of the Act (33 U.S.C. section 1292), which is owned by the city-parish. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature and any conveyances, which convey wastewater to a treatment plant.

Regulatory agency means the United States Environmental Protection Agency or the Louisiana Department of Environmental Quality.

Sanitary sewer means a public sewer that conveys domestic wastewater or industrial wastes or a combination thereof, and into which stormwater, surface water, ground water, and other unpolluted water or wastes are not intentionally passed.

Search warrant means a document issued by a magistrate or judge which authorizes government entry into private premises to either observe compliance with applicable laws or collect evidence of noncompliance.

Segregated domestic wastes means waste generated by domestic activities that are not combined with wastes generated by nondomestic activity such as industrial or commercial activity.

Self-monitoring means sampling and analysis of wastewater performed by the industrial user.

Septage means the liquid and solid material pumped from a septic tank, cesspool or similar domestic sewage treatment system, or a holding tank when the system is cleaned or maintained.

Sewage means human excrement and gray water, including, but not limited to household showers, washing machines and dishwashing operations.

Sewage sludge means any solid, semi-solid, or liquid residue removed during the treatment of municipal wastewater or domestic sewage. Sewage sludge includes, but is not limited to, solids removed during primary, secondary, or advanced wastewater treatment, scum, domestic septage, portable toilet pumpings, type III marine sanitation device pumpings (33 CFR Part 159), and sewage sludge products. Sewage sludge does not include grit or screenings, or ash generated during the incineration of sewage sludge.

Sewage treatment plant means a federally owned, publicly owned, or privately owned device or system used to treat (including recycle and reclaim) either domestic sewage or a combination of domestic sewage and industrial waste of a liquid nature.

Sewage works means all facilities for collecting, pumping, treating, and disposing of sewage.

Sewer means a pipe or conduit for carrying sewage.

Show cause means a formal meeting requiring the IU to appear and demonstrate why the control authority should not take a proposed enforcement action against it. The meeting may also serve as a forum to discuss corrective actions and compliance schedules.

Significant industrial user (SIU) is:

(1) An industrial user subject to categorical pretreatment standards under 40 CFR Chapter I, Subchapter N, Parts 405-471 (LAC 33:IX.4903) ; or

(2) An industrial user that:

a. Discharges an average of twenty-five thousand (25,000) gpd or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewater);

b. Contributes a process wastestream which makes up five (5) percent or

more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or

c. Is designated as such by city-parish on the basis that it has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement.

(3) The city-parish may opt to determine that an industrial user subject to categorical pretreatment standards is a nonsignificant categorical industrial user (NSCIU) rather than a significant industrial user (SIU) on a finding that the industrial user never discharges more than one hundred (100) gallons per day (gpd) of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blowdown wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

a. The industrial user, prior to city-parish finding, has consistently complied with all applicable categorical pretreatment standards and requirements;

b. The industrial user annually submits the certification statement required in Section 2:276(3),40 CFR 403.12(q) and LAC 33:IX.6123 Q, together with any additional information necessary to support the certification statement; and

c. The industrial user never discharges any untreated concentrated wastewater.

(4) Upon a finding that a user meeting the criteria in subsection (2) of this part has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, the city-parish may at any time, on its own initiative or in response to a petition received from an industrial user, and in accordance with procedures in 40 CFR 403.8(f)(6) and LAC 33:IX.6115.F.6, determine that such user should not be considered a significant industrial user.

Significant noncompliance shall be defined as set forth in 40 CFR Part 403.8(f)(2)(viii) and LAC 33:IX.6115.F.2.h.(iii)(IV) (v) and revisions. Criteria used by control and approval authorities to identify important violations and/or patterns of noncompliance. This criteria is used to establish enforcement priorities and comply with special reporting requirements.

Slug load or *slug discharge* means any discharge at a flow rate or concentration, which could cause a violation of the prohibited discharge standards of this part. A slug discharge is any discharge of a nonroutine, episodic nature, including but not limited to an accidental spill or a noncustomary batch discharge which has a reasonable potential to cause interference or pass through, or in any other way violate the POTW's regulations, local limits or permit conditions.

Standard methods means the examination and analytical procedures set forth in the latest approved edition, at the time of analysis, of standard methods for the examination of water and wastewater, as prepared, approved, and published jointly by the American Water Works Association, and the water pollution control federation.

State means the State of Louisiana.

Storm drain, sometimes termed "storm sewer," means a sewer which carries storm and surface waters and drainage, but excludes domestic sewage and industrial wastes, other than unpolluted cooling water.

Stormwater means any flow occurring during or following any form of natural precipitation and resulting from such precipitation; including snowmelt.

Submission means the yielding of the industrial user to the requirements of the permit issued to the industrial user.

Surcharge means the charge for treating excessive pollutant loadings.

Temporary permit means a discharge document for not more than ninety (90) days.

Termination of service means a physical blockage of the sewer connection to a noncompliant user or issuance of a formal notice of termination to the industrial user.

Testimony means a solemn declaration made by a witness under oath in response to interrogation by a lawyer or public official which is used as evidence.

Total suspended solids (TSS) means solids, measured in mg/l, that either float on the surface of, or in suspension in, water, wastewater, or other liquids, and which are largely removable by a laboratory filtration device. Also referred to as total non-filterable residue.

Total toxic organics (TTO) means the sum of mass or concentration of specific toxic organic compounds found in industrial users process discharge.

Toxic pollutant means any pollutant or combination of pollutants listed as toxic in regulations promulgated by the administrator of the Environmental Protection Agency under the provision of CWA 307(a) or other Acts.

Transporter means a person who utilizes public streets and rights-of-way for collection, hauling, and/or disposal of liquid waste, including but not limited to, grease trap waste, grit trap waste, and septage from a generator to a permitted or registered treatment, storage or disposal site or facility.

Trap means a device designed to skim, settle, or otherwise remove grease, oil, sand, flammable wastes or other harmful substances from wastewater.

Treatment plant means that portion of the POTW which is designed to provide treatment (including recycling and reclamation) of domestic sewage and industrial waste.

Treatment works and/or *waste treatment system* means all devices and systems used in the storage, treatment, recycling and reclamation of industrial wastes necessary to recycle or reuse water at the most economical cost over the useful life of the works, including intercepting, sewers, outfall sewers, sewage collection systems, pumping power and other equipment, and their appurtenances; extensions, improvements, remodeling, additions and alterations thereof; elements essential to provide a reliable recycled supply such as standby treatment units and clear well facilities; any works, including site acquisition of the land that will be an integral part of the treatment process or is used for ultimate disposal of residues resulting from such treatment; or any other method or system for preventing, abating, reducing, storing, treating, separating or disposing of industrial waste.

Upset shall be defined as an exceptional incident in which there is unintentional and temporary noncompliance with pretreatment standards because of factors beyond the reasonable control of the user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

User means a source of indirect discharge.

User charge means that portion of the total sewerage charge which is levied in a proportional and adequate manner for the cost of operation, maintenance and replacement of the wastewater treatment and collection system.

Vehicle means a mobile device in which or by which liquid waste may be transported upon a public street or highway.

Waste means rejected, unutilized or superfluous substances in liquid, gaseous, or solid form resulting from domestic, agricultural, commercial or industrial activities.

Wastewater means the liquid and water-carried industrial or domestic waste from dwellings, commercial buildings, industrial facilities and institutions, whether treated or untreated which is discharged into or permitted to enter the POTW.

Wastes from sanitary convenience means sewage wastes, domestic in character, introduced by industrial users of the city-parish's sanitary

sewer systems from sanitary facilities such as those installed and made available for use by the public and/or employees during their hours of employment.

Wastewater facilities means all facilities for collection, pumping, treating, and disposing of wastewater and industrial wastes.

Watercourse means a natural or manmade channel in which a flow of water occurs, either continuously or intermittently.

(b) *Abbreviations.* The following abbreviations, when used in this part, shall have the designated meanings:

(1) BOD_5—Biochemical oxygen demand - five (5) days;

(2) BMP—Best management practice;

(3) BMR—Baseline monitoring report;

(4) C—Centigrade;

(5) CFR—Code of Federal Regulations;

(6) CIU—Categorical industrial user;

(7) COD—Chemical oxygen demand;

(8) City-parish—City of Baton Rouge/Parish of East Baton Rouge, Louisiana;

(9) CWA—Clean Water Act;

(10) EPA—U.S. Environmental Protection Agency;

(11) F—Fahrenheit;

(12) gpd—Gallons per day;

(13) l—Liter;

(14) IU—Industrial user;

(15) LDEQ—Louisiana Department of Environmental Quality;

(16) LA—Louisiana;

(17) LAC—Louisiana Administrative Code;

(18) LPDES—Louisiana Pollutant Discharge Elimination System;

(19) MG—Million gallons;

(20) mg/l—Milligrams per liter;

(21) NOV—Notice of violation;

(22) NPDES—National Pollutant Discharge Elimination System;

(23) NSCIU—Non-significant categorical industrial user;

(24) POTW—Publicly owned treatment works;

(25) RCRA—Resource Conservation and Recovery Act;

(26) SIC—Standard industrial classification;

(27) SIU—Significant industrial user;

(28) SNC—Significant noncompliance;

(29) SV—Significant violation;

(30) TRC—Technical review criteria;

(31) TSS—Total suspended solids;

(32) TTO—Total toxic organics;

(33) USC—United States Code.

(Ord. No. 18719, § 1, 12-14-22)

PART IA. WASTEWATER STANDARDS, PERMITS AND PROHIBITIONS

Sec. 2:254. Prohibited discharge standards.

Pollutants, substances, or wastewater prohibited by this section shall not be processed or stored in such a manner that they could be discharged to the POTW.

(1) *General prohibitions.* No user shall introduce or cause to be introduced into the POTW any pollutant(s) or wastewater which causes pass through or interference. These general prohibitions apply to each user introducing pollutants into the POTW whether or not the user is subject to other national pretreatment standards or any national, state, or local pretreatment requirements.

(2) *Specific prohibitions.* The following pollutants, substances, or wastewater are hereby prohibited, and shall not be stored,

processed, or hauled in such a manner that they could be discharged to the POTW.

a. Pollutants which create a fire or explosive hazard in the POTW, including, but not limited to, wastestreams with a closed-cup flashpoint of less than one hundred forty (140) degrees Fahrenheit (sixty (60) degrees Celsius) using the test methods specified in 40 CFR 261.21;

b. Wastewater having a pH less than 6.0 or greater than 10.5, or otherwise causing corrosive structural damage to the POTW or equipment;

c. Solid or viscous substances in amounts which cause obstruction to the flow in the operation of the POTW resulting in interference including but not limited to ashes, cinders, textiles, sand, mud, straw, shaving metals, glass, feathers, tar, plastics, wood, unground garbage, whole blood, paunch manure, hair, fleshing, entrails, paper, dishes, and cups;

d. Any pollutants, including oxygen-demanding pollutants (BOD, etc.) released in a discharge at a flow rate and/or pollutant concentration which, either singly or by interaction with other pollutants, will cause interference with the POTW;

e. Any wastewater with heat in amounts of or greater than one hundred forty (140) degrees Fahrenheit (sixty (60) degrees Celsius) at the discharge point which will allow grease to pass through the grease removal devises, but in no case shall heat in such quantities that the temperature at the POTW treatment plant exceed one hundred four (104) degrees Fahrenheit (forty (40) degrees Celsius), which will inhibit biological activity in the POTW treatment process;

f. Petroleum oil, non-biodegradable cutting oil, or products of mineral oil origin;

g. Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems;

h. Trucked or hauled pollutants, except at discharge points designated by the POTW;

i. Wastewater which imparts color which cannot be removed by the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions, which consequently imparts color to the treatment plant's effluent, thereby violating the city-parish's regulatory or any other regulatory permit;

j. Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;

k. Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail a toxicity test;

l. Detergents, surface-active agents, or other substances which cause excessive foaming;

m. Fats, oils, or grease of animal or vegetable origin in concentration greater than one hundred (100) mg/l;

n. Sludges, screenings, or other residues from the pretreatment of industrial wastes;

o. Unusual concentrations of inert suspended solids, such as but not limited to Fuller's earth, lime slurries, and lime residues, or of dissolved solids, such as but not limited to sodium chloride and sodium sulfate;

p. Unusual volume of flow or concentration of wastes consisting of slug loads;

q. Any waters containing strong acid iron pickling waste, or concentrated plating solutions;

r. For flammability of wastewater discharges, at no time shall two (2) successive readings on an explosion hazard meter, at the point of discharge into the system or at any point in the system downstream of this point, be more than or equal to five (5) percent nor any single reading over or equal ten (10) percent of the lower explosive limit (LEL) of the meter. Additionally, it shall be specified that no material with a closed cup flashpoint of one hundred and forty (140) of shall be discharge.

s. Dilution as a substitute for treatment is prohibited except where expressly authorized to do so by an applicable pretreatment standard or requirement in accordance with 40 CFR 403.6(d) and LAC 33:IX.6111.D.

(3) *Specific pollutant limitations. Local limits.* The city-parish is authorized to establish Local Limits pursuant to 40 CFR 403.5(c) and LAC 33:IX.6109.C. The following pollutant limits are established to protect against pass through and interference. These limits apply at the point where the user's wastewater is discharged to the sanitary sewer system. All concentrations for metallic substances are for "total" metal unless indicated otherwise. The city- parish may impose mass limitations in addition to, or in place of, the concentration-based limitations.

a. Containing any substance exceeding the following limits based upon a thirty (30) day average, which average may be determined by no less than one (1) discharge monitoring test for each monitoring period as required by permit:

Discharges to North Wastewater Treatment Plant are subject to the following technology based local limits:

1. 100 mg/l oil and grease.
2. 1.08 mg/l arsenic.
3. 0.86 mg/l cadmium.
4. 96.01 mg/l chromium.
5. 19.67 mg/l copper.
6. 1.9 mg/l cyanide.
7. 8.58 mg/l lead.
8. 0.63 mg/l mercury.
9. 1.326 mg/l molybdenum.
10. 7.09 mg/l nickel.
11. 1.331 mg/l selenium.
12. 6.07 mg/l silver.
13. 21.14 mg/l zinc.

Discharges to South Wastewater Treatment Plant are subject to the following technology based local limits:

1. 100 mg/l oil and grease.
2. 1.82 mg/l arsenic.
3. 1.35 mg/l cadmium.
4. 99.77 mg/l chromium.
5. 25.08 mg/l copper.
6. 2.62 mg/l cyanide.
7. 10.86 mg/l lead.
8. 0.67 mg/l mercury.
9. 2.68 mg/l molybdenum.
10. 7.85 mg/l nickel.
11. 1.78 mg/l selenium.
12. 8.44 mg/l silver.
13. 51.43 mg/l zinc.

b. Containing any substance exceeding the following limits based upon a thirty (30) day average, which average may be determined by no less than one (1) discharge monitoring test for each monitoring period required by permit:

1. BOD_5-200 mg/l; and
2. TSS-250 mg/l.

Except as such discharges are determined by the director to cause any of the conditions set forth in subsection 2:254(1) and (2), for purposes of enforcement, any discharge of BOD5 or TSS exceeding

these parameters shall be handled exclusively through surcharges as provided in Ordinance 7853.

Additionally, the user shall, at a minimum repeat the sampling and analysis and submit the results of the repeat analysis to the authority within thirty (30) days after becoming aware of the non-surcharge-able (shall be defined as all parameters other than BOD_5 and TSS) and surcharge-able parameter exceedances. For purposes of enforcement, any discharge of non-surcharge-able parameters exceeding the values or in violation or noncompliance to the rules set forth in subsections 2:254(1), (2), (3a) shall be handled exclusively through penalties as provided in enforcement response plan and part IE of this chapter.

(3) *National categorical pretreatment standards.* Users must comply with the categorical pretreatment standards found at 40 CFR Chapter I, Subchapter N, Parts 405-471 (LAC 33:IX.4903).

When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the city-parish shall impose an alternate limit in accordance with 40 CFR 403.6(e) and LAC 33:IX.6111.E.

(4) *State pretreatment standards.* Users must comply with the State of Louisiana Pretreatment Regulations codified at Louisiana Administrative Code (LAC), Title 33, Part IX, and Chapter 61.

(5) *Dilution.* No user shall ever increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with a discharge limitation unless expressly authorized by an applicable pretreatment standard or requirement. The city-parish may impose mass limitations on users who are using dilution to meet applicable pretreatment standards or requirements, or in other cases when the imposition of mass limitations is appropriate.

(6) *More stringent limit applies.* Should regulations, state or federal, reduce the limitation for any specified pollutant, the more stringent limit shall become the standard.

(7) *Flow measurement.* All permitted significant industrial users or industrial users requested by the director or his/her designee shall provide information showing the measured or estimated average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined wastestream formula set out in 40 CFR 403.6(e) and LAC 33:IX.6111.E.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:255. Discharge of substances requiring approval by the city-parish.

The following may be approved by the city-parish in accordance with applicable federal, state, and local law. The circumstances shall be based on a fact finding investigation to ensure no detrimental impact on the POTW which will be caused.

(1) Stormwater, surface water, ground water, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water, and unpolluted wastewater;

(2) Medical waste;

(3) Increases in the process water for adequate treatment to achieve compliance discharge limitations as expressly authorized by the applicable pretreatment standards or requirements.

(4) Mass limitations or equivalent concentration in accordance with 40 CFR 403.6(c) and LAC 33:IX.6111.(C) where a category pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater;

(5) Alternate limit using the combined wastestream formula (40 CFR 403.6(e) and LAC 33:IX.6111.(E)) when wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard; or

(6) A variance from a categorical pretreatment standard if the user can prove, pursuant to the procedural and substantive provisions in 40 CFR 403.13 and LAC 33:IX.6125 that factors relating to its discharge are fundamentally different from the factors considered by the EPA when developing the categorical pretreatment standard.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:256. Compliance with pretreatment standards.

(a) *Pretreatment facilities.* Users shall provide wastewater treatment as necessary to comply with this part and shall achieve compliance with all national pretreatment categorical standards, local limits, and the prohibitions of this part within the time limitations specified by the EPA, state, or city-parish, whichever is more stringent. All facilities needed for compliance shall be provided, operated, and maintained at all times at the user's expense. Detailed plans describing such facilities and operating procedures shall be submitted to the city-parish for review, and shall be acceptable to the city-parish before such facilities are constructed. The review of such plans and operating procedures shall in no way relieve the user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the city-parish under the provisions of this part.

(b) No liquid waste hauler shall discharge or cause to be discharged into the POTW system any liquid domestic or nondomestic waste except as authorized by the director in accordance with the provisions of this ordinance. Under no circumstances shall the director authorize such discharge prior to receipt of a completed discharge form as prescribed by the director and analyses which confirm that such discharge will meet all discharge limitations set forth in section 2:254. All discharges must meet current and future local, state and federal requirements.

(c) No domestic or nondomestic waste or wastewater shall be discharged into the POTW system from any non-city/parish-owned treatment facility or industrial holding tank except as authorized by the director in accordance with the provisions of this ordinance.

(d) No domestic or nondomestic waste or wastewater shall be directly discharged into the POTW system from any out-of-parish source. However, such waste may be discharged into the POTW system after in-parish pretreatment and as authorized by the director in accordance with the provisions of this ordinance.

(e) No domestic or nondomestic waste or wastewater shall be discharged into the POTW system from any grease trap, portable toilet, holding tank or septic tank prior to receipt by the director of analyses which confirm that such discharge will meet all discharge limitations set forth in section 2:254. All discharges must meet current and future local, state and federal requirements.

(f) No industrial district waste or wastewater, regardless of source, shall be discharged into the POTW system; except that the discharge of domestic waste only from the industrial district into the POTW system shall be allowed if an individual first proves that it was discharging into the POTW system as of the date of the adoption of resolution number 35620 (February 23, 1994), secures the approval of the East Baton Rouge Sewerage Commission and executes an approved contract requiring the individual to pay for all costs associated with the treatment of the domestic waste.

(g) A bypass or the intentional diversion of wastestreams from the treatment system is prohibited unless all of the following conditions are met:

(1) The bypass was unavoidable to prevent loss of life, personal injury, or severe property damage.

(2) There was no feasible alternative to the bypass, including the use of auxiliary treatment or retention of the wastewater.

(3) The industrial user properly notified the director as described in subsection 2:282(c).

(h) *Additional pretreatment measures.*

(1) Whenever deemed necessary, the city-parish shall require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams, and such other conditions as may be necessary to protect the POTW and determine the user's compliance with the requirements of this part.

(2) The city-parish shall require any person discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. A wastewater discharge permit may be issued solely for flow equalization.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:257. Fats, oils, and grease removal.

(a) Grease, oil, and sand interceptors shall be provided when, in the opinion of the city-parish, they are necessary for the proper handling of wastewater containing excessive amounts of grease and oil, or sand; except that such interceptors shall not be required for single family residential users but will be required for multifamily residential property. All interceptor units shall have covers with mechanisms for secure closing and shall be of type and capacity approved by the city-parish. They shall be so located to be easily accessible for cleaning and inspection. It shall be the responsibility of the user and owner, at the owner's expense, to regularly inspect, clean, and repair each interceptor and the cover and closing mechanism thereof. The introduction or addition of any product or substance which causes grease or oil to pass through the interceptor is strictly prohibited. It shall be the responsibility of the user and owner to insure that the cover is in place and securely closed at all times except during use, inspection, cleaning and repair. Failure to maintain the interceptor in proper working order shall be cause for discontinuance of sewer service. All interceptors shall be of sufficient size and design determined by the authority.

(b) Users with the potential to discharge flammable substances shall be required to install and maintain an approved combustible gas detection meter.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:258. Special agreements for acceptance of industrial wastes.

No statement contained in this part shall be construed as preventing any special agreement or arrangement between the city-parish and an industrial concern whereby an industrial waste of unusual strength or character may be accepted by the city-parish for treatment, subject to payment therefore by the industrial concern, so long as all state and federal limitations and requirements are and will continue to be met by such industry. Payment by the industry shall include cost recovery for construction, operation and maintenance of the increment of the wastewater treatment facilities required to treat the waste discharge of the industry. Costs to be considered shall include:

(1) Costs of amortization of the indebtedness for the cost of the sewage works.

(2) Costs of operation and maintenance of the sewage works.

(3) Any additional costs which are necessary to ensure adequate treatment on a continuous basis.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:259. Discharge of liquid waste at unapproved locations prohibited.

No person shall discharge or cause to be discharged any septic tank or privy effluent contents, animal or vegetable fat, oil used in or

derived from food preparation except at a location approved for such discharge by local, state or federal authorities.
(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:260. Liquid waste hauler permit required.

Liquid waste haulers of liquid domestic and nondomestic waste, septage, and grease trap waste which are generated within the city-parish limits, or which will be discharged within the city-parish limits, must have a liquid waste hauler permit issued by the city-parish, department of environmental services and a current effective sewage sludge hauler license through the Louisiana Department of Environmental Quality. The permit may be revoked or suspended if the person ceases to meet any of the requirements within the permit or violates any provisions of this chapter. The liquid waste hauler's permit shall include the provisions in section 2:254, 2:256, and the following:

(1) No liquid waste hauler shall discharge or cause to be discharged into the POTW system any liquid domestic or nondomestic, and grease trap waste except as authorized by the director in accordance with the provisions of this section and part I of this chapter. Under no circumstances other than an emergency situation in in which a threat exists to the public health, safety, or welfare, shall the director authorize such discharge of liquid domestic waste at a location other than the city-parish POTW North Treatment Plant. The provisions hereof do not abrogate the obligations of a liquid waste hauler to fully comply with the requirements of part I of this chapter thereof.

(2) For every truck tank (full or partially full) disposing of liquid domestic waste to the city-parish POTW system a nonnegotiable fee of fifteen cents ($0.15) per gallon will be charged for discharge into the POTW system. The amount charged will be based upon the delivery vehicle's total holding capacity regardless of the actual volume discharge into the POTW system.

(3) For every truck tank, container, or vessel transported to a city-parish facility designated by the director for the disposal of grease trap waste, the director shall provide a means for measurement of materials actually disposed of and a nonnegotiable fee of twenty-five cents ($0.25) per gallon will be charged for such disposal.

(4) The times, days, and locations operated by the city-parish for liquid domestic waste or grease trap waste disposal will be regulated by the director or his designee and shall be prominently posted at the designated receiving site. The schedules for disposal may be altered or suspended from time to time as deemed necessary by the director to assure proper operation and maintenance of the POTW system, and to assure compliance with all pertinent rules, regulations, permit conditions or legal obligations, to assure compliance with any portion of this ordinance and to assure the health, safety and welfare of the public.

(5) The director, or his authorized representative or designee, may reject the discharge of any liquid domestic waste into the POTW system which has the potential to cause:

a. Interference with the POTW system operation;

b. Pass-through of the POTW system;

c. Operational or maintenance problems with any aspects of the POTW system:

d. Noncompliance by the POTW system with any rules, regulations, standards, criteria, limits or permits issued or enforced by the EPA or the LDEQ;

e. Noncompliance with any provision of this chapter; or

f. A threat or potential threat to the safety, health or welfare of the public.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:261. Discharge of septage.

(a) No user shall discharge or cause to be discharged any septage into the city-parish sewage works except effluent or contents originating within the parish.

(b) Septage may be introduced into the POTW only at locations designated by the authority, and at such times as are established by the city-parish. Such waste shall not violate section 2:260 or any other requirements established by the city-parish. The city-parish shall require septage haulers to obtain liquid waste hauler permits.

(c) No hauled septage from an industry shall be accepted at the POTW nor discharged at any other point in the sanitary sewer system.

(d) Septage haulers may discharge loads only at locations designated by the city-parish. No load may be discharged without prior consent of the city-parish. The city-parish may collect samples of each hauled load to ensure compliance with applicable standards. The city-parish may require the septage hauler to provide a waste analysis of loads prior to discharge.

(e) Septage haulers must provide a waste-tracking manifest for every load. This form shall be designed by the city-parish and shall be a part of the liquid waste hauler permit. The form shall identify the origin of the wastes. The fee for the form shall be established by the director.
(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:262. Transportation and testing of hauled waste.

All hauled waste shall be transported in watertight tanks. No waste may be spilled or leaked while the waste is being handled, transported, stored or discharged. The director may test or may require the waste hauler to test any waste prior to discharge for abnormal and hazardous substances and refuse to allow that waste to be discharged.
(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:263. Vehicle requirements for liquid waste haulers.

Any liquid waste hauler's vehicles shall be subject to the following requirements:

(1) No person shall discharge or cause to be discharged any septage under a liquid waste hauler permit as required by this section 2:261 unless the vehicle carrying the waste is properly licensed by the state to haul sewage sludge and the vehicle's tank capacity in gallons is clearly marked or identified on the tank.

(2) Every vehicle used to transport liquid domestic waste or grease trap waste shall have painted or permanently affixed on the vehicle, in proportional letters not less than three (3) inches in height, the name of the person owning and/or operating the vehicle. Every such vehicle shall have painted on the sides, in numerals of the same height the tank/container size and the permit or registration number issued by the department of environmental services. Such markings will be placed so as to be clearly and easily visible and in no way interfere with the operation of the vehicle or impair the vision of the driver.

(3) Operation of vehicles restriction. No vehicle shall be operated except by the owner/operator thereof or by a duly authorized agent and/or employee of the owner. No liquid domestic waste vehicle shall be used, leased or rented or sold to any firm, individual, partnership, corporation, or any association to transport any waste other than liquid domestic waste. No grease trap waste vehicle shall be used, leased or rented or sold to any firm, individual, partnership, corporation, or any association to transport any waste other than grease trap waste. When any vehicle used to transport liquid domestic or grease trap waste is sold, junked, discarded, or wrecked, the owner shall report in writing to the department of environmental services within five (5)

working days the condition or disposal of any vehicle no longer used by the owner.

(4) The owner or his duly authorized agent or employee shall inspect each vehicle on a daily basis. No vehicle shall be used to transport liquid domestic waste or grease trap waste that from use, dilapidation, wear, leakage or other causes or mechanical failure is unsafe to operate on the roads and streets of the city-parish. The director or his duly authorized employees shall have the authority at any time to inspect any such vehicles for the purpose of determining whether or not the same is safe for transporting liquid domestic or grease trap waste. A daily inspection log will be kept with the vehicle at all times.

(5) The owner/operator or his duly authorized agent shall obtain an occupational license and show proof of said license before being issued a permit or registration.

(6) The owner shall obtain and show proof of an LDEQ sewage sludge hauler permit.

(7) Insurance requirements. Each liquid waste hauler and each grease trap waste hauler who desires to enter upon and/or discharge/dispose into city-parish facility shall provide proof of insurability before being allowed to operate in the city and the parish. Every vehicle shall be insured by an insurance company qualified to write liability insurance in the State of Louisiana. Documentation evidencing proof of insurance in accordance with the requirements hereof shall be kept on the vehicle at all times of operation.

a. The insurance coverage and limits of liability required for liquid domestic waste hauling or grease trap waste hauling shall be:

1. Comprehensive general liability, bodily injury, or death, five hundred thousand dollars ($500,000.00) each occurrence.

2. Automobile liability owned, non-owned, leased, hired, one million dollars ($1,000,000.00) combined single limit each occurrence:

(i) Bodily injury or death, two hundred fifty thousand ($250,000.00) each person, five hundred dollars ($500,000.00) each occurrence.

(ii) Property damage, five hundred thousand dollars ($500,000.00) each occurrence, one million ($1,000,000.00) combined single limit.

b. Each liquid, domestic waste hauler or grease hauler shall in conjunction with a permit application and every three (3) years thereafter, furnish the director a certificate of insurance in triplicate form, from an insurance carrier authorized to write liability insurance in the State of Louisiana, showing coverage in force and in amounts at least equal to those set forth above. All policies are to be endorsed to provide for ten (10) days' written notice in the event of cancellation, modification of coverage or limits; and any certificate of insurance filed with the director shall so state.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:264. Regulating waste discharge from other jurisdictions.

Any user of the city-parish's POTW shall be subject to all rules and regulations pertaining to the POTW and its jurisdiction.

(1) The city-parish enters into an agreement with the neighboring jurisdiction, in which the industrial user is located, to provide for the implementation and enforcement of the pretreatment program requirements against the industrial user.

(2) Multi-jurisdiction agreements would require that the contributing municipality either regulate the dischargers within

its jurisdiction directly or allow the municipality to regulate such dischargers.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:265. Confidential information.

Information and data on a user obtained from reports, surveys, wastewater discharge permit applications, wastewater discharge permits, and monitoring reports, and from pretreatment or facility inspection and sampling activities, shall be available to the public without restriction, unless the user specifically requests, and is able to demonstrate to the satisfaction of the director, that the release of such information would divulge information, processes, or methods of production entitled to protection as trade secrets under applicable state law. Any such request must be asserted at the time of submission of the information or data. When requested and demonstrated by the user furnishing a report that such information should be held confidential, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available immediately upon request to governmental agencies for uses related to the NPDES or LPDES programs or pretreatment program, and in enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics and other "effluent data" as defined by 40 CFR and LAC 33:IX.6127 will not be recognized as confidential information and will be available to the public without restriction.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:266. Accidental discharge/slug control plans.

The city-parish shall evaluate whether each significant industrial user needs an accidental discharge/slug control plan within one (1) year of being designated a significant industrial user. The permit may require any user to develop, submit for approval, and implement such a plan or take such other action that may be necessary to control slug discharges. Alternatively, the city-parish may develop such a plan for any user. Significant industrial users are required to notify the POTW immediately of any changes at its facility affecting potential for a slug discharge. An accidental discharge/slug control plan shall address, at a minimum, the following:

(1) Description of discharge practices, including non-routine batch discharges;

(2) Description of stored chemicals;

(3) Procedures for immediately notifying the city-parish (225-389-5456) of any accidental or slug discharge, as required by the discharge permit; as well as follow up procedures for a written notification within five (5) days of the discharge; and

(4) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:267. Liquid wastes regulations.

(a) *Purpose.* To regulate all generators, collector/transporters, transfer/receiving stations and disposal facilities that operate within the city-parish and/or are connected to the city-parish's sewerage system as it relates to grease trap wastes, septage, and liquid nondomestic wastes. For purposes of enforcement, any violation or noncompliance of this section shall be handled exclusively through penalties as provided in enforcement response plan and part IE of this chapter.

(b) *Authority.*

(1) Chapter 5, sewerage, of this Code as it relates to the city-parish's pretreatment regulations.

(2) United States EPA pretreatment regulation, 40 CFR 403.1(b) and 403.5 and

Louisiana Administrative Code, LAC 33:IX.6101 (B) covered by pretreatment standards.

(c) *Responsibilities.*

(1) *Generator.*

a. Must have an approved city-parish permit that ensures that all discharges into the POTW are in accordance with the pretreatment regulations excluding septage generators.

b. Must ensure that the collection system is kept clean and sanitary and is properly functioning at all times.

c. Must ensure that the collector/transporter is permitted by the city-parish.

d. Must witness the cleaning of the system.

e. Must manifest all waste that is being removed offsite for treatment and/or disposal and that all completed manifests are kept on site for at least three (3) years. Manifests to be only city-parish approved manifests.

f. Must ensure that all waste removed be disposed of and/or treated at an approved, licensed or permitted facility that meets all local, state, and federal rules or regulations.

(2) *Collector/transporter.*

a. Must have an approved city-parish permit if the waste is collected or disposed of within the city-parish limits.

b. Must have an effective LDEQ sewage sludge hauler license.

c. Vehicles utilized for collection and transportation must be properly sized, watertight containers, and equipped with proper equipment to handle the transfer of the waste. See additional requirements on section 2:263.

d. Must use city-parish approved manifests and only one (1) manifest is to be utilized for each business collected per event. Copy of completed manifest to be submitted to the city-parish and the generator with one (1) copy kept on file.

e. Collected waste shall be disposed of at an approved licensed or permitted facility that meets all local, state and federal rules and regulations.

f. Pumping reports must be entered into the online pretreatment management system within ten (10) business days.

(3) *Transfer/receiving station.*

a. Must have a city-parish approved permit prior to accepting waste if facility is located within the city-parish limits.

b. When accepting waste generated within the city-parish, the waste must be manifested on a city-parish approved manifest.

(4) *Disposal facility.*

a. Must have a city-parish approved permit prior to accepting waste if located within the city-parish limits.

b. Can only accept waste that is manifested on a city-parish approved manifest.

c. Must ensure that all discharges are in compliance with the pretreatment program, NPDES permit or LPDES permit.

(5) *City-parish.*

a. Responsible for enforcing the pretreatment standards.

b. Reviews and approves all permits in accordance with the pretreatment program.

c. Inspects and execute necessary enforcements to permitted facilities to determine compliance.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:268. Permits required.

For purposes of enforcement, any violation or noncompliance of this section shall be handled exclusively through penalties as provided in enforcement response plan and part IE of this chapter.

(1) *Industrial users.* All industrial users shall be required to obtain a wastewater discharge permit, and shall not commence any construction, modification or addition to any industrial facility which discharges or will discharge industrial waste without first submitting a discharge permit application.

a. *Permit application submittal.*

1. Existing users who were discharging wastewater into the POTW prior to the effective date of this part must submit a permit application (available from the department (not set out herein; on file with the city-parish) within ninety (90) days prior to the expiration date of the existing permit.

2. New sources or proposed users are required to obtain a wastewater discharge permit prior to the beginning of such discharge. A temporary permit for not more than a total of ninety (90) days may also be issued by the director this will include but not limited to facilities performing: for the purpose of trial testing the new setup of the new facility or temporary facilities who will be discharging wastewater into the sewer for a temporary duration of time. These applications must be approved prior to the date which any discharge will begin. Refer to section 2:276 for additional reporting requirements.

3. Incomplete or inaccurate applications will not be processed and will be returned to the user for revision with a notice of deficiency.

4. All wastewater discharge permit applications and user reports must be signed by an authorized representative of the user and contain the following certification statement:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person(s) who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

b. *Wastewater discharge permit contents.* Wastewater discharge permits shall include such conditions as are deemed reasonably necessary by the city-parish to prevent pass through or interference, protect the quality of the receiving water body, the treatment plant's effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW.

1. Wastewater discharge permits shall contain, but are not limited to:

(i) A statement that indicates wastewater discharge

permit duration, which in no event shall exceed three (3) years;

(ii) A statement that the wastewater discharge permit is nontransferable with the exception of cases provided in this section;

(iii) Effluent limits, including best management practices, based on categorical standards, local limits, and other state and local standards;

(iv) Self-monitoring, sampling, reporting, notification, and recordkeeping requirements. These requirements shall include an identification of pollutants to be monitored, sampling location, sampling frequency, and sample type based on federal, state, and local law;

(v) A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule. Such schedule may not extend the time for compliance beyond that required by applicable federal, state, or local law;

(vi) Requirements to control slug discharges, if determined by the POTW to be necessary; and

(vii) Any best management practices required by the federal, state, or local authorities and documentation of compliance therewith.

2. Wastewater discharge permits may contain, but need not be limited to, the following conditions:

(i) Limits on the average and/or maximum rate of discharge, time of discharge, and/or requirements for flow regulation and equalization;

(ii) Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works;

(iii) Requirements for the development and implementation of spill control plans or other special conditions including management practices necessary to adequately prevent accidental, unanticipated, or nonroutine discharges;

(iv) Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the POTW;

(v) The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the POTW;

(vi) Requirements for installation and maintenance of inspection and sampling facilities and equipment;

(vii) A statement that compliance with the wastewater discharge permit does not relieve the permittee of

responsibility for compliance with all applicable federal and state pretreatment standards, including those which become effective during the term of the wastewater discharge permit; and

(viii) Other conditions as deemed appropriate by the city-parish to ensure compliance with this part, and state and federal laws, rules, and regulations.

c. *Wastewater discharge permit duration.* A standard wastewater discharge permit shall be issued for a period of three (3) years from the effective date of the permit. Each wastewater discharge permit will indicate a specific beginning date and a date upon which it will expire.

d. *Wastewater discharge permit modification.* The city-parish may require a user's wastewater discharge permit to be modified for good cause, including, but not limited to, the following reasons:

1. To incorporate any new or revised federal, state, or local pretreatment standards or requirements;
2. To address significant alterations or additions to the user's operation, processes, wastewater volume or character discharge permit issuance;
3. A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;
4. Information indicating that the permitted discharge poses a threat to the city-parish's POTW, city-parish personnel, or the receiving waters;
5. Violation of any terms or conditions of the wastewater discharge permit;
6. Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in any required reporting;
7. Revision of or a grant of variance from categorical pretreatment standards pursuant to 40 CFR 403.13 and LAC 33:IX.6125;
8. To correct typographical or other errors in the wastewater discharge permit;
9. To reflect a transfer or change of contact of the facility ownership or operation to a new owner or operator; or
10. The voluntary request by the user.

e. *Wastewater discharge permit transfer.* Failure to provide advance notice of a transfer renders the wastewater discharge permit void as of the date of facility transfer. Wastewater discharge permits may be transferred to a new owner or operator only if the permittee gives advance notice to the city-parish and the city-parish approves the wastewater discharge permit transfer. The notice to the city-parish must include a "written certification" by the new owner or operator which:

1. States that the new owner and/or operator has no immediate intent to change the facility's operations and processes;
2. Identifies the specific date on which the transfer is to occur; and
3. Acknowledges full responsibility for complying with the existing wastewater discharge permit.

f. *Statement of denial for change of process.* A statement in the permit enabling the director to deny or condition new or increased contributions of pollutants, or changes in the nature of pollutants, to the treatment system by the industrial user, where such contributions do not meet applicable pretreatment standards and requirements or where such contributions would cause the city-parish to violate its NPDES or LPDES permit.

g. *Upset.* Incident shall be reported to the city-parish within twenty-four (24) hours of becoming aware of the upset and shall be followed by a written submission within five (5) days.

h. *Bypass.* The provisions for bypass are as follows:

1. *Notice.* If an industrial user knows in advance of the need for a bypass, it shall submit prior written notice to the city-parish, if possible at least ten (10) days before the date of the bypass.

2. *Prohibition of bypass.*

(i) Bypass is prohibited, and the city-parish may take enforcement action against an industrial user for a bypass, unless: (a) the bypass was unavoidable to prevent loss of life, personal injury, or severe property damage; (b) there were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventative maintenance; and (c) the industrial user submitted notices as required under subsection h.1. above.

(ii) The city-parish may approve an anticipated bypass, after considering its adverse effects, if the city-parish determines that it will meet the three (3) conditions listed above.

(2) *Food service establishments.* All food service establishments, which are considered industrial users, within the city-parish are required to obtain a permit from the city-parish, department of environmental services and comply with this section. The permits ensure that the facilities install the appropriate grease-removal equipment designed to trap cooking fats, oil and grease before it enters the wastewater system. Food service establishments are encouraged to implement "Best Management Practices for Food Service Establishment Facilities," available from the department.

(3) *Non SIU's.* Non SIU's include but are not limited to food service establishments, multifamily residential, laboratories—medical and science, silver discharges, healthcare facilities, daycare facilities, schools, industrial/automotive equipment repair/washing, automotive repair, dry cleaners, laundry facilities, embalming facilities, dental amalgam or dental facilities, waste haulers, nursing homes, facilities with oil and water separators are required to obtain a permit from the city-parish and comply with this section. All other commercial facilities not listed above that may pose a threat to the POTW through the director's recom-

mendation shall register as a general commercial facility. The permits ensure that the facilities implement "best management practices."

(4) *Conditions for granting or renewing permits.* No permit shall be granted or renewed unless the industrial user seeking the permit has first obtained all licenses and permits to operate the facility in question from all applicable local, state and/or federal agencies as may be required by local, state or federal law or regulation, and no permit shall be granted or renewed if there are any fines or delinquent payments owed by the user to the city-parish.

(5) *Waiver or variance.* Upon the approval of the director of environmental services, a regulated commercial facility may receive a waiver, variance or exception to the discharge limitations as set forth in sections 2:254 to 2:256 only upon a showing that, based upon the activities conducted by the regulated commercial facility, there exists no potential that the facility may discharge directly or indirectly;

a. Any pollutant, contaminant or wastewater that will pass through or interfere with the operation or performance of any POTW;

b. Any substance(s) or concentration of substance(s) that would constitute a violation of the local limits established by this chapter; or

c. Any substance(s) or concentration of substance(s) that would constitute a violation of any applicable federal or state laws or regulations.

(6) *Permit application, issuance and expiration.*

a. Existing users who were permitted to discharge wastewater into the POTW prior to the effective date of this part must continue to adhere and comply to their permit requirements. Enforcement actions via the department's enforcement response plan will be taken for any violations of the permit requirements.

b. Existing industrial users who are not currently permitted to discharge wastewater into the POTW prior to the effective date of this part must submit a new permit application. Enforcement actions via the department's enforcement response plan will be taken after this date for failure to obtain a permit.

c. New sources or proposed users are required to obtain a wastewater discharge permit prior to the beginning of such discharge. This application must be approved prior to the date which any discharge will begin.

d. For NSIU applications shall be submitted online at http://fog.brla-.gov or other designated city-parish website For SIU applications, the user need to contact the department at 225-389-5456.

e. Permits are valid three (3) years from the date of issuance.

f. Permit fees will not be prorated based on the date of issuance.

g. Permit is not transferable between owners, locations, or otherwise.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:269. Miscellaneous provisions.

Pretreatment charges and fees. The following wastewater discharge permit fees shall apply:

(1) *Significant categorical industrial user fees.*

a. Regular permit (three (3) years)..... $3,000.00

b. Zero discharge permit (three (3) years) $3,000.00

c. Modification..... $200.00

(2) *Significant industrial user (non-categorical).*

a. Regular permit (three

	(3) years).....	$3,000.00
b.	Zero discharge permit (three (3) years)	$3,000.00
c.	Modification.....	$200.00
(3)	*Non-significant user (with or without laboratory requirements).*	
a.	Regular permit (three (3) years).....	$300.00
b.	Special condition permit (three (3) years)	$300.00

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:270. Fees for liquid waste hauler permits.

The fee for issuance of a liquid waste hauler permit shall be three hundred dollars ($300.00) for regular permit of three (3) years duration and two hundred dollars ($200.00) for any modifications. And if in cases for waste haulers discharging liquid domestic wastes and grease trap wastes to the city-parish treatment plants refer for the fee payments on section 2:260.
(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:271. Analytical requirements.

All pollutant measurements, tests, and analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report shall be performed in accordance with the techniques prescribed in 40 CFR part 136 and part 403.12 and LAC 33.IX:6123 as applicable, and amendments unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR part 136 does not contain sampling or analytical techniques for the pollutant in question, sampling and analyses must be performed in accordance with procedures approved by the EPA.

(1) *Sample collection.* All wastewater samples must be representative of the user's discharge during the reporting period. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

a. Except as indicated in subsection (1) b. below, the user must collect wastewater samples using flow proportional composite collection techniques. In the event flow proportional sampling is infeasible, the city-parish may authorize the use of time proportional sampling or a minimum of four (4) grab samples where the user demonstrates that this will provide a representative sample of the effluent being discharged. In addition, grab samples may be required to show compliance with instantaneous discharge limits.

b. Samples for oil and grease, temperature, pH, cyanide, phenols, sulfides, and volatile organic compounds (VOC) must be obtained using grab collection techniques.

c. Samples shall be preserved according to 40 CFR part 136(4). Chain of custody shall be provided per 40 CFR part 403 and LAC 33:IX.6123.O.

d. If the user monitors any pollutant more frequently than required by the city-parish, using test procedures prescribed in 40 CFR Part 136 or amendments thereto, or otherwise approved by the U.S. Environmental Protection Agency (EPA) or as specified in this permit, the results of such monitoring must be included in any calculations of actual daily maximum or monthly average pollutant discharge, and results must be reported and shall be included in the next required reporting period. Such results are also subject to twenty-four (24) hour reporting if in violation of the ordinance.

(2) *Timing.* Written reports will be deemed to have been submitted on the date received. For reports which are not mailed,

postage prepaid, into a mail facility serviced by the United States Postal Service, the date of receipt of the report shall govern.

(Ord. No. 18719, § 1, 12-14-22)

PART IB. PRETREATMENT FACILITIES OPERATIONS AND MAINTENANCE

Sec. 2:272. Operations and maintenance of preliminary treatment, pretreatment, or flow-equalizing facilities.

Where preliminary treatment, pretreatment, or flow-equalizing facilities are provided for any waters or wastes, they shall be maintained continuously in satisfactory and effective operation by the owner at his expense.

(1) Treatment units, grease traps, interceptors, separators, and holding tanks, shall be operated in a safe and secure manner at all times.

(2) Areas surrounding treatment units, grease traps, interceptors, separators and holding tanks shall be maintained to facilitate immediate access to the unit for cleaning by waste haulers and for inspection by the city-parish or its designee at all times.

(3) Treatment units, grease traps, interceptors and separators shall be maintained in continuously efficient operation by the owner or operator at his expense and shall produce an effluent in compliance with this or other applicable ordinance.

(4) A user shall not remove any down pipes or otherwise alter a grease trap, interceptor or separator in any way which may allow oil, grease, sand, or other objectionable materials to pass through the device into the sanitary sewer.

(5) A user shall not modify or otherwise alter a treatment process in any way which may allow prohibited contaminants, contaminant levels, or other objectionable materials to pass through the device into the sanitary sewer.

(6) Where the city-parish or its designee must clean associated public sewers caused by inappropriate operation or maintenance, inadequate design or installation, or inappropriate alteration of a treatment unit, grease trap, interceptor or separator, costs of such cleaning may be billed to the user.

a. In a case where several users are discharging to the same sewer line, all the users shall be equally liable and be permitted except where the user provides written proof his discharge could not have been a contributing factor.

b. Proof shall consist of demonstration of adequate sizing and installation; appropriate cleaning (as documented by manifests and inspection documentation) and valid analysis of a sample of the discharge collected within one (1) week of the sewer cleaning activities. Analysis of samples collected after sewer line cleaning will be accepted only where the grease trap, interceptor or separator has been properly maintained and was not cleaned within thirty (30) days of the sewer cleaning activities.

(7) A user shall not increase the use of water or in any other way attempt to dilute the wastestream in lieu of adequate treatment.

(8) The addition of hot water (> one hundred forty (140)°F) or the use of emulsifiers, chemicals, or other agents or devices that may cause oil, grease, or sand to pass through a treatment facility or into the sanitary sewer collection system is strictly prohibited.

(9) Areas surrounding a grease trap, interceptor, separator or holding tank shall be kept clean and free of grease and odors and other materials at all times.

a. Materials shall not be splashed, spilled, allowed to overflow, or

otherwise placed on the area surrounding a grease trap, interceptor or separator.

b. In the event materials are spilled, splashed, overflowed, or otherwise placed on the surrounding area, the generator or owner shall assure the materials are cleaned from the area and properly disposed.

(10) The director of environmental services at his/her discretion can require the installation of treatment units, grease traps, interceptors, separators, and holding tanks.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:273. Cleaning of grease removal facilities.

(a) Inspection, cleaning, and other necessary maintenance of such facilities shall be conducted by the user as often as needed to assure the discharge is in compliance with the provisions of this chapter or other applicable ordinance, but not less than once per ninety (90) days. Refer to subsection (e) below for conditions and requirements for the exemptions/exclusions of the required interval of ninety (90) days cleaning.

(1) The trap, interceptor or separator shall be cleaned as often as necessary, up to and including daily, to assure compliance with this chapter or other applicable ordinance.

(2) In no case shall the accumulated grease, oil, solids or sand be allowed to occupy more than thirty-three (33) percent of the capacity of the first stage.

(b) The physical condition of the trap, interceptor, or separator (piping, internal walls, sidewalls, etc.) shall be inspected by a qualified representative of the user and witnessed by the user each time the facility is cleaned. Repairs, if needed, shall be made prior to further use.

(1) Repairs or modifications shall be approved by the plumbing inspector and shall not be made without the appropriate city-parish permits.

(2) Inspection shall be conducted by the plumbing inspector after repair and prior to refilling or use. A copy of the inspection tag issued by the plumbing inspector shall be maintained on-site by the user and a copy shall be sent to the control authority or its designee.

(3) Documentation of repairs shall be submitted to the control authority or its designee within thirty (30) days of the date of repair or earlier if specified in a notice of deficiency or other control authority or its designee issued document.

(c) Grease traps, interceptors, and separators shall produce an effluent in compliance with this part at the user's pumping schedule. Schedules inadequate to produce such effluent shall be upgraded as often as necessary, up to and including daily, or the trap, separator, or interceptor shall be upgraded.

(1) Grease traps, interceptors, separators and holding tanks shall be fully evacuated of all contents during cleaning. If the capacity of the trap, interceptor, separator or holding tank is greater than the capacity of the transport vehicle where full evacuation is not possible in a single load, then the transporter and the generator shall assure the contents are fully evacuated within twenty-four (24) hours.

(2) No liquid waste shall be returned to the trap, interceptor, separator or holding tank after or during cleaning, either from the same or other trap, interceptor, separator or holding tank.

(3) During cleaning, grease residue shall be removed from piping and walls and the piping and walls shall be inspected to assure the integrity of the device is maintained.

(4) Residual cleaning water shall also be evacuated.

(d) In lieu of the required frequency of every ninety (90) days cleaning of traps, interceptors, or separators from subsection (a) above, an exemption/exclusion will be authorized and granted by the director or his/her designee,

provided the user shall submit a formal letter of request to the director or his/her designee and also shall satisfy all of the following conditions:

(1) The trap, interceptor or separator shall be inspected three (3) times within the ten (10) days prior the ninetieth day required cleaning frequency for its physical conditions (piping, internal walls, sidewalls, cover/manhole, etc.). The inspection report shall be included from the letter of request to the director or his/her designee no later than the ninetieth day deadline.

(2) Included in the inspection report above will be the findings that in no case shall the accumulated grease, oil, solids or sand be allowed to occupy more than five (5) percent of the capacity of the first stage.

(3) Or for cases that the trap, interceptor, or separator is no longer in use or that the trap, interceptor, or separator is completely dry during inspection (three (3) times) within the prior ten (10) days period, provide and submit a documentation and a written statement of certification signed by the users' authorized representative of such cases shall be included in the inspection report. The certification statement shall contain the following:

"I certify under penalty of law that the trap/interceptor/separator is NO LONGER IN USE/COMPLETELY DRY. Based on my inquiry of the person(s) directly responsible for managing compliance with the permit limitation and/or pretreatment standard for grease related wastewater discharges, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I further certify that this facility complied with the requirements of the City-Parish Ordinance 16120 Section 2:273(e). I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(4) All of the users' inspection reports submitted must be signed by an authorized representative of the user and shall contain the following certification statement:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person(s) who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I further certify that this facility complied with the requirements of the City-Parish Ordinance 16120 Section 2:273(e). I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(5) Exemption/exclusion will not be granted if the user failed to satisfy the requirements set forth from the conditions stated above in subsections (1)—(4) above.

(6) If the user desire to do so, the user is required to file another request for exemption/exclusion for the next succeeding ninetieth day cleaning periods.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:274. Control manhole.

When required by the director, the owner of any property serviced by a building sewer carrying industrial wastes shall install a suitable control manhole together with such necessary meters and other appurtenances in the building sewer facility for continuous observation, sampling and measurement of the wastes. Such manhole, when required, shall be accessibly and safely located, and shall be constructed in accordance

with plans approved by the director. The manhole shall be installed by the owner at his expense, and shall be maintained by him so as to be safe and accessible at all times. The control manhole shall be upstream of any and all building sanitary sewer connections that are not connected to the building treatment facility.
(Ord. No. 18719, § 1, 12-14-22)

PART IC. FACILITY INSPECTIONS AND SAMPLING

Sec. 2:275. Right of entry, inspection and sampling.

(a) *Right of entry.* The city-parish shall have the right to enter the premises of any user to determine whether the user is complying with all requirements of this part and any wastewater discharge permit or order issued hereunder. Users shall allow the city-parish ready access to all parts of the premises for the purposes of inspection, observation, measurement, sampling, testing, records examination and copying, photography documentation, and the performance of any additional duties.

(1) Where a user has security measures in force which require proper identification and clearance before entry into its premises, the user shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, the city-parish or state will be permitted to enter without delay for the purposes of performing specific responsibilities.

(2) The city-parish shall have the right to set up on the user's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the user's operations.

(3) The city-parish may require the user to install a sampling site and monitoring equipment as necessary. The facility's sampling site and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the user at its own expense. All devices used to measure wastewater flow and quality shall be calibrated semiannually to ensure their accuracy. Documentation of the calibrations shall be retained by the user for a period of three (3) years.

(4) Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the user at the request of the authority and shall not be replaced.

(5) Unreasonable delays in allowing the city-parish access to the user's premises shall be a violation of this part.

(6) The city-parish bearing proper credentials and identification shall be permitted to enter all private properties through which the city-parish holds a duly negotiated servitude for purposes such as but not limited to inspection, observation, measurement, sampling, repair and maintenance of any portion of the sewerage works lying within the servitude. All entry and subsequent work, if any, on the easement shall be done in full accordance with the terms of the duly negotiated servitude pertaining to the private property involved.

(b) *Inspection.* The city-parish shall inspect all significant industrial users at least once a year in accordance with 40 CFR 403.8(f) (2) (v) and LAC 33:IX.6115.F.2.e.

(c) *Sampling.*

(1) The city-parish shall sample all categorical and significant industrial users at least once per year in accordance with 40 CFR 403.8(f)(2)(v) and LAC 33IX:6115.F.2.e.

(2) All categorical and significant industrial users shall sample their discharge and report to the city-parish at a frequency determined by the city-parish, but in no case less than once every six (6) months in accordance with the requirements of 40 CFR 403.12(e), (g) and (h) and LAC 33:IX.6123 (E), (G), & (H).

(3) All other users requiring monitoring shall monitor at least once per year.

(4) All other users exempted for this requirement shall do a certification that their facility is in compliance with their applicable BMPs by uploading the BMP documents at the city-parish website, http://fog.brla.gov.

(d) *Search warrants.* If the director or his/her assignee has been refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this chapter, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of the city-parish designed to verify compliance with this chapter or any permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, the director may seek issuance of a search warrant from the appropriate court of city/parish.
(Ord. No. 18719, § 1, 12-14-22)

PART ID. REPORTING AND RECORDKEEPING

Sec. 2:276. Reporting.

The following reports shall be required when applicable. The reports and other documents are:

(1) *Self-monitoring reports.*

a. All the significant industrial user (categorical/non-categorical) shall, at a frequency to monitor and report the parameters applicable to the industrial user as determined by the city-parish in reference to the national, state, and local pretreatment standards. Industrial users under zero discharge permit shall do reporting via submission of compliance certification statement at a frequency determined by the city-parish. Reports or certifications shall be made using a form supplied by the city-parish.

b. All analyses and sampling shall be pursuant to the recommendations set forth on section 2:271 of this chapter. All compliant and non-compliant data shall be reported.

c. Copies of chart records for cases of continuous monitoring shall be included in the report.

d. For any parameter to be in non-compliance with this ordinance, the user shall report results within twenty-four (24) hours of becoming aware of the violation.

e. If the results of the wastewater analyses indicate that a violation of this ordinance has occurred, the user must do a retest, a repeat sampling and pollutant analysis is required, and submit, in writing, the results of this second analysis within thirty (30) days of becoming aware of the first violation.

f. Self-monitoring reports are due fifteen (15) days after the due date set forth by the city-parish in the permit issued to the user.

g. If the user monitors any pollutant more frequently than required by the city-parish, using test procedures prescribed in 40 CFR Part 136 or amendments thereto, or otherwise approved by the U.S. Environmental Protection Agency (EPA) or as specified in this ordinance, the results of such monitoring must be included in any calculations of actual daily maximum or monthly average pollutant discharge, and results must be reported and shall be included in the next scheduled reporting period. Such results are also subject to twenty-four (24) hour reporting if in violation of this permit.

h. Reports shall be signed with an authorized signature along with the following certification statement.

"I certify under penalty of law that this document and all attachments

were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(2) *Baseline monitoring reports.* Within either one hundred eighty (180) days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR 403.6(a) (4) and LAC 33:IX.6111.A.4, whichever is later, existing categorical industrial users (CIU's) currently discharging to or scheduled to discharge to the POTW shall submit to the city-parish a report which contains the information listed in this subsection (2). At least ninety (90) days prior to commencement of their discharge, new sources, and sources that become CIU's subsequent to the promulgation of an applicable categorical standard, shall submit to the city-parish a report which contains the information listed in this subsection (2). A new source shall report the method of pretreatment it intends to use to meet applicable categorical standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged. Users described in this subsection, shall submit the information set forth below.

a. *Identifying information.* The name and address of the facility, including the name of the operator and owner.

b. *Environmental permits.* A list of any environmental control permits held by or for the facility.

c. *Description of operations.* A brief description of the nature, average rate of production, and standard industrial classifications of the operation(s) carried out by such user. This description should include a schematic process diagram which indicates points of discharge to the POTW from the regulated processes.

d. *Flow measurement.* Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined wastestream formula set out in 40 CFR 403.6(e) and LAC 33:IX.6111.E.

e. *Measurement of pollutants.*

1. The categorical pretreatment standards applicable to each regulated process.

2. The results of sampling and analysis identifying the nature and concentration, and/or mass, where required by the standard or by the city-parish, of regulated pollutants in the discharge from each regulated process. Instantaneous, daily maximum, and long-term average concentrations, or mass, where required, shall be reported. In cases where compliance with a best management practice or pollution prevention alternative is required, the user shall submit documentation as required by the city-parish to determine the compliance status of the user. The sample shall be representative of daily operations and shall be analyzed in accordance with analytical procedures on section 2:271.

3. Sampling must be performed in accordance with procedures set out in subsection 2:271(1) of this chapter.

4. The user shall take a minimum of one representative sample to compile that data necessary to comply with the requirements of this paragraph.

5. Samples should be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment the user should measure the flows and concentrations necessary to allow use of the combined wastestream formula in 40 CFR 403.6(e) and LAC 33:IX.6111.E to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with 40 CFR 403.6(e) and LAC 33:IX.6111.E this adjusted limit along with supporting data shall be submitted to the city-parish.

6. The city-parish may allow the submission of a baseline report which utilizes only historical data so long as the data provides information sufficient to determine the need for industrial pretreatment measures;

7. The baseline report shall indicate the time, date and place of sampling and methods of analysis, and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

f. *Certification.* Certification statement must be in compliance with 40 CFR 403.12(1) and 40 CFR 403.6(a) (2) (ii) and LAC 33:IX.6123.L and LAC 33:IX.6111.A.2.b. "I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

g. *Signature and certification.* All baseline monitoring reports must be signed and certified.

(3) *Annual certification by non-significant categorical industrial users (NSCIUs).* A facility determined to be a non-significant categorical industrial user by the city-parish pursuant to part IA above must annually submit the following certification statement signed. This certification must accompany an alternative report required by the city-parish:

Based on my inquiry of the person or persons directly responsible for managing compliance with the categorical Pretreatment Standards under 40 CFR [specify applicable national pretreatment standard part(s)], I certify, to the best of my knowledge and belief that, during the period from [month, day, year, to [month, day, and year]:

i. The facility described as ____ [facility name] met the definition of a Non-Significant Categorical Industrial User as described in Part IA; [Note: See 40 CFR 403.3(v)(2) and LAC 33:IX.6105];

ii. The facility complied with all applicable Pretreatment Standards and requirements during this reporting period; and

iii. The facility never discharged more than 100 gallons of total categorical wastewater on any given day during this reporting period.

This compliance certification is based on the following information. "[Insert narrative description]"

_____

_____

(4) *Compliance schedule.* If additional pretreatment and/or operation and maintenance will be required to meet the pretreatment standards, a schedule for compliance must be approved by the city-parish. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. A compliance schedule pursuant to this section must meet the requirements set out in this part.

(5) *Compliance schedule progress reports.* The following conditions shall apply to the compliance schedule, if required:

a. The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards;

b. No increment referred to above shall exceed the time approved by the city-parish.

c. The user shall submit a progress report to the city-parish no later than fourteen (14) days following each date in the schedule and the final date of compliance including, as a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the user to return to the established schedule.

(6) *Reports on compliance with categorical pretreatment standard deadline.* Within ninety (90) days following the date for final compliance with applicable categorical pretreatment standards, or in the case of a new source following commencement of the introduction of wastewater into the POTW, any user subject to such pretreatment standards and requirements shall submit to the city-parish a report containing the information described above. For users subject to equivalent mass or concentration limits established in accordance with the procedures in 40 CFR 403.6(c) and LAC 33.IX.6111.C, this report shall contain a reasonable measure of the user's long-term production rate. For all other users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with this part.

(7) *Periodic compliance reports (PCR).*

a. In compliance to regulation 40 CFR 430.12(h) and 40 CFR 403.12(e) (1)—(3), all significant industrial users shall, at a frequency determined by the city-parish but in all cases at least once every six (6) months, submit a report indicating the nature and concentration of pollutants in the discharge which are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting period. In cases where compliance with a best management practice or pollution prevention alternative is required, the user shall submit documentation as required by the city-parish to determine the

compliance status of the user reports shall be made using a form supplied by the city-parish.

b. Periodic compliance reports shall be due no later than September 30th for the January to June reporting period and by the 31st of March for the July to December reporting period.

(7.5) *Monitoring and analysis to demonstrate continued compliance.*

a. All wastewater samples must be representative of the user's discharge during the reporting period. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

b. If a user subject to the reporting requirement in this section monitors any pollutant more frequently than required by the authority, using test procedures prescribed in 40 CFR Part 136 or amendments thereto, or otherwise approved by the U.S. Environmental Protection Agency (EPA) or as specified in this permit, the results of such monitoring must be included in any calculations of actual daily maximum or monthly average pollutant discharge, and results must be reported and such results are also subject for inclusion in the PCR reporting period.

c. The reports required in this section must be based upon data obtained through appropriate sampling and analysis performed during the period covered by the report, which data are representative of conditions occurring during the reporting period. The city-parish shall require that frequency of monitoring necessary to assess and assure compliance by industrial users with applicable pretreatment standards and requirements. Grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds. For all other pollutants, twenty-four (24) hour composite samples must be obtained through flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the city-parish. Where time-proportional composite sampling or grab sampling is authorized by the city-parish, the samples must be representative of the discharge and the decision to allow the alternative sampling must be documented in the industrial user file for that facility or facilities. Using protocols (including appropriate preservation) specified in 40 CFR part 136 and appropriate EPA guidance, multiple grab samples collected during a twenty-four (24) hour period may be composited prior to the analysis as follows: For cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the city-parish, as appropriate.

(8) *Reporting requirements for industrial users not subject to categorical pretreatment standards.* The city-parish must require appropriate reporting from those industrial users with discharges that are not subject to categorical pretreatment standards. Significant non-categorical industrial users must submit to the city-parish at least once every six (6) months

(on dates specified by the control authority) a description of the nature, concentration, and flow of the pollutants required to be reported by the city-parish. In cases where a local limit requires compliance with a best management practice or pollution prevention alternative, the user must submit documentation required by the city-parish to determine the compliance status of the user. These reports must be based on sampling and analysis performed in the period covered by the report, and in accordance with the techniques described in 40 CFR part 136 and amendments thereto. This sampling and analysis may be performed by the city-parish in lieu of the significant noncategorical industrial user.

(9) *Reports of planned significant change.* Each user must notify the city-parish of any planned significant changes to the user's operations or system which might alter the nature, quality, or volume of its wastewater at least thirty (30) days before the change.

a. The user shall submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application.

b. The city-parish may issue a wastewater discharge permit or modify an existing wastewater discharge permit according to this part in response to changed conditions or anticipated changed conditions.

c. For purposes of this requirement, significant changes include, but are not limited to, flow increases or decreases of one thousand (1,000) gpd or greater, and the discharge of any previously unreported pollutants.

(10) *Reports of potential problems.*

a. In the case of any discharge, including, but not limited to, accidental discharges, discharges of a nonroutine, episodic nature, a noncustomary batch discharge, or a slug load, that may cause potential problems for the POTW, the user shall immediately telephone and notify the city-parish of this incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the user.

b. Within five (5) days following such discharge, the user shall submit a detailed written report describing the cause(s) of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the user of any fines, penalties, or other liability which may be imposed pursuant to this part.

c. A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees whom to call in the event of a discharge described in the paragraph above. Employers shall ensure that all employees, who may cause such a discharge to occur, are advised of the emergency notification procedure.

(11) *Reports from other users.* Other users shall provide appropriate reports to the city-parish as the pretreatment program requires.

(12) *Notice of violation/repeat sampling and reporting.* If sampling performed by a user indicates a violation, the user must notify the city-parish within twenty-four (24) hours of becoming aware of the violation. The user shall, at a minimum,

and in addition to any other required corrective action specified by the city-parish, also repeat the sampling and analysis and submit the results of the repeat analysis to the city-parish within thirty (30) days after becoming aware of the violation. If the city-parish monitors at the user's facility at least once per month, or between the user's initial sampling and the time when the user receives the results of this sampling, then the user may not be required to resample.

(13) *Provision governing fraud and false statements.* Documents required to be submitted and/or maintained shall be subject to:

a. The provisions of 18 USC § 1001, R.S. 30:2076.2 relating to fraud and false statements;

b. The provisions of section 309(c)(4) of the Act, as amended, governing false statements, representation or certification; and

c. The provisions of section 309(c)(6) of the Act regarding responsible corporate officers.

(14) *Notification of the discharge of hazardous waste.*

a. Any user who commences the discharge of hazardous waste shall notify the POTW, the EPA regional waste management division director, and state hazardous waste authorities, in writing, of any discharge into the POTW of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR Part 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the user discharges more than one hundred (100) kilograms of such waste per calendar month to the POTW, the notification also shall contain the following information to the extent such information is known and readily available to the user: an identification of the hazardous constituents contained in the wastes, an estimation of the mass and concentration of such constituents in the wastestream discharged during that calendar month, and an estimation of the mass of constituents in the wastestream expected to be discharged during the following twelve (12) months. All notifications must take place no later than one hundred and eighty (180) days after the discharge commences. Any notification under this paragraph need be submitted only once for each hazardous waste discharged. However, notifications of changed conditions must be submitted under subsection 2:276(7) of this chapter. The notification requirement in this section does not apply to pollutants already reported by users subject to categorical pretreatment standards under the self-monitoring requirements of subsection 2:276(1) of this chapter.

b. Dischargers are exempt from the requirements of subsection a. above, during a calendar month in which they discharge no more than fifteen (15) kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e). Discharge of more than fifteen (15) kilograms of nonacute hazardous wastes in a calendar month, or of any quantity of acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e), requires a one-time notification. Subsequent months during which the User discharges more than such quantities of any hazardous waste do not require additional notification.

c. In the case of any new regulations under section 3001 of RCRA identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the user must notify the city-parish, the EPA regional waste management waste division director, and state hazardous waste authorities of the discharge of such substance within ninety (90) days of the effective date of such regulations.

d. In the case of any notification made under this section, the user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

e. This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this chapter, a permit issued thereunder, or any applicable federal or state law.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:277. Record keeping.

Users subject to this part shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this part, including documentation associated with best management practices, and any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements. Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. Records shall also include, but not be limited to, cleaning manifests, permits, correspondence from the city-parish, including but not limited to notices of violation or noncompliance, compliance orders, etc. These records shall remain available, onsite at the location of the permitted facility, for a period of at least three (3) years. This period shall be automatically extended for the duration of any litigation concerning the user or the city-parish, or where the user has been specifically notified of a longer retention period by the city-parish.

(Ord. No. 18719, § 1, 12-14-22)

PART IE. ENFORCEMENT AND PENALTIES

Any violation(s) or noncompliance(s) to all the parts and sections of this chapter shall be handled by this part.

Sec. 2:278. Enforcement.

(a) *Administrative enforcement.*

(1) *Notification of violation/noncompliance.* When the city-parish finds that a user has violated, or continues to violate, any provision of this part, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, the city-parish may serve upon that user a written notice of violation/noncompliance. Within the days specified of receipt of this notice, the user shall correct the violation/noncompliance or provide an explanation of the violation/noncompliance and a plan for the satisfactory correction and prevention thereof, to include specific required actions, shall be submitted by the user to the city-parish. Submission of this plan in no way relieves the user of liability for any violations/noncompliance occurring before or after receipt of the notice of violation/noncompliance. Nothing in this section shall limit the authority of the city-parish to take any action, including emergency actions or any other enforcement actions, without first issuing a notice of violation/noncompliance.

(2) *Consent orders.* The city-parish may enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with any user responsible for noncompliance. Such documents will include specific action to be taken by the user to correct

the noncompliance within a time period specified by the document. Such documents shall have the same force and effect as the administrative orders and shall be judicially enforceable.

(3) *Show cause hearing.* The city-parish may allow a user which has violated, or continues to violate, any provision of this part, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, to appear before the city-parish and show cause why the proposed enforcement action should not be taken. Notice shall be served on the user specifying the time and place for the meeting, the proposed enforcement action, the reasons for such action, and a request that the user show cause why the proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by registered or certified mail (return receipt requested) at least thirty (30) days prior to the hearing. Such notice may be served on any authorized representative of the user as defined in section 2:253 of the definitions and abbreviations. A show cause hearing shall not be a bar against, or prerequisite for, taking any other action against the user.

(4) *Compliance orders.* When the city-parish finds that a user has violated, or continues to violate, any provision of this part, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, the city-parish may issue an order to the user responsible for the discharge directing that the user come into compliance within a specified time. If the user does not come into compliance within the time provided, occupational license may be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Compliance orders also may contain other requirements to address the noncompliance, including additional self-monitoring and management practices designed to minimize that amount of pollutants discharged to the sewer. A compliance order may not extend the deadline for compliance established for a pretreatment standard or requirement, nor does a compliance order relieve the user of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a bar against, or a prerequisite for, taking any other action against the user.

(5) *Cease and desist orders.* When the authority finds that a user has violated, or continues to violate, any provision of this part, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, or that the user's past violations are likely to recur, the city-parish may issue an order directing it to cease and desist all such violations and directing the user to:

a. Immediately comply with all requirements; and

b. Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge. Issuance of a cease and desist order shall not be a bar against, or a prerequisite for, taking any other action against the user.

(6) *Civil fines.*

a. When the city-parish finds that a user has violated, or continues to violate, any provision of this part, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, the city-parish shall fine such user according to the schedule of civil fines detailed in this ordinance, as shown in the city-parish enforcement response plan in an amount not to exceed the sum of one thousand dollars ($1,000.00). Such fines shall be assessed on a per-

violation, per-day basis. In the case of monthly or other long-term average discharge limits, fines shall be assessed for each day during the period of violation.

b. Unpaid charges, fines, and penalties shall, after thirty (30) calendar days be assessed an additional penalty of one (1) percent of the unpaid balance, and interest shall accrue thereafter at a rate of twelve (12) percent per year. A lien against the user's property will be sought for unpaid charges, fines, and penalties.

c. The city-parish may add the costs of preparing administrative enforcement actions, such as notices and orders, to the fine. In addition to fines, the user may be required to reimburse the city-parish for other expenses associated with enforcement activities, including sampling and monitoring activities, and the cost of any actual damages incurred by the city-parish.

d. Issuance of an administrative fine shall not be a bar against, or a prerequisite for, taking any other action against the user.

(7) *Emergency suspensions.* The city-parish may immediately suspend a user's discharge, after informal notice to the user, whenever such suspension is necessary to stop an actual or threatened discharge which reasonably appears to present or cause an imminent or substantial endangerment to the health or welfare of persons, or may present endangerment to the operation of the POTW or may present an endangerment to the environment. Written notice shall follow within seven (7) days. Any user notified of a suspension of its discharge shall immediately stop or eliminate its contribution. In the event of a user's failure to immediately comply voluntarily with the suspension order, the city-parish may take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the POTW, its receiving stream, or endangerment to any individuals. The city-parish may allow the user to recommence its discharge when the user has demonstrated to the satisfaction of the city-parish that the period of endangerment has passed, unless the termination proceedings in part IE, section 2:278 and section 2:281 of this chapter are initiated against the user.

a. The city-parish may allow the user to recommence its discharge when the user has demonstrated to the satisfaction of the city-parish that the period of endangerment has passed, unless the termination proceedings in this part are initiated against the user.

b. A user that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement, describing the causes of the harmful contribution and the measures taken to prevent any future occurrence, to the city-parish.

(8) *Termination of discharge.* In addition to the above provisions of this part, any user who violates the following conditions is subject to discharge termination:

a. Violation of wastewater discharge permit conditions;

b. Failure to accurately report the wastewater constituents and characteristics of its discharge;

c. Failure to report significant changes in operations or wastewater volume, constituents, and characteristics prior to discharge;

d. Refusal of reasonable access to the user's premises for the purpose of inspection, monitoring, or sampling; or

e. Violation of any pretreatment standards of this part.

(9) *Appeals of administrative enforcement actions.* Users desiring to dispute any enforcement actions must file a written appeal within ten days to the director of environmental services. A timely and properly filed appeal shall suspend the effect of the action appealed until the director of environmental services has ruled on the appeal, except for actions taken in order to stop an actual or threatened discharge determined by the director of the department of environmental services to present or cause imminent or substantial endangerment to the health or welfare of persons, the operation of the POTW, or the environment.

(b) *Judicial enforcement remedies.*

(1) *Injunctive relief.* Whenever a user has violated, or continues to violate, any provision of this part, wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the city-parish may petition the Nineteenth Judicial District Court through the parish attorney for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the wastewater discharge permit, order, or other requirement imposed by this part on activities of the user. The city-parish may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against or a pre-requisite for taking any other action against a user.

(2) *Civil penalties.*

a. Whenever a user has violated, or continues to violate, any provision of this part, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement shall be liable to the city-parish according to the schedule of civil fines detailed in this part, as shown in the city-parish enforcement response plan. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation.

b. The city-parish shall recover attorneys' fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the city-parish.

c. In determining the amount of civil liability, the court shall take into account all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the user's violation, corrective actions by the user, the compliance history of the user, and any other factor as justice requires.

d. Filing a suit for civil penalties shall not be a bar against, or a prerequisite for, taking any other action against a user.

(3) *Criminal prosecution.*

a. Whenever a user willfully or negligently violates any provision of this part, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement shall, upon conviction, be guilty of a misdemeanor, punishable by a fine of not more than one thousand dollars ($1,000.00) per violation, per day, or imprisonment for not more than five (5) years, or both.

b. Whenever a user willfully or negligently introduces any substance into the POTW which causes personal injury or property damage

shall, upon conviction, be guilty of a misdemeanor and be subject to a penalty of not more than one thousand dollars ($1,000.00), or be subject to imprisonment for not more than five (5) years, or both. This penalty shall be in addition to any other cause of action for personal injury or property damage available under state law.

c. Whenever a user knowingly makes any false statements, representations, or certifications in any application, record, report, plan, or other documentation filed, or required to be maintained, pursuant to this part, wastewater discharge permit, or order issued hereunder, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this part shall, upon conviction, be punished by a fine of not more than one thousand dollars ($1,000.00) per violation, per day, or imprisonment for not more than five (5) years, or both.

d. In the event of a second conviction, a user shall be punished by a fine not to exceed of one thousand dollars ($1,000.00) per violation, per day, or imprisonment for not more than five (5) years, or both.

(4) *Remedies nonexclusive.* The remedies provided for in this part are not exclusive. The city-parish shall take any, all, or any combination of these actions against a noncompliant user. Enforcement of pretreatment violations will be in accordance with the city-parish's enforcement response plan. However, the city-parish may take other action against any user when the circumstances warrant. Further, the city-parish is empowered to take more than one (1) enforcement action against any noncompliant user.

(c) *Supplemental enforcement action.*

(1) *Financial assurance.* The city-parish may decline to issue or reissue a wastewater discharge permit to any user who has failed to comply with any provision of this part, a previous wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, unless the user first submits proof that it has obtained financial assurances sufficient to restore or repair damage to the POTW caused by its discharge.

(2) *Occupational license revocation.* Whenever a user has violated or continues to violate any provision of this part, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the user's occupational license may be revoked. The license will be reinstated, at the user's expense, after it has satisfactorily demonstrated its ability to comply.

(3) *Public health nuisances.* A violation of any provision of this part, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement is hereby declared a public health nuisance and shall be corrected or abated as directed by the city-parish. Any person(s) creating a public health nuisance shall be subject to the provisions of this part governing such nuisances, including reimbursing the city-parish for any costs incurred in removing, abating, or remedying the nuisance.

(4) *Contractor listing.* Users which have not achieved compliance with applicable pretreatment standards and requirements are not eligible to receive a contractual award for the sale of goods or services to the city-parish. Existing contracts for the sale of goods or services to the city-parish held by a user found to be in significant noncompliance with pretreatment standards or requirements shall be terminated.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:279. Publication of users in significant noncompliance.

The city-parish shall publish annually, in a newspaper of general circulation that provides

meaningful public notice within the jurisdictions served by the city-parish, a list of the users which, at any time during the previous twelve (12) months, were in significant noncompliance with pretreatment standards and requirements as defined in this part, 40 CFR 403.8(f) (2) (vii), 55 Federal Register 30082, and LAC 33:IX.6115.F.2.h. The term significant noncompliance shall be applicable to all SIU's (or any other industrial user that violates subsections (3), (4), or (5) of this section) and shall mean:

(1) Chronic violations of wastewater discharge limits, defined here as those in which sixty-six (66) percent or more of all the wastewater measurements taken during a six (6) month period exceed (by any magnitude), a numeric pretreatment standard or requirement, including instantaneous limits as defined in section 2:253 for the same pollutant parameter by any amount;

(2) Technical review criteria (TRC) violations, defined here as those in which thirty-three (33) percent or more of all the wastewater measurements taken for each pollutant parameter during a six (6) month period equals or exceeds the product of the numeric pretreatment standard or requirement including instantaneous limits, as defined by section 2:253 multiplied by the applicable criteria (1.4 for BOD, TSS, fats, oils and grease, and 1.2 for all other pollutants except pH);

(3) Any other discharge violation of a pretreatment standard or requirement as defined by part 1A (daily maximum, long-term average, instantaneous limit, or narrative standard) that the city-parish believes has caused, alone or in combination with other discharges, interference or pass through including endangering the health of POTW personnel or the general public;

(4) Any discharge of a pollutants that has caused imminent endangerment to the public or to the environment, or has resulted in the city-parish's exercise of its emergency authority to halt or prevent such a discharge;

(5) Failure to meet, within ninety (90) days of the scheduled date, a compliance schedule milestone contained in a wastewater discharge permit or enforcement order for starting construction, completing construction, or attaining final compliance;

(6) Failure to provide within forty-five (45) days after the due date, any required reports, including baseline monitoring reports, reports on compliance with categorical pretreatment standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(7) Failure to accurately report noncompliance; or

(8) Any other violation(s) which may include a violation of BMPs which the city-parish determines will adversely affect the operation or implementation of the local pretreatment program.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:280. Severability.

If any provision of this part is invalidated by any court of competent jurisdiction, the remaining provisions shall not be effected and shall continue in full force and effect.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:281. Wastewater discharge permit revocation.

(a) *Termination.* Wastewater discharge permits shall be terminated upon completion of operations or transfer of business ownership. All wastewater discharge permits issued to a particular user are terminated upon the issuance of a new wastewater discharge permit to that user.

(b) *Revocation.* A wastewater discharge permit may be subject to revocation for good cause, including, but not limited to, the following reasons:

(1) Failure to notify the city-parish of significant changes to the wastewater prior to the changed discharge;

(2) Failure to provide prior notification of changed conditions;

(3) Misrepresentation or failure to fully disclose all relevant facts in the wastewater discharge permit application;

(4) Falsifying self-monitoring reports;

(5) Tampering with monitoring equipment;

(6) Refusing to allow inspectors timely access to the facility premises and records;

(7) Failure to meet effluent limitations;

(8) Failure to pay fines;

(9) Failure to pay sewer charges;

(10) Failure to meet compliance schedules;

(11) Failure to complete a wastewater survey or the wastewater discharge permit application;

(12) Failure to provide advance notice of the transfer of business ownership of a permitted facility; or

(13) Violation of any pretreatment standard or requirement, or any terms of the wastewater discharge permit or this part.

(Ord. No. 18719, § 1, 12-14-22)

Sec. 2:282. Affirmative defenses.

(a) *Upset.*

(1) Users shall control production of all discharges to the extent necessary to maintain compliance with applicable pretreatment standards upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.

(2) For the purposes of this chapter, an upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

(3) An upset shall constitute an affirmative defense to an action brought for noncompliance with applicable pretreatment standards if the requirements of subsection (4) of this section are met.

(4) A user who wishes to establish the affirmative defense of upset to an enforcement action brought for noncompliance with applicable pretreatment standards shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence that:

a. An upset occurred and the user can identify the cause(s) of the upset; and it was not due to improperly designed or inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation;

b. The facility was at the time being operated in a prudent and workmanlike manner and in compliance with applicable operation and maintenance procedures; and

c. The user has submitted the following information to the city-parish, the POTW and treatment plant operator within twenty-four (24) hours of becoming aware of the upset (if this information is provided orally, a written submission must be provided within five (5) days):

1. A description of the indirect discharge and cause of noncompliance;

2. The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue; and

3. Steps being taken and/or planned to reduce, eliminate, and prevent recurrence of the noncompliance.

(5) In any enforcement proceeding, the user seeking to establish the occurrence of an upset shall have the burden of proof.

(6) Users will have the opportunity for a judicial determination on any claim of upset only in an enforcement action brought for noncompliance with applicable pretreatment standards.

(b) *Prohibited discharge standards.* A user shall have an affirmative defense to an enforcement action brought against it for noncompliance if it can prove that it did not know, or have reason to know, that its discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference and that either:

(1) A local limit exists for each pollutant discharged and the user was in compliance with each limit directly prior to, and during, the pass through or interference; or

(2) No local limit exists, but the discharge did not change substantially in nature or constituents from the user's prior discharge when the city-parish was regularly in compliance with its NPDES permit, and in the case of interference, was in compliance with applicable sludge use or disposal requirements.

(c) *Bypass.*

(1) For the purposes of this chapter, "severe property damage" means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. "Severe property damage" does not mean economic loss caused by delays in production.

(2) A user may allow any bypass to occur which does not cause applicable pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. Such bypasses are not subject to subsections (3) and (4) of this section.

(3) Bypass notifications.

a. If a user knows in advance of the need for a bypass, it shall submit prior notice to the city-parish, at least ten (10) days before the date of the bypass, if possible.

b. User shall submit oral notice to the city-parish of an unanticipated bypass that exceeds applicable pretreatment standards within twenty-four (24) hours from the time it becomes aware of the bypass. A written submission shall also be provided within five (5) days of the time the user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The city-parish with concurrence of the POTW may waive the written report on a case-by-case basis if the oral report has been received within twenty-four (24) hours.

(4) Bypass. Bypass is prohibited, and the city-parish and/or POTW may take an enforcement action against a user for a bypass, unless:

a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condi-

tion is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and

c. The user submitted notices as required under subsection (3) of this section.

(5) The city-parish with concurrence of the POTW may approve an anticipated bypass, after considering its adverse effects, if the POTW determines that it will meet the three (3) conditions listed in subsection (4)a.—c. of this section.

(Ord. No. 18719, § 1, 12-14-22))

PART II. INSTALLATION IN EXISTING SEWER SYSTEMS

Sec. 2:300. Septic tanks within three hundred feet of sanitary sewerage system declared nuisance.

(a) The use of septic tanks for sewerage disposal purposes by the owners of improved property where such property is located in an operating sewer district and within three hundred (300) feet of a sanitary sewerage system, operated and maintained by the city-parish, is hereby prohibited, and such use is hereby declared to be a nuisance detrimental to the public health and safety and as such, a misdemeanor, punishable as provided in subsection (b).

(b) Any person who fails to discontinue use of a septic tank after notice to do so by the director of public works, or his authorized representative, shall be guilty of a misdemeanor, and shall, upon conviction thereof, be punishable by a fine of not more than two hundred dollars ($200.00), or imprisonment for not more than twenty (20) days, or both, at the discretion of the court.

(City Code 1951, Title 2, §§ 300, 302; Parish Code 1962, Title 2, §§ 300, 302)

Sec. 2:301. Director of public works to inspect and abate.

The director of public works is hereby authorized and directed to make an inspection of all areas of the city-parish in which sanitary sewerage facilities are available and to abate the use of septic tanks whenever it is found (within the boundaries of an operating sewer district) that the improved premises to which the septic tank is connected, is within three hundred (300) feet of sanitary sewerage facilities maintained by the city or the parish.

(City Code 1951, Title 2, § 301; Parish Code 1962, Title 2, § 301)

Sec. 2:302. Connection required; penalty.

Wherever there is an established, constructed and operating sanitary sewerage system, as provided herein, all improved premises in the district and within three hundred (300) feet of the system shall be tied to and connected with the system, and the failure of the owner of any improved property in the district and within three hundred (300) feet of an established sanitary sewerage system to tie in and connect with the system after notice as provided herein, shall be guilty of a misdemeanor, punishable, upon conviction, by a fine of not more than two hundred dollars ($200.00), or imprisonment for not more than twenty

(20) days, or both, at the discretion of the judge of the court.
(City Code 1951, Title 2, § 303; Parish Code 1962, Title 2, § 303)

Sec. 2:303. Responsibility of director of public works.

The director of public works shall be charged with the responsibility of inspecting all areas within the city-parish for the purpose of requiring all improved property in an operating sewer district and within three hundred (300) feet of any established sanitary sewerage system to be tied into and connected with the system by means of an approved installation.
(City Code 1951, Title 2, § 304; Parish Code 1962, Title 2, § 304)

Sec. 2:304. Notice to comply.

Wherever the director of public works, or his representative, shall determine that a premises in an operating sewer district within three hundred (300) feet of a sanitary sewerage system is not connected with a sanitary sewerage system maintained by the city or the parish, the owner of the premises shall be given notice, by registered letter, directed to his last known address, to make connection with the sanitary sewerage system, and if the work of making connection with the sewerage system is not begun at the end of ten (10) days from the date the registered notice is deposited in the post office, the owner of the premises shall be guilty of a misdemeanor as hereinabove provided, and punishable in accordance with the provisions of section 2:302.
(City Code 1951, Title 2, § 305; Parish Code 1962, Title 2, § 305)

Sec. 2:305. Connection to be made by city-parish.

In addition and supplemental to the penalties provided for herein, for failure to connect with an established sanitary sewerage system after due notice, where the property is located in an operating sewer district and within three hundred (300) feet of a sanitary sewerage system operated and maintained by the city or the parish, the council shall have the authority, upon the recommendation of the director of public works, to compel the connection of improved property with the sanitary sewerage system by having the connection installed in the manner herein provided, and the cost thereof charged to the owner of the improved property for which the connection is provided.
(City Code 1951, Title 2, § 306; Parish Code 1962, Title 2, § 306)

Sec. 2:306. Procedure.

Whenever the council shall deem it necessary for the public health, that owners of one or more premises connect their premises with the sanitary sewerage system, the owner shall be so notified by registered mail, directed to their last known address. If the work of making the connection is not begun at the end of ten (10) days from the day the registered notice is deposited in the post office, the director of public works is hereby authorized to prepare plans and specifications for making connection. When such plans and specifications have been prepared, the council shall adopt an ordinance ordering the sewerage connection and authorizing the purchasing agent to advertise for bids for the purpose of having the connection installed.
(City Code 1951, Title 2, § 307; Parish Code 1962, Title 2, § 307)

Sec. 2:307. Assessment to be made against owner.

Whenever the council shall order such connections installed, the entire cost of the sewerage connection, including the equipment, pipes, water connections, service pipes, labor, engineering and other incidental items, shall be assessed against the owner or owners of the improved premises for which the connection is provided, which assessment shall be levied and be payable according to the provisions of Act 149 of 1918, as amended (RS 33:4044 et seq.). A certified copy of the ordinance levying the assessment, upon passage, shall be filed for record in the office of the clerk and recorder of mortgages, and when so filed and recorded, shall operate as a lien and privilege in favor of the city-parish and the sewerage district within the property so assessed is located.
(City Code 1951, Title 2, § 308; Parish Code 1962, Title 2, § 308)

Sec. 2:308. Duty of owner.

(a) It shall be the duty of all owners of improved premises which have been tied in and connected to the operating sanitary sewage system, as hereinabove provided, to maintain the service line on the premises or within a servitude in favor of the premises up to the sanitary sewerage system which has been accepted and maintained by the city-parish. It shall also be the duty of such owners to close any opening that allows the drainage of surface water into the sanitary sewer system. It shall only be the duty of the city-parish to maintain that portion of any service line located in a right-of-way dedicated to the public.

(b) Any person who violates the provisions of subsection (a) above shall be fined not more than five hundred dollars ($500.00) for domestic users and one thousand dollars ($1,000.00) for nondomestic users or imprisoned for not more than thirty (30) days, or both, at the discretion of the court.

(c) Any person who violates the provisions of subsection (a) above may be subject to the following:

(1) When the director of public works, or his representative, upon evidence establishing more probably than not that the provisions of subsection (a) above have been violated, the director of public works, or his representative, shall send notice personally or by certified mail that the person who violates the provisions of subsection (a) shall begin to make efforts to remedy such violation within ten (10) days, and steadily and without delay continue such efforts to remedy such violation under the monitoring of the director of public works, or his representative. If the certified letter is not claimed or if no effort is made to remedy such violation of the provisions of subsection (a) above within ten (10) days upon receipt of the letter, or upon reasonable notice, suit shall be filed requiring the remedy of the violation of the provisions of subsection (a) above and authorizing fines up to five hundred dollars ($500.00) a day for domestic users and one thousand dollars ($1,000.00) a day for nondomestic users in which no efforts are made toward remedying such violation. Said suit may recover reasonable attorney's fees, court costs, court reporter's fees, and other expenses of litigation against the person who violates the provisions of subsection (a) above.

(2) Where in the perception of the director of public works, or his representative, that public health will be threatened by the delays involved in the proceeding, as provided in the above paragraph, injunctive relief shall be permitted.

(3) Where immediate action is required to avoid a threat to public health, the director of public works, or his representative, may act to remedy such violation of subsection (a) above and seek damages from the person committing the violation of subsection (a) above. Fines up to five hundred dollars ($500.00) a day for domestic users and one thousand dollars ($1,000.00) a day for nondomestic users until the threat to public health is abated, and costs incurred in remedying such violation of subsection (a) above may be recovered. Also, said suit may recover reasonable attorney's fees, and other expenses of litigation against the person who violates the provisions of subsection (a) above.

(4) If the director of public works, or his representative, acts to remedy such violation of subsection (a), or if the owner is an absentee or has no known mailing address, the director of public works, or his representative, shall then cause the necessary work to be done to effect compliance with the provisions of this section at the owner's expense; and the director of public works, or his representative, may have such work done either with the personnel and equipment of his department, or by means of a contract with a third person; except that if the work is done by private contract, the work shall only be

done after advertisement for bids in accordance with the purchasing regulations.

(5) Upon completion of such work, the director of public works, or his representative, shall cause to be prepared and filed with the recorder of mortgages of this parish a certificate showing the cost of such work, a penalty of ten (10) percent thereof or fifty dollars ($50.00), whichever is greater, the name of the owner and a description of the property involved. The certificate shall operate from the date of filing as a tax lien or assessment on the property affected. This lien shall prescribe only in ten (10) years from the date of filing such certificate, may be enforced in a summary manner as other tax liens or assessments, and shall be subject to the same penalties, interest and attorney's fees.

(6) Upon the filing of this certificate, the director of public works, or his representative, in writing shall advise the director of finance and the parish attorney thereof; and the latter shall institute suit or take such other steps as may be required or necessary for the enforcement of such lien.

(City Ord. No. 4791, 10-27-82; Parish Ord. No. 5998, 10-27-82; Ord. No. 10069, § 1, 11-9-94; Ord. No. 10440, § 1, 9-13-95; Ord. No. 11568, § 1, 10-13-99)

Sec. 2:309. Violation and penalties.

(a) It shall be prohibited for anyone to create an opening into the sanitary sewer system that will allow the flow of surface water into said system, and any such opening is declared to be a nuisance detrimental to the public health and safety and as such, a misdemeanor, punishable as provided in subsection (b).

(b) Anyone who creates such an opening shall be guilty of a misdemeanor, and shall, upon conviction thereof, be punishable by a fine of not more than five hundred dollars ($500.00) for domestic users and one thousand dollars ($1,000.00) for nondomestic users or imprisonment for not more than thirty (30) days, or both, at the discretion of the court.

(Ord. No. 11569, § 1, 10-13-99)

PART III. INSTALLATION IN CONSOLIDATED SEWERAGE DISTRICT*

Sec. 2:310. Septic tank within three hundred feet of sanitary sewerage collection systems—Prohibited and declared nuisance. (Parish)

The use of septic tanks for sewerage disposal purposes by the owners of improved property where such property is located in the consolidated sewerage district of the parish, as the district is now or hereafter defined, and within three hundred (300) feet of a sanitary sewerage collection system, operated and maintained by the district, the city or the parish, is hereby prohibited, and such use is hereby declared to be a nuisance detrimental to the public health and safety and, as such, a misdemeanor, punishable as provided in section 2:312.

(Parish Code 1962, Title 2, § 309)

Sec. 2:311. Same—Director of public works to inspect and abate. (Parish)

Within six (6) months after a sanitary sewerage collection system has been connected with the trunk facilities of the consolidated sewerage district, the director of public works shall make an inspection of all areas of the district in which sanitary sewerage collection facilities are available and to abate the use of septic tanks whenever it is found (within the boundaries of the district) that the improved premises to which the septic tank is connected, is within three hundred (300) feet of sanitary sewerage collection facilities connected with trunk facilities of the district.

(Parish Code 1962, Title 2, § 310)

Sec. 2:312. Same—Failure to discontinue use. (Parish)

Any person who fails to discontinue use of a septic tank after notice to do so by the director of

*__Note—__See the editor's note to Art. I of this chapter.

public works, or his authorized representative, shall be guilty of a misdemeanor, as defined in section 2:310, and shall, upon conviction thereof, be punishable by a fine of not more than two hundred dollars ($200.00), or imprisonment for not more than twenty (20) days, or both, at the discretion of the district judge.
(Parish Code 1962, Title 2, § 311)

Sec. 2:313. Connection to sanitary sewerage collection system—Required. (Parish)

Within six (6) months after any established, constructed and operating sanitary sewerage collection system has been tied into the trunk system of the district as provided herein, all improved premises in the district and within three hundred (300) feet of the system shall be tied to and connected with the collection system, and the failure of the owner of any improved property in the district and within three hundred (300) feet of an established sanitary sewerage system to tie in and connect with the system after notice as provided herein, shall be guilty of a misdemeanor, punishable, upon conviction, by a fine of not more than two hundred dollars ($200.00), or imprisonment for not more than twenty (20) days, or both, at the discretion of the district judge.
(Parish Code 1962, Title 2, § 312)

Sec. 2:314. Same—Responsibility and authority of director of public works. (Parish)

The director of public works shall be charged with the responsibility of inspecting all areas within the consolidated sewerage district for the purpose of requiring all improved property therein and within three hundred (300) feet of any established sanitary sewerage collection system to be tied into and connected with the system by means of an approved installation.
(Parish Code 1962, Title 2, § 313)

Sec. 2:315. Same—Notice to connect; failure to comply with notice. (Parish)

Whenever the director of public works, or his representative, shall determine that a premises within three hundred (300) feet of a sanitary sewerage collection system is not connected with the system, the owner of the premises shall be given notice, by certified letter, directed to their last known address, to make connection with the sanitary sewerage system, and if the work of making connection with the sewerage system is not begun at the end of ten (10) days from the date the certified notice is deposited in the post office, the owner of the premises shall be guilty of a misdemeanor as hereinabove provided, and punishable in accordance with the provisions of section 2:313.
(Parish Code 1962, Title 2, § 314)

Sec. 2:316. Same—Authority of council to have connection made. (Parish)

In addition and supplemental to the penalties provided for herein, for failure to connect with an established sanitary sewerage collection system after due notice, the council shall have the authority, upon the recommendation of the director of public works, to compel the connection of improved property with the sanitary sewerage collection system by having the connection installed in the manner herein provided, and the cost thereof charged to the owner of the improved property for which the connection is provided.
(Parish Code 1962, Title 2, § 315)

Sec. 2:317. Same—Procedure. (Parish)

Whenever the council shall deem it necessary for the public health, that owners of one or more premises connect their premises with the sanitary sewerage system, the owner shall be so notified by certified mail, directed to his last known address. If the work of making the connection is not begun at the end of ten (10) days from the day the certified notice is deposited in the post office, the director of public works is hereby authorized to prepare plans and specifications for making connection. When such plans and specifications have been prepared, the council shall adopt an ordinance ordering the sewerage connection and authorizing the purchasing agent to advertise for bids for the purpose of having the connection installed.
(Parish Code 1962, Title 2, § 316)

Sec. 2:318. Same—Assessments against owners. (Parish)

Whenever the council shall order such connections installed, the entire cost of the sewerage connection, including the equipment, pipes, water connections, service pipes, labor engineering and other incidental items, shall be assessed against the owner of the improved premises for which the connection is provided, which assessment shall be levied and be payable according to the provisions of R.S. 33:4044 et seq. A certified copy of the ordinance levying the assessment, upon passage, shall be filed for record in the office of the clerk and recorder of mortgages, and when so filed and recorded, shall operate as a lien and privilege in favor of the parish and the consolidated sewerage district.
(Parish Code 1962, Title 2, § 317)

Sec. 2:319. Duty of owner.

(a) It shall be the duty of all owners of improved premises which have been tied in and connected to the operating sanitary sewage system, as hereinabove provided, to maintain the service line on the premises or within a servitude in favor of the premises up to the sanitary sewerage system which has been accepted and maintained by the city-parish. It shall also be the duty of all such owners to close any opening that allows the drainage of surface water into the sanitary sewer system. It shall only be the duty of the city-parish to maintain that portion of any service line located in a right-of-way dedicated to the public.

(b) Any person who violates the provisions of subsection (a) above shall be fined not more than five hundred dollars ($500.00) for domestic users, and one thousand dollars ($1,000.00) for nondomestic users or imprisoned for not more than thirty (30) days or both, at the discretion of the court.

(c) Any person who violates the provisions of subsection (a) above may be subjected to the following:

(1) When the director of public works, or his representative, upon evidence establishing more probably than not that the provisions of subsection (a) above have been violated, the director of public works, or his representative, shall send notice personally or by certified mail that the person who violates the provisions of subsection (a) shall begin to make efforts to remedy such violation within ten (10) days, and steadily and without delay continue such efforts to remedy such violation under the monitoring of the director of public works, or his representative. If the certified letter is not claimed or if no effort is made to remedy such violation of the provisions of subsection (a) above within ten (10) days upon receipt of the letter, or upon reasonable notice, suit shall be filed requiring the remedy of the violation of the provisions of subsection (a) above and authorizing fines up to five hundred dollars ($500.00) a day for domestic users, and one thousand dollars ($1,000.00) a day for nondomestic users in which no efforts are made toward remedying such violation. Said suit may recover reasonable attorney's fees, court costs, court reporter's fees, and other expenses of litigation against the person who violates the provisions of subsection (a) above.

(2) Where in the perception of the director of public works, or his representative, that public health will be threatened by the delays involved in the proceeding, as provided in the above paragraph, injunctive relief shall be permitted.

(3) Where immediate action is required to avoid a threat to public health, the director of public works, or his representative, may act to remedy such violation of subsection (a) above and seek damages from the person committing the violation of subsection (a) above. Fines up to five hundred dollars ($500.00) a day for domestic users, and one thousand dollars ($1,000.00) a day for nondomestic users until the threat to public health is abated, and costs incurred in remedying such violation of subsection (a) above may be recovered. Also, said suit may recover reasonable attorney's fees, and other

expenses of litigation against the person who violates the provisions of subsection (a) above.

(4) If the director of public works, or his representative, acts to remedy such violation of subsection (a), or if the owner is an absentee or has no known mailing address, the director of public works, or his representative, shall then cause the necessary work to be done to effect compliance with the provisions of this section at the owner's expense; and the director of public works, or his representative, may have such work done either with the personnel and equipment of his department, or by means of a contract with a third person; except that if the work is done by private contract, the work shall only be done after advertisement for bids in accordance with the purchasing regulations.

(5) Upon completion of such work, the director of public works, or his representative, shall cause to be prepared and filed with the recorder of mortgages of this parish a certificate showing the cost of such work, a penalty of ten (10) percent thereof or fifty dollars ($50.00), whichever is greater, the name of the owner and a description of the property involved. The certificate shall operate from the date of filing as a tax lien or assessment on the property affected. This lien shall prescribe only in ten (10) years from the date of filing such certificate, may be enforced in a summary manner as other tax liens or assessments, and shall be subject to the same penalties, interest and attorney's fees.

(6) Upon the filing of this certificate, the director of public works, or his representative, in writing shall advise the director of finance and the parish attorney thereof; and the latter shall institute suit or take such other steps as may be required or necessary for the enforcement of such lien.

(Ord. No. 11567, § 1, 10-13-99)

Sec. 2:320. Violation and penalties.

(a) It shall be prohibited for anyone to create an opening into the sanitary sewer system that will allow the flow of surface water into said system, and any such opening is declared to be a nuisance detrimental to the public health and safety and as such, a misdemeanor, punishable as provided in subsection (b).

(b) Anyone who creates such an opening shall be guilty of a misdemeanor, and shall, upon conviction thereof, be punishable by a fine of not more than five hundred dollars ($500.00), for domestic users and one thousand dollars ($1,000.00) for nondomestic users or imprisonment for not more than thirty (30) days, or both, at the discretion of the court.
(Ord. No. 11570, § 1, 10-13-99)

CHAPTER 6. USE OF PUBLIC LANDS AND RIGHTS-OF-WAY FOR UTILITY PURPOSES*

Sec. 2:340. Purpose and scope.

(a) *Purpose.* The purpose of this chapter is to adopt an ordinance in conformance with the requirements of R.S. 51.2370 et seq., and in particular R.S. 51.2370.35, addressing the treatment of broadband services in any areas in the city-parish in which the Louisiana Office of Broadband has determined are eligible for GUMBO 2.0 grant funding. This chapter is adopted to affirm that the city-parish will not collect franchise fees on broadband services in any areas in the city-parish that the Louisiana Office of Broadband has determined are eligible for GUMBO 2.0 grant funding. At the same time, consistent with R.S. 51.2370.35, this chapter recognizes that all communications providers,

*__Editor's note—__Ord. No. 19470, adopted February 12, 2025, set out provisions intended for use as §§ 2:350—2:350.5. Inasmuch as § 2:350 already exists in ch. 7, these provisions have been redesignated as §§ 2:340—2:345 at the editor's discretion.

__Editor's note—__Ord. No. 19470, adopted February 12, 2025, repealed ch. 6, §§ 2:340—2:342, and enacted a new ch. 6 as set out herein and as may later be amended. Former ch. 6 pertained to similar subject matter and derived from 1951 City Code, tit. 2, §§ 340—342; and 1962 Parish Code, tit. 2, §§ 340—342.

including GUMBO funded broadband service providers constructing communications network facilities within the rights-of-way of city-parish are required to comply with all applicable laws and all applicable standards governing the installation and use of such facilities, including the requirement for all facilities-based communications providers to obtain a franchise or other authorization from the city-parish to occupy the rights-of-way.

(b) *Intent.* In enacting this chapter, it is the intent of the city-parish to:

(1) Adopt a uniform exclusion of the city-parish's collection of franchise fees on broadband service providers provision of broadband services in any areas in the city parish that the Louisiana Office of Broadband has determined are eligible for GUMBO 2.0 funding, this exclusion applies to both existing and new providers as of the effective date of the ordinance codified in this chapter.

(2) Affirm that the adoption of this chapter notwithstanding, all facilities-based communications providers are subject to all other applicable laws and applicable standards and permitting requirements that are not inconsistent with this chapter and R.S. 51.2370.35.

(3) Adopt a one-time permit fee for construction within an area of the city-parish that the office of broadband identified as eligible for GUMBO 2.0 grant funding.

(c) *Conflicts with other chapters and franchise ordinance agreements.* This chapter supersedes all chapters or parts of chapters, or individual franchise ordinance agreements adopted prior hereto that are in conflict herewith, to the extent of such conflict.
(Ord. No. 19470, 2-12-25)

Sec. 2:341. Definitions.

For the purposes of this chapter, the following terms, phrases, words, abbreviations, and their derivations, shall have the meaning given below, unless more specifically defined within a specific section or paragraph of this chapter. When not inconsistent with the context, words used in the present tense include the future and past tense, and words in the singular number include the plural number. The words "shall" and "will" are mandatory and "may" is permissive. Words not defined shall be given their common and ordinary meaning.

Applicable law means all applicable federal, state and local laws or regulations governing communication facilities or the installation or use of the ROW by communications providers.

Applicable standards means applicable engineering and safety standards governing the installation, maintenance, and operation of communications facilities and the performance of all work in the ROW, and includes the most current versions of National Electric Safety Code ("NESC"), the National Electrical Code ("NEC"), the regulations of the FCC (defined herein), the Occupational Safety and Health Administration ("OSHA") and provisions of the city-parish's design standards set out in its design manual, as well as applicable provisions of the city-parish's building, construction, electrical, fire, mechanical, engineering and safety codes, including those of the department of development and department of transportation and drainage, each of which is incorporated by reference in this chapter, including UDC section 18.5, as well as applicable requirements of the State of Louisiana or federal authority having jurisdiction over such communications facilities.

Broadband service means deployed mass-market retail internet access service with a minimum of one hundred (100) megabits per second, or Mbps, download and at least twenty (20) megabits per second upload transmission speeds. This definition has the meaning given by the Federal Communications Commission under rules and guidance that are in effect as of the date of enactment of the Infrastructure Investment and Jobs Act, R.S. 51:2370.22.

Broadband service provider means an entity that provides facilities-based broadband service.

City-parish means the City of Baton Rouge and Parish of East Baton Rouge and any other

department, representative, or official given authority to perform any action pursuant to this chapter.

Communications network facilities means wireline or wireless facilities and equipment, including cables, fibers, poles, ducts, and conduits optoelectronics, antennae, receivers, and amplifiers, installed owned or operated by communications providers within the ROW for the provision of communications services.

Communications provider means communications services that own, wireless communications network a facilities-based provider of controls, or maintains wireline or facilities within the ROW for the provision of communications services.

Communications service means the provision of wireline or wireless voice, video or data services, including broadband services, cable services, telecommunications or telecommunications services as such terms are defined under applicable law.

GUMBO 2.0 means the Granting Unserved Municipalities Broadband Opportunities 2.0 Act, R.S. 51:2370 et seq.

Office of broadband means the Louisiana Office of Broadband Development and Connectivity within the Division of Administration.

Rights-of-way or *ROW* means the surface, the air space above the surface, and the area below the surface of any public street, bridge, tunnel, highway, lane, path, alley, sidewalk, or boulevard owned by or dedicated to the use of the city-parish, and shall not include state-owned or federally-owned streets, highways, or lands. Rights-of-way shall not include any city-parish owned utility poles, streetlight poles, traffic signal poles, street furniture, buildings, or any other city-parish owned structures or improvements, nor shall it include any privately-owned poles or facilities, regardless of whether they are situated in the rights-of-way.
(Ord. No. 19470, 2-12-25)

Sec. 2:342. ROW authorization required; permits; coordination with city-parish.

(a) *Authorization required.* All communications providers, including GUMBO 2.0 grant-funded broadband service providers, seeking to install communications network facilities within the ROW of any portion of the city-parish shall be required to obtain a franchise or other authorization from the city-parish consistent with applicable law and comply with all applicable standards, including city-parish construction and building ordinances.

(b) *Permitting.* All communications providers, including GUMBO 2.0 grant funded broadband service providers, seeking to install communications network facilities within the ROW of any portion of the city-parish shall be required to obtain a construction and occupancy permit in accordance with applicable city-parish ordinances.

(1) Any communications provider seeking to obtain a construction permit to install communications facilities within an area of the city-parish that the office of broadband has identified as eligible for GUMBO 2.0 grant funding shall be subject to a one-time permit fee of one thousand dollars ($1,000.00).

(c) All communications providers, including broadband providers receiving funding through the GUMBO 2.0 program shall provide the city-parish with at least thirty (30) days' advanced written notice to the commencement of construction activities within the ROW. Such notice shall identify the specific areas within the city-parish where the construction will take place and the anticipated nature and duration of such construction activities.
(Ord. No. 19470, 2-12-25)

Sec. 2:343. Broadband franchise fee exemption for GUMBO 2.0 eligible areas.

(a) Consistent with R.S. 51.2370.35, as of the effective date of the ordinance codified in this chapter, the city-parish shall not collect franchise fees from any communications providers on broadband services in any areas in the city

parish that the Louisiana Office of Broadband has determined are eligible for GUMBO 2.0 grant funding.

(b) The above notwithstanding all communications providers will remain subject to all applicable taxes of general applicability to the extent not inconsistent with applicable law, including R.S. 51.2370.35.

(c) Nothing herein is intended to relieve the obligation of communications providers to pay applicable fees under pole, duct, and conduit use agreements with public and private owners of such poles, ducts, and conduits.
(Ord. No. 19470, 2-12-25)

Sec. 2:344. Retention of local police power; effect of future changes in governing law.

This chapter is intended to establish only the minimum restrictions upon the police power of the city-parish necessary to comply with the requirements of R.S. 51.2370.35. Nothing in this chapter shall be construed as surrender by the city-parish of its right and power to adopt future ordinances, rules, and regulations in the exercise of its police power applicable to communications providers to the maximum extent allowed by applicable law. The city-parish at all times reserves the right to regulate new and existing communications facilities to the extent allowed by changes in applicable law.
(Ord. No. 19470, 2-12-25)

Sec. 2:345. Severability and conflicts.

(a) *Severability.* If any word, phrase, sentence, part, section, subsection, or other portion of this chapter or any application thereof to any person or circumstance is declared void, unconstitutional, or invalid for any reason, then such word, phrase, sentence, part, section, subsection, or other portion, or the proscribed application thereof, shall be severable, and the remaining provisions of this chapter, and all applications thereof, not having been declared void, unconstitutional, or invalid, shall remain in full force and effect.

(b) *Conflicts with other chapters.* This chapter supersedes all chapters or parts of chapters and franchise ordinances adopted prior hereto that are in conflict herewith, to the extent of such conflict.
(Ord. No. 19470, 2-12-25)

CHAPTER 7. DISPOSITION OF ABANDONED, INOPERATIVE MOTOR VEHICLES ON PUBLIC PROPERTY*

Sec. 2:350. Definitions.

The following definitions apply in the interpretation and enforcement of this chapter:

(1) *Inoperative* means incapable of being lawfully moved upon the highways and streets, and includes, but is not limited to, vehicles which are not currently and validly registered for operation or use on the highways and streets. All such vehicles are declared to be inoperative.

(2) *Abandoned* means a vehicle left unattended and inoperative for a period of forty-eight (48) hours.

(3) *Enforcing agency* means the chief of police, sheriff, director of Aviation, or director of public works, as well as their duly authorized agents.

(4) *Vehicle* shall mean every device by which persons or things may be transported upon a public highway or bridge, except devices moved by human power or used exclusively upon stationary rails or tracks. A bicycle or a ridden animal shall be a vehicle, and a trailer or semitrailer shall be a separate vehicle.

(5) *Aircraft* shall mean every device by which persons or things may be transported by

*__Editor's note—__Ord. No. 10717, § 1, adopted September 25, 1996, repealed and re-adopted Chapter 7, §§ 2:350—2:354. Former §§ 2:350—2:355 pertained to similar subject matter, and derived from Ord. No. 9810, adopted January 26, 1994, and Ord. No. 9882, adopted May 11, 1994. See also editor's note, Ch. 6.

__Cross references—__Traffic code, title 11; abandoned or inoperative motor vehicles on private property a nuisance, § 12:500 et seq.

means of flight, whether powered or unpowered, including but not limited to fixed-wing aircraft, rotary wing aircraft, gliders, hot-air balloons, zeppelins, or dirigibles.

(6) *Abandoned aircraft* means an aircraft that has been disposed of on a public-use airport in a wrecked, inoperative, or partially dismantled condition or an aircraft that has remained in an idle state on premises owned or controlled by the operator of a public-use airport for ninety (90) consecutive calendar days, as determined in the reasonable discretion of the director of aviation or his designee.

(7) *Derelict aircraft* means any aircraft that is not in a flyable condition, does not have a current certificate of air worthiness issued by the Federal Aviation Administration, and is not in the process of actively being repaired, as determined in the reasonable discretion of the director of aviation or his designee.

(Ord. No. 10717, § 1, 9-25-96; Ord. No. 15308, § 1, 5-9-12)

Sec. 2:351. Removal of abandoned, inoperative motor vehicles.

(a) The enforcing agency shall be responsible for the administration of this chapter and may remove or cause to be removed from the streets and public property of the city-parish all abandoned inoperative motor vehicles in accordance with the provisions of this chapter.

(b) The enforcing agency may remove or cause to be removed the abandoned inoperative vehicle and is hereby authorized to convey same to a wrecker service approved.

(c) Wrecker services provided under the authority of this section shall be licensed, bonded and registered with the city-parish government and shall not charge fees in excess of the approved fee schedule as adopted and in force in the city-parish.

(d) All abandoned inoperative motor vehicles removed from the streets or public ways in accordance with this section shall be subject to towing and service fees as set forth by law, which charge shall be due by the owner of or any person claiming an interest in the abandoned inoperative motor vehicle.

(Ord. No. 10717, § 1, 9-25-96; Ord. No. 15308, § 1, 5-9-12)

Sec. 2:352. Record of sales of abandoned, inoperative motor vehicles.

The enforcing agency shall keep a complete record of all abandoned inoperative motor vehicles removed from streets and public ways with details as to the date of removal, location from which removed, name and address of the approved wrecker service to whom the inoperative junked motor vehicle was conveyed.

(Ord. No. 10717, § 1, 9-25-96; Ord. No. 15308, § 1, 5-9-12)

Sec. 2:353. Immediate removal of vehicle obstructing traffic or endangering public health, safety or welfare.

The enforcing agency may immediately remove any vehicle which obstructs traffic or endangers the public health, safety or welfare from the streets or other public property of the city-parish, including but not limited to the following circumstances:

(1) When any vehicle is left unattended upon any bridge, viaduct, causeway or any underpass or along any street, road or alley where such vehicle constitutes an obstruction to traffic.

(2) When a vehicle upon a highway, street, road or alley is so disabled as to constitute an obstruction to traffic, or the person in charge of a vehicle is, by reason of physical injury, incapacitated to such an extent as to be unable to provide for its custody or removal.

(3) When any vehicle is left unattended upon any street and is parked illegally, and such parking constitutes an obstruction to traffic or danger to local neighborhood residents.

(Ord. No. 10717, § 1, 9-25-96; Ord. No. 15308, § 1, 5-9-12)

Sec. 2:354. Penalty for violation.

Any abandoned, inoperative vehicle as herein defined shall constitute a misdemeanor and the violator shall be subject to the issuance of a misdemeanor summons. The penalty shall be a fine of up to five hundred dollars ($500.00) or six (6) months imprisonment or both for each violation.
(Ord. No. 10717, § 1, 9-25-96; Ord. No. 15308, § 1, 5-9-12)

Sec. 2:355. Disposal of derelict or abandoned aircraft on the premises of Baton Rouge Metropolitan Airport.

(a) Whenever any derelict or abandoned aircraft is found or located on premises owned or controlled by the City of Baton Rouge, Parish of East Baton Rouge, and/or the Greater Baton Rouge Airport District, whether or not such premises are under a lease or license to a third party, the Director of Aviation or the Director's designee shall make a record of the date the aircraft was found or determined to be present on the airport premises.

(b) The Director of Aviation or the Director's designee shall contact the Federal Aviation Administration, Aircraft Registration Branch, to determine the name and address of the last registered owner of the aircraft and shall make a diligent personal search of the appropriate records, or contact an aircraft title search company, to determine the name and address of any person having an equitable or legal interest in the aircraft. Within 10 business days after receipt of the information, the Director of Aviation or the Director's designee shall notify the owner and all persons having an equitable or legal interest in the aircraft by certified mail, return receipt requested, of the location of the derelict or abandoned aircraft on the airport premises, that the aircraft has been determined to be abandoned and/or derelict, that the aircraft will be removed within 15 days receipt of notice of delivery of the letter by a wrecker service, and that the owner or interest holder will be liable for removal and storage fees imposed by the wrecker service if the owner and/or interest holders do not remove the aircraft prior to the deadline.

(c) If the owner of the aircraft is unknown or cannot be found, the director of aviation or the director's designee shall cause a laminated notice to be placed upon such aircraft in substantially the following form: NOTICE TO THE OWNER AND ALL PERSONS INTERESTED IN THE ATTACHED PROPERTY. This property, to wit: (setting forth brief description) is unlawfully upon public property known as (setting forth brief description of location) and has been determined to be derelict and/or abandoned. Notice is hereby given that this aircraft will be removed from the premises by (name, address, and phone number of selected wrecker service) on the (date thirty (30) days from posting), and that the owner (s) and persons holding an interest in the aircraft will be liable for removal and storage fees imposed by the wrecker service if the owner and/or interest holders do not remove the aircraft prior to the (date thirty (30) days from posting). Dated this: (setting forth the date of posting of notice), signed: (setting forth name, title, address, and telephone number of agent of enforcing agency).

Such notice shall be not less than eight (8) inches by ten (10) inches, shall provide the information set forth in English, and shall be sufficiently weatherproof to withstand normal exposure to the weather. If, at the end of thirty (30) calendar days after posting the notice, the owner or any person interested in the described derelict or abandoned aircraft has not removed the aircraft from the airport property, the director of aviation or the director's designee shall request the selected wrecker service to remove the aircraft and store it under such federal, state, and local regulations as may apply.
(Ord. No. 15308, § 1, 5-9-12)

Sec. 2:356. Immediate removal of derelict or abandoned aircraft obstructing traffic or endangering public health, safety or welfare.

(a) The director of aviation or the director's designee may immediately remove any derelict or abandoned aircraft which obstructs traffic or endangers the public health, safety or welfare from premises owned or controlled by the city,

parish, and/or Greater Baton Rouge Airport District, whether or not such premises are under a lease or license to a third party. Immediate securing or removal is authorized under circumstances of genuine and immediate jeopardy to the public health, safety, and welfare, including but not limited to:

(1) When any derelict or abandoned aircraft is unsecured or inadequately secured to prevent migration of the aircraft into lanes of travel for ground vehicles or aircraft, in the opinion of the director of aviation or the director's designee. Under such circumstances, the director of aviation or the director's designee may take action to secure the derelict or abandoned aircraft and proceed with the removal process as outlined in section 2:355 of this chapter. Any and all expenses associated with the securing of the aircraft shall be paid by the owner or person with an ownership interest in the aircraft to the enforcing agency prior to release of the aircraft to the owner and/or interested party.

(2) When any derelict or abandoned aircraft is leaking or otherwise emitting fluids or debris that are not promptly removed, in the opinion of the director of aviation or the director's designee. Under such circumstances, the director of aviation or the director's designee may take action to secure or remove the derelict or abandoned aircraft from airport property, may take prudent and required environmental cleanup actions as may be required by law, and proceed with the removal process as outlined in section 2:355 of this chapter. Any and all expenses associated with the securing or removal of the aircraft, or with environmental cleanup necessitated by leaking fluids or shedding of aircraft parts shall be paid by the owner or person with an ownership interest in the aircraft to the enforcing agency prior to release of the aircraft to the owner and/or interested party.

(b) As soon as practicable following securing or removing an aircraft creating a genuine and immediate jeopardy to the public health, safety, and welfare, but in no case more than seven (7) days after an emergency removal, the director of aviation or the director's designee shall engage in the search for ownership and/or notification process outlined in 2:355, above. If the aircraft is secured out of public view, and a printed notice is required, the director of aviation or the director's designee shall post the notice required by 2:355(c) as close as possible to the last known parking location of the abandoned or derelict aircraft. (Ord. No. 15308, § 1, 5-9-12)

CHAPTER 8. STORMWATER REGULATIONS*

Sec. 2:360. Definitions.

Unless the context requires other interpretations, the following words and terms are defined for the purpose of this Chapter, as follows:

Access control manhole shall mean the nearest downstream manhole in a public or private storm sewer nearest to the point where the facility storm sewer is connected.

City-parish shall mean the City of Baton Rouge and/or the Parish of East Baton Rouge.

Clean Water Act or *the Act* shall mean the Federal Water Pollution Control Act as amended by the Clean Water Act of 1987 and subsequent amendments. It shall also mean Chapter 26 of Title 33 of the United States Code.

40 CFR shall mean Title 40 of the Code of Federal Regulations.

40 CFR Part 122, 123, and 124, shall mean NPDES permits and reporting requirements for stormwater discharges.

Contaminant shall mean any physical, chemical, biological, or radiological material or waste introduced or discharged into water.

*__Editor's note—__Ord. No. 10966, § 1, adopted September 10, 1997, amended the Code by adding a new Ch. 9, §§ 9:10—9:22, to Title 2 of the Code. In order to follow the numbering style of the Code, the editor has redesignated such sections as §§ 2:360—2:372.

Co-permittee shall mean a permittee of a NPDES permit that is only responsible for permit conditions relating to the discharge for which it is the operator.

DEQ shall mean the Louisiana Department of Environmental Quality.

Director shall mean the director of the department of public works for the city-parish or any employee of the department of public works designated by the director.

Discharge or *indirect discharge* shall mean a discharge which includes the discharge of a single pollutant or contaminant or the discharge of multiple pollutants or contaminants into a storm sewer.

Effluent limitation shall mean any limitations issued by the EPA or DEQ or city-parish pertaining to pollutants which are discharged of a single pollutant or contaminant or the discharge of multiple pollutants or contaminants into a storm sewer if and only if such limits shall be established by EPA or DEQ by way of regulations or discharge permits.

Environment shall include water, air, and land and the interrelationship which exists among and between water, air, land and all living things.

EPA shall mean the United States Environmental Protection Agency.

Explosive solids shall mean any solid that causes a rapid chemical reaction with the production of noise, heat, and violent expansion of gases.

Explosive liquid shall mean any liquid that causes a rapid chemical reaction with the production of noise, heat, and violent expansion of gases.

Explosive gas shall mean any gas that causes a rapid chemical reaction with the production of noise, heat, and violent expansion of other gases.

Explosive shall mean a substance capable of rapid conversion into more stable products, with the liberation of heat and usually the formation of gases.

Explosive limit, lower (LEL) shall be defined as the concentration of organic fuel below which combustion will not occur in the presence of a flame or spark.

Explosive limit, upper (UEL) shall be defined as the concentration of organic fuel above which combustion will not occur in the presence of a flame or spark.

Illicit discharge shall mean any discharge to a municipal separate storm sewer that is not composed entirely of stormwater except discharges pursuant to a NPDES permit (other than the NPDES permit for discharges from the municipal separate storm sewer) and discharges resulting from fire fighting activities.

Incorporated place shall mean the city, town, or village that is incorporated under the laws of the State of Louisiana.

Individual shall mean any person, firm, partnership, company, association, governmental agency, society, corporation, group or political subdivision.

Industrial district stormwater shall mean any stormwater that originates, emanates or otherwise is generated from any industrial area as set forth in sections 1.08(b) and 1.10 of the plan of government of the Parish of East Baton Rouge and the City of Baton Rouge.

Major municipal separate storm sewer outfall shall mean a municipal separate storm sewer outfall that discharges from a single pipe with an inside diameter of thirty-six (36) inches or more or a pipe associated with a drainage area of five (5) acres or more.

Major outfall shall mean a major municipal separate storm sewer outfall.

Medium municipal separate storm sewer system shall mean all municipal separate storm sewers that are located in an incorporated place with a population of one hundred thousand (100,000) or more, but less than two hundred fifty thousand (250,000) as determined by the latest decennial census by the Bureau of Census.

Municipal separate storm sewer system (MS4) shall mean a conveyance or system of conveyance (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, manmade canals or storm drains) and as otherwise described in 40 CFR 122.26.

Navigable waters shall mean all navigable waters of the United States or the State of Louisiana; tributaries of navigable waters; lakes, rivers and streams which are utilized by travelers for recreational or other purposes; lakes, rivers and streams from which fish or shell fish are taken and sold in commerce; and lakes, rivers and streams which are utilized for industrial purposes by industries in commerce.

Non-municipal storm sewer system (NMSSS) shall mean privately owned, state owned and federally owned storm sewer systems.

Non-point sources shall mean pollution sources that are diffuse, do not have a single point of origin, are not introduced into a receiving stream from a discernible confined and discrete conveyance and do not meet the definition of a "point source" at 40 CFR 122.2. The pollutants are generally carried off the land by stormwater runoff. Commonly used categories for non-point sources including agriculture, forestry, urban, mining, construction, dams and channels, and land disposal. (This may also include saltwater intrusions.) See "point source" definition below and 40 CFR 122.2).

Noxious gas shall mean any gas that is harmful or destructive to human beings.

NPDES shall mean national pollutant discharge elimination system as used in 33 USC Sec. 1251 et seq.

NPDES permit or *permit* shall mean any permit issued to an entity, public or private, to control the discharges of pollutants in stormwater runoff or wastewater into the surface water of the limited states.

Other pertinent ordinances shall refer to Ordinance 7210, 9078, 9079, 9142, 9171, 9287 and

others which relate to stormwater and point source discharges into the MSSS. These ordinances shall be enforced under terms of this chapter.

Outfall shall mean a point source as defined in 40 CFR 122.2 where a municipal separate storm sewer discharges into waters of the permitted states or a point where a storm sewer pipe or any other conveyance enters or ties into the municipal storm sewer system (pipe or open channel).

Overburden shall mean any material of any nature, consolidated or unconsolidated, that overlies a mineral deposit, such as sand, gravel and dirt, excluding top soil or similar naturally occurring surface materials that are not disturbed by mining operations.

Point source shall mean any discernible, confined or discrete conveyance including, but not limited to any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, rolling stock, vessel or other floating craft, from which pollutants are or may be discharged.

Pollutant shall mean any contaminant, solid waste, sewage, sludge, chemical waste, biological material, heat, trash, sand, industrial or agricultural waste discharged into water.

Pollution shall mean the man-made or man-induced alteration of the chemical, physical, biological and radiological integrity of water.

Reactive shall mean to undergo a chemical change or chemical or thermal instability or to exert a counteracting, or reciprocal force or influence.

Runoff coefficient shall mean the fraction of total rainfall that will appear at a conveyance as runoff.

Significant amount is defined as an amount which will pose a threat to the health, safety, and welfare of the public.

Stormwater means stormwater runoff, snow melt runoff, and surface runoff and drainage.

Stormwater discharge associated with industrial activity means the discharge from any conveyance which is used for collecting and conveying stormwater and which is directly related to manufacturing, processing or raw materials storage areas at an industrial plant and discharge of stormwater associated with industrial activity as defined at 40 CFR 122.26 (b) (14) (i-x). The term does not include discharges from facilities of activities excluded from the NPDES program under 40 CFR Part 122.

Toxic pollutant shall mean any pollutant or combination of pollutants found in 40 CFR 122 Appendix D or any materials which exert a toxic effect.

Viscous shall mean the character or property of liquids which causes them to resist instantaneous change of shape or instantaneous rearrangement of their parts due to internal friction and denotes the thickness of a substance seen as the resistance at which particles offer to a force tending to move them in relation to each other.

Waste shall mean any disposed, discarded or unwanted materials generated or left over from manufacturing processes or refuse from human habitation or activities.

Wastewater and process wastewater shall mean any water which, during manufacturing, processing or any other use comes into direct contact with or results from the production or use of raw materials, chemicals, intermediate product, finished product, by-product, or waste product, human or animal excrement.
(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:361. Denial or conditioning of discharges.

If any wastewater, wastes, or stormwaters are discharged, or proposed to be discharged, into the storm system when discharge(s):

(1) Contain pollutants or exceed the limitations when provided for in this Chapter, state or federal regulations or permits;

(2) have the potential to contribute a significant amount of pollutants which interfere with or cause maintenance problems of the storm sewer systems;

(3) have the potential to contribute a significant amount of pollutants to the stormwater which would cause it to be out of compliance with state or federal water

quality limits when applicable via EPA and DEQ regulations or permit requirements;

(4) have the potential to contribute a significant amount of pollutants that would have a deleterious effect upon the storm sewer system or waters receiving stormwater discharges; or

(5) which otherwise contributes a significant amount of pollutants or threaten to contribute contamination, pollution or nuisances which may endanger or create a hazard to public health, safety or welfare, then the Director may institute one or more of the following actions by written notice to the dischargers:

a. Reject point source discharges;

b. Require La. DEQ water quality discharge permits and NPDES Permits for point source and other regulated sites or dischargers;

c. Require a City/Parish general water quality discharge permit in cases where there is no state or federal discharge permit and where there is a potential of stormwater pollution or contamination.

d. Require control over the quantities and rates of point source discharge through the issuance of a DEQ and NPDES permit or a City/Parish compliance order;

e. Require immediate discontinuance of the point source discharge until such time as it meets the requirements of this Chapter, State and Federal regulations or permits.

f. Require, in cases of non-point source or point source stormwater discharge, the design and implementation of a stormwater management plan.

g. Require compliance with other pertinent city/parish ordinances.

(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:362. Compliance with stormwater standards; general discharge prohibitions.

(a) No point source or non-point source shall discharge or cause to be discharged directly or indirectly any pollutant, contaminant or other waters which will or has the potential of causing damage to the stormwater transport system or the surface waters of the state. Except as otherwise provided in this chapter, no waters, wastewaters or waste shall be discharged from any point or non-point source into the municipal/parish stormwater collection system:

(1) Containing flammable, reactive, and/or explosive solid, liquids or gases that have the potential to cause a fire or explosive hazards, including, but not limited to, waste streams or runoff streams with a closed cup flashpoint of less than 140 degrees Fahrenheit or 60 degrees Centigrade using the test methods specified in 40 CFR 261.21.

(2) Having a pH less than 6.0 or higher than 9.0 or having any other corrosive or scale forming properties capable of causing damage or hazard to structures, equipment, bacterial action or personnel engaged in stormwater system maintenance or operation and management.

(3) Containing solid or viscous substances which may cause obstruction to the flow in a storm sewer or other interference with the operation and maintenance of the stormwater collection system. In no case shall extractable oil and grease exceed DEQ limits within any discharge into a storm sewer system nor shall oil or greases from any source be disposed of within the storm sewer system.

(4) Containing any pollutants, including oxygen demanding pollutants or contaminants (BOD, etc.) released at a flow rate and/or pollutant concentration which will cause harm to the storm sewer system or to the surface water of the state as established by DEQ/EPA.

(5) Containing toxic pollutants in sufficient quantity, either singularly or by interaction with other pollutants which constitute a hazard to humans or animals, or create a toxic effect in the receiving waters of the MS4.

(6) Containing any noxious or malodorous gas or substance which singularly or by interaction with other wastes creates a public nuisance or hazard to life or which is sufficient to prevent entry into stormwater collection system for maintenance and repair.

(7) Containing any substance which cause MS4 to violate any NPDES or DEQ permit or any receiving stream's water quality standards, as established by any applicable federal or state law or as provided in this chapter.

(8) Containing petroleum oil, non-biodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference, or damage with the transport system, pollute surface waters, or violate DEQ and/or EPA water quality standards.

(9) Containing silt, settleable or suspended solids or other materials to enter the MS4 which will clog, interfere with or restrict the flow of water or will impact the benthic habitat. Under no circumstances shall federal, state and local ordinances conceiving erosion control and floodplains be exempted from this chapter. Failure to comply with local ordinances shall be enforced by means established in this chapter.

(b) No liquid waste hauler shall discharge or cause to be discharged into the storm system any liquid domestic or nondomestic waste inclusive of septic, grease trap, oil separator, treatment plant, carpet cleaning solutions or etc. All discharges must meet current and future state and federal requirements.

(c) No point source or non-point source waste or wastewater or treated wastewater shall be discharged into the stormwater system from any treatment facility or industrial holding tank except as authorized by the director in accordance with the provisions of this chapter. A copy of the La. DEQ discharge (water) permit and the NPDES permit must be supplied to the director before such discharges commence and permission to do so is granted by the director. Additional stipulations shall be placed on the discharger as the director deems necessary. If state and federal permits have not been issued, a letter from each agency shall be provided acknowledging the receipt of a completed application.

(d) No point source or non-point source shall be allowed to discharge any substance which does or has the potential to deteriorate or restrict flows in stormwater transport systems.

(e) No point source waste, wastewater, runoff or treated wastewater shall be directly discharged into the MS4 from any out-of-parish source.

(f) No point source or non-point source waste, wastewater, runoff or treated wastewater discharged into the MS4 from any grease trap, portable toilet, holding tank or septic tank prior to receipt by the director of analysis which confirm that such discharge will meet all discharge limitations set forth in state and federal or local permits. State and federal discharge limits shall become limits of this chapter and are enforceable as such.

(g) All sewer, process water, industrial and other stormwater sources shall have a La. DEQ water discharge permit and a NPDES permit before discharging into the MS4 via point sources. If sources under federal or state law are required to have stormwater discharge permits must obtain these from EPA and/or DEQ.

(h) All facilities subject to this chapter and all treatment equipment or fixtures shall be maintained in such a manner that they are operative during any discharge and in continual compliance with the EPA and DEQ requirements.

(i) All the state owned and operated facilities that become co-permittees with the City of Baton Rouge and East Baton Rouge Parish municipal stormwater NPDES permit will be covered by this chapter. The state owned and operated facilities are:

(1) Louisiana State University,

(2) Southern University, and

(3) The Louisiana Department of Transportation and Development.

(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:363. Specific discharge limitations.

(a) The director shall have the authority to develop and enforce any discharge limits based on EPA/state standards or criteria of pollutants into a MS4 by a point or non-point discharge. The director shall continue to develop these limits as necessary and to effectively enforce the limits in order that the purposes of this regulation may be fully served and that compliance with the requirements of the USEPA applicable to the MS4 may be met.

The effluent limitations shall include but not be limited to, prohibitions on discharges into any MS4 of any materials:

(1) Containing any substance exceeding the following limits based upon a thirty (30) day average, which average may be determined by no less than one (1) discharge monitoring test for each monitoring period as required by permit:

Biochemical oxygen demand	BOD_5	15.0 mg/l
Chemical oxygen demand	COD	100.0 mg/l
Ammonia (as N)	NH_3-N	10.0 mg/l
Oil and grease	15.0 mg/l	
pH	6.0 to 9.0	
Total organic carbon	TOC	50.0 mg/l

(2) Containing any pollutant by point or non-point discharge from any source that violates any effluent limitations as established by any federal or state law or as provided in this chapter.

(b) The point source or non-point source dischargers shall provide necessary data, such as a stormwater management plan, to the director, when requested to show proof that the best practicable control technology, techniques and processes, procedures and methods are being used to minimize the discharge of pollutants into a storm sewer system.

(c) New source, point source or non-point source dischargers shall provide necessary data, such as a stormwater management plan, to the Director, when requested, to show proof that the best available control technology, techniques and minimize the discharge of pollutants into a storm sewer system.

(d) Under no circumstances shall the point source discharger dilute the effluent as a means of reducing pollutants levels into the system.

(e) Any construction operation that results in the disturbance of one (1) acre or more of total land area is subject to the regulations of this chapter and EPA and DEQ regulations. Construction activities as described by the U.S. EPA are those that disturb large tracts of land that involve the use of heavy equipment such as bulldozers, cranes, and dump trucks. Construction activity frequently employs dynamite and/or other equipment to eliminate trees, bedrock, rockwork, and to fill or level land.

Such activities also engage in the installation of haul roads, drainage systems, and holding ponds that are typical of the industrial activity identified in CFR 122.26(b)(14)(i)—(x). A copy of the construction activities or other general discharge permit(s) shall be provided at the Director's request. EPA further indicates that runoff associated with construction activities "has the potential for serious water quality impacts," particularly with regard to sediments and other pollutants.

These regulations specifically apply to clearing, grading, and excavation activities. Not subject to regulation are disturbances of less than one (1) acre, unless the smaller parcel creates a significant stormwater quality or MSSS problem as stated in other sections of this chapter or future regulation that may be required by federal or state agency.

(f) Potential discharge areas such as parking lots, subdivision development, construction-sites and etc. shall comply with all standards established by the city/parish government (planning and zoning, DPW engineering, DPW inspection, DPW environmental and etc.)
(Ord. No. 10966, § 1, 9-10-97; Ord. No. 13568, § 1, 4-26-06)

Sec. 2:364. Agency action.

The director shall have the authority through the issuance of an administrative order to any

point source or non-point source discharger, to place any stormwater discharger on a compliance schedule and require the installation of treatment technology as necessary to achieve any applicable stormwater standard on or before any deadline specified in the order. The director is hereby empowered, authorized and directed to prepare and promulgate regulations necessary to administer and enforce the stormwater program, to establish administrative rules and guidelines for enforcement of the standards, criteria and limits established by this chapter, and to issue orders as necessary to enforce the provisions of this chapter. Regulations promulgated here under shall provide for the right of administrative appeal of any fees, penalties or fines paid under protest with respect to any provision, application or effect of this chapter and said regulations.
(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:365. Rules of administrative review.

In accordance with the provisions of this chapter of the metropolitan council of the City of Baton Rouge and the Parish of East Baton Rouge, and particularly in accordance with section 2:364 thereof, the director of the department of public works does hereby establish these rules for the administrative review of any appeal lodged by a point or non-point source discharger of the city/parish storm sewer system who is permitted by La. DEQ, EPA, or the city/parish, for or whom the department has notified must obtain a said permit for discharge of water into the publicly owned storm sewer system of the City of Baton Rouge and the Parish of East Baton Rouge. Said discharge may be point or non-point sources.

(1) *Parties.* Any point or non-point discharger who has received notice of the requirement to file an application for the appropriate permit for discharge into the MS4 of the city/parish, or any discharger who is presently allowed to discharge into the MS4 of the city/parish may request an administrative review of the inclusion of said discharger within the scope of the MS4 program, or may request administrative review of any applicable user fee, fine, penalty, assessment, or ordered issues by the director of the department of public works in connection with permitting of or discharges by said user into the city/parish MS4.

(2) *Payment under protest.* If the request for administrative review is related to payment of fees or fines or the amount of such fees or fines, the user must indicate when paying applicable fee or fine that the fee, fine or penalty is being paid under protest. Said user must, simultaneously with the payment of the fee, fine or penalty, file a request for administrative review setting forth the basis for the protest of the payment.

(3) If the request for administrative review is related to the assessment of fines, penalties, or the issuance of an order by the director of the department of public works or his designee based on a violation of the provisions and requirements of this chapter, said request must be filed with the director within thirty (30) days of the receipt of such assessment.

(4) *Contents of request for administrative review.* All requests for administrative review shall be in writing, shall be signed by the user or his authorized representative, and shall, at a minimum, state:

a. The name, address and phone number of the individual filing the request;

b. The applicable user fee, fine, penalty or order from which relief is sought;

c. The name, address and telephone number of the regulated facility;

d. The name, address, business title or position, and telephone number of the authorized agent or representative or other responsible person for operation of the facility's discharges into the MS4;

e. The basis upon which relief is sought;

f. Extenuating circumstances or specific justification for granting the relief sought.

(5) A request for administrative review shall be filed by hand delivery or by mail di-

rected to: Coordinator of Environmental Affairs, Department of Public Works, P.O. Box 1471, Baton Rouge, Louisiana,70821.

(6) Filing a request for administrative review does not suspend the obligation of the requesting party to comply with the discharge limitations and requirements of state and federal permits and of this Chapter prior to or during the administrative review process.

(7) All requests for administrative review shall be initially reviewed by the department through the office of the coordinator of environmental affairs and an administrative conference date will be established. Any request not containing the information required by Rule 2 may be summarily rejected by the coordinator of environmental affairs and a notice sent to the requesting party stating the reason for summary rejection. Summary rejection of a request does not preclude the requesting party from submitting a new request in accordance with these rules.

(8) Requests based on mistaken identification of a user, clerical error, or the lack of a physical connection between the discharge facilities of the requesting party and the MS4 may be resolved in writing by the director upon recommendation of the coordinator of environmental affairs in favor of the requesting party without the need for an administrative conference. All other requests must be the subject of at least one administrative conference between the requesting party and one or more of the following department officials: The coordinator of environmental affairs, the MS4 manager, or the environmental engineer.

(9) The administrative conference will be informal in nature. At the administrative conference the department will compile an administrative record consisting of pertinent records of the department regarding the requesting party and discharges from the requesting party's facility as well as any evidentiary filings the requesting party desires to introduce into the record.

(10) Following the administrative conference, a staff determination on a request shall be rendered jointly by the coordinator of environmental affairs, the MS4 manager, and then entered into the administrative record and a copy thereof shall be forwarded to the discharger. If no appeal of the staff determination is filed with the director within thirty (30) days of the date of the staff determination, the director may approve the staff determination and render a final decision based thereon.

(11) Appeal of the staff determination on any request may be made in writing to the director of the department of public works within thirty (30) days of the date of the staff determination. Such appeal requests may provide any additional information the requesting party believes is necessary for the complete and thorough understanding of the request. If, in the opinion of the director, an additional administrative conference is necessary to fully assess the issues raised by the requesting party, the director may give notice of such conference to the requesting party and the representatives of the department; additional written evidence or information for the administrative record may be provided by the requesting party and representatives of the department at this time.

(12) The director may require that the requesting party provide any information maintained by it as a result of the requirements of this chapter relating to waste generation, disposal or discharge, or relating to sampling, testing and analysis of wastes discharged into the MS4, which in the opinion of the director, would provide an evidentiary basis for rendering his decision. Where financial inability to pay forms the basis for the request and the requested relief involves the payment of fees in installments or the mitigation of penalties or fines, the director may re-

quire the requesting party to provide financial statements or accounting data supporting its claim.

(13) The director may take such action following his administrative review as is appropriate for the safe and environmentally sound operation and maintenance of the MS4; however, the director shall not:

a. Authorize violations of the requirements of this chapter, or

b. Remove any facility from the requirements of the MS4 if the facility is discharging any pollutants into the system in excess of the discharge standards established by the chapter.

(14) The director may compromise and/or mitigate the amount of penalties to be assessed for violation of this chapter based upon an affirmative good faith showing by the violator that one (1) or more of the following mitigating factors is applicable to the violating facility:

a. A lack of previous violations and historic compliance;

b. The cause of the violation was due to an act of God, war, or third parties not associated with the facility;

c. The nature and gravity of the violation was not significant;

d. Good faith efforts by the violator to prevent future violations;

e. Payment of the full penalty amount creates a real and verifiable danger of making the facility incapable of future operation;

f. Other pertinent factors which, in the opinion of the director, are probative of the fact that the violation did not endanger the public safety, health or welfare and did not jeopardize the integrity of the MS4.

(15) The director may, for good cause shown, make permit fees payable through installments over a period not to exceed one hundred twenty (120) days from the date such fees are due, but the director may not waive applicable permit fees.

(16) Decisions of the director rendered in the administrative review process shall be final, shall be in writing and shall be based on the full and complete written administrative record compiled by the department and the requesting party.

(17) Information received by the department in the course of the administrative review process may be classified as confidential by the department only if the director makes a written determination that confidentiality is necessary to protect trade secrets, proprietary secrets and information, and commercial or financial information. However, such a finding regarding confidentiality shall not apply to necessary use by authorized officers or employees of the department or the state or federal government in carrying out their responsibilities under this chapter or applicable federal law or state law.

(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:366. Discharge permits.

(a) Any discharger shall be required to apply to and secure from the director a permit allowing discharge into a MS4 or provide the director with a copy of the La. DEQ and NPDES permits.

(1) Existing dischargers not previously required to obtain a permit who presently discharge into a MS4 shall secure from the director a discharge permit application which shall be completed, filed and all applicable fees paid within ninety (90) days of the receipt of notice from the director of the applicability to such user of the permit system requirements. Upon approval of application, the director shall issue a discharge permit containing specific conditions which shall be consistent with the provisions of this chapter. Any La. DEQ or NPDES permit shall serve as a city/parish permit.

(2) Any new source or new discharger is prohibited from making any connection to

a MS4 until the user has applied for and received from the director a discharge permit. Upon approval of the application, the director shall issue a discharge permit containing specific conditions which shall be consistent with the provisions of this chapter. A La. DEQ and/or NPDES permit shall serve as a city/parish permit.

(b) Application for permits and specific permit conditions shall be in a form as determined by the director. Permit conditions shall include provisions to meet the following objectives:

(1) To prevent the introduction of pollutants into a MS4 which interfere with the operation of a MS4 including interference with its use of disposal of sediments;

(2) To prevent the introduction of pollutants into a POTW which will pass through the MS4 or otherwise be incompatible with such structures; and

(3) To improve opportunities to recycle and reclaim sludges and sediments.

(c) No discharger shall increase or otherwise change its permitted discharge without first notifying the director in writing, requesting and receiving a permit modification to cover said change.

(d) All MS4 permits issued by the director shall be for a period of not longer than one year from date of issuance. The director may modify any permit when discharge conditions change or regulatory discharge limitations as set forth in this chapter are increased or decreased.

Upon the occurrence of a change in discharge conditions, or a modification of limitations, but at least in conjunction with the renewal of a permit, the director shall review and adjust the permit fee accordingly (if applicable).

(e) The director shall develop a MS4 permit fee schedule and determine a formula for the calculation of appropriate fees for dischargers permits based upon the MS4 permit fee schedule. The permit fee schedule and formula shall be subject to final approval by the metropolitan council. Such a fee system shall be initiated by the director when required.

(f) No MS4 permit may be transferred from the permitted user to another person without prior written notification to the director of the proposed transfer. The transferor shall provide the transferee with a copy of the MS4 materials provided to transferor by the director, including a copy of the MS4 permit and all applicable regulations.

(g) *Significant user.* The following provisions shall apply to all users which are permitted by DEQ and/or have a NPDES permit. Significant users must comply with the requirements applicable to any permit plus must meet the requirements, standards and criteria set forth herein.

(1) *Inspection.* The director shall inspect each significant user at least once a year.

(2) *Evaluations.* The director shall evaluate, at least every two (2) years, whether each significant user needs a plan to control varied discharges. If the director determines that a stormwater runoff plan is needed, the plan shall be prepared by the significant user and submitted to the director for review and approval. Such plan shall contain, at a minimum, the following elements:

a. Description of runoff discharge practices;

b. Description of all chemicals and hazardous substances stored at the facility site;

c. Procedures for immediately notifying the MS4 of accidental discharges, including any discharge that would violate a prohibition of this chapter, with procedures for follow-up written notification to the director within five (5) days of any reportable event;

d. If necessary, procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing

toxic organic pollutants (including solvents), and/or measures and equipment for emergency response.

(3) *Listed significant users.* The director shall obtain from La. DEQ a list of all users meeting the criteria in paragraph (2) of the definition of significant user. The list shall identify the criteria in paragraph (2) of the definition of significant user applicable to each discharger and for users meeting the criteria shall also indicate whether the director has made a determination that such user should not be considered a significant user.

(4) *Reporting requirements.* In addition to the requirements set forth in section 2:367 hereof, the director shall require appropriate reporting from those significant users with discharges that are subject to DEQ and NPDES permit requirements. Each significant user shall submit to the director, (on dates specified by the director) a description of the nature, concentration, and flow of the pollutants required to be reported by the director. These reports shall be based on sampling and analysis performed in the period covered by the report, and performed in accordance with the techniques described in 40 CFR Part 136 and amendments thereto. Copies of DEQ and NPDES permit compliance reports shall be acceptable.

Where 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the USEPA determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or other applicable sampling and analytical procedures approved by the director and the USEPA.

Sampling and analysis may be performed by the director in lieu of a significant or non-significant discharger upon the request of the user or upon refusal of the user to comply with the requirements hereof.

When the director collects all the information required for the report, the user will not be responsible for all submission of the report but shall be responsible for all costs associated with sampling and analysis, and if testing by the director is required because of refusal of the significant user to test, such refusal shall be considered to be a significant violation of this chapter.

(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:367. Reporting and notification requirements.

(a) Reporting requirements to the city/parish shall include:

(1) Copies of DEQ and NPDES monitoring reports upon request of the director or his agent.

(2) Notification of any spills or accidental releases into the city/parish stormwater transport system.

(3) Notification of changes in discharge locations or characteristics. A copy of DEQ or EPA notification will suffice except for physical changes in storm system tie-ins.

(4) For non-point sources, the director may request analyses of the designated drainage areas where there is suspected stormwater pollution.

(b) Falsification, destruction and/or tampering. Discharger shall not conceal, destroy, or falsify test results or analytical or other pertinent records nor tamper with sampling and/or testing equipment affecting the integrity of monitoring procedures and methods. Any such action shall be considered a significant permit violation.

(c) Record-keeping requirements:

(1) Any user subject to the reporting requirements of this chapter shall maintain records of all information resulting from any monitoring activities required by said chapter. Such reports shall include for all samples:

a. The date, exact place, method and time of sampling and the names of the individual(s) taking the samples;

b. The dates analyses were performed;

c. The individual(s) who performed the analyses;

d. The analytical techniques/methods employed; and

e. The results of such analyses.

(2) Any user subject to the reporting requirements of this chapter shall be required to retain for a minimum of three (3) years any records mandated by this chapter including records of monitoring activities are required by said chapter) and shall make such records available for inspection and copying by the director. This period of retention shall be extended during the course of any unresolved litigation regarding the discharge or when retested by the director.

(3) The director shall retain, for minimum of three (3) years, any reports submitted by a user pursuant to this chapter.

(d) Additional annual reporting requirements. Any discharger who utilizes the services of a liquid waste hauler for the collection, transportation or disposal of liquid waste collected shall complete and file with the Director an annual report setting forth the date of each transfer of liquid waste to haulers, the volume and character of such waste and the disposition location of such waste. All relevant stipulations governing liquid domestic waste haulers (Ordinance 9239) shall apply to said hauler.
(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:368. Inspection, surveillance and monitoring.

(a) *Right of entry.* All duly authorized employees or contract personnel of the city/parish, bearing proper credentials and identification shall be permitted to enter all premises of the point or non-point source discharger at all reasonable times for the purpose of inspection, observation, measurement, sampling and testing in accordance with the provisions of this chapter. The authorized employee or contract personnel shall also be permitted to inspect and copy all necessary water discharge records required by this chapter. Such personnel shall have the authority to inquire about all processes and activities which either directly or indirectly affect the stormwater collection system including, but not limited to, chemical and waste storage at the premises.

(b) *Installation of monitoring equipment and access sampling point.* When required by the director, the discharger shall install a suitable sampling point together with such necessary meters and other appurtenances in the MS4 to facilitate an observation, sampling and measurement of the discharge. Such a location, when required, shall be accessible and safely located, and shall be constructed in accordance with plans approved by the director. The sampling site shall be maintained by the user as to be safe and accessible at all times.

(c) *Sampling and testing.* All measurements, tests, and analyses of discharges to which reference is made in this chapter shall be determined in accordance with the procedures set forth in 40 CFR 136, as amended. In the event that a sampling site has not been required, the sampling location shall be designated by the director. The point shall be located where the facility's storm drain sewer is connected to the MS4.

Sampling shall be carried out by methods to accurately reflect the effect of the effluent upon a MS4 and to determine the existence of a hazard to health, safety or welfare of the public.
(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:369. Legal remedies.

(a) For the purposes of this section, the following words and phrases shall have the meanings respectively ascribed to them:

Agent or *designee* shall mean any individual who is also the authorized agent, lessee or other individual either occupying or controlling any immovable property in this parish pursuant to any written or oral contract or agreement with the record owner, or any individual acting on behalf of the record owner of said immovable property.

Costs of enforcement shall include, but not limited to, all fines, penalties, permit fees, damages, attorney's fees, expert witness fees, court

costs, court reporter fees and any other related administrative expenditures incurred by, or owed to, the city-parish as the result of, or in connection with any enforcement proceeding based on, a violation of any provision or requirement of either this chapter or a permit issued by the director.

Immovable property shall mean the real property and all component parts thereof upon which the noncompliant discharger is located. Where the noncompliant discharger controlled by the record owner's agent or designee, said definition shall also include all real rights conferred by any contract or agreement between the record owner and his agent or designee.

Knowingly or *willfully* shall mean that the circumstances indicate that the offender, in the ordinary course of human experience, must have adverted to the prescribed criminal consequences as reasonably certain to result from his act or failure to act.

Record owner shall mean any individual owning immovable property in this parish who is not point or non-point source discharger. Said owner shall be determined from the latest available parish assessment rolls.

(b) Injunctive relief. Whenever any discharge into a city/parish storm sewer system is in violation of any provision of this chapter, a condition of a permit, or any administrative or compliance order issued by the director or otherwise causes or threatens to cause a condition of contamination, pollution or nuisance which is or may be injurious to the public health, safety and welfare, the city/parish may petition a court with proper jurisdiction for the issuance of a temporary restraining order, preliminary injunction and/or permanent injunction as may be appropriate to prohibit, restrain and enjoin the continuance of such discharge or proposed discharge by any individual.

(c) Civil enforcement penalties. Any individual who violates any provision of this chapter or any order or condition of a permit issued by the director, shall be subject to a civil penalty not to exceed the sum of one thousand dollars ($1,000.00) per day, per violation. In addition to the penalties provided herein, the city/parish may recover reasonable attorney's fees, court costs, court reporter's fees, and other expenses of litigation against the individual found to have violated this chapter or any requirement or condition of a permit issued.

(d) Criminal penalties. Any individual who willfully or knowingly:

(1) Makes any false statement, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this chapter or a permit;

(2) Falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this chapter or discharge permit;

(3) Discharges any contaminant, pollutant, toxic pollutant, waste or wastewater into the stormwater collection system without first applying for and securing from the La. DEQ and/or EPA permit allowing said discharge;

(4) Violates any condition of an emergency order or final order of the director or an injunction imposed by a court of competent jurisdiction; or

(5) Discharges any contaminant, pollutant, toxic pollutant, waste or wastewater which:

a. Causes or has the potential to cause operational or maintenance problems with the stormwater collection system;

b. Causes or has the potential to cause the stormwater collection system to be out of compliance with state or federal discharge limits;

c. Causes or has the potential to cause a deleterious effect upon the stormwater collection system or waters receiving its discharges; or

d. Causes or threatens to cause a condition of contamination, pollution or nuisance endangering or creating a hazard to public health, safety or welfare;

shall, upon conviction, be punished by a fine of not more than one thousand dollars ($1,000.00) or by imprisonment for not more than six (6) months, or both.

Upon a determination that a criminal violation may have occurred, notification shall be given to the appropriate prosecuting authority. The director shall provide the appropriate prosecuting authority with any and all information necessary to evaluate the alleged violation for criminal prosecution. The criminal prosecution of such violations shall be at the direction of the appropriate prosecuting authority.

(e) Any individual who violates any provision of this chapter or any condition of an order issued by the director, and thereby causes damage to the stormwater collection system, or results in the payment of civil or criminal penalties for violations of any NPDES or DEQ permit issued to the city-parish, then in each or any such instance, the individual who causes such damage, or penalties shall be liable to the city-parish for all monies expended for damages sustained, costs incurred and/or penalties paid by the city-parish.

(f) Enforcement actions. Whenever, on the basis of any information available to him, the director finds that an individual is in violation of any section of this chapter or any condition of an order issued by the director, the director may take such enforcement action as is necessary to ensure compliance with the provisions of this chapter or to address emergency situations caused by violations of the provisions of this chapter. Any such order containing compliance requirements or ordering the cessation of discharges into the storm sewer system shall be in writing and shall be served on the individual through the use of any means available which is reasonably calculated to ensure receipt of the order by the individual. In any case in which an order is issued to a corporation, a copy of such order may be served, as stated above, on any appropriate officer or registered agent for service of process. Any order issued under this subsection shall state with reasonable specificity the nature of the violation, and shall specify a time for compliance not to exceed a time the director determines to be reasonable, taking into account the seriousness of the violation and any good faith efforts to comply with applicable requirements by the individual. If an emergency situation arises as a consequence of a violation by an individual, the director may direct, through an emergency order that the individual cease discharges into the storm sewer system, which order shall remain effective until the individual is found to be in compliance with all provisions of this chapter or conditions of the permit, if any, issued to the individual. For situations which the director determines to constitute a significant violation or significant noncompliance with the provisions of this chapter, whether an emergency is determined to exist or not, the director may direct by Order that the individual cease discharges into the storm sewer system until the individual is in compliance with all of the provisions of this chapter or the conditions of a DEQ or EPA permit. If a permitted individual fails to comply with the terms of such order, the director shall have the authority to request DEQ and/or EPA to remove the individual's permit.

(g) Any civil action necessary to carry out the provisions of this chapter shall be brought by the director. The director may bring a civil action in the name of the city-parish to recover any damages or penalties resulting from a violation of any provision or requirement of this chapter. In such suits the director shall be represented by the parish attorney for the Parish of East Baton Rouge. Violations shall be addressed in a consistent manner in accordance with uniform and consistent guidelines established by the director for addressing violations.

(h) Suspension of license. The director, following notice to the discharger, may notify and request the director of finance to revoke or suspend the occupational license of any individual who has not paid any fee or other cost mandated by this chapter, or who has failed to comply with the terms of an order issued by the director pursuant to paragraph (E) above, requiring the individual to terminate discharges into the stormwater collection system.

(i) The director, following notice to the violator, may request the appropriate water utility to terminate and discontinue water service to the designated premises of any individual found in violation of any provision of this chapter or any condition of a permit issued by the director.

(j) The director, following notice to the violator, may disconnect or otherwise plug, at its tie-in with the storm sewer or canal, the stormwater discharge line of any individual found in violation of any provision of this chapter or any condition of a permit issued by the director.

(k) (1) All costs of enforcement incurred by the city-parish resulting from a violation of any provision or requirement of either this chapter or an order or permit issued by the director pursuant to this chapter shall be assessed against both the individual found in violation hereof and as a real charge against the immovable property upon which the noncompliant discharger is located.

(2) Within forty-five days following the final assessment of costs of enforcement, excluding any delays for administrative review, the director shall provide the record owner and his agent or designee with notice, by registered or certified mail, of the assessment of said costs of enforcement. If the record owner, or his agent or designee, fails to pay said costs of enforcement within fifteen (15) days after receipt of such notice, the director may file a certified copy of the costs of enforcement with the recorder of mortgages; and the same, when so filed and recorded, shall operate as a lien and privilege in favor of the city-parish against the immovable property affected.

(3) The director shall establish such procedural guidelines as may be reasonable and necessary to carry out the intent of this section including, but not limited to, guidelines for providing record owners with notice and an opportunity to be heard in all proceedings regarding alleged violations of either this chapter or a permit issued by the director pursuant to this chapter which occur on said record owners' immovable property.

(4) Notwithstanding anything herein to the contrary, any notices required to be served upon an individual pursuant to section 2:369 or any regulations promulgated by the director pursuant thereto shall also be served upon the record of the immovable property upon which said individual's facility is located.

(l) The director, prior to the expiration of thirty (30) days after notice of violation has been sent by the city-parish, shall commence appropriate enforcement action in accordance with this section.

(m) The director shall not allow mobile waste or liquid waste haulers to discharge onto the ground nor into a MS4 any liquid or unpermitted solid waste. Examples of these dischargers are from septic tanks, grease traps, oil separators, treatment plants, carpet cleaners and etc.
(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:370. Confidential information.

(a) Any information and/or data collected from a discharger in accordance with any section of this chapter shall be available to the public or any governmental agency, unless the discharger specifically requests that the information and/or data be treated as confidential and is able to demonstrate to the satisfaction of the director, that the release of such information would divulge processes or methods of production entitled to protection as trade, financial or business secrets. Information related to wastewater shall not be recognized as confidential information and shall be available to the public upon request.

(b) Pursuant to Section 308 of the Clean Water Act, and notwithstanding anything herein to the contrary, the EPA, upon request, shall have access to all information collected in accordance with this chapter.
(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:371. Severability.

If any provision, paragraph, word, section or article of this chapter is invalidated by any court of competent jurisdiction, the remaining provisions, paragraphs, words, sections, and chapters shall not be affected and shall continue in full force and effect.
(Ord. No. 10966, § 1, 9-10-97)

Sec. 2:372. Conflict.

All other ordinances and parts of other ordinances inconsistent or conflicting with any part of this chapter are hereby repealed to the extent of such inconsistency or conflict.
(Ord. No. 10966, § 1, 9-10-97)

CHAPTER 9. SMALL WIRELESS FACILITIES*

Sec. 2:380. Purpose and scope.

(a) *Purpose.* The purpose of this chapter is to establish a comprehensive set of site requirements for wireless communications facilities. These regulations are intended to provide for the managed development of wireless communications facilities within the public rights-of-way in a manner that recognizes and enhances the community benefits of wireless telecommunications technology and reasonably accommodates the needs of citizens and wireless providers in accordance with federal and state rules and regulations. At the same time, these regulations are intended to protect the community from potential adverse impacts of such facilities, including but not limited to traffic, aesthetic, safety, and other impacts over which the city-parish has purview, and to preserve the visual character of the established community through appropriate design, siting, screening, and maintenance and location standards.

(b) *Intent.* In enacting this chapter, the city-parish is establishing uniform standards to address issues presented by wireless communications facilities located within the public rights-of-way, including without limitation, to:

(1) Prevent interference with the use of streets, sidewalks, alleys, parkways and other public ways;

(2) Prevent the creation of visual and physical obstructions and other conditions that are hazardous to vehicular and pedestrian traffic;

(3) Prevent interference with the facilities and operations of other facilities lawfully located in rights-of-way, as well as public safety vehicles;

(4) Protect against environmental damage, including damage to trees located within the rights-of-way;

(5) Preserve the character of the neighborhoods in which facilities are installed; and

(6) Facilitate rapid deployment of small wireless facilities to provide the benefits of advanced wireless services.

(c) *Conflicts with other chapters.* This chapter supersedes all chapters or parts of chapters adopted prior hereto that are in conflict herewith, to the extent of such conflict.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:381. Definitions.

For the purposes of this chapter, the following terms, phrases, words, abbreviations, and their derivations, shall have the meaning given below, unless more specifically defined within a specific section or paragraph of this chapter. When not inconsistent with the context, words used in the present tense include the future and past tense, and words in the singular number include the plural number. The words "shall" and "will" are mandatory and "may" is permissive. Words not defined shall be given their common and ordinary meaning.

Antenna means communications equipment that transmits or receives electromagnetic radio frequency signals used in the provision of wireless services. For purposes of this definition, the term antenna does not include an unintentional radiator.

Antenna equipment means equipment, switches, wiring, cabling, power sources, shelters or cabinets associated with an antenna, located at the same

*__Editor's note—__*Ord. No. 17997, § 1, adopted December 9, 2020 repealed ch. 9, §§ 2:380—2:389, and enacted a new ch. 9 as set out herein and later amended. Former ch. 9 pertained to similar subject matter and derived from Ord. No. 16657, adopted September 27, 2017; and Ord. No. 16873, adopted July 25, 2018.

fixed location as the antenna, and, when collocated on a structure, is mounted or installed at the same time as such antenna.

Applicable law means all applicable federal, state and local laws or regulations governing wireless communication facilities or the siting or use of the ROW by wireless providers.

Applicable standards means applicable engineering and safety standards governing the installation, maintenance, and operation of wireless communications facilities and the performance of all work in the ROW, and includes the most current versions of National Electric Safety Code (NESC), the National Electrical Code (NEC), the regulations of the FCC (defined herein), the Occupational Safety and Health Administration (OSHA) and provisions of the city-parish's design standards set out in its design manual, the Manual on Uniform Traffic Control Devices (MUTCD), as well as applicable provisions of the city-parish's building, construction, electrical, fire, mechanical, engineering and safety codes, including those of the department of development and department of transportation and drainage, each of which is incorporated by reference in this chapter, including UDC section 18.5, as well as applicable requirements of the state or federal authority having jurisdiction over such wireless communications facilities.

Applicant means a wireless provider, or its duly authorized representative, that submits an application and the agents, employees, and contractors of such person or entity. Upon approval of any application, the applicant will become the "permittee."

Application means an electronic submission to the city-parish requesting authorization for the deployment of a wireless communications facility and/or associated structure at a specified location within the ROW, utilizing the forms specified by the city-parish. Such application shall include a request for all required city-parish permits required to construct, install and operate wireless communications facilities within the ROW, and if applicable requests to attach wireless communications facilities on city-parish-owned poles or other city-parish-owned structures located within the ROW.

Authorization means any approval that the applicant must obtain from the city-parish under this chapter, including applicable requirements of other city-parish chapters that have been incorporated by reference, prior to the deployment of wireless communications facilities or associated structures.

Batched application means a type of application process for a small wireless facility (SWF) permit, issued pursuant to this chapter, when certain SWFs are proposed to be located in the city-parish's ROW. The batched application process allows an applicant to combine individual SWF applications (that are for a single project, but that would otherwise be processed as separate individual applications) into a single batched submittal containing the individual applications to be processed at the same time. Batched applications must comply with the requirements of this chapter.

City-parish means the City of Baton Rouge and Parish of East Baton Rouge and any other department, representative, or official given authority to perform any action pursuant to this chapter.

Collocate or *collocation* means to install, mount, maintain, modify, operate, or replace wireless communications facilities on an existing wireless support structure or pole.

Day means a workday. However, if a date to perform any action under this chapter falls on a weekend or legal holiday, the date to perform the action shall be the next day that is not a weekend, a legal holiday, or a day on which the city-parish is closed as a result of inclement weather. When calculating days under this chapter, the first "day" counted shall be the first non-weekend or legal holiday immediately following the day of the event (such as the filing of an application) that triggered the need for the city-parish to perform an action within a specific period of time.

Deployment means placement, construction, or modification of a wireless communications facility.

Federal Communications Commission (FCC) means the federal agency responsible for implementing and administering the Federal Communications Act of 1934, as amended.

Micro wireless facility means a small wireless facility having dimensions no larger than twenty-four (24) inches in length, fifteen (15) inches in width, and twelve (12) inches in height and an exterior antenna, if any, no longer than eleven (11) inches.

Notification of final completion is an electronic document the permittee is required to send to the city-parish notifying the city-parish of the final completion date of the facility deployment. The city-parish may specify the form of the notification.

Person means any natural or corporate person, business association, or other business entity, including, but not limited to, a partnership, a sole proprietorship, a political subdivision, a public or private agency of any kind, a utility, a successor or assign of any of the foregoing, or any other legal entity. Person shall not include the city-parish or any of its departments or agencies.

Personal wireless service facility means a wireless facility or support structure used for the provision of personal wireless service.

Personal wireless services has the same meaning as provided in 47 U.S.C. § 332(c)(7)(C)(i), which defines the term as "commercial mobile services, unlicensed wireless services, and common carrier wireless exchange access services," as those terms are defined under the regulations of the FCC.

Pole means an above-grade pole/structure located in the ROW, including but not limited to utility poles, streetlight poles, or traffic signal poles, whether or not owned by the city-parish, a private utility, or a wireless provider.

Public safety facilities mean facilities used primarily for public safety functions, such as police, fire, and emergency operations.

Radio frequency (RF) is a rate of oscillation that corresponds to the frequency of radio waves, and the alternating currents that carry radio frequency, electromagnetic, or other wireless signals.

Related equipment means all equipment ancillary to the antenna used for transmission and reception of radio frequency, electromagnetic, or other wireless signals. Such equipment may include, but is not limited to, radios, cable, conduit, and connectors.

Rights-of-way or *ROW* means the surface, the air space above the surface, and the area below the surface of any public street, bridge, tunnel, highway, lane, path, alley, sidewalk, or boulevard owned by or dedicated to the use of the city-parish, and shall not include state-owned or federally-owned streets, highways, or lands. Rights-of-way shall not include any city-parish owned utility poles, streetlight poles, traffic signal poles, street furniture, buildings, or any other city-parish-owned structures or improvements, nor shall it include any privately-owned poles or facilities, regardless of whether they are situated in the public rights-of-way.

Small wireless facility (SWF) means wireless communications facilities that meet each of the following conditions:

(1) The facilities:

a. Are mounted on structures fifty (50) feet or less in height including their antennas;

b. Are mounted on structures no more than ten (10) percent taller than other adjacent structures; or

c. Do not extend existing structures on which they are located to a height of more than fifty (50) feet or by more than ten (10) percent, whichever is greater;

(2) Each antenna associated with the deployment, excluding associated antenna equipment, is no more than three (3) cubic feet in volume;

(3) All other wireless equipment associated with the structure, including the wire-

less equipment associated with the antenna and any pre-existing associated equipment on the structure, is no more than twenty-eight (28) cubic feet in volume;

(4) The facilities do not require antenna structure registration under C.F.R. Title 47, Chapter 1 Federal Communications Commission, Part 17;

(5) The facilities are not located on tribal lands, as defined under 36 C.F.R. 800.16(x); and

(6) The facilities do not result in human exposure to radiofrequency radiation in excess of the applicable safety standards specified in 47 C.F.R. Section 1.1307(b).

Stealth facility means any wireless communications facility that is designed to make the facility look like something other than a communications facility or wireless support structure.

Streetlight pole means a freestanding pole that is used for lighting purposes and is capable of supporting wireless communications facilities.

Substantial change or *substantial modification* means, for wireless support structures or poles within the ROW:

(1) The proposed collocation or modification increases the height of the support structure or pole by more than ten (10) percent or ten (10) feet (whichever is greater); or

(2) The proposed collocation or modification involves adding an appurtenance to the support structure or pole that would protrude from the edge of the support structure or pole by more than six (6) feet (and is not inconsistent with applicable standards limiting the distance of structures from the edge of a roadway); or

(3) The proposed collocation or modification involves the installation of any new equipment cabinets on the ground when there are no existing ground-mounted equipment cabinets associated with the support structure or pole; or

(4) The proposed collocation or modification would defeat the concealment elements of a stealth design support structure; or

(5) The proposed collocation or modification involves the installation of any new ground-mounted equipment cabinets that are more than ten (10) percent larger in height or overall volume than any existing ground-mounted cabinets associated with the support structure or pole; or

(6) The proposed collocation or modification involves excavation outside the area in proximity to the structure or pole and other transmission equipment already deployed on the ground; or

(7) The proposed collocation or modification would not comply with the conditions associated with the current siting approval, provided that this limitation does not apply to any proposed modification that would not otherwise constitute a substantial change.

Telecommunications has the same meaning as provided in 47 U.S.C. § 153(50), which defines the term as "the transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received."

Telecommunications services has the same meaning as provided in 47 U.S.C. § 153(53), which defines the term as "the offering of telecommunications for a fee directly to the public, or to such classes of users as to be effectively available directly to the public, regardless of the facilities used."

Traffic signal pole means a pole or other facility used to support signs and devices used for vehicular or pedestrian traffic management and/or safety.

UDC means the city-parish's unified development code.

Utility pole means a pole that is used in whole or in part for the purposes of supporting wires or cables wires for the distribution of electric or telecommunications services.

Visual aesthetic design elements are requirements aimed at ensuring that wireless communications facilities and associated support structures and poles are designed to reasonably blend into the surrounding environment (including other similar facilities) by means of stealth facility design, screening, design (such as monopole), or camouflage (including being of comparable color to any support structure and/or to the immediate environment where applicable); provided that all aesthetic requirements that apply to a specific WCF are reasonable, technically feasible, not more burdensome than the aesthetic requirements that apply to other types of deployments, objective, and published in advance.

Wireless communications facility (WCF) means equipment at a fixed location that enables the provision of wireless services, including radio transceivers, antennas, coaxial or fiber-optic cable (but not including separate wireline attachments for backhaul), regular and backup power supplies, and comparable equipment, regardless of technological configuration. The term includes, but is not limited to, small wireless facilities. The term does not include the pole, support structure, or ROW, on which the equipment is installed.

Wireless communications facilities permit (permit or WCF permit) means the official document or permit approving the deployment of wireless communications facilities within the public ROW, and if applicable, associated poles or wireless support structures, in accordance with this chapter and applicable law.

Wireless infrastructure provider means any person that builds or installs wireless communications facilities or wireless support structures used to provide wireless services, but that is not itself a wireless services provider.

Wireless provider means a wireless infrastructure provider or a wireless services provider.

Wireless services means any services, using licensed or unlicensed spectrum, including the use of WiFi, and include but are not limited to voice, video or data communications services, that qualify as personal wireless services or telecommunications services, whether utilized to provide fixed or mobile services, that are provided to the public through the use of wireless communications facilities.

Wireless services provider means a person that provides wireless services.

Wireless support structure or *support structure* means a freestanding structure, such as a monopole; a tower, either guyed or self-supporting; or any other existing or proposed structure primarily designed to support or capable of supporting, wireless communications facilities. Such term shall not include a pole.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:382. Permitted use.

(a) *Permitted use.* Placement of a wireless communications facility and any related pole or support structure in the city-parish rights-of-way shall be a permitted use under the applicable land use ordinances of the city-parish, but subject to compliance with the requirements of this chapter.

(b) *Permit required.* No person shall place a wireless communications facility or support structure in the city-parish rights-of-way or without first filing a WCF permit application and obtaining a WCF permit, except as otherwise provided in this chapter. All required permits for the construction, installation and operation of wireless communications facilities within the ROW shall be applied for under the same unified WCF permit application.

(1) Except as set forth in subsection (b), no modification may be made to an existing wireless communications facility or associated pole/support structure without obtaining a new WCF permit.

(2) No WCF permit shall confer any exclusive right, privilege, license, or franchise to occupy or use any public property.

(c) *Pole attachment agreements required.* Nothing herein shall confer any right to install wireless communications facilities upon public or privately-owned poles or support structures,

absent a separate attachment agreement with the owners of such poles and support structures.

(d) *No permit required.* Except as set forth in subsection (b), no WCF permit is required to:

(1) Perform maintenance on, replace or repair a wireless communications facility or associated pole/support structure, provided such maintenance, replacement or repair does not:

a. Materially change the loading;

b. Increase the RF emissions levels beyond the maximum levels allowed by applicable law;

c. Constitute a substantial change; or

d. Otherwise exceed the conditions of the WCF permit.

(2) A wireless provider or franchised cable operator may install micro wireless facilities by suspending such facilities from authorized communications cables attached to utility poles, without the need to obtain a permit, provided that the wireless provider or cable operator provides advance notice to the city-parish, that such installations comply with all applicable standards.

(e) *Administrative approval.* Unless otherwise specified, a permit issued under this article shall be in the form of an administrative approval, and shall not require a conditional use permit, variance, or other authorization requiring a public hearing or approval of the city-parish council, the city-parish planning and zoning commission, or any other public commission, board or entity. (Ord. No. 17997, § 1, 12-9-20)

Sec. 2:383. Application content.

(a) *Required information.* The city-parish may develop, publish, and from time to time update or amend, application forms, checklists, guidelines, informational handouts, and other related materials. Applications shall comply with the versions of such materials that are current at the time of the application submittal. The city-parish is authorized to request information reasonably necessary to review an application. Application forms, checklists, guidelines, informational handouts, and other related materials shall be published on-line and made available by the city-parish.

(b) *Application content.* A wireless provider or its duly authorized representative shall submit an application in the form prescribed by the city-parish. Applications shall include, at a minimum, the following information:

(1) *Narrative summary.* A general description of the proposed deployment, nature of the wireless facilities and their purposes, and requested timeframe for deployment activities.

(2) *Applicant and owner information.*

a. The name, address, telephone number and, e-mail address of the applicant and its authorized contractors.

1. If the applicant is a wireless infrastructure provider, the applicant shall certify that at the time of its application it has existing contracts with wireless service providers to utilize the proposed wireless communications facilities. The above notwithstanding the city-parish reserves the right to have the applicant supplement the record with additional information if there no wireless provider in evidence within the first three (3) months of the grant of an application.

2. A wireless infrastructure provider shall provide the city-parish with the name and contact information of every wireless service provider seeking to operate on the wireless infrastructure provider's wireless communications facilities prior to such wireless communications service providers initiating wireless communications services.

b. The name, address, telephone number, and e-mail address of the owner of the pole or support structure on which the proposed wireless communications facilities pole/support structure if not owned by the applicant.

1. A written statement from the applicant certifying that the owner of the pole or support structure to which the proposed wireless communications facility or any of its associated equipment is proposed to be attached consents to such attachments. The WCF permit application may be accepted without this document but no permit shall be approved without the city-parish's receipt of such document.

(3) *Site information.*

a. The nearest street address of the proposed site for the wireless communications facility and/or associated pole/support structure (which the department of information services will provide upon request);

b. The closest street or road intersection to the proposed site location of the wireless communications facility and/or associated pole/support structure;

c. The geographical coordinates stated in latitude and longitude of the proposed site for the wireless communications facility and/or associated pole/support structure;

d. A site map using aerial photographs depicting the precise site location of the proposed wireless communications facility and/or associated pole/support structure on which shall be drawn a one hundred fifty (150) foot radius from the proposed wireless communications facility and/or associated pole/support structure, utilizing the most recent commercially available photography and identifying the source and date of the photographs utilized.

(4) *Proposed facility construction information.*

a. A construction plan to scale, including plan and profile views, identifying the site location of the proposed wireless communications facility and/or associated pole/support structure, including the placement of all utility lines and power sources, and any related equipment or access drives, in relation to adjacent properties, structures, other telecommunication facilities, streets, sidewalks, trees, historic landmarks, and utilities;

b. If installing a new metal pole, a foundation plan, certified by a professional civil engineer licensed by the state;

c. Transmission and maximum effective radiated power of the antenna(s), as well as a list of the specific frequency bands to be initially activated upon completion of construction. The information is being requested for informational and not regulatory purposes;

d. Certification from an authorized representative of the wireless communications provider attesting to the fact that the radio frequency (RF) emitted by the applicable equipment is in compliance with, and shall be operated and maintained at all times in compliance with, all current FCC guidelines and requirements (including with respect to the cumulative effect of such equipment). The above notwithstanding, the city-parish reserves the right to obtain a copy of the applicant's tests and analysis if there is a credible, reasonable and substantial ques-

tion as to whether the wireless facilities are being operated in compliance with applicable FCC requirements;

e. Emergency contact information and location of power or main breaker switch;

f. Elevation drawings to scale identifying the fall zone and elevation profiles of the proposed wireless communications facility and/or associated pole/support structure indicating the height and depth of the proposed structure, antennas (with carrier name and antenna type, if applicable), and all other equipment, fixtures, or appurtenances proposed for the wireless communications facility and/or associated pole support structure immediately or for future attachment, specifically identifying what structures or equipment are above ground level;

g. With the exception of antennas, antenna equipment, and support structures, an explanation of why any proposed above ground structures, equipment, or related appurtenances are proposed to be above ground level and cannot be placed underground;

h. If applicant is proposing to deploy a small wireless facility, the applicant shall provide a statement that the proposed wireless communications facility meets the size limitations of a small wireless facility, including any back-up generators;

i. All plans and drawings related to the support structure and foundation shall be prepared and stamped by a professional engineer licensed by the state;

j. Narrative description and accompanying drawings or illustrations demonstrating whether the proposed wireless communications facility and/or support structure/pole is able to accommodate future collocation by other wireless facilities;

k. Narrative description of measures employed to allow the wireless communications facility and/or associated pole/support structure to comply with any reasonable, technically feasible aesthetic standards that are published in advance and that do not unreasonably discriminate between similarly-situated facilities in the rights-of-way, including requirements that new wireless communications facilities reasonably conform with the general character of the surrounding neighborhood as set out in the design manual;

l. Written descriptions, drawings, renderings and/or pictures depicting the proposed design, color, and finish for the proposed wireless communications facility and/or associated pole/support structure and associated equipment, including the impact on sightlines and sidewalks;

m. A drawing of the exterior of each piece of electrical equipment that depicts the power source and groundings.

(5) *Written and signed certifications.*

a. Wireless provider's certification that all of its wireless communications facilities included in the application shall comply with all applicable laws and applicable standards. Failure to comply with same shall be grounds for WCF permit revocation.

b. Wireless infrastructure provider's certification that it has an agreement to furnish its proposed wireless communications facilities to a wireless service provider at the time of application submittal.

c. Applicant's certification that it meets all insurance requirements of this chapter.

d. Applicant's certification that proposed wireless communications facility and all components thereof will comply with the permissible RF radiation exposure limits, including those set forth in 47 CFR §1.1310, as well as all other applicable laws.

e. Applicant's certification that there are no existing support structures or poles within the ROW within a one hundred fifty (150) foot radius of the proposed new support structure that would be capable of supporting the proposed wireless communications facilities, including through reasonable modifications, as of the date of the application submittal.

f. Applicant's certification in accordance with subsection 2:385(e)(4)e., if applicable, that it concluded in good faith that the use of a designated preferred location would not be commercially or technically feasible.

g. Applicant's certification that all of its other authorized wireless communications facilities located within the ROW are in substantial compliance with the requirements of this chapter and that there is no pattern of non-compliance or failure to timely cure violations of this chapter with respect to such other wireless communications facilities. For the purposes of this section, a "pattern of non-compliance" shall have the meaning defined in subsection 2:396(d).

(6) *Confidential information.* The applicant may designate specific portions of its application materials as confidential if it reasonably believes that such materials contain proprietary or confidential information whose disclosure thereof will harm its business. The city-parish will treat such materials as confidential and will not disclose them to the extent allowed by applicable law.

(7) *Batched applications.* An applicant may combine individual WCF permit applications for new small wireless facilities (SWFs) that would otherwise be processed as separate individual applications into a single batched submittal containing the individual site applications to be processed at the same time.

a. An applicant may combine into a single batched application up to twenty-five (25) individual site applications for WCF permits for new SWFs to be located in the city-parish's ROW, provided that the proposed SWFs are of substantially the same design and style, and seek to be deployed on the same type of pole or support structure, and are located within the same council district of the city-parish.

(8) *Amendments to applications.* Any amendment to the information in an application shall be submitted to the city-parish no later than thirty (30) days after submission of the application; otherwise if a material amendment is required, the applicant shall be required to submit a new/amended application. There will not be a separate filing fee for amending a pending application.

(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:384. Application fees.

(a) *Fee required.* Upon receiving an application, the city-parish will issue an electronic invoice for the permit application fee within twenty-four (24) hours of receipt. The applicant shall pay the non-refundable permit application fee upon receipt. An application shall not be processed or reviewed until the application fee is paid in full; however, the shot clock described in 47 C.F.R. 1.6003 will begin to run on the day that the application is submitted notwithstanding when the application fee is paid. The shot clock shall be tolled if the application permit fee is not paid in full within two (2) days of receipt of an invoice from the city-parish.

(b) *Existing structures.* The permit application fee for collocation of a new wireless communications facility on an existing pole or support structure or for substantial change of a wireless communications facility on an existing pole or support structure shall be five hundred dollars ($500.00), which shall cover up to five (5) wireless communications facilities listed in a single application, and an additional one hundred dollars ($100.00) for each wireless communications facility in excess of five (5). For example, an applicant seeking permits for anywhere from one (1) to five (5) sites would be subject to a single permit application fee of five hundred dollars ($500.00).

(c) *New structure.* The permit application fee for a new pole or support structure supporting one (1) or more wireless communications facilities shall be one thousand dollars ($1,000.00) for each such site included in the application, whether or not it is part of a batched application.

(d) *Additional fees.* If a particular application causes the city-parish to incur costs in excess of fees prescribed in subsections 2.384(b) or (c), the city-parish shall have the right to charge fees that result in full cost recovery provided that such fees are:

(1) A reasonable approximation of costs;

(2) Those costs themselves are reasonable; and

(3) Are non-discriminatory.

(e) *Make-ready and replacement costs.* The applicant shall be responsible for all applicable make-ready and/or replacement costs necessary to accommodate its proposed facilities and all such costs shall be in addition to the application fees. The applicant shall enter into a separate agreement with the owners of support structures or poles, including the city-parish, to address the payment of any necessary make-ready costs.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:385. Locations of facilities.

(a) Wireless communications facilities and associated pole/support structures shall be located such that they do not unreasonably interfere with public health, public usage, or safety facilities, such as, but not limited to, streets, sidewalks, alleys, parkways, public ways, traffic control equipment, emergency vehicle pre-emption systems, fire hydrants, fire escapes, water valves, underground vaults, or valve housing structures.

(b) Equipment and work associated with a wireless communications facility and associated pole/support structure shall not interfere with, endanger, hamper, impede, or disturb access to any utility or any other facility in the ROW, and shall comply with all applicable standards and applicable laws.

(c) Wireless communications facilities and associated poles, support structures, and associated equipment shall not be placed on any arms or any horizontal structure used to support or mount traffic control signals or devices, or on energized lines or on poles to be removed in conjunction with the city-parish's existing and approved plans to utilize undergrounding of electrical utilities in a particular area.

(d) A permit for any wireless communications facilities or related equipment to be attached to any pole or support structure in need of safety-related remediation to comply with applicable standards may include all such required remediation work.

(e) City-parish preferences. To the extent allowed under applicable law, the city-parish requires that when submitting applications for wireless communications facilities all wireless providers certify that they have undertaken a good faith effort to consider whether they can reasonably accommodate the following city-parish siting preferences in order to conform to the character of the neighborhood without unduly impairing their proposed wireless services.

(1) *Order of preference for types wireless communications facility siting support structures.* The following list indicates the city-parish's order of preference for the types poles/wireless support structures to be utilized for wireless communications facilities within the ROW:

a. Existing utility poles, city-parish-owned poles that are not traffic signal poles, and/or support structures.

b. Streetlight poles. If the streetlight pole needs to be replaced to accommodate the wireless communications facility the replacement pole shall be designed to meet the city-parish's wind load specifications as well as all other applicable standards.

c. New support structures.

d. Sign poles (fifteen (15) feet or taller).

e. The use of traffic signal poles is discouraged. These are the least preferred option for supporting wireless communications facilities.

(2) *Order of preference for wireless communications facility siting locations.* The following list indicates the city-parish's order of preference for the locations to be utilized for the siting of wireless communications facilities on existing poles and/or support structures:

a. Non-residential.

b. Multi-family residential.

c. Single-family residential.

d. Historic districts and/or historic landmarks.

(3) *Standard for using lower siting priority.* If a proposed site on an application is not for the highest priority listed above, the application shall be accompanied a narrative explanation as to why the applicant is electing to utilize a lower siting priority, including a discussion of any higher priority locations that are adjacent to or in close proximity to the location selected and why such alternate locations are not commercially and/or technically feasible to support applicant's wireless communications services.

(4) *Designated preferred locations list.*

a. Any homeowners association as defined by R.S. 9:1141.1, condominium association as defined by R.S. 9:1121.101 et seq., or any commercial or business association, established for the purpose of creating, maintaining, or enforcing building restrictions governing the use of immovable property as permitted by La. Civil Code article 776, as well as any property owner not governed by a homeowners association, condominium association, or a commercial or business association, may designate specified locations within the ROW as "designated preferred locations" for SWFs. The designated preferred locations shall be filed with the city-parish and shall provide identifying site location information comparable to that required under subsections 2:383(b)(3)(a)—(c). Any designated preferred location filed with the city-parish must be accompanied by a resolution of the board of the association.

b. These designated preferred location lists of locations are to be maintained, updated, and made publicly available by the city-parish; provided, however, that a person or entity that submits one (1) or more designated preferred locations for inclusion in the lists, and not the city-parish, shall be solely responsible for the accuracy and timeliness of the information submitted.

c. Any filer of a designated preferred location list may update or amend the list at any time. The update or amendment shall become effective thirty (30) days after filing and any amendment to the designated preferred locations list shall not be applied retroactively to existing SWFs and associated support structures or pending WCF permit applications.

d. If a WCF permit applicant elects not to utilize a designated preferred location for the site of its proposed WCF or support structure, the applicant shall certify that, in prepar-

ing its WCF application, the applicant has reviewed the pertinent designated preferred location list and has in good faith concluded that the use of not one (1) of the four (4) closest designated preferred locations to the applicant's proposed application sites is commercially and/or technically feasible to support applicant's wireless communications services, and as part of such certification, has provided a narrative explanation supporting this conclusion.

e. The city-parish's actions in granting or denying WCF permit applications shall be based on applicable law and applicable standards, not on an applicant's failure to use a site on the designated preferred location list; provided, however, that the city-parish may deem an application that fails to include a required certification as incomplete. The city-parish's use of the designated preferred location list is intended to ensure that wireless providers will be aware of the community's preferences and will respond to them in good faith. The designated preferred location list shall not be deemed to impose any substantive requirements or criteria on the city-parish's review and determination of whether a WCF permit application is consistent with applicable law and applicable standards.

(5) *Siting requirements for new wireless communications support structures.*

a. *Siting prohibitions.* New support structures that are not of a similar look and design of other above-ground structures and poles within the neighborhood, or otherwise do not conform with the general character of the neighborhood shall be prohibited in residential districts, historic districts, or within three hundred (300) feet of historic landmarks, and areas officially deemed to be visual or scenic sensitive areas unless the applicant demonstrates that refusing to permit a new support structure would materially inhibit the provision of wireless services by creating a coverage gap, preventing a provider from densifying its wireless network, impeding the introduction of new services or improving service capabilities.

(6) *Preference for collocations.* It is the city-parish's preference, that, to the extent reasonably commercially and technically practical, wireless communications facilities and associated accessory equipment deployed in the city-parish be attached to pre-existing poles or support structures (other than traffic signal poles or street signs).

(7) *Good faith negotiation required.* The owner of a new wireless support structure permitted under this chapter, and his/her successors in interest, shall negotiate in good faith regarding the future collocation use of the facility by other wireless providers if the owner determines, in its sole discretion, that such collocation is technically and commercially feasible.

(8) *Consideration of alternate locations.* To the extent allowed by applicable law, the city-parish reserves the right to propose to the applicant for its consideration an alternate pole/wireless support structure location within the ROW in proximity to the one (1) proposed in the application, but the applicant is under no obligation to use the location proposed by the city-parish if the applicant concludes in good faith that such alternate location is not commercially and/or technically feasible to support applicant's wireless communications services. Any such alternate location must be proposed by the city-parish within the first ten (10) days of the city-parish's receipt of the application, and the proposal and consideration

of an alternate location shall not delay or extend the time period of the city-parish's review of the pending application.

(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:386. Design of facilities.

(a) *Design requirements.* To the extent reasonably feasible and practicable, and to the extent permitted by applicable law, all wireless communications facilities and associated poles/support structures shall comply with the following requirements:

(1) *Unobtrusive.* All wireless communications facilities and associated poles and support structures shall utilize "visual aesthetic design elements" designed to blend into the surrounding environment and complement existing streetscape elements or structures in compliance with aesthetic standards that are reasonable, technically feasible, not more burdensome than those that are imposed on similarly-situated types of facilities, and published in advance as part of the design manual.

(2) *Finish/color.* Any wireless communications facility or associated pole/support structure or equipment mounted to support structures shall, to the extent technically and commercially feasible, match the color of the attached facilities and/or surrounding structures, unless otherwise needed for public safety or service reliability.

(3) *Lighting.* Unless required by applicable law, no wireless communications facility or associated pole/support structure shall be designed or constructed to be illuminated (other than streetlight facilities on a streetlight pole.

(4) *Signage.* Unless required by applicable law, no wireless communications facility or associated pole/support structure shall have any signage affixed to it other than a two (2) inch by four (4) inch (maximum) ID plate or sticker in a muted color, complementary color, or the same color as the equipment but with white colored lettering, identifying the owner's name, identifying information, permit number, and emergency telephone number and placed on the underside of the WCF so as to be concealed, if possible.

(5) *Advertising.* No advertising is permitted at wireless communication facility sites or on any ancillary structure or facilities equipment enclosure.

(6) *Power.* The permittee shall obtain electric power from the applicable electric utility and shall not utilize nor tie into any city-parish streetlight or traffic signal meters or electric.

(7) *Exposed wires prohibited.*

a. The cabling and wiring for a wireless communications facility shall be placed in conduit to the extent technically feasible;

b. The cabling and wiring for a wireless communications facility proposed on a metal or non-conductive hollow pole shall be placed inside the pole to the extent technically feasible but not on traffic signal poles where wiring must be on the outside of the pole.

(8) *Flush mounted.* All antennas shall be flush-mounted or as close to flush-mounted on the wireless communications facility as reasonably and technically practical, unless reasonably demonstrated that such would have the effect of diminishing the service to the intended area.

(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:387. Aesthetic requirements.

(a) *Design.* To the extent technically and commercially feasible, and to the extent that these standards are consistent with applicable law, antennas and wireless communications facilities shall be designed to blend into the surrounding environment and complement existing streetscape elements through the use of color, camouflaging and architectural treatment.

(b) *General concepts.* In order to render wireless communications facilities as visually inconspicuous as reasonably possible, aesthetic requirements for wireless communications facilities are guided by the following general concepts:

(1) To the extent it is reasonable and technically and commercially feasible, antennas and related equipment mounted to poles or support structures shall be camouflaged, screened and/or obscured so as to reasonably blend in with the poles/support structures.

(2) Reasonable efforts shall be undertaken to avoid adverse impacts to adjacent properties and/or uses that may arise from the construction, operation, maintenance, modification or removal of the wireless communications facilities.

(c) *Specific restrictions.* Antennas and wireless communications facilities shall be subject to the following specific requirements:

(1) No antenna or wireless communications facility shall block, restrict, or unreasonably interfere with, impede access to, or impede use of, any street, sidewalk, alley, driveway, walkway, passageway, door, gate, ingress or egress points of a building or structure, delivery or pickup area, or access to public transportation stops or shelters, access to above-ground or below-ground infrastructure owned or operated by any public or private utility, and any public way or place.

(2) No antenna or wireless communications facility shall create a material visual obstruction to vehicular and pedestrian traffic, including, but not limited to, obstruction of any required sight triangle.

(3) No antenna or wireless communications facility shall create, contribute to, or exacerbate a violation of the Americans with Disabilities Act or related federal or state standards or regulations. No antenna or wireless communications facility shall interfere with safe operation of city-parish equipment and facilities, specifically including, but not limited to, city-parish-owned streetlights, traffic control equipment, or other facilities.

(4) When pole-mounted equipment is either permitted or required, all equipment other than the antenna(s), electric meter and disconnect switch must, if technically and economically reasonable, be concealed within the pole or an equipment shroud. The equipment shroud must be non-reflective and painted, wrapped or otherwise colored to match the existing pole/support structure. It is preferred that equipment shrouds be mounted flush to the pole/support structure, subject to the owner's approval.

(5) If a new standalone support structure or cabinet is to be installed within fifty (50) feet of a decorative pole, the color of the new support structure and cabinet should match the color of the decorative pole. Alternatively, such new support structures and cabinets should be black in color, preferably using Gloss Black #17038 per Federal Color Standard 595.

(6) To the extent reasonably and technically practical, ground-mounted equipment should be minimal and unobtrusive and should be placed to minimize any obstruction, impediment, or hindrance to the usual travel or public safety on a public ROW, maximize the line of sight required to add to safe travel of vehicular and pedestrian traffic and maximize line of sight at street corners and intersections and minimize hazards at those locations. The city may deny a request that negatively impacts vehicular and/or pedestrian safety.

(7) New standalone poles must be constructed of wood, aluminum, steel or composite, unless otherwise permitted by the city-parish.

(8) Any permitted luminaire(s) and luminaire arm(s) must match the nearest adjacent street lighting standard and must fit into the photometrics plan unless otherwise permitted by the city-parish.

(9) For new support structures, all cabling for a WCF must either traverse the interior of the structure or be covered using a U-guard of steel or aluminum construction no less than two (2) inches in diameter.

(10) The color of all shrouds and mounting equipment shall match the color of the support structure to which it is attached.

(11) Wherever possible, the preferred location of new support structures shall be reasonably in alignment with existing trees, utility poles, and streetlights.

(d) *Noise suppression.* A permittee is required to ensure compliance with all applicable noise regulations of the city-parish so as not to create a nuisance.

(e) *Undergrounding.* To the extent reasonably and technically practical, in areas in which other utility facilities are required to be placed underground, including in the central business district, wireless communications facilities and associated equipment, other than antennas, antenna equipment and support structures, shall comply with nondiscriminatory undergrounding requirements for other utility facilities as required by city-parish ordinances and zoning requirements, and applicable standards. In all instances those equipment components and facilities that are routinely designed for underground placement should be installed underground.

(f) *Design standards.* The city-parish is authorized to develop, publish, and from time to time update or amend, a design manual establishing reasonable rules and standards, including safety standards, for the design of wireless communications facilities, SWFs, and associated support structures, that comply with applicable law. Revisions to any design standards shall be applied in a non-discriminatory manner to similarly-situated facilities and shall not be made retroactive to applications that already have been submitted. Any design manual shall be published on-line and available for pick-up in person at the city-parish office.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:388. Notice to community.

(a) *Notice requirements.* The applicant shall be required to provide mailed notice and posted notice as required in this section.

(b) *Mailed notice.* In order to ensure that nearby landowners and other interested persons and entities are informed of the filing of an application, the applicant shall send the city-parish's "notice of application for installation of wireless communications facility" using the form provided by the city-parish at the time of filing the application. The notice of application for installation of wireless communications facility shall be sent via first class U.S. mail to the following persons and/or entities within two (2) days after submitting an application:

(1) All landowners whose property is located within a three hundred (300) foot radius of the proposed wireless communications facility or associated support structure location, utilizing the names and addresses shown in the East Baton Rouge Parish Assessor's records;

(2) If the proposed wireless communications facility location falls within three hundred (300) feet of a residential subdivision with a homeowners association, as defined in the Louisiana Homeowners Association Act, R.S. 9:1141.1 et seq., or a property governed by a condominium association as defined in the Louisiana Condominium Act, R.S. 9:1121.101 et seq., notice shall be provided to the homeowners association or condominium association;

(3) The downtown development district if the proposed wireless communications facility or new support structure will be located within the boundaries of the downtown development district;

(4) The historic preservation commission if the proposed wireless communications facility or new support structure will be located in a designated local historic district or within three hundred (300) feet of a designated local historic landmark; and

(5) The metropolitan council member representing the district in which the proposed wireless communications facility or new support structure will be located.

(c) *Certification of mailing.* The applicant shall provide to the city-parish a certification verifying that the notice of application for installation of wireless communication facility was mailed in accordance with this chapter within seven (7) days of the submission of any application.

(d) *Posted notice.* Applicant shall post a blaze orange placard notice provided by the city-parish at the time of filing the application at the precise location of the proposed wireless communications facility and associated support structure. The posted notice shall be placed at the site location within two (2) days of submitting the application.

(e) *Inquiries.* Any interested person or entity seeking information on the proposed wireless communications facility and associated support structure may contact the city-parish and/or the applicant, via e-mail. Both the mailed notice and the posted notice required by the previous paragraph shall contain a city-parish and applicant e-mail address to which any interested person or entity may submit its inquiries.

(f) *Submissions.* Within thirty (30) days of the filing of an application, any interested person or entity may submit to the city-parish, by email, information pertinent to the application. The city-parish will consider such information to the extent that is relevant to and consistent with applicable law. Provided, however, that any such consideration by the city-parish shall not extend the time period of the city-parish's review of the pending WCF permit applications. Both the mailed notice and the posted notice set forth above shall contain a city-parish e-mail address to which any interested person or entity may submit information permitted by this section.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:389. Application processing and review.

(a) *Sufficiency of application.*

(1) *Small wireless facilities.* Within ten (10) days of receiving an initial application for a small wireless facility permit, the city-parish will notify the applicant in writing if the application is materially incomplete and shall clearly and specifically identify the missing documents or information and the specific rule or regulation creating the obligation to submit the requested information. Upon receipt of the requested information, the applicable time period for the city-parish to complete its review of the application will start over as if the application were received on that date.

(2) *Non-small wireless facilities.* Within thirty (30) days of receiving an initial application for any other type of WCF permit, the city-parish will notify the applicant in writing if the application is materially incomplete and shall clearly and specifically identify the missing documents or information and the specific rule or regulation creating the obligation to submit the requested information. Pending the receipt of the requested information, the review period shall be tolled. Upon receipt of the requested information, the applicable time period for the city-parish to complete its review of the application shall resume.

(3) Within ten (10) days of receiving a resubmitted application in response to a notice of insufficiency for any type of WCF permit application, the city-parish will notify the applicant in writing if the resubmitted application continues to be materially incomplete and shall clearly and specifically identify the missing documents or information and the specific rule or regulation creating the obligation to submit the requested information. Pending the receipt of the requested information the review period shall be tolled. Upon receipt of the requested information the applicable time period for the city-parish to complete its review of the application shall resume.

(4) Any subsequent review of an application by the city-parish after notice of incompleteness shall be limited to the deficiencies cited in the notice.

(5) There shall be no additional application fee to review a resubmitted application.

(b) *Time period for permit application review.* The city-parish shall make its final decision to approve or deny a WCF permit application within the following time frames, subject to such deadlines being reset or tolled in the event of an incomplete or deficient application:

(1) Review of an application or batched applications to collocate a small wireless facility upon an existing pole or support structure: sixty (60) days.

(2) Review of an application to collocate a wireless communications facility other than a small wireless facility using an existing pole or support structure: ninety (90) days.

(3) Review of an application to deploy a small wireless facility using a new support structure: ninety (90) days.

(4) Review of an application to deploy a wireless communications facility other than a small wireless facility using a new support structure: one hundred fifty (150) days.

(5) Review of batched applications for small wireless facilities containing a mix of applications for both collocations and new support structures: ninety (90) days.

(6) For purposes of calculating application review periods, applications received after 3:00 p.m. shall be deemed to have been received on the next day.

(7) In all instances, the relevant application review period shall commence on the day that the applicant's application is received by the department of development. All meetings, reviews and considerations of the application by and between other city-parish departments, agencies and commissions shall be undertaken simultaneously within the applicable review period.

(8) The above notwithstanding, to the extent allowed by applicable law, if, in extraordinary cases, the cumulative volume of reviewing and processing batched applications combined with other pressing rights-of-way management and zoning obligations of the city-parish, overloads on city-parish's resources, the city-parish may reasonably extend the time period for the review of pending applications.

(c) *Permit application review.* The city-parish shall review the application for a wireless communications facility and/or associated pole/support structure. The department of development shall act as the primary reviewing agency, and shall upon receipt of an application, forward copies, to and coordinate with, all other impacted city-parish departments, agencies and commissions. The department of development will issue a permit on nondiscriminatory terms and conditions only if the wireless communications facility and/or associated poles/support structure is in conformity with the provisions of this chapter and all applicable laws and applicable standards.

(1) The city-parish shall advise the applicant in writing of its final decision and shall include in the final decision document the basis for any denial(s), including specific chapter or provisions of applicable law or applicable standards on which the denial(s) were based. The city-parish shall publish the notice of its final decision on the application on its website. The applicant may cure the deficiencies identified by the city-parish and resubmit the application within thirty (30) days of the denial(s) without paying an additional application fee. The city-parish will approve or deny the revised application within thirty (30) days of receipt of the amended application. The subsequent review by the city-parish shall be limited to the deficiencies cited in the original denial(s).

(2) Throughout the application process, the applicant is solely responsible for ensuring that the information that it provides in its application is complete, thorough, and accurate. The city-parish is not responsible for the completeness or accuracy of the applicant's information.

(3) The denial of any particular site within a batched application shall not affect the other proposed sites within the same batched application.

(4) If the city-parish fails to act on a WCF permit application within the above prescribed time periods, the applicant may provide notice that the time period for acting has lapsed, after which the applicant may pursue such other remedies as may be available under then-prevailing law.

a. If the WCF permit application is to modify existing authorized wireless communications facilities and the proposed modification does not constitute a "substantial change," as defined by the FCC, to the existing wireless communications facilities, the city-parish will approve the WCF permit application within sixty (60) days or else the permit application shall be deemed granted.

(5) *Scope of review.*

a. The city-parish or an authorized third-party contractor working on behalf of the city-parish shall review the WCF permit application, proposed findings, and proposed conditions. The review and evaluation may include, but shall not be limited to, such items as:

1. Completeness of the application;
2. The site plan's compliance with applicable laws and applicable standards;
3. Completeness and sufficiency of the vicinity map;
4. General project information, including type of facility, number of antennas, height to top of antennas, certification as to compliance with FCC requirements, and "visual aesthetic design elements";
5. Applicant's certification that its proposed wireless communications facilities will comply with all applicable FCC radio frequency (RF) requirements;
6. Applicant's certification that it maintains sufficient insurance as required under this chapter;
7. The city-parish's inspection of the physical location and surrounding area of any proposed wireless communications facility for compliance with the requirements of this chapter;
8. Recommendations of the city-parish engineer/contractor regarding the proposed installation and modification to existing wireless communications facilities; and
9. Preparation of written report to city-parish engineer of recommended action on application.

(d) *Authority granted.* A WCF permit authorizes the applicant to undertake certain activities in accordance with this chapter and does not create a property right in the rights-of-way or grant authority to the applicant to impinge upon the lawful rights of others to utilize the rights-of-way.

(e) *Duration of permit.*

(1) *City-parish ROW.* Any WCF permit issued for installation of a wireless communications facility and/or associated pole or support structure located within the ROW shall be valid for one (1) year and be eligible for renewal upon payment of the annual license fee and continued compliance with the requirements of this chapter. Failure to pay the annual license fee or to comply with the requirements of this chapter shall result in termination of the permit for that WCF only.

(f) *Transfer of permit.* No approved and issued WCF permit may be transferred without written notice to, and approval by, the city-parish, which approval shall not be unreasonably withheld, conditioned, or delayed.

(g) *Other approvals.* The issuance of a WCF permit shall not relieve a wireless provider of the obligation to obtain all other applicable permits, approvals, and agreements necessary to install and operate its wireless communications facilities in conformance with all applicable laws.

(h) *Appeal of permit application decision.* Any person who is aggrieved or whose interests are adversely affected by a decision of the city-parish granting or denying a permit application may pursue any available remedies under then prevailing law.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:390. Construction of facility; notification of final completion date.

(a) *Construction of wireless communications facility or associated support structure.* Upon approval and issuance of a permit, construction under the permit shall be completed no later than six (6) months after issuance of the permit, provided that the deadline to completion may be extended for force majeure events, or other circumstances beyond the reasonable control of the applicant, with the consent of city-parish not to be unreasonably withheld.

(b) *Notification of final completion.* An applicant shall electronically notify the city-parish of the completion of the work authorized under the WCF permit no later than thirty (30) days after final completion. Said electronic notification shall contain a statement from the applicant that the wireless communications facilities and/or associated support structure was constructed as approved and permitted.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:391. Removal, relocation or modification of wireless communications facility.

(a) *Removal or relocation to accommodate public works.* Within ninety (90) days following written notice from the city-parish, a wireless provider shall, at its own expense, protect, support, temporarily or permanently disconnect, remove, relocate, change, or alter the position of any wireless communications facilities whenever the city-parish has determined that such removal, relocation, change, or alteration, is reasonably necessary for the construction, repair, maintenance, or installation of any city-parish improvement in or upon the ROW, or the operations of city-parish facilities, in or upon the ROW, or whenever the city-parish has determined, following notice and a meaningful opportunity for the wireless provider to be heard, that the wireless communications facility does not conform to the permits granted. In the event that the city-parish requests removal, relocation, change or alteration for its own purposes or needs, it will work in good faith with the wireless provider to identify a suitable temporary or permanent location for the WCF, and it will not require the wireless provider to submit a new application or pay a permit application fee, provided that the wireless provider installs the replacement facilities at the same approximate time as the city-parish's action.

(b) *Removal or relocation of facilities in response to public health or safety incident.* The city-parish retains the right and privilege to move or rearrange any wireless communications facility located within the ROW, as the city-parish may determine to be necessary, appropriate, or useful in response to any public health or safety incident, where there is an imminent threat of harm to people or property. If circumstances permit, the city-parish shall notify the wireless provider and provide the wireless provider an opportunity to move its own facilities prior to rearranging or removing a facility. In all circumstances, the city-parish shall notify the wireless provider after removing or rearranging a wireless communications facility. The city-parish shall not be liable for any damages to the wireless communications facility or for an interruption in service resulting from such rearrangements or removals when undertaken in response to a public health or safety incident or imminent threat of harm to people or property, except to the extent that its employees or contractors were grossly negligent or acted intentionally to cause damage or interrupt service.

(c) *Abandonment of facilities.* Upon abandonment of a wireless communications facility, the city-parish may direct the wireless provider to

remove all or any portion of the wireless communications facility if the city-parish determines that such removal will be in the interest of the public health, safety and welfare. For purposes of this provision, "abandonment" shall be inactive or non-use of a small wireless facility for a period of one hundred eighty (180) consecutive days (except as the result of a force majeure event).
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:392. Annual fees.

(a) *ROW usage fee.* Upon notification of a decision for approval for the WCF permit, applicants may obtain the permit from the city-parish, and upon obtaining such permit, shall pay a public rights-of-way usage fee of two hundred fifty dollars ($250.00) ("ROW usage fee"). Thereafter, the wireless provider shall continue to pay two hundred fifty dollars ($250.00) per year, in accordance with subsection 2:392(c), for each wireless communications facility that the provider installs and maintains within the ROW.

(b) *Pole attachment fee.* Wireless providers placing a wireless communications facility on a city-parish-owned pole or other city-parish-owned structure in the ROW shall pay a pole attachment fee of twenty dollars ($20.00) per pole at the time that the applicable pole attachment permit is granted. Thereafter, the wireless provider shall continue to pay twenty dollars ($20.00) per pole, per year, in accordance with subsection 2:392(c). The annual pole attachment fee shall be in addition to the annual ROW usage fee.

(c) *Assessment of annual fees.* All ROW usage fees and pole attachment fees levied by this chapter shall be due and payable on the first day of January of each calendar year for which the applicable permit is active following the year of issuance. All fees unpaid after the last day of February of the calendar year for which they are due shall be deemed delinquent and subject to the payment of delinquent penalty. The delinquent penalty shall be computed from the first day of March of the calendar year for which they are due at a rate of five (5) percent per month, or fraction thereof, not to exceed twenty-five (25) percent in aggregate, of the fee due.

(1) *Existing wireless facilities.* Any existing wireless communications facilities located within the ROW as of the effective date of the ordinance from which this chapter derived that were previously authorized under a prior city-parish ordinance shall continue to be subject to the fee requirements of the prior ordinance for the remainder of the year, and shall not be subject to the annual ROW usage fees or pole attachment fees set out above until the first day of January of the calendar year after enactment of this chapter. Thereafter, such wireless communications facilities shall be subject to payment of all annual ROW usage fees and pole attachment fees set forth above. The above notwithstanding, a wireless provider shall remain liable for any unpaid fees accrued under the prior ordinance and failure to pay such fees shall subject the wireless provider to all enforcement remedies under this chapter and/or applicable law.

(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:393. Attachment to city-parish-owned poles or other city-parish-owned structures in the public rights-of-way.

(a) *Attachment agreement required.* A wireless provider shall not attach wireless communications facilities to a city-owned pole, city-parish-owned streetlight pole, or any other city-parish-owned structure without first obtaining a pole attachment agreement with the city-parish.

(b) *Make-ready.* As part of its application, the applicant shall provide a structural analysis for all facilities to be located on any city-parish-owned pole or other city-parish-owned structures in the ROW and a good-faith estimate of any make-ready work necessary to enable the pole or structure to support the requested wireless communications facility, including pole replacement if necessary. Within sixty (60) days of receipt of a completed application, the city-parish will either

approve the make-ready work estimate or provide a written explanation as to why the application is being modified, or denied, in whole or in part, for reasons of safety, reliability, or insufficient capacity that cannot be resolved consistent with applicable standards. The applicant shall be responsible for all make-ready work costs associated with attachment to the city-parish pole or structure. Unless otherwise agreed, the applicant and/or its authorized city-parish approved contractors shall perform all necessary make-ready work, which shall be completed prior to installation of the facility.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:394. Liability, insurance, defense and indemnification.

(a) *Assumption of liability.* An applicant assumes all risk with respect to the city-parish for liability for damages that may occur to persons or property arising out of or relating to the construction, maintenance, or operation of a wireless communications facility or associated pole/support structure except to the extent that such damages are caused by the gross negligence or willful misconduct of the city-parish, its employees, or contractors.

(b) *Insurance required.* Applicant shall procure and maintain liability insurance to protect the city-parish from liability and damages occasioned by the construction, maintenance, or operation of a wireless communications facility or associated pole/support structure. In satisfaction of the insurance requirements, the applicant shall supply as part of its application "certificates of insurance" or other satisfactory evidence to show applicant carries:

(1) Commercial general liability insurance covering the city-parish against claims, injury, or damage to persons or property, both real and personal, caused by the construction, maintenance, or operation of a wireless communications facility, in amounts of one million dollars ($1,000,000.00) per occurrence (combined single limit), including bodily injury and property damage, and two million dollars ($2,000,000.00) annual aggregate, and two million dollars ($2,000,000.00) for each personal injury liability;

(2) All required liability insurance coverages shall include the city-parish as an additional insured. Applicant shall notify the city-parish at least thirty (30) days in advance of any cancellation of any required insurance that is not replaced; and

(3) Applicant may self-insure any required coverage as long as it or its affiliated parent maintains a net worth of at least two hundred million dollars ($200,000,000.00) as evidenced in annual certified financials.

(c) *Indemnification.* By the act of submitting of an application, the applicant agrees to defend, indemnify, and hold harmless the city-parish, its council, boards, commissions, officials, officers, agents, contractors, volunteers, and employees from and against any and all loss, damages, liability, claims, suits, costs and expenses, including court costs and reasonable attorney's fees, arising out of any act or omission of permittee, permittee's officers, agents, employees, or contractors relating to the construction, maintenance, or operation of a wireless communications facility or associated support structure.

(d) *Defense.* By the act of submitting of an application and naming the city-parish as a named insured on a liability policy, the applicant specifically agrees to defend the city-parish, its council, boards, commissions, officials, officers, agents, contractors, volunteers and employees from and against any and all loss, damage, liability, claims, suits, costs and expenses arising out of any act or omission of permittee, permittee's officers, agents, employees, or contractors, relating to the construction, maintenance, or operation of a wireless communications facility or associated support structure. Should applicant fail to defend the city-parish, applicant shall be liable for penalties in addition to any sums found due under the indemnification clause.

(e) *Performance and payment bond.* A wireless provider shall furnish a performance and payment bond executed by a surety company

reasonably acceptable to the city-parish which is duly authorized to do business in the state in the amount of twenty-five thousand dollars ($25,000.00) for the duration of any authorizations granted hereunder as security for the faithful performance of the terms and conditions of its WCF permits, and for the payment of all fees, and persons performing labor and furnishing materials in connection with its installation and use of wireless communications facilities in the ROW.

(f) *Municipal liability limits.* No provision of this chapter is intended, or shall be construed, to be a waiver for any purpose by the city-parish of any applicable state limits on municipal liability or governmental immunity. No indemnification provision contained in this chapter under which a wireless provider indemnifies the city-parish shall be construed in any way to limit any other indemnification provision contained in this chapter.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:395. Safety and construction requirements for small wireless facilities.

(a) *Construction and structural requirements.*

(1) *Compliance.* Wireless communications facilities and associated poles/support structures shall comply with all applicable laws and applicable standards. In the event of a conflict between or among applicable standards, the more stringent shall apply.

(2) *Workmanship.* Work performed at a location permitted for installation of a wireless communications facility or associated pole/support structure shall be performed by individuals and entities licensed or permitted to do such work. All work shall be performed in strict compliance with all versions or editions of the latest applicable standards and consistent with the accepted and responsible workmanlike industry practices.

(3) *Structure.* All wireless communications facilities and/or associated support structures and poles shall be designed and maintained in compliance with all applicable standards, including the ability to withstand without failure, the maximum forces expected from wind and ice loading when the structure is fully loaded with antennas, transmitters and other equipment, and camouflaging.

(4) After the effective date of the ordinance from which this chapter derived, all new wireless communications facilities and/or associated support structures and poles shall comply with any applicable design manual requirements and specifications. All wireless communications facilities, support structures, and poles constructed and installed prior to the effective date of the ordinance from which this chapter derived, as well as the replacement of such facilities in the same location that do not involve a substantial increase in height, shall not be subject to any new design manual specifications absent a revision to this chapter.

(5) Any time a wireless provider constructs, installs, repairs, replaces, or removes wireless communications facilities or support structures, the wireless provider and its contractors shall clean up and restore the ROW and surrounding area to the condition they were in immediately prior to the removal of the wireless communication facilities.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:396. Non-compliance.

(a) Event of non-compliance. If a wireless provider fails to comply with any material term or condition of this chapter or any WCF permit issued under it, the provider shall be in non-compliance with this chapter.

(b) Continued or repeated non-payment of any applicable fees and charges shall constitute a material default of the particular permit at issue.

(c) Remedies following failure to cure. In the event that a wireless provider is found to be in non-compliance with this chapter the city-parish shall give the wireless provider forty-five (45)

days written notice either to cure the violation(s), or diligently commence and continue the cure to completion for matters that cannot reasonably be cured within forty-five (45) days. In the event of an uncured material failure to comply with this chapter, the city-parish, at its option, shall be entitled to pursue any and all remedies that it may have in law or at equity, including terminating the particular WCF permit(s) issued to the non-compliant wireless provider by the city-parish that are the subject of the non-compliance, and drawing down the non-compliant wireless provider's performance and payment bond to cover any fees, costs, damages, expenses, or penalties that a wireless provider has not paid.

(d) If a wireless provider engages in a pattern of non-compliance the city-parish may pursue any remedies permitted by applicable law and/or suspend consideration of additional wireless permit applications by the wireless provider, until the pattern of non-compliance is removed. For the purposes of this section, a "pattern of non-compliance" exists if, within any period of twelve (12) months, either twenty-five (25) or five (5) percent, whichever is lesser, of the wireless provider's other permitted wireless communications facility installations located within the ROW are non-compliant (as defined in subsection 2:396(a) above) and have not been cured within the applicable period of time set forth in subsection 2:396(c). However, when relying upon the percentage methodology for determination of a pattern of non-compliance, in no event shall any wireless provider be found to have engaged in a pattern of non-compliance if fewer than five (5) wireless communications facility installations are non-compliant within the applicable twelve (12) month period. The city-parish shall not suspend consideration of additional wireless permit applications by a wireless provider if, within thirty (30) days of receiving notice that the city-parish believes that the wireless provider has engaged in a pattern of non-compliance, the wireless provider demonstrates to the city-parish that no such pattern exists or takes affirmative steps satisfactory to the city-parish to remove the pattern of non-compliance.

(e) Removal of facilities. Upon termination of one (1) or more WCF permit(s) for non-compliance, a wireless provider shall remove the associated wireless communication facilities from the ROW within six (6) months of receiving notice, or at a rate of twenty-five (25) of its wireless communications facilities per month, whichever period results in the shortest length of time for completing removal. A wireless provider shall restore the ROW to its condition immediately prior to the removal of the wireless communication facilities. If not so removed within that time period, city-parish shall have the right, but not the obligation, to treat wireless provider's attachments as abandoned and to take title, store, sell, or otherwise dispose of them. A wireless provider shall be required to pay city-parish's actual and documented costs of taking title, storing, selling, or otherwise disposing of a wireless communication facility subject to this subsection within ninety (90) days after it has received an invoice from the city-parish.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:397. Retention of local police power; effect of future changes in governing law.

This chapter is intended to establish only the minimum restrictions upon the police power of the city-parish necessary to comply with the final rules adopted by the Federal Communications Commission regarding permissible local regulations of antennas and wireless communications facilities. Nothing in this chapter shall be construed as surrender by the city-parish of its right and power to adopt future ordinances, rules, and regulations in the exercise of its police power applying to antennas and wireless communications facilities to the maximum extent allowed by applicable law. In the event of any future change in governing law (including, but not limited to, invalidation or modification of the final rules of the Federal Communications Commission in effect at the time of initial adoption of this chapter), city-parish at all times reserves the right to regulate new and existing wireless communications facilities to the extent allowed by changes in applicable law.
(Ord. No. 17997, § 1, 12-9-20)

Sec. 2:398. Severability and conflicts.

(a) *Severability.* If any word, phrase, sentence, part, section, subsection, or other portion of this chapter or any application thereof to any person or circumstance is declared void, unconstitutional, or invalid for any reason, then such word, phrase, sentence, part, section, subsection, or other portion, or the proscribed application thereof, shall be severable, and the remaining provisions of this chapter, and all applications thereof, not having been declared void, unconstitutional, or invalid, shall remain in full force and effect.

(b) *Conflicts with other chapters.* This chapter supersedes all chapters or parts of chapters adopted prior hereto that are in conflict herewith, to the extent of such conflict.

(c) *Conflicts with state and federal laws.* In the event that applicable federal or state laws or regulations conflict with the requirements of this chapter, the wireless provider shall comply with the requirements of this chapter to the maximum extent possible to the extent that such requirements do not violate federal or state laws or regulations.
(Ord. No. 17997, § 1, 12-9-20)

CHAPTER 10. EXCAVATIONS FOR COMMUNICATIONS INFRASTRUCTURE

Sec. 2:450. Purpose and scope.

(a) *Purpose.* The purpose of this chapter is to provide policies and procedures for the coordination of construction excavation within any public rights-of-way within the city-parish when construction activities are initiated and managed by the city-parish, and to protect the integrity of the city-parish's rights-of-way and street system.

(b) *Conflicts with other chapters.* This chapter supersedes all chapters or parts of chapters adopted prior hereto that are in conflict herewith, to the extent of such conflict.
(Ord. No. 18261, § 1, 10-13-21)

Sec. 2:451. Definitions.

For the purpose of this chapter, the following words and phrases shall have the meanings ascribed to them in this section except where the context clearly indicates a different meaning.

Applicant means any city-parish department or third party that seeks to participate in a city-parish project involving excavation activity for the purposes of installing communications infrastructure.

Conduit means a tube, duct, or other device or structure designed for enclosing telecommunication wires or cables.

Excavation means any process that removes material from the ground through directional drilling, jack and boring, and trenching operations.

Facilities and *infrastructure* means wires, cables, conduit, switches, transmission equipment, or other equipment for use in transmitting or processing telecommunications services or for providing support or connection to such equipment.

Reconstruction refers to any project that repairs or replaces fifty (50) percent or more of an existing road, highway, or rail line.

Rights-of-way or *ROW* means the area on, below, or above a roadway, highway, street, sidewalk, alley, or similar property, but not including federal or state roadways.

Telecommunications means data, voice, video, or other information provided by wire, fiber optic cable, or other technology.
(Ord. No. 18261, § 1, 10-13-21)

Sec. 2:452. Installation of conduit.

(a) All construction and installation required under this section shall be done in accordance with the standards set forth by the department of transportation and drainage and made publicly available prior to implementing this chapter as part of a planned excavation activity. The city-parish or third parties may install or have installed conduit and/or fiber optic cabling, or upgrades thereto, as part of a city-parish funded or managed project that includes excavation in the public right-of-way entering construction.

(b) Conduit and/or fiber optic cabling installed by or on behalf of the city-parish will be owned by the city-parish and maintained by the appropriate city-parish department that uses it. Conduit

and/or fiber optic cabling installed by third parties or by persons or entities other than the city-parish will be owned and maintained by the person or entity responsible for the installation of the conduit and/or cabling.
(Ord. No. 18261, § 1, 10-13-21)

Sec. 2:453. Recordation of communications infrastructure.

(a) A record of all city-parish owned conduit will be maintained by the department of development and transferred into the city-parish's geographic information system (GIS).

(b) The location of all communication infrastructure installed by third parties through this chapter shall be reported to the department of development, in electronic format, and will also be transferred into the city-parish's GIS.

(c) If a third party claims that any portion of the information submitted pursuant to subsection (b) of this section, contains trade secrets, proprietary, or confidential information, or is otherwise protected from public disclosure under applicable law, the third party shall prominently so indicate on the face of the information submitted.
(Ord. No. 18261, § 1, 10-13-21)

Sec. 2:454. Coordination of planned excavations; notice.

(a) The city-parish shall publish all planned projects requiring excavation activity to its website prior to entering the design phase. The city-parish shall make a good faith effort to publish such project notices in a timely manner.

(b) Upon receiving notice from the city-parish department overseeing the project, an applicant may decide to add conduit and/or fiber optic cabling to the proposed excavation project and shall notify the corresponding department prior to the project entering the design phase.

(c) If the determination that an applicant will participate in the excavation project is affirmative, the city-parish will require the excavator to install the communications infrastructure in accordance with standards set forth by the department of transportation and drainage. These standards shall be made publicly available on the city-parish's website prior to any coordination of planned excavations through this chapter. Applicants may install infrastructure to their own construction specifications and standards, at their own cost, provided they meet or exceed those set forth by the city-parish.

(d) If the city-parish does not receive any requests from applicants for participation in the excavation project prior to the project entering the design phase, it will proceed with design and construction of the project in a manner consistent with other chapters of this Code.

(e) The applicant shall be responsible for the project's incremental costs associated with participation. The applicant must specify the costs it expects to incur through this participation. The city-parish must concur with these costs and related cost reasonableness or justification before the applicant participates in the project. The applicant is responsible for incurring any such costs associated with participation and paying the city-parish or third party contractors in a timely manner consistent with industry practices.

(f) An applicant shall determine its participation on any such excavation projects based on the as-is nature of the project. While an applicant may request project design or construction modifications, the city-parish will not be required to modify its project plans based on this request unless the project plans are in violation of other city-parish ordinances.

(g) Any costs and liability associated with delays to an excavation project resulting from an applicant's participation shall be the responsibility of the applicant.

(h) Applicants that participate in a city-parish excavation project shall do so in a manner that is expedient, aligns with the goals and timelines of the excavation project, and is consistent with all other agreements previously negotiated between applicants and the city-parish, including but not limited to a franchise agreement.

(i) The requirements included in this section do not apply to excavation projects with project limits of less than five hundred (500) feet.
(Ord. No. 18261, § 1, 10-13-21)

Sec. 2:455. Requirements for participation in excavation projects.

(a) Any applicant seeking to participate in a city-parish excavation project shall submit its design plans to the subdivision office of the department of development for review.

(b) The subdivision office of the department of development, in coordination with the necessary public works departments and the department of information services, shall review the design plans to determine whether it is both financially feasible and consistent with the city-parish's long-term goals to add communications infrastructure to the proposed excavation project.

(c) At a minimum, the subdivision office of the department of development shall implement the following procedural and substantive requirements for the installation of communications infrastructure in excavation projects:

(1) The standard technical specifications for communications infrastructure based on current needs and anticipated future growth or needs;

(2) The standard methodology for determining the incremental costs associated with installing communications infrastructure in excavation projects, which shall be consistent with industry recognized best practices;

(3) The requirements and process for excavators to seek exemptions from using the standards set forth by the city-parish for determining incremental costs when installing standard communications infrastructure in excavation projects; and

(4) Alternative methodologies for determining the city-parish's incremental costs when exemptions are granted, which shall be consistent with industry recognized best practices.

(Ord. No. 18261, § 1, 10-13-21)

Sec. 2:456. Reporting obligations.

The subdivision office of the department of development and the department of information services shall submit an annual report to the metropolitan council, no later than February of each year, detailing all communication infrastructure projects for the preceding year and planned city-parish construction activity for the next year, including any planned excavations that will include installation of communications infrastructure. Any information deemed by applicants or the city-parish as proprietary or confidential will be reviewed and considered for redaction for the purposes of this public document.
(Ord. No. 18261, § 1, 10-13-21)

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Title 3

PARKS AND RECREATION*

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Sec. 3:91. Sales by unauthorized persons prohibited.
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*Cross references—Streets, alleys, sidewalks, battures and sewers, title 2; litter in parks, § 6:434; possession of alcoholic beverages at capitol BREC parks and facilities prohibited, § 13:1010; possession of firearms at capitol BREC parks, § 13:1111.

CHAPTER 1. REGULATION OF CEMETERIES

Sec. 3:1. Control vested in recreation and park commission. (City)

The maintenance, management and control of all cemeteries belonging to the city shall be vested in the recreation and park commission.
(City Code 1951, Title 3, § 1)

Sec. 3:2. Burial in other than recognized cemetery. (City)

(a) It shall be unlawful for any person to inter or cause to be interred any corpse in any place other than a regularly established cemetery of the city.

(b) Any person convicted of violating the provisions of this section shall be fined not less than twenty-five dollars ($25.00) or imprisoned for ten (10) days, or both, at the discretion of the court.
(City Code 1951, Title 3, §§ 2, 3)

Sec. 3:3. Desecration. (City)

Any person who shall enter the enclosure of any cemetery in the city and desecrate, destroy, injure, disturb or in any manner displace or remove any vases, ornaments, shrubs, flowers, tombs, monuments, head or foot stones or boards and the like shall be deemed guilty of a misdemeanor, and, on conviction, shall be fined not less than three dollars ($3.00) nor more than twenty-five dollars ($25.00), or imprisoned not less than one nor more than ten (10) days, at the discretion of the court.
(City Code 1951, Title 3, § 4)

Cross references—Simple criminal damage to property, § 13:56; desecration of graves, § 13:101.

CHAPTER 2. FEES FOR RECREATIONAL FACILITIES

Sec. 3:30. Fees to be established by recreation and park commission. (City)

(a) The recreation and park commission shall have the power to establish and collect charges for the use of recreational facilities and incidental services of the city.

(b) Any person who shall use or attempt to use any recreational facility or incidental service of the city without the payment of the fixed fee for the use by the recreation and park commission, shall be guilty of a misdemeanor, and upon conviction thereof shall be fined not more than fifty dollars ($50.00) or imprisoned not more than twenty (20) days, or both, at the discretion of the court.
(City Code 1951, Title 3, §§ 30, 31)

CHAPTER 3. REGULATION OF CAPITOL LAKE

Sec. 3:50. Seining prohibited. (City)

It shall be unlawful to seine or cast or set nets or other similar devices for catching fish in Capitol Lake.
(City Code 1951, Title 3, § 50)

Sec. 3:51. Firearms discharge prohibited. (City)

It shall be unlawful to discharge firearms on or about the banks of Capitol Lake, or from boats on the waters of the lake.
(City Code 1951, Title 3, § 51)

Cross reference—Possession of firearms at capitol BREC parks, § 13:1111.

Sec. 3:52. Bathing prohibited. (City)

It shall be unlawful to bathe in the waters of Capitol Lake.
(City Code 1951, Title 3, § 52)

Cross reference—Bathing nude, § 13:1008.

Sec. 3:53. Reserved.

Editor's note—Section 3:53, prohibiting the dumping of refuse, etc., on the banks of Capitol Lake, derived from City Code 1951, title 3, § 53, was repealed by § 8 of Ord. No. 9340, adopted Sept. 25, 1991. See § 6:426 et seq.

Sec. 3:54. Fishing. (City)

Fishing shall be permitted in Capitol Lake at such seasons as shall be fixed and designated by the council from time to time.
(City Code 1951, Title 3, § 54)

Sec. 3:55. Penalty. (City)

Any person violating the provisions of this chapter shall be guilty of a misdemeanor and upon

conviction thereof shall be subject to a fine not to exceed two hundred dollars ($200.00) or imprisoned for not more than sixty (60) days, or both, at the discretion of the court, and each day such violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder.
(City Code 1951, Title 3, § 55)

CHAPTER 4. REGULATION OF CITY PARK LAKE AND NEW UNIVERSITY LAKE

Sec. 3:70. Definitions. (City)

For the purpose of this chapter, the following terms, phrases, words and their derivations shall have the meaning given herein:

(1) *City Park Lake* is that lake located along Dalrymple Drive in the city, owned by the city, and shall include the banks and areas adjacent to the lake.

(2) *New University Lake* is that body of water generally extending from the causeway separating the body of water from City Park Lake to Stanford Avenue, and the Main Campus of Louisiana State University, and shall include any and all other bodies of water in this general area, the bottom of which belongs to or is dedicated to Louisiana State University, and shall further include the banks and areas adjacent to such bodies of water.

(City Code 1951, Title 3, § 70)

Sec. 3:71. Hunting prohibited. (City)

No person shall hunt or be permitted or allowed to hunt in or about the City Park Lake or the New University Lake at any time or under any conditions.
(City Code 1951, Title 3, § 71)

Sec. 3:72. Destruction, taking of lake property structures, equipment. (City)

No person shall wilfully mark, deface, disfigure, tamper with or displace or remove any tables, benches, telephone booths or other public utilities, signs, notices or placards, or other structures or equipment installed by or with authority of the recreation and park commission, or any other governmental agency, in or along the banks or other areas adjacent to City Park Lake and New University Lake.
(City Code 1951, Title 3, § 72)

Cross references—Simple criminal damage to property, § 13:56; misdemeanor theft, § 13:67.

Sec. 3:73. Construction, erection of building or structures; permission required. (City)

No person shall construct or erect any building or structure, of whatever kind, whether permanent or temporary in character, in or along the banks and areas adjacent to City Park Lake and New University Lake, except where special permission has been granted therefor by the superintendent of the recreation and park commission or his authorized agent as to City Park Lake, and by an appropriate official of Louisiana State University as to New University Lake.
(City Code 1951, Title 3, § 73)

Sec. 3:74. Fishing regulations. (City)

(a) *Commercial fishing.* No person shall engage in commercial fishing or the buying or selling of fish caught in either the City Park Lake or the New University Lake.

(b) *Rods, reels and poles permitted.* No person shall fish in either of the lakes except with rods and reels and poles, and then under such regulations and in such areas as may be established from time to time by the superintendent of the recreation and park commission, or Louisiana State University as to New University Lake.

(c) *Use of trotlines, nets, other devices prohibited.* No person shall place any trotlines or nets in either of the lakes.

(d) *Fishing on main campus prohibited.* No person shall fish at any time along or on the banks of the New University Lake bordering the main campus of Louisiana State University.
(City Code 1951, Title 3, § 74; Ord. No. 7403, § 1, 1-11-84)

Sec. 3:75. Reserved.

Editor's note—Section 3:75, prohibiting the dumping of garbage, etc., on the banks of City Park Lake and New University Lake, derived from City Code 1951, title 3, § 75, was repealed by § 8 of Ord. No. 9340, adopted Sept. 25, 1991. See § 6:426 et seq.

Sec. 3:76. Superintendent of commission, director of public works authorized to remove devices, obstructions, etc. (City)

The superintendent of the recreation and park commission, the director of the department of public works, or any employee designated by either of such officers, and any authorized police officer, shall have the authority to remove or cause to be removed from the lakes, any lines, bottles, poles, sticks, devices or obstructions placed in the lakes in violation of the provisions of this chapter.
(City Code 1951, Title 3, § 76)

Sec. 3:77. Use of motorboats; restrictions. (City)

(a) *City Park Lake.* No motorboats will be permitted upon City Park Lake. The use of any motor other than an electric trolling motor is hereby prohibited. Notwithstanding the foregoing, nothing herein shall prohibit the city-parish from using motorboats upon City Park Lake on official business.

(b) *New University Lake.* No motorboats will be permitted upon the New University Lake.

(c) *Motorboat defined.* The term motorboat where used in this chapter shall include every type of boat, ship, vessel or craft which is capable of being used in, on or under water, and which is propelled by machinery.
(City Code 1951, Title 3, § 77; Ord. No. 7403, § 1, 1-11-84)

Sec. 3:78. Restrictions applicable to New University Lake to be additional, supplemental. (City)

Such restrictions as may be herein applicable to New University Lake shall be in addition, and supplemental, to any restrictions adopted by Louisiana State University.
(City Code 1951, Title 3, § 78)

Sec. 3:79. Penalty. (City)

Any person violating the provisions of this chapter shall, upon conviction, be subject to a fine of not more than two hundred dollars ($200.00), or imprisonment for not more than sixty (60) days, or both, at the discretion of the court.
(City Code 1951, Title 3, § 79)

CHAPTER 5. SELLING OF MERCHANDISE ON RECREATION AND PARK COMMISSION PROPERTY RESTRICTED*

Sec. 3:90. Commission to have exclusive rights.

The recreation and park commission, its lessees, agents and employees shall have the exclusive right to vend, sell or otherwise dispose of goods, merchandise, or any article of tangible personal property on and within the bounds of any property owned and/or operated by the recreation and park commission or under the jurisdiction of the commission.
(City Code 1951, Title 3, § 90; Parish Code 1962, Title 3, § 90)

Sec. 3:91. Sales by unauthorized persons prohibited.

The vending, sale, or otherwise disposing of goods, merchandise, or any article of tangible personal property on or within the confines of any property owned and/or operated by the recreation and park commission, under the jurisdiction of the commission, by any person not having been expressly authorized to so do by the recreation and park commission or not being a lessee, agent, or employee of the recreation and park commission is hereby prohibited.
(City Code 1951, Title 3, § 91; Parish Code 1962, Title 3, § 91)

Sec. 3:92. Scope of commission jurisdiction.

For the purposes of this chapter that portion of any street, road or public way in the city-parish

*Cross reference—Licensing and regulation of trades and occupations, Title 9.

which bisects or is within the bounds of any property which is owned and/or operated by, or which is under the jurisdiction of the recreation and park commission, shall be considered as a part of the property and all the provisions of this chapter shall apply thereto.
(City Code 1951, Title 3, § 92; Parish Code 1968, Title 3, § 92)

Sec. 3:93. Penalty.

Any person violating any of the provisions of this chapter shall, upon conviction thereof, be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00), or be imprisoned not less than ten (10) days nor more than thirty (30) days, or both, at the discretion of the court for such offense.
(City Code 1951, Title 3, § 93)

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Title 4

POLICE DEPARTMENT*

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Sec. 4:2. Appointment of police. (City)
Sec. 4:3. Uniforms. (City)
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Sec. 4:51. Powers of officers. (City)
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Sec. 4:53. Preservation of order. (City)
Sec. 4:54. Protection of persons or property. (City)
Sec. 4:55. Obedience to chief. (City)
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Sec. 4:57. Disposition of unclaimed prisoner's property. (City)
Sec. 4:58. Disposition of badges, commissions and police revolvers of retiring officers.
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Chapter 3. Rules and Regulations

Sec. 4:100. Promulgated by civil service board. (City)
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Sec. 4:102. Gambling. (City)
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Chapter 4. Arrest by Officers Without Warrant and Temporary Detention Procedure

Sec. 4:200. Arrest without warrant; when lawful. (City)
Sec. 4:201. Misdemeanor summons issued, driver's license seized in lieu of bond. (City)
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Sec. 4:203 Temporary questioning; search for weapons. (City)

Chapter 5. Rules and Regulations Governing Shift Differential, Overtime and Holiday Pay of Police Personnel

Sec. 4:300. Shift differential and overtime pay. (City)
Sec. 4:301. Overtime pay. (City)
Sec. 4:302. Regular pay on holidays. (City)
Sec. 4:303. Effective date.

***Cross references**—Municipal and parish organization, title 1; commissions and departments generally, title 1, ch. 2; city court, § 1:50 et seq.; municipal fire and police civil service board, § 1:125 et seq.; personnel, title 1, ch. 3; retirement benefits for police system employees, § 1:266; regulation of departments generally, title 1, ch. 4; traffic code, title 11; criminal law, title 13; resisting an officer, § 13:108.

CHAPTER 1. ORGANIZATION

Sec. 4:1. Number, classification and pay of police officers. (City)

The number, classification and pay of police officers shall be as fixed by the council from time to time.
(City Code 1951, Title 4, § 1)

Sec. 4:2. Appointment of police. (City)

The regular police of the city shall be appointed in accordance with R.S. 33:2471 to 33:2508, and the rules and regulations laid down by the civil service board, established under R.S. 33:2471 to 33:2508, and sections of this Code.
(City Code 1951, Title 4, § 2)

Sec. 4:3. Uniforms. (City)

The police force of the city shall be uniformed in such manner as may be prescribed by the chief of police.
(City Code 1951, Title 4, § 3)

Sec. 4:4. Illegal wearing of uniform. (City)

It shall be unlawful for any person, not connected with the police force, to wear the uniform prescribed for the police of the city.
(City Code 1951, Title 4, § 4)

CHAPTER 2. POWERS AND DUTIES

Sec. 4:50. General. (City)

The police department shall be responsible within the city limits for the preservation of public peace and order, the prevention of crime, and the apprehension of criminals, the protection of the rights of persons and property, and the enforcement of the laws of the state and the ordinances of the council. All members of the department shall have the same powers and duties with respect to the enforcement of criminal laws as are now or may hereafter be conferred by the laws of the state on police officers.
(City Code 1951, Title 4, § 50)

Sec. 4:51. Powers of officers. (City)

Each one of the members of the police department shall have the same and all powers that are conferred on the chief of police by the ordinances of the council, subject however, to be directed and controlled in their exercise by the chief of police.
(City Code 1951, Title 4, § 51)

Sec. 4:52. Interference with constable, police officer, emergency medical technician, or firefighter. (City)

It shall be unlawful for any person to interfere with the city constable or any member of the police force or any emergency medical technician or any firefighter in the discharge of his duties by abuse, force or threatening language, or in screening from him the object of his search or purpose.
(City Code 1951, Title 4, § 53; Ord. No. 7960, § 1, 8-28-85)

Cross reference—Similar provisions, § 13:108.2

Sec. 4:53. Preservation of order. (City)

The members of the police department shall at all times and in all places and under all circumstances preserve order, peace and quiet in the city, but shall not interfere with or mix among peaceably disposed persons in or around coffee houses, restaurants, bars or other places of public gathering, nor shall they remain in or around such places longer than necessary to quell, disperse or arrest riotous, disorderly or evilly disposed persons, or to protect persons or property when required according to section 4:54. The chief of police may, however, post an officer at any such place of public gathering if in his judgment it be necessary to preserve the peace.
(City Code 1951, Title 4, § 54)

Sec. 4:54. Protection of persons or property. (City)

The police department shall furnish protection for persons or property when in the discretion of the chief of police such protection is necessary, or when such protection has been requested by persons believing their person or property to be in danger.
(City Code 1951, Title 4, § 55)

Sec. 4:55. Obedience to chief. (City)

The members of the police department shall, in all things pertaining to their office, obey absolutely the orders and directions of the chief of police.
(City Code 1951, Title 4, § 56)

Sec. 4:56. Discharge of duty. (City)

The members of the police department shall, giving up all things else, devote their whole time while on duty, to the discharge of their duty.
(City Code 1951, Title 4, § 57)

Sec. 4:57. Disposition of unclaimed prisoners' property. (City)

(a) All personal property of prisoners not needed in evidence, remaining unclaimed in the possession of the police department for a period of ninety (90) days from the date of arrest of a prisoner, may be disposed of by the chief of police, by donation to the following bona fide charitable institutions:

(1) Salvation Army;

(2) Volunteers of America;

(3) Blundon Orphans' Home;

(4) Protestant Orphans' Home;

(5) Catholic Orphans' Home.

(b) All receipts issued by the police department to prisoners for their personal property shall contain a reference to the authority of the police department to dispose of the receipted property if not claimed within ninety (90) days from the date of arrest, and this notice shall be binding on the prisoner so as to bar any action for recovery of his property or its value once it has been disposed of in accordance with the provisions of this section.

(c) The director of finance is hereby authorized and directed to audit the records of the police department on a periodic basis is connection with the disposition hereinabove authorized.

(d) The chief of police is hereby authorized and directed to establish rules and procedures to carry out the purpose and intent of this section.
(City Code 1951, Title 4, § 58)

Sec. 4:58. Disposition of badges, commissions and police revolvers of retiring officers. (City)

The chief of police is authorized, in his discretion, to award to any regular employee under municipal fire and police civil service, who is retiring after twenty (20) or more years of service, or who is being retired from service due to disability, his police badge and commission as a retirement gift from the police department; and the employee is authorized to purchase his police service revolver from the police department at replacement cost.
(Ord. No. 7581, § 1, 6-27-84)

Sec. 4:59. Disposition of bicycles, go-carts and lawnmowers.

The chief of police is authorized, in his discretion, to dispose of bicycles, go-carts, and lawnmowers which are in the possession of the Baton Rouge Police Department either as found property or as recovered stolen property in accordance with the following guidelines:

(a) Where the bicycle, go-cart or lawnmower is lawfully registered or can otherwise be identified as to ownership, the chief of police shall return the bicycle, go-cart, or lawnmower to the lawful owner thereof.

(b) Where the lawful ownership of a bicycle, go-cart, or lawnmower cannot be established, the chief of police shall dispose of the bicycle, go-cart, or lawnmower in any one of the following methods:

(1) The chief of police is authorized to dispose of bicycles, go-carts, or lawnmowers either individually or collectively through sale of the same to the highest bidder through a public bid process.

(2) The chief of police may retain a bicycle, go-cart, or lawnmower or any component part thereof for the use of the Baton Rouge Police Department.

(3) The chief of police may donate a bicycle or bicycles, go-cart, or go-carts, and lawnmower or lawnmowers or any component parts thereof to schools and

institutions of learning or to charitable nonprofit organizations. Any school, institution or learning, or charitable organization receiving a bicycle, go-cart, or lawnmower under the provisions of this section shall remit unto the chief of police the appropriate fee and receive a registration sticker for the bicycle, go-cart, or lawnmower.

(Ord. No. 8065, § 1, 12-11-85; Ord. No. 10554, § 1, 1-10-96)

Sec. 4:60. Notice required.

Thirty (30) days prior to the disposition of any bicycle, go-cart, or lawnmower in accordance with the provisions of section 4:59, the chief of police shall cause to be published a notice of his intention to dispose of any such bicycle, go-cart, or lawnmower, together with a description of the bicycle, go-cart or lawnmower for which disposition is planned. This notice shall be published one (1) time; and thirty (30) days thereafter, the chief of police shall proceed, at his discretion, in accordance with the provisions of section 4:59.

(Ord. No. 8065, § 1, 12-11-85; Ord. No. 10554, § 1, 1-10-96)

CHAPTER 3. RULES AND REGULATIONS

Sec. 4:100. Promulgated by civil service board. (City)

The members of the police department shall be subject to such rules, regulations and orders for the government and discharge of their duties as may be made or prescribed by the civil service board not inconsistent with or contrary to the provisions of this title.

(City Code 1951, Title 4, § 100)

Sec. 4:101. Promulgated by chief of police. (City)

Subject to section 4:100, the members of the police department shall be subject to such rules and regulations made by the chief of police under section 6:02 of the Plan of Government, when such rules and regulations have been approved by the council.

(City Code 1951, Title 4, § 101)

Sec. 4:102. Gambling. (City)

The members of the police department are hereby prohibited from participating in any game of chance whatsoever.

(City Code 1951, Title 4, § 102)

Cross reference—Gambling, § 13:90.

Sec. 4:103. Places of public amusement. (City)

The members of the police department are hereby prohibited from entering into any place of public amusement while on duty except under the provisions of section 4:53.

(City Code 1951, Title 4, § 103)

Sec. 4:104. Penalty. (City)

Each member of the police department is hereby held to observe the requirements of this chapter under penalty of suspension by the chief of police, and on due proof made before the civil service board, to be dismissed from the department.

(City Code 1951, Title 4, § 104)

CHAPTER 4. ARREST BY OFFICERS WITHOUT WARRANT AND TEMPORARY DETENTION PROCEDURE

Sec. 4:200. Arrest without warrant; when lawful. (City)

A police officer may, without a warrant, arrest a person when:

(1) The person to be arrested has committed an offense in his presence; and/or if the arrest is for a misdemeanor, it must be made immediately or on close pursuit;

(2) The person to be arrested has committed a felony, although not in the presence of the officer;

(3) The police officer has reasonable cause to believe that the person to be arrested has committed an offense, although not in the presence of the officer; or

(4) The police officer has received positive and reliable information that another police officer holds a warrant for the arrest.

(City Code 1951, Title 4, § 200)

Sec. 4:201. Misdemeanor summons issued, driver's license seized in lieu of bond. (City)

(a) When it is lawful for a police officer to arrest at person without a warrant for a misdemeanor, he may give the written summons instead of making an arrest, if he has reasonable grounds to believe that the person will appear upon a summons. In any case in which a summons has been issued, a warrant of arrest may later be issued in its place.

(b) A police officer authorized to make an arrest for any misdemeanor offense may require that the accused deposit his chauffeur's or operator's license incident to the issuance of a written summons. In such a case the officer shall issue a receipt for the license upon a form approved by the department of public safety, and thereafter the person shall be permitted to operate a motor vehicle upon the public highways of this state during the pendency of the case in which the license was deposited. The issuing police officer shall attach the license to the original summons which shall be promptly transmitted to the clerk of the city court in accordance with standard operating procedures. If the accused fails to appear in answer to the charge filed against him, the clerk shall promptly forward the license to the state department of public safety, which shall not return, reissue or renew the license until authorized to do so by the court.
(City Ord. No. 4746, § 1, 8-25-82)

Cross reference—Penalties and procedures on arrest for violation of traffic code, Title 11, Ch. 25.

Sec. 4:202. Arrest of shoplifters. (City)

(a) A police officer may, without a warrant, arrest a person when he has reasonable grounds to believe the person has committed theft of goods held for sale by a merchant, regardless of the actual value of the goods.

(b) A complaint made to a police officer by a merchant or a merchant's employee shall constitute reasonable cause for the officer making the arrest.
(City Code 1951, Title 4, § 201)

Cross reference—Misdemeanor theft, § 13:67.

Sec. 4:203. Temporary questioning; search for weapons. (City)

A police officer may stop any person in a public place when:

(1) He has reasonable cause to believe that such person has committed or is in the process of committing or is about to commit a crime, or is engaging in conduct which is defined as criminal in the Louisiana Criminal Code or in other acts of the legislature of the state or the ordinances of the city or the parish or in the constitution of the state.

(2) Upon stopping such person, the police officer may question such person and may demand of him his name, address, and explanation of his actions.

(3) When a police officer has stopped a person for questioning pursuant to this section, and observes or has observed conduct that causes such officer to reasonably believe that he or others are in danger of life or limb, he may conduct a limited search of such suspect's outer clothing for a dangerous weapon. If the police officer finds such a dangerous weapon, he may take it and keep it until completion of the questioning, at which time he shall either return it if lawfully possessed, or arrest such person.

(City Code 1951, Title 4, § 202)

CHAPTER 5. RULES AND REGULATIONS GOVERNING SHIFT DIFFERENTIAL, OVERTIME AND HOLIDAY PAY OF POLICE PERSONNEL

Sec. 4:300. Shift differential and overtime pay. (City)

Effective July 1, 1979, shift differential shall be paid at the rate of fifteen cents ($0.15) per hour additional compensation for anyone working the second shift, and twenty cents ($0.20) per hour additional compensation for anyone working the third shift.
(City Code 1951, Title 4, § 300)

Sec. 4:301. Overtime pay. (City)

(a) Overtime pay shall be paid for all overtime (in excess of forty (40) hours in any calendar week), excluding holidays, at the rate of time and one-half, with state supplemental pay to be included in the base for computation of overtime pay.

(b) Overtime pay on holidays shall be paid at the rate of double time and one-half, with state supplemental pay to be included in the base for computation.
(City Code 1951, Title 4, § 301)

Sec. 4:302. Regular pay on holidays. (City)

Pay for all holidays, as defined in the "Rules Governing Employees in the Classified Service of the City of Baton Rouge and the Parish of East Baton Rouge," shall be at the rate of double time and one-half, with state supplemental pay to be included in the base for computation.
(City Code 1951, Title 4, § 302)

Sec. 4:303. Effective date. (City)

This chapter shall be effective July 1, 1979, and shall apply to all police personnel except those employed in a position, grade or class above that of captain. Appropriate records shall be maintained with respect to all shift differential, overtime and holiday pay authorized by this chapter.
(City Code 1951, Title 4, § 303)

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Title 5

FIRE PROTECTION*

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Sec. 5:96. Burning trash, weeds, fields, etc. (Parish)

***Cross references—**Fire alarm systems on poles, § 2:112; public health, title 6; building regulations, title 8; minimum standards for existing building, title 8A; authority of fire department officials with respect to traffic code, § 11:20; following fire apparatus prohibited, § 11:267; crossing fire hose, § 11:268; obstruction of fire prevention, § 13:1002.

State law reference—Fire prevention and protection generally, R.S. 40:1491 et seq.

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Sec. 5:101. Appointment. (City)
Sec. 5:102. Uniforms. (City)
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Chapter 13. Brownsfield District 3

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Sec. 5:1405. Operation of the advisory board.

Chapter 15. Alsen/St. Irma Lee District 9

Sec. 5:1501. Governing body of district.
Sec. 5:1502. Powers and duties of governing body.
Sec. 5:1503. Internal rules and procedures of governing body.
Sec. 5:1504. Creation, general powers, and duties of advisory board.
Sec. 5:1505. Operation of the advisory board.

CHAPTER 1. GENERAL

PART I. FALSE ALARMS

Sec. 5:1. False alarms. (City)

(a) No person shall deliberately or maliciously turn in an alarm of fire when in fact that person/persons know that no fire exists.

(b) No person shall render any portable or fixed fire extinguisher system or device of any fire warning system inoperative or inaccessible except as necessary during emergencies, maintenance, drills, or prescribed testing.

(c) No person shall render a system or device inoperative during an emergency unless by direction of the incident commander.

(d) Any person who violates these provisions of Section 5:1 shall be guilty of a misdemeanor and shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or imprisoned for not more than thirty (30) days, or both, at the discretion of the court.
(City Code 1951, Title 5, §§ 1, 2; Ord. No. 11723, § 1, 4-26-00)

PART II. RESERVED*

PART III. REGULATION OF FIRES NEAR SUBDIVISIONS†

Sec. 5:31. Permit required for fire. (Parish)

(a) Except as provided in subsection (b) hereof, no person shall start, kindle or maintain any fire to burn stumps, logs, trees or other materials in order to clear land within the parish outside of the corporate limits of any municipality thereof and within one thousand (1,000) feet of any approved, recognized or established subdivision without a valid permit or other proper authorization.

(b) The department of public works is authorized to burn vegetation resulting from the maintenance of drainage channels within the parish, except within the St. George Fire Protection District, without obtaining a permit as required by subsection (a) hereof.
(Parish Code 1962, Title 5, § 31; Ord. No. 7390, § 1, 12-14-83)

Sec. 5:32. Issuance of permits; revocation. (Parish)

The fire protection district in which the fire is to be started, kindled or maintained will have the responsibility for issuing the permits and may refuse to issue a permit or may revoke a permit prior to the actual commencement of a fire when the atmospheric conditions or local circumstances make such fires hazardous or a nuisance; however, no permit will be issued wherein the applicant intends to use old tires in kindling or maintaining the fire, and if tires are used it will be grounds for revoking the permit and extinguishing the fire.
(Parish Code 1962, Title 5, § 32; Ord. No. 7390, § 1, 12-14-83)

Sec. 5:33. Notice to permittee of revocation of permit. (Parish)

If a permit is revoked, then the fire prevention bureau must notify the permittee in writing that the permit has been revoked.
(Parish Code 1962, Title 5, § 33)

Sec. 5:34. Penalty. (Parish)

Whoever violates the provisions of this part shall be guilty of a misdemeanor and upon conviction by the district court shall be sentenced to pay a fine of not less than fifty dollars ($50.00) nor more than two hundred dollars ($200.00), or to serve ten (10) days in the jail, or both.
(Parish Code 1962, Title 5, § 34)

Sec. 5:35. Control of air pollution from outdoor burning (open burning).

It is the intent of this section to restrict but not reject open burning within the city under certain prescribed conditions.

*__Editor's note—__Ord. No. 11723, § 2, adopted April 26, 2000, amended the Code by repealing former part II, § 5:25, in its entirety. Former part II pertained to smoking on city docks, and derived from the City Code of 1951, Title 5, §§ 25 and 26.

†__Cross reference—__Subdivision of land, § 7:1 et seq.

Notwithstanding any provision or provisions of this part to the contrary, the following provisions of section 11 of the Louisiana Environmental Control Commission Air Quality Regulations, as amended through September 20, 1982, are hereby adopted:

11.0. Control of Air Pollution from Outdoor Burning (Open Burning).

11.1. Purpose. It is the purpose of this section to control outdoor burning of waste or other combustible material to prevent undesirable levels of air contaminants in the atmosphere.

11.2. [Restricted.] No person shall cause or allow the outdoor burning of waste material or other combustible material on any property owned by him or under his control except as provided in section 11.3 below.

11.3. Exceptions to prohibition against outdoor burning. Outdoor burning of waste material or other combustible material may be conducted in the situations enumerated below if no public nuisance is or will be created and if the burning is not prohibited by and is conducted in compliance with other applicable laws and with regulations and orders of governmental entities having jurisdiction, including air control regulations and orders. The authority to conduct outdoor burning under this regulation does not exempt or excuse the person responsible from the consequences of or the damages or injuries resulting from the burning.

11.3.1. Outdoor burning in connection with the preparation of food.

11.3.2. Campfires and fires used solely for recreational purposes or for ceremonial occasions.

11.3.3. Fires purposely set to forest lands for a specific forest management purpose in accordance with practices acceptable to the Louisiana Forestry Commission.

11.3.4. Fires purposely set on agricultural lands for a specific management purpose in accordance with practices acceptable to the Louisiana Department of Agriculture.

11.3.5. Outdoor burning in a rural park or rural recreation area of trees, brush, grass and other vegetable matter for game management purposes in accordance with practices acceptable to Louisiana Parks and Recreation Commission and Louisiana Wildlife and Fisheries Commission.

11.3.6. Small fires, by tradesmen and contractors, in such activities as street repair, installation or repair of sewer, water, electric, telephone mains, and services.

11.3.7. The operation of contrivances using open flames such as welding torches, blow torches, portable heaters, and other flame-making devices.

11.3.8. Outdoor burning, in other than rural park or rural recreation area, of trees, brush, grass, and other vegetable matter from such area in land-clearing and right-of-way maintenance operations if the following conditions are met:

(a) Prevailing winds at the time of the burning must be away from any city or town, the ambient air of which may be affected by smoke from the burning;

(b) The location of the burning must be at least one thousand (1,000) feet (305 meters) from any dwelling other than a dwelling or structure located on the property on which the burning is conducted;

(c) Care must be used to minimize the amount of dirt on the material being burned;

(d) Heavy oils, asphaltic materials, items containing natural or synthetic rubber, or any materials other than plan [plant] growth which produce unreasonable amounts of smoke may not be burned; nor may these substances be used to start a fire;

(e) The burning may be conducted only between the hours of 8:00 a.m. and 5:00 p.m.; piles of combustible material should be of such size to allow complete reduction in this time interval;

(f) The burning must be controlled so that a traffic hazard as prohibited by section 11.4 is not created.

11.3.9. Fire purposely set as a part of an organized program of drills for the training of fire-fighting personnel or for testing fire-fighting materials or equipment if the following conditions are met:

(a) The duration of the burning held to the minimum required for such purposes;

(b) The burning is conducted only between the hours of 8:00 a.m. and 5:00 p.m.;

(c) The burning is controlled so that a traffic hazard as prohibited by section 11.4 is not created.

11.3.10. Outdoor burning of waste hydrocarbon products (from petroleum exploration, development or production operations, natural gas processing, such as, but not limited to, basic sediments, oil produced in testing an oil well, and paraffin) may be conducted at the site of origin when it is not practicable to transport the waste products for sale or reclamation, or to dispose of them lawfully in some other manner. In addition hydrocarbons spilled or lost from pipeline breaks or other transport failure which cannot practicably be recovered or be disposed of lawfully in some other manner may be outdoor burned at the site where the spill occurs or at another appropriate place due to safety considerations. Except when the immediate or continuous burning of hydrocarbon spills is reasonably necessary to abate or eliminate an existing or imminent threat of injury to human life or significant damage to property, the outdoor burning shall be conducted under the following conditions:

(a) The location of the burning must not be within or adjacent to a city or town or in such proximity thereto that the ambient air of the city or town may be affected by smoke from the burning.

(b) The burning is conducted only between the hours of 8:00 a.m. and 5:00 p.m.

(c) The burning is controlled so that a traffic hazard as prohibited by section 11.4 is not created.

11.3.11. Special situations approval for exemption by the assistant secretary prior to initiation of burning operation:

(a) Outdoor burning of explosives, pyrophoric, or any other materials where there is no practicable or safe method of disposal.

(b) Experimental burning for purposes of data gathering and research.

(c) Nonrecurring unusual circumstances or any condition not covered above.

11.4. Traffic hazards prohibited. The emission of smoke, suspended particulate matter or uncombined water or any air contaminants or combinations thereof which passes onto or across a public road and creates a traffic hazard by impairment of visibility as defined in section 4.34 or intensities an existing traffic hazard condition is prohibited.

11.5. Exclusion from application of this section. Outdoor burning pursuant to and in compliance with the terms of a variance granted by the Department of Environmental Quality is excluded from the application of this section.

(Ord. No. 8094, 1-22-86; Ord. No. 11723, § 3, 4-26-00)

Sec. 5:36. Penalty.

Whoever violates the provisions of section 5:35 of this chapter shall be guilty of a misdemeanor and shall be fined not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00) or imprisoned for not more than thirty (30) days, or both.

(Ord. No. 9283, § 1, 5-22-91; Ord. No. 11723, § 4, 4-26-00)

PART IV. REGULATION OF FIRE HYDRANTS

Sec. 5:50. Time limit for installation of fire hydrants. (City)

In those areas newly annexed to the city, any water supplier of the city who is authorized to maintain and/or operate waterworks to supply the city and/or its inhabitants with water, and any other supplier of water within the city, shall install the required number of fire hydrants in such newly annexed areas no later than eighteen (18) months from the effective date of such annexation. However, such supplier of water shall not be required to install fire hydrants in its service area at a rate in excess of fifteen (15) per month. The location of the newly installed fire hydrants shall be agreed upon by the fire chief and the water supplier.
(City Code 1951, Title 5, § 50)

Sec. 5:51. Use by unauthorized persons prohibited. (City)

It shall be unlawful for any persons unauthorized by the city council, the director of public works, the chief of the fire department, or the owner to open and take any water from any of the fire hydrants in the city, or to open and expose the water to waste. The only persons who may be so authorized are employees of the public works department, employees of the fire department, and the owner.
(City Code 1951, Title 5, § 51)

Sec. 5:52. Mandatory marking of fire hydrants that have been taken out of service. (City)

Any water supplier and/or owner in the city who maintains and/or operates fire hydrants shall mark any and all fire hydrants that have been taken out of service, such marking to be distinctive so that upon observing the fire hydrant it is obvious that the hydrant is not in service.
(City Code 1951, Title 5, § 52)

Sec. 5:53. Penalty. (City)

Any person violating the provisions of sections 5:50—5:52 shall be subject to a fine of not more than five hundred dollars ($500.00).
(City Code 1951, Title 5, § 53)

Secs. 5:54—5:59. Reserved.

Sec. 5:60. Use by unauthorized persons prohibited. (Parish)

It shall be unlawful for any persons unauthorized by the council, the director of public works, the chief of the fire department or the owner to open and take any water from any of the fire hydrants in the parish, or to open and expose the water to waste. The only persons who may be so authorized are employees of the public works department, employees of the fire department, and the owner.
(Parish Code 1962, Title 5, § 50)

Sec. 5:61. Mandatory marking of fire hydrants that have been taken out of service. (Parish)

Any water supplier and/or owner in the parish who maintains and/or operates fire hydrants shall mark any and all fire hydrants that have been taken out of service, such marking to be distinctive so that upon observing the fire hydrant it is obvious that the hydrant is not in service.
(Parish Code 1962, Title 5, § 51)

Sec. 5:62. Penalty. (Parish)

Any person violating the provisions of sections 5:60 and 5:61 shall be subject to a fine of not more than five hundred dollars ($500.00).
(Parish Code 1962, Title 5, § 52)

PART V. TRAFFIC REGULATIONS*

Sec. 5:75. Traffic regulation. (City)

While answering an alarm or while at a fire, the vehicles of the city fire department shall have precedence over other traffic, and such other traffic shall be subject to the regulations laid down in sections 11:20—11:22 and in title 11 in general.
(City Code 1951, Title 5, § 75)

*__Cross reference—__Traffic code, Title 11.

Sec. 5:76. Fire trucks, etc., to have right-of-way. (Parish)

Fire engines and equipment, in travelling to a fire call, shall have the right-of-way over all other traffic in the use of the roads, highways and streets in the parish, outside the limits of the city.
(Parish Code 1962, Title 5, § 75)

Sec. 5:77. Fire engines to be equipped with warning devices; duty of operators of other vehicles. (Parish)

Fire engines, trucks and equipment shall be equipped with a siren, bell, horn or gong, and when travelling to a fire or answering a fire call, such siren, bell, horn or gong shall be sounded and upon the approach of the fire truck, engine and equipment, all traffic shall pull to the right side of the road and stop and remain standing until the truck, engine or equipment shall have passed.
(Parish Code 1962, Title 5, § 76)

Sec. 5:78. Interfering with operation of fire engines, etc. (Parish)

It shall be unlawful to interfere with the operation of any fire truck, engine or equipment.
(Parish Code 1962, Title 5, § 77)

Sec. 5:79. Driving across fire hose, etc. (Parish)

It shall be unlawful to drive any vehicle of whatever kind or character across the hose line or any other fire-fighting equipment, or to interfere with or damage the same while such hose or equipment is in use.
(Parish Code 1962, Title 5, § 78)

PART VI. MISCELLANEOUS

Sec. 5:90. Use of water from private source—Authorized. (City)

The chief of the fire department or his authorized representative is hereby authorized to use water from private swimming pools, ponds, lakes, streams or any other private body or reservoir of water when it is deemed necessary to use such water to attempt to save life and property threatened by fire.
(City Code 1951, Title 5, § 76)

Sec. 5:91. Same—Nonliability for damages. (City)

The city, its officers, agents and employees engaging in or attempting to engage in the conduct authorized by section 5:90 shall be held harmless and not be liable in damages to any person or thing for any damage done while engaging in or attempting to engage in the conduct authorized by section 5:90.
(City Code 1951, Title 5, § 77)

Secs. 5:92—5:94. Reserved.

Sec. 5:95. Glass bulb type vaporizing liquid fire extinguishing device prohibited; exception; fire marshal may order removal. (Parish)

(a) The sale, use, installation or possession in the parish of any glass bulb type vaporizing liquid fire extinguishing device is prohibited, unless such device has had the prior approval of the state fire marshal and the chief of the bureau of fire prevention. The state fire marshal is hereby authorized to order the immediate removal of any such unapproved device found in any building or structure.

(b) Prior to approval of any such device, the state fire marshal and the chief of the bureau of fire prevention shall first determine that the device is safely designated and constructed, is installed in such a manner that it does not constitute a hazard to human life, and that there is a sufficient number of qualified persons on duty or residing in the building or structure to safely operate the device. The approval of the state fire marshal shall be in writing and shall be conspicuously affixed to the device itself. All such devices shall be regularly inspected after approval, and if the approval should be revoked or cancelled, all such devices shall be immediately removed upon the order of the state fire marshal.

(c) Any person who violates any provision of this part, or who fails to obey any lawful order issued by the state fire marshal under this part, shall be deemed guilty of a misdemeanor.
(Parish Code 1962, Title 5, §§ 80—82)

Sec. 5:96. Burning trash, weeds, fields, etc. (Parish)

Any person, other than authorized personnel of the department of public works acting under authority of section 5:31(b), starting or lighting any fires to burn trash (other than in a proper container which will prevent the spread of any ashes therefrom), weeds or fields, or to clear land within the parish and outside the corporate limits of any municipality, shall be guilty of a misdemeanor.
(Parish Code 1962, Title 5, § 83)

CHAPTER 2. ORGANIZATION OF FIRE DEPARTMENT*

Sec. 5:100. Creation. (City)

There shall be a fire department for the city as provided for in Sections 7:01 to 7:04 of the Plan of Government.
(City Code 1951, Title 5, § 80)

Sec. 5:101. Appointment. (City)

The regular firemen of the city shall be appointed in accordance with Act 102 of 1944 as amended, and the rules and regulations laid down by the civil service board, established under such Act, and sections of this Code.
(City Code 1951, Title 5, § 81)

Sec. 5:102. Uniforms. (City)

(a) The fire department shall be uniformed in such manner as may be prescribed by the chief of the fire department.

(b) Penalty. Any person not connected with the fire department who shall wear the uniform prescribed for the fire department shall, upon conviction, be guilty of a misdemeanor and fined not more than two hundred dollars ($200.00), and/or imprisoned for not more than thirty (30) days.
(City Code 1951, Title 5, §§ 82, 83; Ord. No. 11723, § 5, 4-26-00)

Sec. 5:103. Rules and regulations of civil service board. (City)

The members of the fire department shall be subject to such rules, regulations and orders for the government and discharge of their duties as may be made or prescribed by the civil service board, not inconsistent with or contrary to the provisions of this title.
(City Code 1951, Title 5, § 84)

Sec. 5:104. Rules and regulations by chief of fire department. (City)

Subject to section 5:103, the members of the fire department shall be subject to such rules and regulations made by the chief of fire department under Section 7:02 of the Plan of Government of the city, when such rules and regulations have been approved by the council.
(City Code 1951, Title 5, § 85)

Sec. 5:105. Interfering with operation of fire engines, etc.

It shall be unlawful to interfere with the operation of any fire truck, engine or equipment.

Any person who violates the provisions of section 5:105 shall be guilty of a misdemeanor and shall be fined not less than one hundred dollars ($100.00), or imprisoned for not more than fifteen (15) days, or both.
(Ord. No. 11723, § 6, 4-26-00)

Sec. 5:106. Driving across fire hose, etc.

It shall be unlawful to drive any vehicle of whatever kind or character across the hose line or any other fire-fighting equipment, or to interfere with or damage the same while such hose or equipment is in use.

***Cross references—**Municipal and parish organization, Title 1; commissions and departments generally, Title 1, Ch. 2; municipal fire and police civil service board, § 1:125 et seq.; personnel, Title 1, Ch. 3; retirement benefits for fire system employees, § 1:265; regulation of departments generally, Title 1, Ch. 4; authority of fire department officials with respect to traffic code, § 11:20; obedience to fire department officials with respect to traffic code, § 11:22.

Any person who violates the provisions of section 5:105 shall be guilty of a misdemeanor and shall be fined not less than one hundred dollars ($100.00), or imprisoned for not more than fifteen (15) days, or both.
(Ord. No. 11723, § 7, 4-26-00)

CHAPTER 3. FIRE PREVENTION CODE

PART I. BUREAU OF FIRE PREVENTION AND GENERAL PROVISIONS*

Sec. 5:150. Creation; chief; personnel. (City)

(a) There is hereby created in the fire department of the city a bureau of fire prevention (sometimes hereafter called the bureau) which shall be operated under the supervision of the chief of the fire department.

(b) The chief of the fire department shall appoint an officer (or member) of the fire department as chief of the bureau, who shall be appointed and hold office in accordance with civil service regulations applicable to such position.

(c) The chief of the fire department may detail such other members of the fire department as inspectors as shall from time to time be necessary, and may assign such other personnel and technical advisors to the bureau as may be required and approved in number and classification by the council.
(City Code 1951, Title 5, § 101)

Sec. 5:151. Powers and duties generally. (City)

(a) It shall be the duty of the officers and personnel of the bureau to enforce all laws and ordinances covering the following:

(1) Inspection of potential fire hazards;

(2) Abatement of existing fire hazards;

(3) The prevention of fires;

(4) The storage, control and use of explosives and flammables;

(5) The installation and maintenance of automatic and other private fire alarm systems, and fire extinguishing equipment;

(6) The maintenance and regulation of fire escapes;

(7) The maintenance and protection and the elimination of hazards in buildings and structures, including those under construction;

(8) Control of the means and adequacy of exit in case of fire from factories, schools, hotels, lodging houses, asylums, hospitals, churches, halls, theaters, amphitheaters, and all other places in which numbers of persons work, live or congregate, from time to time, for any purpose;

(9) Educational fire prevention programs.

(b) They shall have such other powers and perform such other duties as are set forth in other sections of this and other chapters of this Code and other ordinances, and as may be conferred and imposed from time to time by law.

(c) It shall be the duty of the fire chief through his fire prevention chief to ascertain after strict evaluation the creation and maintaining of a fire watch in assemblies of occupancy where the capacity of such establishments or potential capacity shall meet numbers exceeding one thousand five hundred (1,500) individuals in accordance with applicable codes in particular NFPA 101, section 9-76.

(1) Any person planning assemblies of occupancy where the capacity of such establishments or potential capacity shall meet numbers exceeding one thousand five hundred (1,500) individuals shall contact the fire chief through the fire prevention chief to obtain a fire watch in accordance with applicable codes and ordinances.

(2) Any person who violates this provision shall be guilty of a misdemeanor and fined not more than five hundred dollars ($500.00) or thirty (30) days in jail or both.

*__Cross references—__Municipal and parish organization, Title 1; commissions and departments generally, Title 1, Ch. 2.

(d) The bureau through auspices of the parish attorney's office, reserve the right to petition the court to file a temporary restraining order to terminate utilities and subject premises to any other orders as may be deemed necessary to cease unlawful acts.

(e) It is furthermore ascertained that as of this date, December 31, 1999, any member of the fire prevention bureau shall henceforth be empowered to issue misdemeanor summons for fire related offenses, which present a life safety or criminal offense. Offenses include:

(1) Locked and blocked exits;

(2) Overcrowding;

(3) Parking in fire lane;

(4) Handicap parking (ADA);

(5) Any violation of the NFPA1 Fire Prevention Code as adopted in Part II of this chapter;

(6) Title 13 offenses.

(f) Violation of subsections (e)(1)—(5) of this provision shall be construed as a misdemeanor and upon conviction shall be punishable by a fine of no less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or up to thirty (30) days in jail or both. Subsection (e)(6) shall be governed by Title 13 of the Code of Ordinances.
(City Code 1951, Title 5, § 102; Ord. No. 11723, § 8, 4-26-00; Ord. No. 12753, § 1, 10-8-03)

Sec. 5:152. Right of entry for inspection or investigation. (City)

The chief of the fire department, chief of the bureau, or any inspector or other personnel assigned to the bureau may, at any time, enter any building or premises for the purpose of making any emergency inspection which, under the provisions of this chapter, is deemed necessary to be made. Such officers and personnel are further authorized, with the consent of the owner or occupant thereof, to enter any building or premises for the purpose of making inspections required in order to determine and insure compliance with the provisions of this chapter. Where the consent of the owner or occupant is withheld or refused, the chief of the bureau is authorized to obtain an appropriate warrant for the purpose of entering the premises in order to carry out such inspections and to conduct such investigations as may be deemed necessary.
(City Code 1951, Title 5, § 103; Ord. No. 11723, § 9, 4-26-00)

Sec. 5:153. Inspection of certain hazards. (City)

The chief of the fire department, chief of the bureau of fire prevention or any inspector specially designated thereto shall inspect, as often as may be necessary, all specially hazardous manufacturing processes, storage or installations of gases, chemicals, oils, explosives and flammable materials, all interior fire alarm and automatic sprinkler systems, and such other hazards or appliances as the chief of the fire department shall designate, and shall issue such orders as may be necessary for the enforcement of the laws and ordinances governing the same and for safeguarding of life and property from fire.
(City Code 1951, Title 5, § 104; Ord. No. 11723, § 10, 4-26-00)

Sec. 5:154. Inspection of all buildings except private dwellings for hazards. (City)

(a) It shall be the duty of the chief of the fire department to inspect, or cause to be inspected by the bureau of fire prevention, or by the fire department officers and members, all buildings and premises except the interiors of private dwellings (tri-plex apartments and up), for the purpose of ascertaining and causing to be corrected any conditions liable to cause fire, or any violations of the provisions or intent of any section of this Code or ordinance of the city affecting the fire hazard.

(b) Whenever any inspector, as defined above, shall find in any building or upon any premises, combustible or explosive matter or dangerous accumulations of rubbish or unnecessary accumulation of wastepaper, boxes, shavings, or any highly flammable materials, and which is so situated as to endanger life or property; or shall find obstructions to or on fire escapes, stairs, passageways, doors or windows, liable to interfere with

the operations of the fire department or egress of occupants in case of fire, he shall order the same to be removed or remedied.
(City Code 1951, Title 5, § 105; Ord. No. 11723, § 11, 4-26-00)

Sec. 5:155. Inspection of places of assembly. (City)

(a) It shall be the duty of the chief of the fire department to inspect, or cause to be inspected by the bureau of fire prevention, or by the fire department officers or members, each place of assembly annually, including time of occupancy and use, as to insure compliance with all laws, regulations and orders dealing with overcrowding, use of decorations, maintenance of exit ways, collapse of revolving doors, and maintenance of fire appliances in such places of assembly. Where conditions are found to be unsatisfactory, written orders for immediate correction shall be given.

(b) Capacity sign shall be posted in a conspicuous place.
(City Code 1951, Title 5, § 106; Ord. No. 11723, § 13, 4-26-00)

Sec. 5:156. Inspection upon complaint or whenever deemed necessary. (City)

The chief of the fire department, chief of the bureau of fire prevention or an inspector, upon the complaint of any person or whenever he or they shall deem it necessary, shall inspect all buildings and premises within their jurisdiction. Whenever any of such officers shall find any building or other structure which, for want of repairs, lack of sufficient fire escapes, automatic or other fire alarm apparatus or fire extinguishing equipment or by reason of age or dilapidated condition, or from any other cause, is especially liable to fire, and which is so situated as to endanger other property or the occupants thereof, and whenever such officer shall find in any building combustible or explosive matter or flammable conditions dangerous to the safety of such building or the occupants thereof he or they shall order such dangerous conditions or materials to be removed or remedied in such manner as may be specified by the chief of the bureau of fire prevention.
(City Code 1951, Title 5, § 107)

Sec. 5:157. Orders to comply with chapter. (City)

(a) The service of such orders as mentioned in sections 5:153, 5:154, 5:155 and 5:156 may be made upon the owner, occupant or other person responsible for the conditions, either by delivering a copy of same personally or by delivering the same to and leaving it with any person in charge of the premises, or in case no such person is found upon the premises, by affixing a copy thereof in a conspicuous place on the door to the entrance of the premises. Whenever it may be necessary to serve such an order upon the owner of premises such order may be served either by delivering to and leaving with the person a copy of the order, or, if such owner is absent from the jurisdiction of the officer making the order, by mailing such copy to the owner's last known post office address.

(b) If buildings or other premises are owned by one person and occupied by another under lease or otherwise, the orders issued in connection with the enforcing of this chapter shall apply to the occupant above, except where the rules or orders require the making of additions to or changes in the premises themselves, such as would immediately become real estate and be the property of the owner of the premises; in such cases the rules or orders shall affect the owner and not the occupant unless it is otherwise agreed between the owner and the occupant.

(c) Any such order shall forthwith be complied with by the owner or occupant of such premises or building. If such order is made by the chief of the bureau of fire prevention or one of the inspectors, such owner or occupant may within twenty-four (24) hours appeal to the chief of the fire department, who shall, within five (5) days, review such order and file his decision thereon, and unless by his authority the order is revoked or modified it shall remain in full force and be complied with within the time fixed in said order or decision of the chief of the fire department; provided, however, that any such owner or occupant may, within

five (5) days after the making or affirming of any such order by the chief of the fire department, file his petition with the capital construction board of appeals, (as established under Title 8, Building Regulations in the Code of Ordinances for the City of Baton Rouge/Parish of East Baton Rouge), upon payment of a twenty dollar ($20.00) application fee, praying a review by next scheduled meeting of the board and the decision of the board shall be final.
(City Code 1951, Title 5, § 108; Ord. No. 11723, § 13, 4-26-00)

Sec. 5:158. Investigation of fires. (City)

(a) The fire investigation/arson division of the fire department shall investigate the cause, origin and circumstances of any fire inside the city or parish when:

(1) The initial fire crew cannot make a determination as to the cause of said fire;

(2) If an investigator is requested;

(3) All fires involving loss of life or injury to persons or by which property has been destroyed or damaged and;

(4) At the request of the incident commander of a parish fire department.

The investigator on duty, so far as possible, shall determine whether the fire is the result of carelessness or design. Such investigations shall be begun by the investigator on duty immediately upon the occurrence of such a fire, and if it appears to the investigator that such fire is of incendiary origin, that investigator shall take charge immediately of the fire scene, and secure all evidence and gather facts related to said fire.

The chief of fire investigations shall notify the chief of the department of all fire investigations and the result of prosecution or conviction. Every investigation shall be reported in writing to the chief of investigations or the assistant chief of investigations within two (2) days after the occurrence of same. The report shall be in such form as shall be prescribed by the chief of the department, and shall contain a statement of all the facts relating to the cause, origin and circumstances of such fire, injury to persons, extent of damage thereof, the insurance upon such property, follow up investigations, arrest reports, and such other information as may be required.

(b) *Authority to make arrest and carry firearms.* The chief fire investigator, assistant chief fire investigator, and fire investigators when commissioned by the sheriff of the parish or the chief of police of the city, while engaged in the performance of their duties, shall carry their departmental issued weapon at all times while on duty, and shall have the power to arrest individuals suspected of having violated the following criminal laws:

(1) R.S. 14:51, Aggravated arson;

(2) R.S. 14:52, Simple arson;

(3) R.S. 14:53, Arson with intent to defraud;

(4) R.S. 14:54, Placing combustible material;

(5) R.S. 14:42.1, Communicating false information of planned arson;

(6) R.S. 14:54.2, Manufacture and possession of delayed incendiary devices;

(7) R.S. 14:54.3, Manufacture and possession of a bomb;

(8) R.S. 14:54.5, Fake explosive devices;

(9) R.S. 14:59(2), Criminal mischief relating to the giving of any false alarm of fire;

(10) R.S. 14:204, Fire-raising on lands of another by criminal negligence;

(11) R.S. 14:205, Fire-raising on lands of another with malice;

(12) R.S. 14:206, Fire prevention interference;

(13) R.S. 14:327, Obstructing a fireman;

(14) R.S. 22:1243, Insurance fraud;

(15) R.S. 22:1244, Insurance fraud;

(16) Title 5 City Ordinance, section 5:35, Misdemeanor summons for control of air pollution from outdoor burning (open burning);

(17) Any other criminal laws making unlawful an attempt or conspiracy to commit the foregoing offenses.

(c) *Warrants and subpoenas.* The fire investigation division shall execute arrest warrants, search warrants, and subpoenas in the performance of their duties.

(d) *Assistance from other agencies.* The parish attorney, police department, or any local, state, and federal agency upon request by the fire chief may be allowed to assist the investigator in the investigation of any fire which, in their opinion, is of incendiary nature.
(City Code 1951, Title 5, §§ 109, 110; Ord. No. 11723, § 14, 4-26-00)

Sec. 5:159. School fire drills; exits unlocked during school hours. (City)

It shall be the duty of the fire prevention chief to require teachers of public, private and parochial schools and educational institutions to have fire drills in accordance with NFPA 1-10-2.1.2 through 10-2.1.9. NFPA 101 (101: 10-7.1.1 and 101:11-7.11).
(City Code 1951, Title 5, § 111; Ord. No. 11723, § 15, 4-26-00)

Sec. 5:160. Record of fires. (City)

The fire prevention chief shall keep, in the office of the bureau of fire prevention, a record of all fires and of all the facts concerning the same, including statistics as to the extent of such fires and the damage caused thereby, and whether such losses were covered by insurance, and if so, in what amount. Such record shall be made daily from the reports made by fire department officers with authority to do such. All such records shall be public.
(City Code 1951, Title 5, § 112; Ord. No. 11723, § 16, 4-26-00)

Sec. 5:161. Annual report. (City)

The annual report of the bureau of fire prevention shall be made on or before the first day of December and transmitted to the council; it shall contain all proceedings under this chapter, with such statistics as the chief of the fire department may wish to include therein; the chief of the fire department shall also recommend any amendments to this chapter which, in his judgment, shall be desirable.
(City Code 1951, Title 5, § 113)

Sec. 5:162. Inapplicability to articles transported pursuant to regulations of ICC or U.S. military. (City)

Nothing contained in this chapter shall be construed as applying to the transportation of any article or thing shipped in conformity with the regulations prescribed by the Interstate Commerce Commission, nor as applying to the military or naval forces of the United States.
(City Code 1951, Title 5, § 114)

Sec. 5:163. Definition of "approved". (City)

"Approved" when applied to materials, type of construction and appliances, refers to approval by the chief of the bureau of fire prevention as a result of investigations and tests conducted by him or by reason of accepted principles or tests by the National Board of Fire Underwriters or the Underwriters' Laboratories, Inc., or the National Bureau of Standards.
(City Code 1951, Title 5, § 116)

Sec. 5:164. Authority of permits and licenses. (City)

(a) A permit shall constitute permission to establish, maintain, store or handle materials, or to conduct processes, which produce conditions hazardous to life or property, such permit does not take the place of any license required by law. It shall be for a specified period, not transferable, and any change in use or occupancy of premises shall require a new permit.

(b) A license shall be the authority issued by the treasurer, on approval of the bureau of fire prevention, independently or jointly in connection with any other municipal authority for a period not in excess of one year for the conducting of a business, trade, occupation or calling.
(City Code 1951, Title 5, § 117; Ord. No. 11723, § 17, 4-26-00)

Sec. 5:165. Appeals. (City)

Whenever the bureau of fire prevention shall reject or refuse to grant a license or a permit, or when it is claimed that provisions of this chapter or any ordinances relating thereto do not apply or when it is claimed that the true intent and meaning of this chapter or any regulations have been misconstrued or wrongly interpreted, and the license or the permit applied for having been refused by the bureau of fire prevention, then the person may appeal from the decision of the bureau of fire prevention, in writing, as outlined in section 5:157.
(City Code 1951, Title 5, § 118)

Sec. 5:166. Reserved.

Editor's note—Ord. No. 11723, § 18, adopted April 26, 2000, amended the Code by repealing former § 5:166 in its entirety. Former § 5:166 pertained to determination of flash point, and derived from the City Code of 1951, Title 5, § 119.

Sec. 5:167. Committee to specify new materials, processes or occupancies. (City)

The director of public works, the chief of the fire department and the chief of the bureau of fire prevention shall act as a committee on determination, and specify any new materials, processes or occupancies, and trades which shall require permits, in addition to those now enumerated in this chapter. The chief of the bureau of fire prevention shall post such list in a conspicuous place in his office.
(City Code 1951, Title 5, § 120)

Sec. 5:168. Hazardous materials. (City)

The intent of this chapter is to safeguard and restrict the storage, handling and use of dangerous and hazardous materials to a reasonable degree with respect to injury to persons and destruction of property. Installation, construction and safeguards shall be provided in a standard modern and approved manner, compliance with the provisions of the NFPA Fire Prevention Code Handbook, First Edition, 1997 shall be prima facie evidence of such approved manner.
(City Code 1951, Title 5, § 121; Ord. No. 11723, § 19, 4-26-00)

Sec. 5:169. Storage of flammable liquids. (City)

(a) Before a license or a permit may be issued, the chief of the bureau of fire prevention, or his assistants, shall inspect and approve the receptacles, vehicles, buildings or storage places to be used. Some of the provisions included in this chapter, along with other requirements, may also be covered by other laws or regulations enforceable by other departments other than the bureau of fire prevention. In such cases joint approval shall be obtained by the bureau of fire prevention.

(b) The storage of Class I liquids, as defined in NFPA 1, 1997 Edition, in aboveground vaulted tanks up to five hundred fifty (550) gallons is admissible within the city.

(c) Class I or Class II liquids in aboveground tanks above five hundred fifty (550) gallons outside of buildings, are prohibited within the city, except on the property of the Greater Baton Rouge Airport District, limited to vaulted tanks not over ten thousand (10,000) gallons installed in accordance with NFPA 30, 30A and 407, if approved by the fire chief of the city.

(d) A temporary permit for an aboveground tank for a period not greater than thirty (30) days may be granted by the chief of the fire prevention bureau, if, in his opinion, conditions are such that a temporary permit is justified.

(e) The dispensing of Class I and II liquids shall not be prohibited from mobile tankers if done in accordance to NFPA 30A in particular 30A-9-3.4 and all referenced codes.

(1) Permits will have to be obtained from the bureau of fire prevention and any other required agencies before beginning operation.

(2) Permit shall be obtained for each dispensing vehicle and inspection of such vehicle shall be made at any time. Permit must be produced by operator upon request.

(City Code 1951, Title 5, § 122; Ord. No. 9835, § 1, 2-23-94; Ord. No. 11723, § 20, 4-26-00)

Sec. 5:170. Permit applications. (City)

All applications for a permit required by this chapter shall be made to the bureau of fire prevention in such form and detail as it shall prescribe.
(City Code 1951, Title 5, § 123)

Sec. 5:171. Permits and licenses kept on premises; inspection. (City)

Permits and licenses must at all times be kept on the premises designated therein, and shall at all times be subject to inspection by any officer of the fire or police departments.
(City Code 1951, Title 5, § 124)

Sec. 5:172. Permits for flammable combustible or explosive materials. (City)

One (1) permit only shall be required by retail establishments dealing in, or manufacturing plants using, two (2) or more flammable combustible or explosive materials to be kept in the establishment at any one (1) time; but each of the materials shall be listed in the permit.
(City Code 1951, Title 5, § 125)

Sec. 5:173. Permits and licenses secured in accordance with NFPA Fire Prevention Code Handbook. (City)

Permits and licenses required by this chapter shall be secured strictly in accordance with and subject to provisions of the NFPA Fire Prevention Code Handbook, and all such permits shall be personal and nontransferable, unless otherwise specifically provided.
(City Code 1951, Title 5, § 126)

Sec. 5:174. Modification of chapter regulations. (City)

The chief of the bureau shall have power to modify any of the provisions of the Fire Prevention Code or of this chapter upon application in writing by the owner, or his duly authorized agent, when there is practical difficulty or hardship in the way of carrying out the strict letter thereof, provided that the public safety not be jeopardized. The particulars of such modification when granted or allowed and the decision of the chief of the bureau thereon, as well as the reasons therefor, shall be entered upon the records of the department and a signed copy shall be furnished the applicant.
(City Code 1951, Title 5, § 121)

Sec. 5:175. Liability for damages. (City)

This chapter shall not be construed to affect the responsibility of any party owning, operating or installing any equipment for damage to persons or property caused by any defect therein, nor shall the city-parish be held as assuming any such liability by reason of the inspection or reinspection authorized herein or the permit issued as herein provided or by reason of the approval or disapproval of any equipment authorized herein.
(City Code 1951, Title 5, § 127)

PART II. ADOPTION OF FIRE PREVENTION CODE

Sec. 5:201. Adoption. (City)

(a) There is hereby adopted, for the purpose of prescribing regulations governing conditions hazardous to life and property from fire or explosion, that certain code known as the 2015 edition of NFPA 1 and 2015 edition of NFPA 101, Life Safety Code, Uniform Fire Code and documents listed in chapter 2 of that code, National Fire Protection Association, Inc., prescribing regulations governing conditions hazardous to life and property. This shall include all appendices except appendix C and save and except such portions thereof as may be deleted as part of the code. Not less than one (1) copy has been and shall be hereafter kept on file in the office of the council administrator, and the same is hereby adopted and incorporated as fully as if set out at length herein.

(b) It is the intent of the bureau to prescribe regulations consistent with the provisions provided in R.S. 40:1563 as well as regulations consistent with nationally recognized good practice for the safeguarding to a reasonable degree of life and property for the hazards of fire and explosion;

arising from the storage, handling and use of hazardous substances, materials and devices, and from conditions hazardous to life or property in the use of occupancy of building or premises. Wherefore, the most current state adopted version of the fire life safety code will be the minimum code which will be utilized by the bureau.

(c) The term "The Code" in General Provisions make reference to those technical codes adopted by the Baton Rouge Fire Prevention Bureau to establish a reasonable level of fire safety and property protection from the hazards created by fire and explosion, including, but not limited to, the most recent state adopted version of the National Fire Protection Agency Life Safety Code and, as a maintenance code, the State of Louisiana Uniform Fire Prevention Code as defined in R.S. 40:1578.7.

(d) It shall be unlawful to conduct any business, perform any act, repair or construct any building, structure, or vehicle or transport or handle any product or material for which a permit is required by the provisions of the NFPA Uniform Fire Code without having first secured a permit therefor, or in violation of any of the provisions of this chapter.

(e) Violation of this section shall be construed as a misdemeanor and upon conviction shall be punishable by a fine of no less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or up to thirty (30) days in jail or both.
(City Code 1951, Title 5, § 201; Ord. No. 8197, § 1, 8-27-86; Ord. No. 11723, § 22, 4-26-00; Ord. No. 13033, § 1, 8-25-04; Ord. No. 14242, § 1, 11-28-07; Ord. No. 15022, § 1, 11-10-10; Ord. No. 15649, § 1, 2-12-14; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:202. Definitions.

(a) Whenever the word "authority having jurisdiction" is used in the Uniform Fire Code, it shall refer to the fire chief of the city.

(b) Whenever the term "corporation counsel" is used in the Uniform Fire Code, it shall mean the parish attorney/city prosecutor.

(c) Whenever the phrase "the code" or "this code" is used in this chapter, it shall mean the 2015 edition of NFPA 1 and 2015 edition of NFPA 101, Life Safety Code.

(d) Whenever the word "NFPA" is referred to it shall pertain to the National Fire Protection Association.

(e) Whenever the term "the bureau" is used, it shall mean Baton Rouge Fire Department Fire Prevention Bureau.

(f) All definitions as per chapter 3 of NFPA Uniform Fire Code Handbook shall be deemed acceptable as prescribed by this bureau.
(City Code 1951, Title 5, § 202; Ord. No. 11723, § 23, 4-26-00; Ord. No. 15022, § 1, 11-10-10; Ord. No. 15649, § 1, 2-12-14; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:203. Amendments to the code.

The following provisions of the NFPA 1 are amended as follows:

Section 1-17, in particular 1-17, 1, shall be adhered to through the state fire marshal's review architects division. It is the applicant's responsibility to adhere to requirements of the state fire marshal's office and also the building official for the City of Baton Rouge.

Note:	Section 1-7: Board of Appeals
	Section 3-4: Amended by DEQ, Title 33 Regulations

It shall also be recognized that the 1992 edition of the official manual of the office of the state fire marshal is and shall be another resource of the Baton Rouge Fire Prevention Bureau in the performance of enforcing prescribed mandates of the state within the city limits of Baton Rouge.

Section 3-5, "Fire Lanes," is hereby amended so as to add subsection 3-5.6 thereto, to read as follows:

All premises which the fire department may be called upon to protect in case of fire and which are not readily accessible from public roads shall be provided with suitable gates, access roads, and fire lanes so that all build-

ings on the premises are accessible to fire apparatus. Fire lanes as prescribed by the chief of the fire prevention bureau shall be provided for all buildings. The designation and maintenance of fire lanes on private property shall be accomplished as specified by the chief of the fire prevention bureau. It shall be unlawful for any person to park motor vehicles on, or otherwise obstruct, any fire lane.

(Ord. No. 11723, § 24, 4-26-00; Ord. No. 12753, §§ 2, 3, 10-8-03; Ord. No. 15649, § 1, 2-12-14; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:204. Duties to fire marshal.

The fire prevention bureau will conduct maintenance inspections on behalf of the fire marshal. Copies of the inspection reports shall be filed with the office of the state fire marshal. All inspectors shall be required to participate in continuing education through an office of state fire marshal approved training program. The fire marshal shall have the authority to monitor the performance of the fire prevention bureau in the performance of those functions which would otherwise be performed by the office of the state fire marshal.

(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:205. Appeals.

Whenever the chief of the fire department shall disapprove an application or refuse to grant a permit applied for, or when it is claimed that the provisions of the fire prevention code hereby adopted do not apply or that the true intent and meaning of the code have been misconstrued or wrongly interpreted, the applicant may appeal from the decision of the fire chief, or fire district board of commissioners, to the council within thirty (30) days from the date of the decision appealed.

(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:206. Penalty.

(a) Any person who shall violate any of the provisions of the fire prevention code hereby adopted or fail to comply therewith, or who shall violate or fail to comply with any order made thereunder, or who shall build in violation of any detailed statement of specifications or plans submitted and approved thereunder and from which no appeal has been taken or who shall fail to comply with such an order as affirmed or modified by the district board of commissioners, or by a court of competent jurisdiction, within the time fixed herein, shall severally for each and every violation and noncompliance, respectively, be guilty of a misdemeanor, punishable by a fine of not less than fifty dollars ($50.00) nor more than one hundred dollars ($100.00), or by imprisonment for not less than thirty (30) days nor more than sixty (60) days, or by both such fine and imprisonment. The imposition of one (1) penalty for violation shall not excuse the violation or permit it to continue; and all such persons shall be required to correct or remedy such violations or defects within a reasonable time; and when not otherwise specified, each ten (10) days that prohibited conditions are maintained shall constitute a separate offense.

(b) The imposition of the penalties herein authorized shall not be construed as in any way limiting the right of the district or the council, as the governing authority thereof, to institute judicial proceedings for the purpose of requiring compliance with or enforcing the provisions of this chapter or the fire prevention code adopted hereby.

(Ord. No. 19085, § 1, 12-13-23)

PART III. RESERVED*

CHAPTER 4. RESERVED†

CHAPTER 5. ST. GEORGE FIRE PROTECTION DISTRICT NO. 2‡

Sec. 5:501. Creation of commission.

Pursuant to the authority granted under article 6, sections 15 and 19 of the Louisiana Constitution of 1974, and pursuant to R.S. 33:1415 and 40:1491—40:1506, there is hereby created and established the Board of Commissioners ("board") for St. George Fire Protection District No. 2 ("district"), which district was created in the Parish of East Baton Rouge by Parish Resolution 9230, adopted March 24, 1971.

(1) The board shall be composed of five (5) members.

(2) Each member of the board shall be appointed by the metropolitan council and shall be a resident property taxpayer of the district.

(3) Two (2) of the initial members of the board shall hold office until one (1) year from the January 1 immediately succeeding their appointment, and three (3) members shall hold office until two (2) years from the January 1 immediately succeeding their appointment, the respective terms to be determined by lot. Thereafter, each member appointed shall serve for a term of two (2) years. Members are eligible for reappointment.

(Ord. No. 9705, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:502. Initial meeting.

The initial meeting of the board shall be held on January 4, 1994, at 7:00 p.m., at 13646 Perkins Road, Baton Rouge, LA 70810. At this initial meeting, the board shall elect its chairman from among its members. The board shall also elect a secretary and a treasurer, or a combined secretary/treasurer. The persons filling offices of secretary or treasurer, or the combined office of the secretary/treasurer, may be but need not be members of the board.

(Ord. No. 9705, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:503. Compensation of board members.

(a) Members of the board may by resolution authorize themselves to be paid a per diem for attending board meetings and expenses in accordance with R.S. 40:1498.

(b) If a member of the board is elected secretary or treasurer or secretary-treasurer of the board, that member may be compensated additionally for such office.

(c) All payments authorized under this section shall be paid exclusively from funds of the district.

(Ord. No. 9705, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:504. Powers and duties of the board.

(a) Except as to those powers specifically reserved by the metropolitan council herein or otherwise provided by law, the metropolitan council, the board shall have, in accordance with R.S. 40:1499, such powers and shall perform such duties as are customary for governing bodies of taxing districts and political subdivi-

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***Editor's note—**Ord. No. 11723, § 25, adopted April 26, 2000, amended the Code by repealing former part III, §§ 5:301—5:306, in its entirety. Former part III pertained to removal and disposition of vehicles as fire hazards, and derived from the City Code of 1951, Title 5, §§ 401—406.

†**Editor's note—**Chapter 4, §§ 5:400—5:403, 5:450—5:456, regulating the Scotlandville Fire Protection District, derived from Parish Code 1962, Title 5, §§ 85—88, 91—97, was repealed by § 3 of Ord. No. 8400, adopted May 13, 1987.

‡**Editor's note—**Chapter 5 formerly consisted of §§ 5:501—5:526, 5:550—5:552, 5:601—5:606 and was derived from Parish Code 1962, title 5, §§ 101—127, 201, 202, 301—309, and 401—406, and Ord. No. 8400, § 1, adopted May 13, 1987. Section 1 of Ord. No. 9705, adopted Sept. 8, 1993, added a new ch. 5, §§ 5:501—5:506. Section 4 declared the ordinance effective Jan. 1, 1994.

sions. The board shall have the right to levy taxes and to operate and control property acquired by the district.

(b) Prior to the submission to the voters of the district of any question of taxes, service charges, parcel or other charges that may be levied or bonds that may be issued, the metropolitan council shall have the right to approve the amount of such tax, charge, or bond proposed by the board. The metropolitan council further reserves the authority to approve and coordinate the calling of any and all elections for the approval by the electors of the district of any property tax, service charge, parcel or other charge or tax or bond issuance proposed by the board. The district shall pay its pro rata share of the cost of holding any such election.

(c) The board shall adopt rules and procedures and shall fix the time and place of its regular meetings. These rules and procedures shall be published by the board, and a copy shall be provided to the metropolitan council to be kept on file at the council administrator's office.
(Ord. No. 9705, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:505. Budget requirements.

The board shall annually adopt a budget of receipts and expenditures and a budget for a budget capital outlay. A copy of the budget adopted each year shall be filed with the council administrator's office within fifteen (15) days prior to the beginning of its fiscal year.
(Ord. No. 9705, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:506. Audit requirements.

(a) The books and records of the district shall be audited each year by an independent certified public accountant in the same manner and to the same extent as the books and records of the city-parish are audited.

(b) The board shall provide to the city-parish finance department, accounting division, by March of each year, an annual audit by an independent certified public accountant of all books and records of the district prepared at its own cost. This audit shall include comprehensive financial statements, including notes, prepared in accordance with generally accepted governmental accounting standards.

(c) The board shall make available, upon request by the city-parish, for examination by the city-parish, all financial books and records of the district. The board shall additionally permit the city-parish to audit, examine and make excerpts or transcripts from such financial books and records, and to make audits of all such contracts, invoices, materials, payrolls, books, records and other financial data relating to the district at the sole expense of the city-parish.
(Ord. No. 9705, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:507. Fire prevention bureau.

(a) Pursuant to the authority granted under R.S. 40:1563, the Metropolitan Council for the City of Baton Rouge and Parish of East Baton Rouge creates and establishes the St. George Fire Prevention Bureau, said boundaries and governing authority to be the same as defined herein for the St. George Fire Protection District No. 2.

(b) The fire prevention bureau will be headed by the chief of the St. George Fire Protection District No. 2 or a person designated by the chief of the St. George Fire Protection District. The bureau will be staffed by qualified individuals whose credentials have been reviewed and accepted by the office of the state fire marshal.

(c) It is the intent of the bureau to prescribe regulations consistent with the provisions provided in R.S. 40:1563 as well as regulations consistent with nationally recognized good practice for the safeguarding to a reasonable degree of life and property for the hazards of fire and explosion arising from the storage, handling and use of hazardous substances, materials and devices, and from conditions hazardous to life or property in the use of occupancy of building or premises; wherefore, the most current state adopted version of the fire life safety code will be the minimum code which will be utilized by the bureau.

(d) The term "The Code" in General Provisions make reference to those technical codes adopted by the St. George Fire Prevention Bureau to establish a reasonable level of fire safety and property protection from the hazards created by fire and explosion, including, but not limited to, the most recent state adopted version of the National Fire Protection Agency Life Safety Code and, as a maintenance code, the State of Louisiana Uniform Fire Prevention Code as defined in R.S. 40:1578.7.

(e) The fire prevention bureau will conduct maintenance inspections on behalf of the fire marshal. Copies of the inspection reports shall be filed with the office of the state fire marshal. All inspectors shall be required to participate in continuing education through an office of state fire marshal approved training program. The fire marshal shall have the authority to monitor the performance of the fire prevention bureau in the performance of those functions which would otherwise be performed by the office of the state fire marshal.
(Ord. No. 19085, § 1, 12-13-23)

CHAPTER 6. RESERVED*

CHAPTER 7. RESERVED†

*__Editor's note—__Ord. No. 19085, § 1, adopted December 13, 2023, repealed ch. 6, §§ 5:701—5:707, which pertained to the fire prevention code and derived from Parish Code 1962, title 5, §§ 501, 503—507; Ord. No. 8400, adopted May 13, 1987; and Ord. No. 10496, adopted October 25, 1995.

†__Editor's note—__Ord. No. 19085, § 1, adopted December 13, 2023, repealed ch. 7, § 5:801, which pertained to the life safety code and derived from Ord. No. 8198, adopted August 27, 1986; Ord. No. 9534, adopted November 25, 1992; and Ord. No. 10436, adopted August 23, 1995.

CHAPTER 8. HOOPER ROAD FIRE PROTECTION DISTRICT NO. 6‡

Sec. 5:851. Creation of commission.

Pursuant to the authority granted under article 6, sections 15 and 19 of the Louisiana Constitution of 1974, and pursuant to R.S. 33:1415 and 40:1491—40:1506, there is hereby created and established the Board of Commissioners ("board") for Hooper Road Fire Protection District No. 6 ("district"), which district was created in the Parish of East Baton Rouge by Parish Resolution 12992, adopted December 22, 1976.

(1) The board shall be composed of five (5) members.

(2) Each member of the board shall be appointed by the metropolitan council and shall be a resident property taxpayer of the district.

(3) Two (2) of the initial members of the board shall hold office until one (1) year from the January 1 immediately succeeding their appointment, and three (3) members shall hold office until two (2) years from the January 1 immediately succeeding their appointment, the respective terms to be determined by lot. Thereafter, each member appointed shall serve for a term of two (2) years. Members are eligible for reappointment.

(Ord. No. 9707, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:852. Initial meeting.

The initial meeting of the board shall be held on January 11, 1994, at 7:00 p.m., at 7878 Prescott Road, Baton Rouge, LA 70812. At this initial meeting, the board shall elect its chairman from among its members. The board shall elect a secretary and a treasurer, or a combined secretary/treasurer. The persons filling offices of

‡__Editor's note—__Chapter 8, §§ 5:851—5:856, is derived from § 1 of Ord. No. 9707, adopted Sept. 8, 1993. Section 4 declared the ordinance effective Jan. 1, 1994.

secretary or treasurer, or the combined office of the secretary/treasurer, may be but need not be members of the board.
(Ord. No. 9707, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:853. Compensation of board members.

(a) Members of the board may by resolution authorize themselves to be paid a per diem for attending board meetings and expenses in accordance with R.S. 40:1498.

(b) If a member of the board is elected secretary or treasurer of the board, that member may be compensated additionally for such office.

(c) All payments authorized under this section shall be paid exclusively from funds of the district.
(Ord. No. 9707, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:854. Powers and duties of the board.

(a) Except as to those powers specifically reserved by the metropolitan council herein or otherwise provided by law, the metropolitan council, the board shall have, in accordance with R.S. 40:1499, such powers and shall perform such duties as are customary for governing bodies of taxing districts and political subdivisions. The board shall have the right to levy taxes and to operate and control property acquired by the district.

(b) Prior to the submission to the voters of the district of any question of taxes, service charges, parcel or other charges that may be levied or bonds that may be issued, the metropolitan council shall have the right to approve the amount of such tax charge or bond proposed by the board. The metropolitan council further reserves the authority to approve and coordinate the calling of any and all elections for the approval by the electors of the district of any property tax, service charge, parcel or other charge or tax or bond issuance proposed by the board. The district shall pay its pro rata share of the cost of holding any such election.

(c) The board shall adopt rules and procedures and shall fix the time and place of its regular meetings. These rules and procedures shall be published by the board, and a copy shall be provided to the metropolitan council to be kept on file at the council administrator's office.
(Ord. No. 9707, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:855. Budget requirements.

The board shall annually adopt a budget of receipts and expenditures and a budget for a budget capital outlay. A copy of the budget adopted each year shall be filed with the council administrator's office within fifteen (15) days prior to the beginning of its fiscal year.
(Ord. No. 9707, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:856. Audit requirements.

(a) The books and records of the district shall be audited each year by an independent certified public accountant in the same manner and to the same extent as the books and records of the city-parish are audited.

(b) The board shall provide to the city-parish finance department, accounting division, by March of each year, an annual audit by an independent certified public accountant of all books and records of the district prepared at its own cost. This audit shall include comprehensive financial statements, including notes, prepared in accordance with generally accepted governmental accounting standards.

(c) The board shall make available, upon request by the city-parish, for examination by the city-parish, all financial books and records, and to make audits of all such contracts, invoices, materials, payrolls, books, records and other financial data relating to the district at the sole expense of the city-parish.
(Ord. No. 9707, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:857. Fire prevention bureau.

(a) Pursuant to the authority granted under R.S. 40:1563, the Metropolitan Council for the City of Baton Rouge and Parish of East Baton

Rouge creates and establishes the District 6 Fire Prevention Bureau, said boundaries and governing authority to be the same as defined herein for the Hooper Road Fire Protection District No. 6.

(b) The fire prevention bureau will be headed by the chief of the Hooper Road Fire Protection District No. 6 or a person designated by the chief of the Hooper Road District No. 6 Fire Protection District. The bureau will be staffed by qualified individuals whose credentials have been reviewed and accepted by the office of the state fire marshal.

(c) It is the intent of the bureau to prescribe regulations consistent with the provisions provided in R.S. 40:1563 as well as regulations consistent with nationally recognized good practice for the safeguarding to a reasonable degree of life and property for the hazards of fire and explosion arising from the storage, handling and use of hazardous substances, materials and devices, and from conditions hazardous to life or property in the use of occupancy of building or premises; wherefore, the most current state adopted version of the fire life safety code will be the minimum code which will be utilized by the bureau.

(d) The term "The Code" in General Provisions make reference to those technical codes adopted by the District 6 Fire Prevention Bureau to establish a reasonable level of fire safety and property protection from the hazards created by fire and explosion, including, but not limited to, the most recent state adopted version of the National Fire Protection Agency Life Safety Code and, as a maintenance code, the State of Louisiana Uniform Fire Prevention Code as defined in R.S. 40:1578.7.

(e) The fire prevention bureau will conduct maintenance inspections on behalf of the fire marshal. Copies of the inspection reports shall be filed with the Office of the state fire marshal. All inspectors shall be required to participate in continuing education through an office of state fire marshal approved training program. The fire marshal shall have the authority to monitor the performance of the fire prevention bureau in the performance of those functions which would otherwise be performed by the office of the state fire marshal.
(Ord. No. 19085, § 1, 12-13-23)

CHAPTER 9. EAST SIDE FIRE PROTECTION DISTRICT NO. 5*

Sec. 5:901. Creation of commission.

Pursuant to the authority granted under article 6, sections 15 and 19 of the Louisiana Constitution of 1974, and pursuant to R.S. 33:1415 and 40:1491—40:1506, there is hereby created and established the Board of Commissioners ("board") for East Side Fire Protection District No. 5 ("district"), which district was created in the Parish of East Baton Rouge by Parish Resolution 13340, adopted June 8, 1977.

(1) The board shall be composed of five (5) members.

(2) Each member of the board shall be appointed by the metropolitan council and shall be a resident property taxpayer of the district.

(3) Two (2) of the initial members of the board shall hold office until one (1) year from the January 1 immediately succeeding their appointment, and three (3) members shall hold office until two (2) years from the January 1 immediately succeeding their appointment, the respective terms to be determined by lot. Thereafter, each member appointed shall serve for a term of two (2) years. Members are eligible for reappointment.

(Ord. No. 9706, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:902. Initial meeting.

The initial meeting of the board shall be held on January 18, 1994, at 7:00 p.m., at 150940 Old Hammond Highway, Baton Rouge, LA 70816. At this initial meeting, the board shall elect its chairman from among its members. The board

*__Editor's note—__Chapter 9, §§ 5:901—5:906, is derived from § 1 of Ord. No. 9706, adopted Sept. 8, 1993. Section 4 declared the ordinance effective Jan. 1, 1994.

shall also elect a secretary and a treasurer, or a combined secretary/treasurer. The persons filling offices of secretary or treasurer, or the combined office of the secretary/treasurer, may be but need not be members of the board.
(Ord. No. 9706, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:903. Compensation of board members.

(a) Members of the board may by resolution authorize themselves to be paid a per diem for attending board meetings and expenses in accordance with R.S. 40:1498.

(b) If a member of the board is elected secretary or treasurer or secretary-treasurer of the board, that member may be compensated additionally for such office.

(c) All payments authorized under this section shall be paid exclusively from funds of the district.
(Ord. No. 9706, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:904. Powers and duties of the board.

(a) Except as to those powers specifically reserved by the metropolitan council herein or otherwise provided by law, the metropolitan council, the board shall have, in accordance with R.S. 40:1499, such powers and shall perform such duties as are customary for governing bodies of taxing districts and political subdivisions. The board shall have the right to levy taxes and to operate and control property acquired by the district.

(b) Prior to the submission to the voters of the district of any question of taxes, services charges, parcel or other charges that may be levied or bonds that may be issued, the metropolitan council shall have the right to approve the amount of such tax, charge, or bond proposed by the board. The metropolitan council further reserves the authority to approve and coordinate the calling of any and all elections for the approval by the electors of the district of any property tax, service charge, parcel or other charge or tax or bond issuance proposed by the board. The district shall pay its pro rata share of the cost of holding any such election.

(c) The board shall adopt rules and procedures and shall fix the time and place of its regular meetings. These rules and procedures shall be published by the board, and a copy shall be provided to the metropolitan council to be kept on file at the council administrator's office.
(Ord. No. 9706, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:905. Budget requirements.

The board shall annually adopt a budget of receipts and expenditures and a budget for a budget capital outlay. A copy of the budget adopted each year shall be filed with the council administrator's office within fifteen (15) days prior to the beginning of its fiscal year.
(Ord. No. 9706, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:906. Audit requirements.

(a) The books and records of the district shall be audited each year by an independent certified public accountant in the same manner and to the same extent as the books and records of the city-parish are audited.

(b) The board shall provide to the city-parish finance department, accounting division, by March of each year, an annual audit by an independent certified public accountant of all books and records of the district prepared at its own cost. This audit shall include comprehensive financial statements, including notes, prepared in accordance with generally accepted governmental accounting standards.

(c) The board shall make available, upon request by the city-parish, for examination by the city-parish, all financial books and records, and to make audits of all such contracts, invoices, materials, payrolls, books, records and other financial data relating to the district at the sole expense of the city-parish.
(Ord. No. 9706, § 1, 9-8-93; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:907. Fire prevention bureau.

(a) Pursuant to the authority granted under R.S. 40:1563, the Metropolitan Council for the City of Baton Rouge and Parish of East Baton Rouge creates and establishes the East Side Fire Prevention Bureau, said boundaries and governing authority to be the same as defined herein for the East Side Fire Protection District No. 5.

(b) The fire prevention bureau will be headed by the chief of the East Side Fire Protection District No. 5 or a person designated by the chief of the East Side Fire Protection District No. 5. The bureau will be staffed by qualified individuals whose credentials have been reviewed and accepted by the office of the state fire marshal.

(c) It is the intent of the bureau to prescribe regulations consistent with the provisions provided in R.S. 40:1563 as well as regulations consistent with nationally recognized good practice for the safeguarding to a reasonable degree of life and property for the hazards of fire and explosion arising from the storage, handling and use of hazardous substances, materials and devices, and from conditions hazardous to life or property in the use of occupancy of building or premises; wherefore, the most current state adopted version of the fire life safety code will be the minimum code which will be utilized by the bureau.

(d) The term "The Code" in General Provisions make reference to those technical codes adopted by the East Side Fire Prevention Bureau to establish a reasonable level of fire safety and property protection from the hazards created by fire and explosion, including, but not limited to, the most recent state adopted version of the National Fire Protection Agency Life Safety Code and, as a maintenance code, the State of Louisiana Uniform Fire Prevention Code as defined in R.S. 40:1578.7.

(e) The fire prevention bureau will conduct maintenance inspections on behalf of the fire marshal. Copies of the inspection reports shall be filed with the office of the state fire marshal. All inspectors shall be required to participate in continuing education through an office of state fire marshal approved training program. The fire marshal shall have the authority to monitor the performance of the fire prevention bureau in the performance of those functions which would otherwise be performed by the office of the state fire marshal.
(Ord. No. 19085, § 1, 12-13-23)

CHAPTER 10. CENTRAL FIRE PROTECTION DISTRICT NO. 4

Sec. 5:1001. Creation of commission.

Pursuant to the authority granted under Article VI, Sections 15 and 19 of the Louisiana Constitution of 1974, and pursuant to R.S. 33:1415 and 40:1391—40:1506 there is hereby created and established the board of commissioners ("board") for Central Fire Protection District No. 4 ("district") which district was created in the Parish of East Baton Rouge by Parish Resolution 12991, adopted December 22, 1976.

(1) The board shall be composed of five (5) members:

a. Two (2) members of the board shall be appointed by the metropolitan council.

b. Two (2) members of the board shall be appointed by the governing authority of the City of Central.

c. One (1) member shall be selected by the other four (4) members and shall serve as chairman of the board.

(2) Each member of the board shall be a resident property taxpayer of the district.

(3) Two (2) of the initial members of the board shall hold office until one (1) year from the January 1 immediately succeeding their appointment and three (3) members shall hold office until two (2) years from the January 1 immediately succeeding their appointment, the respective terms to be determined by lot. Thereafter, each member appointed shall serve for a term of two (2) years. Members are eligible for reappointment.

(Ord. No. 10496, § 1, 10-25-95; Ord. No. 15216, § 1, 11-9-11; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1002. Initial meetings.

The initial meeting of the board shall be held on the second Monday in January 1995 at 7:00 p.m. at 11646 Sullivan Road, Baton Rouge, Louisiana 70816. At this initial meeting, the board shall elect its chairman from among its members. The board shall also elect a secretary and a treasurer, or a combined secretary/treasurer. The persons filling offices of secretary or treasurer, or the combined office of secretary/treasurer may be, but need not be, members of the board.
(Ord. No. 10496, § 1, 10-25-95; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1003. Compensation of board members.

(a) Members of the board may by resolution authorize themselves to be paid a per diem for attending board meetings and expenses in accordance with R.S. 40:1498.

(b) If a member of the board is elected secretary or treasurer or secretary-treasurer of the board, that member may be compensated additionally for such office.

(c) All payments authorized under this section shall be paid exclusively from funds of the district.
(Ord. No. 10496, § 1, 10-25-95; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1004. Powers and duties of the board.

(a) Except as to those powers specifically reserved by the metropolitan council herein or otherwise provided by law the metropolitan council, the board shall have, in accordance with R.S. 40:1499, such powers and shall perform such duties as are customary for governing bodies of taxing districts and political subdivisions. The board shall have the right to levy taxes and to operate and control property acquired by the district.

(b) Prior to the submission to the voters of the district of any question of taxes, services charges, parcel or other charges that may be levied or bonds that may be issued, the metropolitan council shall have the right to approve the amount of such tax, charge, or bond proposed by the board. The metropolitan council further reserves the authority to approve and coordinate the calling of any and all elections for the approval by the electors of the district of any property tax, service charge, parcel or other charge or tax or bond issuance proposed by the board. The costs of holding any such election shall be paid by the district.

(c) The board shall adopt rules and procedures and shall fix the time and place of its regular meetings. These rules and procedures shall be published by the board and a copy shall be provided to the metropolitan council to be kept on file at the council administrator's office.
(Ord. No. 10496, § 1, 10-25-95; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1005. Budget requirements.

The board shall annually adopt a budget of receipts and expenditures and a budget for a budget capital outlay. A copy of the budget adopted each year shall be filed with the council administrator's office.
(Ord. No. 10496, § 1, 10-25-95; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1006. Audit requirements.

(a) The books and records of the district shall be audited each year by an independent certified public accountant in accordance with state law.

(b) The board shall provide to the city-parish finance department, accounting division by June 1 of each year, an annual audit by an independent certified public accountant of all books and records of the district. This audit shall include comprehensive financial statements, including notes, prepared in accordance with generally accepted governmental accounting standards.

(c) The board shall make available, upon request by the city-parish for examination by the city-parish, all financial books and records of the district. The board shall additionally permit the city-parish to audit, examine and make excerpts or transcripts from such financial books and records, and to make audits of all such contracts,

invoices, materials, payrolls, books, records and other financial data relating to the district at the sole expenses of the city-parish.
(Ord. No. 10496, § 1, 10-25-95; ; Ord. No. 15216, § 1, 11-9-11; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1007. Fire prevention bureau.

(a) Pursuant to the authority granted under R.S. 40:1563, the Metropolitan Council for the City of Baton Rouge and Parish of East Baton Rouge creates and establishes the Central Fire Prevention Bureau, said boundaries and governing authority to be the same as defined herein for the Central Fire Protection District.

(b) The fire prevention bureau will be headed by the chief of the Central Fire Protection District or a person designated by the chief of the Central Fire Protection District. The bureau will be staffed by qualified individuals whose credentials have been reviewed and accepted by the office of the state fire marshal.

(c) It is the intent of the bureau to prescribe regulations consistent with the provisions provided in R.S. 40:1563 as well as regulations consistent with nationally recognized good practice for the safeguarding to a reasonable degree of life and property for the hazards of fire and explosion arising from the storage, handling and use of hazardous substances, materials and devices, and from conditions hazardous to life or property in the use of occupancy of building or premises; wherefore, the most current state adopted version of the fire life safety code will be the minimum code which will be utilized by the bureau.

(d) The term "The Code" in General Provisions make reference to those technical codes adopted by the Central Fire Prevention Bureau to establish a reasonable level of fire safety and property protection from the hazards created by fire and explosion, including, but not limited to, the most recent state adopted version of the National Fire Protection Agency Life Safety Code and, as a maintenance code, the State of Louisiana Uniform Fire Prevention Code as defined in R.S. 40:1578.7.

(e) The fire prevention bureau will conduct maintenance inspections on behalf of the fire marshal. Copies of the inspection reports shall be filed with the office of the state fire marshal. All inspectors shall be required to participate in continuing education through an office of state fire marshal approved training program. The fire marshal shall have the authority to monitor the performance of the fire prevention bureau in the performance of those functions which would otherwise be performed by the office of the state fire marshal.
(Ord. No. 19085, § 1, 12-13-23)

CHAPTER 11. CHANEYVILLE FIRE PROTECTION DISTRICT NO. 7*

Sec. 5:1101. Governing body of district.

The governing body of the Chaneyville Fire Protection District No. 7 which was created pursuant to Ordinance No. 31620, adopted on September 11, 1991, shall be the Metropolitan Council of the City of Baton Rouge and Parish of East Baton Rouge.
(Ord. No. 15498, § 2, 5-22-13; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1102. Powers and duties of governing body.

The metropolitan council shall have all of the powers and duties as set out in the state statutes relative to the operation of fire protection districts, and as set out in R.S. 40:1499.
(Ord. No. 15498, § 2, 5-22-13; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1103. Internal rules and procedures of governing body.

The metropolitan council, as governing authority of the Chaneyville Fire Protection District No. 7, shall, from time to time, and as deemed

*__Editor's note—__Ord. No. 15498, §§ 1 and 2, adopted May 22, 2013, amended the Code by repealing former ch. 11, §§ 5:1101—5:1106, and adding a new ch. 11. Former ch. 11 pertained to similar subject matter, and derived from Ord. No. 14022, adopted May 16, 2007.

necessary and appropriate, adopt rules of procedure, compensation, and appoint officers, all as provided by R.S. 40:1491 et seq.
(Ord. No. 15498, § 2, 5-22-13; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1104. Creation, general powers, and duties of advisory board.

The metropolitan council hereby creates a five-member advisory board to assist with the operation and management of the Chaneyville Fire Protection District No. 7. Subject to the general authority of the metropolitan council, the advisory board shall have the following powers and duties:

(1) It shall hire a fire chief who shall be responsible for the daily operations of the fire district.

(2) It shall serve as the appointing authority of the fire district in the event that civil service laws apply to the fire district and its employees.

(3) It shall timely prepare a budget for annual consideration by the metropolitan council.

(4) It shall have the authority to spend funds duly appropriated by the metropolitan council, including the authority to purchase materials and supplies and enter into service and public works contracts in accordance with law.

(5) It may delegate some or all of the powers listed above to a chief executive officer such as a fire chief. Such delegation shall, however, in no way relieve the advisory board of the ultimate responsibility for its duties.

(Ord. No. 15498, § 2, 5-22-13; Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1105. Operation of the advisory board.

The advisory board shall consist of five (5) members who shall be appointed by the metropolitan council. Each member shall be a resident and property taxpayer of the Chaneyville Fire Protection District No. 7. The advisory board shall elect a chairman and adopt rules. Two (2) members of the initial advisory board shall serve for one (1) year terms, the remaining three (3) members shall serve for two-year terms. These initial terms shall be determined by lot. Thereafter all advisory board members shall serve for terms of two (2) years.
(Ord. No. 15498, § 2, 5-22-13; Ord. No. 19085, § 1, 12-13-23)

CHAPTER 12. EAST BATON ROUGE PARISH DISTRICT NO. 1

Sec. 5:1201. Governing body of district.

The governing body of the East Baton Rouge Parish Fire Protection District No. 1 which was created pursuant to Ordinance No. 44853, adopted on June 14, 2006, shall be the Metropolitan Council of the City of Baton Rouge and Parish of East Baton Rouge.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1202. Powers and duties of governing body.

The metropolitan council shall have all of the powers and duties as set out in the state statutes relative to the operation of fire protection districts, and as set out in R.S. 40:1499.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1203. Internal rules and procedures of governing body.

The metropolitan council, as governing authority of the East Baton Rouge Parish Fire Protection District No. 1, shall, from time to time, and as deemed necessary and appropriate, adopt rules of procedure, compensation, and appoint officers, all as provided by R.S. 40:1491 et seq.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1204. Creation, general powers, and duties of advisory board.

The metropolitan council hereby creates a five-member advisory board to assist with the operation and management of the East Baton Rouge Parish Fire Protection District No. 1.

Subject to the general authority of the metropolitan council, the advisory board shall have the following powers and duties:

(1) It shall hire a fire chief who shall be responsible for the daily operations of the fire district.

(2) It shall serve as the appointing authority of the fire district in the event that civil service laws apply to the fire district and its employees.

(3) It shall timely prepare a budget for annual consideration by the metropolitan council.

(4) It shall have the authority to spend funds duly appropriated by the metropolitan council, including the authority to purchase materials and supplies and enter into service and public works contracts in accordance with law.

(5) It may delegate some or all of the powers listed above to a chief executive officer such as a fire chief. Such delegation shall, however, in no way relieve the advisory board of the ultimate responsibility for its duties.

(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1205. Operation of the advisory board.

The advisory board shall consist of five members who shall be appointed by the metropolitan council. Each member shall be a resident and property taxpayer of the East Baton Rouge Parish Fire Protection District No. 1. The advisory board shall elect a chairman and adopt rules. Two (2) members of the initial advisory board shall serve for one (1) year terms, the remaining three (3) members shall serve for two-year terms. These initial terms shall be determined by lot. Thereafter all advisory board members shall serve for terms of two (2) years.

(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1206. Fire prevention bureau.

(a) Pursuant to the authority granted under R.S. 40:1563, the metropolitan council for the City of Baton Rouge and Parish of East Baton Rouge creates and establishes the District 1 Fire Prevention Bureau, said boundaries and governing authority to be the same as defined herein for the East Baton Rouge Parish Fire Protection District No. 1.

(b) The Fire Prevention Bureau will be headed by the chief of the East Baton Rouge Parish Fire Protection District No. 1 or a person designated by the chief of the East Baton Rouge Parish Fire Protection District No. 1. The bureau will be staffed by qualified individuals whose credentials have been reviewed and accepted by the office of the state fire marshal.

(c) It is the intent of the bureau to prescribe regulations consistent with the provisions provided in R.S. 40:1563 as well as regulations consistent with nationally recognized good practice for the safeguarding to a reasonable degree of life and property for the hazards of fire and explosion arising from the storage, handling and use of hazardous substances, materials and devices, and from conditions hazardous to life or property in the use of occupancy of building or premises; wherefore, the most current state adopted version of the fire life safety code will be the minimum code which will be utilized by the bureau.

(d) The term "The Code" in General Provisions make reference to those technical codes adopted by the District 1 Fire Prevention Bureau to establish a reasonable level of fire safety and property protection from the hazards created by fire and explosion, including, but not limited to, the most recent state adopted version of the National Fire Protection Agency Life Safety Code and, as a maintenance code, the State of Louisiana Uniform Fire Prevention Code as defined in R.S. 40:1578.7.

(e) The fire prevention bureau will conduct maintenance inspections on behalf of the fire marshal. Copies of the inspection reports shall be filed with the office of the state fire marshal. All inspectors shall be required to participate in continuing education through an office of state fire marshal approved training program. The fire marshal shall have the authority to monitor the performance of the fire prevention bureau in

the performance of those functions which would otherwise be performed by the office of the state fire marshal.
(Ord. No. 19085, § 1, 12-13-23)

CHAPTER 13. BROWNSFIELD DISTRICT 3

Sec. 5:1301. Governing body of district.

The governing body of the Brownsfield Fire Protection District No. 3 which was created pursuant to City Resolution 11292, adopted July 24, 1974, and Parish Resolution 18177, adopted on October 28, 1981, shall be the Metropolitan Council of the City of Baton Rouge and Parish of East Baton Rouge.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1302. Powers and duties of governing body.

The metropolitan council shall have all of the powers and duties as set out in the state statutes relative to the operation of fire protection districts, and as set out in R.S. 40:1499.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1303. Internal rules and procedures of governing body.

The metropolitan council, as governing authority of the Brownsfield Fire Protection District No. 3, shall, from time to time, and as deemed necessary and appropriate, adopt rules of procedure, compensation, and appoint officers, all as provided by R.S. 40:1491 et seq.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1304. Creation, general powers, and duties of advisory board.

The metropolitan council hereby creates a five-member advisory board to assist with the operation and management of the East Baton Rouge Parish Fire Protection District No. 1. Subject to the general authority of the metropolitan council, the advisory board shall have the following powers and duties:

(1) It shall hire a fire chief who shall be responsible for the daily operations of the fire district.

(2) It shall serve as the appointing authority of the fire district in the event that civil service laws apply to the fire district and its employees.

(3) It shall timely prepare a budget for annual consideration by the metropolitan council.

(4) It shall have the authority to spend funds duly appropriated by the metropolitan council, including the authority to purchase materials and supplies and enter into service and public works contracts in accordance with law.

(5) It may delegate some or all of the powers listed above to a chief executive officer such as a fire chief. Such delegation shall, however, in no way relieve the advisory board of the ultimate responsibility for its duties.

(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1305. Operation of the advisory board.

The advisory board shall consist of five (5) members who shall be appointed by the metropolitan council. Each member shall be a resident and property taxpayer of the Brownsfield Fire Protection District No. 3. The advisory board shall elect a chairman and adopt rules. Two (2) members of the initial advisory board shall serve for one (1) year terms, the remaining three (3) members shall serve for two-year terms. These initial terms shall be determined by lot. Thereafter all advisory board members shall serve for terms of two (2) years.
(Ord. No. 19085, § 1, 12-13-23)

CHAPTER 14. PRIDE DISTRICT 8

Sec. 5:1401. Governing body of district.

The governing body of the Pride Fire Protection District No. 8 which was created pursuant to Parish Resolution No. 19637, adopted on November 24, 1982, shall be the Metropolitan Council of the City of Baton Rouge and Parish of East Baton Rouge.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1402. Powers and duties of governing body.

The metropolitan council shall have all of the powers and duties as set out in the state statutes relative to the operation of fire protection districts, and as set out in R.S. 40:1499.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1403. Internal rules and procedures of governing body.

The metropolitan council, as governing authority of the Pride Fire Protection District No. 8, shall, from time to time, and as deemed necessary and appropriate, adopt rules of procedure, compensation, and appoint officers, all as provided by R.S. 40:1491 et seq.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1404. Creation, general powers, and duties of advisory board.

The metropolitan council hereby creates a five-member advisory board to assist with the operation and management of the Pride Fire Protection District No. 8. Subject to the general authority of the metropolitan council, the advisory board shall have the following powers and duties:

(1) It shall hire a fire chief who shall be responsible for the daily operations of the fire district.

(2) It shall serve as the appointing authority of the fire district in the event that civil service laws apply to the fire district and its employees.

(3) It shall timely prepare a budget for annual consideration by the metropolitan council.

(4) It shall have the authority to spend funds duly appropriated by the metropolitan council, including the authority to purchase materials and supplies and enter into service and public works contracts in accordance with law.

(5) It may delegate some or all of the powers listed above to a chief executive officer such as a fire chief. Such delegation shall, however, in no way relieve the advisory board of the ultimate responsibility for its duties.

(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1405. Operation of the advisory board.

The advisory board shall consist of five (5) members who shall be appointed by the metropolitan council. Each member shall be a resident and property taxpayer of the Pride Fire Protection District No. 8. The advisory board shall elect a chairman and adopt rules. Two (2) members of the initial advisory board shall serve for one (1) year terms, the remaining three (3) members shall serve for two-year terms. These initial terms shall be determined by lot. Thereafter all advisory board members shall serve for terms of two (2) years.
(Ord. No. 19085, § 1, 12-13-23)

CHAPTER 15. ALSEN/ST. IRMA LEE DISTRICT 9

Sec. 5:1501. Governing body of district.

The governing body of the Alsen-St. Irma Lee Fire Protection District No. 9 which was created pursuant to Resolution Number 26940, adopted December 9, 1987, and Resolution Number 26997, dated January 13, 1988, and Resolution Number 31621, dated September 11, 1991, shall be the Metropolitan Council of the City of Baton Rouge and Parish of East Baton Rouge.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1502. Powers and duties of governing body.

The metropolitan council shall have all of the powers and duties as set out in the state statutes relative to the operation of fire protection districts, and as set out in R.S. 40:1499.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1503. Internal rules and procedures of governing body.

The metropolitan council, as governing authority of the Alsen-St. Irma Lee Fire Protection District No. 9, shall, from time to time, and as deemed necessary and appropriate, adopt rules of procedure, compensation, and appoint officers, all as provided by R.S. 40:1491 et seq.
(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1504. Creation, general powers, and duties of advisory board.

The metropolitan council hereby creates a five-member advisory board to assist with the operation and management of the Alsen-St. Irma Lee Fire Protection District No. 9. Subject to the general authority of the Metropolitan Council, the advisory board shall have the following powers and duties:

(1) It shall hire a fire chief who shall be responsible for the daily operations of the fire district.

(2) It shall serve as the appointing authority of the fire district in the event that civil service laws apply to the fire district and its employees.

(3) It shall timely prepare a budget for annual consideration by the metropolitan council.

(4) It shall have the authority to spend funds duly appropriated by the metropolitan council, including the authority to purchase materials and supplies and enter into service and public works contracts in accordance with law.

(5) It may delegate some or all of the powers listed above to a chief executive officer such as a fire chief. Such delegation shall, however, in no way relieve the advisory board of the ultimate responsibility for its duties.

(Ord. No. 19085, § 1, 12-13-23)

Sec. 5:1505. Operation of the advisory board.

The advisory board shall consist of five (5) members who shall be appointed by the metropolitan council. Each member shall be a resident and property taxpayer of the Alsen-St. Irma Lee Fire Protection District No. 9. The advisory board shall elect a chairman and adopt rules. Two (2) members of the initial advisory board shall serve for one (1) year terms, the remaining three (3) members shall serve for two-year terms. These initial terms shall be determined by lot. Thereafter all advisory board members shall serve for terms of two (2) years.
(Ord. No. 19085, § 1, 12-13-23)

Title 6

PUBLIC HEALTH*

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CHAPTER 1. GENERAL

PART I. ORGANIZATION OF HEALTH UNIT*

Sec. 6:1. Organization.

The health unit is organized in accordance with the resolution authorizing a contract with the department of health of the state adopted on May 29, 1941.
(City Code 1951, Title 6, § 1; Parish Code 1962, Title 6, § 1)

PART II. MISCELLANEOUS REGULATIONS

Sec. 6:50. Spitting.

(a) It shall be unlawful for any person to spit or expectorate on the sidewalks, or on the floors of public halls or markets or in theaters and other places of amusement.

(b) Any person violating the provisions of this section shall, upon conviction, be subject to a fine of not more than fifteen dollars ($15.00), or imprisonment for not more than ten (10) days, or both, at the discretion of the court.
(City Code 1951, Title 6, §§ 50, 51)

Sec. 6:51. Reserved.

Editor's note—Section 6:51, prohibiting the deposit of fruit peelings on city-parish property, derived from City Code 1951, title 6, §§ 52, 53, was repealed by § 9 of Ord. No. 9340, adopted Sept. 25, 1991. See ch. 4, pt. III of this title, § 6:426 et seq.

***Cross references—**Municipal and parish organization, title 1; commissions and departments generally, § 1:50 et seq.

Sec. 6:52. Screening required on foodstuff for sale. (City)

(a) It shall be unlawful for any person to sell or offer for sale, in the city any fruit, fish, oysters, vegetables, pies, cakes, candies, popcorn or any other foodstuffs ready for consumption unless the same shall have been kept under screened covers or in a completely screened room or place free from flies or other insects.

(b) Any person violating any of the provisions of this section shall, upon conviction, be subject to a fine of not less than ten dollars ($10.00) nor more than twenty-five dollars ($25.00), or imprisoned for not more than twenty (20) days, or both, at the discretion of the court.
(City Code 1951, Title 6, §§ 54, 55)

Sec. 6:53. Pit privies.

(a) Where under any ordinance or regulation of the city-parish, pit privies or pit toilets are allowed for use by the occupants of any building, place of business, residence, apartment, rooming house, hotel, motel, house trailer or any other place in which people live, reside or congregate, all such pit privies or pit toilets shall be constructed, maintained and operated in accordance with the provisions of Chapter 10 (Sewerage and Waste Disposal) of the Sanitary Code for the State of Louisiana, as amended, and including any future amendments thereto, prepared and promulgated by the state board of health; and the whole of such chapter, except such portions as are deleted, modified or amended by other provisions of this section or other ordinances of the city-parish, is hereby adopted by the city-parish and incorporated as fully as though set out at length herein; and the council administrator is directed to maintain not less than three (3) copies of such Chapter 10 on file in his office.

(b) Any person who violates the provisions of this section shall, upon conviction thereof, be fined not more than two hundred dollars ($200.00) or imprisoned for not more than twenty (20) days, or both, at the discretion of the court.
(City Code 1951, Title 6, §§ 56, 57; Parish Code 1962, Title 6, § 56)

Sec. 6:54. Fees for autopsies performed under supervision of coroner.

(a) The council hereby fixes the fee to be paid for the performance of autopsies by or under the supervision of the coroner in an amount not to exceed fifty dollars ($50.00) for each such autopsy.

(b) In addition to the fee hereinabove prescribed, the director of finance is authorized to approve and pay invoices submitted by the coroner for the performance of additional laboratory procedures involving spinal fluid, blood and microscopic tissue examinations, where such services are certified to be necessary or unavoidable by the parish coroner. The additional fee to be allowed for such services shall not exceed the sum of fifty dollars ($50.00) and shall be payable out of funds allocated in the budget of the coroner for such purposes.
(Parish Code 1962, Title 6, § 58)

Sec. 6:55. Sales of seafood from vehicles or temporary buildings upon private property regulated.

(a) It shall be unlawful for any person to sell seafood of any kind from any truck, automobile, motor vehicle, mobile unit, cart, stand, table, temporary building, portable or movable container, whether closed or enclosed, or operating on a permanent, temporary or seasonal basis, upon any private property without:

(1) Designating on the occupational license application the fixed location of the private property or properties from which such sales are to be made;

(2) Receiving approval from the health unit;

(3) Obtaining all applicable licenses and permits required by the state and/or the city-parish, and posting the same in a conspicuous place, in full view of the public;

(4) Using a thermometer and maintaining the temperature of seafood at forty-five (45) degrees Fahrenheit or below;

(5) If selling prefrozen shrimp, displaying a placard stating such information;

(6) Maintaining a permanent record for proof of purchase for auditing purposes for the city-parish and the state.

(b) Any person violating the provisions of this section shall, upon conviction thereof, be fined not more than two hundred dollars ($200.00) or imprisoned for not more than sixty (60) days, or both, at the discretion of the court.
(City Code 1951, Title 6, § 59; Parish Code 1962, Title 6, § 59)

Sec. 6:56. Soft drinks.

It shall be required that all proprietors of commercial or noncommercial ventures primarily engaged in the selling of food and drink shall provide for some type of sugar-free soft drink; in lieu of providing a sugar-free soft drink, the proprietor may choose to substitute water, in order to provide those persons with diabetes access to sugar-free substitutes in commercial and noncommercial establishments.
(City Code 1951, Title 6, § 58)

CHAPTER 2. CONTAGIOUS DISEASES

PART I. GENERAL

Sec. 6:100. Definition.

The phrase and words "infectious, contagious or pestilential" diseases, whenever and wherever used in this chapter, shall be held and construed to include and mean all such sickness, affection, diseases, or phases thereof, of an infectious, contagious or pestilential nature, such as diphtheria, membranous croup, so-called measles, scarlet fever or typhus fever, typhoid fever, yellow fever and cholera, and also including any other diseases of an infectious, contagious or pestilential nature or character; and also any diseases publicly declared by the health unit as being dangerous to the public health and of a contagious, infectious or pestilential nature or character.
(City Code 1951, Title 6, § 100)

Sec. 6:101. Duty of physicians.

It shall be the duty of each and every practicing physician in the city-parish to report in writing to the health officer the death of any of his patients who shall have died in the city-parish of contagious, infectious or pestilential disease, within twenty-four (24) hours thereafter, and to state in such report the specific name and type of such disease.
(City Code 1951, Title 6, § 101)

Sec. 6:102. Duty of hotel and boardinghouse keepers.

Every keeper of any boardinghouse or lodging house, and every hotel keeper, shall, within twenty-four (24) hours, report in writing to the health officer the same particulars required of any physician in section 6:101 concerning any inmates of the aforesaid houses or hotels attacked with any contagious, infectious or pestilential disease.
(City Code 1951, Title 6, § 102)

Sec. 6:103. Duty of heads of public and private institutions.

The commissioners, managers, principal or other proper head officer of each and every public and private institution in the city-parish shall report in writing, or cause such report to be made to the health officer, of the existence of any contagious, infectious or pestilential disease at such institution.
(City Code 1951, Title 6, § 103)

Sec. 6:104. Duty of masters of vessels.

The master, chief officer and consignee, or any one of them, of every vessel within one-half mile of any wharf or building of the city-parish shall report to the health officer, or cause to be reported in writing, the existence of any contagious, infectious or pestilential disease on such vessel.
(City Code 1951, Title 6, § 104)

Sec. 6:105. Duty of public.

It shall be the duty of every person knowing of any individual in the city-parish sick of any contagious, infectious or pestilential disease, and the duty of every physician hearing of any such sick person, who shall have reason to think requires the attention of the health unit, to at once report such fact to the health officer, and no person shall interfere with or obstruct the entrance, inspection and examination by any representative of

the board of health in any dwelling where there has been reported an infectious, contagious or pestilential disease.
(City Code 1951, Title 6, § 105)

Sec. 6:106. Duty of parents or guardians.

No parents, tutor or custodian of any child or minor having power and authority to prevent shall permit any such child or minor to be unnecessarily or needlessly exposed to the taking of any infectious disease.
(City Code 1951, Title 6, § 106)

Sec. 6:107. Visiting prohibited.

No householder, whether the owner of the premises or any part thereof, or possessor or occupant thereof by lease or otherwise, shall allow or permit contrary to the order of the health officer, any person to visit any person who may be sick or confined on the premises with an infectious, contagious or pestilential disease, saving and excepting such person as may be actually and absolutely necessary to the proper care and attention of the sick person.
(City Code 1951, Title 6, § 107)

Sec. 6:108. Care of patients in private houses.

Every householder occupying premises or any portion thereof whether as owner and possessor, or occupant under lease, or otherwise, shall obey and conform to all instructions and orders of the health officer relative to the disposition of the clothing, linen, expectoration or defecation of persons confined on the premises with infectious, contagious or pestilential disease, as well as the orders relating to the treatment of the sick room, or the sick room utensils, in which the person may have been confined with contagious, infectious or pestilential diseases, and it shall be the duty of the attending physician in each and every case to notify the householder or person being in charge, of the rules and regulations.
(City Code 1951, Title 6, § 108)

Sec. 6:109. Children to be sent home.

Every principal, teacher or assistant teacher of any and every private and public school, on observing that any child, children or pupils of the schools present symptoms of any contagious, infectious or pestilential disease, shall send the child or pupils to the child or pupils' domicile and residence, with instructions to the parent or parents, tutor, guardian or other person in charge of the pupil, child or children to have the pupil or child, pupils or children, examined by the family physician and the instructions shall be in writing and in no case shall the child or children, pupil or pupils, so sent home be allowed to attend the school thereafter until there should be produced and filed with the principal, teacher or assistant teacher a certificate from a licensed physician that the child or children, pupil or pupils, are not suffering from any contagious, infectious or pestilential disease.
(City Code 1951, Title 6, § 109)

Sec. 6:110. Children not to attend school.

No principal, teacher or assistant teacher shall permit or allow any child or pupil to attend school from any house in which contagious, infectious or pestilential diseases may prevail at the time or may have prevailed at the time, or may have prevailed antecedent thereto until such time as all danger of infection shall have passed.
(City Code 1951, Title 6, § 110)

Sec. 6:111. Dead bodies.

No person shall retain, expose or allow to be retained or exposed, the dead body of any human being to the peril or prejudice of the life or health of any person.
(City Code 1951, Title 6, § 111)

Sec. 6:112. Penalty.

Any person violating any of the provisions of this part shall, on conviction, be subject to a fine of not more than one hundred dollars ($100.00), or imprisoned for not more than thirty (30) days, or both, at the discretion of the court.
(City Code 1951, Title 6, § 113)

PART II. PROCLAMATION OF QUARANTINE

Sec. 6:200. Administration.

Should the council, at any time, declare it wise and prudent to proclaim and enforce quarantine

regulations or restrictions against any disease or against any section or locality reported to be infected with any contagious or infectious disease, it shall be the duty of the chief of police, sheriff and the health officer through their respective departments to maintain and enforce the prescribed rules and regulations, provided in part I of this chapter, and such other rules as may be promulgated.
(City Code 1951, Title 6, § 200)

Sec. 6:201. Public gatherings prohibited.

During the time the council is enforcing the quarantine regulations and until such a time as the quarantine shall be raised, parades, public gatherings, mass meetings and public assemblies of persons shall be deemed nuisances and the court shall be authorized to punish by fine or imprisonment every person taking part in the parade, gathering, mass meeting or assembly for committing such nuisance.
(City Code 1951, Title 6, § 201)

Sec. 6:202. Powers of board of health.

The board of health, when appointed pursuant to the provisions of Act 169 of 1899, as amended, shall have the power, provided they do not conflict with the actions of the council, to pass ordinances for the exclusion and repression of contagious and infectious diseases; for defining and abating nuisance dangerous to the public health; for establishing penalties by fines, and such other duties as may be prescribed by the general laws of the state applicable to municipal boards of health.
(City Code 1951, Title 6, § 202)

Sec. 6:203. Persons entering city.

During the enforcement of quarantine regulations under the authority of either the council or the board of health as provided above, the chief of police and sheriff are empowered to arrest any and all persons forcing their entrance into the city-parish, and to detain all such persons in such place as may be designated by the health officer, or the board of health.
(City Code 1951, Title 6, § 203)

Sec. 6:204. Penalty.

Any person violating any of the provisions of this part shall, on conviction, be subject to a fine of not more than one hundred dollars ($100.00), or imprisoned for not more than thirty (30) days, or both, at the discretion of the court.
(City Code 1951, Title 6, § 204)

CHAPTER 3. MILK AND MILK PRODUCTS*

Sec. 6:301. Adoption of Chapter 5 of the Sanitary Code for the State of Louisiana.

For the purpose of establishing rules and regulations governing milk and milk products, Chapter 5 (Milk and Milk Products Regulations) of the Sanitary Code for the State of Louisiana, as amended, and including any future amendments thereto, prepared and promulgated by the state board of health, and the whole of such chapter of the Sanitary Code for the State of Louisiana, except such portions as are deleted, modified or amended by other provisions of this chapter, are hereby adopted by the city-parish and incorporated as fully as though set out at length herein and from and after the effective date of this chapter the provisions thereof shall be in effect in the city-parish and the council administrator and the health officer are each directed to maintain not less than three (3) copies of such Chapter 5 on file in their respective offices.
(City Code 1951, Title 6, § 301; Parish Code 1962, Title 6, § 301)

Sec. 6:302. Milk and milk products produced and pasteurized beyond the limits of the police jurisdiction of the city-parish.

Any person operating a milk plant or milk products company who desires to sell, or offer for sale in the city-parish any fluid milk or milk products which are produced and pasteurized beyond the limits of the police jurisdiction of the city-parish

*State law reference—Milk, milk products and substitutes, R.S. 40:881 et seq.

shall obtain a permit from the health officer. No permit shall be issued to any applicant until the following standards are met:

(1) The current United States Public Health Service survey rating of the applicant's pasteurized milk shall be as high as or higher than that of the city-parish as determined by the state milk survey officer, provided that a pasteurized milk score of 94.00 shall be deemed sufficient.

(2) The applicant shall produce a letter from the health officer having local jurisdiction stating that the applicant meets the minimum requirements of the milk regulations for the state together with the complete laboratory results of the last four (4) samples of each of the products to be sold.

(3) The applicant shall furnish the health office a sample of the labels for each size of each product to be sold. All such labels shall meet labeling requirements as set forth in the milk regulations for the state.

(4) In addition to the above requirement the health officer, in order to be assured that these standards are met, may cause an inspection to be made of the applicant's plant and a representative sample of his producers. Such additional inspections as may be necessary for the proper enforcement of the provisions of this chapter may be ordered by the health officer.

(5) For each inspection under the provisions of this section the applicant shall pay an inspection fee in the amount of thirty-five dollars ($35.00), which shall include inspection of his plant and those of his producers; the applicant shall also pay all travel expenses of the inspector at the rate prescribed by ordinances and resolutions then in effect governing travel expenses of persons performing travel on public business on behalf of the city-parish. All such fees and travel expenses shall be collected by the health officer prior to issuing any permit and shall be transmitted to the director of finance. Failure to pay the fee and travel expenses for an additional inspection shall result in automatic suspension of the permit until such sum is paid.

(6) Upon issuance of a permit to an applicant the health officer shall take samples of each of the products being sold or offered for sale at the rate of not less than one each month. The grading of each product shall be in accordance with the grading of milk and milk products contained in the milk regulations for the state.

(7) The provisions of subsections (1), (2), (3), (4) and (5) shall not apply to sterile milk, sterile milk products, hermetically sealed milk products, and manufactured milk products.

(City Code 1951, Title 6, § 302; Parish Code 1962, Title 6, § 302)

Sec. 6:303. Enforcement interpretation.

This chapter shall be enforced by the health officer in accordance with the interpretations thereof contained in the 1965 edition of the United States Public Health Service Milk Code, a certified copy of which shall be on file in the office of the council administrator and the office of the health officer.

(City Code 1951, Title 6, § 303; Parish Code 1962, Title 6, § 303)

Sec. 6:304. Suspension and revocation of permits; notice and hearing.

Any permit issued under the provisions of this chapter may be suspended or revoked by the health officer, if, after written notice to the permit holder and a hearing before the health officer he finds that the permit holder has violated any of the provisions of this chapter or that he has failed to comply with any of the standards for milk and milk products herein prescribed. The notice shall set forth the alleged violation or failure to comply and shall be addressed to the permit holder at the address shown on the application for the permit. Any permit issued hereunder may, however, be suspended immediately and without notice to the permit holder if the health officer finds that there exists

an immediate and pressing danger to the public health; such suspension shall remain in effect only until a hearing is held by the health officer as herein provided.
(City Code 1951, Title 6, § 304; Parish Code 1962, Title 6, § 304)

Sec. 6:305. Failure to obtain permit.

Engaging in the activities herein regulated without first obtaining a permit or continuing such activities after a permit has been suspended or revoked shall constitute a violation of this chapter.
(City Code 1951, Title 6, § 305; Parish Code 1962, Title 6, § 305)

Sec. 6:306. Penalty.

Any person violating any provision of this chapter shall be fined not more than two hundred dollars ($200.00) or imprisoned for not more than sixty (60) days or both at the discretion of the court; and a separate offense shall be deemed committed on each day during or on which a violation occurs or continues.
(City Code 1951, Title 6, § 306)

CHAPTER 4. DISPOSAL OF GARBAGE AND OTHER WASTE MATTER*

PART I. COLLECTION AND DISPOSAL OF GARBAGE AND OTHER WASTE MATTER (CITY ONLY)

Sec. 6:375. Definitions. (City)

The following words and phrases, when used in this part, shall have the meanings respectively ascribed to them:

Central Business District is the urban area that has a diversity of uses not typically found in other areas of the parish, including retail, governmental, office, cultural, recreational, entertainment, and residential uses, whose boundaries are the Mississippi River on the west, North Boulevard on the south, North Street on the north and Interstate 110 on the east.

Collector is any person who has obtained a license and/or permit pursuant to this chapter.

Commercial establishment is any person who is engaged in any type or kind of trade or business (whether such business is for profit or is charitable or public in nature), except that this definition shall not include any public or parochial schools or individual residence, whether under lease or not, or apartments. Business schools will not be included within the term "public or parochial schools."

Director of the department of public works or *director* is the director of the department of public works of the city-parish.

Garbage shall mean and include putrescible animal and vegetable waste resulting from the handling, preparation, cooking and serving of food, including tin cans, broken or plastic bottles, glassware, which may be used in a household or restaurant.

Neutral ground shall mean that area between the property line and the curb or ditch, as the case may be.

Occupant shall mean any person who lives in, resides in, conducts or operates a business in, or uses any buildings, house, structure or grounds.

Owner shall mean and include the record owner or owners of any buildings, house, structure or grounds.

Refuse control board shall consist of the director of public works, treasurer, chief of police, director of the health unit, and city prosecutor.

Trash shall mean and include nonputrescible solid waste such as wastepaper, debris, tin cans, aluminum cans, bottles, glassware, ordure, excrement, cartons, boxes, etc., not included under the definitions of "garbage," and shall also include cut grass, weeds, vines, shrubbery trimmings, and trees or limbs, provided that industrial

*__Cross references__—Dumping of materials in Capitol Lake prohibited, § 3:53; putting glass, etc., on highway prohibited, § 11:274; litter from vehicles, § 11:280; littering, § 13:1001.

State law reference—Authority to operate disposal system, R.S. 33:4162.

wastes, building debris from erection or repairing of any buildings, dead fowls and animals and scrap metal shall not be included.

Should a contract or contracts be entered into between the city and parish with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the definitions of all items alluded to in that contract shall take precedence over the definitions set out above.
(City Code 1951, Title 6, § 401; Ord. No. 8074, § 1, 12-11-85; Ord. No. 8572, § 1, 12-9-87); Ord. No. 16912, § 1, 10-24-18)

Sec. 6:376. Garbage cans and waste receptacles required. (City)

(a) It shall be unlawful and a violation of this part for any person to scatter, throw, deposit, drop, allow, or to permit or allow to be scattered, spilled, thrown, deposited or dropped, any garbage, trash and other waste material, dead animals or fowls, industrial waste or refuse from erection, repairing or remodeling buildings, or any other substance which may be unsightly, offensive to smell or injurious to health in any private yard, lot, room or building, or on any sidewalk, street, alley, wharf, levee, public parkway, public right-of-way, or any other public place, or in any gutter or drain within the city, other than in the type of container, in the manner, and at the places specified in sections 6:381 and 6:382.

(b) The provisions of this section shall not apply to use of the sidewalks or the sidewalk and a portion of the street adjacent to building construction when in compliance with a permit from the building inspector covering materials, equipment, barricades, etc., necessary in connection with street, alley, or utility construction and maintenance.
(City Code 1951, Title 6, § 402)

Sec. 6:376.1. Dumpsters.

For purposes of this section, a "dumpster" is defined as a container for storing trash and debris that can be moved and emptied only by attachment to a truck designed for that purpose.

It shall be unlawful to maintain a dumpster on the premises of a residence located in an area zoned A-1 single family residential for more than forty-five (45) days.

A household with a current renovation or construction permit is permitted to maintain a dumpster on the premises of the residence for the duration of the permit.

Any person who violates this section shall pay a penalty of one hundred twenty-five dollars ($125.00) for each day of violation. Enforcement of this section shall be pursuant to the provisions of Title 1, section 1:609, et seq. However, upon good cause shown, the administrative hearing officer may grant an extension beyond forty-five (45) days. The extension may be granted either at or prior to a hearing.
(Ord. No. 15339, § 1, 6-27-12)

Sec. 6:377. Refuse bags, standards approved and ratified. (City)

The recommendations of the waste disposal committee adopted January 11, 1971, as set forth in the National Sanitation Foundation Standard No. 31 and 32 relating to refuse bags, copies of which are on file in the office of the council administrator, are hereby approved and ratified as such standards now exist or may be hereafter amended.
(City Code 1951, Title 6, § 402.1)

Sec. 6:378. Transportation of garbage, trash or debris. (City)

Any person transporting, hauling, or permitting to be transported or hauled any garbage, trash, or other debris as set forth above, to the place of dumping shall take reasonable precautions to prevent the scattering or spilling of the garbage, trash or other debris from the conveyance upon the public streets of the city and shall, for this purpose, when using an open conveyance cause the load to be secured with a tarpaulin, canvas, or other covering. Vehicles used for this purpose shall be equipped with tail gates to prevent spilling of debris during transit. This section shall not apply to trucks properly loaded with heavy waste or debris too heavy to blow off.
(City Code 1951, Title 6, § 403)

Sec. 6:379. Owners' and occupants' responsibility to keep premises clean. (City)

(a) All owners and occupants of any building, house, structure or grounds shall be held responsible for the cleanliness of their premises and of rights-of-way, alleys and neutral grounds immediately adjacent to their premises and all business owners and managers of stores, restaurants, markets or stands shall be responsible for keeping sidewalks in front of the building occupied by them in a clean condition. It is hereby declared unlawful to sweep paper, trash, litter, dirt, or other material into the streets, sidewalks, or other public ways adjacent to such stores, restaurants, etc.

(b) Any unauthorized accumulation of garbage or trash, as defined in section 6:375, or litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris on rights-of-way, neutral grounds, or alleys immediately adjacent to their premises is hereby declared to be a nuisance and is prohibited. The term "unauthorized accumulation" shall mean the accumulation, scattering, spilling or other handling of garbage or trash, as defined in section 6:375, or litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris on rights-of-way, neutral grounds, or alleys in a manner and under conditions that is contrary and in violation of the terms and conditions of the private contract for the collection and disposal of garbage, trash, bulky waste and litter.

(c) If the owner or owners of a lot or lots fail to remove such unauthorized accumulation of garbage or trash, as defined in section 6:375, or litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris on rights-of-way, neutral grounds, or alleys immediately adjacent to their premises within seventy-two (72) hours after being notified by the department of public works, the department of public works shall have the authority to have such unauthorized accumulation of garbage, trash, litter, refuse or rubbish removed at the expense of the property owner or owners.

(d) The owner or owners shall be notified by the department of public works by affixing a copy of the notice of violation(s) in a prominent location on the property upon which violation(s) are alleged or, if safe access to the property is not reasonably practicable, on some prominent fixture on the adjacent public right-of-way as near as possible to the property. It shall be unlawful for any person other than an agent of the city/parish to remove a notice posted on the public right-of-way.

(e) If there is no compliance with the notice provided for in this section within seventy-two (72) hours, the director of the department of public works, shall then cause the necessary work to be done to effect compliance with the provisions of this section at the owner's expense; and the director of the department of public works may have such work done either with the personnel and equipment of his department, or by means of a contract with a third person.

(f) Upon completion of such work, the director of the department of public works shall send a bill to the property owner itemizing all expenses incurred in the removal of the violation. If the bill is not paid within ninety (90) days from the date of removal of the violation by the city/parish, the director of development shall send the unpaid bill to the collections department in the office of the parish attorney.
(City Code 1951, Title 6, § 404; Ord. No. 19000, § 1, 10-11-23)

Sec. 6:380. Responsibility of department of public works in collection of garbage and trash. (City)

The department of public works is hereby authorized and directed to collect and dispose of the garbage and trash at all residential houses and other premises in the city except those places designated as commercial establishments as defined herein, and to collect and dispose of garbage at all commercial establishments; however, nothing herein shall prevent any individual or commercial establishment from contracting with any collector if he so desires to have their garbage or trash picked up.

Nothing herein shall prevent the city and parish from entering into a contract or contracts with a private contractor upon such terms and conditions as the city-parish shall elect for the collection and disposal of garbage, trash, bulky waste and litter upon approval of the mayor-president and metropolitan council.
(City Code 1951, Title 6, § 405; Ord. No. 8074, § 2, 12-11-85)

Sec. 6:381. Requirements of owner or occupants. (City)

(a) Every owner, and occupant, of any building, house, structure or grounds within the corporate limits of the city, where garbage, as defined in section 6:375, accumulates, may have such garbage collected and disposed of only if such garbage is:

(1) Placed in a container therefor of not less than five (5) nor more than thirty (30) gallons' capacity, constructed of some substantial metal or plastic material, with a tight-fitting lid or cover which will exclude rain or flies, and with handles sufficiently strong for workmen to empty conveniently. No container, with contents, shall weigh more than seventy-five (75) pounds. The can or container shall be maintained in as sanitary condition as possible, in view of the use to which same is put, and shall be thoroughly cleansed as needed by washing, scalding or otherwise. All commercial establishments, institutions and schools which need more than the equivalent of two (2), thirty-gallon containers for disposal of garbage and all apartment buildings or groups of buildings containing eight (8) or more units may have such garbage collected and disposed of only if it is placed in containers of one yard capacity which are mounted on wheels and designed to be dumped mechanically by attachments on the rear of garbage trucks. In lieu of garbage containers as herein provided, the use of commercial type disposable bags is permissible, provided such bags meet specifications approved by the waste disposal committee.

(2) The lids or covers of all cans or containers shall at all times be kept secure and fastened so that flies and other insects as well as dogs and scavengers may not have access to the contents thereof.

(3) Containers and cans for the collection of garbage substances must be placed either on the neutral ground or within the premises immediately adjacent to the street or sidewalk, and not less than five (5) feet from travelled surface of streets if no curb or sidewalks are provided. No can or container shall be placed on the street or sidewalk or in any ditch along the street, nor shall any can or container be allowed to remain on the neutral ground or other place for collection except between the hours from 4:00 p.m. the day preceding the scheduled pickup and 6:00 a.m. the day after the pickup.

(4) The department of public works shall not pick up garbage from a commercial establishment if garbage and trash are commingled or that the garbage cans are not clearly labeled with the word "garbage."

(b) The placing of such garbage for collection in any container, manner, or place other than as specified in subsection (a) is prohibited and such is hereby made a violation of this part.

(c) Should the city and parish enter into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the terms and conditions of that con-

tract shall take precedence over the provisions of this section, including but not limited to the definitions of all items of the contract.
(City Code 1951, Title 6, § 406; Ord. No. 8074, § 3, 12-11-85)

Sec. 6:381.1. Penalty for violation of section 6:381(a)(3).

Any person who violates the provisions of section 6:381(a)(3) shall pay a penalty of one hundred twenty-five dollars ($125.00) for a first violation; a penalty of two hundred fifty dollars ($250) for a second violation within a two-year period; and a penalty of five hundred dollars ($500) for a third and any subsequent violations within a two-year period.

Enforcement of this section shall be pursuant to the provisions of section 1:609 et seq. of the code of ordinances.
(Ord. No. 14683, § 1, 6-10-09; Ord. No. 15270, § 1, 2-8-12)

Sec. 6:382. Placing of trash or waste matter. (City)

(a) Every owner, and occupant, of any building, house, structure or grounds within the corporate limits of the city, where trash or other waste matter, as defined in section 6:375, accumulates, may have such trash or other waste matter collected and disposed of by the department of public works only if such trash or other waste matter is placed in stout containers, boxes or barrels, of such sizes as can be conveniently handled by one man, and placed in the same location as garbage containers, provided, however, that shrubbery trimmings, trees and limbs need not be placed in such containers, but shall be conveniently stacked in the same location as garbage containers; and provided, further, that in business areas containers may be placed on the street edge of sidewalks in front of or adjacent to a business after business hours and not more than a reasonable time prior to the scheduled hour of collection.

(b) The placing of such trash or other waste matter for collection in any container, manner, or place other than as specified in subsection (a) is prohibited and such is hereby made a violation of this part.

(c) Should the city and parish enter into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the terms and conditions of that contract shall take precedence over the provisions of this section, including but not limited to the definitions of all items of the contract.
(City Code 1951, Title 6, § 407; Ord. No. 8074, § 4, 12-11-85)

Sec. 6:383. Unlawful to damage or destroy garbage container. (City)

It shall be unlawful for any person to willfully damage or destroy any garbage container, as required in section 6:381(a)(1), belonging to any other person.
(City Code 1951, Title 6, § 408)

Sec. 6:384. Removal of containers from neutral ground. (City)

It shall be unlawful for any person to permit any garbage container, required by section 6:381(a)(1), to remain on the neutral ground in front of, or on the side of, their premises or place of business, from 6:00 p.m. Saturdays to 6:00 p.m. Sundays.

Whoever violates the provisions of this section shall pay a penalty of one hundred twenty-five dollars ($125.00) for a first violation; a penalty of two hundred fifty dollars ($250.00) for a second violation within a two-year period; and a penalty of five hundred dollars ($500.00) for a third and any subsequent violations within a two-year period.

Enforcement of this section shall be pursuant to the provisions of title 1, section 609 et seq.
(City Code 1951, Title 6, § 409; Ord. No. 14683, § 2, 6-10-09; Ord. No. 15270, § 2, 2-8-12)

Sec. 6:385. Removal of building or repairing debris. (City)

The owner of a building being erected or repaired, or the job contractor, shall remove all building or repairing debris or industrial refuse

resulting from the job, and no such debris shall be placed on the neutral ground for collection by the department of public works.
(City Code 1951, Title 6, § 410)

Sec. 6:386. Large material to be removed by owner. (City)

Large trees or limbs, scrap metal, large lumber refuse, and large dead animals shall not under any circumstances be placed on the neutral ground for collection by the department of public works, but must be removed by the owner of the premises at his expense.

Should the city and parish enter into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the terms and conditions of that contract shall take precedence over the provisions of this section, including but not limited to the definitions of all items of the contract.
(City Code 1951, Title 6, § 411; Ord. No. 8074, § 5, 12-11-85)

Sec. 6:386.1. Large material to be removed by contractor. (City)

(a) Any person, business or other entity engaged in the business of tree service who in the course of business fells or trims any tree, shall be responsible for the removal of the tree and its components from the premises where the tree was felled, and shall not place the tree nor its components or other large lumber refuse on any part of the premises or adjoining servitudes or rights-of-way for removal.

(b) If the contractor fails or refuses to remove a felled tree and/or its components, the owner of the premises shall be responsible for removing the material in accordance with subsection (a).

(c) Anyone violating the provisions of this section shall be guilty of a misdemeanor and subject to a fine of not more than five hundred dollars ($500.00) or six (6) months' imprisonment or both.
(Ord. No. 9838, § 1, 2-23-94)

Sec. 6:387. Violations of part. (City)

(a) All garbage and trash, as defined in section 6:375, as well as all litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris shall be accumulated, collected and disposed of as provided in this part. The accumulation, collection or handling of any of the above in any manner or form other than is declared to be lawful by this part, shall constitute a violation hereof.

(b) Any unauthorized accumulation of garbage or trash, as defined in section 6:375, or litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris on any premises or property is hereby declared to be a nuisance and is prohibited. The term "unauthorized accumulation" shall mean the accumulation, scattering, spilling or other handling of garbage or trash, as defined in section 6:375, or litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris on premises or property in a manner and under conditions contrary and in violation of the provisions of this part.

(c) If a corporation is the owner or occupant, the president of the corporation may be prosecuted for the violation.

(d) If a partnership, firm, or association of persons is the owner or occupant, any or all members of the partnership, firm, or association of persons may be prosecuted for the violation.

(e) Should the city and parish enter into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the terms and conditions of that contract shall take precedence over the provisions of this section, including but not limited to the definitions of all items of the contract.

(f) Where a person is constructing or renovating a single-family residence, the provisions of section 8A:105.A shall supersede the provisions of this part to the extent that said provisions conflict with the provisions of this part. Specifically, the accumulation of trash, debris, and/or

construction materials at the construction or renovation site shall not be deemed to be a violation of the provisions of this part, to the extent that such is allowed by the provisions of section 8A:105.A.

(g) Any person who violates the provisions of this section shall pay a fine of:

(1) Up to one thousand dollars ($1,000.00) or perform community service of not less than ten (10) eight-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries, for a first violation;

(2) A penalty of up to three thousand dollars ($3,000.00) or perform community service of not less than fifteen (15) eight-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries for a second violation within a two-year period; and

(3) A penalty of up to five thousand dollars ($5,000.00) or perform community service of not less than twenty (20) eight-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries for a third and any subsequent violations within a two-year period. For a third and subsequent violation, each act of violation and every day upon which a violation occurs or continues constitutes a separate offense.

Enforcement of this section shall be pursuant to the provisions of Title 1, section 609, et seq.
(City Code 1951, Title 6, § 412; Ord. No. 8074, § 6, 12-11-85; Ord. No. 10834, § 1, 3-12-97; Ord. No. 14683, § 3, 6-10-09; Ord. No. 15270, § 3, 2-8-12; Ord. No. 16724, § 1, 1-24-18)

Sec. 6:388. Director of public works to make other regulations, routes and schedules. (City)

(a) In addition to specific authority granted to the director of public works elsewhere in this part, the director is authorized to promulgate, make and publish reasonable rules and regulations for the purpose of the proper administration and enforcement of the provisions of this part; provided that the rules and regulations shall not be inconsistent with the provisions of this part or other law or the constitution of this state; and provided further that such rules and regulations shall be approved by the council after which they shall have the full force and effect of law. All rules and regulations in force prior to this amendment shall remain in force and effect, unless they are in conflict with this part.

(b) Until otherwise directed by the council, the director of public works is hereby authorized to establish appropriate routes and schedules providing for the pickup of garbage within the residential areas of the city on the basis of not more than two (2) pickups per week. Garbage pickup from commercial establishments by collectors shall be at least twice a week or more frequently, taking into consideration proper sanitation of the commercial areas and the protection of the public health. Trash collection in the residential areas shall be on the basis of one (1) day a week, in accordance with schedules and routes to be established by the director of public works. Routes and schedules for the pickup of garbage and trash by the city, as herein authorized, shall be established by the director of public works, who shall give appropriate public notice thereof in order that all persons affected may be fully informed concerning the routes and schedules so established. Collection from commercial establishments by private collectors shall be on the basis which is mutually agreeable to the commercial establishment and the collector; however, the collection must be of such frequency to maintain proper sanitation and protect the public health.

(c) Should the city and parish enter into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste

and litter, the terms and conditions of that contract shall take precedence over the provisions of this section, including but not limited to the definitions of all items of the contract.
(City Code 1951, Title 6, § 413; Ord. No. 8074, § 7, 12-11-85)

Sec. 6:389. Exclusive collection. (City)

It shall be unlawful for any person other than the city to engage in the business of collecting, removing, transporting or disposing of garbage or trash or both in the city except:

(1) Those private collectors specifically authorized by license;

(2) Those who are the actual producers of garbage, refuse or rubbish, or the owners of premises upon which garbage, refuse or rubbish has accumulated from personally collecting, conveying and disposing of such garbage, refuse or rubbish, provided such producers or owners dispose of such materials at public dumps provided by the city for such purposes and otherwise comply with the provisions of this Code and with any other governing law, ordinances, or applicable regulations and particularly section 6:378;

(3) Those collectors of garbage, refuse or rubbish from outside of the city hauling such refuse over city streets to any dumps outside the city or parish provided such collectors comply with the provisions of this part and with any other governing law, ordinances or applicable regulations and particularly section 6:378;

(4) Those charitable organizations which may pick up items under the term trash, provided they comply with the provisions of section 6:378;

(5) Those collectors who have permits from the city-parish.

(6) Nothing herein shall prevent the city and parish and the department of public works from

entering into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, when authorized to do so by the metropolitan council and the mayor-president of the parish and city.

(City Code 1951, Title 6, § 414; Ord. No. 8074, § 8, 12-11-85)

Sec. 6:390. Private collection of commercial establishments' garbage and trash. (City)

(a) The director shall not authorize the private collection of garbage and trash for residential houses within the city.

(b) Provided that a written declaration is obtained from the generator of processed industrial waste stating that the waste being transported to the Devil's Swamp Sanitary Landfill is compatible with waste presently at the landfill, the director shall authorize the private collection of garbage or trash, or both, for the commercial establishments, including churches and institutions, by the issuance of a license upon the application of the collector and the compliance with the other requirements set forth hereinafter:

(1) The transporting of toxic or hazardous waste (as defined in the rules and regulations of the Department of Natural Resources, Office of Environmental Affairs, State of Louisiana, implementing the Federal Resource Conservation and Recovery Act of 1976 - Public Law 94-580) to the city Devil's Swamp Sanitary Landfill or compactor stations by any collector licensed under this section shall constitute a violation of the conditions of the license and shall result in revocation of the license.

(2) The disposal of any waste collected from outside the city-parish at the Devil's Swamp Sanitary Landfill or compactor stations by any collector licensed under this section shall constitute a violation of the conditions of the license and shall result in revocation of the license.

(c) Any person desiring to secure a license for the private collection of garbage and trash or the transportation of the same shall submit an application therefor to the treasurer, who shall immediately forward a copy to the director and to the health unit. The application shall contain the following information:

(1) Private collector's name, home address, business address and telephone numbers. This includes information as to persons doing business under fictitious names, members of partnerships and officers of corporations or associations;

(2) A list of equipment intended to be used by the private collector within the city, including a full description thereof;

(3) The date upon which the applicant desires the permit to be issued;

(4) Proof of public liability insurance issued by a company authorized to do business in the state in the amount of one hundred thousand dollars ($100,000.00) for death or injury to any one person in one accident; three hundred thousand dollars ($300,000.00) for death or injury to more than one person in any one accident, and twenty thousand dollars ($20,000.00) property damage;

(5) Such other and further information as the refuse committee of the council may require;

(6) Whether the applicant is going to collect garbage or trash or both.

(d) The treasurer shall cause an investigation to be made of the facts stated in the application and cause the applicant to have all of his vehicles inspected and approved by the health unit. If the facts are verified and the vehicles approved, then a license shall be issued to the applicant and permits issued for his vehicles upon payment of the fees hereinafter set forth.

(e) The private collection license shall be effective for the fiscal year beginning on January first until December thirty-first, after which date it shall expire and be renewable. The private collector shall pay an annual license fee of two hundred

dollars ($200.00) for each vehicle, which fee shall not be less than two hundred dollars ($200.00) for any portion of a year. In addition to the penalties provided under this part, a fine of one hundred dollars ($100.00) per vehicle shall be assessed as a penalty for each use of an unlicensed vehicle; and further, failure to comply with the requirements of this subsection may result in revocation of any and all permits for vehicles licensed under this section.

(f) The director, subject to the approval of the refuse committee of the council, may impose conditions upon the issuing of a permit reasonably calculated to eliminate excessive noise, scattering of dust and dirt, scattered materials, and similar nuisances, and to prevent obstruction of public streets and interference with traffic. No waste collection shall be permitted at commercial establishments between the hours of 10:00 p.m. and 5:00 a.m.

(g) The director may make rules and regulations for the identification of private collectors and their equipment.

(h) No vested right or property interest is acquired by a license or permit issued to any person under the terms of this section, but the permit may be suspended or revoked when it shall be established:

(1) That any of the conditions of the license or permit is being violated;

(2) That the license or permit is being exercised in violation of this part or any ordinance or statute;

(3) That the license or permit is being used for a purpose detrimental to public health, morals, peace and order or is being used for a purpose foreign to that for which the license or permit was issued;

(4) That the application contained falsehoods;

(5) That the equipment being used by the private collector fails to meet the health and safety standards established by the city-parish, the state, or federal government;

(6) If licensee is not performing the services intended under this Code;

(7) That the licensee is discriminating against any employee or applicant for employment because of race, creed, color or national origin.

(i) In case of any violation of, or failure to comply with the provisions of this part, the solid waste management committee shall conduct a hearing and give the collector five (5) days' written notice to appear and answer the charges set forth in the written notice. Upon a finding that a violation has occurred, the solid waste management committee may, for the first such violation or conviction, issue a warning to the violator that such appearance constitutes a first violation within the meaning of this part and that future violations hearings shall result in the penalties herein provided; or if the solid waste management committee is of the opinion that the violation is of such a nature, or if the public interest requires such, it may refer the violator to the council for a hearing at the next regular meeting thereof, with a recommendation for suspension or revocation of the license or permit held by the violator. The solid waste management committee may recommend a suspension of the collector's license or any of his permits for the vehicles, or both.

For any violation found by the committee or council or conviction by a court occurring within one year of a prior violation or conviction upon which a hearing has been or is hereafter conducted by the solid waste management committee or the council, the council shall conduct a hearing as herein provided and shall impose not less than the following minimum penalties:

For such second violation, 15 days' suspension;

For any subsequent violations, 1 year suspension.

Nothing herein shall be construed to prohibit the council or the solid waste management committee at any time where it finds the provisions of this part to have been violated, or that the public interest requires such, from calling and holding a hearing, in accordance with applicable law, for the

purpose of recommending the revocation or suspension of, or revoking or suspending, any license or permit issued hereunder.

(j) Nothing herein shall prevent the city and parish and the department of public works from entering into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, when authorized to do so by the metropolitan council and the mayor-president of the parish and city. Should a contract or contracts be entered into between the city and parish with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the terms and conditions of that contract shall take precedence over all the provisions of this section.
(City Code 1951, Title 6, § 415; Ord. No. 8074, § 9, 12-11-85; Ord. No. 12387, § 1, 8-14-02)

Sec. 6:391. Ownership of garbage, trash, refuse and rubbish on city disposal sites vested in city and declared public property. (City)

(a) The ownership of all garbage, trash, refuse or rubbish material collected by the city or deposited on the city disposal site, either by the city or under contract with the private contractor, shall be vested in the city; and such material is hereby declared to be public property. No person shall go upon the city disposal site for the purpose of depositing materials thereon, nor shall any person deposit materials on the city disposal site except in accordance with rules and regulations established by the director and approved by the refuse committee or the council.

(b) No person shall salvage, collect, remove or dispose of any garbage, refuse, trash or rubbish material deposited on the city disposal site.

(c) The city shall provide a disposal site for private collectors or private individuals who are actual producers of garbage, refuse, trash or rubbish who desire to use the public disposal site provided that they conform or abide by such conditions, rules, regulations as may be established by the council.

(d) Any private disposal site shall conform to the rules and regulations applicable to the public disposal site contained in this part or other applicable laws or regulations.
(City Code 1951, Title 6, § 416; Ord. No. 8074, § 10, 12-11-85)

Sec. 6:392. Creation, maintenance of private dumps prohibited without required permits. (City)

It shall be unlawful for any private person, firm, corporation or association of persons to establish or permit the establishment of a private dump on any public property or on any property privately owned or controlled by them within the city, with the exception of the industrial areas, as defined in the Plan of Government, without first having obtained a permit for such operations from the department of public works. Issuance of this permit is subject to the approval and concurrence of the department of public works, the parish health unit and the parish solid waste management committee.

Each day such violation is permitted to continue shall constitute a separate offense and shall be punishable as provided by section 6:393.

For purposes of this section, a "private dump" shall mean any place or landfill which is not maintained and/or controlled by the governing authority of the city and which is used for disposal or collection of garbage, trash and other waste matter, refuse, rubbish or discarded materials.

Persons required to obtain permits for maintenance of a private dump hereunder shall pay to the city the amount of one hundred dollars ($100.00) for each year the private dump is permitted to exist. All permits will run concurrently from February 1 to January 31 of the following year. Initial permits issued within the calendar year will be assessed a pro rata share of the annual permit fee, on a monthly basis. Renewal permits will be assessed at the full permit fee. Permittees who are delinquent more than two (2) months must reapply for a landfill permit.

Private dumps, as defined herein, shall be subject to periodic inspection at the discretion of

the parish department of public works, the parish health unit and the parish solid waste management committee.

The department of public works employees, investigators, inspectors or employees of the police department and employees of the sheriff's department shall have the authority to identify the owners, by any available means, of any garbage, trash, refuse or rubbish material dumped or discarded at any site other than the Devils Swamp Landfill or other duly approved waste disposal site. The owner of the illegal dumping shall have twenty-four (24) hours to clean the dumping site and haul the material to the Devils Swamp Landfill at his expense.

In areas where "No Dumping" signs are posted, the owner of any garbage, trash, refuse or rubbish material that can be owner identified shall be responsible to clean the entire "No Dumping" site at his expense and haul the material to the Devils Swamp Landfill within twenty-four (24) hours of notification, and shall be subject to the penalties set forth in section 6:393.
(Ord. No. 7229, 8-10-83; Ord. No. 7555, § 1, 6-13-84; Ord. No. 8513, § 1, 10-28-87)

Editor's note—In order to retain the penalty provisions as the final section of this part, the editor has designated the provisions of Ord. No. 7229 as § 6:392, and the provisions of Ord. No. 8572, § 2, as § 6:393, redesignating § 6:392, Penalty, as § 6:394.

Sec. 6:393. Reserved.

Editor's note—Section 6:393, levying an annual trash pickup fee, derived from Ord. No. 8572, § 2, adopted Dec. 9, 1987, and Ord. No. 8615, § 1, adopted Feb. 24, 1988, was repealed by Ord. No. 8632, § 1, adopted Mar. 23, 1988. Section 2 of Ord. No. 8632 directed the expeditious refund of fees collected under these provisions. For the numbering of this section, see the editor's note to § 6:392.

Sec. 6:394. Penalty. (City)

Any person, collector, owner or occupant or their agents, servants or employees, violating the provisions of this part shall be guilty of a misdemeanor and shall, upon conviction, be fined not more than five hundred dollars ($500.00) or be imprisoned for not more than one hundred eighty (180) days, or both such fine and imprisonment, at the discretion of the court. The imposition of penalties herein prescribed shall not preclude the institution of an appropriate action or proceeding to prevent any violation of this chapter, or to prevent the occupancy of premises where there is a violation of this chapter.

(1) *Prohibiting the scavenging of recyclable materials from residential, commercial, business and governmental areas within the corporate limits.*

(a) No person or persons, other than the current resident and/or owner of the property on which the items are placed, or an authorized carrier, shall remove, pick up or transfer recyclable materials left at curbside in any residential subdivision, or at curbside at any single-family residence, business, commercial or governmental operation located within the city. Materials left at curbside in either specifically marked recovery containers or any other type of container are to be picked up by a designated carrier for the purpose of removal of recyclable materials. Materials referred to and to be left at curbside in specifically marked containers will include but not be limited to glass, plastic and aluminum.

(b) Each unauthorized removal of an item or items from a residential subdivision residence location or a single-family residence, business, commercial or governmental location shall constitute a separation [separate] violation of this subsection. Unauthorized persons removing materials or bins other than those persons designated above shall be fined as follows:

1. Upon first conviction of violation of this subsection, the person shall be fined twenty-five dollars ($25.00) for each such violation.

2. Upon second conviction of violation of this subsection, the person shall be fined fifty dollars ($50.00) for each such violation.

3. Upon third and subsequent convictions of violation of this subsection, the person shall be fined one hundred dollars ($100.00) for each such violation.

(City Code 1951, Title 6, § 417; Ord. No. 9084, § 1, 5-9-90)

Note—See the editor's note to § 6:392.

Sec. 6:395. Civil penalties. (City)

(a) Environmental specialists and building inspectors, upon evidence establishing more probably than not the identity of the person who has dumped and/or collected or the property owner who has allowed the dumping and/or the collection of garbage or trash, as defined in section 6:375, or building/construction materials, litter, refuse, rubbish, appliances, junk vehicles, limbs, trees or other discarded materials or debris, which create a nuisance as prohibited by section 6:387, shall send notice personally or by certified mail that the person shall begin to make efforts to clean up such nuisance within ten (10) days of receipt of the letter or service, and steadily and without delay continue such cleanup efforts under the monitoring of the environmental or inspection division of the department of public works. Ownership of the property shall be determined by the last address of record in the most recent parish assessment roll. If no effort is made to begin cleanup within the specified time period and the certified letter has been received or the party has been served, or if the certified letter is refused, suit allowing injunctive relief shall be filed requiring cleanup and authorizing fines of up to five hundred dollars ($500.00) a day in which no efforts are made toward cleanup without an excuse acceptable to the environmental or inspection division. If the certified letter is not received due to reasons other than refusal, or if service is not achieved after due and diligent efforts have been made, then an attorney at law shall be appointed to represent the party as curator. Additionally, where the property owner is a minor or an interdict, a curator shall be appointed.

(b) Where immediate action is required to avoid a threat to public health the department of public works shall have the authority to enter upon the property and cause the necessary work to be done to effect compliance with the provisions of this part after twenty-four (24) hours notice has been served upon the owner of the property or his agent, or upon the occupant of the property, if any, or upon the curator, if any. The city-parish shall have a lien and privilege on the property and any improvements thereon for the cost of remedying the violation. The privilege and lien shall be preserved and enforced only after the owner has failed to reimburse the city-parish within thirty (30) days after notification by the city-parish to pay the costs incurred. The thirty (30) days shall run from the date of mailing of the notification. In order to preserve the lien and privilege it shall be the duty of the mayor-president to prepare and sign a sworn statement of facts, giving the description of the property and an approximation of the cost of the remedial measures implemented. This statement shall be filed and recorded in the mortgage office of the parish in which the property is located and the city-parish shall be entitled to recover the amount of this expense, together with all costs of court and legal interest from the date of recordation of the lien, by ordinary process in the district court having jurisdiction of the property. Additionally, where it is necessary for the city-parish to appoint an attorney as curator as hereinabove provided, the attorney shall be paid a scheduled fee to be taxed as costs.

(c) Where a person is constructing or renovating a single-family residence, the provisions of section 8A:105.A shall supersede the provisions of this part to the extent that said provisions conflict with the provisions of this part. Specifically, the accumulation of trash, debris and/or construction materials at the construction or renovation site shall not be deemed to be a violation of the provisions of this part, to the extent that such is allowed by the provisions of Section 8A:105.A.

(Ord. No. 9483, § 1, 9-23-92; Ord. No. 10834, § 2, 3-12-97)

Sec. 6:396. Collection of garbage and other waste matter from commercial establishments in the boundaries of the Central Business District.

(a) All commercial establishments within the boundaries of the Central Business District that receive curbside collection of solid waste from commercial haulers shall only place their solid waste curbside for collection between the hours of 10:00 p.m. and 8:00 a.m., for garbage receptacles and plastic bags, or between the hours of 2:00 p.m. and 4:00 p.m., for plastic bags only. The solid waste shall be properly containerized in garbage receptacles with tight-fitting lids or placed in fastened 3.0-mil-thick black plastic bags. Cardboard boxes shall not be used as waste containers. Solid waste containers and bags that are placed curbside shall not block the sidewalk.

(b) All commercial haulers collecting or transporting refuse within the boundaries of the Central Business District shall complete all work between the hours of 5:00 a.m. and 8:00 a.m. or between the hours of 2:00 p.m. and 4:00 p.m.

(c) It shall constitute as presumptive evidence that the occupant and/or owner of the establishment whose address corresponds to the serial number, barcode, or name of business on the roll cart in which such garbage is held, or on the garbage itself, specifically authorized and/or directed the placement of the garbage out at a time other than authorized above. This presumption shall be applicable when such garbage is found adjacent to or in the vicinity of the building of the party or parties whose address corresponds with the roll cart in which such garbage trash is found or on the contents found in the cart.

(d) Stationery, metal, waste receptacles maintained and owned by the city-parish, located within the public right-of-way, shall not be utilized for the collection of garbage and trash from private residences and/or businesses.

(e) The provisions of this section do not apply to residential carts and roll-offs being used for active construction sites or special events.

(f) Anyone violating the provisions of this section shall be liable for a $125.00 fine for each violation. Adjudication of alleged violations shall be handled in the process set forth in section 1:609 of the Code of Ordinances.
(Ord. No. 16912, § 1, 10-24-18)

PART II. COLLECTION AND DISPOSAL OF GARBAGE AND OTHER WASTE MATTER (OUTSIDE CITY ONLY)

Sec. 6:401. Definitions. (Parish)

The following words and phrases, when used in this part, shall have the meanings respectively ascribed to them:

Director of the department of public works or *director* is the director of the department of public works of the city-parish.

Garbage shall mean and include household refuse matter, kitchen stuff (excluding liquids), tin cans, broken bottles, glassware, market refuse, waste from the handling, storage and sale of produce, which is prepared for collection and disposal as provided hereinafter.

Neutral ground shall mean that area between the property line and the curb or ditch, as the case may be.

Occupant shall mean any person who lives in, resides in, conducts or operates a business in, or uses any building, house, structure or grounds.

Owner shall mean and include the record owner of any building, house, structure or grounds.

Refuse is all putrescible and nonputrescible solid wastes (except body wastes), including garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles, and solid market and industrial wastes.

Rubbish is nonputrescible solid wastes (excluding ashes), consisting of both combustible and noncombustible wastes, such as paper, cardboard, tin cans, yard clippings, wood, glass, bedding, crockery and similar materials.

Trash and other waste matter shall mean and include any trash, waste paper, debris, rubbish, ordure, excrement, etc., not included under the

definition of "garbage," and shall also include cut grass, weeds, vines, shrubbery trimmings, and trees or limbs not exceeding a weight and length that can be normally loaded by two (2) men and carried in a truck without unreasonable overhang; provided that larger trees and limbs, industrial waste, building debris from erection or repairing of any buildings, dead fowls and animals and scrap metal shall not be included.

Should the city and parish enter into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the terms and conditions of that contract shall take precedence over the provisions of this section, including but not limited to the definitions of all items of the contract.
(Parish Code 1962, Title 6, § 401; Ord. No. 8074, § 11, 12-11-85)

Sec. 6:402. Garbage cans and waste receptacles required. (Parish)

(a) It shall be unlawful and a violation of this part, for any person to scatter, throw, deposit, drop, allow, or to permit or allow to be scattered, spilled, thrown, deposited or dropped, any garbage, trash and other waste material, dead animals or fowls, industrial waste or refuse from erection, repairing or remodeling buildings, or any other substances which may be unsightly, offensive to smell or injurious to health in any private yard, lot, room or building, or on any sidewalk, street, alley, wharf, levee, public parkway, public right-of-way, or any other public place, or in any gutter or drain within the parish, other than in the type of container, in the manner, and at the places specified in section 6:406.

(b) The provisions of this section shall not apply to use of the sidewalks or the sidewalk and a portion of the street adjacent to building construction when in compliance with a permit from the building inspector covering materials, equipment, barricades, etc., necessary in connection with street, alley or utility construction and maintenance.
(Parish Code 1962, Title 6, § 402)

Sec. 6:402.1. Dumpsters. (Parish)

For purposes of this section, a "dumpster" is defined as a container for storing trash and debris that can be moved and emptied only by attachment to a truck designed for that purpose.

It shall be unlawful to maintain a dumpster on the premises of a residence located in an area zoned A-1 Single Family Residential for more than 45 days.

A household with a current renovation or construction permit is permitted to maintain a dumpster on the premises of the residence for the duration of the permit.

Any person who violates this section shall pay a penalty of one hundred twenty-five dollars ($125.00) for each day of violation. Enforcement of this section shall be pursuant to the provisions of Title 1, section 1:609, et seq.

However, upon good cause shown, the administrative hearing officer may grant an extension beyond 45 days. The extension may be granted either at or prior to a hearing.
(Ord. No. 15339, § 2, 6-27-12)

Sec. 6:403. Transportation of garbage, trash or debris. (Parish)

Any person transporting, hauling, or permitting to be transported or hauled any garbage, trash, or other debris as set forth above, to the place of dumping shall take reasonable precautions to prevent the scattering or spilling of the garbage, trash or other debris from the conveyance upon the public roads of the parish, and shall, for this purpose, when using an open conveyance cause the load to be secured with a tarpaulin, canvas or other covering. Vehicles used for this purpose shall be equipped with tail gates to prevent spilling of debris during transit. This section shall not apply to trucks properly loaded with heavy waste or debris too heavy to blow off.
(Parish Code 1962, Title 6, § 403)

Sec. 6:404. Owners' and occupants' responsibility to keep premises clean. (Parish)

(a) All owners and occupants of any building, house, structure or grounds shall be held responsible for the cleanliness of their premises and of rights-of-way, alleys and neutral grounds immediately adjacent to their premises and all business owners and managers of stores, restaurants, markets or stands shall be responsible for keeping sidewalks in front of the building occupied by them in a clean condition. It is hereby declared unlawful to sweep paper, trash, litter, dirt, or other material into the streets, sidewalks, or other public ways adjacent to such stores, restaurants, etc.

(b) Any unauthorized accumulation of garbage or trash, as defined in section 6:401, or litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris on rights-of-way, neutral grounds, or alleys immediately adjacent to their premises is hereby declared to be a nuisance and is prohibited. The term "unauthorized accumulation" shall mean the accumulation, scattering, spilling or other handling of garbage or trash, as defined in section 6:401, or litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris on rights-of-way, neutral grounds, or alleys in a manner and under conditions that is contrary and in violation of the terms and conditions of the private contract for the collection and disposal of garbage, trash, bulky waste and litter.

(c) If the owner or owners of a lot or lots fail to remove such unauthorized accumulation of garbage or trash, as defined in section 6:401, or litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris on rights-of-way, neutral grounds, or alleys immediately adjacent to their premises within seventy-two (72) hours after being notified by the department of public works, the department of public works shall have the authority to have such unauthorized accumulation of garbage, trash, litter, refuse or rubbish removed at the expense of the property owner or owners.

(d) The owner or owners shall be notified by the department of public works by affixing a copy of the notice of violation(s) in a prominent location on the property upon which violation(s) are alleged or, if safe access to the property is not reasonably practicable, on some prominent fixture on the adjacent public right-of-way as near as possible to the property. It shall be unlawful for any person other than an agent of the city/parish to remove a notice posted on the public right-of-way.

(e) If there is no compliance with the notice provided for in this section within seventy-two (72) hours, the director of the department of public works, shall then cause the necessary work to be done to effect compliance with the provisions of this section at the owner's expense; and the director of the department of public works may have such work done either with the personnel and equipment of his department, or by means of a contract with a third person.

(f) Upon completion of such work, the director of the department of public works shall send a bill to the property owner itemizing all expenses incurred in the removal of the violation. If the bill is not paid within ninety (90) days from the date of removal of the violation by the city/parish, the director of development shall send the unpaid bill to the collections department in the office of the parish attorney.
(Parish Code 1962, Title 6, § 404; Ord. No. 18999, § 1, 10-11-23)

Sec. 6:405. Requirements of department of public works. (Parish)

The department of public works is hereby authorized and directed to collect and dispose of all garbage as defined in section 6:401 within the limits of legally created and existing garbage districts of the parish which is placed in the type of container, and in the manner and at the place specified in section 6:406, and the department of public works is hereby expressly prohibited from collecting any garbage other than that which is put out for collection in compliance with such section.

Nothing herein shall prevent the city and parish and the department of public works from

entering into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, when authorized to do so by the metropolitan council and the mayor-president of the parish and city. Should a contract or contracts be entered into between the city and parish with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the terms and conditions of that contract shall take precedence over all the provisions of this section.
(Parish Code 1962, Title 6, § 405; Ord. No. 8074, § 12, 12-11-85)

Sec. 6:406. Requirements of owners and occupants. (Parish)

Every owner, and occupant, of any building, house, structure or grounds within the limits of a legally created and existing garbage district of the parish, where garbage, as defined in section 6:401, accumulates, may have such garbage collected and disposed of by the department of public works only if such garbage is:

(1) Placed in a container or containers therefor of not less than five (5) nor more than thirty (30) gallons' capacity, constructed of some substantial metal or plastic material, with a tight-fitting lid or cover which will exclude rain or flies, and with handles sufficiently strong for workmen to empty conveniently. No container, with contents, shall weigh more than seventy-five (75) pounds. The can or container shall be maintained in as sanitary condition as possible, in view of the use to which same is put and shall be thoroughly cleansed as needed by washing, scalding or otherwise.

All commercial establishments, institutions and schools which need more than the equivalent of two (2), thirty-gallon containers for disposal of garbage and all apartment buildings or groups of buildings containing eight (8) or more units may have such garbage collected and disposed of by the department of public works only if it is placed in containers of one yard capacity which are mounted on wheels, equipped with self-closing lids, and designed to be dumped mechanically by attachments on the rear of garbage trucks.

In lieu of garbage containers as herein provided, the use of commercial type disposable bags is permissible, provided such bags meet specifications approved by the waste disposal committee.

(2) The lids or covers of all cans or containers shall at all times be kept secure and fastened so that flies and other insects, as well as dogs and scavengers, may not have access to the contents thereof.

(3) Containers and cans for the collection of garbage substances must be placed either on the neutral ground or within the premises immediately adjacent to the street or sidewalk, and not less than five (5) feet from traveled surface of streets if no curb or sidewalks are provided. No can or container shall be placed on the street or sidewalk or in any ditch along the street, nor shall any can or container be allowed to remain on the neutral ground or other place for collection except between the hours from 4:00 p.m. the day preceding the scheduled pickup and 6:00 a.m. the day after the pickup.

The placing of such garbage for collection in any container, manner, or place other than as specified in the above paragraph is prohibited and such is hereby made a violation of this part.

Should the city and parish enter into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the terms and conditions of that contract shall take precedence over the provisions of this section, including but not limited to the definitions of all items of the contract.
(Parish Code 1962, Title 6, § 406; Ord. No. 8074, § 13, 12-11-85; Ord. No. 8634, § 1, 4-13-88)

Sec. 6:406.1. Penalty.

Any person who violates the provisions of section 6:406 shall pay a penalty of one hundred twenty-five dollars ($125.00) for a first violation; a penalty of two hundred fifty dollars ($250.00) for a second violation within a two-year period; and a penalty of five hundred dollars ($500.00) for a third and any subsequent violations within a two-year period.

Enforcement of this section shall be pursuant to the provisions of title 1, section 609, et. seq.
(Ord. No. 14683, § 4, 6-10-09; Ord. No. 15270, § 4, 2-8-12)

Sec. 6:407. Standards relating to refuse bags approved and ratified. (Parish)

The recommendations of the waste disposal committee adopted January 11, 1971, as set forth in the National Sanitation Foundation Standard No. 31 and 32 relating to refuse bags, copies of which are on file in the office of the council administrator, are hereby approved and ratified as such standards now exist or may be hereafter amended.
(Parish Code 1962, Title 6, § 407)

Sec. 6:408. Unlawful to damage or destroy garbage containers. (Parish)

It shall be unlawful for any person to wilfully damage or destroy any garbage container, as required in section 6:406(1), belonging to any other person.
(Parish Code 1962, Title 6, § 408)

Sec. 6:409. Removal of containers from neutral ground. (Parish)

It shall be unlawful for any person to permit any garbage container, required by section 6:406(1), to remain on the neutral ground in front of or on the side of, their premises or place of business, from 6:00 p.m. Saturdays to 6:00 p.m. Sundays. Any person who violates this section shall pay a penalty of one hundred twenty-five dollars ($125.00) for a first violation; a penalty of two hundred fifty dollars ($250.00) for a second violation within a two-year period; and a penalty of five hundred dollars ($500.00) for a third and any subsequent violations within a two-year period.

Enforcement of this section shall be pursuant to the provisions of title 1, section 609, et seq.
(Parish Code 1962, Title 6, § 409; Ord. No. 14683, § 5, 6-10-09; Ord. No. 15270, § 5, 2-8-12)

Sec. 6:410. Removal of building or repair debris. (Parish)

The owner of a building being erected or repaired, or the job contractor, shall remove all building or repairing debris or industrial refuse resulting from the job, and no such debris shall be placed on the neutral ground for collection by the department of public works.
(Parish Code 1962, Title 6, § 410)

Sec. 6:411. Large material to be removed by owner. (Parish)

Large trees or limbs, scrap metal, large lumber refuse, and large dead animals shall not under any circumstances be placed on the neutral ground for collection by the department of public works, but must be removed by the owner of the premises at his expense.

Should the city and parish enter into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the terms and conditions of that contract shall take precedence over the provisions of this section, including but not limited to the definitions of all items of the contract.
(Parish Code 1962, Title 6, § 411; Ord. No. 8074, § 14, 12-11-85)

Sec. 6:411.1. Violations of part. (Parish)

(a) All garbage and trash, as defined in section 6:401, as well as all litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris shall be accumulated, collected and disposed of as provided in this part. The accumulation, collection or handling of any of the above in any manner or form other than is declared to be lawful by this part, shall constitute a violation hereof.

(b) Any unauthorized accumulation of garbage or trash, as defined in section 6:401, or litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris on any premises or property is hereby declared to be a nuisance and is prohibited. The term "unauthorized accumulation" shall mean the accumulation, scattering, spilling or other handling of garbage or trash, as defined in section 6:401, or litter, refuse, rubbish, appliances, junk vehicles, construction/building materials, limbs, trees or other discarded materials or debris on premises or property in a manner and under conditions contrary and in violation of the provisions of this part.

(c) If a corporation is the owner or occupant, the president of the corporation may be prosecuted for the violation.

(d) If a partnership, firm, or association of persons is the owner or occupant, any or all members of the partnership, firm, or association of persons may be prosecuted for the violation.

(e) Should the city and parish enter into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, the terms and conditions of that contract shall take precedence over the provisions of this section, including but not limited to the definitions of all items of the contract.

(f) Where a person is constructing or renovating a single-family residence, the provisions of section 8A:105.A shall supersede the provisions of this part to the extent that said provisions conflict with the provisions of this part. Specifically, the accumulation of trash, debris, and/or construction materials at the construction or renovation-site shall not be deemed to be a violation of the provisions of this part, to the extent that such is allowed by the provisions of section 8A:105.A.

(g) Any person who violates the provisions of this section shall pay a fine of up to one thousand dollars ($1,000.00) or perform community service of not less than ten (10) eight-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries, for a first violation; a penalty of up to three thousand dollars ($3,000.00) or perform community service of not less than fifteen (15) eight-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries for a second violation within a two-year period; and a penalty of up to five thousand dollars ($5,000.00) or perform community service of not less than twenty (20) eight-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries for a third and any subsequent violations within a two-year period. For a third and subsequent violation, each act of violation and every day upon which a violation occurs or continues constitutes a separate offense.

Enforcement of this section shall be pursuant to the provisions of title 1, section 609, et seq.
(Ord. No. 10834, § 3, 3-12-97; Ord. No. 14683, § 6, 6-10-09; Ord. No. 15270, § 6, 2-8-12; Ord. No. 16724, § 1, 1-24-18)

Sec. 6:412. Persons subject to prosecution designated. (Parish)

(a) Should any garbage, trash or other waste matter, as defined in section 6:401, be found in or on any building, house, structure, or grounds in any manner or form other than as is specifically declared to be lawful by section 6:406, such shall be a violation of this part, and either the owner or occupant, as defined in section 6:401, or both of them, may be prosecuted therefor.

(b) If a corporation is the owner or occupant, the president of the corporation may be prosecuted for the violation.

(c) If a partnership, firm, or association of persons is the owner or occupant, any or all members of the partnership, firm or association of persons may be prosecuted for the violation.
(Parish Code 1962, Title 6, § 412)

Sec. 6:413. Director of public works authorized to make rules and regulations. (Parish)

In addition to specific authority granted to the director of the department of public works elsewhere in this part, the director is authorized to promulgate, make and publish reasonable rules and regulations for the purpose of the proper administration and enforcement of the provisions of this part; provided that such rules and regulations shall not be inconsistent with the provisions of this part or other laws or the constitution of this state; and provided further that such rules and regulations shall have the full force and effect of law.
(Parish Code 1962, Title 6, § 413)

Sec. 6:414. Collection by city-parish—Regulated. (Parish)

All garbage, refuse and rubbish accumulated in the city-parish or within the limits of any legally created and existing garbage district shall be collected, conveyed and disposed of by the city-

parish, under the supervision of the director. No person shall collect, convey over any of the streets, alleys or public rights-of-way of the city-parish or within the limits of any such legally created and existing garbage district, or dispose of, any garbage, refuse, or rubbish accumulated in the city-parish or in the garbage district, except as provided herein.

Nothing herein shall prevent the city and parish and the department of public works from entering into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, when authorized to do so by the metropolitan council and the mayor-president of the parish and city.
(Parish Code 1962, Title 6, § 414; Ord. No. 8074, § 15, 12-11-85)

Sec. 6:415. Same—Exception for actual producers. (Parish)

This part shall not prohibit the actual producers of garbage, refuse or rubbish, or the owners of premises upon which garbage, refuse or rubbish has accumulated from personally collecting, conveying and disposing of such garbage, refuse or rubbish, provided such producers or owners dispose of such materials at public dumps provided by the city-parish for such purposes and otherwise comply with the provisions of this part and with any other governing law, ordinances, or applicable regulations.
(Parish Code 1962, Title 6, § 415)

Sec. 6:416. Same—Exception for outside collectors. (Parish)

This part shall not prohibit collectors of garbage, refuse or rubbish from outside of the city or from outside legally created and existing garbage districts, from hauling such refuse over city-parish streets to public dumps, provided such collectors comply with the provisions of this part and with any other governing law, ordinances or applicable regulations.

This part shall not prohibit collectors of garbage, refuse or rubbish from outside of the parish or from outside legally created and existing garbage districts from hauling such refuse over city-parish streets to public dumps, provided such collectors comply with the provisions of this part and with any other governing law, ordinances or applicable regulations.
(Parish Code 1962, Title 6, § 416; Ord. No. 8074, § 16, 12-11-85)

Sec. 6:417. Reserved.

Editor's note—Section 6:417, relating to compliance with cartage regulations in the parish, derived from Parish Code 1962, Title 6, § 417, was repealed by § 17 of Ord. No. 8074, adopted Dec. 11, 1985.

Sec. 6:418. Ownership of garbage, refuse, rubbish; depositing on dumps. (Parish)

The ownership of all garbage, refuse or rubbish material set out for collection or deposited on the public dumps shall be vested in the public and such material is hereby declared to be public property. No person shall go upon the city-parish dumps for the purpose of depositing materials thereon, nor shall any person deposit materials on the city-parish dumps, except in accordance with regulations established by the director.
(Parish Code 1962, Title 6, § 418)

Sec. 6:419. Salvage. (Parish)

No person shall salvage, collect, remove or dispose of any garbage, refuse or rubbish material deposited on the Devil Swamp garbage dump or on any other garbage landfill or dump under the control and supervision of the city-parish, except by the authority of the director or pursuant to an agreement authorized by the council.
(Parish Code 1962, Title 6, § 419)

Sec. 6:420. Penalty for violation of provisions. (Parish)

Any person, owner or occupant or their agents, servants or employees, violating the provisions of this part shall be guilty of a misdemeanor and shall, upon conviction, be fined not more than five hundred dollars ($500.00) or imprisoned in the

jail for not more than one hundred eighty (180) days, or both, at the discretion of the judge, for each and every violation hereof.

(1) *Prohibiting the scavenging of recyclable materials from residential, commercial, business and governmental areas within the corporate limits.*

(a) No person or persons, other than the current resident and/or owner of the property on which the items are placed, or an authorized carrier, shall remove, pick up or transfer recyclable materials left at curbside in any residential subdivision, or at curbside at any single-family residence, business, commercial or governmental operation located within the parish. Materials left at curbside in either specifically marked recovery containers or any other type of container are to be picked up by a designated carrier for the purpose of removal of recyclable materials. Materials referred to and to be left at curbside in specifically marked containers will include but not be limited to glass, plastic and aluminum.

(b) Each unauthorized removal of an item or items from a residential subdivision residence location or a single-family residence, business, commercial or governmental location shall constitute a separate violation of this subsection. Unauthorized persons removing materials or bins other than those persons designated above shall be fined as follows:

1. Upon first conviction of violation of this subsection, the person shall be fined twenty-five dollars ($25.00) for each such violation.
2. Upon second conviction of violation of this subsection, the person shall be fined fifty dollars ($50.00) for each such violation.
3. Upon third and subsequent convictions of violation of this subsection, the person shall be fined one hundred dollars ($100.00) for each such violation.

(Parish Code 1962, Title 6, § 420; Ord. No. 7556, § 2, 6-13-84; Ord. No. 8473, § 1, 8-26-87; Ord. No. 9084, § 2, 5-9-90)

Sec. 6:421. Commercial establishments prohibited from dumping trash or garbage at certain trash and pick up stations. (Parish)

(a) It shall be unlawful and a violation of this section for any commercial establishment to dump trash or garbage at any of the trash and garbage pick up stations established in the parish by Parish Resolution 9705, adopted January 26, 1972.

(b) A *commercial establishment* is defined as any person who is engaged in any type or kind of trade or business.

(c) Any person violating the provisions of this section shall be guilty of a misdemeanor and upon conviction thereof shall be subject to a fine not to exceed five hundred dollars ($500.00) or imprisoned not more than six (6) months, or both, at the discretion of the court, and each day such violation is committed or permitted to continue shall constitute a separate offense and shall be punished as such hereunder.

(d) Nothing herein shall prevent the city and parish and the department of public works from entering into a contract with a private contractor for the collection and disposal of garbage, trash, bulky waste and litter, when authorized to do so by the metropolitan council and the mayor-president of the parish and city.

(Parish Code 1962, Title 6, § 421; Ord. No. 8074, § 18, 12-11-85)

Sec. 6:422. Creation, maintenance of private dumps prohibited without required permits. (Parish)

(a) It shall be unlawful for any private person to establish or permit the establishment of a private dump on any public property or on any property privately owned or controlled by him

within the parish, with the exception of the industrial areas, as defined in the Plan of Government, without first having obtained a permit for such operations from the department of public works. Issuance of this permit is subject to the approval and concurrence of the department of public works, the health unit and the capital improvements committee and metropolitan council.

(b) Each day such violation is permitted to continue shall constitute a separate offense, and shall be punishable as provided by section 6:420.

(c) For purposes of this section, a "private dump" shall mean any place or landfill which is not maintained and/or controlled by the council and which is used for disposal or collection of garbage, trash and other waste matter, refuse, rubbish or discarded materials.

(d) Persons required to obtain permits for maintenance of a private dump hereunder shall pay to the parish the amount of one hundred dollars ($100.00) for each year the private dump is permitted to exist. All permits will run concurrently from February 1 to January 31 of the following year. Initial permits issued within the calendar year will be assessed a pro rata share of the annual permit fee, on a monthly basis. Renewal permits will be assessed at the full permit fee. Permittees who are delinquent more than two (2) months must reapply for a landfill permit.

(e) Private dumps, as defined herein, shall be subject to periodic inspection at the discretion of the department of public works, the health unit and the capital improvements committee and metropolitan council.

(f) The department of public works employees, investigators, inspectors, or employees of the police department and employees of the sheriff's department shall have the authority to identify the owners, by any available means, of any garbage, trash, refuse or rubbish material dumped or discarded at any site other than the Devils Swamp Landfill or other duly approved waste disposal site. The owner of the illegal dumping shall have twenty-four (24) hours to clean the dumping site and haul the material to the Devils Swamp Landfill at his expense. In areas where "No Dumping" signs are posted, the owner of any garbage, trash, refuse or rubbish material that can be owner identified shall be responsible to clean the entire "No Dumping" site at his expense and haul the material to the Devils Swamp Landfill within twenty-four (24) hours of notification, and shall be subject to the penalties set forth in section 6:420.

(Parish Code 1962, Title 6, § 422; Ord. No. 7556, § 1, 6-13-84; Ord. No. 8102, 2-12-86; Ord. No. 8513, § 1, 10-28-87)

Sec. 6:423. Civil penalties. (Parish)

(a) Environmental specialists and building inspectors, upon evidence establishing more probably than not the identity of the person who has dumped and/or collected or the property owner who has allowed the dumping and/or collection of garbage or trash, as defined in section 6:401, or building/construction materials, appliances, junk vehicles, limbs, trees or other discarded materials or debris, which create a nuisance as prohibited by section 6:411.1, shall send notice personally or by certified mail that the person shall begin to make efforts to clean up such nuisance within ten (10) days of receipt of the letter or service, and steadily and without delay continue such cleanup efforts under the monitoring of the environmental or inspection division of the department of public works. Ownership of the property shall be determined by the last address of record in the most recent parish assessment roll. If no effort is made to begin cleanup within the specified time period and the certified letter has been received or the party has been served, or if the certified letter is refused, suit allowing injunctive relief shall be filed requiring cleanup and authorizing fines up to five hundred dollars ($500.00) a day in which no efforts are made toward cleanup without an excuse acceptable to the environmental or inspection division. If the certified letter is not received due to reasons other than refusal, or if service is not achieved after due and diligent efforts have been made, then an attorney at law shall be appointed to represent the party as curator. Additionally, if the property owner is a minor or an interdict, a curator shall be appointed.

(b) Where immediate action is required to avoid a threat to public health the department of public works shall have the authority to enter upon the

property and cause the necessary work to be done to effect compliance with the provisions of this part after twenty-four (24) hours notice has been served upon the owner of the property or his agent, or upon the occupant of the property, if any, or upon the curator, if any. The city-parish shall have a lien and privilege on the property and any improvements thereon for the cost of remedying the violation. The privilege and lien shall be preserved and enforced only after the owner has failed to reimburse the city-parish within thirty (30) days after notification by the city-parish to pay the costs incurred. The thirty (30) days shall run from the date of mailing of the notification. In order to preserve the lien and privilege it shall be the duty of the mayor-president to prepare and sign a sworn statement of facts, giving the description of the property and an approximation of the cost of the remedial measures implemented. This statement shall be filed and recorded in the mortgage office of the parish in which the property is located and the city-parish shall be entitled to recover the amount of this expense, together with all costs of court and legal interest from the date of recordation of the lien, by ordinary process in the district court having jurisdiction of the property. Additionally, where it is necessary for the city-parish to appoint an attorney as curator, as hereinabove provided, the attorney shall be paid a scheduled fee to be taxed as costs.

(c) Where a person is constructing or renovating a single-family residence, the provisions of section 8A:105.A shall supersede the provisions of this part to the extent that said provisions conflict with the provisions of this part. Specifically, the accumulation of trash, debris, and/or construction materials at the construction or renovation site shall not be deemed to be a violation of the provisions of this part, to the extent that such is allowed by the provisions of Section 8A:105.A.
(Ord. No. 9483, § 2, 9-23-92; Ord. No. 10834, § 4, 3-12-97)

PART III. ANTI-LITTER REGULATIONS*

Sec. 6:426. Short title.

This part shall be known and may be cited as the "Anti-Litter Ordinance for the City of Baton Rouge and Parish of East Baton Rouge."
(City Code 1951, Title 6, § 426; Parish Code 1962, Title 6, § 426)

*State law references—Littering of highways and adjacent lands prohibited, R.S. 32:289; litter control and recycling commission, R.S. 51:1801 et seq.

Sec. 6:427. Definitions.

For the purposes of this part the following terms, phrases, words, and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

Aircraft is any contrivance now known or hereafter invented, used or designated for navigation or for flight in the air. The word "aircraft" shall include helicopters and lighter-than-air dirigibles and balloons.

Authorized private receptacle is a litter storage and collection receptacle as required and authorized in sections 6:381 and 6:406.

Commercial handbill is any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper, booklet, or any other printed or otherwise reproduced original or copies of any matter of literature:

(1) Which advertises for sale any merchandise, product commodity or thing; or

(2) Which directs attention to any business or mercantile or commercial establishment, or other activity, for the purpose of either directly or indirectly promoting the interest thereof by sales; or

(3) Which directs attention to or advertises any meeting, theatrical performance, exhibition, or event of any kind, for which an admission fee is charged for the purpose of private gain or profit; but the terms of this clause shall not apply where an admission fee is charged or a collection is taken up for the purpose of defraying the expenses incident to such meeting, theatrical performance, exhibition, or event of any kind, when either of the same is held, given or takes place in connection with the dissemination of information which is not restricted under the ordinary rules of decency, good morals, public peace, safety and good order; provided, that nothing contained in this clause shall be deemed to authorize the holding, giving or taking place of any meeting, theatrical performance, exhibition, or event of any kind, without a license, where such license is or may be required by any law of this state, or under any ordinance of the city-parish; or

(4) Which, while containing reading matter other than advertising matter, is predominantly and essentially an advertisement, and is distributed or circulated for advertising purposes, or for the private benefit and gain of any person so engaged as advertiser or distributor.

Garbage is putrescible animal and vegetable wastes resulting from the handling, preparation, cooking and consumption of food.

Litter is "garbage," "offensive matter," "refuse," and "rubbish" as defined herein and all other waste material which, if thrown or deposited as herein prohibited, tends to create a danger to public health, safety and welfare. (Ord. No. 9340, § 1, 9-25-91)

Newspaper is any newspaper of general circulation as defined by general law, any newspaper duly entered with the post office department of the United States, in accordance with federal statute or regulation, and any newspaper filed and recorded with any recording officer as provided by general law; and in addition thereto, shall mean and include any periodical or current magazine regularly published with not less than four (4) issues per year, and sold to the public.

Noncommercial handbill is any printed or written matter, any sample, or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper, booklet, or any other printed or otherwise reproduced original or copies of any matter of literature not included in the aforesaid definitions of a commercial handbill or newspaper.

Offensive matter is any ordure; excrement; offal; filth; manure; foul and offensive matter; stagnant, corrupt or putrid water; shells; hay; straw; kitchen stuff; cloth; or any substance of any kind which may be offensive to the smell or injurious to health. (Ord. No. 9340, § 1, 9-25-91)

Park is a park, reservation, playground, beach, recreation center or any other public area in the

city-parish, owned or used by the city-parish and devoted to active or passive recreation.

Person is a human being and also includes a body of persons, whether incorporated or not. (Ord. No. 9340, § 1, 9-25-91)

Private premises is any dwelling, house, building, or other structure, designed or used either wholly or in part for private residential purposes, whether inhabited or temporarily or continuously uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule or mailbox belonging or appurtenant to such dwelling, house, building, or other structure.

Public place is any and all streets, sidewalks, boulevards, alleys or other public ways and any and all public parks, squares, spaces, grounds and buildings.

Refuse is all putrescible and nonputrescible solid wastes (except body wastes), including garbage, rubbish, ashes, fruit peelings, street cleanings, dead animals, abandoned automobiles, and solid market and industrial wastes. (Ord. No. 9340,§ 1, 9-25-91)

Rubbish is nonputrescible solid wastes consisting of both combustible and noncombustible wastes, such as paper, wrapping, boxes, cigarettes, cardboard, cans, bottles, yard clippings, leaves, wood, glass, nails, tacks, wire, bedding, crockery, plastic, tires, roofing shingles, and similar materials. (Ord. No. 9340, § 1, 9-25-91)

Vehicle is every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, including devices used exclusively upon stationary rails or tracks.
(City Code 1951, Title 6, § 427; Parish Code 1962, Title 6, § 427; Ord. No. 9340, § 1, 9-25-91)

Sec. 6:427.1. Presumption.

Once it is established that dumped, deposited, thrown, distributed or disposed of litter, was possessed by a particular person immediately before the act of dumping, depositing, throwing, distributing, or disposing, there shall be a rebuttable presumption that the possessor committed such act.
(Ord. No. 9340, § 2, 9-25-91)

Sec. 6:428. Litter in public places.

No person shall throw or deposit litter in or upon any street, sidewalk or other public place within the city-parish except in public receptacles, in authorized private receptacles for collection, or in publicly owned landfill or transfer stations.
(City Code 1951, Title 6, § 428; Parish Code 1962, Title 6, § 428)

Sec. 6:429. Placement of litter in receptacles to prevent scattering.

Persons placing litter in public receptacles or in authorized private receptacles shall do so in such a manner as to prevent it from being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.
(City Code 1951, Title 6, § 429; Parish Code 1962, Title 6, § 429)

Sec. 6:430. Sweeping litter into gutters prohibited.

No person shall sweep into or deposit in any gutter, street or other public place within the city-parish the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying property shall keep the sidewalk in front of their premises free of litter.
(Cide Code 1951, Title 6, § 430; Parish Code 1962, Title 6, § 430)

Sec. 6:431. Merchant's duty to keep sidewalks free of litter.

No person owning or occupying a place of business shall sweep into a deposit in any gutter, street or other public place within the city-parish the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying places of business within the city-parish shall keep all premises, including sidewalk, service alley and parking area of their business, free of litter.
(City Code 1951, Title 6, § 431; Parish Code 1962, Title 6, § 431)

Sec. 6:432. Litter from vehicles.

(a) *Violation.*

(1) No person, while a driver or passenger in a vehicle, shall throw or deposit litter upon any street or other public place within the city-parish, or upon private property.

(2) No person shall drive or move any truck or other vehicle within the city-parish unless such vehicle is so constructed or loaded as to prevent any load, contents or litter from being blown or deposited upon any street, alley or other public place.

(b) *Citation.* A violation of this ordinance may be cited and prosecuted as a criminal or civil violation. Criminal penalties for violation of this section are provided in section 6:449 and civil penalties are provided in subsection 6:432(e).

(c) *Enforcement authority.* The city police, the sheriff, the city constable and all ward constables of the parish shall have the authority to enforce the provisions of this section within their respective jurisdictions.

(d) *Procedure for civil enforcement.*

(1) *Citation forms.* All citations shall be issued on forms ordinarily used for the issuance of a summons. They shall, at a minimum, contain information concerning the nature, date, time and location of the infraction, the license number of the vehicle involved, the manner by which the penalty may be paid, litter detail performed in lieu of payment of the penalty, or the citation contested, and the fact that a failure to timely answer or appear shall be considered an admission of liability, authorizing the issuance of a default civil judgment against the violator.

(2) *Service of citations.* A citation shall be served personally upon the violator.

(3) *Disposition of citations.* The original citation shall be signed by the issuing official, and shall be processed in accordance with such procedures as may be established by the court exercising jurisdiction.

(4) *Citation as legal demand and prima facie evidence.* The original citation or any true copy thereof shall be considered a demand for enforcement of a legal right and shall further be considered an ordinary business record of the city-parish and prima facie evidence of the facts contained therein.

(5) *Answering citation.* A person to whom a citation has been issued shall answer to the same in the manner and within the delays indicated on the citation. An answer may take the form of:

a. Admission of the violation with payment of the scheduled civil penalty or submission of proof of completion of the prescribed number of hours of litter detail; or

b. Denial of liability by appearance on the scheduled adjudicatory hearing date.

(6) *Failure to answer, consequences.* Failure to answer a citation within the allowable period subjects the person to whom the citation was issued to such additional monetary penalties as may be prescribed by the court.

(7) *Default.* If a person to whom a citation has been issued fails to answer or fails to appear at a hearing when required to do so or having admitted or been finally judged liable for the violation, fails to timely pay the prescribed penalty, or perform the prescribed number of hours of litter detail, the court shall, without further notice, enter a default judgment sustaining the charges and fixing the appropriate penalty, which shall have the same effect as a civil money judgment; however, the laws relating to citation and service of process shall be observed prior to legal enforcement of any such civil judgment.

(8) *Adjudicatory hearings.*

a. Hearings for the adjudication of citations shall be conducted contradictorily between the respondent and the city-parish. The city-parish shall be represented by the city prosecutor in city court, the district attorney in district court and the ward constable in a justice of the peace court.

b. The city-parish shall have the burden of proving the violation by a preponderance of evidence, however, proof that litter blew out of the back of a particular vehicle in violation of this section shall constitute in evidence a prima facie presumption that the operator of the vehicle allowed it to blow out of the back of the vehicle.

c. At the conclusion of the contradictory hearing, the court shall render a civil judgment, either finding the respondent liable and assessing the penalty or denying liability and dismissing the claim. If a penalty is assessed, the violator may choose to perform litter detail in lieu of said penalty in accordance with the number of hours prescribed under the penalty section of this section.

(9) *Execution of judgments.* Execution may be levied and such other measures may be taken for collection of final judgments upon unpaid citations as are authorized for the collection of unpaid civil judgments entered against defendants in actions upon debt. The court may assess costs and legal interest against the judgment debtor to be paid upon satisfaction of the judgment.

(10) *Civil contempt citation.* If a respondent defaults in the payment of a penalty, the court may require the respondent to appear and show cause why the default should not be treated as a civil contempt; and the court may issue a summons, order to show cause, or, upon failure to appear pursuant to personal notice, a bench warrant for the respondent's arrest.

(11) *Method of notice.* Any notice permitted or required to be given under this chapter shall be considered given when personally served upon the violator, however, the laws relating to citation and service of process shall be observed prior to legal enforcement of any civil judgment.

(e) *Civil penalties.*

(1) Each violation of this section shall be deemed to be a separate violation, however, where more than one (1) violation has been cited on the same day per violator, the violations shall all be scheduled for adjudication on the same hearing date.

(2) For the first violation, the violator shall be fined five hundred dollars ($500.00). In lieu of paying the fine, the violator may submit proof of completion of eight (8) hours of litter detail.

(3) For the second violation, the violator shall be fined seven hundred and fifty dollars ($750.00). In lieu of paying the fine, the violator may submit proof of completion of twenty (20) hours of litter detail.

(4) For each subsequent violation, the violator shall be fined one thousand dollars ($1,000.00). In lieu of paying the fine, the violator may submit proof of completion of forty (40) hours of litter detail.

(5) Litter detail may be arranged by contacting the court services division of the Baton Rouge city court.

(f) *Disposition of monetary penalties.* The moneys collected pursuant to this chapter shall be forwarded to the director of finance, who, after deducting or allocating any credits due, shall deposit the remainder in the general fund of the city-parish.

(City Code 1951, Title 6, § 432; Parish Code 1962, Title 6, § 432; Ord. No. 9340, § 3, 9-25-91; Ord. No. 11330, § 1, 1-13-99; Ord. No. 14972, § 1, 8-11-10; Ord. No. 18376, § 1, 12-8-21)

Cross reference—Traffic code, Title 11.

Sec. 6:432.1. Disposing of cigarettes from vehicles prohibited.

No person shall intentionally dispose of or permit the disposal of cigarettes, cigarette butts, cigars, cigarillos, or cigar or cigarillo tips from a motor vehicle.

(1) For the first violation, the violator shall be fined three hundred dollars ($300.00). In lieu of paying the fine, the violator may submit proof of completion of eight (8) hours of litter detail.

(2) For the second violation, the violator shall be fined seven hundred dollars ($700.00). In lieu of paying the fine, the violator may submit proof of completion of sixteen (16) hours of litter detail.

(3) For the third and subsequent violation, the violator shall be fined one thousand dollars ($1,000.00). In lieu of paying the fine, the violator may submit proof of completion of twenty-four (24) hours of litter detail.

A violation of this section may be cited and prosecuted as a criminal or civil violation. Criminal penalties for violation of this section are provided in section 6:449 and civil penalties are provided in subsection 6:432(e).
(Ord. No. 18376, § 1, 12-8-21)

Sec. 6:433. Vehicles causing litter.

No person shall drive or move any vehicle within the city-parish, the wheels or tires of which carry onto or deposit in any street, alley or other public place, mud, dirt, sticky substances, litter or foreign matter of any kind.
(City Code 1951, Title 6, § 433; Parish Code 1962, Title 6, § 433; Ord. No. 11330, § 2, 1-13-99)
Cross reference—Traffic code, Title 11.

Sec. 6:434. Litter in parks.

No person shall throw or deposit litter in any park within the city-parish except in public receptacles and in such a manner that the litter will be prevented from being carried or deposited by the elements upon any part of the park or upon any street or other public place. Where public receptacles are not provided, all such litter shall be carried away from the park by the person responsible for its presence and properly disposed of elsewhere as provided herein.
(City Code 1951, Title 6, § 434; Parish Code 1962, Title 6, § 434)
Cross reference—Parks and recreation, Title 3.

Sec. 6:435. Litter in lakes and fountains.

No person shall throw or deposit litter in any fountain, pond, lake, stream, bay or any other body of water in a park or elsewhere within the city-parish.
(City Code 1951, Title 6, § 435; Parish Code 1962, Title 6, § 435)

Sec. 6:436. Throwing or distributing commercial handbills in public places.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any sidewalk, street or other public place within the city-parish. Nor shall any person hand out or distribute or sell any commercial handbill in any public place.
(City Code 1951, Title 6, § 436; Parish Code 1962, Title 6, § 436)

Sec. 6:437. Placing commercial and noncommercial handbills on vehicles.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any vehicle.
(City Code 1951, Title 6, § 437; Parish Code 1962, Title 6, § 437)
Cross reference—Traffic code, Title 11.

Sec. 6:438. Depositing commercial and noncommercial handbills on uninhabited or vacant premises.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any private premises which are temporarily or continuously uninhabited or vacant.
(City Code 1951, Title 6, § 438; Parish Code 1962, Title 6, § 438)

Sec. 6:439. Prohibiting distribution of handbills where properly posted.

No person shall throw, deposit or distribute any commercial or noncommercial handbill upon any private premises, if requested by anyone thereon not to do so, or if there is placed on the premises in a conspicuous position near the entrance thereof, a sign bearing the words: "No Trespassing," "No Peddlers or Agents," "No Advertisement," or any similar notice, indicating in any manner that the occupants of the premises do not desire to be molested or have their right of privacy disturbed, or to have any such handbills left upon such premises.
(City Code 1951, Title 6, § 439; Parish Code 1962, Title 6, § 439)

Sec. 6:440. Distributing commercial and noncommercial handbills at inhabited private premises.

(a) No person shall throw, deposit or distribute any commercial or noncommercial handbill in or upon private premises which are inhabited, except by handling or transmitting any such handbill directly to the owner, occupant, or other person then present in or upon such private premises; provided, however, that in case of inhabited private premises which are not posted, as provided in this part, such person, unless requested by anyone upon such premises not to do so, may place or deposit any such handbill in or upon such inhabited private premises, if such handbill is so placed or deposited as to secure or prevent such handbill from being blown or drifted about such premises or sidewalks, streets, or other public places, and except that mailboxes may not be so used when so prohibited by federal postal law or regulations.

(b) The provisions of this section shall not apply to the distribution of mail by the United States, nor to newspapers except that newspapers shall be placed on private property in such a manner as to prevent their being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.
(City Code 1951, Title 6, § 440; Parish Code 1962, Title 6, § 440)

Sec. 6:441. Dropping litter from aircraft.

No person in an aircraft shall throw out, drop or deposit within the city-parish any litter, handbill or any other object.
(City Code 1951, Title 6, § 441; Parish Code 1962, Title 6, § 441)

Sec. 6:442. Posting notices prohibited.

No person, either personally or by requesting another to do so, shall post or affix any notice, poster or other paper or device, calculated to attract the attention of the public, to any lamp-post, public utility pole or shade tree, or upon any public structure or building, or upon any public right-of-way, except as may be authorized or required by law.

Any person who violates the provisions of this section shall pay a penalty of one hundred twenty-five dollars ($125.00) for a first violation; a penalty of two hundred fifty dollars ($250.00) for a second violation within a two-year period; and a penalty of five hundred dollars ($500.00) for a third and any subsequent violations within a two-year period.

Enforcement of this section shall be pursuant to the provisions of title 1, section 609, et seq.
(City Code 1951, Title 6, § 442; Parish Code 1962, Title 6, § 442; Ord. No. 14683, § 7, 6-10-09; Ord. No. 15270, § 7, 2-8-12)

Sec. 6:443. Litter on occupied private property.

No person shall throw or deposit litter on any occupied private property within the city-parish, whether owned by such person or not, except that the owner or person in control of private property may maintain authorized private receptacles for collection in such a manner that litter will be prevented from being carried or deposited by the elements upon any street, sidewalk or other public place or upon any private property.
(City Code 1951, Title 6, § 443; Parish Code 1962, Title 6, § 443)

Sec. 6:444. Owner to maintain premises free of litter.

The owner or person in control of any private property shall at all times maintain the premises free of litter; provided, however, that this section shall not prohibit the storage of litter in authorized private receptacles for collection.
(City Code 1951, Title 6, § 444; Parish Code 1962, Title 6, § 444)

Sec. 6:445. Litter on vacant lots.

No person shall throw or deposit litter on any open or vacant private property within the city-parish whether owned by such person or not.
(City Code 1951, Title 6, § 445; Parish Code 1962, Title 6, § 445)

Sec. 6:446. Distribution of political handbills or printed matter.

The provisions of this part notwithstanding, political handbills or printed matter may be handed out or distributed in public places to individuals who are willing to accept same; provided, however, that no handbills of a commercial, political or noncommercial nature may be handed out or distributed to any occupant of a vehicle upon the public streets, whether such vehicle is moving or stopped for a signal. Nothing herein contained shall be construed in any way to deprive any bona fide organization or its members from enjoying and exercising any rights or privileges which they have, or may hereafter have, under the provisions of the laws of the state or the laws or Constitution of the United States of America.
(City Code 1951, Title 6, § 446; Parish Code 1962, Title 6, § 446)

Sec. 6:447. Duty to post signs, publish notice of provisions.

The director of public works is hereby authorized and directed to install and maintain adequate signs at appropriate places throughout the city-parish outlining the substance of this part, the prohibitions set forth herein, and the penalties prescribed hereinafter, such signs warning the public that any violations hereof will be prosecuted. In addition, the council administrator is authorized to give proper publicity hereto and shall, upon final adoption hereof, give notice to the public of the enactment of this part by an appropriate block ad in the official journal of the city-parish.
(City Code 1951, Title 6, § 447; Parish Code 1962, Title 6, § 447)

Sec. 6:448. Dumping.

No person shall dump on any public property or on any privately owned lands within the city or parish any litter, dirt, building material or other material, except for the purpose of grading or otherwise improving a building site or a site where a house or other habitable building already exists, without first having obtained a permit for such operations from the director of public works.
(Ord. No. 9340, § 4, 9-25-91; Ord. No. 10582, § 1, 2-28-96)

Editor's note—The provisions of former § 6:448 are now found in § 6-448.1.

Sec. 6:448.1. Dumping of concrete and/or cement derivatives.

(a) No person shall dump, deposit, litter or dispose of concrete and/or cement derivatives in or on sewer drains, drainage canals, culverts, street gutters, streets, roads, rights-of-way, drainage ditches, or on any public property of the city parish.

(b) No person shall clean a cement truck thereby depositing concrete and/or cement derivatives residue on the ground, in or on any sewer drains, drainage canals, street gutters, culverts, streets, roads, public rights-of-way, drainage ditches, or any public property of the city-parish, except in areas designated as a proper dumping site by the director of public works.
(City Code 1951, Title 6, § 449; Parish Code 1962, Title 6, § 449; Ord. No. 9340, § 5, 9-25-91)

Editor's note—The provisions of this section were formerly found in § 6-448.

Sec. 6:449. Penalty.

Whoever violates the provisions of this part, except as otherwise provided, shall be punished in accordance with the following:

(1) Any person violating the provisions of this part shall be fined not less than one

hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or shall be ordered to pick up trash or refuse for a period of not less than sixteen (16) nor more than forty (40) hours, or both, upon a first conviction.

(2) For a second conviction, such person shall be fined not less than five hundred dollars ($500.00) nor more than seven hundred and fifty dollars ($750.00), or shall be ordered to pick up trash or refuse for a period of not less than forty (40) nor more than one hundred twenty (120) hours, or both.

(3) For a third or subsequent conviction, such persons shall be fined not less than seven hundred and fifty dollars ($750.00) nor more than one thousand dollars ($1,000.00), and shall be ordered to pick up trash or refuse for a period of not less than one hundred twenty (120) nor more than two hundred (200) hours.

(City Code 1951, Title 6, § 448; Parish Code 1962, Title 6, § 448; Ord. No. 9340, § 6, 9-25-91; Ord. No. 18376, § 1, 12-8-21)

Sec. 6:450. Justice of the peace; jurisdiction and appeals.

(a) In accordance with R.S. 13:2586(c), a trial for any violation of the provisions of this part may be in a justice of the peace court.

(b) Any person convicted or found to be liable in a justice of the peace court for violating the provisions of this part shall have a right of direct appeal to the 19th Judicial District Court by trial de novo. The appeal must be filed within ten (10) days of the date of the conviction or judgment, and notice of the appeal must be given within the ten-day period to the justice of the peace who adjudicated the matter and the district court to which the matter is being appealed. The appeal from the decision of the district court shall be the same as provided by law for appeals of matters adjudicated by a district court.

(c) All fines collected by the Justice of the Peace courts pursuant to the provisions of this part shall be paid to the city-parish. In accordance with La. R.S. 13:2589(B), the city-parish shall reimburse the Justice of the Peace court which handles the violation for the time spent and expenses incurred. This reimbursement shall consist of up to one hundred (100) percent of the fines collected by the Justice of the Peace court pursuant to the provisions of this part.

(Ord. No. 9612, § 1, 4-28-93; Ord. No. 10618, § 1, 4-24-96; Ord. No. 11330, § 3, 1-13-99)

PART IV. SOLID WASTE FEES*

Sec. 6:455. Purpose.

The purpose of this part is to establish a user fee to fund the expenses of the curbside collection and disposal of residential and multi-family generated garbage, yard waste and/or recyclable materials for the entire City of Baton Rouge and Parish of East Baton Rouge (excluding the Cities of Baker and Zachary).

(Ord. No. 18729, § 1, 1-18-23)

Sec. 6:456. Definitions.

As used in this part, the following words and terms shall have the meanings ascribed in this section unless the context of their usage clearly indicates another meaning.

Bag shall mean a non-dissolvable plastic sack with a capacity of up to approximately thirty-five (35) gallons designed or intended to store municipal solid waste with sufficient wall strength to maintain physical integrity when lifted by the top.

Beyond contractor's control shall mean events that materially and adversely affect contractor's ability to perform the obligations under the contract and are not due to contractor's fault or negligence and could not be avoided by contractor's exercise of commercially reasonable efforts. Allowable event does include temporary landfill closure or extreme hazardous weather conditions but does not include economic hardship, manpower shortages for any reason or equipment failure.

*__Editor's note—__Former pt. IV, "transportation, treatment, storage and disposal of toxic wastes not regulated by the state hazardous waste management plan," §§ 6:455, 6:456, derived from Ord. No. 7744, adopted Dec. 18, 1984, and was repealed by Ord. No. 9716, § 1, adopted Sept. 22, 1993.

Billing and collection agent or agents shall mean a water company, corporation, partnership, individual or other legal entity that has contracted with the city-parish to provide the following services:

(1) To mail or deliver each user fee bill to the correct address insofar as possible;

(2) To receive and account for user fee revenues paid and remit such monies on a daily basis or other basis as approved by the director of finance, as collected, for deposit on behalf of the city-parish;

(3) To maintain books and records open for inspection by the city-parish during regular business hours at the service fee business office and the office of the agent as provided in the agreement between the city-parish and the agent; and

(4) To contract with the city-parish to assist the agent in collecting the user fee through the service fee business office established and maintained by the city-parish, and to similarly establish other convenient payment options, subject to the approval of the city-parish and the agent.

Brush shall mean cuttings or trimmings from trees, shrubs, or lawns and similar materials that are not to be placed into carts. Any carts with brush is deemed an unacceptable set-out.

Bulk waste shall mean municipal solid waste composed of materials not easily containerized in a cart such as, but not limited to, furniture, mattresses and box springs, carpet, bicycles, toilets, and other similar items, provided all such materials must be permitted to be disposed in a type IV landfill. Bulk waste shall also include dead animals, Christmas trees and municipal solid waste enclosed in bags or bundles that is set-out for collection with bulk waste services. A maximum of three (3) items of bulk waste shall be collected per collection under yard waste and bulk waste service from a residential service unit.

Cart shall mean a city-parish or contractor-provided (and city-parish owned) leak-proof container with attached lid and wheels with a capacity of between forty-eight (48) to ninety-six (96) gallons that allows for the automated or semi-automated collection of municipal solid waste or recyclables, and approved for use by the city-parish.

City-parish shall mean the political subdivision which includes the incorporated limits of the City of Baton Rouge, the incorporated limits of the City of Central and the unincorporated limits of the Parish of East Baton Rouge (for the purpose of this part, excluding the Cities of Baker and Zachary).

Collect or *collection* shall mean the act of removing municipal solid waste, yard waste, and bulk waste for transport to a disposal facility authorized by the city-parish, and the act of removing recyclables and for transport to a material recovery facility.

Commercial operations of rental property shall mean any work performed by the owner or their designee of either a multi-family unit or residential unit that is considered rental property is deemed to be commercial operations and is excluded from city/parish provided residential garbage/trash/recycle services. Examples are move out cleanup, eviction cleanup, remodeling, maintenance operations, etc.

Commercial service provider shall mean a provider of commercial services to residential service units or multi-family complexes, such as tree trimming, lawn care services, tree cutting or clearing, land clearing, construction services, or other professional service contractors at residential service units or multi-family complexes.

Commercial solid waste shall mean all types of solid waste and program recyclable materials generated by stores, offices, restaurants, warehouses, commercial service providers, landlords from multi-family units or multi-family complexes, and other non-manufacturing activities, excluding residential and industrial solid wastes.

Concierge collection services shall mean the collection of residential solid waste and recycling services from the property by walking to the house and retrieving the cart, taking the cart to the collection vehicle, emptying the cart and

then returning the cart to the place the cart was retrieved. The cart must be visible from the street.

Construction and demolition waste shall mean municipal solid waste resulting from construction or demolition projects or land clearing; includes all materials that are directly or indirectly the by-products of construction work or that result from demolition of buildings and other structures, including, but not limited to, paper, cartons, gypsum board, wood, excelsior, rubber, plastics, concrete, asphalt, and old corrugated cardboard.

Container shall mean compactor, dumpster, and roll-off.

Contamination shall mean the existence of any other material or substance on or contained in program recyclable materials other than program recyclable materials.

Contiguous shall mean touching at any point.

Contractor shall mean person(s) or company(ies) authorized by the city-parish to perform solid waste collection services on prescribed routes within the city-parish and authorized to do business in the city-parish and the state, and contractor's assignees and contractor's subcontractors.

Curbside shall mean within five (5) feet of the street or alleyway that provides primary access to the residential service unit as designated by the city-parish.

DBE shall mean disadvantaged business enterprise.

Delivery facility shall mean a transfer station or other facility that is able to accept, manage and transport program recyclable materials to a material recovery facility in accordance with applicable law. For clarity, a delivery facility may also be a material recovery facility.

Director shall mean the director of finance of the City of Baton Rouge and the Parish of East Baton Rouge or his designated representative or the director of environmental services or their designated representative.

Disposal shall mean the authorized deposit of any solid waste materials collected under this contract at a disposal facility.

Disposal facility shall mean a sanitary landfill, transfer station, incinerator, waste-to-energy facility, waste processing or separation facility, or other solid waste disposal facility, upon approval by the city-parish, that is licensed, permitted, or approved by all governmental bodies and agencies having jurisdiction and utilized for the receipt or final disposition of solid waste generated within the contract area. The authorized disposal facility for this contract shall be the city-parish's north landfill, located at 16001 Samuels Road, Zachary, LA 70791, unless otherwise agreed to by the city-parish.

Eviction waste shall mean tenant-owned materials removed from a residential service unit or multi-family unit resulting from the eviction of a tenant from a residential service unit or multi-family unit.

Excluded waste shall mean hazardous waste, special waste, construction and demolition waste, eviction waste, whole or partial trees, fence sections, and commercial solid waste.

Garbage shall mean solid waste consisting of putrescible animal and vegetable waste materials resulting from the handling, preparation, cooking, and consumption of food, including waste materials from markets, storage facilities, handling, and sale of produce and other food products.

Garbage services shall mean have the same meaning as municipal solid waste services.

Hazardous waste shall mean any solid waste identified or listed as a hazardous waste by the administrator of the United States Environmental Protection Agency under the federal Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act of 1976, 42 United States Code, § 6901 et seq., as amended.

Material recovery facility shall mean a facility whose activities include the separation and preparation of program recyclable materials to produce a marketable commodity.

Multi-family complex shall mean a continuous dwelling, including all multi-family units there in, under a common roof of three (3) or more units, whether contiguous or multi-level construction, and shall include, but not be limited to, dwellings considered to be apartment houses, grouped housing, or condominiums.

Multi-family unit shall mean each dwelling unit under a common roof of three (3) or more units. Multi-family units shall include, but not be limited to, dwellings considered to be apartment houses, grouped housing, or condominiums. Multi-family units shall be serviced by dumpster(s) under this contract, unless otherwise specified by the city-parish. Minimum required dumpster capacity(ies) to be utilized for each multi-family complex shall be designated by the city-parish. Only residential garbage collection is provided. However, no bulky waste collection is provided as the operations of the multi-family units is considered a commercial operation. However, at the option exercised in accordance with the regulations of the single person or legal entity who owns five (5) or more dwelling units on continuous pieces of property, these dwelling units may be treated as commercial units. A management group, as defined in the regulations, or other legal entity which manages the affairs of five (5) or more dwelling units on contiguous pieces of property may apply to the director of environmental services and, after compliance with requirements set forth in the regulations, may opt to provide that those units be treated as commercial units not subject to the provision of this part.

Municipal solid waste shall mean solid waste resulting from or incidental to activities of residential service units, multi-family units, city-parish municipal facilities, and additional services, including garbage and rubbish. Municipal solid waste shall not include excluded waste.

Plan of government shall mean the plan of government of the city and parish, as now or hereafter amended, which was adopted August 12, 1947, and became effective January 1, 1949.

Recyclable material shall mean material that has been recovered or diverted from the nonhazardous solid waste stream for purposes of reuse, recycling, or reclamation, a substantial portion of which is consistently used in the manufacture of products that may otherwise be produced using raw or virgin materials. Recyclables are not solid waste. However, recyclables may become solid waste at such time, if any, as it is abandoned or disposed of rather than recycled, whereupon it will be solid waste with respect only to the party actually abandoning or disposing of the material.

Regulations shall mean rules, guidelines and procedures to be developed, coordinated, promulgated and kept up to date by the director and referred to in section 6:461 hereof, for the economic and efficient administration of the provisions of this part.

Resident shall mean a person whom resides at a residential service unit or multi-family unit.

Residential service unit shall mean a dwelling, excluding multi-family units, within the contract area occupied by a person or group of persons. A residential service unit shall be deemed occupied when either an active water or domestic light and power service are being supplied thereto and a minimal fee, as established by the respective utility, is being charged. A residential service unit shall be deemed to be occupied according to this definition for a period of up to thirty (30) days after either an active water or domestic light and power service has been discontinued. Mobile homes, either individually or grouped in mobile home parks shall be considered residential service units and shall be counted as single units. Those units which are occupied but do not have utility service (e.g. privately owned septic and/or water facilities) shall also be eligible for residential services under this contract and contractor shall be entitled to compensation. Dwelling structures with one (1) dwelling unit (single-family dwelling) or two (2) contiguous dwelling units (duplex dwelling) shall be considered residential service units. Dwelling structures with three (3) or more dwelling units shall be considered multi-family units.

Residential services shall mean municipal solid waste services, recycling services, and yard waste and bulk waste services provided to residential service units.

Rubbish shall mean non-putrescible solid waste (excluding ashes), consisting of both combustible and noncombustible waste materials. Combustible rubbish includes paper, rags, cartons, wood, excelsior, furniture, rubber, plastics, brush, or similar materials; noncombustible rubbish includes glass, crockery, tin cans, aluminum cans, and similar materials that will not burn at ordinary incinerator temperatures (1,600 degrees Fahrenheit to 1,800 degrees Fahrenheit).

Solid waste shall mean any garbage, rubbish, sludge from a waste treatment plant, water supply treatment plant, or air pollution control facility, and other discarded material, including solid, liquid, semi-solid, or contained gaseous material resulting from industrial, commercial, mining, and agricultural operations, and from community activities, but does not include or mean solid or dissolved material in domestic sewage or solid or dissolved materials in irrigation return flows or industrial discharges which are point sources subject to permits under R.S. 30:2074, or source, special nuclear, or byproduct material as defined by the Atomic Energy Act of 1954, as amended (42 U.S.C. § 2011 et seq.), or hazardous waste subject to permits under R.S. 30:2171 et seq.

Solid waste user fee or *user fee* shall mean the solid waste service charge levied and to be collected hereunder from each resident and multi-family unit.

Treasurer shall mean the treasurer under the City of Baton Rouge, Parish of East Baton Rouge, Louisiana under the plan of government.

Water company shall mean an individual corporation, partnership, or other private legal entity and the Cities of Baker and Zachary, engaged in the business of providing potable water and water system services within the parish corporate limits.

White goods shall mean appliances such as refrigerators, stoves, washers, dryers and other large enameled appliances, which do not contain Polychlorinated Biphenyls (PCBs) or Chlorofluorocarbon (CFC) units and have been officially certified to that effect.

Yard waste shall mean cuttings or trimmings from trees, shrubs, or lawns, and similar materials such as grass, leaves, flowers, stalks, tree trimmings, brush, and branches, including clean woody vegetative material not greater than six (6) inches in diameter that are set out to be collected as a part of the yard waste and bulk waste services. Yard waste shall be contained in bags, yard waste bags, or placed in bundles for collection with yard waste and bulk waste services. Total weight of a bag, yard waste bag, or bundle and its contents set-out for collection shall not exceed forty (40) pounds. Christmas trees are considered yard waste. Any such material set out to be collected with municipal solid waste services shall be considered municipal solid waste. Yard waste does not include stumps, tree trunks, limbs greater than six (6) inches in diameter, roots, or shrubs with intact root balls. A maximum of ten (10) items containing yard waste, of any combination (bags, yard waste bags, and/or bundles), shall be collected per collection under yard waste and bulk waste service, from a residential service unit.

Yard waste bag shall mean Kraft bag or other similar sack made of multi-layer paper, designed to store yard waste with sufficient wall strength to maintain physical integrity when lifted. Total weight of a yard waste bag and its contents set-out for collection shall not exceed forty (40) pounds.

Yard waste and bulk waste service shall mean the collection and disposal of yard waste and bulk waste by the contractor, pursuant to this contract. The maximum amount of materials collected per collection under yard waste and bulk waste service, per residential service unit, shall be up to ten (10) items of any combination (bags, yard waste bags, and/or bundles) containing yard waste and, in addition, up to three (3) bags, bundles, or items of bulk waste.
(Ord. No. 18729, § 1, 1-18-23)

Sec. 6:457. User fees for collection and disposal—Established.

The following monthly fees are established for the collection, removal and disposal of garbage, trash and/or recyclable materials and shall be

effective March 1, 2023. Rates established under Ordinance 16678 and amendments thereto shall remain in effect prior to that time.

(1) Participating multi-family units:

CUBIC YARDS	*RECOMMENDED RATE*
2	$95.00
4	190.00
6	285.00
8	380.00
10	475.00

(2) Residential unit fee: thirty-five dollars and twenty-three cents ($35.23) per month.

(3) Residential unit fee for residents meeting eligibility requirements for the low-income home energy assistance program: thirty dollars and seventy-three cents ($30.73) per month.

(4) Residential unit fee for each additional garbage or recycling cart above the one provided for garbage and one provided for recycling under subsection (2) above: seven dollars ($7.00) per month.

(5) All fees under subsections a, b, c, and d shall be analyzed on a yearly basis to ensure fees cover all costs associated with services covered by the fee and shall be adjusted once a year on January 1 to cover such costs as approved by the council.

(Ord. No. 18729, § 1, 1-18-23)

Sec. 6:458. Billing of user fee.

(a) The solid waste user fee shall be included as a separate item each month on the sewer/water bills rendered by the billing and collection agent. Those residents and multi-family units who do not have water service will receive a bill from the billing and collection agent for the solid waste user fee only. Residents and multi-family units who have water service with a water company other than the billing and collection agent will receive a separate bill for the solid waste user fee from the service fee business office or the billing and collection agent.

(b) Nothing herein shall prevent the city-parish from assuming the functions of the billing and collection agent.

(c) The user fee will be billed monthly and in some cases in advance due to cycle billing; however, the director is authorized to implement advance quarterly billing and collection for those residents and multi-family units who are not billed the solid waste user fee in connection with a sewer bill.

(d) If a resident or multi-family unit fails or neglects to pay the solid waste user fee, penalties, interest, NSF charges or reconnect/disconnect charges, the service fee business office will notify the resident or multi-family unit in writing of the delinquency and shall advise them that one (1) or more utility services will be terminated if payment is not received on or before the date given in the notice.

(e) If a resident or multi-family unit has been billed for the user fee and terminates water service, a refund will be available upon request of the resident as provided in the regulations.

(f) If a resident or multi-family unit vacates a premises, the outstanding fees and charges may be transferred to any other premises within the city-parish where they have service. If the outstanding fees and charges are not paid within the time specified, services will be discontinued at the latter premises.

(g) The director(s) may adjust the user fee bill for any resident or multi-family unit upon complaint and subsequent investigation, as provided in the regulations.

(Ord. No. 18729, § 1, 1-18-23)

Sec. 6:459. Penalties, charges, fees; towing authority.

(a) To assure the solid waste user fees are paid promptly when due, the director may levy deposits, penalties, interest and disconnect/reconnect fees as established in the regulations. Deposits, penalties, interest and other fees and charges shall not be in excess of amounts customarily authorized for utility systems in the

state. NSF charges shall be authorized under this part and administered according to procedures set forth in the regulations.

(b) To provide for the disconnection of water service for non-payment of the solid waste user fee where a vehicle is parked in such a manner as to obstruct the water meter, thereby making disconnection impossible, the director may provide for removal as follows:

(1) The service fee business office shall cause to be placed, either by a representative of that office or the water company, on the interfering vehicle a notice stating that the vehicle is interfering with access to a water meter, giving the owner ten (10) days to move the vehicle, giving a phone number of the employee of the service fee business office to inform of any special circumstances that might exist, and stating the costs that would be incurred by the resident should the vehicle have to be towed.

(2) In addition to the notice, the service fee business office may order the resident to remove the interfering vehicle. Such order shall include the phone number of an employee of the service fee business office empowered to cancel any towing directive upon being given reasonable cause for the failure of the resident to move the vehicle and proof that good faith efforts are being made to pay the outstanding balance of the solid waste user fee. The order shall further require compliance within ten (10) days from service, and shall provide that, should the resident choose to comply by moving the vehicle, in order to avoid a fee for requiring a visit by the tow truck, the resident must notify the service fee business office that the vehicle no longer interferes with access to the water meter. The order shall be served upon the resident personally or by certified mail.

(3) If the resident refuses to comply with the order, after an additional ten (10) days have lapsed from the service of notice and no satisfactory explanation has been received by the director for the failure of the resident to move the vehicle, the vehicle may be towed away to permit access to the water meter at the expense of the resident. The water service of the resident may not be reconnected until all payments including the towing service have been paid.

(4) The towing company responsible for the service detailed in this section shall be selected in accordance with the Public Bid Law, R.S. 38:2211 et seq.

(Ord. No. 18729, § 1, 1-18-23)

Sec. 6:460. Responsibility for user fee.

(a) All residential water service customers shall be billed and shall be responsible for payment of the user fee. Application for water service to a residential unit shall automatically be considered application for solid waste collection. The user fee for residential units not receiving water service shall be billed to the tenant or the owner of the property on which such unit is located, as shown on the latest available real property tax bill.

(b) All owners of participating multi-family units, as shown on the latest available real property tax bill, shall be billed and shall be responsible for payment of the user fee. Application for water service by the owner to a multi-family unit shall automatically be considered application for solid waste collection.

(c) The director may authorize the termination of solid waste collection services to a residence or multi-family unit when water service to that unit is terminated for non-payment of the solid waste user fee.

(Ord. No. 18729, § 1, 1-18-23)

Sec. 6:461. Regulations.

The director is hereby empowered, authorized and directed to prepare and promulgate regulations necessary to collect and administer the user fee authorized by this part.

(Ord. No. 18729, § 1, 1-18-23)

Sec. 6:462. Service fee business office.

The city-parish shall maintain jointly with the billing and collection agent and service fee business office for the purpose of providing services to citizens of the city-parish. This office, under the director, shall provide multiple services including receiving payment of fees, correcting or adjusting statements, answering questions, receiving and acting on billing complaints, sending delinquent notices and issuing termination of service orders.
(Ord. No. 18729, § 1, 1-18-23)

Sec. 6:463. Exemptions from user fee.

No free services shall be provided by the contractor to any place of residence, building, facility or other premises, and all residents shall pay the user fee provided for herein without exemption or discrimination.
(Ord. No. 18729, § 1, 1-18-23)

Sec. 6:464. Severability.

If any provision or item of this part or the application thereof is held invalid, such invalidity shall not affect other provisions of this part which can be given effect without the invalid provisions and to this end the provisions of this part are hereby declared "severable."
(Ord. No. 18729, § 1, 1-18-23)

CHAPTER 5. REGULATION AND INSPECTION OF BAKERIES*

Sec. 6:475. Definition.

Any place used for any process of mixing, compounding, or baking, for sale, any break, crackers, buns, macaroni, spaghetti, noodles of any and all kinds shall be deemed a bakery for the purposes of this chapter.
(City Code 1951, Title 6, § 450)

Sec. 6:476. Permit required to operate.

No person shall establish, maintain or operate any bakery without first having obtained a permit to do so, from the health unit and the council. No permit shall be require for the purpose of conducting a private bakery in the kitchen of a dwelling where the baking is done in an ordinary kitchen range or stove, for the use of the inmates of the dwelling. Every person establishing, maintaining or operating any such bakery shall annually make application for permit for each bakery so maintained or operated, which permit shall be issued for one (1) year. A permit may be issued for an unexpired part of a calendar year upon compliance with all requirements hereinafter mentioned, provided, that no charge shall be made for such permit after June first of such year.
(City Code 1951, Title 6, § 451)

Sec. 6:477. Application.

Any person desiring to establish, maintain or operate a bakery shall make application for a permit, in writing, at the office of the health unit or a blank furnished by such office. Such application shall set forth the name and residence of the applicant if an individual, and the names and residences of all members if a firm, or the president, vice-president and secretary if a corporation, together with the location of the place for which the permit is desired. The application shall also state the maximum number of persons to be employed in the bakery, the number of rooms or apartments therein, and any other facts concerning the proposed bakery which the board of health may require to have stated in the application.
(City Code 1951, Title 6, § 452)

Sec. 6:478. Inspection required.

Within a reasonable time after the receipt of the application, it shall be the duty of the health unit to make, or cause to be made, an inspection of the place described in the application, for the purpose of ascertaining whether the location of the proposed bakery, the construction, ventilation and lighting thereof, the amount of space therein and the sanitary arrangements are sufficient and that the public health and the health of the persons to be employed in the proposed bakery will not be endangered. If the health unit shall be satisfied of the reliability of the applicant

*__State law reference—__Flour and bread, R.S. 40:781 et seq.

that the proposed bakery shall be kept and maintained in accordance with the provisions of this chapter, then the health unit may issue, or cause to be issued, to the applicant, a permit authorizing such applicant to keep, conduct or maintain a bakery at the place described in such application for and during the period of the permit. No permit shall be issued unless the application for the permit shall be approved by the health unit.
(City Code 1951, Title 6, § 453)

Sec. 6:479. Power to revoke permit.

If at any time after the granting of the permit the health unit shall decide that the public health, or the health of the persons employed in the bakery is endangered by maintenance of the bakery, it shall be the duty of the health unit, and it is hereby so authorized, to revoke the permit thereof.
(City Code 1951, Title 6, § 454)

Sec. 6:480. Posting of permit.

Every permit granted under the provisions of this chapter shall be posted in a conspicuous place in the bakery for which the permit is issued.
(City Code 1951, Title 6, § 455)

Sec. 6:481. Cleanliness required.

Every place used as a bakery shall be kept in a thoroughly clean and sanitary condition as to its floors, sidewalls, ceilings, woodwork, fixtures, furniture, tools, machinery and utensils. All rooms used for that purpose shall be provided with adequate ventilation by means of windows, air shafts, or air ducts and other mechanical apparatus, if required, so as to insure a free circulation of fresh air at all times. All openings shall be kept screened at all times, with fixed or self closing wire screens having not less than fourteen (14) meshes to the inch. Every bakery shall be provided with adequate plumbing and drainage facilities, including wash sinks and water closets. No water closet shall be entered from or shall be in direct communication with a bakery.
(City Code 1951, Title 6, § 456)

Sec. 6:482. General regulations.

No person shall sleep in a bakery and sleeping places of the persons employed in a bakery shall be separate from the rooms where flour or meal or food products are handled or stored. If the sleeping places are on the same floor as the bakery, the health unit shall require them to be maintained in a thoroughly sanitary condition. No domestic animal shall be permitted in a bakery, or place where flour or meal is stored in connection with a bakery. Bakers and all persons working in any bakery shall maintain strict cleanliness in their hands and persons, while engaged in any process of manufacturing, handling or selling bak-

ery products. The smoking, chewing or snuffing of tobacco is forbidden in a bakery. Plain notices shall be posted in every such place forbidding all persons from using tobacco. No person affected with any communicable disease or any of the reportable diseases provided for in Section 12 of the Sanitary Code of the State of Louisiana shall work in a bakery, and no owner or person in charge of the bakery shall require, permit or suffer any such person to be employed in any bakery.
(City Code 1951, Title 6, § 457)

Sec. 6:483. Storage rooms.

No person shall store flour or meal for the use of any bakery or for the manufacture of food products except in dry and well ventilated rooms. Every bakery and room used for storage of material and food products shall be so arranged that the shelves, cupboards, trays, troughs, bins, cases and other appliances for handling and storing the same may be easily removed and perfectly cleaned, and no such materials or products shall be stored in rooms having floors below the street level, at a distance less than one foot above the floor of the room.
(City Code 1951, Title 6, § 458)

Sec. 6:484. Infectious and contagious matter.

All bakeries shall be kept in a clean condition and free from rats, mice, roaches, and vermin and from all matter of an infectious or contagious nature, and any bakery which shall not be so kept is hereby declared to be a public nuisance, and it shall be the duty of the health unit to cause the same to be abated.
(City Code 1951, Title 6, § 459)

Sec. 6:485. Building regulation.

No bakery shall be established after the passage of this chapter in any room in which the clear height between the finished floor and the finished ceiling is less than eight (8) feet and six (6) inches, or in any location which is not in such communication with the outer air as to allow of adequate lighting and ventilation.
(City Code 1951, Title 6, § 460)

Sec. 6:486. Health unit to inspect.

The health officer and the inspectors and employees of the health unit shall have the right at all times to enter and inspect and make such record of the condition of any bakery as they may deem necessary, and if such inspection shall disclose a lack of conformity with this chapter, the health unit shall require such changes, alterations and renovations as they may deem necessary to restore compliance with this chapter within a reasonable time.
(City Code 1951, Title 6, § 461)

Sec. 6:487. Penalty.

Any person who shall violate any of the provisions of this chapter shall, on conviction, be subject to a fine of not less than five dollars ($5.00) or more than fifty dollars ($50.00), or imprisoned for not more than twenty (20) days, or both, at the discretion of the court.
(City Code 1951, Title 6, § 462)

CHAPTER 6. SLAUGHTER AND SALE OF MEAT AND POULTRY*

Sec. 6:500. Definitions.

For the purpose of this chapter the following words, phrases and terms shall be construed respectively to mean:

Carcass means all parts, including the viscera of a slaughtered animal or poultry which is capable of being used for food.

Director mean the director of the health unit.

Eviscerated poultry or *ready-to-cook poultry* means dressed poultry from which the protruding pinfeathers, vestigial feathers, head, shanks, crop, oil gland, trachea, esophagus, entrails, reproductive organs, and lungs have been removed, and with or without giblets, is ready for cooking without need of further processing or cleaning.

*State law reference—Meat, R.S. 40:941 et seq.

Lay inspector means any person who assists veterinary inspectors in antemortem and postmortem inspections, handling and marking of meat and poultry and meat and poultry products.

Meat means the flesh of any cattle, hog, sheep, goat, or poultry (chicken, turkey, geese, ducks).

Meat products means any part or portion of any animal or poultry and shall include any mixture of meat from animals or poultry as defined in this chapter, which with other food products is intended for consumption.

Poultry products means any ready-to-cook poultry consisting of any edible part or parts of poultry in combination with other ingredients.

Veterinary inspector means any person appointed as such by the director. He shall be a graduate of a recognized veterinary school and shall possess the same qualifications as to experience as is now required by the meat inspection division of the United States Department of Agriculture.
(City Code 1951, Title 6, § 500; Parish Code 1962, Title 6, § 500)

Sec. 6:501. Appointment of meat inspectors.

The director may appoint one or more inspectors of meat and meat products, to assist him in enforcing this chapter, and such inspectors shall possess the qualifications required by this chapter.
(City Code 1951, Title 6, § 501; Parish Code 1962, Title 6, § 501)

Sec. 6:502. Slaughtering building.

All animals and poultry slaughtered and/or killed and the meat or meat products sold or offered for sale for human consumption shall be slaughtered or killed in a building which has met the requirements of the director, and no meat or meat products shall be sold from any animal or poultry slaughtered or killed in any building which does not meet these requirements and which is not approved by the director. The director may, from time to time, adopt such reasonable rules and regulations as he may deem necessary for the slaughter or killing of animals or poultry and the buildings in which the same shall be slaughtered or killed, for the purpose of keeping such buildings in a clean, sanitary condition so as to insure the consumer of good, wholesome meat or meat products for human consumption.
(City Code 1951, Title 6, § 502; Parish Code 1962, Title 6, § 502)

Sec. 6:503. Inspection by director.

The director shall conduct a careful antemortem inspection of all animals and poultry brought to the slaughterhouse for the purpose of being slaughtered and shall make a careful postmortem inspection of all carcasses of the animals and poultry, the meat or meat products of which shall be sold, offered for sale or otherwise disposed of for human consumption, and the meat of such animals or poultry found fit for human consumption shall be stamped or marked with an appropriate stamp or tag by the director. No poultry may be approved without meeting the requirements of eviscerated or ready-to-cook poultry. After such inspection the meat or meat products from such animal or poultry may be sold, offered for sale, or otherwise disposed of.
(City Code 1951, Title 6, § 503; Parish Code 1962, Title 6, § 503)

Sec. 6:504. Disposal of animals unfit for consumption.

Any animal or poultry which shall be considered unfit for human consumption shall be disposed of by the director in a manner which shall not endanger the health of the public and which shall not communicate diseases to other animals or poultry or create a nuisance.
(City Code 1951, Title 6, § 504; Parish Code 1962, Title 6, § 504)

Sec. 6:505. Meat not for human consumption.

No person shall sell, offer for sale or otherwise dispose of for the purpose of human consumption the meat or meat product of any horse, dog, cat or other animal or other poultry whether of the same or of any unrelated nature which is not generally used for human consumption in accordance with these rules and regulations promulgated by the board of health in accordance with this chapter, the laws of the state, or the rules and regulations of the state board of health, or in accordance with

the same as they may hereinafter be amended.
(City Code 1951, Title 6, § 505; Parish Code 1962, Title 6, § 505)

Sec. 6:506. Prerequisite for sale.

Only meat or meat products and poultry or poultry products which have been inspected, approved and stamped or tagged by the director or by the Department of Agriculture of the United States Government Agricultural Marketing Service may be sold, offered for sale or otherwise disposed of for human consumption; provided, however, that such meats and the places where the same are sold or offered for sale shall be subject at all times to reinspection by the director to determine the continued condition of soundness and wholesomeness of such meat or meat products and poultry or poultry products for human consumption.
(City Code 1951, Title 6, § 506; Parish Code 1962, Title 6, § 506)

Sec. 6:507. Stamp required for storage.

No meat shall be accepted for storage or retention or for sale by any establishment unless the animal or poultry has been slaughtered or killed in compliance with the provisions of this chapter and bears the stamp or tag of approval of the director or of the Department of Agricultural Marketing Service of the United States Government.
(City Code 1951, Title 6, § 507; Parish Code 1962, Title 6, § 507)

Sec. 6:508. Transportation.

All meat and meat products and poultry and poultry products shall be transported only in accordance with the regulations of the director and the laws of the state. All vehicles used for transport shall be kept clean and sanitary and be properly refrigerated. Vehicles transporting meat and meat products or poultry and poultry products which have not been slaughtered or killed in accordance with the provisions of this chapter must remain closed and no transfer, loading or unloading of meat and meat products or poultry and poultry products shall take place within the city-parish. In the case of vehicle accident, provision for reloading may be arranged through the director.
(City Code 1951, Title 6, § 508; Parish Code 1962, Title 6, § 508)

Sec. 6:509. Labeling.

(a) The shipping container and immediate container of all meat and poultry being sold or offered for sale shall be labeled to show the following information:

(1) Name of product; in the case of poultry, the words "eviscerated" or "ready-to-cook" shall be included within the name of the product;

(2) Name and address of the packer or distributor and when the name of the distributor is shown, it shall be qualified by such term as "packed for," "distributed by" or "distributors;"

(3) Identifying plant number as issued by the official government agency;

(4) A statement of ingredients if fabricated from two (2) or more ingredients including a declaration as to artificial flavors, colors, or preservatives, if any;

(5) The net weight or other appropriate measure of content.

(b) All meat and meat products or poultry and poultry products in package form being sold or offered for sale shall conform to the labeling requirements of the Louisiana Food, Drugs and Cosmetic Act, in addition, thereto, all poultry, meaning each individual whole bird, shall bear the inspection legend of the plant where slaughtered. No person shall affix an inspection legend or tag to any poultry which has not been inspected and approved in accordance with the provisions of this chapter. No person shall remove, replace, mutilate or otherwise tamper with the inspection identification. The operation of cutting up poultry shall be permitted provided that the source of the poultry used meets the requirements of this chapter and the transfer, removal or mutilation of tags in the process of cutting up poultry will not be considered a violation.
(City Code 1951, Title 6, § 509; Parish Code 1962, Title 6, § 509)

Sec. 6:510. Inspection fee.

There is hereby imposed an inspection fee of twenty-five cents ($0.25) for each red meat animal inspected by the director, and an inspection fee in the amount of two dollars and fifty cents

($2.50) per hour with a minimum of two dollars and fifty cents ($2.50) for poultry inspections. The fees shall be paid by the owner of the animal or poultry to the owner of the slaughterhouse to which the animal or poultry is brought, who shall keep a record of all fees collected in accordance with the director's rules and regulations and shall remit such records, together with all fees, to the director of finance upon the first day of the months of January, April, July and October of each year. The above fees shall not apply whenever matching funds are received from either state or federal sources on a minimum of 50/50 basis.
(City Code 1951, Title 6, § 510; Parish Code 1962, Title 6, § 510)

Sec. 6:511. Requirement of slaughterhouse.

(a) No person who owns or operates a slaughterhouse, nor his agent, servant, or employee, shall allow any carcass, or part thereof, to leave his slaughterhouse to be sold or offered for sale for human consumption without having been inspected, approved and stamped by the director.

(b) The provisions of this chapter shall not apply to the slaughtering of animals and poultry not intended for human consumption, nor to the slaughtering of animals and poultry when the owner thereof certifies that they are for his personal use and not intended for sale or offering for sale.
(City Code 1951, Title 6, § 511; Parish Code 1962, Title 6, § 511)

Sec. 6:512. Authority for other regulations.

In addition to the rules and regulations authorized elsewhere in this chapter, the director is hereby authorized to promulgate and publish reasonable rules and regulations necessary for the effective administration and enforcement of this chapter; provided that such rules and regulations shall not be inconsistent with the provisions of this chapter or the laws and the constitution of this state.
(City Code 1951, Title 6, § 512; Parish Code 1962, Title 6, § 512)

Sec. 6:513. Duplicate or similar stamp prohibited.

No person shall make or create a stamp or identification tag which duplicates or imitates the stamp or tag used by the director to show that animals or poultry has been inspected and approved for human consumption by the director.
(City Code 1951, Title 6, § 513; Parish Code 1962, Title 6, § 513)

Sec. 6:514. Exceptions.

The provisions of this chapter shall not apply if the state and/or the federal government has an effective meat and poultry inspection program as determined by the director.
(City Code 1951, Title 6, § 517; Parish Code 1962, Title 6, § 517)

Sec. 6:515. Penalty.

Any person convicted of violating any of the provisions of this chapter shall be punished by a fine of not more than two hundred dollars ($200.00), or imprisonment for not more than thirty (30) days, or both, and a separate offense shall be deemed committed on each day during or on which a violation occurs or continues. The officer or agent in charge of any corporation affected by the provision hereof shall be subject to prosecution for any violation by such corporation, and upon conviction may be punished as provided above.
(City Code 1951, Title 6, § 514; Parish Code 1962, Title 6, § 514)

CHAPTER 7. EATING AND DRINKING ESTABLISHMENTS*

Sec. 6:600. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

Director shall mean the director of the health unit.

Eating and drinking establishment shall mean restaurant, coffee shop, cafeteria, cafe, caterer, lunch counter, tavern, bar or lounge, soda fountain, lunch wagon, coin-operated or automatic vending machines dispensing food or drink, and all other establishments including kitchens or other places in which food or drink is prepared for sale elsewhere.

*State law reference—Food and drugs, R.S. 40:601 et seq.

Food handler shall mean and include any person who, in the course of his duties at an establishment regulated by this chapter, handles food or drink, or comes into contact with any utensil in which food or drink is stored or served, or whose duties require him to work in a room in which food or drink is prepared or served; provided that persons serving food or drink which is protected against droplet infection and handling, such as, bottled drinks, packaged ice cream, wrapped sandwiches and similar wrapped or packaged items shall not be construed to be food handlers within the meaning of this chapter.

Itinerant eating and drinking establishment shall mean any eating and drinking establishment operating for a temporary period only, as provided by section 6:611.

Itinerant market shall mean any market operating for a temporary period only.

Market shall mean any store, food market, or any other place dealing in, selling, or offering for sale any food products, meat, milk, fish, vegetable, eggs or other produce.
(City Code 1951, Title 6, § 600; Parish Code 1962, Title 6, § 600)

Sec. 6:601. Permits—Required.

No person shall operate any eating and drinking establishment or market without first securing a permit therefor from the director. The authority to issue permits may be delegated by the director to the chief sanitarian of the health unit.
(City Code 1951, Title 6, § 601; Parish Code 1962, Title 6, § 601)

Sec. 6:602. Same—Application and inspection; issuance.

All applications for permits shall be made on forms provided by the director and shall be signed by the applicant personally. If the director determines that the applicant has complied with the requirements of this chapter and the applicable regulations of the state sanitary code concerning the protection of food and drink, he shall cause the permit to issue.
(City Code 1951, Title 6, § 602; Parish Code 1962, Title 6, § 602)

Sec. 6:603. Same—Suspension and revocation.

(a) Any permit issued hereunder may be suspended by the director for failure to comply with, or any violation of, any provisions of this chapter, the state sanitary code or the applicable laws of the state.

(b) Prior to any suspension, except as otherwise expressly authorized by this chapter, the permit holder shall be granted a hearing before the director.

(c) The permit holder shall be given ten (10) days written notice of the hearing. The notice shall set forth the cause or causes for the hearing, shall inform the holder of the time and place of the hearing, and may be delivered to the permit holder by registered mail addressed to him at the address shown on his application, or may be personally served upon him by an officer or employee of the health unit. Service of such notice upon the permit holder, his manager or the person in charge of his place of business shall be sufficient.

(d) If the director finds that an immediate and pressing danger to the public health exists by reason of one or more of the causes for suspension specified in subsection (a) of this section, he may order immediate suspension of any permit without notice or hearing. Possibility of transmission of typhoid or para-typhoid or other dangerous and contagious disease by the permit holder or any employee, or improper cleaning or sanitizing of utensils shall be sufficient cause for immediate suspension of any permit. Such suspension shall be for a temporary period not to exceed ten (10) days and the director shall, at the same time, order a hearing and cause the notice hereinabove required to be served upon the permit holder. The temporary suspension shall remain in effect during the time therein specified not to exceed ten (10) days or until the hearing, whichever occurs first. If the permit holder, prior to hearing, advises that the cause for suspension has been eliminated, the director shall cause prompt reinspection of the premises to be made during regular working hours, and if the cause for suspension has been corrected, he shall order the immediate reinstatement of the permit and cancel the hearing.

(e) Except as provided in subsection (d) hereof, all suspensions imposed under this chapter shall

be for an indeterminate period and shall remain in effect until all defects and deficiencies have been corrected by the permit holder. After correction of all such defects and deficiencies, the permit holder may apply to the director in writing for reinstatement of his permit. Within five (5) days after receipt of such request, the director shall cause an inspection of the premises to be made, and if the permit holder meets all requirements of this chapter, shall order the reinstatement of his permit.

(f) If a permit remains suspended for a period of six (6) months, such permit shall automatically be cancelled and the holder thereof be required to make a new application; provided that if, at the end of six (6) months, the director finds that the permit holder is making a reasonable attempt to correct the cause for suspension, he may be granted such additional time, not to exceed six (6) months, as may be necessary to complete the work involved.

(g) Any person aggrieved by the decision of the director in refusing to issue, in suspending, or in refusing to reinstate a permit, may devolutively appeal therefrom to the board of health within five (5) days of written notification of the decision. The appeal must be taken by submitting a written request therefor to the director. The board of health shall hear the appeal within fifteen (15) days of receipt of the notice of appeal by the director. The decision of the director shall be final unless appealed within the time, and in the manner, set forth herein.
(City Code 1951, Title 6, § 603; Parish Code 1962, Title 6, § 603)

Sec. 6:604. Operation without a permit.

The operation without a permit of any establishment for which a permit is required by this chapter or the continued operation after a permit has been suspended or revoked, shall constitute a violation of this chapter and a separate offense shall be deemed committed upon each day during which or on which such violation occurs or continues.
(City Code 1951, Title 6, § 604; Parish Code 1962, Title 6, § 604)

Sec. 6:605. Display of permit.

Every permit holder shall display his permit in a conspicuous location within his place of business.
(City Code 1951, Title 6, § 605; Parish Code 1962, Title 6, § 605)

Sec. 6:606. Permits nontransferable.

Permits issued hereunder shall be personal to the holder thereof and shall not be transferable.
(City Code 1951, Title 6, § 606; Parish Code 1962, Title 6, § 606)

Sec. 6:607. Adoption of state sanitary code.

For the purpose of establishing rules and regulations governing eating and drinking establishments and markets, Chapter VII, Eating and Drinking Establishments, Bakeries, Manufacturing Confectionaries, Food Manufacturing Plants, and Chapter XXI, Markets, of the state sanitary code, as amended, and including any future amendments thereto, prepared and promulgated by the state board of health and the whole of such chapters of the state sanitary code except such provisions as are deleted, modified or amended by other provisions of this chapter, are hereby adopted by the city-parish as fully as though set out in length herein and from and after the effective date of this chapter, the provisions thereof shall be in effect in the city-parish and the director is directed to maintain not less than three (3) copies of such Chapters VII and XXI on file in his office.
(City Code 1951, Title 6, § 607; Parish Code 1962, Title 6, § 607)

Sec. 6:608. General regulations.

In addition to the provisions of Chapters VII and XXI of the state sanitary code, all business regulated by this chapter shall conform to the following regulations:

(1) Plans for all new establishments and those being altered or reconstructed, shall be submitted to the director and certified by him in writing, either by letter or by signing the plans, as complying with all the requirements of this chapter prior to the start of any construction or repair work.

(2) In accordance with the applicable provisions of the building code, adequate and conveniently located toilet facilities shall be installed for the use of employees. Establishments selling alcoholic beverages for consumption on the premises shall also install adequate toilet facilities for the use of patrons. All plumbing shall conform to the applicable provisions of the plumbing code of the parish and the regulations of the state. If a septic tank system is provided, the system shall be located so as to prevent traffic, parking or paving over the area. Any such system shall include both primary and secondary treatment of all waste from the establishment.

(3) All waste drains from refrigerators, ice boxes, ice bins, refrigeration coils, extractors, steam tables, coffee urns and similar equipment shall be indirectly connected to the sewerage system or discharged indirectly into a receptor with the waste outlet discharging at least two (2) inches above the rim of the receptor.

(4) All ventilating fans or ventilation ducts leading to the outside of the establishment shall be equipped with screens or self-closing louvers.

(5) All garbage or refuse of any type that may be attractive to insects or rodents shall be stored in such a manner as to exclude insects and rodents. Garbage, refuse and debris shall not be allowed to accumulate on the premises.

(6) No operation of any business regulated by this chapter shall be conducted in any room or place used as living or sleeping quarters; nor shall there be a direct opening between a room or place used as a kitchen or for the preparation of food, with living or sleeping quarters.

(7) Single service utensils shall be stored in original containers and in an approved manner. Such utensils shall be individually wrapped or dispensed from the original container or a sanitary dispenser.

(City Code 1951, Title 6, § 608; Parish Code 1962, Title 6, § 608)

Sec. 6:609. Regulations for eating and drinking establishments.

(a) Establishments serving food or drink for consumption within an enclosed area of the establishment shall, in addition to the other provisions of this chapter, comply with the following regulations:

(1) In accordance with the applicable provisions of the building code, adequate light and ventilation shall be provided in all food and drink preparation areas. If hoods are installed over stoves, grills, fryers, or similar equipment, they shall be equipped with exhaust fans and be designed so as to protect foods from contamination and to convey grease and other condensates to the outside.

(2) Ready-to-eat food or drink displayed for service shall be protected from coughing, sneezing and other droplet contamination by properly constructed "counter service guards" or similar protective devices.

(3) All ready-to-eat foods or drink shall be kept covered or otherwise protected at all times. Such foods shall be stored separately from raw or unprepared foods.

(4) Patrons shall not be served in the food preparation or storage areas, and such areas shall be kept clean and uncluttered.

(5) An adequate number of sinks or other receptacles of sufficient size shall be installed in the food or drink preparation area to properly wash and sanitize utensils, for handwashing, washing and preparing vegetables, and disposing of wastes. This shall mean that if hand dishwashing is used, there shall be a minimum of four (4) sinks, and if machine dishwashing is used, there shall be a pre-rinse sink, tank or similar device, as well as a minimum of three (3) other sinks, all properly located, provided that the number of sinks may be reduced by one (1) if single-service utensils are used. In any event, there shall be at least one (1) separate sink or lavatory equipped with hot water, soap and individual towels used exclusively for handwashing and/or disposing of liquid waste.

(6) Machine dishwashers designed for the use of heat as the sanitizing agent shall be supplied with sufficient hot water to maintain a temperature of one hundred eighty (180) degrees Fahrenheit for the rinse cycle. There shall be a pressure regulator placed in the rinse waterline to assure a water pressure of fifteen (15) to twenty (20) pounds per square inch. Such machines shall be equipped with indicating thermometers.

(b) Establishments serving food or drink outside the enclosed area of the establishment, shall, in addition to the other provisions of this chapter, comply with the following regulations:

(1) All food service windows, doors and portals opening to the outside shall be self-closing, or equipped with insect-repellent fans or other devices that will prevent the entrance of insects.

(2) All trucks, cars, wagons, carts and other vehicles used for transporting food and drink shall be inspected and certified by the health unit as complying with all the provisions of this chapter, prior to being placed into service. Such vehicles shall be equipped with suitable equipment to maintain all readily perishable foods or drinks at a temperature below fifty (50) degrees Fahrenheit, or above one hundred fifty (150) degrees Fahrenheit. Foodstuffs shall be fully protected against dust, insects, and other contaminants while loading, unloading or serving. Suitable lavatory facilities shall be installed if food or drink is served directly from vehicle. All such vehicles must display evidence of approval by the health unit by appropriate tag or other marking.

(3) All reasonable precautions shall be taken to prevent excessive dust at serving area.

(4) All coin-operated or automatic vending machines dispensing food or drink shall be inspected and certified by the health unit as complying with all the requirements of this chapter prior to being placed into operation. All such machines must display evidence of such inspection by appropriate tag or other marking. All surfaces of the machines with which food or drink comes in direct contact shall be easily cleanable, noncorrosive, and protected against dust and insects. All waste and water connections must be installed to eliminate any possibility of sewerage back flow or back-siphonage. Unless the machine is to be located inside an approved eating and drinking establishment, it shall be placed upon a stand at least six (6) inches in height.

(5) A sufficient number of garbage cans conforming to local regulations shall be provided. All premises, vehicles, etc., shall be thoroughly cleaned at the end of each day's operation.

(City Code 1951, Title 6, § 609; Parish Code 1962, Title 6, § 609)

Sec. 6:610. Markets.

In addition to the requirements of section 6:608, the following regulations shall apply to markets:

(1) All food and drink not contained in glass or metal containers shall be stored at least six (6) inches above the floor and in such a manner as to fully protect the food or drink from contamination.

(2) All establishments selling or offering for sale fresh meats or fresh produce shall install, as a minimum, one (1), two (2) compartment sink; any establishment engaged in ready-to-eat food processing or prepacking of foods, shall also, and in addition thereto, install a lavatory in the work area.

(3) The loading, unloading or transportation of any food or drink shall be carried on in such a manner as to adequately protect the food or drink from dust, insects and other contamination. The unloading and placing of any food or drink outside the confines of the building or any place of business is prohibited unless such unloading is carried out in a manner approved by the director as complying with the provisions of this chapter.

(4) In rooms where fresh meats or produce are processed or stored, all doors, windows, or portal openings to the outside or an unprotected area shall be self-closing. All readily perishable food or drink, including precooked hams, shall be stored and held at a tempera-

ture below fifty (50) degrees Fahrenheit or above one hundred fifty (150) degrees Fahrenheit. The displaying of any such food or drink above or outside the cold zone of any refrigerator is prohibited. Frozen food allowed to thaw shall not be refrozen.

(5) All prepacked food or drink shall be labeled in accordance with the laws of the state. The introduction into trade or receipt of improperly labeled food or drink shall constitute a violation of this chapter.

(6) Markets selling or offering for sale produce from an unenclosed area shall keep flies and other insects under control. Parking areas of such establishments shall be paved, hard-surfaced, or finished in such a manner as to prevent excessive dust.

(City Code 1951, Title 6, § 610; Parish Code 1962, Title 6, § 610)

Sec. 6:611. Itinerant eating and drinking establishments.

In addition to the other provisions of this chapter and the requirements of Chapter VII of the state sanitary code pertaining to itinerant shows, the following regulations shall apply to itinerant eating and drinking establishments:

(1) Itinerant shows, as well as itinerant eating and drinking establishments, shall secure permits to operate from the director. Itinerant shows shall secure permits before locating in any place; however, permits to itinerant eating and drinking establishments may be issued only after an inspection of the establishment has been made and shall not exceed fifteen (15) days continuous operation, provided that such permits may be extended for an additional fifteen (15) days, if, after a complete sanitary inspection, conditions are found to warrant such an extension. Itinerant eating and drinking establishments of a permanent nature, but being operated only during special events, such as athletic events, etc., may have permits issued for one-year period with option of renewal.

(2) All stands selling or offering for sale, food or drink, shall protect food or drink from contamination. All food preparation areas shall be enclosed on the top as well as three (3) sides and then open only on the side away from the public. Floors, walls and ceiling shall be finished in a sanitary manner and be kept clean. The use of an earthen or "sawdust" floor is prohibited.

(3) Only single-service eating and drinking utensils shall be used. Straws, spoons, etc., shall be individually wrapped or served from a sanitary dispenser. Multiple-use eating and drinking utensils may be permitted only where kitchens or stands are fully equipped with a three (3) compartment sink and hand lavatory. Liquid waste shall be disposed of in a sanitary manner and not allowed to run onto the ground surface.

(4) Handwashing facilities with soap and individual towels shall be available in all stands. All food handlers shall keep clean hands and clean clothing.

(5) All food or drink vended in stands at sporting events, shows, etc., shall be completely and effectively wrapped or enclosed so as to be protected from dust, sneezing, coughing or other droplet contamination.

(6) The general premises of all shows and refreshment stands shall be thoroughly cleaned after each day's operation, of all paper, garbage or other debris.

(City Code 1951, Title 6, § 611; Parish Code 1962, Title 6, § 611)

Sec. 6:612. Itinerant markets.

In addition to the general regulations listed elsewhere in this chapter and the laws of the state, the following regulations shall apply to itinerant markets:

(1) The immediate premises, including driving and parking areas of all itinerant markets shall be reasonably free of dust.

(2) All readily-perishable foods shall be kept under proper refrigeration.

(3) Flies, rodents, roaches and other pests shall be kept under control at all times. Dogs, cats, or other animals shall not be permitted on the premises.

(4) All garbage and refuse shall be stored and disposed of in accordance with this chapter and, inside the city, the provisions of the garbage ordinance of the city.

(5) All foods shall be stored at least twelve (12) inches above the ground or floor level.

(City Code 1951, Title 6, § 612; Parish Code 1962, Title 6, § 612)

Sec. 6:613. Appeal.

Nothing herein contained shall be construed so as to deprive any person engaged in any business regulated hereby of a right of appeal to the courts of the state, in accordance with the constitution and laws thereof.

(City Code 1951, Title 6, § 615; Parish Code 1962, Title 6, § 615)

CHAPTER 8. MISCELLANEOUS

PART I. PROHIBITING USE OF PUBLIC SWIMMING POOLS AFTER HOURS

Sec. 6:630. Prohibition.

It shall be unlawful to use, bathe in or swim in any public swimming pool in the city-parish during the hours such pools are closed.

(City Code 1951, Title 6, § 630)

PART IA. MOSQUITO, RODENT AND OTHER VERMIN CONTROL*

Sec. 6:636. Authority of district.

The East Baton Rouge Parish Mosquito Abatement and Rodent Control District shall have the authority to enter upon any property which is vacant or abandoned or whose owner cannot be readily verified through public records, for the following purposes:

(1) To spray and otherwise treat any structure or structures, tire piles, or other tangible things capable of holding water and thereby becoming a breeding ground for mosquitoes, rodents or other vermin.

(2) To spray and otherwise treat any structure or other harborage where rodents might live and breed.

(Ord. No. 9361, § 1, 12-11-91)

PART II. REGULATING USE OF POLYETHYLENE PLASTIC BAGS

Sec. 6:640. Definition.

Polyethylene plastic bag means a polyethylene bag made of thin polyethylene film, intended for use by any person to cover suits and/or dresses to be delivered or sold for delivery or to be picked up by any person at a place of business.

(City Code 1951, Title 6, § 640)

Sec. 6:641. Bags to bear warnings.

No person shall package, deliver or sell any suit and/or dress in a polyethylene plastic bag, made of polyethylene film less than one mil (0.001 inch) in thickness unless the bag bears a warning against the hazards of suffocation by children in the following or substantially equivalent wording:

"WARNING: To avoid danger of suffocation, keep away from babies and children. Do not use in cribs, beds, carriages or playpens. This bag is not a toy."

(City Code 1951, Title 6, § 641)

Sec. 6:642. Warning specifications.

The warning shall be printed on each bag. It shall be prominently and conspicuously displayed in not less than twenty-four (24) point bold face type, which shall be contrasted by typography, layout or color from any other printed matter on the bag, if any.

(City Code 1951, Title 6, § 642)

Sec. 6:643. Bag specifications.

The use of polyethylene plastic bags made of polyethylene film, .6 mil (0.0006 inch) or less in

*Editor's note—Ord. No. 9361 added § 6:631 to ch. 6, ch. 8, pt. I, which prohibits use of public swimming pools after hours. Since the ordinance deals with a completely different subject, the editor has included the text as § 6:636 in a newly created pt. IA.

thickness by any person as a package for, or a cover to suits and/or dresses is hereby prohibited.
(City Code 1951, Title 6, § 643)

CHAPTER 9. PROHIBITION OF OCCUPANCY

Sec. 6:650. Proceedings to prohibit the occupation or use of premises containing violation of title.

The imposition of penalties provided in this title shall not preclude the institution of an appropriate action or proceeding to prevent the unlawful erection, construction, reconstruction, alteration, repair, conversion, maintenance or use; or such an action to restrain, correct and abate a violation of the provisions of this title; or such an action to prevent the occupancy of a building, structure or premises during the existence and continuation of a violation of this title; or to prevent any illegal act, conduct, business or use in or about any premises.
(City Code 1951, Title 6, § 650)

CHAPTER 10. BEEKEEPING

Sec. 6:660. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed in this section unless the context of their usage clearly indicates another meaning:

Apiary means the assembly of one (1) or more colonies of bees at a single location.

Beekeeper means a person who owns or has charge of one (1) or more colonies of bees.

Beekeeping equipment means anything that is used in the operation of an apiary, such as hive bodies, supers, frames, tops and bottom boards, and extractors.

Colony or *hive* means an aggregate of bees consisting principally of workers, but having, when perfect, one (1) queen and at times many drones; including brood, combs, honey, and the receptacle inhabited by the bees.

Honey bee means all life stages of the common domestic honeybee, *Apis mellifera* species.

Tract means a contiguous parcel of land under common ownership.

Undeveloped property means any idle land that is not improved or actually in the process of being improved with residential, commercial, industrial, church, park, school, or governmental facilities or other structures or improvements intended for therewith. The term shall be deemed to include property developed exclusively as a street or highway or property used for commercial agricultural purposes.
(Ord. No. 9449, § 1, 6-24-92)

Sec. 6:661. Certain conduct declared unlawful.

(a) The purpose of this article is to establish certain requirements of sound beekeeping practices, which are intended to avoid problems that may otherwise be associated with the keeping of bees in populated areas.

(b) Notwithstanding compliance with the various requirements of this article, it shall be unlawful for any beekeeper to keep any colony or colonies in such a manner or of such disposition as to cause any unhealthy condition, interfere with the normal enjoyment of human or animal life of others, or interfere with the normal use and enjoyment of any public property or property of others.
(Ord. No. 9449, § 1, 6-24-92)

Sec. 6:662. Hive registration.

All honeybee colonies shall be registered annually with the Louisiana Department of Agriculture and Forestry.
(Ord. No. 9449, § 1, 6-24-92)

Sec. 6:663. Hive type.

All honeybee colonies shall be kept in Langstroth type hives with removable frames, which shall be kept in sound and usable condition.
(Ord. No. 9449, § 1, 6-24-92)

Sec. 6:664. Fencing of flyways, distance from unhabited dwelling.

(a) In each instance in which any colony is situated within twenty-five (25) feet of a public or private property line of the tract upon which the apiary is situated, as measured from the nearest point on the hive to the property line, the beekeeper shall establish and maintain a flyway barrier at least six (6) feet in height consisting of a solid wall, fence, dense vegetation, or combination thereof that is parallel to the property line and extends ten (10) feet beyond the colony in each direction so that all bees are forced to fly at an elevation of at least six (6) feet above ground level over the property lines in the vicinity of the apiary. It is a defense against prosecution under this section that the property adjoining the apiary tract in the vicinity of the apiary is undeveloped property for a distance of at least twenty-five (25) feet from the property line of the apiary tract.

(b) Notwithstanding the provisions of subsection (a) above, in no instance shall a colony be situated within twenty-five (25) feet of an unhabited dwelling on adjoining property.
(Ord. No. 9449, § 1, 6-24-92)

Sec. 6:665. Water.

Each beekeeper shall ensure that a convenient source of water is available to the bees at all times during the year so that the bees will not congregate at swimming pools, bibcocks, pet watering bowls, birdbaths, or other water sources where they may cause human, bird, or domestic pet contact.
(Ord. No. 9449, § 1, 6-24-92)

Sec. 6:666. General maintenance.

Each beekeeper shall ensure that no bee comb or other materials that might encourage robbing are left upon the grounds of the apiary site. Upon their removal from the hive all such materials shall promptly be disposed of in a sealed container or placed within a building or other beeproof enclosure.
(Ord. No. 9449, § 1, 6-24-92)

Sec. 6:667. Queens.

All colonies shall be maintained with marked queens except commercial colonies. In any instance in which a colony exhibits unusually aggressive characteristics by stinging or attempting to sting without due provocation or exhibits an unusual disposition towards swarming, it shall be the duty of the beekeeper to promptly requeen the colony with another marked queen. Queens shall be selected from European stock bred for gentleness and nonswarming characteristics.
(Ord. No. 9449, § 1, 6-24-92)

Sec. 6:668. Colony densities.

(a) It shall be unlawful to keep more than the following number of colonies on any tract within the parish, based upon the size or configuration of the tract on which the apiary is situated:

(1) One-quarter acre or less tract size—Two (2) colonies.

(2) More than one-quarter acre but less than one-half acre tract size—Four (4) colonies.

(3) More than one-half acre but less than one-acre tract size—Six (6) colonies.

(4) One-acre or larger tract size—Eight (8) colonies.

(5) Regardless of tract size, where all hives are situated at least two hundred (200) feet in any direction from all property lines of the tract on which the apiary is situated, there shall be no limit to the number of colonies.

(6) Regardless of tract size, so long as all property other than the tract upon which the hives are situated that is within a radius of at least two hundred (200) feet from any hive remains undeveloped property, there shall be no limit to the number of colonies.

(b) For each two (2) colonies authorized under subsection (a) there may be maintained upon the same tract one (1) nucleus colony in a hive structure not exceeding one (1) standard 9⅝-inch depth 10-frame hive body with no supers attached as required from time to time for management of swarms. Each such nucleus colony shall be dis-

posed of or combined with an authorized colony within thirty (30) days after the date it is required.
(Ord. No. 9449, § 1, 6-24-92)

Sec. 6:669. Marking hives, presumption of beekeeping.

(a) In apiaries the beekeeper shall conspicuously post a sign setting forth his name and telephone number. In addition, the beekeeper's registration yard marker, provided by the LDAF, shall be posted on a sign within the apiary. It is a defense against prosecution under this subsection that a colony is kept upon the same tract upon which the owner resides.

(b) Unless marked in accordance with subsection (a) it shall be presumed for purposes of this article that the beekeeper is the person or persons who own or otherwise have the present right of possession and control of the tract upon which a hive or hives are situated. The presumption may be rebutted by a written agreement authorizing another person to maintain the colony or colonies upon the tract setting forth the name, address, and telephone number of the other person who is acting as the beekeeper.
(Ord. No. 9449, § 1, 6-24-92)

Sec. 6:670. Inspection.

(a) The director of mosquito abatement and rodent control or his designees shall have the right to inspect any apiary between the hours of 8:00 a.m. and 5:00 p.m. Where practicable, prior notice shall be given to the beekeeper if he resides at the apiary or if his name is marked on the hives.

(b) If upon inspection, it is determined that the bees are unusually aggressive so as to pose an immediate threat of bodily harm or death to humans or animals, the inspector shall have the right to have the bees destroyed immediately without the necessity of a hearing. Written notice that the bees have been destroyed shall be given to the beekeeper by certified mail or personal delivery. If the beekeeper is not able to be located, then notice may be given by publication one (1) time in a newspaper of general circulation. The beekeeper shall have five (5) days from receipt of the notice, or from the publication of same, to request a hearing. Once a hearing is requested, the notification procedures in section 6:671 shall be followed. If the hearing officer finds that the bees were unusually aggressive so as to pose an immediate threat of bodily harm or death to humans or animals, then the destruction shall be deemed to have been necessary and the city-parish shall not be liable for damages. If, however, the hearing officer finds that no such threat existed, then the city-parish shall reimburse the beekeeper for all monetary damages directly caused by the destruction. The determination of the hearing officer shall be final unless appealed to the district court within five (5) days of the signing of the decision.
(Ord. No. 9449, § 1, 6-24-92; Ord. No. 10500, § 1, 11-8-95)

Sec. 6:671. Compliance.

(a) Upon receipt of information that any colony situated within the city-parish is not being kept in compliance with this article, the director of mosquito abatement and rodent control or his designee shall cause an investigation to be conducted. If he finds that grounds exist to believe that one (1) or more violations have occurred he shall cause a written notice of hearing to be issued to the beekeeper.

(b) The notice of hearing shall set forth:

(1) The date, time and place at which the hearing will be conducted.

(2) The violation(s) alleged.

(3) That the beekeeper may appear in person or through counsel, present evidence, cross-examine witnesses.

(4) That the bees may be ordered destroyed or removed from the parish if the hearing officer finds that they have been kept in violation of this article.

Notices shall be given by certified United States mail or personal delivery. However, if the health officer is unable to locate the beekeeper, then the notice may be given by publication one (1) time in a newspaper of general circulation at least five (5) days prior to the date of the hearing.

(c) The hearing shall be conducted by the director of mosquito abatement and rodent control or his designee. The burden shall be on the parish to demonstrate by a preponderance of credible evidence that the colony or colonies have in fact been kept in violation of this article. If the hearing officer finds that the colony or colonies have been kept in violation of this article, then he may order that the beekeeper remove the bees from the parish within a certain period of time, not less than six (6) days from the order, with the provision that failure of the beekeeper to comply with the order shall cause the bees to be destroyed, or he may order that the bees be destroyed within a period of time not less than six (6) days from the order. In addition to any other order, the hearing officer may also order that bees not be kept upon the tract for a period of up to two (2) years. In instances where the hearing officer finds that the violations were not intentional and that the beekeeper has employed corrective actions that will probably be effective to cure the violations alleged, then he may issue a warning in lieu of ordering the bees destroyed or removed.

(d) The decision of the hearing officer shall be final unless appealed to the district court within five (5) days of signing of the order to remove or destroy and an appropriate temporary restraining order has been issued.

(e) The provisions of this section shall not be construed to require that a hearing be conducted for the destruction of (1) any bee colony not residing in a hive structure intended for beekeeping or (2) any swarm of bees or (3) any colony residing in a standard or manmade hive, which by virtue of its condition, has obviously been abandoned by the beekeeper.
(Ord. No. 9449, § 1, 6-24-92; Ord. No. 10500, § 1, 11-8-95)

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Title 7

PLANNING AND ZONING*

Sec. 7:1. Unified Development Code.

*Editor's note—Ord. No. 10771, § 1, adopted November 20, 1996, has removed the provisions of Title 7, pertaining to planning and zoning, from the Code. Said provisions are now maintained by the city-parish in a separate volume.

Cross references—Streets, alleys, sidewalks, battures and sewers, Title 2; building regulations, Title 8; minimum standards for existing buildings, Title 8A.

State law reference—Municipal zoning regulations, R.S. 33:4721 et seq.

Sec. 7:1. Unified Development Code.

A copy of the Unified Development Code is on file in the offices of the planning commission and council administrator-treasurer.
(Ord. No. 10771, § 1, 11-20-96)

Title 8

BUILDING REGULATIONS*

Chapter 1. Building Codes

Sec. 8:100. Adoption of the latest edition of the International Building Code (IBC), International Residential Code (IRC), International Existing Building Code (IEBC) and the International Property Maintenance Code (IPMC).

Chapter 2. Administration of the International Building Code (IBC), International Residential Code (IRC), International Existing Building Code (IEBC), International Plumbing Code (IPC), International Mechanical Code (IMC), and National Electric Code (NEC)

Sec. 8:200. Administration of the International Building Code (IBC), International Residential Code (IRC), International Existing Building Code (IEBC), International Plumbing Code (IPC), International Mechanical Code (IMC), and National Electric Code (NEC).
Sec. 8:201. Appendices.
Sec. 8:202. Other laws.
Sec. 8:203. Intent.
Sec. 8:204. Referenced codes.
Sec. 8:204.1. Gas.
Sec. 8:204.2. Mechanical.
Sec. 8:204.3. Plumbing.
Sec. 8:204.4. Existing buildings.
Sec. 8:204.5. Electrical.

***Editor's note—**Ord. No. 18690, § 1, adopted November 22, 2022, repealed tit. 8, §§ 8:1—8:5, 8:10—8:24, 8:101, 8:102, 8:300—8:333, 8:400—8:404, 8:500—8:503, 8:505—8:509, 8:551—8:558, 8:600—8:602, 8:700—8:703, 8:900—8:903, 8:1001—8:1034, and enacted a new tit. 8 as set out herein and later amended. Former tit. 8 pertained to similar subject matter and derived from 1951 city code title 8, §§ 300, 302—321, 323, 325—329, 332—334, 337, 338, 400, 401, 404, 501—504, 506—510, 551—558, 601—603, 800—803; 1962 parish code title 8, §§ 300, 301, 400, 404, 501—504, 506—510, 551—558, 601—603; City Ord. No. 4730, adopted August 11, 1982; Parish Ord. No. 5963, adopted August 11, 1982; Ord. No. 7017, adopted January 26, 1983; Ord. No. 7018, adopted January 26, 1983; Ord. No. 7049, adopted February 23, 1983; Ord. No. 7052, adopted February 23, 1983; Ord. No. 7127, adopted May 11, 1983; Ord. No. 7230, adopted August 10, 1983; Ord. No. 7404, adopted January 11, 1984; Ord. No. 7461, adopted March 14, 1984; Ord. No. 7554, adopted May 23, 1984; Ord. No. 8321, adopted December 10, 1986; Ord. No. 8322, adopted December 10, 1986; Ord. No. 8384, adopted April 8, 1987; Ord. No. 8968, adopted September 13, 1989; Ord. No. 9089, adopted May 23, 1990; Ord. No. 9567, adopted February 10, 1993; Ord. No. 9576, adopted February 10, 1993; Ord. No. 9595, adopted March 24, 1993; Ord. No. 9621, adopted May 12, 1993; Ord. No. 9881, adopted May 11, 1994; Ord. No. 10623, adopted May 8, 1996; Ord. No. 11033, adopted December 10, 1997; Ord. No. 11136, adopted April 22, 1998; Ord. No. 11706, adopted April 12, 2000; Ord. No. 13362, adopted August 24, 2005; Ord. No. 13453, adopted November 22, 2005; Ord. No. 13454, adopted November 22, 2005; Ord. No. 13455, adopted November 22, 2005; Ord. No. 13456, adopted November 22, 2005; Ord. No. 13863, adopted January 10, 2007; Ord. No. 14403, adopted April 23, 2008; Ord. No. 14496, adopted September 24, 2008; Ord. No. 15071, adopted January 26, 2011; Ord. No. 15238, adopted January 11, 2012; Ord. No. 15307, adopted May 9, 2012; Ord. No. 15758, adopted September 10, 2014; Ord. No. 16492, adopted April 26, 2017; Ord. No. 18375, adopted December 8, 2021; and Ord. No. 18412, adopted February 9, 2022.

Cross references—Streets, alleys, sidewalks, battures and sewers, title 2; fire protection, title 5; planning and zoning, title 7; minimum standards for existing building, title 8A; registration, testing and licensing of swimming pool contractor/builders, § 9:540 et seq.; dangerous buildings, § 12:520 et seq.

State law reference—Building regulations, R.S. 33:4721 et seq.

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Sec. 8:301. Buildings not previously occupied.
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CHAPTER 1. BUILDING CODES

Sec. 8:100. Adoption of the latest edition of the International Building Code (IBC), International Residential Code (IRC), International Existing Building Code (IEBC) and the International Property Maintenance Code (IPMC).

(a) The regulations of the most recent edition of the International Building Code (IBC), International Residential Code (IRC) and International Existing Building Code (IEBC) as adopted and amended by the Louisiana State Uniform Construction Code Council (LSUCCC) as amended and published by the International Code Council, Inc., published in book form and the whole thereof, and such portions of the building code as are hereinafter deleted, modified or amended, are hereby adopted as the regulations governing the construction of buildings and other structures in the city and parish.

(b) Except as hereinafter provided, it shall be unlawful to construct, enlarge, alter, repair, move, demolish, or change the occupancy of any building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas, mechanical or plumbing system, the installation of which is regulated by the technical codes, or to cause any such work to be done, without first making application to the building official to obtain the required permit(s) for the work.

(c) The building official shall accept certified third-party providers engaged in plan reviews on behalf of commercial and residential contractors. Third party providers shall be certified and in good standing with the Louisiana State Uniform Construction Code Council established by R.S. 40:1730.23. Prior to any submittal, the third party provider shall submit evidence that it is certified in accordance with R.S. 40:1730.23 to the building official. The building official shall maintain listing of qualified providers and notation as to any provider that maintains a Disadvantage Business Enterprise "DBE" designation. The building official reserves the right to suspend or remove any third-party provider for just cause. The third-party provider may seek review of any suspension or removal to the director of public works. If the director of public works upholds the suspension or removal, there shall be a right of judicial review to the 19th Judicial District Court. The building official shall establish a listing of all elements of a plan review that third-party providers may submit and certify for a contractor or homeowner. The building official reserves the right to approve all third-party plan reviews for compliance with sewer capacity, draining, traffic, UDC review, code oversight and flood zone determination. The building official within eight (8) business days of submission shall issue an approval of the building permit or a report outlining any deficiencies in such submitted application.

(d) In connection with the construction of any building, structure or other improvement to immovable property, neither the performance of any enforcement procedure nor any provision of a building code shall constitute or be construed as a warranty or guarantee by the building official or third-party provider as a durability or fitness, that said building or structure or other improvement to immovable property or any materials, equipment, or method or type of construction used therein is or will be free from defects, will perform in a particular manner, is fit for a particular purpose or will last in any particular way.

(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 2. ADMINISTRATION OF THE INTERNATIONAL BUILDING CODE (IBC), INTERNATIONAL RESIDENTIAL CODE (IRC), INTERNATIONAL EXISTING BUILDING CODE (IEBC), INTERNATIONAL PLUMBING CODE (IPC), INTERNATIONAL MECHANICAL CODE (IMC), AND NATIONAL ELECTRIC CODE (NEC)

Sec. 8:200. Administration of the International Building Code (IBC), International Residential Code (IRC) International Existing Building Code (IEBC), International Plumbing Code (IPC), International Mechanical Code (IMC), and National Electric Code (NEC).

The provisions of the International Building Code as adopted and amended by LSUCCC shall apply to the construction, alteration, relocation, enlargement, replacement, repair, equipment, use and occupancy, location, maintenance, removal and demolition of every building or structure or any appurtenances connected or attached to such buildings or structures.

Exception: Detached one- and two-family dwellings and multiple single-family dwellings (townhouses) not more than three (3) stories above grade plane in height with a separate means of egress, and their accessory structures not more than three (3) stories above grade plane in height, shall comply with the International Residential Code.

The provisions of the International Residential Code for One- and Two-Family Dwellings shall apply to the construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal and demolition of detached one- and two-family dwellings and townhouses not more than three (3) stories above grade plane in height with a separate means of egress and their accessory structures not more than three (3) stories above grade plane in height.

Exceptions:

(1) Live/work units located in townhouses and complying with the requirements of section 419 of the International Building Code shall be permitted to be constructed in accordance with the International Residential Code for One- and Two-Family Dwellings.

(2) Owner-occupied lodging houses with five (5) or fewer guestrooms shall be permitted to be constructed in accordance with the International Residential Code for One- and Two-family Dwellings where equipped with a fire sprinkler system in accordance with section P2904 of the International Residential Code.

Exception: Detached one- and two-family dwellings and multiple single-family dwellings (townhouses) not more than three (3) stories high with separate means of egress and their accessory structures shall comply with the International Residential Code.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:201. Appendices.

Provisions in the appendices shall not apply unless specifically adopted.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:202. Other laws.

The provisions of this title shall not be deemed to nullify any provisions of local, state or federal law.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:203. Intent.

The purpose of this title is to establish the minimum requirements to provide a reasonable level of safety, public health and general welfare through structural strength, means of egress facilities, stability, sanitation, adequate light and ventilation, energy conservation, and safety to life and property from fire and other hazards attributed to the built environment and to provide

a reasonable level of safety to fire fighters and emergency responders during emergency operations.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:204. Referenced codes.

The other codes referenced in title 8 and referenced elsewhere in the International Building Code and the International Residential Code shall be considered part of the requirements of this title to the prescribed extent of each such reference.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:204.1. Gas.

The provisions of the International Fuel Gas Code as adopted and amended by the LSUCCC shall apply to the installation of gas piping from the point of delivery, gas appliances and related accessories as covered in this title. These requirements apply to gas piping systems extending from the point of delivery to the inlet connections of appliances and the installation and operation of residential and commercial gas appliances and related accessories.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:204.2. Mechanical.

The provisions of the International Mechanical Code as adopted and amended by the LSUCCC shall apply to the installation, alterations, repairs and replacement of mechanical systems, including equipment, appliances, fixtures, fittings and/or appurtenances, including ventilating, heating, cooling, air-conditioning and refrigeration systems, incinerators and other energy-related systems.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:204.3. Plumbing.

The provisions of the International Plumbing Code as adopted and amended by the LSUCCC shall apply to the installation, alteration, repair and replacement of plumbing systems, including equipment, appliances, fixtures, fittings and appurtenances, and where connected to a water or sewage system and all aspects of a medical gas system.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:204.4. Existing buildings.

The provisions of the International Existing Building Code as adopted and amended by the LSUCCC shall apply to matters governing the repair, alteration, change of occupancy, addition to and relocation of existing buildings.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:204.5. Electrical.

The provisions of the National Electric Code as adopted and amended by the LSUCCC shall apply to matters governing the repair, alteration, change of occupancy, addition to and relocation of existing buildings.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 3. APPLICABILITY

Sec. 8:300. Existing structures.

The legal occupancy of any structure existing on the date of adoption of this title shall be permitted to continue without change, except as otherwise specifically provided in this title and the International Existing Building Code as adopted and amended by the LSUCCC.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:301. Buildings not previously occupied.

A building or portion of a building that has not been previously occupied or used for its intended purpose in accordance with the laws in existence at the time of its completion shall comply with the provisions of the International Building Code or International Residential Code as adopted and amended by the LSUCCC, as applicable, for new construction or with any current permit for such occupancy.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:302. Buildings previously occupied.

The legal occupancy of any building existing on the date of adoption of this title shall be permitted to continue without change, except as otherwise specifically provided in this title.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 4. ENFORCEMENT AND INSPECTIONS

Sec. 8:400. Building official or their designee.

For purposes of this section, any and all reference to "building official" shall mean the building official or their designee.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:401. Enforcement.

The building official is hereby authorized and directed to enforce the provisions of this title. The building official shall have the authority to render interpretations of this title and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of this title. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this title.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:402. Application for permits.

The building official shall receive applications, review construction documents and issue permits for the erection, and alteration, demolition and moving of buildings and structures, inspect the premises for which such permits have been issued and enforce compliance with the provisions of this title.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:403. Inspections.

The building official shall make the required inspections, or the building official shall have the authority to accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and be certified by a responsible officer of such approved agency or by the responsible individual. The building official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:404. Right of entry.

Where it is necessary to make an inspection to enforce the provisions of this title, or where the building official has reasonable cause to believe that there exists in a structure or upon a premises a condition that is contrary to or in violation of this title that makes the structure or premises unsafe, dangerous or hazardous, the building official is authorized to enter the structure or premises at reasonable times to inspect or to perform the duties imposed by this title, provided that if such structure or premises be occupied that credentials be presented to the occupant and entry requested. If such structure or premises is unoccupied, the building official shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the building official shall have recourse to the remedies provided by law to secure entry.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:405. Department records.

The building official shall keep official records of applications received, permits and certificates issued, fees collected, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for the period required for retention of public records.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:406. Approved materials and equipment.

Materials, equipment and devices approved by the building official shall be constructed and installed in accordance with such approval.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:407. Used materials and equipment.

The use of used materials that meet the requirements of this title for new materials is permitted. Used equipment and devices shall not be reused unless approved by the building official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:408. Modifications.

Where there are practical difficulties involved in carrying out the provisions of this title, the building official shall have the authority to grant modifications for individual cases, upon application of the owner or the owner's authorized agent, provided that the building official shall first find that special individual reason makes the strict letter of this title impractical, the modification is in compliance with the intent and purpose of this title and that such modification does not lessen health, accessibility, life and fire safety or structural requirements. The details of action granting modifications shall be recorded and entered in the files of the department of permits and inspections.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:409. Alternative materials, design and methods of construction and equipment.

The provisions of this title are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this title, provided that any such alternative has been approved. An alternative material, design or method of construction shall be approved where the building official finds that the proposed design is satisfactory and complies with the intent of the provisions of this title, and that the material, method or work offered is, for the purpose intended, not less than the equivalent of that prescribed in this title in quality, strength, effectiveness, fire resistance, durability and safety. Where the alternative material, design or method of construction is not approved, the building official shall respond in writing, stating the reasons why the alternative was not approved.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:410. Research reports.

Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this title, shall consist of valid research reports from approved sources.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:411. Tests.

Whenever there is insufficient evidence of compliance with the provisions of this title, or evidence that a material or method does not conform to the requirements of this title, or in order to substantiate claims for alternative materials or methods, the building official shall have the authority to require tests as evidence of compliance to be made at no expense to the city-parish. Test methods shall be as specified in this title or by other recognized test standards. In the absence of recognized and accepted test methods, the building official shall approve the testing procedures. Tests shall be performed by an approved agency. Reports of such tests shall be retained by the building official for the period required for retention of public records.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 5. PERMITS

Sec. 8:500. Permit required.

Any owner or owner's authorized agent who intends to construct, enlarge, alter, repair, move, demolish or change the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas, mechanical or plumbing system, the installation of which is regulated by this title, or to cause any such work to be performed, shall first make application to the building official and obtain the required permit.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:501. Work exempt from permit.

Exemptions from permit requirements of this title shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this title or any other laws or ordinances of this jurisdiction. Permits shall not be required for the following:

(1) *Building.*

a. One-story detached accessory structures used as tool and storage sheds, playhouses and similar uses, provided the floor area is not greater

than two hundred (200) square feet (eighteen and one-half (18.5) meters squared).

b. Oil derricks.

c. Retaining walls that are not over four (4) feet (one thousand two hundred nineteen (1,219) millimeters in height measured from the bottom of the footing to the top of the wall, unless supporting a surcharge or impounding class I, II or IIIA liquids.

d. Water tanks supported directly on grade if the capacity is not greater than five thousand (5,000) gallons (eighteen thousand nine hundred twenty-five (18,925) liters) and the ratio of height to diameter or width is not greater than two to one (2:1).

e. Painting, papering, tiling, carpeting, cabinets, counter tops and similar finish work.

f. Temporary motion picture, television and theater stage sets and scenery.

g. Prefabricated swimming pools that are less than twenty-four (24) inches (six hundred ten (610) millimeters) deep, are not greater than five thousand (5,000) gallons (eighteen thousand nine hundred twenty-five (18,925) liters) and are installed entirely above ground.

h. Shade cloth structures constructed for nursery or agricultural purposes, not including service systems.

i. Swings and other playground equipment accessory to detached one- and two-family dwellings.

j. Window awnings in group R-3 and U occupancies, supported by an exterior wall that do not project more than fifty-four (54) inches (one thousand three hundred seventy-two (1,372) millimeters) from the exterior wall and do not require additional support.

k. Nonfixed and movable fixtures, cases, racks, counters and partitions not over five (5) feet nine (9) inches (one thousand seven hundred fifty-three (1,753) millimeters) in height.

(2) *Electrical.*

a. Repairs and maintenance. Minor repair work, including the replacement of lamps or the connection of approved portable electrical equipment to approved permanently installed receptacles.

b. Radio and television transmitting stations. The provisions of this title shall not apply to electrical equipment used for radio and television transmissions, but do apply to equipment and wiring for a power supply and the installations of towers and antennas.

c. Listed cord-and-plug connected temporary decorative lighting.

d. Reinstallation of attachment plug receptacles but not the outlets therefor.

e. Replacement of branch circuit overcurrent devices of the required capacity in the same location.

f. Electrical wiring, devices, appliances, apparatus or equipment operating at less than twenty-five (25) volts and not capable of supplying more than fifty (50) watts of energy.

g. Minor repair work, including the replacement of lamps or the connection of approved portable electrical equipment to approved permanently installed receptacles.

h. Temporary testing systems. A permit shall not be required for the installation of any temporary system required for the testing or servicing of electrical equipment or apparatus.

(3) *Gas.*

a. Portable heating appliance.

b. Replacement of any minor part that does not alter approval of equipment or make such equipment unsafe.

c. Mechanical:

d. Portable heating appliance.

e. Portable ventilation equipment.

f. Portable cooling unit.

g. Steam, hot or chilled water piping within any heating or cooling equipment regulated by this title.

h. Replacement of any part that does not alter its approval or make it unsafe.

i. Portable evaporative cooler.

j. Self-contained refrigeration system containing ten (10) pounds (four and fifty-four hundredths (4.54) kilograms) or less of refrigerant and actuated by motors of one (1) horsepower (seventy-five hundredths (0.75) kilowatts) or less.

(4) *Plumbing.*

a. The stopping of leaks in drains, water, soil, waste or vent pipe, provided, however, that if any concealed trap, drain pipe, water, soil, waste or vent pipe becomes defective and it becomes necessary to remove and replace the same with new material, such work shall be considered as new work and a permit shall be obtained and inspection made as provided in this title.

b. The clearing of stoppages or the repairing of leaks in pipes, valves or fixtures and the removal and reinstallation of water closets, provided such repairs do not involve or require the replacement or rearrangement of valves, pipes or fixtures.

(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:502. Emergency repairs.

Where equipment replacements and repairs must be performed in an emergency situation, the permit application shall be submitted within the next working business day to the building official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:503. Repairs.

Application or notice to the building official is not required for ordinary repairs to structures, replacement of lamps or the connection of approved portable electrical equipment to approved permanently installed receptacles. Such repairs shall not include the cutting away of any wall, partition or portion thereof, the removal or cutting of any structural beam or load-bearing support, or the removal or change of any required means of egress, or rearrangement of parts of a structure affecting the egress requirements; nor shall ordinary repairs include addition to, alteration of, replacement or relocation of any standpipe, water supply, sewer, drainage, drain leader, gas, soil, waste, vent or similar piping, electric wiring or mechanical or other work affecting public health or general safety.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:504. Public utility agencies.

A permit from the department of permits and inspections shall not be required for the installation, alteration or repair of generation, transmission, distribution or metering or other related equipment that is under the ownership and control of public utility agencies by established right.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:505. Application for permit.

To obtain a permit, the applicant shall first file an application therefor in writing on a form or by electronic means furnished by the department of permits and inspections for that purpose. Such application shall:

(1) Identify and describe the work to be covered by the permit for which application is made.

(2) Describe the land on which the proposed work is to be done by legal description, street address or similar description that will readily identify and definitely locate the proposed building or work.

(3) Indicate the use and occupancy for which the proposed work is intended.

(4) Be accompanied by construction documents and other information as required in title 8.

(5) State the valuation of the proposed work.

(6) Be signed by the applicant, or the applicant's authorized agent.

(7) Give such other data and information as required by the building official.

(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:506. Action on application.

The building official shall examine or cause to be examined applications for permits and amendments thereto within a reasonable time after filing. If the application or the construction documents do not conform to the requirements of pertinent laws, the building official shall reject such application in writing, stating the reasons therefor. If the building official is satisfied that the proposed work conforms to the requirements of this title and laws and ordinances applicable thereto, the building official shall issue a permit therefor as soon as practicable.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:507. Time limitation of application.

An application for a permit for any proposed work shall be deemed to have been abandoned one hundred eighty (180) days after the date of filing, unless such application has been pursued in good faith or a permit has been issued; except that the building official is authorized to grant one (1) or more extensions of time for additional periods not exceeding ninety (90) days each. The extension shall be requested in writing and justifiable cause demonstrated.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:508. Validity of permit.

The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this title or of any other ordinance of the jurisdiction. Permits presuming to give authority to violate or cancel the provisions of this title or other ordinances of the jurisdiction shall not be valid. The issuance of a permit based on construction documents and other data shall not prevent the building official from requiring the correction of errors in the construction documents and other data. The building official is authorized to prevent occupancy or use of a structure where in violation of this title or of any other ordinances of this jurisdiction.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:509. Expiration.

Every permit issued shall become invalid unless the work on the site authorized by such permit is commenced within one hundred eighty (180) days after its issuance, or if the work authorized on the site by such permit is suspended or abandoned for a period of one hundred eighty (180) days after the time the work is commenced. The building official is authorized to grant, in writing, one or more extensions of time, for periods not more than one hundred eighty (180) days each. The extension shall be requested in writing and justifiable cause demonstrated.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:510. Suspension or revocation.

The building official is authorized to suspend or revoke a permit issued under the provisions of this title wherever the permit is issued in error or on the basis of incorrect, inaccurate or incomplete information, or in violation of any ordinance or regulation or any of the provisions of this title.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:511. Placement of permit.

The permit holder or his agent shall post the permit on the jobsite in an accessible and conspicuous place. The permit shall be kept on the site of the work until the completion of the project.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 6. SUBMITTAL DOCUMENTS

Sec. 8:600. General.

Submittal documents consisting of construction documents and other documents required by the building official shall be submitted with each permit application. The construction documents shall be prepared by a registered design professional where required by the statutes of the jurisdiction in which the project is to be constructed. Where special conditions exist, the building official is authorized to require additional construction documents to be prepared by a registered design professional.

Exception: The building official is authorized to waive the submission of construction documents and other data not required to be prepared by a registered design professional if it is found that the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this title.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:601. Construction documents.

Construction documents shall be submitted in accordance with the requirements set forth in title 8.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:602. Information on construction documents.

Construction documents shall be dimensioned and drawn upon suitable material. Electronic media documents are permitted to be submitted where approved by the building official. Construction documents shall be of sufficient clarity to indicate the location, nature and extent of the work proposed and show in detail that it will conform to the provisions of this title and relevant laws, ordinances, rules and regulations, as determined by the building official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:602.5. Means of egress.

The construction documents shall show in sufficient detail the location, construction, size and character of all portions of the means of egress including the path of the exit discharge to the public way in compliance with the provisions of this title. In other than occupancies in groups R-2, R-3, and I-1, the construction documents shall designate the number of occupants to be accommodated on every floor, and in all rooms and spaces.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:603. Exterior wall envelope.

Construction documents for all buildings shall describe the exterior wall envelope in sufficient detail to determine compliance with this title. The construction documents shall provide details of the exterior wall envelope as required, including flashing, intersections with dissimilar materials, corners, end details, control joints, intersections at roof, eaves or parapets, means of drainage, water-resistive membrane and details around openings.

The construction documents shall include manufacturer's installation instructions that provide supporting documentation that the proposed penetration and opening details described in the construction documents maintain the weather resistance of the exterior wall envelope. The supporting documentation shall fully describe the exterior wall system that was tested, where applicable, as well as the test procedure used.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:604. Site plan.

The construction documents submitted with the application for permit shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site, distances from lot lines, the established street grades and the proposed finished grades and, as applicable, flood hazard areas, floodways, and design flood elevations; and it shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. The building official is authorized to waive or modify the requirement

for a site plan where the application for permit is for alteration or repair or where otherwise warranted.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:605. Structural information.

The construction documents shall provide the information specified in title 8.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:606. Examination of documents.

The building official shall examine or cause to be examined the accompanying submittal documents and shall ascertain by such examinations whether the construction indicated and described is in accordance with the requirements of this title and other pertinent laws or ordinances.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:607. Approval of construction documents.

When the building official issues a permit, the construction documents shall be approved, in writing or by stamp, as "reviewed for code compliance." One (1) set of construction documents so reviewed shall be retained by the building official. The other set shall be returned to the applicant, shall be kept at the site of work and shall be open to inspection by the building official or a duly authorized representative.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:608. Previous approvals.

This title shall not require changes in the construction documents, construction or designated occupancy of a structure for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the construction of which has been pursued in good faith within one hundred eighty (180) days after the effective date of this title and has not been abandoned.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:609. Phased approval.

The building official is authorized to issue a permit for the construction of foundations or any other part of a building or structure before the construction documents for the whole building or structure have been submitted, provided that adequate information and detailed statements have been filed complying with pertinent requirements of this title. The holder of such permit for the foundation or other parts of a building or structure shall proceed at the holder's own risk with the building operation and without assurance that a permit for the entire structure will be granted.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:610. Design professional in responsible charge.

Where it is required that documents be prepared by a registered design professional, the building official shall be authorized to require the owner or the owner's authorized agent to engage and designate on the building permit application a registered design professional who shall act as the registered design professional in responsible charge. If the circumstances require, the owner or the owner's authorized agent shall designate a substitute registered design professional in responsible charge who shall perform the duties required of the original registered design professional in responsible charge. The building official shall be notified in writing by the owner or the owner's authorized agent if the registered design professional in responsible charge is changed or is unable to continue to perform the duties.

The registered design professional in responsible charge shall be responsible for reviewing and coordinating submittal documents prepared by others, including phased and deferred submittal items, for compatibility with the design of the building.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:611. Deferred submittals.

Deferral of any submittal items shall have the prior approval of the building official. The registered design professional in responsible charge shall list the deferred submittals on the construction documents for review by the building official.

Documents for deferred submittal items shall be submitted to the registered design professional in responsible charge who shall review them and forward them to the building official with a notation indicating that the deferred submittal documents have been reviewed and found to be in general conformance to the design of the building. The deferred submittal items shall not be installed until the deferred submittal documents have been approved by the building official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:612. Amended construction documents.

Work shall be installed in accordance with the approved construction documents, and any changes made during construction that are not in compliance with the approved construction documents shall be resubmitted for approval as an amended set of construction documents.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:613. Retention of construction documents.

One (1) set of approved construction documents shall be retained by the building official electronically for a period of not less than one hundred eighty (180) days from date of completion of the permitted work, or as required by state or local laws.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 7. TEMPORARY STRUCTURES AND USES

Sec. 8:700. General.

The building official is authorized to issue a permit for temporary structures and temporary uses. Such permits shall be limited as to time of service, but shall not be permitted for more than one hundred eighty (180) days. The building official is authorized to grant extensions for demonstrated cause.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:701. Conformance.

Temporary structures and uses shall comply with the requirements in section 3103 of the International Building Code.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:702. Temporary power.

The building official is authorized to give permission to temporarily supply and use power in part of an electric installation before such installation has been fully completed and the final certificate of completion has been issued. The part covered by the temporary certificate shall comply with the requirements specified for temporary lighting, heat or power in NFPA 70 as adopted and amended by LSUCCC.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:703. Termination of approval.

The building official is authorized to terminate such permit for a temporary structure or use and to order the temporary structure or use to be discontinued.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 8. FEES

Sec. 8:800. Payment of fees.

A permit shall not be valid until the fees prescribed by law have been paid, nor shall an amendment to a permit be released until the additional fee, if any, has been paid.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:801. Schedule of permit fees.

On buildings, structures, electrical, gas, mechanical, and plumbing systems or alterations requiring a permit, a fee for each permit shall be paid as required, in accordance with the schedule as established by the applicable governing authority.

(1) *Commercial plan review fee.* Commercial plan review fees are set forth as follows:

a. For valuations up to five hundred thousand dollars ($500,000.00), the fee shall be three dollars ($3.00) per one thousand dollars ($1,000.00).

b. For valuations over five hundred thousand dollars ($500,000.00) the fee shall be one thousand five hundred dollars ($1,500.00) plus fifty cents ($0.50) per one thousand dollars ($1,000.00).

c. Minimum commercial plan review fee shall be one hundred dollars ($100.00).

(2) *Residential plan review fee.* Residential plan review fee shall be fifty cents ($0.50) per total square footage for each single-family residential unit including duplexes, and for additions/renovations. The minimum residential review fee shall be eighty dollars ($80.00). All fees are payable before plans are reviewed.

a. Residential plan reviews shall be completed within seven (7) business days after receipt of all required information necessary in order to complete an initial plan review. Residential resubmittals shall be reviewed within three (3) business days after receipt.

(3) *Commercial permit fees.* The schedule of permit fees for construction shall be as follows:

a. For valuations up to one hundred thousand dollars ($100,000.00), the fee shall be five dollars ($5.00) per one thousand dollars ($1,000.00).

b. For valuations from one hundred thousand dollars ($100,000.00) through five hundred thousand dollars ($500,000.00), the fee shall be five hundred dollars ($500.00) plus four dollars ($4.00) per one thousand dollars ($1,000.00).

c. For valuations above five hundred thousand dollars ($500,000.00), the fee shall be two thousand one hundred dollars ($2,100.00) plus one dollar and fifty cents ($1.50) per one thousand dollars ($1,000.00).

d. Commercial plan reviews shall be completed within twenty-one (21) business days after receipt of all required information necessary in order to complete an initial plan review. Commercial resubmittals shall be reviewed within five (5) business days after receipt.

(4) *Same—minimum permit fee.* Minimum permit fee for commercial construction will be one hundred dollars ($100.00).

(5) *Residential permit fee.*

a. Residential new building permit fees: zero dollars ($0.00) (included with plan review fee).

b. All other residential building permit fees shall be one hundred twenty-five dollars ($125.00) including additions, renovations, generators, swimming pools, fence, solar, driveways.

c. Residential electrical trade permit fee: one hundred twenty-five dollars ($125.00).

d. Residential mechanical/HVAC trade permit fee: one hundred twenty-five dollars ($125.00).

e. Residential plumbing and/or gas trade permit fee: one hundred twenty-five dollars ($125.00).

(6) *Building valuation data.* Commercial construction costs for fee calculation purposes shall be computed utilizing the most recent published version of the ICC Building Valuation Data (BVD).

a. In lieu a permit fee based on valuation calculated as defined above, the building official may accept a written contract or agreement signed by the owner and contractor indicating the total actual construction cost.

(7) *Double permit fee.* A double permit fee may be assessed if construction work starts prior to the issuance of a required permit.

(8) *Re-inspection fee.* A re-inspection fee of twenty dollars ($20.00) may be assessed

for each second and subsequent rejection or failed inspection for each craft. All re-inspection fees shall be paid prior to the authorization of utilities, the issuance of the certificate of occupancy, or the issuance of any future permits to the owner, agent, or contractor responsible for the fee.

(9) *After hours inspection fee.* Before and after hours, non-emergency, inspection fee shall be one hundred fifty dollars ($150.00) and shall be paid prior to inspection. All requests for inspection must be made during working hours and inspections will be subject to availability of inspection division personnel. The final determination of emergency versus non-emergency status will be by the building official or his duly authorized representative.

(10) *Technology fee.* A technology fee of fifteen dollars ($15.00) shall be assessed for each permit issued. Technology fee revenues shall be dedicated and used for annual computer permit software costs and all associated computer hardware costs.

(11) *Demolition permit fee.* Demolition permit fee shall be eighty dollars ($80.00).

(12) *Commercial occupancy permit fee.* Commercial occupancy permit fee shall be one hundred dollars ($100.00). A fire prevention inspection fee of twenty-five dollars ($25.00) shall be added to all sites located within the Baton Rouge city limits. A commercial occupancy permit shall be required for each change in owner or tenant or disconnection/reconnection of utilities in a commercial building. No construction work is allowed to be performed under the occupancy permit, with the exception of minor repairs not requiring a building permit. Minor electrical, mechanical, and plumbing repairs may be performed with appropriate permits if approved by inspection division personnel. A change in the occupancy classification of a structure or building will require a submittal of plans for review and approval by the commercial plan review section.

(13) *Residential occupancy permit fee.* Residential occupancy permit fee shall be eighty dollars ($80.00). A residential occupancy permit shall be required for all single family residential structures where the utilities (electrical and/or gas) have been disconnected for a period of six (6) months or more. No construction work is allowed to be performed under the occupancy permit, with the exception of minor repairs not requiring a building permit. Minor electrical, mechanical, and plumbing repairs may be performed with appropriate permits if approved by inspection division personnel.

(14) *House moving permit fee.* House moving permit fee shall be eighty dollars ($80.00) per piece. A house moving permit shall be required for the relocation of a single-family residential building or structure to a lot within the parish or to relocate on the same lot. In conjunction with a house moving permit, a foundation permit and general remodeling permit shall also be required.

(15) *Manufactured home relocation permit fee.* Manufactured home relocation permit fee shall be eighty dollars ($80.00). In conjunction with a manufactured home relocation permit, electrical and plumbing permits shall also be required.

(16) Document retrieval fee shall be twenty dollars ($20.00). This fee shall be assessed for retrieval of plans, documents or other records from the established records archives. Requests for such documents shall be in writing and in accordance with current Freedom of Information Act laws. If requested and approved, copies of documents will be provided at a cost established by the permit and inspection division for copies.

(17) *Refunds.* Refunds shall not be issued for applications for building permits once the plan review has been completed.

Refunds shall not be issued for any permit in excess of one (1) year from the date of issuance.

(18) *Residential new HVAC/mechanical.* Residential new HVAC/mechanical permit fee: zero dollars ($0.00) (included with plan review fee).

(19) *All other residential HVAC/mechanical.* All other residential HVAC/mechanical permit fee: one hundred twenty-five dollars ($125.00).

(20) *Commercial HVAC/mechanical fee schedule.*

For construction valuations less than one hundred thousand dollars ($100,000.00): one hundred twenty-five dollars ($125.00).

For construction valuations less than five hundred thousand dollars ($500,000.00) and more than one hundred thousand dollars ($100,000.00): three hundred dollars ($300.00).

For construction valuations less than two million dollars ($2,000,000.00) and more than five hundred thousand dollars ($500,000.00): four hundred dollars ($400.00).

For construction valuations more than two million dollars ($2,000,000.00): six hundred dollars ($600.00).

(21) *All other residential plumbing and/or gas.* All other residential plumbing and/or gas permit fee: one hundred twenty-five dollars ($125.00).

(22) *Commercial plumbing and/or gas permit fee schedule.*

For construction valuations less than one hundred thousand dollars ($100,000.00): one hundred twenty-five dollars ($125.00).

For construction valuations less than five hundred thousand dollars ($500,000.00) and more than one hundred thousand dollars ($100,000.00): three hundred dollars ($300.00).

For construction valuations less than two million dollars ($2,000,000.00) and more than five hundred thousand dollars ($500,000.00): four hundred dollars ($400.00).

For construction valuations more than two million dollars ($2,000,000.00): six hundred dollars ($600.00).

(23) *Residential new electrical.* Residential new electrical permit fee: zero dollars ($0.00) (included with plan review fee).

(24) *All other residential electrical.* All other residential electrical permit fee: one hundred twenty-five dollars ($125.00).

(25) *Commercial electrical permit fee schedule.*

For construction valuations less than one hundred thousand dollars ($100,000.00): one hundred twenty-five dollars ($125.00).

For construction valuations less than five hundred thousand dollars ($500,000.00) and more than one hundred thousand dollars ($100,000.00): three hundred dollars ($300.00).

For construction valuations less than two million dollars ($2,000,000.00) and more than five hundred thousand dollars ($500,000.00): four hundred dollars ($400.00).

For construction valuations more than two million dollars ($2,000,000.00): six hundred dollars ($600.00).

(26) *Mobile homes.*

All mobile homes, including tenant changes: eighty dollars ($80.00).

Residential trailers: eighty dollars ($80.00).

(27) *Board of adjustments application.* Board of adjustments application fee: forty-five dollars ($45.00).

(28) *Board of appeals application.* Board of appeals application fee: twenty-five dollars ($25.00).

(29) *Sign permit fees.*

a. Walls signs permit and plan review fee shall be two hundred fifty dollars ($250.00).

b. Billboards and other free-standing sign permit and review fee shall be five hundred dollars ($500.00).

(30) *Flood zone determination letter.* Flood zone determination letter fees shall be fifteen dollars ($15.00).

(31) *Technology fee.* All permit shall be charged a fifteen-dollar ($15.00) technology fee.

(32) *Short term rental registration.* Short term rental registration shall be one hundred dollars ($100.00) annually.

(Ord. No. 18690, § 1, 11-22-22; Ord. No. 18848, § 1, 5-10-23)

Sec. 8:802. Work commencing before permit issuance.

Any person who commences any work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits shall be subject to a fee established by the building official that shall be in addition to the required permit fees.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:803. Related fees.

The payment of the fee for the construction, alteration, removal or demolition for work done in connection to or concurrently with the work authorized by a building permit shall not relieve the applicant or holder of the permit from the payment of other fees that are prescribed by law.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 9. INSPECTIONS

Sec. 8:900. General.

Construction or work for which a permit is required shall be subject to inspection by the building official and such construction or work shall remain accessible and exposed for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of the provisions of this title or of other ordinances of the jurisdiction. Inspections presuming to give authority to violate or cancel the provisions of this title or of other ordinances of the jurisdiction shall not be valid. It shall be the duty of the owner or the owner's authorized agent to cause the work to remain accessible and exposed for inspection purposes. Neither the building official nor the jurisdiction shall be liable for expense entailed in the removal or replacement of any material required to allow inspection.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:901. Preliminary inspection.

Before issuing a permit, the building official is authorized to examine or cause to be examined buildings, structures and sites for which an application has been filed.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:902. Required inspections.

The building official, upon notification, shall make the inspections as set forth in title 8.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:903. Footing and foundation inspection.

Footing and foundation inspections shall be made after excavations for footings are complete and any required reinforcing steel is in place. For concrete foundations, any required forms shall be in place prior to inspection. Materials for the foundation shall be on the job, except where concrete is ready mixed in accordance with ASTM C94, the concrete need not be on the job.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:904. Concrete slab and under-floor inspection.

Concrete slab and under-floor inspections shall be made after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:905. Lowest floor elevation.

In flood hazard areas, upon placement of the lowest floor, including the basement, and prior to further vertical construction, the elevation certification required in section 1612.5 of the International Building Code shall be submitted to the building official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:906. Frame inspection.

Framing inspections shall be made after the roof deck or sheathing, all framing, fireblocking and bracing are in place and pipes, chimneys and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes and ducts are approved.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:907. Fire- and smoke-resistant penetrations.

Protection of joints and penetrations in fire-resistance-rated assemblies, smoke barriers and smoke partitions shall not be concealed from view until inspected and approved.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:908. Energy efficiency inspections.

Inspections shall be made to determine compliance with chapter 13 of the International Building Code and chapter 11 of the International Residential Code and shall include, but not be limited to, inspections for: envelope insulation R- and U-values, fenestration U-value, duct system R-value, and HVAC and water-heating equipment efficiency.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:909. Other inspections.

In addition to the inspections specified in title 8, the building official is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this title and other laws that are enforced by the department of building safety.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:910. Special inspections.

For special inspections, see chapter 17 of the International Building Code.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:911. Final inspection.

The final inspection shall be made after all work required by the building permit is completed.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:912. Flood hazard documentation.

If located in a flood hazard area, documentation of the elevation of the lowest floor as required in section 1612.5 of the International Building Code or applicable flood hazard provisions of the International Residential Code shall be submitted to the building official prior to issuance of the certificate of occupancy.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:913. Mechanical inspections.

Mechanical inspections will include inspection of all mechanical systems as determined by the building official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:914. Plumbing inspections.

Plumbing inspections will include inspection of all plumbing systems as determined by the building official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:915. Electrical inspections.

Electrical inspections will include inspection of all electrical systems as determined by the building official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:916. Gas inspections.

Gas inspections will include inspection of all fuel systems as determined by the building official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:917. Inspection agencies.

The building official is authorized to accept reports of approved inspection agencies, provided such agencies satisfy the requirements as to qualifications and reliability.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:918. Inspection requests.

It shall be the duty of the holder of the building permit or their duly authorized agent to notify the building official when work is ready for inspection. It shall be the duty of the permit holder to provide access to and means for inspections of such work that are required by this title.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:919. Approval required.

Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the building official. The building official, upon notification, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or notify the permit holder or his or her agent wherein the same fails to comply with this title. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the building official.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 10. CERTIFICATE OF OCCUPANCY

Sec. 8:1000. Use and occupancy.

A building or structure shall not be used or occupied, and a change in the existing use or occupancy classification of a building or structure or portion thereof shall not be made, until the building official has issued a certificate of occupancy therefor as provided herein. Issuance of a certificate of occupancy shall not be construed as an approval of a violation of the provisions of this title, the unified development code, or of other ordinances of the jurisdiction.

Exception: Certificates of occupancy are not required for work exempt from permits in accordance with title 8.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1001. Certificate issued.

After the building official inspects the building or structure and does not find violations of the provisions of this title or other laws that are enforced by the department of permits and inspections, the building official shall issue a certificate of occupancy that contains the following:

(1) The building permit number.

(2) The address of the structure.

(3) The name and address of the owner or the owner's authorized agent.

(4) A description of that portion of the structure for which the certificate is issued.

(5) A statement that the described portion of the structure has been inspected for compliance with the requirements of this title for the occupancy and division of occupancy and the use for which the proposed occupancy is classified.

(6) The name of the building official.

(7) The edition of the code under which the permit was issued.

(8) The use and occupancy, in accordance with the provisions of chapter 3 of the International Building Code.

(9) The type of construction as defined in chapter 6 of the International Building Code.

(10) The design occupant load.

(11) If an automatic sprinkler system is provided, whether the sprinkler system is required.

(12) Any special stipulations and conditions of the building permit.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1002 Temporary occupancy.

The building official is authorized to issue a temporary certificate of occupancy before the completion of the entire work covered by the permit, provided that such portion or portions shall be occupied safely. The building official shall set a time period during which the temporary certificate of occupancy is valid.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1003. Revocation.

The building official is authorized to, in writing, suspend or revoke a certificate of occupancy or completion issued under the provisions of this title wherever the certificate is issued in error, or on the basis of incorrect information supplied, or where it is determined that the building or structure or portion thereof is in violation of any ordinance or regulation or any of the provisions of this title.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 11. SERVICE UTILITIES

Sec. 8:1100. Connection of service utilities.

A person shall not make connections from a utility, source of energy, fuel or power to any building or system that is regulated by this title for which a permit is required, until released by the building official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1101. Temporary connection.

The building official shall have the authority to authorize the temporary connection of the building or system to the utility, source of energy, fuel or power.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1102. Authority to disconnect service utilities.

The building official shall have the authority to authorize disconnection of utility service to the building, structure or system regulated by this section and the referenced codes and standards set forth in title 8 in case of emergency where necessary to eliminate an immediate hazard to life or property or where such utility connection has been made without the approval required by title 8. The building official shall notify the serving utility, and wherever possible the owner and occupant of the building, structure or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnecting, the owner or occupant of the building, structure or service system shall be notified in writing, as soon as practical thereafter.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 12. BOARD OF APPEALS

Sec. 8:1200. General.

In order to hear and decide appeals of orders, decisions or determinations made by the building official and/or flood plain manager relative to the application and interpretation of this title and the unified development code, there shall be and is hereby created a board of appeals. The board of appeals shall be appointed by the applicable governing authority and shall hold office at its pleasure. The board shall adopt rules of procedure for conducting its business. The board shall consist of seven (7) members and two (2) alternates, all of whom shall be appointed by the mayor-president, but with the consent of the council. The mayor-president shall appoint members for a term of three (3) years. Vacancies shall be filled for an unexpired term in the manner in which original appointments are required to be made. Continued absence of any member from regular meeting of the board shall render any such member liable to immediate removal from office by the mayor-president. The present members of the board of appeals shall continue to serve until the expiration of their respective terms.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1201. Limitations on authority.

An application for appeal shall be based on a claim that the true intent of this title or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this title do not fully apply or an equally good or better form of construction is proposed. The board shall not have authority to waive requirements of this title. Five (5) members of the board shall constitute a quorum. In varying the application of any provision of this code or in modifying an order of the building official, affirmative votes of five (5) members shall be required.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1202. Qualifications.

The board of appeals shall consist of members who are qualified by experience and training to pass on matters pertaining to building construction and are not employees of the city-parish.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 13. VIOLATIONS

Sec. 8:1300. Unlawful acts.

It shall be unlawful for any person, firm or corporation to erect, construct, alter, extend, repair, move, remove, demolish or occupy any building, structure or equipment regulated by this title, or cause same to be done, in conflict with or in violation of any of the provisions of this section.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1301. Notice of violation.

The building official is authorized to serve a notice of violation or order on the person responsible for the erection, construction, alteration, extension, repair, moving, removal, demolition or occupancy of a building or structure in violation of the provisions of this title, or in violation of a permit or certificate issued under the provisions of this title. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1302. Prosecution of violation.

If the notice of violation is not complied with promptly, the building official is authorized to request the legal counsel of the jurisdiction to institute the appropriate proceeding at law or in equity to restrain, correct or abate such violation, or to require the removal or termination of the unlawful occupancy of the building or structure in violation of the provisions of this title or of the order or direction made pursuant thereto. This process shall be pursuance to title 1, section 1:609 et seq. However, this process shall not be deemed the exclusive remedy afforded to the city-parish.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1303. Violation penalties.

Any person who violates a provision of this title or fails to comply with any of the requirements thereof or who erects, constructs, alters or repairs a building or structure in violation of the approved construction documents or directive of the building official, or of a permit or certificate issued under the provisions of this title, shall be subject to fines of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00).
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 14. STOP WORK ORDER

Sec. 8:1400. Authority.

Where the building official finds any work regulated by this title being performed in a manner either contrary to the provisions of this title or dangerous or unsafe, the building official is authorized to issue a stop work order.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1401. Issuance.

The stop work order shall be in writing and shall be given to the owner of the property involved, the owner's authorized agent or the person performing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work will be permitted to resume.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1402. Unlawful continuance.

Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to penalties as prescribed by law.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 15. UNSAFE STRUCTURES AND EQUIPMENT

Sec. 8:1500. Conditions.

Structures or existing equipment that are or hereafter become unsafe, insanitary or deficient because of inadequate means of egress facilities, inadequate light and ventilation, or that constitute a fire hazard, or are otherwise dangerous to human life or the public welfare, or that involve illegal or improper occupancy or inadequate maintenance, shall be deemed an unsafe condition. Unsafe structures shall be taken down and removed or made safe, as the building official deems necessary and as provided for in this section. A vacant structure that is not secured against entry shall be deemed unsafe.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1501. Record.

The building official shall cause a report to be filed on an unsafe condition. The report shall state the occupancy of the structure and the nature of the unsafe condition.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1502. Notice.

Notice shall be pursuant to the condemnation process set forth in title 12, chapter 8, section 12:521 et seq.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1503. Method of service.

Service shall be pursuant to the condemnation process set forth in title 12, chapter 8, section 12:521 et seq. of this title.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1504. Restoration.

Where the structure or equipment determined to be unsafe by the building official is restored to a safe condition, to the extent that repairs, alterations or additions are made or a change of occupancy occurs during the restoration of the structure, such repairs, alterations, additions and change of occupancy shall comply with the requirements of title 8 and the International Existing Building Code.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 16. FIRE PREVENTION

Sec. 8:1600. Definition.

For purposes of this section, the term "fire official" shall mean the chief of the Baton Rouge City Fire Department or his designee. Except that in Central Fire Protection District, District 6 Fire Protection District, East Side Fire Protection District and St. George Fire Protection District, the term shall mean the chief of each respective district or his designee.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1601. Water supply.

Approved fire hydrants shall be provided for buildings to meet the necessary fire flow requirements as determined by the fire official. Where public water supply is inadequate or not available, an approved alternative water source meeting the fire flow requirements shall be provided.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1602. Location.

The location and number of hydrants shall be designated by the fire official, but in no case shall the distance between installed fire hydrants exceed one thousand (1,000) feet. Maximum distance from the nearest hydrant to the most remote exterior point of any building shall be five hundred (500) feet. The distance shall be measured on a roadway surface meeting the fire department access requirements of section 602.6 of the Standard Fire Prevention Code and all amendments and/or modifications thereto.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1603. Plans and specifications.

Plans, specifications and hydraulic calculations for installation, modification, or alterations

of any fire service main or fire hydrant shall be submitted to the fire official for review and approval prior to installation.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1604. Preliminary approval.

No building permit shall be issued without preliminary approval of the fire official under this section. Additionally, the building official shall not issue a certificate of occupancy or a temporary certificate of occupancy within the boundaries of the St. George Fire Protection District without proof that the place of occupancy has been inspected and accepted by the fire prevention bureau of the St. George Fire Department.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1605. Fire flow tests.

Fire flow tests shall be witnessed by the fire official prior to final approval.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1606. Acceptance test required.

Before final approval and acceptance of fire suppression, alarm, detection or any fire protection device including standby power facilities and fire ventilating systems, in any building or structure, the installation shall be subjected to an acceptance test. These tests shall be adequate to determine that the system or fire protection device has been properly installed and will function as intended. It shall be unlawful to occupy within portions of a structure until the required fire protection systems within that portion of the structure have been tested and approved.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1607. Permit required.

No person shall install, make alterations or additions to a fire protective signaling, detection or fire suppression system before securing a permit from the fire official.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1608. Fire official discretion.

The fire official may waive the provisions of the section and/or issue temporary or provisional approvals.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1609. Exclusions.

The provisions of this section do not apply to one- and two-family dwellings or their detached accessory structures.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 17. HOUSE MOVING

Sec. 8:1700. Definitions.

For the purposes of this chapter, the following terms, phrases and words shall have the following meanings:

Building is a structure designed, built or occupied as a shelter or roofed enclosure for persons, animals or property and used for residential, business, mercantile, storage, commercial, industrial, institutional assembly, educational or recreational purposes. Structures that carry a vehicle tag are excluded.

Building mover is any person who moves or procures an agreement to move a building over, along or across any public way (not to include state roads), street or alley.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1701. Duties of building mover.

Every building mover under this chapter shall:

(1) *Use designated streets.* Move a building only over streets designated for such use in the written permit. Restricted hours are from 6:00 a.m. to 9:00 a.m. and 3:00 p.m. to 9:00 p.m. Once the move begins, only the law enforcement officers have the authority to alter the route due to emergency or safety reasons.

(2) *Notify of desired moving time.* Notify the inspection division in writing of a desired change in moving date and hours as stated in the application.

(3) *Notify of damage.* Notify the inspection division in writing of any and all damage done to property belonging to the city-parish within twenty-four (24) hours after the damage or injury has occurred.

(4) *Required tags.* All equipment used shall have a current license tag on the tractor, current commercial safety sticker, inspected by the Louisiana Department of Public Safety, current license tag on the trailer, and a properly posted sign on the tractor showing moving contractor's name. In addition, a copy of insurance, vehicle registration, and city-parish approved permit must be in the vehicle.

(5) *Comply with governing law.* Comply with the building code, the zoning ordinance and all other applicable ordinances and laws upon relocating a building in the city-parish.

(6) *Safety.* Original building site to be left in a safe and sanitary condition.

(7) *Remove service connections.* See that the sewer line is plugged and gas and water shut off. The permittee shall notify the gas and electric service companies to remove their services a minimum of one (1) work day in advance of the move.

(8) *Pay expenses of officers.* Pay the expense of any officer required by the chief of the inspection division to accompany the movement of the building to protect the public from injury. The contractor shall pay the law enforcement officers the assigned rate. The house mover will have thirty (30) minutes from the starting time to begin the move; if the thirty (30) minute time has lapsed, then the move will be terminated for that day. Due to shift changes, it will be necessary to have a cutoff time of 2:00 p.m.; however, should the house mover want to continue his move to 3:00 p.m., it will be necessary to hire two (2) more motorcycle units to continue the escort. Notice for a house moving will be given to the traffic office the day before the move (24 hours). Any cancellation will be two (2) hours before the scheduled time of the move.

(9) *Clearance check.* Plan route of the move and drive the route to check out all clearances that may be needed for safe passage. Notify all overhead utilities a minimum of three (3) working days in advance of the move in order to check clearance of the planned route.

(10) Notify all needed escorts a minimum of one (1) work day in advance of the move. In the event of any delay or cancellation of the move for that day, notify all escorts a minimum of the beginning of that work day.

(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1702. Exceptions.

The provisions of this chapter shall not apply to the moving of small builders' shanties and other similar temporary structures where the structure can be moved on normal automotive equipment, will not exceed twelve (12) feet in width, fourteen (14) feet in height, or overall combined length of seventy-five (75) feet, and will not require the blocking of right-of-way or interference with the normal movement of traffic.

(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 18. PIPELINES AND SIMILAR FACILITIES

Sec. 8:1800. Permit required.

No pipeline or other similar facility shall be constructed or installed in public rights-of-way or over and across any public or private property within the city-parish unless a permit therefor shall first have been obtained from the permit division of the department of public works.

(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1801. Submission for approval.

The installation and construction of all such pipelines or other similar facilities shall be in accordance with plans approved by the depart-

ment of public works and the department of public works may require the applicant for such a permit to submit such plans as may be necessary to effect the provisions of this chapter.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1802. Requirements.

Whenever any pipeline is to be installed in, over or through any public road or street right-of-way or public servitude located anywhere in the city-parish, a permit as above provided must be obtained and the following additional requirements shall be met:

(1) All pipeline crossings of public roads are to be cased and vented or as approved by the director of public works provided said design meets or exceeds the current Louisiana Department of Transportation and Development standards.

(2) If crossings are made by excavation rather than boring, the roads are to be restored to their original condition, and said cuts are to be maintained for a period of thirty-six (36) months.

(3) All crossings of drainage canals, streams, ditches, etc., are to be made in such a manner as to permit future enlargement and/or improvement of the drainage facilities.

(4) If the material removed from an excavation is not suitable for backfill, the permittee shall haul it away and provide suitable backfill material.

(5) All alterations and/or relocations of the proposed pipeline which may become necessary due to the improvement and/or sidening of the public roads and/or drainage canals or public servitudes shall be done entirely at the expense of the permit holder and upon request, even though the above provisions have been met, and each permit issued under this section shall bear a statement to that effect.

(6) The installation and construction of all such pipelines or other similar facilities shall be subject to the supervision of the department of public works. A stop work order may be issued for any failure of the permittee to comply with the conditions of his permit or where a danger to the public exists.

(7) The department of public works shall estimate the time required for all such installations and permit fees shall be collected at the rate of twelve dollars and fifty cents ($12.50) per day.

(8) a. Before any permit shall issue under this section, the applicant shall post bond in favor of the city-parish in the amount of five thousand dollars ($5,000.00), plus an amount estimated by the engineering division of the department of public works as sufficient to cover the cost of filling and maintaining excavations as required by this chapter. The bond shall be written by a surety company authorized to transact business in the state and shall be approved as to form by the parish attorney.

b. The bond hereby required shall be conditioned upon the permittee's compliance with this chapter and to secure and hold the city-parish harmless against any and all claims, judgments or other costs arising from the excavation and other work covered by the permit, or for which the city-parish, or any officer or employee thereof, may be made liable by reason of any accident or injury to persons or property through the fault of the permittee either in not properly guarding the excavation or for any other injuries resulting from the negligence of the permittee, and further conditioned to fill up, restore, and place in good and safe condition, as near as may be to its original condition, and to the satisfaction of the department of public works, all openings and excavations made in public roads, street rights-of-way or public servitudes, including drainage and sewerage facilities and

servitudes, and to maintain any road, street or servitude where excavation is made, in as good condition for a period of thirty-six (36) months after the work shall have been completed, usual wear and tear excepted, as it was in before the work started. Any settlement of the surface within the said three (3) year period shall be deemed conclusive evidence of defective backfilling by the permittee. Nothing herein contained shall be construed to require the permittee to maintain any repairs to pavement made by the city-parish. Recovery on the bond hereby required for any injury or accident shall not exhaust the bond but it shall in its entirety cover any or all future accidents or injuries during the excavation work for which it is given. If any suit or claim against the city-parish by reason of the negligence or default of the permittee, and upon the giving of written notice to the permittee of such suit or claim, any final judgment against the city-parish requiring payment for such damage shall be conclusive upon the permittee and his surety. If at any time during the three (3) year period the permittee shall fail to properly backfill and maintain any excavation, the city-parish shall, upon giving of ten (10) days' written notice to the permittee and to his surety, shall be entitled to contract for the necessary work and to call upon the permittee and his surety to pay the entire cost thereof.

(9) Before any permit shall issue under these sections, the applicant shall also furnish to the department of public works a certificate of insurance evidencing public liability insurance issued by an insurance company qualified to do business in the state which insurance coverage shall afford protection against third persons sustaining injury or damage as a result of the negligent construction, operation and maintenance of the pipe line or other similar facilities by the operator thereof and shall name the city-parish as an additional insured thereunder for such coverage only, and shall not have less than the following limits of liability: (i) for each accident causing bodily injury three hundred thousand dollars ($300,000.00) for each person injured and five hundred thousand dollars ($500,000.00) for each accident; and (ii) one hundred thousand dollars ($100,000.00) for property damage sustained in any one accident. The policy shall remain in full force and effect so long as any pipe line is maintained and operated pursuant to any permit issued hereunder, and shall provide that the city-parish shall be given at least ten (10) days' written notice prior to its cancellation. If notice of cancellation is given and another certificate of insurance evidencing the issuance of a policy meeting all terms and conditions hereof is not furnished prior to the end of the ten (10) day period, the permit shall automatically be forfeited and the applicant shall immediately discontinue its operations thereunder. Provided, however, that the reinstatement of the insurance coverage provided herein and the furnishing of a certificate of such insurance coverage to the city-parish shall entitle applicant to immediate reinstatement of its permit. In addition to the aforesaid insurance requirement, any permit issued under these sections is conditioned on the understanding that the applicant and/or its insurer will fully protect and defend the city-parish against any cause of action premised solely upon its act of issuing such permit. Nothing herein shall be construed as protecting or insuring the city-parish as an additional insured under the aforesaid certificate of insurance, against any claims or liabilities which are or may be attributable to injuries or damages arising out of or resulting from any acts (except the sole

act of issuing the permit described above), omission, negligence or fault of the city-parish, its agents, servants, employees or by any other persons acting under its direction.

(10) If it is necessary that the pipeline or other similar facility be altered, relocated or removed by reason of any public improvement, the director of public works shall give notice to the owner thereof directing that the pipeline be relocated or removed. Within thirty (30) days after receipt of such a notice, the owner shall commence the removal or relocation of its facilities in accordance with the direction of the director of public works and shall prosecute such work with due diligence. If the owner fails or refuses to commence the work as herein provided, it shall be responsible to the city-parish for any cost or damage occasioned by the delay in commending and prosecuting such work.

Where pipelines or other similar facilities are located within existing street or other public rights-of-way under servitudes or titles acquired prior to the acquisition or dedication of the street or public rights-of-way and it is necessary that such pipeline or other similar facility be altered, removed or relocated in order to facilitate public improvements, then in such event, the director of public works is authorized to immediately negotiate with the owner for the alteration, relocation or removal of the facility. If an agreement is reached under which such alteration, removal or relocation is to be carried out, the agreement shall provide, in addition to other terms and conditions contained therein, that the owner shall commence such alteration, relocation, or removal within thirty (30) days after the execution of the agreement and shall prosecute the work with all due diligence. If an agreement cannot be reached with the owner, or if the owner fails or refuses to commence the work required under the agreement within thirty (30) days after its execution, the office of the parish attorney is hereby authorized to take such steps as may be required or necessary in order to acquire the right to construct the public improvement over and across the existing pipeline or other similar facility.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 19. GEOPHYSICAL AND SEISMOGRAPHIC SURVEYS

Sec. 8:1900. Permit required.

No geophysical or seismographic survey by any person shall be performed on property owned by the city-parish unless permission therefor shall first have been obtained from the council.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1901. Approval of plans.

Any geophysical or seismographic survey shall be in accordance with the permittee's plans as approved by the department of public works, such approval to be granted by the director of the department of public works, assistant director of the department of public works or chief engineer of the department of public works.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1902. Fees.

(a) Should a geophysical or seismographic survey which does not require drilling take place on property owned by the city-parish, a fee of three hundred dollars ($300.00) shall be charged.

(b) Should a geophysical or seismographic survey which requires drilling take place on property owned by the city-parish, a fee of one hundred fifty dollars ($150.00) per drilling hole bored shall be charged.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:1903. Penalty.

Any person violating or failing or refusing to comply with any provisions of this chapter shall be deemed guilty of an offense, punishable upon conviction by a fine of not more than five hundred dollars ($500.00), or imprisonment for not more than one hundred eighty (180) days, or both, at

the discretion of the court; and a separate offense shall be deemed committed on each day during which such violation exists.
(Ord. No. 18690, § 1, 11-22-22)

CHAPTER 20. HOUSING DISCRIMINATION

ARTICLE 1. GENERAL PROVISIONS

Sec. 8:2000. Declaration of policy.

(a) It is the policy of the city to bring about the opportunity of each person to obtain housing without regard to race, color, religion, handicap, sex, familial status, or national origin through fair, orderly and lawful procedures.

(b) This policy is established upon a recognition that each individual has the inalienable right to obtain housing without regard to race, color, sex, religion, disability, familial status or national origin. This policy identifies the detrimental effect that discrimination based on race, color, sex, religion, disability, familial status or national origin, has on the health, safety and welfare of the inhabitants of the city and parish. The city and parish acknowledges its responsibility to use its power to prevent the denial of housing based on such considerations because such considerations constitute an unjust denial or deprivation of inalienable rights.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2001. Scope.

(a) To provide a procedure for investigating and settling complaints of discriminatory housing practices which:

(1) Are violations of state and federal law;

(2) Provide to aggrieved parties through local administrative resources; and

(3) To provide a referral system to direct cases beyond the scope of local administrative process to the suitable state and/or federal enforcement authorities for litigation.

(b) Even though federal law protects individuals against discrimination in housing based on race, color, religion, handicap, sex, familial status, or national origin, it is the policy of the city-parish that no person should be denied the opportunity to obtain housing on the basis of race, color, religion, handicap, sex, familial status, or national origin.
(Ord. No. 18690, § 1, 11-22-22)

ARTICLE 2. DISCRIMINATION IN HOUSING—FAIR HOUSING ACT COMPLIANCE

Division 1. General Provisions

Sec. 8:2002. Purpose.

The purposes of this chapter are:

(1) To provide for fair housing practices in the city;

(2) To create a procedure for investigating and settling complaints of discriminatory housing practices;

(3) To provide administrative remedies to aggrieved parties through local administrative resources; and

(4) To provide a referral system to direct cases beyond the scope of local administrative process to suitable state and/or federal enforcement authorities for litigation or injunctive relief.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2003. Definitions.

As used in this chapter:

Aggrieved person includes any person who:

(1) Claims to have been injured by a discriminatory housing practice; or

(2) Believes that he will be injured by a discriminatory housing practice that is about to occur.

Complainant means that person who files a complaint pursuant to section 8:2017.

Conciliation means the attempted resolution of issues raised by a complaint, or by the investigation of such complaint, through informal negotiations involving the aggrieved person, the respondent, and the director of the office of community development or his designee.

Conciliation agreement means a written agreement setting forth the resolution of the issues in conciliation.

Discriminatory housing practice means an act that is unlawful pursuant to sections 8:2013 through 8:2016 of this chapter.

Dwelling means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one (1) or more families, and any vacant land which is offered for sale or lease for the construction or location thereon at any such building, structure, or portion thereof.

Familial status means one or (1) more individuals, who have not attained the age of eighteen (18) years, being domiciled with:

(1) A parent or another person having legal custody of such individual or individuals; or

(2) The designee of such parent or other person having such custody, with the written permission of such parent or other person.

The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of eighteen (18) years.

Family includes a single individual.

Handicap means, with respect to a person:

(1) A physical or mental impairment which substantially limits one (1) or more of such person's major life activities.

(2) Major life activities means functions essential to everyday life, including caring for one's self, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning and working.

(3) A record of having such an impairment; or

(4) Being regarded as having such an impairment;

Such term does not include current, illegal use of, or addiction to a controlled substance as defined in section 102 of the Controlled Substances Act, 21 U.S.C. 802, et seq.

Person includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint stock companies, trusts, unincorporated organizations, trustees, trustees in bankruptcy, receivers, and fiduciaries.

Respondent means the person or other entity accused in a complaint of a discriminatory housing practice, or, any other person or entity identified in the course of an investigation and notified that they are a respondent who shall be joined in the complaint.

To rent includes to lease, to sublease, to let, and otherwise to grant for a consideration the right to occupy premises owned by the occupant. (Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2004. General applicability and exceptions thereto.

(a) Subject to the provisions of subsection (b) of this section and sections 8:2005 and 8:2006 of this chapter, the prohibitions against discrimination in the sale or rental of housing set forth in section 8:2015 shall apply to:

(1) Dwellings owned or operated by the federal government, this state, or by any political subdivision of this state.

(2) Dwellings financed in whole or in part with the aid of loans, advances, grants, or contributions made by:

a. This state or any political subdivision of this state.

b. The federal government under agreements entered into after November 20, 1962, unless payment due thereon has been made in full prior to April 11, 1968.

(3) Dwellings provided in whole or in part by loans insured, guaranteed, or otherwise secured by the credit of the federal government under agreements entered into after November 20, 1962, unless payment thereon has been made in full prior to April 11, 1968; provided that nothing contained in subsections (2) and (3) of this subsection (a) shall be applicable to dwellings solely by virtue of the fact that they are subject to mortgages held by an institution insured by the Federal Deposit Insurance Corporation.

(4) Dwellings provided by the development or the redevelopment of real property purchased, rented, or otherwise obtained from a state or local public agency receiving federal financial assistance for slum clearance or urban renewal with respect to such real property under loan or grant contracts entered into after November 20, 1962.

(5) All other dwellings except as exempted by subsection (b) of this section.

(b) Nothing in section 8:2013, except subsection (a)(3) thereof, shall apply to any of the following dwellings:

(1) Any single-family house sold or rented by an owner, provided that such private individual owner does not own more than three (3) such single-family houses at any one (1) time; provided further, that in the case of the sale of any such single-family house by a private individual owner not residing in such house at the time of such sale or who was not the most recent resident of such house prior to such sale, the exemption granted by this paragraph shall apply only with respect to one (1) such sale within any twenty-four (24) month period; provided further, that such bona fide private individual owner does not own any interest in, nor is there owned or reserved on his behalf, under any express or voluntary agreement, title to or any right to all or a portion of the proceeds from the sale or rental of, more than three (3) such single-family houses at any one (1) time; provided further that the sale or rental of any such single-family house shall be excepted from the application of this provision only if such house is sold or rented without the use in any manner of the sales or rental facilities or the sales or rental services of any real estate broker or salesperson, or of such facilities or services of any person in the business of selling or renting dwellings, or of any employee or agent of any such broker, salesperson, or person and without the publication, posting, or mailing of any advertisement or written notice in violation of subsection 8:2013(a)(3), but nothing in this provision shall prohibit the use of attorneys, escrow agents, abstractors, title companies, and other such professional assistance as is necessary to perfect or transfer the title.

(2) Rooms or units in dwellings containing living quarters occupied or intended to be occupied by no more than four (4) families living independently of each other, if the owner actually maintains and occupies one (1) of such living quarters at his residence.

(c) For the purposes of subsection (b) of this section, a person shall be deemed to be in the business of selling or renting dwellings if any of the following situations exist:

(1) He has, within the preceding twelve (12) months, participated as principal in three (3) or more transactions involving the sale or rental of any dwelling or any interest therein.

(2) He has, within the preceding twelve (12) months, participated as agent, other than in the sale of his own personal residence, in providing sales or rental facilities or rental services in two (2) or more transactions involving the sale or rental of any dwelling or any interest therein.

(3) He is the owner of any dwelling designed or intended for occupancy by, or occupied by, five (5) or more families.

(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2005. Religious organization and private club exemption.

(a) Nothing in this chapter shall prohibit a religious organization, association, or society, or any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental, or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted on account of race, color, or national origin.

(b) Nothing in this chapter shall prohibit a private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodgings which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members.

(c) Nothing in this chapter limits the applicability of any reasonable local, state, or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2006. Housing for elderly exempted.

Nothing in this chapter regarding familial status applies with respect to dwellings provided under any state or federal program specifically designed and operated to assist elderly persons, as defined in the state or federal program, or to housing for older persons. As used in this subsection, "housing for older persons" means housing communities consisting of dwellings either:

(1) a. Intended for, and at least eighty (80) percent occupied by, at least one (1) person who is fifty-five (55) years of age or older per unit and providing significant facilities and services specifically designed to meet the physical or social needs of such persons; and

b. The publication of, and adherence to, policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons fifty-five (55) years or older; or

(2) Intended for and occupied solely by persons sixty-two (62) years of age or older.

(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2007. Appraisal exemption.

Nothing in this chapter prohibits a person engaged in the business of furnishing appraisals of real property to take into consideration factors other than race, color, religion, national origin, sex, handicap, or familial status.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2008. Effect on other law.

(a) This chapter does not affect a reasonable state or local restriction on the maximum number of occupants permitted to occupy a dwelling or a restriction relating to health or safety standards.

(b) This chapter does not affect a requirement of nondiscrimination in any other ordinance or state or federal law.
(Ord. No. 18690, § 1, 11-22-22)

Division 2. Administration

Sec. 8:2009. Administration.

The office of community development shall administer this chapter.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2010. Rules.

The office of community development may adopt both substantive and procedural rules necessary to implement this chapter, consistent with the intention of this chapter and any Louisiana Revised Statutes and local ordinances providing for administrative hearings at the local level.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2011. Complaints.

The office of community development shall receive, investigate, seek to conciliate, and act on complaints alleging violations of this chapter. (Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2012. Cooperation with other entities.

The office of community development shall cooperate with and, as appropriate, may provide technical and other assistance to federal, state, local, and other public or private entities that are formulating or operating programs to prevent or eliminate discriminatory housing practices. (Ord. No. 18690, § 1, 11-22-22)

Division 3. Prohibitions Against Discrimination

Sec. 8:2013. Discrimination in sale or rental of housing.

(a) As made applicable by section 8:2004, and except as exempted by sections 8:2004(b), 8:2005, and 8:2006, of this chapter, it is unlawful:

(1) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin.

(2) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin.

(3) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, religion, sex, handicap, familial status, or national origin, or an intention to make any such preference, limitation, or discrimination.

(4) To represent to any person because of race, color, religion, sex, handicap, familial status, or national origin that any dwelling is not available for inspection, sale, or rental when such dwelling is in fact so available.

(5) For profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, sex, handicap, familial status, or national origin.

(6) a. To discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of:

1. That buyer or renter;
2. A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or
3. Any person associated with that buyer or renter.

b. To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a handicap of:

1. That person;
2. A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or
3. Any person associated with that person.

c. For purposes of this paragraph, discrimination includes:

1. A refusal to permit, at the expense of the handicapped person, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of

the premises except that, in the case of a rental, the landlord may, where it is reasonable to do so, condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted;

2. A refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling; or

3. In connection with the design and construction of covered multifamily dwellings for first occupancy after March 13, 1991, a failure to design and construct those dwellings in such a manner that:

   A. The public use and common use portions of such dwellings are readily accessible to and usable by handicapped persons;

   B. All the doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by handicapped persons in wheelchairs; and

   C. All premises within such dwellings contain the following features of adaptive design:

      i. An accessible route into and through the dwelling;

      ii. Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;

      iii. Reinforcements in bathroom walls to allow later installation of grab bars; and

      iv. Usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space.

   d. Compliance with the appropriate requirements of the American National Standard for buildings and facilities providing accessibility and usability for physically handicapped people (commonly cited as "ANSI A117.1") suffices to satisfy the requirements of subsection 8:2013(a)(6)c.3.C.

   e. For purposes of paragraph (6), the term "covered multifamily dwellings" means buildings consisting of four (4) or more units if such buildings have one (1) or more elevators, and ground floor units in other buildings consisting of four (4) or more units.

(b) Nothing in this section shall be construed to invalidate or limit any law of this state or a political subdivision of this state that requires dwellings to be designed and constructed in a manner that affords handicapped persons greater access than is required by this section.

(c) Nothing in this section requires that a dwelling be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2014. Residential real estate related transaction.

(a) It is unlawful for any person or other entity whose business includes engaging in residential real estate related transactions to

discriminate against any person in making available such a transaction, or in the terms or conditions of such a transaction, because of race, color, religion, sex, handicap, familial status, or national origin.

(b) As used in this section, the term "residential real estate related transaction" means any of the following:

(1) The making or purchasing of loans or providing other financial assistance:

a. For purchasing, constructing, improving, repairing, or maintaining a dwelling.

b. Secured by residential real estate.

(2) The selling, brokering, or appraising of residential real property.

(c) Nothing in this chapter prohibits a person engaged in the business of furnishing appraisals of real property to take into consideration factors other than race, color, religion, national origin, sex, handicap, or familial status.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2015. Brokerage services.

It is unlawful to deny any person access to or membership or participation in any multiple-listing service, real estate brokers' organization or other service, organization, or facility relating to the business of selling or renting dwellings, or to discriminate against him in the terms or conditions of such access, membership, or participation, on account of race, color, religion, sex, handicap, familial status, or national origin.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2016. Interference, coercion, or intimidation.

It is unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, or on account of his having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by this chapter.
(Ord. No. 18690, § 1, 11-22-22)

Division 4. Complaint, Investigation, and Administrative Action

Sec. 8:2017. Complaint.

(a) The office of community development shall investigate alleged discriminatory housing practices.

(b) A complaint must be:

(1) In writing;

(2) Under oath; and

(3) In the form prescribed by the office of community development.

(c) An aggrieved person may, not later than one (1) year after an alleged discriminatory housing practice has occurred or terminated, whichever is later, file a complaint with the office of community development alleging the discriminatory housing practice.

(d) Not later than one (1) year after an alleged discriminatory housing practice has occurred or terminated, whichever is later, the office of community development may file its own complaint.

(e) A complaint may be reasonably and fairly amended at any time prior to the swearing of witnesses for a hearing held under this chapter.

(f) Upon the filing of a complaint, the office of community development shall issue a written notice to the complainant and the aggrieved person if different from the complainant:

(1) Advising that the complaint has been filed, and the date the complaint was accepted for filing;

(2) Including a copy of the complaint;

(3) Advising of the time limits applicable to the complaint and of all procedural rights and obligations of the aggrieved person under this chapter;

(4) Advising of the aggrieved person's right to commence a civil action as provided by federal and state laws and the time period which such action may be filed; and

(5) Advising that retaliation against any person who files a complaint or assists or

otherwise participates in the investigation of a complaint is a discriminatory housing practice.

(g) Not later than the tenth day after a complaint is filed, the office of community development shall issue a written notice to each respondent, by certified mail or personal service:

(1) Advising the date the complaint was accepted for filing;

(2) Identifying the alleged discriminatory housing practice;

(3) Including a copy of the complaint;

(4) Advising of the time limits applicable to complaint processing and of all procedural rights and obligations of the respondent under this chapter, including the right to submit an answer to the complaint within ten (10) days after receipt of the notice;

(5) Advising of the aggrieved person's right to commence a civil action as provided by federal law and the time period within which such action may be filed;

(6) Advising why the respondent has been joined to the complaint if the respondent is not specifically named in the complaint; and

(7) Advising that retaliation against any person who files a complaint or assists or otherwise participates in the investigation of a complaint is a discriminatory housing practice.

(h) The office of community development shall commence proceedings with respect to the complaint before the end of the thirtieth day after receipt of the complaint.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2018. Answer.

(a) Not later than the tenth day after receipt of the notice and copy under subsection 8:2017(f)(3), complaint, a respondent may file an answer to the complaint.

(b) An answer must be:

(1) In writing;

(2) Under oath; and

(3) In the form prescribed by the office of community development.

(c) An answer may be reasonably and fairly amended at any time prior to the swearing of witnesses for a hearing held under this chapter.

(d) An answer does not inhibit the investigation of a complaint.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2019. Investigation.

(a) If the state or federal government has referred a complaint to the city-parish or has deferred jurisdiction over the subject matter of the complaint to the city-parish, the office of community development shall promptly investigate the allegations set forth in the complaint.

(b) The office of community development shall investigate all complaints, and except as provided by subsection (c), shall complete an investigation no later than the one hundredth day after the date the complaint is filed, or if it is unable to complete the investigation within the one hundred (100) day period, shall dispose of all administrative proceedings related to the investigation not later than one (1) year after the date the complaint is filed.

(c) If the office of community development is unable to complete an investigation within the time periods prescribed by subsection (b), the office of community development shall notify the complainant and the respondent in writing of the reasons for the delay.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2020. Additional or substitute respondent.

(a) The office of community development may join a person not named in the complaint as an additional or substitute respondent if in the course of the investigation the office of community development determines that the person should be accused of a discriminatory housing practice.

(b) In addition to the information required in the notice under subsection 8:2017(g), complaint, the office of community development shall include in a notice to a respondent joined under this section an explanation of the basis for the determination that the person is properly joined as a respondent.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2021. Conciliation.

(a) The office of community development shall, during the period beginning with the filing of a complaint and ending with the filing of a charge or a dismissal by the office of community development, to the extent feasible, engage in conciliation with respect to the complaint.

(b) A conciliation agreement is a written agreement between a respondent and the complainant and is subject to office of community development approval.

(c) A conciliation agreement may provide for binding arbitration or other method of dispute resolution. Dispute resolution that results from a conciliation agreement may authorize appropriate relief, including monetary relief.

(d) A conciliation agreement shall be made public unless the complainant and respondent agree otherwise, and the office of community development determines that disclosure is not necessary to further the purposes of this chapter, subject to review by the office of the parish attorney regarding applicability of the Louisiana Public Records Law, R.S. 44:1 et seq.

(e) Nothing said or done in the course of conciliation may be made public or used as evidence in a subsequent proceeding under this chapter without the written consent of the persons concerned.

(f) After completion of the office of community development's investigation, the office of community development shall make available to the aggrieved person and the respondent, at any time, information derived from the investigation and the final investigation report related to the investigation.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2022. Temporary or preliminary relief.

If the office of community development concludes at any time following the filing of a complaint that prompt judicial action is necessary to carry out the purposes of this chapter, the office of community development may request a civil action for appropriate temporary or preliminary relief pending final disposition of the complaint. The office of community development may direct the request for civil action to the civil rights division of the state department of justice, or to the department of housing and urban development for review and determination of the suitability of prompt judicial action.

If a civil action is filed by a state or federal enforcement agency under this section, the office of community development shall defer to the prosecuting authority as to whether to initiate or continue an administrative proceeding under section 8:2030, administrative hearing.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2023. Investigative report.

(a) The office of community development shall prepare a final investigative report showing:

(1) The names and dates of contacts with witnesses;

(2) A summary of correspondence and other contacts with the aggrieved person and the respondent showing the dates of the correspondence and contacts;

(3) A summary description of other pertinent records;

(4) A summary of witness statements; and

(5) Answers to interrogatories.

(b) A final report under this section may be amended if additional evidence is discovered.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2024. Reasonable cause determination.

(a) The office of community development shall determine based on the facts whether reasonable cause exists to believe that a discriminatory housing practice occurred or is about to occur.

(b) The office of community development shall make the determination under subsection (a) not later than the one hundredth day after the date a complaint is filed unless:

(1) It is impracticable to make the determination; or

(2) The office of community development has approved a conciliation agreement relating to the complaint.

(c) If it is impracticable to make the determination within the time period provided by subsection (b) of this section, the office of community development shall notify the complainant and respondent in writing of the reasons for the delay.

(d) If the office of community development determines that reasonable cause exists to believe that a discriminatory housing practice occurred or is about to occur, the office of community development shall, except as provided by section 8:2027, dismissal, immediately issue a charge on behalf of the aggrieved person.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2025. Charge.

(a) A charge issued under section 8:2024, reasonable cause determination:

(1) Must consist of a short and plain statement of the facts on which the office of community development has found reasonable cause to believe that a discriminatory housing practice occurred or is about to occur. The allegations of facts shall be simple, concise, and direct, and shall be set forth in numbered paragraphs, and to the extent practical, the contents of each paragraph shall be limited to a single set of circumstances;

(2) Must be based on the final investigative report; and

(3) Need not be limited to the facts or grounds alleged in the complaint.

(b) Not later than the twentieth day after the office of community development issues a charge, the commission shall send a copy of the charge with information concerning the election under section 8:2029, election of judicial determination, of this chapter to:

(1) Each respondent, together with a notice of the opportunity for a hearing provided by section 8:2030, administrative hearing; and

(2) Each aggrieved person on whose behalf the complaint was filed.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2026. Land use law.

If the office of community development determines that the matter involves the legality of a state or local zoning or other land use law or ordinance, the office of community development may not issue a charge and shall immediately refer the matter to the parish attorney's office for appropriate action.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2027. Dismissal.

(a) If the office of community development determines that no reasonable cause exists to believe that a discriminatory housing practice occurred or is about to occur, the office of community development shall:

(1) Issue a short and plain written statement of the facts explaining the determination of no reasonable cause; and

(2) Dismiss the complaint and promptly notify the aggrieved person and the respondent of the dismissal, including the written statement of facts.

(b) The office of community development may make public disclosure of each dismissal under this section. The aggrieved person and the respondent may request that no public disclosure be made, but the fact of dismissal, including the names of the parties, but not the statement of facts, shall be available to the public upon request.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2028. Pending civil trial.

The office of community development may not issue a charge under this section regarding an alleged discriminatory housing practice after the beginning of the trial of a civil action commenced by the aggrieved party under federal or state law or after the swearing of witnesses in a hearing held under this chapter seeking relief with respect to that discriminatory housing practice.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2029. Election of judicial determination.

Nothing in this chapter shall be seen as preventing any aggrieved person from filing suit under state or federal antidiscrimination laws, regardless of the findings of the office of community development. Upon the issuance of a charge by the office of community development, the aggrieved person may request that the charge and associated records be forwarded to the civil rights division of the state department of justice, or to the department of housing and urban development for review and determination of the suitability of judicial action.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2030. Administrative hearing.

(a) Where a charge has been issued by the office of community development, the complainant, respondent, or an aggrieved person on whose behalf the complaint was filed may request that the office of community development provide for a hearing on the charge. A hearing under this section shall be conducted by the city-parish administrative hearing officer for violation of building codes pursuant to R.S. § 13:2575.

(b) Appeals of orders from any ruling or order of the city-parish administrative hearing officer shall be taken pursuant to R.S. 13:2575(H).

(c) A hearing under this section may not continue on an alleged discriminatory housing practice after the beginning of the trial of a civil action commenced by the aggrieved person, or a state or federal enforcement agency seeking to enforce substantially similar antidiscrimination statutes with respect to that discriminatory housing practice.

(d) The city-parish will be represented by the parish attorney, or her designee, in any proceeding regarding enforcement of this chapter before the city-parish administrative hearing officer.

(e) The hearing officer shall issue an order within thirty (30) days, excluding legal holidays, of the hearing stating whether or not the person charged is liable for the violation, the factual findings of the hearing officer, and the amount of any fine, penalty, costs, or fee assessed against him, and a date by which the violation shall be corrected.
(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2031. Administrative penalties.

In accordance with R.S. § 13:2575, the administrative hearing officer may:

(1) Issue orders compelling the attendance of witnesses and defendants and the production of documents.

(2) Levy fines, fees, penalties, and hearing costs, the maximum of which shall not exceed those established for the parish or municipal courts.

(3) Order violators to correct violations within a stipulated time.

(4) Take necessary and lawful measures to effect correction of the violation if the violator fails to do so within the time allocated by the hearing officer.

(5) Record orders, judgments, notices of judgments, or liens in the mortgage office of the parish in which the immovable property, or any portion thereof, in or on which the violation occurred is situated.

(6) Orders, judgments, notices of judgments, or liens recorded by, or by order of, the administrative hearing officer after a determination of discrimination, shall create a lien or privilege against the immovable property in or on which the violation occurred, under the terms and limitations provided by R.S. § 13:2575(C).

(7) In addition to the enforcement procedure and authority set forth in R.S. § 13:2575(B), or this section, any order assessing a fine, penalty, costs, or fee or stipulating a correction date may be enforced by the city or municipal court of the municipality or the parish court in whose jurisdiction the municipality is located, or in the parish court of the parish initiating the action.

(8) Any sale, encumbrance, or rental consummated prior to the issuance of any administrative order issued pursuant to this chapter and involving a bona fide purchaser, encumbrancer, or tenant without actual notice of the existence of the filing of a complaint or charge under the provisions of this chapter shall not be affected.

(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2032. Licensed or regulated businesses.

If the administrative hearing officer finds that a discriminatory housing practice has occurred in the course of a business subject to a licensing or regulation by a governmental agency, the office of community development shall send copies of the findings and orders to the governmental agency, no later than the thirty (30) days after the date of the issuance of the order.

(Ord. No. 18690, § 1, 11-22-22)

Sec. 8:2033. Order in preceding five years.

If the administrative hearing officer finds that a discriminatory housing practice has been engaged in by a respondent against whom another administrative order and finding of discriminatory housing practices was issued within the preceding five years, the office of community development shall send copies of the findings and orders to civil rights division of the state department of justice, no later than the thirty (30) days after the date of the issuance of the order.

(Ord. No. 18690, § 1, 11-22-22)

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Title 8A

RESERVED*

*__Editor's note—__Ord. No. 18691, § 1, adopted November 22, 2022, repealed tit. 8A, §§ 8A:1, 8A:100—8A:111, 8A:200—8A:205, 8A:210—8A:215, which pertained to minimum standards for existing buildings and derived from 1951 city code title 8A, §§ 01, 1—12; 1962 parish code title 8A, §§ 01, 1—12; Ord. No. 9670, adopted August 11, 1993; Ord. No. 10669, adopted August 14, 1996; Ord. No. 10691, adopted August 28, 1996; Ord. No. 12993, adopted June 23, 2004; Ord. No. 18627, adopted September 14, 2022; and Ord. No. 18681, adopted November 9, 2022.

Cross references—Streets, alleys, sidewalks, battures and sewers, title 2; fire protection, title 5; planning and zoning, title 7; building regulations, title 8; dangerous buildings, § 12-520 et seq.

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Sec. 9:460. Las Vegas/casino nights exemption for gaming organizations other than church or school that do not conduct regularly scheduled bingo games.
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CHAPTER 1. GENERAL

PART I. WINE, BEER AND LIQUOR

Editor's note—Since this ordinance is adopted every December, copies are available in the Council Administrator's Office, Room 364, Governmental Building.

Cross reference—Alcoholic beverage control board, § 1:150 et seq.

State law references—Alcoholic beverage control law, R.S. 26:1 et seq.; local authority to require permit and fees, R.S. 26:73, 26:273.

PART II. OCCUPATIONAL LICENSES (RESERVED)

Editor's note—A copy of the occupational licenses ordinance is on file in the offices of the finance department and council administrator-treasurer. Part II formerly contained the provisions of Ord. No. 9198, §§ 1—27, adopted December 12, 1990, which were, in effect, repealed by Ord. No. 11505, § 1, adopted August 11, 1999.

PART III. PUBLIC UTILITIES (RESERVED)

Editor's note—A copy of the public utilities ordinance is on file in the offices of the finance department and council administrator-treasurer. Part III formerly contained the provisions of Ord. No. 9027, §§ 1—7, adopted December 13, 1989, which were, in effect, repealed by Ord. No. 11505, § 2, adopted August 11, 1999.

PART IV. TAXICABS FOR HIRE*

Sec. 9:60. Franchise or privilege tax, levy and amount.

In addition to all other taxes of every kind whatsoever now imposed by law, there is hereby levied an annual franchise or privilege tax for the year 1990 and all subsequent years on all persons, associations of persons, firms or corporations engaged in the business of carrying passengers for hire in taxicabs which operate wholly or partly within the corporate limits of the city or parish. Effective January 1, 1990, and annually each year thereafter, the privilege or franchise tax levied hereby shall be the sum of seventy-five dollars ($75.00) per annum for each and every taxicab authorized to be operated under the franchise issued pursuant to the provisions of section 10:201 et seq. of this Code, irrespective of whether such taxicab is actually operated or to be operated during the calendar year for which the tax is due. For purposes of taxation of pedicab companies, the privilege or franchise tax levied hereby shall be the sum of fifty dollars ($50.00) per annum for each and every pedicab authorized to be operated under the franchise issued pursuant to the provisions of section 10:201 et seq. of this Code, irrespective of whether such pedicab is actually operated or to be operated during the calendar year for which the tax is due. For purposes of taxation of limousine companies, the privilege or franchise tax levied hereby shall be the sum of one hundred fifty dollars ($150.00) per annum for each and every limousine authorized to be operated under the franchise issued pursuant to the provisions of section 10:201 et seq. of this Code, irrespective of whether such limousine is actually operated or to be operated during the calendar year for which the tax is due.

(Ord. No. 9023, § 1, 12-13-89; Ord. No. 15001, § 1, 10-13-10)

Sec. 9:61. Tax payable annually.

(a) The franchise or privilege tax levied in section 9:60 shall be paid, in advance, on or before the tenth day of January of each year, commencing January 10, 1990, and annually thereafter. The owner of any franchise granted pursuant to the provisions of section 10:201 of this Code shall, at the same time the tax is due, file with the director of finance a certificate or statement showing the number of taxicabs authorized to be operated under the franchise issued in his favor, and the number of taxicabs to be actually operated during the calendar year on which the tax will be paid. In the event the number of taxicabs to be operated by the franchise owner, and on which the tax is due and will be paid, is less than the number of taxicabs authorized to be operated under the franchise, the director of finance shall immediately note any such difference; and the number of taxicabs authorized to be operated under the franchise shall thereafter not exceed the number on which the tax is paid.

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*__Editor's note—__This part was formerly reserved. The editor included §§ 1—5 of Ord. No. 9023, adopted Dec. 13, 1989, effective Jan. 1, 1990, as §§ 9:60—9:63.

Cross reference—Regulating vehicles for hire, § 10:201 et seq.

State law reference—Motor carriers, R.S. 45:161 et seq.

(b) The director of finance shall thereafter make an annual report to the metropolitan council showing the actual number of taxicabs being operated in the city and parish and the amount of taxes paid thereon. As to those taxicabs which are authorized by franchise but on which no tax is paid on or before January 10, 1990, the director of finance shall automatically reduce the number of taxicabs authorized under the franchise to the number on which the tax is paid. Thereafter, the holder of the franchise shall not be authorized to operate taxicabs exceeding the number on which the tax was paid on or before January 10, 1990, unless such number be thereafter increased in accordance with the requirements of title 10 of this Code.

(c) In the event a franchise is granted after January 10 of any year and prior to June 1 of the year, the franchise or privilege tax to be due by the franchise holder shall be the full amount provided in section 9:60. In the event any such franchise be authorized after June 1 of any year, the franchise or privilege tax shall be one-half of the amount set forth in section 9:60.
(Ord. No. 9023, § 2, 12-13-89; Ord. No. 15001, § 1, 10-13-10)

Sec. 9:62. Reports required; penalties for delinquent taxes.

(a) Every person, firm, partnership, corporation or association subject to the franchise tax levied in section 9:60 shall submit to the director of finance the certificate or statement required by section 9:61 and shall pay the tax, as provided hereby, on such forms as may be provided for that purpose.

(b) In the event the franchise or privilege tax is not paid on or before January 10 of each year in which it is due, the franchise issued pursuant to section 9:201 et seq., of this Code shall be automatically suspended, and the director of finance shall forthwith advise the holder of the franchise and the chief of police or sheriff of suspension; and no franchise holder shall operate any taxicab within the city or parish so long as the suspension remains in effect. In addition, if any person, firm, partnership, corporation or association shall become delinquent in the payment of the franchise tax levied in section 9:60, an additional sum of five (5) percent of the total tax then due may be imposed as a penalty for a delinquency not exceeding thirty (30) days, with an additional penalty of five (5) percent of the total amount then due for each additional delinquency of thirty (30) days or fraction thereof, such penalties not to exceed in the aggregate more than twenty-five (25) percent of the total tax delinquency.

(c) In the event the franchise or privilege tax levied hereby is not paid on or before March 1 of the year in which it is due, the franchise issued pursuant to the provisions of section 10:201 et seq. shall ipso facto and automatically terminate. The director of finance shall advise the holder of the franchise and the chief of police or sheriff that the franchise has been forfeited for failure to pay taxes as herein provided, and that all rights thereunder have terminated.

(d) Should any franchise tax levied in section 9:60 be delinquent and be referred to the parish attorney for collection, there shall be added to the total amount of the tax, penalty and interest then due, attorney's fees in the amount of ten (10) percent of the total amount of the tax, penalty and interest.
(Ord. No. 9023, § 3, 12-13-89; Ord. No. 15001, § 1, 10-13-10)

Sec. 9:63. Definitions.

(a) *Collector of city and parish taxes,*" as used in this part, shall mean the director of finance of the city-parish unless under the provisions of section 8.05 of the plan of government of the Parish of East Baton Rouge and the City of Baton Rouge, the Metropolitan Council of the Parish of East Baton Rouge and City of Baton Rouge shall have entered into an agreement with the sheriff of East Baton Rouge Parish for the collection of city taxes for the year in question, in which latter event, this term shall mean the sheriff.

(b) *Director of finance* means and includes the director of finance of the city-parish or his duly authorized assistants.

(c) *Taxicab* shall mean all motor vehicles for hire, propelled or operated on, over and upon the public streets, alleys, highways or boulevards of

the city and parish carrying six (6) persons or less, including the driver, which are subject to call from a garage, office, taxi stand or other place. For purposes of this section, the term "taxicab" shall include vehicles known as a pedicab, which is a bicycle that has three (3) or more wheels that transports, or is capable of transporting, passengers on seats attached to the bicycle that is operated by an individual, and that is used for transporting passengers for receipt of any form of consideration; or a bicycle with a singular unarticulated frame, that pulls a device that transports, or is capable of transporting, passengers on seats attached to a passenger cab or similar device, that is operated by an individual, and that is used for transporting passengers for receipt of any form of consideration. The term "taxicab" shall also include limousines, which shall mean a chauffeur-driven luxury vehicle with a minimum seating capacity of six (6) but no more than fourteen (14), exclusive of the driver, which is used for the transportation of passengers for hire, excluding those limousines used by undertakers for the transportation only of persons attending a funeral; and which charges rates predetermined on a contractual basis and carrying passengers by prearrangement or contract. The term "taxicab" shall also include low-speed vehicles operated as taxis, as defined in Title 10, Chapter 3, of the Code of Ordinances, to include all motorized vehicles operating by means of electric motor(s) or combustion engines with a maximum top speed of not less than twenty (20) nor more than twenty-five (25) miles per hour.
(Ord. No. 9023, §§ 4, 5, 12-13-89; Ord. No. 15001, § 1, 10-13-10; Ord. No. 15564, § 1, 9-11-13)

PART V. INSURANCE COMPANIES (RESERVED)

Editor's note—A copy of the insurance companies ordinance is on file in the offices of the finance department and council administrator-treasurer. Part V formerly contained the provisions of Ord. No. 9021, §§ 1—8, adopted December 13, 1989, which were, in effect, repealed by Ord. No. 11505, § 3, adopted August 11, 1999.

PART VI. CARNIVALS, STREET FAIRS, CIRCUSES, ETC.

Sec. 9:111. Permits and sites.

(a) The provisions of any other ordinance or regulation of the city-parish to the contrary notwithstanding, the building official of the depart-

ment of public works is hereby authorized to grant licenses and permits to temporary commercial amusement enterprises, including carnivals, street fairs, circuses, musical concerts and other similar activities, pursuant to the provisions of the building code, other applicable building regulations of the city-parish, and the further provisions hereof, but without complying with the provisions of the comprehensive zoning ordinance in specified circumstances.

(b) The application of parties seeking a license or permit under this part must contain a full legal description of the property upon which the carnival, street fair, circus or other similar activity is intended to be held, and such permit or license shall be null and void for any other location.

(c) Upon receipt of each application for a license or permit under this part, the building official shall notify the councilman in whose district the carnival, street fair, circus or other similar activity is to be held.

(d) (1) No vehicle, sign, tent, building or any other obstruction connected with any carnival, street fair, circus or other similar activity for which a permit is issued hereunder shall be located on any corner lot so as to obstruct or obscure vision across a triangular area of the corner lot defined as follows: Starting from the corner of the lot at the street intersection, measure thirty (30) feet along each lot property line from the corner and connect to two (2) points thus obtained with a third line to form the triangle of vision. When corners are curved or not square, this rule shall be so interpreted as to provide not less clear sight distance than is obtained for square lot corners.

(2)No portion of any vehicle, sign, tent, building or any other obstruction connected with any carnival, street fair, circus or other similar activity shall be closer than ten (10) feet from the property line of the property or lot on which the facility is located.

(e) The Riverside Centroplex is specifically exempt from compliance with the requirements of this section.

(f) The Baton Rouge Area Convention and Visitors Bureau and the Louisiana Naval War Commission are specifically exempt from compliance with the requirements of this section.

(g) The Louisiana Naval War Memorial Commission is specifically exempt from compliance with the requirements of this section.
(City Code 1951, Title 9, § 111; Parish Code 1962, Title 9, § 76; Ord. No. 7428, § 1, 2-8-84; Ord. No. 7549, § 1, 5-23-84; Ord. No. 8133, § 1, 4-9-86; Ord. No. 9269, § 1, 4-10-91; Ord. No. 9320, § 1, 8-28-91; Ord. No. 9419, § 1, 4-8-92))

Sec. 9:112. Requirements for permit.

(a) No permit or license shall be issued to any promoter, place of business or establishment without the applicant having first complied with all of the provisions of the building code, the electrical code, the plumbing code, the fire prevention ordinance, and any and all other applicable regulations set forth hereafter or contained in any of the above ordinances, or any other ordinance or resolution of the city-parish. In the furtherance of this part, the chief of the inspection division is hereby authorized to establish rules and regulations for those applying for permits or licenses under the provisions hereof; and no license or permit shall be issued until all of the necessary information and requirements under such rules and regulations have been furnished to and approved by the inspection division. The inspection division shall require the applicant for a permit under this part to furnish a letter or certificate of compliance or approval from the following:

(1)From the state health department for the parish that adequate medical, first aid and sanitary facilities are available in accordance with the guidelines for mass gatherings;

(2)From the sheriff, state police troop"A," or chief of police if in the city, attesting that adequate arrangements have been made for parking, traffic control, security and law enforcement.

(b) The operator or his agent shall state on the application what the anticipated maximum attendance shall be and may not print more tickets for the event than the anticipated maximum attendance. The building official may require documentation on ticket sales, such as copies of ticket

manifests, records, books, etc., to aid in enforcement of this requirement. If advance ticket sales indicate that a larger turnout than originally expected is likely, a revised approval must be obtained from the building official prior to printing additional tickets or allowing cash admission after all tickets are sold. If advance ticket sales, together with any tickets or cash admissions on the day of the event, exceed the number of persons which can be safely assembled with adequate medical and sanitary facilities, parking and assembly area, the building official or his representative shall so advise the promoter, who shall have the obligation of advertising in a reasonable manner that the event is sold out and that no tickets, or no further tickets, will be sold at the gate.
(City Code 1951, Title 9, § 112; Parish Code 1962, Title 9, § 77)

Sec. 9:113. Other sites.

Any establishment or business operating as a carnival, street fair, circus or other similar activity, desiring to locate at a site other than one of the sites set forth in section 9:111, shall do so only after a permit therefor has been approved by the planning commission and the council, in accordance with the provisions of section 9:116.
(City Code 1951, Title 9, § 113)

Sec. 9:114. Penalty.

(a) Any person who shall violate any provision of this part, or fail to secure any license or permit required under this part, or any of the applicable ordinances of the city-parish, or shall print more tickets than the amount approved by the building official, shall be, in addition to being in violation of the particular ordinance or regulation, guilty of a misdemeanor, punishable by a fine of not more than five hundred dollars ($500.00) or not more than one hundred eighty (180) days in jail, or both.

(b) In addition, and if any establishment or place of business shall be open without the owner or operator thereof having secured all necessary licenses or permits as provided herein, the operation of the establishment or place of business shall be deemed to constitute a nuisance, and the chief of the inspection division may institute any appropriate action or proceedings in the name of the city-parish to prevent and prohibit the conduct of the business or establishment.
(City Code 1951, Title 9, § 114; Parish Code 1962, Title 9, § 78)

Sec. 9:115. License revoked on violation.

If any place of business or establishment operated under the provisions of this part shall be guilty of any illegal act, or violation of any of the provisions of this part, or of the other applicable ordinances of the city-parish, or if the owner or operator thereof permits any illegal act or any such violation to occur on the premises of such place of business or establishment, then in such event the chief of the inspection division shall be authorized to forthwith revoke the license granted hereunder. Any person whose permit or license has been revoked as aforesaid may, within ten (10) days after receipt of a notice thereof, appeal to the council for a hearing thereon, and the decision of the council in this regard shall be final. Irrespective of any such appeal, revocation, if based upon any illegal act or violation of any ordinance or regulation of the city-parish, shall be effective immediately upon receipt of notice thereof and taking of an appeal shall not suspend the revocation.
(City Code 1951, Title 9, § 115; Parish Code 1962, Title 9, § 79)

Sec. 9:116. Insurance and bond.

In addition to compliance with the regulations prescribed hereinabove and the regulations established by any other applicable ordinance of the city-parish, every applicant for a permit under the provisions of this part shall furnish evidence that a public liability insurance policy in amounts not less than one hundred thousand dollars ($100,000.00) for one person and five hundred thousand dollars ($500,000.00) for any one accident shall be in force and effect at the time and on the site where the place of business or establishment is to be conducted. The applicant for a license or permit hereunder shall further furnish a cash or surety bond in the minimum sum of one thousand dollars ($1,000.00), conditioned upon saving harmless the city-parish from any and all

liability or causes of action which might arise by virtue of the granting of a permit hereunder, and conditioned further that no damage shall be done to the streets, sewers, sidewalks or other public ways, trees or adjoining property, and that no dirt, paper, litter or other debris will be permitted to remain upon the streets or upon any private property by the person to whom the license or permit is issued; provided that where the anticipated maximum attendance is five thousand (5,000) or greater, the bond shall be three thousand dollars ($3,000.00), and where the anticipated maximum attendance is ten thousand (10,000) or greater, the bond shall be seven thousand five hundred dollars ($7,500.00). Such surety bond shall be canceled or the cash bond returned to the applicant upon the satisfaction of the chief of the inspection division that all the conditions of this part have been complied with.

This section has been amended to waive the cash bond requirement for the Baton Rouge Area Convention and Visitors Bureau and the Louisiana Naval War Commission.
(City Code 1951, Title 9, § 116; Parish Code 1962, Title 9, § 80; Ord. No. 7428, § 2, 2-8-84; Ord. No. 8133, § 1, 4-9-86; Ord. No. 9269, § 2, 4-10-91; Ord. No. 9320, § 2, 8-28-91)

Sec. 9:117. Exemptions.

Notwithstanding any provisions of this part to the contrary, any subdivision association, church or school making application for a license or permit under this part for any amusement enterprise or function which is to be held on their own premises, is exempt from those provisions of section 9:111 requiring that application must be made at least sixty (60) days prior to the date of opening, and is further exempt from those provisions of section 9:116 requiring a cash or surety bond in the sum of one thousand dollars ($1,000.00).

Notwithstanding any provisions of this part to the contrary, any company, association or entity making an application for a license or permit under this part for any amusement enterprise or function which is to be held at the BREC facility known as Airline Highway Park is exempt from those provisions of section 9:116 requiring a cash or surety bond in any amount.
(City Code 1951, Title 9, § 117; Parish Code 1962, Title 9, § 81; Ord. No. 19355, § 1, 9-25-24)

Sec. 9:118. Sales of goods, food, beverages, etc., at festivals—Restricted.

(a) Notwithstanding the provisions of section 9:186, sales of goods, food and/or distribution of literature or presentation of performances during and upon sites designated as "festival sites" as managed and sponsored by the Baton Rouge Area Convention and Visitors Bureau, the Louisiana Naval War Commission, and/or the Baton Rouge Economic and Agricultural Development Alliance are hereby prohibited without the sanction mentioned below.

(b) Notwithstanding the provisions of section 9:186, sales of food, beverages and souvenirs on the property of the Louisiana Naval War Memorial Commission is hereby prohibited without the sanction mentioned below.

(c) For the purposes of this chapter, a farmer's market shall be considered to be a festival.
(Ord. No. 7429, § 1, 2-8-84; Ord. No. 7549, § 2, 5-23-84; Ord. No. 8133, § 1, 4-9-86; Ord. No. 9269, § 3, 4-10-91; Ord. No. 9320, § 3, 8-28-91; Ord. No. 13361, § 1, 8-24-05)

Sec. 9:119. Same—Sanctions.

(a) It shall be unlawful for any person to sell, distribute or perform at a festival on designated festival sites as managed and sponsored by the Baton Rouge Area Convention and Visitors Bureau, the Louisiana Naval War Commission, and/or the Baton Rouge Economic and Agricultural Development Alliance without the sanction and licensing of the Convention and Visitors Bureau, the Louisiana Naval War Commission, and/or Baton Rouge Economic and Agricultural Development Alliance, without receiving approval from the East Baton Rouge Parish Health Unit for vendors selling food or drink items, and without complying with the standards and policies designated by the Baton Rouge Area Convention

and Visitors Bureau, the Louisiana Naval War Commission, and/or the Baton Rouge Economic and Agricultural Development Alliance.

(b) It shall be unlawful for any person to sell or distribute food, beverages or souvenirs on property of the Louisiana Naval War Memorial Commission without receiving approval from the East Baton Rouge Parish Health Unit for vendors selling food or drink items, and without complying with the standards and policies designated by the Louisiana Naval War Memorial Commission."
(Ord. No. 7429, § 1, 2-8-84; Ord. No. 7549, § 3, 5-23-84; Ord. No. 8133, § 1, 4-9-86; Ord. No. 9269, § 4, 4-10-91; Ord. No. 9320, § 4, 8-28-91; Ord. No. 13361, § 1, 8-24-05)

Sec. 9:120. Same—Penalty.

Any person violating the provisions of section 9:118 or 9:119 shall be removed from the festival site or Louisiana Naval War Memorial Commission property, and upon conviction, based upon that person's refusal to leave the site when requested, be fined not more than two hundred dollars ($200.00), or imprisoned for not more than sixty (60) days, or both, at the discretion of the court.
(Ord. No. 7429, § 1, 2-8-84; Ord. No. 7549, § 4, 5-23-84)

PART VII. SALES AND USE TAX (RESERVED)

Editor's note—A copy of the sales and use tax ordinance is on file in the offices of the finance department and council administrator-treasurer. Part VII formerly contained the provisions of Ord. No. 9197, §§ 1—32, adopted December 12, 1990, and Ord. No. 9635, adopted May 26, 1993 which were, in effect, repealed by Ord. No. 11505, § 4, adopted August 11, 1999.

PART VIII. ADDITIONAL SALES AND USE TAX

Editor's note—Since this ordinance is adopted every December, copies are available in the Council Administrator's Office, Room 364, Governmental Building.

CHAPTER 2. MISCELLANEOUS REGULATIONS

Sec. 9:160. Definitions.

For purposes of sections 9:161 through 9:166, the following definitions shall apply:

"Applicant" means an individual, partnership, corporation, or limited liability company applying for any license or permit to be issued by any agency or department of the city/parish.

"License" means any license issued by any agency or department of the city-parish.

"Permit" means any permit issued by any agency or department of the city-parish.
(Ord. No. 15099, § 1, 3-9-11)

Sec. 9:161. Prohibition against issuance of license or permit.

Notwithstanding any other provision of law, no department or agency of the city-parish shall issue any license or permit to any applicant if the applicant:

(1) Owes the city-parish more than one hundred dollars ($100.00) in outstanding fines, penalties, or interest assessed pursuant to a violation of any city/parish ordinance or regulation;

(2) Owes the city-parish more than one hundred dollars ($100.00) in outstanding sales, use, or occupational taxes;

(3) Owes the city-parish more than one hundred dollars ($100.00) in fees.
(Ord. No. 15099, § 1, 3-9-11)

Sec. 9:162. Disputed debt.

(a) If the outstanding debt over the amount of one hundred dollars ($100.00) is disputed and is the subject of a pending appeal, then the debt shall not be a cause for the denial of the license or permit applied for.

(b) A license or permit shall not be denied if the applicant has agreed to a payment schedule to eliminate the debt, the payment schedule has been agreed to by the city-parish, and the applicant is complying with the schedule.
(Ord. No. 15099, § 1, 3-9-11)

Sec. 9:163. Enforcement; self certification.

(a) The provisions of section 9:161 shall be enforced by self-certification by the applicant provided that the veracity of the self-certification may be investigated upon the initiative of the city-parish at any time.

(b) Issuance of a license or permit shall be conditioned upon the veracity of the self-certification form.
(Ord. No. 15099, § 1, 3-9-11)

Sec. 9:164. Self certification form.

(a) At the time of the application for a license or permit the applicant shall certify on a form provided by the city-parish that the applicant owes no outstanding debt over one hundred dollars ($100.00) to the city-parish as a result of any fine, fee, penalty, interest, or past due sales, use or occupational tax, or fees of any nature.

(b) Upon receipt of the applicant's certification that the issuance of the license or permit is not prohibited by section 9:161, the city-parish shall consider the application as otherwise provided by law, unless the city-parish has information indicating that the applicant has not paid an outstanding debt as defined in section 9:161.
(Ord. No. 15099, § 1, 3-9-11)

Sec. 9:165. Falsification of certification.

If the city-parish determines at any time that an applicant knowingly falsified the certification required by this section, the city-parish shall:

(1) Proceed to revoke the license or permit issued upon that application, and

(2) Impose a fine of not more than five hundred dollars ($500.00), but not to exceed the amount owed by the applicant.

(Ord. No. 15099, § 1, 3-9-11; Ord. No. 15121, § 1, 5-11-11)

Sec. 9:166. Appeal.

The applicant may appeal a decision revoking the license or permit to the 19th Judicial District Court by filing a petition with that court within fifteen (15) days following the decision to revoke.

Nothing in this section shall prevent an applicant from submitting a new application for a license or permit.

Nothing in this section shall be construed to permit an applicant a second appeal of liability for the underlying debt.
(Ord. No. 15099, § 1, 3-9-11)

Sec. 9:175. Closing liquor dealers in emergency.

If at any time it should be determined by the mayor-president that an emergency has arisen or exists and in his judgment in order to preserve peace and tranquility in the city-parish, it is advisable or necessary to do, he shall have the authority and is hereby directed to issue an order requiring all places of business which sell and dispose of intoxicating liquors and beverages in the city-parish to close such places of business for a period to be determined by him, but not to exceed seventy-two (72) hours.
(City Code 1951, Title 9, § 175; Parish Code 1962, Title 9, § 175)

Sec. 9:176. Reasonable notice required.

Any order which may be issued by the mayor-president under section 9:175 shall fix the hours for such closing, and reasonable notice thereof shall be given in order to inform the public of issuance of such order, and during such period it is hereby declared to be unlawful for any dealer in the city-parish to remain open and it shall be the duty of all the city-parish police officers promptly to enforce the provisions of this section.
(City Code 1951, Title 9, § 176; Parish Code 1962, Title 9, 176)

Sec. 9:177. Barbershops. (City)

Pursuant to section 1 of Act 66 of the General Assembly of the State of Louisiana for the year 1900, the operating of barbershops on Sunday in the city is hereby prohibited.
(City Code 1951, Title 9, § 178)

Sec. 9:178. County trade. (City)

Any person who shall interfere with any planter or farmer who shall come to the city for the purpose of selling or trading the produce of their farms, etc., or who shall hinder or attempt to hinder such persons from following their lawful business, or induce them by false pretenses to dispose of their goods to irresponsible parties,

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whereby they shall suffer loss, shall be deemed guilty of a misdemeanor.
(City Code 1951, Title 9, § 182)

Sec. 9:179. Hawkers and peddlers, hours regulated. (City)

It shall be unlawful for any person to hawk or peddle any game, live fowls, vegetables or fruit on the streets, alleys, sidewalks or other public property of the city between the hours of 6:00 p.m. and 8:00 a.m., except on Sundays, when it shall also be unlawful to hawk or peddle as herein provided during the hours of 8:00 a.m. and 12:00 noon.
(City Code 1951, Title 9, § 183)

Sec. 9:180. Public exhibitions or shows. (City)

(a) It shall be unlawful for any theatrical company, circus, menagerie, show or any manner of public exhibition or entertainment, the price of admission thereto being published, to make any extra charge for special or reserved seats without having first made publication of that fact in the manner usually resorted to. Nor shall it be lawful for any such company, circus, menagerie, etc., to increase the advertised price of admission or the advertised price or reserved seats without having first made publication of that fact in the manner usually resorted to.

(b) Any person, manager or agent in charge of any theatrical company, circus, menagerie, show or any other manner of public exhibition or entertainment who shall be found guilty of violating this section shall be deemed guilty of a misdemeanor.
(City Code 1951, Title 9, §§ 185, 186)

Sec. 9:181. Traveling shows—Using streets. (City)

The owner, lessee or manager of any circus, menagerie or traveling show, designing to give its exhibition outside the city limits in order to evade the license ordinarily and justly levied by the city, shall, before doing any hauling with heavy vehicles over the streets of the city, pay to the treasurer a license of one hundred dollars ($100.00) and obtain from the mayor-president a written permission granting such hauling, which permission shall designate the streets, and those only, over which such heavy hauling shall be allowed. Any person who shall violate any of the above provisions, shall be deemed guilty of a misdemeanor.
(City Code 1951, Title 9, 187)

Sec. 9:182. Same—Parades. (City)

Any owner, lessee or manager of a circus, menagerie or traveling show, designing to exhibit outside the city limits and avoid the payment of city license, shall be prohibited from giving a public parade through the streets of this city unless he has first paid to the treasurer a license of one hundred dollars ($100.00) and obtain from the mayor-president a written permission to make such parade, and any violation of this provision shall be deemed a misdemeanor.
(City Code 1951, Title 9, § 188)

Sec. 9:183. Bakeries.

Bakeries shall be regulated as is provided in title 6, chapter 5, of this Code.
(City Code 1951, Title 9, § 189)

Sec. 9:184. Milk and milk products.

The bottling and sale of milk and milk products shall be regulated as provided in title 6, chapter 3, of this Code.
(City Code 1951, Title 9, § 190)

Sec. 9:185. Chauffeurs.

Drivers of vehicles carrying passengers for hire shall be licensed in accordance with section 10:250.
(City Code 1951, Title 9, § 191)

Sec. 9:186. Food and beverage handling establishments.

Food handling and beverage handling establishments shall be regulated as provided in title 6, chapter 7, of this Code.
(City Code 1951, Title 9, § 192)

Sec. 9:187. Franchise holders, duty to maintain records, permit audit thereof.

Every holder of a city-parish franchise shall maintain accurate records of receipts from operations, operating and other expenses, capital ex-

penditures, and such other operating information as may be required by the city-parish treasurer, and every such holder shall maintain the records containing such data at a place readily accessible for examination by the treasurer, and such records may be audited whenever required or necessary in the discretion of the council.
(City Code 1951, Title 9, § 193)

CHAPTER 3. PROCUREMENT OR SALE OF TICKETS, RESERVATIONS OR PASSENGER ACCOMMODATIONS

Sec. 9:200. Definitions. (City)

Established tariff charge, when used in this chapter, shall mean the charge set forth in the tariff as published and filed by the railroad, parlor or sleeping car owner or operator, steamship company, airline or bus line involved.
(City Code 1951, Title 9, § 205)

Sec. 9:201. Statement of policy. (City)

It is hereby determined and declared that the price or charge for the procurement on behalf of another, by purchase or otherwise or upon the sale or resale, within the corporate limits of the city, of tickets, reservations or passenger accommodations issued by any railroad, parlor or sleeping car owner or operator, steamship company, airline or bus line is a matter affected with a public interest and subject to the supervision of the authorities of the city for the purpose of safeguarding the public against fraud, extortion, exorbitant rates and similar abuses.
(City Code 1951, Title 9, § 200)

Sec. 9:202. Fee established for procurement for another. (City)

It shall be unlawful for any person to require, charge, make or receive, within the corporate limits of the city for the procurement on behalf of another, by purchase or otherwise, of any ticket, reservation or passenger accommodation, issued by any railroad, parlor or sleeping car owner or operator, steamship company, airline or bus line, a fee or service charge or any payment or consideration for rendering such service in excess of one dollar ($1.00) for the first transportation ticket, reservation or passenger accommodation on first parlor car or sleeping car reservation or passenger accommodation, or in excess of one dollar ($1.00) for any additional transportation ticket or parlor car or sleeping car reservation or passenger accommodation over the established tariff charge or charges therefor.
(City Code 1951, Title 9, § 201)

Sec. 9:203. Purchase for another with intent to resell for more than established fee. (City)

(a) It shall be unlawful for any person to procure on behalf of another person, within the corporate limits of the city by purchase or otherwise, any ticket, reservation or passenger accommodation, issued by any railroad, parlor or sleeping car owner or operator, steamship company, airline or bus line, with the intent, with respect to such other person, to require, charge, make or receive a service charge or any payment or consideration for rendering service in excess of the amount hereinabove specified in section 9:202 over the established tariff charge or charge therefor.

(b) Proof of the making of a service charge or of the receipt of any payment or consideration, in connection with the procurement of such ticket, reservation or passenger accommodation, for such other person, in excess of the amount or amounts hereinabove specified in section 9:202, over such established tariff charge or charges, shall be presumptive evidence of the intent mentioned in subsection (a).
(City Code 1951, Title 9, § 202)

Sec. 9:204. Charging more than authorized fee. (City)

It shall be unlawful for any person to sell, resell or cause to be resold, within the corporate limits of the city any ticket, reservation or passenger accommodation, issued by any railroad, parlor or sleeping car owner or operator, steamship company, airline or bus line, at a price in excess of the amount or amounts hereinabove specified in section 9:202 over the established tariff charge or charges therefor.
(City Code 1951, Title 9, § 203)

Sec. 9:205. Purchase with intent to charge more than authorized fee. (City)

(a) It shall be unlawful for any person to procure, within the corporate limits of the city, by purchase or otherwise, any ticket, reservation or passenger accommodation, issued by any railroad, parlor or sleeping car owner or operator, steamship company, airline or bus line, with the intent to sell or resell the same, or cause the same to be sold or resold, at a price in excess of the amount or amounts hereinabove specified in section 9:202 over the established tariff charge or charges therefor.

(b) Proof of the sale or resale of such ticket, reservation or passenger accommodation or combination thereof at a price in excess of the amount or amounts hereinabove specified in section 9:202 over such established tariff charge or charges shall be presumptive evidence of the intent mentioned in subsection (a).
(City Code 1951, Title 9, § 204)

Sec. 9:206. Exceptions. (City)

This chapter shall not apply to tickets, reservations or passenger accommodations:

(1)To or from places outside of the continental United States and Canada, excluding Alaska; nor

(2)To existing written contracts between any travel agency with corporations, firms or government agencies covering tourist or travel services.
(City Code 1951, § Title 9, § 207)

Sec. 9:207. Penalty. (City)

Any person violating any of the provisions of this chapter shall be guilty of a misdemeanor and, upon conviction, shall be punished by a fine of not exceeding twenty-five dollars ($25.00) or by imprisonment not exceeding twenty (20) days in jail, or both, at the discretion of the judge, for each separate offense.
(City Code 1951, Title 9, § 206)

CHAPTER 4. AUCTION SALES*

Sec. 9:250. Auction sales regulated.

It shall hereafter be unlawful for any person, firm, corporation, auctioneer, and others as well to sell, dispose of or offer for sale in the city-parish, at public auction, or cause or permit to be sold, disposed of, or offered for sale at public auction within the city-parish, any and all types of goods, wares, merchandise, antique furniture, equipment, machinery, or any other type property, movable or immovable, regardless of the kind or description, except livestock, whether the same shall be his own property or whether the sale of the same shall be made by or through him as agent or employee of the owner thereof, or in any capacity, without first complying with the provisions of this chapter and obtaining and having a license issued by the director of finance of the parish, provided however, that this chapter shall not apply to judicial sales, sales made by executors or administrators under the administration of a court, to sales by trustees, mortgages or assignees under the terms of any instrument given to secure bona fide indebtedness under which he exercises the power of sale, nor to sales made by or on behalf of licensed pawn-brokers or bona fide unredeemed pledges, nor to sales of unclaimed freight or express as provided by law, nor to sales by sheriffs, constables, or other officers as provided by law, nor to sales conducted by an employee of the United States or the State of Louisiana or its political subdivisions in the course and scope of his employment, nor to sales conducted by a charitable or non-profit organization, nor to sales conducted by an individual of his own property if such individual is not engaged in the business of selling such property as an auctioneer on a regular basis, nor to sales conducted by sealed bids, nor to any other particular kind of auction sales expressly authorized by the laws of Louisiana or by the laws of the United States.
(City Code 1951, Title 9, § 250; Parish Code 1962, Title 9, § 181; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

*__State law reference—__Auctions and auctioneers, R.S. 5:1 et seq.

Sec. 9:251. License required.

Any auctioneer desiring to conduct an auction sale or sales for the purpose of the sale of any of the goods hereinabove described, shall make application to the director of finance of the parish as herein provided for a license therefor, and the said director of finance shall issue to any such person a non-transferable license upon his complying with the terms of this chapter, such license to be made for a period of time to be designated therein, provided that no license shall be issued for a longer period than one (1) year from date thereof.
(City Code 1951, Title 9, § 251; Parish Code 1962, Title 9, § 182; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:252. Application for license.

The application for a license shall be in writing, signed and sworn to before a notary public, stating the name of the applicant, his residence, his state auctioneer's license number, and such other information as the director of finance may request.
(City Code 1951, Title 9, § 252; Parish Code 1962, Title 9, § 183; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:253. Inventory.

On or before three (3) days prior to any proposed sale, the auctioneer shall furnish to the director of finance a notarized statement of the proposed sale setting forth the time, date, and place of the sale; the names, addresses and state auctioneer's license number of all auctioneers conducting the sale; the parish auction license number; and a general description of the type, kind, or character, and quantity of items to be sold. However, the director of finance may waive the requirement that such notification be received at least three (3) days prior to the date of sale if such waiver is justified in his opinion. Within twenty (20) days after any sale the auctioneer shall furnish to the director of finance a statement attesting to the total amount of sales and the amount of taxes due. The requirements of furnishing this statement shall not apply to those persons, firms, corporations, auctioneers, and others who possess and maintain a license to sell at retail from the parish and also maintain a permanent established place of business in the parish.
(City Code 1951, Title 9, § 253; Parish Code 1962, Title 9, § 184; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:254. Bond.

Any person desiring a license shall in addition to complying with the provisions of this chapter and before a license shall be issued, furnish a bond to the city-parish, duly executed by such applicant as principal in the sum of five thousand dollars ($5,000.00) or in lieu of said cash bond, a bond in the same amount issued by a surety company authorized to do business in the State of Louisiana, which shall be payable to the city-parish, to be approved by the director of finance of the parish, and conditioned that the said principal shall pay all loss and damage which may lawfully be claimed against him on account of any material misrepresentation of fact or any material suppression of fact concerning the goods to be auctioned at such sale or auction at any sale, or which may grow out of violation of any of the provisions of this chapter. Such bond shall be valid for a period of time not less than the period for which the license shall be issued. Such bond shall inure to the benefit of any and all persons who sustain any loss or damage on account of any such misrepresentation or violation of this chapter and any such person sustaining any such loss or damage may bring suit in any court of competent jurisdiction in the parish to recover the same, and the provisions of said bond shall be construed liberally in favor of all such persons sustaining such loss or damage. All remedies upon or under such bond herein provided, shall be in addition to and cumulative of all other remedies the parties may have at law or in equity for recovery of any such losses or damages. Cumulative recoveries may be had on said bond to the full amount thereof. If this bond is cancelled or otherwise becomes invalid in the opinion of the director of finance, then and in that event the license issued in connection therewith on the basis thereof shall be terminated and invalid.
(City Code 1951, Title 9, § 254; Parish Code 1962, Title 9, § 185; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:255. License fee.

Before any license shall be issued, an applicant who is a resident of the state shall pay to the city-parish a license fee of fifty dollars ($50.00); an applicant who is a non-resident of the state shall pay a license fee of one hundred dollars ($100.00).
(City Code 1951, Title 9, § 255; Parish Code 1962, Title 9, § 186; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:256. Misrepresentation or suppression of fact by auctioneer.

It shall be unlawful for any person acting as auctioneer to make any material misrepresentation of fact or any material suppression of fact concerning the goods to be auctioned at such sale or any other material misrepresentation of fact whatsoever as to the quality, quantity, character, present condition, value or cost or general selling price of any goods within the purview of this chapter offered for disposal by auction sale.
(City Code 1951, Title 9, § 256; Parish Code 1962, Title 9, § 187; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:257. Cappers or boosters; false bids.

It shall be unlawful for any person to act as by-bidder or what is commonly known as "capper" or "booster" at any such auction or place where any such auction shall take place, or to offer or make any false bid to buy or pretend to buy any goods sold or offered for sale at any such auction. It shall also be unlawful and a violation of the terms hereof if an owner, or his agent bids on any piece offered for sale by auction. No person acting as auctioneer shall purchase either directly or indirectly any property at any sale made by him. Any such sale to an auctioneer is null and void.
(City Code 1951, Title 9, § 257; Parish Code 1962, Title 9, § 188; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:258. Invoices required.

It shall be the duty of the person, firm, corporation, auctioneer, and others as well whose goods are thus being sold at public auction to give each and every purchaser of an article an invoice containing a full description of the article and the selling price thereof. A duplicate copy of said invoice shall be kept for a period of four (4) years.
(City Code 1951, Title 9, § 258; Parish Code 1962, Title 9, § 189; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:259. Definition.

The term "person" as used in this chapter shall include the city-parish, any person, firm, auctioneer or association or person or any corporation or their agents, servants or employees.
(Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:260. Location of sale.

No auction sale shall be held or conducted on any public vacant lot, public street, public sidewalk, public alley, public square or public plaza in the city-parish.
(City Code 1951, Title 9, § 260; Parish Code 1962, Title 9, § 191; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:261. Sale hours.

No auction sale or sales, for the purpose of the sale of any of the goods hereinabove described shall be held between 10:00 p.m. and sunrise.
(City Code 1951, Title 9, § 261; Parish Code 1962, Title 9, § 192; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:262. Rules and regulations.

The director of finance for the parish is authorized and directed to promulgate rules and regulations consistent and in accordance herewith for the effective and efficient administration of this chapter and its provisions, which said rules and regulations are to be formulated, adopted and promulgated in accordance with law.
(City Code 1951, Title 9, § 262; Parish Code 1962, Title 9, § 193; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:263. Advertisements.

Any advertisement of any kind or description of any sale to be conducted hereunder shall include the following information:

(1) The place, date, and time of the sale;

(2) The name of the auctioneer(s) to conduct the sale, his (their) state auctioneer's license number(s), and the parish auction license number(s).

(City Code 1951, Title 9, § 263; Parish Code 1962, Title 9, § 194; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:264. Licensed auctioneer required.

Any sale at an auction to be conducted in accordance herewith shall be conducted by a person licensed as an auctioneer in the state or by a non-resident auctioneer exempted from state licensing requirements under the reciprocity provisions of the Louisiana Auction and Auctioneer's Law. It shall be a violation of the terms hereof if a sale at an auction held in accordance with the provisions of this article is conducted by a person not licensed as hereinabove provided.

(City Code 1951, Title 9, § 264; Parish Code 1962, Title 9, § 195; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:265. Compliance with chapter required.

No license shall be issued hereunder by the director of finance or his office unless all the terms of this chapter and the rules and regulations adopted and/or promulgated from time to time are complied with. Any license issued under the provisions of this chapter may be revoked by the director of finance for failure to comply with this chapter and related rules and regulations or failure to comply with any city-parish tax ordinance.

(City Code 1951, Title 9, § 265; Parish Code 1962, Title 9, § 196; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

Sec. 9:266. Penalty.

Any person, firm, association, or persons, traveling auctioneers, or any corporation, their agents, servants, or employees violating any of the provisions of this chapter shall, upon conviction, be fined in any sum not less than fifty dollars ($50.00) and not more than two hundred dollars ($200.00). Each and every sale in violation of this chapter shall be deemed to be a separate offense.

(City Code 1951, Title 9, § 267; Parish Code 1962, Title 9, § 198; Parish Ord. 5582, § 1, 11-26-80; City Ord. 4336, § 1, 11-26-80)

CHAPTER 5. WASH HOUSES, LAUNDRIES AND CLOTHES CLEANING ESTABLISHMENTS

Sec. 9:300. Definition. (City)

The term laundry, wash house or clothes cleaning establishment for the purpose of this chapter, shall not apply to any place or places where washing or clothes cleaning is done for not more than five (5) families, or five (5) persons not constituting one family.

(City Code 1951, Title 9, § 306)

Sec. 9:301. Certificate from health unit. (City)

It shall be unlawful for any person to maintain, conduct or operate any wash house, laundry or clothes cleaning establishment within the corporate limits of the city without having first obtained a certificate, signed by the proper officer or the health unit, that the premises so to be used are sufficiently drained, that the lot is filled to proper grade, and that all proper sanitary arrangements required by the health authorities for the carrying on of the business without injury to the sanitary condition of the neighborhood, and all the provisions, regulations and orders of the unit pertaining thereto have been complied with.

(City Code 1951, Title 9, § 300)

Sec. 9:302. Other uses prohibited. (City)

It shall be unlawful for any person to establish, maintain, operate or carry on any laundry, wash

house, or clothes cleaning establishment within the corporate limits of the city, in any building or portion thereof or in any annex or outhouse, thereof, on the same floor or floors which may be used or occupied, directly or indirectly, as living quarters or sleeping apartments; nor shall any floor or floors designated and used for a laundry, wash house or clothes cleaning establishment be used or employed for any other purpose or busi-

ness whatsoever than for the business of a laundry, wash house or clothes cleaning establishment.
(City Code 1951, Title 9, § 301)

Sec. 9:303. Construction of floors. (City)

It shall be unlawful for any person conducting, maintaining or operating a laundry, wash house or clothes cleaning establishment, within the corporate limits of the city to wash or permit to be washed any clothing, or any article of cloth, in any room the floor of which is not constructed of cement and drained into the public sewer.
(City Code 1951, Title 9, § 302)

Sec. 9:304. Drying room to be separate. (City)

It shall be unlawful for any person within the corporate limits of the city, except in cases where clothes are dried by the forced circulation of heated air, or by circulation of the clothes mechanically through air artificially heated, to dry any clothing washed in such laundry in any room other than the one used exclusively for drying purposes. Such room must be entirely shut off from any other room except that it may be connected with another room by means of a door opening thereto, in which event such door shall always be closed when not being used by a person entering or leaving such drying room, this to be effected by equipping each door with a self closing device. This room must be ventilated by means of at least two (2) windows, opening to the outer air, which windows shall be on different sides.
(City Code 1951, Title 9, 303)

Sec. 9:305. Privies prohibited. (City)

It shall be unlawful for any person to permit the existence of an open privy vault or cesspool on the premises upon which a laundry, wash house or clothes cleaning establishment is operated.
(City Code 1951, Title 9, § 304)

Sec. 9:306. Source of water. (City)

It shall be unlawful for any person operating a laundry, wash house or clothes cleaning establishment, within the corporate limits of the city to use any other water in the laundry, wash house or clothes cleaning establishment except filtered river water, rain water, distilled water or water from an artesian well. No dug well shall be allowed on the premises of any public laundry or wash house.
(City Code 1951, Title 9, § 305)

Sec. 9:307. Infected persons or clothes. (City)

It shall be unlawful for any person afflicted with any contagious or infectious disease, or skin disease, to be employed or work in or about the premises of a laundry, wash house or clothes cleaning establishment or in the handling or delivery of any clothing therein washed, laundered or cleaned. Nor shall it be lawful for any laundry, wash house or clothes cleaning establishment, or the proprietors thereof, to knowingly receive or wash, launder or clean the clothes from any infected premises, water craft, railroad coach, car, or from any person afflicted with any contagious or infectious disease, without same having been first disinfected under the supervision of the health unit.
(City Code 1951, Title 9, § 307)

Sec. 9:308. Inspection required. (City)

It shall be the duty of the health unit to make or cause to be made quarterly a thorough and complete inspection of all laundries, wash houses and clothes cleaning establishments, within the limits of the city, and to ascertain if the provisions of this chapter are complied with, and to determine if the manner of conducting same is such as not to be or become dangerous or prejudicial to life or health in the city.
(City Code 1951, Title 9, § 308)

Sec. 9:309. Certificates. (City)

Certificates shall be provided by the health unit, to be filled out and executed by the inspector when inspection has been satisfactory. A quarterly inspection certificate shall be prominently displayed in each laundry, wash house or clothes cleaning establishment.
(City Code 1951, Title 9, § 309)

Sec. 9:310. Obstruction of officers of health unit. (City)

It shall be unlawful for any person in any way connected with any laundry, wash house or clothes cleaning establishment in any manner to obstruct,

hinder or interfere with any officers of the health unit in the full discharge of their duties hereunder, or to refuse or withhold any information that they may desire to obtain relative to the sanitary arrangement and management.
(City Code 1951, Title 9, § 310)

Sec. 9:311. Reports to be filed with health unit. (City)

It shall be the duty of every person operating a laundry, wash house or clothes cleaning establishment within the corporate limits of the city, to file in the office of the health unit on a blank especially prepared for this purpose, the following information: name of owner; business and residence address of owner; character of business carried on; and such other information as the unit may deem necessary for the enforcement of proper sanitary regulations on premises.
(City Code 1951, Title 9, § 311)

Sec. 9:312. Penalty. (City)

Any person violating any of the provisions of this chapter or failing to comply with any of the provisions hereof, shall be liable to a fine of not less than one hundred dollars ($100.00) or imprisonment of not more than twenty (20) days, or both, at the discretion of the judge.
(City Code 1951, Title 9, § 312)

CHAPTER 6. EXOTIC DANCERS*

Sec. 9:325. Purpose of chapter; certificates required. (City)

In order to further carry out the regulations of businesses dealing in alcoholic beverages, as authorized by title 26 of the Louisiana Revised Statutes and under the express authority granted in R.S. 26:494 and in order to further protect the health, safety and morals of the citizens of the city, no retail dealer shall employ any male or female entertainers commonly known as "exotic dancers" unless such entertainers have been issued a certificate of qualification by the chief of police. No retail dealer shall hire any male impersonating a female as an "exotic dancer" or barmaid, or any female impersonating a male as an "exotic dancer" or bartender.
(City Code 1951, Title 9, § 325; Ord. No. 7526, § 1, 5-9-84; Ord. No. 9032, § 1, 12-13-89)

Sec. 9:326. Definitions. (City)

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

A *female impersonator* is any male who disguises himself as a female by means of clothes, wigs, makeup and any other means to resemble or impersonate a person of the female sex; and a *male impersonator* is any female who disguises herself as a male by means of clothes, wigs, makeup and any other means to resemble or impersonate a person of the male sex.

Exotic dancer is a male or female hired to dance, gyrate, twist or do any other physical performance on the floor, tables, stage or other contrivance located in or on the premises of any retail liquor establishment selling low or high alcoholic beverages from a bar.
(City Code 1951, Title 9, § 326; Ord. No. 7526, § 1, 5-9-84; Ord. No. 9032, § 2, 12-13-89)

Sec. 9:327. Qualifications. (City)

(a) No person shall be hired to perform as an "exotic dancer" in any retail establishment dealing in alcoholic beverages of low or high content without having been certified as qualified to do so by the chief of police and without having complied with the provisions of this section. Each person holding a certificate of qualification shall have that certificate in the licensed establishment or in his or her immediate possession at all times when performing as an "exotic dancer," gyrator, twister or other physical performer and shall exhibit it upon demand of any police officer.

*Editor's note—The editor has changed the title of ch. 6 from "Go-Go Dancers" to "Exotic Dancers" to more accurately reflect the contents of the chapter, as amended by Ord. No. 7526.

Subsequently, § 1 of Ord. No. 8402, adopted May 13, 1987, amended the chapter in its entirety; however, this amendment was negated by § 1 of Ord. No. 8483, adopted Sept. 9, 1987, which returned the text of the chapter as it existed prior to amendment by Ord. No. 8402.

(b) Each applicant for a certificate of qualification to perform as an "exotic dancer" shall present to the chief of police a photograph of himself or herself of the size designated by the chief of police and shall be fingerprinted by the police department.

(c) Each applicant shall pay to the chief of police at the time of issuing such certificate of qualification a fee of five dollars ($5.00) to cover the cost of issuing such certificate; and such certificate shall be valid for a period of one (1) year unless sooner revoked, canceled or suspended, and shall expire one (1) year from the date certificate is issued.

(d) Each certificate holder shall notify the chief of police or his designated representative of any change of residence address or any change of place of employment within twenty-four (24) hours of such change. If any certificate holder shall be employed in more than one (1) place, he or she shall so notify the police department.

(e) The application for a certificate of qualification shall be in writing and sworn to and shall contain the full name and correct address of the applicant and any other pertinent information requested.

(f) The chief of police may refuse to issue a certificate of qualification to perform as an "exotic dancer" to any person in the interest of the public healthy, safety and morals.

(g) Any felony, narcotics, drug or prostitution convictions subsequent to issuing a certificate of qualification shall result in immediate revocation of the certificate.

(h) Any person convicted of performing as an "exotic dancer" without having a certificate of qualification to do so shall be punished by a fine of not more than fifty dollars ($50.00) or imprisonment of not more than fifteen (15) days, or both at discretion of the judge.

(i) Any person holding a license to sell low or high alcoholic beverages at retail from a bar shall be subject to suspension or revocation of his license if convicted of hiring uncertified "exotic" entertainers in his establishment.

(j) Any person aggrieved by the decision of the chief of police to refuse to issue, or to suspend or revoke a certificate of qualification may take a devolutive appeal therefrom to the council within fifteen (15) days of written notification of such decision. The appeal must be taken by submitting a written request therefor to the council administrator. The council shall hear the appeal within twenty (20) days of receipt of notice by the council administrator. The decision of the chief of police shall be final unless appealed within the time, and in the manner, set forth above.
(City Code 1951, Title 9, § 327; Ord. No. 7526, § 1, 5-9-84; Ord. No. 9032, § 3, 12-13-89)

Sec. 9:328. Application for renewal of certificate of qualification shall be sworn to. (City)

All applications for renewal of certificates under this chapter shall be sworn to before a notary public or other person qualified to administer oaths or affirmations.
(City Code 1951, Title 9, § 328; Ord. No. 9032, § 4, 12-13-89)

Sec. 9:329. Illegal to act as solicitor. (City)

(a) It shall be illegal for any person certified as qualified under the provisions of this chapter to solicit or induce any person on such premises to purchase for himself or for such solicitor or any other person any beverage or other product of whatever kind sold in such establishment and it shall be immaterial whether or not such solicitor realizes or expects to realize any profit or reward as a result of such solicitation.

(b) The provisions of this section shall not apply to any proprietor, manager, bartender or waiter regularly employed to serve food or beverages on the premises unless such person perform any acts described in section 9:326.
(City Code 1951, Title 9, § 329; Ord. No. 9032, § 5, 12-13-89)

CHAPTER 7. TRANSIENT MERCHANTS (RESERVED)*

CHAPTER 8. ROLLING VENDORS

Sec. 9:360. Definitions.

(a) *Rolling vendor* means any person who changes retail locations from day to day or week to week and who displays samples, models, goods, wares or other merchandise for the purpose of selling such items at retail or securing orders for the retail sale of such items. "Rolling vendor" shall include, but is not limited to, itinerant vendors, and any retail dealer not having a fixed place of business.

(b) *Director of finance* means and includes the director of finance of the city-parish or his duly authorized assistants.

(c) *Person* means a single person, a corporation, a partnership or two (2) or more persons having a joint or common interest.
(Ord. No. 11561, § 1, 9-22-99)

Sec. 9:361. License required.

It shall be unlawful for any rolling vendor to transact any phase of business in the city-parish, without first applying to the director of finance for a license. A fee for this license shall be two hundred fifty dollars ($250.00) per annum. The license required by the occupational license tax ordinance shall not apply to rolling vendors licensed under the provisions of this section.
(Ord. No. 11561, § 1, 9-22-99)

Sec. 9:362. Application for license.

An applicant for a rolling vendor's license shall provide the following information:

(1) His home address.

(2) The firm or firms he represents, if any, together with credentials establishing the exact relationship.

(3) A brief description of the nature of the business and the kind of merchandise he desires to sell.

(4) The number of days he intends to solicit orders.

(5) The location where the applicant proposes to sell such merchandise.

(6) A copy of the lease between the vendor and the property owner for the location at which the proposed selling is to take place.

(7) A copy of the policy of liability insurance which covers the location where the selling is to take place.
(Ord. No. 11561, § 1, 9-22-99)

Sec. 9:363. Lease requirements.

Before a license is issued by the director of finance, the applicant will be required to furnish a copy of a signed lease for the use of the property on which he proposes to sell his merchandise. This lease must indicate who is responsible for liability on said property.
(Ord. No. 11561, § 1, 9-22-99)

Sec. 9:364. Insurance requirements.

Before a license is issued by the director of finance, the applicant will be required to furnish a policy of liability insurance in the amount of two hundred fifty thousand dollars ($250,000.00) per incident which covers the property on which he proposes to sell his merchandise. This policy must include a provision that the city-parish will be notified within thirty (30) days if this policy of insurance is to be canceled for any reason.
(Ord. No. 11561, § 1, 9-22-99)

Sec. 9:365. Zoning requirements.

Rolling vendors are only allowed to operate within the proper zoning district for the type of merchandise that they propose to sell and must maintain building setback lines and sight trian-

*__Editor's note—__A copy of the transient merchants ordinance is on file in the offices of the finance department and council administrator-treasurer. Ch. 7 formerly contained the provisions of Ord. No. 9405, adopted March 11, 1992, and Ord. No. 9708, adopted September 8, 1993 which were, in effect, repealed by Ord. No. 11505, § 5, adopted August 11, 1999.

gle requirements of the unified development code for the zoning district in which the vendor is allowed to operate.
(Ord. No. 11561, § 1, 9-22-99)

Sec. 9:366. Exemptions.

The provisions of this chapter shall not apply to food sales, firewood sales if sold by owner of land where trees were cut, events sponsored by non-profit organizations, disabled persons, fairs, or artists and craftsmen who display their own original art and handicraft.
(Ord. No. 11561, § 1, 9-22-99)

Sec. 9:367. Penalty.

Whoever violates the provisions of this chapter shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than ninety (90) days, or both. Each day of the violation shall constitute a separate violation.
(Ord. No. 11561, § 1, 9-22-99)

Secs. 9:368—9:370. Reserved.

CHAPTER 9. POLICE EMERGENCY ALARM SYSTEMS*

Sec. 9:413. Definitions.

(a) *Alarm answering service* shall mean a telephone answering service providing among its services the receiving, through trained employees, of the emergency signals form alarm systems, and the relaying of the message by live voice to the communications center of the police department or sheriff's offices.

(b) *Alarm business* shall not include a business which only manufactures alarm systems or only sells alarm systems to retail outlets, or one which manufactures or sells alarm systems to retail outlets, unless the firm, company, partnership or corporation also services, installs, sells at retail, and/or monitors alarm systems.

(c) Alarm system shall mean an assembly of equipment or devices which is designed, arranged or used for the devices which is designed, arranged or sued for the detection of a hazardous condition or an unauthorized entry or attempted entry into a building, structure or facility, or for altering persons of a hazardous condition or the commission of an unlawful act within a building, structure or facility, and which emits a sound, or transmits a signal or message when activated, to which annunciation, a law enforcement agency or other service agency may be summoned to respond. For purposes of this chapter, an alarm system shall not include:

(1) An alarm installed on a motor vehicle.

(2) An alarm designed so that no notification is given to the police department or sheriff's office until after the occupants or an agent of the owner or lessee have checked the alarm site and determined that there is physical evidence at the site showing that the alarm was the result of criminal activity of the kind for which the alarm system was designed to give notice, if a person who is able to grant access to the alarm site remains at such site until law enforcement arrives, whenever the police are notified after an alarm has been activated and such person renders access and such other assistance as he is able to give and such as is needed by the law enforcement to properly investigate the situation.

(3) An alarm installed upon premises occupied by the United States Government, by the state, by the city and parish or any subdivision thereof.

(4) Any device or system designed solely to detect or give notice of fire or smoke.

(d) *Alarm user* is any person, firm, company, partnership or corporation possessing a functional alarm system to which law enforcement may be required to be respond.

*__Editor's note—__Ord. No. 11072, § 1, adopted February 11, 1998, amended the Code by reenacting Chapter 9 to read as herein set out. The editor has treated Ord. No. 11072 as specifically repealing those sections that it did not specifically include. Ord. No. 11072, and consequently the provisions of this chapter, has been revised to conform to changes in state law, and becomes effective June 1, 1998.

(e) *Automatic telephone dialing equipment* shall mean an alarm system which automatically sends over regular telephone lines, by direct connection or otherwise, a prerecorded police message or docked signal to report a police emergency condition which the alarm system is designed to detect.

(f) *Board* shall mean the false alarm regulatory board as established in section 9:427.

(g) *False alarm* means the activation of an alarm system under circumstances where no police emergency exists at the alarm site and which activation results in a response by a law enforcement agency.

(h) *Holdup alarm* shall mean any device activated by human action as a result of or in response to robbery or attempted robbery at the alarm site.

(i) *Interconnect* shall mean to connect an alarm system to a voice grade telephone line, either directly or through a mechanical device that utilizes a standard telephone, for the purpose of using the telephone line to transmit an emergency message upon the activation of the alarm system.

(j) *Local alarm* shall mean any alarm emitting audible and/or visual signals in, at or on the alarm site when activated, and which results in notification begin made directly or indirectly to the police department or sheriff's office.

(k) *Malicious false alarm* shall mean the intentional false reporting to the police or sheriff's office of a police emergency condition, or the intentional setting off of an alarm system which will cause another to report the signal to law enforcement. However, this definition is not to include the testing of an alarm system by a licensed alarm business under guidelines to be established jointly by the police department and sheriff's office.

(l) *Monitoring station* shall mean an office to which remote police alarm and supervisory signaling devices are connected, where trained personnel are on duty and in attendance at all times to supervise the circuits terminating therein, investigate signals, and retransmit alarm signals to appropriate agencies.

(m) *Permit* shall mean a certificate of authorization issued by the chief of police for an alarm within the city limits of Baton Rouge and the Sheriff for an alarm outside of the city limits of Baton Rouge to the person in control of a specific property which authorizes the operation of an alarm system at that location.

(n) *Permit holder* shall mean the individual, partnership or other legal entity to whom an alarm system permit is issued by the chief of police or sheriff.

(o) *Person* shall mean any individual, partnership, corporation or other legal entity.

(p) *Police* may be inclusive of any law enforcement agency having jurisdiction in the parish.

(q) *Primary trunk line* shall mean an electronic signal alarm line leading directly into the communications center of the police department for use by banks, and other businesses upon appropriate licensing.

(r) *Proprietary system* shall mean an alarm system emitting alarm or supervisory signals from within a control center located within a protected premises, the control center being under the supervision of the proprietor of the protected premises. If a proprietary system includes any signal, visible or audible, outside the protected premises, it thereby becomes a police emergency alarm system as defined above.

(s) *Response* shall mean the arrival of a law enforcement officer or officers at the premises where an alarm system has been activated indicating a police emergency at those premises.

(t) *Special trunk line* shall mean a telephone line leading into the communications center of the police department and having the primary purpose of handling emergency signals or messages originating either directly or through a central location from automatic dialing devices.

(u) *Transmitting device* shall mean an instrument which sends a signal to a monitoring point indicating intrusion into a given protected area.
(Ord. No. 8206, § 1, 9-10-86; Ord. No. 8391, § 1, 4-22-87; Ord. No. 8880, § 1, 3-22-89; Ord. No. 9030, § 1, 12-13-89; Ord. No. 11072, § 1, 2-11-98; Ord. No. 15302, § 1, 4-25-12)

Secs. 9:414, 9:415. Reserved.

Editor's note—Ord. No. 11072, § 1, adopted February 11, 1998, amended the Code by repealing former sections 9:414 and 9:415. Former § 9:414 pertained to doing business without a license, and derived from Ord. No. 8206, adopted September 10, 1986; Ord. No. 8391, adopted April 22, 1987; and Ord. No. 9030, adopted December 13, 1989. Former § 9:415 pertained to license application, and derived from the aforementioned Ord. Nos. 8206, 8391, and 9030, as well as Ord. No. 8880, adopted March 22, 1989.

Sec. 9:415.1. Medical alarm systems.

Medical alarm systems which employ as a part of their initial response system a law enforcement dispatch without further verification shall be licensed according to the requirements of this chapter.
(Ord. No. 9803, § 1, 1-12-94; Ord. No. 11072, § 1, 2-11-98; Ord. No. 15302, § 1, 4-25-12)

Secs. 9:416—9:419. Reserved.

Editor's note—Ord. No. 11072, § 1, adopted February 11, 1998, amended the Code by repealing former §§ 9:416—9:419. Former § 9:416 pertained to license application fees, and derived from Ord. No. 8206, adopted September 10, 1986; Ord. No. 8391, adopted April 22, 1987; Ord. No. 8880, adopted March 22, 1989; Ord. No. 9030, adopted December 13, 1989; and Ord. No. 9803, adopted January 12, 1994. Former § 9:417 pertained to license qualifications, and derived from the aforementioned Ord. Nos. 8206, 8391, 8880, and 9030, as well as Ord. No. 9515, adopted October 28, 1992; and Ord. No. 10159, adopted January 25, 1995. Former § 9:418 pertained to revocation of license, and derived from the aforementioned Ord. Nos. 8206, 8391, 9030, and 10159. Former § 9-419 pertained to required reports, and derived from the aforementioned Ord. Nos. 8206, 8391, 8880, 9030, and 9515.

Sec. 9:420. Automatic telephone dialing equipment.

(a) Automatic dialing services designed to transmit signals directly to the communications center of the police department, the sheriff's office or the medical communications office, which is reached by dialing 911, are prohibited.

(b) A primary trunk line as defined herein may be interconnected to the communications center of the police department. Before such a line is interconnected, the person performing this operation shall first obtain instructions from the police department concerning procedure to be followed; and the person wishing to interconnect such primary trunk line shall bear all the costs of the installment and maintenance of any such line. Additionally, the person interconnecting a primary trunk line to the communications center of the police department shall pay the city through the police department a monthly fee in the amount of fifty dollars ($50.00) for each alarm system serviced by the trunk line to cover the cost to the city of providing personnel to monitor the primary trunk line.

(c) Every primary trunk line user shall pay to the city-parish through the chief of police a penalty of ten dollars ($10.00) for each and every false alarm which was generated by the user subsequent to the fifth false alarm in any one (1) calendar year.

(d) Every alarm user having a primary trunk line connected with the communications center of the police department shall in all other respects possess a valid alarm user permit upon which application shall be included an indication that the alarm user is connected with the communications center by a primary trunk line.
(Ord. No. 8206, § 1, 9-10-86; Ord. No. 8391, § 1, 4-22-87; Ord. No. 8454, § 1, 7-8-87; Ord. No. 9030, § 8, 12-13-89; Ord. No. 9515, § 3, 10-28-92; Ord. No. 11072, § 1, 2-11-98; Ord. No. 15302, § 1, 4-25-12)

Sec. 9:421. Reserved.

Editor's note—Ord. No. 11072, § 1, adopted February 11, 1998, amended the Code by repealing former § 9:421 in its entirety. Former § 9:421 pertained to alarm business regulations, and derived from Ord. No. 8206, adopted September 10, 1986; Ord. No. 8391, adopted April 22, 1987; and Ord. No. 9030, adopted December 13, 1989.

Sec. 9:422. Alarm user permits.

(a) *Permit.* Every alarm user shall obtain an alarm user permit for each separate address in which he operates an alarm system within the city-parish, which shall be nontransferable. This subsection does not require that a licensed alarm business obtain a permit under this section when it leases or provides services to alarm system users. If, however, a licensed alarm business does use an alarm system to protect its own premises, it shall obtain an alarm user permit for such system as required in this section. The user shall

register the alarm system in his or her name within thirty (30) days of either the installation of the system or the taking control of an alarm system in an existing structure.

(b) *Alarm user permit application.* The alarm user applying for the permit required in subsection (a) of this section shall state on a permit application form to be prepared by the police department for permits to be issued inside the city limits of Baton Rouge and by the sheriff for permits to be issued outside the city limits:

(1) His name.

(2) The address of the residence, business or other structure in or upon which the alarm system has been or will be installed.

(3) His telephone number.

(4) The alarm business or businesses selling, installing, monitoring, inspecting, responding to and/or maintaining the alarm system.

(5) Such other information as the chief of police or Sheriff may require.

(c) *Alarm user permit fee.* There shall be an initial permit fee of twenty-five dollars ($25.00) and no permit fees for annual renewals; except that any applicant for a renewal must have paid in full, at the time of the renewal, which shall be June 1, any and all penalties as may have been assessed during the fiscal year exclusive of those penalties which may be under appeal. The permit applicant shall be responsible for all fees or fines associated with operation of the alarm system for which the permit was issued.

(d) *Restrictions on inspection.* In accordance with the provisions of R.S. 44:3A(3), the information contained in an alarm user permit application as required by this section and other information received through correspondence or communications with an alarm user shall be securely maintained and restricted to inspection only by law enforcement personnel and persons specifically assigned the responsibility for handling and processing alarm user permits in the course of their official duties. No person shall knowingly or willfully reveal information contained in an alarm user permit application or in correspondence or communications with an alarm user to any person for any purpose not related to this article or official law enforcement matters without the express written consent of the alarm user supplying such information.

(e) *Presentation of permit on request.* Any law enforcement officer answering a false alarm call shall have the authority to request to see a permit of the alarm user. The permit shall remain upon the premises for which it was issued. The permit or photocopy shall be presented on demand to officers. If the user cannot produce a permit, the law enforcement officer shall have the authority to issue a misdemeanor summons. If the alarm user can verify to the licensing division that the permit was valid on the day of the false alarm, the misdemeanor summons shall be dismissed.

(f) *Operation without permit prohibited.* Any alarm user who operates an alarm system without having first obtained a permit as required by this section or who, after having a permit revoked and after exhausting his rights to hearing and appeal, fails to disconnect his alarm system, shall be in violation of this chapter and shall be fined, upon conviction, not less than one hundred dollars ($100.00) nor more than two hundred fifty dollars ($250.00) for each calendar day of violation.

(g) *Address to be visible.* The permit applicant shall be responsible for displaying the correct numerical address of the protected property in such a manner as to be readily visible from the street by law enforcement officers responding to that address.

(h) *Automatic reset required.* No alarm user shall acquire an alarm system that does not provide for an automatic reset of the alarm after it has activated for longer than ten (10) minutes. (Ord. No. 8206, § 1, 9-10-86; Ord. No. 8391, § 1, 4-22-87; Ord. No. 9030, § 10, 12-13-89; Ord. No. 9515, § 4, 10-28-92; Ord. No. 9803, § 3, 1-12-94; Ord. No. 11072, § 1, 2-11-98; Ord. No. 15302, § 1, 4-25-12)

Sec. 9:423. False alarms.

(a) Any alarm user shall have the right to be advise his or her alarm company that an alarm is false upon being contacted by the company so that

the company can make timely notification to law enforcement to cancel the alarm notification to avoid being penalized for a false alarm for that alarm call. "Timely notification" shall be notification by the user's alarm provider to the communications center of the police department or the sheriff's office, as appropriate, in advance of any law enforcement official's arrival at the location of the alarm call.

(b) In the interests of increased personal or business security, any alarm user shall have the right to notify law enforcement agencies in his alarm user permit application that law enforcement agency(ies) should respond to each and every alarm notification, which forfeits the user's right to give notice of false alarms as provided in paragraph (a) of this section.

(c) Alarm system users shall pay a penalty for excessive false alarms to the city through the chief of police or the sheriff, based on which agency has jurisdiction over the call location. False alarms are tracked on a twelve-month period running from June 1 through May 31 of any given year, with penalties set forth below consecutive period, and penalties are set forth below.

False Alarm Count	*Penalty*
1st	$0.00 - Counsel and Warn
2nd	$0.00 - Counsel and Warn
3rd	$0.00 - Counsel and Warn
4th	$25.00
5th	$50.00
6th	$75.00
7th	$100.00
8th	$125.00
9th	$150.00
10th	$175.00
11th	$200.00

(d) Any designee of the sheriff or the chief of police shall give to each subscriber written notice of each false alarm attributed to that permit user as soon as possible. This written notice of violation shall be uniformly produced in such form as the chief of police or sheriff may deem appropriate and left with a resident at the scene of the false alarm, or may be sent by US mail addressed to the person to be notified. The alarm user permit holder may, within fifteen (15) days after personal delivery of such notice to a resident of the call location or mailing of the notice of violation, present evidence to the supervisor of the alarm enforcement division of the responding agency indicating that any alleged false alarm was not, in fact, a false alarm; and any adverse determination as made by the alarm enforcement division supervisor may be appealed to the agency's legal advisor, within thirty (30) days of the adverse determination. Nothing in this section will prevent a subscriber from exercising any other legal rights he or she may have regarding appeal of administrative decisions.

(e) Failure to respond to the second notice of nonpayment, which notice shall clearly state "final notice," within thirty (30) days of mailing or personal delivery to a resident of the call location shall result in revocation of the permit, and may expose the subscriber to any or all legal remedies available to the enforcing agency or municipality for collection of monies owed or debts accrued.

(f) A permit holder with fifteen (15) or more false alarms in a twelve-month consecutive period may have the permit revoked for abusive false alarms. The chief of police or sheriff shall advise the permit holder of the intention to revoke the permit and give the permit holder not less than ten (10) days in which to present mitigating circumstances demonstrating that the permit should not be revoked. After consideration of the number of false alarms, any patterns of alarm calls, any information provided by the permit holder, and any other relevant information, the chief or sheriff may revoke the permit or maintain the permit, and may reset the false alarm count or impose such other restrictions on the permit as a reasonable under the circumstances.
(Ord. No. 8206, § 1, 9-10-86; Ord. No. 8391, § 1, 4-22-87; Ord. No. 9030, § 11, 12-13-89; Ord. No. 9803, § 4, 1-12-94; Ord. No. 11072, § 1, 2-11-98; Ord. No. 11350, § 2, 1-27-99; Ord. No. 15272, § 1, 3-14-12; Ord. No. 15302, § 1, 4-25-12)

Sec. 9:424. Malicious false alarms.

It shall be unlawful for any person to cause a malicious false alarm to be reported to the police department or to the sheriff's office.
(Ord. No. 8206, § 1, 9-10-86; Ord. No. 8391, § 1, 4-22-87; Ord. No. 9030, § 12, 12-13-89; Ord. No. 11072, § 1, 2-11-98; Ord. No. 15302, § 1, 4-25-12)

Secs. 9:425, 9:426. Reserved.

Editor's note—Section 9:425, formerly § 9:426, regulating monitoring stations or central stations and alarm answering services, derived from Ord. Nos. 8206, 8391, and 9030, was repealed by Ord. No. 9515, § 5, adopted Oct. 28, 1992. Ord. No. 11072, § 1, adopted February 11, 1998, amended the Code by repealing former § 9:426 in its entirety. Former § 9:426 pertained to alarm agents, and derived from Ord. No. 8206, adopted September 10, 1986; Ord. No. 8391, adopted April 22, 1987; Ord. No. 8880, adopted March 22, 1989; Ord. No. 9030, adopted December 13, 1989; Ord. No. 9515, adopted October 28, 1992; and Ord. No. 10159, adopted January 25, 1995.

Sec. 9:427. Reserved.

Editor's note—Ord. No. 11350, § 1, adopted January 27, 1999, amended the Code by repealing former § 9:427 in its entirety. Former § 9:427 pertained to the false alarm regulatory board, and derived from Ord. No. 8206, adopted September 10, 1986; Ord. No. 8391, adopted April 22, 1987; Ord. No. 9030, adopted December 13, 1989; Ord. No. 9515, adopted October 28, 1992; Ord. No. 9803, adopted January 12, 1994; Ord. No. 11072, adopted February 11, 1998.

Sec. 9:428. Regulatory powers.

The chief of police and sheriff may jointly promulgate reasonable written standards, rules and regulations that may be necessary for the purpose of assuring the quality, efficiency and effectiveness of police emergency alarm communications, and of administering and enforcing the provisions of this chapter.
(Ord. No. 8206, § 1, 9-10-86; Ord. No. 8391, § 1, 4-22-87; Ord. No. 9030, § 16, 12-13-89; Ord. No. 11072, § 1, 2-11-98; Ord. No. 11350, § 3, 1-27-99; Ord. No. 15302, § 1, 4-25-12)

Sec. 9:429. Exceptions.

The provisions of this chapter shall not apply to any governmental entity, in regards to payment of a fee or a penalty or the revocation of a permit, which provides, maintains and services police emergency alarm reporting systems for its own protection when acting in a governmental capacity as opposed to a proprietary function.
(Ord. No. 8206, § 1, 9-10-86; Ord. No. 8391, § 1, 4-22-87; Ord. No. 9030, § 17, 12-13-89; Ord. No. 11072, § 1, 2-11-98; Ord. No. 15302, § 1, 4-25-12)

Secs. 9:430, 9:431. Reserved.

Editor's note—Ord. No. 11072, § 1, adopted February 11, 1998, amended the Code by repealing former §§ 9:430 and 9:431 in their entirety. Former § 9:430 pertained to penalties, and derived from Ord. No. 8206, adopted September 10, 1986; Ord. No. 8391, adopted April 22, 1987; and Ord. No. 9030, adopted December 13, 1989. Former § 9:431 pertained to severability and derived from the aforementioned Ord. Nos. 8206, 8391, and 9030.

CHAPTER 10. CHARITABLE GAMING ORGANIZATIONS*

PART I. IN GENERAL

Sec. 9:450. Definitions.

The following definitions are an integral part of this chapter and should be used accordingly.

(a) *Bingo:* A game played for prizes with cards bearing numbers or other designations, five (5) or more in one (1) line, the holder covering numbers, as objects, similarly numbered, are drawn from a receptacle and the game being won by the person who first covers a previously designated arrangement of numbers on such a card.

(b) *Raffle:* A game played by drawing for prizes or the allotment of prizes for chance, by the selling of shares or tickets or rights to participate in such game or games and by conducting the game or games accordingly.

(c) *Electronic video bingo:* A machine which plays the game of bingo similar to a manual bingo game except that the machine employs a random number generator that replaces the drawing of

*__Editor's note—__Chapter 10, formerly entitled "Charitable Bingo," was formerly reserved. The editor has included parts I—III of Ord. No. 9190, adopted Nov. 28, 1990, effective Jan. 1, 1991, as §§ 9:450—9:479.

Cross reference—Gambling, § 13:90.

State law reference—Charitable raffles, bingo and keno licensing law, R.S. 33:4861.1 et seq.

numbered objects from a receptacle and may play "cover all bingo" in which all numbers of the card must be covered.

(d) *Pull tabs:* Single or banded tickets or cards with a covered or concealed face containing one (1) or more numbers or symbols where one (1) or more in each set has been designated in advance as a winner.

(e) *Division:* The gaming enforcement division of the parish.

(f) *Charitable gaming organization:* Any bona fide nonprofit veterans', charitable, educational or religious organization licensed to conduct specific games of chance in the parish.

(g) *Commercial hall lessor:* For the purpose of this chapter, a commercial lessor is defined as a person, partnership, corporation or other group or association who owns an interest in or is the lessor of premises offered for the purpose of conducting charitable games of chance on those premises. The term does not include a person convicted of a felony, criminal fraud or a crime of moral turpitude, or a person married to a person convicted of such crimes.

Nothing herein shall require an organization which is permitted to conduct charitable games of chance to obtain a commercial lessor's license to lease premises owned or occupied by it to another permitted organization provided that the lessee organization conducts its games within such premises. Further, an organization which is permitted to conduct charitable games of chance on premises which are owned, leased, rented or otherwise occupied by the organization shall not be required to obtain a commercial lessor's license for such premises if the premises are predominantly and on a regular basis used for nonprofit purposes other than the conduct of charitable games of chance.

(h) *Gaming supplies distributor:* A person, partnership or corporation currently licensed by the state division of charitable gaming and the gaming enforcement division to sell charitable gaming supplies to licensed organizations.

(i) *Electronic video bingo company:* A person, partnership or corporation currently licensed by the state division of charitable gaming and the gaming enforcement division to lease electronic video bingo machines to charitable gaming organizations.

(j) *Gross receipts:* All revenue generated by a charitable gaming organization derived directly or indirectly from bingo or raffles.

(k) *Gross profit:* Net revenue remaining on books of charitable gaming organizations after prizes are awarded and before expenses are deducted.

(l) *Net profit:* Net revenue remaining on books of charitable gaming organizations after prizes are awarded and expenses are deducted. Also considered to be net proceeds or cash available to charity.

(m) *Regulatory fee:* A regulation fee based on a percentage of gross receipts from bingo and net receipts on pull tabs assessed charitable clubs by the division in order to generate funds to enable the division to regulate charitable gaming in the parish.

(n) *School:* An educational institution domiciled in the parish and recognized and accredited by the parish school board.

(o) *Casino night and Las Vegas night:* A charitable fundraising event sponsored by a licensed charitable organization pursuant to R.S. 4.701 et seq. and local ordinance.

(p) *Nepotism:* No member of the immediate family of an agency head shall be employed in his agency. For purposes of this chapter: Agency head shall mean the designated operator or member in charge of the game. Immediate family shall mean children, brothers, sisters, parents, spouse and the parents of a spouse, in accordance with R.S. 42:1102(13).

(q) *Director.* The director of gaming enforcement division.

(Ord. No. 9190, pt. III, § 1, 11-28-90; Ord. No. 9392, pt. III, § 1, 2-12-92; Ord. No. 9585, pt. III, § 1, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:451. Qualifications of licensees.

The provisions of any other ordinance or regulation of the city-parish to the contrary notwithstanding, upon being granted a license from the division, it shall be lawful for any bona fide nonprofit veterans', charitable, educational or religious organization to hold and operate the specific kind of game or games of chance commonly known as raffles, "casino night" or "Las Vegas night," and the game of chance commonly known as bingo, when the entire net proceeds of such games are to be devoted entirely to educational, charitable or religious uses within the state.

(Ord. No. 9190, pt. I, § 1, 11-28-90; Ord. No. 9392, pt. I, § 1, 2-12-92; Ord. No. 9585, pt. I, § 1, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:452. Requirements of licensees.

All charitable gaming organizations requesting licensure must meet the requirements of this section.

(a) *Domiciled in Louisiana:* All organizations must have been domiciled in the state not less than two (2) years and have been authorized to conduct charitable fund-raising activities within the state.

(b) *Proof of nonprofit tax-exempt status:* All applicants for permits under this section shall file with their application proof of nonprofit tax-exempt status recognized by the Internal Revenue Service.

(c) *Designation of active member(s):* In each application there shall be designated an active member(s) of the organization under whom the game(s) of chance described in the application are to be held, operated and conducted. A statement must be executed by the applicant and the member(s) so designated that he or they shall be responsible for the holding, operating and conducting of such game or games of chance in accordance with the terms of the license and provisions of the rules and regulations governing the holding, operating and conducting of such game(s) of chance and of this chapter, that the designated operator (member in charge) shall be on the premises the entire time charitable gaming is being conducted, and the operator shall provide to the investigator assigned to the game(s) that day a list of all workers and their duties. The worker list and duties shall be provided to the investigator prior to the start of the game.

(d) *Dedication of net proceeds:* The entire net proceeds of such game(s) of chance are to be devoted entirely to charitable, educational, religious, or public-spirited uses.

(1) No proceeds of such game(s) of chance shall be used in any manner for election campaign contributions.

(2) A complete description of all prizes to be given in such games of chance shall be submitted as prescribed by such rules and regulations.

(e) *Identification of lessors:* The names and addresses of the owner or owners of the premises where the games of chance are to be operated must be submitted.

(1) If owned by a corporation, the names and addresses of the officers and stockholders of the corporation, including a list containing the names and addresses of all of its officers and members.

(2) The only exception to this provision shall be in the case of churches or synagogues, which are required to submit the names of those people responsible for the operation of the game of chance, along with the names of all persons who would be working in conjunction therewith.

(f) *Investigation of applicants:* The division shall make an investigation into the qualifications of each applicant to determine the following:

(1) If the organization applying is qualified to hold, operate and conduct game(s) of chance under the provisions of this chapter.

(2) Determine if the member(s) of the organization designated in the application are active members of the organization, of good moral character, and have never been convicted of a felony.

(g) *Eligibility of persons to conduct games of chance:* No person shall hold, operate or conduct or assist in holding, operating or conducting any game(s) of chance under any license issued under this chapter except an active member of the organization or association to which the license is issued. The following exceptions shall apply:

(1) Active members of one licensee shall be allowed to assist in the operating, conducting, or holding of another licensee's gaming activity; however, he may not act in a managerial capacity.

(2) No person who has acted in a managerial capacity for any organization whose license has been suspended or revoked can assist any other charitable gaming organization.

(h) *Definition of workers in a managerial capacity:* For the purpose of definition, workers in a managerial capacity are those who:

(1) Are in charge of the game.

(2) Are responsible for filling out forms or paperwork.

(3) Are responsible for the money or money counts.

(4) Act as caller during a bingo game.

(Ord. No. 9190, pt. I, § 2, 11-28-90; Ord. No. 9392, pt. I, § 2, 2-12-92; Ord. No. 9585, pt. I, § 2, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:453. Application; fees.

All organizations requesting a charitable gaming license must file an application and pay the fifty dollars ($50.00) fee to the division. The fee is nonrefundable and will become the license fee at the time the organization receives a license. The application will be filed on the form prescribed by the division.

(Ord. No. 9190, pt. I, § 3, 11-28-90; Ord. No. 9392, pt. I, § 3, 2-12-92; Ord. No. 9585, pt. I, § 3, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:454. Licensing procedure.

(a) *Generally:* Each applicant for a license shall file with the division a written application in the form prescribed in rules and regulations promulgated and duly executed. The following shall be stated:

(1) The name and address of the applicant with sufficient facts relating to its incorporation and organization to enable the division to determine whether or not it is a bona fide organization or association.

(2) Proof of nonprofit tax-exempt status recognized by the Internal Revenue Service.

(3) The specific kind of game(s) of chance intended to be held, operated or conducted by the organization.

(4) The place(s) where and the date(s) and the time(s) when such game(s) of chance are intended to be conducted by the applicant.

(5) The items of expense intended to be incurred or paid in connection with the holding, operating and conducting of such game(s) of chance will be listed with the names and addresses of the persons to whom they are to be paid.

(6) Membership lists must be updated to add new members and officers as the changes occur and prior to their participating in any gaming activity.

(7) The intended use of net proceeds for charitable purposes.

Any organization meeting all requirements of state and local gaming laws shall be issued a local license. If for any reason any organization is denied a license by the division, the division shall notify the applicant in writing of the withholding of the permit or license and shall assign the reasons therefor. Such notice shall be either delivered to the applicant in person or sent to him by registered mail at the business address given in his last application. When so addressed and mailed, it shall be conclusively presumed to have been received by the applicant. Any organization denied a license is automatically entitled to appeal to the director and shall be advised of such in writing at the time of denial. The director shall have absolute authority to override the denial by the division.

Upon issuance of a license to any organization by the division, the name of such organization and the officers thereof shall be provided to the Director.

(b) *License format:* Each license shall be in such form as in the rules and regulations promulgated by the division. The licenses shall contain at a minimum the following information:

(1) A description of the kind(s) of game(s) of chance authorized to be held, operated and conducted.

(2) A statement with the name and address of the licensees and member(s) under whom such game(s) of chance will be held, operated and conducted.

(3) The number of times and the hours during which such game(s) of chance are to be conducted.

(4) The location, date(s) and time(s) when such game(s) of chance are to be conducted.

(5) Any other information which may be required by the division.

Each license issued for the conduct of any game of chance shall be conspicuously displayed at the location where any game is to be conducted at all times.

(c) *Licensing period:* No license for any games of chance issued under this section shall be effective for a period of more than one (1) year from the effective date on the license. In any event all gaming licenses expire on the thirtieth day of June in any calendar year.

(d) *Special game license:* Additionally, two (2) games per month, at each bingo facility, may be for a prize not to exceed fourteen thousand dollars ($14,000.00). Said games shall be awarded based on the order the division receives written or faxed requests, first come, first served. Organizations which are licensed to conduct a fourteen thousand dollar ($14,000.00) special game may disburse the fourteen thousand dollar ($14,000.00) payout during the session as they desire. The payout schedule and the proposed price list with paper configuration shall accompany a special license request, and must be approved by the gaming enforcement division, and the total payout shall not exceed fourteen thousand dollars ($14,000.00).

(e) *Amendments of licenses:* Any license issued under this chapter may be amended upon written application to the division, providing the subject matter of the proposed amendment could lawfully and properly have been included in the original license. Any changes by a club to its license must be pre-approved by the division. This includes, but is not limited to, changes in membership and/or officers, the kind(s) of game(s) of chance, the change of playing dates, times, locations, and requests for special games. At no time shall a member or officer not on the list filed with the division participate in a bingo game.

(f) *Control, supervision and suspension of licenses:* The division, through the city/parish, issuing any license under this chapter shall have and exercise control and supervision over all games of chance to the end that the same are fairly held, operated and conducted. In accordance with the provisions of such license, the rules and regulations promulgated by the city or parish and the provisions of this chapter and R.S. 4:701 et seq., the director shall have the power and authority to suspend or revoke any license issued after a hearing. The division shall, by its officers and agents, have the right of entry at all times into any premises where any such game of chance is being held or is intended to be held, or where any such equipment and/or supplies being used or intended to be used in the conduct thereof is found, for the purpose of inspecting the same. The director shall have the authority to temporarily suspend a gaming license when in his opinion the public health, safety or welfare is in jeopardy. The director shall hold a hearing in accordance with section 9:464 on any temporary suspension when requested by the organization.

(g) *Revocation of licenses:* It shall be unlawful for any organization whose license has been revoked or denied to hold, operate or conduct charitable games of chance within the parish or assist in the holding, operating or conducting of any charitable game of chance on behalf of, in connection with, or for the benefit of any other organization. The prohibition contained herein shall extend to the officers and those individuals listed in the application of any organization denied such a permit or license.

(h) *Right of appeal:* Any organization whose license is permanently suspended hereunder shall have the right to appeal to the district court within fifteen (15) days of the suspension.
(Ord. No. 9190, pt. I, § 4, 11-28-90; Ord. No. 9392, pt. I, § 4, 2-12-92; Ord. No. 9585, pt. I, § 4, 2-24-93; Ord. No. 14100, § 1, 8-8-07; Ord. No. 15996, § 1, 6-10-15)

Sec. 9:455. Financial reports and fees.

(a) *Required:* On the seventh day following gaming activity, the member or members who were in charge shall furnish to the division a

completed SGR-1 gaming report for the previous game. The report shall provide at least the following information:

(1) The amount of the gross receipts from the sale of shares, tickets or rights in any manner connected with participation in said game.

(2) The total amount of prizes awarded at the game, including cash and checks written.

(3) The gross profit derived from each such game of chance.

(4) A valid copy of current processed deposit slip.

(5) A completed PT1-1 pull tab information sheet.

It shall be the duty of each licensee to maintain and keep such books and records as may be necessary to substantiate the particulars of each such report.

(b) *Right of examination or audit:* The division shall have the power to examine or to cause to be examined the books and records of any organization or association to which such license is issued so far as they may relate to any transactions connected with the holding and conducting of any game of chance, and examine any manager, officer, director, agent, member or employee thereof under oath in relation to the conduct of any such game of chance. Information received may not be disclosed except so far as may be necessary for the purpose of carrying out the provisions of this chapter. Additionally, the division shall conduct a full annual audit of each licensee's books and records subject to review and evaluation by city-parish outside auditor and/or city-parish internal auditor, and inspect each licensee's property leases, so far as they may relate to any transaction connected with the holding and conducting of any game of chance.

(c) *Audit fees/consent statement:* The division shall absorb the cost of auditing the licensee's books and records in its annual budget. Failure to cooperate with the division in conducting the annual audit shall result in the revocation of the license of any organization or association. A signed statement consenting to such full annual audits shall be required on a form provided by the division prior to the granting or renewal of any license.

(d) *Assessment:* Each organization licensed to conduct games of chance shall remit the applicable regulatory fee shown in section 9:464 to the division for the funding of an investigative team which shall examine the operation of games of chance under the authority of the division. The assessment shall be used by the division or any other permanent department deemed necessary by the metropolitan council to handle the correspondence and/or supervision of gaming. The assessment shall be due monthly on the last day of each month following gaming activity. All fees and assessments under this chapter shall be paid directly to the division, which will be responsible for depositing these funds with the city-parish department of finance.

(e) *Consecutive losses:* Any organization showing a loss for three (3) consecutive games or any three (3) months (three (3) or more games) in a calendar year may forfeit its license for a period of one (1) year.

(Ord. No. 9190, pt. I, § 5, 11-28-90; Ord. No. 9392, pt. I, § 5, 2-12-92; Ord. No. 9585, pt. I, § 5, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:456. Gaming regulations, requirements, prohibitions.

All charitable gaming organizations licensed in the parish shall adopt internal procedures and forms to assure compliance with the regulations, requirements and prohibitions of this chapter and R.S. 4:701 et seq.

(a) *Initial price of tickets of shares:* The price of the initial share or ticket booklet sold per session shall not be less than ten dollars ($10.00), except that the price of the initial share or ticket booklet purchased by elderly or senior citizens (64 years of age or older, verified by valid identification) shall be eight dollars ($8.00).

(b) *Electronic video bingo:* It shall be lawful for an organization to use electronic or video machines, hereafter termed "electronic bingo machines," after having received a license from the division. These

machines shall be for public playing of bingo at any location licensed under this part for charitable bingo, provided that all requirements of this section not in conflict with the provisions of this chapter are met. Any such electronic bingo machine shall be subject to the following requirements and restrictions concerning its operation and use:

(1) The cost of each game played shall be not less than one (1) quarter nor more than four (4) quarters.

(2) Payout shall be not less than eighty (80) percent and not more than ninety (90) percent of the total amount wagered.

(3) The maximum prize awarded shall be not more than one thousand dollars ($1,000.00) per game.

(4) A machine shall dispense no cash, only tickets verifiable as valid indicating the prize amount.

(5) A machine shall play the game of bingo as described in R.S. 4:707, except that a random number generator in the machine shall replace the drawing of numbered objects from a receptacle, and may play "cover-all bingo" in which all numbers of the card must be covered.

(6) A machine shall allow the player a choice of cards on which to play and must show a "bingo" at the end of play.

(7) A machine shall allow only a linear-based payout in which the amount of the payout follows a straight line progression in direct proportion to the amount wagered.

(8) A machine shall provide for an electronic readout giving, at a minimum, a summary of total amount wagered, total plays, total payout, and current prize allotment since the last date of summary or the last date of reset of the machine.

An electronic bingo machine may be leased by any holder of a bingo license issued pursuant to this section. Only cash prizes may be awarded winners of games on an electronic bingo machine. Net proceeds (after prizes awarded) will be divided equally between the machine distributor and charitable gaming clubs. The entire net proceeds from the use of electronic bingo machines are to be devoted to educational, charitable, religious, or public-spirited purposes.

(c) *Pull tabs:* The entire net proceeds from the use of pull tabs are to be devoted to educational, charitable, religious, or public-spirited uses.

(1) Pull tabs: No organization, distributor, or manufacturer or any representative licensed hereunder, either with knowledge or circumstances where he reasonably should have known, shall possess, display, put out for play, sell, or otherwise furnish to any person any deal of pull tabs:

a. In which the winning pull tabs have not been completely and randomly distributed and mixed among all other pull tabs in the deal;

b. In which the location or approximate location of any of the winning pull tabs can be determined in advance of opening the pull tabs in any manner or by device, including but not limited to any pattern in the manufacture, assembly or packaging of pull tabs by the manufacturer, by any markings on the pull tabs or container or by the use of a light; or

c. Which does not conform in any respect to these requirements as to manufacturer, assembly, or packaging.

(2) No distributor shall purchase or be furnished any deals for pull tabs

from a manufacturer of pull tabs unless all of the following conditions are met:

a. The manufacturer's label or trademark has been registered with the office of state police.

b. Each individual pull tab manufacturer has conspicuously set forth on it the name of the manufacturer or a label or trademark which identifies its manufacturer.

c. The pull tab is of a type approved by the office of state police for use in the state and is approved by the division prior to first sale in the parish.

d. Which have a payout of more than eighty-five (85) percent.

(d) *Commercial hall rental:*

(1) No organization shall be granted a license to hold a game of chance where the amount of rental is in excess of six hundred dollars ($600.00) per session. The director of gaming enforcement may revoke any license where an organization pays over six hundred dollars ($600.00) per session for rent. Notwithstanding the provisions of this section, any organization licensed under this chapter shall pay the established nonprofit rate when utilizing the Baton Rouge River Center.

(2) Hall cleanup: A per game/session charge for clean-up shall not exceed one hundred dollars ($100.00).

(e) *Security officers:* All charitable gaming clubs will be required to hire licensed, commissioned law enforcement officers or private security guards licensed pursuant to state law to provide security when they conduct licensed bingo games. If a club plays bingo at its own facility and does not normally hire security, this rule would not apply.

(f) *Security fees/method of payment:* Any security fee paid by an organization shall not exceed the amount established by the rules and regulations of the parish sheriff's office regarding public gatherings. All payments for security shall be paid directly by the licensed organization to the commissioned officers on duty or to the private security company. The director of gaming enforcement may revoke any license where an organization pays for security in excess of the rates so established by the sheriff's office or makes any payment for the provision of security other than to the commissioned officer on duty or the private security company.

(g) Number of sessions per month: No game(s) of chance shall be held, under any license issued under this chapter, more often than twenty (20) sessions per month. In any event, no game(s) of chance shall be held more often than twenty (20) days per month.

(h) *Maximum prize awards/bingo:* The total payout per session shall not exceed four thousand five hundred dollars ($4,500.00) for a regular game and ten thousand five hundred dollars ($10,500.00) for a special game.

(i) *Door prizes:* Door prizes may be given away and included in total dollar amount of prizes awarded; however, at no time may the value exceed two hundred dollars ($200.00) per day. The door prizes must be listed on the game report by description, value, and name and address of winner.

(j) *Compensation of workers prohibited:*

(1) No such game(s) of chance shall be conducted with any equipment except such as shall be owned absolutely or used without payment of any compensation therefor by the licensee.

(2) No item of expense shall be incurred or paid in connection with the holding, operating or conducting of any game of chance pursuant to any license issued under this chapter ex-

cept such as are bona fide items of merchandise furnished or services rendered.

(3) Items must be reasonable, and apparently necessary to the holding, operating or conducting of game(s) of chance.

(4) Any association, or corporation licensed to hold, operate, or conduct any games of chance under any license issued pursuant to this chapter and R.S. 4:715 may compensate for services rendered, any fifteen (15) employees who assist in the holding, operating, or conducting of such games. The rate of compensation shall be no more than ten ($10.00) per hour, and in any event shall not exceed fifty ($50.00) per session for any employee. Each worker may also be provided meals and beverages not to exceed a total value of fifteen dollars ($15.00) to be consumed on the premises. Payment of workers must comply with R.S. 42:1119 on nepotism.

(k) *Compensation for visually/hearing impaired gaming clubs:* Notwithstanding any provisions of this chapter to the contrary, it shall be permissible for visually/hearing impaired gaming clubs to compensate up to fifteen (15) workers a maximum of fifty dollars ($50.00) per game.

(l) *Variety of bingo games:* It shall be lawful for an organization to play any variety of bingo that has been approved by the division and the state. Such approval will not be granted until proper control procedures have been adopted to the satisfaction of the division.

(Ord. No. 9190, pt. I, § 6, 11-28-90; Ord. No. 9392, pt. I, § 6, 2-12-92; Ord. No. 9442, § 1, 6-10-92; Ord. No. 9585, pt. I, § 6, 2-24-93; Ord. No. 14100, § 1, 8-8-07; Ord. No. 14586, § 1, 2-11-09; Ord. No. 15367, § 1, 8-8-12)

Sec. 9:457. Exception for church or school raffle.

Notwithstanding any provision of this chapter to the contrary, any church or school within the city and parish shall be permitted to hold and operate a maximum of two (2) raffles per year without contributing the established regulatory fee detailed in section 9:464 for the funding of an investigative team as hereinabove required. The application/license must be preapproved with a fee of fifty dollars ($50.00), all raffle tickets shall be imprinted that the raffle has been approved by the division, and a financial report is required to be filed as specified in section 9:455.

(Ord. No. 9190, pt. I, § 7, 11-28-90; Ord. No. 9392, pt. I, § 7, 2-12-92; Ord. No. 9585, pt. I, § 7, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:458. Raffle exemption for gaming organizations other than church or school that do not conduct regularly scheduled bingo games.

Any organization that meets all of the following requirements will be exempt from the established regulatory fee as detailed in section 9:466:

(1) The gross receipts from all of the organization's raffles for the year will not exceed ten thousand dollars ($10,000.00).

(2) Would qualify to conduct charitable gaming under Louisiana law and the parish ordinance in effect at time of application.

(3) All net proceeds are dedicated to charitable purposes allowable pursuant to R.S. 4:701 et seq.

(4) The raffle is not conducted at a time and place other games of bingo allowed under this chapter are being conducted.

(5) The organization files an application for a license and remits the fifty dollars ($50.00) fee to the division, receives a license, and imprints all raffle tickets with division approval.

If an organization exceeds the dollar limitation in requirement (1) above, then it shall file the required financial report and remit the regulatory fee on the entire dollar amount in excess of ten thousand dollars ($10,000.00) to the division.

(Ord. No. 9190, pt. I, § 8, 11-28-90; Ord. No. 9392, pt. I, § 8, 2-12-92; Ord. No. 9585, pt. I, § 7-1, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:459. Las Vegas/casino nights.

Notwithstanding any provision of this chapter to the contrary, any church or school within the city and parish shall be permitted to hold and operate a maximum of two (2) Las Vegas/casino nights per year without contributing the established regulatory fee detailed in section 9:466 for the funding of an investigative team as hereinabove required. The application/license must be preapproved with a fee of fifty dollars ($50.00), all admittance tickets must be imprinted that the event has been approved by the division, and a financial report is required to be filed as specified in section 9:455.
(Ord. No. 9585, pt. I, § 8, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:460. Las Vegas/casino nights exemption for gaming organizations other than church or school that do not conduct regularly scheduled bingo games.

Any organization that meets all of the following requirements will be exempt from the established regulatory fee as detailed in section 9:466:

(1) The gross receipts from all of the organizations Las Vegas/casino nights for the year will not exceed ten thousand dollars ($10,000.00).

(2) Would qualify to conduct charitable gaming under Louisiana law and the parish ordinance in effect at the time of application.

(3) All net proceeds are dedicated to charitable purposes allowable pursuant to R.S. 4:701 et seq.

(4) The Las Vegas/casino night is not conducted at a time and place other games of bingo allowed under this chapter are being conducted.

(5) Files an application for a license and remits the fifty dollar ($50.00) fee to the division, receives a license, and imprints all event tickets with division approval.

If an organization exceeds the dollar limitation in requirement (1) above, then it shall file the required financial report and remit the regulatory fee on the amount in excess of ten thousand dollars ($10,000.00), to the division.
(Ord. No. 9585, pt. I, § 8-1, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:461. Penalty provisions.

(a) *Violations:* All charitable gaming organizations, including hall operators, suppliers, and video bingo distributors, shall be required to adhere to all requirements in this chapter and R.S. 4:701 et seq. Any person or organization in violation will be subject to the penalties given in this section.

(b) *Violations of R.S. 14:90:* Any person or organization who violates the following:

(1) Anyone who makes a false statement in any application;

(2) Fails to keep such books and records as shall fully and truly record all transactions connected with the operating of any games of chance;

(3) Falsifies or makes any false entry in any books or records so far as they relate to any transaction connected with the conducting of any game of chance under any such license;

(4) Permits unlicensed gaming on the premises of the licensee;

(5) Violates any of the provisions of this chapter or of any term of such license;

shall be a disorderly person, and if convicted shall, in addition to suffering any other penalties which may be imposed, forfeit any license issued under this chapter, and shall be ineligible to apply for a license under this chapter for one (1) year thereafter.

(c) *Violations of raffle, Las Vegas/casino night provisions:* Any group or person failing to follow the requirements of section 9:457 and/or 9:458 may be subject to forfeiture of all monies and prizes from the raffle, Las Vegas/casino night and may have their license revoked.

(d) *Payments and fines for nonpayment:* The licensee shall pay to the division all license fees due hereunder, which license fees shall be paid, in advance, on or before the first day of January 1993, and annually thereafter. Any activities conducted requiring such license by the proposed licensee who has not obtained such license for the current year shall subject the conductor or conductors of such activities to the criminal penalties to which the conductors of unlicensed gaming, etc., as described in this chapter, are subject. In addition to those criminal penalties, if payment for such license is not received by the division by the first day of January in the year for which the license would be applicable, an additional sum of eight (8) percent per month of the total due may be imposed as a penalty by the division.

(e) *Reporting violations:* Any organization or association failing to timely file a report or pay the regulatory fee as required may be assessed one hundred dollars ($100.00) as a late fee. Failure to either subsequently file the required report or pay the one hundred dollars ($100.00) fee for filing late, shall result in the revocation of the license held by the organization or association. Additionally, any organization or association failing to timely file required reports as outlined in section 9:455 shall thereby forfeit its license to operate in this parish.

(f) *Suspension of licenses:* The gaming control board may suspend the license of any organization for a period of up to ninety (90) days for violation of section 9:454 (d) or 9:456(g), (h) or (i) for the first offense. An organization, determined by the gaming control board to have committed a violation for a second time, shall forfeit its license to operate for a period of one (1) year.

(g) *Maximum penalty:* Whoever is found guilty of violation of any of the provisions of this chapter shall be fined not more than five hundred dollars ($500.00), imprisoned in the jail for not more than six (6) months, or both, at the discretion of the court.

(Ord. No. 9190, pt. I, § 9, 11-28-90; Ord. No. 9392, pt. I, § 9, 2-12-92; Ord. No. 9585, pt. I, § 9, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Note—Formerly, § 9:459.

Sec. 9:462. Immunity from prosecution.

No person, association or corporation:

(1) Possessing, selling or in any manner disposing of, in the city or parish, any shares, tickets or rights to participate in any game(s) of chance conducted or to be conducted under any license lawfully issued pursuant to this chapter;

(2) Lawfully conducting or participating in the conduct of any such game of chance; or

(3) Permitting the conduct of any such game of chance upon premises owned by him or it, or any game of chance conducted or to be conducted under any license lawfully issued pursuant to this chapter; shall be liable to prosecution or conviction for violation of any provision of R.S. 14:90. However, this immunity shall not extend to any person or corporation knowingly conducting or participating in the conduct of any game of chance under any license obtained by any false pretense or statement made in any application for such license, or possessing, selling or disposing of shares, tickets or rights to participate in or permitting the conduct upon any premises owned by him or it of any game of chance conducted under any license known to him or it to have been revoked or to have been obtained by any such false or fraudulent pretense or statement.

(Ord. No. 9190, pt. I, § 10, 11-28-90; Ord. No. 9392, pt. I, § 10, 2-12-92; Ord. No. 9585, pt. I, § 10, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Note—Formerly, § 9:460.

Sec. 9:463. Enforcement authority.

The division, subject to the approval of the metropolitan council, is hereby authorized to promulgate, distribute and enforce all necessary accounting and record-keeping regulations to be adhered to by all charitable gaming licensees that are necessary to administer and enforce this chapter. The accounting and record-keeping requirements adopted administratively will be in accordance with generally accepted accounting

principles subject to review by the city-parish outside auditor and/or city-parish internal auditor.

In addition to the accounting administrative regulations shown above, the division shall also be empowered to established and promulgate administrative rules and regulations necessary to enforcement of charitable gaming provided substantive changes in this chapter are not made.
(Ord. No. 9190, pt. I, § 11, 11-28-90; Ord. No. 9392, pt. I, § 11, 2-12-92; Ord. No. 9585, pt. I, § 11, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Note—Formerly, § 9:461.

Sec. 9:464. Authority of director of gaming enforcement.

(a) *Powers:* The specific powers of the director include but are not limited to the following:

(1) The authority to revoke or suspend all permits or licenses issued under this chapter as he deems necessary subject only to compliance with specific provisions of this chapter and subject only to review by the courts of the state as is hereafter provided.

(2) The director shall specifically have the right to warn a permit holder or licensee in lieu of revoking or suspending any permit issued.

(3) The director, appointed by the parish attorney, may appoint or employ such legal counsel, investigators, special agents or field representatives as prescribed by the council, and may compensate such personnel under conditions and terms prescribed by the council, and the "Plan of Government of the Parish of East Baton Rouge and City of Baton Rouge."

(4) The director shall have the authority to assess costs of proceedings against permit holders of licensees who are found by the board to have violated provisions of this chapter.

(5) The director shall have the power in the discharge of his duties to issue subpoenas to any person, which subpoena may require the person, subject or entity subpoenaed to physically appear and may require that the subject or entity produce documents, records, invoices, receipts, contracts, agreements, employment records and information, and any financial information or record which pertains to the subject of any complaint, hearing or proceeding of the board. Any objection to the legality or issuance of a subpoena for persons, entities, documents, records or information may be raised at the time of its issuance, either before the board or in a court of proper jurisdiction.

(6) It shall be unlawful for any person to fail to obey any subpoena compelling attendance or the production of documents; and the director may, by motion to the 19th Judicial District Court or the City Court of Baton Rouge, as the case may be, obtain an order to enforce compliance with its subpoena process.

(b) *Procedure for appealing denial of license or temporary suspension by the division:*

(1) Upon request by an organization denied a license or an organization whose license is temporarily suspended under section 9:454, the director shall hold a hearing on such denial within fifteen (15) days of the decision to withhold or suspend the license.

(2) The temporary suspension of any license becomes a permanent suspension following a hearing by the director and a decision to uphold the suspension.

(3) Following a hearing, all decisions by the director are final.

(4) Any organization whose license is permanently suspended hereunder shall have the right to appeal to the district court within fifteen (15) days of the suspension.

(c) *Emergency orders:* The director of gaming enforcement division shall have the authority to issue emergency orders to make exceptions to any ordinance governing gaming control subject to review by the metropolitan council.

(Ord. No. 14100, § 1, 8-8-07)

Editor's note—Ord. No. 14100, § 1, adopted August 8, 2007, amended the Code by repealing former § 9:464, and

adding a new § 9-464. Former § 9-464 pertained to creation of the gaming control board, and derived from Ord. No. 9190, adopted November 28, 1990; Ord. No. 9392, adopted February 12, 1992; and Ord. No. 9585, adopted February 24, 1993.

Sec. 9:465. Rebate provisions.

At the end of calendar year 1993 and annually thereafter, surplus funds from regulatory fees in excess of three (3) months' operating expenses of the division shall be refunded to gaming organizations based on a pro rata allocation of regulatory fees paid by each organization.
(Ord. No. 9190, pt. I, § 13, 11-28-90; Ord. No. 9392, pt. I, § 13, 2-12-92; Ord. No. 9585, pt. I, § 13, 2-24-93; Ord. No. 14100, § 1, 8-8-07)
Note—Formerly, § 9:463.

Sec. 9:466. Gaming enforcement division regulatory fee and report due dates.

The division will assess and bill charitable gaming clubs a regulatory fee of one and one-half (1.5) percent on bingo gross receipts and pull tab net receipts on a monthly basis. The bill will be due and payable on the twentieth day of the month following gaming activity.

The division will assess and bill electronic video bingo distributors a regulatory fee of five percent (5%) on electronic video bingo gross profits after prizes are awarded on a monthly basis. The bill will be due and payable on the twentieth day of the month following gaming activity.
(Ord. No. 9190, pt. I, § 14, 11-28-90; Ord. No. 9392, pt. I, § 14, 2-12-92; Ord. No. 9585, pt. I, § 14, 2-24-93; Ord. No. 14100, § 1, 8-8-07)
Note—Formerly, § 9:464.

PART II. COMMERCIAL VENDORS

Sec. 9:470. License or registration required.

All commercial vendors having an interest in charitable gaming in the parish shall be required to file an application for a license or register with the division as applicable prior to conducting business. Vendors include but are not limited to commercial hall lessors, gaming supplies distributors, and electronic video bingo companies. Commercial vendors are subject to all penalty provisions contained in section 9:462.
(Ord. No. 9190, pt. II, § 1, 11-28-90; Ord. No. 9392, pt. II, § 1, 2-12-92; Ord. No. 9585, pt. II, § 1, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:471. Application; fee.

All commercial vendors shall file an application with the division. Commercial hall lessors and electronic video bingo companies shall pay five hundred dollars ($500.00), with the application, which is nonrefundable, and will become the license fee when approved. Gaming supplies distributors will be registered in the parish with no fee required. Applications for registration or licensing will be on forms prescribed by the division.
(Ord. No. 9190, pt. II, § 1-1, 11-28-90; Ord. No. 9392, pt. II, § 1-1, 2-12-92; Ord. No. 9585, pt. II, § 1-1, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:472. Qualifications of commercial vendors.

All vendors legally authorized or licensed to operate in the state and the parish are qualified to do business with charitable gaming organizations.
(Ord. No. 9190, pt. II, § 1-2, 11-28-90; Ord. No. 9392, pt. II, § 1-2, 2-12-92; Ord. No. 9585, pt. II, § 1-2, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:473. License or registration requirements.

Commercial vendors shall meet all requirements shown in the following subsections based on class of vendor.

(1) *Commercial hall lessor:* Hall lessors must provide the following documents and meet the following minimum requirements:

a. If the applicant is a corporation, the application should list the names and addresses of all officers, directors, and stockholders.

b. If the applicant is a partnership, the application should list the names and addresses of all partners, either general or limited.

c. The address of the commercial premises to be offered for lease, which must be located more than five (5) miles from any existing bingo hall in current operation.

d. A copy of all lease or rental agreements.

e. The proposed schedule of games to be played by the applicant or games to be played at the applicant's facilities.

f. A duly executed affidavit by the applicant or its authorized representative, attesting to the fact that the applicant is familiar with this Code of Ordinances, specifically those provisions pertaining to the operation of charitable games of chance within the parish, those provisions dealing with the necessity of securing a permit to operate charitable games of chance in the parish, and those provisions pertaining to the compensation allowable to a commercial lessor under this Code of Ordinances; and authorizing the division access and inspection of hall facilities, accounting books, records, and equipment.

g. In no event shall a license be granted to a commercial operator to operate a bingo hall unless the location is more than five (5) miles away from an already existing bingo hall in current operation.

h. Under no circumstances shall the hall owner, manager(s) or hall employees participate in a licensed charitable bingo game, other than the normal functions of hall operation.

(2) *Commercial video bingo companies:* Video bingo companies shall provide the following required documents and meet the following minimum requirements for registration:

a. If the applicant is a corporation or partnership the application should list the names and addresses of all officers, directors and stockholders of the corporation or the partners in the partnership.

b. The address of the commercial location of the leased machines and the serial number of the machines at that location.

c. Manufacturers serial number and state police permit number for all leased machines.

d. Hard and soft meter readings at the time application is filed with the division and meter readings of all machines subsequently transferred in or out of a commercial hall.

e. Copy of current rental or lease agreements.

f. A duly executed affidavit by the applicant or its duly authorized representative granting consent for the division to audit all necessary accounting and equipment records related to transactions with charitable gaming organizations. This consent includes physical inspection and access to accounting records maintained within the electronic video bingo machines.

g. Prior notification to the division of all machines to be transferred in or out of commercial locations, along with the pertinent money counts or drops.

(3) *Commercial bingo supplies distributors:* Bingo supplies distributors must provide the following information and meet the following minimum requirements:

a. Current copy of state gaming supply distributors' license.

b. Name and address of officers, directors, and stockholders if a corporation, or partners if applicant is a partnership.

c. A duly executed affidavit granting consent to the division to inspect all necessary records related to transactions with charitable gaming clubs licensed or formerly licensed in the parish.

(Ord. No. 9190, pt. II, § 1-3, 11-28-90; Ord. No. 9392, pt. II, § 1-3, 2-12-92; Ord. No. 9585, pt. II, § 1-3, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:474. Investigation of applicants.

The division will review and investigate all information submitted by commercial vendor organizations on the written application form filed with the division. Any organization meeting all requirements of local and state bingo laws shall be duly registered or issued a local license.

If for any reason any organization is denied a license by the division, such organization is automatically entitled to a hearing before the director and shall be advised of such in writing at the time of denial. The director shall have absolute authority to override the denial by the division.
(Ord. No. 9190, pt. II, § 1-4, 11-28-90; Ord. No. 9392, pt. II, § 1-4, 2-12-92; Ord. No. 9585, pt. II, § 1-4, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:475. Licensing period.

Commercial vendor licenses are effective for one (1) year or less depending on the effective date. In any event all licenses will expire on the thirty-first day of December for any calendar year.
(Ord. No. 9190, pt. II, § 1-5, 11-28-90; Ord. No. 9392, pt. II, § 1-5, 2-12-92; Ord. No. 9585, pt. II, § 1-5; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:476. License format.

Commercial vendor licenses shall be in a standard form prescribed by the division.
(Ord. No. 9190, pt. II, § 1-6, 11-28-90; Ord. No. 9392, pt. II, § 1-6, 2-12-92; Ord. No. 9585, pt. II, § 1-6, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:477. Suspension of license; appeal right.

Any commercial vendor having his license suspended by the director shall have the same right of appeal as specified in section 9:454(h) for charitable gaming organizations.
(Ord. No. 9190, pt. II, § 1-7, 11-28-90; Ord. No. 9392, pt. II, § 1-7, 2-12-92; Ord. No. 9585, pt. II, § 1-7, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:478. Commercial hall compensation prohibited.

It shall be unlawful for any commercial lessor, or any employee, proprietor or agent of any commercial lessor licensed under this part, or the spouse of any of the above, to accept any form of compensation, either directly or indirectly, derived from the operation of charitable games of chance on the leased premises except for those items of expense pertaining to rent and cleanup as authorized by this Code of Ordinances and those funds derived from the sale of concessions by the commercial lessor.
(Ord. No. 9190, pt. II, § 1-8, 11-28-90; Ord. No. 9392, pt. II, § 1-8, 2-12-92; Ord. No. 9585, pt. II, § 1-8, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:479. Access authority.

The division shall have the right of access to accounting records, building and equipment, and machines owned and/or leased by commercial vendors.
(Ord. No. 9190, pt. II, § 1-9, 11-28-90; Ord. No. 9392, pt. II, § 1-9, 2-12-92; Ord. No. 9585, pt. II, § 1-9, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

Sec. 9:480. Right of examination/audit.

The division shall have the power to examine or cause to be examined the books and records of any commercial vendor to which such license or registration is granted so far as they may relate to any transactions connected with the holding and conducting of charitable games of chance. This power shall include the right to examine any manager, officer, director, agent, member, or employee thereof under oath in relation to the conduct of any such game of chance. Information received may not be disclosed by the division or

board except so far as may be necessary for the purpose of carrying out the provisions of this chapter.
(Ord. No. 9585, pt. II, § 1-10, 2-24-93; Ord. No. 14100, § 1, 8-8-07)

CHAPTER 11. ARBORISTS*

Sec. 9:490. Definitions.

(a) *Arborist:* Any person servicing trees for a fee on established residential or commercial property containing less than acreage other than one working on his own improved property in the parish or in the city, but specifically excluding persons engaged in clearing of rights-of-way for public utilities.

(b) *Person:* An individual, firm, association, partnership or corporation.

(c) *Shrub:* A woody plant with more than one (1) stem or trunk at the ground level.

(d) *Tree:* A woody perennial plant that has a single trunk or stem.

(e) *Tree Service:* Work performed on shade or ornamental trees, specifically excluding normal pruning of shrubbery, but including tree removal, shade and ornamental tree trimming and cavity work, and the fertilizing of shade and ornamental trees.

(f) *Director of Finance:* The director of finance of the city-parish or his duly authorized assistants.
(Ord. No. 9025, § 1, 12-13-89)

Sec. 9:491. Arborist's license.

It shall be unlawful for any person to solicit or engage within the parish or city in the business of servicing trees unless such person shall have first procured a license to do so from the office of the director of finance. This requirement is in addition to any other local licenses, and also in addition to the license required by the Horticulture Commission of the Louisiana Department of Agriculture. All persons holding an arborist's license issued pursuant to the terms of this chapter shall be responsible for the conduct of his employees as well as himself in fulfilling all requirements of this chapter. Any person doing business in violation of this section shall be guilty of a misdemeanor and, upon conviction, may be fined two hundred dollars ($200.00) or sentenced to sixty (60) days in jail or both, at the judge's discretion.
(Ord. No. 9025, § 2, 12-13-89)

*__Editor's note—__This chapter was formerly reserved. The editor has included the provisions of §§ 1—7 of Ord. No. 9025, adopted Dec. 13, 1989, effective Jan. 1, 1990, as §§ 9:490—9:496.

Sec. 9:492. Vehicles used in tree service.

All vehicles used in tree service shall be clearly marked with the name and city or parish license number of the person holding a valid arborist's license from the city or parish and the state.
(Ord. No. 9025, § 3, 12-13-89)

Sec. 9:493. Application for arborist's license.

(a) No arborist's license shall be issued to a person until that person shall have filed with the director of finance, in writing, an application therefor to be accompanied by a photostatic copy of that person's license issued by the Louisiana Horticulture Commission. The application shall give the exact location from which the business is to be conducted. The completed application, together with a copy of the license issued by the Louisiana Horticulture Commission, shall be forwarded by the director of finance to the director of the department of public works for review.

(b) No license shall be issued by the director of finance until the applicant shall have complied with all the requirements of this chapter and any future requirements affecting arborists that may be enacted by the metropolitan council and the state.
(Ord. No. 9025, § 4, 12-13-89)

Sec. 9:494. License not transferable.

It shall be unlawful to transfer any arborist license to any other person or for any arborist to knowingly allow any other person to use his license.
(Ord. No. 9025, § 5, 12-13-89)

Sec. 9:495. License fee.

(a) The license fee for an arborist's license shall be one hundred dollars ($100.00) per year. Licenses issued hereunder shall expire December 31 following the date of issue, and no such license shall be issued for more than one (1) year. The license granted hereunder shall be renewable only upon application filed with the director of finance prior to December 31 each year. No additional application shall be required to renew the license hereunder. The license may be renewed by payment of the annual license fee prior to January 1 of each succeeding year.

(b) The director of finance shall issue to each approved applicant an identification card showing his license number and shall forward to the director of the department of public works a copy of all approved applications.
(Ord. No. 9025, § 6, 12-13-89)

Sec. 9:496. Exemptions.

This chapter shall not apply to any business or occupation of land clearing or harvesting of timber for resale.
(Ord. No. 9025, § 7, 12-13-89)

CHAPTER 12. AUTOMOTIVE WRECKER AND TOWING CONTROL BOARD; AUTO, EMERGENCY AND HEAVY-DUTY WRECKER FRANCHISE REGULATIONS

Cross references—Transportation, title 10; traffic code, title 11; parking of wreckers, buses, trucks and semitrailers regulated, § 11:364.

CHAPTER 13. BUYING AND SELLING OF GOLD AND SILVER MERCHANDISE BY TRANSIENT OR ITINERANT MERCHANTS*

Sec. 9:520. Tax.

There is hereby levied a license tax as hereinafter specified for the year 1990, and all subsequent years, upon each person acting as an itinerant or transient merchant in the business of buying and selling gold or silver products.
(Ord. No. 9026, § 1, 12-13-89)

Sec. 9:521. Definitions.

(a) *Itinerant or transient gold or silver merchant:* Any person, firm, partnership or corporation who does not have a licensed permanent retail location in the parish or city who is in the business of selling or buying of gold and silver merchandise, paraphernalia, ornaments, or anything that contains gold or silver no matter how small the percentage is to other metals, who displays samples, models, goods, wares, paraphernalia, ornaments, etc., in any hotel or motel room, rooming house, store, club, storehouse, house or other place, for the purpose of selling or buying at retail, or securing for the retail sale of such goods where the transaction is between the individual consumer not in the ordinary business of selling or buying gold or silver, and who in connection with such business advertises in the parish or the city using the common media of newspapers, radio, or television.

(b) *Director of Finance:* The director of finance of the city-parish or his duly authorized assistants.
(Ord. No. 9026, § 2, 12-13-89)

Sec. 9:522. License required.

It shall be unlawful for any itinerant or transient merchant to buy or sell gold or silver merchandise, paraphernalia, ornaments or anything containing gold or silver, to transact any phase of business related to the buying or selling of gold or silver merchandise, paraphernalia, ornaments or the like in the parish or the city, including advertising, without first applying to the director of finance for a license to engage in such business. The fee for this license shall be three hundred dollars ($300.00) per annum.
(Ord. No. 9026, § 3, 12-13-89)

*__Editor's note—__**Editor's note—**This chapter was formerly reserved. The editor has included the provisions of §§ 1—8 of Ord. No. 9026, adopted Dec. 13, 1989, as §§ 9:520—9:527.

Sec. 9:523. Application for license.

An application for an itinerant or transient merchant who is in the business of buying and selling gold or silver products shall provide the following information:

(1) His home address.

(2) The firm or firms he represents, together with credentials establishing the exact relationship.

a. The firm's principal place of business.

b. The firm's principal officer.

c. The principal officer's home address.

d. The number of years the firm has been in business.

(3) A brief description of the kinds of transactions that he intends to present to the public concerning the buying or selling of gold or silver, or gold or silver alloy products.

(4) The number of days that he intends to remain in the parish for the purpose of conducting his business.

(5) The hotel, room or other place where the applicant proposes to conduct the business of buying and selling gold.

(Ord. No. 9026, § 4, 12-13-89)

Sec. 9:524. Bonding.

Before a license is issued by the director of finance, the applicant will furnish a performance bond in the amount of five thousand dollars ($5,000.00). Such bond will be held by the director of finance for a period of one hundred twenty (120) days after the applicant has left the parish and city in order to assure the requirements of solicitations, sales and advertisements.
(Ord. No. 9026, § 5, 12-13-89)

Sec. 9:525. Report of rental.

The owner, proprietor or manager of any hotel, motel, rooming house or other place of public accommodation shall report, within twenty-four (24) hours after renting, to the chief of police and the sheriff the name of any person who has rented a room or other space for the purpose of buying or selling gold or silver, or gold or silver related products, giving the location of the room or space so rented.
(Ord. No. 9026, § 6, 12-13-89)

Sec. 9:526. Records.

The licensee must keep the names with addresses and a brief description of any gold or silver products purchased by the licensee from any individual seller, whether they are persons, firms, partnerships or corporations, when the purchase by the licensee exceeds two hundred dollars ($200.00). The licensee shall present a copy with the list of names and addresses to the director of finance in order to lift his bond after the 120-day period has expired. This copy of the names and addresses of those individuals who sold gold and silver merchandise shall be kept confidential in order to protect those individuals.
(Ord. No. 9026, § 7, 12-13-89)

Sec. 9:527. Penalty.

Any person violating the provisions of this chapter shall be fined not more than two hundred dollars ($200.00) and not less than fifty dollars ($50.00) for each offense, and every day that a violation of this chapter shall continue shall constitute a separate and distinct offense.
(Ord. No. 9026, § 8, 12-13-89)

CHAPTER 14. RESERVED*

CHAPTER 15. STREET PERFORMERS

Sec. 9:950. Authority to regulate.

Notwithstanding the provisions of title 9, chapter 1, part VI of this Code, or any other provisions of this Code, the Arts and Humanities Council of Greater Baton Rouge is hereby granted the authority to license and regulate street performers, whether individuals or groups, and

*__Editor's note—__Ord. No. 18692, § 1, adopted November 22, 2022 repealed ch. 14, §§ 9:540—9:553, which pertained to registration, testing and licensing of swimming pool contractors and builders and derived from Ord. No. 9028, adopted December 13, 1989.

street performances, whether single or multiple events, for the purpose of assuring the safety and welfare of both the public and the performers.
(Ord. No. 7583, 6-27-84)

Sec. 9:951. Applicability.

The authority conferred by section 9:950 extends to individual performers who perform on public property and/or perform for donations, groups who perform on public property and/or perform for donations, and special events wherein individuals and/or groups perform on public property and/or perform for donations.
(Ord. No. 7583, 6-27-84)

Sec. 9:952. Requirements for permit.

No permit or license shall be issued to any individual, group or sponsor of an event without the subject first completing an application provided by the Arts and Humanities Council of Greater Baton Rouge (which application shall include the names, addresses and phone numbers of two (2) permanent contacts, personal data on the individual or group, and an agreement to abide by guidelines as established by the Arts and Humanities Council of Greater Baton Rouge), paying a fee not to exceed ten dollars ($10.00) as established by the Arts and Humanities Council of Greater Baton Rouge, and acquiring approval of the application by the Arts and Humanities Council of Greater Baton Rouge.
(Ord. No. 7583, 6-27-84)

Sec. 9:953. Minimum guidelines for performing.

In order to preserve the rights of the performers and to ensure the safety of the general public, the Arts and Humanities Council of Greater Baton Rouge shall establish guidelines, a copy of which shall be provided to each applicant for a permit under this chapter, which shall include, but not be limited to, the following:

(a) The performer(s) shall make reasonable efforts to keep the people in the audience out of the street.

(b) The performer(s) shall make reasonable efforts to keep the sidewalk open to pedestrian traffic.

(c) Equipment, props, etc., must be kept clear of pedestrian traffic.

(d) Merchants' display windows and doorways must not be blocked.

(e) Performers must space themselves so as not to infringe upon each other.

(f) No performer may solicit, beg or physically accost people in any way. They may, however, provide the audience with the opportunity to tip them.

(g) The noise level must not create a nuisance for others in the area.

(h) The performer(s) must park any vehicle off the street, not in a metered space.

(i) Any trash left by the audience must be removed by the performer(s).

(j) All applicable regulations concerning taxes, licenses and permits must be complied with.

(k) All performances must contribute to an overall favorable impression of the community, and must not contain any obscenity.

For the purposes of these guidelines, the term "street" shall mean a public thoroughfare open to vehicular traffic at the time of the performance.
(Ord. No. 7583, 6-27-84)

CHAPTER 16. RESERVED*

CHAPTER 17. TEEN CLUBS

Sec. 9:960. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City parish appeal board means the Metro Council Finance and Executive Committee or such other committee designated by the city-parish to hear appeals under this chapter.

*__Editor's note__—Ord. No. 18693, § 1, adopted November 22, 2022 repealed ch. 16, §§ 9:954—9:959.5, which pertained to fence licenses and derived from Ord. No. 9029, adopted December 13, 1989.

Curfew ordinance means the law codified in section 13:1056 et seq. of the Code of Ordinances.

Dance means any event organized for the primary and predominate, but not necessarily the exclusive, purpose of presenting live or recorded music for dancing or entertainment, whether indoors or outdoors. Dances do not include events held in establishments licensed to sell alcohol by the alcoholic beverage control office under the Code or facilities operated by a governmental agency.

Employee means any employee, agent, or security personnel of the teen club.

Licensee means any person holding a teen club license.

Minor means any person under the age of eighteen (18).

Security personnel means any individual hired or otherwise retained by a teen club to provide security services at the teen club.

Teen club means any building, part of a building, or other enclosed place, including but not limited to a patio, deck or an outside enclosed area, within the parish limits where a teen dance, as herein defined, is held or dancing involving individuals under the age of eighteen (18) years old is permitted, but shall not include:

(1) An accredited public or private school;

(2) Property owned or controlled by the federal, state or local government; or

(3) A facility operated by an organization which has been recognized as exempt from federal income taxation as a religious organization under subsection 501(c)(3) of the Internal Revenue Code of 1986, as amended.

Teen club license means a license issued by the city-parish on an annual basis in accordance with the requirements of this section which shall expire twelve (12) months after issuance to the licensee, and shall not be transferable as to person or place.

Teen club premises means the teen club and the private property owned, leased or otherwise con-

[The next page is 1399]

trolled by the teen club's licensee that surrounds the teen club, including but not limited to the teen club's parking lot.

Teen dance means a dance open to the general public or only to private membership to which persons under the age of eighteen (18) years are admitted.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:961. Teen club license required.

No person may conduct, maintain or operate a teen club without first obtaining a teen club license.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:962. Application for teen club license.

(a) An applicant for a teen club license shall submit an application to the alcoholic beverage control office along with the annual nonrefundable license fee of two hundred fifty dollars ($250.00) per application. The application shall include the following information:

(1) The names and address of the owner, lessor and lessee of the property;

(2) The name and address of every owner, officer, and managing agent of the teen club, and of such other employees that are known at the time of the application;

(3) The name of the security personnel to be employed to provide security for the teen club;

(4) Detailed plans and drawing of the teen club and adjoining areas showing the:

a. Dance floor,

b. Waiting area for persons seeking admission,

c. Parking areas,

d. All restrooms, coat rooms, game rooms, refreshment areas, and all other spaces accessible by patrons, with plans to secure those areas as may be required under section 9:973, and

e. All interior and exterior doors and windows;

(5) A binder showing the availability of the insurance required by section 9:972.

(6) The alcoholic beverage control office shall reject any application which does not conform to the requirements of this section.

(7) The alcoholic beverage control office may conduct a criminal history background examination on any person listed on the application.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:963. Issuance of teen club license.

(a) Except as provided in subsection (b) of this section, the alcoholic beverage control office shall grant a license or a renewal license to those applicants who have submitted an application in accordance with the terms of this section and who demonstrate their ability to operate a teen club in accordance with the specifications set forth in this section, the code, and all other applicable laws and regulations.

(b) The alcoholic beverage control office shall not issue a license if:

(1) Any person listed on the application as an owner, officer, managing agent, or employee of the teen club, within the preceding ten years, has been convicted of, been incarcerated for, or has been under probation or parole supervision for a:

a. Felony, or

b. Nontraffic criminal misdemeanor or misdemeanor involving drugs, liquor, prostitution, public indecency, minors, a sexual offense, violence or weapons; or

(2) The teen club has been deemed a nuisance by the city-parish in accordance with title 12 of the Code, or has been declared a nuisance or blighted property in any adjudicative process.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:964. List of employees.

The licensee shall provide to the alcoholic beverage control office each month a list of names of any new owner, officer, managing agent, or em-

ployee of the teen club unless the list would be identical to the list more recently submitted to the alcoholic beverage control office. If a new name is added, the licensee shall provide that person's name and address. If the address or other contact information for any owner, officer, or managing agent changes, the licensee shall be obligated to inform the alcoholic beverage control office within fifteen (15) days of the change.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:965. Security personnel.

(a) As a condition for maintaining the teen dance club license, the licensee shall employ or retain a sufficient force of adequately trained security personnel at all times when the teen club is open for business. For purposes of this section, adequately trained personnel include security guards employed by a bonded, licensed, and insured private security company, off-duty law enforcement officers with a current POST certification, or individuals with comparable military training, such as military police, shore patrol, or other security details. The guards on duty must be able to demonstrate their qualifications by reliable identification and/or paperwork upon demand by city-parish inspectors or law enforcement agents. The minimum number of security personnel to be on duty shall be determined by taking the fire marshal's maximum occupancy listed for the building, dividing by fifty (50), rounding up, and adding at least four (4) guards.

(b) All security personnel shall be disclosed in accordance with the requirements of sections 9:962(a)(3) and 9:964.

(c) The licensee shall post at least two (2) members of its security personnel in the teen club's parking area at all times while the club is open, and for at least thirty (30) minutes after official closing time (in accordance with section 9:969), prior to the start of curfew as described in section 13:1056 et seq., or such earlier time as the club operators choose, provided that such times will be clearly posted inside and outside of the club.

(d) The licensee shall post at least one (1) member of its security personnel in the teen club's waiting area (as defined in section 9:967) at all times while the club is open.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:966. Right of access.

Teen clubs shall be open to inspection at all reasonable times by the alcoholic beverage control office or any officer of the city police department or parish sheriff's office.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:967. Restrictions on admission.

(a) *Right of entry.* There may be only one point of entry for admission into the teen club. The licensee shall have at least one security personnel stationed at the point of entry. Any emergency exits required under the Code or other applicable law or regulation must be secured so as to prevent unauthorized access into the teen club.

(b) *Waiting area.* The licensee must provide a waiting area, wholly on the teen club premises, where persons waiting for admission into or departing from the teen club may assemble without occupying a right-of-way while still in view of the security personnel.

(c) *In-and-out privileges.* The licensee shall not permit a patron who has left the teen club to re-enter the teen club unless that patron repays the admission charge.

(d) *Age restrictions.* The licensee shall not admit any person:

(1) Under the age of fourteen (14) years; or

(2) Eighteen (18) years of age or older except any:

a. Owner, officer, managing agent or employee of the teen club;

b. Parent or legal guardian accompanying his child or ward; or

c. Spouse of a person described in subsections a. or b. above.

d. *Proof of age.* The licensee shall not admit any person who does not possess and display satisfactory identi-

fication indicating that they are the appropriate age under subsection 9:967(d). For purposes of this section, "satisfactory identification" means identification bearing the person's name, photograph, and date of birth. A state issued identification card or a high school issued identification card for the most recent academic year are examples of satisfactory identification. Proof of age may also be made by a parent accompanying the child to the waiting area, who attests to the age of the child, displays his or her identification, and records his or her name as attesting to the truth of the child's age.

(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:968. Identification of minors.

A licensee shall be required at all times to identify by wristband any minor inside the teen club and shall keep an entry log of all minors. Each minor shall enter on the entry log his or her name and date of birth. The licensee and his agents shall ensure that the log entries by the minors match the name and age on the required proof of age, and that such entries are legible. In the case of proof of age by attestation of a parent, the parent's identification shall be checked, and the parent shall sign his or her name legibly, as well as attesting to the age of the child. These logs are declared to be public records within the purview of R.S. 14:133, which are maintained for the city-parish by the licensee and his agents. The licensee shall make such log available to the alcoholic beverage control office or any officer of the city police department or parish sheriff's office upon request.

(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:969. Hours of operation.

It shall be unlawful for a teen club to be opened between 12:30 a.m. and 6:00 a.m. on Fridays and Saturdays. It shall be unlawful for a teen club to be opened between 10:30 p.m. and 6:00 a.m. on Sundays through Thursdays. The teen club shall post the hours of operation in a visible location at the entrance and inside the teen club.

(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:970. Curfew violations.

The licensee shall be personally and vicariously liable without proof of intent for any violations of the curfew ordinance on the teen club premises. Each violation of this section constitutes a separate offense. The licensee is required to clear the parking lot(s) and/or public spaces of minors within thirty (30) minutes of closing time. Reliable proof that the licensee cleared the parking lot(s) and/or public spaces of minors within thirty (30) minutes of closing time may be an affirmative defense to criminal charges or administrative proceedings under this section.

(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:971. licensee responsibilities.

(a) *Violations.* The licensee and the employees of the teen club shall not knowingly, or in circumstances when he should have known, allow or permit to occur on the premises of the teen club:

(1) Any criminal act listed in section 9:963;

(2) Possession or consumption of alcohol or illegal controlled substances;

(3) The admission or failure to expel any person under the influence of alcohol and/or drugs; and

(4) Any other activity or conduct on the teen club premises which is prohibited by this Code or any law of the State of Louisiana or the United States.

(b) *Reporting incidents.* The licensee and any owner, officer, managing agent, employee of the teen club, or security personnel working at the teen club shall immediately report to the city police department, parish sheriff's office, or the applicable local fire department, any incident described in subsection (a) of this section. In addition to notifying first responders, the responsible parties shall also promptly report any incident to the alcoholic beverage control office. The licensee shall maintain inside the teen club not

less than one landline telephone in operating order, which must be easily accessible to the teen club's employees.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:972. Insurance requirement.

As a condition of issuance and continued validity of a teen club license, the licensee shall maintain a broad form of comprehensive public liability insurance policy, issued by an insurance company qualified to do business in Louisiana and rated A or better by Best's Insurance Rating System, or its equivalent, providing coverage of all claims for property damage and personal injury arising in connection with the operation of the teen club, with minimum limits of one million dollars ($1,000,000.00) for any single claim and three million dollars ($3,000,000.00) for any one occurrence, and such policy shall name the city-parish as an additional insured. The policy shall remain in full force and effect so long as any teen dance activities are conducted by the licensee, and the policy shall provide that the city-parish be given at least ten (10) days' written notice prior to its cancellation. If the notice of cancellation is given and another certificate of insurance demonstrating the issuance of a policy meeting all terms and conditions hereof is not furnished prior to the end of the ten-day period, the license shall be revoked. At the request of the alcoholic beverage control office, the licensee shall provide certification of the insurance coverage required by this section.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:973. Enclosed areas prohibited.

The teen club's assembly area (i.e. dance floor) must be one open room to ensure all patrons are visible to the security personnel at all times. There may be no other rooms or enclosed areas accessible to patrons except those rooms required by safety and health codes to be separated from the assembly area, namely toilet facilities, kitchen or concession area and ticket sales or other office space. All other rooms shall be kept locked and inaccessible to the public.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:974. Limitation on teen club locations.

Except for teen clubs in existence prior to the effective date of this section, a teen club shall not be located within:

(1) Five hundred (500) feet of any zoning district that is zoned for single or multiple family residential (A1—A5);

(2) Five hundred (500) feet of any preexisting establishment holding a class A or B alcoholic liquor license issued in accordance with chapter 10 of the Code;

(3) Five hundred feet of any preexisting place of worship;

(4) Five hundred feet of another teen club;

(5) Five hundred feet of any accredited public or private school.

For purposes of this Section, measurements shall be made in a straight line, without regard to intervening structures or objects, from the property line of the teen club to the nearest property line of a property described in subsections (1) through (5) above.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:975. Criminal penalties.

Any person who violates this section may be subject to fines, criminal prosecution, including imprisonment not to exceed thirty (30) days or a fine of not more than five hundred dollars ($500.00) per criminal violation. This remedy and penalty is non-exclusive, and does not preclude administrative action or civil enforcement proceedings by the city-parish or its agencies.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:976. Suspension or revocation of a teen club license, administrative penalties.

(a) In addition to the penalties provided in section 9:975, the alcoholic beverage control office may suspend or revoke a teen club license for any of the following reasons:

(1) The licensee or any employee of the teen club, violates any provision of this chap-

ter, provided, however, that in the case of a first offense for any teen club, except for violations described in subparagraphs (2) and (3) below, where the conduct was solely that of an employee of the teen club, the administrative penalty shall not exceed a suspension of thirty (30) days if the alcoholic beverage control office finds that the licensee had no actual or constructive notice of such violation and could not, by the exercise of due diligence, have had such actual or constructive knowledge;

(2) Any intoxicating beverage, narcotic or controlled substance is sold or consumed on the teen club premises, in which case, upon a finding of violation, the alcoholic beverage control office shall suspend the license for not less than sixty (60) days; or

(3) More than five violations of the curfew ordinance have occurred on the teen club premises in a twelve-month period.

(b) Before suspending or revoking a teen club license, the alcoholic beverage control office shall give written notice to the licensee notifying the licensee of the suspension or revocation of the teen club license. A licensee may object to the disciplinary action by sending a written notice of appeal to the alcoholic beverage control office within five days of the date of the notice. If a notice of appeal is timely filed, the alcoholic beverage control office shall schedule a hearing before the city parish appeal board. The hearing shall be scheduled as soon as possible but in no event more than fourteen (14) days after the alcoholic beverage control office received the notice of appeal. The city parish appeal board shall make an independent determination of whether the disciplinary action taken by the alcoholic' beverage control office was proper under the terms of this section. The city parish appeal board's decision is appealable to the Metro Council, which may choose to decline to hear the appeal on a simple majority vote.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:977. Existing teen clubs.

Teen clubs operating on the effective date of this section shall apply for a teen club license within sixty (60) days of the section's effective date in accordance with section 9:962. A teen club license issued to such a teen club shall be valid for twelve (12) months from date of issuance. All other requirements of this section shall be in full force and effect as of the section's effective date.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:978. Limitation of certain restrictions to teen dances.

A licensee may engage in other legal, licensed and/or permitted activities other than teen dances on the teen club premises, when the structure/club is not in operation as a teen club. Sections 9:965, 9:967 through 9:970, 9:973 and 9:976 through 9:977 shall only apply on dates when teen dances are held on the teen club premises.
(Ord. No. 15034, § 1, 11-23-10)

Sec. 9:979. Parking during a teen dance.

The licensee must restrict usage of any parking lot on the teen club premises to only patrons, employees, security personnel or owners of the teen club one hour prior to, during and one hour after a teen dance is held at the teen club.
(Ord. No. 15034, § 1, 11-23-10)

CHAPTER 18. WINE, BEER, AND LIQUOR

Sec. 9:1000. Licenses required for businesses and employees.

(a) *Licenses required.* No person, firm, corporation or association of persons shall engage in any business or employment described in section 9:1000 or 9:1003, without first obtaining the necessary licenses and permits required hereunder, including all state and local permits.

(b) *Qualifying beverages and businesses.* Any person, firm, corporation or association of persons who, as a business or as a means of employment, manufactures, blends, rectifies, distills, processes, imports, stores, allows for consumption, uses, handles, holds, sells, offers for sale, solicits orders

for the sale of, distributes, delivers, serves or transports any beer, porter, ale, fruit juices, wine, or spirituous beverages of an alcoholic content not exceeding that now or hereafter permitted by law, but greater than one-half (½) of one (1) percent of alcohol by volume, or, any malt, vinous, spirituous, alcoholic or intoxicating liquors containing more than six (6) percent of alcohol by volume, within the limits of the parish, shall be deemed a retail dealer, or wholesale dealer, or a classified employee or classified delivery agent or third party, as the case may be, for all purposes of this chapter. All such persons must hold all applicable local and state permits, pursuant to R.S. tit. 26 and [this chapter].

(c) *Wholesale dealer required to verify retail license before delivery.* No wholesale dealer shall dispense or sell to any retail dealer any of the beverages described in subsection 9:1000(b), unless the retail dealer has procured and has posted in a conspicuous place in his establishment, the permit/license required in this chapter. Every wholesaler shall, at the time of shipping or delivering such beverages to a retailer, make a true duplicate invoice of each such shipment showing full and complete details of the sale or delivery, and shall include on such invoice the city or parish license/permit number. No wholesaler shall dispense, sell or deliver to any retail dealer until the wholesaler has been furnished the retail dealer's city or parish license/permit number.

(d) *Establishment operated as a retail dealer.* Any person, firm, corporation, or association of persons, who conducts an establishment as a business where alcoholic beverages are manufactured, blended, rectified, distilled, processed, imported, stored, used, handled, held, sold, offered for sale, solicited orders for the sale of, distributed, delivered, served or transported, shall be considered as conducting such establishment as a retail dealer for all purposes of this chapter, and shall pay the same license tax as required of a retail dealer selling for use or consumption on or off the licensed premises.
(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1001. Definitions.

Alcoholic beverages. The term "alcoholic beverage" means any fluid or any solid capable of being converted into fluid, suitable for human consumption, an containing more than one-half (½) of one (1) percent alcohol by volume, including malt, vinous, spirituous, alcoholic or intoxicating liquors, beer, porter, ale, stout fruit juices, cider, or wine.

Closed. The term "closed," as used in this section or elsewhere in this chapter shall mean the entire licensed building shall be locked, that all lights shall be out, and that no one shall be inside of said premises and that no dispensing or consumption of any alcoholic beverages shall take place on the subject property.

Delivery. The term "delivery" means a delivery of an alcoholic beverage in a container sealed by the manufacturer of the alcoholic beverage by a liquor retailer permitted pursuant to this chapter or by a retailer permitted to sell alcoholic beverages for off-premise consumption and their employees, 1099 contractors, or independent contractors. Delivery shall be permitted only in those areas where the sale of alcoholic beverages are permitted. Delivery by a retailer shall not extend past the boundaries of the parish where the retailer's permitted establishment is located. Prior to delivering alcoholic beverages, a retailer shall give notice to and receive permission from the ABC office, subject to rules promulgated by the director as authorized by this section.

Electronic means. The term "electronic means" is defined as internet-enabled technology and digital media, including but not limited to websites and consumer applications accessible through smart phones and other mobile devices.

Employee. The term "employee" means a W-2 employee of a liquor retailer permitted pursuant to this chapter or a W-2 employee of a retailer permitted to sell alcoholic beverages for off-premise consumption. It shall not include 1099 contractors or independent contractors hired by a liquor retailer.

Exotic dancer. The term "exotic dancer" is hereby defined as follows: any male or female performer hired or used to dance, gyrate, twist or

do any other physical performance on the floor, tables, stage or other contrivance in a sexually suggestive or provocative manner on the premises of any private or public property, whether said performer is paid a salary or receives compensation by way of gratuities by customers or a commission.

Growler. A "growler" shall mean a refillable rigid glass or aluminum container that is no larger than two (2) liters (0.5283 gallons) into which beer is prefilled, filled, or refilled for off-premises consumption.

Liquor. The term "liquor" means all distilled or rectified alcoholic spirits, brandy, whiskey, rum, gin, and all similar distilled alcoholic beverages, including all dilutions and mixtures of one (1) or more of the foregoing, such as liquors, cordials, and similar compounds.

Liquor retailer. The term "liquor retailer" means any dealer, other than a manufacturer or wholesaler, who sells, offers for sale, exposes for sale, or has in his possession for sale or distribution any alcoholic beverages in any quantity.

Manufacturer. The term "manufacturer" means any person, other than a wine producer, who personally or through any agent whatever engages in the making, blending, rectifying, or processing of any alcoholic beverage in Louisiana; engages in the making, blending, rectifying, or processing of any alcoholic beverage outside Louisiana for sale in Louisiana; or engages in the business of supplying alcoholic beverages to licensed wholesale dealers in Louisiana. A manufacturer who engages in the making, blending, rectifying, or processing of any alcoholic beverage in a facility entirely located in the parish of Louisiana may sell or serve only those products that are made, blended, rectified, or processed at that facility to the public only at that facility for consumption on or off the premises but not for resale. The total amount of such sales to the public for any given month shall not exceed one (1) case per person for each thirty-day period. Any manufacturer who sells its products to the public pursuant to this paragraph shall remit all state and parish or municipal sales and excise taxes to the proper tax collecting authority for all products sold to the public.

Microbrewer. The term "microbrewer" means any person who, directly or indirectly, personally or through any agency, engages in the making, blending, rectifying, or other processing of beer or other malt beverages for retail sale in an amount not to exceed twelve thousand five hundred (12,500) barrels per year.

Microbrewery. The term "microbrewery" means a retail establishment wherein beer and other malt beverages are brewed in small quantities, not to exceed twelve thousand five hundred (12,500) barrels per year, and where such beverages are sold at retail for consumption on or off the licensed premises.

Microdistiller. The term "microdistiller" means any person who operates a microdistillery.

Microdistillery. The term "microdistillery" means a retail outlet where a microdistiller engages in the distilling, making, blending, rectifying, or processing of any alcoholic beverage in Louisiana in quantities of not more than twelve thousand (12,000) gallons per year for retail sale for consumption on or off the licensed premises in accordance with the provisions of this chapter.

New business. The term "new business" means a location and/or applicant which does not have a current, valid, alcohol license, or which has not had a valid alcohol license within the last six (6) months, or which has or had a current, valid, alcohol license within the last six (6) months but which has not been open for business in the last six (6) months.

Ongoing business. The term "ongoing business" means a location and/or applicant which has a valid, current alcohol license, or which had a valid, current alcohol license within the last six (6) months, and which has been open for business in the last six (6) months.

Open container. The term "open container," as used in this chapter, shall include, but not be restricted to mean any vessel or container of alcoholic beverages which if opened in any manner would permit the contents to be consumed or poured or any container upon which the seal has been broken and the contents exposed to the air. "Open container" shall be any container not sealed. It shall be unlawful to furnish open

containers to patrons for the intent and purpose of removal and consumption of alcoholic beverages and liquors, including beer, off the licensed premises and/or leased premises.

Outlet. The term "outlet" means a place where any person draws or removes any alcoholic beverage from its container for consumption on the premises.

Premises. The term "premises," or "premises to be licensed," shall mean the building or that part of the building as defined in the application for the permit in which beverages of alcoholic beverage are sold, except in cases where such beverages are regularly sold or served outside the building, the terms shall also include such outside area.

Property. The term "property," as used in this chapter, shall mean the land upon which a licensed premises is located plus authorized and acknowledged parking area for the licensed business.

Riverboat casino. A "riverboat casino," as used in this chapter, shall mean the riverboat as defined in the Louisiana Riverboat Economic Development and Gaming Control Act, R.S. 9:501 et seq., and adjacent docking and patron assembly facilities including restaurants, and which has a license issued by the state gaming control board, pursuant to R.S. 27:65.

Solicitor. The term "solicitor" means any person who offers for sale or solicits any orders for the sale of any regulated beverage, other than in a regularly established and licensed place of business in this parish, for delivery or shipment to any point in the parish, whether done as owner, agent, or servant.

Supplier. The term "supplier" means any person, other than a wine producer, who manufactures, makes, blends, rectifies, distills, processes, or purchases alcoholic beverages outside the parish and imports, sells, offers for sale, solicits orders for sale, distributes, or delivers such alcoholic beverages in the parish.

Tax collector. The term "collector of city taxes" shall mean the director of finance of the parish and city, unless, under the provisions of section 8.05 of the plan of government of the parish and city, the city council shall have entered into an agreement with the parish sheriff for the collection of city taxes, in which latter event, this term shall mean the sheriff.

Third party. The term "third party" means an independent technology company that operates a website or consumer application on which independent liquor retailers market their products. Such third-party company shall not deal, handle, sell, offer for sale, or possess for sale alcoholic beverages or process payments for the sale of alcoholic beverages.
(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 16078, § 1, 10-14-15; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1002. General provisions.

(a) *Licenses and permits required to be posted.* All licenses and permits shall be displayed on the premises and it shall be the responsibility of the owner and/or manager of a licensed business to have available for inspection, all permits of classified employees and retail clerks upon commencement and for the duration of their employment.

(b) *Posting of public notices required.* Every license/permit holder under this chapter shall, upon receipt of, post any public notices, as may be required by the ABC office, in the licensed premises in a place conspicuous, in full public view, subject to inspection.

(c) *Licenses non-transferable.* Separate permits and licenses shall be required for each place of business operated by a retail or wholesale dealer. All permits and licenses issued herein shall be personal and non-transferable. If the business is sold or transferred during the period for which the permit or license was issued, the new owner or operator must apply and pay for a new permit and license in the manner and under the conditions set forth in subsections 9:1008(c) and (e).

(d) *Notification to council members.* The ABC office, for the purpose of keeping each council member advised of alcoholic beverage activity within their respective districts, shall promptly notify the appropriate council member of any

action taken or to be taken within their district. Such notification shall include, but not be limited to notices of intent to apply for a license, granting of licenses, hearings for denial, suspension or revocation and the results thereof, changes of ownership or transfer of a license to another premises and any other actions taken or to be taken by the board that may be of interest to the council as a whole or any individual member.

(e) *Duplicate licenses and permits.* The fee for all duplicate licenses and permits shall be fifteen dollars ($15.00). This shall include name changes, lost, stolen or damaged licenses and shall apply to individuals and businesses.

(f) *Change of location.* A retail dealer, or wholesale dealer, shall conduct his business only in the licensed premises, and no permit issued hereunder shall authorize the conducting of business in any changed location.

(g) *Temporary zoning waiver.* In cases where an applicant seeks to sell alcoholic beverages at a location where such sale is conditioned on the property being rezoned, the metropolitan council shall have the authority to grant a temporary waiver of the zoning restriction allowing the sale of alcoholic beverages for a period not to exceed ninety (90) days or until the property is rezoned, whichever is less.
(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1003. Types of business licenses, fees for business licenses, and qualifications for business licenses.

(a) *Fee for permit.* Every class A, B, C and R liquor dealer, in addition to the license tax levied in this section is hereby required to obtain from the city or parish an annual permit to conduct such business during the appropriate year and shall pay the sum of ten dollars ($10.00).

(b) *Fees for acquiring an existing business.* Any class A, B, C and R beer and/or liquor dealer who, on or after July 1 of any year, acquires a business currently licensed for that year, shall pay a license or excise tax of sixty-five (65) percent of the annual amount for the remainder of that year and a ten dollar ($10.00) permit fee, in the case of a liquor dealer for the balance of the appropriate year.

(c) *Licensee required to sign statement acknowledging laws concerning sales to minors.* Any person, firm, corporation or association of persons applying for a license to sell, dispense or deliver alcoholic beverages, or applying to renew an existing license to sell, dispense or deliver alcoholic beverages, shall be required to sign a statement acknowledging that said applicant is fully cognizant of the laws pertaining to the sale, dispensing or delivering of alcoholic beverages to minors. Such signed statement shall be executed prior to the issuance or reissuance of any license.

(d) *Fees and privileges of class A, B, and C licenses and ancillary growler permits.* Every retail dealer, wholesale dealer and classified employee excepting employees of wholesale dealers, of the above-described alcoholic beverages, is hereby required to obtain from the city or parish the following permit and/or pay the following annual excise or license tax and/or permit fee according to their sales classification.

(1) *Class A (beer).* Permits the retail dealer to sell beer, porter, ale, fruit juices, or wine containing not more than six (6) percent alcohol by volume as described in subsection 9:1000(b) of this chapter for consumption on the licensed premises at an annual permit fee of one hundred dollars ($100.00).

(2) *Class A (liquor).* Permits the retail dealer to sell any malt, vinous, spirituous, alcoholic or intoxicating liquors containing more than six (6) percent alcohol by volume as described in subsection 9:1000(b) of this chapter for consumption on the licensed premises or prepared with an appropriate lid or cover on the container for takeout service at an annual excise or license tax of five hundred dollars ($500.00).

(3) *Class A (beer caterer).* Permits the retail dealer to sell beer, porter, ale, fruit juices, or wine containing not more than six (6) percent alcohol by volume as described in subsection 9:1000(b) of this chapter for

consumption off of the licensed premises at a catered function at an annual permit fee of ninety dollars ($90.00).

(4) *Class A (liquor caterer).* Permits the retail dealer to sell any malt, vinous, spirituous, alcoholic or intoxicating liquors containing more than six (6) percent alcohol by volume as described in subsection 9:1000(b) of this chapter for consumption off of the license premises at catered functions at an annual excise or license tax of five hundred dollars ($500.00).

(5) *Class A (delivery).* Permits a class A holder to enter into an agreement with a third party to deliver beer and wine, as defined herein. The third party and the class A holder must meet all the requirements set forth in this chapter [and] any provisions set for this section. The permit fee for this permit issued pursuant to this subparagraph shall be one thousand five hundred ($1,500.00) dollars.

(6) *Class B (beer).* Permits the retail dealer to sell any beer, porter, ale, fruit juices or wine containing not more than six (6) percent alcohol by volume as described in subsection 9:1000(b) of this chapter only for use or consumption off the licensed property at an annual permit fee of seventy-five dollars ($75.00).

(7) *Class B (liquor).* Permits the retail dealer to sell any malt, vinous, spirituous, alcoholic or intoxicating liquors containing more than six (6) percent alcohol by volume as described in subsection 9:1000(b) of this chapter only for use or consumption off the licensed property at an annual excise or license tax of five hundred dollars ($500.00). If a class B permitee wants to sell mixed frozen specialty beverages, it must meet all of the following:

a. Does not offer to sell, sell, or otherwise distribute motor fuel at the licensed establishment.

b. Sells alcoholic beverages, including frozen specialty beverages, in closed containers prepared for transportation and consumption off the premises only.

c. Has a public habitable floor area of no less than one thousand (1,000) square feet.

d. Does not allow any person under the age of eighteen (18) to enter, visit, or loiter in or about the licensed establishment.

e. Does not employ any person under the age of eighteen (18).

f. Does not allow the consumption of any alcoholic beverage for any purpose or reason on or about the licensed establishment unless and except as otherwise provided for in this title.

g. Does not permit the mixing of alcoholic beverages or the sale and/or service of mixed alcoholic beverages on the premises of the licensed establishment; however, the mixing of frozen specialty beverages may be permitted according to rules and regulations promulgated under R.S. 26:71.2(B).

(8) *Class B (delivery).* Permits any holder of a class B permit to deliver alcohol with its own employees, 1099 contractors, or independent contractors. Notwithstanding the provisions of this chapter, the permit fee for the permit issued pursuant to this section shall be two hundred fifty ($250.00) dollars.

a. Notwithstanding any law to the contrary, any liquor retailer permitted pursuant to this chapter or any retailer permitted to sell alcoholic beverages for off-premise consumption may deliver, either on the licensed premises itself or at a residential or commercial address designated by the consumer, products lawfully sold to and purchased by such consumer, provided that:

1. The liquor retailer possesses a class B permit as defined in

this chapter or possesses a permit that allows the retailer to sell alcoholic beverages for off-premise consumption.

2. The liquor retailer or an employee of the liquor retailer processes at the class B premises or at the premise permitted to sell alcoholic beverages for off-premise consumption all payments initiated by a consumer that is transacting the purchase with the liquor retailer.
3. The class B liquor retailer or a retailer permitted to sell alcoholic beverages for off-premise consumption, or an employee of such retailer, assembles, packages, and fulfills each order at the permitted premises where the order was processed using inventory located at that premises that was purchased from a permitted wholesale dealer.
4. Deliveries to consumers are made only by the class B liquor retailer or a retailer permitted to sell alcoholic beverages for off-premise consumption, or an employee of such retailer, and only to consumers at a residential or commercial address in this parish.
5. The alcoholic beverages delivered are for personal consumption, not intended for resale, and are in a container sealed by the manufacturer of the alcoholic beverage. The delivery of an "open container" as defined in this chapter is prohibited.
6. Delivery of alcoholic beverages is permitted only in those areas where the retail sale of alcoholic beverages is permitted. Delivery shall be prohibited in any area where it is prohibited by the local governing authority. The delivery radius of a retailer shall not extend past the boundaries of the parish where the retailer's permitted establishment is located.
7. Alcoholic beverages are not delivered to an address on a campus of any state college, university, or technical college or institute, any independent college or university, or any elementary or secondary school located in this parish.
8. Delivery is permitted only during the hours that the authorized retailer's permitted establishment is open to the public.
9. At the time of delivery, the class B liquor retailer or a retailer permitted to sell alcoholic beverages for off-premise consumption, or an employee of such retailer, verifies that the recipient of the alcoholic beverage or beverages is not visibly intoxicated.
10. At the time of delivery, the class B liquor retailer or a retailer permitted to sell alcoholic beverages for off-premise consumption, or an employee of such retailer, verifies the identity and age of the person accepting delivery of the order by validating a state-issued photo identification of the person or through use of a real-time age verification system authorized by the ABC director. Additionally, a signature of the person receiving the delivery acknowledging receipt of the delivery and verifying their age shall be obtained.

11. The retail dealer keeps a record of all deliveries of alcoholic beverages and retains such records for two (2) years from the date of the delivery. The retail dealer shall make such records available to the ABC director of the office of alcohol beverage and control upon request for the purpose of investigating and enforcing the provisions of this section. The record of each delivery shall include:
    (i) The retail dealer's name, address, and permit number.
    (ii) The name of the person who placed the order and the date, time, and method of the order.
    (iii) The name of the employee making the delivery and the date, time, and address of the delivery.
    (iv) The type, brand, and quantity of each alcoholic beverage delivered.
    (v) The name, date of birth, and signature of the person that received the delivery.
12. All employees of the retailer who make deliveries must obtain and maintain all necessary permits under this chapter.

b. Notwithstanding any law, rule, or regulation to the contrary, any liquor retailer permitted pursuant to this chapter or a retailer permitted to sell alcoholic beverages for off-premise consumption, may use electronic means to do the following:
    1. Market the alcohol products it is licensed to sell.
    2. Receive and process purchase orders placed by a consumer of legal drinking age, which orders may then be delivered to such consumer on the licensed premises itself or at a residential or commercial address in this parish designated by the consumer in accordance with paragraph (d)(8)a.4. of this section.

c. A class B liquor retailer permitted pursuant to this chapter or a retailer permitted to sell alcoholic beverages for off-premise consumption may market, receive, and process orders for alcohol products under this section using electronic means owned, operated, and maintained by a third party, provided that:
    1. The permittee maintains ultimate control and responsibility over the sales transaction and transfer of physical possession of the alcoholic beverages.
    2. The permittee retains the sole discretion to determine whether to accept and complete an order or reject it, and the permittee or an employee of the permittee reviews and accepts or rejects each order.
    3. The permittee retains the independence to determine which alcoholic beverages are made available through electronic means, which alcoholic beverages are made available for delivery to the consumer at the licensed premises itself or at another address designated by the consumer, and the permittee shall independently set the price of such products.
    4. The purchase transaction takes place between the consumer and the permittee and the permittee appears as the retail dealer.

5. Any credit or debit card information provided by a consumer to the third party for the purpose of transacting a purchase with a permittee is automatically directed to the permittee such that the permittee appears as the retail dealer at the time of purchase and on the receipt.

6. The permittee, or an employee of the permittee, processes, at the premises that accept the order, all payments initiated by a consumer that is transacting a purchase with the permittee.

7. The alcoholic beverages are in the possession of the permittee prior to the permittee's processing of payment of such products.

8. The permittee, or an employee of the permittee, assembles, packages, and fulfills each order at the premises that accepted the order.

9. Deliveries to consumers are made by the permittee, or by an employee of the permittee.

10. At the time of delivery, the permittee, or an employee of the permittee, verifies the identity and age of the person accepting delivery of the order by validating a state-issued photo identification of the person or through use of a real-time age verification system authorized by the ABC director. Additionally, a signature of the person receiving the delivery acknowledging receipt of the delivery and verifying their age shall be obtained.

d. The relationship between the permittee and the third party pursuant to subsection (d)(8)c. of this section shall be one of independent contractors, and neither party shall be deemed the employee, agent, or joint venturer of the other party under any circumstances or for any purposes.

e. The director may promulgate rules in accordance with this chapter for the requirements and qualifications for delivery.

f. If any provision of this section, or its application to any person or circumstance, is determined by a court to be invalid or unconstitutional, the remaining provisions shall be construed in accordance with the intent of the metro council to further limit rather than expand commerce in alcoholic beverages and to enhance strict regulatory control over taxation, distribution and sale of alcoholic beverages through the three-tier regulatory system imposed by the local, state and federal law upon all alcoholic beverages.

(9) *Delivery permit (third party delivery company).*

a. For purposes of this section only, a third party delivery company shall be defined as a third party delivery service that is licensed to do business in the parish, permitted with the office of alcohol beverage control, and uses their own employees or agents for which the third party delivery company is required to file an Internal Revenue Service Form W-2 or 1099 for delivery. For all other alcohol delivery provisions of this chapter, third party shall be the definition provided in this section. The permit fee for the permit issued pursuant to this section shall be five hundred dollars ($500.00). Delivery permit only applies to a third party delivery company. All

other variations of the delivery permits are applicable as to each other class permit section.

b. Notwithstanding any provision of law to the contrary, a retail dealer possessing a valid class A general, a class A restaurant, or class B permit as provided in this chapter may enter into a written agreement with a third party delivery company or a third party platform for the use of an internet or mobile application or similar technology platform to facilitate the sale of alcoholic beverages for delivery to consumers for personal consumption within this parish and the third party delivery company or the third party platform may deliver alcoholic beverages to the consumer.

c. An alcoholic beverage delivery agreement between a retail dealer and a third party shall require all of the following:

1. Only alcoholic beverages purchased from a wholesale dealer licensed pursuant to this chapter are offered for delivery.

2. Only alcoholic beverages of low alcoholic content, beer and wine as defined herein are offered for delivery.

3. The alcoholic beverages delivered are for personal consumption, not intended for resale, and are in a container sealed by the manufacturer of the alcoholic beverage. The delivery of an "open container" as defined in this chapter is prohibited.

4. Alcoholic beverages are delivered only on the days and during the hours the retail dealer is authorized to sell or serve alcoholic beverages.

5. Alcoholic beverages are delivered only in those areas where the sale of alcoholic beverages is permitted. Delivery of alcoholic beverages in an area where the sale of alcoholic beverages has been prohibited by a referendum vote is prohibited.

6. No alcoholic beverages shall be delivered to a state college, university, or technical college or institute or an independent college or university located in this parish.

7. No alcoholic beverages shall be delivered to any public playground or building used primarily as a church, synagogue, public library, or school.

8. No alcoholic beverages shall be delivered more than ten (10) miles from the place of purchase.

9. All orders for the delivery of alcoholic beverages shall also contain food.

10. The alcoholic beverages of all deliveries which are refused by a third party shall be returned to the place of purchase.

11. Alcoholic beverages are delivered only by a person that meets all of the following requirements:

(i) The person is eighteen (18) years of age or older.

(ii) The person is an employee for which the third party shall be required to file an Internal Revenue Service Form W-2.

(iii) The person possesses a valid server permit as provided in this chapter.

12. The retail dealer shall manage and control the sale of alcoholic beverages including but not be limited to all of the following:
    (i) Determining the alcoholic beverages to be offered for sale through a third party's internet or mobile application platform or similar technology.
    (ii) Determining the price at which alcoholic beverages are offered for sale or sold through a third party's internet or mobile application platform or similar technology.
    (iii) Accepting or rejecting all orders placed for alcoholic beverages through a third party's internet or mobile application platform or similar technology.
    (iv) Collecting and remitting all applicable state and local taxes.

d. A retail dealer shall enter into an alcoholic beverage delivery agreement with a third party only when the third party meets all of the following requirements:
    1. The third party is properly registered and authorized to conduct business in Louisiana.
    2. The third party holds a valid Louisiana alcoholic beverage permit issued pursuant to this chapter.
    3. The third-party delivery service shall maintain a general liability insurance policy with a liquor liability endorsement in an amount no less than one million dollars ($1,000,000.00) per occurrence for the duration of the agreement with the retail dealer and shall provide proof of coverage to the retail dealer.
    4. The third party is able to monitor the routes of its employees during deliveries.
    5. The third party conducts an interview and a background check of all persons that will deliver alcoholic beverages.

e. A retail dealer may pay a third party a fee for its services and a third party may charge a reasonable delivery fee for orders delivered by the third party. A third party may act as an agent of a retail dealer in the collection of payments from the sale of alcoholic beverages, but the full amount of each order must be handled in a manner that gives the retail dealer control over the ultimate receipt of the payment from the consumer.

f. The third party may receive orders and accept payment via the internet or through a mobile application or similar technology under the following conditions:
    1. At the time of delivery of alcoholic beverages, the third party's delivery agent shall obtain the recipient's signature and verify the age of the recipient through the use of an electronic age verification device that shall be approved by the ABC director. Such device shall be capable of all of the following:
        (i) Verifying proof of age through technology of a magnetic card reader or an alternative technology capable of verifying proof of age.
        (ii) Reading a valid state-issued driver's license, a valid state issued

identification card, a valid military identification card, or a valid passport.

(iii) Storing the recipient's name, age, date of birth, the expiration date of the identification, and the date and time that the identification was scanned.

2. The third party's delivery agent shall refuse delivery and return the alcoholic beverages to the place of purchase if:

(i) The recipient does not produce a valid and current form of identification as provided in R.S. 26:286(A)(1) and this chapter.

(ii) The recipient is intoxicated.

(iii) There is reason to doubt the authenticity or correctness of the recipient's identification.

(iv) The recipient refuses to sign for the receipt of the delivery.

3. A third-party delivery agent who delivers alcoholic beverages, but fails to comply with the provisions of subsections 2. and 3. of this subsection and administrative rules promulgated pursuant to this section, shall be vicariously liable for damages incurred as a result of the failure to comply.

g. A record of each delivery of alcoholic beverages shall be retained for three (3) years from the date of delivery and made available to the ABC director of the office of alcohol and tobacco control upon request for the purpose of investigating and enforcing the provisions of this title. The record of each delivery shall include:

1. The retail dealer's name, address, and permit number.

2. The name of the person who placed the order and the date, time, and method of the order.

3. The name of the delivery agent and the date, time, and address of the delivery.

4. The type, brand, and quantity of each alcoholic beverage delivered.

5. The name, date of birth, and signature of the person who received the delivery.

(10) *Class C (beer).* Permits the wholesale dealer, who is defined as any dealer who sells beer, porter, ale, fruit juices or wine containing not more than six (6) percent alcohol by volume as described in subsection 9:1000(b) of this chapter, at wholesale after payment of an annual permit fee of one hundred twenty dollars ($120.00).

(11) *Class C (liquor).* Permits the wholesale dealer, who is defined as any dealer who sells any malt, vinous, spirituous, alcoholic or intoxicating liquors containing more than six (6) percent alcohol by volume as described in subsection 9:1000(b), at wholesale after payment of an annual permit fee of five hundred dollars ($500.00).

(12) *Ancillary growler permit.* Permits the holder of a class A license to fill and sell growlers at an annual permit fee of ninety dollars ($90.00).

A "growler" shall mean a refillable rigid glass or aluminum container that is no larger than two (2) liters (0.5283 gallons) into which beer is prefilled, filled, or refilled for off-premises consumption when the following applies.

a. The growler bears a twist-type closure and includes a one-time use tamper-proof seal; and

b. The growler is affixed with a label or tag that contains the following information:

1. The brand name of the product dispensed;
2. The name of the brewer;
3. The name and address of the business that cleaned, sanitized, labeled, and filled or refilled the growler;
4. The date the growler was filled or refilled;
5. The following statement: "This product may be unfiltered and unpasteurized. Keep refrigerated at all times."; and
6. An alcoholic beverage health warning statement as required by the Federal Alcohol Administration Act, 27 CFR 16.20 through 16.22.

c. Prior to refilling a growler, the growler shall be cleaned and sanitized by the licensee or licensee's employee in the following manner:

1. Manual washing in a three-compartment sink;
2. Prior to starting, clean sinks and work area to remove any chemicals, oils or grease from other cleaning activities;
3. Empty residual liquid from the growler to a drain. Growlers shall not be emptied into the cleaning water;
4. Clean the growler and cap in water and detergent. Water temperature shall be at a minimum one hundred ten (110) degrees Fahrenheit. Detergent shall not be fat or oil based;
5. Remove any residues on the interior and exterior of the growler;
6. Rinse the growler and cap in the middle compartment with water. Rinsing may be from the spigot with a spray arm, from a spigot or from the tub as long as the water for rinsing shall not be stagnant but shall be continually refreshed;
7. Sanitize the growler in the third compartment. Chemical sanitizer shall be used in accordance with the EPA-registered label use instructions and shall meet the minimum water temperature requirements of that chemical;
8. Secure a new one-time use tamper-proof seal.

d. Transferring beer to a growler with a tube.

1. Beer may be transferred to growlers from the bottom of the growler to the top with a tube that is attached to the malt beverage faucet and extends to the bottom of the growler;
2. A container of liquid food grade sanitizer shall be maintained for no more than ten (10) tubes that will be used for filling and refilling growlers;
3. Food grade sanitizer shall be used in accordance with the EPA-registered label use instructions;
4. After each beer transfer to a growler, the tube shall be immersed in the container with the liquid food grade sanitizer; and different tube from the container shall be used for each fill or refill of a growler.

(e) *Qualifications for applicants and businesses.* Each applicant or business shall meet the following requirements:

(1) Is a person of good character, reputation and over eighteen (18) years of age.

(2) Is a citizen of the United States and of the State of Louisiana, and a resident of the State of Louisiana continuously for a period of not less than two (2) years next preceding the date of the filing of the application. The requirements as to Louisiana citizenship do not apply to wholesalers or retailers who held permits on or prior to January 1, 1946.

(3) Is the owner of the premises or has a bona fide notarized written lease.

(4) Has not been convicted of a felony under the laws of the United States, the State of Louisiana, or any other state or country, unless the applicant has been pardoned, or, if the applicant is a firm, association, partnership, trust, domestic or foreign corporation, or other legal entity, the applicant has terminated its relationship with the person or persons whose action directly contributed to the applicant's conviction. A conviction or plea of guilty or nolo contendere by the applicant shall not constitute an automatic disqualification of the applicant if the felony for which the applicant was convicted is not a crime of violence as defined in R.S. 14:2(B) and ten (10) years or more have elapsed between the date of application and the successful completion of any sentence, deferred adjudication, or period of probation or parole and the final discharge of the defendant.

(5) Has not been adjudged by a board or convicted by a court in this or in any other state or by the United States or any other country of soliciting for prostitution, gambling, letting of premises for gambling, contributing to the delinquency of juveniles, keeping a disorderly place, or illegally distributing or intent thereof in controlled dangerous substances as defined in Louisiana Revised Statutes.

(6) Has not had any authorized license or permit connected with alcoholic beverages revoked within two (2) years prior to the application.

(7) Has not been convicted or had a judgment of court rendered against him involving the sale or service of alcoholic beverages, by this political subdivision, or this or any other state, or by the United States, for two (2) years prior to the application.

(8) Has not been adjudged by any board or convicted by a court of violating any provisions of R.S. tit. 26.

(9) Has not been adjudged by any board or convicted of violating any municipal or parish ordinances adopted pursuant to the provisions of R.S. 26:494.

(10) Has not had any certificate, permit or license to dispense alcoholic beverages as described anywhere in this chapter, issued by any other parish, municipality, or state, suspended or revoked, or had the application denied. If the applicant has been so adjudged, the granting of any certificate, permit or license or of a renewal is within the discretion of the board.

(11) Is not the spouse of a person whose application has been denied or whose permit has been revoked, unless judicially separated or divorced; provided that in such cases the age of the ineligible spouse shall be immaterial.

(12) Does not owe the City of Baton Rouge—Parish of East Baton Rouge any delinquent sales taxes, penalties, or interest, excluding items under formal appeal pursuant to applicable statutes.

(13) If the applicant is a partnership recognized by Louisiana law, or anyone in such partnership with or financed by another, all members of such partnership, or all the persons furnishing the money shall also possess the qualifications required of an applicant. The application shall name all partners or financial backers and furnish their social security numbers and proper addresses. If a partner of a partnership applying for retail or manufacturer's permits is a corporation or limited liability company, the require-

ments as to citizenship and residence shall not apply to officers, directors, and stockholders of the corporation or members of the limited liability company. The corporation or limited liability company shall either be organized under the laws of the State of Louisiana or qualified to do business within the State of Louisiana.

(14) If the applicant is a corporation or a limited liability company, all officers and directors and all stockholders or members owning in the aggregate more than five (5) percent of the stock or of the membership interest in a limited liability company and the person or persons who shall conduct or manage the business shall possess the qualifications required of an applicant and shall furnish their federal identification number, their social security number, and their correct home address. The requirements as to citizenship and residence do not apply to either the officers, directors, or stockholders of corporations, or the officers, managers, or members of limited liability companies. The corporation or limited liability company shall be either organized under the laws of the State of Louisiana or qualified to do business within the State of Louisiana.

(15) That granting of an application in no way contradicts the purpose and intent of any provision of this chapter.

(16) If the applicant, or any other person required to have the same qualifications, does not possess the required qualifications, the permit will be denied.

(f) *Fees and privileges of class R license.* Permits a restaurant as defined within this chapter, who is also the holder of a class A beer and/or liquor license, privileges as may be set forth in this chapter after payment of an annual permit fee of one hundred five dollars ($105.00).

(g) *Class R license (restaurant) criteria.* Each applicant for a class R (restaurant) license shall, in addition to holding a class A beer and/or liquor license, meet the following criteria:

(1) Must operate a place of business whose primary purpose is to prepare meals to the general public for consumption on premises.

(2) Must serve food on all days of operation.

(3) Must file a copy of the applicant's menu together with the application, both new and renewal.

(4) Must furnish an affidavit from the local health department showing compliance with all applicable health and sanitary requirements with new applications.

(5) Must gross fifty-one (51) percent of their monthly revenue from the sale of food, food items and nonalcoholic beverages.

(6) Must maintain separate sales figures for alcoholic beverages.

(7) All applications for class R licenses, whether new or renewal, shall be in writing, sworn to in front of a notary public, and shall contain the full name of the applicant along with a complete description and correct address of the premises in which the restaurant is located.

(8) Operate a bona fide restaurant by having a fully equipped kitchen facility and dining room manned and operated at all times that alcoholic beverages are sold.

(9) The class R licenses shall be subject to revocation by the ABC board at any time following a hearing as provided for all other licenses and/or permits issued under this chapter and a determination that the licensee fails to meet the criteria set forth in this chapter.

(10) No children under the age of eighteen (18) are allowed in the bar area of a restaurant whether seated at the bar or at tables within the bar area. Children under the age of eighteen (18) are also not allowed to play games within the bar

area. The only exception is children passing through the bar area in order to access other accommodations of the restaurant.

(11) For new businesses without prior business experience on which to base a determination of percentage of food, etc., sales to alcoholic beverages, a temporary permit may be issued by the director of ABC for sixty (60) days after which time evidence of all sales, as may be deemed necessary by the board, will be required to make the license permanent.

(h) *Class A restaurant (delivery).*

(1) A class A restaurant delivery permit shall be issued only to a "restaurant establishment" or dinner theatre as defined by this chapter and issued to a facility in conjunction with a class A restaurant permit under the provisions of this chapter. This permit allows a class A restaurant who has entered into a written agreement with a third party for the delivery of beer and wine as defined and if the third party and the written agreement meet all the requirements set forth in this chapter and any provisions set for this section. The permit fee for this permit issued pursuant to this subsection shall be one hundred fifty ($150.00) dollars.

(2) Class R1. In addition to the authority to contract with a third party as provided in this chapter, a permit may be issued to a class A restaurant enabling the delivery of restaurant prepared food and alcohol with its own employees, 1099 contractors, or independent contractors. A class A restaurant under this permit is subject to all provision of this chapter. The permit fee for the permit issued pursuant to this subsection shall be one hundred fifty ($150.00) dollars.

(i) *On-site sampling license.* On-site sampling for the purposes of allowing a customer to taste a brand of wine, beer, or liquor may be conducted at any time on any premises holding a class B (liquor) license issued pursuant to this title subject to the following conditions and restrictions:

(1) On-site samples shall be offered to customers free of charge and only in accordance with the restrictions set forth herein.

(2) Samples shall be provided in portions no greater than two (2) ounces per serving. Only one (1) serving per brand shall be provided to a customer on any given day. If a brand contains twenty-three (23) percent or more of alcoholic content, then the sample portion shall be no greater than one-half (½) of one (1) ounce per customer on any given day.

(3) A retail dealer, wholesaler, manufacturer and/or supplier may furnish the wine, beer, or liquor to be sampled and the containers used to hold such wine, beer, or liquor in connection with the sampling subject to state and/or federal laws, rules and/or regulations.

(4) No person under the age of eighteen (18) shall be allowed in the area of a class B (liquor) establishment that offers wine sampling pursuant to this section at any time unless accompanied by a parent, legal guardian or spouse twenty-one (21) or older.

(5) All persons serving on-site samples pursuant to this section shall have the appropriate valid and current retail license.

(6) Any retail dealer holding a class B (liquor) license, who meets the qualifications set forth in this section, and desires to conduct on-site wine sampling in accordance with this section shall so designate its intent to conduct such sampling on its original application for a class B (liquor) license or shall amend its application to reflect its intent to conduct such sampling. No retail dealer shall conduct sampling pursuant to this section unless and until it has received prior written authorization from the office of alcoholic beverage control.

(7) The fee for an on-site sampling license, allowing wine sampling pursuant to this

section shall be one hundred twenty dollars ($120.00) per year per licensed location.

(j) *Fees and privileges of class M (manufacturer's) license.* A class M license allows a distiller, brewer, or other producer of qualifying beverages as specified in section 9:1000 of this title to distill, brew, or otherwise produce alcoholic beverages, in conformity with any applicable state or federal regulations. A class M license requires payment of an annual license fee of one hundred twenty dollars ($120.00) for manufacturers of low-alcoholic content beverages, five hundred dollars ($500.00) for manufacturers of all other qualifying beverages.

(k) *Class M license (manufacturer's) criteria.* Each applicant for a class M (manufacturer's) license shall meet the same qualifications as a class A, B, or C licensee, as set forth in this section.

(1) A class M licensee intending to operate a tasting room or other on-premises consumption facility or service point must also apply for and receive a class A (on-premises consumption license) appropriate to the type of qualifying beverage to be dispensed.

(2) A class M licensee intending to sell its products to visitors or others for off-premises consumption must also apply for and receive a class B (off-premises consumption license) appropriate to the type of qualifying beverage to be dispensed.

(3) Class M licensees which also operate as a class A licensee (on-premises consumption), class B licensee (off-premises consumption), or both, must comply with all regulations applicable to the secondary license, including but not limited to closing hours (section 9:1006), licensed servers and employees (section 9:1007), notice of intent to apply for license (section 9:1008), application requirements (section 9:1009), building and zoning requirements (section 9:1010), and renewals (section 9:1011), as generally applicable or as may be specified for class M licensees in those sections.

(l) *Fees and privileges of class D (riverboat extended operation) license.* A class D license permits a riverboat casino, as defined within this section, which is also the holder of a class A beer and/or liquor license, privileges as may be set forth in this section after payment of an annual permit fee of five thousand dollars ($5,000.00).

(m) *Class D license (riverboat extended operation) criteria.* Each applicant for a class D (riverboat extended operation) license shall be a riverboat casino, as defined in this chapter, and shall maintain a valid class A beer and/or liquor license at all times as a condition of being extended the privileges of the class D license.

(n) *Fees and privileges of class P (public recreational facility) license.* Permits a publicly owned recreational facility within the parish to operate as an on-premises consumption retail dealer and sell alcoholic beverages as described in subsection 9:1000(b) at an annual excise or license tax of ten dollars ($10.00).

(o) *Class P license (public recreational facility) license.* Each applicant for a class P (public recreational facility) license shall meet the following criteria:

(1) Applicant must have a place of business located within a publicly owned recreational facility (park, golf course, zoo, art gallery, or museum).

(2) Applicant must demonstrate a serving and consumption area separated from any areas frequented by unsupervised children and minors, except for restaurant-style serving areas with a kitchen facility and dining room manned and operated at all times that alcoholic beverages are sold.

(3) Applicant must use employees or caterers licensed under this chapter for serving and sales of qualifying beverages.

(p) *Microbrewery license.* Authorizes the making, blending, rectifying, or other processing of beer or other malt beverages for the retail sale

in an amount not to exceed twelve thousand five hundred (12,500) barrels per year; also permits the retail dealer to sell beer, porter, ale, fruit juice, wine, malt beverages, vinous, spirituous, alcoholic, or intoxicating liquor for consumption on the licensed premises; also permits the retail dealer to sell any beer, porter, ale, fruit juice, wine, malt beverages, vinous, spirituous, alcoholic, or intoxicating liquor for consumption off the licensed premises; and further allows the retail dealer to operate a place of business whose purpose is to prepare meals to the general public for consumption on premises subject to the following conditions and restrictions:

(1) Each applicant for a microbrewery license shall meet the requirements set forth in this chapter for a class A, B, or C applicant.

(2) The provisions of this subsection shall not authorize the holder of a microbrewery license to sell the manufactured beverages at wholesale or to a wholesale dealer or manufacturer.

(3) The holder of a microbrewery license shall not sell any alcoholic beverages for transportation off the premises to any other licensed alcoholic beverage retail dealer.

(4) The fee for a microbrewery license shall be one hundred twenty dollars ($120.00) for manufacturers of low-alcoholic content beverages, five hundred dollars ($500.00) for manufacturers of all other qualifying beverages per year per licensed location.

(q) *Microdistillery license.* Authorizes the distilling, making, blending, rectifying, or processing of any alcoholic beverage for retail sale in quantities of not more than twelve thousand (12,000) gallons per year on any premises; also permits the retail dealer to sell beer, porter, ale, fruit juice, wine, malt beverages, vinous, spirituous, alcoholic, or intoxicating liquor for consumption on the licensed premises; also permits the retail dealer to sell any beer, porter, ale, fruit juice, wine, malt beverages, vinous, spirituous, alcoholic, or intoxicating liquor for consumption off the licensed premises; and further allows the retail dealer to operate a place of business whose purpose is to prepare meals to the general public for consumption on premises subject to the following conditions and restrictions:

(1) Each applicant for a microdistillery license shall meet the requirements set forth in this chapter for a class A, B, or C applicant.

(2) The provisions of this subsection shall not authorize the holder of a microdistillery license to sell the manufactured beverages at wholesale or to a wholesale dealer or manufacturer.

(3) The holder of a microdistillery license shall not sell any alcoholic beverages for transportation off the premises to any other licensed alcoholic beverage retail dealer.

(4) The fee for a microdistillery license shall be one hundred twenty dollars ($120.00) for manufacturers of low-alcoholic content beverages, five hundred dollars ($500.00) for manufacturers of all other qualifying beverages per year per licensed location.

(5) Prior to commencing distilling operations, holder of a microdistillery license shall obtain approval from the state fire marshal.

(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 15458, § 1, 2-27-13; Ord. No. 15469, § 1, 3-27-13; Ord. No. 15537, § 1, 8-14-13; Ord. No. 16078, § 1, 10-14-15; Ord. No. 16079, § 1, 10-14-15; Ord. No. 16971, § 1, 1-23-19; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1004. Organizations and businesses exempted from license requirements.

(a) *Community centers.* The provisions of this section shall not apply to publicly owned and/or operated community centers for the purposes of receptions, parties, and other events held at the community center and only under the following circumstances:

(1) No sales of alcoholic beverages shall take place at such facilities.

(2) Alcohol shall be allowed at the receptions, parties, and other events served by a caterer licensed under the provisions of

this chapter. Any caterer serving alcohol at a community center will sign a contract wherein it will indemnify the city and parish for any incidents that arise from the service of alcohol at the event.

(3) No alcohol shall be served during regular working hours of the facilities.

(b) *Art instruction studios.* The provisions of this section shall not apply to businesses whose primary purpose is art instruction and only provided that no sales of alcoholic beverages shall take place at such facilities and no alcoholic beverages shall be furnished or handled by the staff of the business.

(c) *Hair and nail salons.* The provisions of this section shall not apply to businesses whose primary purpose is hair or nail services and only provided that no sales of alcoholic beverages shall take place at such facilities. Customers are only allowed two (2) complementary alcoholic beverages per visit. Any person serving will need to be permitted.

(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 16080, § 1, 10-14-15; Ord. No. 18095, § 1, 4-28-21; Ord. No. 18879, § 1, 6-14-23)

Sec. 9:1005. Special and temporary business or organizational permits.

(a) *Restaurant after hours permit (R.A.H. permit).* Restaurants which have obtained a class R restaurant license or meet and maintain the requirements set forth in subsection 9:1003(g) of this chapter may remain open for the sale of food and food items only, after applying for and receiving on an annual basis an additional restaurant after hours permit. However, no sale, dispensing or consumption of alcoholic beverages shall be allowed or permitted anywhere on the licensed premises during the prohibited periods set forth above. During the prohibited periods, no open containers or sealed containers containing alcoholic beverages shall be allowed anywhere on the licensed premises or property except in a locked cabinet, locked closet, locked storage room or locked separate room. Businesses who maintain rooms used as lounges or bars which are separate from the restaurant section, must lock those separate rooms during the prohibited period. Proof of the finding of any open container holding alcoholic beverages at any other place in the licensed premises during the prohibited periods shall result in a presumption that some of the contents of the container are consumed on the licensed premises on the date found and during the prohibited period; and shall further result in a presumption that the contents of the container were sold by the license/permit holder, his manager, agent, servant or employee on the date found.

The permit may be issued to a location with a valid class R license issued under this chapter, which is also the holder of a class A beer and/or liquor license, after payment of an annual permit fee of sixty dollars ($60.00).

(b) *After hours work permit.* A licensee may obtain from the alcoholic beverage control office an annual after hours work permit, which allows the licensee to hire such persons as necessary to be in or on the licensed premises, between 2:30 a.m. and 6:00 a.m. Monday through Saturday for the sole purpose of cleaning the premises, provided that no sale, dispensing or consumption of alcoholic beverages shall be permitted upon the licensed premises during the above hours. Authorization of the above shall be issued upon written application by the licensee to the ABC office. The after hours work permit shall be posted and available for inspection by any law enforcement officer or ABC agent. This permit shall have the names of those clean-up persons listed on the face of the permit and only those persons listed on the permit shall be allowed on the premises during those hours. Any changes, erasures, or alterations to the permit made by any person other than those authorized by the ABC office shall constitute a violation of this section and subject the licensee to fines and/or suspensions of this permit at a hearing before the ABC board in the same manner as provided for all other permits or licenses issued.

The permit may be issued to a retail dealer with an annual permit fee of sixty dollars ($60.00). The application shall contain the names of the persons to be in or on the premises to be cleaned

after hours. This permit shall be updated by written request when new personnel are employed by the licensee with an additional charge of twenty dollars ($20.00).

(c) *Sunday clean-up, inventory and minor maintenance.* The permit holder and/or manager of record with the ABC office, employees of the permittee, also on record with the office, may be in or upon the licensed premises on Sunday between the hours of 2:30 a.m. and 11:00 a.m., only, for the sole purpose of taking inventory, cleaning up and doing minor maintenance; however, no sale, dispensing or consumption of alcoholic beverages shall be permitted except as may be provided for under this chapter.

(d) *Removal of band equipment.* The permit holder, band members, and manager of the permittee may be in or upon the licensed premises between 2:30 a.m. and 3:00 a.m. for the sole purpose of removing all band equipment, after the bar is closed at 2:30 a.m. to the general public and all customers are off the licensed premises. This section shall in no way be construed to modify or extend section 9:1006 in general, which prohibits the sale, serving or dispensing of alcoholic beverages after 2:00 a.m. and requires that all customers must be off the licensed premises by 2:30 a.m. and prohibits any consumption of alcoholic beverages after 2:30 a.m.

(e) *Temporary permit—Existing businesses.* Any person, firm, corporation or association of persons acquiring an existing retail or wholesale business licensed to sell alcoholic beverages under the provisions of this chapter, as an owner or lessee may be permitted by the ABC office to operate on a temporary basis until the board approves or denies the application, as set forth above. In the case of a retail business, such an applicant shall be required to post a sign, at the applicant's cost, in a place on the premises designated by the ABC office or its representative as is required of applicants for new places of business. The provisions of this paragraph shall apply to businesses which have been licensed during the current year or the year immediately preceding the current year. Temporary permit may be pulled by the director of alcoholic beverage control for any violation of any city, state or federal law. A temporary permit is deemed null and void absent proof of receipt of a state permit within thirty-five (35) days of issuance of the temporary permit.

(f) *Temporary permit—New businesses.* Any person, firm, corporation or association of persons applying for a new license to sell alcoholic beverages under the provisions of this chapter, as owner or lessee, may be permitted by the staff of the ABC office, in cases where all other provisions of this chapter are complied with, to operate on a temporary basis until the board approves or denies a permanent license or permit, at its next scheduled meeting. The failure of the board to approve a permanent license or permit at the next scheduled meeting of the board shall constitute an automatic revocation of the temporary permit. A temporary permit may be revoked by the director of alcoholic beverage control for any violation of any city, state or federal law. A temporary permit is deemed null and void absent proof of receipt of a state permit within thirty-five (35) days of issuance of the temporary permit.

(g) *Three-day temporary permit for non-profit organizations.*

(1) *Non-profit organizations.* There shall be issued by the alcoholic beverage control office a three-day temporary beer and/or liquor permit to charitable organizations, religious organizations, non-profit organizations and fraternal organizations for the purpose of serving beer and/or liquor at non-profit fairs held by these organizations. The religious, charitable, non-profit and fraternal organizations, which are non-profit organizations in nature, must be classified as such by all taxing authorities. The application for a three-day permit must be accompanied by:

a. A copy of the charter of the organization, club or facility;

b. A current, accurate membership roster showing full names of members and their current resident address with only those members of legal age being authorized to

dispense alcohol for the length of the permit without obtaining a bartender's license;

c. Certification by the duly elected officers of the organization that said organization is certified as a non-profit organization by all taxing authorities and list such authorities.

(2) *Certification by building official required.* The application must accompany a permit granted by the building official in accordance with title 9, chapter 1, part VII (carnivals, street fairs, circuses, etc.), sections 9:111 through 9:116 of this Code. A certification from the building official must indicate that all of the requirements to have a fair are in accordance with the ordinance governing carnivals, street fairs, circuses, etc. Those organizations qualified above in subsection (a) that own or lease private property where a fair is to be held must provide a general description of the property in lieu of obtaining certification from the building official.

(3) *Hours of operation.* Such three-day beer and/or liquor permit shall be for three (3) consecutive days only, beginning at the time designated by the ABC office and ending at the time designated by the ABC office, at which time such beer and/or liquor permit shall expire. This permit under this section is not for the purpose of serving alcohol beyond the closing hours as provided in the wine, beer and liquor ordinances for the city and parish.

(4) *Location requirements.* This three-day beer and/or liquor permit shall be for the purpose of serving beer within the designated boundaries of the fair as provided to the building official. This section shall be an exception to the provisions requiring licensed premises under the wine, beer and liquor ordinances for the city and parish.

(h) *Special event permit.* A special event permit may be issued to any licensed premises by the alcoholic beverage control office with the approval of the council member in whose district said special event is to be held. In the absence of the council member and in cases where expediency is necessary, the ABC director or his designee may approve the special event permit.

All businesses located within the territorial limits of the "downtown development district" as defined in R.S. 33:2740.8, are eligible for a special event permit regardless of whether or not their main business is the sale of alcoholic beverages.

The permit fee shall be three hundred sixty dollars ($360.00) per day of the event for liquor (to include beer and wine) or one hundred twenty dollars ($120.00) per day of the event for beer only. No more than twelve (12) special event permits shall be issued to any location in any given year. The applicant shall specify the duration of the event, which is a minimum of one (1) day and a maximum of three (3) consecutive days, per event. Each permit issued shall represent a single event of one (1) to three (3) days, the fee shall be calculated per day, per event, by type(s) of liquor to be served, and shall apply to each permit issued. The permit shall be issued to the premises defined in the application.

The alcoholic beverage control office shall not issue any special event permit to any applicant for said permit if such applicant is delinquent in the payment of any tax, license or fee to the city or parish.

The provisions of this section shall not apply to those religious, charitable, non-profit and/or fraternal organizations described in subsection 9:1005(g).

(1) *Fraternal organizations on college campuses.* Fraternal organizations located on college campuses shall be allowed to obtain no more than twelve (12) special event permits, not to exceed one (1) day per permit, at any location in any given year. These permits may be obtained through a retailer or caterer who possesses a current valid license to sell alcoholic beverages in the parish. The

same requirements as set forth for any other individual or organization desiring to obtain a special event permit must be met.

(i) *On-site tasting permit.* On-site sampling for the purposes of allowing a customer to taste a brand of wine, beer, or liquor shall not be conducted on any premises unless licensed under section 9:1003 of this chapter or unless such on-site sampling is conducted in accordance with the following conditions and restrictions:

(1) Any retail dealer holding a class B (liquor) permit may apply to the office of alcoholic beverage control for an on-site tasting permit pursuant to this section at least one (1) week prior to the proposed date of the sampling setting forth the date, time, location, and brand(s) of wine to be sampled.

(2) A retail dealer, wholesaler, manufacturer and/or supplier may furnish the wine, beer, or liquor to be sampled and the containers used to hold such samples in connection with the sampling subject to state and/or federal laws, rules and/or regulations.

(3) All samplings conducted pursuant to this section shall be limited in duration to one (1) day and no more than two (2) on-site tasting permits shall be issued for any licensed premises each month.

(4) The fee for the on-site tasting permit(s) provided for in this section shall be sixty dollars ($60.00) per permit.

(5) All persons serving pursuant to an on-site tasting permit issued in accordance with this section shall have the appropriate valid and current retail license.

(6) On-site sampling conducted pursuant to an on-site tasting permit issued pursuant to this section shall be restricted to within a fifteen-foot radius of the area of the licensed premises where most of a retail dealer's inventory is normally and routinely stocked, merchandised, and/or marketed.

(7) No person under the age of eighteen (18) shall be allowed in the area of a class B (liquor) establishment that offers tastings pursuant to this section at any time unless accompanied by a parent, legal guardian or spouse twenty-one (21) or older.

(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15420, § 1, 11-28-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 15458, § 2, 2-27-13; Ord. No. 16079, § 1, 10-14-15; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1006. Hours of operation and closing times for licensed or permitted businesses and organizations.

(a) *Class A, B and R license holders.* The hours of operation of all class A on-premises consumption license holders shall be from 6:00 a.m. daily until 2:00 a.m. of the following day, Mondays through Saturdays, and from 11:00 a.m. Sunday daily until 12:00 a.m. midnight Sunday. The hours of operation of all class R on-premises consumption license holders shall be from 6:00 a.m. daily until 2:00 a.m. of the following day, Mondays through Saturdays, and from 10:00 a.m. Sunday daily until 12:00 a.m. midnight Sunday. The hours of operation of all class B off-premises consumption license holders shall be from 6:00 a.m. daily until 2:00 a.m. of the following day. Whenever New Year's Eve falls on a Sunday, all class A and R license holders shall be allowed to operate on New Year's Eve until 2:00 a.m. the following day, and the premises must be vacated by 2:30 a.m. the following day. It shall be a criminal offense as well as a violation of this chapter for any holder of such a retail dealer's license/permit issued under this chapter or a servant, agent or employee of same to dispense, in any manner, beverages described in subsection 9:1000(b) of this chapter between the hours of 2:00 a.m. and 6:00 a.m., except as provided below:

(1) *Sunday sales—Motels, hotels, restaurants, convention facilities and private clubs.* Without meeting the requirements of subsection 9:1003(g)(5) of this chapter, motels, hotels, convention facilities, riverboats as defined in the Louisiana

Riverboat Economic Development and Gaming Control Act, R.S. 9:501 et seq., and adjacent docking and patron assembly facilities including restaurants, and private clubs offering family-type outdoor recreational facilities designed and used as golf and/or tennis clubs whose land area used for said recreational activities exceeds the area in square footage used for improvements by a ratio of at least twenty (20) to one (1), shall be permitted to serve beverages described in subsection 9:1000(b) herein between the hours of 10:00 a.m. and 12:00 a.m. midnight Sunday to guests, members and other private functions including legitimate groups, but shall be prohibited from selling package goods or opening bars or lounges to the general public during the specified hours. Said ratio in square footage is to be determined by the inspection division. Private clubs designated above shall meet all requirements of subsection 9:1006(a)(2)a. and b. except such clubs will not have to be classified as a non-profit organization. Riverboats, as previously defined in this section, may only serve beverages described in subsection 9:1000(b) herein between the hours of 10:00 a.m. and 12:00 a.m. midnight Sunday to their patrons.

(2) *Sunday sales—Non-profit organizations.* Religious, charitable, fraternal, veterans and other private clubs, which are non-profit organizations in nature and classified as such by all taxing authorities, licensed under the provisions of this chapter, upon certification as a non-profit organization by the ABC office, shall be permitted to sell beverages described in subsection 9:1000(b) between the hours of 10:00 a.m. Sunday and 12:00 a.m. midnight Sunday subject to meeting the following conditions:

a. *Criteria.* That an organization described in this section apply for and receive on an annual basis, a permit to serve alcoholic beverages during the hours specified above.

b. *Documentation required.* Said permit application to be accompanied by:

1. A copy of the charter of the organization, club, or facility.
2. A current, accurate membership roster showing full names of members and their current residence address.
3. Certification by the duly elected officers of the organization that said organization is certified a non-profit organization by all taxing authorities and list such authorities.
4. That an organization applying for a permit under this section also hold a current license/permit under other provisions of this chapter for the sale of alcoholic beverages.

(3) *Closing hours.* All class A (on premises consumption) locations shall be closed at 2:30 a.m. until 6:00 a.m., the same day, Monday through Saturday, and shall be closed from 2:30 a.m. Sunday until 11:00 a.m. and shall be closed from 12:30 a.m. until 6:00 a.m. Monday. All class B (off-premises consumption) locations may remain open twenty-four (24) hours per day, however, no alcohol may be sold, dispensed, consumed, or given away from 2:00 a.m. until 6:00 a.m. daily, Monday through Sunday.

Class D (riverboat extended operation) licensed locations may serve alcohol twenty-four (24) hours per day with no requirement to close or shut down operations at those bars and liquor service points which are entirely enclosed within the licensed gaming floor and have restricted access pursuant to R.S. 27:41, or which can only be accessed through the licensed gaming floor and have restricted access pursuant to R.S. 27:41.

(4) *Exemptions.* Those businesses exempted from the provisions of former R.S. 51:191 and by the provisions of former R.S. 51:192 as they read when repealed in

1986, and riverboats as defined in the Louisiana Economic Development and Gaming Control Act, R.S. 9:501 et seq., and adjacent docking and patron assembly facilities, may remain open for the sale of other items permitted by law, but any sale, dispensing, or consumption of alcoholic beverages at such places of business during the prohibited periods set forth above is expressly forbidden. During the prohibited periods, no open containers, glasses, bottles, cans or other containers holding alcoholic beverages shall be allowed anywhere on the licensed premises or property, except in a locked cabinet or cupboard; provided that those businesses maintaining separate rooms for the conduct of the business of dealing in alcoholic beverages may securely close and lock said separate rooms. Proof of the finding of any open container holding alcoholic beverages at any other place in the licensed premises during the prohibited periods shall result in a presumption that some of the contents of the container were consumed on the licensed premises on the date found and during the prohibited period; and shall further result in a presumption that the contents of the container were sold by the license/permit holder, his manager, agent, servant or employee on the date found.

(b) *Class P license holders.* The hours of operation of all class P (on-premises consumption) license holders shall be from 10:00 a.m. daily until 12:00 a.m. of the following day. It shall be a criminal offense as well as a violation of this chapter for any holder of a class P license issued under this chapter or a servant, agent or employee of same to dispense, in any manner, beverages described in subsection 9:1000(b) of this chapter between the hours of 12:00 a.m. and 10:00 a.m. All class P locations shall be closed at 12:30 a.m. and may not sell beverages described in subsection 9:1000(b) of this chapter before 10:00 a.m.

(c) *Class M license holders.* The hours of operation of all class M (manufacturer's) license holders shall not be limited, except as follows:

(1) *Class M license holder with on-premises consumption.* The hours of operation of all class M (manufacturer's) which also holds a class A license and operates any on-premises tasting room, other on-premises consumption facility or service point of any sort shall be from 9:00 a.m. until 12:00 a.m. of the following day, Monday through Thursday, 8:00 a.m. until 2:00 a.m. of the following day, Friday and Saturday, and 12:00 p.m. until 12:00 a.m. on Sundays for those areas which serve or dispense any qualifying beverages under this chapter. The hours of operation for the manufacturing operation shall not be limited.

(2) *Class M license holder with off-premises consumption.* The hours of operation of all class M (manufacturer's) which also holds a class B license and operates any sales point for off-premises consumption of any sort shall be from 9:00 a.m. until 12:00 a.m. of the following day, Monday through Thursday, 8:00 a.m. until 2:00 a.m. of the following day, Friday and Saturday, and 12:00 p.m. until 12:00 a.m. on Sundays for those areas which serve or dispense any qualifying beverages under this chapter. The hours of operation for the manufacturing operation shall not be limited.

(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 15458, § 3, 2-27-13; Ord. No. 15469, § 2, 3-27-13; Ord. No. 15537, § 2, 8-14-13; Ord. No. 17073, § 1, 5-22-19; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1007. Types of employee licenses, fees for employee licenses, and qualifications for employee licenses.

(a) *Classified employee license required.* Any person employed or used in a class A, B or R licensed retail business or a licensed limousine service who, as a function of their duties, dispenses, sells, delivers or serves any alcoholic beverages as described in subsection 9:1000(b) of this chapter shall be required to be licensed. A classified employee license shall cost thirty dol-

lars ($30.00) for issuance of a license to a qualified applicant, as defined in this chapter, for a two-year license.

(b) *Classified employees in general.* Persons required to hold permits under this section shall be referred to as classified employees and that classification, as used in this section, shall include, but not be restricted to mean bartenders, barmaids, waiters, waitresses, cocktail waiters, cocktail waitresses and chauffeurs employed by a licensed limousine service except that this subsection shall not apply to a person holding a dealer's license, or to a person holding a waiter/waitress alcoholic beverage permit as described in this chapter.

(1) *Manager, bouncer, door man and disc jockey required to obtain classified employee license.* Any person employed in any retail business described herein as a manager, disc jockey, door man, or "bouncer" shall also be subject to licensing under this chapter as a classified employee.

(2) *Exotic dancers.* Any person performing as an exotic dancer at any business licensed under the provisions of this chapter, or any event exempted or permitted under this chapter, shall comply with the provisions of sections 9:325—9:329 of this Code, which provides for qualifications and licensing of exotic dancers, in addition to the provisions herein.

a. Any person employed or used in any retail business to dance or gyrate or perform any other physical performance shall be subject to licensing as a classified employee, except that records of exotic dancers shall be separately kept and made available to law enforcement officials. Provided that the provisions of this section shall not apply to amateur nights wherein non-employees are allowed to dance without the benefit of any compensation whatsoever, including gratuities from patrons. Any business, individual, organization or other entity wishing to conduct an amateur night shall, at least seven (7) days before the event, notify the alcoholic beverage control office of the intent to do so and shall at that time specify the date of such event and the hours thereof, said notification to be written. No such entity shall be permitted to have more than one (1) amateur night per week.

b. It shall be illegal for any employee to solicit or induce any persons on the premises to purchase for him/her or for the solicitor or any other person, any beverage or other product of whatever kind sold in such establishment whether or not the solicitor expects to realize a profit or reward as a result of such solicitation. This paragraph shall not apply to bartenders, managers, waiters or waitresses.

(3) *Fashion models.* Any person employed or used in any retail business to perform services as a model and models, demonstrates, or in any way displays clothing or wearing apparel of any kind in return for anything of value, shall also be subject to licensing under this chapter as a classified employee.

(c) *Waiter/waitress license required.* Any person employed or used in a class A or R licensed retail business whose primary function is to take orders for and serve food and food items and who also takes orders for and serves alcoholic beverages in conjunction with the serving of those meals. A waiter/waitress license shall cost thirty dollars ($30.00) for issuance of a license to a qualified applicant, as defined in this chapter, for the duration of employment in that particular corporation, company or association, with the thirty dollar ($30.00) fee to be recharged if the waiter/waitress who holds a waiter/waitress alcoholic beverage license changes position of employment to another corporation, company or association.

(d) *Retail clerk license required.* Any person employed or used in a class B licensed retail business who, as a function of their duties,

dispenses, sells or serves any alcoholic beverages as described in subsection 9:1000(b) of this chapter. Persons required to hold licenses under this section shall be referred to as retail clerks and that classification, as used in this section, shall include, but not be restricted to mean managers, sales clerks, retail clerks, and check-out counter clerks. A retail clerk license shall cost thirty dollars ($30.00) for issuance of a license to a qualified applicant, as defined in this chapter, for the duration of employment in that particular corporation, company or association with the thirty dollar ($30.00) fee to be recharged if retail clerk who holds a retail clerk alcoholic beverage permit changes positions of employment to another corporation, company or association.

(e) *Qualifications for classified employees, retail clerks and waiter/waitresses.* Each applicant for a permit as a classified employee, retail clerk and/or waiter/waitress shall meet the requirements as listed in subsection 9:1003(e), except the two-year residency requirement and the requirements of both national and state citizenship as required under subsection 9:1003(e)(2), provided that any person not a citizen of the United States shall be the holder of a properly issued passport and current visa. If the above applicant has been adjudged by a board or convicted by a court in any matter stated in section 9:1003(e) of this chapter, the granting of any permit or of a renewal is within the discretion of the board.
(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 15458, § 4, 2-27-13; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1008. Notice of intent to apply for business license, issuance of business licenses, criteria for issuance.

(a) *Notice of intent and public notice requirements.*

(1) *Notice of intent.* New businesses: as a prerequisite to the filing of an application for permits for new business hereunder, the applicant must file a notice of intent for a fee of five hundred sixty-four dollars ($564.00) to apply for a permit. This notice of intent shall be submitted to the alcoholic beverage office, disclosing the proposed location of the establishment. An assigned agent will go to the proposed site whereupon the agent will determine if said site meets location requirements as provided in title 9, chapter 18, of the Baton Rouge Code of Ordinances. Upon approval of the site, notice shall issue as set forth in this section.

New businesses, class P: an applicant for a class P permit must file a notice of intent for a fee of ten dollars ($10.00). This notice of intent shall be submitted to the alcoholic beverage office, disclosing the proposed location of the establishment. An assigned agent will go to the proposed site whereupon the agent will determine if said site meets location requirements as provided in title 9, chapter 18, of the Baton Rouge Code of Ordinances. Upon approval of the site, notice shall issue as set forth in this section.

(2) *Notice requirements.*

a. On approval of the site, the ABC staff shall set a proposed initial hearing date for review of the report and determination of suitability of the proposed application.

b. On approval of the site, an agent shall post a sign at the proposed location. Said sign shall be printed on orange, eighteen (18) by twenty-four (24) inch paper, as utilized by the planning commission, and shall be horizontally oriented to maximize visibility to the public. Said sign shall remain visible in the designated location at all times for a period of thirty (30) consecutive days.

c. Signs shall be posted at the service point for any class P applicant and at the main entrance from each parking lot at the facility to be licensed.

d. For any delivery applicant, notice shall be posted on the applicant's

website for a period of thirty (30) consecutive days and in the official journal of the city-parish for three (3) days.

(3) *Official report.* After the 30-day notification period, ABC staff shall complete and deliver to the board an official report for all new businesses that will be used primarily for the purpose of determining the risk of local overconcentration of liquor outlets. Utilizing the most recent data available from the U.S. Census Bureau, East Baton Rouge Parish Sheriff's Office, Baton Rouge City Police, planning commission, and other relevant agencies, this preliminary report shall include, but not be limited to, the following information on the area within a one-mile (5,280-foot) radius of the proposed location, to include census blocks within that radius where necessary:

a. Average household income (to include percentage of home ownership where data is available).

b. Family structure (percentage of single-parent households, percentage of population consisting of males between the ages of fifteen (15) and twenty-four (24) years).

c. Population density (overall population of the specified area).

d. Crime statistics by type of crime and frequency for the preceding twelve-month period.

e. Statistics regarding comparative frequency of communicable diseases, including but not limited to sexually transmitted diseases and HIV infection, for the specified area as compared with the parish and state as a whole.

f. Number of liquor licenses in the vicinity by type of license.

g. Total number of liquor licenses in vicinity and number of ABC violations at those licensed locations in the past twelve (12) months.

h. Business plan of proposed licensee.

i. For the purposes of determining overconcentration of liquor outlets, no single factor listed herein is controlling. All relevant factors, as determined by the board, must be considered in determining whether to allow an application to proceed. Such factors may include, but not be limited to, the following:

1. Risk of undue congestion of streets and traffic access;

2. Land or building usage which is, or may become incompatible with existing character or usage of the neighborhood;

3. An overconcentration of types of land use or zoning in proportion to population, land use and public facilities in the neighborhood;

4. Affect the reliance that neighboring property owners or occupants have placed upon existing zoning patterns;

5. Creation of a spot zone, that is, an incompatible or unrelated classification which would prevent the normal maintenance and enjoyment of adjacent properties; and

6. Any other concern that would affect the public health, safety or morals.

(4) *Official report for class P applicants.* After the thirty-day notification period, ABC staff shall complete and deliver to the board an official report for all new class P locations, as set forth in subsection 9:1008(a)(3), except that the area to be analyzed will be measured as one (1) mile from the actual alcohol service point of the location, and not from the physical boundaries of the overall recreational facility.

(b) *Approval of statement of intent.* After the thirty-day notification period, and upon receipt and review of the official report, the board may

issue notification to file an application in accordance with section 9:1009. Prior to issuing such notice, the board shall, at all times, consider the impact that a new license or liquor outlet would have on the immediate area surrounding the new outlet, based on facts and information as provided in the official report, any opposition to the proposed application, any citizen commentary, and deny the application if the board finds that the new outlet would cause or contribute to overconcentration of liquor outlets in the area, or would otherwise adversely affect public health, safety or morals.

(c) *Ongoing businesses.* For ongoing businesses, as defined in section 9:1001 of this chapter, after the thirty-day notification period, and upon review of facts and information available from their investigation of the premises, public records, and other reliable information, the ABC staff may issue notification to file the ongoing business application in accordance with sections 9:1003 and 9:1009.

Prior to issuing such notice, the staff shall, at all times, consider the impact that a renewed or new license or liquor outlet would have on the immediate area surrounding the new outlet, based on facts and information available from their investigation of the premises, public records, and other reliable information, and refer the application to the board for review if the staff finds that the new outlet would cause or contribute to overconcentration of liquor outlets in the area, or would otherwise adversely affect public health, safety or morals.

The ABC staff may only authorize application by an existing business in cases where no complaint or petition of opposition has been filed as to the license. Where complaint or a petition of opposition has been received by the ABC staff, any decision regarding issuance of a license or permit shall remain with the ABC board.

If the ABC staff permits the application to proceed under these guidelines, the director of ABC may issue a temporary license to an ongoing business which meets his reasonable approval based on reliable information, reports, and investigative findings. A temporary license issued under these guidelines may be revoked, suspended, or withdrawn by the director of ABC for any violation of any city, state or federal law, or on any grounds provided by the Baton Rouge Code of Ordinances, title 9, section 18, which would be grounds for discipline, warning, revocation, or suspension of a permanent license, or for any good cause shown by the director. A temporary license is deemed null and void absent proof of receipt of a state permit within thirty-five (35) days of issuance of the temporary permit.

Issuance of a temporary license under these guidelines in no way indicates that a final, permanent license will be granted. No applicant has the right of appeal from the director's discretionary issuance or refusal to issue any temporary license or permit under this section.

(d) *Right of appeal.* If, after reviewing the evidence, an application is denied and the board refuses to issue notification to file application, the applicant shall have the right to take an appeal in accordance with the provisions of section 1:153 of this Code. The decision of the board shall be final unless appealed within the time and manner set forth above.

(e) *Opposition procedure.* If, during the thirty-day notification period, complaint or opposition is made, the ABC office shall refuse to issue the notification to file application and shall order the complainant(s) and the applicant to appear before the next scheduled meeting of the alcoholic beverage control board, in order for the complainant(s) to show cause why the notification should not be issued. The burden of proof shall be on the complainant(s) to prove by a preponderance of evidence justifiable grounds for denying the issuance of a notification to file application. "Justifiable grounds" include any grounds set forth in R.S. tit. 26, or city-parish beer and/or liquor ordinances, title 9, or any other grounds which might adversely affect the public health, safety, or morals, including the information provided in the official report.

If the board dismisses the complaint(s), it shall issue the notification to file an application, and the applicant may proceed in accordance with the provisions of section 9:1009. Notwithstanding the decision of the board, however, the complainant(s) shall have the right

to file with the ABC office a sworn formal petition of opposition to issuance of a permit at any time prior to same being issued, pursuant to R.S. tit. 26. Upon receipt of any such petition, the ABC office shall immediately send the permit application and a copy of the petition to the appropriate state office for review in accordance with R.S. tit. 26. No further action will be taken on the permit application when such a petition is filed until ruled upon by the state office. In the event the board sustains the complaint(s), it shall refuse to issue the notification to file application, the applicant shall have the right to take an appeal in accordance with the provisions of section 1:153 of this Code. The decision of the board shall be final unless appealed within the time and manner set forth above.

(f) *Class D licenses.* A riverboat casino, as defined within this chapter, which is a holder of a class A beer and/or liquor license, does not have to provide separate notice of intent, application, or renewal apart from its class A license. The criteria for issuance of the class D license are:

(1) Meets the definition of riverboat casino as provided in section 9:1001; and

(2) Is issued and maintains a valid class A beer and/or liquor license.

(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15419, § 1, 11-28-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 15458, § 5, 2-27-2013; Ord. No. 15469, § 3, 3-27-13; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1009. Application for business licenses, criteria for issuance of business licenses, approval of business licenses.

(a) *Criteria.* Upon presentation of a notification to file application issued pursuant to section 9:1008, the applicant may file his application for a permit for a new business. All applications for wholesale or retail permits, whether new or renewal, shall be in writing and sworn to, and shall contain the full name of the applicant and the accurate description and correct address of the premises in which the business is to be conducted, which address shall be considered the proper address for all notices to the applicant or licensee required by this chapter. This application shall be filed in duplicate with the ABC office, and shall be accompanied by lawful currency of the United States, a cashier's check, or a postal money order in the proper amount and payable to city and parish treasurer. Said application shall also be accompanied by the following:

(1) A list of all persons, firms, corporations or associations of persons financially interested in any way in the business.

(2) A list of all persons, firms, corporations or associations of persons endorsing loans or lending funds to the applicant which in any way will be used in the business.

(3) Each person applying for a retail dealer's permit to sell alcoholic beverages, and any person financially interested in such business, shall be photographed in accordance with procedures to be set up by the ABC office.

(4) Each applicant, at the time of making his application, or as soon thereafter as possible but prior to opening for business, shall designate some person(s) who will act as manager(s) and assume responsibility for the proper operation of the business in the applicant's absence. The applicant shall, at the same time, submit evidence as may be required by the ABC office, that such person also possesses all the qualifications required of the applicant.

(5) In applications where the licensed premises are being or are to be leased, applicant must show the name and current address of the lessor on the application.

(6) Each applicant applying for a retail dealer's permit to sell alcoholic beverages, whether new or renewal, and any person financially interested in such business, shall complete and submit the authorization to disclose tax information form provided by the office of alcoholic beverage control.

(b) *Approval by the board.* Upon receipt of an application together with supporting data per section 9:1008, the ABC office shall cause an appropriate investigation of the application to be completed within fifteen (15) days excluding weekends and legal holidays. Said investigation to be reported to the board at its first meeting following the fifteen (15) day investigation period. At that meeting, if the applicant has met all the requirements of the laws of Louisiana and this chapter, there is no opposition pending which must be disposed of, and the board, considering the information provided in the official report and the outcome of the final investigation, feels that the issuance of the permit will not be adverse to the public interest, the board may authorize issuance of the permit. Public comments and opposition regarding a proposed permit are expressly permitted at the final hearing, and all public comments must be taken prior to the board's final vote on issuance of the permit. Should the board deny the permit application, the applicant has the right to file an appeal in accordance with the provisions of Baton Rouge City Code section 1:153 or the decision of the board will be final.
(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15419, § 2, 11-28-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 15458, § 6, 2-27-13; Ord. No. 16972, § 1, 1-23-19; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1010. Building, location, zoning, parking requirements, and security for businesses.

(a) *Building requirements.*

(1) *Acquire and maintain health permit and comply with all fire, building, plumbing, electrical, heating, air conditioning and zoning codes.* Failure to possess and maintain all proper and applicable health permits for any premises licensed under this chapter or the violation of, or noncompliance with any applicable fire prevention, building, plumbing, electrical, heating, air conditioning or zoning codes pertaining to any premises licensed under this chapter shall be cause for denial, revocation or suspension of any permit or license. The issuance or reinstatement of any such license, application or permit shall not be considered by the ABC board until the board receives notification from the proper authority that all health permits are valid and current or said violation or noncompliance has been corrected. In the case of new construction of a proposed licensed location, a certificate of occupancy shall be required before final issuance of a license or permit.

(2) *Premises destroyed.* In the event that premises licensed hereunder are destroyed by fire or any natural disaster or act of God, the licensee shall be permitted a reasonable time within which to reconstruct the licensed premises, but in no event longer than twenty-four (24) months, unless further extended by the ABC board.

(b) *Location prohibition—Three hundred-foot distance requirement from churches, schools and public playgrounds, and daycare centers.* No license or permit shall be granted hereunder to any applicant when the property upon which the business is to be conducted is within three hundred (300) feet of any property used exclusively as a regular church or synagogue, public library, school or orphans' home (except a school for business education conducted as a business college or school, and except a state college or university), or within three hundred (300) feet of a public playground, or within three hundred (300) feet of a daycare center, provided that the provisions of this section shall not apply to premises which are maintained as a bona fide hotel, wholesale dealer, railway car, or fraternal organization, or to any premises licensed to deal in beverages of low alcoholic content, for a period of one (1) year, or longer, prior to the passage of this chapter. The limitation on distance from a public playground shall not apply to a premises operated as a class P, public recreational facility licensee. The three-hundred-foot minimum distance shall be measured as provided by state law in R.S. tit. 26.

(c) *Zoning.*

(1) *Non-conforming.* No person operating a business which is presently classified as a legal non-conforming commercial use, as defined in the zoning ordinance of the city and parish, may apply for or be issued a license or permit without first obtaining a petition of fifty-one (51) percent of the property owners within three hundred (300) feet of said business (said petition must be obtained from the DPW permit office). This section only applies to class B (package) sales of retail beer and/or liquor, which does not allow consumption on the premises.

(2) *Requirements must be met prior to application.* All zoning requirements as required by the zoning ordinance of the city and parish must be met prior to the time an application for an alcoholic beverage license is filed with the ABC office.

(3) *Waiver of parking requirements.* The ABC board, subject to the approval of the zoning commission, may waive parking requirements either in whole or in part upon a finding that such waiver is in the public interest or that the person, firm, corporation, association of persons, or premises was operating on the premises prior to September 24, 1975.

(d) *Security.* All establishments with a class B license to sell alcoholic beverages shall be equipped with the following security devices during any period of time that the establishment is open for business to the general public:

(1) *Signage.* A conspicuous notice at all doors which are used for purposes of ingress and egress, which states that continuous video recording is in place on the property.

(2) *Height markers.* Conspicuous height markers affixed to the vertical frame of all doors that are used for purposes of ingress or egress, which provide clear measurement markings at the half-foot and foot level, measured from the floor, for use in assisting suspect identification;

(3) *Lighting.* Sufficient exterior lighting (minimum of three (3) lux or three (3) foot-candles measured at ground level), between sunset and sunrise, to illuminate the entire principal parking area and walkways including the front of the store, restroom, and all points of ingress and egress regularly used by customers and employees, so as to permit clear visibility of objects and immediate, clear identification of individuals in said areas;

(4) *Unobstructed view.* If a line of sight exists, it shall not be obstructed by window signage, window tinting and interior lighting so as to permit a clear, unobstructed view of the cash register and transaction area from inside or outside the building and the adjoining street.

(5) *Security camera system.* A security camera system must be capable of providing a digital image with a minimum pixel size of four megapixels, a minimum vertical resolution of 1024p, and a minimum frame rate of twenty (20) images per second that records and is capable under normal lighting and operating conditions of capturing and reproducing a reasonable photographic digital image that can be exported in a non-proprietary MPEG-4 or AVI format. The camera system shall be:

a. Cameras shall be placed in a permanent fixture at all registers between sixty-six (66) and seventy-eight (78) inches from the floor and positioned in a manner to capture the faces of all customers at the register;

b. Cameras shall be placed at all points of ingress and egress in a manner to capture the faces of all persons entering or leaving the establishment;

c. Cameras shall be placed in such a manner outside of the establishment so as to establish overlapping coverage of all areas of the parking lot and all points of ingress and egress to the establishment;

d. All cameras shall be mounted in a permanent fixture and in such a manner so as to prevent tampering by customers, employees or criminal offenders;

e. Maintained on a routine basis not to exceed every three (3) months to ensure that the camera system is working properly at all times; verification of such maintenance, including captured recordings produced with the system, retained on premises and made available for periodic inspection by ABC staff during all hours in which the establishment is open;

f. Capable of continuous operation twenty-four (24) hours a day which will automatically record all persons entering or leaving the establishment;

g. Capable under normal lighting and operating conditions of recording and producing a recognizable color, retrievable, enlargeable and reproducible photographic image on film or tape of persons at or near the sales transaction area. Such photographic image shall be of sufficient clarity to provide for suspect identification in an ABC office investigation or criminal proceeding;

h. Each camera shall operate under and display the accurate date and time of all recordings;

i. Each camera must be equipped with infrared emitters to facilitate low light and night operation;

j. All recordings shall be retained for no less than thirty (30) days; and

k. The physical media or storage device on which security camera recordings are stored must be off-site, internet "cloud based", or if stored locally on hardware at the establishment, secured in such a manner to protect the recording from tampering or theft.

(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 15469, § 4, 3-27-13; Ord. No. 18095, § 1, 4-28-21; Ord. No. 19646, § 1, 10-8-25)

Sec. 9:1011. Renewals of business and employee licenses and permits.

(a) *Requirements.* The application for renewal of a license and/or permit issued under this chapter will be approved or denied based upon the general purpose and intent of the requirements for an original application. Renewal of a license and/or permit shall be construed as an extension of those qualification requirements that permitted issuance of the current year's license and/or permit plus any amendments thereto.

(b) *Grounds for denial.* The application for renewal of a license and/or permit may be denied on the same grounds and in the same manner as an original application. However, any condition, act, or reason which would have been grounds for suspension or revocation of the permit for the previous year shall be grounds for denial of the application for renewal.

(c) *Filing deadline.* Business applications for renewal of a license and/or permit for the ensuing year shall be filed with the ABC office on or before January 31 of the present year, and a remittance therefor in cash, cashier's check, money order, or credit card in the proper amount, payable to city and parish treasurer, who shall hold same in abeyance until he is notified that the application has been approved. The term of the license shall be from February 1 through January 31 of the following year.

(1) *Classified employee renewal.* Classified employee's application for permit renewal, accompanied by the required remittance in cash, cashier's check or money order, or credit card shall be filed with the ABC office no later than thirty (30) days prior to expiration of the current permit.

(d) *Late penalty.* Should any business licensee fail to file an application for renewal together with the necessary fee(s) as required by this chapter, a penalty shall be imposed of twenty-five (25) percent of the amount due.

(1) *Denial.* If the application and fee(s) for renewal of a business license and/or permit is not filed before January 31 of the year for which the permit is required, the application for renewal may be denied and the procedure and requirements for a new business application imposed. If the renewal application is granted, however, it shall be subject to the penalties assessed hereinabove.

(2) *Waiver of penalties.* Notwithstanding the provisions above, the director of the alcoholic beverage control division shall have the authority to waive the penalties provided, under the following circumstances:

a. *By director.* Where the director of the alcoholic beverage control division determines that the reason the application and fee for renewal required under this section is not timely filed due to the fault of the city or parish and not due to the fault of the applicant;

b. *When issued after December 15.* Where the original license and/or permit is issued after December 15 of the year for which the permit is required, the application for renewal may be denied and the procedure and requirements for a new business application imposed.

(e) *Renewal not accepted after July 1.* No application for renewal of a license and/or permit, excepting classified employees, shall be accepted after July 1 and any application filed after that date shall be required to qualify as a new business.

(f) *Fingerprinting waived.* Fingerprinting persons financially interested in any business licensed to sell alcoholic beverages is hereby waived when such persons or businesses apply for renewal of a license and/or permit, provided there has been no change in ownership since last renewal.

(g) *Taxes and fees must be paid.* No renewal of license and/or permit shall be issued to an applicant if any required local political subdivision sales and use tax, penalties, interest, tax deposits, attorney fees, court costs fees, excise tax, occupational license tax or other tax, license or fee are outstanding or considered delinquent.

(h) *Fees same as new businesses.* Fees and/or taxes for all renewal applications shall be the same as levied on new businesses except herein where may be otherwise specified.

(i) *Health permit current.* An approved inspection report by the parish health unit dated within ninety (90) days of the renewal application must accompany said application.

(j) *Meet requirements of subsection 9:1009(a)(5).* All applications for renewal shall meet the requirements of subsection 9:1009(a)(5) of this chapter. (Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 15458, § 7, 2-27-13; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1012. Enforcement provisions.

(a) *Notification of charges by police and sheriff.* The chief of the city police department and the parish sheriff are hereby required to promptly notify the ABC office of any and all arrests or charges at any business establishment licensed under this chapter, which involve the holder of the license for that establishment, or any agent, servant or employee of same, and which arrests and charges relate to violations of this chapter; and the chief of police and sheriff are hereby directed to charge the licensee, the agent, servant or employee of same, as the case may be, with said violation before the proper court, who in turn will notify the ABC office of all charges resulting therefrom.

(b) *Chief of police to furnish assistance.* The chief of police of the police department of the city is hereby required to furnish any reasonable request for assistance by the ABC office or its authorized representative for the purpose of enforcing this chapter.

(c) *Request state agencies to take like action of ABC board.* Written notice of a decision by the ABC board to warn, deny, suspend or revoke any license or permit shall be sent immediately to such state officer, departments or agencies as may have jurisdiction over, or interest in such license/permits, with a request that the state take like action.

(d) *Who may cite a license holder.* The ABC office, city and parish officials, governing bodies, and law enforcement authorities have the right to have a licensee/permittee cited by the ABC office to show cause why a license/permit should not be revoked.

(e) *Inspections of premises.* As a consideration in being issued a license/permit to operate a business covered by this chapter, the license/permit holder agrees that the licensed property and any documents, sales records, etc. required herein shall be available for inspection upon request of any agency, or its representative, empowered to enforce this chapter.
(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1013. Acts prohibited.

In addition to prohibited acts and/or conditions found in sections 1:150—1:152 et seq. of this Code, no holder of a wholesale, retail or classified employee license and/or permit issued under this chapter, or their servant, employee, agent, representative or business associate shall perform, commit, or encourage or permit any person to perform or commit the following prohibited acts on any licensed premises:

(1) *Violation of any local, state, federal or international laws.* Commit, attempt, conspire, aid, abet or encourage any persons to commit any acts or things prohibited by this chapter, by the provisions of any applicable Louisiana Revised Statutes or law, or applicable laws of the United States or any other country.

(2) *Bring your own alcoholic beverages.* It is strictly forbidden to allow, encourage or permit patrons to provide or bring and/or consume alcoholic beverages not provided by the licensed establishment. Patrons cannot provide their own alcoholic beverages for consumption on premises unless the premises is licensed by state or local officials. This specifically applies to all tobacco, vape, smoke, hookah, arcades, gaming, theaters, listening rooms, and other retail type businesses.

(3) *Consumption of alcoholic beverages on any parking lot.* It shall be unlawful to sell, disburse or permit the sale or disbursement of alcoholic beverages or liquors, including beer, in any open container for consumption off licensed and/or leased premises; or it shall be unlawful to furnish open containers to patrons for the intent and purpose of removal and consumption of alcoholic beverages and liquors, including beer, off the licensed premises and/or leased premises.

(4) *Allow unlicensed persons to perform services.* Shall permit any person to perform any services, on the licensed premises, covered under this chapter for which a license/permit is required without same being first issued and in a current valid status.

(5) *Persons aiding and abetting in any violation with a license holder.* Any person aiding, abetting or participating in any violation of this chapter with any license/permit holder, or agent, servant, employee or business associate of such holder, shall be equally guilty of a violation of this chapter, and shall be punished as provided herein.

(6) *Operating without a permit.* Any person, firm, corporation or association of persons who operates, in any manner, a business described in subsection 9:1000(b) and/or section 9:1003 of this chapter without the proper license/permit shall have the premises of such business place closed and sealed from entry until such time as the city can be heard on a motion for a temporary restraining order or a preliminary injunction. Any alcoholic beverages, documents and sales receipts therein covered by this chapter shall be seized by the office of alcoholic beverage control until such hearing. Copies of seized documents which are necessary business documents, will be provided upon request and any alcoholic beverages therein covered by this chapter shall be seized by the office of alcoholic beverage control.

(7) *Permit employees to consume alcoholic beverages.* Permit any classified employee or for any classified employee described in this chapter to consume any alcoholic beverages on the licensed premises during hours of operation of the business or during the normal working hours of said employee, except that this section shall not apply to those persons employed in class R licensed businesses.

(8) *Provide off premises deliveries.* Provide off-premises delivery service of any alcoholic beverages excepting those businesses licensed under this chapter.

(9) *Offer alcohol as an inducement to purchase motor fuels.* Offer alcoholic beverages as an inducement to purchase motor fuels.

(10) *Prohibition of exotic dancers.* No individual, firm, corporation, business or other entity regulated or licensed to sell alcoholic beverages under this chapter shall employ or permit any exotic dancer to perform on the premises of any establishment owned or operated by such licensee whether said dancer is paid a salary, commission or receives gratuities from customers of the establishment.

It shall be prima facie evidence of a violation of this section if any female performer is clad only in "pasties" covering female breast nipples or is clad only in a "G-string" covering the female genitalia or a combination of both. It shall be prima facie evidence of a violation of this section if a male performer is clothed only in such clothing that covers the male genitals only.

Any individual, firm, corporation, business, or other entity regulated or licensed to sell alcoholic beverages under this chapter and employing exotic dancers, existing on the effective date of this chapter, shall be exempt from the provisions of this section. This exemption shall not be transferrable.

"Transferable" as used above applies to the ownership of the license as well as the location of the licensed premises at the time the exemption went into effect.

(11) *Forbidden promotional practices.* The following promotional practices between the hours of 10:00 p.m. and 10:00 a.m. of the following day:

a. Sell or otherwise furnish any alcoholic beverage that is free of charge whether associated with an admission fee or cover charge or not.

b. Sell or serve any alcoholic beverage at a price fixed on an "all you can drink basis."

c. Sell or otherwise furnish alcoholic beverages at a price which is less than sixty (60) percent of the usual, customary or established retail price charged for such alcoholic beverage drinks by that establishment.

d. Sell or serve to all patrons or classes of patrons multiple drinks for a single price.

e. Sell or serve an increased non-standard volume of alcohol in a single container for consumption by one (1) person.

f. Conduct games or contests that involve drinking alcoholic beverages or the awarding of alcoholic beverages as prizes.

g. Engage in any other practice which has as its specific purpose to encourage or permit patrons to drink in excess.

h. Advertise or promote in any way, either on or off the premises, a practice prohibited under this section.

i. In order to facilitate the enforcement of this subsection, all licenses shall maintain a schedule of the prices charged for all drinks to be served and consumed on the premises which shall be effective for a minimum period of thirty (30) days.

j. Notwithstanding anything to the contrary contained in this subsection, nothing herein shall prohibit any person from engaging in the foregoing promotional practices in a licensed establishment in a CG zoning district.

(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1013.1. Prohibiting unfair practices in the sale of alcoholic beverages.

(a) The following unfair practices are hereby prohibited:

(1) Misleading or fraudulent advertising or failure or inability to deliver advertised alcoholic beverages over a minimum period of twenty-four (24) hours from date of advertising, unless the quantity for sale is specified in the advertisement in type as large as the largest used therein.

(2) Misleading or fraudulent substitution of alcoholic beverages for those ordered or sold.

(3) Adulterating, watering, or in any manner changing the original contents of any container of alcoholic beverages while in such container, or possessing containers so adulterated, watered, or changed.

(4) Violating any law or laws of this state defining or prohibiting unfair practices.

(5) Permitting or acquiescing in the indiscriminate solicitation or acceptance of alcoholic beverages, or unregulated beverages, from patrons by employees, or habitues, of the dealer's establishment on the licensed premises.

(6) Doing, permitting, or acquiescing in the doing or permitting, of any act or thing in connection with the sale of alcoholic beverages involving pricing or stocking or involving fraud, deception or coercion.

(b) No retail dealer of alcoholic beverages shall substitute one (1) brand of alcoholic beverage for a brand that has been specifically requested by the customer, unless the customer consents to the substitution.

(1) For the purpose of this subsection, "brand" means a kind, grade, make, or class of alcoholic beverage identified as being the product of a single manufacturer by a stamp, trademark, logo, or name.

(2) Violation of this subsection by an agent, associate, employee, representative, or servant of a retail dealer shall be considered a violation by the retail dealer for the purpose of this subsection.

(3) Anyone who violates the provisions of this subsection may have his license suspended for not more than two (2) days for the first offense, not less than five (5) days nor more than thirty (30) days for a second offense, and not less than thirty (30) days nor more than one (1) year for third and subsequent offenses. In addition, the ABC board may fine anyone violating this subsection in accordance with the fine schedule as set by the board.

(4) In addition [to] the penalties set forth in this subsection, the retail dealer may be liable in civil suit to the customer and to any dealer of the requested alcoholic beverage for damages which resulted from the substitution. The court shall award the prevailing party in such an action reasonable attorney fees and costs.

(c) No retail dealer or any person or entity which owns or controls, directly or indirectly, any premises on which a retail dealer operates shall require a wholesaler of such beverages to obtain a license or permit, whether or not accompanied by a fee, from a retailer or any person or entity which owns or controls, directly or indirectly, any premises on which a retail dealer operates for the privilege of soliciting for sale or selling alcoholic beverages to the retailer. For purposes of this subsection, fees shall not mean allowances, incentives, or any other recognized market practices.
(Ord. No. 17999, § 1, 1-13-21; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1014. Grounds for revocation or suspension of license; discretionary.

In addition to any other causes enumerated in this chapter, by the provisions of any applicable Louisiana Revised Statutes or laws, or any applicable laws of the United States or any other

country, the alcoholic beverage control board may suspend or revoke any license/permit for any of the following causes:

(1) *Conviction of any violation of section 9:1013.* For being adjudged by the board or convicted by a court for violation of any ordinance, statute or law or other provision contained in section 9:1013 of this chapter.

(2) *Misstatement of fact.* For any misstatement or suppression of fact in the information required to be given by the applicant under this chapter in applying for a license/permit.

(3) *Interposed person.* If the license/permit was granted to any person who is, or has been, engaged in the business of dealing in alcoholic beverages with a person whose application for a license/permit has been denied, revoked or suspended, in the relationship of spouse, agent, partner, employer, employee or interposed person.

(4) *Suspension or revocation of other licenses.* Revocation, suspension or denial of a license/permit under this section may cause the revocation or suspension, as the case may be, of any other permit or license for alcoholic beverage held by the same permittee/licensee; except in the case of suspension or revocation of licenses/permits, at any particular location(s), for sales to minors pursuant to subsection 9:1017(a).

(5) *Failure to notify police of disturbances.* Failure of the license/permit holder, or the designated manager in the absence of the holder to immediately notify the police of any disturbance, fistic encounter or similar incident occurring on the licensed property or violation of any criminal statute or ordinance occurring on the licensed property of which the owner, manager or person in charge had knowledge of or which he should have known.

(6) *Failure to comply with the provisions of this chapter.* Violation of, or failure to comply with, any of the provisions of this chapter by any person issued a license/permit under this chapter, or by any person's manager, agent, servant or employee.

(7) *Failure to cooperate with enforcement agents.* Failure of a licensee/permittee to cooperate fully with any law enforcement agency or its agents or any agent of the ABC office in conducting any official investigation which, in any way, involves the licensed premises, the license/permit holder, an agent, servant, representative or employee of, or any customer of, or person conducting business with the licensed business, except that no one may be compelled to incriminate themselves in violation of state or federal law.

(8) *Serve an intoxicated person.* Sell, serve or dispense in any manner, any alcoholic beverages covered by this chapter to any person whose actions, mannerisms and general conduct would reasonably indicate that said person is intoxicated or under the influence of drugs.

(9) *Failure to check for lawful identification.* Sell, serve, or dispense in any manner, any alcoholic beverages covered by this chapter to any person under the age of twenty-one (21) years, unless such person submits any of the following:

a. A valid, current, driver's license issued by the State of Louisiana, which contains a photograph of the person presenting the license;

b. A valid, current, driver's license of another state, which contains a photograph of the person and date of birth of the person submitting the license;

c. A valid, current, special identification card issued by the State of Louisiana, pursuant to R.S. 40:1321, containing a photograph of the person submitting the identification card;

d. A valid, current, passport or visa issued by the federal government or another country or nation, that contains a permanently attached photograph of the person and the date of birth of the person submitting the passport or visa; or

e. A valid, current, military or federal identification card issued by the federal government containing a photo and date of birth of the person submitting the identification card.

Each form of identification above must on its face establish the age of the person to twenty-one (21) years or older, and there must be no reason to doubt the authenticity or correctness of the identification. No form of the identification mentioned above shall be accepted as proof of age if it is expired, defaced, mutilated, or altered.

If the driver's license, state identification card or lawful identification submitted is a duplicate, the person shall submit additional identification which contains his name, date of birth and photograph. In addition, an educational institution identification card, check cashing identification card or employee identification card shall not be considered as lawful identification for the purposes of this section.

(10) *Allow underage persons on the premises.* Allow or permit any persons(s) to frequent or visit the licensed premises where the principal commodity sold is alcoholic beverages unless such person submits a pictured driver's license or other lawful pictured identification that establishes the person as eighteen (18) years of age or older and there is no reason to doubt the authenticity or correctness of the identification, or unless such person is a musician performing in a band on the premises under written contract with the permittee for a specified time period and is under the direct supervision of his parent or guardian during such time. A copy of the written contract shall be provided to the alcoholic beverage control office one (1) week prior to the performance. For the purpose of this section a pictured lawful identification shall be the same as required in subsection 9:1014(9).

(11) *Discriminate because of race, sex, religion or national origin.* Discriminate by reason of race, sex, religion or national origin. Being found guilty of a first offense by the alcoholic beverage control board following a public hearing before the board shall result in a warning, and being found guilty of a second offense by the board following a public hearing shall result in suspension of the license/permit.

(12) *Allow persons under the age of twenty-one (21) to possess or consume alcohol on the premises.* Allow or permit any person(s) under the age of twenty-one (21) to possess or consume alcohol on the licensed premises, except as exempted by law. Lack of knowledge of the person's age shall not be a defense.

(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 16973, § 1, 1-23-19; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1014.1. Grounds for revocation or suspension of license; mandatory.

In addition to the provisions of any applicable Louisiana Revised Statutes or laws, or any applicable laws of the United States or any other country, the office of alcoholic beverage control shall suspend or revoke any license/permit for any of the following causes and shall remain in effect until the delinquency or infraction is resolved:

(1) *Failure to pay taxes or fees.* If, after ninety (90) days of being due, any licensed dealer fails to pay any local political subdivision sales and use tax, penalties, interest, tax deposits, attorney fees, court costs fees, occupational license tax or other tax, license or fee required by the director of finance, or other revenue col-

lecting authority and due by him to the city, as the owner or operator of any active or inactive regulated business within the city, or due by him to the parish, as the owner or operator of any active or inactive regulated business within the parish.

(2) *Failure to notify the office of alcoholic beverage control of change of ownership.* All licensees and persons required to be qualified pursuant to the provisions of this chapter shall have a continuing duty to inform the office of alcoholic beverage control of any change in ownership.

(Ord. No. 16973, § 1, 1-23-19; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1015. Violations and remedies non-exclusive, criminal penalties for violations.

The violations listed in sections 9:1013 and 9:1014 are not exclusive, and violation of other local ordinances, state laws, or federal laws may result in administrative licensing or permit action.

The violations listed in sections 9:1013 and 9:1014 may be brought as administrative matters, or may be charged as misdemeanors as provided in this chapter, or both. A finding of fault or guilt in either an administrative or criminal proceeding does not create double jeopardy for purposes of parallel criminal and administrative proceedings.

In addition to action taken by the ABC board in suspending, revoking or denying any license, permit or application covered by this chapter, except subsection 9:1014(7), any person convicted, in a court of proper jurisdiction, of violating any provisions of this chapter shall be punished by a fine of five hundred dollars ($500.00) or imprisonment for not more than six (6) months, or both, and each day's violation shall constitute a separate offense.

(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1016. Administrative procedure and penalties for violation.

(a) *Officers and agents held responsible for corporate violation.* The officer(s) or agent(s) in charge of any corporation for which a license/permit may have been issued hereunder shall be subject to prosecution for any violation by such corporation, and upon conviction shall be punished as provided above.

(1) *License holder, agent, employee or servant subject to same fine.* Any license/permit holder, agent, employee or servant of same violating any of the provisions of this chapter, upon conviction, shall be punished as provided above.

(b) *Revocation and denial procedure.* When a license/permit of a business covered under this chapter is revoked, no license/permit shall be issued, covering the same premises, until one (1) year after the date of revocation and when a license, permit or notice of intent application is denied for a premise, said license, permit or notice of intent application request may be denied for the same premise for a two-year period.

(c) *Warnings by the board.* Except as otherwise provided in this chapter, the board may, by majority vote and after hearing all evidence, elect to warn any licensee/permittee or suspend any suspension or revocation of the license or permit, if the board finds that the violation is of a minor nature, that there are extenuating circumstances or that there are reasonable grounds to expect that the licensee/permittee will not again violate any other provisions of this chapter. If the violation is flagrant or serious, if the licensee/permittee has had its license/permit suspended, the board may revoke the license/permit and shall immediately notify applicable state and local authorities of its action.

(d) *Assessment of cost of hearings.* In hearings of the board which finally result in withholding the issuance of a license/permit or in suspending or revoking same, the board shall assess any costs of the hearing to the applicant, licensee/permittee as the case may be. The costs are recoverable by the board in any appellate proceeding instituted by the applicant, licensee/permittee or in any other judicial proceeding.

(e) *Waiting period to reapply after suspension.* Should any license/permit of a business be suspended by the board, it shall be a violation of this chapter for any person to sell any of the beverages described in subsection 9:1000(b), on

the premises, and any person taking over ownership or operation of said business during the suspension period, shall be required to wait fifteen (15) days after the date of the imposition of suspension before an application shall be submitted to the ABC board for approval or disapproval.

(f) *Notice to be published.* Upon suspension or revocation of a business licensed under this chapter, the license holder shall immediately cause to be published one (1) time in the official journal of the city and parish, notice of such suspension or revocation.

(g) *Appeals—Time limit and procedure.* Appeals of the decisions of the board pertaining to revocation, suspension or denial of any license or permit shall be in accordance with the section 1:153.
(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 18095, § 1, 4-28-21)

Sec. 9:1017. Mandatory minimum penalties for sales to minors.

(a) *Mandatory suspension for unlawful sales to minors.*

(1) Notwithstanding any other provision of this chapter to the contrary, any person, firm, or corporation, adjudged by the board or convicted in a court of proper jurisdiction, of selling or distributing alcoholic beverages to minors shall be penalized by mandatory suspension of their alcoholic beverage license permit as follows:

a. On first offense or conviction, the license/permit shall be suspended for a minimum of thirty (30) days.

b. On second offense or conviction within a two-year period, the license/permit shall be suspended for a minimum of six (6) months.

c. On third offense or conviction within a two-year period, the license/permit shall be permanently revoked.

(2) In addition to the minimum suspension periods set forth above, any person, firm, or corporation convicted in court or adjudged by the board of selling or distributing alcoholic beverages to minors shall be assessed the following penalties:

a. On first offense, the business shall be fined up to two thousand five hundred dollars ($2,500.00) and the individual shall be fined up to one thousand dollars ($1,000.00).

b. On second offense within a two-year period, the business shall be fined a minimum of two thousand five hundred dollars ($2,500.00) to a maximum of five thousand dollars ($5,000.00) and the individual shall be fined up to one thousand dollars ($1,000.00).

c. On third offense within a two-year period, the maximum amount allowable by law.

(3) For any violation regarding the selling or distribution of alcoholic beverages to minors, the penalties set forth above shall be assessed against the licensee/permittee of the establishment or business where the violation occurred and the individual licensee/permittee who committed the violation.

(4) Within five (5) days of imposition of any suspension or revocation pursuant to this subsection, the licensee/permittee must remove all alcoholic beverages from the premises of the location at which the violation occurred or cease all business operations at that location. Failure to comply with this provision shall result in the seizure of all alcoholic beverages by the ABC office.

(5) The ABC board may waive or reduce a suspension imposed upon a business licensee/permittee pursuant to subsection (a)(1)a, in accordance with the following conditions and provisions:

a. The suspension must be imposed as a result of a finding by the ABC board that the business was guilty

of having sold or distributed alcoholic beverages to a minor and not as the result of a court conviction;

b. The board may reduce the six-month period of suspension only if a majority of the board finds that mitigating circumstances exist which warrant a reduction from the mandatory minimum period;

c. The provisions of this subsection shall not apply to the suspension of a license of an individual found to have personally sold or distributed alcohol to a minor;

d. The provisions of this subsection shall not apply to the suspension of a business license if an owner, officer, partner or shareholder of the business or corporation is found to have personally sold alcohol to a minor.

(b) *Mandatory fines for unlawful sales of alcoholic beverages to persons age eighteen (18), nineteen (19) or twenty (20).*

(1) Any person convicted in court or adjudged by the alcoholic beverage control board of selling or distributing alcoholic beverages to persons age eighteen (18), nineteen (19) or twenty (20) shall be assessed a fine of two hundred fifty dollars ($250.00).

(2) For any violation regarding the selling or distribution of alcoholic beverages to persons age eighteen (18), nineteen (19) or twenty (20), committed on the premises of an establishment licensed pursuant to the provisions of this chapter, the licensee/permittee of the establishment shall be assessed the following penalties, in addition to any suspension or revocation ordered by the board:

a. On first offense, a fine of one thousand dollars ($1,000.00).

b. On second offense within a twelve-month period, a minimum fine of one thousand five hundred dollars ($1,500.00) to a maximum of two thousand five hundred dollars ($2,500.00).

c. On third offense within a twelve-month period from the date of the last offense, a minimum fine of two thousand five hundred dollars ($2,500.00) to a maximum fine of five thousand dollars ($5,000.00) and a minimum ten-day suspension.

(Ord. No. 15405, § 1, 10-24-12; Ord. No. 15425, § 1, 12-12-12; Ord. No. 18095, § 1, 4-28-21; Ord. No. 19578, § 1, 7-23-25)

CHAPTER 19. SECOND-HAND DEALERS*

Sec. 9:1050. Definition.

Pursuant to the provisions of R.S. 37:1861, every person engaged, or employed in the city in the business of buying, selling, trading in, or otherwise acquiring or disposing of used or second-hand property, including, but not limited to, jewelry, firearms, silverware, diamonds, pictures, objects of art, clothing, tools, automobile accessories and supplies, sporting goods or furniture and other such property, is a second-hand dealer. Any retail merchant acquiring more than three (3) second-hand items in a period of thirty (30) days shall be deemed a second-hand dealer.
(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1051. Exceptions.

The provisions of this chapter shall not apply to persons engaged in the business of buying, selling, trading in, or otherwise acquiring or disposing of motor vehicles, used parts or used accessories of motor vehicles, and shall not apply to wreckers or dismantlers of motor vehicles who are licensed under the provisions of R.S. 32:718 et seq. unless they deal in merchandise other than motor vehicles, and used parts or accessories of motor vehicles.

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*__Editor's note—__Chapter 19, §§ 9:1050—9:1064, regulating second-hand dealers, derived from Ord. No. 8403, § 1, adopted May 13, 1987, was repealed by Ord. No. 8500, adopted Sept. 23, 1987. The chapter was readopted to read as set out in §§ 9:1050—9:1070 by § 1 of Ord. No. 9406, adopted Mar. 11, 1992.

Notwithstanding the foregoing, persons engaged in the business of buying or selling used or second-hand hubcaps, automotive batteries or radios, including CB radios, stereos, speakers and cassette or compact disc players, are not included within the exceptions and shall be licensed by the provisions of this chapter.

The provisions of this chapter shall also not apply to those individuals holding licenses as pawn brokers under appropriate municipal ordinances.
(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1052. Business license required.

No person shall operate a business which includes activity which falls within the definition of a second-hand dealer, as set forth above, without first obtaining a license for a second-hand dealer business, which license shall be maintained at the business location and shall be displayed to any law enforcement officer upon request. Any person may hold as many such licenses to operate a second-hand dealer business as they may choose provided that they otherwise comply with the provisions of this chapter as to each license. The license to operate a second-hand dealer business is not transferable, and any change in ownership will necessitate an application for a new license under the provisions of this chapter.
(Ord. No. 9406, § 1, 3-11-92; Ord. No. 9564, § 1, 12-9-92)

Sec. 9:1053. License application.

Any person desiring to obtain a license to operate a second-hand dealer business shall make a sworn application for the same with the chief of police for the city on a form to be designated by him. The application shall include the following:

(1) The complete name and address of the person, firm or corporation in whose name the license is to be issued.

(2) The complete name and address of the place where the second-hand dealer business will operate.

(3) The complete name, address, social security number and birth date of all owners, proprietors, partners or incorporators and a statement declaring whether any such person has been convicted of a felony under the laws of the United States or the laws of the State of Louisiana within the previous five (5) years.

(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1054. Issuance of license.

The chief of police shall issue a license for a second-hand dealer business to any applicant meeting the following qualifications:

(1) The applicants must be at least eighteen (18) years of age.

(2) The applicant must not have been convicted of a felony within the last five (5) years preceding the application and no person who is an owner, proprietor, partner or incorporator may be a person who was convicted of a felony within the last five (5) years preceding the application.

(3) The location of the second-hand dealer business shall comply with the zoning code for the city-parish.

(4) The application shall be accompanied by appropriate fees.

The chief of police is authorized to issue a receipt which may be utilized as a temporary license for the second-hand dealer business for a period not to exceed ninety (90) days and shall prepare and issue second-hand dealer business license in a form to be established by the chief of police.
(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1055. Fees.

Each application for a second-hand dealer business license shall be accompanied by a nonrefundable fee in the amount of twenty-five dollars ($25.00).
(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1056. Permit required.

Any person engaged or employed in the business of a second-hand dealer in the city must first have obtained a permit in accordance with the provisions of this chapter and shall have the

permit at his place of business and display the same to any law enforcement officer upon request.
(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1057. Application, fees.

Any person not the owner of the business who seeks a permit as a second-hand dealer shall execute a sworn application with the chief of police on a form to be designated by the chief of police. The application shall include the name of the second-hand dealer, date of birth, social security account number, driver's license number, height, weight, address, and telephone number together with the name of the business, the name of the owner or owners, or, if owned by a corporation, the name of the director or directors, the name of the manager and the address of the business. Every applicant for a permit shall provide such other information as the chief of police may require in the application.

The application shall be accompanied by a nonrefundable fee in the amount of twenty dollars ($20.00), which shall be inclusive of the costs of photographing the applicant.
(Ord. No. 9406, § 1, 3-11-92; Ord. No. 9564, § 2, 12-9-92)

Sec. 9:1058. Address on permit.

A second-hand dealer may only conduct business at the address indicated upon his license unless his permanent address where he can be found is listed with the police department.
(Ord. No. 9406, § 1, 3-11-92; Ord. No. 9564, § 3, 12-9-92)

Sec. 9:1059. Issuance of permit.

Upon receipt of an application and appropriate fees, as set forth herein, the chief of police shall issue a permit in the form of a photo identification card as may be designated by the chief of police unless the applicant was convicted, within the last five (5) years, of a felony or was convicted, within the last five (5) years, of misdemeanors involving misappropriation, theft or receiving stolen things.

Upon receipt of an application and appropriate fees and upon establishing that the applicant is qualified under this chapter, the chief of police may issue a receipt, which shall authorize the permittee to engage in business for a period not to exceed ninety (90) days while the photo license is being prepared.
(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1060. Reserved.

Editor's note—Section 9:1060, requiring a change in location to be noted on a permit, derived from Ord. No. 9406, § 1, adopted Mar. 11, 1992, was repealed by Ord. No. 9564, § 4, adopted Dec. 9, 1992.

Sec. 9:1061. Record of second-hand goods or objects purchased required.

(a) Every second-hand dealer as defined in this chapter shall be required to maintain a book or file setting forth each purchase of second-hand or used merchandise when the value of any single piece of merchandise or article received shall be twenty-five dollars ($25.00) or more, for any single transaction. The price at which a piece of merchandise is offered for sale by a second-hand dealer shall be considered prima facie evidence of the value of the piece of merchandise. Each ledger entry shall be entered at the time of each transaction and shall contain an accurate description in the English language of the merchandise or article received including the following, where applicable:

(1) The type of articles.

(2) Description, to include dimensions, color and serial numbers where the same are available.

(3) Description of any stones (including the type of stone, the number, color, shape and approximate weights).

(4) Description of any metals (including the type of metal, color and approximate weight).

(5) Style of the articles (including brand names and pattern if available).

(6) Whether or not intended for masculine or feminine adornment (if applicable).

(7) Description of any engraving and/or initials.

(b) The second-hand dealer shall also maintain in a book or file the following information relative to the buyer from whom the property was acquired:

(1) Name.

(2) Address.

(3) Louisiana driver's license or

(4) The auctioneer's license number where applicable.

(Ord. No. 9406, § 1, 3-11-92; Ord.No. 9564, § 5, 12-9-92)

Sec. 9:1062. Book to be open for inspection.

The book containing the record of purchases provided for in section 9:1061 and in R.S. 37:1864 shall be open and available for inspection by any Louisiana law enforcement officer during regular business hours.

(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1063. Daily report of entries.

Every person licensed under the provisions of this chapter shall provide the chief of police or his designee, or the sheriff or his designee, if the business is operated outside of the city and within the parish, with a daily report of the book entries of the previous day.

(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1064. Disposal prohibited during thirty-day period; exceptions.

(a) No second-hand dealer shall sell, dispose of, change or destroy the identity of any goods, articles, or things purchased by him before an interval of thirty (30) calendar days from the date of purchase has elapsed. Any second-hand dealer may sell, dispose of, change, or destroy any goods, articles or things purchased by him from a client known to him personally and from whom he has previously obtained goods of a similar nature, after providing police with written notice of such intent upon a form designated by the pawn shop detail and licensing division of the police department and after expiration of seventy-two (72) hours (exclusive of weekends and legal holidays) of such notice.

(b) A second-hand dealer may sell an item he has purchased as previously owned property before the lapse of thirty (30) days from the purchase if the second-hand dealer keeps a record of the sale, including name, address and phone number of the purchaser as verified by the proper identification, and if:

(1) The item was purchased from a dealer permitted under the provisions of this chapter or like ordinance in another municipality or state statute; or

(2) The item was purchased at a trade or craft show which is scheduled as a special event, the duration of which is not more than seventy-two (72) hours.

(c) The provisions of this section shall not apply to a retail tire outlet or an automobile dealer dealing in tires.

(Ord. No. 9406, § 1, 3-11-92; Ord. No. 9564, § 6, 12-9-92)

Sec. 9:1065. Purchase from minors.

No second-hand dealer shall purchase any goods, articles or things from any person who has not yet reached the age of eighteen (18) years.

(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1066. Hours of business.

A second-hand dealer shall neither open his place of business before the hour of 7:00 a.m. nor keep it open after the hour of 7:00 p.m. except on Saturdays and during the month of December, during which time the hour of 7:00 p.m. shall be extended to 10:00 p.m. A retail dealer whose principal business is other than that of a second-hand dealer, including persons licensed as transient vendors, but who is required by the provisions of this chapter to obtain licensing for business transactions which meet the definition of second-hand dealer, shall not conduct any transaction within the definition of a second-hand dealer outside of the hours of business provided for second-hand dealers, but may otherwise continue his business activities during any hours not otherwise prohibited or limited.

(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1067. Penalties. (City)

Any second-hand dealer who violates, neglects, or refuses to comply with any provision of this chapter shall, for the first offense, be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00) or be imprisoned for not less than ten (10) days nor more than thirty (30) days, or both. For the second and subsequent offenses he shall be fined five hundred dollars ($500.00), or be imprisoned for not less than thirty (30) days, nor more than sixty (60) days, or both. If convicted three (3) times, his permit shall be deemed revoked and he shall not thereafter be permitted to engage in the business of second-hand dealer in the city and parish.
(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1068. Failure to comply; penalty. (City)

Anyone acting as a second-hand dealer without complying with the provisions of this chapter shall be fined not less than two hundred fifty dollars ($250.00) or be imprisoned not less than thirty (30) days nor more than sixty (60) days, or both.
(Ord. No. 9406, § 1, 3-11-92)

Sec. 9:1069. Exceptions.

The requirements of this chapter shall not apply to:

(a) Private residential sales commonly known as garage sales or yard sales, as long as the sale takes place at a residential address not zoned for business or commercial activity and as long as the residential address where the yard or garage sale is taking place is not used for such sale more than three (3) calendar days in one (1) month.

(b) Bona fide charities possessing their section 501(c) exemption under the Internal Revenue Service Code.

(c) The record-keeping and thirty-day holding requirements of this chapter shall not apply to items bought at estate sales or auctions except for jewelry and appliances, which include but are not limited to televisions, VCR's, microwaves, air conditioners, etc.

(Ord. No. 9406, § 1, 3-11-92; Ord. No. 9564, § 7, 12-9-92)

Sec. 9:1070. Penalty for possession of stolen property.

Any dealer or business owner found in possession of stolen property who has not kept records according to the requirements of this chapter shall be subject to arrest.
(Ord. No. 9564, § 8, 12-9-92)

Sec. 9:1071. Severability. (City)

If any provision, section, subsection, sentence, clause, word, or phrase of this chapter, or the application of the same to any person or set of circumstances, is, for any reason, held to be unconstitutional, void or invalid, the validity of the remaining portions of this chapter, their application to other persons, or their application to other sets of circumstances, shall not be affected thereby, shall not become inoperative or fail by reason of any unconstitutionality, voidness, or invalidity of any portion hereof; and all provisions of this chapter are declared to be severable for that purpose.
(Ord. No. 9406, § 1, 3-11-92; Ord. No. 9564, § 9, 12-9-92)

CHAPTER 20. MASSAGE ESTABLISHMENTS*

Sec. 9:1100. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Massage shall mean the manipulation of soft tissue for the purpose of maintaining good health

*__Editor's note—__Ord. No. 18849, § 1, adopted May 10, 2023, repealed ch. 20, §§ 9:1100—9:1116, and enacted a new ch. 20 as set out herein and later amended. Former ch. 20 pertained to similar subject matter and derived from Ord. No. 8420, adopted May 27, 1987; and Ord. No. 9033, adopted December 13, 1989.

and establishing and maintaining good physical condition. The definition shall also include effleurage (stroking), petrissage (kneading), tapotement (percussion), compression, vibration, friction (active/passive range of motion), stretching activities as they pertain to massage therapy, Shiatsu, acupressure, reflexology, trigger point massage, and Swedish massage either by hand, forearm, elbow, foot, or with mechanical appliances for the purpose of body massage. Massage therapy may include the use of lubricants such as salts, powders, liquids, creams with the exception of prescriptive or medicinal creams, heat lamps, hot and cold stones, whirlpool, hot and cold packs, salt glow, body wraps, steam cabinet baths, and, with appropriate training, the use of nonprescriptive, off-the-shelf commercially available electromechanical devices for which they are trained which mimic or enhance the actions possible by the hands. It shall not include ultrasound, laser therapy, microwave, colonic therapy, injection therapy, manipulation of the joints, the use of electrical muscle stimulation, or transcutaneous electrical nerve stimulation except microcurrent. Equivalent terms for massage therapy are massage, therapeutic massage, massage technology, body work, or any derivation of those terms.

Massage establishment shall include any place or establishment which is operated for the principal business or primary purpose of providing either or all of the following services at such establishment: physical massage of the person, steam baths, hotbox, magnetic baths, or any other similar services commonly rendered by such establishments.

Massage therapist shall mean a person who engages in the practice of massage therapy for compensation.
(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1101. Registration required.

No person shall carry on the business of operating a massage establishment without first being registered by the building official for the department of development in accordance with the provisions of this chapter.
(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1102. Application.

Any person desiring to operate a massage establishment shall make sworn application for registration with the building official on a form to be designated by them. The application shall include the following:

(1) The name of the applicant and trade name, if any, of the business; the name of the corporation and the name and address of its agent for service.

(2) The business name, address, and phone number of the massage establishment, and the emergency contact number phone information for the massage establishment.

(3) A criminal records background check (right to review) should be attained from the Louisiana State Police (at the applicant's cost) and taken to the Baton Rouge City Court Probation Division for review.

(4) A copy of the applicant's massage therapist license or massage establishment license issued by the Louisiana Board of Massage Therapy.

(5) A copy of the applicant' s occupational license issued by the city-parish revenue division.

(6) A history of the applicant's previous ownership of massage establishments.

(7) Such other information as the building official may require.
(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1103. Fees.

Any owner or operator of a registered massage establishment shall submit an application along with a nonrefundable fee in the amount of one hundred dollars ($100.00) for a business which employs or contracts one (1) massage therapist or two hundred dollars ($200.00) for a business which employs or contracts two (2) or more massage therapists.
(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1103.1. Renewal.

The registration of a massage establishment shall be renewed annually. The fee for renewal shall be the same amount as the application fee.
(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1104. Qualifications.

In addition to the information and documentation requested, the building official shall register a massage establishment provided the applicant has met the following requirements:

(1) All required fees are paid.

(2) The applicant has no record of felony conviction for a crime that is sexual in nature in this state or any other state.

(3) The applicant has not had a licensed massage therapist identification card (LMT-ID Card), issued pursuant to R.S. 37:3556, denied or revoked within three (3) years prior to this application.

(4) The applicant has not made any material misstatement of fact in his application.

(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1105. Approval.

The building official shall issue the applicant a notice of approval or disapproval of the application within thirty (30) days of receipt and review of the completed application and the application fee.
(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1106. Operation.

Every massage establishment and every massage therapist shall comply with the following operating requirements.

(1) No massage establishment shall provide massages or any other services after 10:00 p.m. or before 6:00 a.m.

(2) Any and all massage therapists currently employed by a massage establishment shall prominently and publicly display on the premises their state issued licensed massage therapist identification card (LMT-ID Card) and massage establishment license issued by the message therapy board during all hours of operation.

(3) Any massage establishment registered by the building official shall be conspicuously displayed in the entryway or lobby of the massage establishment during all hours of operation.

(4) A massage therapist shall operate only under the name specified in his or her license issued by the Louisiana Board of Massage Therapy.

(5) A massage establishment shall operate only under the name specified in its occupational license issued by the city-parish.

(6) No individual shall reside, inhabit, or otherwise sleep overnight at an establishment with the exception of a massage therapist who operates an establishment in his/her home or residence. With respect to massage therapists who operate an establishment out of his/her home office or residence, no individual living in that home or residence shall reside, inhabit, or otherwise sleep in the portion of the home or residence that is devoted to the practice of massage therapy.

(7) No doors or windows of a massage establishment shall be covered by signs, obscured or blacked out.

(8) For purposes of ascertaining violations of this chapter and conducting inspections, the building official or their designee shall have the right of entry onto the premises of any massage establishment during the hours such establishment is open for business.

(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1106.1. Enforcement.

Massage establishments alleged to be in violation of this ordinance shall receive notice to appear before an administrative court hearing officer pursuant to the process set forth in title 1, part II, section 1:609 of this Code.
(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1107. Revocation of registration.

In addition to any penalties which may be imposed for the violation of certain provisions of this chapter, the administrative hearing officer may, pursuant to the provisions of this section, revoke the registration of a massage establishment on any of the following grounds:

(1) Fraud or willful and knowing misrepresentation or false statement made in an application for registration or renewal of registration.

(2) Violation of the provisions of this chapter.

(3) Felony conviction of any owner/operator for a crime that is sexual in nature in this state or any other state.

(4) Failure to renew the massage establishment license issued by the massage therapy board.

(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1108. Sexual conduct prohibited.

It shall be unlawful for any person in any massage establishment or for any massage therapist to engage in any lewd acts, sexual misconduct, or sexual perversion within such establishments. Such conduct shall include but not be limited to exposing, touching, caressing or fondling of genitals, anus, vulva, pubic hair, or nipples of the female breast; masturbation; oral copulation, cunnilingus or fellatio; sexual intercourse, vaginal or anal; urination or defecation, except in provided facilities; sodomy, bestiality; sadomasochistic abuse, flagellation or torture in the context of sexual relationship; any unnatural carnal copulation by a human being with another of the same or opposite sex.

(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1109. Reinstatement of registration.

No registered massage establishment shall be reinstated for a minimum of thirty (30) days after the revocation of the registration. The building official shall make an inspection of the property, in the same manner as set forth under the International Property Maintenance Code. The property inspection must result in a determination of compliance by the building official prior to reinstatement of registration.

(Ord. No. 18849, § 1, 5-10-23)

Sec. 9:1110. Penalty.

Any registered establishment deemed in violation of the provisions of this chapter shall be fined one hundred dollars ($100.00) per violation for a business which employs one (1) massage therapist or two hundred dollars ($200.00) per violation for a business which employs two (2) or more massage therapists.

(Ord. No. 18849, § 1, 5-10-23)

CHAPTER 21. CABLE TELEVISION FRANCHISE APPLICATION PROCEDURES

Sec. 9:1150. Franchise applications.

(a) Any person or other legal entity who desires to provide cable communications system services in any portion of this parish may apply for a franchise. The prospective applicant shall deliver a written request to the metropolitan council through the council administrator-treasurer apprising them of its intention to apply. The request will be forwarded to the cable franchise selection committee, hereinafter referred to as the "committee," of the council, who shall schedule a meeting to review the application and accompanying documentation.

(b) The committee or its designee shall establish procedures and schedules to be followed in evaluating the franchise application in accordance with this chapter. These procedures and schedules may include, but need not be limited to, deadlines for submissions, hearing dates, hearing procedures, forms of submissions, and application fees.

(c) The committee or its designee may, at its option, furnish to applicants and prospective applicants a written application form, a request for proposals, and/or written inquiries to which applicants must respond. The request for proposals may specify minimum requirements, standards, and/or elements that the applicant

must cover in its application for a franchise. The prospective applicant shall submit the required information in the format specified by the committee or its designee. In the absence of such a specification by the committee or its designee, prospective applicants shall submit information and documentation in accordance with section 9:1151 below.

(d) A franchise applicant shall pay a nonrefundable application fee in an amount determined by the committee. The committee shall calculate the fee based on its estimate of the expenses that the city/parish will incur in evaluating the franchise application, including but not limited to costs associated with public hearing and public notices, compensation for staff time, legal fees, and consulting expenses. This amount shall be payable on or before a date set by the committee. In the absence of timely payment, an application shall not be deemed complete and shall not be considered by the committee as a franchise application pursuant to this chapter.

(e) The committee or the metropolitan council may, either in connection with or in the absence of receipt of unsolicited applications, solicit franchise applications through a request for proposals, or such other manner as the committee deems appropriate.

(f) Nothing in this chapter shall prohibit or be construed as prohibiting the committee or the metropolitan council from setting and enforcing limitations, deadlines, and schedules for submission of franchise applications.
(Ord. No. 9035, § 1, 12-13-89)

Sec. 9:1151. Required documentation and service plan.

A franchise applicant shall document its qualifications and proposed plan of services, utilizing such forms and formats as are specified pursuant to section 9:1150(b) and (c) above or, in the absence of such specifications, in accordance with this section. This shall include all pertinent information as to the following:

(a)Ownership. Information shall include, at a minimum, a list showing the names and addresses of persons owning five (5) percent of more of the outstanding stock or equivalent ownership interest of an applicant, as well as a roster of the applicant's officers and directors. In the event that a person owning five (5) percent or more of the outstanding stock or equivalent ownership is a corporate entity, the names and addresses of persons owning five (5) percent or more of that corporate entity shall also be provided by the applicant.

(b)Management abilities of principal.

(c)Experience in cable operations. Information shall be include all past and present ownerships of cable systems of local managers, principals, and owners of three (3) percent or more of the applicant's stock.

(d)Financial status and support of applicant. Information shall include financial statement by independent auditor showing capitalization, debt, assets, gross revenues for past five (5) years, operating costs, projections for local system for income and expenses related to installation and operations for first five (5) years. If the applicant is a legal entity without sufficient financial history to enable the committee to determine likelihood of the legal entity to follow through with its obligations

to the city-parish, the applicant may be required to disclose the financial status of its principals. The committee has discretion to decide sufficiency of financial history, which shall not be exercised unreasonably.

(e) Legal authority to conduct business in Louisiana.

(f) Previous and present experience in cable communications operations. Information shall include location, size of operation, profits and losses, positional responsibilities of current management in the previous operation.

(g) Other (noncable communications) experience as a company.

(h) Geographical bounds of proposed franchise areas.

(i) Schedule for completing installation and estimates of cost.

(j) Proposed programming and fee structure.

(k) Technical ability of the company to provide proposed service.

(l) Ownership of other cable systems, television, and radio stations.

(m) Disclosure of all agreements, whether written oral or impled, with any other legal entity that would affect ownership of the applicant or the franchise and any contemplated change in ownership or management.

(n) Plans to comply with all governmental regulations.

(o) Anticipated effect of the applicant's proposed service on public property, including environmental impact.

(p) The per-strand-mile densities of the areas the applicant proposes to serve and the extent to which the applicant intends to utilize bulk rate contracts.

(q) Proposals covering the services to be offered through the cable system. Such proposals shall be incorporated into the franchise, if granted, and shall be subject to minimum requirements specified in the city-parish franchise ordinances or to such greater requirements as shall be specified in the franchise. Such proposals shall include but need not be limited to the following:
Public access channels;
Educational access channels;
Government access channels;
Institutional networks.

(r) Technical performance standards to be met by the cable television system that the applicant proposes to provide.

(s) A plan for customer service.

(t) Any other information or documentation requested by the committee, its designee, or the metropolitan council.

The applicant's proposals, including the required documentation and service plan and such other material as the committee or its designee shall require, shall be incorporated into the franchise, if granted, and shall be subject to minimum requirements specified in the city-parish franchise ordinance or to such greater requirements as shall be specified in the franchise.
(Ord. No. 9035, § 1, 12-13-89)

Sec. 9:1152. Hearing procedure.

Following receipt of all required documentation, information, forms and other submissions, the committee shall schedule a public hearing on the applicant's franchise application and shall so notify the applicant. The chairman of the committee shall publish a notice of the public hearing once in a daily newspaper of general circulation in Baton Rouge. The notice shall be published at least five (5) days in advance of the scheduled hearing, and shall set forth the time, date, place, and general nature of the hearing, provide that members of the public shall be afforded the opportunity to address the application, and advise the public that copies of the application may be obtained at the council administrator-treasurer's office. The hearing shall be conducted in a manner consistent with affording due process to the applicant and the public, and with the policy of receiving concerns and recommendations from the general public and other interested parties. The hearing may be recorded and transcribed if requested by the franchise applicant, who shall pay the cost of transcription and copying.

The committee shall recommend to the full council as to whether the applicant's request shall be granted or denied based upon its evaluation of the applicant pursuant to the requirements listed below.
(Ord. No. 9035, § 1, 12-13-89)

Sec. 9:1153. Grant or denial of franchise.

(a) The committee shall consider the facts and information of the application and the public hearing, together with other facts and information available to the committee demonstrating the following:

(1) The applicant's legal, financial, technical, and other qualifications to operate the franchise;

(2) The adequacy and feasibility of the applicant's construction plan;

(3) The availability of capacity of facilities to install the system;

(4) The applicant's overall ability to provide viable competitive franchise for the term of the franchise;

(5) The extent of installation of facilities and equipment of existing cable operators detailing the per-strand-mile density of areas served, unserved areas and the per-strand-mile density of such and the location of the facilities and equipment of the existing operators in the areas for which the applicant is applying;

(6) The public interest; and

(7) The extent to which existing operators have installed facilities and equipment in the area.

After consideration of these factors, the committee shall report to the full council its recommendation as to whether to grant or deny the applicant a cable television franchise. No provision of this chapter shall be construed as requiring the committee to recommend that a franchise be granted, or as requiring the city-parish to grant a franchise.

(b) Not less than thirty (30) days nor more than sixty (60) days after the public hearing, the full council shall receive the report and recommendation of the cable franchise selection committee. The council shall then act upon the application. A failure to receive seven (7) affirmative votes to approve the application shall be considered a denial of the application. In approving an application, the council may alter, amend, or restrict the franchise as necessary to ensure compliance with the requirements and policies of this resolution, FCC rules and regulations, the Cable Communications Act of 1984 (47 U.S.C. 521 et seq.), and any other relevant provision of law and ordinance.

(c) The rights granted to a franchise to operate a cable television system shall not be exclusive of other applicants or providers of similar services, and the city-parish reserves the right to grant a similar franchise within or without the same designated service area.

(d) In granting a nonexclusive franchise, the council may require the grantee (successful applicant) to pay to the city-parish, at a specified time, an amount to be determined by the committee or its designee to be used to offset all direct, reasonable costs incurred by the city-parish in granting the franchise, to the extent that those costs are not defrayed by fees forthcoming from the provisions of section 9:1150(d) of this chapter

(e) The decision of the council concerning selection of franchise applicants and the awarding of a franchise shall be final.
(Ord. No. 9035, § 1, 12-13-89)

Sec. 9:1154. Acceptance of a franchise.

(a) A successful applicant shall accept or refuse the franchise award within a time period set by the council. The city-parish and the successful applicant shall negotiate a franchise agreement for review and approval of the council within a further time period set by the council.

(b) Upon accepting the franchise, a grantee shall expressly acknowledge that it has carefully read the terms and conditions of this chapter and the franchise and accepts without reservation the obligations imposed by the terms and conditions therein.
(Ord. No. 9035, § 1, 12-13-89)

CHAPTER 22. PAWNSHOPS

Sec. 9:1200. Definitions. (City)

The following definitions will apply where such words appear in this chapter:

(a) *Person* means an individual, employee, partnership, corporation, joint venture, trust, association or any other legal entity however organized.

(b) *Pawnbroker* means any person engaged in the business of lending money on the security of pledged goods; or engaged in the business of purchasing tangible personal property on condition that it may be redeemed or repurchased by the seller for a fixed price within a fixed period of time.

(c) *Pledged goods* means tangible personal property other than choices in action, securities, or printed evidences of indebtedness, which property is deposited with or otherwise actually delivered into the possession of pawnbroker in the course of his business in connection with a pawn transaction.

(d) *Pawnshop* means the location at which or premises in which a pawnbroker regularly conducts business.

(e) *Month* means that period of time from one date in a calendar month to the corresponding date in the following calendar month, but if there is no such corresponding date, then the last day of such following month; and when computations are made for a fraction of a month, a day shall be one-thirtieth of a month.

(f) *Pawn transaction* means the pledging with a pawnbroker under this chapter of a single item of goods or tangible personal property as security for a loan of money. Items that are usually sold as a set are considered a single item and must be included in the same transaction, and a pledged item together with items that are accessories to the pledged item are considered a single item and must be included in the same transaction. A separate pawn transaction retains its separate character when it is renewed, unless the parties agree otherwise.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1201. License required.

No person may operate a pawnshop business unless the principal owner, firm or corporation has been issued a valid license by the chief of police for the city. A separate license is required for each place of business operated under this chapter. Any person may hold as many licenses to operate pawnshops as he may choose provided that he otherwise comply with the provisions of this chapter as to each license. The license to operate a pawnshop is not transferable, and any change in ownership or business location will necessitate an application for a new license under the provisions of this chapter.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1202. License application.

Any person desiring to obtain a license to operate a pawnshop shall make sworn application for the same with the chief of police for the city on a form to be designated by him. The application shall include the following:

(1) The complete name and address of the person in whose name the license is to be issued.

(2) The complete name and address of the place where the pawnshop will operate.

(3) The complete name, address, social security number and birth date of all owners, proprietors, partners or incorporators and a statement declaring whether any such person has been convicted of a felony under either the laws of the United States or the laws of the State of Louisiana within the previous five (5) years.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1203. Issuance of license.

The chief of police shall issue a pawnshop license to any applicant meeting the following qualifications:

(1) The applicant shall demonstrate with the application a net worth of fifty thousand dollars ($50,000.00).

(2) The application shall be accompanied by proof of general liability insurance coverage

and fire insurance coverage for the premises of the pawnshop licensee for the license sought in an amount of not less than one hundred thousand dollars ($100,000.00).

(3) The applicant must be at least eighteen (18) years of age.

(4) The applicant must not have been convicted of a felony within the last five (5) years preceding the application.

(5) The location of the pawnshop shall comply with the zoning code for the city-parish.

(6) The application shall be accompanied by appropriate fees.

The chief of police is authorized to issue a receipt which may be utilized as a temporary pawnshop license for a period not to exceed ninety (90) days and shall prepare and issue a pawnshop license of a permanent nature on a form to be established by the chief of police.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1204. Fees.

Each application for a pawnshop license shall be accompanied by a nonrefundable fee in the amount of twenty-five dollars ($25.00).
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1205. Pawnbroker permit required.

No person shall engage in the business of a pawnbroker without first obtaining a valid permit from the chief of police. Any person convicted of acting as a pawnbroker without having first obtained a permit in accordance with the provisions of this section shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for each offense, and each transaction conducted shall constitute a separate offense.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1206. Permit application.

Any person desiring to obtain a permit as a pawnbroker shall make sworn application with the chief of police for the city on a form to be designated by him. The application shall include the following information:

(1) The complete name and address of the person seeking a pawnbroker permit.

(2) The complete name and address of each and every pawnshop where the permit holder will engage in business as a pawnbroker.

(3) A statement that the applicant has not been convicted of any felony under the laws of the State of Louisiana and the laws of the United States or of any other state within the last five (5) years.

(4) The date of birth and social security number of the applicant.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1207. Issuance of permit.

Upon receipt of the application and appropriate fees, the chief of police shall issue a permit for a pawnbroker to any applicant meeting the following qualifications:

(1) The applicant is at least eighteen (18) years of age and demonstrates proof of same.

(2) The applicant has not been convicted of a felony in this state or any other state within the previous five (5) years.

(3) The applicant has not had a license as a pawnbroker revoked within the past two (2) years.

The chief of police may issue a temporary permit in the form of a receipt, which will be valid for a period not to exceed ninety (90) days; and the chief of police shall issue a permit in the form of an ID card as may be designed by him.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1208. Pawnbroker permit fees.

Each application for a pawnbroker permit shall be accompanied by a nonrefundable fee in the amount of fifteen dollars ($15.00), which shall include the cost of photograph identification permit.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1209. Form of books and records; regulations.

Each pawnshop licensee shall maintain a book or file system in which shall be fairly and legibly written in ink, at the time each loan transaction is consummated, in the English language, a description of the person to whom the loan is made, as well as a description of the goods, articles, or things pawned or pledged, the amount of money loaned in connection therewith, and the date and time each such transaction is consummated. Such books or files shall be open for inspection by the chief of police or sheriff, or a designee of either, or by the state police, during all business hours. No such entry shall be erased, obliterated or defaced. (Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1210. Pawn ticket.

The pawnbroker, at the time the pawn transaction is entered, shall deliver to the pledgor a memorandum or ticket on which shall be clearly set forth the following:

(1) The name and address of the pawnshop.

(2) The name and address of the pledgor and pledgor's description, date of birth, weight, height, sex, race, color of hair and color of eyes.

(3) The distinctive number of pledgor's Louisiana driver's license, Louisiana identification card, a thumbprint or photograph of the pledgor, other photo ID, or a record of four (4) pieces or items of positive identification.

(4) The date of the transaction.

(5) The amount of cash advanced or credit extended to the pledgor, designated as the "amount financed."

(6) The amount of the pawn service charge, designated as the "finance charge."

(7) The amount charged for storage, bookkeeping and maintenance, designated as the "service charge."

(8) The total amount (the "amount financed" plus the "finance charge" and the "service charge") which must be paid to redeem the pledged goods on the maturity date, designated as the "total of payments."

(9) The "annual percentage rate" by the Federal Reserve Board of the United States pursuant to the Truth-in-Lending Act.

(10) The maturity date of the transaction. The maturity date of any pawn transaction may be changed by agreement between the pledgor and the pawnbroker evidenced by a written memorandum or ticket, containing the information required by this chapter for an original pawn memorandum or ticket, and which shall set out clearly the new maturity date and any additional charges to be paid. The agreement to change the maturity date shall not, however, modify the term of the transaction with reference to the time after which the property pledged may be sold by the pawnbroker.

(11) A statement to the effect that the pledgor is not obligated to redeem the pledged goods, and a further statement that the pledged goods may be forfeited to the pawnbroker twelve (12) months after the date of the transaction as to any jewelry pledged, or may be forfeited to the pawnbroker three (3) months after the date of the transaction in the case of property other than jewelry.

(12) The name, initials, or pawnbroker permit number of the person making the loan on behalf of the pawnshop licensee.

(13) The signature of the pledgor.

(14) A declaration of ownership stating that the pledgor is in rightful possession of the item(s) being pledged.

(15) An identification and description of the pledged property, including:

a. The type of article(s).

b. Description of any stones (including the type of stone, the number, color, shape and approximate weights).

c. Description of any metals (including the type of metal, color and approximate weight).

d. Style of the article(s) (including brand names and pattern if available).

e. Whether or not intended for masculine or feminine adornment (if applicable).

f. Description of any engraving and/or initials.

g. Any serial numbers appearing on the article.

The pawn tickets required by this section shall include one (1) original and at least two (2) copies. These tickets shall be pre-printed or stamped with individual consecutive numbers, and the consecutive number tickets shall be sent to the police each time a pawn loan is made. Any voided tickets or lost tickets must also be accounted for. The pawnbroker shall mail or deliver a legible ticket to the police within twenty-four (24) hours of the transaction. One (1) copy shall be given to the pledgor at the time of the transaction; and the remaining copy shall be retained by the pawnbroker on the business premises for a period of at least three (3) years and shall be made available to any designee of the chief of police, sheriff or state police for examination during normal business hours. The report shall be filled out in its entirety. In addition to mailing or delivering to the police department, at the close of each business day each pawnbroker shall fax a summary of all transactions occurring that day to the Baton Rouge police department on a form to be prescribed by the chief of police or his designee.
(Ord. No. 9407, § 1, 3-11-92; Ord. No. 10435, § 1, 8-23-95)

Sec. 9:1211. Presentation of ticket; presumption.

Except as otherwise provided by law, any person properly identifying himself and presenting a pawn ticket to the pawnbroker shall be presumed to be entitled to redeem the pledged goods described therein. A pledgor may redeem the same day he pawns.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1212. Lost or destroyed tickets.

If a pawn ticket is lost, destroyed or stolen, the pledgor may so notify the pawnbroker by affidavit, which shall invalidate such pawn ticket; and the pawnbroker shall issue a new pawn ticket for which he may assess a fee which shall not exceed the sum of ten dollars ($10.00).
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1213. Pawn transaction maximum rate.

A person licensed as a "pawnbroker" pursuant to R.S. 37:1751 et seq., and holding a permit issued pursuant to this chapter, may charge a maximum rate of interest of ten (10) percent per month on pawn transactions. In addition to the interest charged on loans, the pawnbroker may charge a one-time ten (10) percent charge for all other services. Any transaction whereby property is transferred to the pawnbroker and later redeemed by the previous owner shall be considered a loan for the purpose of this section. Interest rates and other service charges shall be posted, in letters at least two (2) inches high, where they can be easily read by the general public.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1214. Prohibited practices.

A pawnbroker shall not:

(1) Accept a pledge from a person under the age of eighteen (18) years.

(2) Make any agreement requiring the personal liability of a pledgor in connection with a pawn transaction.

(3) Accept any waiver, in writing or otherwise, of any right or protection afforded a pledgor under this chapter.

(4) Fail to exercise reasonable care to protect pledged goods from loss or damage.

(5) Fail to return pledged goods to a pledgor upon payment of the full amount due the pawnbroker of the loan transaction.

(6) Make any charge for insurance in connection with a pawn transaction.

(7) Accept in pawn or purchase any article usually manufactured with a serial number on which the serial number has been obliterated, defaced, or otherwise altered without the prior written permission of the

police department, which shall be obtained by the owner's making affidavit of ownership with the department on a form to be established by the department.

(8) Sell, trade or dispose of any jewelry, precious or semiprecious metals or stones pledged to him as collateral security for loans, or purchased on condition of selling same back at a stipulated price upon maturity of the loan, before a lapse of twelve (12) months from the date of the transaction. Neither shall any pawnbroker sell, trade or dispose of any other property pledged as collateral security for loans, or purchased on condition of selling same back at a stipulated price upon maturity of the loan, before a lapse of three (3) months from the date of the transaction.

(9) Sell any item which he has purchased before a lapse of thirty (30) days from the date of the purchase.

(10) A pawnbroker shall neither open his place of business before the hour of 7:30 a.m. nor keep it open after the hour of 7:00 p.m., except Saturdays and the month of December, during which time the hour of 7:00 p.m. shall be extended to 10:00 p.m.

(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1215. Additional penalty.

In addition to any other penalty which may be applicable, any person who willfully violates any provision of this chapter or who willfully makes a false entry in any records specifically required to be maintained by this chapter, shall be guilty of a misdemeanor, and upon conviction thereof shall be punishable by a fine of five hundred dollars ($500.00) for the first offense; for the second offense, seven hundred fifty dollars ($750.00); and for the third offense, one thousand dollars ($1,000.00) and forfeiture of his permit for a period of two (2) years.

The chief of police may adopt and enforce all necessary rules, regulations and bylaws, not in conflict with any law or provision of this chapter, to regulate the pawnshop business and the issuance of licenses under this chapter.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1216. Stolen items.

When the operator of a pawnshop has acquired a stolen item, the operator of the pawnshop shall retain the item for any law enforcement agency upon notice from that agency, which shall include the file number of the report under which the property was reported stolen. Such property shall not be alienated or disposed of for a period of sixty (60) days from notice by the law enforcement agency, and the operator of a pawnshop shall surrender the stolen item to the law enforcement agency upon its issuance of a receipt for the property.
(Ord. No. 9407, § 1, 3-11-92)

Sec. 9:1217. Penalties.

Except as may be specifically provided above, any person who violates any provision of this chapter shall, upon conviction, be fined not less than fifty dollars ($50.00) and not more than five hundred dollars ($500.00).
(Ord. No. 9407, § 1, 3-11-92)

CHAPTER 23. HOTELS AND MOTELS

Sec. 9:1250 Hotel and motel registration.

(a) No hotel and motel business establishment shall engage in the business of rental of hotel and motel rooms and facilities without first filing application, initial or renewal, with the department of development—permit and inspection division and obtaining a hotel/motel permit from department of development—permit and inspection division to engage in such business.

(b) Such hotel/motel permit may not be transferred. If a change of owner/operator occurs at an existing hotel/motel, the new owner/operator shall apply for a permit to operate within ten (10) business days of opening.

(c) The requirements for the hotel/ motel permit herein provided are requirements separate and apart from and in addition to the license requirements for the parish occupational license tax and the requirement for a certificate of occupancy.

(d) Any owner or operator required to obtain a hotel/motel permit shall submit an application along with a nonrefundable fee. The application and all supporting documents shall be retained by the department of development—permit and inspection division.

(1) All applications shall include:

a. The name of the applicant and trade name, if any, of the business; the name of the corporation and the name and address of its agent for service;

b. The business name, address, and phone number of the hotel/motel, and the emergency contact number phone information for the hotel/ motel;

c. The number of rental units in each establishment;

d. Proof of liability insurance, if applicable, including the carrier, policy number, agent's name, address and phone number or a statement of self-insurance in a form acceptable to the city-parish division of risk management;

e. Date of proposed commencement of operation, if initial application.

(2) A nonrefundable fee of five hundred dollars ($500.00), per existing hotel/motel, shall be paid to the department of development—permit and inspection division annually.

(e) Department of development—permit and inspection division shall issue the hotel/motel a notice of approval or disapproval of the application within sixty (60) days of receipt and review of the completed application and the application fee.

(f) The hotel/motel permit shall be renewed annually. The fee for renewal shall be the same applicable amount as the application fee.

(g) Any hotel/motel permit issued by the department of development—permit and inspection division shall be conspicuously displayed in the office or lobby of the hotel/motel establishment.

(h) Hotels/motels alleged to be in violation of this ordinance shall receive notice to appear before an administrative court hearing officer pursuant to the process set forth in section 1:609 of this Code.

(i) The hotel/motel permit shall be subject to suspension or revocation by the department of development—permit and inspection division following the notice and opportunity to be heard, that the operation of the hotel/motel is such that it is or has negatively impacted the health, safety and/or welfare of its guests or the residents or business of the neighboring community as a result of the following:

Hotels/motels whose calls for service per room, within a calendar year, are greater than or equal to a 0.5 ratio.

(j) Calls for service shall mean any and all calls where law enforcement conducts an investigation resulting in a written law enforcement report.

Calls for service shall not be counted when law enforcement receives a call from a hotel/ motel owner or operator reporting an incident.

(k) Whenever a hotel/motel permit has been suspended or revoked pursuant to the provisions of this section:

(1) The owner or operator of the hotel/motel for which the hotel/motel permit was issued shall surrender the permit to the city-parish forthwith; and,

(2) The hotel/motel owner or operator shall cease operation within seventy-two (72) hours of the issuance of the notice of suspension or revocation of the hotel/ motel permit. For purposes of this ordinance, the requirement to "cease

operation" means that all rooms available for lodging shall be and remain unoccupied.

(l) No hotel/motel permit shall be reissued for a minimum of thirty (30) days after the revocation of the permit. The department of development shall make an inspection of the property, in the same manner as set forth under the International Property Maintenance Code. A determination of compliance must be found by the building official prior to reissuance of a permit.

(m) Any owner or operator of a hotel/motel deemed in violation of the provisions of this ordinance, shall be fined in accordance with the following schedule:

(1) Hotels/motels maintaining four (4) to eighty-nine (89) rooms available for occupancy shall be fined five hundred dollars ($500.00).

(2) Hotels/motels maintaining ninety (90) to one hundred forty-nine (149) rooms available for occupancy shall be fined seven hundred fifty dollars ($750.00).

(3) Hotels/motels maintaining one hundred fifty (150) or more rooms available for occupancy shall be fined one thousand dollars ($1,000.00).

Each day on which a hotel or motel operates without a valid hotel/motel permit shall be considered a separate and continuing offense for purposes of this section.

(n) The imposition of any penalty hereunder shall not preclude the parish attorney from instituting injunctive, mandamus, or other appropriate action or proceedings to address violations of this section.
(Ord. No. 16723, § 2, 1-24-18; Ord. No. 18730, § 1, 1-18-23)

CHAPTER 24. SHARED MOBILITY DEVICES

Sec. 9:1300. Purpose.

Permit and regulate shared mobility devices in the city-parish.
(Ord. No. 17950, § 1, 11-4-20)

Sec. 9:1301. Definitions.

For the purpose of this chapter, the following words shall have the meanings indicated:

Corral means a parking facility that can accommodate a group of shared mobility devices and are typically installed on-street in lieu of a single vehicle parking space.

Customer or *user* means the individual who rents or uses a shared mobility device provided by an operator.

Department means the department of transportation and drainage for the City of Baton Rouge/Parish of East Baton Rouge.

Electric bicycle, also known as electric-assist or e-bike, means a bicycle equipped with a battery and an electric motor that is activated by pedaling and deactivates when not in use.

Electric low-speed scooter means a vehicle consisting of a footboard mounted to two (2) wheels, steered using a long handle, does not include a seat, is equipped with a battery, and propelled by an electric motor.

Operator means any entity that owns, operates, redistributes, or rebalances bicycles or scooters, and services a shared mobility devices program.

Permit application means the application required by the city-parish in order to participate in the shared mobility devices mobility program.

Rebalancing means the process by which bicycles are redistributed to ensure bicycle or scooter availability throughout a service area and to prevent excessive buildup of bicycles or scooters at locations throughout the city.

Service area means the geographical area within the city-parish where the shared mobility devices program is intended to offer services for its users/customers as defined by the permit application. The provisions of this chapter shall apply to service areas within the City of Baton Rouge and unincorporated areas of East Baton Rouge Parish.

Shared mobility devices means pedal bicycles, electric bicycles, electric scooters, electric mopeds, and other shared mobility devices. Shared mobility devices are available for short-term rentals for point to point trips where, by design of the operator, the devices are intended to remain in the public right-of-way, even when not being rented by a customer. This chapter does not apply to electric bicycles previously authorized for operation prior to the enactment of this chapter. Any attempts to deploy additional forms of shared mobility devices not explicitly authorized in such agreements, such as electric low-speed scooters, shall be subject to the terms of this chapter.
(Ord. No. 17950, § 1, 11-4-20)

Sec. 9:1302. Shared mobility devices permitting.

(a) It shall be unlawful for an operator to provide or operate shared mobility devices within the service area without first obtaining a permit from the department of transportation and drainage.

(b) No more than two (2) shared mobility device operators will be permitted to operate within the service area at any time.

(c) The department of transportation and drainage shall solicit applications from shared mobility device operators in a manner that is consistent with current city-parish regulations, ordinances, or procedures. An operator shall apply to participate by submitting to the department of transportation and drainage an application to provide shared mobility devices in the city limits and/or unincorporated areas of the parish.

(d) Each application shall be submitted to the department of transportation and drainage and include a rationale and analysis to justify the proposed fleet size, as well as future increases to the vendor's fleet size. Authorization of additional shared mobility devices is at the sole discretion of the director of the department of transportation and drainage, who reserves the right to cap the total number of shared mobility devices permitted to operate within the designated service area.

(e) Program permits shall be subject to the approval of the director of the department of transportation and drainage.

(f) The issuance of permits will be based upon the submission and internal review of an application process overseen by the department of transportation and drainage. Applications will be considered by the department of transportation and drainage based on an analysis of a vendor's qualifications and factors such as a vendor's performance history, financial strength, and technology and fleet ratings, among other criteria the director of transportation and drainage may establish and shall publish as part of the application and permitting process. The director of transportation and drainage shall award permits to no more than two (2) shared mobility device operators, subject to city-parish regulations, ordinances, or procedures.

(g) Permits will be effective for a period of three (3) years from the date of issuance. The department of transportation and drainage shall evaluate an operator's performance annually and reserves the right to revoke or suspend a permit at any time based on an operator's performance.

(h) The city-parish may enter into cooperative endeavor agreements with other municipalities, public or private associations, corporations, or individuals that enable shared mobility devices to be operated and the purpose and benefits of granted permits extended to the entity's authorized area.
(Ord. No. 17950, § 1, 11-4-20)

Sec. 9:1303. Shared mobility devices requirements.

(a) *Regulation of shared mobility devices.*

(1) All shared mobility devices operating through a valid shared mobility device permit shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred (500) feet to the front, and with a brake and tail light on the rear that shall be visible from all distances from fifty (50) feet to five hundred (500) feet to the rear when directly in front of lawful upper beams of headlamps of a motor vehicle.

(2) All shared mobility devices operating through a valid shared mobility device permit shall include easily accessible and identifiable language that clearly directs users to customer support mechanisms, including but not limited to a customer service phone number, website, and mobile application.

(3) All shared mobility devices operating through a valid shared mobility device permit shall include an easily accessible, legible, and permanently affixed serial number, as well as the name of the operator, clearly displayed and visible to the user of the device.

(4) All shared mobility devices operating through a valid shared mobility device permit shall be equipped with GPS, cell phone, or a comparable technology for the purpose of tracking the location and operations of the device.

(5) All shared mobility devices operating through a valid shared mobility device permit must include a kickstand or other apparatus capable of keeping the shared mobility devices upright when not in use.

(b) *Parking and right-of-way.*

(1) Shared mobility devices may not be operated on public sidewalks or crosswalks, nor shall they:

a. Adversely affect public streets or sidewalks.

b. Inhibit pedestrian movement.

c. Inhibit the ingress and egress of vehicles parked on- or off-street.

d. Create conditions that are a threat to public safety and security.

(2) Shared mobility devices shall be parked in a way that maintains unimpeded access to docking stations or corrals.

(3) The regulation of parking of shared mobility devices shall be governed by section 11:216 in this Code.

(4) Shared mobility devices shall always be parked upright.

(5) Shared mobility devices shall not be fastened in any way to street furniture, public art, light poles, signal pole, utility poles or street trees.

(6) The city-parish may create designated parking zones (i.e. a corral) in certain areas where shared mobility devices shall be parked. Operators participating in the program are responsible for the construction, maintenance, and upkeep of any such corrals or related infrastructure based on the design specifications and other components of their shared mobility devices.

(c) *Maintenance, operations, and fleet size.*

(1) Operators shall comply with all applicable ordinances in title 11 of this Code.

(2) Operators shall provide infrastructure and a plan that includes public educational materials for how users can utilize the service without a smartphone.

(3) Operators participating in the program must rebalance shared mobility devices daily based on use within each service area as defined by the permit application.

(4) Shared mobility devices that are inoperable/damaged or do not comply with other subsections of this Code must be removed within two (2) hours upon receipt of a user complaint or known inoperable or damaged device status between the hours of 7:00 a.m. and 7:00 p.m., seven (7) days per week and within four (4) hours upon receipt of the complaint on federally declared holidays. An inoperable or damaged shared mobility device is one (1) that has non-functioning features (i.e. gear selectors, pedals, bell, lights, brake lights, etc.) or is missing components (i.e. fenders, grips, chain guards, etc.) as applicable to that device. An operator whose shared mobility device is inoperable or damaged or that has non-functioning features, and is relocated or stored by the city-parish is subject to the fees set forth in section 9:1305 of this chapter.

(5) The city-parish, without notice, reserves the right to remove shared mobility devices from the right-of-way. In such instances, the city-parish will attempt to notify the operator as soon as is reasonably practicable thereafter, with the operator subject to the fees set forth in section 9:1305 of this chapter.

(6) Shared mobility device operators must detail and implement a plan to relocate their shared mobility devices to a safe, indoor facility within twenty-four (24) hours of a declared weather event (snowstorm, ice storm, tropical storm or hurricane watch or warning). The plan must detail the amount of time it will take to remove all shared mobility devices from circulation once a storm watch or warning has been established.

(7) The shared mobility device operator's mobile application and website must inform users of how to safely and legally use the shared mobility device, including any and all applicable rights and duties of users riding in streets.

(8) The shared mobility device operator must inform users of applicable helmet laws.

(d) *Service and maintenance.*

(1) Shared mobility device operators must service their shared mobility devices in service areas as identified by their operating permit.

(e) *Data sharing.*

(1) All permitted operators shall provide the city-parish with the following data on a monthly basis in a comma-separated values or comparable format:

a. Number of shared mobility devices in circulation.

b. Number of daily, weekly, and monthly riders.

c. Total number of miles traveled by users (daily, monthly, quarterly, annually) broken down by type of shared mobility device.

d. Average time each shared mobility device spends available (not in use).

e. Number of rides per user per day.

f. Number of rides per type of shared mobility device per day.

g. Duration of rides per rider per day as well as rides per type of shared mobility device per day.

h. Average duration of ride per day of the week.

i. Summary of shared mobility device distribution and GPS-based natural movement, provided in heat map or equivalent format.

j. Summary of fleet numbers lost to theft/vandalism.

k. Summary of customer comments/complaints, resolution to, and time it took to resolve each complaint.

l. Summary of repairs per shared mobility device per month.

(2) All permitted operators shall provide real-time or semi-real-time location data of the shared mobility devices via a publicly accessible API in mobility data specification (MDS) format. The city-parish reserves the right to post this information through a publicly available data portal in a manner that is consistent with the city-parish's open data policy and considers sensitive or protected information.

(3) Upon request, the permitted operators shall provide any other data identified by the director of information services as necessary; however, the confidentiality of proprietary or trade secret information shall be maintained in compliance with the provisions of R.S. 44:3.2.

(Ord. No. 17950, § 1, 11-4-20)

Sec. 9:1304. Liability and insurance.

(a) There shall be no liability on the city-parish or upon any of its officers, agents or employees of the city-parish for any damage sustained by the permit holder from any cause whatsoever.

(b) Prior to the issuance of a permit, the applicant shall furnish the director of the department of transportation and drainage with a signed statement that the permit holder shall hold harmless the city-parish, and the officers, agents and employees of same and shall defend and indemnify the city-parish, and the officers, agents and employees of same for any claims,

including claims brought through or under the applicant by way of subrogation, for damages to property or injury to persons which may be occasioned by any activity carried on under the terms of the permit.

(c) Each permit holder shall, at his/her own expense, maintain in full force and effect an insurance policy or policies underwritten by a carrier rated by Best's as A or better and they must be licensed to do business in the state. Such insurance coverage shall afford liability coverage for any and all claims against the permit holder, the adjacent property owner and the city-parish, and the employees or agents of the city-parish, arising out of or in any way connected or associated with the shared mobility devices, including but not limited to premises, products, personal injuries, and injury to property with limits of no less than one million dollars ($1,000,000.00) for any one (1) occurrence and if a general aggregate limit is used, it shall not be less than twice the occurrence limit applying to bodily injuries, personal injuries and property damage or a combination of such injuries. Such policy or policies shall name the city-parish as additional insured. A copy of the permit holder's certificate of insurance shall be on file with the department of transportation and drainage and maintained current at all times. Such policy or policies shall provide thirty (30) days' notice to the director of the department of development if the policy or policies should be canceled or materially changed. If the required insurance coverage is cancelled, the permit shall be immediately suspended as of the date of such cancellation.

(d) The operator shall provide proof of all required insurance prior to receiving a permit and upon each renewal thereafter.
(Ord. No. 17950, § 1, 11-4-20)

Sec. 9:1305. Fees and penalties.

(a) The following fees shall apply to operators:

(1) Initial permit fee: $500.00.

(2) Annual permit renewal fee: $100.00.

(3) Annual fee: $175.00 per shared mobility device.

(4) Performance bond: $80.00 per shared mobility device/$10,000.00 maximum.

(5) Shared mobility device relocation fee: $150.00.

(6) Shared mobility device storage fee: $50.00 per day.

(7) Street use surcharge: $0.25 added to the user's total fare of each completed trip.

(b) All funds the city-parish collects through these permits, penalties, and fees, as well as the street use discharge fee, will be dedicated to an account specifically focused on projects that involve accommodating or furthering the safe and equitable use of shared mobility devices.

(c) An operator is subject, at the discretion of the director of the department of transportation and drainage, to a fleet size reduction or total permit revocation should the following occur:

(1) If violations of the regulations set forth in this chapter are not addressed in a timely manner or;

(2) Five (5) unaddressed violations of the regulations set forth by this chapter occur within a ninety-day period or;

(3) Submission of inaccurate data required by section 9:1303 of this chapter.

(d) In the event of a permit revocation, the director of the department of transportation and drainage shall provide written notice of the revocation, informing the operator of the permit revocation.
(Ord. No. 17950, § 1, 11-4-20)

Sec. 9:1306. Appeal from revocation.

Operators who have been subject to a permit revocation may appeal the revocation of such permit pursuant to section 9:166 of this Code.
(Ord. No. 17950, § 1, 11-4-20)

CHAPTER 25. LOCAL HEALTHCARE PROVIDER PARTICIPATION PROGRAM

Sec. 9:1350. Title.

This chapter shall be known and may be cited as the "East Baton Rouge Parish Local Provider Participation Fund Ordinance."
(Ord. No. 19541, 5-28-25)

Sec. 9:1351. Annual assessment.

For the privilege of operating in the parish, there is levied upon hospitals, as identified in R.S. 40:1248.1—40:1248.10, a local hospital assessment for each fiscal year (the "local hospital assessment"). The rate of the local hospital assessment for each fiscal year shall be in accordance with R.S. 40:1248.8 and will be provided annually by resolution of the metropolitan council.
(Ord. No. 19541, 5-28-25)

Sec. 9:1352. Adoption of state law.

The local hospital assessment shall used, or refunded to paying hospitals, in accordance with the provisions of R.S. tit. 40, ch. 5-E, pt. I, subpt. D-1, as amended, which are adopted and incorporated by reference.
(Ord. No. 19541, 5-28-25)

Sec. 9:1353. Payments.

The local hospital assessment levied herein shall be due November 1, 2025. Any payment not paid within thirty (30) days of the due date shall be deemed delinquent.

Interest at the rate of one-quarter (0.25) percent per month may be added to the amount of the delinquent payment and such interest shall be computed from the due date of the payment until it is paid. Such interest may be waived for good cause shown. All penalties and interest attributable to delinquent local hospital assessment payments will be deposited and made part of the local provider participation fund.
(Ord. No. 19541, 5-28-25)

Sec. 9:1354. Depository for local hospital assessment funds.

The parish shall designate its fiscal agent bank as a depository for the local hospital assessment payments received by the parish. A bank designated as a depository serves until a successor is designated by the treasurer's office.
(Ord. No. 19541, 5-28-25)

Sec. 9:1355. Collection of the local hospital assessment payments.

The parish designates the treasurer's office to administer the program and the department of finance to collect the local hospital assessment payments in accordance with R.S. 40:1248.9. The amount of annual fees for collecting the local hospital payments that may be paid for each fiscal year shall be in accordance with R.S. 40:1248.8 and 40:1248.9 and will be approved annually by resolution of the metropolitan council.
(Ord. No. 19541, 5-28-25)

Sec. 9:1356. Authorized uses of local hospital assessment funds.

Monies in the local provider participation fund shall not be commingled with other parish funds. Excess monies in the local provider participation fund in any given fiscal year may be carried forward to the following fiscal year.

Monies in the local provider participation fund may be used only as permitted for one or more of the following purposes or as allowed by R.S. 40:1248.7:

1. To fund intergovernmental transfers from the parish to the state to provide the nonfederal share of a program of Medicaid payments that benefit hospitals in the parish.
2. To pay the allowable administrative expenses of the parish associated exclusively with activities authorized by R.S. 40:1248.1 through 40:1248.10. The amount of allowable administrative expenses of the parish may not exceed the amount stated in R.S. 40:1248.8(D).

3. To refund a portion of a local hospital assessment payment collected in error from a paying hospital.

4. To refund to paying hospitals the proportionate share of money received by the parish from the state department of health that is not used to fund the non-federal share of Medicaid payment program payments.

(Ord. No. 19541, 5-28-25)

Sec. 9:1357. Other necessary actions.

The council administrator or the metropolitan council or its representatives as appointed are authorized to take all other actions necessary to implement the requirements of R.S. tit. 40, ch. 5-E, pt. I, subpt. D-1, as amended by 2024 La. Act 432, to be comprised of R.S. 40:1248.1—40:1248.10. To the extent any section of this chapter is inconsistent with or conflicts with the state statutes, the state statutes will control.
(Ord. No. 19541, 5-28-25)

CHAPTER 26. PRIVATE BOOTING AND IMMOBILIZATION

Sec. 9:1400. Purpose.

The city-parish finds and declares that the immobilization of motor vehicles by booting vitally affects the public interest and the public welfare. In order to promote the public interest and the public welfare, and in the exercise of its police power, it is necessary to regulate those who operate motor vehicle booting businesses in the city-parish, in order to prevent frauds, impositions, and other abuses upon its citizens.
(Ord. No. 19645, § 1, 10-8-25)

Sec. 9:1401. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Boot or *booting* means the act of placing on a parked motor vehicle a mechanical device that is designed to be attached to the wheel or tire or other part of such vehicle so as to prohibit its usual manner of movement.

Persons means, unless specified in any provision of this chapter, any individual, partnership, corporation, association, firm, or other business entity which engages in or operates, or assists in the engagement or operation of, a business engaged in booting motor vehicles on private property.

Private property means any privately owned parking facility at any location or any parking lot or street which is privately owned and is located near or contiguous to premises having one (1) or more stores or business establishments which are used for the parking of motor vehicles or for vehicular travel by the owner or customers of such establishments and those having express or implied permission of the owner. Private property does not mean any parking facility, parking lot, or street which is owned by the state or any of its political subdivisions or by any postsecondary education institution.
(Ord. No. 19645, § 1, 10-8-25)

Sec. 9:1402. Requirements.

(a) *Occupational license.* No person shall boot a motor vehicle parked on private property unless they have obtained an occupational license from the parish in which they are domiciled.

(b) *Insurance.* No person shall engage in the business of booting motor vehicles unless such person maintains all applicable minimum insurance coverage in the amounts set forth under state law, R.S. 32:1741.

(c) *Surety bond.* No person shall engage in the business of booting motor vehicles unless such person shows proof of financial responsibility by depositing with the city-parish a continuing bond with a commercial surety authorized to do business in the state and approved by the city-parish in the amount of ten thousand dollars ($10,000.00) payable to the city-parish, which bond shall be conditioned upon faithful observance of all the provisions of this chapter with respect to the business of booting motor vehicles on

private property, and shall also indemnify any person who suffers any loss by reason of a failure to observe such provisions of this chapter, or any person who suffers any loss, damages, and expenses by reason of a failure to properly boot a vehicle.

(d) *Written contract.* No person shall boot a motor vehicle parked on private property unless such person has a written contract with the owner of the private property, or his authorized representative, to boot motor vehicles parked on any such property.

(e) *Photographic proof.* No person shall boot a motor vehicle parked on private property or a pay-to-park lot because the motor vehicle is improperly parked in a marked space on such private property or a pay-to-park lot unless the person booting the vehicle obtains photographic proof sufficient to clearly show the improper parking, whether by cell phone photograph or otherwise.

(f) *Signage.* No person shall boot a motor vehicle parked on private property unless a sign is posted at each lot entrance. In addition, each sign shall contain the information which may be prescribed by the parish or municipality and shall include all of the following:

(1) The signs shall be at least eighteen (18) inches wide and twenty-four (24) inches tall and shall be made of weather resistant material.

(2) In lettering at least two (2) inches tall in height and in a solid color that contrasts with the background the sign shall read "Towing and Booting Enforced" or "Booting Enforced," as is applicable to the property.

(3) In lettering at least one (1) inch in height and in a solid color that contrasts with the background the sign shall clearly state the following:

a. The name and phone number of the booting company, including the area code, the amount of the boot removal fee and, in the case of a pay-to-park lot, a statement that unpaid parking fees will also be collected.

b. Statement that "Unauthorized vehicles will be towed or booted at owner's or operator's expense."

c. A statement describing who may park in the parking facility or the private property, such as "Paid Customer Parking Only", "Permit Parking Only", "Resident Parking Only", or similar statement.

d. In the case of pay-to-park lots, the sign shall state how to pay.

e. The phone number of the booting company shall be in operation twenty-four (24) hours a day and shall be manned by a live operator.

(Ord. No. 19645, § 1, 10-8-25)

Sec. 9:1403. Business name display.

(a) It shall be unlawful for any person, either as principal, agent, or employee, to operate any vehicle to engage in or operate, or assist in the engagement or operation of, a business engaged in booting motor vehicles on private property unless the vehicle shall have displayed on each side in plain view the name of the business, the address from which the business is operating, and a phone number with area code of the business. The lettering shall be at least two (2) inches in height and shall be in a contrasting color to the vehicle. Information may be on a removable magnet, so it can be removed when the vehicle is not in service.

(b) Business identification shall be visibly worn by vehicle booting agents at all times while booting and accepting payment.

(Ord. No. 19645, § 1, 10-8-25)

Sec. 9:1404. Warning sticker.

(a) Any person who has booted a vehicle shall immediately affix at the rear-most portion of the window adjacent to the driver's seat of such vehicle a sticker containing a warning that any attempt to move the vehicle may result in damage to the vehicle, the fee to remove the boot, and the time the vehicle was booted.

(b) The sticker shall also contain the name and address of the motor vehicle booting business as well as the occupational license number and issuing jurisdiction. Additionally, the sticker shall include the twenty-four-hour business telephone number of the motor vehicle booting business, which shall facilitate the dispatch of personnel responsible for removing the boot and a statement that no fee shall be due if personnel responsible for removing the boot do not arrive within sixty (60) minutes of the call or other notification that the driver requests removal of the boot.
(Ord. No. 19645, § 1, 10-8-25)

Sec. 9:1405. Maximum booting rates.

(a) The maximum charge for removing the boot is one hundred fifty dollars ($150.00) inclusive of all fees, surcharges and taxes. No extra charge shall be imposed for payment by cash or debit card. A reasonable processing fee not to exceed four (4) percent of the total boot removal charge may be imposed for payments made by credit card, provided such fee is separately itemized on the receipt.

This subsection shall not apply to the immobilization of heavy commercial vehicles, including eighteen-wheelers, tractor-trailers, or any vehicle with a gross vehicle weight rating exceeding fourteen thousand (14,000) pounds. Charges for removal of a boot from such vehicles must be clearly posted on required signage pursuant to section 9:1402.

(b) Return dispatch fee. If, after the booting operator timely arrives within sixty (60) minutes of the vehicle owner's request for removal, the vehicle owner is not present or declines removal, the owner may request a later removal. For each subsequent dispatch, the booting operator may charge an additional return-dispatch fee not to exceed forty dollars ($40.00), provided that:

(1) The fee amount is included on the required signs;

(2) No return-dispatch fee shall be charged when the operator fails to arrive within sixty (60) minutes of the applicable removal request; and

(3) No other charges beyond those posted on the sign are collected.

(c) In the event that the booting company's equipment is damaged, destroyed or rendered inoperable as a result of tampering, attempted removal or other actions of the vehicle owner, operator or their agents, the booting company may assess an additional charge for the actual cost of repair or replacement of the equipment. This charge shall be separate from, and not included within, the maximum boot removal fee authorized under subsection (a).
(Ord. No. 19645, § 1, 10-8-25)

Sec. 9:1406. Boot removal; receipt.

(a) Upon payment of all fees to remove a boot, the person who booted the motor vehicle, or his authorized representative, shall remove the boot and the window sticker immediately at no additional charge. The personnel responsible for removing the boot shall be capable of accepting payment by credit or debit card, as well as cash. However, no boot removal fee or other charge therefore shall be due if personnel responsible for removing the boot do not arrive within sixty (60) minutes of the call or other notification that the driver requests removal of the boot. No release or waiver of any kind purporting to limit or avoid liability for damages to a motor vehicle that has been booted shall be valid.

(b) Any person who boots a motor vehicle, or any other person authorized to accept payment of any booting fees, shall provide a signed receipt to the person paying the booting fees at the time such fees are paid. The receipt shall contain the following:

(1) The name of the business that booted the motor vehicle;

(2) The business address;

(3) The business occupational license number and issuing jurisdiction;

(4) The business telephone number; and

(5) Shall advise the owner or operator of a booted vehicle of their right to request an

administrative hearing as set forth under section 9:1408 of Baton Rouge City Ordinances.

(Ord. No. 19645, § 1, 10-8-25)

Sec. 9:1407. Enforcement.

The appropriate law enforcement agency shall enforce all provisions set forth under this chapter.
(Ord. No. 19645, § 1, 10-8-25)

Sec. 9:1408. Administrative hearing.

(a) The owner of the motor vehicle that has been booted shall have such right to an administrative hearing. The purpose of the hearing is to determine the validity of the booting violation and the fees imposed.

(b) The owner shall make a written request, via certified mail, to the appropriate law enforcement agency—whether inside city limits or in unincorporated areas—for a hearing within ten (10) calendar days from the date the motor vehicle was booted. The written request must include the following: A statement of alleged violations made under this chapter, the complainant's name, address, telephone number and/or email address.

(c) Businesses alleged to be in violation of this chapter shall receive notice to appear before an administrative court hearing officer pursuant to the process set forth in title 1, chapter 4, part II, section 1:609 of this Code.
(Ord. No. 19645, § 1, 10-8-25)

Sec. 9:1409. Monetary or ownership interest prohibited.

The ownership entity of the parking facility shall not receive any compensation, including any rebate or other valuable consideration, in connection with the immobilization of motor vehicles by booting on private property, other than unpaid parking fees. Any unpaid parking fees assessed pursuant to this section shall not be in any amount greater than the amount actually incurred for parking in the parking facility.
(Ord. No. 19645, § 1, 10-8-25)

Sec. 9:1410. Penalties.

Any person deemed in violation of the provisions of this section shall be fined five hundred dollars ($500.00) per violation, a subsequent violation shall subject such person to a fine of five hundred dollars ($500.00) per violation and a suspension of the violator's right to engage in the business of booting motor vehicles on private property.
(Ord. No. 19645, § 1, 10-8-25)

CHAPTER 27. TIRE BUSINESSES

Sec. 9:1500. Purpose.

It is declared to be the purpose and intent of the city-parish to protect the public health, safety, and welfare of its citizens, prevent the spread of disease and creation of nuisances, and to protect and enhance the quality of its environment. The purpose of this chapter is to institute and maintain a comprehensive city-parish-wide program for used and waste tire storage and disposal that does not adversely affect the health, safety, and wellbeing of the public and does not degrade the quality of the environment.
(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1501. Definitions.

As used in this article, the following words and phrases shall have the meaning ascribed to them herein:

Abandoned means waste tires and/or waste tire materials discarded without adhering to the proper disposal or processing standards required by the Louisiana Department of Environmental Quality, [Louisiana Administrative Code] Title 33, Part VII, Subpart 2, Chapter 105.

City-parish means the consolidated government of the City of Baton Rouge/Parish of East Baton Rouge which includes the City of Baton Rouge and unincorporated areas of East Baton Rouge Parish.

Department of environmental services (DES) means the body or branch of the city-parish government.

Destination facility means a facility where waste tires and/or waste tire material are processed, recycled, collected, stored and/or disposed of after transportation.

Disposal means the removal of waste tires from a tire business to a destination facility by a waste tire hauler.

Illegal disposal/dumping means the depositing, dumping, or placing of waste tires or waste tire material on to any land or water so that such waste tires, waste tire material, or any constituent thereof may have the potential for entering the environment, or being emitted into the air, or discharged into any waters of the state.

Louisiana Department of Environmental Quality (LDEQ) means the body or branch of the State of Louisiana government.

Manifest means the paper mechanism provided by the Louisiana Department of Environmental Quality (LDEQ) or other governing authority, used for identifying the quantity, type, origin, transportation, and destination of waste tires and/or waste tire material from the point of generation to the authorized destination.

Processing means any method or activity that alters whole waste tires so that they are no longer whole, such as, cutting, slicing, chipping, shredding, distilling, freezing, or other processes as determined by the Louisiana Department of Environmental Quality. At a minimum, a tire is considered processed only if its volume has been reduced by more than half.

Person means any and all persons, natural or artificial, including any individual, business, firm or association.

Recapped or *retreaded tire* means any tire that has been reconditioned and sold for use on a motor vehicle.

Storage means location where tires are kept prior to sale or disposal.

Tire means a continuous solid or pneumatic rubber covering encircling or intended to encircle the wheel of an automobile, truck, trailer, tractor or other vehicle.

Tire business means any place or establishment engaged in the business of selling or reselling tires or that generates waste tires and is occupied, used or maintained for the purpose of offering, transporting, repairing, processing, storing, utilizing, of any and all types of such tires.

Tire dealer means any person, business or firm that lawfully engages in the sale of new or used tires.

Unauthorized waste tire pile means an accumulation of more than five (5) waste tires whose storage and/or disposal is not authorized by the city-parish.

Used tire means a tire that can be salvaged and sold as a functional tire consistent with definitions contained in the Louisiana Department of Public Safety regulations.

Waste tire means a tire that is no longer suitable for its original purpose because of wear, damage or defect and/or has been discarded by the consumer.

Waste tire generator means any person or entity whose activities, whether authorized or unauthorized, result in the production of waste tires. This may include, but is not limited to, tire dealers, repair shops, salvage yards, etc.

Waste tire hauler means any person engaged in the business of picking up or transporting waste tires for the purpose of removal and transporting to a tire recycling facility, waste tire disposer, processor, end user or disposal facility.

Waste tire processor means a person or entity that processes waste tires.
(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1502. Tire business permit.

All tire dealers located within the city-parish engaging in the sale or resale of tires or the generation of waste tires shall be required to obtain an annual permit from the city-parish, by and through its department of environmental services for a non-refundable fee of one hundred dollars ($100.00) annually. Tire businesses with multiple locations must purchase a permit for each location. The revocation of a tire business

permit shall require the payment of an additional annual fee for the reinstatement or re-establishment of the permit.

(1) *Application.* Each person, firm or corporation obligated to comply with the permit requirement set forth herein shall make a written application to the city. The application shall be made on an application obtained from the department of environmental services setting forth, among other things, the following:

a. Name, physical address, telephone number, email, and cell phone number of the applicant.

b. Tax identification number or taxpayer identification number.

c. Proof of current business license issued to the applicant at the proposed business address by the city-parish.

d. Name, mailing address, telephone number, email of the owner of the tire business (if different from subsection a. above).

e. Name, mailing address, telephone number, email of the owner of the property where the tire business is located.

f. The estimated number of tires that will be stored on site.

g. The current physical address of the site.

h. A statement setting forth and describing the available space for properly accommodating and protecting all tires including but not limited to the type of fire protection system.

i. Site plan with details of fencing, buildings, containers, etc. and location of tires stored on site.

j. Proof of insurance.

k. Such other and further information [the] department of environmental services may require.

l. Waste hauler name, address, phone number, and LDEQ waste tire transporter number (may list more than one, if applicable).

(2) *Annual fees.* All permit fees are due annually by January 1 of each calendar year at the department of environmental services. These annual fees shall be paid in advance of the issuance of such license.

(3) *Issuance.* The department of environmental services shall issue a permit to a tire business which submits the required application, pays the fee as required in this section, and has demonstrated compliance with this section and all applicable ordinances. Each tire business registered in accordance with the provisions of this section shall immediately cause such permit to be posted in a conspicuous place within the premises where such tire business is thereby authorized to be established, maintained or operated.

(4) *Change of ownership.* Any and all changes in ownership of a tire business shall immediately cause the revocation of a permit issued for that tire business and shall require the new owner to obtain a new permit.

(5) *Effective period.* The permits shall be effective, beginning on January 1 until December 31, after which date it shall be null and void, unless renewed.

(6) Each tire business shall have six months from the effective date of the ordinance, from which this article is derived, to comply with the provisions set forth herein. Failure to comply with this requirement shall be grounds for revocation of the tire business permit set forth above.

(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1503. Records.

Tire businesses shall keep records as prescribed by the Louisiana Department of Environmental Quality, [Louisiana Administrative Code] Title 33, Part VII, Subpart 2, 10519, Standards and Responsibilities of Waste Tire Generators and Sellers of Tires. Records included but are not limited to:

(1) Purchase orders, records invoices and receipts: pertaining to the acquisition of new or used tires.

(2) Tire sales invoices: documenting the quantity of new or used tires sold.

(3) Inventory records: tracking the number and types of all tires on hand; categorized individually as new, used or waste.

(4) Shipping records: documenting the movement of all tires; categorized individually as new, used or waste.

(5) Waste tire manifests: documenting the proper and legal processing of waste tires generated by the business.

(6) Copies of each monthly waste tire fee report submitted to LDEQ.

(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1504. Operational guidelines.

(a) Tires must be stored in accordance with section 9:1312.

(b) The outdoor display of tires is limited to the building frontage only and no more than five (5) tires at any given time. Display tires shall not be placed in the right-of-way.

(c) All waste tires shall be separate from new or used tires offered for sale by the business. Waste tires must be disposed of in accordance with section 9:1313.

(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1505. Storage of tires.

A tire business shall properly store tires at each facility in accordance with local, state and federal law. To eliminate the potential nuisance of litter, insect breeding, fire hazards and other health risks, each tire business shall at all times during storage:

(1) Store no more than five hundred (500) used tires and/or one hundred fifty (150) waste tires at any one (1) time at a single tire business.

(2) Store tires in a covered or enclosed area adequate to exclude water from the tires, provide insect and vermin control, and to prevent and control standing water in the storage area in accordance with applicable health and safety laws, including, but not limited to, the city-parish's fire prevention code.

(3) Screen all tires from public view if not stored within an enclosed building or transportable collection container. Indoor storage of tires must be in accordance with fire prevention codes and permitted accordingly.

(4) If tires are stored behind a fence, the fence must be legally permitted, fully enclosed, a minimum of six (6) feet in height and maximum of eight (8) feet in height, and which may be constructed of chain-link wire with fully opaque screen or other weather and damage resistant materials, including wooden pickets, metal panels, or solid plastic panels.

(5) Secure tires at each facility to prevent easy access or theft. Lock, chain, or store inside a building or other securable area.

(6) Accumulate and store tires in accordance with the city-parish's fire prevention code.

(7) No tires shall be stored closer than ten (10) feet from lot lines unless completely enclosed within a building or transportable collection container.

(8) Isolate tires from other stored materials that may create hazardous products if there is a fire, including, but not limited to, lead acid batteries, fuel tanks, solvent barrels, and pesticide containers.

(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1506. Disposal of tires.

(a) Any waste tire as defined herein shall be properly transported to an LDEQ approved destination facility within thirty (30) days.

(b) It shall be unlawful for any person or tire business to cause, suffer or allow the disposal of tires at any place in the city-parish including, without limitation, in or on any public highway, road, street, alley, or thoroughfare, including any portion of the right-of-way thereof, any public or private property in the city-parish or any waters in the city-parish.

(c) It shall be unlawful for any person or tire business to cause, suffer, or allow the disposal of whole tires in a landfill.

(d) Tires and/or tire material shall be properly transported and manifested in accordance with the Louisiana Department of Environmental Quality, [Louisiana Administrative Code] Title 33, Part VII, Subpart 2, Chapter 105. Tire businesses contracting with a tire hauler(s) for the proper disposal of tires generated by such business shall require such hauler(s) utilize a transmittal manifest documenting the pickup and delivery of the tires to an authorized tire disposal or tire recycling facility.
(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1507. Denial of permit; renewal, suspension or revocation of permit.

In addition to any other penalties or fines, the department of environmental services may refuse to issue or renew a tire business permit or may suspend or revoke such permit if:

(1) The applicant or permit holder refuses to allow entry into the tire business by authorized representatives of the city-parish or otherwise willfully obstructs the inspection of the tire business;

(2) There are repeated or serious violation(s) of any city-parish ordinance by the tire business;

(3) The tire business fails to comply with any provisions of this section and/or any other applicable city-parish ordinance(s);

(4) The tire business fails to comply with any applicable state or federal law, rule or regulation;

(5) The tire business knowingly authorizes a tire transporter who is not properly permitted as required in Louisiana Administrative Code Title 33, Part VII, Solid Waste—Subpart 2, Chapter 105 to transport tires on behalf of such business.
(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1508. Right of entry, and inspection.

(a) *Right of-entry.* The city-parish shall have the right to enter the premises of any tire business to determine whether the tire business user is complying with all requirements of this part. Tire businesses shall allow the city-parish ready access to all parts of the premises for the purposes of inspection, observation, measurement, records examination and copying, photography documentation, and the performance of any additional duties.

(1) Where a tire business has security measures in force which require proper identification and clearance before entry into its premises, the tire business shall make necessary arrangements with its personnel so that, upon presentation of suitable identification, the city-parish will be permitted to enter without delay for the purpose of performing specific responsibilities.

(2) Any temporary or permanent obstruction to safe and easy access to the facility to be inspected shall be promptly removed by the user upon request and shall not be replaced.

(3) Unreasonable delays in allowing the city-parish access to the premises shall be a violation of this part.
(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1509. Violations and penalties.

Any tire business violating or failing to comply with any provision of this article shall be guilty of a penalty as follows:

(1) The improper storage or display of one (1) or more tires shall constitute a separate offense per tire and be punishable by a fine of fifty dollars ($50.00) for each improperly stored tire on the location of the tire business. Each day of continued violation of this subsection constitutes a separate offense.

(2) The transport of one (1) or more waste tires without the required permit shall constitute a separate offense per waste tire and be punishable by a fine of fifty dollars ($50.00) for each tire being transported in violation of this article.

(3) The improper dumping of a used or waste tire shall constitute a separate offense and be punishable by a fine of fifty dollars ($50.00) per tire.

(4) Failure to maintain accurate records, as required, shall result in a fine of one hundred twenty-five dollars ($125.00) for a first violation; and upon a second violation within a two-year period, a penalty of two hundred fifty dollars ($250.00); and upon a third and any subsequent violations within a two-year period, a penalty of five hundred dollars and zero cents ($500.00.)

(5) Failure to obtain a permit annually shall result in a fine of two hundred fifty dollars ($250.00) for a first violation; and upon a second violation and any subsequent violations a penalty of five hundred dollars and zero cents ($500.00.)

(6) Unresolved LDEQ compliance orders, LDEQ delinquent notifications, failure to file monthly tire fee report with LDEQ, or other noncompliance issues with LDEQ in excess of ninety (90) days shall result in termination of the occupancy permit.

(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1510. Injunctive relief.

In addition to, and cumulative of, all other penalties herein provided, the city shall have the right to seek injunctive relief, for any violation(s) of this article.

(Ord. No. 19593, § 1, 8-27-25)

Sec. 9:1511. Administration/enforcement.

(a) Administration and enforcement of this section shall be the responsibility of the department of environmental services. The city-parish, by and through its authorized representatives, is hereby authorized to enter any property regulated by this article, at reasonable or necessary times to properly inspect for violations.

(b) Tire businesses alleged to be in violation of this ordinance shall receive notice to appear before an administrative court hearing officer pursuant to the process set forth in section 1:609 of this Code.

(Ord. No. 19593, § 1, 8-27-25)

CHAPTER 28. SMOKE AND VAPE SHOPS

Sec. 9:1600. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Smoke/vape paraphernalia means any equipment, device, accessory, or instrument that is primarily designed or manufactured for the smoking, chewing, absorbing, dissolving, inhaling, snorting, sniffing, or ingesting by any other means a smoke/vape product.

Items or devices include, but are not limited to, the following: pipes, bongs, water bongs, electric pipes, e-cigarettes, vaporizers, hookahs, and other similar items. Lighters and matches are excluded from the definition of smoke/vape paraphernalia.

Smoke/vape products means any product in leaf, flake, plug, liquid, wax, or any other form, containing nicotine or tetrahydrocannabinol derived from the tobacco or hemp plant, or otherwise derived, which is intended to enable human consumption of the tobacco, nicotine or other substances in the product, whether smoked, chewed, absorbed, dissolved, inhaled, snorted, sniffed, or ingested by any other means. Including any electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product or device and any vapor cartridge or

other container of nicotine in a solution or other form that is intended to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product or device. For the purposes of this ordinance, this term excludes any product that has been specifically approved by the United States Food and Drug Administration for sale as a tobacco/smoking cessation product or for other medical purposes, where such product is marketed and sold solely for such an approved purpose.

Smoke/vape shop means a retail establishment that includes a substantial or significant amount (more than twenty (20) percent) of its stock in trade or floor area dedicated to the on-premise and/or off-premise sale or consumption of tobacco, tobacco products, tobacco paraphernalia, electronic smoking devices or accessories, smoke/vape products, smoke/vape paraphernalia, or other similar substances and products.
(Ord. No. 19833, § 1, 4-22-26)

Sec. 9:1601. Distance regulations.

(a) Smoke or vape shops and tobacco retailers, and all associated signage shall not be located within five hundred (500) feet of an educational institution (public or private), religious institution, public library, child day care facility, or public park.

(b) Smoke or vape shops, shall not be located within five hundred (500) feet from another smoke or vape shop.

(c) For the purposes of this section, the department of development shall measure the distance from property line to property line, in a straight line, without regard to intervening structures or objects, from the nearest portions of the properties in which the distance between is being measured.

(d) A smoke or vape shop or tobacco retailer, lawfully operating on the effective date of the ordinance codified in this chapter, that is in violation of the location requirements in this section shall be deemed a nonconforming business.

(e) Nonconforming businesses involving a smoke or vape shop or tobacco retailer shall not be re-established if the operation of such business is discontinued for a period of six (6) months or more. Additionally, such nonconforming business shall not be transferred, sold, assigned, or otherwise conveyed in a manner that continues its nonconforming status. Upon any transfer of ownership or change in controlling interest, the nonconforming status shall terminate, and any subsequent smoke or vape shop or tobacco retailer on the property shall be required to immediately comply with all regulations of this section.
(Ord. No. 19833, § 1, 4-22-26)

Sec. 9:1602. Signage for minors.

Smoke/vape shops shall post clear signage stating that minors may not enter the premises. At least one (1) such sign shall be placed in a conspicuous location near each public entrance to the business. It shall be unlawful for a smoke/vape shop or tobacco retailer to fail to display and maintain, or fail to cause to be displayed or maintained, such signage.
(Ord. No. 19833, § 1, 4-22-26)

Sec. 9:1603. Advertising restrictions.

(a) No person shall place, display, or maintain any outdoor advertising, including but not limited to billboards, window signs, banners, posters, bus stop benches, bus stop coverings, or digital displays, for smoke or vape products within five hundred (500) feet of the property line of any educational institution (public or private)which includes pre-kindergarten through 12th grades, public library, child day care facility, or public park.

(b) The distance shall be measured in a straight line, without regard to intervening structures, from the nearest property line of the premises on which the advertising is located to the nearest property line of the educational institution (public or private) which includes pre-kindergarten through 12th grades, public library, child day care facility, or public park.

(c) This restriction shall apply to all advertising visible from the exterior of the premises, regardless of whether such advertising is permanent or temporary in nature.

(d) Nothing herein shall prohibit interior signage not visible from the public right-of-way or signage required by local, state or federal law.
(Ord. No. 19833, § 1, 4-22-26)

Sec. 9:1604. Window visibility and signage restrictions.

No person operating a smoke, tobacco, or vape shop shall place, display, or maintain any sign, poster, placard, or other form of advertising in or upon any window, door, or other transparent surface of the premises that obstructs or substantially blocks visibility into and out of the business from the public right-of-way. At least fifty (50) percent of the area of all windows and glass doors facing the public right-of-way shall remain unobstructed and free of advertising materials at all times.
(Ord. No. 19833, § 1, 4-22-26)

Sec. 9:1605. Penalties and enforcement.

(a) It shall be unlawful for any person who owns, manages, operates, or otherwise controls the use of premises of a smoke or vape shop is prohibited, pursuant to this article, to fail to comply with the requirements of this chapter.

(b) Every person who owns, manages, operates, or otherwise controls the use of premises of a smoke or vape shop who violates any section of this ordinance shall for a first violation thereof, be liable for a fine of not more than five hundred dollars ($500.00); for a second violation, both of which were committed within a period of twelve (12) months, shall be liable for a fine of not more than one thousand dollars ($1,000.00); and for a third or subsequent violation, all of which were committed within a period of twelve (12) months, shall be liable for a fine of not more than one thousand five hundred dollars ($1,500.00).

(c) Violators alleged to be in violation of this ordinance shall receive notice to appear before an administrative court hearing officer pursuant to the process set forth in title 1, part II, section 1:609 of this Code.

(d) The department of development shall administer and enforce this chapter, and may adopt rules consistent with this part as necessary to carry out the purpose of this chapter.
(Ord. No. 19833, § 1, 4-22-26)

Title 10

TRANSPORTATION*

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***Cross references—**Automotive wrecker and towing control board, auto, emergency and heavy-duty wrecker franchise regulations, title 9, ch. 12; traffic code, title 11.

State law reference—Public utilities and carriers, R.S. 45:1 et seq.

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CHAPTER 1. RAILROADS*

Sec. 10:1. Speed limit.

(a) No railroad locomotive, car or train of cars shall be run through, over or across the public avenues, streets, roads or other public ways within the limits of the city at a greater rate of speed than twenty (20) miles per hour.

(b) The director of public works shall have power and authority to establish speed limits for the operation of railroads outside the corporate limits of incorporated municipalities in the parish so as to provide for the safety and well-being of the residents of such areas, and no railroad, locomotive, car or train of cars shall be run through, over or across the public avenues, streets, roads or other public ways outside the corporate limits of incorporated municipalities of the parish at greater rates of speed than those established by the director of public works.
(City Code 1951, Title 10, § 1; Parish Code 1962, Title 10, § 1)

Sec. 10:2. Obstruction of public crossings.

No railroad locomotive, car or train of cars, whether stopped or moving, shall obstruct or block any public avenues, streets, roads or other public ways within the corporate limits of the city-parish for a longer period than ten (10) minutes; provided, however, the obstructing or blocking of any such avenues, streets, roads or other public ways for a longer period of time than ten (10) minutes due to contingencies and happenings beyond the control of the operator, any person responsible for the operation of the locomotive, car or train of cars or anyone exercising supervisory powers or direct control over any such person shall not constitute a violation of this chapter.
(City Code 1951, Title 10, § 2; Parish Code 1962, Title 10, § 2)

Sec. 10:3. Penalty.

Any railroad company, engineer, operator or anyone exercising supervisory powers or direct control over any such person running or operating a locomotive car or train of cars within the corporate limits of the city-parish in violation of section 10:1 or 10:2 shall be guilty of a misdemeanor and shall, upon conviction thereof, be fined a sum not less than one hundred dollars ($100.00), nor more than two hundred dollars ($200.00), or be imprisoned not less than twenty (20) days nor more than sixty (60) days, or both, at the discretion of the court.

Sec. 10:4. Lights or signs to be maintained.

(a) All railroad companies operating trains in and through the city shall be and they are hereby required to maintain lights at the intersection of their tracks with any and all streets of the city not presently lighted by city lights. Such lights to be similar to and of equal power to those now in use for lighting the streets of the city.

(b) All railroad companies operating trains in the parish shall install and maintain reflectorized railroad crossing signs at all crossings of streets and highways in the parish.
(City Code 1951, Title 10, § 4; Parish Code 1962, Title 10, § 4)

Sec. 10:5. Construction and repair of streets, bridges or culverts.

(a) In order that such will not adversely affect the present or future drainage of the city-parish, no construction or repair of any bridge or culvert over which railroad tracks are laid shall be performed prior to obtaining the approval of the plans for such construction or repairs by the director of public works, and such construction or repairs shall be done in conformity with the approved plans.

(b) The director of public works shall require that the construction and maintenance of city-parish streets between or immediately adjacent to the rails of any railroad be in accordance with the provisions R.S. 45:323. The director shall prepare typical plans and specifications of general appli-

*Cross references—Obedience to signal indicating approach of train, § 11:110; all vehicles must stop at certain railroad grade crossings, § 11:111; certain vehicles must stop at all railroad grade crossing, § 11:112; riding on moving railroad stock, § 13:1007.

State law reference—Railroads, R.S. 45:321 et seq.

cability to the construction and maintenance of streets between railroad tracks and adjacent thereto in street areas set forth in R.S. 45:323, and he is authorized to modify such typical plans and specifications as may be necessary in unusual installations.

(c) Should the owner or operator of a railroad or the grantee of a railroad switch track privilege fail to start repair of any roadway deficiency between or adjacent to his tracks in area specified herein as soon as practicable and not more than thirty (30) days after notice thereof has been brought to his attention by the director or his agent, or fail to complete such correction in not more than sixty (60) days after the notice, the director of public works may correct such deficiency or cause such to be corrected and the cost of such correction shall be borne by the owner of such tracks or by the grantee of the switch track franchise; provided, that the thirty-day period and/or the sixty-day period hereinabove specified may be extended by the director of public works because of extenuating circumstances such as nonavailability of material, equipment or skilled manpower or other conditions beyond the reasonable control of the persons or legal entity required to repair the designated deficiency; and provided further that this shall not affect existing agreements for maintenance of crossings between the city-parish and any railroad company or grantee of a switch track.
(City Code 1951, Title 10, § 5; Parish Code 1962, Title 10, § 5; Ord. No. 9590, § 1, 3-10-93)

Sec. 10:6. New tracks or changes not to be laid without getting lines and levels from city-parish.

It shall be unlawful for any railroad company running its tracks within the limits of the city-parish to lay down new tracks or lower or raise the grade of any track through public property without first procuring lines and levels from the director of public works for the proper construction of such track. In case of any violations of the provisions of this section, the director of public works shall cause such track to be immediately conformed to the proper grade or level of the streets or levees upon which it is laid and in case the railroad company should refuse or neglect so to do when notified, the director shall execute the provisions of this section and use such means as may be necessary for such purpose; provided this shall not affect existing agreements of crossings between the city-parish government and any railroad company.
(City Code 1951, Title 10, § 6; Parish Code 1962, Title 10, § 6)

Sec. 10:7. Switch tracks.

(a) *Permission required.* No railroad, person, firm or corporation shall establish, construct, maintain or operate a switch track in any public property in the city-parish without permission from the council, upon proper application by special ordinance.

(b) *Application.* All applications for such permission shall be made in writing to the council and shall be accompanied by blueprints, in quadruplicate, showing the proposed location of the track measurement, etc., and also all existing tracks, if any and by whom claimed and to what railroad it is connected. Such measurement shall be made along the centerline between rails from the point of frog to the property line. Two (2) of the blueprints shall be kept by the director of public works.

(c) *Blueprint specifications.* Every railroad shall file with the director of public works a blueprint, drawn to a scale of not more than one hundred (100) feet to the inch, showing each switch track connected to its railroad which serves a private individual, firm or corporation and which track is located in, on or through public property in the city-parish. These prints are to contain all data specified in subsection (b).

(d) *Approval; restoration of surrounding area.* The plans and specifications for the construction of new switch tracks or relaying of existing switch tracks in public property in the city-parish shall be approved by the director of public works. All sidewalks, pavements and other public property torn up, damaged or disturbed in constructing, relaying or removing switch tracks, shall be restored to their original good condition by the grantee of the switch track, who shall likewise conform in all respects to the provisions of all other ordinan-

ces relative to the manner of making and restoring cuts in roadways and sidewalk pavements.

(e) *Permittee to maintain adjoining systems during occupancy.* Every grantee of a switch track privilege shall, during the term of the privilege, maintain in good order and condition all portions of water, sewerage and drainage system which lie beneath or in close proximity to the track maintained or operated by the grantee. The grantee shall likewise, during the term of the privilege, maintain in good order and condition all pavements between the rails of the switch track and for a distance of eighteen (18) inches on the outside of the rails. The city-parish shall not be liable or responsible for any damages resulting from any disturbance or obstacle in the use or location of these tracks from any causes whatsoever. The city-parish shall be indemnified by the grantee of the switch track for any personal or property damage to itself or others, or the public, which may result from the negligent use, location of unsafe condition of the utilities or the operation thereof.

(f) *Deposit required.* Every grantee seeking a switch track privilege through or over public property shall deposit with the city-parish a sum equal to fifty dollars ($50.00) per lineal foot of the switch track located on public property but in no event to be less than five hundred dollars ($500.00); the deposit shall be held in escrow by the city-parish to guarantee the faithful performance of all the obligations of the grantees of such privilege set forth in the ordinance granting the privilege as well as those obligations set forth in this chapter, and such deposit shall be retained by the city-parish as long as the switch track is in use and until it is removed to the satisfaction of the director of public works. Should all or any portion of such fund be expended by the city-parish as provided in the ordinance granting the switch track privileges or under the provisions of this chapter, the grantee shall immediately, upon notice from the city-parish, replace such funds so expended, and if it fails to so do within thirty (30) days, the switch track privilege may be revoked by the city-parish. Such deposit shall remain with the city-parish as long as the switch track is in operation and if its use is discontinued, until it is removed by the grantee and the public property restored as provided in subsection (g).

(g) *Discontinuance of use.* If the grantee of any switch track privilege discontinues the use thereof, it shall notify the director of public works and then such grantee shall remove the switch track from the public property on which it is located and restore the location satisfactory to the city-parish, and if the grantee fails to do so, it shall then be the duty of the director of public works to have the switch track removed from public property and restore the location in question to a satisfactory condition, the cost of such removal and restoration be borne by the grantee or grantees, and all or any portion thereof may be taken from the deposit made in connection with the granting of such switch track privilege.

(h) *Penalty.* Any person, including any railroad company, violating any of the provisions of this section shall be subject to a fine of not more than twenty-five dollars ($25.00) or to imprisonment for not more than thirty (30) days, or both, at the discretion of the court having jurisdiction; provided, however, that in case of a railroad or other corporation found violating the provisions of this section, any or all of the employees of such railroad or other corporation responsible for such violation shall be deemed guilty of the violation of this section.

(City Code 1951, Title 10, §§ 7—14; Parish Code 1962, Title 10, §§ 7—14)

Sec. 10:8. Railroad derailment early warning system.

(a) The railroad owners, operators and personnel shall notify the city police department and the sheriff's office immediately in the event of any railroad derailment, involving hazardous commodities or which creates hazardous conditions. These law enforcement offices shall then immediately notify the fire department of the derailment. The notifications shall be by most expeditious method and include the location and available details of the derailment.

(b) If in the opinion of the fire department the derailment poses a threat to life or property, the fire department shall alert civil defense and the

Greater Baton Rouge Mutual Aid of the threat and in the event that the derailment is an emergency of such magnitude that it could be harmful to life or property, the civil defense will be activated in order to act to preserve life and property and shall coordinate its activities with the law enforcement offices in order to alleviate the condition as promptly as possible.

(c) Every person convicted of a violation of this section shall be punished by a fine of not more than two hundred fifty dollars ($250.00) and/or imprisonment for not more than ten (10) days for each offense.
(City Code 1951, Title 10, § 17; Parish Code 1962, Title 10, § 17)

Sec. 10:9. Parking of railroad cars.

(a) It shall be unlawful for any railroad company operating within the parish to park railroad cars within one hundred (100) yards of the intersection of Swan Street with the railroad tracks at the entrance of Southern University.

(b) Any person violating the provisions of this section shall, upon conviction, be fined not less than five hundred dollars ($500.00), or be imprisoned for not more than one hundred eighty (180) days, or both, at the discretion of the court.
(Ord. No. 7279, § 1, 9-28-83)

Editor's note—Section 1 of Ord. No. 7279, adopted Sept. 28, 1983, amended Tit. 10, Ch. 1, by adding provisions designated by the editor as § 10:9.

CHAPTER 2. REGULATION OF BUSES AND OTHER MASS TRANSIT CONVEYANCES*

Sec. 10:101. Definitions.

For the purpose of this chapter, certain terms used herein shall have the following meaning:

Bus shall mean a motor vehicle with a seating capacity of six (6) or more, exclusive of the driver or operator, which is used for the transportation of passengers for hire, excluding any vehicle otherwise falling within this definition which is subject to regulation by the Interstate Commerce Commission or the Louisiana Public Service Commission; or which is defined as a limousine or sightseeing or tourist guide vehicle under section 10:201, or which is used by undertakers for the transportation only of persons attending a funeral; or which is engaged exclusively in the transportation of children to and from school and which is operated by a public institution, public or private school, but the term "bus" shall include such a vehicle which operates under contract with any school or school system other than a public elementary or secondary school or school system; provided, however, that the term "for hire" shall not include the provision of transportation to a passenger's place of work by his employer or the practice of providing transportation in consideration of transportation to be furnished on other occasions by a passenger.

Bus owner and other mass transit conveyance owner shall mean any person owning, or having control over, and operating a bus or mass transit conveyance for the transportation of passengers for hire within the city-parish.

Closed door basis shall mean that a bus or a mass transit conveyance shall not transport passengers for hire from one point or area to another particular point or area.

Mass transit conveyance shall mean and include any vehicle or vessel, including contrivances traveling on rails, on water, on air cushions, or through the air, operating primarily in the city-parish, with a seating capacity of six (6) or more, exclusive of the driver or operator, which is used for the transportation of passengers for hire excluding limousines and sightseeing or tourist guide vehicles.

Turn back service shall mean the practice of permitting a bus or other mass transit conveyance to turn back before reaching the terminal or completing the route designated as the prescribed route of such conveyance, for the purpose of expediting service to the more thickly populated areas or the more heavily traveled areas along such route.
(City Code 1951, Title 10, § 101; Parish Code 1962, Title 10, § 101; Ord. No. 11140, § 1, 5-13-98)

*Cross reference—Stopping, standing and parking of buses and taxicabs regulated, § 11:184.

State law reference—Motor carriers, R.S. 45:161 et seq.

Sec. 10:102. Public transportation commission generally.

(a) The public transportation commission for the city-parish is hereby created. There shall be nine (9) members comprising the commission, one of which shall be a member of the council. Those persons appointed to the commission shall also be appointed to the board of directors of Capitol Transportation Corporation and for identical terms.

(b) The initial members of the commission shall be the identical persons comprising the board of directors of Capitol Transportation Corporation on the effective date of this chapter, and shall serve terms identical to their terms on the board of directors. Such initial membership of the commission is hereby appointed without the necessity of further action of the council.

(c) All members (other than the member of the council) appointed to succeed those initial members named above and their successors shall serve for terms of three (3) calendar years. New terms of office shall begin on the first Monday in February of the year that the preceding terms expire.

(d) Members of the commission shall be appointed by majority vote of the members of the council. The member who is also a member of the council, however, shall serve a term concurrent with his term as a member of the council. Members may be appointed for successive terms.

(e) Each member shall be a resident of the city-parish. If any member should cease to be a permanent resident of the city-parish, or become physically or mentally unable to attend meetings or transact business or if he should vacate his office for other reasons, the remaining members shall adopt a resolution declaring his office vacant and request the council to appoint a successor to fill the unexpired term.

(f) Except as provided in subsection (e), each director shall serve for the term for which he is appointed and until his successor is appointed and qualifies.

(City Code 1951, Title 10, § 102; Parish Code 1962, Title 10, § 102)

Sec. 10:103. Powers and duties of the public transportation commission.

(a) *General responsibility.* The commission shall continuously keep abreast of the public transportation needs of the city-parish, shall advise the council as to ways to improve transportation services within the city-parish, and shall have responsibility for coordinating mass transit services and plans so as to provide the best service at the greatest economy to the citizens of the city-parish. It shall have authority to conduct such meetings and receive such testimony as it deems appropriate. It shall also have such additional duties and authority as hereinafter provided. The council administrator shall assist the commission by providing secretarial and clerical services and shall provide for and maintain a depository for the records of the commission.

(b) *Operating permits.*

(1) *Applications.* The commission shall review applications for operating permits submitted by bus owners and mass transit conveyance owners, and shall require of the applicants such information and documents as may be reasonably related thereto, and shall make decisions on such applications, including decisions as to whether the permit should be granted, the routes, the term (not to exceed three (3) years) of the operating permit, and such additional conditions of the permit as may be appropriate.

(2) *Franchise and permits in effect on effective date of chapter; Capitol Transportation Corporation.* The franchise held by Capitol Transportation Corporation (the successor of the rights of the Baton Rouge Bus Company) is hereby confirmed and extended into perpetuity, provided that it is not transferred to any other person without the consent of the council. Capitol Transportation Corporation is hereby authorized consistent with the provisions of R.S. 12:202.1, to provide for a complete public transportation system for the city-parish, and shall be exempt from taxation as provided in such statute.

(3) *Requisite for issuance of operating permit; no vesting of rights.* The issuance of operating permits shall be predicated upon a finding that Capitol Transportation Corporation cannot provide service sufficient to meet the needs which the applicant seeks to satisfy by the service described in his application, and that the applicant is of good moral character and will be likely to improve the quality of mass transit services within the city-parish. No rights whatsoever shall vest in the applicant for the routes granted.

(4) *Certain charter bus operations.* The provisions of this subsection (b) (relating to operating permits), subsection (c) (relating to fares), section 10:104 (relating to insurance), section 10:107 (relating to vehicle inspection), section 10:113 (relating to routes), section 10:114 (relating to schedules), and section 10:117 (relating to records and reports) shall not apply to any bus owner with respect to any bus owned by him which was engaged in transporting passengers for hire in charter or contract operations, including churches, public or private schools, or schools operated by nonprofit corporations operating under the authority of the Economic Opportunity Act, within and including a period of one hundred eighty (180) days prior to April 9, 1974, and/or any replacement bus thereafter acquired by such owner; provided, however, (1) that any bus owner seeking the exemptions herein provided shall file with the commission, within thirty (30) days after the effective date of the amendment to this section adding the words "public or," a written statement listing his name, permanent mailing address, the number and types of buses exempted, current Louisiana license numbers, and the serial numbers of each bus exempted; and (2) that any bus for which a current certificate of inspection is not on file as provided in section 10:107 must display the certificate of inspection, or a copy thereof, furnished by the state department of public safety, or its successor, in connection with its annual inspection of school buses, evidencing that the bus has, within the previous three hundred sixty-five (365) days, satisfactorily completed an inspection by the department.

(c) *Fares.* The commission shall determine, upon application by the holder of an operating permit or an applicant therefor and upon submission by him of such information and documents as may be reasonably related to such application, the schedule of fares which may be charged to passengers for hire, and no bus or mass transit conveyance owner shall make any charges to any passengers exceeding those affirmatively approved by the commission.

Fares shall be set at a level sufficient to enable the owner to provide adequate, economical, efficient and safe transit services considering all surrounding circumstances, such as the availability or nonavailability of public funding for the owner or to another party who is willing to assume the applicant's routes and service. The commission shall have the authority to provide, in appropriate circumstances, that a bus or other mass transit conveyance owner may contract with a group of riders or with a representative of a group of riders for fares, and that such fares agreed upon may be charged without the prior approval of the commission.

(d) *Enforcement of chapter and conditions of permit.* The commission shall be charged with the duty of insuring that the provisions of this chapter and all conditions of operating permits are adhered to by providing for the reporting of violations to the appropriate law enforcement agencies, but such duty shall not limit in any way the authority or responsibility of the police or other law enforcement agencies. The commission, or its duly authorized agents, shall have the authority, at all times, but in such a fashion as not to unreasonably affect or delay business operations, to inspect buses and other mass transit conveyances subject to regulation under this chapter, and such driver certificates and business records as are necessary to determine compliance with the provisions hereof. The commission may authorize agents and employees of Capitol Transportation Corporation to carry out such inspection functions, but each commission agent engaged in

such inspection functions shall carry a certificate issued by the commission certifying to his authority.

(e) *Hearings and appeals.* Any bus owner or mass transit conveyance owner, or any person seeking to become a bus or mass transit conveyance owner as defined in section 10:101, who is aggrieved by a decision of the commission, or by the commission's failure to act on any lawful respect within a reasonable time, may request a hearing thereon and be afforded an opportunity to be heard if there has been no prior hearing on the matter.

If the commission does not conduct the hearing within a reasonable time after the request, or if it does not render a decision reported in its minutes within a reasonable time after a hearing, the aggrieved person may appeal the commission's inaction by filing written notice with the commission and on the same date file with the council administrator, no later than one year from the request upon which the person claims the commission has not acted, a request that the matter be referred to the council for a public hearing. Upon receiving such request within the time limit, the council administrator shall place the matter on the agenda of a regular meeting of the council. This hearing shall be held not less than ten (10) nor more than thirty (30) days after the filing of the appeal. The council, after the hearing, may order the commission to conduct a hearing, may grant the relief sought by the appellant, or may order such action as it deems appropriate. The decision of the council shall be final. No action or decision of the commission may be appealed if it has been reported in the commission's minutes, and copies of such minutes have been forwarded to the council as provided in subsection (f) of this section.

Procedure to make commission action effective:

(1) *Final decisions.* The commission shall adopt such rules and regulations as may be necessary for its government and a majority of the commission shall constitute a quorum for the transaction of business, but in no event shall decisions or actions of the commission become effective unless they have become "final" as defined below.

(2) *Copies of minutes to be sent to council.* There is reserved on behalf of the council the right to receive in writing from the commission copies of all motions, resolutions or decisions (herein sometimes referred to as "actions") taken by the commission promptly after the adoption thereof by the commission and in any event a written copy of such action will be mailed to the office of the council administrator, no later than ten (10) calendar days measured from (but not including) the date of adoption thereof. A written copy of the action adopted by the commission received by the office of the council administrator shall be distributed to each member of the council. The date on which a written copy of action of the commission is received by the council administrator's office is hereinafter referred to as "filing date."

(3) *Council has right to act on commission actions.* The council shall have a period of ten (10) calendar days next following and exclusive of the filing date within which to approve, by a majority vote of the council, the minutes of the commission and may suspend or rescind any action of the commission, provided that if a regular meeting of the council is not conducted during said ten (10) days, such period shall be extended to and include the date on which a regular meeting of the council is conducted; further provided that the date following the expiration of the period of time described in the preceding portion of this sentence (whether the ten (10) day or a longer period is shown) shall be defined as and hereinafter referred to as "final date."

(4) *Commission action effective after final date.* If the council has not adopted a resolution or ordinance suspending or rescinding an action of the commission prior to the final date, such action shall become "final" on the final date. The term "final" as used in the preceding sentence shall herein mean and refer to any action of the commission, whether in the form of a motion, resolu-

tion, or decision which has become legally binding and enforceable. Action of the commission may become final at any time as a result of the adoption of a resolution or ordinance of the council ratifying and approving the action of the commission.

(5) *Emergency action.* In case of an emergency affecting the public health, welfare and safety, commission action may become final immediately upon:

a. Adoption of emergency action by the commission as provided above; and

b. Obtaining from the council approval and ratification thereof as is authorized by section 2.12 of the plan of government.

(6) *Special meetings of council.* Special meetings of the council may be convened (as provided for under the plan of government for the convening of special meetings) and at any regular or special meeting of the council, the council (whether such subject appears on the agenda or not) may consider the question of whether any action of the commission should be suspended, rescinded, ratified or approved.

(7) *Information provided to council.* Written copies of actions taken by the commission, whether in the form of a motion, resolution, or decision, shall contain a reference to the time, date and place of the meeting at which the action was adopted, the names of the members of the commission present and voting, and a clear and concise statement of the action adopted. When requested by the council, the commission shall give notice to the council administrator of the time, date, and place of meetings of the commission. Notice of meetings of the commission shall be given to each commission member and the public in the manner and posted as required by general law. All meetings of the commission shall be open to the public as provided by R.S. 42:5 et seq.

(g) *Fees.* The commission may charge applicants for and holders of operating permits reasonable fees designed to defray the costs, including the cost of investigative and consulting services, incurred in connection with applications for operating permits and fare approvals, and approval of insurance programs (including self-insurer arrangements), and the commission shall have authority to require an advance deposit for such fees.

(City Code 1951, Title 10, § 103; Parish Code 1962, Title 10, § 103; Ord. No. 11140, §§ 2, 3, 5-13-98; Ord. No. 15539, § 1, 8-14-13)

Sec. 10:104. Insurance.

(a) *Public liability policy.* Before any bus or mass transit conveyance shall be operated over the streets and public ways of this city-parish, the owner thereof shall file with the commission a policy of liability insurance issued by an insurance company qualified to do business in the state. Such policy shall contain the conditions and stipulations set forth hereinafter, and shall bear the written approval of the commission.

Any policy of public liability insurance issued in compliance herewith shall be for a term of not less than one year (except as stated hereinafter in this subsection), and for each bus or mass transit conveyance shall afford protection to any third person sustaining injury or damages as a result of the negligent operation of the bus or other mass transit conveyance with not less than the following limits of liability: (1) for each accident causing bodily injury (including death at any time resulting therefrom), one hundred thousand dollars ($100,000.00) for each person so injured, and three hundred thousand dollars ($300,000.00) for each accident; and (2) twenty thousand dollars ($20,000.00) for property damage sustained in any one accident. Such policy shall by its terms provide that it may not be canceled until after ten (10) days' written notice given the commission. Any policy of public liability insurance procured by the bus or other mass transit conveyance owner heretofore, which originally had been issued for a term of one year or more and which otherwise complies with the requirements of this subsection, shall be considered a compliance herewith even though the unexpired term of the policy be less than one year.

(b) *Self-insurers.* Any bus or other mass transit conveyance owner required to furnish public liability insurance under the provisions of subsection (a) of this section, and operating twenty-five (25) or more buses or mass transit conveyances having a seating capacity of at least twenty-five (25) persons each, may, in lieu of the public liability insurance required by the provisions of subsection (a) of this section, carry his own insurance if the commission has determined that appropriate arrangements have been made for the protection of the public, such as through the establishment of sufficient reserves and the contracting for excess insurance and indemnity bonds.

(c) *Effect of cancellation, expiration, etc.* Should any owner of any bus or other mass transit conveyance fail to provide another policy of public liability insurance in lieu of a policy required under this section which has expired, been canceled, or the amount thereof reduced by payments, or fails to maintain compliance with the conditions imposed by the commission for status as a self-insurer as provided in subsection (b) of this section, the commission shall advise the chief of police and other appropriate law enforcement officials thereof immediately, who shall cause all buses or other mass transit conveyances to be removed from operation until such time as the commission certifies that such conveyances have the required insurance, or shall have complied with the conditions imposed by the commission.

(d) *Increased coverage.* The commission shall have the authority, after affording reasonable notice and an opportunity to be heard to all persons holding permits issued pursuant to this chapter, to issue an order increasing the insurance coverage to be provided and correspondingly increasing the requirements of self-insurers, and in such instance may impose different requirements as to levels of coverage for different types of buses and other mass transit conveyances consistent with the risk to which the public is exposed.
(City Code 1951, Title 10, § 104; Parish Code 1962, Title 10, § 104)

Sec. 10:105. Unlawful operations.

Except as otherwise provided, it shall be unlawful for any person to transport passengers for hire in a bus or other mass transit conveyance without having in force a valid operating permit as provided by this chapter, and without having complied with all of the provisions of this chapter and the terms and conditions of any operating permit which may have been issued to such person.
(City Code 1951, Title 10, § 105; Parish Code 1962, Title 10, § 105)

Sec. 10:106. Tax payments.

Each bus or other mass transit owner operating such a conveyance within the city-parish shall pay promptly as they become due all state, city-parish taxes and fees, including, but not by way of limitation, ad valorem taxes on all property used in the passenger transportation business, public utility excise license taxes, occupational license taxes, chauffeurs' license fees and drivers' license fees. The failure to pay such taxes and fees after they become due shall be cause for the suspension or revocation of his franchise or permit, as the case may be.
(City Code 1951, Title 10, § 106; Parish Code 1962, Title 10, § 106)

Sec. 10:107. Vehicle inspection.

Any bus or other mass transit conveyance owner operating such vehicles within the city-parish shall maintain them in good mechanical condition and shall have them inspected prior to operation within the city-parish and at least once each year thereafter by duly authorized employees of Capitol Transportation Corporation or by such other or additional qualified mechanics as the commission may designate. Such bus or other mass transit conveyance owner shall obtain from such mechanic a certificate of the satisfactory mechanical condition of each bus or other mass transit conveyance and shall file such certificate with the commission within five (5) days of such inspection. Any bus or other mass transit conveyance owner owning and operating more than fifteen (15) such conveyances within the city-parish may provide his own mechanics, in lieu thereof, if such mechanics are acceptable to the commission. Capitol Transportation Corporation is hereby authorized to charge reasonable fees

designed to recoup the cost of inspections made under the authority of this section and all inspections shall be at the expense of the owner.
(City Code 1951, Title 10, § 107; Parish Code 1962, Title 10, § 107)

Sec. 10:108. Bus and other mass transit conveyance drivers and operators.

Every bus driver or operator operating a bus within the city-parish transporting passengers for hire shall possess current driver's license issued by the state, and current chauffeur's license issued by the state and city-parish. Every driver or operator of other mass transit conveyances shall possess the appropriate Coast Guard, Federal Aviation Administration, or other appropriate regulatory certificate. Each bus or other mass transit conveyance driver or operator shall submit to a complete physical examination at least once a year by a physician approved by the commission, and if found to be physically qualified for his work and function, shall be furnished with a certificate of such fact by the examining physician, which shall be filed by the bus or other mass transit conveyance owner with the commission within five (5) days of issuance. Such physical examinations shall be at the expense of the bus or other mass transit conveyance owner.
(City Code 1951, Title 10, § 108; Parish Code 1962, Title 10, § 108)

Sec. 10:109. Traffic regulation observation.

The drivers or operators of all buses and other mass transit conveyances operating within the city-parish shall obey and comply with all the rules and regulations adopted or prescribed by present or future ordinances of the city-parish applicable to the operation of such conveyances.
(City Code 1951, Title 10, § 109; Parish Code 1962, Title 10, § 109)

Sec. 10:110. Sanitary conveyances.

Conveyances must be kept in a clean and sanitary condition. Every conveyance operating under the provisions of this chapter shall be kept in a clean and sanitary condition according to the rules and regulations promulgated by the commission.
(City Code 1951, Title 10, § 110; Parish Code 1962, Title 10, § 110)

Sec. 10:111. Smoking.

No person shall be permitted by a bus or other mass transit conveyance operator or owner to smoke aboard a bus or other mass transit conveyance while passengers are aboard such bus or other mass transit conveyance; provided, however, that this section does not prohibit smoking in sections of buses or other mass transit conveyances which are completely enclosed and separated from nonsmoking persons; and provided further that this section shall not apply to charter operations.
(City Code 1951, Title 10, § 111; Parish Code 1962, Title 10, § 111)

Sec. 10:112. Authority of drivers and operators.

Every driver or operator of a bus or other mass transit conveyance shall have authority to refuse any passenger further occupancy if such passenger does not conduct himself in such a manner so as not to unreasonably disturb other passengers or does not comply with the provisions of this chapter relating to smoking and all lawful laws of the city-parish and the state.
(City Code 1951, Title 10, § 112; Parish Code 1962, Title 10, § 112)

Sec. 10:113. Routes.

(a) No deviation from or change of any of the prescribed routes shall be made or permitted by any bus or other mass transit conveyance owner except with the consent of the commission or in the case of emergency necessitating a deviation from the prescribed route. In the event of such emergency, the bus or other mass transit conveyance owner shall, as soon as practical, inform the commission of the nature of the emergency, the anticipated duration of the effect thereof and the new route to be used or being used during such emergency. If deemed in the public interest, the commission may require the bus or other mass

transit conveyance owner to follow a temporary route other than the one being used or proposed to be used.

(b) Nothing in this section shall be construed to prevent an owner from putting into effect "turn back service" as defined in section 10:101, if full information concerning such turn back service is listed in the statement of schedules required by section 10:114.
(City Code 1951, Title 10, § 113; Parish Code 1962, Title 10, § 113)

Sec. 10:114. Schedules.

(a) Each bus or other mass transit conveyance owner shall file with the commission a statement setting forth the minimum schedule to be maintained on working days, holidays, and nights, on each route over which the owner's conveyances are authorized to operate. Except in cases of emergency necessitating an immediate schedule change, no changes shall be made in such minimum schedules unless a supplementary statement showing such change is filed with and approved by the commission and the public is given an advance notice of such proposed change in the minimum schedule.

(b) Whenever deemed in the interest of public convenience and necessity, the commission may amend any minimum schedule on any route prescribed for any bus or other mass transit conveyance owner, and as soon as possible after being advised of such amendment by the commission, the owner affected shall put into effect such amended minimum schedule.
(City Code 1951, Title 10, § 114; Parish Code 1962, Title 10, § 114)

Sec. 10:115. Nontransferability of permits.

No permit issued under this chapter may be sold, assigned, mortgaged or otherwise transferred without the prior consent of the commission.
(City Code 1951, Title 10, § 115; Parish Code 1962, Title 10, § 115)

Sec. 10:116. Designation of buses and other mass transit conveyances.

Each bus or other mass transit conveyance shall bear on each side, in painted letters not less than six (6) inches in height, an appropriate identification of the owner and an identifying number. No conveyance covered by the terms of this chapter shall be allowed to operate within the city-parish whose color scheme, identifying design or insignia to be used thereon shall, in the opinion of the commission, conflict with or imitate any color scheme, identifying design or insignia, used on a bus or other mass transit conveyance already operating under this chapter in such a manner as to be misleading or tend to deceive or defraud the public.
(City Code 1951, Title 10, § 116; Parish Code 1962, Title 10, § 116)

Sec. 10:117. Bus and other mass transit conveyance owners' records and reports.

(a) Every bus or other mass transit conveyance owner shall keep accurate records of receipts from operations, operating, and other expenses, capital expenditures, and such other operating information as may be required by the commission. Every bus or other mass transit conveyance owner shall maintain the records containing such information and other data required by this chapter at a place readily accessible for examination by the commission.

(b) Every bus or other mass transit conveyance owner shall submit reports of receipts, expenses, and statistics of operation to the commission for each calendar year, in accordance with a uniform system prescribed by the commission. Such reports shall reach the commission on or before the first day of February, of the year following the calendar year for which such reports are prepared.
(City Code 1951, Title 10, § 117; Parish Code 1962, Title 10, § 117)

Sec. 10:118. Suspension and revocation of permits.

(a) *Grounds for suspension or revocation.* A permit issued under the provisions of this chapter may be suspended or revoked, in addition to the

penalties provided elsewhere in this chapter, by the commission if the holder thereof, or any of his agents, servants or employees, have (1) violated any of the provisions of this chapter, (2) discontinued operation for more than fifteen (15) days, (3) violated any ordinances of the city-parish or the laws of the United States, or the state, the violations of which reflect unfavorably on the fitness of the bus or other mass transit conveyance owner to offer public transportation.

(b) *Notice and hearing.* Prior to suspension or revocation, the bus or other mass transit conveyance owner shall be given at least five (5) days' notice of the action proposed to be taken and shall have an opportunity to be heard.
(City Code 1951, Title 10, § 118; Parish Code 1962, Title 10, § 118)

Sec. 10:119. Delegation of authority.

The commission may delegate all powers and functions prescribed in this chapter, except those relating to the issuance or revocation of permits, the fixing of fares, the determination of adequacy of insurance, and the approval of conveyance markings, to any agents or employees designated by it.
(City Code 1951, Title 10, § 119; Parish Code 1962, Title 10, § 119)

Sec. 10:120. Penalty.

Any person violating any provisions of this chapter shall be fined not more than two hundred dollars ($200.00), and imprisoned not more than sixty (60) days, or both. Any executive officer of a corporation who knowingly permits a violation of this chapter shall, in addition to such corporation, be punished as a principal.
(City Code 1951, Title 10, § 120; Parish Code 1962, Title 10, § 120)

CHAPTER 3. REGULATION OF VEHICLES FOR HIRE*

Sec. 10:201. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

Applicant, grantee or *licensee* shall mean any person which has bona fide legal title or control, direction, operation, maintenance, or supervision over any vehicle for hire operated upon the streets of the city-parish, or is a lessor of a vehicle for hire.

Association shall mean any organization which does not own the vehicles operating under its license, the membership of which is made up of individual operators, each of whom owns his own vehicle, and who are organized together under articles of agreement to provide mutual insurance coverage, central office facilities, telephone and maintenance service, and other like services for the mutual benefit of the individual members.

Driver or *operator* includes every person in charge of or operating any taxicab or vehicle as herein defined, either as owner, agent, employee, lessee or otherwise.

Limousine shall mean a chauffeur-driven luxury vehicle with a minimum seating capacity of six (6) but no more than fourteen (14), exclusive of the driver, which is used for the transportation of passengers for hire, excluding those limousines used by undertakers for the transportation only of persons attending a funeral; and which charges rates predetermined on a contractual basis and carrying passengers by prearrangement or contract.

Low speed vehicle or *LSV* shall mean a motorized vehicle operating by means of electric motor(s) or combustion engine with a maximum top

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*__Editor's note—__Section 1 of Ord. No. 9152, adopted Sept. 26, 1990, amended ch. 3 to read as set out in §§ 10:201—10:218. The chapter formerly consisted of §§ 10:201—10:216 and was derived from City Code 1951, Title 10, §§ 201—209, 213—217, 219—225; Parish Code 1962, Title 10, §§ 41—56; and Ord. No. 8066, § 1, adopted Dec. 11, 1985.

__Cross references—__License, § 9:60 et seq.; stopping, standing and parking of buses and taxicabs regulated, § 11:184.

__State law reference—__Motor carriers, R.S. 45:161 et seq.

speed of not less than twenty (20) nor more than twenty-five (25) miles per hour. LSV taxis shall conform to all insurance and liability requirements as provided by state law and this chapter.

Pedicab: A bicycle that has three or more wheels that transports, or is capable of transporting, passengers on seats attached to the bicycle that is operated by an individual, and that is used for transporting passengers for receipt of any form of consideration; or a bicycle with a singular unarticulated frame, that pulls a device that transports, or is capable of transporting, passengers on seats attached to a passenger cab or similar device, that is operated by an individual, and that is used for transporting passengers for receipt of any form of consideration.

Sightseeing or tourist guide vehicle shall mean a motor vehicle with an operator for hire and a minimum seating capacity of six (6), but no more than fourteen (14) persons, exclusive of the driver or the operator, which is used for the transportation of passengers for hire to various tourist destinations and other landmarks of interest in the parish.

Taxicab or *vehicle for hire* shall mean all motor vehicles or pedicabs (except the rental of cars without drivers, motor buses running and operating in established routes, limousines, sightseeing or tourist vehicles, and funeral vehicles) propelled or operated on, over or upon the public streets, alleys, highways, or boulevards of the city-parish for hire, carrying six (6) passengers or less, including the driver or operator thereof, which are subject to call from a garage, office, taxi stand or otherwise. Transportation network service operators and vehicles owned, used, or leased by transportation network service operators as defined by title 10, chapter 8, of the Code of Ordinances are specifically excluded from this definition.

Third person shall mean any person other than the driver, lessee or the owner of the vehicle.
(Ord. No. 9152, § 1, 9-26-90; Ord. No. 11140, § 4, 5-13-98; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15538, § 1, 8-14-13; Ord. No. 15730, § 1, 6-25-14)

Sec. 10:202. Regulation and supervision established.

The business of transporting passengers for hire in taxicabs, limousines, pedicabs or sightseeing or tourist guide vehicles, in the city-parish, is a matter of public convenience and necessity, requiring public regulation and supervision for the purpose of securing and maintaining an adequate public transportation system within the city-parish, and for the protection, safety and welfare of the citizens of the city.
(Ord. No. 9152, § 1, 9-26-90; Ord. No. 11140, § 5, 5-13-98; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:203. Compliance with chapter.

The business of transporting passengers for hire in taxicabs, limousines, pedicabs or sightseeing or tourist vehicles in the city-parish, other than as defined and classified in this chapter, and under the conditions as hereinafter set forth, is prohibited.
(Ord. No. 9152, § 1, 9-26-90; Ord. No. 11140, § 6, 5-13-98; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:204. Certificate of public convenience and necessity; inspections.

The following rules and regulations shall govern the business of rendering public transportation service within the meaning of this chapter:

(1) *Certificate of public convenience and necessity required.* No vehicle for hire, sightseeing or tourist guide vehicle, limousine, pedicab, or low-speed vehicle taxi, as defined in section 10:201 shall hereafter be used or operated by any person on the streets of the city-parish, without having first obtained from the taxicab control board, a certificate declaring that the public convenience and necessity requires such operation, and without having complied with all the requirements of this chapter, all regulations promulgated by the taxicab control board and all other laws of the city-parish and state governing such operation and service. No rights whatsoever shall vest in the applicant if such a finding is made.

All applications for certificates of public convenience and necessity for the operation of a limousine, taxicab, vehicle for hire or tourist or sightseeing vehicle on

the streets of the city-parish shall be made to the taxicab control board, and shall set forth:

a. The name and address of the applicant, who shall be the owner or lessee of such vehicle or vehicles; however, individual operators may join together in a firm or association, which firm or association need not own the vehicles for which licenses are sought; but such firm or association shall establish a central office, shall require daily reports of member operators, and shall maintain an adequate bookkeeping system covering both association receipts and expenditures and receipts and expenditures of the individual operators, and generally meet such other requirements as may be determined by the taxicab control board or the council.

b. The trade name, if any, under which the applicant does or proposes to do business. If individual operators are organized in an association within the meaning of this chapter, such association shall be organized under and conducted by articles of agreement in writing, signed by the owners of the individual vehicles comprising such association. Such articles of agreement, or amendments thereof shall be submitted to the taxicab control board for approval and a certified copy thereof filed with the board.

c. The class, type, seating capacity, make, manufacturer, motor number and serial number, design and color scheme of each and every vehicle, and any lettering and marks to be used thereon.

d. Whether or not the applicant or any of its employees or members, if the applicant is an association or corporation, has been convicted of the violation of any national, state or municipal laws.

e. Whether or not the applicant, or any person with whom he has been associated or employed, has claims or judgments against him or it for damages alleged to have resulted from the negligent operation of a vehicle for hire.

f. The financial ability and responsibility of the applicant as reflected by a complete financial statement, or if an association, a full and complete statement of the amounts to be contributed monthly or annually by each member, insurance coverage to be provided, and other pertinent facts required by the taxicab control board.

g. The ability of the applicant, or if an association, of each member thereof, to respond in damages in the event of injury or damage to person or property by reason of the negligent operation of the vehicle for hire.

h. If the applicant is a firm or corporation, or association, the application shall state the name and addresses of the officers, directors or members.

i. All applications must contain a statement of the facts showing a demand for the services proposed to be rendered, the experience of the applicant, or if such applicant is a firm, corporation or association, the experience of each operator, in rendering such services and the period of time that he has rendered it in the city-parish.

j. Any other information which may be required by the taxicab control board.

k. The application shall be made upon printed forms to be prepared under the direction of and to be available at the office of the finance department.

(2) *Investigation and inquiry.* Upon receipt of such applications for certificates of public convenience and necessity, the taxicab control board shall make or cause to be made, such investigations as may be considered necessary, including any hearing

that the taxicab control board may deem advisable, for the purpose of determining whether or not the public convenience and necessity require the operation of such vehicle or vehicles upon the city streets and whether or not the applicant is fit and proper to conduct such business. In determining whether or not a certificate should be issued, the taxicab control board shall give weight and due regard, among other things, to:

a. Probable permanence and quality of the service offered by the applicant.

b. The experience that the applicant has had in rendering such service in the city-parish, the past experience of the applicant in prompt adjustment of claims and in payment of judgments, if any, to claimants as a result of injuries received from the negligent operation of public vehicles.

c. The financial ability of the applicant to respond in damages.

d. The stability of the business organization of the applicant, and in the case of associations, the ability of the central office to provide satisfactory and responsible service on a businesslike basis, and to meet other organizational requirements of the taxicab control board.

e. The character and condition of the vehicles to be used. This information is to be supplied to the taxicab control board after examination of the vehicles named in the application in the manner hereinafter set forth. The evidence in any investigation, inquiry or hearing may be taken by the taxicab control board or by any agent or employee to whom such authority may be delegated by the taxicab control board and for this purpose the taxicab control board may subpoena such witnesses, papers, books or documents as may be pertinent to such investigation, and every finding, opinion and order made by the taxicab control board, pursuant to such investigation, inquiry or hearing, when approved or confirmed by the taxicab control board, shall be the finding, opinion or order of the taxicab control board.

(3) *Inspection.* All vehicles licensed under this chapter must be inspected for mechanical efficiency, properly operating meters and proper registration tags twice yearly, once during the month of March and once during the month of September. Vehicles will be inspected upon a schedule published annually by the taxicab control board and sent to each franchise holder by first class mail. The inspections for mechanical efficiency shall be made by the central garage division of the department of public works and shall include:

a. A safety inspection covering brakes, windshield, lights, steering, pollution control devices, tires, suspension, insurance and proper registration.

b. Inspection of general appearance of each vehicle. The exterior of each vehicle must be free of gross damage, i.e., dents larger than six (6) inches in any direction. The franchise holder has thirty (30) days from notification to make all necessary repairs. All paint must be of factory-finish grade (primer is not allowable as a finish coat); however, chips or scratches alone are not cause for failure.

c. The interior portion of each vehicle must be maintained in a reasonable condition:

1. Headliner, door panels, package tray, arm rests, floor covering and seats are to be free of holes, snags and soiled spots. The top of the back seat must fit securely against the bottom

of the back seat. The floor covering shall be either carpet or floor type mat.

2. The floor of the trunk shall be covered with either carpet or floor type mat. Only an inflated spare tire and those tools or accessories necessary for the operation of vehicle may be in the trunk.

3. The interior of the vehicle must be free of all debris. Dashboards must be free and clear of all paraphernalia and other items not necessary for the operation of the vehicle. All vehicles must have air conditioning in working order.

An inspection for properly operating meters, if applicable to the vehicle in question, shall be made by the traffic division of the department of public works and shall include inspection of meter reading, speedometer connection, safety pin and proper seal of the meter.

Each vehicle owner shall, at the time he pays the franchise tax imposed by the provisions of this Code, pay the additional sum of twenty dollars ($20.00) for each vehicle to be operated during the tax year, this sum to be for the cost of the inspections to be made by the department of public works twice yearly hereunder. In the event that reinspection should, for any reason, be required, an additional sum of ten dollars ($10.00) shall be paid at the time of such inspection.

For pedicabs, the annual inspection fee is ten dollars ($10.00), and only one annual inspection is required, as further described in this title. In the event that reinspection should, for any reason, be required, an additional sum of ten dollars ($10.00) shall be paid at the time of such inspection.

Inspection forms shall be completed by the central garage division and the traffic division after each inspection, with a copy to be given to the franchise holder, and a copy forwarded to the Finance Director. An appropriate inspection sticker shall be placed on the bumper of each vehicle to indicate that the hereinabove described inspections have been conducted.

The owner, lessee and/or operator of any vehicle determined to have a mechanical defect or defective or improperly operating meter shall be given seven (7) days in which to have such defect or malfunction repaired. After the expiration of the seven (7) days, the name, registration and license number of each vehicle remaining uncertified shall be given to the taxicab control board for such action as it deems appropriate, including suspension or revocation of the certificate.

No vehicle carrying passengers for hire shall operate within the city-parish without having been inspected and certified; and any such operation is hereby declared to be a violation of this chapter, subjecting the certificate holder to suspension or revocation of the certificate.

Before any applicant shall be granted a certificate of public convenience and necessity hereunder, all of the vehicles named in the application shall be inspected as herein provided. The result of such inspection shall be reported to the taxicab control board with a recommendation of approval or disapproval of the condition of any or all of such vehicles.

Failure to obtain timely mechanical and meter inspections as required by this chapter shall result in a late penalty of fifteen dollars ($15.00) per vehicle to be assessed at the time of the late inspection. This penalty to

be in addition to the regular inspection fees set by this chapter. Any party assessed penalties hereunder shall have the right to appeal the assessment of such penalty to the taxicab control board.

(4) *Issuance of certificates of public convenience and necessity.* If the taxicab control board finds that the public convenience and necessity requires the operation of such vehicle or vehicles for which certificate is applied, and the applicant is fit and proper to conduct such business, and that the other requirements of law have been complied with, it shall notify the applicant of its finding and the certificate shall be issued for such operation of such vehicle or vehicles in such service, specifically describing each of the vehicles in the same manner as is required herein to be set forth in an application. The certificate shall be effective only as to the exact number of vehicles named in the application. Such certificate shall not be transferable except as to substitute or replacement vehicles operated by the same applicant.

In the case of approved associations, the certificate shall designate the vehicles licensed thereunder and the name of the operator, in addition to the name of the association. If any application is made for a certificate covering more than one (1) vehicle, the taxicab control board may grant or refuse a certificate for such operation of any, or all, of the vehicles for which application is made, as may be consistent with its findings.

If the taxicab control board finds that the public convenience and necessity do not require the operation of any such vehicle or vehicles, or that the applicant is not fit and proper to conduct such business, it shall forthwith refuse such application and no certificate shall issue.

Such certificate, when issued, shall constitute authority for the operation of the vehicle or vehicles therein described in the service authorized, on the streets of the city-parish, subject to all traffic laws and regulation; however, operations shall begin within sixty (60) days after the issuance of the certificate of public convenience and necessity. Certificates shall remain in full force and effect until and unless canceled, suspended or withdrawn and revoked by the taxicab control board, the taxicab control board retaining the right always to review the certificates so issued, or to alter, change or revoke same for good cause.

(5) *Revocation.* At any time after five (5) days written notice sent by certified mail to the last-known address of the licensee, or to the address appearing on the application of the licensee, which notice shall fix a specified date for hearing, not less than five (5) days from the date of the notice, and after a hearing before the taxicab control board the taxicab control board may suspend, revoke, alter or amend any certificate issued hereunder for good cause. Notice as herein provided shall not be required where the licensee has failed to pay the franchise tax due under the provisions of this Code.

(6) *General.* For each vehicle for which a certificate has been granted, a memorandum certificate shall be issued in such form as the taxicab control board may from time to time prescribe, which shall be displayed in a conspicuous place in the vehicle at all times. Change of ownership of or title to any vehicle for the operation of which certificate has been issued hereunder shall automatically revoke such certificate, and the same shall be surrendered to the taxicab control board; however, such owner or grantee shall have the right to substitute therefor, within thirty (30) days after sale or destruction, another vehicle of same or similar type and construction, and receive a new certificate or otherwise complying with the requirements of this chapter.

No persons shall use the term "taxi" or "taxicab" "limousine" or "for-hire automobile" or "for hire cab," or "jitney," or "sight-

seeing or tourist guide vehicle" or a pedicab and/or a pedicab service and/or a bicycle rickshaw and/or in any way advertise or hold themselves out as a taxicab, jitney, or for-hire automobile, company or operator, or represent themselves to be such by means of advertisement, signs, trade names or otherwise unless they have complied with the requirements, conditions and regulations prescribed by this chapter.

(7) *License taxes and fees.* All persons authorized to operate hereunder shall promptly pay all state and city-parish license taxes and fees as they shall come due, including, but not by way of limitation, occupational taxes, excise license taxes and registration fees. The failure to pay such taxes or fees as they become due shall be good cause for revocation or suspension of the license.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 11140, § 7, 5-13-98; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15539, § 2, 8-14-13)

Sec. 10:204.1. Regulation and inspections for pedicabs.

(a) *Operating regulations.* In addition to any other regulations imposed by this chapter or other law, a pedicab may be operated on any street where the posted speed limit is thirty-five (35) miles per hour or less and may cross any divided highway, highway, roadway, or street with a posted speed limit in excess of thirty-five (35) miles per hour at an intersection or may traverse any divided highway, highway, roadway, or street with a posted speed limit of not more than forty-five (45) miles per hour for a distance not exceeding one-quarter (¼) mile as a means of conveyance in connecting from one (1) divided highway, highway, roadway, or street where the posted speed limit is no more than thirty-five (35) miles per hour to another divided highway, highway, roadway, or street where the posted speed limit is no more than thirty-five (35) miles per hour.

(b) *Inspections.* All pedicabs licensed under this chapter must be inspected annually for mechanical efficiency and proper registration tags during the month of August. Pedicabs which are licensed in other months must schedule an initial inspection and receive an inspection certificate/sticker prior to operating for hire. The inspections for mechanical efficiency shall be made by the central garage division of the department of public works and shall include:

(1) Safety inspection covering brakes, windshield, lights, steering, tires, and suspension as may be applicable to the pedicab, and insurance and proper registration for all pedicabs, regardless of manufacture.

(2) Be maintained to assure that it is mechanically dependable, clean, and safe.

(3) Have a battery-operated headlight capable of projecting a beam of white light for a distance of five hundred (500) feet. The headlight shall be permanently affixed to the pedicab. Such lights may be removable and recharged.

(4) Have taillights permanently affixed on the right and the left at the same level on the rear exterior of the passenger compartment. Taillights shall be red or amber in color and plainly visible from all distances within five hundred (500) feet to the rear of the pedicab. Such light may be removable and recharged. Taillights shall be mounted at the top rear corners of the passenger compartment or bench, and shall strobe or blink in a regular and discernible pattern, to ensure visibility and safety as may be determined by the inspector.

(5) Have reflective panels mounted so as to be visible from the side of the vehicle, whether by application of reflective tape to the frame, fork, or passenger compartment, or by application of commercially available reflective panels, to ensure visibility and safety as may be determined by the inspector.

(6) Have a disc brake or brakes and differential on the rear axle of the vehicle, if the pedicab is a tricycle or quadricycle design, or have such equipment on the trailer, if the pedicab is a tandem or trailer design.

(7) Provide a seat belt for every passenger.

(8) Be designed and manufactured so every passenger may enter and exit without crossing any interior barriers.

(Ord. No. 15001, § 2, 10-13-10; Ord. No. 15744, § 1, 8-13-14)

Sec. 10:204.2. Regulation and inspection of LSV taxis.

(a) *Operating regulations.* In addition to any other regulations imposed by this chapter or other law, a low-speed vehicle may be operated on any street where the posted speed limit is thirty-five (35) miles per hour or less and may cross any divided highway, highway, roadway, or street with a posted speed limit in excess of thirty-five (35) miles per hour at an intersection or may traverse any divided highway, highway, roadway, or street with a posted speed limit of not more than forty-

five (45) miles per hour for a distance not exceeding one-quarter (¼) mile as a means of conveyance in connecting from one (1) divided highway, highway, roadway, or street where the posted speed limit is no more than thirty-five (35) miles per hour to another divided highway, highway, roadway, or street where the posted speed limit is no more than thirty-five (35) miles per hour.

(b) *Inspections.* All LSV taxis licensed under this chapter must be inspected twice annually for mechanical efficiency and proper registration tags during the months of March and September. LSV taxis which are licensed in other months must schedule an initial inspection and receive an inspection certificate/sticker prior to operating for hire. The inspections for mechanical efficiency shall be made by the central garage division of the department of public works and shall require that all LSV taxis have basic safety equipment in operable condition, as specified in R.S. § 32:300.1(B), and 49 C.F.R. 571.500, or their successor regulations, which shall, at a minimum, include:

(1) Headlamps;

(2) Front and rear turn signal lamps;

(3) Taillamps;

(4) Stop lamps;

(5) Reflex reflectors, including one on each side as far to the rear as practicable, and one red reflector on the rear of the vehicle;

(6) An exterior mirror mounted on the driver's side of the vehicle and either an exterior mirror mounted on the passenger's side of the vehicle or an interior mirror;

(7) A parking brake;

(8) A windshield that conforms to current safety standards for motor vehicles operating on land highways;

(9) A windshield wiper;

(10) Speedometer;

(11) Odometer;

(12) Braking for each wheel;

(13) A seat belt assembly installed at each designated seating position;

(14) A vehicle identification number; and

(15) Be designed and manufactured so every passenger may enter and exit without crossing any interior barriers.

(Ord. No. 15538, § 2, 8-14-13)

Sec. 10:205. Registration fee.

A fee of ten dollars ($10.00) per vehicle shall be paid to the finance department by each applicant at the time each such vehicle is registered or licensed.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 11140, § 8, 5-13-98; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:206. Insurance required.

(a) Before any permit shall be approved by the taxicab control board, the applicant shall file with the taxicab control board a policy of liability insurance issued by an insurance company qualified to do business in the state, or if not so qualified, then a policy issued in accordance with the provisions of section 27.07 of Act 195 of 1948 (Insurance Code of Louisiana). Such policy shall contain conditions and stipulations as hereinafter set forth, and shall be approved in writing as to both form and content by the parish attorney.

Any policy of public liability insurance issued in compliance herewith shall be for a term of not less than six (6) months and for each vehicle or pedicab shall afford protection to any third person sustaining injury or damage as a result of the negligent operation of the vehicle, with the amounts set forth in R.S. 45:200.4; and each policy shall, by its terms, provide that written notice be given to the taxicab control board as to any cancellation or termination of the policy. If a certificate holder operates more than one (1) vehicle, he may file a blanket policy in accordance with the provisions of R.S. 45:200.5. The operation of any vehicle carrying passengers for hire within the city-parish without having in force the public liability policy described herein is hereby declared to be a violation of this chapter, subjecting the certificate holder to all penalties provided in this chapter. To the extent that Louisiana Revised Statutes Title 45 may not cover pedicabs or pedicab companies,

pedicabs and their operators licensed by the city-parish must provide insurance coverage comparable to or in excess of the statutory requirements of Title 45 as a condition of operation in the city-parish.

(b) Any certificate holder, in lieu of providing the public liability insurance policy hereinabove set forth, may be self-insured in accordance with the provision of R.S. 45:200.4. To the extent that Louisiana Revised Statutes Title 45 may not cover pedicabs or pedicab companies, pedicabs and their operators licensed by the city-parish must provide insurance coverage comparable to or in excess of the statutory requirements of Title 45 as a condition of operation in the city-parish.

(c) In the case of associations, as defined in this chapter, in addition to providing evidence of insurance coverage for each vehicle, such association shall provide evidence of a policy of excess liability insurance issued in the manner and containing the same conditions and limitations as provided for public liability insurance hereinabove provided, except that the limits and terms of liability shall be fixed as follows:

The excess coverage insurance shall provide that the insurer shall be liable for any and all claims for bodily injury or damage over and above the coverage per vehicle afforded by the insurance protection provided in subsections (a) and (b) hereof, up to the amount of five thousand dollars ($5,000.00) total liability for any one (1) accident. If the association cannot furnish excess liability insurance as hereinabove provided, then the association may deposit with the director of finance an additional cash or property bond in the sum of five thousand dollars ($5,000.00), under the condition that such cash or property bond shall be recoverable by a third party only in the event that the insurance required for each vehicle shall be canceled or prove inadequate to compensate a third party for damages.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 11140, § 9, 5-13-98; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:207. Vehicle regulations.

The following general regulations shall apply to all vehicles in every class of service herein designated:

(1) *Name of vehicle.* Every vehicle shall have painted or permanently affixed on the vehicle, in proportionate letters not less than three (3) inches in height, the name of the person owning or operating the vehicle. Every vehicle shall also have displayed on its sides, in numerals of the same height, the registration number issued by the taxicab control board for such vehicle. Such markings will be placed so as to be clearly and easily visible. This provision shall not apply to limousines. Pedicabs and LSV taxis shall have painted or permanently affixed on the vehicle, in proportionate letters not less than three (3) inches in height, the registration number issued by the taxicab control board for such vehicle, but are not required to display the name of the person operating the vehicle. Such markings on pedicabs and LSV taxis will be placed so as to be clearly and easily visible.

(2) *Sign on vehicle indicating character or service.* Every such vehicle shall carry permanently attached thereto as part thereof a sign in plain view by day and lighted by night, indicating the class of service offered to be rendered by such vehicle under its registration and permit; no vehicle shall render any public service other than that for which it has a permit and is registered. This provision shall not apply to limousines, LSV taxis, or pedicabs.

(3) *Signs obscuring view.* No signs, devices or emblems of any kind shall be placed on the windshield of the vehicle, or any part of the vehicle, that shall in any way obscure or interfere with the vision of the driver of the vehicle.

(4) *Motor vehicle standards.* The exterior of each vehicle must be free of gross damage, i.e., dents larger than six (6) inches in any direction. Franchise holder has thirty (30)

days from notification to make all necessary repairs. All paint must be of factory-finish grade (primer is not allowable as a finish coat); however, chips or scratches alone are not cause for a vehicle to be disqualified for service. The interior portion of each vehicle must be maintained in a reasonable condition:

a. Headliner, door panels, package tray, arm rests, floor covering and seats are to be free of holes, snags and soiled spots. The top of the back seat must fit securely against the bottom of the back seat. The floor covering shall be either carpet or floor type mat.

b. The floor of the trunk shall be covered with either carpet or floor type mat. Only an inflated spare tire and those tools or accessories necessary for the operation of vehicle may be in the trunk.

c. The interior of the vehicle must be free of all debris. Dashboards must be free and clear of all paraphernalia and other items not necessary for the operation of the vehicle. All vehicles must have air conditioning in working order. The taxicab control board shall have the right at any time, without notice, to examine and inspect any such vehicle for the purpose of determining whether or not the same is in compliance with the vehicle standards, in addition to the inspections provided for in section 10:204(3).

(5) *Pedicab vehicle standards.* The exterior of each pedicab must be free of gross damage, i.e., missing paint sections, or bent frames or tubing.

a. Interior surfaces including arm rests, floor covering and seats are to be free of holes, snags and soiled spots. The floor covering shall be either carpet or floor type mat.

b. The interior of the vehicle must be free of all debris. Dashboards must be free and clear of all paraphernalia and other items not necessary for the operation of the vehicle.

The taxicab control board shall have the right at any time, without notice, to examine and inspect any such vehicle for the purpose of determining whether or not the same is in compliance with the vehicle standards, in addition to the inspections provided for in section 10:204(3).

(6) *Unsafe vehicle.* No vehicle, including pedicabs, shall be used in such service if, from use, dilapidation, wear or other causes, it is dangerous or unsafe for the carriage of passengers. The taxicab control board shall have the right at any time to examine and inspect any such vehicle for the purpose of determining whether or not the same is safe for the carriage of passengers, in addition to the inspections provided in section 10:204(3).

(7) *Rates of fares to be posted.* There shall be fixed on the inside of each vehicle used in any class in a conspicuous place, and in such manner as can be easily and conveniently read by any person riding therein, a card in a frame covered with transparent material, upon which card shall be printed in plain, legible type the rate of fare which will be charged for the service offered in accordance with the provisions of this chapter. A picture and number of the driver as it appears on each driver's city-parish chauffeur's license shall be posted alongside this card. Airport picture ID must also be displayed and visible to passengers at all times, for vehicles that are permitted to operate at the airport. Pedicabs shall display a rate card in the English language, upon which card shall be printed in plain, legible type the rate of fare which will be charged for the service offered in accordance with the provisions of this chapter at the approved rate, in a conspicuous place, and in such manner as can be easily and conveniently read by any person riding therein. A pedicab or LSV taxi rate card is not required to be mounted in a frame, but must be weather

resistant and legible. Pedicab and LSV taxi operators shall display their City-Parish chauffeur's license in a conspicuous manner on the vehicle or on their person, such that a passenger may inspect the operator's license easily prior to entering the vehicle.

(8) *Operation of vehicles; restrictions.* No vehicle shall be operated except by the owner thereof or by a duly authorized agent, employee or lessee of the owner.

(9) *Operator to have license; be fingerprinted.* No vehicle shall be operated by the owner, agent, employee or lessee of the owner until such owner, agent, employee or lessee shall have obtained from the taxicab control board, upon the approval of the chief of police or sheriff, whichever is appropriate, a chauffeur's license, as now provided by law, nor until the owner, agent, employee or lessee shall have been fingerprinted by the police department.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 11140, § 10, 5-13-98; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15538, § 3, 8-14-13)

Sec. 10:208. Taximeters required.

(a) Every taxicab licensed hereunder and engaged in furnishing taxicab service for a fare shall be equipped with a taximeter attached to each vehicle to measure the distance traveled, record the time the vehicle is in waiting, and record the charge of fare therefor in an accurate manner; and fares shall be charged only as shown on the meter and in accordance with the rates hereinafter set forth. This section does not apply to pedicabs or LSV taxis, which are not required to mount taximeters.

(b) It shall be unlawful for any person, firm, corporation or association, or any member thereof, to engage in the transportation of passengers for hire (other than by limousine, LSV taxi, or pedicab) without having first installed a taximeter which provides a method of cumulative readings thereon; and all certificates of convenience and necessity now in effect or hereafter granted shall be subject to revocation or suspension for failure of such person, firm, corporation or association or any member thereof to so install and operate taximeters as a means of measuring the fare due for taxi service.

(c) The owner of a limousine service shall post a fee schedule in a conspicuous place in each limousine and upon written request shall furnish a copy of such fee schedule to the taxicab control board.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15538, § 4, 8-14-13)

Sec. 10:209. Meter regulations.

The following rules and regulations shall govern the business of operating taxicab service at meter rates:

(1) The dial of each taximeter shall show but one (1) tariff which shall be registered in accordance with the rate prescribed herein. Each taximeter shall be equipped with a light indicator both inside and atop the taxicab indicating "vacant" when the taxicab is for hire, or shall be equipped with a flag at least three (3) inches by two (2) inches in size, painted red, and bearing thereon in letters at least one (1) inch in height the word "vacant" or the words "for hire." The flagpost of such flag shall be kept up or toward a vertical position when the taxicab is for hire; and when such taxicab is engaged in the service of a passenger or passengers, the flagpost shall be kept down or toward a horizontal position.

(2) The taxicab control board shall cause each taximeter to be tested and sealed twice a year, simultaneously with the mechanical inspection of such taxicab. The taxicab control board shall keep a record of the make and serial numbers of such taximeters, and the date of inspection thereof.

(3) No person shall offer any vehicle for hire in taxicab service within the city-parish for a fare, charge or fee based on distance or time unless the taximeter placed, attached or installed thereon shall have been inspected by the taxicab control board; and no such person shall detach any certified or inspected taximeter from any

taxicab and attach same to any other vehicle the wheels of which are of different diameter from those with reference to which the taximeter was originally tested unless a new inspection is performed on such taximeter and certificate issued.

(4) It shall be the duty of the taxicab control board to examine, inspect and seal or order same done by a competent person at least twice in every year, in the same manner hereinbefore set forth, all taximeters used in the city-parish; however, if complaint is made to the chief of police or sheriff, the taxicab control board or other authority that any taximeter registers improperly or inaccurately, it shall be the duty of the taxicab control board to immediately order an examination and inspection of the taximeter complained of; and if the taximeter does not properly and accurately register, indicate or display the time consumed by the taxicab while in waiting, the distance traveled and the amount of fare to be determined and charged therefor, it shall be unlawful for the owner or person in charge of such taxicab to permit its use in taxicab service until such taxicab is equipped with a taximeter approved by the taxicab control board.

(5) Every taximeter shall be connected with and operated from the front wheel or axle and/or transmission of the taxicab to which it is attached. Every vehicle operated in taxicab service shall, during the period between sunset and sunrise, be equipped with a light which shall be so reflected upon the dial of the taximeter as to enable the passenger or passengers engaging and using such taxicab to read the figures indicated thereon or shall have a taximeter with a lighted display.

(6) Fare, charge or fee for taxicab service; on meter rate. For taxicab service rendered within the limits of the city-parish on meter rate, a fare, charge or fee may be demanded and received in accordance with the distance traveled, as shown by the meter, together with waiting time as herein provided.

a. *Rates of fare; rate card required.* No owner or driver of a taxicab shall charge a greater sum for the use of a taxicab than in accordance with the following rates:

1. *Mileage rates.* Forty cents ($0.40) for the first one-fourth mile or fraction thereof; fifty cents ($0.50) for each additional one-fourth mile or fraction thereof; three dollars and sixty cents ($3.60) per trip additional as a fuel and insurance surcharge; and thirty dollars ($30.00) for each hour, or fifty cents ($0.50) for each one (1) minute, of waiting time for traffic lights, trains, backed-up traffic, etc., for which purpose the installation of an electronic clock, or meter, is hereby authorized, whereby the clock or meter will clock over fifty cents ($0.50) for each one (1) minute that the cab is stopped due to an obstruction of the traffic flow. An additional hazard fee of one dollar and fifty cents ($1.50) per trip will be charged between the hours of 12:00 midnight and 5:00 a.m. Mileage rates and other charges hereinabove authorized shall be effective immediately when the meters are changed to reflect such rates. Those cabs which do not use the electronic clock or meter shall not be permitted to charge passengers for waiting time for traffic obstructions. The rate schedule and other charges set forth hereinabove shall be posted in a clearly visible and conspicuous place in each cab operating in the city and parish. In addition, a label indicat-

ing such schedule of fares shall be placed on two (2) windows of each cab, which shall be printed in English, French, Spanish and Vietnamese.

2. The director of aviation is hereby directed to post at the airport terminal building, in a place or places easily accessible to the public, information indicating the fares and regulations pertaining to the use of taxicabs.

b. It shall be the duty of every driver or operator of every vehicle used in such taxicab service, at the termination of his service, to turn the taximeter to the nonrecording position on the taximeter and call the passenger's attention to the amount registered. The taximeter shall not be changed until after the fare is paid or a charge ticket therefor made out and delivered to the person hiring such taxicab.

c. No driver or operator of any vehicle used in taxicab service shall permit any passenger to ride therein with the taximeter in a nonrecording position. No person shall tamper with, mutilate or break any taximeter with the intention of causing same to register improperly, incorrectly or inaccurately, and no driver of any taxicab shall charge more for the use of the taxicab than is shown to be due by the taximeter thereon.

(7) The rates provided herein shall be the maximum rates to be charged for the use of the taxicab regardless whether there is one (1) passenger or five (5) passengers.

(8) Soliciting passengers. No driver shall solicit passengers. This does not preclude cab operator from standing next to cab and identifying himself as a taxicab driver.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 9228, § 1, 1-9-91; Ord. No. 11140, § 11, 5-13-98; Ord. No. 11725, § 1, 4-26-00; Ord. No. 13008, § 1, 7-28-04; Ord. No. 13625, § 1, 5-30-06; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15137, § 1, 5-25-11)

Sec. 10:209.1. Pedicab and LSV taxi rates and fares.

Rates and fares shall be set by the taxicab control board under its rule making authority granted under section 10:214 of the Code of Ordinances for the City-Parish of Baton Rouge. Rates and fares for pedicabs shall be conspicuously posted in the pedicab in accordance with subsection 10:207(7) of the Code of Ordinances for the City-Parish of Baton Rouge.

(Ord. No. 15001, § 2, 10-13-10; Ord. No. 15538, § 5, 8-14-13)

Sec. 10:210. Operating regulations.

The following rules and regulations shall govern the business of operating taxicab service herein provided:

(1) Every passenger of any taxicab other than a pedicab or LSV taxi shall be allowed to have conveyed with him in such vehicle without extra charge therefor, ordinary traveling baggage not to exceed fifty (50) pounds in weight.

(2) It shall be lawful for any vehicle to be rented by the hour and when so rented the person operating same may charge up to forty dollars ($40.00) per hour (two-hour minimum); ten dollars ($10.00) for each additional quarter hour, or fraction thereof.

(3) In transporting any passenger or passengers in taxicab service, the driver or operator of such vehicle shall transport same by the most direct route that is practical.

(4) The driver or operator of any vehicle used in taxicab service shall, upon the demand of the passenger, give such passenger a written receipt showing the number of the driver's permit, the time and the date, and the point of origin and discharge.

(5) No owner, or agent, employee or lessee of such owner, shall park any vehicle other than one licensed under the provisions of

this chapter at any place, location or area designated by the owner thereof or used as a taxi station or taxi stand.

(6) The service to be rendered to the public under the classification of taxicab service, hereinabove provided for, shall not be limited, or restricted to any particular hours, or period of the day, but shall be continuous, the intent and purpose hereof being to make such service available twenty-four (24) hours a day.

(7) No person, firm, partnership, corporation or association, nor any member thereof, shall operate or allow to be operated in the city-parish any vehicle owned by him or under his control, for the purpose of carrying passengers for hire, without having complied with all the provisions of this chapter.

(8) No operator shall refuse service to any passenger solely on the basis of destination or amount of fare. No operator of a motorized taxi or limousine shall refuse service to any passenger solely on the basis of trip length, but LSV taxis and pedicabs may decline fares which exceed a safe trip length for the operator.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 11140, § 12, 5-13-98; Ord. No. 11725, § 2, 4-26-00; Ord. No. 13008, § 2, 7-28-04; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15538, § 6, 8-14-13)

Sec. 10:211. Suspension or revocation of franchise.

The violation of any provision of this chapter by any person shall, in addition to any penalty provided elsewhere, be grounds for the suspension or revocation by the taxicab control board of such person's franchise to operate any or all of his vehicles licensed under this chapter, in the manner and form prescribed in section 10:204(5).

(Ord. No. 9152, § 13, 9-26-90; Ord. No. 11140, § 13, 5-13-98; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:212. Holder's records and reports.

(a) Every owner or lessee shall keep accurate records of receipts from operations, operating and other expenses, capital expenditures, and such other information as may be required by the taxicab control board, and shall maintain records containing such other data required by this chapter at a place readily accessible for examination during normal business hours by the taxicab control board.

(b) Each operator or lessee shall maintain for a period of six (6) months accurate records of all trips, including points of seize and destination, time, dates, numbers of passengers per trip and fares. Pedicabs and LSV taxis are exempt from this requirement.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15538, § 7, 8-14-13)

Sec. 10:213. Duty to enforce the provisions of chapter.

The police department, sheriff's office, and metropolitan airport police are hereby authorized and empowered to observe the conduct of certificate holders, lessees and drivers operating under this chapter. The police department, sheriff's office, or metropolitan airport police shall take appropriate action in the event of a violation of this chapter or of any state or local law and shall make a report thereof to the taxicab control board, which shall take such other action under this chapter as it deems appropriate.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:214. Power of taxicab control board to make rules and regulations.

In addition to specific authority granted to the taxicab control board in this chapter, the taxicab control board is authorized to promulgate, make and publish reasonable rules and regulations for the purpose of the proper administration and enforcement of the provisions of this chapter, and the collection of revenues thereunder; provided that such rules and regulations shall not be inconsistent with the provisions of this chapter or other laws of the city-parish and the laws, or the constitution of the state; and provided further that such rules and regulations shall have the full force and effect of an ordinance duly passed by the council.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:215. Taxicab control board.

(a) *Creation.* There is hereby created a taxicab control board for the city-parish, such board to be composed of seven (7) members designated as follows:

(1) Director of aviation, or his designee.

(2) Chief of police of the city, or his designee.

(3) Sheriff of the parish, or his designee.

(4) Director of finance, or his designee.

(5) Director of public works, or his designee.

(6) Appointee by the mayor-president of the city-parish.

(7) President of Visit Baton Rouge, or his designee.

The taxicab control board shall elect its chairman. The board may elect such other officers as it deems necessary, including a secretary, who need not be a member of the board.

(b) *Rules of procedure; meetings; voting.* The board may adopt rules of procedure; but, in any event, the board shall hold regular meetings at a time and place to be designated by the board. Such other meetings may be called and held as may be deemed necessary for the transaction of business in the manner provided for in the rules of procedure.

No permit shall be issued by the board unless the applicant meets all statutory and other legal requirements and has received the affirmative vote of a majority of the members of the board.

(c) *Quorum.* A majority of the board shall constitute a quorum, and no business shall be transacted by the board unless a quorum is present.

(d) *Rules and regulations, board authority to adopt.* The board shall have the power to adopt such rules and regulations with regard to the issuances of permits as may be required or necessary in order to carry out the purpose and intent of this section, provided such rules and regulations are not inconsistent with the plan of government of the city-parish and subject at all times to the superior authority of the council.

The authority conferred by section 10:214 shall be exercised by the taxicab control board herein created. Any conflict between the authority granted by this section to the taxicab control board and that exercised by other agencies of the city-parish government shall be resolved in favor of the exercise of such authority by the taxicab control board herein established, subject at all times to the superior authority of the council.

(e) *Appeals from board decisions or actions.* Any person aggrieved by any decision or action of the board may take a devolutive appeal therefor to the district court within fifteen (15) days of written notification of the decision or action. The decision of the board shall be final unless appealed within the time and in the manner set forth above.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 11140, § 14, 5-13-98; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15730, § 1, 6-25-14)

Sec. 10:216. Penalty.

Any person violating any of the provisions of this chapter shall, upon conviction, be fined not more than two hundred dollars ($200.00), or be imprisoned not more than sixty (60) days, or both, at the discretion of the court, for such offense. Each time any vehicle is operated in violation of any of the provisions of this chapter shall constitute a separate offense.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:217. Payment of fines.

Payment of all fines or penalties under any of the provisions or rules and regulations contained in this chapter shall be made to the finance department for the city-parish. All funds received by the finance department shall be deposited in the general fund.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:218. Rules governing operation of taxicabs at Baton Rouge Metropolitan Airport, Ryan Field.

(a) *Specific rules.* The following rules and regulations shall govern the operation of taxicabs at Baton Rouge Metropolitan Airport, Ryan Field.

(1) Taxicabs operating at or on all airport premises shall follow all state laws, parish ordinances, and all rules adopted by and promulgated by the director of the

Greater Baton Rouge Airport District. By submitting application to operate at the Greater Baton Rouge Airport District, the applicant consents and agrees to be bound by all state laws, parish ordinances, and these and all future rules as promulgated by the director of the Greater Baton Rouge Airport District.

(2) Operators of the taxicabs who intend to use the loading zone and/or holding zone at the metro airport shall be required to make application to the director of aviation for permission to operate. Such application shall be approved upon submission of adequate proof that the operator has the required credentials under state law and parish ordinances for operation of taxicabs. Upon approval the operators shall be issued an identification card with the operator's picture thereon. Such card shall be worn by the operator at all times while on the premises of the Greater Baton Rouge Airport District. The applicant shall be required to pay the fee as set forth by the director of aviation to cover the cost of application and issuance of the identification card prior to being authorized by the director of aviation to operate on the premises of the Greater Baton Rouge Airport District.

(3) While in the loading zone, taxicabs will be manned at all times. The term "manned" as used herein means that the taxicab operator is either in his taxicab or immediately next to it, or in the designated area inside or outside the terminal building.

(4) Taxicabs in the holding zone need not be manned.

(5) All cabs will enter the cab holdings zone by the designated entrance. Other cabs will not cruise in front of the terminal, but will hold in the designated holding zone. Passengers have the right to choose among the commercial transportation that is available. Cab operators may exit the cab holding and loading zone when necessary.

(6) All operators may use the no-parking tow-away zone on the terminal front for immediate loading/unloading. All operators will normally operate from their designated zones.

(7) All regulations will be posted on the airport bulletin board located inside the terminal building on the north end in the vicinity of the baggage claim area. Additionally, copies of rules and regulations promulgated by the director of aviation will be available to all drivers during the regular hours of business at the office of the director of aviation.

(8) All cabs will have a professional identification on their front doors of their respective vehicles in the form of a magnetic sign or other professional designation.

(9) Taxicab operators in the performance of their duties shall not block the pedestrian walk at any time.

(10) All taxicab operators shall be required to use the trash cans for disposal of all trash. Operators shall not litter the area by emptying ashtrays on the ground or any other similar act.

(11) All cabs entering the holding zone will be required to pay the fee for entering as set forth from time to time by the director of aviation.

(12) Pedicabs and LSV taxis are not allowed to pick up or drop off passengers at Baton Rouge Metropolitan Airport, Ryan Field.

(b) *Identification procedure.*

(1) The director of aviation is hereby authorized to issue to all qualified taxi operators a picture identification in a form to be determined by the director. Such identification shall contain the picture of the taxicab operator thereon. The director may charge an appropriate fee to cover the cost of application and issuance of the identification card for both the initial issuance of the identification and for any replacement of the same.

(2) All authorized taxicab operators shall have their identification card visibly displayed on their person at all times while on the premises of the Greater Baton Rouge Airport District and in addition thereto shall have in their cab at all times copies of these rules and regulations.

(c) *Enforcement procedure.*

(1) Upon violation of any of these rules, any law enforcement officer as authorized by the taxicab control board shall issue to any taxicab operator a notice, to be in such form as the taxicab control board chairman may from time to time determine. This notice shall set forth the violation of these rules as alleged by the person issuing the notice.

(2) Upon receipt of the notice of violation, the taxicab operator shall have fifteen (15) days to pay the fine as set forth herein, or in lieu thereof request a hearing before the taxicab control board. Payment of the fine and/or request for hearing shall be made in writing at the office of the taxicab control board during normal business hours or, if made by mail a request for hearing shall be postmarked within the fifteen-day period.

(3) The taxicab control board, upon receipt of a request for a hearing, shall notify the taxicab operator ten (10) days prior to hearing of a time and place for the hearing. At that hearing, the taxicab operator and the law enforcement officer shall each have a maximum of twenty (20) minutes within which to present any evidence or testimony to the board. The board shall, from time to time, have the authority to adopt any rules or procedures that it deems necessary to ensure a fair and orderly hearing. The board shall endeavor to conduct the hearings in an informal manner and to conduct the hearings in such a manner that each side has an opportunity to be fully heard.

(4) Following the hearing, the board shall make a determination as to whether in fact the rules have been violation. If the board determines that no rule has been violated, no penalty shall attach to the taxicab operator. If the board, after consideration, determines that a rule has been violated, the board shall order that the appropriate action be taken as defined hereinbelow.

(d) *Fines and suspensions.*

(1) The penalty for a first offense for violation of any of these rules shall be a fine of fifteen dollars ($15.00).

(2) If within a twelve-month period from the first offense as set forth above a taxicab operator is noticed for violation of these rules, which notice results either in the taxicab operator's paying the fine or a determination of the board that a rule has been violated pursuant to the notice, the fine for that offense shall be fifty dollars ($50.00).

(3) If within any twelve-month period from the date of first offense as defined above a taxicab operator has been found in violation of the rules for a second offense, and within that twelve-month period a notice of a third offense occurs, the board shall order that taxicab operator suspended from operating on the Greater Baton Rouge Airport District for a period of up to one (1) year upon a finding that, in fact, the violation of these rules has occurred.

(4) Failure of a taxicab operator to either pay the appropriate fine or file for a hearing following the procedure set forth above shall be considered an admission that the rules were violated, and the board may impose that appropriate penalty as set forth above.

(5) Payment of the appropriate fine shall be considered to be an admission that the rules were violated for all purposes herein.

(Ord. No. 9152, § 1, 9-26-90; Ord. No. 9286, § 1, 6-12-91; Ord. No. 10584, § 1, 2-28-96; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15538, § 8, 8-14-13)

CHAPTER 4. LICENSING OF CHAUFFEURS*

Sec. 10:250. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

Chauffeur's license means the certificate granted by the chief of police to a person authorizing such person to drive a motor vehicle carrying passengers for hire upon the streets of the city or parish.

Driver or *operator* includes every person in charge of or operating any taxicab or vehicle as herein defined either as owner, agent, employee, lessee or otherwise.

Pedicab: A bicycle that has three (3) or more wheels that transports, or is capable of transporting, passengers on seats attached to the bicycle that is operated by an individual, and that is used for transporting passengers for receipt of any form of consideration; or a bicycle with a singular unarticulated frame, that pulls a device that transports, or is capable of transporting, passengers on seats attached to a passenger cab or similar device, that is operated by an individual, and that is used for transporting passengers for receipt of any form of consideration.

Taxicab or *vehicle for hire* or *vehicle* shall mean all motor vehicles propelled or operated on, over and upon the public streets, alleys, highways, or boulevards of the city or parish for hire, which are subject to call from a garage, office, taxi stand or otherwise, including limousines and low speed vehicle taxis, as defined in this title.

The provisions of this chapter shall not apply to the rental of cars without drivers, motor buses running and operating in established routes, sightseeing buses and funeral vehicles.
(Ord. No. 9152, § 2, 9-26-90; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15538, § 9, 8-14-13)

*__Editor's note—__**Prior to its amendment and reenactment by § 2 of Ord. No. 9152, adopted Sept. 26, 1990, ch. 4 was derived from City Code 1951, title 10, §§ 250—258, and Ord. No. 8404, § 1, adopted May 13, 1987; and the provisions were applicable only to the city.

State law reference—Driver's license law, R.S. 32:402.1 et seq.

Sec. 10:251. License required.

(a) No person shall operate a motor vehicle or pedicab for hire upon the streets of the city or parish, and no person who owns, leases or controls a taxicab shall permit it to be so driven, and no taxicab for which a certificate of convenience and necessity has been issued by the city shall be driven at any time for hire, unless the driver of the taxicab shall have in his possession a valid chauffeur's license issued under the provisions of this chapter.

(b) Application for a chauffeur's license shall be made to the chief of police upon forms prescribed by him. The chief of police is hereby given authority to promulgate such reasonable rules and regulations as may be necessary to enforce the provisions of this chapter.

(c) Any cab operator at Metro Airport shall have an airport pictured ID attached to the operators' shirt or blouse at all times.
(Ord. No. 9152, § 2, 9-26-90; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:252. Qualifications.

Each applicant for a chauffeur's license shall, in a sworn application, certify that he meets the following qualifications:

(1) He is a person over eighteen (18) years of age and possesses a valid Louisiana driver's license.

(2) Applicant has not been convicted of a felony under the laws of this city or parish, of any other city, parish or county, of this state, of any other state, or of the United States within five (5) years of application and has not served any part of a sentence therefor, including probation within five (5) years of the date of any application, and is not presently charged with any such offense.

(3) Applicant has not been convicted of any misdemeanor offense involving sexual misconduct, including but not limited to prostitution or soliciting for prostitution, within the past five (5) years.

(4) Applicant has not been convicted of a DWI or more than three (3) traffic offenses in any one (1) calendar year, exclusive of parking violations within the previous five (5) years.

(5) Applicant has not been convicted within the last five (5) years of disturbing the peace by public intoxication or possession of narcotic drugs which is a misdemeanor, and is not suffering from any diseases or infirmity which might make the applicant an unsafe or unsatisfactory driver.

(Ord. No. 9152, § 2, 9-26-90; Ord. No. 10913, § 1, 6-11-97; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:253. Fee; annual license.

(a) Each applicant for a chauffeur's license hereunder shall pay a fee of twenty dollars ($20.00) to the chief of police.

(b) The license shall be valid for a period of one (1) year unless revoked, canceled or suspended.

(c) Every chauffeur's license in good standing shall be renewable on or before its expiration upon sworn application and payment of the required fee.

(d) Every chauffeur's license in effect upon the effective date of this chapter shall continue in full force and effect until expiration as previously established unless revoked, canceled or suspended by the chief of police in accordance with the provisions of this chapter. Upon expiration of existing licenses, the licensees may renew their licenses upon application in accordance with the provisions of this chapter.

(Ord. No. 9152, § 2, 9-26-90; Ord. No. 9804, § 1, 1-12-94; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:254. Investigation.

(a) The police department shall conduct an investigation of each applicant for a taxicab chauffeur's license, and each applicant shall submit himself to be photographed and fingerprinted.

(b) A report of the police department investigation and a copy of the traffic and police record of the applicant shall be attached to the application and maintained in a file by the chief of police.

(Ord. No. 9152, § 2, 9-26-90; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:255. Issuance.

(a) Upon approval of an application for a chauffeur's license, the chief of police shall issue a license to the applicant which shall bear the name, address, signature and photograph of the applicant.

(b) Every driver licensed under this chapter shall post his chauffeur's license in full view of all passengers in a bracket or holder affixed to the rear of the seat of the vehicle being operated by him, or on the sun visor in the front of the vehicle in such a manner as to make it accessible to the passenger.

(c) Any cab operator at Metro Airport shall have an airport pictured ID attached to the operators' shirt or blouse at all times.

(d) Operators of pedicabs and LSV taxis shall display their chauffeur's license prominently in or on the vehicle, or wear the license on a necklace or clip on their person, in such a manner that a prospective passenger may inspect the license without having to enter the vehicle.

(Ord. No. 9152, § 2, 9-26-90; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15538, § 10, 8-14-13)

Sec. 10:256. Denial, suspension and revocation.

(a) The chief of police shall not issue a license to any applicant who fails to meet the qualifications established by this chapter and shall revoke the license of any licensee who fails to continually meet the qualifications established.

(b) Prior to the revocation of a license, the chief of police shall notify the license holder in writing, at the address provided in the application, of his intention to revoke the license and shall make the revocation effective thirty (30) days after the date of the notice. License holders shall have fifteen (15) days from the date of such notice to appeal, in writing, to the council through the taxicab control board. In the event no appeal is timely filed, the revocation shall be effective thirty (30) days from the date of the notice as set forth above. In the event any person exercises the right to appeal the revocation action of the chief of police, that person shall be entitled to a public hearing before taxicab control board at which he

will be entitled to respond to the allegations of the chief of police, which shall be transmitted to him in writing. At that hearing, he may present any mitigating evidence which he might possess. After a public hearing has been held, the taxicab control board will vote as to whether the action of the chief of police to revoke the license should be upheld or the license should be granted. A person aggrieved by a decision of the taxicab control board may appeal such decision to the council within fifteen (15) days of such decision. Any person aggrieved by any action of the council to revoke or to allow a continued permit for a chauffeur's license shall have a right to appeal to the 19th Judicial District Court.

(c) Any person whose chauffeur's or driver's license has been revoked shall thereafter be ineligible to apply for or receive a chauffeur's license for a period of three (3) years from the date of such revocation.
(Ord. No. 9152, § 2, 9-26-90; Ord. No. 15001, § 2, 10-13-10)

Sec. 10:257. Unlicensed operators.

If any person not licensed under this chapter is found operating any motor vehicle or pedicab carrying passengers for hire, the chief of police may immediately take the necessary action under this title to suspend or revoke the certificate of public convenience and necessity held by the owner or operator of the motor vehicle.
(Ord. No. 9152, § 2, 9-26-90)

Sec. 10:258. Dress code.

All drivers shall maintain their personal appearance as follows: A driver's attire shall consist of long trousers or skirt, a shirt or blouse with a collar and sleeves (long or short), and proper footwear (no flip-flops, or slippers; if sandals are worn, socks must also be worn). Such attire shall be in a reasonable condition. Factors in judging the condition of a driver's attire shall include fraying, rips, tears, holes and cleanliness. It shall be the responsibility of each certificate holder as well as each driver to ensure compliance. Pedicab and LSV taxi operators may wear shorts instead of long trousers or skirts.
(Ord. No. 9152, § 2, 9-26-90; Ord. No. 15001, § 2, 10-13-10; Ord. No. 15538, § 11, 8-14-13)

Sec. 10:259. Penalty.

Any person violating any of the provisions of this chapter shall, upon conviction, be fined not more than two hundred dollars ($200.00), or be imprisoned not more than sixty (60) days, or both, at the discretion of the court, for such offense. Each time any vehicle is operated in violation of any of the provisions of this chapter shall constitute a separate offense.
(Ord. No. 9804, § 2, 1-12-94; Ord. No. 15001, § 2, 10-13-10)

Secs. 10:260—10:299. Reserved.

CHAPTER 5. USE OF CITY DOCK.*

Sec. 10:300. Docking of vessels at city dock.

(a) *Description, rules, and limitations.* The City of Baton Rouge and Parish of East Baton Rouge maintains a limited space public dock on the left descending bank of the Mississippi River, north of the Horace C. Wilkinson Interstate bridge. The dock is primarily used for the temporary berthing of commercial river passenger vessels and other special use vessels associated with the tourist trade. This section shall apply to the current structure as well as any future connected structure.

Use of the city dock shall constitute a consent to the terms and conditions of this section and evidences an agreement on the part of all vessels, their owners, charters and agents, or other users to pay all applicable charges and abide by all rules and regulations or ordinances.

Should the city and parish enter into a contract with a private contractor(s) pertaining to the berthing at the city dock of commercial river passenger vessels and/or other special use vessels associated with the tourist trade, the provisions of that contract(s) shall take precedence

*__Editor's note—__Ord. No. 11140, § 15, adopted May 13, 1998, amended the Code by repealing former Ch. 5, §§ 10:300 and 10:301. Former Ch. 5 pertained to regulation of sightseeing and tourist guide vehicles, and derived from the City Code of 1951, Title 10, §§ 300, 301.

over the provisions of this section. Where contract is silent, the provisions of this section shall apply.

(b) *Prohibited activities.* The following activities are prohibited:

(1) Smoking on or in the city dock except in specially designated areas.

(2) Smoking on the open deck or in the hold of any vessel moored at the city dock or tied to another vessel made fast thereto, as well as throwing any lighted object from a vessel.

(3) The obstruction of any firefighting appliance or apparatus on the city dock or in any approach or roadway access to the city dock.

(4) The removal or breaking of the wire seals on fire hoses or fire water valves on or in the city dock, or the use of water from said hoses or valves, for purposes other than extinguishing a fire. The grantee of a first call on berth privilege and the assignee of the berth shall immediately report any broken seals to the city-parish department of buildings and grounds.

(5) Storage of gasoline, distillate or any liquid petroleum products on or in the city dock.

(6) Storage or overnight parking of automobiles or trucks.

(7) Operating any vehicle on the city dock without prior approval of the director of buildings and grounds.

(8) Dumping of oil, oily wastes or grease or other refuse matter into the waters of the Mississippi River or the levees thereof. Engaging in this activity shall be in violation of national, state, and city-parish laws and ordinances.

(9) Blowing tubes with blowers or mechanical processes or emitting dense smoke by any vessel within the corporate limits of the city.

(10) Vessel operations that exceed loading and strains posted on or in the city dock.

(11) Oxyacetylene, electric, or any other welding or burning or other "hot work" involving use of any open flame or heat on the city dock unless a current permit issued by the department of development is obtained and posted at the site where cutting, welding, fumigating, shrink-wrapping of any materials with a system involving an open flame or any other "hot work" is to be performed. The provisions of 49 CFR 176.54 and 33 CFR 126.15 are applicable to vessels and facilities respectively where dangerous cargo is involved.

(c) *Cleaning of the city dock.* It is the responsibility of the vessel and grantee of a first call on berth privilege to clean, promptly, the city dock upon completion of loading/unloading operations. All dunnage, trash or debris must be removed and the dock, including comfort station(s), must be placed in a sanitary condition. Failure to maintain such state of cleanliness and sanitary condition shall entitle the city-parish, department of buildings and grounds, in its discretion, on one (1) hour's notice, to either contract with private contractors to clean such area or clean the area with city-parish employees. In either event, the grantee or vessel assigned the facility shall be obligated to pay to the board the charges assessed in accordance with the following schedule:

Minimum charge	$2,160.00
Each hour in excess of four-hour minimum	$540.00 per hour
Disposal costs exceeding $300.00	Actual cost
Extraordinary labor or equipment	Actual cost

Any repeated failure of the grantee to promptly clean the area, after notice by city-parish as aforesaid, shall be cause for immediate cancellation of scheduled berth privileges.

(d) *Insurance.* Vessel operators who utilize the city dock shall be responsible for furnishing evidence of insurance coverage, including, but not limited to comprehensive general liability, protection and indemnity, hull and machinery, workers' compensation, and comprehensive motor vehicle liability, and such other insurance, in such form and with such minimum limits as the city-parish may require. Failure to obtain and retain or submit evidence of the insurance coverages required by the city-parish shall constitute cause for denying the use of the city dock or cancellation of an assignment previously made.

(e) *Damage to the city dock.*

(1) In the event any damage is caused to city dock, the vessel or parties causing such damage, and the vessel or parties to whom such property has been assigned, or who are using or occupying same under any provision of this ordinance shall give a full report to the department of buildings and grounds, including the date and time the damage occurred, a description thereof, the names, addresses and business connections of such vessels or parties causing such damage and the witnesses to the occurrence, and all other available pertinent facts and information.

(2) Each vessel, her owners, charterers and agents, who are using or occupying the city dock under any provision of this section, shall be held responsible and shall be liable, severally, jointly and in solido, for any and all damage occurring to such property and the expense of the repair or replacement of such property; except as provided in subsection (3) below.

(3) Any such vessel described in subsection (2) above may be released from such liability aforesaid upon furnishing to the city-parish sufficient facts, evidence and other proof legally establishing the identity of the party or parties causing, or contributing to the cause of, any damage to the city dock provided that the vessel described in subsection (2) above has not contributed to the cause of any such damage. Where the damage to the city dock is directly caused by any other watercraft, the vessel described in subsection (2) above may be released from said liability by establishing sufficient facts to show that the damage was not caused by any watercraft operating on or in connection with the business of the said vessel.

(4) Where sufficient facts are furnished under subsection (3) above, or the damaged board property has not been assigned to a vessel or is not used or occupied by a vessel under any provisions of this section, the vessels and all parties responsible for damage to or destruction of city-parish property shall be held liable for the expense of the replacement or repair of the property.

(f) *Hold harmless.* All parties who are assigned the use of, permitted to go on, or are otherwise allowed to occupy or use the city dock or adjacent property under the control and jurisdiction of the city-parish, including without limitation, each and every vessel, any vessel agent or charterer, or any other person or persons, who enter, go on, pass over, use or otherwise do business on the city dock or adjacent property under the control and jurisdiction of the city-parish, whether at the request or invitation of the city-parish, the city-parish's lessees, assignees, grantees, permitees, or any other person or persons doing business on or utilizing any public wharf, facility or property of the city-parish, whether with or without the knowledge or permission of the city-parish, shall be responsible for and shall be liable jointly, severally, and in solido for and shall protect, defend, save, and hold the city-parish harmless from and against any and all claims for damages, including property damage and personal injury, including death, which may arise out of or be attributed to the presence, use or operations of those parties on the city dock or adjacent property under the control and jurisdiction of the city-parish provided, however, that this provision shall not relieve the city-parish from any liability which may arise out of its own negligence.

(g) *Dockage charges for inland passenger watercraft.* All inland passenger watercraft which carry passengers for compensation and which provide overnight accommodations shall be assessed dockage charges based on passenger capacity at the following rates:

First 48 hours	$4.00 PAX (per-passenger fee)
In excess of 48 hours	$6.00 PAX (per-passenger fee)

(h) *Scheduling of dockage and payment of charges.*

(1) All inland passenger vessels wishing to utilize the city dock must schedule in advance arrivals and departure dates and times through the city-parish or its designated agent. Charges shall be the responsibility of the vessel, her owners, charterers and agents. Charges shall be billed to the responsible party by the city-parish quarterly in advance. Charges shall be due and payable on the fifteenth (15th) of the first month of the quarter billed. Late payments shall be charged interest at the rate of 0.0333 percent per day, or approximately twelve (12) percent per annum, from the date due until paid.

(2) To accommodate tourism, the city-parish merely provides and makes available the city dock facilities to vessels or other persons for their use and performs no services of any kind. the parties assigned the use of such facilities shall perform any and all services and conduct all operations necessary in connection with the berthing of vessels, the handling of persons, property or cargo, or other use by the assignee. In all cases, the care, custody and control of such vessels, cargo or other property shall at all times be and remain in the vessel, her owners, charterers and agents, and in no case shall the assignment of a berth or other facility be deemed or construed as placing such vessel, cargo or property, in the care, custody or control of the city-parish. Vessels, their owners, charterers and agents desiring a berth at the city dock must apply to the city-parish scheduling agent on forms furnished by its office, or in electronic form approved in advance by the scheduling agent, prior to the date requested for berthing at the city dock. The scheduling agent may require application to be made six (6) months, or more, in advance of the first berthing date in order to coordinate use of the city dock. The scheduling agent will notify the applicant of a berth assignment by returning a signed copy of said form. The signed application form, or a properly authenticated electronic application, and grant of berth assignment shall constitute a contract, subject to the rates, rules and regulations and provisions contained in this section and the ordinances of the city-parish, by and between the city-parish and the vessel, her owner, charterer and agents, jointly, severally and in solido. The grant of berth assignment does not convey absolute control of the facility assigned.

(i) *Jurisdiction.* Any watercraft utilizing the city dock is subject to the jurisdiction of the city court.

(j) *Penalties.* Any vessel violating the provisions of this ordinance may be fined not more than five hundred dollars ($500.00) per day or six (6) months imprisonment or both such fine and imprisonment as determined by a court of competent jurisdiction.
(Ord. No. 17109, § 1, 6-26-19; Ord. No. 19740, § 1, 2-11-26)

Secs. 10:301—10:399. Reserved.

CHAPTER 6. EMERGENCY MEDICAL SERVICES*

Sec. 10:400. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, unless the context clearly indicates a different meaning.

*__Editor's note—__Ord. No. 9234, adopted February 13, 1991, amended ch. 6, §§ 10:400—10:421, relative to emergency medical services, in its entirety to read as herein set out. The

Advanced life support means advanced prehospital emergency medical care rendered by personnel certified at the EMT-advanced or the EMT-paramedic level and working under protocols approved by the department of EMS medical director or the East Baton Rouge Parish Medical Society.

Air ambulance means any aircraft, either fixed-wing or rotary-winged, designed and operated as a part of a regular course of conduct or business to transport a sick or injured individual or which is advertised or otherwise held out to the public as such.

Ambulance means any authorized emergency vehicle, equipped with warning devices, designed and operated as a part of a regular course of conduct or business to transport a sick or injured

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provisions of former ch. 6 derived from Ord. No. 7192, § 1, adopted June 22, 1983, and Ord. No. 8007, § 1, adopted November 13, 1985.

Cross references—Public health, title 6; privileges of authorized emergency vehicles with respect to traffic code, § 11:26.

State law reference—Ambulances, R.S. 40:1231 et seq.

individual or which is advertised or otherwise held out to the public as such. "Ambulance" shall not mean a hearse or other funeral home vehicle utilized for the transportation of the dead.

Ambulance operations means the provision of ambulance services when the point of origin of such service is within the parish.

Ambulance service means any person, firm, association, or government entity owning, controlling, or operating any business or service which furnishes, operates, conducts, maintains, advertises, engages in, proposes to engage in, or professes to engage in the business or service of transporting, in ambulances, individuals who may need medical attention during transport.

Basic life support means a basic level of prehospital emergency medical care rendered by personnel certified at the EMT-basic level.

Communication center means the communication center operated by the communications district and the city-parish government.

Department of EMS means the East Baton Rouge Parish Department of Emergency Medical Services.

Driver means any person who drives an ambulance.

Emergency 911 system means that system of communications operated by the city and/or parish that receives the requests for assistance from citizens who access the system through a "911" telephone number.

Emergency means a patient's condition that requires immediate medical, surgical or psychiatric intervention which must be responded to immediately.

Emergency medical communications system means the two-way communications systems used to transmit prehospital patient care information between ambulances or paramedic units and medical facilities within the parish.

Interfacility transport means the movement of a patient from one healthcare facility to another in a licensed ground or air ambulance. The medical direction of an interfacility transport is a shared responsibility between the patient's origin and the patient's destination.

Licensed emergency medical technician means any person who has successfully completed a basic emergency medical technician training course approved by the department of transportation and the Louisiana Department of Health and is currently certified by the bureau of emergency medical services of the Louisiana Department of Health.

Licensed advanced emergency medical technician means any person who has successfully completed an advanced emergency medical technician training course approved by the department of transportation and the Louisiana Department of Health, and is currently state certified by the bureau of emergency medical services of the Louisiana Department of Health.

Licensed paramedic means any person who has successfully completed an emergency medical technician paramedic training course approved by the department of transportation and the Louisiana Department of Health, and is currently state certified by the bureau of emergency medical services of the Louisiana Department of Health.

Medical control means the direct communication between a licensed physician and a licensed emergency medical services practitioner or the capture of medical recordings to be transmitted to an appropriate facility.

Medical facility means any in-patient nursing home, hospital, diagnostic center, or treatment center that is licensed by the Louisiana Department of Health.

Non-emergency means all medical care which is non-emergent in nature as defined above.

Operational control means the authority to make decisions concerning all aspects of EMS operations at a scene or pertaining to an incident, with the exception of the patient care decisions made by the ALS provider.

Owner or operator means a person who owns or operates an ambulance.

Paramedic unit means the ambulances operated by the parish department of EMS and staffed by licensed advanced life support personnel.

Private community event means an event sponsored by a private company or organization on privately owned or leased property.

Protocols means standing order prehospital emergency medical procedures approved by the parish medical director or the medical society and in accordance with R.S. 40:1133.14.

Specialty care transport means an interfacility transfer of a critically ill or injured patient that requires specialized treatment interventions, monitoring and/or staffing with specially trained personnel.
(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18; Ord. No. 18818, § 1, 4-26-23)

Sec. 10:401. Department of emergency medical services.

(a) The department of EMS shall be the sole provider of prehospital emergency ambulance service within the parish where the request for service or assistance is made through the emergency 911 system or through the communication center. If the department of EMS requests medical mutual aid from another ambulance agency, the department shall retain operational control of the incident.

(b) The department of EMS is responsible for overseeing and supervising the prehospital movement of emergency medical vehicles, both ground and air, operating within the Parish of East Baton Rouge. All ambulances and air ambulances must possess a valid and current permit from East Baton Rouge Parish and a valid state inspection.

(c) The department of EMS is authorized to coordinate, in conjunction with the communications center, all emergency medical communications systems utilized within the parish.

(d) The department of EMS personnel shall be recognized as the highest medical authority at the scene of a prehospital medical emergency occurring within the boundaries of the parish unless there is a:

(1) Licensed physician on scene willing to take responsibility for the patient.

(2) Higher credentialed Louisiana licensed EMS practitioner on scene, and if so, they will be subject to the department of EMS' guidelines and operational control.

(e) The city administration, through the mayor-president or his/her designee, shall be authorized to issue all permits to operate ambulances within the parish.

(f) When the department of EMS provides standby service at a community event, the department of EMS shall be the sole provider of emergency ambulance service needed as a result of illness or injury occurring at that event unless the department of EMS specifically authorizes an ambulance to provide such service.

(g) The department of EMS shall have the authority to promulgate rules and regulations pursuant to the provision of prehospital emergency medical care within the parish.

(h) The department of EMS shall be authorized to report any violations of this chapter to the parish attorney for judicial action by that department or as deemed appropriate.
(Ord. No. 9234, 2-13-91; Ord. No. 10999, § 1, 10-22-97; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18; Ord. No. 18819, § 1, 4-26-23)

Sec. 10:401.1. General guidelines for the transport of patients by ground ambulance.

(1) When transporting a patient, ambulance services and its personnel shall ensure that transportation of a citizen by ground ambulance be made to the most appropriate medical facility, which may include an alternative destination to a facility other than a hospital emergency department.

(2) Paramedics may transport a patient to an alternative destination when the individual's condition does not meet the definition of "emergency medical condition" pursuant to R.S. 22:1821(D)(2)(g)(i).

(3) No person shall be transported to an alternative destination unless he/she and the alternative destination both consent to the transport, and no ambulance service shall transport a person to an alternative destination in which the ambulance service has a financial interest.

(4) Paramedics may transport a patient to the most appropriate medical facility, including an alternative destination, when directed by the Louisiana Emergency Response Network (LERN).

(5) The department of EMS is hereby authorized and empowered to make and promulgate whatever rules, regulations and/or policies that it deems reasonably necessary to effectuate the provisions of this section.
(Ord. No. 12710, § 1, 8-13-03; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:402. Owner's or operator's license required; private ambulance.

(a) No owner or operator of an ambulance operating in the parish shall permit it to be used or operated upon the streets of the parish without first obtaining a permit therefore from the city-parish administration.

(b) No ambulance may respond to any emergency originating within the parish or any non-emergency call with origin within the parish unless the ambulance operator has a valid and current permit to operate in the parish.

(c) All ambulances with a valid and current permit to operate in the parish shall, in the prehospital environment, operate pursuant to rules and regulations promulgated by the department of EMS.
(Ord. No. 9234, 2-13-91; Ord. No. 10999, § 2, 10-22-97; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:403. Ambulance service by private providers.

(a) No ambulance may transport any patient in need of emergency care when the request for service or assistance is made through the emergency 911 system unless specifically authorized by the department of EMS.

(b) Private providers shall be allowed to respond and transport all members directly requesting their assistance from a residence or medical facility.

(c) Private providers must request the fire department, through the communications center, to provide first response when responding to an emergency direct request from a member at a residence.

(d) As directed and approved by the department of EMS, private providers shall be allowed to provide standby services at the advanced life support level at private community events and provide care and transportation at the ALS level in the event of an emergency occurring on the site of the event. Private providers may do other standbys under the coordination and direction of the department of EMS.

(e) No owner or operator of an ambulance may respond to any emergency in any ambulance not certified to at least the basic life support level and capable of providing basic life support care.

(f) By making application for a permit hereunder and by providing ambulance service in the parish, each ambulance owner and operator agrees to provide such emergency and non-emergency ambulance services as may be requested by the department of EMS in the event of system overload, mass casualties or catastrophic event.

(g) Private providers shall handle all interfacility transfers, except when medically advisable to protect the patient's best interest, due to system overload.

(h) Private providers shall handle all nursing home calls for ambulance transportation, except when medically advisable to protect the patients best interest, due to system overload, or as determined by a physician.

(i) Private providers must adhere to the following:

(1) EMT licensed personnel must be certified as being proficient in treatment protocols approved by the East Baton Rouge Parish Medical Society.

(2) Advanced level personnel meeting the above mentioned criteria must use treatment protocols approved by the East Baton Rouge Parish Medical Society.

(3) Advanced level care may be conducted pursuant to protocols approved by the department of EMS and the East Baton Rouge Parish Medical Society.

(4) All ambulances licensed at the ALS level in the parish must be certified by the department of EMS and will be charged a designated license fee.

(j) Dispatching ambulances based on information obtained off a scanner, dispatching additional ambulances, or dispatching air ambulances not specifically requested by Med Comm shall be prohibited.

(k) No ambulance shall respond or provide transportation in emergency circumstances except as set forth above.
(Ord. No. 9322, § 1, 8-28-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18; Ord. No. 18820, § 1, 4-26-23)

Sec. 10:404. Nonemergency service by private providers.

Private providers shall be the sole providers of all non-emergency ambulance transportation in the parish that do not access the emergency 911 system, except when medically advisable to protect the patient's best interest.
(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:405. Application for permits.

Applications for permits shall be made to the city-parish administration through the department of EMS on forms prescribed by that department.
(Ord. No. 10999, § 3, 10-22-97; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:406. Qualifications for permit.

In determining whether a permit shall be issued, the city administration through the mayor-president or his/her designee shall give weight and due regard, among other things, to:

(1) The probable permanence and quality of the service offered by the applicant, including, but not limited to, proof of financial responsibility and the establishment and maintenance of the bona fide office from which the service is offered.

(2) The experience that the applicant has had in rendering services in the parish and the past experience of the applicant in payment of any judgments, arising out of the operation of such vehicles.

(3) Whether the applicant is accredited through the Commission on Accreditation of Ambulance Services (CAAS).

(4) The financial ability of the applicant to respond to damages.

(5) Whether insurance as required by this chapter has been secured.

(6) The character and condition of the vehicles to be used, determined after inspection as required by this chapter.

(7) Whether all requirements of this chapter and all other applicable laws and ordinances have been complied with.

(8) Whether the public convenience and necessity require the proposed additional ambulance service as determined by the city administration through the mayor-president or his designee.
(Ord. No. 9234, 2-13-91; Ord. No. 10999, § 4, 10-22-97; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:407. Insurance required.

(a) Before any permit is issued hereunder, the applicant must file with the finance director and the department of EMS a policy of public liability insurance and medical legal liability insurance issued by an insurance company qualified to do business in the state, or to demonstrate participation in the Louisiana State Patients Compensa-

tion Fund, which shall contain the following conditions and stipulations and shall be approved as to form by the parish attorney:

(1) The term of such insurance policy shall be for a period of not less than one (1) year.

(2) The insurance policy shall provide limits of liability consistent with R.S. 40:1135.9 or greater.

(3) Such policy shall by its terms provide that it may not be canceled except after ten (10) days' written notice thereof to the EMS department and the finance director.

(b) Any owner or operator who fails to secure another policy of liability insurance prior to cancellation of an existing one shall automatically and without notice or hearing suffer suspension of his/her permit until such time as such insurance policies have been filed with the finance director and the department of EMS.

(c) Upon payment of the fees required under section 10:408, the owner or operator of an ambulance shall file with the finance director and the department of EMS, any certificates evidencing that insurance coverages as specified hereinabove are in full force and effect.

(d) Any person who operates an ambulance without having such liability insurance in force shall be guilty of a violation of this chapter and shall be punished as hereinafter provided.
(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:408. Inspection of ambulances.

(a) The private provider shall furnish the department of EMS, yearly during the month of January, a notarized certified statement that the vehicles it operates in the parish are in sound mechanical condition and meet all national, state and local requirements to provide Advance Life Support or Basic Life Support, as required. The private provider shall pay a fee of ten dollars ($10.00) per vehicle per year, payable during the month of January, to the city-parish. A late fee of twenty dollars ($20.00) will be assessed for fee payments after January. City-parish EMS may spot check any vehicle for compliance with the above.

(b) Any provider that fails to meet the certification requirements may be subject to the following:

(1) Cancellation of the permit of the private provider to operate all emergency vehicles in the parish.

(2) Imposition of the maximum fine allowed in the parish by state law.

(3) Prohibition of operators of vehicles from providing emergency medical services in the parish for up to one (1) year.

(c) The parish attorney or his/her designee shall determine the appropriate action for any violation.
(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:409. Driver's license required.

No person shall drive an ambulance upon the streets of the city and parish, and no person who owns or controls an ambulance shall permit it to be so driven unless the driver shall have a valid state driver's license, as specified by the Louisiana Department of Public Safety, Office of Motor Vehicles.
(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18; Ord. No. 18413, § 1, 8-11-21)

Sec. 10:410. Qualifications to operate ambulances; equipment; personnel.

No person shall operate an ambulance within the parish unless he meets the following qualifications:

(1) All personnel shall be at least eighteen (18) years of age.

(2) No person shall be employed in any capacity on any ambulance unless he is a state certified responder, emergency medical technician at the basic, advanced or paramedic level, a registered nurse licensed under the provisions of R.S. tit.

37, or a physician possessing a valid and unrevoked physician's and surgeon's certificate, issued under the provision of R.S. tit. 37, or he possesses such other credentials or documentation evidencing an equivalent or higher level of training than required in the examples mentioned above, as determined by the department of EMS.

(3) No personnel shall have ever been convicted under the laws of this state or of any other state, or of the United States, or of this city or any other city of the offense of murder, aggravated battery, aggravated rape, simple rape, aggravated burglary, simple burglary, aggravated kidnapping, simple kidnapping, armed robbery, simple robbery, pandering, prostitution, soliciting for prostitutes, illegal possession or sale or use of narcotics, contributing to the delinquency of a juvenile or indecent behavior with a juvenile, or shall have been convicted of two (2) or more moving traffic offenses during the year preceding the application of employment.

(4) No personnel shall have been convicted of any other felony or of any misdemeanor involving moral turpitude against the criminal laws of this state or of any other state, or of the United States within five (5) years, nor shall he have served any part of a sentence therefor within five (5) years before the date of the filing of the application, nor shall he be presently charged therewith, or with any of the felonies, offenses or misdemeanors set forth in subsection (3) of this section or with violating any of the provisions of this chapter.

(5) He is not addicted to the use of intoxicating liquor, does not use any narcotic drugs, and is not suffering from any disease or infirmity which might make him an unsafe or unsatisfactory driver.

(6) No person shall conduct, maintain or operate an ambulance certified at the basic life support level which does not carry with it as part of its regular equipment the minimum essential equipment for ambulances as recommended by the applicable state law.

(7) No person shall conduct, maintain or operate an ambulance certified at the advanced life support level which does not carry with it as a part of its regular equipment the items on the list required medical and safety equipment consistent with the scope of practice for emergency medical technician paramedic as established in R.S. 40:1234 and based upon the recommendations of an advisory committee known as the Louisiana Ambulance Standards Committee.

(8) In accordance with Title 48, Section 6033 CS of the Louisiana Administrative Code, the highest ranking EMT on the board an ambulance is responsible for the medical care of all patients on board.

(9) No ambulance certified at the advanced life support level shall operate without a certified advanced emergency medical technician, certified paramedic, physician, or registered nurse on board. No ambulance certified at the basic life support level shall operate without a certified emergency medical technician on board.

(10) No private ambulance provider shall use mass media to advertise any telephone number other than 911 for medical emergencies in the parish.

(11) No private ambulance provider shall advertise or hold themselves out as a prehospital emergency medical services provider in the parish, except as approved by the department of EMS.

(Ord. No. 9234, 2-13-91; Ord. No. 10696, § 1, 9-11-96; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18; Ord. No. 18821, § 1, 4-26-23)

Sec. 10:411. Unauthorized response by ambulances.

No ambulance shall respond to any emergency based only on information obtained from or

intercepted by use of a radio communication scanner or similar device unless that ambulance has been specifically requested to respond to such emergency.
(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:412. Denial, suspension and revocation.

(a) Every owner or operator and every driver licensed under this chapter shall comply with all city, state and federal laws. Failure to do so will justify the department of EMS suspending or revoking the permit or license.

(b) The city administration through the mayor-president or his/her designee may deny any applicant's permit or license whenever in the exercise of his/her reasonable and sound discretion, and after notice and affording the applicant a hearing thereon, the mayor-president or his/her designee shall determine that said applicant is not a fit and proper person to have such permit or license. The applicant may appeal within ten (10) days from such denial to the metropolitan council for a hearing by filing a request with the council administrator's office.

(c) The department of EMS is hereby given authority to suspend any permit, certificate or license issued under this chapter for failure or refusal to comply with the provision of this chapter, such suspension to last for a period of not more than ten (10) days. The department of EMS is also given authority to revoke any permit, certificate or license for failure to comply with the provisions of this chapter; however, the permit, certificate or license may not be revoked unless the holder has received notice, has had an opportunity to present evidence on his/her behalf to the department, and has been given the opportunity to correct the deficiency within a reasonable time period.

(d) Whenever a person who shall have been issued a permit or license under this chapter shall be charged with a violation of this chapter, the department of EMS and the finance director are hereby given authority to suspend the permit or license pending final disposition of the charges against him/her, and whenever a person who shall have been issued a permit or license under this chapter shall be convicted in any court with a misdemeanor involving moral turpitude, or with any felony, the department of EMS and the finance director are hereby given authority to revoke the permit or license.

(e) Personnel licensed to perform at the advanced life support level in the parish found to be in violation of these provisions shall lose their certification to operate in the parish. No personnel will lose their license without an administrative hearing.
(Ord. No. 9234, 2-13-91; Ord. No. 10999, § 5, 10-22-97; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:413. Unlicensed drivers.

If any person not possessing a valid state driver's license, as specified by the Louisiana Department of Public Safety, Office of Motor Vehicles is found driving any ambulance, the finance director or the department of EMS may immediately take the necessary action to revoke the permit held by the owner or operator.
(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18; Ord. No. 18413, § 1, 8-11-21)

Sec. 10:414. Certificate of convenience and necessity.

(a) In order to obtain a permit to operate an ambulance within the parish, the city administration, through the mayor-president or his/her designee, must issue a certificate of convenience and necessity, as required by section 10:406(7).

(b) For the purpose of this chapter, "convenience and necessity" shall mean that there exists a current and permanent need for additional ambulance service in the parish.

(c) If the mayor-president or his/her designee determine that there exists a convenience and necessity such as will justify the issuance of an additional ambulance service permit, prior to the issuance of that permit all current ambulance license holders shall be notified of the additional service needed and given an opportunity to provide that service. If the current ambulance

license holders fail to provide the additional service within a reasonable time as determined by the mayor-president or his/her designee, the certificate of convenience and necessity shall issue, and an additional license may be issued.

(d) If a certificate of convenience and necessity is denied by the mayor-president or his/her designee, the applicant may appeal to the metropolitan council for a public hearing on the denial.
(Ord. No. 9234, 2-13-91; Ord. No. 10999, § 6, 10-22-97; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:415. Fare, charge or fee for ambulance services.

(a) For ambulance service provided by the department of EMS and any private ambulance service, rendered within the limits of the parish, a fare, charge or fee may be demanded and received in accordance with the terms and rates hereinafter established. Department of EMS and any owner of a permitted private ambulance service in accordance with section 10:403 shall charge a base rate and mileage not to exceed the amount set forth in the fee schedule below, which shall be adjusted annually, as further set forth herein. Department of EMS and permitted ambulance providers may charge separately and additionally for ancillaries, including but not limited to covered specialized services, supplies and drugs. Department of EMS and permitted ambulance providers are responsible for billing and collecting for services rendered. All fees for services rendered shall remain the property of the provider. Provider will be allowed to add and/or modify items that represent new and/or changing technology equipment, services and pharmaceuticals and to charge reasonable fees for said new items that are added by submitting the requested changes to the council for a vote. In addition, department of EMS and permitted providers shall be allowed to request a change in rate structure and/or amounts in such cases as there has been a material change in the structure or amount of rates or reimbursements made to ambulance providers by any federal or state or medical insurance provider. The metro council acknowledges that any event as set forth in the preceding sentence shall be deemed good cause for such a rate change in amount and/or structure. Any increase in rates provided to one provider shall be effective as to all providers legally operating within the parish.

(b) Notwithstanding the foregoing, the rates set forth below may increase annually on the first of each year, subject to the approval of the metropolitan council, by no less than the annual CPI-U (Consumer Price Index US Inflation factor). Any additional request for increase or change shall be in accordance with the preceding paragraph.

(1) There is established a BLS (basic life support) rate per patient transported of one thousand five hundred dollars ($1,500.00).

(2) There is established an ALS (advanced life support) rate per patient transported of one thousand seven hundred fifty dollars ($1,750.00).

(3) There is established an ALS 2 (advanced life requiring specialized procedures) rate per patient transported of two thousand dollars ($2,000.00).

(4) There is established a specialty care transport rate per patient transported of two thousand five hundred dollars ($2,500.00).

(5) There is established a treat no transport rate per patient of one thousand five hundred dollars ($1,500.00).

(6) There is established a loaded mileage rate per patient transported of twenty-six dollars ($26.00).

(c) The department of EMS can bill these user charges to residents' government and/or commercial insurers where applicable, and to non-residents with or without applicable insurance coverage. Residents will be liable only for amounts paid by insurers whether commercial or government (including Medicare/Medicaid/Tricare). Non-residents' insurance companies can be billed in an identical manner. However, non-residents can be required to pay all balances, as permitted by law.

(d) Private ambulance service providers, not receiving a tax subsidy from the parish can bill these user charges to residents' and non-residents' government and/or commercial insurers where applicable, and to residents' and non-residents to the extent no insurance is available, and can be required to pay all co-pays, deductibles and non-covered/non-insured balances, as permitted by law or in accordance with any contractual agreement.

(e) Special events fee schedule is set forth as follows:

(1) East Baton Rouge EMS reserves the right to invoice for certain private event coverage. The following fee schedule applies to any private special event request but may be waived at the discretion of the department.

a. Ambulance with two (2) medics: one hundred seventy-five dollars ($175.00) per hour.

b. ASAP with two (2) medics: one hundred fifty dollars ($150.00) per hour.

c. Bike team: one hundred fifty dollars ($150.00) per hour per team.

d. Med trailer with one (1) medic: one hundred fifty dollars ($150.00) per hour.

Two (2) medics: two hundred dollars ($200.00) per hour.

e. Sprint unit with one (1) medic: one hundred dollars ($100.00) per hour.

Two (2) medics: one hundred fifty dollars ($150.00) per hour.

(2) East Baton Rouge EMS reserves the right to waive charges for the following events:

a. Public community events.

b. Private non-profit events.

c. Robot shows.

d. Unit demos.

e. Recruiting or public speaking events.

(3) All special events are invoiced for the event duration plus one (1) hour before and one (1) hour after event time to allow for setup and demobilization.

(Ord. No. 9234, 2-13-91; Ord. No. 10583, § 1, 2-28-96; Ord. No. 11180, § 1, 7-8-98; Ord. No. 12180, § 1, 12-12-01; Ord. No. 13798, § 1, 11-8-06; Ord. No. 14722, § 1, 7-22-09; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18; Ord. No. 18822, § 1, 4-26-23)

Sec. 10:416. Air ambulance service.

(a) No owner or operator of an air ambulance service operating within the parish shall permit it to be used or operated within the parish without first obtaining a permit therefor from the city administration through the mayor-president or his/her designee. In determining whether or not a permit for an air ambulance service should issue, the city administration shall consider those factors set out in Section 406 of this chapter and shall follow the procedure described in Section 414 of this chapter.

(b) No air ambulance service may respond to any emergency originating within the parish or any non-emergency call with origin within the parish unless the air ambulance service operator has a valid and current permit to operate in the parish.

(c) All air ambulance services with a valid and current permit to operate in the parish shall, in the prehospital environment, operate at the basic life support and the advanced life support level under protocols and operating procedures approved by the department of EMS or its designee.

(d) Request for air ambulance service within the parish shall be made through the department of EMS communications center.

(Ord. No. 9234, 2-13-91; Ord. No. 10999, § 7, 10-22-97; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:417. Application for air ambulance permits.

Applications for permits shall be made to the EMS department and the finance director upon forms prescribed by him, and shall include:

(1) The name and address of the owner or operator of the air ambulance service;

(2) A description of the aircraft, including the manufacturer, model, year of manufacturer and the FAA identification number;

(3) The location and description of the place or places from which it is intended to operate;

(4) Such other information as the department of EMS shall find reasonably necessary to make a fair determination of whether the provisions of this chapter have been complied with.

(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:418. Qualifications for air ambulance permit.

In determining whether a permit shall be issued, the city administration through the mayor-president or his/her designee shall give weight and due regard, among other things, to:

(1) The probable permanence and quality of the service offered by the applicant, to include among other things a proof of financial responsibility, experience in the provision of air ambulance services, the past experience of the applicant in payment of judgments, if any, arising out of the operation of such service;

(2) That insurance as required by this chapter has been secured;

(3) That all requirements of the department of EMS as they pertain to medical personnel, equipment, radio communications, and medical and operational protocols have been met;

(4) That all requirements of this chapter and all other applicable laws and ordinances have been complied with.

(Ord. No. 9234, 2-13-91; Ord. No. 10999, § 8, 10-22-97; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:419. Insurance required.

(a) Before any permit is issued hereunder, the applicant must file with the finance director and the department of EMS a policy of public liability insurance issued by an insurance company qualified to do business in the state, which shall contain the following conditions and stipulations:

(1) The term of such insurance policy shall be for a period of not less than one (1) year.

(2) The insurance policy shall provide limits of liability consistent with good business practices and accepted by the department of EMS and the finance director to be adequate coverage.

(3) Such policy shall by its terms provide that it may not be canceled except after ten (10) days' written notice thereof to the finance director.

(b) Any owner or operator of an air ambulance who fails to secure any policy of liability insurance prior to cancellation of an existing one shall automatically and without notice or hearing suffer suspension of his/her permit until such time as such insurance policy has been filed with the finance director and the department of EMS.

(c) Any person who operates an air ambulance service without having such liability insurance in force shall be guilty of a violation of this chapter and shall be punished as hereinafter provided.

(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:420. Inspection of air ambulances.

(a) Before any permit shall issue hereunder, the aircraft listed in the application for permit shall be in compliance with R.S. 40:1135.8. The provider shall furnish the department of EMS,

annually during the month of January, a certified statement that said aircraft(s) it operates in the parish are in compliance with R.S. 40:1135.8.

(b) Each owner or operator of an air ambulance shall pay to the department of finance a fee of fifty dollars ($50.00) annually during the month of January for each aircraft it operates in the parish. A late penalty of one hundred dollars ($100.00) to be assessed for fee payments after January.

(c) Any person who operates an air ambulance without having obtained proper permit shall be guilty of a violation of this chapter and shall be punished as hereinafter provided.

(d) Any owner or operator, or both, of any air ambulance whose aircraft has failed the inspection required by this chapter shall be given seven (7) days in which to be in compliance. After the expiration of said seven (7) days, the name, FAA identification number, and other appropriate information shall be given to the proper law enforcement agency for enforcement, if necessary.

(e) When aircraft certified for operation in the parish are taken out of service for either FAA required maintenance or for repairs, the use of alternate aircraft is to be permitted. The alternate aircraft must meet all provisions of this chapter pertaining to equipment, FAA certification, and personnel.

(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:421. Qualifications to operate air ambulances; personnel.

No person shall operate an air ambulance within the parish unless he meets the following qualifications:

(a) All personnel shall be at least eighteen (18) years of age.

(b) All pilots shall possess a current FAA license which is appropriate to the type of aircraft he is operating.

(c) The pilot shall possess a current class II medical certificate issued by the FAA.

(d) No person shall be employed in any capacity on any air ambulance unless he meets the minimum personnel requirements set forth by the department of EMS or its designee.

(e) No person shall conduct, maintain or operate an air ambulance which does not meet minimum staffing requirements set forth by the department of EMS or its designee.

(f) No person shall conduct, maintain or operate an air ambulance which does not carry with it as part of its regular equipment the minimum essential equipment required by state law.

(g) No personnel shall have ever been convicted anywhere under the laws of this state or of any other state, or of the United States, or of this city or any other city of the offense of murder, aggravated battery, aggravated rape, simple rape, aggravated burglary, simple burglary, aggravated kidnapping, armed robbery, simple robbery, pandering, prostitution, soliciting for prostitutes, illegal possession or sale or use of narcotics, contributing to the delinquency of a juvenile and indecent behavior with a juvenile.

(h) No personnel shall have been convicted of any other felony or of any misdemeanor involving moral turpitude against the criminal laws of this state or of any state, or of the United States, within five (5) years; nor shall he have served any part of a sentence therefor within five (5) years before the date of the filing of the applications, nor shall be presently charged therewith, or with any of the felonies, offenses or misdemeanors set forth in paragraph (g) of this section or with violating any of the provisions of this chapter.

(i) He/She is not addicted to the use of intoxicating liquor, does not use narcotic drugs, and is not suffering from any disease or infirmity which might also make him/her an unsafe or unsatisfactory pilot.

(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:422. Denial, suspension and revocation.

(a) Every owner or operator of an air ambulance service licensed under this chapter shall comply with all city, state and federal laws. Failure to do so will justify the department of EMS suspending or revoking the permit or license.

(b) The department of EMS may deny any applicant's permit or license whenever in the exercise of his/her reasonable and sound discretion, and after notice and affording the applicant a hearing thereon, the department of EMS shall determine that the applicant is not a fit and proper person to have such permit or license. The applicant may appeal within ten (10) days from such denial to the metropolitan council for a hearing by requesting an appeal with the council administrator.

(c) The department of EMS is hereby given authority to suspend any permit or license issued under this chapter for failure or refusal to comply with the provisions of this chapter, such suspension to last for a period of not more than thirty (30) days. The department of EMS is also given authority to revoke any permit or license for failure to comply with the provisions of this chapter; however, the permit or license may not be revoked unless the holder has received notice and has had an opportunity to present evidence in his/her behalf to the department.

(d) Whenever a person who shall have been issued a permit or license to operate an air ambulance service under this chapter shall be charged in any court with a misdemeanor involving moral turpitude, or with any felony, or with violation of this chapter, the department of EMS and the finance director are hereby given authority to suspend the permit or license pending final disposition of the charges against him/her, and to revoke same upon conviction thereof.
(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:423. Penalty.

Any person violating any of the provisions of this chapter shall upon conviction be fined not less than one hundred dollars ($100.00), nor more than three hundred dollars ($300.00) or be imprisoned for not less than ten (10) days nor more than sixty (60) days, or both, at the discretion of the court, for each offense.
(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Sec. 10:424. Effective date.

The provisions of this chapter shall become effective thirty (30) days from the date of adoption of this chapter, and all persons presently owning, operating or driving ambulances, or presently owning or operating air ambulances, must have qualified under the applicable provisions of this chapter on or before the effective date.
(Ord. No. 9234, 2-13-91; Ord. No. 15285, § 1, 3-28-12; Ord. No. 16880, § 1, 8-8-18)

Secs. 10:425—10:499. Reserved.

CHAPTER 7. COMMERCIAL PEDAL CARRIAGE*

Sec. 10:500. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

Applicant means any person which has bona fide legal title or control, direction, operation, maintenance, or supervision over any commercial pedal carriage operated upon the streets of the city-parish.

Commercial pedal carriage means a commercial pedal carriage is a four (4) or more wheeled bicycle-like vehicle that is human powered or equipped with pedal e-assist that transports passengers on bicycle-like seats and is propelled by one (1) or more passengers not including the operator. A commercial pedal carriage has a speed of no more than ten (10) miles per hour in, upon, or by which any person is or may be transported or drawn upon a street having a thirty-five (35) miles per hour maximum speed limit. The maximum number of pas-

*__Editor's note—__Ord. No. 16924, § 1, adopted November 14, 2018, repealed former ch. 7 in its entirety. Former ch. 7, §§ 10:500—10:514, pertained to bicycles and derived from City Code 1951, Title 10, §§ 500—510; Ord. No. 7777, § 1, adopted Jan. 23, 1985; Ord. No. 7991, § 1, adopted Oct. 9, 1985; Ord. No. 8110, adopted Feb. 26, 1986; Ord. No. 8149, adopted May 14, 1986; Ord. No. 8325, § 1, adopted Dec. 10, 1986; Ord. No. 8679, adopted June 22, 1988; Ord. No. 8864, § 1, adopted Feb. 22, 1989; and Ord. No. 11679, § 1, adopted March 8, 2000.

sengers up to sixteen (16), not including the operator, must be based upon the manufacturer's specifications.

Commercial pedal carriage business means the business of operating one (1) or more commercial pedal carriage vehicle(s) for profit or not-for-profit.

Commercial pedal carriage operator means any person employed by or any owner of the commercial pedal carriage business who is responsible for the safe operation of a commercial pedal carriage, including but not limited to the steering and braking and maintaining compliance with all state and local traffic regulations.

Street means any street or roadway under the jurisdiction of the city-parish.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:501. Certificate of public convenience and necessity; inspections.

The following rules and regulations shall govern the business of rendering public transportation service within the meaning of this chapter:

(a) *Certificate of public convenience and necessity required.* No commercial pedal carriage shall hereafter be used or operated by any person on the streets of the city-parish, without having first obtained from the taxicab control board, a certificate declaring that the public convenience and necessity requires such operation, and without having complied with all the requirements of this chapter, all regulations promulgated by the taxicab control board and all other laws of the city-parish and state governing such operation and service. No rights whatsoever shall vest in the applicant if such a finding is made.

(b) *Application.* All applications for certificates of public convenience and necessity for the operation of a pedal carriage on the streets of the city-parish shall be made to the taxicab control board, and shall set forth:

a. Name and address of applicant;
   1. Sole-proprietor: name and address of the owner.
   2. Partnership: names and addresses of all partners.
   3. Corporation or association: names and addresses of all the officers, directors, and members.

b. Business name (D/B/A), business address and telephone number if different from above;

c. A background check of each person;

d. Proof of U.S. citizenship or legal residency for each person;

e. Prior experience of applicant in transport of passengers;

f. Number of commercial pedal carriage certificates requested, and copy of proof of ownership or other evidence of lawful control for each commercial pedal carriage to be operated under the certificate;

g. Procedures for training operators;

h. Rules and regulations governing operator appearance and conduct;

i. Any additional information the applicant desires to include to aid in the determination of whether the requested certificate should be issued.

j. All applications must contain a statement of the facts showing a demand for the services proposed to be rendered, the experience of the applicant, or if such applicant is a firm, corporation or association, the experience of each operator, in rendering such services and the period of time that he has rendered it in the city-parish.

k. A copy of the pedal carriage's manufacturer's specifications.

l. Any other information which may be required by the taxicab control board.

m. The application shall be made upon printed forms to be prepared under the direction of and to be available at the office of the finance department.

(3) *Investigation and inquiry.* Upon receipt of such applications for certificates of public convenience and necessity, the taxicab control board shall make or cause to be made, such investigations as may be considered necessary, including any hearing that the taxicab control board may deem advisable, for the purpose of determining whether or not the public convenience and necessity require the operation of a commercial pedal carriage upon the city-parish streets and whether or not the applicant is fit and proper to conduct such business. In determining whether or not a certificate should be issued, the taxicab control board shall give weight and due regard, among other things, to:

a. Probable permanence and quality of the service offered by the applicant.

b. The experience that the applicant has had in rendering such service in the city-parish, the past experience of the applicant in prompt adjustment of claims and in payment of judgments, if any, to claimants as a result of injuries received from the negligent operation of public vehicles.

c. The stability of the business organization of the applicant, and the ability of the central office to provide satisfactory and responsible service on a business-like basis, and to meet other organizational requirements of the taxicab control board.

d. The character and condition of the commercial pedal carriage to be used. This information is to be supplied to the taxicab control board after examination of the commercial pedal carriages named in the application in the manner hereinafter set forth. The evidence in any investigation, inquiry or hearing may be taken by the taxicab control board or by any agent or employee to whom such authority may be delegated by the taxicab control board and for this purpose the taxicab control board may subpoena such witnesses, papers, books or documents as may be pertinent to such investigation, and every finding, opinion and order made by the taxicab control board, pursuant to such investigation, inquiry or hearing, when approved or confirmed by the taxicab control board, shall be the finding, opinion or order of the taxicab control board.

e. Whether any of the owners, partners, officers, directors, or members have been convicted of, forfeited bond, pleaded guilty or nolo contendere to, or been released from incarceration for a felony or any crime involving a controlled substance or any crime of a sexual nature in any jurisdiction within five (5) years immediately preceding the date of application.

(4) *Inspection.* All commercial pedal carriages licensed under this chapter must be inspected for mechanical efficiency annually during the month of August. The inspections for mechanical efficiency shall be made by the central garage division of the department of public works and shall cover commercial pedal carriage safety and equipment standards as set forth under section 10:517.

If, upon any inspection, a commercial pedal carriage is found to be unsafe, unclean or unsightly, the inspector may direct that the commercial pedal carriage be taken out of service until such condition is corrected. Such commercial pedal carriage shall be re-inspected and approved by the inspector before returning to service.

Inspection forms shall be completed by the central garage division after each inspection, with a copy to be given to the certificate holder, and a copy forwarded to the finance director. An appropriate inspection sticker shall be placed on the bumper of each commercial pedal carriage to indicate that the hereinabove described inspections have been conducted.

No commercial pedal carriage shall operate within the city-parish without having been inspected and certified; and any such operation is hereby declared to be a violation of this chapter, subjecting the certificate holder to suspension or revocation of the certificate.

Before any applicant shall be granted a certificate of public convenience and necessity hereunder, all of the commercial pedal carriages named in the application shall be inspected as herein provided. The result of such inspection shall be reported to the taxicab control board of the condition of any or all of such commercial pedal carriages.

(5) *Inspection; fees.* Each commercial pedal carriage owner shall, at the time he pays the franchise tax imposed by the provisions of this Code, pay the additional fee as set forth by a fee schedule, approved by the taxicab control board, for each commercial pedal carriage to be operated during the tax year, this sum to be for the cost of the inspections to be made by the department of public works once yearly hereunder. In the event that re-inspection should, for any reason, be required, an additional fee as set forth by a fee schedule, approved by the taxicab control board, shall be paid at the time of such inspection.

(6) *Issuance of certificates of public convenience and necessity.* If the taxicab control board finds that the public convenience and necessity requires the operation of a commercial pedal carriage service or additional commercial pedal carriage services for which the certificate is applied, and the applicant is fit and proper to conduct such business, and that the other requirements of law have been complied with, it shall notify the applicant of its finding and the certificate shall be issued for such operation of such commercial pedal carriages in such service, specifically describing each of the commercial pedal carriages in the same manner as is required herein to be set forth in an application. The certificate shall be effective only as to the exact number of commercial pedal carriages named in the application. Such certificate shall not be transferable.

If any application is made for a certificate covering more than one (1) commercial pedal carriage, the taxicab control board may grant or refuse a certificate for such operation of any, or all, of the commercial pedal carriages for which application is made, as may be consistent with its findings.

Such certificate, when issued, shall constitute authority for the operation of the commercial pedal carriage or commercial pedal carriages therein described in the service authorized, on the streets of the city-parish, subject to all traffic laws and regulation; however, operations shall begin within sixty (60) days after the issuance of the certificate of public convenience and necessity. Certificates shall remain in full force and effect until and unless canceled, suspended or withdrawn and revoked by the taxicab control board, the taxicab control board retaining the right always to review the certificates so issued, or to alter, change or revoke same for good cause.

(7) *Refusal of certificates of public convenience and necessity.* If the taxicab control board finds that the public convenience and necessity do not require the operation of any such commercial pedal carriages, the applicant is not fit and proper to conduct such business, or if any portion of the application is incomplete or contains incor-

rect or untruthful information it shall forthwith refuse such application and no certificate shall issue.

(8) *Revocation.* At any time after five (5) days written notice sent by certified mail to the last-known address of the certificate holder, or to the address appearing on the application of the certificate holder, which notice shall fix a specified date for hearing, not less than five (5) days from the date of the notice, and after a hearing before the taxicab control board the taxicab control board may suspend, revoke, alter or amend any certificate issued hereunder for good cause. Notice as herein provided shall not be required where the certificate holder has failed to pay the franchise tax due under the provisions of this Code.

(9) *General.* Change of ownership of any commercial pedal carriage for the operation of which certificate has been issued hereunder shall automatically revoke such certificate, and the same shall be surrendered to the taxicab control board.

No persons shall use the term "commercial pedal carriage," "pedal carriage," "pedal car" or "pedal cab" and/or in any way advertise or hold themselves out as a "commercial pedal carriage," "pedal carriage," "pedal car" or "pedal cab" company or operator, or represent themselves to be such by means of advertisement, signs, trade names or otherwise unless they have complied with the requirements, conditions and regulations prescribed by this chapter.

(10) *License taxes and fees.* All persons authorized to operate hereunder shall promptly pay all state and city-parish license taxes and fees as they shall come due by January 15 of each year, including, but not limited to, registration fees. The failure to pay such taxes or fees as they become due shall be good cause for revocation or suspension of the license.

(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:502. Insurance required.

No license shall be issued or renewed without proof of general liability insurance in the minimum amount of two million dollars ($2,000,000.00), a full copy of the insurance policy, corresponding declaration page and certificate of insurance.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:503. Registration fee.

A fee, as set forth by a fee schedule approved by the taxicab control board, per commercial pedal carriage, shall be paid to the finance department by each applicant at the time an application is submitted.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:504. Request for additional certificates.

An application for additional commercial pedal carriage must be filed with the taxicab control board. The established registration fee as set forth in section 10:503 will apply and shall be submitted with the application.

Sec. 10:505. Annual renewal.

(a) All certificates of public convenience and necessity issued under the provisions of this chapter shall expire on December 31 of the year following the date on which the certificate was issued. All certificates shall be renewed by January 15 of each year.

(b) All applicants for renewal must be current with all assessments and taxes due.

(c) If a certificate holder fails to renew on or before January 15, the renewal applicant shall be treated as a new applicant.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:506. Operating area.

Commercial pedal carriages shall operate upon the streets within routes or zones, and within hours of operation, established by the taxicab control board. Any deviation from these approved routes, zones, or hours of operation must be approved by the taxicab control board. Any

approved deviation must be reported to the taxicab control board prior to beginning of operations.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:507. Approved tour assembly sites required.

All commercial pedal carriage businesses shall operate tours only from locations approved by the taxicab control board. These sites shall be used by the licensed business as the locations for patrons to gather and assemble prior to embarking on a commercial pedal carriage tour and to disembark at the conclusion of the tour.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:508. Passengers; receiving and discharging by operators.

(a) Operators shall not receive or discharge passengers upon the roadway, but shall pull to the extreme right-hand side of the road or to the sidewalk and there receive or discharge passengers, except upon one-way streets where passengers may be discharged at either side of the roadway in the absence of a sidewalk. As an exception, when access to curb space is blocked by parked commercial pedal carriages, operators may pull to the extreme right-hand lane, and stop to expeditiously receive or discharge passengers from the right side of the commercial pedal carriage. Nothing in this section shall be construed to permit the parking of a commercial pedal carriage at any place where parking is otherwise restricted or prohibited.

(b) Operators shall not stop to load or unload passengers or their belongings in the intersections of any street, crosswalks or in any manner or other location that would be considered unsafe. No pedal carriage shall load or unload in any such manner that will in any way impede or interfere with the orderly flow of traffic on the streets.

(c) Pedal carriage operators shall not allow additional passengers to board the pedal carriage after the commercial pedal carriage has left its fixed starting point.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:509. Alcohol in a commercial pedal carriage.

(a) A certificate holder or operator commits an offense if he or she provides an alcoholic beverage to a passenger for a fee or as part of the passenger transport service.

(b) A certificate holder or commercial pedal carriage operator commits an offense if he or she provides or stocks any alcoholic beverage in the commercial pedal carriage.

(c) Alcoholic beverages may be consumed by a commercial pedal carriage passenger under the following conditions:

(1) No alcoholic beverage may be transported or in the possession of a commercial pedal carriage passenger for the purpose of consumption while on a commercial pedal carriage on a street, alley sidewalk, parking lot, parking garage or other area generally open to the public in an aluminum or metal container unless such container is commercially sealed.

(2) No glassware of any kind shall be allowed on a commercial pedal carriage including but not limited to bottles, receptacles or drinking glasses.

(3) Alcoholic beverages may be consumed only when the passenger is in or on a commercial pedal carriage.

(4) The commercial pedal carriage operator may not allow consumption of alcoholic beverages by persons under the age of twenty-one (21). If alcoholic beverages present on a commercial pedal carriage, the commercial pedal carriage operator shall not transport persons under the age of twenty-one (21) on the commercial pedal carriage.

(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:510. Hours of operation.

Hours of operation allowed shall be from 10:00 a.m. to 12:00 a.m. The prohibitions of hours of operation may be waived for special events.

No music or amplified sound shall be played, nor yelling or conversation be conducted, on a

commercial pedal carriage in such a manner that it would violate sections 12:100—12:104 of this Code.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:511. Commercial pedal carriage operation.

Every commercial pedal carriage shall be operated in compliance with all applicable federal, state and local traffic laws, and in a manner so as to assure the safety of persons and property.

Operating restrictions and conditions are as follows:

(1) No commercial pedal carriage shall be operated or parked on a public sidewalk.

(2) No commercial pedal carriage shall use any public street or other public property as a waiting area unless such area is a legal motor vehicle parking area or as permitted.

(3) No commercial pedal carriage operator shall consume any alcoholic beverages while on duty or operate a commercial pedal carriage while impaired in any manner.

(4) All commercial pedal carriages shall be clean and maintained in a good state of repair. All commercial pedal carriages shall be maintained by the commercial pedal carriage business so as to be well painted and have an appearance free of damage or deterioration, and a safe operational condition. Commercial pedal carriages shall be, at all reasonable times, subject to inspection by the licensing official or the police department.

(5) All commercial pedal carriages shall have the trade name and phone number of the certificate holder conspicuously displayed on the commercial pedal carriages.

(6) All commercial pedal carriage passenger customers consuming alcohol shall be of legal age as established pursuant to Louisiana.

(7) Commercial pedal carriage operator shall operate the commercial pedal carriage in compliance with all applicable federal, state, and local traffic laws, ordinances, or other applicable regulations and in a manner so as to assure the safety of persons and property. The operator's permit issued by the city-parish shall be made available upon request of law enforcement, the license official, or traffic control agent.

(8) All commercial pedal carriage operators shall obey and comply with any lawful order or direction of any police officer, traffic control agent, or license inspector, and shall refrain from the use of any profane language or from interference with such officials while in the performance of their duties.

(9) No commercial pedal carriage operator shall permit more passengers to be carried in a commercial pedal carriage than the commercial pedal carriage's normal seating capacity.

(10) No commercial pedal carriage operator shall allow a passenger or other individuals to drive their commercial pedal carriage nor sit in the operator's seat.

(11) No alcoholic beverages other than beer, wine, hard cider, or malt-based beverages below six (6) percent alcohol may be consumed by passenger customers of a commercial pedal carriage.

(12) It is the responsibility of the commercial pedal carriage operator to properly dispose of all trash.

(13) A commercial pedal carriage operator must be properly attired with a shirt, pants, skirt or shorts and secure footwear.

(14) A commercial pedal carriage operator shall not stop to load or unload passengers or their belongings in the intersections of any street, crosswalk or in any manner or other location that would be considered unsafe. No commercial pedal carriage operator shall load or unload in any such manner that will in any way

impede or interfere with the orderly flow of traffic on the streets except on a designated approved route.

(15) It shall be unlawful for any commercial pedal carriage operator to allow or cause to be operated a commercial pedal carriage in any unsafe manner or operating condition.

(16) It is the responsibility of the commercial pedal carriage operator to actively and affirmatively manage the behavior of the passengers of the commercial pedal carriage so that that their behavior remains law-abiding during the excursion, both while the commercial pedal carriage is in motion and at a stop.

(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:512. Operator requirements.

(a) *Operator to have operator's permit issued by the city-parish; be fingerprinted.* Every operator of a commercial pedal carriage shall obtain an operator's permit to be issued by the city-parish and shall have been fingerprinted by Baton Rouge Police Department or Louisiana State Police.

(b) *Operator's permit.* It shall be unlawful for any person to operate any commercial pedal carriage regulated by this chapter without possessing a current operator's permit or a duplicate thereof, should the same be lost or destroyed.

Each applicant shall submit the following with their operator's application for permit:

(1) A valid driver's license issued by the State of Louisiana;

(2) A letter from the employer certificate holder for whom the applicant expects to work;

(3) An official driver record obtained no longer than sixty (60) days previous to the date of application; and

(4) Initial permit fee as set forth by a fee schedule, approved by the taxicab control board.

(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:513. Operator's permit; prohibitions.

Any applicant for an operator's permit shall, in addition to any disqualifications listed elsewhere in this chapter, be disqualified if the applicant:

(1) For an initial permit, has no more than three (3) moving violations within the last three (3) years and has no more than two (2) moving violations in the last year.

(2) For a renewal permit, has no more than four (4) moving violations within the last three (3) years and no more than two (2) moving violations in the last year.

(3) Has been convicted in the last five (5) years for any of the following offenses involving bodily injury or death or convicted in the last three (3) years for any of the following offenses not involving injury or death:

a. Hit and run;

b. Driving under the influence of an alcoholic beverage or drug;

c. Reckless or careless driving.

(4) Has been convicted, pled guilty, placed on probation or parole, pleaded nolo contendere, or been released from incarceration within a period of five (5) years prior to the date of application for violation of any of the following criminal offenses under the laws of Louisiana, any other state or of the United States:

a. Homicide;

b. Rape;

c. Aggravated assault;

d. Kidnapping;

e. Robbery;

f. Burglary;

g. Child sexual abuse;

h. Any sex-related offense;

i. Leaving the scene of an accident;

j. Criminal solicitation, or criminal attempt to commit any of above;

k. Perjury or false swearing in making any statement under oath in connection with the application for an operator's permit; or

l. The felony possession, sale or distribution of narcotic drugs or controlled substances.

(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:514. Operator's permit; term.

An operator's permit shall be valid for a period of one (1) year from the date of issuance.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:515. Possession of valid permit.

The operator's permit shall be carried by the operator at all times when the operator is operating the commercial pedal carriage. For the purpose of this article, every permit which is under suspension or which has been revoked as provided in this chapter shall be considered invalid unless and until the same is reinstated.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:516. Operator's permit; renewal.

Every operator's permit in good standing shall be renewable on or three (3) months before its expiration date upon application and payment of the fee as set forth by a fee schedule, approved by the taxicab control board, payable to the department of finance. The renewal of the operator's permit within ten (10) business days following the date of expiration of the permit shall be considered timely renewal of the permit.
(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:517. Commercial pedal carriage safety and equipment standards.

(a) No commercial pedal carriage owner or commercial pedal carriage operator shall operate or allow the operation of a commercial pedal carriage on any street unless the commercial pedal carriage meets the following equipment and safety standards:

(1) *Tires.* Tires shall be of a size appropriate for the commercial pedal carriage with no mismatched tires per the design of the commercial pedal carriage. There shall be no cuts to the tire, localized worn spots that expose the ply, or visible tread wear indicators.

(2) *Brakes.* It shall be unlawful to operate, or cause to be operated, a commercial pedal carriage that is not equipped with a front and rear braking system capable of being manipulated by the operator from operator's normal position of operation and capable of causing a commercial pedal carriage with a loaded passenger compartment to come to a complete stop in a linear path of motion when each wheel of the commercial pedal carriage is in contact with the ground on dry, level, clean pavement. The braking system controlling the rear wheels shall be hydraulic or mechanical disc or drum brakes, which are unaffected by rain or wet conditions.

(3) *Headlights, taillights, mirrors, turn signals, and other requirements.* Every commercial pedal carriage shall be equipped with the operational equipment set forth in the subsections below:

a. A headlight capable of projecting a beam of white light for a distance at a minimum of three hundred (300) feet which shall be clearly visible during darkness and must be always illuminated during darkness.

b. A side mounted mirror or a wide-angle rearview mirror affixed to the commercial pedal carriage to reflect to the commercial pedal carriage operator a view of the street for a distance of at least two hundred (200) feet from the rear of the commercial pedal carriage.

c. A red light and brake light affixed to the rear of the commercial pedal carriage which must be visible for a distance of at least two hundred (200) feet from the rear of the commercial pedal carriage and must be always illuminated during dark-

ness. Turn signals must be affixed to the front and rear of the commercial pedal carriage.

(4) *Name and number.* Display the name and telephone number of the commercial pedal carriage with two-inch letters on the rear of the commercial pedal carriage. These signs must be displayed at all times that the commercial pedal carriage is operating for business.

(5) *Backup battery.* A fully charged backup battery must be readily available and a commercial pedal carriage cannot operate without proper lights.

(6) *Signaling device.* A fully operational horn or bell.

(7) *Specifications.* Submission of pedal carriage's manufacturer's specifications.

(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:518. Commercial pedal carriage company certificates.

Every commercial pedal carriage company shall:

(1) Take affirmative measures to ensure that all of its owners and operators comply with the terms of this chapter.

(2) Ensure that no commercial pedal carriage is operated in unsafe mechanical condition or continues to operate after it has been ordered out of service.

(3) Promptly respond to all requests for information from the taxicab control board.

(4) Promptly report any and all accidents involving commercial pedal carriage operating to the taxicab control board.

(5) Every commercial pedal carriage company shall be deemed the agent of service of all notices, orders, and other correspondences from the city-parish to commercial pedal carriage operator operating under the certificate holder.

(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:519. Penalty.

Any person violating any of the provisions of this chapter shall, upon conviction, be fined not more than five hundred dollars ($500.00), or be imprisoned not more than thirty (30) days, or both, at the discretion of the court, for such offense.

(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:520. Payment of fines.

Payment of all fines or penalties under any of the provisions or rules and regulations contained in this chapter shall be made to the finance department for the city-parish. All funds received by the finance department shall be deposited in the general fund.

(Ord. No. 18251, § 1, 8-25-21)

Sec. 10:521. Revocation or suspension.

In addition to all other penalties, any violation of the terms of this chapter shall be grounds for revocation, suspension, or non-renewal of the certificate or operator's permit, whichever applicable.

(Ord. No. 18251, § 1, 8-25-21)

Secs. 10:522—10:599. Reserved.

CHAPTER 8. TRANSPORTATION NETWORK SERVICES*

Sec. 10:600. Definitions.

Transportation network company shall mean a company operating in the City of Baton Rouge and Parish of East Eaton Rouge that uses a digital network or software application to connect a passenger to transportation network services provided by a transportation network operator.

***Editor's note—**Ord. No. 17885, § 1, adopted August 12, 2020, in effect repealed and replaced ch. 8, §§ 10:600—10:606, and enacted a new ch. 8, §§ 10:600—10:604. Former ch. 8 pertained to similar subject matter and derived from Ord. No. 15722, adopted June 25, 2014; and Ord. No. 15787, adopted September 24, 2014.

Transportation network operator shall mean an individual who operates a motor vehicle that is:

(1) Owned or leased by the individual;

(2) Not licensed as a public vehicle-for-hire under section 10:201 et seq. of this Code; and

(3) Used to provide a prearranged ride to riders upon connection through a digital network controlled by a transportation network company in return for compensation or payment of a fee.

Transportation network services shall mean transportation of a passenger between points chosen by the passenger and that is prearranged by a transportation network application company.
(Ord. No. 17885, § 1, 8-12-20)

Sec. 10:601. Local fees.

(a) Transportation network companies shall remit a fee representing one (1) percent of the gross trip fare for each intrastate prearranged ride originating within either the incorporated or the unincorporated portions of the Parish of East Baton Rouge. The total fee shall be remitted to the finance department for the City of Baton Rouge on a quarterly basis within thirty (30) days after the end of the calendar quarter.

(b) The city-parish may submit to the state department of revenue, no more than annually, a written request to conduct an audit of a transportation network company's books and records related to its accounting and payment of fees to the city-parish and the department of revenue. Such an audit shall be limited to a single calendar quarter. If the city-parish has a reasonable basis to suspect a material underpayment by a company, the city-parish shall request that the department of revenue initiate an audit pursuant to and as updated under R.S. 48:2204(G). To be material, the underpayment to the city-parish must be greater than ten (10) percent of the amount required to be remitted. If an underpayment of over fifty dollars ($50.00) to any local governmental subdivision is identified in an audit conducted by the department of revenue, the transportation network company shall remit the underpaid fees to the city-parish within thirty (30) days of the conclusion of the state department of revenue audit.

(c) The city-parish may request to review the results of an audit set forth in subsection (b) with respect to fees remitted by a company to the city-parish.
(Ord. No. 17885, § 1, 8-12-20)

Sec. 10:602. Report of audit results.

The metropolitan council may request from the state department of transportation and development a report on the results of an audit performed pursuant to and as updated under R.S. 48:2203.
(Ord. No. 17885, § 1, 8-12-20)

Sec. 10:603. Fee; Baton Rouge Metropolitan Airport.

The city-parish shall charge pick-up fees for the use of the airport's facilities or designating locations for staging, pick-up, and other similar operations at the airport. The airport pick-up fee is not a local fee subject to this code of ordinances or state law.
(Ord. No. 17885, § 1, 8-12-20)

Sec. 10:604. Requirements for operation at Baton Rouge Metropolitan Airport.

Transportation network services and/or transportation network operators shall not operate at the Baton Rouge Metropolitan Airport unless specifically authorized to do so by the Greater Baton Rouge Airport District.
(Ord. No. 17885, § 1, 8-12-20)

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Title 11

TRAFFIC CODE*

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*__Cross references—__City court, § 1:50 et seq.; streets, alleys, sidewalks, battures and sewers, § 2:1 et seq.; disposition of abandoned stripped, junked vehicles, § 2:350 et seq.; police department, § 4:1 et seq.; traffic regulations for fire protection, § 5:75 et seq.; removal and disposition of vehicles as fire hazards in St. George Fire Protection District, § 5:601 et seq.; litter thrown by persons in vehicles, § 6:432; truck loads causing litter, § 6:433; placing commercial and noncommercial handbills on vehicles, § 6:437; off-street parking and loading requirements, § 7:6.1 et seq.; automotive wrecker and towing control board, auto, emergency and heavy-duty wrecker franchise regulations, title 9, ch. 12; transportation, § 10:1 et seq.; junked motor vehicles on private property a nuisance, § 12:500 et seq.

__State law reference—__State highway regulatory act, R.S. 32:1 et seq.

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CHAPTER 1. WORDS AND PHRASES DEFINED

Sec. 11:1. Definition of words and phrases.

The following words and phrases, when used in this title shall, for the purpose of this title, have the meanings respectively ascribed to them in this section, except where the context clearly indicates a different meaning:

Accident means an occurrence during the operation of a vehicle which causes or results in injury to any person or property.

Alley or *alleyway* shall mean street or highway intended to provide access to the rear or side of lots or buildings in urban districts and not intended for the purpose of through vehicular traffic.

Another shall mean any other person or legal entity, including the state or any subdivision thereof.

Authorized emergency vehicle shall mean such fire department vehicles, police vehicles, ambulances and emergency medical service vehicles as are publicly owned, and such other publicly or privately owned vehicles as are designated by the chief of police.

Autocycle means an enclosed motorcycle that is equipped with safety belts, rollbar, windshield wipers, steering wheel, and equipment otherwise required on a motorcycle and which has no more than three (3) wheels in contact with the roadway at any one (1) time.

Axle shall mean the common axis of rotation of one (1) or more wheels whether power-driven or freely rotating, and whether in one (1) or more segments, and regardless of the number of wheels carried thereon.

Axle group shall mean an assemblage of two (2) or more consecutive axles considered together in determining their combined load effect on a highway.

Bicycle shall mean every device propelled by human power upon which any person may ride, having two (2) tandem wheels either of which is more than twenty (20) inches in diameter.

Bicycle lane shall mean a portion of a roadway which has been designated for the exclusive use by bicycles. It is distinguished from the motor vehicle travel lanes by a paint stripe, curb or other similar device.

Bicycle route shall mean a roadway which is open to motor vehicular travel and upon which no bicycle lane is designated.

Bicycle trail shall mean a separate trail or path constructed for exclusive use of bicycles. Where such a trail or path forms part of a highway it is separated from the motor vehicle travel lanes by an open space or barrier.

Bus or *large passenger vehicle* shall mean every motor vehicle designed for carrying more than ten (10) passengers and used for the transportation of persons; and every motor vehicle, other than a taxicab, designed and used for the transportation of persons for compensation.

Business district shall mean the territory contiguous to and including a highway when within any six hundred (600) feet along such highway there are buildings in use for business or industrial purposes, including but not limited to hotels, banks, or office buildings, railroad stations and public buildings which occupy at least three hundred (300) feet of frontage on one side or three hundred (300) feet collectively on both sides of the highway.

Cargo shall mean the items or freight to be moved, including items placed on or in a vehicle, towed by a vehicle, or a vehicle itself.

Central business district shall mean all streets and portions of streets within the area described as follows: All streets or portions of streets lying west of the east line of 5th Street and south of the Capitol Grounds and north of Louisiana Avenue and east of the Mississippi River and Main Street from 5th Street to 22nd Street and Florida Boulevard from 5th Street to 8th Street.

Chauffeur shall mean every person who is employed by another for the principal purpose of

driving a motor vehicle, and every person who drives a school bus transporting school children or any other motor vehicle when in use for the transportation of persons or property or property for compensation.

Combination of vehicles shall mean every group of two (2) or more vehicles howsoever joined together which are drawn or propelled by a single motor vehicle.

Commercial vehicle shall mean every vehicle designed, maintained or used primarily for the transportation of property and used in commercial activity.

Connecting mechanism shall mean an arrangement of parts interconnecting two (2) or more consecutive axles to the frame of a vehicle in such a manner as to equalize the load between axles.

Controlled access highway shall mean every highway, street or roadway in respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the same except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

Criminal negligence shall mean the state of mind when, although neither specific nor general criminal intent is present, there is such disregard of interest of others that the offender's conduct amounts to a gross deviation below the standard of care expected to be maintained by a reasonably careful man under like circumstances.

Crosswalk shall mean that part of the roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the street measured from the curbs or in the absence of curbs, from the edges of the traversable roadway, and any portion of a roadway at an intersection or elsewhere, distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Curb loading zone shall mean a space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials.

Director of the department of public works shall mean that public official appointed pursuant to the applicable provisions of local law or his authorized representative, including but not limited to the chief traffic engineer.

Divided highway shall mean any highway divided into roadways, by a median, physical barrier or clearly indicated dividing section so constructed as to impede vehicular traffic.

Driver shall mean every person who drives or is in actual physical control of a vehicle.

Driveway or *private road* shall mean every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

Dummy axle shall mean a single axle attached independently to the frame of a vehicle and so designed and placed as to indicate the appearance of and to carry a uniformly distributed load of a normal tandem axle.

Explosives shall mean any chemical compound or mechanical mixture that is commonly used or intended for the purpose of producing an explosion and which contains any oxidizing and combustive units or other ingredients in such proportions, quantities or packing that an ignition by fire, by friction, by concussion, by percussion, or by detonator of any part of the compound or mixture may cause such a sudden generation of highly heated gases that the resultant gaseous pressures are capable of producing destructive effects on contiguous objects or of destroying life or limb.

Farm tractor shall mean every motor vehicle designed and used primarily as a farm implement for drawing plows, mowing machines and other implements of husbandry.

Flammable liquid shall mean any liquid which has a flash point of seventy (70) degrees Fahrenheit, or less, as determined by a Tagliabue or equivalent closed-cup test device.

Foreseeable shall mean that which ordinarily would be anticipated by a person of average, reasonable intelligence and perception.

Freight curb loading zone shall mean a space adjacent to a curb for the exclusive use of vehicles during the loading or unloading of freight.

Freight-carrying vehicle shall mean every motor vehicle designed for and used primarily as a carrier of freight transported for commercial purposes, which vehicle is licensed for six thousand (6,000) pounds or more. This shall not include pickup or panel trucks unless they are so heavily loaded with such freight as to exceed six thousand (6,000) pounds gross weight and shall never include any passenger-carrying vehicle.

Gross weight shall mean the weight of a vehicle and/or combination of vehicles without load on all axles including the steering axle plus the weight of any load thereon.

Height shall mean the total vertical dimension of any vehicle above the ground surface, including any load and load-holding devices thereon.

High-pressure pneumatic tire means a pneumatic tire designed for use and used when inflated with air to one hundred twenty (120) pounds per square inch pressure or more.

Highway shall mean the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel, including bridges, causeways, tunnels and ferries; synonymous with the word "street."

House trailer shall mean a trailer or semitrailer which is designed, constructed and equipped as a dwelling place, living abode or sleeping place (either permanently or temporarily) and is equipped for use as a conveyance on streets and highways, or a trailer or a semitrailer whose chassis and exterior shell is designed and constructed for use as a house trailer, as defined above, but which is used instead permanently or temporarily for the advertising, sales, display or promotion of merchandise or services, or for any other commercial purpose except the transportation of property for hire or the transportation of property for distribution by a private carrier.

Intersection shall mean the area embraced within the prolongation or connection of the lateral curb lines, or if none, then the lateral boundary lines of the roadways of two (2) highways which join one another at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict. Where a highway includes two (2) highways thirty (30) feet or more apart, then every crossing of such divided highway by an intersecting highway shall be regarded as a separate intersection. If such intersecting highway also includes two (2) highways thirty (30) feet or more apart, then every crossing of two (2) highways of such highways shall be regarded as a separate intersection. The junction of an alley with a street or highway shall not constitute an intersection.

Interstate highway shall mean a fully controlled access highway which is a part of the national system of interstate and defense highways.

Laned roadway or *highway* shall mean a roadway or highway which is divided into two (2) or more clearly marked lanes for vehicular traffic.

Length shall mean the total longitudinal dimension of a single vehicle, a trailer or a semitrailer. Length of a trailer or semitrailer is measured from the front of the cargo-carrying unit to its rear and includes load-holding devices thereon.

Light trailer shall mean the total longitudinal dimension of a single vehicle, a trailer or a semitrailer; length of a trailer or semitrailer type having a loaded gross weight of not more than five hundred (500) pounds.

Load shall mean a weight or quantity of anything resting upon something else regarded as its support.

Local municipal authority means every council, commission or other board given authority by the constitution and laws of this state to govern the affairs of a municipality.

Local parish authority means every police jury, commission, council or other board given authority by the constitution and laws of this state to govern the affairs of a parish of this state.

Low-pressure pneumatic tire shall mean a pneumatic tire designed for use and used when inflated with air to less than one hundred twenty (120) pounds per square inch pressure.

Metal tire shall mean every tire, the surface of which is in contact with the highway is wholly or partly of metal or other hard, nonresilient material.

Mobile home shall mean: (a) a trailer or semitrailer which is designed, constructed and equipped as a dwelling place, living abode or sleeping place, either permanently or temporarily, and is equipped for use as a conveyance on highway; or (b) a trailer or semitrailer whose chassis and exterior shell is designed and constructed for use as a mobile home, as defined in (a), but which is used instead permanently or temporarily for the advertising, sales, display or promotion of merchandise or services, or for any other commercial purpose except the transportation of property for hire or the transportation of property for distribution by a private carrier.

Motor carrier shall mean any person owning, controlling, managing, operating or causing to be used or operated any motor-propelled vehicle used in the business of transportation of persons or property for hire, over the public highways of this state, whether as common carrier, contract or charter carrier, or as a transportation agency, or however utilizing public facilities.

Motor vehicle shall mean every vehicle which is self-propelled, and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails, but excluding a motorized bicycle.

Motorcycle shall mean every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three (3) wheels in contact with the ground, but excluding a tractor and excluding a motorized bicycle.

Motor-driven cycle shall mean every motorcycle, including every motor scooter, with a motor which produces not to exceed five (5) brake horsepower, and every bicycle with a motor attached.

Motorized bicycle shall mean a pedal bicycle which may be propelled by human power or helper motor, or by both, with a motor rated no more than one and one-half (1.5) brake horsepower, a cylinder capacity not exceeding fifty (50) cubic centimeters, an automatic transmission, and which proceeds a maximum design speed of not more than twenty-five (25) miles per hour on a flat surface.

Multiple-lane highway shall mean any highway with two (2) or more clearly marked lanes for traffic in each direction.

Municipality means an incorporated village, town or city created under the authority of the constitution or laws of this state.

Negligence means the failure to act as a reasonable prudent person would have acted under similar circumstances.

Operator shall mean every person, other than a chauffeur, who drives or is in actual physical control of a motor vehicle upon a highway or who is exercising control over or steering a vehicle being towed by a motor vehicle.

Owner shall mean a person who holds a legal title to a vehicle or in the event a vehicle is the subject of an agreement for the conditional sale, lease or transfer of possession thereof with the right of purchase upon the performance of the conditions stated in the agreement, with the right of immediate possession in the vendee, lessee, possessor or in the event such similar transaction is had by means of mortgage and the mortgagor of a vehicle is entitled to possession, then the conditional vendee, lessee, possessor or mortgagor shall be deemed the owner for the purposes of this chapter.

Park or *parking* shall mean the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading merchandise or passengers.

Parking area shall mean an area used by the public as a means of access to and egress from, and for the free parking of motor vehicles by

patrons of a shopping center, business, factory, hospital, institution, or similar building or location.

Parking infraction shall mean a violation of any duly enacted law or ordinance that regulates the stopping, standing or parking of vehicles.

Parking-control devices shall mean all signs, signals, markings and devices placed or erected by authority of the chief traffic engineer for the purpose of authorizing, regulating or prohibiting parking, standing or stopping.

Passenger car means any passenger car required to be equipped with safety belts by Federal Motor Vehicle Standard No. 208 (49 CFR 571.208).

Passenger curb loading zone shall mean a place adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials.

Pavement structure shall mean the combination of subbase, base course and surface course placed on an earth subgrade to support the traffic load and distribute it to the roadbed.

Pedestrian shall mean any person afoot.

Person shall mean a human being from the moment of fertilization and implementation and also includes a body of persons, whether incorporated or not.

Pneumatic tire shall mean every tire of rubber or other resilient material which depends upon compressed air for support of a load.

Pole trailer shall mean every vehicle without motive power, designed to be drawn by another vehicle and attached to the towing vehicle by means of a reach or pole, or by being boomed or otherwise secured to the towing vehicle, and ordinarily used for transporting long or irregularly shaped loads such as poles, pipes or structural members capable, generally, of sustaining themselves as beams between the supporting connections.

Police officer shall mean every officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

Private road or *driveway* shall mean every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

Property shall mean both public and private property, movable and immovable, and corporeal and incorporeal property.

Public officer, public office, public employee, or *position of public authority* shall mean and applies to any executive, ministerial, administrative, judicial or legislative officer, office employee, or position of authority, respectively, of the state or any parish, municipality, district or other political subdivision. Unless otherwise specified, local references are to those who function in the city or parish.

Quadrum axle shall mean any four (4) consecutive axles whose centers are more than forty (40) inches but not more than ninety-six (96) inches apart, and are designed to equalize the load between axles.

Railroad means a carrier of persons or property upon cars, other than streetcars, operated upon stationary rails.

Railroad sign or *signal* shall mean any sign, signal or device erected by authority of a public body or official or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.

Railroad train shall mean a steam or diesel engine, electric or other motor, with or without cars coupled thereto, operated upon rails.

Regular operation means movement over highways of vehicles, combinations of vehicles, and loads thereon, subject to the limitations contained in this section governing maximum weights and dimensions for motor vehicles and loads thereon.

Residence district shall mean the territory contiguous to and including a highway not comprising a business district when the property or such highway for a distance of three hundred (300) feet or more is in the main improved with residence or residences and buildings in use for business.

Right-of-way shall mean the right of one vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed and proximity as to give rise to danger of collision unless one grants precedence to the other.

Road tractor shall mean every motor vehicle designed, constructed or used either by itself or for drawing other vehicles used in the construction and maintenance of roads, highways or streets, and not so constructed as to carry any load thereon, either independently or as a part of the weight of a vehicle or load so drawn.

Roadway shall mean that portion of a highway, improved, designed or ordinarily used for vehicular travel, exclusive of the berm or shoulder. If a highway includes two (2) or more separate roadways, the term "roadway" as used herein shall refer to any such roadway separately but not to all such roadways collectively.

Rotary traffic island shall mean any circular area of ground, surrounded by a highway or roadway which is designed to prevent the crossing of traffic on four (4) or more otherwise intersecting highways, in order to require all traffic approaching it to proceed for some distance around a portion of the island before entering one of the intersecting highways and to prevent left-hand turns onto such otherwise intersecting highways.

Safety zone shall mean the area or space officially set apart within a highway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

School bus shall mean every motor vehicle, whether publicly or privately owned, that complies with the color, equipment and identification requirements under state law and is used to transport children to and from school or in connection with school activities, but not including buses operated by common carriers in urban transportation of school children.

(a) *Type I school bus* shall mean any school bus designed to carry more than sixteen (16) pupils at one time.

(b) *Type II school bus* shall mean any school bus designed to carry sixteen (16) or less pupils at one time.

School zone shall mean streets within the vicinity of school grounds, and so designated by the chief traffic engineer.

Seat belt means the manual restraint system installed by the manufacturer as required by Federal Motor Vehicle Standard No. 208 which became effective January 1, 1968.

Semitrailer shall mean every vehicle, with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

Shoulder shall mean the portion of the highway contiguous with the roadway for accommodation of stopped vehicles, for emergency use, and for lateral support of base and surface.

Sidewalk shall mean that portion of a highway between the curblines, or the lateral lines of a highway, and the adjacent property lines, intended for the use of pedestrians.

Single axle shall mean an assembly of two (2) or more wheels, whose centers are in one (1) transverse vertical plane or may be included between two (2) parallel transverse vertical planes forty (40) inches apart extending across the full width of the vehicle.

Single-axle weight shall mean the total weight transmitted to the road by a single axle.

Special permit means a written authorization to move or operate on a highway a vehicle or combination of vehicles with indivisible load of size and/or weight exceeding the limits prescribed for vehicles in regular operation.

Special permit applicant means an individual, firm, partnership, corporation or association making application for a special permit to transport a vehicle, combination of vehicles, and/or load which is oversize or overweight and under whose authority and responsibility such vehicle or load is transported.

Stand or *standing* shall mean the halting of a vehicle, whether occupied or not, other than temporarily for the purpose of and while actually engaged in receiving or discharging passengers.

State-maintained highway shall mean any highway in this state which is contained in the state highway system as defined by law or which is maintained by the department.

Steering axle shall mean the axle of a motor vehicle or combination of vehicles by which the same is guided or steered.

Stop shall mean, when required, the complete cessation from movement.

Stopping shall mean, when prohibited, any halting even momentarily of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal.

Street shall mean the entire width between the boundary lines of every way or place of whatever nature publicly maintained and open to the use of the public for the purpose of vehicular travel, including bridges, causeways, tunnels and ferries; synonymous with the word "highway".

Tandem axle shall mean any two (2) consecutive axles whose centers are more than forty (40) inches but not more than ninety-six (96) inches apart, and are designed to equalize the load between axles.

Tandem truck shall mean every motor-propelled single vehicle designed for the conveyance of property or things for hauling purposes and having one (1) front or steering axle and two (2) rear or load-carrying axles, every though one (1) of the load-carrying axles is not permanently affixed to the frame of the vehicle and may be removed.

Tandem-axle weight shall mean the total weight transmitted to the road by a tandem axle.

Through highway shall mean every highway or portion thereof on which vehicular traffic is given preferential right-of-way, and at the entrances to which vehicular traffic from intersecting highways is required by law to yield the right-of-way to vehicles on such through highway in obedience to either a stop sign or a yield sign, when such signs are erected as provided in this chapter.

Traffic shall mean pedestrians, ridden or herded animals, vehicles and other conveyances, either singly or together, while using any highway for purposes of travel.

Traffic division shall mean the traffic division of the city police department.

Traffic-control device shall mean all signs, signals, markings and devices, not inconsistent with this chapter, placed or erected by authority of the chief traffic engineer for the purpose of regulating, warning or guiding traffic.

Traffic-control signal shall mean a type of highway traffic signal, manually, electrically or mechanically operated, by which traffic is alternately directed to stop and permitted to proceed.

Trailer shall mean every vehicle, with or without motive power, other than a pole trailer, designed for carrying persons or property wholly on its own structure, and for being drawn by a motor vehicle, and so constructed that no part of its weight rests upon the towing vehicle and having two (2) or more load-carrying axles.

Tridum axle shall mean any three (3) consecutive axles whose centers are more than forty (40) inches but not more than ninety-six (96) inches apart, and are designed to equalize the load between axles.

Tridum-axle weight shall mean the total weight transmitted to the road by a tridum axle.

Truck shall mean every motor-propelled single vehicle for the conveyance of property or things for hauling purposes and having one (1) front steering axle and one (1) rear or load-carrying axle.

Truck-tractor shall mean every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of the vehicle and load drawn.

Turning path shall mean the path of a designated point on a vehicle making a specified turn.

Turning tract width shall mean the radial distance between the turning paths of the outside of the outer front tire and the outside of the rear tire which is nearest the center of the turn.

Urban district shall mean the territory contiguous to and including any street which is built up with structures devoted to business, industry or dwelling houses situated at intervals of less than one hundred (100) feet for a distance of a quarter of a mile or more.

Vehicle shall mean every device by which persons or things may be transported upon a public highway or bridge, except devices moved by human power or used exclusively upon stationary rails or tracks. A bicycle or a ridden animal shall be a vehicle, and a trailer or semitrailer shall be a separate vehicle.

Watercraft shall mean any craft for transport upon water.

Width shall mean the total outside transverse dimension of a vehicle, including any load or load-holding devices thereon but excluding approved safety devices and tire bulge due to load.

Whoever shall mean, in a penalty clause, only natural persons insofar as imprisonment is provided, but insofar as a fine or monetary penalty may be imposed, "whoever" in a penalty clause shall mean any person.
(City Code 1951, Title 11, § 1; Ord. No. 7504, § 1, 4-25-84; Ord. No. 8341, 1-14-87; Ord. No. 9441, § 1, 6-10-92; Ord. No. 18599, § 1, 8-10-22)

State law reference—Similar definitions, R.S. 32:1.

CHAPTER 2. TRAFFIC ADMINISTRATION*

Secs. 11:2, 11:3. Reserved.

Editor's note—Ord. No. 10564, § 1, adopted January 24, 1996, amended the Code by repealing §§ 11:2 and 11:3 in their entirety. Former § 11:2 pertained to police administration and derived from the City Code of 1951, Title 11, § 2. Former § 11:3 pertained to duty of traffic division, and derived from the City Code of 1951, Title 11, § 3.

Sec. 11:4. Records of traffic violations.

(a) The city court traffic division shall keep a record of all violations of the traffic ordinance of this city or of the state vehicle laws of which any person has been charged, together with a record of the final disposition of all such alleged offenses. Such record shall be so maintained as to show all types of violations and the total of each. Such record shall accumulate during at least a three-year period and from that time on the record shall be maintained complete for at least the most recent three-year period.

(b) All forms for records of violations and notices of violations shall be serially numbered. For each month and year, a written record shall be kept available to the public showing the disposal of all such forms.

(c) All such records and reports shall be public records.
(City Code 1951, Title 11, § 4; Ord. No. 10564, § 2, 1-24-96)

Sec. 11:5. Reserved.

Editor's note—Ord. No. 10564, § 1, adopted January 24, 1996, amended the Code by repealing § 11:5 in its entirety. Former § 11:5 pertained to investigation of accidents by the traffic division, and derived from the City Code of 1951, Title 11, § 5.

*__Cross reference—__Municipal and parish organization, Title 1.

Sec. 11:6. Traffic accident studies.

Whenever the accidents at any particular location become numerous, the traffic records division of the Baton Rouge Police Department shall cooperate with the traffic engineer in conducting studies of such accidents and determining remedial measures.
(City Code 1951, Title 11, § 6; Ord. No. 10564, § 3, 1-24-96)

Sec. 11:7. Traffic accident reports.

The traffic records division of the Baton Rouge Police Department shall maintain a suitable system of filing traffic accident reports. Accident reports or cards referring to them shall be filed alphabetically or computerized by location. Such reports shall be available for the use of the traffic engineer, and the court.
(City Code 1951, Title 11, § 7; Ord. No. 10564, § 4, 1-24-96)

Sec. 11:8. Drivers' files to be maintained.

(a) The city court traffic division shall maintain a suitable record of all traffic violations reported for each driver, which shall be filed alphabetically under the name of the driver concerned.

(b) Such records shall be available for use by the city police to study the cases of all the drivers charged with frequent or serious violations of the traffic laws and shall attempt to discover the reasons therefor, and shall take whatever steps are lawful and reasonable to prevent the same or to have the licenses of such persons suspended or revoked.

(c) Such records shall accumulate during at least a three-year period and from that time on such records shall be maintained complete for at least the most recent three-year period exclusive of DWI violations which shall be maintained for at least ten (10) years.
(City Code 1951, Title 11, § 8; Ord. No. 10564, § 5, 1-24-96)

Sec. 11:9. Reserved.

Editor's note—Ord. No. 10564, § 1, adopted January 24, 1996, amended the Code by repealing § 11-9 in its entirety. Former § 11-9 pertained to annual traffic-safety report submitted by the traffic division, and derived from the City Code of 1951, Title 11, § 9.

Sec. 11:10. Traffic division to designate method of identifying funeral processions.

The city council shall designate laws of types of pennants or other identifying insignia to be displayed upon, or other method to be employed to identify, the vehicles used to escort and vehicles in funeral processions.
(City Code 1951, Title 11, § 10; Ord. No. 10564, § 6, 1-24-96)

Sec. 11:11. Traffic engineer. (City)

(a) The office of traffic engineer is hereby established in the department of public works. The traffic engineer shall be appointed by the director of public works in accordance with the provisions of Chapter 9 of the Plan of Government and the rules relating to classified personnel. He shall possess such qualifications as may be prescribed by the personnel administrator.

(b) It shall be the general duty of the traffic engineer to determine the installation and proper timing and maintenance of traffic-control devices, to conduct engineering analyses of traffic accidents and to devise remedial measures, to conduct engineering investigation of traffic conditions, to plan the operation of traffic on the streets and highways of this city, and to cooperate with other city officials in the development of ways and means to improve traffic conditions, and to carry out the additional powers and duties imposed by ordinances of this city.
(City Code 1951, Title 11, § 11)

Sec. 11:12. Emergency and experimental regulations. (City)

(a) The chief of police, by and with the approval of the traffic engineer, is hereby authorized to make and promulgate such regulations as may be necessary to make more effective the provisions of this title, and each of such officers is hereby empowered to make and enforce temporary to experimental regulations to cover emergencies or special conditions. To the end of insuring proper traffic regulations, the chief of police and the traffic engineer shall coordinate, insofar as possible, the exercise of authority granted by this section.

(b) The traffic engineer may test traffic-control devices under actual conditions of traffic.
(City Code 1951, Title 11, § 12)

Sec. 11:13. Traffic commission; powers and duties. (City)

(a) There is hereby established a traffic commission to serve without compensation, consisting of the traffic engineer, the chief of police or in his discretion as his representative the chief of the traffic division, the chairman of the council traffic committee, and one (1) representative each from the engineer's office, and the parish attorney's office and such number of other officers and representatives of unofficial bodies as may be determined and appointed by the mayor-president. The chairman of the commission shall be appointed by the mayor-president and may be removed by him.

(b) It shall be the duty of the traffic commission, and to this end it shall have the authority within the limits of the funds at its disposal, to coordinate traffic activities, to carry on educational activities in traffic matters, to supervise the preparation and publication of traffic reports, to receive complaints having to do with traffic matters, and to recommend to the council and to the traffic engineer, the chief of the traffic division, and other city officials ways and means for improving traffic conditions and the administration and enforcement of traffic regulations.
(City Code 1951, Title 11, § 13)

Sec. 11:14. Officials' coordinating safety committee, its powers and duties. (City)

(a) There is hereby established an "officials' coordinating safety committee" composed of the following public officials: the mayor-president, the mayor-pro tempore or a member of the council designated by him, the city court judges, the chief of police, the inspector of the traffic division, the director of public works, the traffic engineer, and the parish attorney.

(b) The mayor-president shall serve as chairman of the committee. The committee may desig-

nate such other officers as it deems necessary for proper operation and shall hold regular meetings not less than once a month.

(c) The committee shall coordinate and reinforce the individual activities of the official agencies and collectively develop the official traffic safety program; and shall utilize the services and support of the appropriate citizens' safety organizations for improvement of traffic safety and relief of traffic congestion.
(City Code 1951, Title 11, § 14)

CHAPTER 3. ENFORCEMENT AND OBEDIENCE TO TRAFFIC REGULATIONS

Sec. 11:20. Authority of police and fire department officials. (City)

(a) It shall be the duty of the officers of the police department or such officers as are assigned by the chief of police to enforce all street traffic laws of this city and all of the state vehicle laws applicable to street traffic in this city.

(b) Officers of the police department or such officers as are assigned by chief of police are hereby authorized to direct all traffic by voice, hand or signal in conformance with traffic laws, provided that in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require notwithstanding the provisions of the traffic laws.

(c) Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.
(City Code 1951, Title 11, § 20)

Cross references—Fire protection, Title 5; organization of fire department, § 5:100 et seq.

Sec. 11:21. Required obedience to traffic title.

Except as otherwise specifically provided herein, it is unlawful for any person to do any act forbidden or fail to perform any act required by this title.

Unless another penalty is expressly provided, whoever is convicted of a provision of this title shall be punished by a fine of not more than one thousand dollars ($1,000.00), or by imprisonment for not more than six (6) months, or both.
(City Code 1951, Title 11, § 21; Ord. No. 7504, § 2, 4-25-84; Ord. No. 8763, § 1, 10-12-88)

State law reference—Misdemeanor violation with penalty of more than $500.00 requires jury trial, C.Cr.P. Art. 779(A).

Sec. 11:22. Obedience to police and fire department officials. (City)

No person shall wilfully fail or refuse to comply with any lawful order or direction of a police officer or fire department official.
(City Code 1951, Title 11, § 22)

Cross reference—Organization of fire department, § 5:100 et seq.

State law reference—Obedience to police officers, R.S. 32:56.

Sec. 11:23. Certain nonmotorized traffic to obey traffic regulations. (City)

(a) Every person propelling any push cart upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this title and by the rules of the road of the state vehicle code, except those provisions which by their very nature have no application.

(b) Every person riding an animal or driving any animal drawn vehicle upon a road shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this title, except those provisions of this title which by their very nature can have no application.
(City Code 1951, Title 11, § 23)

State law reference—Similar provisions, R.S. 32:22.

Sec. 11:24. Use of coasters roller skates and similar devices restricted. (City)

No person upon roller skates, or riding in or by means of any coaster, toy vehicle or similar device, shall go upon any roadway except while crossing a street on a crosswalk and when so crossing such person shall be granted all of the rights and shall be subject to all of the duties

applicable to pedestrians. This section shall not apply upon any street while set aside as a play street as authorized herein.
(City Code 1951, Title 11, § 24)

Sec. 11:25. Public employees to obey traffic regulations. (City)

The provisions of this title shall apply to the drivers of all vehicles owned or operated by the United States, this state, or any parish, town, district, or any other political subdivision of the state, subject to such specific exceptions as are set forth in this title or in the state vehicle code.
(City Code 1951, Title 11, § 25)

Sec. 11:26. Authorized emergency vehicles. (City)

(a) The driver of an authorized emergency vehicle, when responding to an emergency call or when in pursuit of an actual or suspected violator of the law, or when responding to but not when returning from a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated:

(b) The driver of an authorized emergency vehicle may:

(1) Park or stand, irrespective of the provisions of this title:

(2) Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation;

(3) Exceed the stated speed limit, but not by more than ten (10) miles per hour; except that this shall not apply to police vehicles when in pursuit of other vehicles or in other emergencies, so long as the driver does not endanger life or property;

(4) Disregard regulations governing direction of movement or turning in specified directions.

(c) The exemptions herein granted to an authorized emergency vehicle shall apply only when the driver of the vehicle while in motion sounds audible signal by bell, siren or exhaust whistle, as may be reasonably necessary, and when the vehicle is equipped with at least one (1) lighted emergency light displaying a flashing red or blue light visible under normal atmospheric conditions from a distance of five hundred (500) feet to the front of the vehicle, except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a red or blue light visible from the front of the vehicle.

(d) The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of other persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others.
(City Code 1951, Title 11, § 26)

Cross reference—Private ambulances generally, § 10:101 et seq.

State law reference—Similar provisions, R.S. 32:24.

Sec. 11:27. Barricades, signs and signals; prohibition against tampering with and violating instructions. (City)

(a) No one shall in any way tamper with, move, damage or destroy any barricade, sign or signal placed upon any street by the department of public works or by any contractor or subcontractor doing street construction or repair work under or by authority of the department, or by any railroad company; nor shall any person disobey the instructions, signals, warnings or marking or any warning signs, signals or barricades so placed upon any highway under construction or being repaired; nor shall any person drive around or through any barricade or fence placed upon any closed street by the department or any contractor or subcontractor doing street construction or repair work under or by authority of the department, unless at the time otherwise directed by a police officer.

(b) Provisions of this section shall not apply to employees of the department of public works or any contractor or subcontractor or other person whose proper and lawful duties require them to go on any portion of the street which is under construction or in the process of being repaired and is, therefore, barricaded or closed as above said.

(c) It shall be unlawful for any person to operate any vehicle in any place where signs or barricades have been officially placed as provided in subsection (a) to prohibit such operations.
(City Code 1951, Title 11, § 27; City Ord. No. 4747, § 1, 8-25-82; Ord. No. 7191, § 1, 6-22-83; Ord. No. 7504, § 3, 4-25-84)

State law reference—Similar provisions, R.S. 32:237.

Sec. 11:28. Barricades, signs and signals; prohibition against tampering with and violating instructions. (Parish)

No one shall in any way tamper with, move, damage or destroy any barricade, sign or signal placed upon any street by the department of public works or by any contractor or subcontractor doing street construction or repair work under or by authority of the department, or by any railroad company; nor shall any person disobey the instructions, signals, warnings or marking or any warning signs, signals or barricades so placed upon any highway under construction or being repaired; nor shall any person drive around or through any barricade or fence placed upon any closed street by the department or any contractor or subcontractor doing street construction or repair work under or by authority of the department, unless at the time otherwise directed by a police officer.
(Ord. No. 7202, 6-22-83)

State law reference—Similar provisions, R.S. 32:237.

Sec. 11:29. Barricades, signs and signals placed by law enforcement officers; prohibition against tampering with and violating instructions.

No one shall in any way tamper with, move, damage or destroy any barricade, sign or signal placed upon any street by any law enforcement officer; nor shall any person disobey the instructions, signals, warnings or marking of any warning signs, signals or barricades so placed upon any street; nor shall any person drive around or through any barricade or fence placed upon any street by a law enforcement officer; nor shall any person operate any vehicle in any place where signs or barricades have been officially placed as provided in this section.
(Ord. No. 9875, § 1, 4-27-94)

CHAPTER 4. ACCIDENTS AND ACCIDENT REPORTS*

Sec. 11:30. Immediate notice of accidents. (City)

(a) The driver of a vehicle involved in an accident resulting in injury to or death of any person, or total damage to all property to an apparent extent of five hundred dollars ($500.00) or more, shall immediately by the quickest means of communication give notice of such accident to the police department if such accident occurs within the city.

(b) Whenever the driver of a vehicle is physically incapable of giving an immediate notice of an accident as required in subsection (a), and there was another occupant in the vehicle at the time of the accident capable of doing so, such occupant shall make or cause to be given the notice not given by the driver.
(City Code 1951, Title 11, § 30; Ord. No. 7635, § 1, 8-22-84; Ord. No. 10747, § 1, 10-23-96)

Sec. 11:31. Reserved.

Editor's note—Ord. No. 10746, § 1, adopted October 23, 1996, amended the Code by repealing § 11:31 in its entirety. Former § 11:31 pertained to written reports of accidents by drivers or owners, and derived from the City Code of 1951, Title 11, § 31.

Sec. 11:32. Written accident reports confidential. (City)

(a) All written reports required in this chapter to be forwarded to the police department by drivers or owners of vehicles involved in accidents shall be without prejudice to the individual so reporting and shall be for the confidential use of the department or other governmental agencies having use for the records for accident prevention purposes, except that the department may disclose the identity of a person involved in an

*State law reference—Accident reports, R.S. 32:398.

accident when such identity is not otherwise known or when such person denies his presence at such accident.

(b) No written reports forwarded under the provisions of this chapter shall be used as evidence in any trial, civil or criminal, arising out of an accident except that the department shall furnish upon demand of any party to such trial, or upon demand of any court, a certificate showing that a specified accident report has or has not been made to the department in compliance with law, and if such report has been made, the date, time and location of the accident, the names and addresses of the drivers, the owners of the vehicles involved, and the investigating officers. The reports may be used in evidence when necessary to prosecute charges filed in connection with a violation of section 11:33.
(City Code 1951, Title 11, § 32)

Sec. 11:33. False reports. (City)

Any person who gives information in oral or written reports as required in this chapter knowing or having reasons to believe that such information is false, shall be fined, upon conviction, no more than two hundred dollars ($200.00), or imprisoned for not more than sixty (60) days, or both.
(City Code 1951, Title 11, § 33)

Sec. 11:34. Hit-and-run driving. (City)

(a) Hit-and-run driving is the intentional failure of the driver of a vehicle involved in or causing an accident to stop such vehicle at the scene of the accident, to give his identity, and to render reasonable aid.

(b) To give his identity for the purpose of this section means that the driver of any vehicle involved in any accident shall give his name, address and the license number of his vehicle, or shall report the accident to the police.

(c) The offense of failure to report an accident shall be a responsive verdict to a charge of hit-and-run.

(d) Whoever commits a crime of hit-and-run driving shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than one hundred eighty (180) days, or both.
(City Code 1951, Title 11, § 34; Ord. No. 8567, § 1, 12-9-87)

State law reference—Similar provisions, R.S. 14:100.

Sec. 11:35. Removal of motor vehicles after an accident from an interstate or four-lane highway.

In the event of a motor vehicle accident on an interstate or four-lane highway, if the driver is not prevented by injury and the vehicle is not disabled by the accident, or the accident has not resulted in injury or death of any person, the driver shall remove the vehicle from the travel lane of the highway to the nearest safe shoulder. Compliance with the provisions of this section shall in no way be interpreted as a violation of requirements to remain at the scene of an accident as provided for in section 11:34.
(Ord. No. 10745, § 1, 10-23-96)

CHAPTER 5. TRAFFIC-CONTROL DEVICES*

Sec. 11:40. Authority to install traffic-control devices. (City)

The traffic engineer shall place and maintain official traffic-control devices when and as required under the traffic ordinances of this city to make effective the provisions of such ordinances, and may place and maintain such additional official traffic-control devices as he may deem necessary to regulate, warn or guide traffic under the traffic ordinance of this city or under state law.
(City Code 1951, Title 11, § 40)

Sec. 11:41. Reserved.
(Ord. No. 7323, 10-26-83)

***Editor's note**—Ord. No. 7323, adopted Oct. 26, 1983, renumbered §§ 11:41—11:52 as 11:42—11:53, leaving § 11:41 blank.

State law reference—Signs, markers and signals, R.S. 32:231 et seq.

Sec. 11:42. Obedience to official traffic-control devices. (City)

The driver of any vehicle shall obey the instructions of any official traffic-control device applicable thereto placed in accordance with the provisions of this title, unless otherwise directed by a traffic or police officer, subject to the exceptions granted the driver of an authorized emergency vehicle.

(City Code 1951, Title 11, § 42; Ord. No. 7323, 10-26-83)

State law reference—Similar provisions, R.S. 32:231(A).

Sec. 11:43. When official traffic-control devices required for enforcement purposes. (City)

No provisions of this title for which official traffic-control devices are required shall be enforced against an alleged violator if at the time and place of the alleged violation, an official device is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that official traffic-control devices are required, such section shall be effective even though no devices are erected or in place.

(City Code 1951, Title 11, § 43; Ord. No. 7323, 10-26-83)

State law reference—Similar provisions, R.S. 32:231(B).

Sec. 11:44. Official traffic-control devices, presumption of legality. (City)

(a) Whenever official traffic-control devices are placed in position approximately conforming to the requirements of this title, such devices shall be presumed to have been so placed by the official act or direction of lawful authority, unless the contrary shall be established by competent evidence.

(b) Any official traffic-control device placed pursuant to the provisions of this title and purporting to conform to the lawful requirements pertaining to such devices shall be presumed to comply with the requirements of this title, unless the contrary shall be established by competent evidence.

(City Code 1951, Title 11, § 44; Ord. No. 7323, 10-26-83)

Sec. 11:45. Traffic-control signals. (City)

Whenever traffic is controlled by traffic-control signals exhibiting different colored lights, or colored lighted arrows, successively one at a time or in combination, only the colors green, red and yellow shall be used, and such lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

(1) Green indication:

a. Vehicular traffic facing a circular green signal may proceed straight through or turn right or left, unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

b. Vehicular traffic facing a green arrow-signal, shown alone or in combination with another indication, may cautiously enter the intersection and make such

movement as indicated by such arrow, or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

c. Unless otherwise directed by a pedestrian-control signal as provided in section 11:45, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.

(2) Steady yellow indication:

a. Vehicular traffic facing a steady yellow signal alone is thereby warned that the related green signal is being terminated or that a red signal will be exhibited immediately thereafter and such vehicular traffic shall not enter or be crossing the intersection when the red signal is exhibited.

b. Unless otherwise directed by a pedestrian-control signal as provided in section 11:45, a pedestrian facing a steady yellow signal is thereby advised that there is insufficient time to cross the roadway before a red signal is exhibited and no pedestrian shall then start to cross the roadway.

(3) Steady red indication:

a. Vehicular traffic facing a steady circular red signal alone shall stop at a clearly marked stop line, or if none, then before entering the crosswalk on the near side of the intersection, or if none, then before entering the intersection, and shall remain standing until an indication to proceed is shown, except as provided in subsection (3)c.

b. Vehicular traffic facing a steady red arrow signal shall not enter the intersection to make the movement indicated by the arrow and, unless entering the intersection to make a movement permitted by another signal, shall stop at a clearly marked stop line, or if none, then before entering the crosswalk on the near side of the intersection, or if none, then before entering the intersection, and shall remain standing until an indication permitting the movement indicated by such red arrow is shown, except as provided in subsection (3)c.

c. Except when a sign prohibits a turn, vehicular traffic facing any steady red signal may cautiously enter the intersection to turn right, or to turn left from a one-way street into a one-way street, after stopping as required by subsections (3)a. or (3)b. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

(4) Unless otherwise directed by a pedestrian-control signal as provided in section 11:45, a pedestrian facing a steady circular red or red arrow signal shall not enter the roadway.

(5) If an official traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this section shall be applicable except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking, the stop shall be made at the signal.

(6) A motorist approaching a traffic signal which does not have any signal lens illuminated shall come to a full and complete stop before entering the intersection and shall proceed through the intersection only after being sure it is safe to do so.

(City Code 1951, Title 11, § 45; Ord. No. 7323, 10-26-83)

State law reference—Similar provisions, R.S. 32:232.

Sec. 11:46. Pedestrian-control signals. (City)

Whenever special pedestrian-control signals exhibiting the words "Walk" or "Don't Walk" are in place, such signals shall indicate as follows:

(1) *Flashing* or *steady "Walk:"* A pedestrian facing the signal may proceed across the roadway in the direction of the signal and shall be given the right-of-way by a driver of a vehicle.

(2) *Flashing* or *steady "Don't Walk:"* No pedestrian shall start to cross the roadway in the direction of the signal, but a pedestrian who has partially completed his crossing on the "Walk" signal shall proceed to a sidewalk or safety island while the "Don't Walk" signal is showing.

(City Code 1951, Title 11, § 46; Ord. No. 7323, 10-26-83)

State law reference—Similar provisions, R.S. 32:233.

Sec. 11:47. Flashing signals. (City)

(a) Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal it shall require obedience by vehicular traffic as follows:

(1) *Flashing red (stop signal):* When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, or if none, then before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(2) *Flashing* or *continuous yellow (caution signal):* When a yellow lens is continuously lighted or is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

(b) This section shall not apply at railroad grade crossings. Conduct of the drivers of vehicles approaching railroad grade crossings shall be governed by the rules set forth in section 11:110 entitled "obedience to signal indicating approach of train."

(City Code 1951, Title 11, § 47; Ord. No. 7323, 10-26-83)

State law reference—Similar provisions, R.S. 32:234.

Sec. 11:48. Display of unauthorized signs, signals or markings. (City)

(a) No person shall place, maintain or display upon or in view of any highway any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of an official traffic-control device or any railroad sign or signal.

(b) No person shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising.

(c) This section shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

(d) Every such prohibited sign, signal or marking is hereby declared to be a public nuisance and the police department is hereby empowered to remove the same or cause it to be removed without notice.

(City Code 1951, Title 11, § 48; Ord. No. 7323, 10-26-83)

State law reference—Similar provisions, R.S. 32:236.

Sec. 11:49. Interference with official traffic-control devices or railroad signs or signals. (City)

No person shall, without lawful authority, attempt to or in fact alter, deface, injure, knock down or remove any official traffic-control device or any railroad sign or signal or inscription, shield or insignia thereon, or any other part thereof.

(City Code 1951, Title 11, § 49; Ord. No. 7323, 10-26-83)

Sec. 11:50. Authority to establish play streets. (City)

The traffic engineer shall have the authority to declare any street or part thereof a play street

and to place appropriate signs or devices in the roadway indicating and helping to protect the same.
(City Code 1951, Title 11, § 50; Ord. No. 7323, 10-26-83)

Sec. 11:51. Play streets; effect of designation. (City)

Whenever authorized signs are erected indicating any street or part thereof as a play street, no person shall drive a vehicle upon any such street or portion thereof except drivers of vehicles having business or whose residences are within such closed area, and then any such driver shall exercise the greatest care in driving upon any such street or portion thereof.
(City Code 1951, Title 11, § 51; Ord. No. 7323, 10-26-83)

Sec. 11:52. Chief traffic engineer to designate crosswalks, and to establish safety zones and school crosswalks.

The chief traffic engineer is hereby authorized:

(1) To designate and maintain, by appropriate devices, marks or lines upon the surface of the roadway, crosswalks at intersections where in his opinion there is particular danger to pedestrians crossing the roadway, and at such other places as he may deem necessary;

(2) To establish safety zones of such kind and character and at such places as he may deem necessary for the protection of pedestrians;

(3) To establish school crosswalks at places throughout the city where, in his opinion, they are necessary, because of traffic conditions, the proximity of schools to streets, or because of their use as a means of access to and from any school location and areas of population adjacent thereto. Such school crosswalks, and a distance to be determined by the chief traffic engineer on either side thereof, shall constitute "school zones" as defined herein, and shall be subject to such speed limits, or other traffic regulations as determined by the chief traffic engineer. For the purposes of properly designating any such school crosswalks and the distances adjacent thereto as provided for herein, the chief traffic engineer shall cause appropriate signs, signals or other devices as may be required or necessary to be erected for the purpose of adequately apprising traffic of the existence of such zones, and to safeguard the school children using the same.

(City Code 1951, Title 11, § 52; Ord. No. 7323, 10-26-83; Ord. No. 18599, § 1, 8-10-22)

Sec. 11:53. Traffic lanes. (City)

(a) The traffic engineer is hereby authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary.

(b) Where such traffic lanes have been marked, it shall be unlawful for the operator of any vehicle to fail or refuse to keep such vehicle within the boundaries of any such lane except when lawfully passing another vehicle or preparatory to making a lawful turning movement.
(City Code 1951, Title 11, § 53; Ord. No. 7323, 10-26-83)

Sec. 11:54. Electronic enforcement.

(a) *Red light running.*

(1) *Definitions.*

Department shall mean the department of public works, its successor, or an authorized representative as determined by the director.

Director shall mean the director of DPW for the city-parish.

Intersection shall mean the place or area where two (2) or more streets intersect.

"Owner" shall mean the owner of a vehicle as shown on the vehicle registration records of the state department of public safety, office of motor vehicles, or the analogous department or agency of another state or country.

Photographic traffic signal enforcement system or system shall mean a system:

1. Consisting of a still camera system and full motion video camera system installed to work in conjunction with an electrically operated traffic-control signal; and
2. Is capable of producing at least two (2) separate recorded images:
   i. Depicting the rear of a vehicle prior to entering the intersection with a visible red signal,
   ii. An image of the vehicle showing the license plate, and
   iii. Depicting the license plate attached to the rear of a vehicle that is not operated in compliance with the red-displays of the traffic-control signal.

Recorded image means an image recorded by a photographic traffic monitoring system depicting the rear of a vehicle and is automatically recorded as a photograph or digital image, which also depicts the approximate recorded speed, if available, duration the signal was red, amber clearance time, date, location, and time of the recorded image.

System location means the approach to an intersection as well as the intersection as indicated by white stop bars where a photographic traffic signal enforcement system is directed and in operation.

Traffic control signal shall mean a traffic control device displaying alternating red, amber, and green lights directing traffic when to stop at or proceed through an intersection.

(2) *Imposition of civil penalty for violations enforced by a photographic traffic signal enforcement system.*

a. The city-parish council finds and determines vehicles proceeding into an intersection as indicated by crossing the white stop bar when the traffic control signal for that vehicle's direction of travel is emitting a steady red signal damages the public by endangering vehicle operators and pedestrians alike, by decreasing the efficiency of traffic control and traffic flow efforts, and by increasing the number of serious traffic crashes to which public safety agencies must respond at the expense of the taxpayers.

b. Except as provided in c. and d. below, the owner of a vehicle is liable for a civil penalty of one hundred seventeen dollars ($117.00) if the vehicle proceeds into an intersection at a system location when the traffic control signal for that vehicle's direction of travel is emitting a steady red signal.

c. For a second or subsequent violation by the same licensed vehicle during any twelve-month period, the amount of the civil penalty assessed to the owner shall be one hundred sixty-seven dollars ($167.00).

d. An owner who fails to timely pay a civil penalty shall be subject to an additional late payment penalty of thirty-five dollars ($35.00) for payments postmarked one (1) to fifty-nine (59) days after the due date stated on the notice and fifty dollars ($50.00) for payments postmarked sixty (60) or more days after the due date stated on the notice in addition to the original violation penalty.

(3) *Enforcement; procedures.*

a. The department is responsible for the enforcement and administration of this section. The department

may enforce and administer this section, or any parts thereof, through one or more contractors selected in accordance with applicable law. If one or more outside contractors are selected, such contractor(s) shall meet the following conditions:

1. Demonstrate at least three (3) years of continuous operations of similar digital photo enforcement programs in municipalities in the United States;
2. Have sufficient financial resources to perform the contract or provide the service.

b. The actions which can be used to enforce the payment of this civil penalty and related fees may consist of but not be limited to immobilization of vehicles (booting), reporting the debt to collection agencies/ credit reporting agencies, and/or initiating actions through the small claims court.

c. In order to impose a civil penalty under this article, the department shall mail a notice of violation to the owner of the vehicle liable for the civil penalty not later than the tenth calendar day inclusive of legal holidays and weekends after the date the registered owner information is obtained for each alleged violation but in no event longer than ninety (90) days.

d. A notice of violation issued under this section shall contain the following:

1. A description of the violation alleged;
2. The date, time, and location of the violation;
3. A copy of the recorded images taken by the still camera system of the vehicle involved in the violation;
4. The amount of the civil penalty to be imposed for the violation;
5. The date by which the civil penalty must be paid which shall be not less than sixty (60) days from the date of the mailing of the notice;
6. A statement the person named in the notice of violation may pay the civil penalty in lieu of appearing at an administrative adjudication hearing;
7. Information informing the person named in the notice of violation:
   i. Of the right to contest the imposition of the civil penalty in an administrative adjudication;
   ii. Of the manner and time in which to contest the imposition of the civil penalty; and
   iii. Failure to pay the civil penalty or to contest liability is a waiver of the right to appeal under subsection (4).
8. A statement that a recorded image is evidence in a proceeding for the imposition of a civil penalty;
9. A statement indicating failure to pay the civil penalty within the time allowed shall result in the imposition of an additional late penalty of thirty-five dollars ($35.00) for payments postmarked one (1) to fifty-nine (59) days after the due date stated on the notice and fifty dollars ($50.00) for payments postmarked sixty (60) or more days after the due date stated on the notice for each violation; and
10. Any other information deemed necessary by the department.

e. A notice of violation under this article is presumed to have been received on the fifth calendar day inclusive of weekends and legal holidays after the date the notice of violation is mailed.

f. Once an intersection has been equipped with a system, the department may issue warning notices of the alleged violations as part of an education/public notification effort.

(4) *Administrative adjudication hearing.*

a. A person who receives a notice of violation may contest the imposition of the civil penalty by submitting a request in writing for an administrative adjudication of the civil penalty within fifteen (15) calendar days inclusive of weekends and legal holidays after receipt of the notice of violation. Upon receipt of a timely request, the department shall notify the person in writing of the date and time of the administrative adjudication hearing, which may be reassigned at the discretion of the hearing officer.

b. Administrative adjudications of violations of this section shall be conducted by the traffic adjudication hearing office herein established. In conducting administrative adjudications of violations of this section, the traffic adjudication bureau shall have the powers and duties conferred by this section, inclusive.

c. Failure to pay a civil penalty or to contest liability in a timely manner is a waiver of the right to appeal under subsection (4).

d. The civil penalty shall not be assessed if after a hearing, the hearing officer enters a finding of no liability.

e. In an administrative adjudication hearing, the issues must be proved at the hearing by a preponderance of the evidence. The reliability of the system used to produce the recorded image of the violation may be attested to in an administrative adjudication hearing by certification of an officer or the department. A certified notice from a sworn law enforcement officer or from the department that alleges a violation based on an inspection of the pertinent recorded images, is admissible in a proceeding under this article and shall constitute prima facie proof of the violation.

f. A person who is found liable after an administrative adjudication hearing or who requests an administrative adjudication hearing and thereafter fails to appear at the time and place of the hearing shall be liable for the civil penalty and an administrative fee of fifty dollars ($50.00).

g. It shall be an affirmative defense to the imposition of civil liability under this article, to be proven by a preponderance of the evidence, that:

1. The traffic-control signal was not in proper position and sufficiently legible to an ordinarily observant person;

2. The operator of the vehicle was acting in compliance with the lawful order or direction of a law enforcement or public safety officer;

3. The operator of the vehicle violated the instructions of the traffic-control signal so as to yield the right-of-way to an immediately approaching authorized emergency vehicle;

4. The vehicle was being operated as an authorized emergency vehicle under La. R.S. 32:24, and the operator was acting in compliance with La. R.S. 32:24;

5. At the time of the violation, the vehicle was in the care, custody or control of another person where the owner furnishes a truthful affidavit which identifies the name and mailing address of the person or entity

who leased, rented or otherwise had the care, custody and control of the vehicle at the time of the violation. Responsibility for the violation under this section shall be transferred to the person identified in the affidavit;

6. The presence of ice, snow, unusual amounts of rain or other unusually hazardous road conditions existed that would make compliance with this article more dangerous under the circumstances than non-compliance;

7. The person who received the notice of violation was not the owner of the vehicle at the time of the violation; or

8. At the time of the violation the vehicle was a stolen vehicle or the license plate displayed on the vehicle was a stolen plate, which must include proof acceptable to the hearing officer that the theft of the vehicle or license plate had been timely reported to the appropriate law enforcement agency.

h. Notwithstanding anything in this article to the contrary, a person who fails to pay the amount of a civil penalty or to contest liability in a timely manner is entitled to an administrative adjudication hearing on the violation if:

1. The person files an affidavit with the hearing officer stating the date on which the person received the notice of violation mailed to the person; and

2. The person files a request for an administrative hearing within fifteen (15) days from the date of actual receipt of the notice of violation, as stated in the affidavit.

i. The decision of the hearing officer shall be the final decision by city-parish consolidated government. A person or persons aggrieved by a decision may file a petition for judicial review to the district court of the parish, within thirty (30) days after the date of entry of the decision.

(5) *Order of hearing officer.*

a. The hearing officer at any administrative adjudication hearing under this article shall issue an order stating:

1. Whether the person charged with the violation is liable for the violation; and

2. The amount of any civil penalty and administrative fee assessed against the person.

b. The orders issued under this subsection may be filed with the hearing officer. The hearing officer shall keep the orders in a separate index and file. The orders may be recorded using microfilm, microfiche, or other data processing techniques.

(6) *Effect of liability; exclusion of civil remedy.*

a. The imposition of a civil penalty under this article shall not be considered a criminal conviction.

b. A civil penalty may not be imposed under this article upon the owner of a vehicle if the operator of the vehicle was arrested or was issued a citation and notice to appear by a law or public safety officer as a violation of La. R.S. 32:232 if such violation was captured by the system.

c. The city-parish attorney is authorized to file suit to enforce collection of unpaid penalties and/or related fees imposed under section (2) by lawful means to secure such payments.

(7) *Traffic safety account.* The penalties, fines, and fees collected from the imposition of

civil liability under this article shall be deposited into the traffic safety account hereby established by the city-parish council. Funds deposited into this traffic safety account shall be expended first for the costs of the system (payment to the vendor/operator of the system, public relations, and general implementation of the program). After satisfying this requirement, remaining funds may be used for the following, including, but not limited to: traffic or pedestrian public safety programs, intersection safety improvements, driver education, police officers dedicated to traffic safety, or projects or programs subject to the joint written determination by the city-parish mayor-president and the director, but only if such expenditures are public safety related. Expenditures from the traffic safety account shall be in accordance with the city-parish plan of government.

(Ord. No. 14099, § 1, 8-8-07; Ord. No. 14191, § 1, 10-10-07)

Sec. 11:55. Establishment of Program.

The Metropolitan Council finds and determines that a vehicle that overtakes or meets a stopped school bus on which emergency stopped signals are operating for the purpose of, or in preparation for picking up or discharging passengers damages the public by endangering students and operators alike, by decreasing the efficiency of traffic control and traffic flow efforts, and by increasing the number of serious accidents to which public safety agencies must respond at the expense of the taxpayers.

(Ord. No. 15021, § 1, 11-10-10)

Sec. 11:55.1. Definitions.

The following words and phrases, when used in this chapter, shall have the following meanings:

Recorded image means a live video image recorded by a photographic monitoring system that depicts a vehicle overtaking or meeting a stopped school bus whose emergency stopped signals are operating while picking up or discharging passengers or in preparation for picking up or discharging passengers and is automatically recorded on a photographic or digital image showing the moving violation.

School bus safety enforcement program means a system that:

(1) Consists of a monitoring system installed to work in conjunction with a school bus; and

(2) Is capable of providing a view of live events from a remote location.

The viewer of live events provides a signed affidavit with supporting evidence, to include license plate and vehicle identification, that a motor vehicle was not operated in compliance with title 11, chapter 5, of the Code of Ordinances of the city and parish.

Sub image means an image that clearly shows and accurately reflects visible display of the license plate attached to the back of the vehicle as required by Louisiana law. The sub image must be clear so that there is no dispute to the accuracy of the image necessary to identify the violating vehicle.

System location means the G.P.S. location of the school bus on which is mounted the school bus safety enforcement program live stream video equipment.

Vehicle owner means the actual registered owner of the vehicle or any driver of the vehicle who reasonably appears to have authority to operate the vehicle. Vehicle owner also includes a lessee of a motor vehicle under a lease contract with an automobile dealership, or a lessee of a motor vehicle rented or leased from a motor vehicle rental or leasing company, but does not include the motor vehicle rental or leasing company itself.

Violation of this article means the failure of a driver of a vehicle to stop the vehicle, not less than thirty (30) feet from any school bus before reaching said school bus when the vehicle is meeting or overtaking from any direction said, school bus that has stopped for the purpose of receiving or discharging any passengers upon a public roadway and there are in operation on said school bus visual signals as required by law. Violation of this article also means the failure of

any such driver to remain stopped and to not proceed until such school bus resumes motion or the visual signals are no longer activated.
(Ord. No. 15021, § 1, 11-10-10)

Sec. 11:55.2. Succession of events.

(a) When the citation is issued pursuant to this article for an alleged violation, the vehicle owner is the person responsible for the payment of the fine and any other penalties, as applicable. There shall be a rebuttable presumption that the person to whom the vehicle is registered was the operator of the vehicle at the time the alleged violation was committed. Additionally, any operator of a vehicle who is not the vehicle owner, but who uses or operates the vehicle with the express or implied permission of the owner shall be considered the agent of the owner to receive the violation required to be sent to the vehicle owner. When the vehicle owner appears to have violated the provisions of this article, he/she will be issued a notice of violation that will include the evidence of the violation as well as other information and documents as outlined below in section 11:55.5. Before the notice is sent to the vehicle owner, the evidence shall be reviewed by the parish sheriff's office to ensure that the violation is accurately recorded and witnessed.

(b) The vehicle owner will have thirty (30) days to respond to the violation notice by either paying the fine or contesting the fine.

(c) Failure to perform by either paying the fine or contesting the fine will result in an additional twenty-five dollars ($25.00) late fee. If the civil and late fees are not paid within fifteen (15) days of receiving the second notice, the actions which can be used to enforce the payment of this civil penalty and related fees may consist of but not be limited to immobilization of vehicles (booting), reporting the debt to collection agencies/credit reporting agencies, initiating actions through the small claims court and/or any other civil proceeding determined to be appropriate by the parish school board for enforcement by its attorneys or counsel hired for that purpose.
(Ord. No. 15021, § 1, 11-10-10)

Sec. 11:55.3. Imposition of penalty for violations.

(a) *Elements of offense.* The driver of a motor vehicle, upon any public roadway in the parish, which proceeds to overtake or meet, from any direction, any school bus that has stopped for the purpose of, or is in the preparation of picking up or discharging passengers, shall stop the vehicle before reaching such school bus when the bus has in operation its visual signals, and the driver of the vehicle shall not proceed with said vehicle until the bus resumes motion and the bus's visual signals are no longer activated.

(b) *Penalties for offense.* The failure of a driver of a vehicle to comply with these provisions shall cause the registered owner of the vehicle being operated by the driver at the time of the violation to be liable for a civil penalty of three hundred dollars ($300.00) plus any additional costs assessed for the enforcement of this ordinance, but in no event shall the total fine plus enforcement costs exceed four hundred dollars ($400.00) per violation.

(c) *Disposition of penalties.* All penalties and fees collected from the imposition of civil liability under this ordinance shall be expended to defray all costs associated with the operation and enforcement of the school bus safety enforcement program in the following manner: ten (10) percent to the parish sheriff's office and 90 percent to the parish school board.

(d) *Administrative fees clause.* Notwithstanding the limitations on the amount of the fine imposed under this article, however, any administrative adjudication system which handles any part of the prosecution for a violation under this article may impose court costs upon the person responsible for the fine in addition to the fine and enforcement costs imposed under this article.
(Ord. No. 15021, § 1, 11-10-10)

Sec. 11:55.4. Exoneration of registered owner.

The registered owner of a vehicle that overtakes or meets a stopped school bus on which emergency stopped signals are operating in picking up or discharging passengers or in prepara-

tion for picking up or discharging passengers who alleges that he/she was not the driver of the vehicle at the time of the violation has the responsibility through sworn statement to prove that someone else other than the vehicle owner was driving the vehicle at the time the violation occurred. The vehicle owner's sworn statement must provide the name, address, and contact phone number for the person whom the vehicle owner alleges was driving the vehicle. Failure to file a statement with the proper information will result in owner's continued liability for any fines and costs assessed for the violation. In addition, failure of the person alleged by the vehicle owner to have been driving the vehicle at the time of the violation to pay any and all fines or costs assessed for said violation shall result in the continued liability of the vehicle owner for said fines and costs.
(Ord. No. 15021, § 1, 11-10-10)

Sec. 11:55.5. Enforcement; procedures.

(a) The parish school board, or its agent, is responsible for the administration of the system and for notification of the violation. However, said administrative, notification and fine collection responsibilities may be assigned to an agent or agency by agreement.

(b) Notice of the violation shall be sent to the owner of the motor vehicle liable for the penalty no later than the thirtieth day after the date of the violation is alleged to have occurred or no later than the fifteenth day after the date on which the registered owner is identified, whichever is later; but in no event shall the notice of the violation be mailed more than 60 days after the date the violation is alleged to have occurred.

The notice of violation issued under this article shall contain the following:

(1) A description of the violation alleged;

(2) The date, time, and location of the violation;

(3) The name and address of the owner of the vehicle involved in the violation;

(4) The license plate number displayed on the license plate of the vehicle involved in the violation;

(5) A copy of the evidence of the vehicle involved in the violation that depicts the license plate number displayed on the license plate of that vehicle;

(6) The amount of the penalty to be imposed for the violation;

(7) The date by which the penalty must be paid, or the sworn statement that, if at the time and place of the violation the vehicle was being operated by a person other than the owner, if the owner is a natural person, the person may transfer liability for the violation to the person who was operating the vehicle at the time and place if the owner submits a sworn statement.

(8) A statement that evidence was submitted for use in a proceeding for the imposition of a penalty;

(9) Information that informs the person named in the notice of violation:

a. Of the right to contest the imposition of the penalty in court;

b. Of the manner and time in which to contest the imposition of the penalty; and

c. That failure to pay the penalty or to contest liability or to appear at a hearing after having requested a court date is an admission of liability and may result in a civil judgment or court-ordered attachment.

A notice of a violation under this article shall be presumed to have been received on the tenth day after the date the notice of violation is mailed.
(Ord. No. 15021, § 1, 11-10-10)

Sec. 11:55.6. Affidavit of violation.

An affidavit from the monitor of the enforcement equipment who viewed the live video or from the school bus driver or from any other person who witnessed the violation is admissible in a court or administrative proceeding as evidence of the alleged violation and shall list:

(1) A description of the violation alleged;

(2) The time and location of the violation;

(3) The license plate number displayed on the license plate of the vehicle involved in the violation;

(4) A copy of the recorded live image of the vehicle involved in the violation that depicts the license plate of that vehicle.

(Ord. No. 15021, § 1, 11-10-10)

Sec. 11:55.7. Effect of liability.

The imposition of a penalty under this ordinance constitutes an alternative method of detecting and deterring school bus overtaking violations. No fine imposed hereunder for such violations shall result in notification to the state department of motor vehicles, to the vehicle owner's insurance company or to the insurance company of any person on whom a fine is imposed under this article.

An owner who falls to pay the fine and/or enforcement costs imposed under this ordinance or to timely contest liability for said fines and/or costs shall have his/her notice(s) of violation transferred for ordinary prosecution and handled in a manner consistent with applicable state laws and/or local ordinances, and the procedures of the court to which the matter is referred.

(Ord. No. 15021, § 1, 11-10-10)

Sec. 11:55.8. Administrative adjudication hearing.

(a) A person who receives a notice of violation may contest the imposition of the civil penalty by submitting a request in writing for an administrative adjudication of the civil penalty within fifteen (15) calendar days inclusive of weekends and legal holidays after receipt of the notice of violation. Upon receipt of a timely request, the department shall notify the person in writing of the date and time of the administrative adjudication hearing, which may be reassigned at the discretion of the hearing officer.

(b) Administrative adjudications of violations of this section shall be conducted by a hearing officer of the parish school board, or their designated hearing officer.

(c) Failure to pay a civil penalty or to contest liability in a timely manner is a waiver of the right to appeal.

(d) The civil penalty shall not be assessed if after a hearing, the hearing officer enters a finding of no liability.

(e) In an administrative adjudication hearing, the issues must be proved at the hearing by a preponderance of the evidence. The reliability of the system used to produce the recorded image of the violation may be attested to in an administrative adjudication hearing by certification of an officer or the department. A certified notice from a sworn law enforcement officer or from the department that alleges a violation based on an inspection of the pertinent recorded images, is admissible in a proceeding under this article and shall constitute prima facie proof of the violation.

(f) A person who is found liable after an administrative adjudication hearing or who requests an administrative adjudication hearing and thereafter fails to appear at the time and place of the hearing shall be liable for the civil penalty and an administrative fee of fifty dollars ($50.00).

(g) It shall be an affirmative defense to the imposition of civil liability under this article, to be proven by a preponderance of the evidence, that:

(1) The operator of the vehicle was acting in compliance with the lawful order or direction of a law enforcement or public safety officer;

(2) The operator of the vehicle violated the instructions of the traffic-control signal so as to yield the right-of-way to an immediately approaching authorized emergency vehicle;

(3) The vehicle was being operated as an authorized emergency vehicle under R.S. 32:24, and the operator was acting in compliance with R.S. 32:24;

(4) At the time of the violation, the vehicle was in the care, custody or control of another person where the owner furnishes a truthful affidavit which identifies the name and mailing address of the person or entity who leased, rented or

otherwise had the care, custody and control of the vehicle at the time of the violation. Responsibility for the violation under this section shall be transferred to the person identified in the affidavit;

(5) The presence of ice, snow, unusual amounts of rain or other unusually hazardous road conditions existed that would make compliance with this article more dangerous under the circumstances than noncompliance;

(6) The person who received the notice of violation was not the owner of the vehicle at the time of the violation; or

(7) At the time of the violation the vehicle was a stolen vehicle or the license plate displayed on the vehicle was a stolen plate, which must include proof acceptable to the hearing officer that the theft of the vehicle or license plate had been timely reported to the appropriate law enforcement agency.

(h) Notwithstanding anything in this article to the contrary, a person who fails to pay the amount of a civil penalty or to contest liability in a timely manner is entitled to an administrative adjudication hearing on the violation if:

(1) The person files an affidavit with the hearing officer stating the date on which the person received the notice of violation mailed to the person; and

(2) The person files a request for an administrative hearing within fifteen (15) days from the date of actual receipt of the notice of violation, as stated in the affidavit.

(i) The decision of the hearing officer shall be the final decision by parish school board. A person or persons aggrieved by a decision may file a petition for judicial review to the 19th Judicial District Court of East Baton Rouge Parish, within thirty (30) days after the date of entry of the decision.
(Ord. No. 15021, § 1, 11-10-10)

Sec. 11:55.9. Order of hearing officer.

(a) The hearing officer at any administrative adjudication hearing under this article shall issue an order stating:

(1) Whether the person charged with the violation is liable for the violation; and

(2) The amount of any civil penalty and administrative fee assessed against the person.

(b) The orders issued under this subsection may be filed with the hearing officer. The hearing officer shall keep the orders in a separate index and file. The orders may be recorded using microfilm, microfiche, or other data processing techniques.
(Ord. No. 15021, § 1, 11-10-10)

Sec. 11:55.10. Effect of liability; exclusion of civil remedy.

(a) The imposition of a civil penalty under this article shall not be considered a criminal conviction.

(b) A civil penalty may not be imposed under this article upon the owner of a vehicle if the operator of the vehicle was arrested or was issued a citation and notice to appear by a law or public safety officer as a violation of R.S. 32:80 if such violation was captured by the system.

(c) The parish school board, its attorneys, or designees, are authorized to file suit to enforce collection of unpaid penalties and/or related fees imposed under this program by lawful means to secure such payments.
(Ord. No. 15021, § 1, 11-10-10)

CHAPTER 6. DRIVING ON RIGHT SIDE OF ROADWAY; OVERTAKING AND PASSING; USE OF ROADWAY*

Sec. 11:60. Driving on right side of roadway; exceptions. (City)

A. Upon all roadways of sufficient width a vehicle shall be driven upon the right half of the roadway, except as follows:

(1) When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movement, including passing lanes;

(2) When the right half of a roadway is closed to traffic while under construction or repair;

(3) Upon a roadway designated and signposted for one-way traffic.

B. (1) (a) Upon all multilane highways, no vehicle shall be driven in the left hand lane except when directed otherwise, preparing for a left turn at an intersection or private road or driveway, overtaking or passing another vehicle proceeding in the same direction, or when right-hand lanes are congested; however, no vehicle being driven in the left lane except when directed otherwise or preparing for a left turn at an intersection, private road, or driveway shall impede any other vehicle that is traveling in the same lane and behind that vehicle.

(b) Upon all multilane highways, no vehicle traveling in the left-hand lane shall be driven at a speed slower than any vehicle traveling to its right on the same roadway.

(c) Upon all multilane highways any vehicle proceeding at less than the normal speed of traffic at the time and place and under the circumstances then existing, shall be driven in the right-hand lane then available for traffic except when preparing for a left turn at an intersection or into a private road or driveway, or passing or overtaking a vehicle proceeding in the same direction, if passing on the left side of it. Nothing herein contained shall be construed to authorize driving any vehicle in the left lane so as to prohibit, impede, or block passage of an overtaking vehicle in such lane and in such event the vehicle in the left lane prohibiting, impeding, or blocking passage of an overtaking vehicle shall expeditiously merge into the right lane of traffic.

(d) The provisions of this subsection shall not apply during a declared state of emergency when contraflow has been activated.

(e) Upon all roadways any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic, or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn at an intersection or into a private road or driveway.

(f) Upon any roadway having four (4) or more lanes for moving traffic and providing for two (2) way movement of traffic, no vehicle shall be driven to the left of the center line of the roadway, except when authorized by official traffic-control devices designating certain lanes to the left side of the center of the roadway for use by traffic not otherwise permitted to use such lanes, or except as permitted under subsection (a)(2) hereof. However, this subsection shall not be construed as prohibit-

*__State law reference—__Similar provisions, R.S. 32:71 et seq.

ing the crossing of the center line in making a left turn into or from an alley, private road or driveway.

(2) In addition to the requirement of paragraph (1) hereof, any vehicle proceeding on a multilane highway at a speed slower than ten (10) miles per hour less than the posted maximum speed limit shall be driven in the right hand lane then available for traffic, or as close as practicable to the right hand curb or edge of the roadway, except when overtaking and passing a vehicle proceeding in the same direction or when preparing for a left turn at an intersection or into a private road or driveway. Persons in violation of this Paragraph shall be punished by a fine of not more than one hundred dollars ($100.00), or by imprisonment for not more than thirty (30) days, or both.

(City Code 1951, Title 11, § 60; Ord. No. 14792, § 1, 10-14-09)

State law reference—Similar provisions, R.S. 32:71.

Sec. 11:61. Passing vehicles proceeding in opposite directions. (City)

Drivers of vehicles proceeding in opposite directions shall pass each other to the right, and upon roadways having width for not more than one line of traffic in each direction each driver shall give to the other at least one-half of the main-traveled portion of the roadway as nearly as possible.

(City Code 1951, Title 11, § 61)

State law reference—Similar provisions, R.S. 32:72.

Sec. 11:62. Overtaking a vehicle on the left. (City)

The following rules shall govern the overtaking and passing of vehicles proceeding in the same direction, subject to those limitations, exceptions and special rules hereinafter stated:

(1) The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle.

(2) Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle on audible signal and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

(City Code 1951, Title 11, § 62)

State law reference—Similar provisions, R.S. 32:73.

Sec. 11:63. When overtaking on the right is permitted. (City)

(a) The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(1) When the vehicle overtaken is making or about to make a left turn;

(2) Upon a street or highway with unobstructed pavement not occupied by parked vehicles of sufficient width for two (2) or more lanes of moving vehicles in each direction;

(3) Upon a one-way street, or upon any roadway on which traffic is restricted to one direction of movement, where the roadway is free from obstructions and of sufficient width for two (2) or more lines of moving vehicles.

(b) The driver of a vehicle may overtake and pass another vehicle upon the right side only under the conditions permitting such movement in safety. In no event shall such movement be made by driving off the pavement or main-traveled portion of the roadway.

(City Code 1951, Title 11, § 63)

State law reference—Similar provisions, R.S. 32:74.

Sec. 11:64. Limitations on overtaking on the left. (City)

No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless authorized by the provisions of this chapter and unless such left side is clearly

visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the operation of any vehicle approaching from the opposite direction of any vehicle overtaken. In every event the overtaking vehicle must return to an authorized lane of travel as soon as practicable and if the passing movement involves the use of a lane authorized for vehicles approaching from the opposite direction, before coming within two hundred (200) feet of any approaching vehicle.
(City Code 1951, Title 11, § 64)

State law reference—Similar provisions, R.S. 32:75.

Sec. 11:65. Further limitations on driving on left of center of roadway. (City)

(a) No vehicle shall be driven on the left side of the roadway under the following conditions:

(1) When approaching or upon the crest of a grade of a curb in the highway where the driver's view is obstructed within such distance as to create a hazard in the event another vehicle might approach from the opposite direction;

(2) When approaching within one hundred (100) feet of or traversing any intersection or railroad grade crossing;

(3) When the view is obstructed upon approaching within one hundred (100) feet of any bridge, viaduct or tunnel.

(b) The foregoing limitations shall not apply upon a one-way roadway, nor under the conditions described in section, nor to the driver of a vehicle turning left into or from an alley, private road or driveway.
(City Code 1951, Title 11, § 65)

State law reference—Similar provisions, R.S. 32:76.

Sec. 11:66. No-passing zones. (City)

(a) The traffic engineer is hereby authorized to determine those portions of any highway under its jurisdiction where overtaking and passing or driving to the left of the roadway would be especially hazardous and may by appropriate signs or markings on the roadway indicate the beginning and end of such zones and when such signs or markings are in place and clearly visible to an ordinarily observant person every driver of a vehicle shall obey the directions thereof.

(b) When signs or markings are in place to define a no-passing zone as set forth in subsection (a), no driver shall at any time drive on the left side of the roadway within such no-passing zone or on the left side of any pavement striping designed to mark such no-passing zone throughout its length.

(c) This section does not apply under the conditions described in section 11:60(a)(2), nor to the driver of a vehicle turning left into or from an alley, private road or driveway.
(City Code 1951, Title 11, § 66)

State law reference—Similar provisions, R.S. 32:77.

Sec. 11:67. One-way roadways. (City)

(a) The traffic engineer may designate any highway, roadway, part of a roadway or specific lanes upon which vehicular traffic shall proceed in one direction at all or such times as shall be indicated by official traffic-control devices.

(b) Upon a roadway so designated for one-way traffic, a vehicle shall be driven only in the direction designated at all or such times as shall be indicated by official traffic-control devices.
(City Code 1951, Title 11, § 67)

State law reference—Similar provisions, R.S. 32:78.

Sec. 11:68. Driving on roadways laned for traffic. (City)

Whenever any roadway has been divided into two (2) or more clearly marked lanes for traffic the following rules in addition to all others consistent herewith shall apply:

(1) A vehicle shall be driven as nearly as practicable entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety.

(2) Upon a roadway which is divided into three (3) lanes and provides for two (2) way movement of traffic, a vehicle shall not be driven in the center lane except when overtaking and passing another vehicle traveling in the same direction

when such center lane is clear of traffic within a safe distance, or in preparation for making a left turn or where such center lane is at the time allocated exclusively to traffic moving in the same direction that the vehicle is proceeding and such allocation is designated by official traffic-control devices.

(3) Official traffic-control devices may be erected directing specified traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway and drivers of vehicles shall obey the directions of every such device.

(City Code 1951, Title 11, § 68)

State law reference—Similar provisions, R.S. 32:79.

Sec. 11:69. Following too closely. (City)

(a) The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic upon and the condition of the highway.

(b) The driver of any motor vehicle drawing another vehicle when traveling upon a roadway outside of a business or residence district and which is following another motor truck or motor vehicle drawing another vehicle shall, whenever conditions permit, leave sufficient space so that an overtaking vehicle may enter and occupy such space without danger, except that this shall not prevent a motor truck or motor vehicle drawing another vehicle from overtaking and passing any like vehicle or other vehicle.

(c) Motor vehicles being driven upon any roadway outside of a business or residence district in a caravan or motorcade whether or not towing other vehicles shall be so operated as to allow sufficient space between each vehicle or combination of vehicles to enter and occupy such space without danger. This provision shall not apply to funeral processions.

(City Code 1951, Title 11, § 69)

State law reference—Similar provisions, R.S. 32:81.

Sec. 11:70. Driving on divided highways. (City)

Whenever any highway has been divided into two (2) or more roadways by leaving an intervening space or by a physical barrier or clearly indicated dividing section so constructed as to impede vehicular traffic, every vehicle shall be driven only upon the right-hand roadway unless directed or permitted to use another roadway by official traffic-control devices or police officers. No vehicle shall be driven over, across or within any such dividing space, barrier or section, except through an opening in such physical barrier, or section or space or at a cross-over or intersection as established.

(City Code 1951, Title 11, § 70)

State law reference—Similar provisions, R.S. 32:82.

Sec. 11:71. Restricted access. (City)

No person shall drive a vehicle onto or from any controlled access roadway except at such entrances and exits as are established by the public authority.

(City Code 1951, Title 11, § 71)

State law reference—Similar provisions, R.S. 32:262.

Sec. 11:72. Driving in parking lane prohibited. (City)

Where parking is permitted in a lane of traffic immediately adjacent to the curb, no vehicle shall travel in such lane of traffic except for the purpose of stopping or parking, or for the purpose of making a turn, and when making a turn, only within fifty (50) feet from the intersection where the turn is to be made.

(City Code 1951, Title 11, § 72)

Sec. 11:73. Drag racing; racing on public roads; and vehicular stunt activities prohibited.

(a) No person shall drive any vehicle upon the streets of the city-parish in any race, speed competition or contest, drag race or acceleration contest, testing of physical endurance, exhibition of speed or acceleration, or for the purpose of making a speed record; and no person shall in any manner act as an organizer, participant or

spectator in any such race, speed competition, drag race, test of physical endurance, exhibition, or purpose of making a speed record.

(b) No person shall engage in stunt activity while operating a motor vehicle on an alley, highway, roadway or street, nor aid or abet any stunt activity on any alley, highway, roadway or street; and no person shall in any manner act as an organizer, participant or spectator in any such stunt activities.

(c) No person shall organize or help facilitate the gathering of individuals for the purpose of participation or spectatorship of an illegal speed racing contest or vehicle stunt activity through social media or any other medium.

(d) For the purpose of this section, "organizer" means any individual who in any manner knowingly takes part in the planning, promotion, providing of location, organization, coordination, facilitation, blocking of traffic, advertising or sharing of the location for any such race, speed competition, drag race, test of physical endurance, exhibition, or purpose of making a speed record.

(e) For the purpose of this section, "participant" means any individual who is knowingly present at an illegal street racing exhibition for the purpose of actively taking part in the event, through conduct including riding in a race vehicle as a passenger; assisting the organizers and/or drivers in carrying out or promoting the event; or exchanging money or anything of value with any driver, car owner, or other participant in connection with the event that is prohibited under this section.

Any person who records or broadcasts such an event and distributes it by social media or any other platform, shall be subject to the same penalties as "organizers."

(f) For the purpose of this section, "spectator" means any individual who is knowingly present at an illegal street racing exhibition, or at a location where preparations are being made for such activities, for the purpose of viewing, filming, photographing, livestreaming, observing, watching, witnessing, or otherwise taking part in the event for the purposes of promoting, advertising, encouraging, facilitating, or aiding the illegal street racing or stunt activity.

The term "spectator" shall not include:

(1) Persons engaged in lawful newsgathering or reporting activities;

(2) Law enforcement officers or other governmental personnel acting within the scope of their official duties, including the use of body-worn or vehicle-mounted cameras.

(g) For the purpose of this section, "drag racing" is defined as the operation of two (2) or more vehicles from a point side by side at accelerating speeds in a competitive attempt to out-distance each other, or the operation of one (1) or more vehicles over a common selected course, from the same point to the same point, for the purpose of comparing the relative speeds or power of acceleration of such vehicle or vehicles, within a certain distance or time limit upon the streets of the city-parish.

(h) For the purpose of this section, "stunt activity" means burning out the tires of a motor vehicle or engaging in any similar activity in which a vehicle is kept stationary and while its wheels spin, causing the tires to create smoke; performing "donuts" or any similar activity in which the vehicle is driven in circles while continuing to accelerate; operating a motor vehicle in a reckless or careless manner, or violating any traffic regulation for purposes of attracting bystanders or onlookers, or for the entertainment or gratification of spectators.

(i) Whoever violates a provision of this section shall be fined one thousand dollars ($1,000.00) and may be imprisoned for not less than ten (10) days nor more than ninety (90) days, for each separate offense. Additionally, the prosecutor may seek suspension of the violator's driver's license by making a request to the department of public safety and corrections.

All local fines collected under this ordinance shall be deposited into a restricted city-parish account dedicated to the appropriate law enforcement agency for traffic enforcement, law enforcement technology or emergency response.

(j) Any motor vehicle used in drag racing or driving as defined in this section may be seized and impounded by law enforcement as provided under R.S. 32:65. The vehicle shall remain impounded in accordance with the timelines and conditions provided by state law,, with all costs of towing, storage, impound and administrative fees assessed against the violator.

(k) Any business owner found to have knowingly facilitated violations of this section may be subject to suspension or revocation of their occupancy certificate issued by the city-parish.

(l) With respect to private roads and parking areas, the provisions of this section are applicable and enforceable with consent from the owner of the private road or the person in charge of the general operation and control of a parking area.

(m) Any property, lot, or facility that is knowingly used, permitted to be used, or maintained for the purpose of illegal street racing, stunt driving, or related activities in violation of this section, and upon which such activities occur on two (2) or more occasions within a twelve-month period, the city-parish attorney may seek injunctive relief in district court, including closure of the premises for a period not to exceed one year.

(n) This section shall not apply to licensed or duly authorized racetracks, drag strips, or other designated areas set aside by proper authorities for such purposes.

(Ord. No. 7801, 2-27-85; Ord. No. 18212, § 1, 8-11-21; Ord. No. 18601, § 1, 8-10-22; Ord. No. 19786, § 1, 3-25-26)

Editor's note—Section 11:73, prohibiting drag racing and racing on public roads in the city, derived from City Code 1951, Title 11, § 73, was repealed by § 4 of Ord. No. 7504, adopted Apr. 25, 1984. Ord. No. 7801, adopted Feb. 27, 1985, reinstated the provisions.

CHAPTER 7. RIGHT-OF-WAY*

Sec. 11:80. Vehicle approaching or entering intersection. (City)

(a) When two (2) vehicles approach or enter an intersection from different highways at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

(b) The right-of-way rule declared in subsection (a) is modified at through highways and otherwise as stated in this chapter.

(City Code 1951, Title 11, § 80)

State law reference—Similar provisions, R.S. 32:121.

Sec. 11:81. Vehicle turning left. (City)

The driver of a vehicle intending to turn to the left within an intersection or into an alley, pri-

*__State law reference—__Similar provisions, R.S. 32:121 et seq.

vate road or driveway shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection or so close thereto as to constitute an immediate hazard.
(City Code 1951, Title 11, § 81)

State law reference—Similar provisions, R.S. 32:122.

Sec. 11:82. Vehicle entering stop or yield intersection. (City)

(a) Preferential right-of-way at an intersection may be indicated by stop signs or yield signs properly placed by the traffic engineer.

(b) Except when directed to proceed by a police officer or traffic-control signal, every driver of a vehicle approaching a stop intersection indicated by a stop sign shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or, if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering the intersection. After having stopped, the driver shall yield the right-of-way to any vehicle which has entered the intersection from another highway or which is approaching so closely on the highway as to constitute an immediate hazard during the time when such driver is moving across or within the intersection.

(c) The driver of a vehicle approaching a yield sign shall in obedience to such sign slow down to a speed reasonable for the existing conditions and, if required for safety to stop, shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or, if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway. After slowing or stopping, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another highway so closely as to constitute an immediate hazard during the time such driver is moving across or within the intersection. Provided however, that if such a driver is involved in a collision with a vehicle in the intersection after driving past a yield sign without stopping, such collision shall be deemed prima facie evidence of his failure to yield right-of-way.
(City Code 1951, Title 11, § 82)

State law reference—Similar provisions, R.S. 32:123.

Sec. 11:83. Vehicle entering highway from private road of driveway. (City)

The driver of a vehicle about to enter or cross a highway from an alley, building, private road or driveway shall yield the right-of-way to all vehicles approaching on the highway to be entered.
(City Code 1951, Title 11, § 83)

State law reference—Similar provisions, R.S. 32:124.

Sec. 11:84. Operation of vehicles on approach of authorized emergency vehicles. (City)

(a) Upon the immediate approach of an authorized emergency vehicle making use of an audible signal meeting the requirements of the state highway regulatory act, and visual signals meeting the requirements of such act, or of a police vehicle properly and lawfully making use of an audible signal only: The driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to, and as close as possible to, the right-hand edge or curb of the roadway clear of any intersection and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

(b) This section shall not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway.
(City Code 1951, Title 11, § 84)

State law reference—Similar provisions, R.S. 32:125.

Sec. 11:85. Through streets designated. (City)

Those parts of streets described in section 11:331 and made a part hereof are hereby declared to be through streets for the purpose of this section and shall have right-of-way over the intersecting streets, except where otherwise designated by a traffic-control device.
(City Code 1951, Title 11, § 85)

Sec. 11:86. Authority to erect stop signs and yield-right-of-way signs. (City)

(a) Whenever any ordinance of this city designates and declares a through street, it shall be the duty of the director of the department of public works to place and maintain a stop sign or a

yield-right-of-way sign on each and every street intersecting such through street unless traffic at any such intersection is controlled at all times by traffic-control signals. The determination as to whether a stop sign or a yield-right-of-way sign shall be erected at the intersections shall be made by the director of the department of public works upon the basis of an engineering and traffic study.

(b) The director of public works is hereby authorized to determine and designate intersections where particular traffic hazards exist and have stop signs, yield signs and other similar traffic-control devices erected and put into operation without the need of an engineering and/or traffic study wherever he shall deem an intersectional traffic hazard to exist in order to preserve the safety of vehicular traffic within the city and parish.
(City Code 1951, Title 11, § 86; Ord. No. 7209, § 1, 7-13-83; Ord. No. 7257, § 1, 8-24-83)

Sec. 11:87. Intersections where stop required. (City)

The traffic engineer is hereby authorized to determine and designate intersections where particular hazards exist upon other than through streets and to determine whether vehicles shall stop at or yield the right-of-way at one or more entrances to any such intersections, and shall erect a sign at every such place where a stop or yield of right-of-way is required.
(City Code 1951, Title 11, § 87)

CHAPTER 8. PEDESTRIANS' RIGHTS AND DUTIES*

Sec. 11:90. Pedestrian obedience to traffic-control devices and traffic regulations. (City)

(a) A pedestrian shall obey the instructions of any official traffic-control device specifically applicable to him, unless otherwise directed by a police officer.

(b) Pedestrians shall be subject to traffic and pedestrian-control signals as provided in sections 11:44 and 11:45.

*State law reference—Similar provisions, R.S. 32:211 et seq.

(c) At all other places, pedestrians shall be accorded the privileges and shall be subject to the restrictions stated in this chapter.
(City Code 1951, Title 11, § 90)

State law reference—Similar provisions, R.S. 32:211.

Sec. 11:91. Pedestrians' right-of-way in crosswalks. (City)

(a) When traffic-control signals are not in place or not in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield, to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the half of the roadway upon which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger.

(b) No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield.

(c) Subsection (a) shall not apply under the conditions stated in section 11:92(b).

(d) Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle.
(City Code 1951, Title 11, § 91)

State law reference—Similar provisions, R.S. 32:212.

Sec. 11:92. Crossing at other than crosswalks. (City)

(a) Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

(b) Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.

(c) Between adjacent intersections at which traffic-control signals are in operation pedestrians shall not cross at any place except in a marked crosswalk.

(d) No pedestrian shall cross a roadway intersection diagonally unless authorized by official traffic-control devices; and, when authorized to cross diagonally, pedestrians shall cross only in accordance with the official traffic-control devices pertaining to such crossing movements.
(City Code 1951, Title 11, § 92)
State law reference—Similar provisions, R.S. 32:213.

Sec. 11:93. Drivers to exercise due care. (City)

Notwithstanding other provisions of this chapter, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any obviously confused or incapacitated person upon a roadway.
(City Code 1951, Title 11, § 93)
State law reference—Similar provisions, R.S. 32:214.

Sec. 11:94. Pedestrians to use right half of crosswalks. (City)

Pedestrians shall move, whenever practicable, upon the right half of crosswalks.
(City Code 1951, Title 11, § 94)
State law reference—Similar provisions, R.S. 32:215.

Sec. 11:95. Pedestrians on roadways. (City)

(a) Where sidewalks are provided it shall be unlawful for any pedestrian to walk along and upon an adjacent roadway.

(b) Where sidewalks are not provided any pedestrian walking along and upon a highway shall, when practicable, walk only on the left side of the roadway or its shoulder facing traffic which may approach from the opposite direction.
(City Code 1951, Title 11, § 95)
State law reference—Similar provisions, R.S. 32:216.

Sec. 11:96. Pedestrians soliciting rides, business, employment or contributions of a charitable nature.

(a) No person shall stand in a roadway or upon the shoulder of any street or roadway or upon a neutral ground of any street or roadway for the purpose of soliciting a ride.

(b) No person shall be upon or go upon any street or roadway or shall be upon or go upon any shoulder of any street or roadway nor shall any such person be upon or go upon any neutral ground of any street or roadway for the purpose of soliciting employment, business or charitable contributions of any kind from the occupant of any vehicle, except for a member of a professional firefighter's association when soliciting contributions, as a member of such association, on behalf of a bona fide charitable organization.

(c) No person shall stand on or in proximity to a street or highway for the purpose of soliciting the watching or guarding of any vehicle while parked or about to be parked on a street or highway.
(City Code 1951, Title 11, § 96; Ord. No. 7332, § 1, 11-23-83; Ord. No. 13998, § 1, 4-25-07)
State law reference—Similar provisions, R.S. 32:218.

Sec. 11:97. Driving through safety zone prohibited. (City)

No vehicle shall at any time be driven through or within a safety zone.
(City Code 1951, Title 11, § 97)
State law reference—Similar provisions, R.S. 32:288.

Sec. 11:98. Pedestrians' right-of-way on sidewalks. (City)

The driver of a vehicle emerging from or entering an alley, building, private road or driveway shall yield the right-of-way to any pedestrian approaching on any sidewalk extending across such alley, building entrance, road or driveway.
(City Code 1951, Title 11, § 98)
State law reference—Similar provisions, R.S. 32:219.

Sec. 11:99. Pedestrians prohibited from walking on expressways. (City)

No pedestrian shall walk on, along or across the interstate highways, nor shall any person climb the fences bordering the interstate highways for the purpose of entering, walking on, along or across the interstate highways.
(City Code 1951, Title 11, § 99)

CHAPTER 9. TURNING AND STARTING AND SIGNALS ON STOPPING AND TURNING*

Sec. 11:100. Required position and method of turning at intersections. (City)

The driver of a vehicle intending to turn at an intersection, roadway, driveway, alley, building or parking lot, shall do as follows:

(1) *Right turns:* Both the approach for a right turn and a right-hand turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

(2) *Left turns on two (2) way roadways:* At any intersection, roadway, driveway, alley, building or parking lot, where traffic is permitted to move in both directions on each roadway entering the intersection, roadway, driveway, alley, building or parking lot, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the center line thereof and by passing to the right of such center line where it enters the intersection, roadway, driveway, alley, building or parking lot, and after entering the intersection, roadway, driveway, alley, building or parking lot, the left turn shall be made so as to leave the intersection, roadway, driveway, alley, building or parking lot, to the right of the center line of the roadway being entered. Whenever practicable, the left turn shall be made in that portion of the intersection, roadway, driveway, alley, building or parking lot, to the left of the center of the intersection, roadway, driveway, alley, building or parking lot.

(3) *Left turn on other than two (2) roadways:* At any intersection, roadway, driveway, alley, building or parking lot, where traffic is restricted to one direction on one or more of the roadways, the driver of a vehicle intending to turn left at any such intersection, roadway, driveway, alley, building or parking lot, shall approach the intersection, roadway, driveway, alley, building or parking lot in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle, and after entering the intersection, roadway, driveway, alley, building or parking lot, the left turn shall be made so as to leave the intersection, roadway, driveway, alley, building or parking lot, as nearly as practicable, in the left-hand lane lawfully available to traffic moving in such direction upon the roadway being entered.

(City Code 1951, Title 11, § 100)

State law reference—Similar provisions, R.S. 32:101 et seq.

Sec. 11:101. Turning on curve or crest prohibited. (City)

No vehicle shall be turned so as to proceed in the opposite direction upon any curve, or upon the approach to or near the crest of a grade, where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within five hundred (500) feet.

(City Code 1951, Title 11, § 101)

State law reference—Similar provisions, R.S. 32:102.

Sec. 11:102. Moving parked vehicle. (City)

No person shall move a vehicle which is stopped, standing or parked unless and until such movement can be made with reasonable safety.

(City Code 1951, Title 11, § 102)

State law reference—Similar provisions, R.S. 32:103.

Sec. 11:103. Turning movements and required signals. (City)

(a) No person shall turn a vehicle at an intersection unless the vehicle is in proper position upon the roadway as required in section 11:100, or turn a vehicle to enter a private road or driveway, or otherwise turn a vehicle from a direct course or move right or left upon a roadway unless and until such movement can be made with reasonable safety. No person shall so turn any vehicle without giving an appropriate signal in the manner hereinafter provided.

*__State law reference—__Similar provisions, R.S. 32:101 et seq.

(b) A signal of intention to turn right or left when required shall be given continuously during not less than the last one hundred (100) feet traveled by the vehicle before turning.

(c) No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is an opportunity to give such signal.

(d) The signals provided for in section 11:104(b) shall be used to indicate an intention to turn, change lanes, or start from a parked position and shall not be flashed on one (1) side only on a parked or disabled vehicle, or flashed as a courtesy of "do pass" signals to operators of other vehicles approaching from the rear.
(City Code 1951, Title 11, § 103)
State law reference—Similar provisions, R.S. 32:104.

Sec. 11:104. Signals by hand and arm or signal lamps. (City)

(a) Any stop or turn signal when required shall be given either by means of the hand and arm or by signal lamps, except as otherwise provided in subsection (b).

(b) Any motor vehicle in use on a highway shall be equipped with, and required signal shall be given by, signal lamps when the vehicle is so constructed, loaded or operated as to prevent the hand and arm signal from being visible both to the front and to the rear.
(City Code 1951, Title 11, § 104)
State law reference—Similar provisions, R.S. 32:105.

Sec. 11:105. Method of giving hand and arm signals. (City)

All signals herein required given by hand and arm shall be given from the left side of the vehicle in the following manner and such signals shall indicate as follows:

(1) *Left turn:* Hand and arm extended horizontally.

(2) *Right turn:* Hand and arm extended upward.

(3) *Stop or decrease speed:* Hand and arm extended downward.

(City Code 1951, Title 11, § 105)
State law reference—Similar provisions, R.S. 32:106.

Sec. 11:106. Authority to place and obedience to turn markers. (City)

(a) The traffic engineer is hereby authorized to designate traffic lanes within or adjacent to intersections for left turns or right turns only.

(b) Where such signs or markers are in place, no vehicle shall proceed in any direction except that indicated by such sign.
(City Code 1951, Title 11, § 106)

Sec. 11:107. Authority to place and obedience to restricted turn signs.

(a) The traffic engineer is hereby authorized to determine those locations at which drivers of vehicles shall not make a right, left or U turn, and shall place proper signs at such locations. The making of such turns may be prohibited between certain hours of the day, and permitted at other hours, in which event the same shall be plainly indicated on the signs or they may be removed when such turns are permitted

(b) Whenever such signs are in place, no driver of a vehicle shall disobey the directions of any such sign.
(City Code 1951, Title 11, § 107; Ord. No. 10598, § 1, 3-27-96)

Sec. 11:108. Limitations on turning around. (City)

The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street in a business district and shall not upon any other street so turn a vehicle unless such movement can be made in safety and without interfering with other traffic.
(City Code 1951, Title 11, § 108)

Sec. 11:109. Turning on curb or crest of grade prohibited. (City)

No vehicle shall be turned so as to proceed in the opposite direction upon any curb, or upon the approach to or near the crest of a grade, where such a vehicle cannot be seen by the driver of any other vehicle approaching from either direction within five hundred (500) feet.
(Ord. No. 8117, § 1, 3-12-86)
State law reference—Similar provisions, R.S. 32:102.

CHAPTER 10. SPECIAL STOPS REQUIRED*

Sec. 11:110. Obedience to signal indicating approach of train. (City)

(a) Whenever a person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within fifty (50) feet but not less than fifteen (15) feet from the nearest rail of such railroad and shall not proceed until he can do safety. The foregoing shall apply when:

(1) A clearly visible electrical or mechanical signal device gives warning of the immediate approach of a railroad train;

(2) A crossing gate is lowered or when a human flagman gives or continues to give a signal of the approach of a railroad train;

(3) A railroad train approaching within approximately one thousand five hundred (1,500) feet of the highway crossing emits a signal audible from such distance and such railroad train, by reasons of its speed or nearness to such crossing, is an immediate hazard;

(4) An approaching railroad train is plainly visible and is in hazardous proximity to such crossing.

(b) No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed.

(City Code 1951, Title 11, § 110)

Cross reference—Railroads generally, § 10:1 et seq.

State law reference—Similar provisions, R.S. 32:171.

Sec. 11:111. All vehicles must stop at certain railroad grade crossings. (City)

The traffic engineer is hereby authorized to designate particularly dangerous highway grade crossings of railroads and to erect stop signs thereat. When such stop signs are erected the driver of any vehicle shall stop within fifty (50) feet but not less than fifteen (15) feet from the nearest rail of such railroad and shall proceed only upon exercising due care.

(City Code 1951, Title 11, § 111)

Cross reference—Railroads generally, § 10:1 et seq.

State law reference—Similar provisions, R.S. 32:172.

Sec. 11:112. Certain vehicles must stop at all railroad grade crossings. (City)

(a) The driver of any motor vehicle carrying passengers for hire, or of any school bus carrying any school child, or of any vehicle carrying explosive substances or flammable liquids as a cargo or part of a cargo, before crossing at grade any tract or tracks of a railroad, shall stop such vehicle within fifty (50) feet but not less than fifteen (15) feet from the nearest rail of such railroad and while so stopped shall listen and look in both directions along such track for any approaching train, and for signals indicating the approach of a train, except as hereinafter provided, and shall not proceed until he can do so safely. After stopping as required herein and upon proceeding when it is safe to do so the driver of any such vehicle shall cross only in such gear of the vehicle that there will be no necessity for changing gears while traversing such crossing and the driver shall not shift gears while crossing the tracks or tracks.

(b) No stop need be made at any such crossing where a police officer or a traffic-control signal directs traffic to proceed.

(c) This section shall not apply at street-railway grade crossings within a business or residence district.

(City Code 1951, Title 11, § 112)

Cross reference—Railroads generally, § 10:1 et seq.

State law reference—Similar provisions, R.S. 32:173.

Sec. 11:113. Emerging from alley, driveway or building. (City)

The driver of a vehicle emerging from an alley, building, private road or driveway within a business or residence district shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across such alley,

*State law reference—Similar provisions, R.S. 32:171 et seq.

building entrance, road or driveway, or if there is no sidewalk area, shall stop at the point nearest the street to be entered where the driver has a view of approaching traffic thereon.
(City Code 1951, Title 11, § 113)

State law reference—Similar provisions, R.S. 32:124.

Sec. 11:114 Overtaking and passing school bus. (City)

A. (1) The driver of a vehicle, upon a highway meeting or overtaking from any direction, any school bus that has stopped for the purpose of receiving or discharging any school children shall stop the vehicle not less than thirty (30) feet from the school bus before reaching such school bus when they are in operation on said school bus visual signals, as required by R.S. 32:318, and said driver shall not proceed until such bus resumes motion or the visual signals are no longer activated.

(2) The driver of any school bus is authorized to notify the appropriate law enforcement authority of any violation of this subsection within twenty-four (24) hours of the violation. This notification shall be in writing on a form provided to the bus driver by the school board, shall be signed by the school bus driver, under penalty of criminal prosecution, in the presence of two (2) witnesses, and it shall include the license plate number and color of the vehicle. The notice may be sent to the appropriate law enforcement agency by mail, fax, or electronically. If mailed, the notice shall be deemed timely if postmarked the day after the violation.

(3) The appropriate authority may issue a citation to the owner or, in the case of a leased vehicle, the lessee of the vehicle involved, on the basis of this information. The owner or lessee shall not be cited if the vehicle is stolen, or if another driver is cited for the violation.

(4) Any person convicted of violating this subsection shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both, in accordance with the provisions of R.S. 32:398.2, and shall have his driver's license suspended in accordance with the provisions of R.S. 32:414(A)(2).

B. (1) Every school bus used for the transportation of school children shall bear upon the front and rear thereof the words "SCHOOL BUS" in black letters not less than eight (8) inches in height placed as high as possible without impairment of visibility, and no other lettering shall be visible from the front or rear except the words "emergency exit" shall be painted in black letters at least two (2) inches in height and approximately located near such exit.

(2) (a) In addition, every school bus shall be equipped with visual signs and signals as required in R.S. 32:318. Such signs and signals shall be activated by the driver of said school bus under and only under one (1) of the following conditions:

(i) Such vehicle is stopped or is about to stop on the roadway for the purpose of receiving or discharging school children.

(ii) Though not receiving or discharging school children, the bus is stopped or is about to stop because it meets or is following another bus that has such signs and signals activated.

(b) The driver of any school bus equipped only with signal lamps as provided in R.S. 32:318(B)(1) shall activate such lamps at least one hundred (100) feet, but not more than five hundred (500) feet, before every stop for which activation is required and upon stopping shall exhibit the semaphore sign or signs provided for in R.S. 32:318(B)(2) and upon resuming motion shall deactivate both the lamps and the semaphore sign or signs. The driver of any school bus

equipped with signal lamps as provided in R.S. 32:318(B)(4) shall activate the yellow (amber) lights at least one hundred (100) feet, but not more than five hundred (500) feet, before every stop for which activation is required, shall deactivate these lamps upon stopping, shall exhibit the red flashing lamps and semaphore sign or signs while stopped, and upon resuming motion shall deactivate both the lamps and the semaphore sign or signs.

C. The driver of a vehicle upon a highway with separate roadways need not stop upon meeting or passing a school bus which is on a different roadway or when upon a controlled access highway and the school bus is stopped in a loading zone which is a part of or adjacent to such highway and where pedestrians are not permitted to cross the roadway.

D. When, if, and on the date that the department of transportation and development develops, adopts, and promulgates guidelines to establish school bus loading zones pursuant to Senate Concurrent Resolution No. 9 of the 1983 Regular Session of the Louisiana Legislature, the requirements of subsection A of this section regarding a vehicle stopping on a highway when meeting or overtaking a school bus and regarding the driver of a school bus activating the visual signs and signals shall be effective when a school bus stops on the shoulder of a highway for the purpose of receiving or discharging any school children as provided in the guidelines.
(City Code 1951, Title 11, § 114; Ord. No. 14470, § 1, 8-27-08)

State law reference—Similar provisions, R.S. 32:80.

Sec. 11:115. Stop when traffic obstructed. (City)

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed.
(City Code 1951, Title 11, § 115)

CHAPTER 11. ONE-WAY STREETS AND ALLEYS

Sec. 11:120. Authority to sign one-way streets and alleys. (City)

Whenever any ordinance of this city designates any one-way street or alley the traffic engineer shall place and maintain signs giving notice thereof, and no such regulation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited.
(City Code 1951, Title 11, § 120)

Sec. 11:121. One-way streets and alleys. (City)

Upon those streets and parts of streets and in those alleys described in section 11:330, vehicular traffic shall move only in the indicated direction when signs indicating the direction of traffic are erected and maintained at every intersection where movement in the opposite direction is prohibited.
(City Code 1951, Title 11, § 121)

Sec. 11:122. Authority to restrict direction of movement on streets during certain periods. (City)

(a) The police department or traffic engineer is hereby authorized to determine and designate streets, parts of streets, or specific lanes thereof, upon which vehicular traffic shall proceed during periods of construction, repairs or other periods when in the opinion of the traffic engineer or the police department, all or a portion of such street or streets, or lanes, should not be used by traffic. The traffic engineer or the police department may erect signs temporarily designating the lanes to be used or not to be used, and the direction of traffic flow.

(b) It shall be unlawful for any person to operate any vehicle in violation of such markings, signs, barriers or other devices so placed in accordance with this section.
(City Code 1951, Title 11, § 122)

CHAPTER 12. SPEED RESTRICTIONS*

Sec. 11:130. Basic rule. (City)

No person shall drive a vehicle at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing. Consistent with the foregoing, every person shall drive at a safe and appropriate speed when approaching and crossing an intersection or railroad grade crossing, when approaching and going around a curb, when approaching a hill crest, when traveling upon any narrow or winding roadway, and when special hazards exist with respect to pedestrians or other traffic or by reason of weather or highway conditions.
(City Code 1951, Title 11, § 130)

State law reference—Similar provisions, R.S. 32:64.

Sec. 11:131. Maximum limits.

(a) Except when a special hazard exists that requires lower speed for compliance with section 11:130, no driver shall drive his vehicle in excess of the speed limit posted on that street or highway on which the vehicle is being operated.

(b) Subject to the restrictions imposed by section 11:130, where there are no signs posted indicating speed limits on non-striped residential streets in recognized subdivisions, the speed limit applicable to that street or roadway shall be twenty-five (25) miles per hour, and no driver shall drive his vehicle in excess thereof.

(c) No vehicle shall be driven at a greater rate of speed than twenty (20) miles per hour, unless posted otherwise, on either side of the street in a school zone, including city streets on the Louisiana State University campus, during the periods as established by the chief traffic engineer, and as posted in the school area.

(d) No vehicle shall be driven in excess of one-half of the maximum speed limits allowed in the area while making a turn at a corner.
(City Code 1951, Title 11, § 131; Ord. No. 15702, § 1, 5-28-14; Ord. No. 18599, § 1, 8-10-22)

*__State law reference—__Similar provisions, R.S. 32:61 et seq.

Sec. 11:132. Prima facie limits. (City)

It is hereby determined upon the basis of an engineering, and traffic investigation, that the speed limit of twenty-five (25) miles per hour required under section 11:131(b) is necessary in the interest of pedestrian safety and for the safe operation of vehicles upon, by reason of the designation and sign posting of such streets as through streets or by reason of widely spaced intersections, and it is hereby declared that the prima facie speed limit upon these streets or portions thereof described in section 11:336 shall be as therein stated, which speed so declared shall be effective at all times when signs are erected giving notice thereto.
(City Code 1951, Title 11, § 132; Ord. No. 15702, § 2, 5-28-14)

Sec. 11:132.1. Exception to general speed limit.

Notwithstanding the provisions of section 11:132 and 11:133, the speed limit on Staring Lane between Dawson's Creek and Highland Road shall be set at thirty-five (35) miles per hour.
(Ord. No. 15766, § 1, 9-10-14)

Sec. 11:133. Regulation of speed by traffic signals. (City)

The traffic engineer is hereby authorized to regulate the timing of all traffic signals so as to permit the movement of traffic in an orderly and safe manner at speeds slightly at variance from the speeds otherwise applicable within the district or at intersections and shall direct appropriate signs giving notice thereof.
(City Code 1951, Title 11, § 133)

Sec. 11:134. Reserved.

Editor's note—Ord. No. 15702, § 3, adopted May 28, 2014, amended the Code by repealing former § 11:134 in its entirety. Former § 11:134 pertained to petitions to reduce speed limit, and derived from Ord. No. 15138, adopted May 25, 2011.

CHAPTER 13. SERIOUS TRAFFIC OFFENSES

Sec. 11:140. Operating a vehicle while intoxicated.

(a) The crime of operating a vehicle while intoxicated is the operating of any motor vehicle, aircraft, watercraft, vessel, or other means of conveyance when:

(1) The operator is under the influence of alcoholic beverages; or

(2) The operator's blood alcohol concentration is 0.08 percent or more by weight based on grams of alcohol per one hundred (100) cubic centimeters of blood; or

(3) The operator is under the influence of any controlled dangerous substance listed in schedule I, II, III, IV, V as set forth in R.S. 40:964; or

(4) The operator is under the influence of a combination of alcohol and one (1) or more drugs which are not controlled dangerous substances and which are legally obtainable with or without a prescription and the label on the container of the prescription drug or the manufacturer's package of the drug contains a warning against combining the medication with alcohol; or

(5) The operator is under the influence of one (1) or more drugs which are not controlled dangerous substances and which are legally obtainable with or without a prescription.

a. It shall be an affirmative defense to any charge under this subparagraph that the operator did not knowingly consume quantities of the drug or drugs that substantially exceed the dosage prescribed by the physician or the dosage recommended by the manufacturer of the drug.

(b) (1) On a first conviction, notwithstanding any other provision to the contrary, the offender shall be fined not less than three hundred dollars ($300.00) nor more than one thousand dollars ($1,000.00), and shall be imprisoned for not less than ten (10) days nor more than six (6) months. Imposition or execution of sentence shall not be suspended unless:

a. The offender is placed on probation with a minimum condition that he serve two (2) days in jail and participate in a court-approved substance abuse program and participate in a court-approved driver improvement program; or

b. The offender is placed on probation with a minimum condition that he perform four (4), eight-hour days of court-approved community service activities, at least one-half of which shall consist of participation in a litter abatement or collection program, participate in a court-approved substance abuse program, and participate in a court-approved driver improvement program. An offender who participates in a litter abatement or collection program pursuant to this subparagraph, shall have no cause of action for damages against the entity conducting the program or supervising his participation therein, including a municipality, parish, sheriff, or other entity, nor against any official, employee, or agent of such entity, for any injury or loss in a direct result of lack of supervision or act omission of the supervisor, unless the injury or loss is a direct result of the lack of supervision or act or omission of the supervisor, unless the injury or loss was caused the intentional or grossly negligent act or omission of the entity or its official, employee, or agent.

(2) If the offender had a blood alcohol concentration of 0.15 percent or more by weight based on grams of alcohol per one hundred (100) cubic centimeters of blood, at least forty-eight (48) hours of the sentence imposed pursuant to subsection (b)(1) of this section shall be served

without the benefit of parole, probation, or suspension of sentence. Imposition or execution of the remainder of the sentence shall not be suspended unless the offender complies with subsection (b)(l)a. or b. of this section.

(c) (1) On a second conviction, notwithstanding any other provision of law to the contrary, regardless of whether the second conviction occurred before or after the first conviction, the offender shall be fined not less than seven hundred fifty dollars ($750.00), and not more than one thousand dollars ($1,000.00) and imprisoned for not less than thirty (30) days not more than six (6) months. At least forty-eight (48) hours of the sentence imposed shall be served without the benefit of parole or probation, or if the offender had a blood alcohol concentration of 0.15 or greater, at least four (4) days of the sentence imposed shall be served without the benefit of parole, probation, or suspension of sentence. Nothing herein shall prohibit a court from sentencing a defendant to home incarceration, if otherwise allowed under the provisions of Article 894.2 of the Code of Criminal Procedure. Imposition or execution of the remainder of the sentence shall not be suspended unless:

a. The offender is placed on probation with a minimum condition that he serve fifteen (15) days in jail and participate in a court-approved substance abuse program and participate in a court-approved driver improvement program; or

b. The offender is placed on probation with a minimum condition that he perform thirty (30), eight-hour days of court-approved community service activities, at least half of which shall consist of participation in a litter abatement or collection program, and participate in a court-approved substance abuse program and participate in a court-approved driver improvement program. An offender who participates in a litter abatement or collection program pursuant to this subparagraph, shall have no cause of action for damages against the entity conducting the program or supervising his participation therein, including a municipality, parish, sheriff, or other entity, nor against any official, employee, or agent of such entity, for any injury or loss in a direct result of lack of supervision or act omission of the supervisor, unless the injury or loss is a direct result of the lack of supervision or act or omission of the supervisor, unless the injury or loss was caused the intentional or grossly negligent act or omission of the entity or its official, employee, or agent.

(2) If the offender had a blood alcohol concentration of 0.15 percent or more by weight based on grams of alcohol per one hundred (100) cubic centimeters of blood, at least ninety-six (96) hours of the sentence imposed pursuant to subsection (c)(1) of this section shall be served without the benefit of parole, probation, or suspension of sentence. Imposition or execution of the remainder of the sentence shall not be suspended unless the offender complies with subsection (c)(1)a. or b. of this section.

(d) Reserved.

(e) Any offense under this section committed more than ten (10) years prior to the commission of the crime for which the defendant is being tried shall not be considered in the assessment of penalties hereunder.

(f) Court-approved substance abuse programs provided for herein shall include a screening procedure to determine the portions of the program which may be applicable and appropriate for individual offenders.

(g) This subsection shall be cited as the "child endangerment law." When the prosecutor proves in addition to the elements of the crime as set forth in subsection (a) of this section that a

minor child twelve (12) years of age or younger was a passenger in the motor vehicle, aircraft, watercraft, vessel, or their means of motorized conveyance at the time of the commission of the offense, of the sentence imposed by the court, the execution of the minimum mandatory sentence provided by subsection (b) or (c) of this section, as appropriate, shall not be suspended.

(h) For the purposes of determining whether a defendant has a prior conviction for violation of this section, a conviction under either R.S. 14:32.1, vehicular homicide, or section 13:39.1 of this Code, Vehicular negligent injuring, or a conviction under the laws of the any state or an ordinance of any municipality, town, or similar political subdivision or another state, which prohibits the operation of any motor vehicle, aircraft, watercraft, vessel, or other means of conveyance while intoxicated, while impaired, or while under the influence of alcohol, drugs, or any controlled dangerous substance shall constitute a prior conviction. This determination shall be made by the court as a matter of law.
(City Code 1951, Title 11, § 140; City Ord. No. 4748, § 1, 8-25-82; Ord. No. 7419, § 1, 11-25-84; Ord. No. 8117, § 1, 3-12-86; Ord. No. 8763, § 1, 10-12-88; Ord. No. 9737, §§ 1, 2, 10-27-93; Ord. No. 10065, §§ 1, 2, 10-26-94; Ord. No. 10748, § 1, 10-23-96; Ord. No. 11680, § 1, 3-8-00; Ord. No. 12353, § 1, 6-26-02; Ord. No. 12774, § 1, 10-22-03; Ord. No. 18755, § 1, 2-22-23)

State law reference—Similar provisions, R.S. 14:98.

Sec. 11:141. Underage driving under the influence.

(a) The crime of underage operating a vehicle while intoxicated is the operating of any motor vehicle, aircraft, watercraft, vessel, or other means of conveyance when the operator's blood alcohol concentration is 0.02 percent or more by weight if the operator is under the age of twenty-one based on grams of alcohol per one hundred cubic centimeters of blood.

(b) Any underage person whose blood alcohol concentration is found to be in violation of section 11:140 shall be charged under its provisions rather than under this section.

(c) On a first conviction, the offender shall be fined not less than one hundred nor more than two hundred fifty dollars ($250.00), and participate in a court-approved substance abuse and driver improvement program.

(d) On a second or subsequent conviction, regardless of whether the second offense occurred before or after the first conviction, the offender shall be fined not less than one hundred fifty dollars ($150.00) nor more than five hundred dollars ($500.00), and imprisoned for not less than ten (10) days nor more than three (3) months. Imposition or execution of sentence shall not be suspended unless:

(1) The offender is placed on probation with a minimum condition that he serve forty-eight (48) hours in jail and participate in a court-approved substance abuse and driver improvement program; or

(2) The offender is placed on probation with a minimum condition that he perform ten (10) eight-hour days of court-approved community service activities, at least half of which shall consist of participation in a litter abatement or collection program and participate in a court-approved substance and driver improvement program.

(e) Court programs regarding substance abuse provided for in subsections C. and D. shall include a screening procedure to determine the portions of the program which may be applicable and appropriate for individual offenders.

(f) An offender ordered to participate in a substance abuse program shall pay the cost incurred in participating in the program. Failure to make such payment shall subject the offender to revocation of probation, unless the court determines that the offender is unable to pay.
(Ord. No. 11648, § 1, 1-26-00)

Sec. 11:142. Reckless driving. (City)

(a) Reckless driving is the operation of any motor vehicle upon the streets of the city, or upon any private road or driveway, as defined herein, in a criminally negligent or reckless manner.

(b) Any person who operates a vehicle at a speed or in a manner so as to endanger the life or property of any other person shall be guilty of reckless driving.

(c) Failure to maintain control, as defined in this chapter, shall be a responsive verdict to charges under this section.
(City Code 1951, Title 11, § 142)

State law reference—Similar provisions, R.S. 14:99.

Sec. 11:143. Careless driving. (City)

Any person who drives any motor vehicle in a careless and imprudent manner, without due regard for the width, grade, curves, corner, traffic and use of streets and highways and all other attendant circumstances is guilty of careless driving.
(City Code 1951, Title 11, § 143)

Sec. 11:144. Failure to maintain control. (City)

It shall be unlawful for the driver of any vehicle to negligently fail to maintain reasonable and proper control of the vehicle while operating the vehicle on the streets of the city, or upon any private road, parking lot or driveway.
(City Code 1951, Title 11, § 144; Ord. No. 7504, § 6, 4-25-84)

Sec. 11:145. Fleeing or attempting to elude a police officer. (City)

Any driver of a motor vehicle who wilfully fails or refuses to bring his vehicle to a stop, or who otherwise flees or attempts to elude a pursuing police vehicle, when given visual or audible signal to bring the vehicle to a stop, shall be guilty of a misdemeanor. The signal given by the police officer may be by hand, voice, emergency light or siren. The officer giving such signal shall be in uniform prominently displaying his badge of office, or his vehicle shall be appropriately marked showing it to be an official police vehicle.
(City Code 1951, Title 11, § 145; Ord. No. 7504, § 7, 4-25-84; Ord. No. 11571, § 1, 10-13-99)

State law reference—Flight from an officer, R.S. 14:108.1.

CHAPTER 14. RESERVED*

CHAPTER 15. RESERVED†

CHAPTER 16. RESERVED‡

CHAPTER 17. RESERVED**

CHAPTER 18. REGULATING THE KINDS AND CLASSES OF TRAFFIC ON CERTAIN HIGHWAYS AND BRIDGES††

Sec. 11:200. Load restrictions upon vehicles using certain streets.

The department of public works is hereby authorized to place load restriction signs on the streets and roads of the city-parish.
(City Code 1951, Title 11, § 200; Parish Code 1962, Title 11, § 16; Ord. No. 8670, § 1, 6-8-88)

***Editor's note—**Chapter 14, consisting of §§ 11:150—11:153, relating to method of parking, derived from City Code 1951, title 11, §§ 150—153, was repealed by § 8 of Ord. No. 7504, adopted Apr. 25, 1984. Parking is now regulated by ch. 28 of this title.

†**Editor's note—**Chapter 15, consisting of §§ 11:160—11:175, regulating parking in specified places, derived from City Code 1951, title 11, §§ 160—175; Parish Code 1962, title 11, § 12; and Ord. No. 7102, § 1, adopted Apr. 13, 1983, was repealed by Ord. No. 7504, § 8, adopted Apr. 25, 1984. Parking is now regulated by ch. 28 of this title.

‡**Editor's note—**Chapter 16, consisting of §§ 11:180—11:185, regulating stopping for loading in the city, derived from City Code 1951, title 11, §§ 180—185, was repealed by § 8 of Ord. No. 7504, adopted Apr. 25, 1984. These provisions are now governed by ch. 28 of this title.

***Editor's note—**Chapter 17, consisting of §§ 11:190—11:196, regulating parking on certain streets, derived from City Code 1951, title 11, §§ 190—196, was repealed by § 8 of Ord. No. 7504, adopted Apr. 25, 1984. Parking is now governed by ch. 28 of this title.

††**Editor's note—**Section 1 of Ord. No. 8770, adopted Oct. 26, 1988, added "and Bridges" to the title of ch. 18.

Sec. 11:201. Commercial vehicles prohibited from using certain streets.

(a) When signs are erected giving notice thereof, no person shall operate any commercial vehicle exceeding the gross weight established by the department of public works; except that such vehicles may be operated thereon for the purpose of delivering or picking up materials or merchandise and then only by entering such street at the intersection nearest the destination of the vehicle and proceeding thereon no farther than the nearest intersection thereafter.

(b) All trucks having more than two (2) axles shall be restricted to the streets shown in section 11:337 except where local pickups and deliveries require travel on other routes. The department of public works shall erect signs on each of the streets shown in section 11:337 designating each of such streets as a truck route; and when such signs have been so erected, no truck having more than two (2) axles shall be operated on any other streets than those set forth in section 11:337 except for the purpose of local pickups and deliveries, as provided above. Where pickups and deliveries are required to be made, they shall be made in a direct traffic pattern from the nearest designated truck route.

(c) No commercial vehicle with a gross vehicle weight rating (GVWR) of fifteen thousand (15,000) pounds or more shall be operated on any street other than a designated truck route, except for the purpose of local pickups and deliveries. Where pickups and deliveries are required to be made, they shall be made in a direct traffic pattern from the nearest designated truck route.

(d) Notwithstanding subsections (a), (b) and (c) of this section, an owner or operator of a truck having two (2) or more axles shall be allowed to drive the cab of such vehicle to and from his residence if his residence is in a rural district and is not within a recognized subdivision. Travel to and from the residence shall be made in a direct traffic pattern from the nearest designated truck route.

(City Code 1951, Title 11, § 201; Parish Code 1962, Title 11, § 17; Ord. No. 8670, § 2, 6-8-88; Ord. No. 9699, § 1, 8-25-93; Ord. No. 10670, § 1, 8-14-96)

Sec. 11:202. Restrictions upon use of streets by certain vehicles.

(a) The department of public works is hereby authorized to determine and designate those heavily traveled streets upon which shall be prohibited the use of the roadway by motor-driven cycles, bicycles, horse-drawn vehicles, or other non-motorized traffic, and shall erect appropriate signs giving notice thereof.

(b) When signs are so erected giving notice thereof, no person shall disobey the restrictions stated on such signs.

(c) Where bicycle lanes and bicycle trails are marked by the department of public works, no motor-driven vehicle shall enter such a trail or lane except for the purpose of entering or leaving a driveway or intersecting street, and shall do so only when no bicycle rider is so close as to constitute a hazard.

(City Code 1951, Title 11, § 202; Parish Code 1962, Title 11, § 18)

Sec. 11:203. Mississippi River levee; motor vehicles prohibited.

No person shall operate a motor vehicle over, upon or across the Mississippi River levee, except on surfaced or graveled roadways and surfaced or graveled areas; no parking shall be permitted upon the roadway. The department of public works is hereby authorized to establish load and unload zones at appropriate places upon the roadway.

(City Code 1951, Title 11, § 203; Parish Code 1962, Title 11, § 19)

Sec. 11:204. Moving houses and heavy equipment regulated; penalty.

(a) It shall be unlawful to move any house or heavy equipment, over the streets and roads of this city, between the hours of 6:00 to 9:00 a.m., and 2:00 to 6:00 p.m.

(b) The terms "house" and "heavy equipment" as used above shall refer only to those structures or equipment which require two (2) or more lanes of travel space and/or the raising or removal of overhead lines and wires for movement, provided that such terms shall also apply to any

moving vehicle which, under normal city driving conditions, cannot reach and maintain a speed of at least twenty-five (25) miles per hour, assuming no other obstacles require slower speed.
(City Code 1951, Title 11, § 204; Parish Code 1962, Title 11, § 20; Ord. No. 7504, § 9, 4-25-84)

Sec. 11:205. Loads on vehicles; care required thereto; definitions.

(a) The load on a vehicle shall not drop, sit, leak or otherwise escape therefrom, except that sand may be dropped on a highway to secure traction or a liquid substance may be dropped on a highway to clean or maintain such highway.

(b) The load on any vehicle shall be securely fastened so as to prevent the covering or load from becoming loose, detached or in any manner a hazard to other users of the highway.

(c) *Loose material* means dirt, sand, gravel or other material that is capable of blowing or spilling from a vehicle as a result of movement or exposure to air, wind currents or weather, but shall not include agricultural products in their natural state or wood chips.
(Ord. No. 8117, § 1, 3-12-86)

State law reference—Similar provisions, R.S. 32:383.

Sec. 11:206. Load restrictions upon vehicles using bridges.

When signs are erected giving notice thereof, no person shall operate any vehicle upon a bridge exceeding the posted gross weight limit for that bridge as established by the department of public works in accordance with the bridge inspection reports filed in the department of public works engineering division.
(Ord. No. 8770, § 2, 10-26-88)

Sec. 11:207. Escort of oversized vehicles.

(a) *Definition.* As used in this section, an oversized vehicle shall be any vehicle or combination of vehicles, which, together with its load, exceeds either twelve (12) feet in width, or fourteen (14) feet in height, or ninety (90) feet in length. However, a mobile home (as defined in Title 11, section 11:1) which is sixteen (16) feet or less in width shall not be considered an oversize vehicle.

(b) No person shall operate or permit to be operated an oversized vehicle, as defined in this section, within the corporate limits of Baton Rouge, without an escort. This restriction does not apply to:

(1) An oversized vehicle which enters and leaves the corporate limits on the interstate or state highway system, without exiting onto the roads of the city-parish.

(2) An oversized vehicle which is required by state law and/or DOTD regulations to be escorted by state police, provided that the state police escort remains with the oversized vehicle at all times while the vehicle is moving through the city and/or parish with its load.

(c) The escort required for this section shall be:

(1) Two (2) off-duty Baton Rouge police department motorcycle officers; or

(2) State police or a bona fide law enforcement agency escort as dictated by DOTD regulations.

(Ord. No. 10863, § 1, 4-9-97; Ord. No. 11022, § 1, 11-25-97; Ord. No. 15221, § 1, 11-22-11)

CHAPTER 19. ELECTRIC LOW-SPEED SCOOTERS

Sec. 11:210. Definition.

For purposes of this section, the term "electric low-speed scooter" shall mean a scooter weighing less than one hundred (100) pounds that has handlebars and an electric motor, is solely powered by an electric motor or human power, and has a maximum speed of not more than fifteen (15) miles per hour on a paved level surface when powered solely by an electric motor. An electric low-speed scooter shall not be considered a motor-driven cycle, a vehicle, or a motor vehicle.
(Ord. No. 17951, § 1, 11-4-20)

Sec. 11:211. Riding on electric low-speed scooters.

No electric low-speed scooter shall be used to carry more than one (1) person at one (1) time. (Ord. No. 17951, § 1, 11-4-20)

Sec. 11:212. Clinging to vehicles.

No person operating an electric low-speed scooter shall attach himself or the scooter to any other vehicle being operated upon a highway. (Ord. No. 17951, § 1, 11-4-20)

Sec. 11:213. Carrying articles.

No person operating an electric low-speed scooter on a roadway shall carry any package, bundle, or article that prevents the operator from keeping both hands on its handlebars. (Ord. No. 17951, § 1, 11-4-20)

Sec. 11:214. Riding on roadways; exceptions.

(a) Every person operating an electric low-speed scooter upon a roadway shall ride as near to the right side of the roadway as practicable, using bicycle lanes when possible, exercising due care when passing a standing vehicle or a vehicle proceeding in the same direction, except under any of the following circumstances:

(1) When overtaking and passing another electric low-speed scooter, bicycle, or vehicle proceeding in the same direction.

(2) When preparing to turn or turning left at an intersection, or into a private road or driveway.

(3) When reasonably necessary to avoid fixed or moving objects, vehicles, bicycles, pedestrians, animals, surface hazards, substandard width lanes, or any other condition that makes it unsafe to continue along the right-hand curb or edge of the roadway. For purposes of this paragraph, a "substandard width lane" is a lane that is too narrow for an electric low-speed scooter and another electric low-speed scooter, bicycle, or a vehicle to travel safely side-by-side within the lane.

(b) The operator of a motor vehicle, when overtaking and passing an electric low-speed scooter proceeding in the same direction on the roadway, shall exercise due care when the motor vehicle is passing the electric low-speed scooter, and shall leave a safe distance between the motor vehicle and the electric low-speed scooter of not less than three (3) feet, and shall maintain such safe distance until safely past the overtaken electric low-speed scooter. The operator of a motor vehicle may pass an electric low-speed scooter traveling in the same direction in a no-passing zone only when it is safe to do so. (Ord. No. 17951, § 1, 11-4-20)

Sec. 11:215. Equipment.

(a) An electric low-speed scooter shall be equipped with a brake that enables the operator to make its braked wheels skid on dry, level, and clean pavements.

(b) An electric low-speed scooter, when in use during the times specified in R.S. 32:301, shall be equipped with appropriate lights, reflectors, or reflective markings. The device shall be visible from all distances from fifty (50) feet to five hundred (500) feet to the rear when directly in front of lawful upper beams of headlamps of a motor vehicle.

(c) Any operator of an electric low-speed scooter under the age of seventeen (17) years shall wear an approved helmet as provided in R.S. 32:199. (Ord. No. 17951, § 1, 11-4-20)

Sec. 11:216. Parking.

No person shall park an electric low-speed scooter upon a street or upon the sidewalk in such manner to obstruct pedestrian traffic. (Ord. No. 17951, § 1, 11-4-20)

Sec. 11:217. Speed.

No person shall operate an electric low-speed scooter at a speed greater than fifteen (15) miles per hour on a paved level surface when powered solely by an electric motor. The city-parish may further limit the speed of electric low-speed scooters through geofencing or other means to preserve user safety, maintain pre-existing traf-

fic conditions or traffic flow, or otherwise maintain quality-of-life in areas that may be disrupted by shared mobility devices traveling at greater speeds.
(Ord. No. 17951, § 1, 11-4-20)

Sec. 11:218. Penalties.

(a) Every person over the age of seventeen (17) years convicted of a violation of any provision of this chapter shall be punished by a fine of not more than fifty dollars ($50.00) or by imprisonment for not more than five (5) days.

(b) Persons seventeen (17) years of age and under in violation of any provisions of this chapter may be charged before the family court of the parish.
(Ord. No. 17951, § 1, 11-4-20)

CHAPTER 20. OPERATION OF BICYCLES*

Sec. 11:220. Effect of regulations.

(a) It is a misdemeanor for any person to do any act forbidden or fail to perform any act required in this chapter.

(b) The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this chapter.

(c) These regulations applicable to bicycles shall apply whenever a bicycle is operated upon any street or upon any public path set aside for the exclusive use of bicycles, subject to those exceptions stated herein.
(Ord. No. 18344, § 1, 11-23-21)

*__Editor's note—__Ord. No. 18344, § 1, adopted November 23, 2021, repealed ch. 20, §§ 11:220—11:233, and enacted a new ch. 20 as set out herein and later amended. Former ch. 20 pertained to operation of bicycles and play vehicles and derived from City Code 1951, title 11, §§ 220—232; Ord. No. 8669, adopted June 8, 1988; Ord. No. 10940, adopted July 23, 1997; and Ord. No. 15673, adopted April 9, 2014.

__State law reference—__Operation of motorcycles, motor-driven cycles and bicycles, R.S. 32:191 et seq.

Sec. 11:221. Traffic laws apply to persons riding bicycles.

Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this state, applicable to the driver of the vehicle, except as to special regulations in this chapter, including special regulations applying to police officers utilizing bicycles in furtherance of their official duties, and except as to those provisions of this chapter which by their nature can have no application.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:222. Obedience to traffic-control devices.

(a) Any person operating a bicycle shall obey the instructions of official traffic-control signals, signs and other control devices applicable to vehicles, unless otherwise directed by a police officer.

(b) Whenever authorized signs are erected indicating that no right or left or U turn is permitted, no person operating a bicycle shall disobey the direction of any such sign, except where such person dismounts from the bicycle to make any such turn in which event such person shall then obey the regulations applicable to pedestrians.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:223. Riding on bicycles.

(a) A person propelling a bicycle shall not ride other than upon or astride a permanent or regular seat attached thereto.

(b) No bicycle shall be used to carry more persons at one (1) time than the number for which it is designed and equipped.

(c) A person operating a bicycle shall at all times keep at least one (1) hand upon the handle bars thereof.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:224. Riding on roadways and bicycle paths.

(a) Every person operating a bicycle upon a roadway shall ride as near to the right-hand side of the roadway as practicable, exercising due care when passing a standing vehicle or one (1) proceeding in the same direction, except under any of the following circumstances:

(1) When overtaking and passing another bicycle or vehicle proceeding in the same direction.

(2) When preparing for a left turn at an intersection or into a private road or driveway.

(3) When reasonably necessary to avoid fixed or moving objects, vehicles, bicycles, pedestrians, animals, surface hazards, or substandard width lane or any other conditions that make it unsafe to continue along the right-hand curb or edge of the roadway. For purposes of this paragraph, a "substandard width lane" is a lane that is too narrow for a bicycle and a vehicle to travel safely side by side within the lane.

(4) When approaching a place where a right turn is authorized.

(b) Persons riding bicycles upon a roadway shall not ride more than two (2) abreast except on paths or parts of roadways set aside for the exclusive use of bicycles.

Any person operating a bicycle upon a roadway or a highway, where there are two (2) or more marked traffic lanes and traffic travels in only one (1) direction, may ride as near the left-hand curb or shoulder of that roadway as practicable.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:225. Speed.

No person shall operate a bicycle at a speed greater than is reasonable and prudent under the conditions then existing.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:226. Emerging from alley or driveway.

The operator of a bicycle emerging from an alley, driveway or building shall, upon approaching a sidewalk or the sidewalk area extending across any alleyway, yield the right-of-way to all pedestrians approaching on the sidewalk area, and upon entering the roadway shall yield right-of-way to all vehicles approaching on the roadway.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:227. Clinging to vehicles.

No person riding upon any bicycle, skates, skateboard or any other nonmotorized rideable device shall attach himself or the device to any vehicle upon a street or roadway.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:228. Carrying articles.

No person operating a bicycle shall carry any package, bundle or article which prevents the rider from keeping at least one (1) hand upon the handlebars.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:229. Parking.

No person shall park a bicycle other than on the street in a designated "bike corral" or docking station or upon the sidewalk in a rack to support the bicycle or against a building or at the curb, in such manner as to afford the least obstruction to pedestrian traffic.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:230. Riding on sidewalks.

(a) No person shall ride a bicycle upon a sidewalk within a business district.

(b) The chief of police is authorized to erect signs on any sidewalk or roadway prohibiting the riding of bicycles thereon by any person and when such signs are in place no person shall disobey the same.

(c) Whenever any person rides a bicycle upon a sidewalk, such person shall yield the right-of-way to any pedestrian and shall give audible signals before overtaking and passing such pedestrian.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:231. Lamps and other equipment on bicycles.

(a) Any bicycle when in use under the conditions described in subsection (b) shall be equipped with the following:

(1) A lamp mounted on the front that shall emit a white light visible from a distance of at least five hundred (500) feet to the front. A generator-powered lamp that emits light only when the bicycle is moving may be used to meet this requirement.

(2) A lamp mounted on the rear that shall emit either a flashing or steady red light visible from a distance of five hundred (500) feet to the rear.

(3) A red reflector mounted on the rear and a reflector on each side facing outward at a right angle to the bicycle frame that shall be visible from all distances from one hundred (100) feet to six hundred (600) feet to the rear when directly in front of lawful lower beams of head lamps on a motor vehicle.

(b) When lighted lamps are required:

(1) At any time between sunset and sunrise.

(2) When, due to insufficient light or unfavorable atmospheric conditions, persons and vehicles on the highway are not clearly discernable at a distance of five hundred (500) feet ahead.

(c) A bicycle or its operator may be equipped with lights or reflectors in addition to those required by subsection (a) of this section, except that red lamps and red reflectors shall not be used on the front of the bicycle and white lamps and white reflectors shall not be used on the rear of the bicycle.

(d) A lamp or lamps worn by the operator of a bicycle shall comply with the requirements of subsection (a) of this section, if the lamp or lamps can be seen at the distances specified.

(e) No person shall operate any bicycle on a state highway, parish road, or city street at a time specified in subsection (b) unless such bicycle is equipped with lamps and reflectors to comply with subsection (a) of this section.

(f) This section shall not apply to operators of bicycles or bicycles while the operator or bicycle is engaged in sanctioned competition races or to bicycles while utilized by police officers in furtherance of their official duties.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:232. Brakes on bicycles.

(a) Every bicycle having more than one (1) gear shall be equipped with front and rear brakes which will enable the operator to make the braked wheels skid on dry, level, clean pavement.

(b) The operator of a bicycle having only one (1) gear and no other brakes shall be able to make the rear wheel skid on dry, level, clean pavement.

(c) The operator of a bicycle having only one (1) gear with brakes shall be able to make the rear wheel skid on dry, level, clean pavement.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:233. Freestyle skateboarding, bicycling, and roller skating prohibited on park structures.

It shall be unlawful for any person to use, operate or ride any skateboard, bicycles or roller skates on or upon structures and site furnishings of North Boulevard Town Square, Repentance Park, Riverfront Plaza and Riverfront Landing Facility, Maritime Plaza, the Baton Rouge River Center Plaza, City Hall Building and Plaza, Florida Street Levee Access Plaza, Baton Rouge City Court Building, Municipal Building, 19th Judicial District Courthouse and the east and west high-rise parking garages in the city.
(Ord. No. 18344, § 1, 11-23-21)

Sec. 11:234. Penalty.

(a) Every person over the age of seventeen (17) years convicted of a violation of any provision of this chapter shall be punished by a fine of not more than twenty-five dollars ($25.00).

(b) Persons under seventeen (17) years of age in violation of any provisions of this chapter may be charged before the family court of the parish.
(Ord. No. 18344, § 1, 11-23-21)

CHAPTER 21. SPECIAL RULES FOR MOTORCYCLES*

Sec. 11:240. Traffic laws apply to persons operating motorcycles. (City)

Every person operating a motorcycle shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of any other vehicle under this title, except as to special regulations in this chapter and except as to those provisions of this title which by their nature can have no application.
(City Code 1951, Title 11, § 240)

Sec. 11:241. Riding on motorcycles. (City)

(a) A person operating a motorcycle shall ride only upon the permanent and regular seat attached thereto, and such operator shall not carry any other person nor shall any other person ride on a motorcycle unless such motorcycle is designed to carry more than one person, in which event a passenger may ride upon the permanent and regular seat if designed for two (2) persons, or upon another seat firmly attached to the motorcycle at the rear or side of the operator.

(b) A person shall ride upon a motorcycle only while sitting astride the seat, facing forward, with one leg on each side of the motorcycle.

(c) No person shall operate a motorcycle while carrying any package, bundle, or other article which prevents him from keeping both hands on the handlebars.

(d) No operator shall carry any person, nor shall any person ride, in a position that will interfere with the operation or control of the motorcycle or the view of the operator.
(City Code 1951, Title 11, § 241)

State law reference—Similar provisions, R.S. 32:191.

Sec. 11:242. Operating motorcycles on roadways laned for traffic. (City)

(a) All motorcycles are entitled to full use of a lane and no motor vehicles shall be driven in such a manner as to deprive any motorcycle of the full use of a lane. This subsection shall not apply to motorcycles operated two (2) abreast in a single lane.

(b) The operator of a motorcycle shall not overtake and pass in the same lane occupied by the vehicle being overtaken.

(c) No person shall operate a motorcycle between the lanes of traffic or between adjacent lines or rows of vehicles.

(d) Motorcycles shall not be operated more than two (2) abreast in a single lane.

(e) Subsections (b) and (c) shall not apply to police officers in the performance of their official duties.
(City Code 1951, Title 11, § 242)

State law reference—Similar provisions, R.S. 32:191.1.

Sec. 11:243. Clinging to other vehicles. (City)

No person riding upon a motorcycle shall attach himself or the motorcycle to any other vehicle on a street or roadway.
(City Code 1951, Title 11, § 243)

State law reference—Similar provisions, R.S. 32:196.

Sec. 11:244. Footrests and handlebars. (City)

(a) Any motorcycle carrying a passenger, other than in a sidecar or enclosed cab, shall be equipped with footrests for such passenger.

*__State law reference—__Operation of motorcycles, motor-driven cycles and bicycles, R.S. 32:191 et seq.

(b) No person shall operate any motorcycle with handlebars more than fifteen (15) inches in height above that portion of the seat occupied by the operator.
(City Code 1951, Title 11, § 244)

State law reference—Similar provisions, R.S. 32:191.3.

Sec. 11:245. Equipment for motorcycle riders. (City)

(a) No person shall operate or ride upon a motorcycle unless he is wearing protective headgear which complies with the standards established by the state under the State Highway Regulatory Act.

(b) No person shall operate a motorcycle unless he is wearing an eye-protective device of a type approved by the state under the State Highway Regulatory Act.

approved by the state under the State Highway Regulatory Act.

(c) Subsection (b) shall not apply to persons riding within an enclosed cab, or to those operating a motorcycle with a windscreen.
(City Code 1951, Title 11, § 245)

State law reference—Similar provisions, R.S. 32:190, 32:190.1.

Sec. 11:246. Riding motorcycles, three-wheelers, four-wheel all-terrain vehicles or go-carts on vacant lots or tracts of land prohibited in designated locations.

(a) No person shall operate a motorcycle, three-wheeler, four-wheel all-terrain vehicle or go-cart upon vacant lots or tracts of land within the city limits of the city or upon vacant lots or tracts of land within a recognized subdivision of the parish or within five hundred (500) feet of a recognized subdivision of the parish.

(b) No person shall modify the exhaust system of a motorcycle, three-wheeler, four-wheel all-terrain vehicle or go-cart in a manner which would amplify or increase the noise emitted by such vehicle above that emitted by the muffler originally installed on such vehicle; nor shall any person operate a motorcycle, three-wheeler, four-wheel all-terrain vehicle or go-cart having such a modified exhaust system except on legally permitted riding tracts.

(c) Every motorcycle, three-wheeler, four-wheel all-terrain vehicle or go-cart shall at all times be equipped with a muffler in good working order; and no person shall use a muffler cutout, bypass, or similar device upon a motorcycle, three-wheeler, four-wheel all-terrain vehicle or go-cart while operating the motorcycle, three-wheeler, four-wheel all-terrain vehicle or go-cart in the city or parish except on legally permitted riding tracts.

(d) Any person riding a motorcycle, three-wheeler, four-wheel all-terrain vehicle or go-cart upon his or her own property, or any person riding such vehicles on property with the permission of the owner thereof, shall be exempt from the provisions of subsection (a) above. This exemption does not preclude charges being filed under title 12, chapter 2 (Noise Ordinance) of this Code (section 12:100 et seq.).

(e) Any governmental agency using such vehicles in the performance of its duties, particularly the East Baton Rouge Parish Mosquito Abatement District, is exempt from the provisions of subsection (a) above.

(f) Whoever violates the provisions of this section shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or imprisoned not more than ninety (90) days at the discretion of the court.
(Ord. No. 7636, 8-22-84; Ord. No. 8132, § 1, 4-9-86; Ord. No. 9802, § 1, 1-12-94)

CHAPTER 22. EQUIPMENT OF VEHICLES*

Sec. 11:250. Equipment of motor vehicles. (City)

Every motor vehicle operated upon the streets of this city shall be constructed and equipped in every respect as provided by the highway regulatory laws of the state.
(City Code 1951, Title 11, § 250)

Sec. 11:251. Inspection sticker required. (City)

No person shall drive a vehicle upon the streets of this city, or permit or allow any vehicle owned or under his control to be driven on the streets, unless and until such vehicle bears a current inspection tag showing it to have been inspected and approved as required by the provisions of R.S. 32:1301—32:1310, if such vehicle is required to be so inspected.
(City Code 1951, Title 11, § 251; Ord. No. 7504, § 11, 4-25-84)

State law reference—Motor vehicle inspection, R.S. 32:1301 et seq.

Sec. 11:251.1. False certificates. (City)

(a) No person shall make, issue or knowingly use any imitation or counterfeit of an official certificate of inspection.

*State law reference—Similar provisions, R.S. 32:301 et seq.

(b) No person shall display or cause or permit to be displayed upon any vehicle any certificate of inspection and approval knowing the same to be fictitious or issued for another vehicle or issued without an inspection having been made.
(Ord. No. 8117, § 1, 3-12-86)

State law reference—Similar provisions, R.S. 32:1308.

Sec. 11:252. Vehicle license required. (City)

No person shall operate, or permit to be operated, any motor vehicle upon the streets of this city unless it has a current and properly displayed license plate in accordance with the laws of this state.
(City Code 1951, Title 11, § 252; Ord. No. 7504, § 12, 4-25-84)

State law reference—Similar provisions, R.S. 32:51.

Sec. 11:253. Spotlights and auxiliary lamps.

A.(1) A spotlight shall be authorized only on motor vehicles which meet one of the following conditions:

(a) The vehicle is a publicly owned emergency vehicle.

(b) The vehicle is operated by a public service corporation as approved by the secretary of the department of public safety.

(c) The spotlight is for use within a municipality where such use is specifically permitted by special ordinance and such use shall be restricted to such municipalities.

(d) The vehicle is owned and operated by a farmer. A spotlight authorized by this subparagraph:

(i) Shall be mounted only on the back panel of the cab of a pickup truck;

(ii) Shall not rotate more than one hundred eighty (180) degrees at the rear of the cab;

(iii) Shall not face the front of the vehicle at any time;

(iv) Shall be used solely for agricultural purposes; and

(v) Shall not be operated on any state or local highway.

(2) When use of a spotlight is permitted, every such illuminated spotlight shall be operated upon approaching another vehicle so that no part of the high-intensity portion of the beam will be directed to the left of the prolongation of the extreme left side of the vehicle nor more than one hundred (100) feet ahead of the vehicle.

B. Any motor vehicle may be equipped with not more than two (2) fog lamps mounted on the front of the vehicle at a height of not less than twelve (12) inches nor more than thirty (30) inches above the level surface upon which the vehicle stands and so aimed that when the vehicle is not loaded none of the high-intensity portion of the light to the left of the center of the vehicle shall, at a distance of twenty-five (25) feet ahead, project higher than a level of four (4) inches below the level of the center of the lamp from which it comes. Lighted fog lamps meeting the above requirements may be used with lower head lamp beams as specified in section 11:254.

C. Any motor vehicle may be equipped with not more than two (2) auxiliary passing lamps mounted on the front of the vehicle at a height not less than twenty-four (24) inches nor more than forty-two (42) inches above the level surface upon which the vehicle stands. The provisions of section 11:254 shall apply to any combination of head lamps and auxiliary passing lamps.

D. Any motor vehicle may be equipped with not more than two (2) auxiliary driving lamps mounted on the front of the vehicle at a height not less than sixteen (16) inches nor more than forty-two (42) inches above the level surface upon which the vehicle stands. The provisions of section 11:254 shall apply to any combination of head lamps and auxiliary driving lamps.
(Ord. No. 8117, § 1, 3-12-86)

State law reference—Similar provisions, R.S. 32:317.

Sec. 11:254. Multiple-beam road-lighting equipment.

Except as hereinafter provided, the head lamps or the auxiliary driving lamps or the auxiliary passing lamp or combinations thereof on motor vehicles other than motorcycles or motor-driven

cycles shall be so arranged that the driver may control the selection between the distributions of light projected to different elevations, subject to the following requirements and limitations:

(1) There shall be an uppermost distribution of light, or composite beam, so aimed and of such intensity as to reveal persons in vehicles at a distance of at least five hundred (500) feet ahead for all conditions of loading.

(2) There shall be a lowermost distribution of light, or composite beam, so aimed and of such intensity as to reveal persons in vehicles at a distance of at least one hundred fifty (150) feet ahead; and on a straight level road under any condition of loading none of the high-intensity portion of the beam shall be directed to strike the eye of an approaching driver.

(3) Every new motor vehicle, other than a motorcycle or motor-driven cycle, registered in this state after January 1, 1955, which has multiple-beam road-lighting equipment shall be equipped with a beam indicator, which shall be lighted whenever the uppermost distribution of light from the head lamps is in use, and shall not otherwise be lighted. This indicator shall be so designed and located

that when lighted it will be readily visible without glare to the driver of the vehicle so equipped.

(Ord. No. 8117, § 1, 3-12-86)

State law reference—Similar provisions, R.S. 32:321.

Sec. 11:255. View outward or inward through windshield or windows, obscuring prohibited.

(a) As used in this section and regulations applicable thereto, the following terms shall have the following meanings, unless the context of use clearly indicates otherwise:

(1) *Glass coating material* means a material that is designed to be used in conjunction with safety glazing materials of a type meeting standards adopted by the department of public safety for reducing the effects of the sun.

(2) *Light transmission* means the ratio of the amount of total light to pass through the product or material, including any glazing material, to the amount of total light falling on the product or material and the glazing.

(3) *Luminous reflectance* means the ratio of the amount of total light that is reflected outward by the product or material to the amount of total light falling on the product or material.

(4) *Manufacturer* means a person who engages in the manufacture or assembly of a vehicle glass coating material, or who fabricates, laminates or tempers a safety glazing material, incorporating, during the manufacturing process, the capacity to reflect or rescue the transmission of light.

(b) Except as provided by section 11:253.C, no person may operate a motor vehicle with any object or material placed on or affixed to the front windshield or to front side windows of the vehicle so as to obstruct or reduce the driver's clear view through the front windshield or front side windows, or place on or affix to the front windshield or the front side windows of a motor vehicle, any transparent material if the material alters to color or reduces the light transmission of the windshield or front side windows.

(c) The provisions of this section do not apply to any of the following:

(1) A front side window having a glass coating material, in conjunction with safety glazing material, with a light transmission of at least fifty (50) percent, plus or minus three (3) percent, and a luminous reflectance of not more than thirty-five (35) percent, plus or minus three (3) percent.

(2) A transparent material, not red or amber in color, affixed by the original manufacturer to the topmost portion of the windshield.

(3) An adjustable nontransparent sun visor mounted forward of the side windows and not attached on the glass.

(d) In no event shall any person operate a motor vehicle with any windows having a glass coating material that causes a total luminous reflectance of more than thirty-five (35) percent plus or minus three (3) percent.

(e) (1) Each manufacturer shall provide a label with a means for permanent and legible installation between the material and each glazing surface to which it is applied, that contains the following information:

a. The manufacturer's name or registration number;
b. A statement "Complies with VESC-20"; and
c. Numerical percent of light actually transmitted.

(2) This label shall be affixed to the lower left corner of each window affected.

(Ord. No. 8599, 2-10-88)

State law reference—Similar provisions, R.S. 32:361.1.

CHAPTER 23. MISCELLANEOUS RULES

Sec. 11:260. Unattended motor vehicle. (City)

No person driving or in charge of a motor vehicle shall permit it to stand unattended without first stopping the engine, locking the ignition,

removing the key from the ignition, effectively setting the brake thereon and when standing upon any grade, turning the front wheels to the curb or side of the highway.
(City Code 1951, Title 11, § 260)

State law reference—Similar provisions, R.S. 32:145.

Sec. 11:261. Limitations on backing. (City)

(a) The driver of a vehicle shall not back the same unless such movement can be made with safety and without interference with other traffic.

(b) The driver of a vehicle shall not back the same upon any shoulder or roadway of any controlled-access highway, except as a result of an emergency caused by an accident or breakdown of a motor vehicle.
(City Code 1951, Title 11, § 261)

State law reference—Similar provisions, R.S. 32:281.

Sec. 11:262. Driving upon sidewalk. (City)

No person shall drive any vehicle upon a sidewalk or sidewalk area except upon a permanent or duly authorized temporary driveway.
(City Code 1951, Title 11, § 262)

Sec. 11:263. Driving over private property. (City)

No person shall drive any vehicle through or over private property, including, but not limited to, any corner parking or driveway facility from a highway, for the purpose of reentering another highway.
(City Code 1951, Title 11, § 263)

Sec. 11:264. Obstruction to driver's view or driving mechanism. (City)

(a) No person shall drive a vehicle when it is so loaded, or when there are in the front seat such a number of persons, exceeding three (3), as to obstruct the view of the driver to the front or side of the vehicle, or as to interfere with the driver's control over the driving mechanism of the vehicle.

(b) No passenger in a vehicle shall ride in such position as to interfere with the driver's view ahead or to the sides, or to interfere with his control over the driving mechanism of the vehicle.
(City Code 1951, Title 11, § 264)

State law reference—Similar provisions, R.S. 32:282.

Sec. 11:265. Opening and closing vehicle doors. (City)

No person shall open the door of a motor vehicle on the side available to moving traffic unless and until it is reasonably safe to do so, and can be done without interfering with the movement of other traffic, nor shall any person leave a door open on the side of a vehicle available to moving traffic for a period of time longer than necessary to load or unload passengers.
(City Code 1951, Title 11, § 265)

State law reference—Similar provisions, R.S. 32:283.

Sec. 11:266. Riding in house trailers. (City)

No person or persons shall occupy a house trailer while it is being moved upon a public highway.
(City Code 1951, Title 11, § 266)

State law reference—Similar provisions, R.S. 32:284.

Sec. 11:267. Following fire apparatus prohibited. (City)

The driver of any vehicle other than one on official business shall not follow any fire apparatus traveling in response to a fire alarm closer than five hundred (500) feet or drive into or park such vehicle within the block where the fire apparatus has stopped in answer to a fire alarm.
(City Code 1951, Title 11, § 267)

Cross reference—Fire protection, title 5.

State law reference—Similar provisions, R.S. 32:286.

Sec. 11:268. Crossing fire hose. (City)

No vehicle shall be driven over any unprotected hose of a fire department when laid down on any street, private road or driveway to be used at any fire or alarm of fire, without the consent of the fire department official in command.
(City Code 1951, Title 11, § 268)

Cross reference—Fire protection, title 5.

State law reference—Similar provisions, R.S. 32:287.

Sec. 11:269. Stop when traffic obstructed. (City)

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, not withstanding any traffic-control signal indication to proceed.
(City Code 1951, Title 11, § 269)

Sec. 11:270. Reserved.

Editor's note—Ord. No. 17062, § 1, adopted May 8, 2019, repealed § 11:270, which pertained to driving through funeral or other procession (city) and derived from City Code 1951, Title 11, § 270.

Sec. 11:271. Drivers in a procession. (City)

Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway as practicable and shall follow the vehicles ahead as close as is practicable and safe.
(City Code 1951, Title 11, § 271)

Sec. 11:272. Funeral processions to be identified. (City)

A funeral composed of a procession of vehicles shall be identified as such by the display upon the outside of each vehicle of a pennant or other identifying insignia or by such other method as may be determined and designed by the traffic division.
(City Code 1951, Title 11, § 272)

Sec. 11:273. When permits required for parades and processions. (City)

No funeral, procession or parade containing two hundred (200) or more persons or fifty (50) or more vehicles except the armed forces of the United States, the military forces of this state and the forces of the police and fire departments, shall occupy, march or proceed along any street except in accordance with a permit issued by the chief of police and such other regulations as are set forth herein which may apply.
(City Code 1951, Title 11, § 273)

Sec. 11:274. Wearing of headphones while operating a motor vehicle.

(a) The wearing of headphones by any operator of a motor vehicle is hereby prohibited. For purposes of this section, "headphones" shall mean a headset, headphone, or listening device other than a hearing aid or instrument for the improvement of defective human hearing which covers both ears or which is inserted into both ears. Any headset, headphone, or other listening device which covers or which is inserted into only one (1) ear may be used at any time.

(b) The provisions of this section shall not apply to:

(1) Any law enforcement officer or emergency vehicle operator equipped with any communication device necessary in performing his assigned duties.

(2) Any person operating a motorcycle who is using a headset that is installed in a helmet and worn so as to prevent the speakers from making direct contact with the user's ears so that the user can hear surrounding sounds.

(c) No vehicle, contents of a vehicle, or driver in a vehicle shall be inspected, stopped, detained, or searched solely because of a violation of or to determine compliance with this section.

(d) The operation of a vehicle in violation of the provisions of this section shall not be considered a moving violation as provided for under the provisions of Title 32 of the Louisiana Revised Statutes of 1950.

(e) Whoever violates the provisions of this section shall be fined twenty-five dollars ($25.00) in addition to court costs.
(Ord. No. 10749, § 1, 10-23-96)

Sec. 11:275. Clinging to moving vehicles. (City)

No person shall ride or cling to the outside of any vehicle, including but not limited to the running board, fender, bumper or radiator of any vehicle, or any other outside portion thereof.
(City Code 1951, Title 11, § 275)

State law reference—Similar provisions, R.S. 32:196.

Sec. 11:276. Sirens and whistles prohibited. (City)

No vehicle, except authorized emergency vehicles, shall be equipped with, nor shall any driver of any vehicle, except authorized emergency vehicles, use any siren, bell or whistle or any other type of horn or horns, or other similar devices, which are used ordinarily by fire department or police department vehicles, or ambulances, and which might cause others to believe that such were authorized emergency vehicles.

(City Code 1951, Title 11, § 276)

State law reference—Similar provisions, R.S. 32:351(B).

Sec. 11:277. Use of flashing red and blue lights restricted. (City)

No vehicle, except authorized emergency vehicles, shall display a flashing or blinking red or blue light to the front of the vehicle, while the vehicle is in motion.

(City Code 1951, Title 11, § 277)

Sec. 11:278. Quiet zone. (City)

The chief of police shall have the authority to temporarily establish a zone of quiet upon any street where a person is seriously ill if requested to do so by a physician who states that such zones shall be marked by conspicuous signs bearing the words which will call such to the attention of the operators of vehicles.

(City Code 1951, Title 11, § 278)

Sec. 11:279. Making unnecessary noise prohibited. (City)

It shall be unlawful for the driver of any vehicle to make an unnecessary noise by means of the horn or other device on his said vehicle; he being required to drive his vehicle as quietly as possible at all times and especially during the hours between 10:00 p.m., and 7:00 a.m., daily. The provisions of this section shall be in addition to the provisions of the antinoise ordinance in title 12, chapter 2 of this Code.

(City Code 1951, Title 11, § 279)

Sec. 11:280. Smoking in motor vehicles prohibited; penalties.

(a) It shall be unlawful for the operator or any passenger in a motor vehicle to smoke cigarettes, pipes, cigars, or any vaping devices in a motor vehicle, passenger van, or pickup truck, when a child who is required to be restrained in a rear-facing child safety seat, a forward-facing child safety seat, a booster seat, or a motor vehicle's safety belt, as required in section 11:287 of this chapter, is also present in such vehicle, regardless of whether windows of the motor vehicle are down. For purposes of this section, the term "smoke" shall mean inhaling, exhaling, burning, or carrying any activated aerosol or vapor or any lighted cigarette, cigar, pipe, weed, plant, or other combustible substance in any manner or in any form.

(b) Whoever violates the provisions of this section shall be fined one hundred fifty dollars ($150.00) per offense, or at the discretion of the judge, may be sentenced to no less than twenty-four (24) hours of community service.

(c) Probable cause for a violation of this section shall be based solely upon a law enforcement officer's clear and unobstructed view of a person smoking as prohibited by this section. Violation of this section shall be considered a primary offense, and any law enforcement officer may stop a motor vehicle solely because of a violation of this section; however, a law enforcement officer may not search or inspect a motor vehicle, its contents, the driver, or a passenger solely because of a violation of this section.

(d) A violation of this section shall be considered a nonmoving violation, and a citation issued by a law enforcement officer for such violation shall not be included on the driver's operating record.

(Ord. No. 18419, § 1, 2-23-22)

Editor's note—Former § 11:280, prohibiting the throwing of litter from vehicles in the city, derived from City Code 1951, title 11, § 280, was repealed by § 10 of Ord. No. 9340, adopted Sept. 25, 1991.

Sec. 11:281. Driver's license required. (City)

(a) It shall be unlawful for any person to operate or drive a motor vehicle within the limits of the city, without a driver's license as required by the laws of the state.

(b) It shall be unlawful for any person to permit or allow any other person to drive or operate any vehicle owned or controlled by him within the limits of the city unless and until such other person has been issued a license to do so as required by the laws of the state.
(City Code 1951, Title 11, § 281)

State law reference—Similar provisions, R.S. 32:52.

Sec. 11:281.1. Licensees must give notice of change of address.

Whenever any person after applying for or receiving a license shall move permanently from the address or place of residence named in the application, he shall, within ten (10) days thereafter, notify the driver's license division, in writing, of such change and of his new address.
(Ord. No. 8117, § 1, 3-12-86)

State law reference—Similar provisions, R.S. 32:406.

Sec. 11:282. Other laws of the road. (City)

Any violations of provisions and regulations provided by the statutes of the state, and particularly any violation of the provisions of R.S. Title 32, known as the Highway Regulatory Act, shall likewise be deemed in violation of the traffic regulations of the city.
(City Code 1951, Title 11, § 282)

Sec. 11:283. Headlamps; when low beam required. (City)

Whenever a motor vehicle is being operated on a street of this city between sunset and sunrise, or at such times as atmospheric conditions require

the use of headlamps on the vehicle, the operator of such vehicle must dim the lights to the lowermost distribution of light when approaching an oncoming vehicle within five hundred (500) feet, or when following another vehicle within two hundred (200) feet to the rear.
(City Code 1951, Title 11, § 283; Ord. No. 7504, § 13, 4-25-84)

State law reference—Similar provisions, R.S. 32:322.

Sec. 11:284. Reserved.

Editor's note—Ord. No. 7504, § 14, adopted April 25, 1984, amended the Code by repealing former § 11:284 in its entirety. Former § 11:284 pertained to regulation of parking of wreckers, buses, trucks and semitrailers, and derived from the City Code of 1951, Title 11, § 284.

Sec. 11:285. Weights and standards enforcement, payment and collection procedures.

(a) The city police and the parish sheriff's office shall have concurrent authority with the weights and standards police force and the state police to enforce the size, weight and load of vehicle provisions found in Louisiana Revised Statutes 32:380 through 32:388 (or their successors), all inclusive.

(b) Any city police officer or parish sheriff's deputy having reason to believe that any vehicle or combination of vehicles exceeds or is in violation of the provisions of Louisiana Revised Statutes 32:380 through 32:386 or the terms and conditions of a special permit issued under Louisiana Revised Statutes 32:387 or regulations of the department of transportation and development, office of highways, sections 11:200 through 11:202 of this Code, is authorized to stop such vehicle or combination of vehicles to inspect, measure or weigh such vehicles, either by means of portable or stationary scales, or to require that such vehicle be driven to the nearest available location equipped with facilities to inspect, measure or weigh such vehicles.

(c) Whenever any vehicle or combination of vehicles is found in violation of any provision of this chapter or any regulation of the department of transportation and development, office of highways, the city police shall take the name and address of the owner and driver and the license number of the vehicle and shall issue a violation ticket assessing a penalty for such violation in accordance with Louisiana Revised Statutes 32:388.
(Ord. No. 7391, 12-14-83)

Sec. 11:286. Vehicular and pedestrian traffic restricted in alleys.

(a) No person or persons not owning or occupying property adjoining an alley shall operate a vehicle, or walk or loiter, in or upon such alley or alleys except for the purposes of providing governmental services (such as trash or garbage pickup and law enforcement), servicing utilities, or gaining access to property adjoining such alley or alleys when authorized by the owner or occupant thereof.

(b) Whoever shall violate the provisions of subsection (a) above shall be guilty of a misdemeanor and upon conviction shall be punished by a fine of not more than one hundred dollars ($100.00) or imprisonment in jail for not more than thirty (30) days, or both, in the discretion of the court.
(Ord. No. 7611, 8-8-84)

Sec. 11:287. Child passenger restraint system.

(a) Except as provided in subsections (c), (d) and (e) of this section, every driver in this city and parish who transports a child or children under the age of thirteen (13) years in a motor vehicle which is equipped with safety belts shall have the child properly secured as follows:

(1) A child younger than six (6) years of age or weighing sixty (60) pounds or less shall be restrained in a child restraint system as provided for in this subsection that complies with standards of the United States Department of Transportation and is secured in the vehicle in accordance with the instructions of the manufacturer of the child restraint system and the passenger seating position is equipped with a safety belt system that allows sufficient space for installation. The child restraint system required for a child younger than

six (6) years of age or weighing sixty (60) pounds or less is, in descending order of protectiveness, as follows:

a. A child who is younger than one (1) year of age or weighs less than twenty (20) pounds shall be restrained in a rear-facing child safety seat.

b. A child who is at least one (1) year of age but younger than four (4) years of age or who weighs at least twenty (20) pounds but less than forty (40) pounds shall be restrained in a forward-facing child safety seat.

c. A child who is at least four (4) years of age but younger than six (6) years of age or who weighs at least forty (40) pounds but not more than sixty (60) pounds shall be restrained in a child booster seat. The requirements of this subparagraph shall not apply in any seating position where there is only a lap belt available and the child weighs more than forty (40) pounds.

(2) A child who is at least six (6) years of age or weighs more than sixty (60) pounds shall be restrained with the motor vehicle's safety belt adjusted and fastened around the child's body or in an appropriately fitting child booster seat in accordance with the instructions of the manufacturer of the safety belt or child booster seat.

(3) A child who because of age or weight can be placed in more than one (1) category shall be placed in the more protective category.

(b) (1) The term "motor vehicle" as used in this section shall not mean the following: bicycle; farm tractor; motorcycle or motor-driven cycle; truck or manufacturer's rating carrying capacity of over two thousand (2,000) pounds; ambulance or other emergency vehicle; school bus; church bus, private bus or recreational vehicle which has a passenger capacity of over ten (10) persons; or commercial truck, van or taxi.

(2) The term "child restraint system" as used in this section shall mean a lap belt, a shoulder harness, or an age- or size-appropriate child safety seat as required by this section.

(3) The term "child booster seat" as used in this section means a child passenger restraint system that meets the Federal Motor Vehicle Safety Standards set forth in 49 C.F.R. 571.213 and is designed to elevate a child to properly sit in a federally approved safety belt system.

(c) When the vehicle is equipped with a passenger side air bag supplemental restraint system, and the air bag system is activated, the driver of a vehicle transporting a child who is younger than six (6) years of age or weighs less than sixty (60) pounds shall transport the child in the rear seat positions in the vehicle if rear seats are available.

(d) When the number of children under the age of thirteen (13) in the motor vehicle exceeds the number of age- or size-appropriate passenger restraint systems and seat belts available in the motor vehicle, the unrestrained children shall be seated in a rear seat, if rear seats are available.

(e) The provisions of this section shall not apply when one of the following conditions exists:

(1) The motor vehicle is being used as an ambulance or other emergency vehicle;

(2) An emergency exists which threatens the life of any person operating a motor vehicle to whom this section otherwise would apply or the life of any child who otherwise would be required to be restrained under this section;

(3) Any child who would otherwise be required to be restrained under this section who is physically unable because of medical reasons to use a child passenger safety system or safety belt.

(f) In no event shall failure to wear a child passenger safety seat system be considered as comparative negligence, nor shall such failure be

admissible as evidence in the trial of any civil action with regard to negligence, nor shall such failure be considered a moving violation.

(g) Any operator of a motor vehicle stopped for a violation of this section and against whom enforcement action has been taken shall not be guilty of a subsequent violation of this section until after twenty-four (24) hours have elapsed from the date and time of the violation as indicated on the traffic ticket.

(h) A violation of this section involving failure to secure a child in any type of child restraint system shall be a primary offense. However, failure to secure a child in the age- or size-appropriate restraint, as specified by subsection (a) of this section, shall be a secondary offense and a driver may be cited only if stopped for a moving violation.

(i) (1) Except as provided by paragraph (2) of this subsection, any person who violates this section shall upon conviction be fined fifty dollars ($50.00) for a first offense, one hundred dollars ($100.00) for a second offense, and one hundred dollars ($100.00) plus all costs of court for a third or subsequent offense.

(2) Any person who violates this section but whose violation is limited to failure to utilize an age- or size-appropriate child restraint system to secure an otherwise restrained child shall not be fined more than twenty-five dollars ($25.00) including fees and court costs.

(Ord. No. 7763, 1-9-85; Ord. No. 8567, § 2, 12-9-87; Ord. No. 12901, § 1, 3-10-04)

Sec. 11:287.1. Safety belt required.

(a) *Definitions.* When used in this section, the following words and phrases have the meaning ascribed to them, unless the context clearly indicates a different meaning:

Passenger car means any passenger car required to be equipped with safety belts by Federal Motor Vehicle Standard No. 208 (49CFR 571.208).

Seat belt means the manual restraint system installed by the manufacturer as required by Federal Motor Vehicle Standard No. 208, which became effective January 1, 1968.

(b) *Safety belt required for driver.* Each driver of a passenger car in this city and parish shall have a safety belt properly fastened about his or her body at all times when the vehicle is in forward motion.

(c) *Safety belt for front seat occupant.* Except as otherwise provided by law, each front seat occupant of a passenger car in this city and parish shall have a safety belt properly fastened about his or her body at all times when the vehicle is in forward motion, if a belt for his seating space has been provided by the manufacturer.

(d) *Exception for rural postal carriers.* This section shall not apply to a motor vehicle operated by a rural letter carrier of the United States Postal Service while performing his or her duties as a rural letter carrier.

(e) *Exception for disabled persons.* This section shall not apply to an occupant of a passenger car or operator with a physically or mentally disabling condition whose physical or mental disability would prevent appropriate restraint in the safety belt; however, the condition shall be duly certified by a physician who shall state the nature of the handicap, as the reason such restraint is inappropriate.

(f) *Negligence.* In any action to recover damages arising out of the ownership, common maintenance or operation of a motor vehicle, failure to wear a safety belt in violation of this section shall not be considered evidence of comparative negligence. Failure to wear a safety belt in violation of this section may be admitted to mitigate damages, but only when the party offering such evidence proves that:

(1) There was a functioning safety belt available to the injured party.

(2) The injured party failed to use the safety belt;

(3) The failure to use a safety belt contributed to the party's injuries;

(4) The use of a safety belt would have reduced the injured party's damages in an amount equal to or in excess of the amount of mitigation sought. In no event shall the award of damages be reduced by more than two (2) percent for the nonuse of a safety belt.

(g) *Restrictions on search.* No vehicle, driver or passenger in a vehicle shall be inspected or searched solely because of a violation of or to determine compliance with this section.

(h) *Penalty.*

(1) Any person who violates this section shall be subject to the following penalties:

a. Upon conviction of a first offense, the fine shall be twenty-five dollars ($25.00), which shall include all costs of court.

b. Upon conviction of a second offense, the fine shall be fifty dollars ($50.00), which shall include all costs of court.

c. Upon conviction of a third offense and any subsequent offense, the fine shall be fifty dollars ($50.00) plus all costs of court.

(2) Notwithstanding any contrary provision of law, no other cost or fee shall be assessed against any person for a violation of this section.

(Ord. No. 8117, § 1, 3-12-86; Ord. No. 10744, § 1, 10-23-96; Ord. No. 15094, § 1, 2-23-11)

State law reference—Similar provisions, R.S. 32:1(96), (97), 32:295.1.

Sec. 11:288. Proof of insurance required.

It shall be unlawful for any person to operate any motor vehicle within the city limits without proof of insurance, as required by the provisions of R.S. title 32 present in the motor vehicle at the time of operation.

It shall be an extenuating factor to any prosecution for violation of the foregoing that insurance coverage as required by title 32 did in fact exist at the time of the operation.

(Ord. No. 8567, § 3, 12-9-87; Ord. No. 8598, § 1, 2-10-88)

Sec. 11:289. Parking, storing or driving motor vehicles or watercraft on or across neutral grounds, rights-of-way and sidewalks of public or private property and parking or storing of motor vehicles or watercraft on private property without the consent of the owner of said property.

(a) No person, owner of any motor vehicle or watercraft or person having a motor vehicle or watercraft registered in his or her name shall personally or allow any other person to park or stop such motor vehicle or watercraft at any of the following places except when necessary to avoid conflict with other traffic or in compliance with a law enforcement officer's direction or in compliance with a parking control device:

(1) Upon a neutral ground, right-of-way, sidewalk, strip of land between a property line and street curb, or other public way;

(2) Upon any area of property comprising parks, playgrounds, recreation areas or facilities owned or operated by the recreation and parks commission that has not been officially designated as a parking area;

(3) Upon any private property without the consent of the owner thereof;

(4) Upon any portion of the levee of the east bank of the Mississippi River opposite the Louisiana Arts and Science Center.

(b) The provisions of this section shall not apply to emergency vehicles or vehicles used in the maintenance of the property affected.

(c) Whoever violates the provisions of this section shall be fined not less than fifty dollars ($50.00) nor more than two hundred dollars ($200.00), or imprisoned for not more than six (6) months or both.

(Ord. No. 9948, § 2, 6-22-94; Ord. No. 10230, § 1, 3-22-95)

CHAPTER 24. REMOVAL AND DISPOSITION OF TRAFFIC OBSTRUCTIONS

Sec. 11:290. Authority to remove traffic obstructions. (City)

Members of the police department are hereby authorized to remove any traffic obstruction from the streets, bridges, alleyways, municipal parking lots or tunnels in the city.
(City Code 1951, Title 11, § 290)

Sec. 11:291. Authority to impound or immobilize a vehicle. (City)

Members of the city police department or their designated agents may immobilize or remove a vehicle from a street or highway to the nearest garage or other place of safety, or to a garage designated or maintained by the city police department or otherwise maintained by the city under the following circumstances:

(1) When any vehicle is left unattended upon any street, highway or public property in such a manner as to cause a hazard or obstruction to traffic;

(2) When any vehicle upon a street, highway or public property is so disabled as to constitute a hazard or an obstruction to traffic or the person in charge of a vehicle is, by reason of physical injury or arrest, incapacitated to such an extent as to be unable to provide for its custody or removal;

(3) When any vehicle or bicycle is found abandoned or continuously unattended upon any street, highway, bridge or public property for a period in excess of five (5) days;

(4) When any vehicle not possessing a valid and current safety inspection tag as required by Louisiana R.S. 32:1301—32:1310 is found to be in unsafe operating condition;

(5) When any vehicle is left unattended upon a street, highway or public property and against which vehicle there are five (5) or more parking infractions in default status as defined in section 11:409 herein.

(City Code 1951, Title 11, § 291; Ord. No. 7504, § 15, 4-25-84)

Sec. 11:292. Procedure after removal. (City)

(a) Whenever an officer removes a vehicle or bicycle from a street as authorized in section 11:291 and the officer knows or is able to ascertain from the registration records in the vehicle or state motor vehicle registration bureau, the name and address of the owner thereof, such officer shall immediately give or cause to be given notice in writing to such owner of the fact of such removal and the reasons therefor and of the place to which such vehicle has been removed. If any such vehicle is stored in a public garage, a copy of such notice shall be given to the proprietor of such garage.

(b) Whenever an officer removes a vehicle or bicycle from a street under section 11:291 and does not know and is not able to ascertain the name of the owner, or for any reason is unable to give the notice to the owner as hereinbefore provided, and if the vehicle or bicycle is not claimed by the owner within a period of three (3) days, then and in that event the officer shall immediately send or cause to be sent a written report of such removal to the chief of police, and shall file a copy of such notice with the proprietor of any public garage in which the vehicle or bicycle may be stored. Such notice shall include a complete description of the vehicle or bicycle, the date, time and place from which removed, the reason for such removal, and name of the garage or place where the vehicle or bicycle is stored.
(City Code 1951, Title 11, § 292)

Sec. 11:293. Vehicle returned to owner. (City)

The owner or his authorized agent shall be entitled to regain possession of the vehicle or bicycle upon compliance with the following:

(1) Payment of towing fees for the removal and impounding as established by the council;

(2) Payment of all appropriate penalties for parking infractions in default status, in-

cluding immobilization fees. The immobilization fee shall not exceed twenty-five dollars ($25.00).

(City Code 1951, Title 11, § 293; Ord. No. 7504, § 16, 4-25-84)

Sec. 11:294. When owner is unknown. (City)

The chief of police shall insert in the official journal of the city, a notice stating the fact of removal of the vehicle or bicycle, the reasons for the removal, the complete description of the vehicle or bicycle, the name of the garage or place where the vehicle or bicycle is stored, and the fact that the owner is unknown, and that the same will be returned to owner, upon proof of ownership and payment of the removal and impounding fee and cost of this notice.
(City Code 1951, Title 11, § 294)

Sec. 11:295. Disposition of unclaimed vehicles. (City)

(a) Whenever any vehicle or bicycle belonging to a known person is not called for and the charges paid within three (3) days after notice provided in section 11:292, or whenever a vehicle or bicycle belonging to an unknown person is not claimed within ten (10) days after the notice is given as provided for in section 11:292, the chief of police shall insert an advertisement in the official journal of the city once a week for two (2) weeks, describing the vehicle or bicycle and giving the owner's name if known, setting forth the amount of removal and impounding and other costs due, and giving notice that unless all of such costs and charges including the costs of advertisement are paid and the vehicle or bicycle is removed by the owner within ten (10) days after the date of the last advertisement, it will be sold at public auction by the city constable.

(b) After the advertisement has been published and the notice elapsed, if it has not been claimed and the cost and charges paid, the city constable shall advertise in the same paper that the vehicle or bicycle will be offered at public sale to the highest bidder for cash for not less than two-thirds of its appraised value, this advertisement to be published once and the sale to be made not less than ten (10) days nor more than fifteen (15) days from the date of this advertisement, which shall fix the time and place of the sale. At this time the constable shall have the vehicle or bicycle appraised in the manner that personal property is appraised for judicial sales, and shall then offer it at public auction on the terms as advertised. As alternate methods of disposing of unclaimed bicycles, the chief of police, in his sole discretion, may donate such bicycles to charitable organizations providing services to children, including but not limited to the Good Fellows Organization, and foster children in the care and custody of the state department of welfare by court order. Before any such unclaimed bicycle or bicycles shall be donated, as herein provided, the chief of police shall insert an advertisement in the official journal of the city once a week for two (2) weeks, describing the bicycle or bicycles to be so donated and giving the owner's name, if known; and further advising that such bicycles will be available for inspection during the period of advertisement, during which time any interested party, if he can identify any of such bicycles as his own, may claim same. The failure of the owner to claim any bicycles advertised for donation purposes, as herein provided, shall be conclusive proof that the bicycle has been abandoned to the city and the city may thereafter deal with same as the full owner thereof for the purposes herein provided.
(City Code 1951, Title 11, § 295)

Sec. 11:296. Disposition of proceeds of sale. (City)

All funds received from the sale of a vehicle under the sections above shall be transmitted to the director of finance, and he shall deduct therefrom and transfer to the general fund all amounts due for removal and impounding, advertisements, cost of appraisement and sale, including the usual constable's commission, and the balance, if any, to be credited to an account for the owner for one year from date of sale, and if not then claimed, it shall be transferred to the general fund.
(City Code 1951, Title 11, § 296)

Sec. 11:297. Simple obstruction of a highway of commerce.

Simple obstruction of a highway of commerce is the intentional or criminally negligent placing of anything or performance of any act on any railway, railroad, navigable waterway, road, highway, thoroughfare, or runway of an airport, which will render movement thereon more difficult.

Whoever commits the crime of simple obstruction of a highway of commerce shall be fined not more than two hundred dollars ($200.00), or imprisoned for not more than six (6) months, or both. (Ord. No. 10599, § 2, 3-27-96)

CHAPTER 25. PROCEDURES UPON ARREST OR CITATION*

Sec. 11:300. Reserved.

Editor's note—Section 11:300, prescribing penalties for violations of this title, derived from City Code 1951, Title 11, § 300, was repealed by § 18 of Ord. No. 7504, adopted Apr. 25, 1984. See § 11:21 for the current penalty.

Sec. 11:301. Forms and records of traffic citations and arrests. (City)

(a) The director of finance shall provide traffic citation forms for notifying alleged violators to appear in court and answer to charges of violating traffic laws and ordinances of this city. Citation for violators of traffic laws and ordinances shall be in books including serially numbered sets in quadruplicate, which citations shall be in the form prescribed and approved jointly by the parish attorney, the judge and the chief of police.

(b) The director of finance shall issue such books of citation to the chief of police or his duly authorized agent and shall maintain a record of every such book so issued, and shall require a receipt for the same.

(c) The chief of police shall be responsible for the issuance of such books of citations to individual members of the police department and shall require a written receipt for every book of citation so issued, and shall maintain a record of each set of citations so issued.
(City Code 1951, Title 11, § 301; Ord. No. 7504, § 19, 4-25-84)

*Editor's note—Section 17 of Ord. No. 7504, adopted Apr. 25, 1984, changed the title of Ch. 25 from "Penalties and Procedures on Arrest" to "Procedures Upon Arrest or Citation."

Cross reference—Driver's license seized in lieu of bond, § 4:201.

State law reference—Procedure and reports, R.S. 32:391 et seq.

Sec. 11:302. Procedure of police officers. (City)

Except when authorized or directed under state law to immediately take a person before a judge for the violation of any traffic laws, a police officer who halts a person for such violation other than for the purpose of giving him a warning or warning notice and does not take such person

into custody under arrest, shall take the name, address, and operator's license number of the person, the registered number of the motor vehicle involved, and such other pertinent information as may be necessary, and shall issue to him in writing on a form provided by the director of finance a traffic citation containing a notice to answer to the charge against him in the court at a time specified in the citation.
(City Code 1951, Title 11, § 302; Ord. No. 7504, § 19, 4-25-84)

Sec. 11:303. Disposition and records of traffic citations, warrants and complaints. (City)

(a) Every police officer upon issuing a traffic citation to an alleged violator of any provision of the motor vehicle laws of this state or any traffic ordinance of this city shall deposit the original and two (2) duplicate copies of the citation with his immediate superior officer, who shall cause the original to be delivered to the court and the duplicate copies to the central records section of the police department.

(b) All traffic violations shall be processed substantially in accordance with the suggestions contained in the report consisting of five (5) pages entitled "Processing of Quadruplicate Traffic Citations" made by Hudson Hamm, which report is attached hereto and made a part hereof. The procedure established in this report may be changed from time to time, only upon the written recommendations of the chief of police and the judge of the court.

(c) Upon the filing of such original citation in the court of this city as aforesaid, the citation may be disposed of only by trial in the court or by other official action by a judge of the court, including forfeiture of bail or by payment of a fine.

(d) The chief of police shall require the return to him of each traffic citation and all copies thereof, except that copy required to be retained in the book as provided herein, which has been spoiled or upon which any entry has been made and has not been issued to an alleged violator.

(e) The chief of police shall also maintain or cause to be maintained in connection with every traffic citation issued by a member of the police department a record of the disposition of the charge by the court.

(f) The chief of police shall also maintain or cause to be maintained a record of all warrants issued by the traffic court or by any other court on the traffic violation charges and which are delivered to the police department for service, and of the final disposition of all such warrants.

(g) It shall be unlawful and official misconduct for any member of the police department or other officer or public employee to dispose of, alter, or deface a traffic citation or any copy thereof, or the record of the issuance or disposition of any traffic citation, complaint, or warrant in a manner other than as required in this section.
(City Code 1951, Title 11, § 303)

Sec. 11:304. Illegal cancellation of traffic citations. (City)

It shall be unlawful for any person to cancel or solicit the cancellation of any traffic citation in any manner other than as provided by this chapter.
(City Code 1951, Title 11, § 304)

Sec. 11:305. Audit of records and reports. (City)

(a) Every record of traffic citations, complaints thereon and warrants issued therefor required in this chapter shall be audited at least quarterly by the treasurer who shall submit a report of such audit together with a summary thereof to the mayor-president and council. Such reports shall be public records.

(b) The treasurer shall publish a quarterly summary of all traffic citations issued by members of the police department, the disposition of the complaints thereon, and the issuance and disposition of all warrants issued therefor in at least one local daily newspaper of general circulation.

(c) For the purpose of this chapter the treasurer, or his duly authorized representatives, shall have access at all times to all necessary records, files and papers of the court, its traffic violations bureau, and the police department.
(City Code 1951, Title 11, § 305)

Sec. 11:306. When copy of citation shall be deemed a lawful complaint. (City)

If the form of citation provided under section 11:301 includes information and is sworn to as required under the general laws of this state in respect to a complaint or affidavit charging commission of the offense alleged in the citation to have been committed, then such citation when filed with a court having jurisdiction shall be deemed to be a lawful complaint or affidavit for the purpose of prosecution under this title.
(City Code 1951, Title 11, § 306)

Sec. 11:307. Failure to obey citation. (City)

It shall be unlawful for any person to whom a traffic citation has been issued to fail to appear in response to the citation, regardless of the disposition of the charge for which such citation was originally issued.
(City Code 1951, Title 11, § 307)

Secs. 11:308—11:310. Reserved.

Editor's note—The following sections were repealed by § 20 of Ord. No. 7504, adopted Apr. 25, 1984:

11:308, "Citation on illegally parked vehicle," derived from City Code 1951, Title 11, § 308;

11:309, "Failure to comply with traffic citation attached to parked vehicle," derived from City Code 1951, Title 11, § 309;

11:310, "Presumption in reference to illegal parking," derived from City Code 1951, Title 11, § 310.

Sec. 11:311. When warrant to be issued. (City)

If any person fails to comply with a traffic citation given to such person or attached to a vehicle or fails to make appearance pursuant to a summons directing an appearance in court, or if any person fails or refuses to deposit bail as required and within the time permitted by ordinance, the judge shall issue a warrant for his arrest.
(City Code 1951, Title 11, § 311)

Sec. 11:312. Record of traffic cases; report of convictions to state department of public safety. (City)

(a) The judge shall keep or cause to be kept a record of every traffic complaint, traffic citation, or other legal form of traffic charge deposited with or presented to the court, and shall keep a record of every official action by the court in reference thereto, including but not limited to a record of every conviction, forfeiture of bail, judgment of acquittal, and the amount of fine or forfeiture resulting from every traffic complaint or citation deposited with or presented to the court.

(b) Within ten (10) days after the conviction or forfeiture of bail of a person upon a charge of violating any provision of this act or other law regulating the operation of vehicles on highways the clerk of the court of record in which such conviction was had or bail was forfeited shall prepare and immediately forward to the state department of public safety an abstract of the record of the court covering the case in which the person was so convicted or forfeited bail, which abstract must be certified by the person so required to prepare the same to be true and correct. Report need not be made of any conviction involving the illegal parking or standing of a vehicle.

(c) Such abstract must be made upon a form furnished by the state department of public safety and shall include the name and address of the party charged, the number, if any, of his operator's or chauffeur's license, the registration number of the vehicle involved, the nature of the offense, the date of hearing, the judgment, or whether bail was forfeited, and the amount of the fine or forfeiture as the case may be, and such other information as required by state laws.
(City Code 1951, Title 11, § 312)

Sec. 11:313. Disposition of traffic fines and forfeitures. (City)

All fines or forfeitures collected upon conviction or upon the forfeiture of bail of any person charged with a violation of any of the provisions of this title shall be forwarded to the director of finance who shall deposit the finds to the general fund of the city.
(City Code 1951, Title 11, § 313)

Sec. 11:314. Official misconduct. (City)

Failure, refusal or neglect on the part of any judicial or other officer or employee receiving or having custody of any such fine or forfeiture either before or after a deposit as required by law, to comply with the foregoing provisions of this

section shall constitute misconduct in office and shall be grounds for removal therefrom.
(City Code 1951, Title 11, § 314)

CHAPTER 26. SCHEDULES OF DESIGNATED STREETS REFERRED TO IN THIS TITLE

Sec. 11:330. One-way streets. (City)

In accordance with section 11:121 and when properly signposted, traffic shall move only in the direction indicated upon the following streets:

Street	*From*	*To*	*Direction*
Acadian Thurway N. East	North St.	Winbourne	North
Acadian Thurway N. West	Winbourne	North St.	South
Baton Rouge Ave.	Wyandotte	Weller	NB
Bedford Ave.	North Blvd.	Government	SB
Bernardo	Florida	North St.	NB
Braddock	Terrace	East Washington	SB
Brica St.	North Blvd.	Government	SB
Bungalow Ln.	Spanish Town Rd.	North St.	SB
Canonicus	Huron Street	Chippewa Street	SB
Carol Dr.	Acadian Thruway	Carol Marie Dr.	WB
Carol Marie Dr.	Carol Dr.	Marie Dr.	SB
Chimes W.	Nicholson	Iowa	EB
Chimes W.	Lake St.	Highland	EB
Convention St.	10th St.	River Rd.	WB
Costello Ln.	Lakeland	Spanish Town Rd.	SB
Cotton	St. Joseph	East Blvd.	EB
S. Donmoor	Government St.	Florida Blvd.	NB
East Blvd.	North Blvd.	America	SB
Education	East Blvd.	Napoleon	WB
Fuqua	I-110	N. 22nd	EB
Hearthstone	Government	North Blvd.	NB
Hiawatha	Choctaw	Winbourne	NB
Howard	Napoleon	East Blvd.	EB
Iberville	Government	South St.	SB
Kentucky	E. McKinley	E. Johnson	NB
Lafayette	Spanish Town Rd.	North Blvd.	SB
Lakeland Dr.	N. 8th St.	N. 5th St.	WB
Laurel St.	10th St.	River Rd.	WB
Lockwood Ave.	Chippewa	Seneca	SB
Louisiana Ave.			
Lucilla Ln.	North St.	Bungalow	NB
Lupine	Chippowa	Seneca	SB
Main St.	River Rd.	N. 22nd St.	EB
Marcellious	South St.	S. 14th St.	North
Marie Dr.	Carol Marie Dr.	Acadian Thruway	EB
Maximillian	North Blvd.	South Blvd.	SB

Street	*From*	*To*	*Direction*
Mayflower St.	St. Phillip	St. Louis	EB
McCalop	E. Washington	Terrace	NB
Napoleon	E. Washington	Louise	NB
Napoleon	Government	Convention	NB
Nicholson Dr.	St. Philip St.	S. Boulevard	NB
Nokomia	Weller	Wyandotte	SB
North St.	N. 22nd St.	River Rd.	WB
Ogden	Government	North Blvd.	NB
Penalver	St. Ferdinand	St. Charles	NB
Pocahontas St.	Chippowa	Choctaw	SB
Priscilla Ln.	Main St.	North St.	NB
Riverside Mall	North Blvd.	North St.	NB
Riverside North	North St.	Spanish Town Rd.	NB
Royal St.	North Blvd.	Spain	SB
St. Charles	Penalver	North Blvd.	NB
St. Ferdinand	North Blvd.	Penalver St.	SB
St. Gerard	Wildwood Pkwy.	Plank Rd.	WB
St. Joseph	South Blvd.	North Blvd.	NB
St. Katherine	Plank Rd.	Wildwood Pkwy.	EB
St. Louis	South Blvd.	North Blvd.	NB
St. Phillip	Government	Nicholson	SB
Sennette	East Blvd.	Braddock	EB
Seven Oaks	Government	Goodwood	SB
Somervelos	St. Charles	Louisiana Ave.	NB
Somervelos	St. Louis	Louisiana Ave.	SB
South Ridge Dr.	College	Berkshire	SB
Spain	S. 15th St.	S. 16th St.	WB
Spanish Town Rd.	N. 5th St.	N. 9th St.	EB
Spanish Town Rd.	Riverside North	Lafayette	WB
State Capitol	N. 6th St.	N. 7th St.	WB
State Capitol	N. 5th St.	N. 6th St.	EB
University Walk	5th St.	6th St.	EB
Winn Ave.	Goodwood	Esplanade	NB
N. 5th St.	North Blvd.	Spanish Town Rd.	NB
N. 6th St.	Spanish Town Rd.	North Blvd.	SB
N. 7th St.	Convention St.	State Capitol Dr.	NB
N. 8th St.	North Blvd.	Convention	NB
N. 8th St.	North St.	Lakeland	NB
N. 9th St.	Spanish Town Rd.	North Blvd.	SB
N. 10th St.	North Blvd.	Spanish Town Rd.	NB
N. 11th St.	Main	Laurel	SB
N. 11th St.	Florida	North Blvd.	SB
N. 12th St.	North Blvd.	Laurel St.	NB
N. 13th St.	Main St.	North Blvd.	SB
N. 14th St.	North Blvd.	Main St.	NB
N. 17th St.	North St.	Main St.	SB
N. 17th St.	Convention	North Blvd.	SB
N. 18th St.	North Blvd.	Convention	NB

Street	*From*	*To*	*Direction*
N. 19th St.	Madison Ave.	Hemlock	SB
N. 23rd St.	North St.	Gayosa	SB
N. 33rd St.	Acadian Thruway	North St.	SB
S. 10th St.	Government	North Blvd.	NB
S. 10th St.	Government	South St.	SB
S. 10th St.	Myrtle	Terrace	SB
S. 11th St.	Government	North Blvd.	NB
S. 12th St.	North Blvd.	Government	SB
S. 14th St.	South Blvd.	Government	NB
S. 15th St.	Government	South Blvd.	SB
S. 16th St.	South Blvd.	Spain St.	NB
S. 18th St.	Government	North Blvd.	NB
S. 20th St.	Government	North Blvd.	NB
S. 21st St.	North Blvd.	Government	SB

(City Code 1951, Title 11, § 330; Ord. No. 7476, § 1, 3-28-84; Ord. No. 775, 1-23-85; Ord. No. 8525, § 1, 11-25-87; Ord. No. 10201, §§ 1, 2, 3-8-95; Ord. No. 10826, § 1, 2-26-97)

Sec. 11:331. Through streets. (City)

In accordance with the provisions of section 11:85 and when signs are erected giving notice thereof, drivers of vehicles shall yield right-of-way or stop at every intersection before entering any of the following streets or parts of streets:

Street	*From*	*To*
Acadian Thruway	Linden	Perkins Road
Airline Highway	West City Limits	South City Limits
Baton Rouge Avenue	Hollywood Drive	Weller Avenue
Beechwood Street	Evangeline	Prescott
Beechwood Street	Prescott	Mohican
Beechwood Street	Sycamore	Evangline
Boyd Avenue	Third Street	North 18th St.
Broussard Street	Acadian Thruway	County Club Drive
Broussard Street	Perkins Road	Acadian Thruway
Camelia	Government	Kleinert
Capitol Avenue	39th St.	Greenwell Springs Road
Capitol Heights	Acadian Thruway	Jefferson Hwy.
Chippewa Street	Lupine	Acadian Thruway
Choctaw Road	North Third Street	Greenwell Springs Rd.
Claycut Road	Acadian Thruway	Jefferson Hwy.
College-Lee Drive	Jefferson Hwy.	Perkins Road
College-Lee Drive	Perkins Road	Highland Road
Convention	Fourth Street	22nd Street
Dalrymple Drive	Fuqua Street	Highland Road
Drehr Avenue	Government	Kleinert
East Blvd.	North Blvd.	East Washington
East Washington	Government Street	Reymond
East Washington	Scenic Highway	Airline Highway
Eugene Street	Foster	Brookstown

Street	*From*	*To*
Evangline Street	Plank Road	Foster
Fairfields	Fourth Street	East City Limits
Fairfields	Mohican Street	Government Street
Florida Street	St. Louis	Lobdell Avenue
Foster Drive	Foster Drive	Airline Highway
Government Street	Scenic Highway	McClelland
Greenwell Springs Road	Eugene	Glenmore
Hollywood Drive	Lee	Eugene
Hundred Oaks	Lee	South City Limits
Hundred Oaks	Perkins	Lee
Hundred Oaks	Stanford	Lee
Hyacinth Avenue	Eugene	Perkins Road
Hyacinth Avenue	Government	City Limits
Jefferson Highway	Boyd Avenue	North Boulevard
Kleinert Avenue	Fourth Street	19th Street
Lafayette Street	Florida Street	Jefferson Highway
Laurel Street	Highland Road	Stanford
Lobdell Avenue	Fourth Street	33rd Street
LSU Avenue	St. Ferdinard	East Boulevard
Main Street	East Boulevard	South 14th Street
Myrtle Street	Fourth Street	Foster Drive
Myrtle Street	Highland Road	Texas Street
North Boulevard	Texas Street	Dalrymple Drive
North Street	Fourth Street	Foster Drive
Park Boulevard	Fuqua Street	Highland Road
Pawnee	Plank Road	Scenic Highway
Perkins Road	Park Boulevard	East City Limits
Plank Road	Airline Highway	22nd Street
Prescott Road	Plank Road	Airline Highway
St. Ferdinand-Highland Rd.	North Boulevard	South City Limits
St. Louis	South Boulevard	North Boulevard
St. Phillip	North Boulevard	South Boulevard
Scenic Highway	Airline Highway	Main Street
Seven Oaks Avenue	Goodwood Avenue	Lobdell Avenue
South Boulevard	East Boulevard	South 18th Street
South Boulevard	Front Street	East Boulevard
Stanford Avenue	Perkins Road	LSU Avenue
Terrace	Highland Road	Eugene Street
Texas	East Washington	East Roosevelt
Weller Avenue	Scenic Highway	Plank Road
Winbourne Avenue	Scenic Highway	Airline Highway
Winnebago Street	Scenic Highway	Plank Road
3rd Street	North Boulevard	Choctaw Road
4th Street	North Street	North Boulevard
13th Street	Myrtle	Terrace

Street	*From*	*To*
13th Street	North Boulevard	Myrtle
18th Street	North Street	Fuqua
19th Street	Fuqua	Highland Road

(City Code 1951, Title 11, § 331; Ord. No. 7476, § 2, 3-28-84)

Secs. 11:332—11:335. Reserved.

Editor's note—Sections 11:332—11:335, regulating parking, derived from City Code 1951, title 11, §§ 332—335, and § 3 of Ord. No. 7476, adopted Mar. 28, 1984, were repealed by § 21 of Ord. No. 7504, adopted Apr. 25, 1984. Parking is now regulated by ch. 28 of this title.

Sec. 11:336. Speed zones. (City)

In accordance with section 11:132 and when signs are erected giving notice thereof, the prima facie speed limits shall be set forth in this schedule upon those streets or portions thereof:

Street	*Prima Facie Speed Limit (m.p.h.)*	*From*	*To*
Acadian Thruway	40	Perkins Road	Mohican Street
Airbase Avenue	40	Harding Road	B Street
Airline Highway	50	L&A RR (west of corp. limit)	Goodwood Boulevard
Airline Highway	55	Goodwood Boulevard	Cedarcrest Avenue
E. Airport Drive	40	Florida Boulevard	Goodwood Boulevard
Airway Drive	35	Choctaw Drive	Cortana Place
N. Ardenwood Drive	40	Winbourne Avenue	Florida Boulevard
S. Ardenwood Drive	35	Florida Boulevard	Government Street
Ben Hur Road	35	Highland Road	Bayou Fountain
Blount Road	40	La. 19	Liberty Drive
E. Boyd Avenue	35	Highland Road	Nicholson Drive
E. Brookstown Drive	35	Winbourne Avenue	Prescott Road
Broussard Street	35	Perkins Road	Country Club Drive
Burbank Drive	35	Nicholson Drive	Jennifer Jean Drive
Cedarcrest Avenue	35	Weiner Creek	Airline Highway
Chevelle Drive	35	Goodwood Boulevard	Old Hammond Highway
Chippewa Street	40	Plank Road	Riverside North
Choctaw Drive	45	Riverside North	Greenwell Springs Road
S. Choctaw Drive	35	Lobdell Boulevard	Airline Highway
S. Choctaw Drive	45	Airline Highway	Monterrey Boulevard
S. Choctaw Drive	40	Monterrey Boulevard	Dumont Drive
S. Choctaw Drive	45	Dumont Drive	Flannery Road
Claycut Road	35	Acadian Thruway	Jefferson Highway
College Drive	40	S. Ridge Drive	Perkins Road
Cora Drive	35	Florida Boulevard	Goodwood Boulevard
Dalrymple Drive	35	Terrace Avenue	State Street
Donmoor Avenue	35	Florida Boulevard	Renoir Avenue
Drusilla Lane	45	Old Hammond Highway	Jefferson Highway
Essen Lane	45	Perkins Road	Wards Creek
Eugene Street	40	Government Street	Hundred Oaks Avenue

Street	*Prima Facie Speed Limit (m.p.h.)*	*From*	*To*
Evangeline Street	40	Scenic Highway	Airline Highway
Flannery Road	45	Illinois Central RR Crossing	Florida Boulevard
Flannery Road	45	Florida Boulevard	Old Hammond Highway
Florida Street	35	N. 10th Street	Eugene Street
Florida Street—Boulevard	40	Eugene Street	Foster Drive
Florida Boulevard	50	Foster Drive	Little John Drive
Florida Boulevard	55	Little John Drive	Flannery Road
Florida Boulevard (service roads)	35	Airline Highway	Flannery Road
Foster Drive	40	Airline Highway	College Drive
Gardere Lane	45	Highland Road	Bayou Fountain
Goodwood Avenue	35	Jefferson Highway	Lobdell Avenue
Goodwood Boulevard	45	Lobdell Avenue	Airline Highway
Goodwood Boulevard	35	Airline Highway	Flannery Road
Government Street	40	River Road	Lobdell Avenue
Greenwell Street	35	Airline Highway	1400 feet east of Airline Highway (city limits)
Greenwell Springs Road	45	N. Foster Drive	Joor Road
Greenwell Springs Road	50	Joor Road	N. Sherwood Forest
Gus Young Avenue	35	Acadian Thruway	Foster Drive
Harding Boulevard	40	Scenic Highway	East end of Monte Sano Bayou Bridge
Harding Boulevard	50	East end of Monte Sano Bayou Bridge	Plank Road
N. Harrell's Ferry Road	35	Sherwood Forest Boulevard	Boulevard de Province
S. Harrell's Ferry Road	35	Sherwood Forest Boulevard	Jones Creek
S. Harrell's Ferry Road	40	Jones Creek Bridge	Jones Creek Road
Harry Drive	35	Ardenwood Drive	Lobdell Boulevard
Highland Road	35	Terrace Avenue	Chimes Street
Highland Road	25	Dalrymple Drive	S. Stadium Road
Highland Road	35	Parker Boulevard	Delgado Drive
Highland Road	45	Delgado Drive	1600 feet east of Gardere Lane (city limits)
Hollywood Street	35	Scenic Highway	Airline Highway
Hooper Road	45	Plank Road	1500 feet east of Plank Road (city limits)
Hundred Oaks Avenue	35	Perkins Road	Acadian Thruway
Hyacinth Avenue	35	Stanford Avenue	Lee Drive
Independence Boulevard	40	Lobdell Avenue	E. Airport Drive
I-10	55	Mississippi River	Wards Creek
I-12	55	Jefferson Highway	7300 feet east of Sherwood Forest Boulevard (city limits)
I-110	55	I-10	Harding Boulevard
Jefferson Highway	40	Government Street	Bluebonnet Drive

Street	*Prima Facie Speed Limit (m.p.h.)*	*From*	*To*
Jones Creek Road	40	S. Harrell's Ferry Road	Jones Creek
Kenilworth Parkway	35	Highland Road	Perkins Road
Lee Drive	35	Highland Road	Perkins Road
Lobdell Boulevard	50	Greenwell Springs Road	Harry Drive
Lobdell Avenue	35	Harry Drive	Government Street
Lobdell Avenue	40	Government Street	Jefferson Highway
Magna Carta Place	20	—	—
Main Street	35	N. 10th Street	N. 22nd Street
Mohican Street	40	Scenic Highway	Mohican-Prescott Crossover
Mohican-Prescott Crossover	40	Mohican Street	Prescott Road
Mollylea Drive	35	Cora Drive	McGehee Drive
Monterrey Boulevard	40	Greenwell Springs Road	S. Choctaw Drive
Monterrey Boulevard	35	S. Choctaw Drive	Greenwell Springs Road
Nicholson Drive	45	South Boulevard	McKinley Street
Nicholson Drive	35	McKinley Street	Burbank Drive
Nicholson Drive	45	Burbank Drive	City limits
Nicholson Extension	35	Nicholson Drive	Highland Road
North Boulevard	40	19th Street	Foster Drive
North Street	35	N. 10th Street	N. 22nd Street
North Street	40	N. 22nd Street	Foster Drive
Old Hammond Highway	45	Airline Highway	Sherwood Forest Boulevard
Old Hammond Highway	50	Sherwood Forest Boulevard	Flannery Road
Old Hammond Highway	45	Jefferson Highway	Airline Highway
Perkins Road	35	Drehr Avenue	College Drive
Perkins Road	40	College Drive	Pollard Parkway
Perkins Road	45	Pollard Parkway	Madiera Drive
Plank Road	40	N. 22nd Street	Hollywood Street
Plank Road	45	Hollywood Street	Hooper Road
Plank Road	55	Hooper Road	Blount Road
Prescott Road	40	Beechwood Drive	Airline Highway
Renoir Avenue	35	Ardenwood Drive	Lobdell Avenue
River Road	45	Gourrier Avenue	McKinley Street
River Road	35	McKinley Street	North Street
River Road	40	North Street	Riverside North
Riverside North	40	River Road	Chippewa Street
Runnymede Avenue	20	—	—
Scenic Highway	40	Fuqua Street	Weller Avenue
Scenic Highway	45	Weller Avenue	Scotland Avenue (La. 19)
Scotland Avenue (La. 19)	35	Scenic Highway	Rosenwald Road
Scotland Avenue (La. 19)	40	Rosenwald Road	Blount Road
Sharp Road	40	Florida Boulevard	Old Hammond Highway
N. Sherwood Forest Boulevard	45	200 feet north of Big Bend Avenue	Greenwell Springs Road
N. Sherwood Forest Boulevard	40	S. Choctaw Dr.	Florida Boulevard

Street	*Prima Facie Speed Limit (m.p.h.)*	*From*	*To*
S. Sherwood Forest Boulevard	35	Florida Boulevard	Auburn Drive
Stanford Avenue	40	Perkins Road	L.S.U. Avenue
Staring Lane	35	Highland Road	Perkins Road
St. Ferdinand Street	35	North Boulevard	South Boulevard
St. Louis Street	35	South Boulevard	Government Street
Tara Boulevard	35	Goodwood Boulevard	Old Hammond Highway
Tom Drive	35	Lobdell Boulevard	Airway Drive
Winbourne Avenue	40	Plank Road	Airline Highway
Wooddale Boulevard	45	Greenwell Springs Road	Florida Boulevard
N. 22nd Street	40	Plank Road	Government Street

(City Code 1951, Title 11, § 336; Ord. No. 4068, § 1, 6-13-79; Ord. No. 4135, § 1, 10-24-79; Ord. No. 4217, § 1, 3-26-80; Ord. No. 4265, § 1, 7-9-80; Ord. of 8-13-80, § 1; Ord. No. 4356, § 1, 12-10-80; Ord. No. 4379, § 1, 1-28-81; Ord. No. 4380, § 1, 1-28-81; Ord. No. 4499, § 1, 8-26-81; Ord. No. 4572, § 1, 11-25-81; Ord. No. 4676, § 1, 5-12-82; Ord. No. 7054, § 1, 2-23-83)

Sec. 11:337. Truck routes.

In accordance with section 11:201(b) and when properly signposted, all trucks having more than two (2) axles shall be restricted to the following streets, except where allowed otherwise in accordance with subsection 11:201(d):

Street	*From*	*To*
Acadian Thruway	Mohican Street	Perkins Road
Airline Highway	Mississippi River	Bayou Manchac
Anselmo Lane	Essen Lane	IGA Warehouse
Ardenwood Drive	Florida Boulevard	Winbourne Avenue
Balis Drive	Perkins Road	Rabey Street
Ben Hur Road	Highland Road	Nicholson Drive
Blackwater Road	Hooper Road	Greenwell Springs-Port Hudson Road
Bluebonnett Road	Perkins Road	500 ft. north of Interstate 10
Brightside Lane	River Road	Nicholson Drive
Brooklawn Drive	Scenic Highway	West end
Burbank Drive	Nicholson Drive	Siegen Lane
Chamberlain Avenue	Heck Young Road	Simon Street
Chippewa Street	Plank Road	Riverside North
Choctaw Drive	Riverside North	Flannery Road
College Drive	Foster Drive	Perkins Road
Coursey Boulevard	Jones Creek Road	Airline Highway
Deerford Road	Zachary city limits	Plank Road
Denham Road	Joor Road	Greenwell Springs Road
Dequeen Avenue	Sorrell Avenue	East to dead end
Dougherty Drive	Winbourne Avenue	Choctaw Drive
Drusilla Lane	Old Hammond Highway	Jefferson Highway
Dyer Road	Plank Road	Blackwater Road

Street	*From*	*To*
East Airport Drive	Florida Boulevard	Goodwood Avenue
East Industrial Avenue	Wooddale Avenue	Airline Highway
East Perdue	South Perdue	Choctaw Drive
Essen Lane	Perkins Road	Jefferson Highway
Evangeline Street	Airline Highway	Scenic Highway
Flannery Road	Old Hammond Highway	Greenwell Springs Road
Florida Street	River Road	Amite River
Foster Drive	College Drive	Airline Highway
Fuqua Street	I-110	22nd Street
Gardere Lane	Highland Road	River Road
Goodwood Boulevard	Lobdell Avenue	Airline Highway
Government Street	River Road	Lobdell Avenue
Greenwell Springs Road	Foster Drive	North Parish line
Greenwell Springs-Port Hudson Road	Plank Road	Liberty Road
Greenwell Street	Airline Highway	Joor Road
Harding Boulevard	Scenic Highway	Plank Road
Harry Drive	Ardenwood Drive	Lobdell Boulevard
Highland Road	South Boulevard	W. McKinley Street
Highland Road	Ben Hur Road	Jefferson Highway
Hooper Road	Plank Road	Greenwell Springs Road
Independence Boulevard	Lobdell Avenue	East Airport Drive
Industriplex Boulevard	Siegen Lane	Airline Highway
Interstate 10	Mississippi River	Bayou Manchac
Interstate 12	I-10	Amito River
Interstate 110	I-10	Scenic Highway
Jackson Road	Tucker Road	Liberty Road
Jefferson Highway	Government Street	Bayou Manchac
Jones Creek Road	South Harrells Freeway	Coursey Boulevard
Joor Road	Greenwell Springs Road	Greenwell Springs-Port Hudson Road
Joplin Avenue	Ted Dunham Avenue	East to dead end
Lavey Lane	Scotland-Baker Highway	Plank Road
Leesville Avenue	Sorrell Avenue	West Highway Drive
Liberty Road	Greenwell Springs Road	Parish line
Lobdell Avenue	Florida Boulevard	Greenwell Springs Road
Magnolia Bridge Road	Wax Road	Parish line
Mammoth Avenue	Monterrey Boulevard	East end
Mancuso Lane	Anselmo Lane	North end
Mansfield Avenue	West dead end	East dead end
McKinley Street	River Road	Highland Road
Mason Street	Sanchez Street	Bamboo Parkway
Mengel Road	Scenic Highway	West end
Mickens Road	Hooper Road	Joor Road
Milldale Road	Peairs Road	Liberty Road
Mohican-Prescott Crossover	Mohican Street	Prescott Road
Mohican Street	Scenic Highway	Mohican-Prescott Crossover

Street	*From*	*To*
Monte Sano Avenue	Scenic Highway	West end
Monterrey Boulevard	Greenwell Springs Road	South Choctaw Drive
Mt. Pleasant-Zachary Road	Samuels Road	Zachary city limits
Neosho Avenue	Ted Dunham Drive	Beaumont Drive
Nicholson Drive	South Boulevard	Bayou Manchac
Nicholson Drive east	Nicholson Drive	Highland Road
North Boulevard	19th Street	Foster Drive
North Street	Foster Drive	River Road
Old Hammond Highway	Jefferson Highway	Florida Boulevard
Old Perkins Road	Perkins Road east	Interstate 10
O'Neal Lane	Florida	South Harrels Freeway
Park Boulevard	Government Street	Perkins Road
Peairs Road	Greenwell Springs-Port Hudson Road	Liberty Road
Perkins Road	Park Boulevard	Acadian Throughway/Stanford Avenue
Pittsburg Avenue	Ted Dunham Avenue	Beaumont Drive
Plank Road	I-110	Parish line
Prescott Road	Mohican-Prescott Crossover	Airline Highway
Pride-Baywood Road	Liberty Road	Greenwell Springs Road
Pride/Port Hudson	La. 19	Liberty Road
Rabey Street	College Drive	Balis Drive
Reames Road	Peairs Road	Port Hudson-Pride Road
River Road	Riverside North	Bayou Manchac
Riverside Mall	North Boulevard	North Street
Riverside North	Chippewa Street	North Street
Samuels Road	Scenic Highway	North Parish line
St. Ferdinand Street	North Boulevard	South Boulevard
St. Louis Street	South Boulevard	North Boulevard
St. Philip Street	Government Street	Nicholson Drive
Scenic Highway	I-110	Parish line
Scotland-Baker Highway	Scenic Highway	Parish line
Sherwood Forrest Boulevard	Airline Highway	Old Hammond Highway
Sherwood Forrest Boulevard	Greenwell Springs Road	Florida Boulevard
Siegen Lane	Highland Road	Airline Highway
Sorrell Avenue	Choctaw Drive	Leesville Avenue
South Boulevard	River Road	Highland Road
South Harrels Freeway	O/Neal Lane	Jones Creek
South Perdue	West Perdue	East Perdue
Staring Lane	Highland Road	Perkins Road
Sullivan Road	Greenwell Springs Road	Joor Road
Thomas Road	Devil's Swamp Landfill	Plank Road
Tiger Bend Road	Jefferson Highway	Hoo Shoo Too Road
Tollway Drive	Stumberg Lane	Buckley Drive
Tom Drive	Lobdell Avenue	Airline Highway
Tucker Road	Port Hudson-Pride Road	Greenwell Springs-Port Hudson Road

Street	*From*	*To*
22nd Street	Government Street	Plank Road
Village Court	Mason Avenue	Airline Highway
Wax Road	Sullivan Road	Magnolia Bridge Road
West Highway Drive	Leesville Avenue	Capitol Access Road
West Lee Drive	Nicholson Drive	Highland Road
West Perdue	Mammoth Avenue	South Perdue
Winbourne Street	Airline Highway	Plank Road
Wooddale Boulevard	Florida Boulevard	Greenwell Springs Road

(City Code 1951, Title 11, § 337; Parish Code 1962, Title 11, § 14; Ord. No. 7417, § 1, 1-25-84; Ord. No. 7612, § 1, 8-8-84; Ord. No. 9278, § 1, 5-8-91; Ord. No. 9717, § 1, 9-22-93; Ord. No. 10670, § 2, 8-14-96)

CHAPTER 27. RULES OUTSIDE CITY ONLY

Sec. 11:350. State Highway Regulatory Act adopted by reference; speed restrictions. (Parish)

(a) The provisions of the State Highway Regulatory Act, as set forth and contained in Act 310 of the Louisiana Legislature for the year 1962, being R.S. 32:1 et seq., or as the same may be amended from time to time, all regulations therein contained and orders issued pursuant thereto, are adopted and incorporated herein by reference as if copied and included herein in extenso, and shall be applicable upon all streets and roads within the parish, outside the incorporated municipalities thereof, except as this chapter, as authorized by such law, hereby declared and determines upon the basis of engineering and traffic investigation to be otherwise.

(b) Anything to the contrary herein notwithstanding, but subject to the provisions of subsection (c) below, the following speed restrictions shall apply within the parish, outside of the incorporated municipalities thereof:

(1) Fifty-five (55) miles per hour on all surfaced streets and roads outside of recognized subdivisions unless otherwise posted;

(2) Fifty (50) miles per hour on all gravel streets and roads outside of recognized subdivisions unless otherwise posted;

(3) Twenty-five (25) miles per hour on all streets and roads within recognized subdivisions unless otherwise posted;

(4) Twenty (20) miles per hour at and two hundred fifty (250) feet either side of a school or designated school crosswalk during the periods as established by the traffic engineer, and as posted in the school area.

(c) Whenever the traffic engineer shall determine upon the basis of an engineering and traffic investigation that a maximum speed set forth above is greater or lesser than is reasonable or safe under the conditions found to exist upon any street or road to which such maximum speeds apply, the traffic engineer may determine and declare a reasonable and safe maximum speed limit for said street or road, which, when appropriate signs giving notice thereof are erected, shall be effective at all times or at such specific times as may be determined by the traffic engineer.
(Parish Code 1962, Title 11, § 2; Ord. No. 15702, § 4, 5-28-14)

Sec. 11:351. Driver's license required. (Parish)

It shall be unlawful and a violation of this chapter for any person to operate or drive a motor vehicle within the limits of the parish without having a driver's license as required by the laws of the state.
(Parish Code 1962, Title 11, § 3)

State law reference—Similar provisions, R.S. 32:52.

Sec. 11:352. Speed restrictions.

(a) *Basic rule (parish).* No person shall drive a vehicle at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing. Consistent with the foregoing, every person shall drive at a safe and appropriate speed when approaching and crossing an intersection or railroad grade crossing, when approaching and going around a curb, when approaching a hill crest, when traveling upon any narrow or winding roadway, and when special hazards exist with respect to pedestrians or other traffic or by reason of weather or highway conditions.

(b) *Maximum limits (parish).*

(1) Except when a special hazard exists that requires lower speed for compliance with section 11:352(a), no driver shall drive his vehicle in excess of the speed limit posted on that street or highway on which the vehicle is being operated.

(2) Subject to the restrictions imposed by section 11:352(a), where there are no signs posted indicating speed limits, the speed limit applicable to that street or roadway shall be twenty-five (25) miles per hour; and no driver shall drive his vehicle in excess thereof.

(3) No vehicle shall be driven at a greater rate of speed than twenty (20) miles per hour, unless posted otherwise, on either side of the street in a school zone during the periods as established by the chief traffic engineer, and as posted in the school area.

(4) No vehicle shall be driven in excess of half the maximum speed limits allowed in the area while making a turn at a corner.

(c) *Prima facie limits. (parish)* It is hereby determined upon the basis of an engineering and traffic investigation that the speed limit of twenty-five (25) miles per hour required under section 11:352(b)(2) is necessary in the interest of pedestrian safety and for safe operation of vehicles upon, by reason of the designation and sign posting of such streets as through streets or by reason of widely spaced intersections, and it is hereby declared that the prima facie speed limit shall be as posted on that street or highway on which the vehicle is being operated, which speed so declared shall be effective at all times when signs are erected giving notice thereto.

(d) *Regulation of speed by traffic signals (parish).* The chief traffic engineer is hereby authorized to regulate the timing of all traffic signals so as to permit the movement of traffic in an orderly and safe manner at speeds slightly at variance from the speeds otherwise applicable within the district or at intersections and shall direct appropriate signs giving notice thereof.
(Parish Code 1962, Title 11, § 4(a), (b); Parish Ord. No. 6008, § 1, 11-10-82; Ord. No. 7418, § 1, 1-25-84; Ord. No. 15702, § 5, 5-28-14; Ord. No. 18599, § 1, 8-10-22)

Sec. 11:353. School zones.

Regardless of any maximum speed limits established by the parish, no vehicle shall be driven at a greater rate of speed than twenty (20) miles per hour, unless posted otherwise, on either side of a street on which is located a school house, or in front of the grounds thereof, or within a distance to be determined by the chief traffic engineer of the boundaries of such grounds during the hours determined by the chief traffic engineer.
(Parish Code 1962, Title 11, § 4(c); Ord. No. 18599, § 1, 8-10-22)

Sec. 11:354. Rules at intersections. (Parish)

At all intersections, except those where one street enters another which has been hereinafter designated as a through street, or where official traffic signs or signals direct otherwise, the following rules shall apply:

(1) When two (2) vehicles approach or enter an intersection at approximately the same time, the vehicle approaching from the right shall have the right-of-way, provided, however, the driver of any vehicle traveling at an unlawful, reckless, or dangerous rate of speed, shall forfeit any right-of-way which he might otherwise have hereunder.

(2) The driver of a vehicle approaching, but not having entered the intersection, shall yield the right-of-way to a vehicle within such intersection for the purpose of turning therein to the left across the line of traffic of such first mentioned vehicle.

(Parish Code 1962, Title 11, § 5)

State law reference—Similar provisions, R.S. 32:121.

Sec. 11:355. Through streets designated. (Parish)

(a) The streets designated and declared to be through streets for the purposes of this chapter are on file in the council administrator's office.

(b) All roads, or portions thereof, which traverse the parish and which are part of the state highway system, are hereby designated and declared to be through streets.

(c) Until such time as the above named through streets, or the intersections thereof, are marked by signs as hereinafter provided, all vehicles approaching such streets at intersections, shall be governed by the rules set forth in section 11:354.

(Parish Code 1962, Title 11, § 6)

Sec. 11:356. Residents may petition to reduce speed limit. (Parish)

When sixty-five (65) percent of the property owners on a residential street in a recognized subdivision of the parish petition the department of public works to reduce the speed limit on that street to twenty-five (25) miles per hour, the department shall, after confirming the authenticity of the signatures, conduct a study of the street, and if the study confirms that the requested speed reduction is appropriate, shall reduce the speed limit on that street as requested and post appropriate signs advising of the changed speed limit. Section 11:336 shall be amended to list the name of the street, along with the speed limit. The department shall adopt rules relative to the form and filing of the petition and the method of confirming signatures. Only one (1) signature per residence shall be permitted on the petition.

(Ord. No. 15138, § 2, 5-25-11)

Sec. 11:357. Authority to erect stop signs and yield-right-of-way signs. (Parish)

(a) Whenever any ordinance of this parish designates and declares a through street it shall be the duty of the director of the department of public works to place and maintain a stop sign or a yield-right-of-way sign on each and every street intersecting such through street unless traffic at any such intersection is controlled at all times by traffic control signals. The determination as to whether a stop sign or a yield-right-of-way sign shall be erected at said intersections shall be made by the director of the department of public works upon the basis of an engineering and traffic study.

(b) The director of public works is hereby authorized to determine and designate intersections where particular traffic hazards exist and have stop signs, yield signs and other similar traffic-control devices erected and put into operation without the need of an engineering and/or traffic study wherever he shall deem an intersectional traffic hazard to exist in order to preserve the safety of vehicular traffic within the city and parish.

(Parish Code 1962, Title 11, § 8; Ord. No. 7257, § 1, 8-24-83)

Sec. 11:358. Authority to designate school crosswalks, etc.

The chief traffic engineer is hereby authorized to establish school crosswalks at places throughout the parish where, in his opinion, they are necessary because of traffic conditions, the proximity of schools to streets, or because of their use as a means of access to and from any school location and areas of population adjacent thereto. Such school crosswalks and a distance determined by the chief traffic engineer on either side thereof shall constitute "school zones," as defined in section 11:1, and shall be subject to such speed limits or other traffic regulations applicable to a street on which is located a school house, as established in section 11:353. For the purpose of properly designating any such school crosswalk and the distances adjacent thereto as provided for herein, the chief traffic engineer shall cause

appropriate signs, signals or other devices as may be required or necessary, to be erected for the purpose of adequately apprising traffic of the existence of such zones, and to safeguard the school children using same.
(Parish Code 1962, Title 11, § 9; Ord. No. 18599, § 1, 8-10-22)

Sec. 11:359. Drivers of all vehicles to obey stop signs and yield-right-of-way signs; evidence. (Parish)

(a) *Stop signs.* When stop signs are erected as herein authorized at or near the entrance to any intersection, every driver of a vehicle shall bring his vehicle to a complete stop before entering the intersection.

(b) *Yield-right-of-way signs.* When yield-right-of-way signs are erected as herein authorized at or near the entrance to any intersection, every driver of a vehicle approaching the "yield" sign shall slow to a speed of not more than ten (10) miles per hour and "yield" the right-of-way to all vehicles approaching from the right or left on the intersecting street which are so close as to constitute an immediate hazard.

(c) *Evidence.* If a driver is involved in a collision at an intersection or interferes with the movement of other vehicles after driving past a

"yield" sign, such collision or interference shall be deemed prima facie evidence of the driver's failure to yield right-of-way.
(Parish Code 1962, Title 11, § 10)

State law reference—Similar provisions, R.S. 32:123.

Sec. 11:360. Obedience to all traffic-control devices. (Parish)

In addition to the "stop" and "yield" signs, all traffic shall obey the instructions of all official traffic signs and signals placed in accordance with the provisions of this chapter unless otherwise directed by an officer of the law.
(Parish Code 1962, Title 11, § 11)

Sec. 11:361. Pedestrians prohibited from walking on the expressway. (Parish)

No pedestrian shall walk on, along or across the interstate highway nor shall any person climb the fences bordering the interstate highway for the purpose of entering, walking on, along or across the interstate highway.
(Parish Code 1962, Title 11, § 13)

Sec. 11:362. Reserved.

Editor's note—Ord. No. 9948, § 1, adopted June 22, 1994, deleted former § 11:362, relative to parking, standing, storing or driving on or across neutral grounds, rights-of-way and sidewalks of public property (parish), which derived from Parish Code 1962, Title 11, § 15.

Sec. 11:363. Reserved.

Editor's note—Ord. No. 11590, § 1, adopted November 10, 1999, amended the Code by repealing former § 11:363. Former § 11:363 pertained to parking for handicapped persons, and derived from the Parish Code of 1962, Title 11, § 21.

Sec. 11:364. Reserved.

Editor's note—Ord. No. 11923, § 2, adopted December 13, 2000, amended the Code by repealing former § 11:364 in its entirety. Former § 11:364 pertained to parking of wreckers, buses, trucks, semitrailers; and derived from the Parish Code of 1962, Title 11, § 22.

CHAPTER 28. PARKING*

PART I. CITY†

Sec. 11:400. Decriminalized nature of parking infractions within the corporate limits of the city

The regulation of parking within the city limits of the city shall be governed by this chapter. All parking conduct prohibited hereby shall be considered a civil infraction only, and no criminal penalty shall attach for its commission.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 14769, § 1, 9-9-09; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:401. Responsibilities.

(a) The city police chief is responsible for the enforcement of parking laws and ordinances inside the corporate limits of the city.

(b) The parish attorney is responsible for representing the city-parish's legal interests in parking infraction matters, including the preparation and filing of necessary pleading, appearance at adjudicatory hearings, and pursuance of legal collection efforts.

(c) The city court judges are responsible for the adjudication of parking infractions under the provisions of this chapter and the assessment of monetary penalties therefor, inside the city limits. The clerk of city court shall be responsible for the collection of all monetary penalties imposed under the provisions of this section, however, the maximum base penalty for any single parking infraction shall not exceed fifty dollars ($50.00) unless another fine is otherwise specified herein, exclusive of fees and charges imposed for towing, storing or immobilizing a vehicle or additional penalties imposed for failure to timely respond to a court order concerning an infraction.

***State law reference—**Parking, standing and stopping, R.S. 32:141 et seq.

†**Editor's note—**Ord. No. 14769, § 1, adopted September 9, 2009, amended the Code by adding a designation of "Part I" to sections 11:400—11:435.

(d) The director of the department of public works is responsible for the emplacement and maintenance of official parking-control devices when and as required under applicable state laws and local ordinances to make effective the provisions of such laws and local ordinances, and may place and maintain such additional official parking-control devices as he may deem necessary to regulate parking, stopping or standing under local or state law. The director shall be responsible for placement of notices advising that parking in violation of this part will subject the vehicle to immediate immobilization, towing and storage. Such notices shall be designed by the parish attorney and placed at such locations and in such manner as directed by the parish attorney.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 13771, § 1, 10-11-06; Ord. No. 14769, § 1, 9-9-09; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:402. Parking infraction citation forms.

All parking infraction citations shall be issued on forms prescribed and approved jointly by the city court judges, parish attorney, finance director, chief of police, and sheriff. They shall, at minimum, contain information concerning the nature, date, time and location of the infraction, a description of the vehicle involved, the manner by which the infraction penalty may be paid or the citation contested, the fact that a failure to timely answer or appear shall be considered an admission of liability, authorizing the issuance of a default civil judgment against the registered owner of the vehicle, and that an unpaid parking citation will result in immobilization, towing and storage of the vehicle.

The citations may be either a "hard copy" on paper or may consist of a computerized citation created by the issuing officer and transmitted to the clerk of city court.

A hard, or paper citation shall be considered filed when received in the office of the clerk of court. A computerized citation shall be considered filed when received on the computer of the office of the clerk of city court.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:403. Service of parking infraction citations.

(a) A parking infraction citation shall be served personally upon the operator of a vehicle who is present at the time of service;

(b) When a vehicle which is parked in violation of the provisions of this part is towed and the owner is not present, the traffic citation shall be served upon the registered owner by mailing same by first class mail to the registered owner within five days of the date of violation;

(c) When a vehicle parked in violation of this part cannot be immediately towed, and the operator is not present, the citation shall be served upon the registered owner of the vehicle by affixing the citation to the vehicle in a conspicuous place. Service of a parking infraction citation by affixation as provided herein shall subject the responsible party to the same penalties for failure to answer and shall have the same force and effect as if the citation were personally served upon the owner and/or operator of the vehicle. An operator of a vehicle who is not the owner thereof but who uses or operates the vehicle with permission of the owner, express or implied, shall be considered the agent of the owner to receive parking infraction citations served in accordance with this section.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:404. Disposition of parking infraction citations.

(a) The original parking infraction citation shall be signed by the issuing officer, and shall be processed by the issuing agency in accordance with procedures as may be established by the issuing agency and filed with the clerk of city court within ten (10) days following issuance.

(b) The dismissal of a parking infraction citation prior to adjudication shall occur only upon written motion of the parish attorney for good cause shown.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:405. Citation as legal demand and prima facie evidence.

The original parking infraction citation or any true copy thereof shall be considered a demand for enforcement of a legal right and shall further be considered an ordinary business record of the city-parish and prima facie evidence of the facts contained therein.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:406. Responsibility of owner and operator.

(a) Except as provided in paragraph (b) hereof, the owner and operator shall both be liable to the city-parish for parking infractions, unless the owner can show that the vehicle was operated without his consent, express or implied.

(b) An owner of a vehicle registered in the state who is engaged in the business of renting or leasing vehicles under written rental or leasing agreements ("lessor") shall not be liable for parking fines and penalties imposed by a local authority on such rented or leased vehicles, if:

(1) Within thirty (30) days after receiving written notice of the parking infraction, the lessor provides, in affidavit form, the true name, address and driver's license number of the person in possession of the vehicle ("lessee") at the time of the infraction;

(2) The lessor provides the court with such other information about the lessee as may reasonably be required to assist in the city's enforcement efforts; and

(3) The lessee pays the parking fine and penalties within sixty (60) days after a notice of infraction is transmitted to the lessee.

The lessor's obligation to identify the lessee shall be satisfied by providing a true copy of the lease or rental agreement. A lessor who fails to comply with the foregoing provisions shall not be liable for late penalties if the lessor answers or pays the base penalty within thirty (30) days after transmittal of notice of the infraction, or having complied with the foregoing provisions, pays the base penalty within thirty (30) days after transmittal of notice that the lessee has failed to pay within the sixty-day period.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:407. Answering parking infraction citation.

A person to whom a parking infraction citation has been issued shall answer to the same in the manner and within the delays indicated on the citation. An answer may take the form of:

(1) Admission of the infraction with payment of the scheduled civil penalty; or

(2) Appearance in city court on the date and at the time set out in the citation to deny the violation and present such admissible evidence as desired.

(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:408. Failure to answer, consequences.

Failure to answer a parking infraction citation in the manner set out in section 11:407 within the allowable period subjects the person to whom the parking infraction citation was issued to such additional monetary penalties as may be prescribed by the court.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:409. Default.

(a) A vehicle which is parked in violation of any of the provisions of sections 11:415 through 11:435 and which has accumulated five (5) or more unpaid parking citations is subject to immediate immobilization, towing and storage.

(b) A vehicle which has accumulated five (5) or more unpaid parking citations which remain unpaid, shall be subject to immobilization, towing and storage when parked legally on any street or road in the city. However, prior to the issuance of an order authorizing immobilization, towing and storage of such vehicle, the city court shall fix a time and date for a contradictory hearing at which the owner may present defenses to the issuance of an order authorizing immobilization,

towing and storage. The clerk of court shall cause a notice to issue, by first class mail, to the owner of the vehicle advising the time, date, location and nature of the hearing. If the owner of the vehicle does not convince the court that just cause exists to decline to issue an order of immobilization, towing and storage, the city court shall determine the total amount of fines and other penalties and costs due, and shall issue an order authorizing the city police to immobilize, tow and store the vehicle when discovered parked, legally or illegally, upon any street or road within the city limits of the city.

(c) The city police department shall establish a procedure to effect immobilization, towing and storage of vehicles pursuant to this part, and such procedure shall include contracts with towing companies which fix prices to be charged for towing and storage, and which provide procedures for release of stored vehicles upon payment of accrued fines, penalties , towing and storage charges.

Any order to immobilize, tow and store shall be executed as provided in section 11:292 et seq.

(d) If a person to whom a notice of infraction has been issued fails to answer or fails to appear at a hearing when required to do so or having admitted or been finally judged liable for the parking infraction, fails to timely pay the prescribed penalty, the city court shall, without further notice, enter a default judgment sustaining the charges and fixing the appropriate penalty, which shall have the same effect as a civil money judgment; however, the laws relating to citation and service of process shall be observed prior to legal enforcement of any such civil judgment.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 8117, § 1, 3-12-86; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:410. Adjudicatory hearings.

When a person to whom a traffic infraction citation has been issued answers by appearing in city court and asserting no responsibility pursuant to section 11:407(2), the court shall conduct an adjudicatory hearing.

(1) Hearings for the adjudication of parking citations shall be conducted contradictorily between the respondent and the city-parish before the city court for those infractions occurring inside the corporate limits of the city. The city-parish shall be represented by the parish attorney.

(2) The city-parish shall have the burden of proving the infraction by a preponderance of evidence; however, proof that a particular vehicle described in the parking infraction citation was in violation of any law or ordinance, together with proof that the respondent was, at the time of the infraction, the registered owner of such vehicle, shall constitute in evidence a prima facie presumption that the registered owner of such vehicle or his authorized agent was the person who parked or placed such vehicle at the point where, and for the time during which, the infraction occurred.

(3) At the conclusion of the contradictory hearing, the city court shall render a civil judgment, either finding the respondent liable and assessing the penalty or denying liability and dismissing the claim.

(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:411. Execution of judgments.

Execution may be levied and such other measures may be taken for collection of final judgments upon unpaid parking infractions as are authorized for the collection of unpaid civil judgments entered against defendants in actions upon debt. The city court may assess costs and legal interest against the judgment debtor to be paid upon satisfaction of the judgment.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:412. Civil contempt citation.

If a respondent defaults in the payment of a penalty, the city court may require the respondent to appear and show cause why the default should not be treated as a civil contempt; and the court may issue a summons, order to show cause, or, upon failure to appear pursuant to personal notice, a bench warrant for the respondent's arrest.

The officers of a corporation or the partners, directors or officers of an association may be held in contempt upon such a default by the corporation or association.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:413. Method of notice.

Any notice permitted or required to be given under this chapter shall be considered given when mailed by first class mail to the operator, if known, or to the registered owner at the address appearing on the registry of the motor vehicle bureau, or to a lessee at the address provided by the lessor; however, the laws relating to citation and service of process shall be observed prior to legal enforcement of any civil judgment.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:414. Disposition of monetary penalties.

The moneys collected pursuant to this chapter shall be forwarded to the director of finance who, after deducting or allocating any credits due, shall deposit the same in the general fund of the city-parish and a portion of the proceeds of penalties collected upon citations issued by the sheriff shall go to the sheriff's office to defray expenses.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15036, § 1, 11-23-10)

Sec. 11:415. Stopping, standing or parking prohibited; general rules.

(a) No person shall stop, stand or park a vehicle, or permit a vehicle registered in his name to be stopped, standing or parked, except when necessary to avoid conflict with other traffic or in compliance with law or the directions of a law enforcement officer or traffic-control device, or parking-control device in any of the following places:

(1) On a sidewalk;

(2) In front of or blocking a public or private driveway;

(3) Within an intersection;

(4) Within fifteen (15) feet of a fire hydrant;

(5) On a crosswalk;

(6) Within twenty-five (25) feet of a crosswalk or curbline at an intersection;

(7) Within thirty (30) feet upon the approach to any flashing beacon, stop sign, or traffic-control signal located at the side of a roadway;

(8) Between a safety zone and the adjacent curb or within twenty (20) feet on points on the curb immediately opposite the ends of a safety zone, unless the department of public works has indicated a different length by signs or markings;

(9) Within fifty (50) feet of the nearest rail of a railroad crossing;

(10) Within twenty (20) feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within seventy-five (75) feet of the entrance (when properly signposted);

(11) Alongside or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic;

(12) On the roadway side of any vehicle stopped or parked at the edge or curb of a street;

(13) Upon any bridge or other elevated structure upon a highway or within a highway tunnel;

(14) At any place where official signs prohibit such;

(15) On the driver's left-hand side of any two-way street or highway;

(16) At any place where the curb has officially been painted red;

(17) Within any zone or officially marked place designated as a fire lane at all schools, hospitals, churches and other places of public assembly, as well as commercial and shopping facilities, and apartment complexes;

(18) Within a lane of traffic that is clearly marked by lines to identify it as a lane for the movement of traffic;

(19) Any place where parking will obscure or obstruct visibility of any traffic-control device;

(20) Upon the traveled portion of any roadway except to yield to other traffic, or as directed by a signal or sign, or as directed by a law enforcement officer;

(21) Alongside a neutral ground curb;

(22) On the grass in the front yard between the front of the residence and the street of any lot in the Al, A2, A2.5, A3 or A4 districts and in recognized subdivisions in the rural district.

(23) In such location as to block United States Postal Service access to a residential mailbox.

(b) No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb such distance as is unlawful.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 12725, § 1, 8-25-03; Ord. No. 13688, § 1, 7-26-06; Ord. No. 14928, § 1, 5-26-10)

Sec. 11:416 Parking on neutral ground, parks, rights-of-way, sidewalks and other public and private places prohibited.

No person shall stop, stand or park a vehicle or permit a vehicle registered in his name to be stopped, standing or parked, except when necessary to avoid conflict with other traffic or in compliance with the law and directions of a police officer or traffic parking-control device, at any of the following places:

(1) Upon a neutral ground, right-of-way, sidewalk, strip of land between a property line and street curb, or other public way.

(2) Upon any area of property comprising parks, playgrounds, recreational areas or facilities owned or operated by the recreation and parks commission that has not been specifically designated for parking and which interferes with the designed purpose thereof.

(3) Upon any portion of the levee of the east bank of the Mississippi River opposite the Louisiana Arts and Science Center.

(4) Upon privately owned property without the prior authorization and consent of the owner thereof.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 9876, § 1, 4-27-94; Ord. No. 13688, § 1, 7-26-06; Ord. No. 15011, § 1, 10-27-10)

Sec. 11:417. Parking for certain purposes prohibited.

No person shall stand or park a vehicle or permit any vehicle registered in his name to be standing or parked upon any roadway for the principal purpose of:

(1) Displaying such vehicle for sale;

(2) Washing, greasing or repairing such vehicle except repairs necessitated by an emergency;

(3) For any commercial advertising purposes;

(4) Making major repairs to such vehicle.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:418. Standing or parking close to curb.

(a) No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway headed in the direction of lawful traffic movement and with passenger-side wheels of the vehicle within eighteen (18) inches of the curb or edge of the roadway except as otherwise provided in this chapter.

(b) The director of the department of public works may place signs prohibiting or restricting the stopping, standing or parking of vehicles on any highway or upon proper request, private property, where in his opinion such stopping, standing or parking is dangerous to those using the highway or private property, or where such would unduly interfere with the free movement of traffic thereon. Such signs shall be official signs;

and no person shall stop, stand or park any vehicle or permit any vehicle registered in his name to be stopped, standing or parked in violation of the restrictions stated on such signs.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:419. Angle parking.

(a) The director of the department of public works shall determine upon what streets angle parking shall be permitted and shall mark or sign such streets without interfering with traffic.

(b) Angle parking shall not be indicated or permitted at any place where passing traffic would thereby be caused or required to drive upon the left side of the street.

(c) Upon those streets which have been signed or marked by the department of public works for angle parking, no person shall stand or park a vehicle or permit a vehicle registered in his name to be standing or parked other than at the angle to the curb or edge of the roadway indicated by such signs or markings.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:420. Lights on parked vehicles.

(a) Whenever a vehicle is lawfully parked at nighttime upon any street within a business or residence district, no lights need be displayed upon such parked vehicle.

(b) Whenever a vehicle is parked upon a roadway during the hours between one-half (½) hour after sunset and one-half (½) hour before sunrise, such vehicle shall be equipped with one (1) or more lamps which shall exhibit a white light on the roadway side visible from a distance of five hundred (500) feet to the front of the vehicle and a red light visible from a distance of five hundred (500) feet to the rear.

(c) Any lighted headlamps upon a parked vehicle shall be depressed or dimmed.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:421. Parking not to obstruct traffic.

No person shall stand or park any vehicle or permit any vehicle registered in his name to be standing or parked upon a street, highway or within an alley in such a manner or under such conditions as to leave available less than ten (10) feet of the width of the street, highway or alleyway for free movement of vehicular traffic or blocking the driveway entrance to any abutting property.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:422. All-night parking prohibited.

No person shall stand or park or permit any vehicle registered in his name to remain standing or parked on either side of the following streets, between the hours of 2:45 a.m. and 5:30 a.m., on any day except Sunday:

(1) Riverside Mall, between North Boulevard and North Street;

(2) North Fourth Street, from North Boulevard to North Street;

(3) North Boulevard, between Fourth Street and Lafayette Street;

(4) Convention Street, between Fourth Street and Lafayette Street;

(5) Florida Street, between Fourth Street and Lafayette Street;

(6) Lafayette Street, from North Boulevard to North Street;

(7) Laurel Street, between Fourth Street and Lafayette Street;

(8) Main Street, between Fourth Street and Lafayette Street;

(9) North Street, between Fourth Street and Lafayette Street.

(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:423. Time limitation on parking on any street.

No person shall permit his vehicle, either as an operator or registered owner, to remain parked on any street for a period of time longer than

nine (9) hours of any twenty-four-hour period beginning at 6:00 a.m., of one day to 6:00 a.m., of the next day, and the vehicle can only be so parked if parking is specifically permitted under other provisions of this title.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:424. Reserved parking for electric vehicles.

(a) For the purposes of this section, an "electric vehicle" is one that operates either partially or exclusively on electrical energy supplied from the grid or an off grid electricity source that is stored on board for motive purpose. An "electric charging station" is equipment that has as its primary purpose the transfer of electric energy to a battery or other energy storage device on an electric vehicle.

(b) The department of transportation is hereby authorized to designate, by the installation of appropriate signs, parking spaces for the exclusive use by electric vehicles.

(c) Where signs designating a parking space for the exclusive use by electric vehicles, no person shall park a vehicle upon any street, city-parish parking lot, city-parish parking garage, or portion of any street, parking lot, or parking garage so signed unless such vehicle is an electric vehicle.

(d) Violators of this section may be issued a parking ticket attached to the vehicle. The fine for violation of this section is fifty dollars ($50.00).
(Ord. No. 16303, § 1, 8-10-16)

Sec. 11:424.1 Reserved parking for car share vehicles.

(a) For the purposes of this section, "car share services" is defined as a fee-based car-sharing service who has contracted with the city-parish to provide car sharing in designated areas of the city-parish.

(b) The department of transportation is hereby authorized to designate, by the installation of appropriate signs, parking spaces for the exclusive use of car share services.

(c) Where signs designating a parking space for the exclusive use by a car-sharing service, no person shall park a vehicle in such parking space unless the vehicle is owned and operated by the designated car-sharing service.

(d) Violators of this section may be issued a parking ticket attached to the vehicle. The fine for violation of this section is fifty dollars ($50.00).
(Ord. No. 16360, § 1, 10-26-16)

Sec. 11:425. Parking for out-of-town visitors and tourists.

The director of the department of public works is hereby authorized to determine and designate, by proper signs, places on public streets and in publicly owned parking areas for the exclusive use of out-of-town visitors and tourists. When properly designated, no person shall park a vehicle or permit a vehicle registered in his name to be parked in such an area if the vehicle's license plate bears the letter designation "A," indicative of a Baton Rouge residence.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:426. Curb loading zones.

(a) The director of the department of public works is hereby authorized to determine the location of passenger and freight curb loading zones and shall place and maintain appropriate signs indicating the same and stating the hours during which the provisions of this section are applicable.

(b) No person shall stop, stand or park a vehicle or permit a vehicle registered in his name to be stopped, standing or parked for any purpose or period of time other than for the expeditious loading or unloading of passengers in any place marked as a passenger curb loading zone during hours when the regulations applicable to such curb loading zone are effective, and then only for a period not to exceed that specified for the zone.

(c) No person shall stop, stand or park a vehicle or permit a vehicle registered in his name to be stopped, standing or parked for any purpose or length of time other than for the

expeditious unloading and delivery or pickup and loading of materials in any place marked as a freight curb loading zone during hours when the provisions applicable to such zones are in effect. In no case shall the stop for loading and unloading for materials exceed that specified for the zone.

(d) The driver of a passenger vehicle may stop temporarily, not longer than three (3) minutes, at a place marked as a freight curb loading zone for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any motor vehicle used for the transportation of materials which is waiting to enter or about to enter such zone.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:427. Public carrier stops and stands.

(a) The director of the department of public works is hereby authorized and required to establish bus stops, bus stands, taxicab stands and stands for other passenger common carrier motor vehicles on such public streets in such places and in such number as he shall determine to be of the greatest benefit and convenience to the public; and every such bus stop, bus stand, taxicab stand or other stand shall be designated by appropriate signs.

(b) The operator of a bus shall not stand or park such vehicle upon any street at any place other than a bus stand so designated as provided herein.

(c) The operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop, bus stand or passenger loading zone so designated as provided herein, except in case of an emergency.

(d) The operator of a bus shall enter a bus stop, bus stand or passenger loading zone on a public street in such a manner that the bus when stopped to load or unload passengers or baggage shall be in a position with the right front wheel of such vehicle not further than eighteen (18) inches from the curb so as not to unduly impede the movement of other vehicular traffic.

(e) The operator of a taxicab shall not stand or park such vehicle upon any street at any place other than in a taxicab stand so designated as provided herein. This provision shall not prevent the operator of a taxicab from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:428. Parking of wreckers, buses, trucks and semitrailers prohibited.

(a) No person shall stop, stand or park or, as registered owner, permit the following described vehicles to be stopped, standing or parked upon or adjacent to any lot in the A1, A2, A2.5, A3 and A4 districts or upon the drive or in a yard between the residence and the street in recognized subdivisions.

(1) Wreckers;

(2) Buses for hire (excluding school buses used primarily for transporting children);

(3) Trucks or semi-trailers with more than two (2) axles;

(4) Trucks with a payload capacity of more than thirty-five hundred (3500) pounds.

(b) For a first offense violation of this section, the fine shall be two hundred fifty dollars ($250.00). For a second offense within one (1) year, the fine shall be five hundred dollars ($500.00). For the third and subsequent offenses within a one-year period, the fine shall be seven hundred fifty dollars ($750.00).
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 12254, § 1, 2-27-02; Ord. No. 13688, § 1, 7-26-06; Ord. No. 14170, § 1, 10-10-07; Ord. No. 14801, § 1, 10-28-09)

Sec. 11:428.1. Parking of motor homes on residential streets prohibited.

No person shall park, or as registered owner permit to be parked, any motor home, house trailer, or commercial vehicle with a gross vehicle weight rating (GVWR) of ten thousand (10,000) pounds or more, on a subdivision street in the A1, A2, A2.5, A3 and A4 districts for a period of seventy-two (72) hours or more.
(Ord. No. 9700, § 1, 88-25-93; Ord. No. 12122, § 1, 10-10-01; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:429. Designated parking spaces.

(a) The director of the department of public works is authorized and directed to designate and allot parking spaces in the vicinity of publicly owned buildings for use by public officials and employees and/or public vehicles, with each such parking space designated by sign or lettering for a particular person, agency or vehicle.

(b) Where signs, markers or lettering are present giving notice thereof, no person shall stop, stand or park a vehicle or permit a vehicle registered in his name to be parked, standing or stopped in any such allotted space except as authorized by the designation of the director of the department of public works.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:429.1. Designated parking spaces for veterans of the armed forces.

(a) The director of transportation and drainage and the director of the downtown development district are authorized and directed to designate and allot up to five (5) parking spaces in the area designated as the downtown development district for use by a veteran of the armed forces, with each such parking space designated by sign, marker or lettering.

(b) Where signs, markers or lettering are present giving notice thereof, no person shall stop, stand or park a vehicle or permit a vehicle registered in his name to be parked, standing or stopped in any such allotted space except as authorized by the designation of the director of transportation and drainage.

(c) "Veteran" for purposes of this ordinance means a person who is currently serving full-time duty in the U.S. Armed Forces (Army, Navy, Air Force, Marine Corps, Coast Guard, Space Force or National Guard, including the reserve components thereof), other than active duty for training, or has served in the U.S. Armed Forces, and who was discharged or released therefrom under conditions other than dishonorable.
(Ord. No. 18780, § 1, 3-8-23)

Sec. 11:430. Parking meters generally.

(a) The director of transportation and drainage is hereby authorized to establish parking meter zones, days and hours of operation, time period limits and at such locations upon city-parish streets or public parking areas where it is determined upon the basis of an engineering and traffic investigation that the installation of parking meters will promote the regulation, control and inspection of the parking of vehicles.

(b) Each single/double parking meter shall be placed upon the curb, sidewalk or neutral ground alongside of or next to the individual parking place as determined by the director of transportation and drainage, who shall designate the parking space adjacent to each parking meter for which such meter is to be used by appropriate marking on the curb and/or pavement; parking meter spaces so designated shall be of appropriate length and width so as to be accessible from the traffic lines of a street.

(c) Each single/double parking meter shall be so set as to display a signal to indicate the parking time allowed upon the deposit of a coin or coins of the United States or other approved electronic payment in United States currency and, upon the expiration of such allowable time, a signal that the lawful parking period has expired.

(d) Multispace pay stations shall be installed upon the curb or adjacent sidewalk in city blocks where metered spaces are to be regulated, in

such specific locations as determined and designated by the director of transportation and drainage.

(e) The multispace pay stations shall provide data for enforcement in real time, via wired or wireless networks, such that parking enforcement operations may identify separately those locations that are currently paid and those that are not.

(f) Each single/double parking meter or multispace pay stations shall bear thereon a legend indicating the days and hours when the requirement to deposit coins or electronic payment therein shall apply, the value of the coins to be deposited or the value of other approved electronic payment forms and the limited period of time for which parking is lawfully permitted in the parking meter zone in which such meter is located.

(g) It shall be unlawful and an offense to deposit or cause to be deposited in any single/double-space parking meter or multispace pay station anything other than legal tender of the United States, a valid credit card, a valid debit card, a valid smart card, or token as is indicated as acceptable on the particular regulating device.

(h) The following parking meter rates shall be charged:

Five cents ($0.05) per six (6) minutes; with a minimum charge of one dollar ($1.00) for any digital payment. If payment is made using a digital app, the user may be charged an incremental convenience fee of thirty-five cents ($0.35).

Parking meter rates effective July 1, 2021 shall be:

Twenty-five cents ($0.25) per fifteen (15) minutes; with a minimum charge of one dollar ($1.00) for any digital payment. If payment is made using a digital app, the user may be charged an incremental convenience fee of thirty-five cents ($0.35).
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 8519, § 1, 11-10-87; Ord. No. 13688, § 1, 7-26-06; Ord. No. 18033, § 1, 2-24-21)

Sec. 11:431. Deposit of coin or electronic payment prerequisite to use of space.

When any vehicle is parked in any legal parking space which is a metered space, the owner, operator, manager or driver of such vehicle shall, upon entering such parking space, immediately make the specified payment in the single/double-space parking meter or multispace pay station, by using either legal tender of the United States or by using a credit card, debit card, smart card or token, prepaid account or other electronic means as is acceptable to the particular device being used to regulate such parking space. Upon making such payment, the metered space regulated by the device to which payment was made may be used by such vehicle during the parking limit provided, for the part of the street in which the parking space is located. (Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 18033, § 1, 2-24-21)

Sec. 11:432. Parking meter infractions.

(a) No person shall stop, stand or park a vehicle or permit any vehicle registered in his name to be stopped, standing or parked in any such single/double or designated multispace parking space during the restricted and regulated time applicable to the parking meter zone in which such meter is located while the parking meter for such space indicates by signal that the lawful parking time in such space has expired. This provision shall not apply to the act of parking or the necessary time required to exit a vehicle and deposit immediately thereafter a coin or coins in such meter.

(b) No person shall stop, stand or park a vehicle or permit any vehicle registered in his name to be stopped, standing or parked in any such single/double or designated multispace parking space for a consecutive period of time longer than that limited period of time for which parking is lawfully permitted in the parking meter zone in which such meter is located, irrespective of the number or amounts of coins deposited in such meter.

(c) No person shall stop, stand or park a vehicle or permit any vehicle registered in his name to be stopped, standing or parked in any

designated single/double or designated multi-space parking space during the restricted and regulated time applicable to the parking meter zone in which such meter is located so that any part of such vehicle occupies more than one (1) such space or protrudes beyond the marking designating such space; except that a vehicle of a size too large to be parked within a single designated parking meter zone shall be permitted to occupy two (2) adjoining spaces when coins shall have been deposited in the parking meter for each space so occupied as is required for the parking of other vehicles in such space.

(d) No person shall deposit or attempt to deposit in any parking meter any token, slug, button, or other device or substance as substitutes for the required coin of the United States or other approved form of digital payment.

(e) No person shall, without authority, deface, injure, tamper with, open, willfully break, destroy or impair the usefulness of any form of parking meter, or hitch any animal thereto.

(f) The provisions of this section shall not relieve any person from the duty to observe other and more restrictive provisions of this title limiting the stopping, standing or parking of vehicles in specified places or at specified times.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 18033, § 1, 2-24-21)

Sec. 11:433. Collection procedures.

The director of finance shall designate a person or persons to make regular collections of funds deposited in parking meters as provided herein. The authorized collector or collectors shall collect the funds from the parking meters, then deliver the same to the director of finance at such times as designated by the director of finance. The director of finance shall keep a record of the amount collected and after deducting or allocating any credits due, deposit the same in the general fund.
(Ord. No. 7504, § 22, 4-25-84; Ord. No. 13688, § 1, 7-26-06; Ord. No. 18033, § 1, 2-24-21)

Sec. 11:434. Exemption from citation.

(a) Notwithstanding any other provisions of this title to the contrary, there is provided an exemption from citation for illegal parking on Sundays for the purpose of attending religious services at any recognized church in the city and parish.

(b) Any church which does not wish to be included in the provisions of subsection (a) above shall be excluded from this exemption by submitting a letter on the church's stationery to the chief of police of the city requesting such exclusion, signed by appropriate authorized representative or representatives of the church.
(Ord. No. 8671, 6-8-88; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:435. Parking of watercraft on street or street right-of-way prohibited.

No person shall permit his watercraft, whether trailered or not, to remain parked on any street or street right-of-way for a period of time longer than nine (9) hours of any twenty-four-hour period, beginning at 6:00 a.m. of one day to 6:00 a.m. of the next day; and the watercraft can only be parked if parking is specifically permitted under other provisions of this title.
(Ord. No. 9441, § 2, 6-10-92; Ord. No. 13688, § 1, 7-26-06)

PART II. PARISH PARKING REGULATIONS IN THE PARISH OUTSIDE CORPORATE LIMITS OF THE CITY OF BATON ROUGE, THE CITY OF ZACHARY AND THE CITY OF BAKER

Sec. 11:436. Responsibilities.

(a) The sheriff of the parish shall be responsible for the enforcement of parking laws and ordinances inside the parish including the corporate limits of a municipality.

(b) The district attorney is responsible for prosecuting, in the 19th Judicial District Court, violations of the parking regulations set out hereinafter in sections 11:437 through 11:444.

(c) The director of the department of public works is responsible for the emplacement and maintenance of official parking-control devices when and as required under applicable state laws and local ordinances within the parish outside the corporate limits of the City of Baker and the City of Zachary.
(Ord. No. 14769, § 2, 9-9-09)

Sec. 11:437. Stopping, standing or parking prohibited; general rules.

(a) No person shall stop, stand or park a vehicle, or permit a vehicle registered in his name to be stopped, standing or parked, except when necessary to avoid conflict with other traffic or in compliance with law or the directions of a law enforcement officer or traffic-control device, or parking-control device in any of the following places:

(1) On a sidewalk;

(2) In front of or blocking a public or private driveway;

(3) Within an intersection;

(4) Within fifteen (15) feet of a fire hydrant;

(5) On a crosswalk;

(6) Within twenty-five (25) feet of a crosswalk or curb-line at an intersection;

(7) Within thirty (30) feet upon the approach to any flashing beacon, stop sign, or traffic-control signal located at the side of a roadway;

(8) Between a safety zone and the adjacent curb or within twenty (20) feet on points on the curb immediately opposite the ends of a safety zone, unless the department of public works has indicated a different length by signs or markings;

(9) Within fifty (50) feet of the nearest rail of a railroad crossing;

(10) Within twenty (20) feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within seventy-five (75) feet of the entrance (when properly sign-posted);

(11) Alongside or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic;

(12) On the roadway side of any vehicle stopped or parked at the edge or curb of a street;

(13) Upon any bridge or other elevated structure upon a highway or within a highway tunnel;

(14) At any place where official signs prohibit such;

(15) On the driver's left-hand side of any two-way street or highway;

(16) At any place where the curb has officially been painted red;

(17) Within any zone or officially marked place designated as a fire lane at all schools, hospitals, churches and other places of public assembly, as well as commercial and shopping facilities, and apartment complexes;

(18) Within a lane of traffic that is clearly marked by lines to identify it as a lane for the movement of traffic;

(19) Any place where parking will obscure or obstruct visibility of any traffic-control device;

(20) Upon the traveled portion of any roadway except to yield to other traffic, or as directed by a signal or sign, or as directed by a law enforcement officer;

(21) Alongside a neutral ground curb;

(22) On the grass in a yard between the residence and the street of any lot in the Al, A2, A2.5, A3 or A4 districts and in recognized subdivisions in the rural district.

(23) In such location as to block United States Postal Service access to a residential mailbox.

(b) No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb such distance as is unlawful.

(c) Violation of the provisions of this section shall constitute a misdemeanor and shall be punishable by a fine of not more than fifty dollars ($50.00) and imprisonment in the parish prison for not more than thirty (30) days.
(Ord. No. 14769, § 2, 9-9-09; Ord. No. 14928, § 2, 5-26-10)

Sec. 11:438. Parking on neutral ground, parks, rights-of-way, sidewalks and other public and private places prohibited.

(a) No person shall stop, stand or park a vehicle or permit a vehicle registered in his name to be stopped, standing or parked, except when necessary to avoid conflict with other traffic or in compliance with the law and directions of a police officer or traffic parking-control device, at any of the following places:

(1) Upon a neutral ground, right-of-way, sidewalk, strip of land between a property line and street curb, or other public way.

(2) Upon any area of property comprising parks, playgrounds, recreational areas or facilities owned or operated by the recreation and parks commission that has not been specifically designated for parking and which interferes with the designed purpose thereof.

(3) Upon any portion of the levee of the east bank of the Mississippi River opposite the Louisiana Arts and Science Center.

(4) Upon privately owned property without the prior authorization and consent of the owner thereof.

(b) Whoever violates the provisions of this section shall be fined not more than five hundred dollars ($500.00), or be imprisoned for not more than six (6) months, or both.
(Ord. No. 14769, § 2, 9-9-09)

Sec. 11:439. Parking for certain purposes prohibited.

No person shall stand or park a vehicle or permit any vehicle registered in his name to be standing or parked upon any roadway for the principal purpose of:

(1) Displaying such vehicle for sale;

(2) Washing, greasing or repairing such vehicle except repairs necessitated by an emergency;

(3) For any commercial advertising purposes;

(4) Making major repairs to such vehicle.

Violation of the provisions of this section shall constitute a misdemeanor and shall be punishable by a fine of not more than fifty dollars ($50.00) and imprisonment in the parish prison for not more than thirty (30) days.
(Ord. No. 14769, § 2, 9-9-09)

Sec. 11:440. Standing or parking close to curb.

(a) No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway headed in the direction of lawful traffic movement and with passenger-side wheels of the vehicle within eighteen (18) inches of the curb or edge of the roadway except as otherwise provided in this chapter.

(b) The director of the department of public works may place signs prohibiting or restricting the stopping, standing or parking of vehicles on any highway or upon proper request, private property, where in his opinion such stopping, standing or parking is dangerous to those using the highway or private property, or where such would unduly interfere with the free movement of traffic thereon. Such signs shall be official signs; and no person shall stop, stand or park any vehicle or permit any vehicle registered in his name to be stopped, standing or parked in violation of the restrictions stated on such signs.

(c) Violation of the provisions of this section shall constitute a misdemeanor and shall be punishable by a fine of not more than fifty dollars ($50.00) and imprisonment in the parish prison for not more than thirty (30) days.
(Ord. No. 14769, § 2, 9-9-09)

Sec. 11:441. Time limitation on parking on any street.

No person shall permit his vehicle, either as an operator or registered owner, to remain parked on any street for a period of time longer than nine (9) hours of any twenty-four-hour period beginning at 6:00 a.m., of one day to 6:00 a.m., of the next day, and the vehicle can only be so parked if parking is specifically permitted under other provisions of this title.

Violation of the provisions of this section shall constitute a misdemeanor and shall be punishable by a fine of not more than fifty dollars ($50.00) and imprisonment in the parish prison for not more than thirty (30) days.
(Ord. No. 14769, § 2, 9-9-09)

Sec. 11:442. Parking of wreckers, buses, trucks and semitrailers prohibited.

(a) No person shall stop, stand or park or, as registered owner, permit the following described vehicles to be stopped, standing or parked upon or adjacent to any lot in the A1, A2, A2.5, A3 and A4 districts or upon the drive or in a yard between the residence and the street in recognized subdivisions.

(1) Wreckers;

(2) Buses for hire (excluding school buses used primarily for transporting children);

(3) Trucks or semi-trailers with more than two (2) axles;

(4) Trucks with a payload capacity of more than thirty-five hundred (3500) pounds.

(b) For a first offense violation of this section, the fine shall be two hundred fifty dollars ($250.00). For a second offense within one (1) year, the fine shall be five hundred dollars ($500.00). For the third and subsequent offenses within a one-year period, the fine shall be seven hundred fifty dollars ($750.00).
(Ord. No. 14769, § 2, 9-9-09; Ord. No. 14801, § 2, 10-28-09)

Sec. 11:443. Parking of motor homes on residential streets prohibited.

No person shall park, or as registered owner permit to be parked, any motor home, house trailer, or commercial vehicle with a gross vehicle weight rating (GVWR) of ten thousand (10,000) pounds or more, on a subdivision street in the Al, A2, A2.5, A3 and A4 districts for a period of seventy-two (72) hours or more.

Violation of the provisions of this section shall constitute a misdemeanor and shall be punishable by a fine of not more than fifty dollars ($50.00) and imprisonment in the parish prison for not more than thirty (30) days.
(Ord. No. 14769, § 2, 9-9-09)

Sec. 11:444. Parking of watercraft on street or street right-of-way prohibited.

No person shall permit his watercraft, whether trailered or not, to remain parked on any street or street right-of-way for a period of time longer than nine (9) hours of any twenty-four-hour period, beginning at 6:00 a.m. of one day to 6:00 a.m. of the next day; and the watercraft can only be parked if parking is specifically permitted under other provisions of this title.

Violation of the provisions of this section shall constitute a misdemeanor and shall be punishable by a fine of not more than fifty dollars ($50.00) and imprisonment in the parish prison for not more than thirty (30) days.
(Ord. No. 14769, § 2, 9-9-09)

CHAPTER 29. SPECIAL RULES FOR MOBILITY-IMPAIRED PARKING

Sec. 11:450. Applicability of general parking provisions.

The provisions contained within chapter 28 of this title shall also apply to the enforcement of the provisions of this chapter, except to the extent that the provisions of this chapter conflict with those contained within chapter 28.
(Ord. No. 11590, § 3, 11-10-99; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:451. Parking spaces for mobility-impaired persons.

(a) The director of the department of public works is hereby authorized to determine the need for and to designate by proper signs areas on public streets and in publicly owned parking facilities which are to be reserved for the exclusive use of vehicles bearing a license plate issued to a person with a disability. The director of public works shall determine and designate the appropriate signs and/or markings to be used to designate such parking areas.

(b) Each owner or lessee of a public facility shall, in accordance with applicable zoning and building codes, provide and maintain a minimum number of specially designed and marked motor vehicle parking spaces for the exclusive use of persons whose vehicles are identified by license plates or parking cards for the mobility impaired issued pursuant to R.S. 47:463.4 or 463.1. The mobility impaired parking spaces shall adhere to the ADAAG specifications and shall include mobility-impaired loading and unloading areas, access aisles, access ramps, and curb cuts. The minimum number of such parking space shall be as established by ADAAG. Public facility, as the term is used in this section, shall be as defined in R.S. 40:1732, and shall include private property which is open to the public and to which the public is invited for commercial or governmental purposes. The fire marshal may, in cases of extreme hardship, waive any provisions of this section after consultation with the office of rehabilitative services.

(c) Owners of private facilities which do not fall within the definition of being a "public facility," as defined in R.S. 40:1732, may designate certain spaces within their parking areas to be reserved for the exclusive use of vehicles bearing the license plate issued to a person with a disability.

(d) Any owner or lessee of a public facility who fails to provide and maintain spaces reserved and designated for the exclusive use of vehicles bearing a special license plate or parking card issued to a mobility-impaired driver free of obstructions shall be fined not more than five hundred dollars ($500.00).
(Ord. No. 11625, § 1, 12-8-99; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:452. Parking for mobility-impaired persons.

(a) No person shall park any vehicle in a mobility-impaired parking space unless such person has a license plate for the mobility-impaired issued pursuant to R.S. 47:463.4 or a properly displayed parking card issued pursuant to R.S. 47:463.4.1.

(b) (1) The law enforcement officer shall be authorized to issue a citation or take whatever law enforcement action is deemed necessary or both. Furthermore, when an individual found to be in violation of these

provisions refuses a request by a law enforcement officer to move the vehicle found in violation, the officer shall be authorized to have such vehicle towed.

(2) The citation shall contain information concerning the nature, date, time, and location of the alleged violation, the state vehicle license plate number, and the make of vehicle. In those cases where a license plate is not visible or legible, the vehicle identification number shall be used in lieu of the state vehicle plate number. The citation shall also contain information advising the person charged of the manner and the time in which he may contest the violation charged in the citation. The citation shall also provide that a failure to timely answer or appear before a court of competent jurisdiction shall be considered a prima facie admission of the violation set forth in the citation, in which the court may assess the appropriate fine or fines and all penalties incidental thereto.

(3) The citation issued pursuant to the provisions of this subsection shall be personally served upon the operator of the vehicle by affixing the parking citation to the vehicle in a conspicuous place thereon. The original parking citation shall bear the name or initials and identification number of the issuing officer who shall affirm the missing word? of the facts set forth therein. An operator of a vehicle who is not the owner, but who uses or operates the vehicle with permission of the owner, expressed or implied, shall be considered the agent of the owner to receive the citation required to be served upon the operator or registered owner of a vehicle in accordance with the provisions of this subsection. When a citation is issued for an alleged violation of the laws governing parking in a mobility-impaired parking space, loading and unloading areas, access aisles, access ramps, and curb cuts, there shall be a rebuttable presumption that a person in whose name the vehicle is registered was the operator of the vehicle when the alleged violation was committed.

(4) In the event that the registered owner or operator of a vehicle drives the vehicle away from or in any manner leaves the site of the violation while the issuing officer is preparing the citation, or refuses service of the parking citation and drives away from or in any manner leaves the site of the violation, this fact shall be duly noted on the original and all copies of the parking citation. This original and all copies of a parking citation shall constitute a business record of the law enforcement agency issuing the citation and shall constitute prima facie evidence that the citation was issued and that an attempt at service was made in accordance with the provisions of this subsection.

(c) The first violation of the provisions of this subsection shall be punished by a fine of two hundred seventy-five dollars ($275.00). A subsequent violation shall be punished by a fine of five hundred dollars ($500.00).

(d) If the violator is other than an individual, a fine of five hundred dollars ($500.00) shall be imposed.

(e) In addition to such fine, the violation may also be required to pay the towing fee and any storage costs which are incurred.

(f) The parish shall recognize parking cards or other removable windshield placards and special license plates which have been issued by authorities of other states and countries for the purpose of identifying vehicles permitted to utilize parking spaces reserved for the mobility-impaired.
(Ord. No. 11590, § 3, 11-10-99; Ord. No. 11625, § 2, 12-8-99; Ord. No. 12267, § 1, 3-27-02; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:453. Additional fine for enforcement of mobility-impaired parking regulations.

Upon establishment of a formal mobility-impaired parking enforcement program by the metropolitan council to assist the police depart-

ment in enforcing the regulations of this chapter, an additional twenty-five dollar ($25.00) fine for each violation shall be imposed by the court. The proceeds of this additional fine shall be used exclusively to fund such program.
(Ord. No. 11590, § 3, 11-10-99; Ord. No. 11625, § 3, 12-8-99; Ord. No. 13688, § 1, 7-26-06)

Sec. 11:454. Disability affairs trust fund.

In addition to all fines, fees and costs prescribed by this chapter, the court shall impose an additional fee of twenty-five dollars ($25.00) for each such violation. All monies collected from such additional fees shall be forwarded by the officer of the court who collects the same to the state treasurer within thirty (30) days after the penalty or forfeiture is collected."
(Ord. No. 11590, § 3, 11-10-99; Ord. No. 11625, § 4, 12-8-99; Ord. No. 13688, § 1, 7-26-06)

CHAPTER 30. SPANISH TOWN PARKING DISTRICT REGULATIONS

Sec. 11:500. Applicability of general parking provisions.

The provisions contained within chapters 28 and 29 of this title shall also apply to the enforcement of the provisions of this chapter, except to the extent that the provisions of this chapter conflict with those contained within chapters 28 and 29.
(Ord. No. 14705, § 1, 6-24-09)

Sec. 11:501. Spanish Town Parking District defined.

The Spanish Town Parking District (hereinafter "the district") is coterminous with Historic District 2 as shown in appendix G of the Uniform Development Code.
(Ord. No. 14705, § 1, 6-24-09)

Sec. 11:502. Street parking prohibited in Spanish Town Parking District.

A. It shall be a violation under this chapter for any vehicle to park on the streets of the district, with penalties as specified in chapters 28 and 29 of this title, during the hours of 6 a.m. and 6 p.m., except as provided in this chapter.

B. Law enforcement and department of public works vehicles which park in the district in the course and scope of their duties shall not be cited under this chapter.
(Ord. No. 14705, § 1, 6-24-09; Ord. No. 14742, § 1, 6-22-09)

Sec. 11:503. Parking permits required in Spanish Town Parking District.

A. No parking infraction shall be levied under this chapter against a vehicle for parking in the district which properly displays a Spanish Town Parking District parking permit.

B. A properly issued parking permit allows the vehicle driver to park anywhere within the limits of the assigned parking district on streets posted with Spanish Town Parking District signs, provided that there are no additional posted restrictions (such as red zone or street cleaning).

C. The permit shall be in the form of a hang tag, that shall be hung from the rear-view mirror of the vehicle, and must be displayed prominently when parked in the district.

D. Possession of a properly issued permit does not guarantee that parking will be available to the permit holder.
(Ord. No. 14705, § 1, 6-24-09)

Sec. 11:504 Annual parking permit requirements.

A. Annual permits are valid January 1 through December 31 for the year in which the permit is purchased.

B. No permit shall be issued to any person who has outstanding parking fines.

C. The fee for issuance of an annual parking permit is five dollars ($5.00). The fee for replacement permits for lost, stolen, or destroyed tags, is twenty-fiove dollars ($25.00).

D. Permits are acquired through the city/parish traffic engineering office, during ordinary business hours.

E. Two (2) kinds of annual parking permits are issued by the office, resident permits and guest permits.

F. Resident permits are issued to any person who can provide the following proof of residence in Spanish Town:

1. One of the following:

   a. Current vehicle registration showing an address within the district (or if the vehicle is leased, a copy of the lease showing an address within the district, or if registering a company vehicle, a letter from the employer confirming the license number of the vehicle, the name of the employee applicant, and the employee's home address), or

   b. Current driver's license showing home address within the district, or

   c. Property tax bill showing person's name as tax payer and home address within the district, or

   d. Residential lease with address within the district, identifying applicant specifically as a resident at that address.

2. Resident permits are unique to each resident, and accordingly, each resident is limited to a single resident permit.

3. An employer or employee of a business located within the district may apply for a resident permit, in which case, a current pay stub showing employment, and the address of the business in the district, will be acceptable proof.

G. Guest permits are issued in the same manner as resident permits, with the same proof of residence. There is a limit of two (2) guest permits per unique address in the district, such that a residential home or apartment within a building or complex will each qualify for no more than two (2) guest permits.

H. Annual parking permits for the Spanish Town Parking District issued prior to (enactment date) will be valid through December 31, 2010. DPW is not authorized to pro-rate any parking permit fees, either for partial year to date or for future parking permits.
(Ord. No. 14705, § 1, 6-24-09; Ord. No. 14894, § 1, 4-14-10)

Sec. 11:505. Reserved.

Editor's note—Ord. No. 14894, § 2, adopted April 14, 2010, amended the Code by repealing former § 11:505 in its entirety. Former § 11:505 pertained to temporary parking permit requirements, and derived from Ord. No. 14705, adopted June 24, 2009.

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*__State law reference—__Abatement of public nuisances, R.S. 13:4711 et seq.

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CHAPTER 1. GENERAL

Sec. 12:1. Police to notify mayor of nuisances.

It shall be the duty of the city police to report to the mayor the existence of any and all nuisances regulated by this title which may come to their knowledge, and the mayor, upon such information, shall cause such nuisances to be abated at the expense and cost of the person or persons on whose property the same may exist, unless such person or persons abate the nuisance after being notified thereof.
(City Code 1951, Title 12, § 1; Ord. No. 11979, § 1, 2-28-01)

Sec. 12:2. Nuisance to be abated.

All persons shall be required to remove or abate all nuisances which they have perpetrated on any of the streets, alleys, sidewalks or wharfs, levees or any public places within the parish, and every person who shall refuse to do so, shall after a reasonable time for compliance of this section has elapsed, be guilty of a misdemeanor and be subject to a fine of not more than twenty-five dollars ($25.00), or imprisoned for more than five (5) days. Each day that the nuisance shall continue shall be a separate and distinct offense.
(City Code 1951, Title 12, § 2; Ord. No. 11979, § 1, 2-28-01)

Sec. 12:3. Additional provisions.

Wherever the provisions of this chapter are properly applicable, they shall be applied in addition to the penalty provisions of the other chapters of this title.
(City Code 1951, Title 12, § 3; Ord. No. 11979, § 1, 2-28-01)

Sec. 12:4. Reserved.

Editor's note—Section 12:4, relating to certificates of zoning of transferred land, derived from Ord. No. 7278, adopted Sept. 28, 1983, was repealed by § 1 of Ord. No. 9090, adopted May 23, 1990.

Sec. 12:5. Statement regarding flooding of transferred property.

(a) Every transferor of land and/or building(s) within the parish shall furnish to the transferee, with the purchase agreement, or if no purchase agreement, then at the act of sale, a statement regarding flooding of the property. The statement shall inform the transferee as to whether the property ever flooded during the transferor's possession, and if so, the date and the extent of the flooding.

(b) Failure to furnish the required statement as to flooding, or falsification of same, shall subject the transferor to a fine of not more than five hundred dollars ($500.00) and/or imprisonment for not more than six (6) months.

(c) Additionally, every real estate agent or real estate broker who represents a transferor of land and/or building(s) within the parish shall provide the transferor with a form for the required disclosure.

(d) In the event that there is no real estate agent or real estate broker involved in either the purchase agreement or the act of sale, then the notary performing the act of sale shall be required to provide the disclosure form mentioned in this section.

(e) Failure to provide the transferor with a form for the required disclosure shall subject the real estate agent or real estate broker, or if there is none, then the notary performing the act of sale, to a fine of not more than one hundred dollars ($100.00).
(Ord. No. 7210, 7-13-83)

Editor's note—Ord. No. 7210, adopted July 13, 1983, inadvertently omitted at time of passage, amended tit. 12 by adding provisions designated by the editor as § 12:5.

Cross reference—Flood damage prevention, § 8:800 et seq.

CHAPTER 2. NOISE*

Sec. 12:100. Noises interfering with enjoyment of property or public peace and comfort.

No person shall make or cause to be made any loud and raucous noise in the parish which is offensive to persons of ordinary sensibilities and which renders the enjoyment of life or property uncomfortable or interferes with public peace and comfort.
(Ord. No. 11697, § 1, 3-22-00; Ord. No. 12010, § 1, 5-9-01)

Sec. 12:101. Same—Enumerated.

The following acts, among others, are declared to create loud and raucous noises and shall be deemed a violation of this chapter, but such enumeration shall not be deemed to be exclusive:

(1) The use of any abusive, indecent, profane, or vulgar language in a public place, when the language by its very utterance tends to incite an immediate breach of the peace.

(2) The playing of any radio, phonograph, tape, compact disc, musical instrument or any other machine or device capable of producing or reproducing sound from a stationary location in such a manner, or with such volume as to disturb the peace, quiet, comfort, or repose of persons in any dwelling, apartment, hotel, or other type of residence or in any public place.

(3) The making of noise which exceeds seventy-five (75) decibels emitted from any commercially used property, between the hours of 11:00 p.m. and 7:00 a.m., when measured by a calibrated sound level meter from the property line of the complainant's property.

(4) The making of noise which exceeds eighty (80) decibels emitted from any industrially used property, when measured by a calibrated sound level meter from the property line of the complainant's property.

(5) The playing of any radio, phonograph, tape, compact disc, musical instrument or any other machine or device capable of producing or reproducing sound, audible at a distance of greater than twenty-five (25) feet which exceeds eighty-five (85) decibels, from a vehicle, on a public street, highway or public park in such a manner, as to disturb the peace, quiet, comfort, or repose of persons in any dwelling, apartment, hotel, or other type of residence; of persons in any other vehicle; or of persons in any public place.

(6) The sounding of any horn or signal device on any automobile, motorcycle, bus, streetcar, or other vehicle, except as a danger signal, as required by state law.

(7) The use of any automobile, motorcycle, bus, streetcar, bus, or vehicle so out of repair or so loaded, which emits or creates loud grating, grinding, or rattling noise.

(8) The blowing of any steam whistle attached to any stationary boiler, except to give notice of the time to begin or stop work or as a warning of danger.

(9) The discharge into the open air of the exhaust of any stationary steam engine, stationary internal combustion engine, or motor boat engine, except through a muffler or other device which will effectively and efficiently prevent loud noises.

(10) The discharge into the open air of the exhaust from any motor vehicle except through a muffler, or other device, which will effectively and efficiently prevent loud and raucous noises.

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*__Editor's note—__Ord. No. 11697, § 1, adopted March 22, 2000, amended the Code by repealing former ch. 2, §§ 12:100—12:105, and adding a new ch. 2, §§ 12:100—12:103. Former ch. 2 pertained to similar subject matter, and derived from the City Code of 1951, Title 12, §§ 100—104; the Parish Code of 1962, Title 12, §§ 100—104; Ord. No. 9432, adopted May 13, 1992; Ord. No. 9514, adopted October 28, 1992; Ord. No. 10827, adopted February 26, 1997.

__State law references—__Disturbing the peace, R.S. 14:103; motor vehicles, R.S. 32:352, 32:353.

(11) The creation of loud and raucous noise by construction work in or adjacent to a residential area other than between the hours of 7:00 a.m. and sunset on weekdays and Saturdays, except in the case of urgent necessity in the interest of public safety for which permission must be obtained from the director of public works. Construction work includes, but is not limited to, the erection, excavation, demolition, alteration, or repair of any building.

(12) The creation of loud and raucous noise on any street adjacent to any school or court which is in session or adjacent to any hospital; provided, that conspicuous signs are located in such streets indicating that schools, hospitals, and courts are adjacent thereto.

(13) The shouting and crying of peddlers, hawkers and vendors which disturbs the quiet and peace of residentially zoned areas.

(Ord. No. 11697, § 1, 3-22-00; Ord. No. 12010, § 1, 5-9-01; Ord. No. 13552, § 1, 4-12-06; Ord. No. 17167, § 1, 9-25-19; Ord. No. 19644, § 1, 10-8-25)

Sec. 12:102. Use of bell, siren, compression, or exhaust whistle on vehicles.

No vehicle shall be equipped with and no person shall use upon a vehicle any bell, siren, compression or exhaust whistle, except those vehicles operated in the performance of duty by law enforcement officers, fire department personnel, emergency medical services personnel, and ambulances.

(Ord. No. 11697, § 1, 3-22-00; Ord. No. 12010, § 1, 5-9-01)

Sec. 12:103. Loudspeakers and amplifiers.

(a) A person commits an offense if he operates or causes to be operated any mechanical loudspeaker or sound amplifier in a public place or upon any public sidewalk, street, alley, or highway of the parish in violation of any of the following limitations and requirements:

(1) No mechanical loudspeaker or sound amplifier may be operated within one hundred fifty (150) feet of the property line of the premises of a residence, except between the hours of 8:00 a.m. and sunset, as designated by publication in a local newspaper of general circulation.

(2) A mechanical loudspeaker or sound amplifier may not emit unreasonably loud, raucous, jarring or disturbing noises so as to interfere with the enjoyment of life or property or to interfere with public peace and comfort.

(3) A mechanical loudspeaker or sound amplifier must be operated so as not to cause traffic congestion or congregation of crowds that obstructs any public sidewalk, street, alley, or highway.

(4) A mechanical loudspeaker or sound amplifier may not be operated within one hundred fifty (150) feet of any:

a. Hospital;

b. School that is in session;

c. Nursing home; or

d. Facility that provides surgical services to patients who do not require overnight hospital care during the hours of operation of the facility.

(b) In this section:

(1) *Residence* means a single-family, duplex, or multifamily dwelling.

(2) *Surgical services* means therapy of a mechanical or operative kind, including, but not limited to, operations involving cutting, the setting of fractures and dislocations, and similar manual forms of treatment.

(c) If conduct that would otherwise violate this section consists of speech or other communication, of gathering with others to hear or observe such speech or communication, or of gathering

with others to picket or otherwise express in a nonviolent manner a position on social, economic, political, or religious questions, the person must be ordered to move, disperse, or otherwise remedy the violation prior to arrest or citation.

(d) The order required by subsection (c) may be given by a peace officer, a fireman, a person with authority to control the use of the premises, or any person directly affected by the violation.

(e) It is a defense to prosecution under subsection (a) that:

(1) In circumstances in which this section requires an order, no order was given;

(2) An order, if given, was manifestly unreasonable in scope;

(3) An order, if given, was promptly obeyed;

(4) The mechanical loudspeaker or sound amplifier was operated in a public place within an enclosed structure and was not audible beyond the property line of the premises on which it was located;

(5) The person operating the mechanical loudspeaker or sound amplifier was a law enforcement officer or member of the fire department in the performance of official duties;

(6) The mechanical loudspeaker or sound amplifier was operated for the purpose of alerting persons to the existence of an emergency or danger; or

(7) The mechanical loudspeaker or sound amplifier was operated in the performance of emergency work necessary to restore public utilities, to restore property to a safe condition, or to protect persons or property from imminent danger, following a fire, accident, or natural disaster.

(Ord. No. 11697, § 1, 3-22-00; Ord. No. 12010, § 1, 5-9-01)

Sec. 12:104. Penalty.

(a) *Fine.* Whoever violates a provision of this section shall be fined two hundred dollars ($200.00) for a first offense, and not less than three hundred dollars ($300.00) nor more than five hundred dollars ($500.00) for second and subsequent offenses.

(b) *Surrender of license.*

(1) Upon conviction for a first offense, the court may order the violator to surrender to the law enforcement agency that arrested the violator or reported the violation the driver's license of the driver involved in the violation for a period not to exceed thirty (30) days. The violator shall be responsible for the for the retrieval of his driver's license from the law enforcement agency after the expiration of the period of surrender.

(2) Upon conviction for a second or subsequent offense, the court may order the violator to surrender to the law enforcement agency that arrested the violator or reported the violation the driver's license of the driver involved in the violation for a period not less than thirty (30) days nor more than ninety (90) days. The violator shall be responsible for the retrieval of his driver's license from the law enforcement agency after the expiration of the period of surrender.

(Ord. No. 12010, § 1, 5-9-01; Ord. No. 17167, § 1, 9-25-19)

Sec. 12:105. Exceptions.

(a) The unamplified sound emanating from a ballpark, playing field, stadium or comparable outdoor facility designed and intended for recreational or sports activity when used for organized exhibitions or participatory sports or recreational activities.

(b) Whenever the city-parish issues, on a temporary basis, special permits for events of an entertainment or recreational nature, then those events shall be exempt from the prohibitions of section 12:101(3), provided noise is otherwise regulated in the supervision of the activity and provided that the permit shall be subject to revocation, at the discretion of the issuing city-parish representative, on the basis of excessive or inappropriate noise.

(Ord. No. 19644, § 1, 10-8-25)

CHAPTER 3. TRESPASS*

PART I. GENERAL

Sec. 12:150. Unlawful entry onto premises. (City)

Whoever shall enter into the house or enter upon the premises or within the enclosure of another person, without the consent or permission of the owner, agent or possessor of said house, premises or enclosures, shall be guilty of trespass, which is hereby declared to be a misdemeanor, and, on conviction thereof shall be fined not exceeding twenty-five dollars ($25.00) or imprisoned not exceeding twenty (20) days.
(City Code 1951, Title 12, § 15)

Sec. 12:151. Failure to leave premises. (City)

Whoever having entered into the house, premises, or within the enclosures of any other person, shall refuse or fail to leave and depart therefrom when ordered so to do by the owner, agent or possessor thereof, shall on conviction thereof, be fined not exceeding twenty-five dollars ($25.00) or imprisoned not exceeding twenty (20) days for each and every offense.
(City Code 1951, Title 12, § 151)

Sec. 12:152. Trespass. (Parish)

(a) As used in this section:

(1) *Trespass* is:

a. The unauthorized and intentional taking possession of any tract of land or structure thereon without the consent of the owner thereof; or

b. The unauthorized and intentional entry upon any:

1. Enclosed and posted immovable property; or

2. Posted lands belonging to public institutions; or

3. Structure, watercraft, or movable; or

4. Building of structure condemned by order of the metropolitan council, pursuant to section 12:522.

c. The unauthorized and intentional entry, for purposes of solicitation, canvassing, or peddling, upon residential premises posted "No Soliciting" by the owner or occupant, provided that the sign shall be legible and visible at the entranceway to the premises. For purposes of this subsection, "canvassing" includes, but is not limited to, the solicitation of votes, subscriptions, or opinions from a district or group of people, the distribution of literature, the collection of signatures for petitions, the dissemination of views and the solicitation of funds.

***Cross reference—**Entry or remaining in places or land after being forbidden, § 13:63.3.

State law reference—Trespass generally, R.S. 14:63.

(2) *Enclosed immovable property* shall mean any immovable property which is surrounded by a three-strand cattle-proof fence or an equivalent cattle-proof fence.

(3) *Posted immovable property* shall mean any immovable property which is designated as such by the owner, lessee or other person lawfully authorized to take such action, provided the following requirements are satisfied. The owner or person seeking to post the property shall place and maintain signs along the boundaries of the property or area to be posted, which signs shall be written in the English language, and the signs shall contain the word "Posted." Such signs shall consist of letters written, printed or painted in black, at least three (3) inches high on a white background and the bottom of the signs shall be placed between four (4) and six (6) feet above the ground and shall be placed at intervals of not less than one-eighth or more than one-fourth of a mile along the properties bounded by a three (3) strand cattle proof fence or an equivalent cattle proof fence. At the main entrance and at the four (4) extreme corners of the property, there shall likewise be a sign equal in size and according to the specifications heretofore set out indicating that the property is "Posted" and in addition thereto, shall give the name and mailing address of the person owning or leasing the property.

(b) It shall be unlawful for any person to commit trespass within the parish.

(c) It shall be unlawful for any person to erect or place any posted signs on land belonging to another without the consent of the owner.

(d) Whoever is found guilty of violating the provisions of this section shall upon conviction be fined not more than twenty-five dollars ($25.00) or imprisoned not more than twenty (20) days.
(Parish Code 1962, Title 12, §§ 150, 152, 153; Ord. No. 9614, § 1, 4-28-93; Ord. No. 10044, §§ 1, 2, 10-12-94)

PART II. HOUSE-TO-HOUSE PEDDLERS

Sec. 12:200. House-to-house peddling as nuisance.

(a) *Definitions.*

(1) *House-to-house peddling:* The practice of going in and upon private residences in the city-parish, by solicitors, peddlers, hawkers, or itinerant merchants and transient vendors of merchandise, not having been required or invited to do so by the owner or owners, occupant or occupants of the private residences, for the purpose of soliciting orders for the sale of goods, wares or merchandise, and/or for the purpose of disposing of and/or peddling or hawking the same, and/or for the purpose of sale of services. Religious, political, or charitable solicitation is not considered to be peddling.

(2) *Peddler:* For purposes of this section this term is meant to apply to all solicitors, peddlers, hawkers, itinerant merchants and transient vendors referenced in 12:200(a)(1) above.

(b) *Prohibition.* House-to-house peddling is hereby declared to be a nuisance and punishable as such as a misdemeanor except under the following circumstances:

(1) *Hours:* House-to-house peddling shall be allowed between the hours of 9:00 a.m. and 6:00 p.m. with the following exceptions:

a. A "No Solicitation" sign has been posted at the residence in accordance with 12:152(a)(1)c.; or

b. By resolution of the board of the homeowners' association, a sign has been posted at each entrance to a recognized single family residential subdivision designating the subdivision as a no peddling area. A certified copy of the resolution shall be provided to the revenue division of the department of finance. The sign shall clearly state that house-to-house peddling is prohibited in the

subdivision and shall be legible and visible from the public street. No sign shall be posted pursuant to this subsection without the approval of the chief traffic engineer.

(2) *Meat and poultry:* Peddling of meat and poultry products must be in compliance with the requirements promulgated by the health department pursuant to the provisions contained within section 6:500 et seq. regarding the slaughter and sale of meat and poultry.

(3) *Permit required:*

a. All those wishing to engage in house-to- house peddling must first obtain a permit from the finance department as provided in subsections 12:200(c) and (d).

b. All persons engaged in house to house peddling, as herein defined, must have a valid permit for the time period in which they are peddling.

c. All persons engaged in house to house peddling, as herein defined, must have a valid permit on their person, and produce said permit and suitable identification to demonstrate that the solicitor is the person identified by the permit upon demand by an occupant or law enforcement officer or agent.

d. Minor children engaged in house to house peddling, as herein defined, receive permits through their parents or legal custodians.

e. Minor children engaged in house to house peddling, as herein defined, must be accompanied by an adult, at least eighteen (18) years of age, while engaging in house-to-house peddling.

(c) *Permit requirements.*

(1) Applicants for a permit under this section shall complete a written application, for a fee of ten dollars ($10.00), with the finance department. The permit application must contain the following information:

a. Name and address of applicant.

b. Name and address of company, employer, or other commercial enterprise represented.

c. A brief description of the nature of the peddling.

d. If a vehicle is being used, a description of the make and model vehicle and a license plate number.

e. A criminal records background check (right to review) should be attained from the Louisiana State Police (at the applicant's cost) and taken to the office of the constable. Upon verification of sections i, ii, and iii below, the office of the city constable will issue a certificate of clearance at the applicant's cost:

i. That the applicant is not registered on the National Sex Offender Registry.

ii. That the applicant has not been convicted of a crime of violence as defined by R.S. 14:2 et seq. within the past seven (7) years.

iii. That the applicant has not been convicted of an offense against property as defined by R.S. 14:51 et seq. within the past seven (7) years.

(2) Applications must include a copy of a valid state or federal identification card, passport, or official school identification (for minors).

(d) *Issuance of permit.*

(1) Upon receipt of the completed application, including the certification of clearance from the office of the city constable, the finance department shall issue a permit to the applicant. After issuance of the permit by the finance department, the

office of the constable shall produce a photo identification badge for each permit holder, at the permit holder's cost.

(2) All those issued a permit under this section shall have said permit available upon request by any person or law enforcement officer or agent at all times during the door-to-door peddling, whether on the premises or while in transit from one location to another for purposes of peddling. In addition, effective November 1, 2015, the photo identification badge must be worn on the permit holder's person in a conspicuous place while the permit holder is engaging in house-to-house peddling.

(City Code 1951, Title 12, § 200; Parish Code 1962, Title 12, § 200; Ord. No. 11134, § 1, 4-22-98; Ord. No. 14929, § 1, 5-26-10; Ord. No. 15375, § 1, 8-22-12; Ord. No. 15790, § 1, 10-8-14)

Sec. 12:201. Selling goods, wares and merchandise from private property without the consent of the owner or occupant thereof.

The practice of going upon private property without the consent of the owner or occupant thereof and using said immovable property as a site to sell goods, merchandise or other wares, is hereby declared a nuisance and punishable as a misdemeanor.

It shall be prima facie evidence that said entry was unauthorized and uninvited if said vendor or merchant does not have written consent of the owner or occupant in his or her possession.

(Ord. No. 10234, § 1, 4-12-95; Ord. No. 11134, §§ 2, 3, 4-22-98)

Sec. 12:202. Penalty.

Any person perpetrating a nuisance as described and prohibited in this part, upon conviction thereof shall be punished by a fine of not more than five hundred dollars ($500.00), or confinement in the jail for not more than sixty (60) days, or both, at the discretion of the judge, and revocation of the peddlers permit for a period of two (2) years for each and every violation.

(City Code 1951, Title 12, § 202; Ord. No. 11134, § 4, 4-22-98; Ord. No. 15790, § 1, 10-8-14)

PART III. PEDDLERS IN CITY-PARISH-OWNED BUILDINGS*

Sec. 12:210. Door-to-door peddling in city-parish buildings as nuisance.

The practice of going from door to door or office to office in the municipal building, the courthouse, the municipal annex, or any other building owned by the city-parish located in the city-parish by solicitors, peddlers, hawkers or itinerant merchants and transient vendors of merchandise, for the purpose of soliciting orders for the sale of goods, wares and merchandise, and/or for the purpose of disposing of and/or peddling or hawking the same, is hereby declared to be a nuisance, and punishable as such nuisance as a misdemeanor.

(City Code 1951, Title 12, § 204; Parish Code 1962, Title 12, § 204)

Sec. 12:211. Police or sheriff to suppress and abate nuisance.

The police department or sheriff of the parish is hereby required and directed to suppress the same, and to abate any such nuisance as is described in section 12:210.

(City Code 1951, Title 12, § 205; Parish Code 1962, Title 12, § 205)

Sec. 12:212. Exceptions.

The provisions of this part shall not apply to individuals delivering merchandise or goods which have been ordered by the city-parish or by individual employees of the city-parish.

(City Code 1951, Title 12, § 207; Parish Code 1962, Title 12, § 207)

Sec. 12:213. Solicitation by bail bondsmen prohibited.

No person shall negotiate for, procure, solicit, sell, or in any way participate in the negotiation for, procuration, solicitation, or sale of a bond taken to secure the appearance of any person before any court with criminal jurisdiction in the state for any fee, commission, or the receipt of

*__Cross reference—__Transient merchants, title 9, ch. 7.

anything of value unless: (a) within the confines of the East Baton Rouge Parish Prison; (b) within the confines of any area of a public building under the jurisdiction of the Sheriff of East Baton Rouge Parish, and/or the Chief of Police for the Baton Rouge Police Department; or (c) an office used as the customary place of doing business. Provided, nothing in this section shall prohibit the issuance of such a bond in any building or confines to an individual who has requested a person, otherwise prohibited, to issue said bond, and the requesting individual is not receiving a fee, commission, or anything of value for his request. In no event shall any person procure, solicit, sell or in any way participate in the negotiation, solicitation or sale of a bond taken to secure the release of any person before any court with any criminal jurisdiction in the state for any fee, commission or anything of value upon any public street or right-of-way within the city or parish.
(Ord. No. 8774, 11-9-88)

Editor's note—Ord. No. 8774, adopted Nov. 9, 1988, added § 12:209. In order to maintain the style of section numbers in this title, in which the first section of each chapter and part carries a number ending in zero, the editor has redesignated the provisions as § 12:213, with existing § 12:213 renumbered as § 12:214.

Sec. 12:214. Penalty.

Any person perpetrating a nuisance as described and prohibited in this part, upon conviction thereof shall be punished by a fine of not more than one hundred dollars ($100.00), or confinement in jail for not more than twenty (20) days, or both, at the discretion of the judge, for each and every violation.
(City Code 1951, Title 12, § 206; Parish Code 1962, Title 12, § 206)

Note—See the editor's note to § 12:213.

PART IV. TRESPASS ON SCHOOL GROUNDS

Sec. 12:250. Prohibited.

It shall be unlawful for any person to enter or trespass on any of the property of the city-parish, or of the school board located in the city-parish and used for public school purposes, or to use the grounds of the schools, or the walks across the same, except as is provided in section 12:251.
(City Code 1951, Title 12, § 250)

Sec. 12:251. Exception.

Section 12:250 shall not apply to teachers, employees or students or persons entering on the grounds on business with the students, teachers and other persons lawfully thereon.
(City Code 1951, Title 12, § 251)

Sec. 12:252. Penalty.

Any person violating the provisions of this part shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than two hundred dollars ($200.00) or imprisonment for not more than twenty (20) days or both at the discretion of the judge.
(City Code 1951, Title 12, § 252)

PART V. TRESPASS ON NEUTRAL GROUNDS

Sec. 12:260. Peddling, etc., as nuisance. (City)

The practice of going upon or using any portion of the neutral ground of that public right-of-way known as Park Boulevard, from the south line of Government Street to City Park, for the purpose of hawking, peddling or selling any goods, wares or merchandise, or conducting any business for profit of whatsoever kind or nature, shall be and is hereby declared to be a public nuisance and punishable as such as a misdemeanor, provided that nothing herein shall prevent the delivery of any goods, wares or merchandise.
(City Code 1951, Title 12, § 260)

Sec. 12:261. Police to suppress and abate nuisance. (City)

The chief of the department of police is hereby authorized and directed to suppress and abate any nuisance as described in section 12:260.
(City Code 1951, Title 12, § 262)

Sec. 12:262. Penalty. (City)

Any person violating the provisions of section 12:260 shall be guilty of a misdemeanor and upon conviction thereof shall be punishable by a fine of not more than one hundred dollars ($100.00), or

confinement for not more than twenty (20) days, or both, at the discretion of the judge, for each and every violation.
(City Code 1951, Title 12, § 261)

PART VI. TRESPASS ON BREC PARKS

Sec. 12:270. Prohibited.

It shall be unlawful for any person to enter, trespass on, or use any portion of the grounds of BREC parks after sunset and before sunrise, except as provided in section 12:271.
(Ord. No. 9745, § 1, 11-10-93)

Sec. 12:271. Exception.

Section 12:270 shall not apply to persons entering or using BREC parks in connection with activities authorized by the recreation and parks commission.
(Ord. No. 9745, § 1, 11-10-93)

Sec. 12:272. Penalty.

Any person violating the provisions of this part shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than two hundred dollars ($200.00) or imprisonment for not more than twenty (20) days or both at the discretion of the judge.
(Ord. No. 9745, § 1, 11-10-93)

CHAPTER 4. POSTERS

Sec. 12:300. Posters and other advertising prohibited.

It shall be unlawful for any person either directly or by requesting another to do so, to paste, post, nail, tack, or attach in any other manner any kind of dodger, sign, card, picture, placard or advertisement of any kind, business or political, or cardboard, tin or any other material to any pole, post or object on the streets, alleys, sidewalks or rights-of-way of the city-parish; and it shall further be unlawful to suspend or erect any banner, placard or advertisement of any kind over and across any public street, alley or other public way within the city-parish.
(City Code 1951, Title 12, § 300; Parish Code 1962, Title 12, § 300; Ord. No. 14681, § 1, 6-10-09)

Sec. 12:301. Leasing or using poles, etc., prohibited.

The owners or lessors of any sign, post, lighting stand, guy post, guy wire, shade tree or any other post, pole or object are prohibited from using same for the above named purposes and are also prohibited from granting, letting or leasing the poles, posts, lighting standards, guy wires, guy posts, shade trees or any other posts, poles or objects to any other parties for said purposes or for the purpose of being used in connection with the suspension of any banner, placard or advertisement of any kind over and across the public streets.
(City Code 1951, Title 12, § 301)

Sec. 12:302. Penalty

Any person violating the provisions of this chapter, shall pay a penalty of one hundred twenty-five dollars ($125.00) for a first violation; and upon a second violation within a two-year period, a penalty of two hundred fifty dollars ($250.00); and upon a third and any subsequent violations within a two-year period, a penalty of five hundred dollars ($500.00). Enforcement of this chapter shall be pursuant to the provisions of title 1, section 609, et seq.
(City Code 1951, Title 12, § 302; Ord. No. 14681, § 2, 6-10-09; Ord. No. 15271, § 1, 2-8-12)

CHAPTER 5. WEEDS*

Sec. 12:350. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

***Editor's note—**Section 1 of Ord. No. 7706, adopted Nov. 28, 1984, reads as follows:

"Chapter 5 of Title 12 of the Code of Ordinances of the City of Baton Rouge and Parish of East Baton Rouge is hereby amended so as to provide that wherever the words Director of Public Works or Department of Public Works

Agent or *person in control* shall mean any authorized agent or other person in control of property situated in the city-parish who is either managing, occupying, overseeing or in custody of such property by reason of power of attorney, contract or agreement, whether written or verbal, or other permission of the record owner of the property.

Lot shall mean any portion, piece or division of land set apart for individual and private use and occupancy according to a plat or survey, whether vacant or improved by any occupied or unoccupied building or structure.

Owner shall mean any person owning any lot, place or area within a recognized subdivision of the city-parish.

Recognized subdivision shall mean any subdivision of land approved by the council, or the planning commission, and recorded in the official records of the parish.
(City Code 1951, Title 12, § 354; Ord. No. 7820, § 1, 4-10-85; Ord. No. 9637, § 1, 6-9-93; Ord. No. 13864, § 1, 1-10-07)

Sec. 12:351. Removal required.

(a) The owner, or his agent, or other person in control of any lot within a recognized subdivision of this city-parish shall be required to maintain his property in such a manner that grass and weeds do not reach a height of more than twelve (12) inches and allowed to remain in such condition for more than two (2) weeks. This provision shall not apply to land used for:

(1) The grazing of livestock or other agricultural purpose; or

(2) Tracts of land of two (2) acres or more except for any portion of the tract which is within one hundred (100) feet of any zoning district that allows for a residential use; or

(3) A combination of contiguous tracts owned by the same owner totaling two (2) acres or more and which contains at least one (1) tract for which an active building permit is in effect.

(b) Whoever violates the provisions of subsection (a) of this section shall pay a penalty of one hundred twenty-five dollars ($125.00) for a first violation; and upon a second violation within a two-year period, a penalty of two hundred fifty dollars ($250.00); and upon a third and any subsequent violations within a two-year period, a penalty of five hundred dollars ($500.00). Enforcement of this section, in addition to the provisions of subparagraph (c), shall be pursuant to the provisions of title 1, section 1:609, et seq.

(c) The director of the department of public works shall divide the city-parish into several weed cutting areas, the number and limits of which are to be established by the director of the department of public works, and annually on or before February 15 of each year, the director of the department of public works shall begin placing advertisements in the official journal of the city-parish, such advertisements to appear at least three (3) times within ten (10) days, advising all property owners within the designated areas that any lot, place or area within such designated area having weeds or grass, or other obnoxious matter, growing thereon may be cut by the city-parish within thirty (30) days unless sooner cut or removed by the owner, his agent or other person in control of such lot, place or area.
(City Code 1951, Title 12, § 350; Ord. No. 9637, § 2, 6-9-93; Ord. No. 13436, § 1, 10-26-05; Ord. No. 13864, § 1, 1-10-07; Ord. No. 14681, § 3, 6-10-09; Ord. No. 14723, § 2, 7-22-09; Ord. No. 15271, § 2, 2-8-12; Ord. No. 15413, § 2, 11-14-2012; Ord. No. 15763, § 1, 9-10-14)

Sec. 12:352. Notice to remove.

(a) If the owner or owners of a lot or lots, as defined herein, located within recognized subdivisions fail to cut and remove such weeds, grass, or deleterious or unhealthy growths or other obnoxious matter as defined herein when requested to do so within fifteen (15) days after receipt of a registered or certified letter by the department of public works, the department of public works shall have the authority to have such weeds,

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are mentioned, the words Director of Citizen Service or Office of the Mayor-President, Division of Citizen Service should be substituted."

grass, or deleterious or unhealthy growths or other obnoxious matter cut at the expense of the property owner or owners. The department of public works shall also send the above described request to the owner or owners of the property by regular mail. For the purpose of this chapter, the owner or owners of the property shall be determined from the latest available parish assessment rolls.

(b) If the lot or lots where the weeds or growth are to be removed is located within the city, then the department of public works, in addition to the notification method set forth in subsection (a), is authorized to provide notice to the owner or owners by advertisement in the official journal of the city-parish for two (2) consecutive days. If the owner fails to remove the weeds or growth within five (5) days of said advertisement, then the department of public works shall have the authority to cut, destroy, or remove same at the expense of the owner or owners.

(c) However, the department of public works may undertake the cutting, destruction, or removal of weeds, grass or deleterious or unhealthy growths or other obnoxious matter on any property within the city on a monthly basis without the notice required in subsection (a) or (b) if the owner has been notified pursuant to said subsections at any time during the immediately preceding twelve (12) months and has failed to do the work himself or herself after opportunity to do so. However, prior to undertaking such work, the director of the department of public works or his designee shall sign, file and record an affidavit at his or her administrative office. Such affidavit shall include a description of the property sufficient to reasonably identify it, a photograph of the property sufficient to reasonably identify its un-

safe and unsanitary condition, and a statement that the owner has within the past twelve (12) months failed to do such work after notification and opportunity to do so pursuant to this section. (City Code 1951, Title 12, § 351; Ord. No. 7820, § 2, 4-10-85; Ord. No. 13864, § 1, 1-10-07; Ord. No. 14272, § 1, 1-9-08)

Sec. 12:353. Failure to remove.

(a) If there has been no compliance with the written notice provided for in section 12:352, or if the owner is an absentee or has no known mailing address, the director of the department of public works, shall then cause the necessary work to be done to effect compliance with the provisions of section 12:351 at the owner's expense; and the director of the department of public works may have such work done either with the personnel and equipment of his department, or by means of a contract with a third person; except that if the work is done by private contract, the work shall only be done after advertisement for bids in accordance with the purchasing regulations.

(b) Upon completion of such work, the director of the department of public works shall cause to be prepared and filed with the recorder of mortgages of this parish a certificate showing the cost of such work, a penalty of ten (10) percent thereof or two dollars ($2.00), whichever is greater, the name of the owner and a description of the property involved. This certificate shall be recorded by the recorder of mortgages in a special lien book to be kept for such purpose, which shall be designated "Weed Cutting Lien Book," and shall operate from the date of filing as a tax lien or assessment on the property affected. This lien, if not reinscribed, shall prescribe ten (10) years from the date of filing such certificate, may be enforced in a summary manner as other tax liens or assessments, and shall be subject to the same penalties, interest and attorney's fees.

(c) Upon the filing of this certificate, the director of the department of public works in writing shall advise the director of finance and the parish attorney thereof; and the latter shall institute suit or take such other steps as may be required or necessary for the enforcement of such lien. All amounts received in payment of the liens shall be deposited in the revolving fund account to be established for use in connection herewith, as provided in section 12:358. The director of finance shall maintain an accurate account of all amounts assessed and due hereunder and shall establish such rules and regulations relating to the handling and collection of all sums due for weed cutting as may be required or necessary to fully implement the provisions of this chapter.

(d) In addition to all other means of collection, the department of public works is authorized to collect the liens recorded after January 1, 2007 and associated costs, by the use of any means authorized by law for the collection of ad valorem taxes. Associated costs shall include penalties, interest, attorney fees, court costs, all costs incurred in locating the owner of the property, and all costs incurred in the enforcement and collection of the amount secured by the lien against the immovable and the improvements including reimbursement to the assessor and commission to the sheriff.

The director of the department of public works and/or the parish attorney shall submit to the assessor a certified list, either in hard or electronic form, reflecting the amounts due, the assessor's property number, the legal description of the property on which each amount is levied, and the name of the owner of the property. Upon receipt of such information, the assessor shall place the liens and associated costs on the tax roll, The assessor shall be reimbursed in the same manner as provided in R.S. 47:1993.1(C). The reimbursement to the assessor is not required to be paid in advance. The sheriff, as ex officio tax collector, shall collect and remit the liens and associated costs in the same manner as all other ad valorem taxes are collected and shall retain the same commission as he receives for the collection of ad valorem taxes as provided in R.S. 33:1423(C). Failure to pay the liens and associated costs shall cause the immovable property to be subject to the same provisions of law as govern tax sales of immovable property.

The lien and associated charges shall prime all other liens, mortgages, and privileges against the property, except those for prior recorded taxes and local and special assessments.

(City Code 1951, Title 12, § 352; Ord. No. 9816, § 1, 2-9-94; Ord. No. 13864, § 1, 1-10-07; Ord. No. 14050, § 1, 6-27-07; Ord. No. 14272, § 1, 1-9-08)

Sec. 12:354. Failure or refusal to comply with chapter a misdemeanor; penalty.

Except as otherwise provided in section 12:351, the failure or refusal of the owner, or his agent or other person in control, to comply with the provisions of this chapter shall constitute a misdemeanor, which offense shall be tried before the city court or the nineteenth judicial district court for the parish depending on the location of the subject property, and the owner or his agent or other person in control shall be subject to a fine of twenty-five dollars ($25.00) per day beginning on the sixteenth day after receipt of written notice as provided herein but in no event shall the maximum fine exceed five hundred dollars ($500.00).
(City Code 1951, Title 11, § 353; Ord. No. 13864, § 1, 1-10-07; Ord. No. 14681, § 4, 6-10-09)

Sec. 12:355. Assessments for costs in cutting weeds.

The department of public works is authorized and directed to assess the owners of the property on which weeds are cut for the costs involved in cutting the weeds in accordance with section 12:353. All sums received by the city-parish as a result of such assessments shall be placed into the revolving fund account to be established for use in connection herewith, as provided in section 12:358.
(City Code 1951, Title 12, § 355; Ord. No. 13864, § 1, 1-10-07)

Sec. 12:356. Contracts to out weeds; liability insurance.

After bids have been taken as provided in section 12:353, the department of public works is authorized to execute contracts with acceptable contractors who have bid according to specifications, under which contract or contracts and after due notice, individual lots and tracts will be cut, with all costs to be assessed to the property owner. The department of public works shall establish in such contracts reasonable charges for the cutting of individual lots and in addition to such charges may levy as an assessment against the property owner the amounts provided in section 12:353. All contractors shall carry liability insurance in amounts provided by the purchasing agent, shall own such equipment as may be required or necessary to properly carry out the contract and shall agree to hold the city-parish free and harmless from any claims arising out of the work performed. The contracts to be so executed shall be approved by the office of the parish attorney as to form.
(City Code 1951, Title 12, § 356; Ord. No. 4686, § 1, 5-26-82; Ord. No. 13864, § 1, 1-10-07)

Secs. 12:357—12:359. Reserved.

Editor's note—Section 12:357 was repealed by § 2 of Ord. No. 9816, adopted Feb. 9, 1994. The section related to assignments to contractors and was derived from the City Code of 1951, title 12, § 357. Ord. No. 13864, § 1, adopted January 10, 2007, amended the Code by repealing former § 12:358 in its entirety. Former § 12:358 pertained to cooperation of agencies, and derived from the City Code of 1951, title 12, § 358. Section 12:359 was repealed by § 2 of Ord. No. 9816, adopted Feb. 9, 1994. The section established a weed cutting fund and was derived from City Code 1951, title 12, § 359, and § 2 of City Ord. No. 4686 and Parish Ord. No. 5913, both adopted May 26, 1982.

CHAPTER 6. MISCELLANEOUS

Sec. 12:400. Offensive matter.

(a) All persons are forbidden from:

(1) (Repealed by Ord. No. 9340, § 11, 9-25-91)

(2) Burning any such substance, automobiles or other material in such a manner as to be offensive to the smell or injurious to health. The burning of wrecked or discarded automobiles shall be done only in designated open spaces or incinerator enclosures approved for burning by the building official.

(b) Any person who shall violate any of the provisions of this section or fail to comply herewith shall severally for each and every such violation be guilty of a misdemeanor and punishable by a fine of not less than twenty-five dollars ($25.00), nor more than two hundred dollars ($200.00), or by imprisonment not exceeding sixty (60) days, or by both such fine and imprisonment. The imposition of one penalty for any violation shall not excuse the violation or permit it to continue, and each day's violation shall constitute

a separate offense. The application of any such penalty shall not be held to prevent the enforced removal or prevention of prohibited conditions.
(City Code 1951, Title 12, § 400; Parish Code 1962, Title 12, §§ 501, 502; Ord. No. 9340, § 11, 9-25-91)

Sec. 12:401. Obstruction of drainage. (City)

No person shall impede or obstruct the passage flow of water of any street, gutter, ditch or drain on any property either owned by the city or the parish or on any servitude or right-of-way of whatever nature under the possession or control of the city or parish. Nor shall any person construct any driveway ramp within any public street right-of-way which obstructs the flow of water or allow any material to remain in any public street, gutter, ditch or drain adjacent to the property where such person resides whether the material be leaves, branches or other debris of whatever nature.

Any persons violating this section shall be fined one hundred dollars ($100.00) for each occurrence.
(City Code 1951, Title 12, § 401; Ord. No. 9418, § 1, 4-8-92; Ord. No. 9600, § 1, 4-14-93)

Sec. 12:402. Reserved.

Editor's note—Section 12:402, prohibiting the depositing of fruit peelings on city property, derived from City Code 1951, title 12, §§ 402, 403, was repealed by § 11 of Ord. No. 9340, adopted Sept. 25, 1991.

Sec. 12:403. Charivariing. (City)

The custom of charivariing is hereby declared a nuisance, and all persons are prohibited from engaging in the same within the limits of the city, and any one so offending shall be held guilty of disorderly conduct and disturbing the peace, and shall be liable to a fine not exceeding twenty dollars ($20.00), or imprisoned not exceeding twenty (20) days.
(City Code 1951, Title 12, § 404)

Sec. 12:404. Fortune telling. (City)

What is known as "fortune telling," "palmistry," "reading futures" and the like within the city is declared a nuisance and is prohibited, and persons plying these vocations shall, upon conviction, be subject to a fine not exceeding twenty dollars ($20.00) or imprisoned not exceeding fifteen (15) days, or both, at the discretion of the judge, who shall have the authority to require that persons violating the provisions of this section leave the city.
(City Code 1951, Title 12, § 405)

Sec. 12:405. Maintenance of property.

(a) Every owner of immovable property located in the parish and which is zoned within any classification other than rural shall maintain the property in such a manner that the property shall not attract rodents, reptiles, mosquitoes, vermin and other pests; and no owner of such immovable property shall allow any structure that is unoccupied and has not had running water or electricity for a period of at least two (2) weeks to exist in such a condition that it may be entered by means other than a key or forced entry, subject to the exceptions set forth below.

(b) It shall be prima facie evidence of a violation of this section if:

(1) Grass or weeds are allowed to reach a height of more than twelve (12) inches over the majority of the immovable property and allowed to remain in such condition for more than two (2) weeks. This provision shall not apply to land used for the grazing of livestock or tracts of land of two (2) acres or more or a combination of contiguous tracts owned by the same owner totaling two (2) acres or more and which contains at least one (1) tract for which an active building permit is in effect.

(2) A structure is allowed to remain unlocked or with open windows or doors or is in such condition that the doors and windows do not prevent access to the public. The provisions of this part shall not apply to utility buildings located on immovable property upon which there is an occupied dwelling, nor shall this provision apply to outbuildings or other structures which form part of a business establishment

that is in operation, so long as such structure is not being used by any persons for criminal activity.

(c) Whoever violates the provisions of this section shall pay a penalty of one hundred twenty-five dollars ($125.00) for a first violation; and upon a second violation within a two-year period, a penalty of two hundred fifty dollars ($250.00); and upon a third and any subsequent violations within a two-year period, a penalty of five hundred dollars ($500.00).

Enforcement of this section for shall be pursuant to the provisions of section 6:609, et seq. of the Code of Ordinances.
(Ord. No. 9452, § 1, 7-8-92; Ord. No. 14681, § 5, 6-10-09; Ord. No. 14723, § 1, 7-22-09; Ord. No. 14937, § 1, 6-9-10; Ord. No. 15271, § 3, 2-8-12; Ord. No. 15413, § 1, 11-14-2012)

Sec. 12:405.1. Maintenance of property—Unoccupied structures.

(a) No person owning or having charge or control of immovable property shall allow any structure that is unoccupied and has not had running water or electricity for a period of at least two (2) weeks to exist in an unsecured condition so that it may be entered by means other than a key or forced entry. The provisions of this section shall not apply to utility buildings located on immovable property upon which there is an occupied dwelling, nor shall this section apply to accessory structures which form part of a business establishment that is in operation, so long as such structure is not being used by any persons for criminal activity.

(b) Every person owning or having charge or control of any unoccupied, unsecured structure as set forth in part (a) shall remove all combustible waste and refuse therefrom and lock, barricade or otherwise secure all windows, doors and openings in the building to prohibit entry by unauthorized persons.

(c) Any unoccupied, unsecured structure that is secured pursuant to this section shall be barricaded by using a minimum of one-half-inch plywood board. Any board placed on an unoccupied, unsecured structure shall be painted a color that is consistent with the color of the structure and shall be cut to fit into any windows, doors or other openings on such unoccupied, unsecured structure. Any structure boarded pursuant to an enforcement proceeding brought under former section 12:405 shall comply with the provisions of this subsection no later than twelve (12) months from the effective date of its adoption.

(d) Enforcement of this section shall be pursuant to the provisions of section 1:609 et seq. of the Code of Ordinances. Whoever violates the provisions of this section shall pay a penalty of $117.00. An additional fine of $117.00 per day may be imposed for each day of continuing violation of an order of the administrative hearing officer.
(Ord. No. 14937, § 1, 6-9-10)

Sec. 12:405.2. Emergency measures.

If in the opinion of the director of the department of public works, there is imminent danger to person or property due to an unsafe condition of an unoccupied, unsecured structure as described herein, the Director shall order the necessary work to be done, including the boarding of openings, to render such structure temporarily safe, All costs associated with the temporary securing of a structure pursuant to this subsection are the responsibility of the property owner and the city-parish is authorized to employ all means authorized by law to collect such costs, including the placing of a lien on the property.
(Ord. No. 14937, § 1, 6-9-10)

Sec. 12:406. Maintenance of swimming pools.

(a) Every owner of a swimming pool, located in the parish shall maintain the pool in such a manner that:

(1) The pool shall not harbor or become infested with reptiles, mosquitoes, vermin or other pests;

(2) The pool shall not harbor or support submergent or emergent vegetation; and

(3) The pool shall not collect scum, film or debris to such an extent that the water is not clear enough to permit a black disk six (6) inches in diameter on a white field, when placed on the bottom of the pool at

the deepest point, to be clearly visible from the deck around the pool at all distances up to ten (10) yards measured from a line drawn across the pool through said disk.

(b) Every owner of a swimming pool, with a depth greater than eighteen (18) inches, shall keep the pool completely enclosed with fences or walls not less than five (5) feet in height with no openings greater than four (4) inches, and composed of rigid, sturdy material. Every pool owner shall equip gate or door openings to the pool with self-closing and self-latching devices capable of keeping such gate or door securely closed at all times. Every swimming pool owner shall keep said fences, gates, and doors in a state of repair. All gates and doors shall be securely closed at all times. No waiver of this section shall be accepted as compliance.

(c) A violation of sections 12:406—12:406.6 shall constitute a public nuisance.

(d) In addition to the penalties and other provisions set out in sections 12.406.1 through 12.406.6, an owner of a swimming pool who fails to abate the nuisance within the fifteen-day period shall be liable for a penalty of one hundred twenty-five dollars ($125.00) for a first violation; and upon a second violation within a two-year period, a penalty of two hundred fifty dollars ($250.00); and upon a third and any subsequent violations within a two-year period, a penalty of five hundred dollars ($500.00).

Enforcement of this section shall be pursuant to the provisions of Title 1, Section 609, et. seq.
(Ord. No. 10348, § 1, 6-28-95; Ord. No. 10498, § 1, 11-8-95; Ord. No. 13770, §§ 1, 2, 10-11-06; Ord. No. 14681, § 6, 6-10-09; Ord. No. 15271, § 4, 2-8-12)

Editor's note—Ord. No. 10348, § 1, adopted June 28, 1995, repealed former § 12:406 and added new §§ 12:406—12:406.6. Former § 12:406 pertained to similar subject matter and derived from Ord. No. 10041, § 1, adopted Sept. 28, 1994.

Sec. 12:406.1. Definitions.

(a) *Swimming pool.* Any man-made structure designed or built for the purpose of swimming, whether such structure is above the ground or built into the ground, regardless of whether it is made of plastic, concrete, wood, metal or other material.

(b) *Vermin.* Noxious small animals or parasitic insects including, but not limited to lice, fleas, worms, rats or mice.
(Ord. No. 10348, § 1, 6-28-95)

Sec. 12:406.2. Enforcement.

(a) The provisions of section 12:406 et seq. shall be administered and enforced through cooperation of the director of mosquito and rodent control, the director of public works, the director of animal control, the director of the East Baton Rouge Parish health unit, the chief of police, and/or the sheriff. Upon having reasonable suspicion to believe that a violation exists, the persons charged with administration and enforcement of sections 12:406—12:406.6 shall have the authority to enter upon private or public property between the hours of 8:00 a.m. and 5:00 p.m., Monday through Friday, for inspection and testing of the swimming pool and/or its contents.

(b) After having been notified that a violation exists, the owner shall remedy the violation within ten (10) days or the enforcing agency may seek authorization from the metropolitan council to remedy the violation as the enforcing agency deems proper, including, but not limited to treating the water in the swimming pool with chemicals, draining the contents of the swimming pool, filling the swimming pool in with dirt or cement, and/or removing the swimming pool from the premises and disposing of it if it is a portable structure.

(c) The city-parish shall have a lien and privilege for the cost of remedying the violation.
(Ord. No. 10348, § 1, 6-28-95)

Sec. 12:406.3. Procedures.

(a) Whenever any public nuisance exists on occupied or unoccupied premises within the city-parish in violation of section 12:406, the enforcing agency shall order the owner of the property upon which the swimming pool is situated to abate the same. Such order shall:

(1) Be in writing;

(2) Specify the location of the swimming pool; and

(3) Provide for abatement of the nuisance within ten (10) days from service thereof.

(b) The order shall be served upon the owner of the property upon which the swimming pool is situated by serving him/her personally or by sending the order by certified mail, return receipt requested, to the last address of record in the most recent parish assessment roll. If the property is owned in indivision and the owners in indivision, with their proportionate share in the property, are listed separately in the assessment roll, then each owner in indivision must be served. Refusal of service or of certified mail shall constitute notice.

(c) Within the ten-day period after services of notice, the owner of the swimming pool shall abate the nuisance. It shall be the responsibility of the owner to notify the enforcing agency that the nuisance has been abated before the time period for compliance expires.

(d) If the owner of the swimming pool fails to abate the nuisance within the ten-day period after notification, the chief of police or sheriff may issue a misdemeanor summons to the owner of the swimming pool.
(Ord. No. 10348, § 1, 6-28-95; Ord. No. 10465, § 1, 9-27-95)

Sec. 12:406.4. Abatement process.

(a) Before the enforcing agency may take steps to abate the nuisance through remedial measures, it must obtain approval from the metropolitan council. The enforcing agency must submit a written report to the council recommending that the nuisance be abated by the city-parish and specifying the remedial measures sought to be implemented. The mayor-president shall thereupon serve notice on the owner of the swimming pool or his/her agent requiring him/her to show cause at a meeting of the council, regular or special, why the remedial measures should not be executed. The date and hour of the meeting shall be stated in the notice which shall be served at least ten (10) days prior to the date of the hearing, except in case of grave public emergency as hereinafter provided. The notice may be served by the sheriff or deputy sheriff or constable having jurisdiction and power to serve legal process where the owner of the property upon which the swimming pool is situated is found in the state, and the officer shall make return of the service as in ordinary cases.

(1) If the owner is absent from the state and unrepresented therein, or if the owner is a minor who has no tutor or an interdict who has no curator, then the notice shall be served upon the occupant of the property upon which the swimming pool is situated, if any, and also upon an attorney at law appointed by the mayor-president to represent the absentee, minor, or interdict. Domiciliary service may be made as in ordinary cases.

(2) In case of grave public emergency where the condition of the swimming pool is such as to cause possible immediate loss or damage to person or property the council may recommend that remedial measures be taken after twenty-four (24) hours notice served upon the owner or his agent, or upon the occupant of the property upon which the swimming pool is situated, if any, and the attorney at law appointed to represent the absentee, minor, or interdict.

(b) After the hearing, if in the opinion of the council the facts justify it, an order shall be entered that the remedial measures recommended by the enforcing agency within a certain delay. If the owner or his agent chooses to comply with the order of the council, prior to expiration of the delay the owner or his agent must execute a contract in writing obligating himself/herself to have the abatement completed within a time specified by the council and must file a copy of the contract with the mayor-president and the enforcing agency, together with a bond to guarantee performance. Upon failure of the owner or his agent to timely fulfill any of the aforementioned requirements the city-parish shall proceed with the implementation of the remedial measures unless the decision of the council has been appealed as hereinafter provided. If the property upon which the swimming pool is situated is occupied, then the occupant shall be served with notice by ordinary mail as to the approximate date the remedial measures shall begin.

(c) The order of the council shall be in writing and shall be final unless appealed from within five (5) days. The owner or his agent may appeal from the decision of the council to the district court having jurisdiction over the property upon which the swimming pool is situated. The appeal shall be made by the filing of a suit against the city-parish, setting forth the reasons why the decision or order of the council is illegal or improper and the issue shall be tried de novo in the district court. Where a grave public emergency has been declared by the governing authority, the owner of the swimming pool who desires to prevent the implementation of the remedial measures by the city-parish must file his petition within forty-eight (48) hours and must, at the time of the filing of the petition, furnish such bond as may be fixed by the district judge to cover any damage that might be caused by the condition of the swimming pool. Either party may appeal from the judgment of the district court as in other cases.
(Ord. No. 10348, § 1, 6-28-95)

Sec. 12:406.5. Lien on property.

The city-parish shall have a lien and privilege against the property upon which the swimming pool is situated for the cost of remedial measures implemented to abate the nuisance. The privilege and lien shall be preserved and enforced only after the owner has failed to reimburse the city-parish within thirty (30) days after notification by the city-parish to pay the costs incurred. The thirty (30) days shall run from the date of mailing of the notification. In order to preserve the lien and privilege it shall be the duty of the mayor-president to prepare and sign a sworn statement of facts, giving the description of the property and a description of and the approximate cost of the remedial measures implemented. This statement shall be filed and recorded in the mortgage office of the parish in which the property is located and the city-parish shall be entitled to recover the amount of this expense together with all costs of court and legal interest from the date of recordation of the lien, by ordinary process in the district court having jurisdiction of the property. Additionally, where it is necessary for the city-parish to appoint an attorney to represent an absentee, a minor, or an interdict, as hereinabove provided, the attorney shall be paid a scheduled fee to be taxed as cost.
(Ord. No. 10348, § 1, 6-28-95)

Sec. 12:406.6. Penalties.

(a) Whosoever is found guilty of violating the provisions of section 12:406 et seq. on first offense shall be guilty of a misdemeanor and shall be subject to a fine not to exceed two hundred dollars ($200.00) or be imprisoned for thirty (30) days. In addition to any other fine or penalty imposed, the court may, at its discretion, order as a part of the sentence, restitution to the city-parish where remedial measures are implemented by the city-parish to abate the nuisance in accordance with section 12:406.4.

(b) Whosoever is found guilty of violating the provisions of section 12:406 et seq. on second and subsequent offense shall be guilty of a misdemeanor and shall be subject to a fine not to exceed five hundred dollars ($500.00) or be imprisoned for not more than six (6) months. In addition to any other fine or penalty imposed, the court may, at its discretion, order as a part of the sentence, restitution to the city-parish where remedial measures are implemented by the city-parish to abate the nuisance in accordance with section 12:406.4.
(Ord. No. 10348, § 1, 6-28-95)

Sec. 12:406.7. Recovery of expenses upon rescission of a decision and order.

(a) Prior to the rescission, at the request of a property owner or interested party, of an abatement decision and order on a swimming pool by the metropolitan council, the person requesting the rescission shall obtain from the office of the parish attorney a statement itemizing all fees and costs incurred by the city-parish in connection with the abatement of the swimming pool.

(b) All itemized fees and costs shall be paid to the city-parish prior to the rescission of the abatement decision and order by the metropolitan council.
(Ord. No. 15628, § 1, 12-11-13)

Sec. 12:407. Improper public storage of tires.

(a) The outdoor storage of tires in stacks and piles is hereby declared to be a nuisance, a factor promoting blight, and a contributing factor to visual clutter in the city and parish.

(b) The visible storage of five (5) or more tires adjacent to a public road or in an area visible to passers-by from a public road, for any purpose, is hereby declared to be a public nuisance. Creating a nuisance by improper storage of tires shall be punishable as a misdemeanor, with each day of improper storage constituting a separate offense.

(c) The improper storage of tires as herein defined, shall not be considered as a nuisance under the following circumstances:

(1) The tires in question are held for sale by a tire or automotive supply store, displayed during operating hours of the establishment, clearly marked as being for sale, and removed from public view when the establishment is closed; or

(2) The tires are entirely enclosed in a fence, which may be constructed of chain-link wire or other weather and damage resistant materials, including wooden pickets, metal panels, or solid plastic panels.

(d) The owner of the property on which the tires are found shall be liable for any nuisance created under this part by the improper storage of tires. It shall be an affirmative defense to a charge of nuisance under this part for a land owner if he or she can demonstrate that a lessee of the property has violated the terms of his or her lease by improperly storing tires on the property, in which case, the lessee shall be liable for the creation of the nuisance.

(e) Whoever violates the provisions of this section shall pay a penalty of one hundred twenty-five dollars ($125.00) for a first violation; and upon a second violation within a two-year period, a penalty of two hundred fifty dollars ($250.00); and upon a third and any subsequent violations within a two-year period, a penalty of five hundred dollars ($500.00).
(Ord. No. 15572, § 1, 9-25-13)

Sec. 12:408. Donation drop boxes; purpose.

Operators of donation drop boxes are prohibited from placing donation drop boxes on all public and private property in the city-parish without first obtaining a permit from the blight division.
(Ord. No. 18253, § 1, 9-8-21)

Sec. 12:408.1. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

Donation drop box means any unattended outdoor container, receptacles, or similar device used for soliciting and collecting donations such as clothing, toys, or other salvageable personal property.

Property owner means the person that has care and control of the parking area where the donation drop box is placed.

Operator means a person who manages the organization for which the donations are solicited or the person who applies for the donation drop box permit.
(Ord. No. 18253, § 1, 9-8-21)

Sec. 12:408.2. Permit required.

(a) To obtain a permit, the operator shall pay a fifty dollar ($50.00) fee per donation drop box placement and show:

(1) A site plan of the spot where the donation drop box will be placed;

(2) The dimensions of the donation drop box;

(3) The signage that will be on the donation drop box;

(4) A notarized affidavit from the property owner, property manager, or person who has a right to possession of the property, indicating that the donation drop box may be placed on their property and

acknowledging that they will be held responsible for maintenance of the area around the donation drop box; and

(5) That the donation drop box will comply with all requirements in this article.

(b) The operator may not transfer the permit to any other person or organization.

(c) The operator shall affix a copy of the permit to the donation drop box in a manner that ensures that it will not be damaged by inclement weather.

(d) The permit must be renewed annually. The fee for renewal shall be fifty dollars ($50.00).
(Ord. No. 18253, § 1, 9-8-21)

Sec. 12:408.3. Permit revocation.

(a) The blight division may revoke the permit for failure of the operator or property owner to comply with the requirements in this article. The operator may appeal the revocation to the blight division within seventy-two (72) hours of the revocation notice.

(b) The donation drop box must be removed within seven (7) days of the permit revocation. If not removed within seven (7) days, the city-parish shall have it removed and the property owner or the operator shall be billed the removal and storage costs.

(c) Donation drop boxes being stored by the city-parish shall be discarded by the city-parish if they are not recovered by the operator within thirty (30) days.
(Ord. No. 18253, § 1, 9-8-21)

Sec. 12:408.4. Construction and placement.

(a) Donation drop boxes may not be placed on any residentially zoned property.

(b) Donation drop boxes must:

(1) Be constructed of metal, fiber glass, or wood;

(2) Have a sign or label indicating the name, address, and telephone number of the organization;

(3) Be secured at all times, except when they are being emptied;

(4) Have a lid or a top to protect the contents from the weather; and

(5) Be no larger than one hundred two (102) cubic feet.

(c) Donation drop boxes may not be placed so that they block driveways, interfere with traffic flow or visibility, are on minimum required parking spaces, are in front, rear, or side yard setback, or on a required landscape area.

(d) Only one (1) donation drop box may be placed on a lot.
(Ord. No. 18253, § 1, 9-8-21)

Sec. 12:408.5. Maintenance.

(a) The area around the donation drop box shall be kept free of any type of debris or excess donations and shall be emptied often enough so that the donations do not overflow.

(b) Donation drop boxes shall not have structural damage, holes, or visible rust.

(c) The city-parish shall give the property owner written notice to clear the debris. If the debris is not cleared within ten (10) days from the date of the written notice, the city-parish shall clear the debris and bill the property owner for the clean-up costs.
(Ord. No. 18253, § 1, 9-8-21)

Sec. 12:408.6. Existing donation drop boxes.

(a) Operators of existing donation drop boxes shall be given written notice, via certified mail, that they have sixty (60) days to obtain a permit. If the operators do not apply for a permit, the operators and the property owners have thirty (30) days to remove the donation drop boxes or the property owners may give the city-parish permission to remove the donation drop boxes.

(b) If an operator cannot be reached, a letter will be posted on the donation drop box itself. The operator shall have sixty (60) days from the day the letter is posted on the box to obtain a permit.

(c) If the city-parish removes the donation drop box, the property owner or the operator shall be billed the removal and storage costs.

(d) Donation drop boxes being stored by the city-parish shall be discarded by the city-parish if they are not recovered by the operator within thirty (30) days.
(Ord. No. 18253, § 1, 9-8-21)

Sec. 12:409. Emission of odor nuisances or odorous air contaminants.

(a) It shall be unlawful for the owner or occupant of any immovable property to cause or allow the emission of any odor nuisances or odorous air contaminants from any single source from the premises of any such immovable property.

(b) For the purpose of this section, the terms "owner" shall mean the owner, operator, occupant, tenant or other person who is responsible for any operation, business or profession, or who exercises control over the immovable property at issue.

(c) For the purposes of this section, the terms "odor nuisances" and "odorous air contaminants" shall mean an odor which is unreasonably unpleasant, distasteful, disturbing, nauseating, or harmful to any person, and which is detected in the ambient air, beyond the property boundary of the odor source, after it is diluted with seven (7) volumes of odor-free air as measured by a field olfactometer operated according to manufacturer specifications by city-parish staff or a law enforcement agency trained in the use of the olfactometer.

(d) City-parish staff, or law enforcement agent shall record a verification test, which shall include the:

(1) Location of the test.

(2) Time and date.

(3) Weather conditions, including wind direction.

(4) Persons present.

(5) Detailed results from the nasal ranger test.

(e) Pursuant to section 1:609.7, a city-parish department may issue notice to any owner or person for violation of this section. In addition, any person having a complaint that a violation of this section has occurred may file a written complaint to any appropriate authority of the city-parish. A written complaint shall include the complaint' s full name, address and telephone number. As soon as is practicable after receipt of such complaint, city-parish staff or a law enforcement agent shall measure the intensity of the odor using the field olfactometer in the manner specified in subsection (b).

Upon determination that a violation exists, the parish attorney or their designee shall institute appropriate action or proceedings to prosecute such violation.

(f) Whoever violates a provision of this section shall be issued a notice of warning for the first offense and allowed fifteen (15) days to abate the described violation; fined one thousand dollars ($1,000.00) for a second offense; fined two thousand dollars ($2,000.00) for a third offense; and fined three thousand dollars ($3,000.00) for fourth and fifth offenses.

If five (5) separate offenses occur within a twelve (12) month period or less, every sixth and subsequent offense shall be fined at five hundred dollars ($500.00) each day; and a separate offense shall be deemed committed on each day during on or which such violation occurs or continues.

(g) If the violator does not abate the offense within fifteen (15) days of receipt of the initial notice of warning, the violator, shall submit to the hearing officer at the first scheduled hearing of this matter, an odor abatement plan which shall:

(1) Identify and explain the odor source(s);

(2) Describe the best practicable odor control technology to manage the odors generated;

(3) Provide a detailed plan on any proposed operational changes to the existing odor control equipment in order to control and mitigate the odors being generated;

(4) Establish a timeline for development and implementation of an engineer-approved treatment technology, which includes monitoring instrumentation and equipment to ensure future compliance.

(5) Be kept on file with a city-parish department.

(h) The imposition of any penalty hereunder shall not preclude the parish attorney from instituting injunctive, mandamus, or other appropriate action or proceedings to abate violations of this section. All revenue collections shall be deposited into the general fund to support the operational costs of the program.

(i) Enforcement of this section shall be pursuant to the provisions of title 1, section 609 et seq. (Ord. No. 18577, § 1, 7-27-22)

CHAPTER 7. ABANDONED, INOPERATIVE MOTOR VEHICLES ON PRIVATE PROPERTY*

Sec. 12:500. Findings and declarations.

In addition to and in accordance with the determination made and the authority granted to remove abandoned, inoperative vehicles as public nuisances, the metropolitan council makes the following findings and declarations:

The accumulation and storage of abandoned, inoperative, dismantled, or wrecked vehicles is found to create a condition tending to reduce the value of property; to promote blight and deterioration; to invite plundering; to create fire hazards; to constitute an attractive nuisance creating a hazard to the health and safety of minors; to create a harborage for rodents and insects; and to be injurious to the health, safety and general welfare. Therefore, the presence of abandoned or inoperative vehicles, except as expressly hereinafter permitted, is declared to constitute a public nuisance which may be abated as such in accordance with the provisions of this part.

(Ord. No. 9809, § 1, 1-26-94; Ord. No. 10718, § 1, 9-25-96)

*__Editor's note—__Chapter 7 was amended to read as set out in §§ 12:500—12:509 by § 1 of Ord. No. 9809, adopted Jan. 26, 1994. The chapter formerly consisted of §§ 12:500—12:510 and was derived from City Code, title 12, §§ 501—510; Parish Code 1962, title 12, §§ 401—410; City Ord. No. 4694; Parish Ord. No. 5930; and Consolidated Ord. Nos. 7821, 8196, 9154.

__Cross references—__Disposition of abandoned inoperative motor vehicles on public property, § 2:350 et seq.; traffic code, § 11:1 et seq.

__State law reference—__Abandoned motor vehicles, R.S. 32:471 et seq.

Sec. 12:501. Definitions.

As used in this part:

(a) *Abandoned, inoperative vehicle* means any vehicle which is incapable of being lawfully moved upon the highways and streets, and includes, but is not limited to, wrecked or dismantled vehicles. Lack of current and/or valid registration, inspection sticker, or license plate alone does not constitute abandoned, inoperative condition. Vehicles which are otherwise in compliance with La. R.S. 32:1301—32:1310 are not considered to be abandoned, inoperative vehicles for purposes of this chapter.

(b) *Owner of the premises* means the owner of the land on which the vehicle is located, as shown on the last equalized assessment roll.

(c) *Owner of the vehicle* means the last registered owner.

(d) *Vehicle* shall mean every device by which persons or things may be transported upon a public highway or bridge, except devices moved by human power or used exclusively upon stationary rails or tracks. A bicycle or a ridden animal shall be a vehicle, and a trailer or semitrailer shall be a separate vehicle.

(e) *Antique vehicle* means any motor vehicle twenty-five (25) years or older, which is operable and substantially in its original condition. These vehicles must be registered as antiques and display antique license plates.

(f) *Enforcing agency* means the chief of police, sheriff, or director of public works as well as their duly authorized agents.
(Ord. No. 9809, § 1, 1-26-94; Ord. No. 10718, § 1, 9-25-96; Ord. No. 12310, § 2, 5-8-02)

Sec. 12:502. Exceptions.

This part shall not apply to:

(a) A vehicle which is completely enclosed within a building in a manner that is not otherwise visible from the street or other public or private property;

(b) Any motor vehicle in an appropriate storage place or depository maintained at a location were such business is authorized under the comprehensive zoning ordinance and other regulatory ordinances of the city-parish;

(c) Any motor vehicle in operable condition specifically adapted or constructed for racing or operation on privately owned drag strips or raceways;

(d) Any antique vehicle retained by the owner for collection purposes, as defined herein, rather than for salvage or for transportation; and

(e) Any motor vehicle stored as the property of a member of the armed forces the United States who is on active duty assignment.
(Ord. No. 9809, § 1, 1-26-94; Ord. No. 10718, § 1, 9-25-96)

Sec. 12:503. Administration, enforcement, right of law enforcement officers to enter private property.

Except as otherwise provided herein, the provisions of this part shall be administered and enforced by the chief of police, sheriff, or the director of public works. In the enforcement of this chapter, such persons charged with administration and enforcement may enter upon private or public property to examine the vehicle or parts thereof, or obtain information as to the identity of a vehicle and to remove or cause the removal of a vehicle or parts thereof declared to be a nuisance pursuant to this part.
(Ord. No. 9809, § 1, 1-26-94; Ord. No. 10718, § 1, 9-25-96; Ord. No. 12310, § 3, 5-8-02)

Sec. 12:504. Right to enter on private property.

When the city-parish has contracted with or granted a permit to any person or persons, such person or persons shall be authorized to enter upon private property or public property to remove or cause the removal of a vehicle or parts thereof declared to be a nuisance pursuant to this chapter.
(Ord. No. 9809, § 1, 1-26-94; Ord. No. 10718, § 1, 9-25-96)

Sec. 12:505. Notice to owner or occupant to abate public nuisance on occupied or unoccupied premises.

(a) Whenever any public nuisance exists on occupied or unoccupied premises within the city-parish in violation of section 12:500, the enforcing agency shall order the owner of the vehicle, or the owner or the occupant of the premises whereon such public nuisance exists, to abate or remove the same. Such order shall:

(1) Be in writing;

(2) Specify the public nuisance and its location;

(3) Specify the corrective measures required;

(4) Provide for compliance within fifteen (15) days from service thereof; and

(5) Provide for opportunity for a hearing by written request received by the enforcing agency within seven (7) days.

(b) The order shall be served upon the owner or occupant of the premises by serving him personally or by sending the order by certified mail, return receipt requested, to the address of the premises and the address shown by the department of motor vehicles.

(c) Within the fifteen-day period after service of notice, the owner or occupant of the premises or the owner of the vehicle shall abate the nuisance by (1) removing the nuisance from the premises, or (2) commencing repairs to the vehicle which shall be completed within thirty (30) days (an extension not to exceed six (6) months may be given by the enforcing agency for good cause shown).

(d) It shall be the responsibility of the owner or occupant of the property or owner of the vehicle to notify the enforcing agency as soon as the vehicle has been removed or as soon as repairs have been completed. Upon notification, the enforcing agency will set up an appointment in order to verify that compliance has taken place.

(e) If the owner or occupant of the premises or the owner of the vehicle fails to abate the nuisance within the fifteen-day period of notification or fails to timely request a hearing, the enforcing agency may issue a misdemeanor summons to the owner or occupant of the premises and cause the vehicle to be removed from the premises in the same manner as provided by state law and local ordinance.

(Ord. No. 9809, § 1, 1-26-94; Ord. No. 10718, § 1, 9-25-96; Ord. No. 12310, § 1, 5-8-02)

Sec. 12:506. Notice presumed from refused certified mail.

For purposes of this chapter, when the owner of premises or owner of the vehicle has been served notice by certified mail as set forth in section 12:505, and such certified mail is refused, the owner is deemed to have received notice in accordance with the provisions of this chapter, and the fifteen-day period commences to run on the date of refusal.

(Ord. No. 9809, § 1, 1-26-94; Ord. No. 10718, § 1, 9-25-96)

Sec. 12:507. Failure or refusal to comply.

The failure or refusal to comply with the provisions of this chapter shall constitute a misdemeanor, and the violator shall be subject to the issuance of a misdemeanor summons. The penalty shall be a fine up to five hundred dollars ($500.00) or six (6) months imprisonment or both for each violation.

(Ord. No. 9809, § 1, 1-26-94; Ord. No. 10718, § 1, 9-25-96)

Sec. 12:508. Removal from unoccupied premises when owner's whereabouts are unknown or notice is returned unclaimed.

A. When there is an abandoned or inoperative motor vehicle on premises that are unoccupied and the identity or whereabouts of the owner of the premises is unknown or unascertainable after a diligent search has been made, or if notice sent to the last record owner of the property by certified mail has been returned as unclaimed, then the enforcing agency shall place an advertisement in the official journal of East Baton Rouge Parish for the whereabouts of the owner for a period of fifteen (15) days. If no response is forthcoming after the fifteen-day period, then the enforcing

agency may take possession of the motor vehicle and remove it from the premises. The enforcing agency shall thereafter dispose of the vehicle in the same manner as provided in section 12:505.

B. If notice sent to the occupant of the premises is returned "unclaimed," service may be accomplished by posting the notice on the doorway of the premises with the fifteen-day period commencing on the date of posting.
(Ord. No. 9809, § 1, 1-26-94; Ord. No. 10718, § 1, 9-25-96)

Sec. 12:509. Removal of vehicles from private property.

Private property owners, whether commercial or residential, have the power, as authorized by general law, to cause vehicles to be removed from their property illegally situated thereon. In any case where an owner requests any law enforcement agency having jurisdiction, to cause to be removed from his property a vehicle said by the property owner to be illegally situated on his property and has filed with such law enforcement agency an acceptable indemnification agreement, such law enforcement agency shall be authorized and empowered to cause the vehicle to be removed by wrecker service in accordance with established policies and procedures for obtaining of wrecker services by law enforcement agencies in the city-parish.
(Ord. No. 9809, § 1, 1-26-94; Ord. No. 10718, § 1, 9-25-96)

CHAPTER 8. DANGEROUS BUILDINGS*

Sec. 12:520. Authority to condemn.

The council may condemn and cause to be demolished or removed any building or structure within the city-parish when it is in a dilapidated and dangerous condition which endangers the public welfare.
(Parish Code 1962, Title 12, § 520)

*__Cross references—__Building regulations, title 8; minimum standards for existing buildings, title 8A.

Sec. 12:521. Recommendation of removal; notice; service; condemnation in emergency.

(a) Before the council may condemn any building or structure there must be submitted to it a written report recommending the demolition or removal of the building signed by the building official or other person authorized to act in such matters for the city-parish. The report shall contain a log of all actions taken by the department of public works regarding the building, as well as the dates of such actions. The report shall further contain documentation of the time period given to repair the building as well as any additional repair time extended. The mayor-president shall thereupon serve notice on the owner of the building or structure requiring him to show cause at a meeting of the council, regular or special, why the building or structure should not be condemned. The date and hour of the meeting shall be stated in the notice which shall be served at least ten (10) days prior to the date of the hearing, except in case of grave public emergency as hereinafter provided. The notice may be served by registered or certified mail, postage prepaid, addressed to the owner at his last known address. The notice may also be served by the sheriff or deputy sheriff or constable having jurisdiction and power to serve legal process where the owner of the building or structure is found in the state, and the officer shall make return of the service as in ordinary cases. If a return has been made certifying that the sheriff or constable has been unable to make service, then the notice may be served by an investigator employed with the office of the parish attorney.

(b) If the owner be absent from the state or unrepresented therein, then the notice shall be served upon the occupant of the condemned building or structure, if any, and also an attorney-at-law appointed by the mayor- president to represent the absentee. Domiciliary service may be made as in ordinary cases.

(c) In case of grave public emergency where the condition of the building is such as to cause possible immediate loss or damage to person or property the council may condemn the building after twenty-four (24) hours' notice served upon

the owner or his agent or the occupant and attorney-at-law appointed to represent the absent owner.
(Parish Code 1962, Title 12, § 521; Ord. No. 13721, § 1, 8-23-06; Ord. No. 15284, § 1, 3-28-12)

Sec. 12:522. Condemnation order; demolition.

(a) After the hearing, if, in the opinion of the council the facts justify it, an order shall be entered condemning the building and ordering that it be demolished or removed within a certain delay but no sooner than ten (10) days from date of service of the order. It shall be mandatory for the mayor-president to proceed with the demolition of condemned structures not later than thirty (30) days after the expiration of the delays permitted by the council for the owner to demolish the subject building or structure.

(b) The decision and order of the council shall be in writing, shall supercede and nullify any building permit issued for work on the building, and shall be final unless appealed from within ten (10) days as hereinafter provided.
(Parish Code 1962, Title 12, § 522; Ord. No. 13721, § 2, 8-23-06)

Sec. 12:522.1. Signs to be posted at condemned buildings.

Once a building or structure has been condemned by order of the council, the department of public works shall post a sign upon the property notifying the public of the classification of the building or structure as a vacant uninhabitable building. The criminal penalties for trespass and vandalism shall be stated on the sign. The sign shall read as follows:

> "By order of the metropolitan council, this structure has been classified as a vacant, uninhabitable building. Trespass and vandalism are prohibited and punishable by law. The penalty for trespass is a fine of not more than twenty-five dollars ($25.00) or imprisonment for not more than twenty (20) days. The penalty for vandalism is a fine of not more than five hundred dollars ($500.00) or imprisonment for not more than six (6) months, or both.

(Ord. No. 9614, § 2, 4-28-93)

Sec. 12:523. Appeal from council order.

(a) The owner, occupant, agent or other representative of the owner may appeal from the decision of the council to the district court having jurisdiction over the property. The appeal shall be made by the filing of a suit against the city-parish, setting forth the reasons why the decision or order of the council is illegal or improper and the issue shall be tried *de novo* and by preference in the district court. Where a grave public emergency has been declared by the governing authority, the owner of the building who desires to prevent the demolition or removal thereof must file his petition within forty-eight (48) hours and must, at the time of the filing of the petition, furnish such bond as may be fixed by the district judge to cover any damage that might be caused by the condition of the building.

(b) Either party may appeal from the judgment of the district court as in other cases.
(Parish Code 1962, Title 12, § 523)

Sec. 12:524. Demolition of building.

(a) The owner or his designated agent may proceed to demolish and remove the building in accordance with the order of the council, provided the owner or his agent executes a contract in writing obligating himself to have the work done within the required time and files with the mayor-president a copy of the contract, together with a bond to guarantee performance.

(b) If the owner or occupant of the building or structure fails or refuses to comply with the decision of the council and fails to appeal therefrom within the legal delays provided herein, then, in that event, the mayor-president may proceed with the demolition or removal of the condemned building or structure, in which case neither the mayor-president nor the city-parish shall be liable in damages.

(c) Prior to the demolition or removal of the building or structure by the city-parish, the mayor-president or some official designated by him shall serve notice on the owner, or his agent, and on the occupant of the building, if any there be, or upon the attorney-at-law appointed to represent the

minor, interdict or absentee owner, giving the time when work will begin upon the demolition or removal of the building.
(Parish Code 1962, Title 12, § 524; Ord. No. 13721, § 3, 8-23-06)

Sec. 12:525. Costs of demolition to be a lien on property.

The city-parish shall have a lien and privilege for the cost of demolishing or removing the building or structure against the lot and improvements upon which the building or structure is situated. In order to preserve the lien and privilege it shall be the duty of the mayor-president to prepare and sign a sworn statement of facts, giving the description of the property and the approximate cost of demolishing or removing the building or structure, which statements of facts he shall cause to be filed and recorded in the mortgage office of the parish in which the property is located, and the city-parish shall be entitled to recover the amount of this expense together with all costs of court, by ordinary process in the district court having jurisdiction of the property.
(Parish Code 1962, Title 12, § 525)

Sec. 12:525.1. Recovery of expenses upon rescission of a decision and order.

(a) Prior to the rescission, at the request of a property owner or interested party, of a condemnation decision and order on a building or structure by the metropolitan council, the person requesting the rescission shall obtain from the office of the parish attorney a statement itemizing all fees and costs incurred by the city-parish in connection with the condemnation of the building or structure.

(b) All itemized fees and costs shall be paid to the city-parish prior to the rescission of the condemnation decision and order by the metropolitan council.
(Ord. No. 15629, § 1, 12-11-13)

Sec. 12:525.2. Reason for rescission of a decision and order.

(a) A rescission of a condemnation decision and order by the metropolitan council shall only be approved for the following reasons:

(1) Improper notice issued;

(2) Legal description error;

(3) Building has been demolished or removed;

(4) Building has been repaired;

(5) Building has been secured; or

(6) Other compelling reason as determined by the council.

(b) The reason for the request to rescind shall be submitted with the agenda space request and included on the agenda with the corresponding item and shall be made part of the official minutes of the meeting.
(Ord. No. 16815, § 1, 4-25-18)

Sec. 12:526. Attorney to be appointed to represent absent or minor owner.

If the building or structure is unoccupied and its owner is absent from the state and unrepresented therein, or if the building is owned by a minor who has no tutor or an interdict who has no curator, the mayor-president shall appoint an attorney-at-law to represent the absentee, minor or interdict upon whom the notices and other proceedings provided therein may be served. The attorney shall be paid a reasonable fee to be taxed as cost.
(Parish Code 1962, Title 12, § 526)

CHAPTER 9. CLEAN AIR ACT*

Sec. 12:600. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings

*__Editor's note—__Ord. No. 16611, § 1, adopted August 9, 2017, amended the Code by repealing former Ch. 9, §§ 12:600—12:605, and adding a new Ch. 9. Former Ch. 9 pertained to similar subject matter, and derived from Ord. No. 10983, adopted September 24, 1997; and Ord. No. 13349, adopted August 10, 20015.

Section 2 of Ord. No. 16611 states that this chapter shall become effective on June 1, 2018.

ascribed to them in this section, except where the context clearly indicates a different meaning:

Bar means an area the primary purpose of which is the selling and/or serving of alcoholic beverages for consumption by guests or patrons on the premises and in which the serving of food, if served at all, is only incidental to the consumption of such beverages. For purposes of this article, a bar located within a restaurant is considered a restaurant.

Business establishment means any sole proprietorship, partnership, association, joint venture, corporation or other entity formed for profit-making purposes, including professional corporations and other entities where legal, medical, dental, engineering, architectural, financial, counseling, and other professional or consumer services are provided.

Cigar bar means a bar, as defined in this section, legally in operation, that generated twenty (20%) percent or more of its total annual gross income from the on-site sale of cigars and the rental of humidors, not including sales from vending machines, for the calendar year ending December 31, 2016, if the cigar bar is then operating, and every year thereafter. If the cigar bar is not operating as of December 31, 2016, a cigar bar will have six (6) months from the date it opens to establish that twenty percent (20%) or more of its total annual gross income is from the on-site sale of cigars and the rental of humidors, not including sales from vending machines.

Electronic smoking device means any product containing or delivering nicotine or any other substance intended for human consumption through inhalation of vapor or aerosol from the product. The term includes any such device, whether manufactured, distributed, marketed, or sold as an e-cigarette, e-cigar, e-pipe, e-hookah, or vape pen, or under any other product name or descriptor.

Electronic smoking device business means a business establishment in which the primary activity is the sale, manufacture, or promotion of electronic smoking device products and accessories either at wholesale or retail, and in which the sale, manufacture or promotion of other products is merely incidental.

Employee means any person who is employed by any employer in return for the payment of direct or indirect monetary wages or profits, or any person who volunteers his services to such employer for nonmonetary compensation.

Employer means a person or business establishment that employs the services of one (1) or more employees.

Enclosed area means all space between a floor and a ceiling that is bounded on more than two (2) sides by solid walls. A solid wall extends from the floor to the ceiling, and may include windows and doorways. For purposes of this chapter, a solid wall includes a retractable divider, garage door, or other solid physical barrier whether open or closed. A solid wall does not include a security barrier or retractable security door that is closed only when the business is closed for security purposes.

Gaming facility means any institution in which gaming operations are permitted to occur upon a riverboat, at the land-based casino, at a facility licensed for the operation of electronic video draw poker devices, at an eligible facility licensed for the operation of slot machines, by a licensed charitable organization, or at a pari-mutuel wagering facility or off-track wagering facility which is licensed for operation and regulated under the provisions of Chapters 4 and 11 of Title 4 and Chapters 4, 5, 7 and 8 of Title 27 of the Louisiana Revised Statutes of 1950, or any other gaming operations authorized by law.

Group home means a residential facility that provides room and board and may include habilitation services and supervision in a family setting for people with a disability (as "disability" is defined by the Federal Fair Housing Act and the Americans with Disabilities Act).

Health care facility means an office or institution providing care or treatment of diseases, whether physical, mental, or emotional, or other medical, physiological, or psychological conditions, including but not limited to, hospitals, rehabilitation hospitals or other clinics, includ-

ing weight control clinics, nursing homes, long-term care facilities, homes for the aging or chronically ill, laboratories, and offices of surgeons, chiropractors, physical therapists, physicians, psychiatrists, dentists, and all specialists within these professions. Unless otherwise stated in this chapter, this definition shall include all waiting rooms, hallways, private rooms, semiprivate rooms, and wards within health care facilities.

Hookah means a water pipe and any associated products and devices which are used to produce fumes, smoke, and/or vapor from the burning of material including, but not limited to, tobacco, shisha, or other plant matter.

Hookah bar means a bar, as defined in this section, legally in operation that generated at least twenty (20%) percent or more of its total annual gross income from on-site retail sales of shisha for consumption in hookahs and the sale of accessories used for smoking shisha for the calendar year ending December 31, 2016, if then in operation, and every year thereafter. If the Hookah bar is not in operation on December 31, 2016, it will have six (6) months from the date it opens to establish that at least twenty percent (20%) of its total annual gross income is from the on-site retail sales of shisha for consumption in hookahs and the sale of accessories used for smoking shisha.

Limousine has the same meaning as provided in section 10:201 of the Code of Ordinances.

Motor vehicle means a vehicle which is self-propelled and is used for the purpose of carrying passengers and/or goods on the roads and highways or waterways.

Nonprofit entity means any corporation, unincorporated association or other association or other entity created for charitable, philanthropic, educational, political, social or other similar purposes, the net proceeds from the operations of which are committed to the promotion of the objects or purposes of the organizations and not to secure private financial gain. A public agency is not a nonprofit entity within the meaning of this subdivision.

Place of employment means any area under the control of an employer which employees normally frequent during the course of employment, including, but not limited to, work areas, employee lounges and restrooms, conference rooms, meeting rooms, classrooms, employee cafeterias, temporary offices (such as trailers), and hallways. A private residence is not a place of employment within the meaning of this chapter unless a child care, adult day care, group home, or health care facility is operated therein or unless it is a common area of a multi-unit dwelling. A motor vehicle is not a place of employment within the meaning of this chapter unless it is operated for the public transportation of children or as part of health care, group home, or day care transportation.

Private club means an organization, whether incorporated or not, which is the owner, lessee, or occupant of a building or portion thereof used exclusively for club purposes at all times, which is operated solely for a recreational, fraternal, social, patriotic, political, benevolent, or athletic purpose, but not for pecuniary gain, and which only sells alcoholic beverages incidental to its operation. The affairs and management of the organization are conducted by a board of directors, executive committee, or similar body chosen by the members at an annual meeting. The organization has established bylaws and/or a constitution to govern its activities. The organization has been granted an exemption from the payment of federal income tax as a club under 26 U.S.C. Section 501.

Public place means any area to which the public is invited or permitted, including, but not limited to bars; banks; bingo facilities; convention centers; educational facilities; gaming facilities; elevators; health care facilities; hotel and motel lobbies, common areas, and all rooms; nursing homes or multi-unit residential facilities; motion picture theaters, concert halls, auditoriums and buildings primarily used for or designed for exhibiting movies, stage, drama or musical recitals, dance, lecture or other performance; libraries, museums, and galleries; public restrooms; public transportation vehicles and facilities; retail stores (other than retail tobacco stores); restaurants; shopping malls;

property owned, occupied, or operated by the city-parish or an agency thereof; reception areas; restaurants; retail stores; theaters; sports arenas and waiting rooms. A private residence is not a public place within the meaning of this chapter unless a group home, child care, adult day care, or health care facility is operated therein or unless it is a common area of a multi-unit dwelling.

Public property means any vehicle, building or other location or site within the City of Baton Rouge and Parish of East Baton Rouge, excluding the cities of Baker, Zachary, and Central, owned, leased, occupied, or operated by the city-parish or any instrumentality or agency thereof, or any other political subdivision of the state, special district, authority, commission, or agency.

Restaurant means any coffee shop, cafeteria, luncheonette, sandwich stand, soda fountain, and any other commercial eating establishment, or part of any organization, club, boardinghouse, or guesthouse, which gives or offers for sale food to the public, guests, or patrons, whether food is customarily consumed on or off the premises, but not an establishment whose primary purpose is to serve food to employees of a common employer.

Retail store means any place which in the regular course of business sells goods or services directly to the public.

Service line or *waiting area* means a queue, line or other formation of persons, whether seated or standing, in which one (1) or more persons are waiting for, providing or receiving service of any kind, whether or not such service involves an exchange of consideration.

Smoking means inhaling, exhaling, burning or carrying any lighted cigar, cigarette, pipe, or other lighted or heated tobacco or plant product intended for inhalation, including hookahs and marijuana, whether natural or synthetic, in any manner or in any form. "Smoking" also includes the use of an electronic smoking device which creates an aerosol or vapor, in any manner or in any form.

Solid wall includes any retractable divider, garage door, or other solid physical barrier whether open or closed.

Sports arena means any sports pavilion, stadium, gymnasium, health spa, boxing arena, swimming pool, roller and ice skating rink, bowling alley and other similar place where members of the general public assemble either to engage in physical exercise, participate in athletic competition or witness sports, cultural or similar events.

Theater means any auditorium or building used for or designed for the primary purpose of exhibiting movies, stage drama, musical recital, dance, lecture, or other similar performance.

Tobacco business means an enterprise in which the primary activity is the sale, manufacture, or promotion of tobacco, tobacco products and accessories either at wholesale or retail, and in which the sale, manufacture or promotion of other products is merely incidental. For purposes of this definition, the term "primary activity" means more than fifty percent (50%) of gross sales or income.

Tobacco product means any product(s) that is used to consume tobacco or any product that contains any tobacco leaf, including, but not limited to, cigarettes, cigars, cigarillos, blunts, snuff, creamy snuff, dipping/chewing tobacco, flavored tobacco, tobacco water, tobacco paste, gutka, kretek, shisha, and roll-your-own cigarettes.

Tobacco retailer means any person, retail store, or other legal entity who knowingly sells, donates, distributes, or delivers to any person(s), whether or not any form of consideration is provided, tobacco products.

Vaping means the use of an electronic smoking device which creates an aerosol or vapor, in any manner or in any form.
(Ord. No. 16611, § 1, 8-9-17)

Sec. 12:601. Construction of article.

(a) Nothing in this article shall be construed to permit smoking where it is otherwise prohibited by law or regulation.

(b) Nothing in this article shall be construed to preclude owners, operators, managers, employers or other persons having control of any establishment covered by this article from prohibiting smoking in such establishment to a greater extent than is provided by this article, in accordance with applicable law.

(c) This article shall be liberally construed so as to further the general purposes stated in this article and the specific purposes of the particular provisions involved.

(d) If any provision, clause, sentence, or paragraph of this article or the application thereof to any person or circumstances shall be held invalid, that invalidity shall not affect the other provisions of this article which can be given effect without the invalid provision or application, and to this end the provisions of this article are declared to be severable.
(Ord. No. 16611, § 1, 8-9-17)

Sec. 12:601.1. Enforcement.

(a) (1) Any violation of this article may be cited by any law enforcement officer by the issuance of a citation and summons to appear before a court of proper jurisdiction.

(2) Such citation shall be in a form such that there shall be retained in each book of citations a receipt and each shall have a copy to be deposited by the law enforcement officer with a court having jurisdiction over the alleged offense.

(3) Upon the deposit of the copy, the court shall notify the alleged violator of the time and place of his hearing or of his opportunity to plead guilty by the payment of his specified fine. Failure to appear, unless the fine is paid, may be punished within the discretion of the court as contempt of court.

(b) An owner, manager, operator, or employer of an area where smoking or vaping is prohibited under this article shall direct a person who is smoking or vaping in violation of this article to extinguish or turn off the product. If the person does not stop such use, the owner, manager, operator, or employer shall, if applicable, refuse service and shall immediately ask the person to leave the premises.
(Ord. No. 16611, § 1, 8-9-17)

Sec. 12:601.2. Violations and penalties.

(a) It shall be unlawful for any person who owns, manages, operates, or otherwise controls the use of premises in which smoking or vaping is prohibited pursuant to this article to fail to comply with the requirements of this article.

(b) It shall be unlawful for any person to smoke or vape in any area where smoking or vaping is prohibited.

(c) Every person [or] business that violates subsection (a) of this section shall, may, for a first violation thereof, be liable for a fine of not more than five hundred dollars ($500.00); for a second violation, both of which were committed within a period of twelve (12) months, be liable for a fine of not more than seven hundred dollars ($700.00); and for a third or subsequent violation, all of which were committed within a period of twelve (12) months, be liable for a fine of not more than nine hundred dollars ($900.00). Any person [or] business that violates subsection (a) of this section five (5) or more times within a twelve (12) month period shall be subject to a revocation of the occupancy permit for the location in which the violations occur.

(d) Every person who violates subsection (b) of this section shall be liable for a fine of up to fifty dollars ($50.00) for each violation.

(e) Proceedings for violations of this article may be initiated by issuance of an affidavit or summons to appear before the Alcohol Beverage Control Board in Baton Rouge City Court or brought by the appropriate department or agency to administrative adjudication. When applicable, the court or hearing officer may order abatement of the conditions constituting the violation. If a person found liable for violating this article can demonstrate the inability to pay the penalty imposed, that person shall be ordered in lieu of the fine, to perform community service.

(f) The penalties provided by this section shall be in addition to any other penalty imposed by any other provision of law or regulation.

(g) In addition to the fines established by this section, violation of this article by a person who owns, manages, operates, or otherwise controls a public place or place of employment may result in the suspension or revocation of any permit or license issued to the person for the premises on which the violation occurred.
(Ord. No. 16611, § 1, 8-9-17)

Sec. 12:602. Prohibition of smoking in enclosed areas of public places.

(a) Except as otherwise provided by this chapter, smoking and vaping are prohibited in all enclosed areas in any public place as defined by this chapter.

(b) Except as otherwise provided by this chapter, smoking and vaping are prohibited in all enclosed areas in any place of employment.

(c) Smoking is prohibited in the following public places, whether or not in an enclosed area:

(1) With in twenty-five (25) feet of the entrance or exit to any public building or public facility occupied or operated by the city-parish or any of its agencies.

(2) In any service line in a public place during the times in which the public is invited or permitted.

(3) Playgrounds and parks.
(Ord. No. 16611, § 1, 8-9-17)

Sec. 12:603. Areas where smoking or vaping is not regulated.

The following places shall not be subject to the smoking restrictions of this article:

(a) Private residences, except when a child care, day care, group home, or health care facility is operated therein, in which case smoking or vaping are prohibited.

(b) Motor vehicles, except when such vehicle is being used for the public transportation of children or a part of health care, group home, or day care transportation in which case smoking or vaping are prohibited.

(c) Tobacco businesses.

(d) All places of employment of any manufacturer, importer, wholesaler, or distributer of tobacco products, of any tobacco leaf dealer or processor, and all tobacco storage facilities.

(e) Cigar bars.

(f) Hookah bars.

(g) Outdoor seating, serving areas, balconies, patios, and unroofed courtyards of bars, restaurants, and casinos.

(h) Any electronic smoking device business including but not limited to retail, wholesale, and manufacturing facilities primarily engaged in sales of electronic smoking devices or their components.

(i) Convention facilities during the time such facilities are being used for professional meetings and trade shows which are not open to the public that are produced or organized by tobacco or electronic smoking device businesses or convenience store associations where tobacco products are displayed and limited to the location of such meetings or shows.
(Ord. No. 16611, § 1, 8-9-17)

Sec. 12:603.1. Sale or distribution of tobacco products near schools, churches, libraries, child care centers.

(a) No tobacco retailer shall be permitted to sell, donate, distribute, or deliver to any person(s), whether or not any form of consideration is provided, tobacco products within three hundred (300) feet of any park, church, public library, school, or any childcare facility or similar entity providing structured, organized care for youth.

(b) The 300-foot distance provided for in subsection (a) above shall be measured as a person walks, using the sidewalk, from the nearest point of the property line of the park, church, public library, school, or childcare facility or

similar entity providing structured, organized care for youth, to the nearest point of the tobacco retailer.

(c) Any tobacco retailer lawfully operating such business prior to December 31, 2017 shall not be affected.

(d) If a tobacco retailer has an interruption of the continuity of business for a period in excess of six (6) months, in order to reopen for business, the requirements set forth above must be complied with.
(Ord. No. 16611, § 1, 8-9-17)

Sec. 12:604. Posting of signs.

"Smoking" or "No Smoking" signs, or the international symbols indicating the same, and any other signs necessary to comply with the provisions of this article shall be prominently and conspicuously posted at all major entrances to, and appropriate locations within, each public or enclosed area where smoking is either prohibited, permitted or otherwise regulated by this article, by the owner, operator, manager or other person having control of such area.
(Ord. No. 16611, § 1, 8-9-17)

CHAPTER 10. PROHIBITION OF ANIMALS WITHIN FESTIVAL AREAS

Sec. 12:610. Animals prohibited at festivals.

(a) Except as hereinafter provided for, it shall be unlawful for any person to bring any domestic or exotic animal, including *Canis familiaris* (dogs), into the festival area set forth below during any festival as defined below.

(b) *Festival area* is hereby defined as that area bounded by the water of the Mississippi River on the west, the north side of Convention Street on the north, 9th Street on the east, and the south side of Government Street on the south for the entire duration of any festival held within that area or within any part or parts of that area in the city, in order to provide for public health and safety.

(c) For the purposes of this chapter, the term "festivals" shall include but not be limited to the River City Blues Festival, the arts and crafts festivals, the Fourth of July celebration, Earth Day, Christmas parades, Mardi Gras parades, and inaugural celebrations. The term "festivals" shall also include any other event within the area as may be designated by the metropolitan council or for which a waiver of the public drinking ordinances may be passed by the council.

(d) In the further interest of public health and safety, animals as set forth in subsection (a) above are prohibited within the right-of-way or on any public sidewalk or servitude adjacent to any parade route as may be established under the authority of the chief of police for the city.

(e) This chapter shall not prohibit the bringing of any assistance animal into the festival area. "Assistance animal" is hereby defined to mean any animal such as a dog (*Canis familiaris)* or a member of the primate family which is trained by a recognized training facility to assist a handicapped person to perform tasks that she or he may not otherwise be able to perform, including but not limited to dogs which assist the visually impaired.

(f) This chapter shall not prohibit the bringing of any animal into the festival area that is to be exhibited in a show or other exhibition which is sponsored by those agencies which sponsor those events described in paragraph (c), provided that the animal is at all times confined to the immediate exhibition site and not present on other festival areas, unless such areas are specifically intended to be open to animals due to the nature of the event. All animals under this paragraph shall meet all federal, state and local guidelines.
(Ord. No. 9283, § 1, 5-8-91; Ord. No. 11651, § 1, 2-9-00)

Sec. 12:611. Penalties, impoundment.

Any unpermitted animal found within the festival area during a festival is hereby declared a "nuisance" within the definition provided in section 14:110 and shall be impounded by animal control officers. Any person bringing any animal or the owner of any animal impounded within any festival area shall be issued a summons by police officers or by animal control officers and shall, upon conviction for violation of section 12:610 and this section 12:611, be fined not less than one hundred dollars ($100.00) and not more than five hundred dollars ($500.00) as the court may determine.
(Ord. No. 9283, § 1, 5-8-91)

CHAPTER 11. BLIGHT ELIMINATION

Sec. 12:650. Blight elimination plan.

In addition to the numerous ongoing and widespread efforts by the city-parish to eliminate blight within the parish, elimination of blight in the parish shall also be accomplished by methodically selecting blighted areas within the parish which need the most urgent attention and designating those areas as "community improvement areas" by resolution of the metropolitan council. Community improvement areas shall be recommended to the metropolitan council by the "blight elimination team", created by section 12:653, in accordance with the criteria set out in section 12:652. Once a community improvement area has been designated, it shall receive concentrated blight elimination efforts from the blight elimination team, until the blight within the community improvement area has been diminished to the extent that such efforts are no longer necessary.
(Ord. No. 12696, § 1, 7-23-03)

Sec. 12:651. Definition of blight.

For purposes of this chapter, blight shall be defined as conditions upon or affecting premises, which are hazardous to the health, safety or welfare of the public, and/or conditions which are detrimental to property values, economic stability, or to the quality of the environment. Such conditions may include, but are not limited to, the following: the accumulation of junk, trash, garbage, litter, refuse, rubbish, appliances, debris, combustible materials, or junked inoperable vehicles (vehicles which are ten (10) years old or older, in such a state of deterioration that they cannot be profitably restored and which have a fair market value of five hundred dollars ($500.00) or less); illegal dumping; noxious weeds; overgrown vegetation; infestation of insects, vermin or rodents; animals running at large; dilapidated structures; condemned properties; abandoned adjudicated properties; criminal violations; weed liens; zoning violations; alcohol beverage control violations; health code violations; and other conditions which are hazardous to public health, safety or welfare.
(Ord. No. 12696, § 1, 7-23-03; Ord. No. 12946, § 1, 5-12-04)

Sec. 12:652. Community improvement area criteria.

In order for an area to be designated as a community improvement area, the area must

have a significant concentration of conditions of blight as defined in section 12:651 above as compared with other areas within the parish.
(Ord. No. 12696, § 1, 7-23-03)

Sec. 12:653. Blight elimination team.

There shall be created within the city-parish government a multi-agency task force known as the blight elimination team, hereinafter known as the "team", which shall be composed of the following members:

Mayor's office designee

Baton Rouge Police Department designee

East Baton Rouge Sheriff's Office designee

DPW inspection division designee

DPW neighborhood improvement designee

Can Do! office staff designee

Citizen's service's designee

Council administrator's office designee

Office of community development designee

Parish attorney designee from adjudicated property section

Police legal advisor

City prosecutor designee

Animal control designee

Alcoholic beverage control officer

Fire department designee

Health department designee

Mosquito and rodent control designee

East Baton Rouge Parish tax assessor designee

East Baton Rouge Parish clerk of court designee

Planning commission designee

Workforce investment administration designee
(Ord. No. 12696, § 1, 7-23-03)

Sec. 12:654. Responsibilities of blight elimination team.

(a) The blight elimination team shall be responsible for recommending the community improvement area for elimination of blight, which shall be approved by the metropolitan council by resolution.

(b) The inspection division designee shall perform an inspection of the community improvement area to determine the existence of any zoning violations and to evaluate which properties are threats to public safety and health.

(c) The city police department designee shall be responsible for determining the locations upon which drug selling, prostitution, crimes of violence and other offenses which may constitute a public nuisance or may affect the quality of life are ongoing. When the community improvement area is outside the limits of the city, the sheriff shall designate a deputy to perform this function.

(d) The animal control designee shall canvass the area to determine the nature of the stray animal problem and create an action plan for solving the problem.

(e) The parish attorney designee shall prepare a report of the status of adjudicated properties in the area.

(f) The alcoholic beverage control designee shall evaluate the permit holders in the community improvement area to ascertain whether ongoing violations exist and shall report his/her findings to the team.

(g) The neighborhood improvement designee shall determine whether abandoned properties in the area should be condemned.

(h) The fire department designee shall inspect the area and report any potential fire hazards which are found to the team.

(i) The Can Do! office shall coordinate with neighborhood groups, civic associations and community development corporations in the area to bring to the team the priorities for change of the people who live in the area.

(j) The office of community development designee shall report on federally funded initiatives in the community improvement area.

(k) The health department designee shall inspect the area and report any health or sanitary code violations.

(l) The mosquito and rodent control designee shall inspect the area and report any infestations of insects, vermin or rodents which are found to the team.

(m) The workforce investment administration designee shall be responsible for assisting with economic development.
(Ord. No. 12696, § 1, 7-23-03)

Sec. 12:655. Meetings.

The mayor's office shall set a date for meetings, during which the aforementioned members shall deliver the reports and the team shall develop a specific action plan for elimination of blight in the area along a designated time line. Regular meetings shall be set for the acceptance of progress reports and the team shall be responsible for making semi-annual status reports to the mayor-president and the metropolitan council regarding the progress of blight elimination within the community improvement area.
(Ord. No. 12696, § 1, 7-23-03)

Sec. 12:656. Funding and service projects.

The blight elimination team shall make every effort to coordinate with the office of community development and with community organizations in order to establish volunteer service projects, including rehabilitation and repair, to assist residents with the elimination of blight. Additionally, funding for concentrated blight elimination efforts shall be made available from the office of community development block grants.
(Ord. No. 12696, § 1, 7-23-03)

Sec. 12:657. Penalty for maintaining blight.

Notwithstanding any other provision of law to the contrary, and in addition to any other remedy provided by law, any person who allows blight, as defined herein, to be created, to remain, or to exist, on property which is in his or her custody, control, or ownership, shall be guilty of maintaining blight, which shall be punishable as a misdemeanor. The penalty for violation of this subsection shall be a fine of not more than $500.00 and/or imprisonment for not more than 30 days, or both. Each calendar day that such violation exists shall be considered a separate violation.
(Ord. No. 12696, § 1, 7-23-03)

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Title 13

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Sec. 13:1. Short title.

(a) This title shall be known as the "Baton Rouge Criminal Code." The provisions hereunder may be referred to or cited either as articles of the Criminal Code or as sections of the Code of Ordinances. Thus Article 1 of the "Baton Rouge Criminal Code" may also be referred to or cited as "Code of Ordinances of the City of Baton Rouge, Louisiana and East Baton Rouge Parish, Louisiana 13:1."

(b) Whenever reference is made herein to a section of the Code of Ordinances the same shall also relate to the corresponding article of the Criminal Code.

State law reference—Similar provisions, R.S. 14:1.

Sec. 13:2. Definitions.

In this title the terms enumerated shall have the designated meaning:

Another refers to any other person or legal entity, including the state or any subdivision thereof.

Anything of value must be given the broadest possible construction, including any conceivable thing of the slightest value, movable or immovable, corporeal or incorporeal, public or private, and including transportation, telephone and telegraph services, or any other service available for hire. It must be construed in the broad popular sense of the phrase, not necessarily as synonymous with the traditional legal term "property." In all cases involving shoplifting the term "value" is the actual retail price of the property at the time of the offense.

Dangerous weapon includes any gas, liquid or other substance or instrumentality, which, in the manner used, is calculated or likely to produce death or great bodily harm.

Foreseeable refers to that which ordinarily would be anticipated by a human being of average reasonable intelligence and perception.

Misdemeanor is any crime other than a felony.

Person includes a human being from the moment of fertilization and implantation and also includes a body of persons, whether incorporated or not.

Property refers to both public and private property, movable and immovable, and corporeal and incorporeal property.

Public officer, public office, public employee, or position of public authority means and applies to any executive, ministerial, administrative, judicial or legislative officer, office employee, or position of authority, respectively, of the state or any parish, municipality, district or other political subdivision. Unless otherwise specified, local references are to those who function in the City of Baton Rouge or Parish of East Baton Rouge, Louisiana.

State means the State of Louisiana, or any parish, municipality, district, or other political subdivision thereof, or any agency, board, commission, department or institution of said state, parish, municipality, district, or other political subdivision.

Whoever in a penalty clause refers only to natural persons insofar as death or imprisonment is provided, but insofar as a fine may be imposed "whoever" in a penalty clause refers to any person. (City Code 1951, Title 13, § 1; Ord. No. 8340, 1-14-87)

State law reference—Similar provisions, R.S. 14:2.

Sec. 13:3. Interpretation.

The sections of this title cannot be extended by analogy so as to create crimes not provided for herein; however, in order to promote justice and to effect the objects of the law, all of its provisions shall be given a genuine construction, according to the fair import of their words, taken in their usual sense, in connection with the context, and with reference to the purpose of the provision. (City Code 1951, Title 13, § 2)

State law reference—Similar provisions, R.S. 14:3.

Sec. 13:4. Reserved.

Sec. 13:5. Lesser and included offenses.

An offender who commits an offense which includes all the elements of other lesser offenses, may be prosecuted for and convicted of either the greater offense or one of the lesser and included offenses. In such case, where the offender is pros-

ecuted for the greater offense, he may be convicted of any one of the lesser and included offenses.

State law reference—Similar provisions, R.S. 14:5.

Sec. 13:6. Civil remedies not affected.

Nothing in this title shall affect any civil remedy provided by the law pertaining to civil matters, or any legal power to inflict penalties for contempt.

(City Code 1951, Title 13, § 3)

State law reference—Similar provisions, R.S. 14:6.

Sec. 13:7. Crime defined.

A "crime" is that conduct which is defined as criminal in this title or under the duly enacted legislation of another political jurisdiction.

State law reference—Similar provisions, R.S. 14:7.

Sec. 13:8. Criminal conduct.

Criminal conduct consists of:

(1) An act or a failure to act that produces criminal consequences, and which is combined with criminal intent; or

(2) A mere act or failure to act that produces criminal consequences, where there is no requirement of criminal intent; or

(3) Criminal negligence that produces criminal consequences.

State law reference—Similar provisions, R.S. 14:8.

Sec. 13:9. Criminal consequences.

Criminal consequences are any set of consequences prescribed in the various sections of this title or in the acts of the legislature of this state as necessary to constitute any of the various crimes defined therein.

State law reference—Similar provisions, R.S. 14:9.

Sec. 13:10. Criminal intent.

Criminal intent may be specific or general:

(1) Specific criminal intent is that state of mind which exists when the circumstances indicate that the offender actively desired the prescribed criminal consequences to follow his act or failure to act.

(2) General criminal intent is present whenever there is specific intent, and also when the circumstances indicate that the offender, in the ordinary course of human experience, must have adverted to the prescribed criminal consequences as reasonably certain to result from his act or failure to act.

State law reference—Similar provisions, R.S. 14:10.

Sec. 13:11. Criminal intent; how expressed.

The definitions of some crimes require a specific criminal intent, while in others no intent is required. Some crimes consist merely of criminal negligence that produces criminal consequences. However, in the absence of qualifying provisions, the terms "intent" and "intentional" have reference to "general criminal intent."

State law reference—Similar provisions, R.S. 14:11.

Sec. 13:12. Criminal negligence.

Criminal negligence exists when, although neither specific nor general criminal intent is present, there is such disregard of the interest of others that the offender's conduct amounts to a gross deviation below the standard of care expected to be maintained by a reasonably careful person under like circumstances.

State law reference—Similar provisions, R.S. 14:12.

Sec. 13:12.1. Illegal use of 911 emergency communication system.

It shall be unlawful for any person to call or contact the emergency communication system by dialing 911 for any purpose other than a legitimate emergency posing danger to life or property.

In the case of a minor making illegal calls to 911, the parent or legal guardian shall be held responsible for the illegal calls.

The trier of fact may infer that an illegal use of 911 emergency communication system has occurred whenever a call is made to the 911 number and information other than that relating to an emergency as set forth above is communicated or whenever repeated calls originate from any telephone number without any evidence that some emergency existed at that number.

Any person convicted of a violation of the provisions of this section shall be fined not less than two hundred fifty dollars ($250.00) and not more than five hundred dollars ($500.00) and/or imprisoned for not more than six (6) months at the discretion of the court.

(Ord. No. 8836, § 1, 1-11-89)

Editor's note—Section 1 of Ord. No. 8836, adopted Jan. 11, 1989, added § 13:13. Inclusion as such would have necessitated the renumbering of existing §§ 13:13—13:19 as §§ 13:14—13-20, thus eliminating the parallel numbering of this title with R.S. title 14. Therefore, in order to maintain alphabetical sequence of catchlines and still retain the parallel numbering with R.S. title 14, of Ord. No. 8934, adopted June 14, 1989, renumbered the provisions as § 13:12.1.

Sec. 13:13. Infancy.

Those who have not reached the age of ten (10) years are exempt from criminal responsibility. However, nothing in this section shall affect the

jurisdiction of juvenile courts as established by the constitution and statutes of this state.

State law reference—Similar provisions, R.S. 14:13.

Sec. 13:14. Insanity.

If the circumstances indicate that because of a mental disease or mental defect the offender was incapable of distinguishing between right and wrong with reference to the conduct in question, the offender shall be exempt from criminal responsibility.

State law reference—Similar provisions, R.S. 14:14.

Sec. 13:15. Intoxication.

The fact of an intoxicated or drugged condition of the offender at the time of the commission of the crime is immaterial, except as follows:

(1) Where the production of the intoxicated or drugged condition has been involuntary, and the circumstances indicate this condition is the direct cause of the commission of the crime, the offender is exempt from criminal responsibility.

(2) Where the circumstances indicate that an intoxicated or drugged condition has precluded the presence of a specific criminal intent or of special knowledge required in a particular crime, this fact constitutes a defense to a prosecution for that crime.

State law reference—Similar provisions, R.S. 14:15.

Sec. 13:16. Mistake of fact.

Unless there is a provision to the contrary in the definition of a crime, reasonable ignorance of fact or mistake of fact which precludes the presence of any mental element required in that crime is a defense to any prosecution for that crime.

State law reference—Similar provisions, R.S. 14:16.

Sec. 13:17. Mistake of law.

Ignorance of the provisions of this title or of any criminal statute is not a defense to any criminal prosecution. However, mistake of law which results in the lack of an intention that consequences which are criminal shall follow, is a defense to a criminal prosecution under the following circumstances:

(1) Where the offender reasonably relied on the act of the legislation in repealing an existing criminal provision, or in otherwise purporting to make the offender's conduct lawful; or

(2) Where the offender reasonably relied on a final judgment of a competent court of last resort that a provision making the conduct in question criminal was unconstitutional.

State law reference—Similar provisions, R.S. 14:17.

Sec. 13:18. Justification; general provisions.

The fact that an offender's conduct is justifiable, although otherwise criminal, shall constitute a defense to prosecution for any crime based on that conduct. This defense of justification can be claimed under the following circumstances:

(1) When the offender's conduct is an apparently authorized and reasonable fulfillment of any duties of public office; or

(2) When the offender's conduct is a reasonable accomplishment of an arrest which is lawful under the Code of Criminal Procedure; or

(3) When for any reason the offender's conduct is authorized by law; or

(4) When the offender's conduct is reasonable discipline of minors by their parents, tutors or teachers; or

(5) When the crime consists of a failure to perform an affirmative duty and the failure to perform is caused by physical impossibility; or

(6) When any crime, except murder, is committed through the compulsion of threats by another of death or great bodily harm, and the offender reasonably believes the person making the threats is present and would immediately carry out the threats if the crime were not committed; or

(7) When the offender's conduct is in defense of persons or of property under any of the circumstances described in sections 13:19—13:22.

State law reference—Similar provisions, R.S. 14:18.

Sec. 13:19. Use of force or violence in defense.

The use of force or violence upon the person of another is justifiable, when committed for the purpose of preventing a forcible offense against the person or a forcible offense or trespass against property in a person's lawful possession; provided

that the force or violence used must be reasonable and apparently necessary to prevent such offense, and that this article shall not apply where the force or violence results in a homicide.

State law reference—Similar provisions, R.S. 14:19.

Sec. 13:20. Reserved.

Sec. 13:21. Aggressor cannot claim self-defense.

A person who is the aggressor or who brings on a difficulty cannot claim the right of self-defense unless he withdraws from the conflict in good faith and in such a manner that his adversary knows or should know that he desires to withdraw and discontinue the conflict.

State law reference—Similar provisions, R.S. 14:21.

Sec. 13:22. Defense of others.

It is justifiable to use force or violence or to kill in the defense of another person when it is reasonably apparent that the person attacked could have justifiably used such means himself, and when it is reasonably believed that such intervention is necessary to protect the other person.

State law reference—Similar provisions, R.S. 14:22.

Secs. 13:23—13:25. Reserved.

Sec. 13:26. Criminal conspiracy.

(a) Criminal conspiracy is the agreement or combination of two (2) or more persons for the specific purpose of committing any crime; provided that an agreement or combination to commit a crime shall not amount to a criminal conspiracy unless, in addition to such agreement or combination, one or more of such parties does an act in furtherance of the object of the agreement or combination. If the intended basic crime has been consummated, the conspirators may be tried for either the conspiracy or the completed offense, and a conviction for one shall not bar prosecution for the other.

(b) Whoever is a party to a criminal conspiracy to commit any crime shall be fined or imprisoned, or both, in the same manner as for the offense contemplated by the conspirators, but such fine or imprisonment shall not exceed one-half of the largest fine, or one-half of the longest term of imprisonment prescribed for such offense, or both.

State law reference—Similar provisions, R.S. 14:26.

Sec. 13:27. Attempt.

(a) Any person who, having a specific intent to commit a crime, does or omits an act for the purpose of and tending directly toward the accomplishing of his object is guilty of an attempt to commit the offense intended; and it shall be immaterial whether, under the circumstances, he would have actually accomplished his purpose.

(b) Mere preparation to commit a crime shall not be sufficient to constitute an attempt; but lying in wait with a dangerous weapon with the intent to commit a crime, or searching for the intended victim with a dangerous weapon with the intent to commit a crime, shall be sufficient to constitute an attempt to commit the offense intended.

(c) An attempt is a separate but lesser grade of the intended crime; and any person may be convicted of an attempt to commit a crime, although it appears on the trial that the crime intended or attempted was actually perpetrated by such person in pursuance of such attempt.

(d) Whoever attempts to commit any crime shall be fined and/or imprisoned in the same manner as for the offense attempted and such fine and/or imprisonment shall not exceed one-half of the largest fine or one-half of the longest term of imprisonment prescribed for the offense so attempted, or both.

State law reference—Similar provisions, R.S. 14:27.

Secs. 13:28—13:32. Reserved.

Sec. 13:33. Battery defined.

Battery is the intentional use of force or violence upon the person of another; or the intentional administration of a poison or other noxious liquid or substance to another.

(City Code 1951, Title 13, § 600(b))

State law reference—Similar provisions, R.S. 14:33.

Sec. 13:34. Reserved.

Sec. 13:35. Simple battery.

(a) Simple battery is a battery committed without the consent of the victim.

(b) Whoever commits a simple battery shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.

(City Code 1951, Title 13, § 600(a))

State law reference—Similar provisions, R.S. 14:35.

Sec. 13:35.1. Battery of a police officer.

(a) (1) Battery of a police officer is a battery committed without the consent of the victim when the offender has reasonable grounds to believe the victim is a police officer acting in the performance of his duty.

(2) For purposes of this section, "police officer" shall include commissioned police officers, deputy sheriffs, marshals, correctional officers, constables, wildlife enforcement agents, probation and parole officers, animal control agents, fireman, and emergency medical services personnel.

(3) For the purposes of this section, "battery of a police officer" includes, but is not limited to, the use of force or violence upon the person of the police officer by throwing feces, urine, blood, saliva, or any form of human waste by an offender while the offender is incarcerated by a court of law and is being detained in any jail, prison, correctional facility, juvenile institution, temporary holding center, halfway house, or detention facility.

(b) Whoever commits the crime of battery of a police officer, shall be fined not more than five hundred dollars ($500.00) and imprisoned not less than fifteen (15) days nor more than six (6) months without benefit of suspension of sentence.

(Ord. No. 8118, § 1, 3-2-86; Ord. No. 9736, § 1, 10-27-93; Ord. No. 11682, § 1, 3-8-00; Ord. No. 12899, § 1, 2-25-04)

State law reference—Similar provisions, R.S. 14:34.2.

Sec. 13:35.2. Battery of a school teacher.

(a) (1) Battery of a school teacher is a battery committed without the consent of the victim when the offender has reasonable grounds to believe the victim is a school teacher acting in the performance of employment duties.

(2) For purposes of this section, "school teacher" shall include any teacher or instructor, administrator, staff person or employee of any public or private elementary, secondary, vocational-technical training, special or post-secondary school or institution.

(b) (1) Whoever commits the crime of battery of a school teacher shall be fined not more than five hundred dollars ($500.00) and imprisoned not less than fifteen (15) days nor more than six (6) months without benefit of suspension of sentencing.

(2) The court, in its discretion, may suspend the imposition of sentence and place the offender on probation with a condition that he shall spend two (2) days in jail or perform five (5) days of community service work. Failure to successfully complete the community service work, as determined by the supervisor of the program to which he is assigned, shall result in revocation of probation and imposition of the fifteen-day jail term.

(Ord. No. 8118, § 1, 3-12-86)

State law reference—Similar provisions, R.S. 14:34.3.

Sec. 13:35.3. Domestic abuse battery.

(a) Domestic abuse battery is the intentional use of force or violence committed by one (1) household member or family member upon the person of another household member or family member.

(b) For purposes of this section:

(1) "Community service activities" as used in this section may include duty in any morgue, coroner's office, or emergency treatment room of a state-operated hospital or other state-operated emergency treatment facility, with the consent of the administrator of the morgue, coroner's office, hospital, or facility.

(2) "Court-monitored domestic abuse intervention program" means a program,

comprised of a minimum of twenty-six (26) in-person sessions occurring over a minimum of twenty-six (26) weeks, that follows a model designed specifically for perpetrators of domestic abuse. The offender's progress in the program shall be monitored by the court. The provider of the program shall have all of the following:

a. Experience in working directly with perpetrators and victims of domestic abuse.

b. Experience in facilitating batterer intervention groups.

c. Training in the causes and dynamics of domestic violence, characteristics of batterers, victim safety, and sensitivity to victims.

(3) "Family member" means spouses, former spouses, parents, children, stepparents, stepchildren, foster parents, foster children, other ascendants, and other descendants. "Family member" also means the other parent or foster parent of any child or foster child of the offender.

(4) "Household member" means any person presently or formerly living in the same residence with the offender and who is involved or has been involved in a sexual or intimate relationship with the offender, or any child presently or formerly living in the same residence with the offender, or any child of the offender regardless of where the child resides.

(c) On a first conviction, notwithstanding any other provision of law to the contrary, the offender shall be fined not less than three hundred dollars ($300.00) nor more than one thousand dollars ($1,000.00) and shall be imprisoned for not less than thirty (30) days nor more than six (6) months. At least two (2) days of sentence imposed shall be served without benefit of parole, probation or suspension of sentence. Imposition or execution of the remainder of sentence shall not be suspended unless either of the following occurs:

(1) The offender is placed on probation with a minimum condition that he serve four (4) days in jail and complete a court-monitored domestic abuse intervention program, and the offender shall not own or possess a firearm throughout the entirety of the sentence; or

(2) The offender is placed on probation with a minimum condition that he perform eight (8) eight-hour days of court-approved community service activities and participate in a court-monitored domestic abuse intervention program, and the offender shall not own or possess a firearm throughout the entirety of the sentence.

(d) On a conviction of a second offense, notwithstanding any other provision of law to the contrary, regardless of whether the second offense occurred before or after the first conviction, the offender shall be fined not less than seven hundred fifty dollars ($750.00) nor more than one thousand dollars ($1,000.00) and shall be imprisoned for not less than sixty (60) days nor more than six (6) months. At least fourteen (14) days of the sentence imposed shall be served without benefit of parole, probation, or suspension of sentence, and the offender shall be required to complete a court-monitored domestic abuse intervention program. Imposition or execution of the remainder of the sentence shall not be suspended unless either of the following occurs:

(1) The offender is placed on probation with a minimum condition that he serve thirty (30) days in jail and complete a court-monitored domestic abuse intervention program, and the offender shall not own or possess a firearm throughout the entirety of the sentence.

(2) The offender is placed on probation with a minimum condition that he perform thirty (30) eight-hour days of court-approved community service activities and complete a court-monitored domestic abuse intervention program, and the offender shall not own or possess a firearm throughout the entirety of the sentence.

(e) An offender ordered to participate in a court-monitored domestic abuse intervention program required by the provisions of this section shall pay the cost incurred in participation

in the program. Failure to make such payment shall subject the offender to revocation of probation, unless the court determines that the offender is unable to pay.

(f) Any crime of violence, as defined in R.S. 14:2(B), against a person committed by one (1) household member against another household member, shall be designated as an act of domestic abuse for consideration in any civil or criminal proceeding.

(g) (1) For purposes of determining whether an offender has a prior conviction for violation of this section, a conviction under this section, or a conviction under the laws of any state or an ordinance of a municipality, town, or similar political subdivision of another state which prohibits the intentional use of force or violence committed by one (1) household member, family member, or dating partner upon another household member, family member, or dating partner shall constitute a prior conviction.

(2) A prior conviction shall not include a conviction for an offense under this section if the date of completion of sentence, probation, parole, or suspension of sentence is more than ten (10) years prior to the commission of the crime with which the offender is charged, and such conviction shall not be considered in the assessment of penalties hereunder. However, periods of time during which the offender was incarcerated in a penal institution in this or any other state shall be excluded in computing the ten-year period.

(Ord. No. 12755, § 1, 10-8-03; Ord. No. 15760, § 1, 9-10-14; Ord. No. 18210, § 1, 8-11-21)

Sec. 13:35.4. Battery of a dating partner.

(a) Battery of a dating partner is the intentional use of force or violence committed by one (1) dating partner upon the person of another dating partner.

(b) For purposes of this section:

(1) "Court-monitored domestic abuse intervention program" means a program, comprised of a minimum of twenty-six (26) in-person sessions occurring over a minimum of twenty-six (26) weeks, that follows a model designed specifically for perpetrators of domestic abuse. The offender's progress in the program shall be monitored by the court. The provider of the program shall have all of the following:

a. Experience in working directly with perpetrators and victims of domestic abuse.

b. Experience in facilitating batterer intervention groups.

c. Training in the causes and dynamics of domestic violence, characteristics of batterers, victim safety, and sensitivity to victims.

(2) "Dating partner" means any person who is involved or has been involved in a sexual or intimate relationship with the offender characterized by the expectation of affectionate involvement independent of financial considerations, regardless of whether the person presently lives or formerly lived in the same residence with the offender. "Dating partner" shall not include a casual relationship or ordinary association between persons in a business or social context.

(c) On a first conviction, notwithstanding any other provision of law to the contrary, the offender shall be fined not less than three hundred dollars ($300.00) nor more than one thousand dollars ($1,000.00) and shall be imprisoned for not less than thirty (30) days nor more than six (6) months. At least two (2) days of the sentence imposed shall be served without benefit of parole, probation, or suspension of sentence. Imposition or execution of the remainder of the sentence shall not be suspended unless either of the following occurs:

(1) The offender is placed on probation with a minimum condition that he serve four

(4) days in jail and complete a court-monitored domestic abuse intervention program, and the offender shall not possess a firearm throughout the entirety of the sentence.

(2) The offender is placed on probation with a minimum condition that he perform eight (8) eight-hour days of court-approved community service activities and complete a court-monitored domestic abuse intervention program, and the offender shall not possess a firearm throughout the entirety of the sentence.

(d) On a conviction of a second offense, notwithstanding any other provision of law to the contrary and regardless of whether the second offense occurred before or after the first conviction, the offender shall be fined not less than seven hundred fifty dollars ($750.00) nor more than one thousand dollars ($1,000.00) and shall be imprisoned for not less than sixty (60) days nor more than six (6) months. At least fourteen (14) days of the sentence imposed shall be served without benefit of parole, probation, or suspension of sentence, and the offender shall be required to complete a court-monitored domestic abuse intervention program. Imposition or execution of the remainder of the sentence shall not be suspended unless either of the following occurs:

(1) The offender is placed on probation with a minimum condition that he serve thirty (30) days in jail and complete a court-monitored domestic abuse intervention program, and the offender shall not possess a firearm throughout the entirety of the sentence.

(2) The offender is placed on probation with a minimum condition that he perform thirty (30) eight-hour days of court-approved community service activities and complete a court-monitored domestic abuse intervention program, and the offender shall not possess a firearm throughout the entirety of the sentence.

(e) An offender ordered to complete a court-monitored domestic abuse intervention program required by the provisions of this section shall pay the cost incurred by participation in the program. Failure to make such payment shall subject the offender to revocation of probation, unless the court determines that the offender is unable to pay.

(f) (1) For purposes of determining whether an offender has a prior conviction for violation of this section, a conviction under this section, or a conviction under the laws of any state or an ordinance of a municipality, town, or similar political subdivision of another state which prohibits the intentional use of force or violence committed by one (1) household member, family member, or dating partner upon another household member, family member, or dating partner shall constitute a prior conviction.

(2) A prior conviction shall not include a conviction for an offense under this section if the date of completion of sentence, probation, parole, or suspension of sentence is more than ten (10) years prior to the commission of the crime with which the offender is charged, and such conviction shall not be considered in the assessment of penalties hereunder. However, periods of time during which the offender was incarcerated in a penal institution in this or any other state shall be excluded in computing the ten-year period.

(Ord. No. 18211, § 1, 8-11-21)

Sec. 13:36. Assault defined.

Assault is an attempt to commit a battery, or the intentional placing of another in reasonable apprehension of receiving a battery.

(City Code 1951, Title 13, § 601)

State law reference—Similar provisions, R.S. 14:36.

Sec. 13:37. Aggravated assault.

(a) Aggravated assault is an assault committed with a dangerous weapon.

(b) Whoever commits an aggravated assault shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.

(c) If the offense is committed upon a store's or merchant's employee while the offender is engaged in the perpetration or attempted perpetration of theft of goods, the offender shall be imprisoned for not less than one hundred twenty (120) days without benefit of suspension of sentence nor more than six (6) months and may be fined not more than one thousand dollars ($1,000.00).

(City Code 1951, Title 13, § 603; Ord. No. 9734, § 1, 10-27-93)

State law reference—Similar provisions, R.S. 14:37.

Sec. 13:38. Simple assault.

(a) Simple assault is an assault committed without a dangerous weapon.

(b) Whoever commits a simple assault shall be fined not more than two hundred dollars ($200.00), or imprisoned for not more than ninety (90) days, or both.
(City Code 1951, Title 13, § 602)

State law reference—Similar provisions, R.S. 14:38.

Sec. 13:39. Negligent injuring.

(a) Negligent injuring is the inflicting of any injury upon the person of another by criminal negligence.

(b) The violation of a statute or ordinance shall be considered only as presumptive evidence of such negligence.

(c) Whoever commits the crime of negligent injuring shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 604)

State law reference—Similar provisions, R.S. 14:39.

Sec. 13:39.1. Vehicular negligent injuring.

(a) Vehicular negligent injuring is the inflicting of any injury upon the person of another when caused by the offender operating a motor vehicle, aircraft, watercraft or other means of conveyance, and:

(1) The operator is under the influence of alcoholic beverages; or

(2) The offender's blood alcohol concentration is 0.10 percent or more by weight based upon grams of alcohol per 100 cubic centimeters of blood; or

(3) The offender is under the influence of a controlled dangerous substance listed in schedule I, II, III, IV, or V, as set forth in R.S. 40:964.

(b) The violation of a statute or ordinance shall be considered only as presumptive evidence of negligence as set forth in subsection (a).

(c) Whoever commits the crime of vehicular negligent injuring shall be fine not more than one thousand dollars ($1,000.00) or imprisoned for not more than six (6) months, or both.
(Ord. No. 7422, § 1, 1-25-84; Ord. No. 8118, § 1, 3-12-86; Ord. No. 8763, § 2, 10-12-88)

State law reference—Similar provisions, R.S. 14:39.1.

Sec. 13:39.2. Driving through funeral or other procession.

(a) *Definitions.* As used in this section, the following words and phrases have the meaning ascribed to them, unless the context clearly indicates a different meaning:

Funeral procession means two (2) or more vehicles accompanying a deceased person or cremated human remains during daylight hours.

Other authorized procession means one (1) or more vehicles required to be escorted by one (1) or more motorcycle law enforcement officers, and in fact escorted by one (1) or more motorcycle law enforcement officers making use of audible or visual signals.

(b) Except for an authorized emergency or law enforcement vehicle making use of audible or visual signals, or when directed otherwise by a law enforcement officer, pedestrians and operators of all motor vehicles shall yield the right-of-way to each vehicle participating in a funeral or other authorized procession.

(c) No driver of a vehicle shall drive between the vehicles, including the escort vehicles, comprising a funeral or other authorized procession while they are in motion, or break into the middle of such procession, or enter into a procession from a side road, driveway, or parking lot.

(d) Whoever violates the provisions of this section shall be assessed a penalty of one thousand dollars ($1,000.00) for each violation. However, if as a result of the violation there is an accident causing death or serious bodily injury to a motorcycle officer, the violator shall also be ordered to serve court-appointed community service for not more than two hundred fifty (250) hours.
(Ord. No. 17062, § 2, 5-8-19)

Sec. 13:40. Intimidation by officers.

(a) Intimidation by officers is the intentional use, by any police officer or other person charged with custody of parties accused of a crime or violation of a municipal ordinance, of threats, violence, or any means of inhuman treatment designed to secure a confession or incriminating statement from the person in custody.

(b) Whoever commits the crime of intimidation by officers shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 605)

State law reference—Similar provisions, R.S. 14:40.

Sec. 13-40.1. Reserved.

Editor's note—Ordinance No. 10198, § 1, adopted March 8, 1995, repealed § 13-401, which pertained to terrorizing.

Sec. 13:40.2. Reserved.

Editor's note—Ord. No. 13208, § 1, adopted March 9, 2005, amended the Code by repealing former § 13:40.2 in its entirety. Former § 13:40.2 pertained to stalking; and derived from Ord. No. 9669, adopted August 11, 1993; and Ord. No. 9811, adopted January 26, 1994.

Secs. 13:41—13:45. Reserved.

Sec. 13:46. False imprisonment.

(a) False imprisonment is the intentional confinement or detention of another, without his consent and without proper legal authority.

(b) Whoever commits the crime of false imprisonment shall be fined not more than two hundred dollars ($200.00), or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 606)

State law reference—Similar provisions, R.S. 14:46.

Secs. 13:47—13:55. Reserved.

Sec. 13:56. Simple criminal damage to property.

Simple criminal damage to property is the intentional damaging of any property of another without the consent of the owner. Whoever commits the crime of simple criminal damage to property shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 45.1; Parish Code 1962, Title 13, § 20)

Cross references—Damaging poles, § 2:113; desecration of cemeteries, § 3:3; destruction, taking of lake property structures, equipment at City Park Lake and New University Lake, § 3:72.

State law reference—Similar provisions, R.S. 14:56.

Sec. 13:56.1. Defacing buildings.

(a) It shall be unlawful to deface any building or property within the city-parish, by making signs or figures thereon without the consent of the owner, or draw obscene signs or figures or write any indecent or obscene word, words or sentences on any building, room, hall closet, wall or fence where exposed to public view.

(b) Whoever commits the crime of defacing buildings shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 45.5)

Secs. 13:57, 13:58. Reserved.

Sec. 13:59. Criminal mischief.

(a) Criminal mischief is the intentional performance of any of the following acts:

(1) Tampering with any property of another, without the consent of the owner, with the intent to interfere with the free enjoyment of any right of anyone thereto, or with the intent to deprive anyone entitled thereto of the full use of the property; or

(2) Giving of any false alarm of a fire or notice which would reasonably result in emergency response.

(3) Driving of any tack, nail, spike or metal over one-half inch in length in any tree located on lands belonging to another, without the consent of the owner, or without the later removal of the object from the tree; or

(4) The felling, topping, pruning of trees or shrubs within the right-of-way of the

state, parish or city highway, street, road or other public property, without prior written approval of the secretary of the department of transportation and development or the director of the department of public works for the parish who supervises the office of highways of that department or his representative, provided prior written approval is not required for agents or employees of public utility companies in situations of emergencies where the person or property of others is endangered; or

(5) Giving of any false report or complaint to a sheriff, deputy sheriff, police officer, constable or emergency medical service technician, firefighter, or any other officer of the law relative to the commission of, or attempt to commit a crime; or

(6) Throwing any stone or any other missile in any street, avenue, alley, road or highway, or open space or public square, or enclosure, or throwing any stone or other missile from any place into any street, avenue, road, highway, alley, open space, public square or enclosure; or

(7) Taking temporary possession of any part or parts of a place of business, or remaining in a place of business after the person in charge of such business or portion of such business has directed such person to leave the premises and to desist from the temporary possession of any part or parts of such business;

(8) The communication to any person for the purpose of disrupting any public utility water service, when the communication causes any officer, employee or agent of the service reasonably to be placed in sustained fear for his or another person's safety, or causes the evacuation of a water service building, or causes any discontinuance of any water services;

(9) Throwing any stone or any other missile in any street, avenue, alley, road, highway, open space, public square, or enclosure, or throwing any stone, missile, or other object from any place into any street, avenue, road, highway, alley, open space, public square, enclosure, or at any train, railway car, or locomotive; or

(10) The discharging of any firearm at a train, locomotive, or railway car.

(11) Placing graffiti upon immovable or movable property, whether publicly or privately owned, without the consent of the owner, by means of the use of spray paint, ink, marking pens containing a nonwater soluble fluid, brushes, applicators, or other materials for marking, scratching, or etching. "Graffiti" includes but is not limited to any sign, inscription, design, drawing, diagram, etching, sketch, symbol, lettering, name, or marking placed upon immovable or movable property in such a manner and in such a location as to deface the property and be visible to the general public.

(b) Whoever commits the crime of criminal mischief shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 45.2; Ord. No. 8118, § 1, 3-12-86; Ord. No. 8837, § 1, 1-11-89; Ord. No. 10751, § 1, 2, 10-23-96; Ord. No. 11682, § 2, 3-8-00)

State law reference—Similar provisions, R.S. 14:59.

Secs. 13:60—13:62. Reserved.

Sec. 13:63. Illegal signs.

(a) It shall be unlawful for any person, either directly or by requesting another to do so, to place any sign, including supports, frames, and embellishments, within a public right-of-way or to attach, affix, or paint any sign on any utility pole, light standard, utility box or pedestal, tree, rock, or other natural object located within the public right-of-way or on public property without authorization from the city-parish.

(b) The person(s), organization(s), or business(es) named or promoted on the sign posted in violation of this section shall be deemed the owner and also responsible for the violation.

(c) All sign vendors within the parish shall post this Code of Ordinance provision in a conspicuous location within his place of business.

(d) Each sign shall constitute a separate violation. Whoever violates the provisions of this section shall be fined not less than two hundred dollars ($200.00) nor more than one thousand dollars ($1000.00) or imprisoned for not more than six (6) months, or both.

(e) It shall be unlawful for any person or business to violate the provisions of this section within the parish.
(Ord. No. 11528, § 1, 8-25-99; Ord. No. 16770, § 1, 3-14-18)

Sec. 13:63.1. Illegal posting.

(a) Illegal posting is the posting or the placing and/or maintaining of posted signs on property by anyone other than:

(1) The owner or his duly authorized agent or representative;

(2) The lessee or his duly authorized agent or representative.

(b) Whoever commits the crime of illegal posting shall be fined not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00), and imprisoned for not more than sixty (60) days, or both.
(City Code 1951, Title 13, § 45.3)

State law reference—Similar provisions, R.S. 14:63.1.

Sec. 13:63.2. Destruction, defacing or removal of posted signs.

(a) No person shall intentionally and without authority destroy, deface or remove posted signs or signs designating or purporting to designate the boundary lines of immovable property.

(b) Whoever violates the provisions of this section shall be fined not less than fifty dollars ($50.00), nor more than three hundred dollars ($300.00), or imprisoned for not more than sixty (60) days, or both.
(City Code 1951, Title 13, § 45.4)
State law reference—Similar provisions, R.S. 14:63.2.

Sec. 13:63.3. Entry on or remaining in places or land after being forbidden.

(a) No person shall without authority go into or upon or remain in or attempt to go into or upon or remain in or upon any structure, watercraft, or any other movable, or immovable property, which belongs to another, after having been forbidden to do so, either orally or in writing, including by means of any sign hereinafter described, by any owner, lessee or custodian of the property or by any other authorized person. For the purposes of this section, the above mentioned sign means a sign or signs posted on or in the structure, watercraft, or any other movable, or immovable property, at a place or places where such sign or signs may be reasonably expected to be seen.

(b) Whoever violates the provisions of this section shall be guilty of a misdemeanor and upon conviction thereof shall be fined not more than five hundred dollars ($500.00) or imprisoned in the parish jail for not more than six (6) months, or both.
Cross reference—Trespass, § 12:150 et seq.
State law reference—Similar provisions, R.S. 14:63.3.

Sec. 13:63.4. Unauthorized access to railroad property.

(a) No person shall without proper authorization intentionally access into or upon any railroad movable property when he knows such access is unauthorized, or under circumstances where he reasonably should know such access is unauthorized.

(b) As used herein:

(1) *Access* means to enter by any means and includes but is not limited to the attaching or holding by any means onto any train, locomotive, or railroad car.

(2) *Railroad movable property* means any rolling stock owned, leased, operated, or possessed by a railroad, including but not limited to any train, locomotive, or railway car located or operated upon any railroad property.

(c) Whoever violates the provisions of this section shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months or both.
(Ord. No. 8837, § 1, 1-11-89)
State law reference—Similar provisions, R.S. 14:63.5.

Sec. 13:63.5. Unauthorized entry upon railroad property.

(a) No person shall without authorization intentionally enter any property of a railroad when he knows such access is unauthorized, or under circumstances where he reasonably should know his entry is unauthorized, and when such entry is with intent to interfere with, interrupt, or prevent the operation of any train, locomotive, or railway car.

(b) No person shall remain in or on any property of a railroad when authorization for his entry was not given, or has been withdrawn, and when his continued presence interferes with, interrupts, or prevents the operation of any train, locomotive, or railway car.

(c) *Property of a railroad* as used herein means any movable or immovable property owned or leased by a railroad, or any immovable property possessed by a railroad upon which is placed a railroad track and the land adjacent thereto.

(d) Whoever violates the provisions of subsection (a) or subsection (b) herein, upon first conviction shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than ninety (90) days, or both, and, upon second or subsequent convictions, shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(Ord. No. 8837, § 1, 1-11-89)
State law reference—Similar provisions, R.S. 14:63.6.

Sec. 13:63.6. Aiding and abetting others to enter or remain on premises where forbidden.

(a) No person shall incite, solicit, urge, encourage, exhort, instigate or procure any other person to go into or upon or to remain in or upon any structure, watercraft, or any other movable which belongs to another, including public buildings and structures, ferries, and bridges, or any part, portion or area thereof, knowing that such other person has been forbidden to go or remain there, either orally or in writing, including by means of any sign hereinafter described, by the owner, lessee, or custodian of the property or by any other authorized person.

For the purposes of this section, the above-mentioned sign means a sign or signs posted on or in the structure, watercraft or any other movable, including public buildings and structures, ferries and bridges, or part, portion or area thereof, at a place or places where such sign or signs may be reasonably expected to be seen.

(b) Any law enforcement officer investigating a complaint that the provisions of this section are being or have been violated or any such officer making any arrest for violation of the provisions of this section, is hereby vested with authority to require any person involved in such investigation or arrest to identify himself to such officer. Upon demand of such officer, the person involved shall inform the officer of his true name and address.

(c) Whoever violates the provisions of subsection (a) or subsection (b) above, shall be guilty of a misdemeanor and upon conviction thereof shall be fined not more than five hundred dollars ($500.00) or be imprisoned in the parish jail for not more than six (6) months, or both.
(Ord. No. 10595, § 1, 3-27-96)

Sec. 13:63.7 Vehicular trespass.

(a) No person shall knowingly enter into or upon the motor vehicle, boat, or aircraft of another, without the consent of its owner or of any person who has a right to possession superior to that of the entrant, when the entrant is not otherwise privileged to do so.

(b) *Enter into or upon* means:

(1) To open or unlock any door, window, or other access opening of any motor vehicle, boat, or aircraft.

(2) To be astride of any motor vehicle, boat, or aircraft.

(3) To be supported by any motor vehicle, boat, or aircraft.

(c) An entrant is privileged to enter if:

(1) He is attempting to render aid or assistance to an ill or injured person.

(2) He reasonably believes that the entry is necessary to prevent injury to person or property.

(3) He is state or local law enforcement officer in the performance of his official duties.

(d) Whoever commits the crime of vehicular trespass shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(Ord. No. 10750, § 1, 10-23-96)

Secs. 13:64—13:66. Reserved.

Sec. 13:67. Misdemeanor theft.

(a) Theft is the misappropriation or taking of anything of value of less than one thousand dollars ($1,000.00) which belongs to another, either without the consent of the other to the misappropriation or taking, or by means of fraudulent conduct, practices or representations. An intent to deprive the other permanently of whatever may be the subject of the misappropriation or taking is essential.

(b) Whoever commits the crime of misdemeanor theft shall be imprisoned for not more than six (6) months or may be fined not more than one thousand dollars ($1,000.00), or both.
(City Code 1951, Title 13, § 45.6; Ord. No. 11682, § 3, 3-8-00; Ord. No. 15012, § 1, 10-27-10; Ord. No. 15753, § 1, 8-27-14; Ord. No. 18756, § 1, 2-22-23)

Cross references—Taking of lake property structures, equipment at City Park Lake and New University Lake, § 3:72; arrest of shoplifters, § 4:202.

State law reference—Similar provisions, R.S. 14:67.

Sec. 13:67.1. Reserved.

Editor's note—Section 1 of Ord. No. 8933, adopted June 14, 1989, renumbered former § 13:67.1 as § 13:67.6 to maintain parallel numbering with R.S. title 14.

Sec. 13:67.2. Theft of dogs.

(a) Theft of dogs is the misappropriation or taking of any dog which belongs to another, either without consent of the other to the misappropriation or taking, or by means of fraudulent conduct, practices or representations. An intent to deprive the other permanently of whatever may be the subject of the misappropriation or taking is essential.

(b) Whoever commits the crime of theft of dogs shall, upon the first conviction thereof, be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or be imprisoned for not less than three (3) months nor more than six (6) months, or both.
(Ord. No. 8837, § 1, 1-11-89)

State law reference—Similar provisions, R.S. 14:67.2.

Sec. 13:67.3. Unauthorized use of "access card" as theft; definitions.

(a) (1) *Access card* shall mean and include any card, plate, paper, book or any other device issued to a person which authorizes such person to obtain credit, money, goods, services, or anything of value, whether contemporaneous or not, by use of any credit or deferred payment plan which issuer or by use of debiting or changing such person's demand deposit savings or time account with issuer or by debiting or charging any other funds such person has on deposit with issuer.

(2) *Revoked access card* as used herein shall mean an access card which has been canceled or terminated by the issuer of said access card.

(3) *Person* as used herein shall mean and include natural persons, or any organization, or other entity.

(4) *Issuer* as used herein shall be the depository and/or creditor issuing the access card, directly or through another entity.

(5) The aggregate amount or value of credit, money, goods, services or anything else of value obtained shall determine the value of the misappropriation or taking in determining the penalty under R.S. 14:67 when the offender has obtained the credit, money, goods, services or anything else of value from any one (1) issuer or the offender has used an access card, or referred to a nonexistent access card on two (2) or more occasions within any consecutive ninety-day period.

(b) Whoever, directly or indirectly, by agent or otherwise, with intent to defraud, (1) uses a forged access card, (2) makes reference by number or other description to a nonexistent access card, (3) steals or wrongfully appropriates an access card, or (4) uses an access card belonging to another person without authority of said person; thereby obtaining, whether contemporaneously or not, credit, money, goods, services or anything of value shall be guilty of theft and shall be fined not more than five hundred dollars ($500.00) or be imprisoned for not more than six (6) months or both.

(c) Whoever, directly or indirectly, by agent or otherwise, with intent to defraud, uses a revoked access card, thereby obtaining, whether contemporaneously or not, credit, money, goods, services or anything of value shall be guilty of theft and shall be fined not more than five hundred dollars ($500.00) or be imprisoned for not more than six (6) months or both. For purposes of this subsection, it shall be presumptive evidence that a person used a revoked access card with intent to defraud if the person, directly or indirectly, by agent or otherwise, uses the access card after actually receiving oral or written notice that the access card has been canceled or terminated, or if said person, directly or indirectly, by agent or otherwise, uses the access card at a time period more than five (5) days

after written notice of the termination or cancellation of said access card has been deposited by registered or certified mail in the United States mail system. Said notice shall be addressed to the person to whom such access card has been issued at the last-known address for such person as shown on the records of the issuer.

(d) Whoever, directly or indirectly, by agent or otherwise, with the intent to defraud, uses an access card to obtain, whether contemporaneously or not, money, goods, services or anything of value, and the final payment for said items is to be made by debiting or charging said person's demand deposit or savings or time account with issuer, or by debiting or charging any other funds said person has on deposit with the issuer, and there are not sufficient funds on deposit to the credit of said person with the issuer to make payment in full of said items obtained, said person shall have committed the crime of theft. Said person's failure to pay the amount due on said items obtained:

(1) Within ten (10) days after written notice of said amount due has been deposited by certified or registered mail in the United States mail system addressed to the person to whom such access card has been issued at the last-known address for such person as shown on the records of issuer; or

(2) Within ten (10) days of delivery or personal tender of said written notice;

shall be presumptive evidence of said person's intent to defraud.

(e) As used herein and in R.S. 14:67, the access card itself shall be a thing of value, with a value less than one hundred dollars ($100.00).

(f) In addition to any other fine or penalty imposed under this section, the court may, at its discretion, order, as a part of the sentence, restitution.

(Ord. No. 8946, § 1, 7-12-89)

State law reference—Similar provisions, R.S. 14:67.3.

Sec. 13:67.4. Theft of domesticated fish from fish farm; penalty.

It shall be unlawful for any person, other than the owner thereof, to fish or to take any domesticated fish from any fish farm or private pond, except with the consent of the owner thereof.

Any person violating the provisions of this section shall, upon conviction thereof, be subject to a fine or imprisonment or both, based on the value of the domesticated fish unlawfully taken or misappropriated.

When the misappropriation or taking amounts to less than a value of one hundred dollars ($100.00), the offender shall be fined not more than five hundred dollars ($500.00) or be imprisoned for not more than six (6) months, or both.

(Ord. No. 8837, § 1, 1-11-89)

State law reference—Similar provisions, R.S. 14:67.4.

Sec. 13:67.5. Theft of crawfish; penalty.

(a) No person shall knowingly, willfully and intentionally fish or take any commercial crawfish from any crawfish farm, except with the consent of the owner thereof.

(b) Any person violating the provisions of this section shall, upon conviction thereof, be subject to a fine or imprisonment or both.

(c) When the misappropriation or taking amounts to less than a value of one hundred dollars ($100.00), the offender shall be fined not more than five hundred dollars ($500.00) or be imprisoned for not more than six (6) months, or both.

(Ord. No. 8837, § 1, 1-11-89)

State law reference—Similar provisions, R.S. 14:67.5.

Sec. 13:67.6. Theft of utility service; inference of commission of theft; penalties.

(a) Theft of utility service is the misappropriation, taking, or use of any electricity, gas, water, or telecommunications which belongs to another, is held for sale by another, or is being distributed by another, without consent of the owner, seller, or distributor or by means of fraudulent conduct, practices, or representations. A taking, misappropriation, or use includes the diversion by any means or device of any quantity of electricity, gas, water, or telecommunications, from the wires, cables, pipes, mains, or other means of transmission of such person, or by directly or indirectly preventing a metering device from properly registering the quantity of electricity, gas, water, or telecommunications actually used, consumed, or transmitted.

(b) The trier of fact may infer that there was a misappropriation, taking, or using without the consent of the owner, seller, or distributor, or that there was fraudulent conduct, practices, or representations when:

(1) There is on or about any wire, cable, pipe, main, or meter, or the equipment to which said wire, cable, pipe, main, or meter is affixed or attached, any device or any other means resulting in the diversion of electricity, gas, water, or telecommunications, or any device or any other means resulting in the prevention of the proper action or accurate registration of the meter or meters used to measure the quantity of electricity, gas, water, or telecommunications actually used, consumed, or transmitted, or interfering with the proper action or accurate registration of such meter or meters;

(2) The person charged had custody or control of the room, structure, or place where such device, other means, or such wire, cable, pipe, main, meter, or equipment affixed or attached thereto was located;

(3) The person charged benefited from the misappropriation of such utility service; or

(4) The person charged intentionally supplied false information in applying for such utility service.

(c) On a first conviction, the offender shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.

(Ord. No. 8455, § 1, 7-8-87; Ord. No. 8837, § 1, 1-11-89; Ord. No. 12118, § 1, 9-26-01)

State law reference—Similar provisions, R.S. 14:67.6.

Secs. 13:67.7, 13:67.8. Reserved.

Sec. 13:67.9. Theft of oil and gas equipment; penalties.

Any person who shall unlawfully take or misappropriate any machinery, drilling mud, welding equipment, pipe, fittings, pumps, or any other oil and gas equipment used in connection with the drilling, production, or maintenance of oil or gas wells, with the intent to deprive the owner or lessee thereof of said items shall; when the misappropriation or taking amounts to less than a value of one hundred dollars ($100.00), be fined not more than five hundred dollars ($500.00) or be imprisoned for not more than six (6) months, or both.

(Ord. No. 8933, § 2, 6-14-89)

State law reference—Similar provisions, R.S. 14:67.9.

Sec. 13:67.10. Misdemeanor theft of goods.

(a) Theft of goods is the misappropriation or taking of anything of a value of less than five hundred dollars ($500.00) which is held for sale by a merchant, either without the consent of the merchant to the misappropriation or taking, or by means of fraudulent conduct, practices or representations. An intent to deprive the merchant permanently of whatever may be the subject of the misappropriation or taking is essential and may be inferred when a person:

(1) Intentionally conceals, on his person or otherwise, goods held for sale.

(2) Alters or transfers any price marking reflecting the actual retail price of the goods.

(3) Transfers goods from one container or package to another or places goods in any container, package, or wrapping in a manner to avoid detection.

(4) Willfully causes the cash register or other sales recording device to reflect less than the actual retail price of the goods.

(5) Removes any price marking with the intent to deceive the merchant as to the actual retail price of the goods.

(6) Damages or consumes goods or property so as to render it unmerchantable.

(b) Whoever commits the crime of misdemeanor theft of goods shall be imprisoned for not more than six (6) months or may be fined not more than five hundred dollars ($500.00), or both. (Ord. No. 9718, § 1, 9-22-93; Ord. No. 15012, § 2, 10-27-10)

State law reference—Similar provisions, R.S. 14:67.10.

Sec. 13:68. Unauthorized use of a movable.

(a) Unauthorized use of a movable is the intentional taking or use of a movable which belongs to another, either without the other's consent, or by means of fraudulent conduct, practices, or representations, but without any intention to deprive the other of the movable permanently. The fact that the movable so taken or used may be classified as an immovable, according to the law pertaining to civil matters, is immaterial.

(b) Whoever commits the crime of unauthorized use of a movable having a value of one thousand dollars ($1,000.00) or less shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.

(City Code 1951, Title 13, § 45.7)

State law reference—Similar provisions, R.S. 14:68.

Sec. 13:68.1. Unauthorized use of cable television services and equipment; unlawful connection to cable television systems; unlawful sale or modification of devices for the purpose of receiving or intercepting cable television services.

(a) It shall be unlawful for any person to:

(1) Make any unauthorized connection, whether physically, electrically, acoustically, inductively or otherwise with any part of any cable television system for the purpose of receiving any television signals, radio signals, pictures, programs, sounds or any other information transmitted over any cable television system without payment therefor; or

(2) Tamper with, remove or injure any cables, wires or other equipment used for the distribution of television signals, radio signals, pictures, programs, sounds or any other information transmitted over any cable television system; or

(3) Connect, alter, modify, attach, remove or tamper with any equipment or device or television or radio component for the purpose of intercepting or receiving any program or service offered, carried or transmitted by any cable television system; or

(4) Manufacture, sell, transfer, rent or distribute any electronic equipment, or any kit for making such equipment, designed specifically to decode or descramble any programming or other services carried by a cable television system; or

(5) In any manner whatsoever, misappropriate use or take any program signal or other services offered or distributed by any cable television system.

(b) The trier of fact may infer that there has been a misappropriation, use or taking without the consent of the cable television system when:

(1) There is on or about any cable, wire or any equipment which is affixed to any cable or wire, any device or other means resulting

in the ability to divert or receive any program, signal or other service distributed by any cable television system; or

(2) The person charged owned or possessed, or had custody or control of the room or premises where such device was located and the person charged benefited in any way, directly or indirectly, in the misappropriation or use of any program, signal or other service distributed by any cable television system; or

(3) The person charged supplied false information in applying for any service offered by any cable television system.

(c) Whoever violates the provisions of subsection (a)(1), (a)(2), (a)(3) or (a)(5) of this section shall:

(1) On first offense, be fined not more than two hundred dollars ($200.00) or imprisoned for not more than sixty (60) days, or both.

(2) On second or subsequent offense, be fined not more than five hundred dollars ($500.00) or imprisoned for not more than one hundred twenty (120) days, or both.

(d) Whoever violates the provisions of subsection (a)(4) of this section shall:

(1) On first offense, be fined not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00) or imprisoned for not more than ninety (90) days, or both.

(2) On second or subsequent offense be fined not less than three hundred dollars ($300.00) nor more than five hundred dollars ($500.00) or imprisoned for not more than one hundred eighty (180) days, or both.

(e) The provisions of this section shall not apply to any cable television companies or systems licensed and franchised in accordance with federal and state law, or multipoint distribution systems licensed in accordance with federal law, or to the authorized use of earth stations to receive satellite communications.
(City Code 1951, Title 13, § 45.6.1; Parish Code 1962, Title 13, § 45; Ord. No. 7103, § 1, 4-13-83; Ord. No. 9233, § 1, 2-13-91)

Sec. 13:68.2. Unauthorized use of discontinued water service.

(a) It shall be unlawful for any person to make an unauthorized connection or reconnection of water services which have been discontinued in accordance with Ordinance 7853 of the metropolitan council of the parish and city and the regulations adopted pursuant thereto.

(b) The trier of fact may infer that there has been an unauthorized connection or reconnection of water service when:

(1) a. There is on or about any pipe, main or meter, or the equipment to which the pipe, main or meter is affixed or attached, any device or any other means resulting in the diversion of water or any device or any other means resulting in the prevention of the proper action or accurate registration of such meter or meters used to measure the quantity of water actually used, consumed or transmitted, or interfering with the proper action or accurate registration of such meter or meters; or

b. Water service has been reconnected or turned back on without authority of the director of public works; and

(2) The person charged has custody or control of the room, structure or place where such device, other means, or pipe, main, meter or equipment affixed or attached thereto was located; and

(3) The person charged benefited from the unauthorized connection.

(c) It shall be a misdemeanor punishable by a fine of not more than one hundred dollars ($100.00) or by imprisonment for a term not to exceed thirty (30) days, or both, at the discretion of the court, for any person to violate any provisions of this

section. In lieu of a fine or imprisonment herein, the court may order the offender to perform community service work not to exceed thirty-two (32) hours.
(Ord. No. 8008, 11-13-85; Ord. No. 8141, § 1, 4-23-86)

Sec. 13:68.3. Unauthorized removal of shopping carts or baskets.

It shall be a misdemeanor for any person to remove a shopping cart or basket belonging to another from the parking area or grounds of any store without authorization therefor.

Whoever commits the crime of unauthorized removal of shopping carts or baskets from the parking area or grounds of a store shall be fined not more than one hundred dollars ($100.00) or imprisoned for not more than six (6) months, or both.
(Ord. No. 8837, § 1, 1-11-89)

State law reference—Similar provisions, R.S. 14:68.1.

Sec. 13:69. Illegal possession of stolen things.

(a) Illegal possession of stolen things is the intentional possessing, procuring, receiving or concealing of anything of value which has been the subject of any robbery or theft, under circumstances which indicate that the offender knew or had good reason to believe that the thing was the subject of one of these offenses.

(b) When the value of the stolen things is less than three hundred dollars ($300.00), the offender shall be imprisoned for not more than six (6) months, or may be fined not more than five hundred dollars ($500.00), or both.

(c) It shall be an affirmative defense to a violation of this section committed by means of possessing, that the accused, within seventy-two (72) hours of his acquiring knowledge or good reason to believe that a thing was the subject of robbery or theft, reports that fact or belief in writing to the district attorney in the parish of his domicile.
(City Code 1951, Title 13, § 45.8; Ord. No. 11682, § 4, 3-8-00)

State law reference—Similar provisions, R.S. 14:69.

Sec. 13:70. False accounting.

(a) False accounting is the intentional rendering of a financial statement of account which is known by the offender to be false, by anyone who is obliged to render an accounting by the law pertaining to civil matters.

(b) Whoever commits the crime of false accounting shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.

State law reference—Similar provisions, R.S. 14:70.

Sec. 13:71. Issuing worthless checks.

(a) (1) Issuing worthless checks is the issuing, in exchange for anything of value, whether the exchange is contemporaneous or not, with intent to defraud, of any check, draft or order for the payment of money upon any bank or other depository, knowing at the time of the issuing that the offender has not sufficient credit with the bank or other depository for the payment of such check, draft, or order in full upon its presentation.

(2) This section shall apply to a check, draft, or order tendered for satisfaction, in whole or in part, of payments due on installment contracts, open accounts, or any other obligation for which the creditor has authorized periodic payments or the extension of time in which to pay.

(3) This provision shall apply to a check, draft, or order for the payment of money given for a motor vehicle when such payment is conditioned upon delivery of documents necessary for transfer of a valid title to the purchaser.

(4) For purposes of this section, an open account shall include accounts where checks are tendered as payment:

a. In advance of receipt, in whole or in part, for telecommunication facilities or services.

b. For deposits, prepayments, or payments for the lease or rent of a rental motor vehicle, pursuant to a lease or rental agreement.

(b) The offender's failure to pay a check, draft or order, issued for value, within ten (10) days after notice of its nonpayment upon presentation has been deposited by certified mail in the United States mail system addressed to the issuer thereof either at the address shown on the instrument or the last known address for such person shown on the records of the bank upon which such instrument is drawn or within ten (10) days after delivery or personal tender of the written notice to the issuer by the payee or his agent, shall be presumptive evidence of his intent to defraud.

(c) Issuing worthless checks is also the issuing, in exchange for anything of value, whether the exchange is contemporaneous or not, with intent to defraud, of any check, draft, or order for the payment of money, when the offender knows at the time of the issuing that the account designated on the check, draft, or order has been closed, or is nonexistent or fictitious, or is one in which the offender has no interest or on which he has no authority to issue such check, draft, or order.

(d) In addition to any other fine or penalty imposed under this section, the court shall order as part of the sentence restitution in the amount of the check or checks, plus a fifteen dollar ($15.00) per check service charge payable to the person or entity that initially honored the worthless check or checks or an authorized collection agency or justice of the peace.

(e) Whoever commits the crime of issuing worthless checks shall be imprisoned for not more than six (6) months, or may be fined not more than five hundred dollars ($500.00), or both.
(Ord. No. 9733, § 1, 10-27-93)

State law reference—Similar provisions, R.S. 14:71.

Secs. 13:72—13:81. Reserved.

Sec. 13:82. Prostitution; definition; penalties.

(a) Prostitution is:

(1) The practice by a person of indiscriminate sexual intercourse with others for compensation.

(2) The solicitation by one person of another with the intent to engage in indiscriminate sexual intercourse with the latter for compensation.

(b) Whoever commits the crime of prostitution shall be fined not more than five hundred dollars ($500.00) or be imprisoned for not more than six (6) months, or both.

(c) If the offense occurred as a result of a solicitation by the offender while the offender was located on a public road or highway, or the sidewalk, walkway, or public servitude thereof, the court shall sentence the offender to imprisonment for a minimum of ninety (90) days. If a portion of the sentence is suspended, the court may place the offender upon supervised probation if the offender agrees, as a condition of probation, to perform two hundred forty (240) hours of community service work collecting or picking up litter and trash on the public roads, streets, and highways, under conditions specified by the court. The mandatory minimum shall not be suspended unless the community service conditions are agreed to.
(Ord. No. 8763, § 2, 10-12-88; Ord. No. 15072, § 1, 1-26-11)

State law reference—Similar provisions, R.S. 14:82.

Sec. 13:83. Soliciting for prostitutes.

Soliciting for prostitutes is the soliciting, inviting, inducing, directing or transporting of a person to any place with the intention of promoting prostitution.

Whoever commits the crime of soliciting for prostitutes shall be fined not more than five hundred dollars ($500.00), imprisoned for not more than six (6) months, or both.
(Ord. No. 8763, § 2, 10-12-88)

State law reference—Similar provisions, R.S. 14:83.

Secs. 13:83.1, 13:83.2. Reserved.

Sec. 13:83.3. Prostitution by massage.

(a) Prostitution by massage is the erotic stimulation of the genital organs of another by any masseur, masseuse, or any other person, whether resulting in orgasm or not, by instrumental manipulation, touching with the hands, or other

bodily contact exclusive of sexual intercourse or unnatural carnal copulation, when done for money.

(b) As used in this section, the term:

(1) *Masseur* means a male who practices massages or physiotherapy, or both.

(2) *Masseuse* means a female who practices massage or physiotherapy, or both.

(c) Whoever commits the crime of prostitution by massage shall be fined not more than five hundred dollars ($500.00) or imprisoned not more than six (6) months, or both.
(Ord. No. 8763, § 2, 10-12-88)

Cross reference—Sexual conduct in massage establishments prohibited, § 9:1115.

State law reference—Similar provisions, R.S. 14:83.3.

Sec. 13:83.4. Massage; sexual conduct prohibited.

(a) It shall be unlawful for any masseur, masseuse, or any other person, while in a massage parlor or any other enterprise used as a massage parlor, by stimulation in an erotic manner, to:

(1) Expose, touch, caress, or fondle the genitals, anus, or pubic hairs of any person or the nipples of the female breast; or

(2) To perform any acts of sadomasochistic abuse, flagellation, or torture in the context of sexual conduct.

(b) Whoever violates this section shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(Ord. No. 8763, § 2, 10-12-88)

Cross reference—Sexual conduct in massage establishments prohibited, § 9:1115.

State law reference—Similar provisions, R.S. 14:83.4.

Sec. 13:84. Reserved.

Sec. 13:85. Letting premises for prostitution.

Letting premises for prostitution is the granting of the right to use or the leasing of any premises, knowing that they are to be used for the practice of prostitution, or allowing the continued use of the premises with such knowledge.

Whoever commits the crime of letting premises for prostitution shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 34; Ord. No. 8763, § 2, 10-12-88)

State law reference—Similar provisions, R.S. 14:85.

Sec. 13:86. Escort services.

(a) *Definitions.*

Escort means any person who provides social companionship to other persons for compensation or anything of value.

Escort service means any firm, company, partnership or corporation, or any person engaged, as a business, in the provision of escorts to any person for remuneration or for anything of value.

Operate includes but is not limited to advertisement of the escort service.

Social companionship means the accompanying of other persons to or about social affairs, as a date or escort, for purposes of entertainment.

(b) *Exceptions.* The provisions of this section do not apply to individuals and businesses providing caretaking to minors and/or the infirm.

(c) *Violation; penalties.* It shall be unlawful for any person to operate an escort service. Whoever commits the crime of operating an escort service shall be fined not more than one thousand dollars ($1,000.00) or imprisoned for not more than six (6) months or both.
(Ord. No. 10019, § 2, 9-14-94)

Secs. 13:87—13:89. Reserved.

Sec. 13:90. Gambling.

(a) Gambling is the intentional conducting, or directly assisting in the conducting, as a business, of any game, contest, lottery or contrivance whereby a person risks the loss of anything of value in order to realize a profit.

(b) Whoever commits the crime of gambling shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.

(c) The conducting, or directly assisting in the conducting, as a business, of any game, contest, lottery, or contrivance on board a commercial cruiseship used for the international carriage of passengers whereby a person risks the loss of anything of value in order to realize a profit is not gambling and shall not be suppressed by any law enforcement officer of the State of Louisiana or any of its political subdivisions. This subsection shall apply only to commercial cruiseships for the carriage of passengers which are sailing from a port outside the continental limits of the United States to a port in any parish of this state having a population of more than four hundred seventy-five thousand (475,000) or any such ship which is sailing from a port in such a parish to a port outside the continental limits of the United States, provided that the ship is not docked or anchored but is navigating en route between such ports.

(d) The conducting or assisting in the conducting of authorized lottery activities or operations in accordance with provisions of R.S. 47:9000 through 47:9081 shall not be considered gambling for purposes of this section.

(e) The intentional conducting or assisting in the conducting of gaming activities upon a riverboat as defined and authorized in R.S. 4:501 through R.S. 4:562, whereby a person risks the loss of anything of value in order to realize a profit, is not gambling and shall not be suppressed by any state or local law enforcement officer.

(f) The intentional conducting or assisting in the conducting of gaming operations at the official gaming establishment as defined and authorized in chapter 10 of title 4 of the Louisiana Revised Statutes of 1950 shall not constitute gambling.
(City Code 1951, Title 13, § 20; Ord. No. 9735, § 1, 10-27-93)

Cross references—Members of police department prohibited from gambling, § 4:102; charitable bingo, 9:450 et seq.

State law reference—Similar provisions, R.S. 14:90.

Sec. 13:90.1. Reserved.

Sec. 13:90.2. Gambling in public.

(a) Gambling in public is the aiding or abetting or participation in any game, contest, lottery or contrivance, in any location or place open to the view of the public or the people at large, such as streets, highways, vacant lots, neutral grounds, alleyway, sidewalk, park, beach, parking lot, or condemned structures whereby a person risks the loss of anything of value in order to realize a profit.

(b) This section shall not prohibit activities authorized under the charitable raffles, bingo and keno licensing law, nor shall it apply to bona fide fairs and festivals conducted for charitable purposes.

(c) Whoever commits the crime of gambling in public shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 23)

Sec. 13:90.3. Owner prohibited to rent or let premises for gambling.

(a) It shall be unlawful for any person to knowingly and intentionally rent, let or permit any premises, building, room or place for the purpose of being used as a place to bet, wager, or gamble in any manner whatsoever. A place within the intent of this section, shall be considered as used for gambling if anything of value be bet therein for gambling or wagering.

(b) Whoever rents or lets premises for gambling shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 21)

Sec. 13:91. Unlawful sales of weapons to minors.

(a) Unlawful sales of weapons to minors is the selling or otherwise delivering for value of any firearm or other instrumentality customarily used as a dangerous weapon to any person under the age of eighteen (18). Lack of knowledge of a minor's age shall not be a defense.

(b) Whoever commits the crime of unlawful sales of weapons to minors shall be fined not more than three hundred dollars ($300.00) or imprisoned for not more than six (6) months, or both.
(Ord. No. 10438, § 1, 8-23-95)

Editor's note—Ord. No. 10438, § 1, adopted Aug. 23, 1995, repealed former §§ 13:91—13:91.6 and added new §§ 13:91—13:91.7. Former §§ 13:91—13:91.6 pertained to similar subject matter and derived from the City Code of 1951, Title 13, §§ 616, 617 and Ord. No. 7207, adopted July 13, 1983; Ord. No. 7420, adopted January 25, 1984; Ord. No. 8681, adopted June 22, 1988; Ord. No. 8695, adopted July 27, 1988; and Ord. No. 10200, adopted March 8, 1995.

Sec. 13:91.1. Unlawful sale, purchase, and possession of alcoholic beverages, definitions.

(a) *Purchase* means acquisition by the payment of money or other consideration. Purchase does not include such acquisition for medical purposes either when purchased as over the counter medication or when prescribed or administered by a licensed physician, pharmacist, dentist, nurse, or medical institution.

(b) *Public possession* means the possession of any alcoholic beverage for any reasons, including consumption, on any street or highway or in any public place or any place open to the public, including a club which is de facto open to the public. "Public possession" does not include the following:

(1) The possession or consumption of any alcoholic beverage:

a. For an established religious purpose.

b. When a person under twenty-one (21) years of age and over eighteen (18) years of age is accompanied by a parent, spouse or legal custodian twenty-one (21) years of age or older.

c. For medical purposes when purchased as an over-the-counter medication or when prescribed or administered by a licensed physician, pharmacist, dentist, nurse, hospital, or medical institution.

d. In private residence.

e. By the patrons of the sidewalk cafes in the Downtown Development District as specified in section 15:333(27) of the Baton Rouge Code of Ordinances.

(2) The sale, handling, transport, or service in dispensing of any alcoholic beverage pursuant to lawful ownership of an establishment or to lawful employment of a person under twenty-one (21) years of age by a duly licensed manufacturer, wholesaler, or retailer of beverage alcohol.

(c) *Alcoholic beverage* means beer, distilled spirits and wine containing one-half (½) of one (1) percent or more of alcohol by volume. Beer includes, but is not limited to, ale, lager, porter, stout, sake, and other similar fermented beverages brewed or produced from malt wholly or in part or from any substitute therefor. Distilled spirits include alcohol, ethanol or spirits or wine in any form, including all dilutions and mixtures thereof from whatever process produced.
(Ord. No. 10438, § 1, 8-23-95; Ord. No. 10671, § 1, 8-14-96; Ord. No. 12859, § 1, 2-11-04)

Note—See editor's note, § 13:91.

Sec. 13:91.2. Unlawful sales or serving to persons under twenty-one years of age.

(a) Unlawful sales to persons under twenty-one (21) years of age is the selling or otherwise delivering for value or the serving or dispensing of any alcoholic beverage to any person under twenty-one (21) years of age unless such person is the lawful owner or lawful employee of an establishment to which the sale is being made and is accepting such delivery pursuant to such ownership or employment. Lack of knowledge of the person's age shall not be a defense.

(b) If an employee of a retail dealer, licensed pursuant to Title 9, Chapter 1, Part I of the Baton Rouge Code of Ordinances, violates the provisions of this section, the license holder may also be cited along with the employee if the employee was acting pursuant to the instructions of, or with the knowledge of the retail dealer.

(c) On a first offense violation, the violator shall be subject to a fine of up to seven hundred fifty dollars ($750.00) or imprisonment for up to six (6) months, or both.

(d) On a second offense violation within a twelve-month period, the violator shall be subject to a fine of up to one thousand dollars($1,000.00) or imprisonment for up to six (6) months, or both.
(Ord. No. 10438, § 1, 8-23-95; Ord. No. 10671, § 1, 8-14-96; Ord. No. 12910, §§ 1, 2, 3-24-04)

Note—See editor's note, § 13:91.

Sec. 13:91.3. Purchase and public possession of alcoholic beverages; exceptions; penalties.

(a) It is unlawful for any person under twenty-one (21) years of age to purchase or have public possession of any alcoholic beverage.

(b) (1) Whoever violates the provisions of this section shall be fined not more than one hundred dollars ($100.00) or imprisoned for not more than six (6) months, or both.

(2) Any person apprehended while violating the provisions of this section shall be issued a citation by the apprehending law

enforcement officer, which shall be paid in the same manner as provided for the offenders of traffic violations.

(3) Any person under the age of seventeen (17) apprehended while violating the provisions of this section shall be remanded to the juvenile court.

(Ord. No. 10438, § 1, 8-23-95; Ord. No. 10671, § 1, 8-14-96)

Note—See editor's note, § 13:91.

Sec. 13:91.4. Unlawful purchase of alcoholic beverages by persons on behalf of persons under twenty-one.

(a) It is unlawful for any person, other than a parent, spouse or legal guardian as specified in 13:91.1(b)(1)b., to purchase on behalf of a person under twenty-one (21) years of age any alcoholic beverage.

(b) Whoever violates the provisions of this section shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than thirty (30) days, or both.

(Ord. No. 10438, § 1, 8-23-95; Ord. No. 10671, § 1, 8-14-96)

Note—See editor's note, § 13:91.

Sec. 13:91.5. Unlawful entry into business selling alcoholic beverages by persons under eighteen years of age.

It shall be unlawful for any person under the age of eighteen (18) years to enter or attempt to enter any place wherein alcoholic beverages of either high or low alcoholic content are the principal commodity sold or dispensed, unless the minor is a musician performing in a band on the premises under written contract with the permittee for a specified time period and is under the direct supervision of his parent or guardian during such time. A copy of the written contract shall be provided to the alcoholic beverage control office one week prior to the performance. Anyone over the age of seventeen (17) and under the age of eighteen (18) found guilty of violating this section shall be fined not exceeding two hundred dollars ($200.00) or be imprisoned for not more than sixty (60) days, or both. Anyone under the age of seventeen (17) charged with violations of this section shall be remanded to juvenile court for hearing and disposition of the case.

(Ord. No. 10438, § 1, 8-23-95; Ord. No. 10671, § 1, 8-14-96; Ord. No. 14419, § 1, 5-28-08)

Note—See editor's note, § 13:91.

Sec. 13:91.6. Pictured identification required for purchase of alcoholic beverages.

It shall be unlawful for any person to purchase any alcoholic beverage, either of high or low alcoholic content, unless such person submits any of the following which shows that person to be of lawful age to purchase such alcoholic beverage:

(1) A valid, current, driver's license issued by the State of Louisiana, which contains a photograph of the person presenting the license;

(2) A valid, current, driver's license of another state, which contains a photograph of the person and date of birth of the person submitting the license;

(3) A valid, current, special identification card issued by the State of Louisiana, pursuant to R.S. 40:1321, containing a photograph of the person submitting the identification card;

(4) A valid, current, passport or visa issued by the federal government or another country or nation, that contains a permanently attached photograph of the person and the date of birth of the person submitting the passport or visa; or

(5) A valid, current, military or federal identification card issued by the federal government containing a photo and date of birth of the person submitting the identification card.

Each form of identification above must by its face establish the age of the person to be twenty-one (21) years or older, and there must be no reason to doubt the authenticity or correctness of the identification. No form of the identification mentioned above shall be accepted as proof of age if it is expired, defaced, mutilated, or altered. If the driver's license, state identification card or

lawful identification submitted is a duplicate, the person shall submit additional identification which contains his name, date of birth and photograph. In addition, an educational institution identification card, check cashing identification card or employee identification card shall not be considered as lawful identification for the purposes of this section. This section shall not apply to Class R permit holders or to persons who are obviously of legal age to purchase such alcoholic beverages, but this shall in no way exempt license holders from responsibility of checking for identification when they are not positive or actually know for a fact that the person is of legal age to purchase alcoholic beverages.

Whoever is found guilty of violating the provisions of this section shall be fined not more than two hundred dollars ($200.00) or imprisoned for not more than sixty (60) days, or both.
(Ord. No. 10438, § 1, 8-23-95; Ord. No. 10671, § 1, 8-14-96)

Note—See editor's note, § 13:91.

Sec. 13:91.7. Pictured identification required for entrance to licensed alcoholic beverage outlet.

It shall be unlawful for any person to enter or attempt to enter the premises of a licensed alcoholic beverage outlet where the principal commodity sold is alcoholic beverages unless such person has in his possession and submits a pictured driver's license or other lawful pictured identification that established the person as eighteen (18) years of age or older and there is no reason to doubt the authenticity or correctness of the identification, which lawful pictured identification shall be in the possession of such person and available for inspection upon request while that person remains on the premises, or unless such person is a musician performing in a band on the premises under written contract with the permittee for a specified time period and is under the direct supervision of his parent or guardian during such time. A copy of the written contract shall be provided to the alcoholic beverage control office five (5) days prior to the performance. For the purpose of this section, a pictured lawful identification shall be the same as required in section 13:91.6 except that it shall list the age of the person submitting it as being eighteen (18) years of age or older. This section shall not apply to Class R permit holders or to persons who are obviously of legal age to purchase such alcoholic beverages, but this shall in no way exempt license holders from responsibility of checking for identification when they are not positive or actually know for a fact that the person is of legal age to enter the premises.

Whoever is found guilty of violating the provisions of this section shall be fined not more than two hundred dollars ($200.00) or imprisoned for not more than sixty (60) days, or both.
(Ord. No. 10438, § 1, 8-23-95; Ord. No. 10671, § 1, 8-14-96; Ord. No. 14419, § 2, 5-28-08)

Note—See editor's note, § 13:91.

Sec. 13:91.8. Unlawful consumption of alcoholic beverages by persons under twenty-one years of age.

(A) It is unlawful for any person under twenty-one (21) years of age to consume any alcoholic beverage except:

(1) For an established religious purpose;

(2) When a person eighteen (18), nineteen (19) or twenty (20) years of age consumes alcoholic beverages with the knowledge, presence and consent of a parent or spouse twenty-one (21) years of age or older or legal custodian twenty-one (21) years of age or older;

(3) For medical purposes when purchased as an over-the-counter medication or when prescribed or administered by a licensed physician, pharmacist, dentist, nurse, hospital, or medical institution.

(B) Whoever violates the provisions of this section shall be fined three hundred dollars ($300.00) or imprisoned for not more than six (6) months, or both.
(Ord. No. 12257, § 1, 3-13-02)

Sec. 13:91.9. Misrepresentation of age to obtain alcoholic beverages or gain entry to licensed premises prohibited; penalties.

A. It is unlawful for any person under the age of twenty-one (21) years to present or offer to any person having a license or permit to sell alcoholic

beverages, under Title 26 of the Louisiana Revised Statutes of 1950 or under the wine, beer and liquor ordinance of the city and parish, or to his agent or employee any written, printed, or photostatic evidence of age and identity which is false, fraudulent, or not actually his own for the purpose of obtaining or purchasing alcoholic beverages or attempting to enter the licensed premises.

B. Every establishment which is licensed to sell alcoholic beverages shall post a sign in a conspicuous place at the entranceway to the premises of the establishment advising patrons of the prohibitions and penalties contained within this section.

C. Whoever violates the provisions of this section shall be guilty of a misdemeanor and subject to a fine of up to one thousand dollars ($1,000.00) or imprisonment for up to six (6) months, or both. Each violation shall be a separate offense.

D. As used in this section, "licensed premises" means an establishment licensed under Title 26 of the Louisiana Revised Statutes of 1950 or under the wine, beer and liquor ordinance of the city and parish, where the sale of alcoholic beverages constitutes its main business.
(Ord. No. 12333, § 1, 6-12-02; Ord. No. 12904, § 1, 3-10-04)

Sec. 13:91.10. Violation of wine, beer, and liquor ordinance; penalties.

(a) It is unlawful for any person, firm, corporation or association of persons with the parish to violate any of the provisions of the wine, beer and liquor ordinance.

(b) Whoever violates the provisions of this section shall be guilty of a misdemeanor and subject to a fine of up to one thousand dollars ($1,000.00) or imprisonment for up to six (6) months, or both. Each violation shall be a separate offense.
(Ord. No. 14474, § 1, 8-27-08)

Sec. 13:92. Manufacturing or possession with intent to distribute false or fraudulent identification.

A. It shall be unlawful for any person to manufacture or create any written, printed, or photostatic evidence of age and identity which is false or fraudulent.

B. It shall be unlawful to possess with intent to distribute any written, printed, or photostatic evidence of age and identity which is false or fraudulent.

C. Whoever violates the provisions of this section shall be guilty of a misdemeanor and subject to a fine of up to one thousand dollars ($1,000.00) or imprisonment for up to six (6) months, or both. Each false or fraudulent evidence of age and identity manufactured or possessed shall be a separate offense.
(Ord. No. 12904, § 2, 3-10-04)

Sec. 13:93. Discharge of firearms.

(a) *Shooting of firearms within the city.* It shall be unlawful to shoot or discharge a gun, pistol, revolver, rifle or other firearm within the city except in a regularly established rifle or pistol range built and operated under the proper safety precautions. The prohibition of this section shall not apply to members of the federal, state or municipal government authorized to carry such firearms, when acting within the scope of their authority.

(b) *Discharge of firearms in the parish; definitions; exceptions.*

(1) The discharge of any type pistol or rifle for any purpose by any person within one-half mile of any street, road or house in the parish is hereby prohibited.

(2) The discharge of other types of firearms, including shotguns of any description which may be used for the explosion of cartridges or air gun, BB gun, gas-operated gun or spring gun, for any purpose by any person within five hundred (500) feet of any street, road or house in the parish is hereby prohibited.

(3) The provisions of this subsection shall not be construed so as to prohibit any person from discharging a firearm in the defense of his person, family or property.
(Ord. No. 7421, § 1, 1-25-84)

Sec. 13:94. Reserved.

Editor's note—Section 13:94, relating to illegal use of weapons or dangerous instrumentalities, derived from City

Code 1951, title 13, § 81; Parish Code 1962, title 13, § 200; and Ord. No. 7092, § 1, adopted Mar. 23, 1983, was repealed by § 1 of Ord. No. 9048, adopted Jan. 24, 1990. See R.S. 14:94.

Sec. 13:95. Illegal carrying of weapons.

(a) Illegal carrying of a weapon is:

(1) The intentional concealment of any firearm, or other instrumentality customarily used or intended for probable use as a dangerous weapon, on one's person; or

(2) The ownership, possession, custody or use of any firearm, or other instrumentality customarily used as a dangerous weapon, at any time by an enemy alien; or

(3) The ownership, possession, custody or use of any tools, or dynamite, or nitroglycerine, or explosives, or other instrumentality customarily used by thieves or burglars at any time by any person with the intent to commit a crime; or

(4) The manufacture, ownership, possession, custody or use of any switchblade knife, spring knife or other knife or similar instrument having a blade which may be automatically unfolded or extended from a handle by the manipulation of a button, switch, latch or similar contrivance; or

(5) The intentional possession or use by any person of a dangerous weapon on a school campus during regular schools hours or on a school bus. "School" means any elementary school, secondary school, high school, or vo-tech school; and "campus " means all facilities and property within the boundary of the school property. "School bus" means any motor bus being used to transport children to and from school or in connection with school activities. The provisions of this paragraph shall not apply to (a) a state or local law enforcement officer in the performance of his official duties, or (b) a school official or employee acting during the normal course of his employment, or a student acting under the direction of such school official or employee, or (c) any person having the written permission of the principal or school board and engaged in competition or in marksmanship or safety instruction.

(b) Whoever commits the crime of illegal carrying of weapons shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both. Additionally, the court may order the forfeiture of the weapon in accordance with law.

(c) The provisions of this section except paragraph (4) of subsection (a) shall not apply to sheriffs and their deputies, state and city police, constables and town marshals, or persons vested with police power when in the actual discharge of official duties or, if not actually discharging official duties, when such sheriffs and their deputies and state and city police are full-time, active, and certified by the council on peace officer standards and training and have on their persons valid identifications as duly commissioned law enforcement officers.

(City Code 1951, Title 13, § 80; Ord. No. 9731, §§ 1, 2, 10-27-93)

State law reference—Similar provisions, R.S. 14:95.

Secs. 13:95.1, 13:95.2. Reserved.

Sec. 13:95.3. Possession of weapons where alcoholic beverages are sold and/or consumed.

(a) It shall be unlawful for any person to have in his possession a firearm, or other instrumentality customarily used or intended for probable

use as a dangerous weapon, in any premises where alcoholic beverages are sold and/or consumed on the premises except the owner or lessee of the premises, or their employees, sheriffs, deputy sheriffs, state police, city police, constables, town marshals, or persons vested with police power when in the actual discharge of their duties.

(b) Any sheriff, deputy sheriff, state police, city police, constables, town marshals, or persons vested with police power, may search any person found in any place where alcoholic beverages are sold and/or consumed on the premises, and shall confiscate any firearm or other instrumentality customarily used or intended for probable use as a dangerous weapon which such peace officer may find; this search shall be limited to only weapons, unless there is probable cause for a wider search. Any person who enters a place where alcoholic beverages are sold and/or consumed on the premises does, by the mere fact of entering, consent to a search of his person for any firearm or other instrumentality customarily used or intended for probable use as a dangerous weapon while on said premises, by any sheriff, deputy sheriff, state police, constable, town marshal or persons vested with police power, without a warrant.

(c) The phrase,"...premises where alcoholic beverages are sold and/or consumed on the premises" shall include all of the licensed premises, including the parking lot.

(d) Any gun or other instrumentality customarily used or intended for probable use as a dangerous weapon found on any person while on the premises of a place where alcoholic beverages are sold and consumed may be used as evidence in court.

(e) Whoever commits the crime of possession of a weapon where alcoholic beverages are sold and/or consumed shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both. Additionally, the court may order the forfeiture of the weapon in accordance with law.
(City Code 1951, Title 13, § 83; Parish Code 1962, Title 13, § 205)

Sec. 13:95.4. Possession of firearm on premises of alcoholic beverage outlet.

(a) No person shall intentionally possess a firearm while on the premises of an alcoholic beverage outlet.

(b) *Alcoholic beverage outlet* as used herein means any commercial establishment in which alcoholic beverages of either high or low alcoholic content are sold in individual serving for consumption on the premises, whether or not such sales are a primary or incidental purpose of the business of the establishment.

(c) The provisions of this section shall not apply to the owner or lessee of an alcoholic beverage outlet, or to an employee of such owner or lessee, or to a law enforcement officer or other persons vested with law enforcement authority acting in the performance of his official duty.

(d) Whoever violates the provisions of this section shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months or both.
(Ord. No. 8118, § 1, 3-12-86)
State law reference–Similar provisions, R.S. 14:95.5.

Secs. 13:96–13:100. Reserved.

Sec. 13:101. Desecration of graves.

(a) Desecration of graves is the:

(1) Unauthorized opening of any place of interment, or building wherein the dead body of a human being is located, with the intent to remove or to mutilate the body or any part thereof, or any article interred or intended to be interred with the body; or

(2) Intentional or criminally negligent damaging in any manner, of any grave, tomb or mausoleum erected for the dead.

(b) Whoever commits the crime of desecration of graves shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.
Cross reference–Desecration of cemeteries, § 3:3.
State law reference–Similar provisions, R.S. 14:101.

Sec. 13:102. Reserved.

Sec. 13:103. Disturbing the peace.

(a) Disturbing the peace is the doing of any of the following in such a manner as would foreseeably disturb or alarm the public:

(1) Engaging in a fistic encounter; or

(2) Addressing any offensive, derisive or annoying words to any other person who is lawfully in any street, or other public place; or call him by any offensive or derisive name, or make any noise or exclamation in his presence and hearing with the intent to deride, offend, or annoy him, or to prevent him from pursuing his lawful business, occupation or duty; or

(3) Appearing in an intoxicated condition; or

(4) Engaging in any act in a violent and tumultuous manner by any three (3) or more persons; or

(5) Holding of an unlawful assembly; or

(6) Interruption of any lawful assembly of people.

(b) Whoever commits the crime of disturbing the peace shall be fined not more than one hundred dollars ($100.00) or imprisoned for not more than ninety (90) days, or both.
(City Code 1951, Title 13, § 50; Ord. No. 10199, § 1, 3-8-95)

State law reference—Similar provisions, R.S. 14:103.

Sec. 13:104. Keeping a disorderly place.

(a) Keeping a disorderly place is the intentional maintaining of a place to be used habitually for any illegal purpose.

(b) Whoever commits the crime of keeping a disorderly place shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.
(Code 1951, Title 13, § 51)

State law reference—Similar provisions, R.S. 14:104.

Sec. 13:105. Letting a disorderly place.

(a) Letting a disorderly place is the granting of the right to use any premises knowing that they are to be used as a disorderly place, or allowing the continued use of the premises with such knowledge.

(b) Whoever commits the crime of letting a disorderly place shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.

State law reference—Similar provisions, R.S. 14:105.

Sec. 13:106. Operation of watercraft in no-wake zones.

(a) No person shall operate a motorboat, motor vessel or recreational watercraft on waterways of this parish in such manner or at such a rate of speed as to create a hazardous wake or wash where appropriate signs giving notice thereof are erected. In any location where a sign has been erected reading "Idle-No Wake" or "No-Wake Zone" or language with the same or similar meaning, the maximum speed limit shall be five (5) miles per hour.

(b) *Hazardous wake* means any movement of the water created by a recreational motorboat, motor vessel or other watercraft underway where the movement is executed in such a manner as to endanger the life, limb, or property of any person.
(Ord. No. 9153, § 1, 9-26-90)

Sec. 13:106.1. Profanity prohibited.

(a) It shall be unlawful for any person to use indecent, vile, profane, or blasphemous language which tends to foreseeably cause a breach of the peace on or near the streets, alleys, sidewalks or other places of public resort.

(b) Whoever commits the crime of using profanity shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 40; Parish Code 1962, Title 13, § 150)

Sec. 13:106.2. Urinating in public places prohibited.

(a) It shall be unlawful for any person to urinate on the streets, in the gutters, on the sidewalks, or in alleys, driveways, or other places near the streets, alleys, sidewalks, or other places of public resort.

(b) Whoever commits the crime of urinating in public places shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 42; Parish Code 1962, Title 13, § 153)

Sec. 13:107. Camping in a public area prohibited.

(a) As used in this section, the term:

Camp means the use of a public area for living accommodation purposes for an extended period of time including:

(1) Storing personal belongings;

(2) Making a camp fire;

(3) Using a tent or shelter or other structure for a living accommodation;

(4) Carrying on cooking activities; or

(5) Digging or earth breaking activities.

Public area means any and all streets, the area under a highway overpass, sidewalks, boulevards, alleys or other public ways and any and all public parks, squares, spaces, grounds and buildings.

(b) It shall be unlawful for any person to camp in a public area that is not designated as a camping area by the city-parish.

(c) Unless a police officer determines that there is an imminent health or safety threat, a police officer shall, before citing a person for a violation of this section, make a reasonable effort to:

(1) Advise the person of a lawful alternative place to camp;

(2) Confirm available shelter or housing and advise the person of said availability; and

(3) Contact, if reasonable and appropriate, a city designee who has the authority to offer to transport the person or provide the person with services.

(d) This section does not apply to a person who is:

(1) Permitted to camp or cook in a city-parish park or is otherwise in compliance with park regulations;

(2) In the right-of-way because of a medical emergency;

(3) Operating or patronizing a commercial establishment that conducts business on the sidewalk in compliance with city-parish regulations;

(4) Participating in or viewing a parade, festival, performance, rally, demonstration, or similar event;

(5) Sitting on a chair or bench that is supplied by a public agency or by the abutting private property owner;

(6) Sitting within a bus stop zone while waiting for public or private transportation; or

(7) Waiting in a line for goods, services, or a public event.

(e) Whoever is found guilty of violating the provisions of this section shall be fined not more than twenty-five dollars ($25.00) or sentenced to sixty (60) hours of community service as approved by the court. Second and subsequent offenses in violation of this ordinance, the person may be fined not more than two hundred fifty dollars ($250.00) and/or sentenced to sixty (60) hours of community service. Referral to any available social services may be ordered, at the court's discretion.
(Ord. No. 18606, § 1, 8-24-22)

Editor's note—Ord. No. 12900, § 1, adopted February 25, 2004, repealed former § 13:107 which pertained to vagrancy and derived from the 1951 Code title 13, § 30.

Sec. 13:108. Resisting an officer.

(a) Resisting an officer is the intentional opposition or resistance to, or obstruction of, an individual acting in his official capacity and authorized by law to make a lawful arrest, lawful detention or seizure of property, or to serve any lawful process or court order, when the offender knows or has reason to know that the person arresting, detaining, seizing property, or serving process in acting in his official capacity.

(b) The phrase "obstruction of" as used herein shall, in addition to its common meaning, signification and connotation mean the following:

(1) Flight by one sought to be arrested before the arresting officer can restrain him and after notice is given that he is under arrest;

(2) Any violence toward or any resistance or opposition to the arresting officer after the arrested party is actually placed under arrest and before he is incarcerated in jail;

(3) Refusal by the arrested or detained party to give his name and make his identity known to the arresting or detaining officer or providing false information regarding the identity of such party to the officer;

(4) Congregates with other on a public street and refuses to move on when ordered by the officer.

(c) The word "officer" as used herein means any peace officer, as defined in R.S. 40:2402, and includes deputy sheriffs, municipal police officers, probation and parole officers, firefighters, and wildlife enforcement agents.

(d) Whoever commits the crime of resisting an officer shall be fined not more than five hundred dollars ($500.00) or be imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 70; Ord. No. 9732, § 1, 10-27-93; Ord. No. 11682, § 5, 3-8-00; Ord. No. 15012, § 3, 10-27-10)

Cross reference—Police department, title 4.

State law reference—Similar provisions, R.S. 14:108.

Sec. 13:108.1. Reserved.

Sec. 13:108.2. Interference with constable or police officer, or emergency medical technician or firefighter.

(a) It shall be unlawful for any person to interfere with the constable or any member of the police office or sheriff's office or any emergency medical technician or any firefighter in the discharge of his duties by abuse, force, or threatening language, or in screening from him the object of his search.

(b) Whoever commits the crime of interfering with a constable or police officer or sheriff's deputy or any emergency medical technician or any firefighter shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both.
(Ord. No. 7960, § 2, 8-28-85)

Cross reference—Similar provisions, § 4:52.

Sec. 13:109. Reserved.

Sec. 13:110. Reserved.

Editor's note—Ordinance No. 10198, § 1, adopted March 8, 1995, repealed § 13:110, which pertained to simple escape and derived from City Code 1951, Title 13, § 71.

Sec. 13:110.1. Jumping bail.

(a) Jumping bail is the intentional failure to appear at such time and place as designated by the judge or committing magistrate who has fixed the amount of the bail bond. The fact that no loss shall result to any surety or bondsman is immaterial.

(b) Whoever commits the crime of jumping bail when the bail is to assure the presence of the defendant for those cases defined as misdemeanors in this title, shall be imprisoned for not more than six (6) months, or fined not more than five hundred dollars ($500.00), or both.

State law reference—Similar provisions, R.S. 14:110.1.

Sec. 13:111. Reserved.

Sec. 13:112. False personation.

(a) False personation is the performance of any of the following acts with the intent to injure or defraud, or to obtain or secure any special privilege or advantage:

(1) Impersonating any public officer, or private individual having special authority by law to perform an act affecting the rights or interests of another, or the assuming, without authority, of any uniform or badge by which such officer or person is lawfully distinguished; or

(2) Performing any act purporting to be official in such assumed character.

(b) Whoever commits the crime of false personation shall be fined not more than one hundred dollars ($100.00), or imprisoned for not more than ninety (90) days, or both.
(City Code 1951, Title 13, § 72)

State law reference—Similar provisions, R.S. 14:112.

Secs. 13:113—13:132. Reserved.

Sec. 13:133. Misrepresentation during booking.

(a) Misrepresentation during booking is the misrepresentation of, or refusal by a person being booked to provide his name, age, sex, residence, or social security number to any law enforcement officer or official who is booking him pursuant to a lawful arrest, or the refusal of such person to submit to fingerprinting or photographing.

(b) Whoever commits the crime of misrepresentation during booking shall be imprisoned for not more than six (6) months, provided that any such sentence shall be made to run concurrently with any other sentence.

State law reference—Similar provisions, R.S. 14:133.2.

Sec. 13:134. Misrepresentation of age to gain entry to the licensed gaming premises of a riverboat casino prohibited.

(a) It shall be unlawful for any person under the age of twenty-one (21) years to enter, attempt to enter, or be present in a licensed riverboat gaming facility docked in East Baton Rouge Parish.

(b) It shall be unlawful for any person under the age of twenty-one (21) years to present or offer to any riverboat casino docked in East Baton Rouge Parish, or to its agents or employees any written, printed, or photostatic evidence of age and identity which is false, fraudulent or not actually his or her own for the purpose of entering a licensed riverboat gaming facility docked in East Baton Rouge Parish.

(c) Whoever violates the provisions of this section shall be fined as follows:

(1) For the first violation, a fine of no less than two hundred fifty dollars ($250.00) and up to five hundred dollars ($500.00) and imprisonment of up to ten (10) days;

(2) For the second and subsequent violations, a fine of no less than five hundred dollars ($500.00) and up to one thousand dollars ($1,000.00) and imprisonment for up to thirty (30) days.

(Ord. No. 11244, § 1, 10-14-98)

Secs. 13:135—13:204. Reserved.

Sec. 13:205. Reserved.

Editor's note—Section 13:205 was repealed by Ord. No. 9669, § 1, adopted Aug. 11, 1993. The section related to stalking and was derived from Ord. No. 9615, § 1, adopted Apr. 28, 1993. See now § 13:40.2.

Secs. 13:206—13:215. Reserved.

Sec. 13:215.1. Conduct within courtroom designated areas.

(a) These rules and regulations apply to all courtroom designated areas under the charge and control of the city-parish government, and to all persons entering or upon such property. These designated areas shall include the city court facility, and floors 6, 7, 8 and 9 of the East Baton Rouge Parish Governmental Building. Each senior judge shall be responsible for the observance of these rules and regulations.

(b) Packages, briefcases, and other containers brought into, while on, or being removed from the designated areas are subject to inspection. A full search of a person may accompany an arrest.

(c) No person entering or while in the designated areas shall carry or possess firearms, other dangerous or deadly weapons, explosives, or items intended to be used to fabricate an explosive or incendiary device, either openly or concealed, except for official and authorized purposes.

(d) Whoever is found guilty of a violation of this section shall be fined not more than five hundred dollars ($500.00) or imprisoned in the jail for not more than six (6) months, or both.
(Ord. No. 8173, 7-9-86)

Secs. 13:216—13:283. Reserved.

Sec. 13:284. Peeping tom.

(a) No person shall perform such acts as will make him a "peeping tom" on or about the premises of another, or go upon the premises of another for the purpose of becoming a "peeping tom."

(b) "Peeping tom" as used in this section means one who peeps through windows or doors, or other like places, situated on or about the premises of another for the purpose of spying upon or invading the privacy of persons spied upon without the consent of the persons spied upon. It is not a necessary element of this offense that the "peeping tom" be upon the premises of the person being spied upon.

(c) Whoever violates this section shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.
(City Code 1951, Title 13, § 44)

State law reference—Similar provisions, R.S. 14:284.

Sec. 13:285. Improper telephone communications.

(a) No person shall:

(1) Engage in or institute a telephone call, telephone conversation, or telephone conference, with another person, or use any telecommunication device to send any text message or other message to another person directly, anonymously or otherwise, and therein use obscene, profane, vulgar, lewd, lascivious, or indecent language, or make any suggestion or proposal of an obscene nature or threaten any illegal or immoral act with the intent to coerce, intimidate, or harass another person.

(2) Make repeated telephone communications or send repeated text messages or other messages using any telecommunications device directly to a person anonymously or otherwise in a manner reasonably expected to annoy, abuse, torment, harass, embarrass, or offend another, whether or not conversation ensues.

(3) Make a telephone call and intentionally fail to hang up or disengage the connection.

(4) Engage in a telephone call, conference, or recorded communication by using obscene language, when by making a graphic description of a sexual act, or use any telecommunications device to send any text message or other message containing obscene language or any obscene content, anonymously or otherwise, directly to another person, when the offender knows or reasonably should know that such obscene or graphic language is directed to, or will be heard by, a minor. Lack of knowledge of age shall not constitute a defense.

(5) Knowingly permit any telephone under his control to be used for any purpose prohibited by this section.

(b) Any offense committed by use of a telephone as set forth in this section shall be deemed to have been committed at either the place where the telephone call or calls originated or at the place where the telephone call or calls were received.

(c) Whoever violates the provisions of this section shall be fined not more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months.
(Ord. No. 11682, § 6, 3-8-00; Ord. No. 18787, § 1, 3-22-23)

Secs. 13:286—13:499. Reserved.

Sec. 13:500. Transporting prisoners in elevators in the Governmental Building.

The use of elevators in the Governmental Building for transporting prisoners, except in that elevator designed for that express purpose, is prohibited.
(Ord. No. 7125, 5-11-83)

Sec. 13:501. Reserved.

Sec. 13:502. Use of laser pointers.

(a) It shall be unlawful to aim a laser pointer beam or light at another person without that person's consent.

(b) All laser pointers which are used in violation of this ordinance shall be confiscated. Upon conviction, the violator shall be fined up to five hundred ($500.00) dollars, or be imprisoned for up to six (6) months, or both.
(Ord. No. 11139, § 1, 5-13-98)

Secs. 13:503—13:965. Reserved.

Sec. 13:966. Possession of marijuana.

(a) It shall be unlawful for any person to knowingly and intentionally possess marijuana, tetrahydrocannabinol or chemical derivatives thereof, or synthetic cannabinoids, on their person or in the passenger area of their motor vehicle.

(b) "Marijuana" means all parts of plants of the genus Cannabis, whether, growing or not; the seeds thereof; the resin extracted from any part of such plant; and every compound, manufacture, salt, derivative, mixture or preparation of such plant, its seeds or resin, but shall not include the mature stalks of such plant, fiber produced from such stalks, oil or cake made from the seeds of such plant, any other compound, manufacture, salt, derivative, mixture, or preparation of such mature stalks (except the resin extracted therefrom), fiber, oil, or cake, or the sterilized seed of such plant which is incapable of germination.

(c) "Synthetic cannabinoids" means vegetable matter treated with a detectable quantity of a chemical compound designed or produced to simulate the effects of tetrahydrocannabinol in humans, including but not limited to:

(1) JWH-018 (1-pentyl-3-(1-naphthoyl)indole);

(2) JWH-073 (naphthalen-1-yl-(1-butylindol-3-yl)methanone);

(3) JWH-200 (WIN 55,225) (1-(2-morpholin-4-ylethyl)indol-3-yl)-naphthalen-1-yl-methanone;

(4) CP 47, 4972-((1R, 3S)-3-hydroxycyclohexyl) - 5-(2-methyloctan-2-yl)phenol, also known as Cannabicyclohexanol (CP 47,497 dimethyloctyl homologue, (C8)-CP 47,497), and its homologues, whether dimethylhexyl, dimethyloctyl, or dimethylnonyl, to include its C6, C7, C8, and C9 homologues.

(5) HU-210 (6aR,10aR)- 9-(Hydroxymethyl) - 6,6-dimethyl- 3-(2-methyloctan-2-yl) - 6a,7,10,10a-tetrahydrobenzo (c)chromen-1-ol.

(d) Whoever violates the provisions of this section shall not be taken into custody by the arresting officer, but instead shall be required either to deposit his driver's license with the arresting officer or give his written promise to appear.

(e) Whoever is found guilty of possession of marijuana, tetrahydrocannabinol, or chemical derivatives shall be punished as follows:

(1) Upon a first conviction for a violation in this section, wherein the offender possesses fourteen (14) grams or less, the offender shall be fined not more than forty dollars ($40.00).

(2) Upon a second conviction for a violation in this section, wherein the offender pos-

sesses fourteen (14) grams or less, the offender shall be fined not more than sixty dollars ($60.00).

(3) Upon a third conviction for a violation in this section, wherein the offender possesses fourteen (14) grams or less, the offender shall be fined not more than eighty dollars ($80.00).

(4) Upon a fourth or subsequent conviction for a violation in this section, wherein the offender possesses fourteen (14) grams or less, the offender shall be fined not more than one hundred dollars ($100.00).

(5) A conviction for a violation in this section, wherein the offender possesses more than fourteen (14) grams, the offender shall be fined not more than five hundred dollars ($500.00), imprisoned in the parish jail for not more than six (6) months, or both.

(f) Whoever is found guilty of possession of synthetic cannabinoids shall be fined not more than five hundred dollars ($500.00), imprisoned for not more than six (6) months, or both.

(g) Any person who has been sentenced under the provisions of this section, shall not have the conviction used as a predicate conviction for enhancement purposes as a habitual offender.
(Ord. No. 15100, § 1, 3-9-11; Ord. No. 16208, § 1, 3-23-16; Ord. No. 16757, § 1, 2-28-18)

State law reference—Marijuana defined, R.S. 40:961(22).

Secs. 13:967—13:100. Reserved.

Sec. 13:1001. Reserved.

Editor's note—Section 13:1001, prohibiting littering, derived from City Code 1951, title 13, § 45.9, was repealed by § 12 of Ord. No. 9340, adopted Sept. 25, 1991.

Sec. 13:1002. Obstruction of fire prevention.

(a) It shall be unlawful to interfere with fire prevention by the intentional performance of any of the following acts:

(1) Defacing or destroying fire warning notices or posters;

(2) Injuring, destroying, removing or in any manner interfering with the use of any tools, equipment, towers, buildings or telephone lines used in the detection, reporting or suppression of fire.

(b) Whoever is found guilty of committing these acts shall be fined not more than five hundred dollars ($500.00), imprisoned in the parish jail for not more than six (6) months, or both.
(City Code 1951, Title 13, § 63)

Cross reference—Fire protection, title 5.

Secs. 13:1003, 13:1004. Reserved.

Editor's note—Section 13:1003, prohibiting false alarms, derived from City Code 1951, title 13, § 73, and § 13:1004, prohibiting false reports of crime, derived from City Code 1951, title 13, § 74, were both repealed by § 1 of Ord. No. 8118, adopted Mar. 12, 1986.

Sec. 13:1005. Possession or sale of pyrotechnics.

(a) The term "pyrotechnics," whenever used in this section, shall be held to mean any sparkler, squib, rocket, firecracker, roman candle, signal lights, fireworks, or other devices or composition used to obtain visible and audible pyrotechnic display.

(b) It shall be unlawful for any person to have, keep, store, use, manufacture, offer to sell, handle or transport any pyrotechnics within the city-parish, except as provided in section (c), it being the intention of this section to prohibit the sale of, distribution of, or discharge of pyrotechnics of any kind or description whatsoever within the city-parish.

(c) Nothing in this section shall be held to apply:

(1) To the possession or use of signaling devices for current daily consumption by railroads, trucks or vessels requiring them;

(2) To pyrotechnic display of fireworks in public parks or other open places, where a permit for such display has been issued by the chief of police or sheriff, but before such permits are issued by the chief of police or sheriff, he shall have determined that provisions have been made for the

proper safeguarding of life and property, and he shall further provide proper police protection in connection with any authorized display;

(3) To the possession, sale or use of normal stacks of flashlight compositions by photographers or dealers in photographic supplies.

(d) Whoever is found guilty of possession or sale of pyrotechnics shall be fined not more than five hundred dollars ($500.00), imprisoned in the jail for not more than six (6) months, or both.
(City Code 1951, Title 13, §§ 90—92; Parish Code 1962, Title 13, §§ 350—352; Ord. No. 9746, § 1, 11-10-93; Ord. No. 13815, § 1, 11-21-06)

State law reference—Fireworks generally, R.S. 51:650 et seq.

Sec. 13:1006. Excavations.

(a) It shall be unlawful to make any excavations below the adjacent street level for the purpose of removing dirt, sand, gravel or any other substances in the soil of any premises for commercial purposes within the city-parish without having first enclosed the area to be excavated with a close wire mesh fence, having openings not to exceed two (2) inches, measured horizontally, and four (4) inches vertically and not less than number eleven (11) gauge, erected to a height not less than five (5) feet, topped with at least two (2) strands of barbed wire, which fence shall be erected prior to the commencement of any excavation and upon completion of the excavation shall be maintained by the property owner in a suitable condition in the event that it is impracticable to fill the excavation; except that where the excavation results merely in the officially approved widening of a drainage ditch, natural stream, river, bayou or lake, the fence required to be erected prior to commencement of excavation operations may be removed upon completion of the operations.

(1) Any excavation for the purpose of removing dirt, sand, gravel or any other substances in the soil of any premises for commercial purposes within the city-parish shall be conducted only on such property and in such area so as to allow and maintain a two-hundred-foot distance from the nearest edge of such excavation to the nearest property line of any residence or recognized residential subdivision.

(b) All owners of property on which excavations, resulting from the digging of dirt, sand or gravel for commercial purposes, are now located and on which operations have been completed or abandoned, shall within fifteen (15) days of the adoption of this section, have either filled the excavation or if such filling is impracticable, have erected a fence in compliance with subsection (a). In the interim fifteen (15) day period prior to erection of such fence, the owner shall provide a watchman at the site twenty-four (24) hours a day.

(c) This section shall not apply to excavations which are necessary to the erection, construction or alteration of a foundation for a building on the premises after a building permit has been issued, or to improvements placed upon the property for the purpose of beautifying and improving same, or to public improvements.

(d) Whoever is found guilty of unlawful excavations shall be fined not more than five hundred dollars ($500.00), imprisoned in the parish jail for not more than six (6) months, or both.
(City Code 1951, Title 13, § 100; Parish Code 1962, Title 13, § 400; Ord. No. 8764, 10-12-88)

Sec. 13.1006A. Ponds.

It shall be unlawful to construct a pond within the parish without first obtaining written approval from the department of public works. Such approval shall be granted if the department of public works determines that:

(1) The spoil is to be placed in such manner that does not negatively affect drainage on adjacent properties;

(2) If the spoil is not to be placed permanently on site, it must be placed in an area outside the flood plain unless the department of public works approves other placement;

(3) The pond will not be located within a public servitude;

(4) An approved storm water pollution prevention plan will be in place with regard to excavations and disturbed areas where pond construction is taking place.

The department will establish a date upon which the construction is to be concluded. Said date is to be based upon the size of the pond and any difficulties anticipated during construction. If the pond cannot be finished within the time allowed, the department may grant not more than six (6) extensions of thirty (30) days each.

Those ponds under construction but not yet completed upon the effective date of this section may continue construction provided the owner obtains a completion date from the department of public works as provided herein.

This section shall not apply to ponds to be constructed upon tracts of land greater than five (5) acres which are zoned "rural" and are not located within a recognized subdivision.

It shall be a violation of this section to fail to complete construction of a pond within the delays established by the department of public works, including all extensions granted.

Whoever violates the provisions of this section shall be fined not more than five hundred dollars ($500.00) or imprisoned in the parish jail for not more than thirty (30) days, or both. Each day the violation continues shall constitute a separate offense.
(Ord. No. 15227, 11-22-11; Ord. No. 15274, § 1, 3-14-12)

Sec. 13:1007. Riding on moving railroad stock.

(a) It shall be unlawful for any person, other than employees or duly authorized representatives of railroad companies, to catch or hang onto, or ride on the outside of any locomotive or railroad care while in motion within the city-parish.

(b) Whoever is found guilty of riding on moving railroad stock shall be fined not more than five hundred dollars ($500.00), imprisoned in the parish jail for not more than six (6) months, or both.
(City Code 1951, Title 13, § 101)

Cross reference—Railroads generally, § 10:1 et seq.

Sec. 13:1008. Bathing nude.

(a) It shall be unlawful to bathe in any public pool, pond, lake, river or other body of water in a state of nudity.

(b) Whoever is found guilty of bathing nude shall be fined not more than five hundred dollars ($500.00), imprisoned in the parish jail for not more than six (6) months, or both.
(City Code 1951, Title 13, § 103)

Cross reference—Bathing prohibited in Capital Lake, § 3:52.

Sec. 13:1009. Abandoning iceboxes and refrigerators.

(a) It shall be unlawful for any person to leave outside of any building or dwelling in a place accessible to children any abandoned, unattended or discarded icebox, refrigerator or any other container of any kind which has an airtight snap lock, door, hinge, or other device thereon without first removing the said snap lock, doors, hinges and other devices from the icebox, refrigerator or container.

(b) Whoever is found guilty of abandoning iceboxes and refrigerators shall be fined not more than five hundred dollars ($500.00), imprisoned in the jail for not more than six (6) months, or both.
(City Code 1951, Title 13, § 104; Parish Code 1962, Title 13, § 104)

State law reference—Similar provisions, R.S. 14:324.

Sec. 13:1010. Possession of alcoholic beverages at BREC parks and facilities prohibited.

(a) The possession of alcoholic beverages at parks, playgrounds, recreational areas and facilities owned and/or operated by the recreation and parks commission is hereby declared to be unlawful, except for publicly owned recreational facilities which are licensed for the sale and consumption of alcohol through the alcoholic beverage control office.

In addition to the penalties prescribed for violations of this title, members of the police department, sheriff's deputies, or other authorized police personnel are authorized to immediately confiscate any alcoholic beverages found on any person at any of the public facilities designated in this section.

(b) Whoever is found guilty of possession of alcoholic beverages at BREC parks and/or facilities as defined herein shall be fined not more than five hundred dollars ($500.00), imprisoned in the jail for not more than six (6) months, or both.
(City Code 1951, Title 13, § 106; Parish Code 1962, Title 13, § 416; Ord. No. 9080, § 1, 4-25-90; Ord. No. 9262, § 1, 5-27-91; Ord. No. 10132, § 1, 12-14-94; Ord. No. 12055, § 1, 6-27-01; Ord. No. 15469, § 5, 3-27-13)

Cross reference—Parks and recreation generally, title 3.

Sec. 13:1011. Possession of firearms at BREC parks.

(a) It shall be unlawful for any person to have in his possession a firearm, pellet gun, BB gun or other instrumentality customarily used or in-

tended for probable use as a dangerous weapon on property comprising parks, playgrounds, recreational areas or facilities owned or operated by the recreation and parks commission.

(b) Whoever violates the provisions of this section shall be fined not more than five hundred dollars ($500.00), imprisoned in the jail for not more than six (6) months, or both.
(City Code 1951, Title 13, § 107; Parish Code 1962, Title 13, § 417)

Cross references—Parks and recreation generally, title 3; discharge of firearms on Capitol Lake prohibited, § 3:51.

Sec. 13:1012. Spitting in public places.

(a) It shall be unlawful for any person to expectorate or spit upon any sidewalk or on any hall, stairway or floor of any public building or conveyance.

(b) Whoever violates the provisions of this section shall be fined not more than five hundred dollars ($500.00), imprisoned in the jail for not more than six (6) months, or both.
(City Code 1951, Title 13, § 108)

Sec. 13:1013. Sale of tobacco to persons under eighteen years of age prohibited; exception.

(a) It shall be unlawful to sell, barter or exchange by wholesale or retail tobacco in the form of cigarettes, cigars or any other form to any person under the age of eighteen (18) years.

(b) It shall be unlawful to sell, barter or exchange by wholesale or retail paper products designed to roll or form cigarettes of any type to any person under the age of eighteen (18) years.

(c) The provisions hereof shall not apply to the sales of tobacco to minors engaged in business as merchants for the purpose of resale of same.

(d) Any person violating the provisions of subsection (a) and (b) shall be guilty of a misdemeanor and, on conviction thereof, shall be punished by fine of not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00) or by imprisonment for a term not to exceed sixty (60) days, or both, in the discretion of the court.
(City Code 1951, Title 13, § 200; Parish Code 1962, Title 13, §§ 424—426; Ord. No. 9611, § 1, 4-28-93)

Sec. 13:1014. Smoking prohibited.

(a) "Smoking" is defined as the possession of any lighted products, the fumes of which may be inhaled by any person.

(b) It shall be unlawful for any person to be smoking, either by pipe, cigarette or cigar, any tobacco or any other substitute in the following areas:

(1) In buses traveling the streets of the city, the services of which are available to the public upon the payment of a fare;

(2) In elevators or stairwells located in buildings owned or controlled by the city-parish;

(3) In those buildings of the Centroplex located at 275 South River Road in Baton Rouge known as the Arena, Exhibit Hall and Theatre; provided, however, that this subsection shall not apply under the following circumstances:

a. Smoking within the office and concourse areas;

b. Smoking during a function for which a permit authorizing smoking has been granted by the chiefs of the police and fire departments.

(4) In the Baton Rouge Metropolitan Airport Terminal Building; provided that this subsection shall not apply to smoking within office areas.

(c) Whoever is found guilty of a violation of this section shall be fined not more than five hundred dollars ($500.00) and imprisoned in the jail for not more than six (6) months, or both.
(City Code 1951, Title 13, §§ 201, 204, 800; Ord. No. 10013, § 1, 8-24-94)

Sec. 13:1015. Truants.

(a) Any child between the ages of seven (7) and fifteen (15) years found in or on any public street or public place, or in or on any private commercial establishment during regular school hours on regular school days is hereby declared to be truant and shall be dealt with in accordance with the provisions of this section.

(b) Any police officer, sheriff's deputy, constable, or state police officer discovering, finding or becoming aware of, any truant child as defined in subsection (a), shall deliver the child in one of the following manners:

(1) To the custody of the principal of the school to which the truant child is assigned and/or required to attend;

(2) To the custody of the parent or guardian of the child, in which event the law enforcement officer making such delivery shall notify the principal of the school as soon as possible;

(3) To the custody of the family court if the truant child refuses to provide the authorities with the necessary information concerning his identity, his school and the identity of his parents;

(4) To the custody of the police truancy action center as designated by the chief of police.

(City Code 1951, Title 13, §§ 250, 251; Parish Code 1962, Title 13, §§ 250, 251)

Sec. 13:1016. Reserved.

Editor's note—Ord. No. 15309, § 1, adopted May 9, 2012, amended the Code by repealing former § 13:1016 in its entirety. Former § 13:1016 pertained to registration of felons, and derived from the City Code of 1951, Title 13, §§ 300—305; and the Parish Code of 1962, Title 13, §§ 435, 436.

Sec. 13:1017. Possession of hypodermic needles and syringes.

(a) Subject to the exception in subsection (b) of this section, it shall be unlawful for any person to have in his possession a hypodermic syringe, hypodermic needle or any instrument adapted for the use of narcotic drugs by parenteral administration. No such syringe, needle or instrument shall be delivered, sold or exchanged with any person except the persons specified in this section.

(b) Exceptions. The provisions of the prohibition in subsection (a) of this section shall not apply to a dentist, funeral director, physician, podiatrist, nurse or veterinarian, registered or licensed under the laws of this state or the state where he resides or a manufacturer or dealer in embalming supplies, wholesale druggist, manufacturing pharmacist, pharmacist, manufacturer of surgical instruments, official of any government having the articles mentioned in this section by reason of his official duties, employee of an incorporated hospital acting under official direction, or a carrier or messenger engaged in the transportation of such articles as an agent of the above-mentioned persons, employees of scientific research laboratories, employees of an agency or organization duly authorized by the state board of pharmacy, a person who has received a written prescription issued under subsection (c) of this section, or persons acting as employees or volunteers of an organization, including a nonprofit community-based organization, local health department provides needle and syringe exchange services to prevent and reduce the transmission of communicable diseases, as defined in subsection (d) of this section.

(c) A licensed physician, dentist, podiatrist, osteopath or veterinarian may issue to a patient under his immediate charge a written prescription to purchase any of these instruments specified in subsection (a) of this section. The health department shall, by regulation, prescribe a form prescription that the physician shall use and the records and information that shall be kept by the physician and the pharmacist filling such prescription.

(d) For the purposes of this section, persons acting as employees or volunteers of an organization, including a nonprofit community-based organization, local health department that provides needle and syringe exchange services to prevent and reduce the transmission of communicable diseases shall mean any governmental or nongovernmental entity, including a local or district health department or an organization

that promotes scientifically proven ways of mitigating health risks associated with drug use and other high-risk behaviors.

(1) The objectives of such program shall include the following:

a. Reduce the spread of HIV, AIDS, viral hepatitis, and other blood-borne diseases in the city.

b. Reduce needle stick injuries to law enforcement officers and other emergency personnel.

(2) Programs established pursuant to this section may offer all of the following:

a. Disposal of used needles and hypodermic syringes.

b. Needles, hypodermic syringes, and other drug use supplies in quantities sufficient to ensure that needles, hypodermic syringes, and other drug use supplies are not shared or reused.

c. Educational materials on all of the following:

i. Overdose prevention.

ii. The prevention of HIV, AIDS, and viral hepatitis transmission.

iii. Drug abuse prevention.

iv. Treatment for mental illness, including treatment referrals.

v. Treatment for substance abuse, including referrals for medication assisted treatment.

d. Access to naloxone kits that contain naloxone hydrochloride that is approved by the federal Food and Drug Administration for the treatment of a drug overdose.

(3) Supplies and materials distributed by a program pursuant to this section shall be distributed at no cost.

(e) Whoever is found guilty of a violation of this section shall be fined not more than five hundred dollars ($500.00) or imprisoned in the jail for not more than six (6) months, or both. (Code, 1951, Title 13, §§ 403, 404; Parish Code 1962, Title 13, §§ 53, 54; Ord. No. 16684, § 1, 11-8-17)

Sec. 13:1018. Public drinking prohibited.

(a) Public drinking is the imbibing or drinking of alcoholic beverages, as hereinafter defined, in or on any public street, alley, sidewalk, right-of-way, park, playground, square, unenclosed public place in the city-parish, or within any area designated and posted by the city-parish alcoholic beverage control director or his/her designee as an "alcohol-free zone" during public events permitted by the city-parish.

(b) *Alcoholic beverage* is defined as beer, porter, ale, fruit juices or wine, of an alcoholic content not exceeding that now or hereafter permitted by law, but greater than one-half of one percent of alcohol by volume, or any malt, vinous, spirituous, alcoholic or intoxicating liquors containing more than six (6) percent of alcohol by volume.

(c) It shall be unlawful for any person to drink any alcoholic beverage, as defined herein, in or upon any public street, alley, sidewalk, right-of-way, park, playground, square, unenclosed public place in the city-parish, or within any area designated and posted by the city-parish alcoholic beverage control director or his/her designee as an "alcohol-free zone" during public events permitted by the city-parish. However, the provisions of this section may be waived by the council for good cause.

(d) It shall be unlawful for any person to carry an opened glass or paper container, drinking glass or opened metal container containing any alcoholic beverage, as defined herein, or to drink any such alcoholic beverage from any opened glass or paper container, drinking glass or opened metal container, in or on any public street, sidewalk, right-of-way, park, playground, square, unenclosed public place in the city-parish, or within any area designated and posted by the city-parish alcoholic beverage control director or his/her designee as an "alcohol-free

zone" during public events permitted by the city-parish. However, the provisions of this section may be waived by the council for good cause.

(e) It shall be unlawful for any person to possess any opened drinking containers containing alcoholic beverages, as defined herein, in or upon the parking lot or other property belonging to or adjacent to any licensed premises as defined in title 9 of this Code. However, the provisions of this section may be waived by the council for good cause.

(f) It shall be unlawful for any person under the age of twenty-one (21) to possess any alcoholic beverage, as defined herein, in public or in private premises open to the public except as exempted by law.

(g) For the purpose of discouraging public drinking, it shall be unlawful for any person to remove an open container containing alcoholic beverages, as defined herein, from any business, lounge, restaurant or establishment which is licensed under the provisions of title 9 of this Code.

(h) It shall be unlawful for any person to fail or refuse to leave any premises licensed to sell alcoholic beverages under title 9 of this Code after being told to do so by the owner, manager, or any employee thereof. For purposes of this section, the premises shall include the entire property owned or under control of the licensee, including the parking area.

(i) It shall be unlawful for any person to expose their genitals, pubic hair, anus, vulva, or female breast nipples in any premises licensed to sell alcoholic beverages under title 9 of this Code.

(j) It shall be unlawful for any person employed as a bartender, waiter, waitress, or go-go dancer at any premises licensed to dispense alcoholic beverages under title 9 of this Code to drink or consume any alcoholic beverages on the premises at any time, except that this section shall not apply to employees of premises licensed as class R under title 9 of this Code.

(k) It shall be unlawful for any person to possess any alcoholic beverage of high or low alcoholic content in those buildings of the Baton Rouge River Center located at 275 South River Road in Baton Rouge known as the Arena, Exhibit Hall and Theatre.

(l) The provisions of this section shall not apply to the possession of alcoholic beverages sold to any person by the Baton Rouge River Center, its agents, or employees, except in the case of "alcohol-free zones," wherein alcohol is absolutely prohibited.

(m) The provisions of this section prohibiting public drinking shall not apply to patrons of sidewalk cafes in the downtown development district as specified in subsection 15:333(27) of this Code.

(n) The provisions of this section shall not apply during any event for which a written permit authorizing alcohol has been obtained from the director of the Baton Rouge River Center, except in the case of "alcohol-free zones," wherein alcohol is absolutely prohibited.

(o) The provisions of this section shall not apply to patrons of commercial pedal carriages as specified in section 10:509.

(p) Whoever is found guilty of a violation of this section shall be fined not more than five hundred dollars ($500.00) or imprisoned in the jail for not more than six (6) months, or both.

(q) Whoever is found guilty of a violation of this section, committed within five hundred (500) feet of any public or private school property, as hereinafter defined, shall be fined not more than five hundred dollars ($500.00) and imprisoned in jail for not less than five (5) days nor more than six (6) months. Imposition or execution of sentence shall not be suspended unless:

(1) The offender is placed on probation with a minimum condition that he serve two (2) days in jail and participate in a court-approved substance abuse program; or

(2) The offender is placed on probation with a minimum condition that he perform two (2) eight-hour days of court-approved

community service activities and participate in a court-approved substance abuse program.

For purposes of this provision, "school" does not include business colleges or schools nor state colleges or universities.

"School property" means all property used for school purposes, including but not limited to school playgrounds, buildings, and parking lots. For purposes of this section, "park, playground, square, unenclosed public place in the city-parish" does not include the designated service areas or restaurant facilities at publicly owned recreational facilities which are licensed for the sale and/or consumption of alcohol through the alcoholic beverage control office.

This provision shall not apply to individuals participating in a school function for which the proper permit has been obtained from the alcoholic beverage control office, except in the case of "alcohol-free zones," wherein alcohol is absolutely prohibited.

(City Code 1951, Title 13, §§ 607—615, 617; Ord. No. 7389, § 1, 12-24-83; Ord. No. 7800, § 1, 2-27-85; Ord. No. 9805, § 1, 1-12-94; Ord. No. 10438, § 2, 8-23-95; Ord. No. 12724, §§ 1—6, 8-25-03; Ord. No. 12859, § 2, 2-11-04; Ord. No. 15469, § 6, 3-27-13; Ord. No. 18260, § 1, 9-22-21)

Editor's note—The provisions of former subsections (k) and (l) of this section are now given in § 13:1018.1.

Sec. 13:1018.1. Drinking in a motor vehicle.

(a) It shall be unlawful for any person to drink, consume or be in possession of an alcoholic beverage while operating, or while riding as a passenger in, any private motor vehicle when such vehicle is upon a public road.

(b) It shall be unlawful for any operator of any motor vehicle or any passenger in any motor vehicle to drink, consume or be in possession of any bottle, container or receptacle containing alcoholic beverages which has been opened or the seal of a licensed manufacturer has been broken, or the contents of which have been exposed to the air, except when such bottle, receptacle or container shall be kept in the trunk of the motor vehicle when such vehicle is equipped with a trunk, or kept in some other area of the vehicle not normally occupied by the driver or passengers in the event that the motor vehicle is not equipped with a trunk. A utility compartment or glove compartment shall be deemed to be within the area occupied by the driver or passengers. If the motor vehicle does not have a trunk, it is permissible to have an opened alcoholic beverage in the locked glove compartment.

(c) The provisions of this section do not apply to any of the following:

(1) A person operating or occupying a motor vehicle who, as a condition of employment and while acting in the course and scope of such employment, is required to carry alcoholic beverage containers, provided that neither the operator nor any passenger consumes any of the alcoholic beverages.

(2) A paid fare passenger on a common carrier or contract carrier motor vehicle.

(3) A passenger in a self-contained motor home, who is not consuming alcohol in the front passenger compartment.

(d) On a first conviction, the offender shall be fined not less than one hundred twenty-five dollars ($125.00) and imprisoned for not less than ten (10) days nor more than six (6) months. Imposition or execution of sentence shall not suspend unless:

(1) The offender is placed on probation with a minimum condition that he serve two (2) days in jail and participate in a court-approved substance abuse program and participate in a court-approved driver improvement program; or

(2) The offender is placed on probation with a minimum condition that he perform four (4) eight-hour days of court-approved community service activities, participate in a court-approved substance abuse program and participate in a court-approved driver improvement program.

(City Code 1951, §§ 607—615, 619; Ord. No. 7389, § 1, 12-14-83; Ord. No. 7800, § 1, 2-27-85; Ord. No. 9978, § 1, 7-27-94)

Editor's note—The provisions of this section were formerly contained in subsections (k) and (l) of § 13.1018.

Sec. 13:1019. Drug paraphernalia prohibited.

(a) *Definitions.* As used in this section, unless the context clearly otherwise indicates, the term "drug paraphernalia" shall mean and include, but not be limited to:

(1) All equipment, products, and materials of any kind which are used, intended for use, or designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, ingesting, inhaling, or otherwise introducing into the human body a controlled substance in violation of the Uniform Controlled Dangerous Substances Law, as scheduled in R.S. 40:964.

(2) Kits used, intended for use, or designed for use in planting, propagating, cultivating, growing, or harvesting of any species of plant which is a controlled substance or from which a controlled substance can be derived.

(3) Kits used, intended for use, or designed for use in manufacturing, compounding, converting, producing, processing, or preparing controlled substances.

(4) Isomerization devices used, intended for use, or designed for use in increasing the potency of any species of plant which is a controlled substance.

(5) Testing equipment used, intended for use, or designed for use in identifying, or in analyzing the strength, effectiveness, or purity of controlled substances.

(6) Diluents and adulterants, such as quinine, hydrochloride, mannitol, mannite, dextrose, and lactose, used, intended for use, or designed for use in cutting controlled substances.

(7) Separation gins and sifters used, intended for use, or designed for use in removing twigs and seeds from, or in otherwise cleaning or refining, marijuana.

(8) Blenders, bowls, containers, spoons, and mixing devices used, intended for use, or designed for use in compounding controlled substances.

(9) Capsules, balloons, envelopes, and other containers used, intended for use, or designed for use in packaging small quantities of controlled substances.

(10) Containers and other objects used, intended for use, or designed for use in storing or concealing controlled substances.

(11) Hypodermic syringes, needles, and other objects used, intended for use, or designed for use in parenterally injecting controlled substances into the human body.

(12) Objects used, intended for use, or designed for use in ingesting, inhaling, or otherwise introducing marijuana, cocaine, hashish, or hashish oil into the human body, such as:

a. Metal, wooden, acrylic, glass, stone, plastic, or ceramic pipes with or without screens, permanent screens, hashish heads, or punctured metal bowls.

b. Water pipes.

c. Carburetion tubes and devices.

d. Carburetion tubes and devices.

e. Roach clips, meaning objects used to hold burning material, such as a marijuana cigarette, that has become too small or too short to be held in the hand.

f. Miniature cocaine spoons, and cocaine vials.

g. Chamber pipes.

h. Carburetor pipes.

i. Electric pipes.

j. Air-driven pipes.

k. Chillums.

l. Bongs.

m. Ice pipes or chillers.

(b) *Determination of drug paraphernalia.* In determining whether an object is drug paraphernalia, a court or other authority shall consider, in addition to all other legally relevant factors, the following:

(1) Statements by an owner or by anyone in control of the object concerning its use.

(2) The proximity of the object, in time and space, to a direct violation of the Uniform Controlled Dangerous Substances Law.

(3) The proximity of the object to controlled substances.

(4) The existence of any residue of controlled substances on the object.

(5) Direct or circumstantial evidence of the intent of an owner, or of anyone in control of the object, to deliver it to persons whom he knows or should reasonably know intend to use the object to facilitate a violation of the Uniform Controlled Dangerous Substances Law; the innocence of an owner, or of anyone in control of the object, as to a direct violation of the Uniform Controlled Dangerous Substances Law shall not prevent a finding that the object is intended for use or designed for use as drug paraphernalia.

(6) Instructions, oral or written, provided with the object concerning its use.

(7) Descriptive materials accompanying the object which explain or depict its use.

(8) National and local advertising concerning its use.

(9) The manner in which the object is displayed for sale.

(10) Direct or circumstantial evidence of the ratio of sales of the object(s) to the total sales of the business enterprise.

(11) The existence and scope of legitimate use for the object in the community.

(12) Expert testimony concerning its use.

(c) *Prohibited acts.*

(1) It is unlawful for any person or corporation, knowing, or under circumstances where one reasonably should know, to sell, lend, rent, lease, give, exchange, or otherwise distribute to any person any drug paraphernalia.

(2) It is unlawful for any person or corporation, knowing, or under circumstances where one reasonably should know, to display for sale or possess with the intent to distribute, any drug paraphernalia.

(3) It is unlawful for any person to use, or to possess with intent to use, any drug paraphernalia to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, process, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale, or otherwise introduce into the human body a controlled substance in violation of this part.

(d) *Exceptions; defenses.*

(1) Any provision of law to the contrary herein notwithstanding, the provisions of this part shall not apply to the manufacture, sale, distribution, or advertisement of any product or object designed and sold primarily for scientific research, industrial, veterinary, or agricultural purposes, or for bona fide medical or clinical use.

(2) It shall be an affirmative defense that the person to whom the drug related object or advertisement or notice was distributed had a prescription from a licensed medical practitioner or psychiatrist for marijuana or the controlled substance for which the object is primarily intended to be used. It is also an affirmative defense that the drug related object was designed or marketed as useful primarily for veterinary or agricultural purposes.

(3) Nothing contained in this section shall be construed to prohibit the possession or the sale of rapid fentanyl test strips (FTS).

(e) *Penalties.*

(1) The first violation of or failure to comply with any provision of this part shall subject the offender to a fine not in excess of three hundred dollars ($300.00), or imprisonment of not more than fifteen (15) days, or both.

(2) The second conviction of any violation or failure to comply with this section shall subject the offender to a fine not in excess of five hundred dollars ($500.00), or imprisonment of not more than six (6) months, or both. And, in addition, such second violation by any person licensed under this Code or by such person's manager, agent, servant or employee shall cause such person to forfeit the right to any permit issued thereunder; and such permit may be suspended or revoked.

(3) A conviction for a violation of the provisions of this part may not be used as a predicate conviction for enhancement purposes under subsection (c)(3) of this section if the offender has not been convicted of any violation of the controlled dangerous substances law for a period of two (2) years from the date of completion of sentence, probation, parole, or suspension of sentence for that conviction. The provisions of this paragraph shall apply only once with respect to any person.

(f) *Contraband; condemnation proceedings.* All instruments, devices, and objects which are seized after the effective date of this section, on condemnation as being distributed or possessed in violation of this section, may be destroyed by the city-parish after making the seizure, but only after compliance with the following procedure. Within ninety (90) days after any seizure is made after the effective date of this section, the district attorney or city prosecutor shall institute condemnation proceedings in district court or city court by petition, a copy of which shall be served upon the owner of the seized items, if known. If the owner is unknown, notice of the proceedings shall be published once a week for two (2) weeks in the official journal of the parish. The petition shall allege that the seized items were distributed or possessed in violation of this section. Fifteen (15) days after the filing of the petition, judgment by default shall be entered by the court, and the court shall order the seized items to be destroyed. Otherwise, the case shall proceed as other civil cases in said court. If the prosecution proves, by a preponderance of the evidence, that the seized items were distributed or possessed in violation of the law, the court shall order the seized items to be destroyed.
(City Code 1951, Title 13, §§ 700—705; Ord. No. 13865, § 1, 1-10-07; Ord. No. 16302, § 1, 8-10-16; Ord. No. 18191, § 1, 7-28-21)

State law reference—Similar provisions, R.S. 40:1031 et seq.

Secs. 13:1020—13:1049. Reserved.

Editor's note—Sections 13:1020—13:1025 were repealed by § 2 of Ord. No. 8763, adopted Oct. 12, 1988. The sections dealt with prostitution and were derived from Ord. No. 8392, § 1, adopted Apr. 22, 1987; Ord. No. 8405, § 1, adopted May 13, 1987; and Ord. No. 8466, adopted Aug. 12, 1987. These provisions are now found in §§ 13:82—13:85.

Sec. 13:1050. Possession of certain toxics prohibited.

It shall be unlawful for any person to possess, or for any person to inhale or ingest, any compound, liquid, or chemical commonly known as "lockerroom" or "rush" which contains toluol, hexane, trichlorothylene, acetone, toluene, ethyl acetate, methyl ethyl ketone, trichloroethane, isopropanol, methyl isobutyl ketone, ethylene glycol monomethyl ether acetate, cyclohexanone, nitrous oxide, diethyl ether, alkyl nitrites (butyl nitrite), or any similar compound, liquid or chemical for the purpose of inducing a condition of intoxication or of distortion or disturbance of the auditory, visual or mental processes.
(Ord. No. 8678, § 1, 6-22-88)

Sec. 13:1051. Exceptions.

(a) The provisions of section 13:1050 shall not apply to the possession and use of the substances listed as part of the care or treatment of a disease, condition or injury by a licensed physician or pursuant to a prescription of a licensed physician.

(b) The provisions of section 13:1050 shall not apply to possession as part of a manufacturing process or industrial operation when the possessor has obtained a permit from the chief of police.
(Ord. No. 8678, § 1, 6-22-88)

Sec. 13:1052. Permit, application, issuance and form.

The chief of police shall establish procedures for application, form and issuance of a permit to legitimate research, manufacturing and industrial applicants and shall have the authority to make reasonable rules in order to carry out the intent of section 13:1050.
(Ord. No. 8678, § 1, 6-22-88)

Sec. 13:1053. Penalties for violation of section 13:1050.

Any person convicted of violating the provisions of section 13:1050 shall be fined not less than three hundred dollars ($300.00) and not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both, at the discretion of the court.
(Ord. No. 8678, § 1, 6-22-88)

Sec. 13:1054. Penalties for violation of title.

Any person convicted of violating the provisions of any section of this Title, where a penalty is not otherwise stated, shall be fined not less than three hundred dollars ($300.00) and not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months, or both, at the discretion of the court.
(Ord. No. 9339, § 1, 9-25-91)

Sec. 13:1055. Reserved.

Editor's note—Ord. No. 13092, § 1, adopted October 27, 2004, amended the Code by repealing former § 13:1055 in its entirety. Former § 13:1055 pertained to drug-traffic loitering; and derived from Ord. No. 10597, adopted March 27, 1996. Prior to the codification of Ord. No. 10597, § 13:1055 prohibited unauthorized solicitation on behalf of city-parish agencies or employees and derived from Ord. No. 9535, § 1, adopted Nov. 25, 1992. See § 13:1060.

Sec. 13:1056. Curfew for Juveniles.

Sec. 13:1056.1. Definitions.

Adult means any person who has reached the age of eighteen (18) or older.

Custodian means a "parent" as defined in Louisiana Children's Code, Article 116, or a person with "legal custody" as defined in Louisiana's Children's Code, Article 166 whom the care or supervision of the juvenile has been temporarily and lawfully delegated or assigned, or if the juvenile does not reside with any of the aforementioned, then in that case "custodian" shall mean any adult with whom the juvenile resides.

Emergency means an unforeseen circumstance or the resulting state that demands for immediate action including but is not limited to a fire, a natural disaster, an automobile accident, or any situation requiring immediate action to prevent serious bodily injury or loss of life.

Juvenile means any person under the age of seventeen (17) years.

Permit means to knowingly allow or knowingly fail to prevent; or to fail to prevent due to lack of reasonable efforts or concern or due to failure to supervise or control.

Public place mean any place to which the public or a substantial group of the public has access and includes, but is not limited to streets, highways, sidewalks, corners, avenues, alleys, parks, playgrounds, public buildings, vacant lots or other public places.

Reasonable errand means the activity of a juvenile pursuant to a custodian's direction in a public place in order to accomplish an emergency mission or a legitimate family function in a normal and customary fashion considering the time of day, or going to or returning home from such an activity without any detour or stop.

Remain means to:

(1) Unnecessarily tarry, stay, loiter, idle, wander, stroll, or play; or

(2) Fail to leave premises when requested to do so by a police officer or the owner, operator, or other person in control of the premises.

(Ord. No. 10197, § 1, 3-8-95)

Sec. 13:1056.2. Offenses.

(a) A juvenile may not remain in a public place or on the premises of an establishment between

the hours of 11:00 p.m. and 5:00 a.m., except on Friday and Saturday nights, when the hours shall begin at 1:00 a.m. and end at 5:00 a.m.

(b) A custodian may not permit or by insufficient control allow a juvenile under the custodian's care or custody to violate this section.
(Ord. No. 10197, § 1, 3-8-95)

Sec. 13:1056.3. Exceptions.

The following are defenses to violations under this section:

(1) This section does not apply to juveniles who are:

a. Accompanied by the juvenile's custodian;

b. On a reasonable errand;

c. Engaged in an employment activity in accordance with Louisiana's Labor Laws, specifically LSA R.S. 23:151 et seq., or going to or returning home from such an employment activity without any detour or stop;

d. Involved in an emergency;

e. Attending an official school, religious, or other recreational activity supervised by adults and sponsored by the City of Baton Rouge/Parish of East Baton Rouge, a civic organization, or other similar entity that takes responsibility for the juvenile, or going to or returning home from such an activity without any detour or stop; or

f. Exercising First Amendment rights protected by the United States Constitution, such as the free exercise of religion, freedom of speech, and the right of assembly where the circumstances legitimately mandate that these rights must be exercised during the curfew hours.

(Ord. No. 10197, § 1, 3-8-95)

Sec. 13:1056.4. Enforcement.

Upon reasonable belief, based upon the juvenile's statements and the surrounding circumstances to believe a curfew violation has occurred, the officer may:

(1) Counsel and release the juvenile;

(2) Escort the juvenile to his/her home;

(3) Release the juvenile to the care of his/her custodian(s) or other responsible adult;

(4) Issue a misdemeanor summons to his/her custodian(s).

The officer shall issue a notice of violation of curfew to the juvenile and his/her custodian(s). A copy of the notice shall be sent to the office of juvenile services. If the officer is unable to deliver a notice to a custodian, the office of juvenile services will mail a copy of the notice to the custodian.
(Ord. No. 10197, § 1, 3-8-95)

Sec. 13:1056.5. Penalties.

(a) A custodian found in violation of this section shall be subject to the jurisdiction of the juvenile court and shall be fined not more than five hundred dollars ($500.00) or sentenced to not more than six (6) months in jail or both. For appropriate cases, the court may suspend the fine or the sentence and, as a condition of such a suspension order or require the performance of up to sixty (60) hours of community service. As part of or in lieu of any other penalty that may be imposed under this section, a custodian may be required by the court to obtain counseling or to attend classes or programs to improve parenting and child-raising skills.

(b) A juvenile violating this ordinance, his/her custodian(s), or any other member of his/her family may be the subject of a complaint under Title VII of the Children's Code (Families in Need of Services) and subject to the jurisdiction of the juvenile court.
(Ord. No. 10197, § 1, 3-8-95; Ord. No. 10809, § 1, 1-22-97)

Sec. 13:1056.6. Severability.

If any portion of this section shall be declared invalid or unenforceable for any reason whatso-

ever, such decision shall not affect the remaining portion of this section which shall remain in full force and effect, and to this end the provisions of this section are hereby declared to be severable. (Ord. No. 10197, § 1, 3-8-95)

Sec. 13:1057. Reserved.

Editor's note—Ord. No. 10599, § 1, adopted March 27, 1996, amended the Code by repealing § 13:1057 in its entirety. Former § 13:1057 pertained to simple obstruction of a highway of commerce, and derived from Ord. No. 9801, adopted January 12, 1994.

State law reference—Similar provisions, R.S. 14:97.

Sec. 13:1058. Children of compulsory school age to be in attendance at school; parental duty imposed.

(a) No child between the ages of seven (7) and fifteen (15), inclusive, other than a child that has been suspended or expelled from school shall be at any place within the city/parish limits except in attendance at school, between the hours of 8:30 a.m. and 2:30 p.m. during any school day as defined by the East Baton Rouge Parish school board, the B.E.S.E. board, and the private school system, depending on which entity governs the school the child attends, unless the child has written proof from school authorities excusing him or her from attending school at that particular time, or, unless the child is accompanied by a parent or legal guardian or a responsible adult selected by the parent or legal guardian to supervise the child or is otherwise lawfully excused from being present in school such as in the case of persons who are being instructed at home as home schoolers.

(b) Each parent or legal guardian of a child between the ages of seven (7) and fifteen (15), inclusive, shall have a duty to prohibit the child from behaving contrary to subsection (a) of this section. No person shall negligently fail to fulfill the duty imposed by this provision.

(c) Owners, operators or employees of any establishment, "establishment" being defined as any privately owned place of business which provides amusement or entertainment to which the public is invited, shall not knowingly allow a minor to remain upon the premises of the establishment where the minor is behaving contrary to subsection (a) of this section. A violation of this subsection shall subject to violator to a written warning on the first violation, and a fine of one hundred dollars ($100.00) for each additional violation.

(d) It shall be an affirmative defense to subsections (a), (b) and (c) of this section that the child, at the time he or she was found at a place other than in school, was not required by law to be in attendance at school.

(e) It shall be an affirmative defense to subsection (b) of this section that the parent or legal guardian initiated the jurisdiction of the juvenile court against the child prior to the time that the child was found violating subsection (a) of this section.

(f) Any police officer or school attendance officer may transport any child found violating this section to the child's residence and may release the child into the care of a parent or court-appointed tutor or legal guardian, to the school the child usually attends, or to any location designated by the authorities of the school which the child usually attends as a receiving center of such children, the choice of destination to be made at the discretion of the police officer or school attendance officer based on proximity of the destination and other relevant factors, and subject to the need to respond to emergency or priority calls.

(g) A child violating this section, his/her parent, tutor or other court appointed legal guardian or other adult person having the care and custody of the child, may be the subject of a complaint under Title VII of the Children's Code (Families in Need of Services) and subject to the jurisdiction of the juvenile court.

(h) If a child is found in violation of this section, on the third or subsequent occasion within a three hundred sixty-five-day period, the parent, tutor or other court appointed legal guardian or other adult person having the care and custody of the child, after having previously been notified of these violations, shall be guilty of negligently failing to supervise a child of compulsory school age, a misdemeanor, subject to the jurisdiction of the court having jurisdiction over this offense and

be fined not more than five hundred dollars ($500.00) for each offense or sentenced to not more than thirty (30) days in jail or both.
(Ord. No. 10269, § 1, 5-10-95)

Editor's note—Ord. No. 10269, § 1, adopted May 10, 1995, amended the Code by adding a new § 13:1057. In order to avoid duplication of section numbers, said provisions have been redesignated as § 13:1058 at the discretion of the editor.

Sec. 13:1059. Children suspended or expelled from school.

(a) If a child is suspended or expelled from school in the City of Baton Rouge/Parish of East Baton Rouge, then each parent, tutor, person with the guardianship of the person of the child as defined by the Louisiana Children's Code Article 116, or other responsible adult of the child shall have the following duties for the duration of the suspension or expulsion:

(1) The duty to personally supervise the child, or to arrange for a responsible adult to supervise the child, at the times that the child would otherwise have been required to be in attendance in school and he or she not been suspended or expelled; and

(2) The duty to prohibit the child from being at any public place at the times that the child would have been required to be in attendance at school had he or she not been suspended or expelled except in the following circumstances:

a. When the child is accompanied by the parent or legal guardian, or a responsible legal guardian, or a responsible adult selected by the parent or legal guardian to supervise the child; or

b. When a child is employed pursuant to an age and schooling certificate issued by the school authorities during the times that the child is on the job or traveling directly to or from a job site; or

c. When the child is on an emergency errand. "Emergency errand" is defined for the purposes of this section as an errand which requires seeking medical attention, attending a funeral or any other activity which involves the health care or safety of the child or his or her immediate family; or

d. When the child has been directed by the parent or legal guardian to engage in a specific activity or to carry out expressed instructions during the times that the child is actually engaged in fulfilling those directions or instructions.

No person shall fail to fulfill the duties imposed by subsection (a) of this section.

(b) No child that has been suspended or expelled from school shall fail to comply with supervision provided or arranged by a parent or legal guardian pursuant to subsection (a) of this section.

(c) No child that has been suspended or expelled from school shall be in any public place at the times that he or she would have been required to be in attendance at school had he or she not been suspended or expelled, except in the circumstances described in subsection (a) above.

(d) As used in this section, "public place" includes any street, recreational center, sidewalk, park, cemetery, schoolyard, body of water or water course, public conveyance, parking lot or any other place engaging in the sale of merchandise, public accommodation or amusement.

(e) Owners, operators or employees of any establishment, shall not knowingly allow a minor to remain upon the premises of the establishment where the minor is behaving contrary to subsection (c) of this section. A violation of this subsection shall subject the violator to a written warning on the first violation, and a fine of one hundred dollars ($100.00) for each additional violation.

(f) As used in this section, "establishment" is defined as any privately owned place where business is carried on for a profit or any place of amusement or entertainment to which the public is invited.

(g) A police officer or school designated attendance officer may transport any child found violating this section to the child's residence and may release the child into the care of the parent, tutor or court appointed legal guardian, or to any location designated by the school authorities as a receiving center for such children. The choice of destination can be made at the discretion of the police officer or school attendance officer based on proximity of the destination and other relevant factors and subject to the need to respond to emergency or priority calls.

(h) A child violating this section, his/her parent, tutor or other court appointed legal guardian or other adult person having the care and custody of the child, may be the subject of a complaint under Title VII of the Children's Code (Families in Need of Services) and subject to the jurisdiction of the juvenile court.

(i) If a child is found to be in violation of this section, on the third or subsequent occasion within a three hundred sixty-five-day period, the parent, tutor, responsible adult, court appointed adult guardian, or other responsible adult person having the care and custody of the child, after having previously been notified of these violations, shall be guilty of failing to supervise a suspended or expelled child, a misdemeanor, punishable by a fine of not more than five hundred dollars ($500.00) for each offense or a sentence of not more than thirty (30) days in jail or both.

(j) For the purposes of this section, the word "child" is defined as any person between the ages of seven (7) and fifteen (15) years of age, inclusive.

Editor's note—Ord. No. 10270, § 1, adopted May 10, 1995, amended the Code by adding a new § 13:1058. In order to avoid duplication of section numbers, said provisions have been redesignated as § 13:1059 at the discretion of the editor.

Sec. 13:1060. Unauthorized solicitation on behalf of parish agencies or employees.

No person shall engage in or participate in the solicitation of funds where the solicitation uses as part of its title or representation to potential givers that it is collecting anything of value on behalf of any city-parish agency or department or quasigovernmental agency connected at all with the city-parish or receiving any tax monies whatsoever, or on behalf of any employees of such entities in their official capacity, without the prior consent of the metropolitan council.

Whoever violates the provisions of this section shall be fined not less than three hundred dollars ($300.00) and not more than five hundred dollars ($500.00) or imprisoned for not more than six (6) months.
(Ord. No. 9636, § 1, 6-9-93)

Sec. 13:1061. Reserved.

Editor's note—Ord. No. 11682, § 1, adopted March 8, 2000, amended the Code by repealing former § 13:1061 in its entirety. Former § 13:1061 pertained to improper telephone communication, and derived from Ord. No. 10596, adopted March 27, 1996.

Sec. 13:1062. Hotel and motel rentals.

A. Every owner, manager or operator of any hotel or motel shall keep a register in which shall be entered the name and address of each guest. The register shall also indicate the day, month, year and hour of arrival of each guest and the number or other identifying symbol of location of the room, dwelling unit or space rented or assigned each guest and the date that such guest departs. All such registers shall be maintained for a period of three (3) years from and after the date of entry. No person shall alter, deface or erase such a register so as to make the information recorded therein illegible or unintelligible. Hotel/motel operators shall require every registrant to provide evidence of identity through at least one (1) of the following methods:

1. Pre-approved identification system;
2. Credit card payment;
3. Government-issued identification which contains the registrant's following information:
   a. Full name;
   b. Date of birth;
   c. Residence address; and,
   d. Photograph of the registrant; or
4. Contracted guest list provided through an outside business organization.

B. No owner, manager, operator, employee or agent of any hotel or motel shall rent or assign any room, dwelling unit or space in said hotel or motel to any person until such time as the person shall have registered as set forth in subsection A of this section.

C. No owner, manager, operator, employee or agent of any hotel or motel shall rent any guest room or dwelling unit in such hotel or motel more than once within an eighteen (18) hour period. Under no circumstances shall any room be rented on an hourly basis or for an hourly rate.

D. Any person convicted of violating the provisions of this section, shall be fined in accordance with the following schedule:

1. Hotels/motels maintaining four (4) to eighty-nine (89) rooms available for occupancy shall be fined five hundred dollars ($500.00).
2. Hotels/motels maintaining ninety (90) to one hundred forty-nine (149) rooms available for occupancy shall be fined seven hundred fifty dollars ($750.00).
3. Hotels/motels maintaining one hundred fifty dollars (150) or more rooms available for occupancy shall be fined one thousand dollars ($1,000.00).

(Ord. No. 10912, § 1, 6-11-97; Ord. No. 16723, § 2, 1-24-18)

Sec. 13:1063. Closing hours for entertainment establishments.

(a) "Entertainment establishments" shall be prohibited from remaining open for business between the hours of 2:00 a.m. and 6:00 a.m. Monday through Saturday, and 12:00 a.m. and 6:00 a.m. on Sunday.

(b) "Entertainment establishments" means and includes, but shall not be limited to, any establishment which has for its primary purpose entertainment, teen clubs, dance clubs, and/or establishments which feature the playing of music. If the establishment requires the payment of a flat fee for entry or the provision of food or services, contains an area for dancing, or features the playing of music, it shall be considered an "entertainment establishment, regardless of whether it derives the majority of its revenue from the sale of food. The provisions of this part shall not apply to revierboats licensed under the provisions of La.R.S. 27:70 et seq.

(c) Anyone who violates the provisions of this section shall be subjected to a fine of one thousand dollars ($1,000.00) or imprisonment of up to six (6) months, or both, for each day of violation.
(Ord. No. 12650, § 1, 6-11-03; Ord. No. 12977, § 1, 6-9-04)

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Title 14

ANIMALS*

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*__Editor's note—__Ord. No. 15237, § 1, adopted January 11, 2012, amended the Code by repealing and reenacting title 14 in its entirety. Formerly, title 14 consisted of §§ 14:100—14:700, and derived from Ord. No. 9634, adopted May 26, 1993; Ord. No. 9766, adopted November 24, 1993; Ord. No. 10263, adopted April 26, 1995; Ord. No. 10264, adopted April 26, 1995; Ord. No. 11627, adopted December 8, 1999; Ord. No. 11724, adopted April 26, 2000; Ord. No. 11920, adopted December 13, 2000; Ord. No. 12670, adopted June 25, 2003; Ord. No. 13097, adopted October 27, 2004; Ord. No. 13791, adopted October 25, 2006; Ord. No. 14203, adopted October 24, 2007; Ord. No. 14499, adopted August 24, 2008; Ord. No. 14791, adopted October 14, 2009; and Ord. No. 15166, adopted August 10, 2011. The history of ordinances prior to Ord. No. 15237 has been maintained where possible at the direction of the city/parish.

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Sec. 14:222. Livestock at large prohibited.
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Chapter 6. Miscellaneous Fees

Sec. 14:600. Miscellaneous fees.

CHAPTER 1. GENERAL PROVISIONS

Sec. 14:100. Introductory provision.

The provisions of this title shall not be deemed or construed to repeal, amend, modify, alter or change any other ordinance or any part thereof not specifically repealed, amended modified, altered or changed herein, except in such particulars or matters as this title is more restrictive than such other ordinances or part thereof; and that in all particulars wherein this title is not more restrictive, each such other ordinance shall continue and shall be in full force and effect.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 1, 9-12-12)

Sec. 14:101. Delegation of authority.

Whenever a power is granted to, or a duty imposed upon, a public officer by this title, the power may be exercised or the duty may be performed by the animal control and rescue center or the animal shelter, a deputy of the officer or a person authorized pursuant to law or ordinance by the officer unless this title expressly provides otherwise.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:101.1. Delegation of rate-making authority.

The Companion Animal Alliance, as operator of the animal shelter, is expressly delegated the authority to set rates, fees, and charges for the services rendered by the animal shelter. Such rates, fees, and charges shall be published on the animal shelter web site, provided to the council administrator to be held for public information, and prominently displayed at the animal shelter. Such rates, fees, and charges shall be set in the reasonable discretion of the Companion Animal Alliance, pursuant to the cooperative endeavor agreement with the city-parish, amending documents to the agreement, and applicable federal, state, and local laws, as authorized by R.S. title 3, section 2778.
(Ord. No. 15237, § 1, 1-11-12)

Sec. 14:102. Effect of amendments.

Whenever reference is made to any portion of this title or of any other law or ordinance, the reference applies to all amendments and additions now or hereafter made.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 1, 9-12-12)

Sec. 14:103. Statutory construction—Tense.

The present tense includes the past and future tenses, and the future the present.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 1, 9-12-12)

Sec. 14:104. Statutory construction—Gender.

The masculine gender includes the feminine and neuter.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 1, 9-12-12)

Sec. 14:105. Statutory construction—Number.

The singular number includes the plural, and the plural the singular.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 1, 9-12-12)

Sec. 14:106. Statutory construction—May.

May is permissive or discretionary.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 1, 9-12-12)

Sec. 14:107. Statutory construction—Oath.

Oath includes affirmation.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 1, 9-12-12)

Sec. 14:108. Statutory Construction—Ordinance.

Ordinance means an ordinance of the City of Baton Rouge-Parish of East Baton Rouge, which is also referred to as city/parish.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 1, 9-12-12)

Sec. 14:109. Severability clause.

If any provision of this title, or the application thereof to any person or circumstance, is held invalid, the remainder of the title, and the application of such provision to other persons or circumstances, shall not be affected thereby.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 1, 9-12-12)

Sec. 14:110. Definitions.

For the purpose of this title, the following definitions, terms, phrases, words and derivations shall have the following meaning herein, unless it shall be apparent from the context that a different meaning is intended:

Abandon: To completely forsake and desert an animal previously under the custody or possession of a person, without making reasonable arrangements to provide for its proper care, sustenance, shelter and medical care.

Animal: Any live or dead vertebrate creature, not to include fish or Homo sapiens.

Animal classification appeals committee: A three-member committee consisting of three (3) members, one (1) licensed Louisiana veterinarian, one (1) commissioned law enforcement officer, and one (1) member of a private animal welfare society. All members must be residents of the parish.

Animal control and rescue center: The parish animal control and rescue center, established by the metropolitan council as the animal control and enforcement agency for the City of Baton Rouge, City of Baker, City of Zachary, and Parish of East Baton Rouge, its director, agents, and employees. The parish animal control and rescue center has jurisdiction throughout the entire geographical area of the parish, including all municipalities.

Animal control and rescue director: The animal control and rescue center director ("director"), whose powers, duties and responsibilities shall be delegated to him by the council and the mayor-president and who shall be responsible to the council and the mayor-president in the discharge of such duties and responsibilities.

Animal establishment: A facility operated as a pet shop, grooming shop, private shelter, commercial or private kennel, boarding dogs or cats or training of dogs for any purpose. Animal shelters operated by public jurisdiction or veterinary medical facilities, accredited zoos or accredited institutions of higher learning are exempt from this definition.

Animal shelter: A facility operated by the Companion Animal Alliance, on behalf of and in concert with the governing authority of the city-parish for the purpose of impounding, harboring, selling, placing or destroying seized, stray, distressed, homeless, abandoned or unwanted animals in compliance with the standards set forth and amended in title 9, animal and animal products, chapter 1, animal and plant health services, United States Department of Agriculture Animal Welfare Act of 1970 (Public Law 91-579).

Animal shelter director: The animal shelter director ("director"), whose powers, duties and responsibilities shall be delegated to him by the council and the mayor- president and who shall be responsible to the council and the mayor-president in the discharge of such duties and responsibilities.

At large:

(1) *Dog:* Any dog that is not within the confines of its owner's home, dog yard, dog pen, primary enclosure or automobile and that is not on a chain or tether which restricts the animal to the confines of its owner's property, nor on a leash no longer than six (6) feet long shall be considered at large.

(2) *Cat:* Any cat that is not within the confines of its owner's home, cat yard, primary enclosure or in the owner's physical possession.

(3) *Exception:* Hunting or stock dogs, show dogs and cats, government or law enforcement dogs actively being worked or other animals being worked or shown under the physically present supervision of their owners or agents or employees of owners, and community cats are excepted.

Bite: The breaking of the skin of a human being by an animal.

Cat: The term "cat" shall mean any member of the species *Felis domesticus,* excluding any and all other members of the family *felidae* or hybrids of *Felis domesticus.*

Cat yard: An owner's yard or an enclosure which shall be used to retain or confine a cat.

Commercial kennel: Any person engaged in the commercial breeding of dogs or cats, or both, for sale, individually or in litter lots; or in the boarding, training, sale or hire of dogs and cats for compensation. Animal hospitals maintained by a veterinarian licensed by the state as part of the practice of veterinary medicine, shelters operated by a public jurisdiction, tax-exempt humane organizations or private kennels shall not be considered commercial kennels.

Common carrier: The term "carrier" shall mean any airline, railroad, motor carrier, shipping line or other enterprise which is engaged in the business of transporting things for hire.

Community cat: Any free roaming cat that is not owned and that may be cared for by any person of the immediate area and may or may not be feral. Community cats shall be distinguished from other cats by being sterilized, vaccinated against rabies, and ear tipped: Qualified community cats shall be exempt from licensing, stray and at-large provisions of this title, and may be exempt from other provisions of this title as they pertain to owned animals.

Cruel: Means any act or failure to act, whereby unjustifiable physical pain or suffering is caused or permitted.

Dog: The term "dog" shall mean any member of the species *Canis familiaris,* excluding any and all other members of the family *canidae* or hybrids of *Canis familiaris.*

Dog pen: Any enclosure used for retaining a dog or dogs having an area of less than twelve hundred (1,200) square foot per animal.

Dog yard: An enclosure for restraining or retaining a dog, whether by use of a fence, a tether which shall be a minimum of five (5) times the length of the animal as measured from nose to the base of the tail, a proper invisible fence or other means; having an area of twelve hundred (1,200) square feet or greater for one (1) dog, plus a minimum of three hundred (300) square feet for each additional dog. Enclosed patios in apartments or multihousing situations are exempt as long as the area is kept clean, disinfected and odor free and does not cause a nuisance.

Excessive barking: Animal noises of such a loudness, intensity and duration as to prevent or interfere with a person's ability to enjoy his property, including, but not limited to, situations where:

(1) On more than one (1) occasion has awakened the complainant up from sleep; or

(2) Continues in such a manner so as to cause mental anguish or suffering, loss of sleep, or a disturbance of the peace.

Excessive noise making: Animal noises of such a loudness, intensity and duration as to prevent or interfere with a persons ability to enjoy their property, including, but not limited to, situations where:

(1) On more than one (1) occasion has awakened the complainant up from sleep; or

(2) Continues in such a manner so as to disturb the comfort or repose of persons, dwelling in the vicinity of where the animal or bird is kept.

Excessive odor: Odor of such intensity and duration as to prevent or interfere with a person's ability to enjoy his property, including, but not limited to, situations where the odor continues in such a manner as to cause mental anguish and suffering or such as to disturb the comfort or repose of persons dwelling in the vicinity of where the animal or bird is kept.

Exotic animal: All species of vertebrate animals not naturally occurring, either presently or historically, in any ecosystem in the United States, including hybrids thereof, including, but not limited to, lions, tigers, jaguars, leopards, cheetahs, jackals, hyenas, ocelots, margays, primates (excluding *Homo sapiens*), bears, elephants, rhinoceros, hippopotamus, wildebeest, buffalo, bison,

wart hog, antelope, deer or poisonous snakes, excluding avians (birds) and nonpoisonous reptiles, excluding caimans and gavials.

Feral cat: Any cat who is unsocialized to humans, whose temperament is one of fear, and who avoids contact with humans.

Hunting or show animals: Animals used for hunting or for exhibitions, shows, trials or events.

Livestock: Any horse, mule, donkey, bovine, sheep, pig, goat or llama.

Nuisance: Damaging, soiling, defiling or defecating on property other than its owner's, or on public sidewalks, excessive noise making, excessive odor, excessive barking, molesting, threatening, attacking or interfering with persons on public or private property, chasing automobiles or other means of conveyance, attacking other animals and disturbing or turning over garbage containers or running at large or interfering with another person's enjoyment of his property is hereby declared a nuisance. However, no community cat shall be declared a nuisance for running at large.

Owner: Any person having a right of property or custody of an animal or who keeps, harbors, finds or knowingly permits the animal to remain on or about his premises shall be deemed the owner of the animal. The provisions of this paragraph shall not be applicable to any community cat caretaker.

Person: Any individual, business, partnership, corporation, firm, organization or association or other legal entity.

Pet shop: A person who obtains animals for sale, exchange, barter or hire to the general public as a principal or agent, or who holds himself out to be so engaged.

Primary enclosure: The term "primary enclosure" shall mean any structure used to immediately restrict an animal to a limited amount of space, such as a room, pen, run, cage, compartment or hutch.

Private animal welfare society: An organization organized and operated exclusively for the prevention of cruelty to animals.

Private kennel: Any person who maintains within or adjoining his residence a kennel housing more than twelve (12) dogs or cats over four (4) months of age, such animals to be for that person's recreational use or for exhibition in conformation shows or, field or obedience trials, and where the sale of offspring is not the primary function of the kennel.

Proper invisible fencing: Any such fencing utilizing an electronic restraining correction system, which when combined with conditioning, prevents any dog from leaving the owner's property.

Severe bite: Any dog or cat bite, or such intensity or force, so as to cause a deep puncture of tissue, laceration of tissue, evulsion of tissue, heavy blood loss, pain and/or scarring of a person or animal.

Severely injured: Any animal which because of major trauma, broken bones, blood loss or other easily apparent life-threatening condition, will not be expected to live and is in severe pain or suffering.

Standards: The term "standards" shall mean the requirements with respect to the humane handling, care, treatment and transportation of animals by persons.

State: The term "state" means a state of the United States, the District of Columbia, Commonwealth of Puerto Rico, the Virgin Islands, Guam, American Samoa, or any other territory or possession of the United States.

Stray: Any dog or cat that is found, observed or impounded while at large or secured by a complainant, and is not physically wearing a rabies license tag or any other means of identification. The provisions of this paragraph shall not apply to any community cat.

Tag: The metal rabies license tag, supplied at the time of registration and rabies vaccination.

Terminally ill: Any animal that, because of apparent sickness or condition, is not expected to live and is in dire physical distress.

Vaccinate: The administration of an anti-rabies vaccine to an animal by a licensed veterinarian in accordance with the latest compendium of animal

rabies vaccines and recommendations for immunization published by the National Association of State Public Health Veterinarians.

Veterinarian: Any licensed veterinary practitioner.

Wild animal: Any living member of the kingdom *Animalia,* including those born or raised in captivity, occurring naturally either presently or historically, within the boundaries of the United States, including hybrids thereof, except the following:

(1) The species *Homo sapiens* (human beings).

(2) Licensed and legally anti-rabies vaccinated ferrets.

(3) a. The species *Canis familiaris* (domestic dogs, excluding hybrids and other wild canids).

b. The species *Felis domesticus* (domestic cats, excluding hybrids).

(4) The species *Equus caballus* (domestic horses or hybrids thereof).

(5) The species *Equus asinus* (asses/donkeys or hybrids thereof).

(6) The species *Bos domesticus, Bos indicus, Bos taurus* (cattle).

(7) The sub-species *Ovis ammon aries* (sheep).

(8) The species *Capra hircus* (goats).

(9) The sub-species *Sus scrafa domestica* (swine).

(10) Domesticated races of the species *Gallus gallus* or *Meleagris gallopavo* (poultry).

(11) Domesticated races of the species *Mesocricetus auratus* (golden hamsters).

(12) Domesticated races of the sub-species *Cavia aperea procelus* (guinea pigs).

(13) Domesticated races of rats or mice, gerbils (white or albino, trained, laboratory raised).

(14) Domesticated races of the species *Oryctolagus cuniculus* (rabbits), chinchillas.

(15) Avians (birds).

(16) Nonpoisonous reptiles, excluding alligators and crocodiles.

Worked: Using an animal for hunting, obedience training, or showing.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 9766, § 1, 11-24-93; Ord. No. 10263, §§ 1—3, 4-26-95; Ord. No. 14203, § 1, 10-24-07; Ord. No. 15384, § 1, 9-12-12; Ord. No. 15788, § 1, 9-24-14)

Sec. 14:111. Animal control officers.

(a) The animal control and rescue center shall have the authority to appoint animal control officers and such other personnel as it deems proper to enforce the provisions of this title pertaining to the animal control and rescue center.

(b) The animal control and rescue center director shall appoint and duly commission animal control officers, who shall have the following limited police powers:

(1) Issue citations and misdemeanor summonses for the enforcement of this title, as well as take action necessary to enforce state statutes regarding animal cruelty.

(2) Obtain warrants for such violations and assist law enforcement personnel in making arrests for such violations.

(3) Submit affidavits to the courts regarding such violations.

(Ord. No. 9766, § 2, 11-24-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:112. Veterinary services.

(a) The animal shelter, operated by the Companion Animal Alliance, shall have the authority to enter into a contract with a licensed veterinarian for professional veterinary services, consistent with its mission and scope of services as dictated by cooperative endeavor agreement or other contract with the city-parish.

(b) *Insurance.* The veterinarian shall maintain in force a policy of malpractice insurance suitable to the city-parish and shall provide the city-parish with a certificate of malpractice insurance evidencing coverage.

(c) *Indemnity.*

(1) To the fullest extent permitted by law, the veterinarian shall protect, defend, indemnify and save the city-parish, its agents, officials, employees, volunteers or any firm, company, organization, or individual, or their contractors, or subcontractors for whom the city-parish may be contracted to, harmless from and against any and all claims, demands, actions, and causes of action of every kind and character including but not limited to claims based on negligence, strict liability, and absolute liability which may arise in favor of any person or persons on account of illness, disease, loss of property, services, wages, death or personal injuries resulting from acts or omissions of the veterinarian, its agents, employees, assigns, or subcontractors, during the operations contemplated by the contract. The veterinarian shall also indemnify the city-parish for all reasonable expenses and attorneys' fees incurred by or imposed upon the city-parish in connection therewith for any such loss, damage, injury or other casualty. The veterinarian further agrees to pay all reasonable expenses and attorneys' fees incurred by the city-parish in establishing the right to indemnity pursuant to the provisions of this part.

(2) This indemnity does not extend to the sole negligence of the city-parish and the veterinarian shall not be liable to the city-parish and the veterinarian shall not be liable to the city-parish for its lost profits or revenue or consequential damages except claims advanced in tort and/or claims advanced in contract due to the bad faith of the veterinarian. Bad faith shall mean a breach of some motive or interest of ill will on the part of the veterinarian.

(3) The veterinarian shall indemnify and hold the city-parish harmless from any and all federal and/or state income tax liability, including taxes, interest and penalties, resulting from the city-parish's treatment of the veterinarian as an independent contractor. The veterinarian further agrees to reimburse the city-parish for any and all costs it incurs, including, but not limited to, accounting fees and legal fees, in defending itself against any such liability.

(Ord. No. 11920, § 1, 12-13-00; Ord. No. 15237, § 1, 1-11-12; Ord. No. 18878, § 1, 6-14-23)

Sec. 14:113. Community cat management.

(a) All cats that are part of community cat management programs shall be:

(1) Assessed by a veterinarian and deemed healthy;

(2) Sterilized;

(3) Vaccinated against the threat of rabies; and

(4) Ear-tipped for easy identification.

(b) All managed community cats shall be maintained on private property of the care giver, or with the expressed permission on the property of another, including city, state, and federal property. In no event shall a community cat be returned to the private property if the owner of that property, after being educated on the community cat program, does not consent to the return or the relocation to that property.

(c) If the requirements of subsections 14:113(a) and (b) are met, the community cat is exempted from licensing, stray, at-large, and other provisions of this title that apply to owned animals. In no event shall a community cat be exempted from the nuisance provisions of this chapter. However, a community cat shall not be deemed a nuisance for running at large.

(d) Any person may provide care for a community cat, including, but not limited to the following:

(1) Food, if supplied, maintained in a feeding container.

(2) Water, if supplied, clean, potable, and free from debris and algae.

(3) Shelter, if provided, unobtrusive, safe, and of the proper size for the cat(s).

(e) Any person may file a complaint with the director of the animal control and rescue center stipulating the specific community cat problem. The animal control and rescue center director may require relocation or removal from the community cat program of any or all nuisance community cats.

(f) Violations of this section are subject to the penalties provided in section 14:218.

(g) The parish council shall review any community cat program three (3) years after its inception to assess its functionality and impact on the parish.
(Ord. No. 15788, § 1, 9-24-14)

CHAPTER 2. KEEPING OF DOMESTICATED ANIMALS

PART I. DOGS AND CATS

Sec. 14:200. Requirements for possession.

No person shall own, keep, or harbor any dog, cat or ferret over the age of three (3) months within the parish without having:

(1) The dog, cat or ferret vaccinated against rabies by a licensed veterinarian at three (3) months of age initially, revaccinated one (1) year later and then on an annual or triennial basis thereafter, except in case of injury or any other medical condition that would preclude proper vaccination of the dog or cat or endanger the health of the animal and only upon receipt by the animal control and rescue center of a letter signed by a licensed veterinarian requesting an exception until the medical condition is resolved to the point that vaccination is no longer a threat to the health of the dog or cat.

(2) Registered the dog, cat or ferret with the animal control and rescue center upon presentation of a certificate of such rabies vaccination, as hereinafter specified.

(3) Tagged the dog or cat as hereinafter specified. The provisions of this paragraph shall not be applicable to community cat caretakers.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 13791, § 1, 10-25-06; Ord. No. 15237, § 1, 1-11-12; Ord. No. 15788, § 2, 9-24-14)

Sec. 14:201. Registration.

(a) It shall be the duty of the owner of every dog, cat or ferret to register same with the animal control and rescue center, to pay all pertinent fees and to obtain and to retain at all times the certificate of registration, giving the name and address of the owner, a description of the dog, cat or ferret by sex, color, date of birth or estimated approximate age and weight; and the breed of the dog or cat if known; and the animal control and rescue center shall record all such information. The tag referred to in section 14:200 shall be securely fastened at all times to a collar or harness which must be worn at all times by the dog or cat for which the tag was issued. Law enforcement dogs, hunting dogs and show dogs or cats while being worked and/or shown under the supervision of their owners or employees, ferrets, and community cats are exempted from wearing the above-stated tag. Dogs or cats while under veterinary care or kept by institutions of higher learning are also exempted.

(b) The annual fee for registration and issuance of tags is ten dollars ($10.00) for a spayed or neutered dog or cat or dog or cat less than six (6) months of age and twenty dollars ($20.00) for a nonspayed or nonneutered dog or cat.

(c) The registration renewal date shall be one (1) year from the date of vaccination and initial registration, on an annual basis, for both the one-year and the triennial vaccination option. A licensed veterinarian will perform the registration upon proof of rabies vaccination. New resi-

dents must make application for registration and license within thirty (30) days of establishing residence in the city-parish.

(d) The requirements imposed by sections 14:200(2) and subsection (b) of this section shall not apply to dogs or cats kept by regularly chartered medical colleges, veterinary schools or other educational or scientific institutions and used for scientific purposes; or veterinary hospitals or public animal control centers or private animal welfare societies; or dogs used for law enforcement purposes by law enforcement agencies; or registered dogs used by the blind, deaf or disabled.

(e) Persons failing to obtain a registration certificate within the yearly period specified in this section will be subjected to a fine of fifty dollars ($50.00).

(f) A thirty-day grace period shall apply to owners who have failed to fulfill the requirements of section 14:200 after their registration due date has expired. If the owner fulfills the requirements of that section, the fifty dollar ($50.00) fine shall be waived; however, all other fees shall still apply.

(g) All ferrets shall be registered and vaccinated against rabies using USDA-approved vaccine at three (3) months of age initially, then at one (1) year of age and on an annual or triennial basis thereafter. A registration certificate shall be used by the administrating veterinarian to prove vaccination.

(h) All veterinary hospitals, clinics, animal feed stores, pet supply facilities, animal establishments and any establishment, where animal vaccines are sold shall post a sign, supplied by the animal control and rescue center, in a conspicuous location stating:

"TITLE 14 (CITY-PARISH CODE OF ORDINANCES) REQUIRES ALL DOGS, CATS AND FERRETS TO BE:

1. Vaccinated against rabies by a LICENSED VETERINARIAN at three (3) months of age initially, revaccinated one (1) year later and vaccinated either annually or triennially thereafter.
2. Registered with Animal Control and Rescue Center on an annual basis.
3. Tagged with the rabies license tag) on a collar or harness with the current registration tag.

   Exceptions: Ferrets and community cats shall be exempt from wearing tags.
4. Prevented from running at large and/or causing a nuisance.

For your convenience, your veterinarian collects the registration fees. These fees fund the Animal Control and Rescue Center's public health and safety function by administering the rabies program, investigating cruelty, dogfighting and dangerous animal cases and conducting animal rescues, stray animal, leash law and nuisance animal investigations involving domestic, exotic, wildlife and livestock animals.

VIOLATION: FINES UP TO FIVE HUNDRED DOLLARS ($500.00) AND/OR SIX (6) MONTHS IMPRISONMENT UPON CONVICTION."

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 11724, § 1, 4-26-00; Ord. No. 13791, § 2, 10-25-06; Ord. No. 14791, § 1, 10-14-09; Ord. No. 15237, § 1, 1-11-12; Ord. No. 15699, § 1, 5-28-14; Ord. No. 15788, § 2, 9-24-14)

Sec. 14:202. Registration tags.

(a) It shall be the duty of the animal control and rescue center to furnish veterinarians with tags containing the registration number and the year for which such tag is issued. The color and shape of such tags shall be changed each year. Each registration and the tag issued pursuant thereto shall be valid from that date for a period of one (1) year.

(b) Any person who attaches the tag to any dog or cat other than the dog or cat for which it was issued shall be subject to the penalties provided in section 14:218.

(c) For the purpose of compensating veterinarians who account for and remit rabies license fees, an amount equal to eight (8) percent of the amount of the fees due shall be allowed as a deduction when remitting such fees to the city/parish.

(d) The animal control and rescue center shall recognize tags issued by legal licensing authorities of other parishes of this state and counties of another state, provided the animal owner is able to produce a certificate of registration as defined in section 14:201 which has been issued within the preceding year by such licensing authority of another parish of this state or county of another state, as the case may be.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12; Ord. No. 15338, § 1, 6-27-12)

Sec. 14:203. Minimum requirements for dog and cat pens and yards.

(a) *Minimum requirements for dog and cat pens:* Dog and cat pens shall meet the following minimum requirements:

(1) Pen floors shall be constructed of concrete or other impervious material and shall be constructed so as to prevent animal escape.

(2) Dogs housed in any primary enclosure shall be provided, as a minimum, floor space equal to the mathematical square of the sum of the length of the dog in inches as measured from the tip of the nose to the base of its tail plus six (6) inches, expressed in square feet. Cats housed in a primary enclosure shall be provided a minimum of two and one-half (2½) square feet of floor space.

(3) Dog pens shall be sloped to a drain connected to a sanitary sewer or an approved individual sewerage system. This requirement shall not apply to dog pens containing less than two (2) dogs.

(4) Dog pens shall be equipped with a curb at least three (3) inches high around the perimeter. The top of the curb shall be at such elevation that the surrounding surface water cannot drain into the pen.

(5) Dog pens shall be provided with a hose bib and water under pressure.

(6) a. All dog pens shall be hosed down, thoroughly cleaned and disinfected as often as needed and in no case less than once a day.

b. It shall be unlawful for any person keeping or harboring animals to fail to keep the dog or cat pen where such animals are kept free from offensive odors to the extent that such odors are disturbing to any person residing within reasonable proximity of said premises.

c. It shall be unlawful to allow animals or pens where animals are kept to become infested with ticks or fleas or other animal-related parasites, by failing to diligently and systematically apply accepted methods of insect/parasite control as indicated.

(7) Dog pens shall be located a minimum of ten (10) feet from the nearest property line and a minimum of fifty (50) feet from any residence other than that of the owner.

(8) The pen must meet all subdivision restrictions or zoning laws or ordinances.

(9) The above requirements shall only apply to pens located in recognized subdivisions in the parish.

(10) Pens located outside of a recognized subdivision shall meet the specifications as set forth in (2), (6), (7), and (8) of this subsection.

(11) Town houses, apartments or condominiums need only comply with paragraphs (2), (6)b. and c. of this section.

(12) The animal control and rescue center shall be empowered to order all animals removed from affected pens until the owner comes into compliance with this section. The animal shelter shall be entitled to charge a reasonable boarding fee for animals so held, to be set and published in accordance with section 14:101.1 of this title.

(13) Animal establishments are exempt from the requirements of this section.

(14) This section shall only take effect upon receipt by the director of the animal control and rescue center, of a written complaint stating what the problem is and the name, address, and phone number of the complainant.

(b) *Minimum requirements for dog and cat yards:*

(1) It shall be unlawful for any person keeping or harboring animals to fail to keep the premises or dog or cat yard where such animals are kept, free from offensive odors to the extent that such odors are disturbing to any person residing within reasonable proximity of said premises.

(2) It shall be unlawful to allow the premises or dog or cat yards where animals are kept to become unclean and a threat to the public health or comfort by failing to diligently and systematically remove all animal waste and fecal material from the premises.

(3) It shall be unlawful to allow dogs or cats or premises where dogs or cats are kept to become infested with ticks, fleas, flies or other animal-related parasites, by failing to diligently and systematically apply accepted methods of insect/parasite control as indicated.

(4) Dog yards shall be fenced in such a manner as to prevent escape of the animal.

(5) Proper invisible fencing shall have warning signs posted on all sides of the dog yard warning persons that a dog is present. Signs shall be plainly marked and visible. Dogs in estrus and dangerous dogs or dogs that have escaped in the past and threatened or bitten a human or other animal are banned from utilizing this system. Electric fences are illegal. Animals that escape more than once may not be allowed to utilize this system at the discretion of the director of the animal control and rescue center.

(6) Tethers used to restrict the animal to the confines of its owner's property shall be minimum length of five (5) times the length of the animal, as measured from the nostrils to the base of the tail. Tethers shall restrict the animal to its owner's property. The area shall be kept free of obstructions to prevent entanglement. No tethered animal shall be allowed to endanger the health, safety or welfare of others.

(7) The animal control and rescue center shall be empowered to order all animals removed from the affected premises and dog and cat yards until the owner comes into compliance with this section. The animal shelter shall be entitled to charge a reasonable boarding fee for animals so held.

(8) This section shall only take effect upon receipt by the director of animal control and rescue center of a written complaint stating what the problem is and the name, address, and phone number of the complainant.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 9766, § 3, 11-24-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:204. Owner's responsibility.

(a) *Threats to public health and safety.* The owner or possessor of any dog shall be held responsible and liable for any and all actions taken by said dog, including but not limited to:

(1) Confining his dog in such a manner so as to prevent escape. All dogs shall be kept, at all times, from running at large.

(2) Preventing his dog, while at large, from threatening, attacking, biting, mauling, or disfiguring any person or animal conducting himself lawfully.

(3) Situations that cause the animal control and rescue center or another law enforcement agency to resort to using drastic measures to seize and impound a dog that is an imminent threat to public health and safety or to the safety of another animal whether at large on or off the owner's property. An owner who displays an interest in reclaiming said dog may have his dog classified as potentially dangerous, dangerous or vicious, as the case may be, and the owner shall have to abide by section 14:208. Any other applicable fees or fines shall also apply.

(4) Situations where his dog, unprovoked, constitutes a serious and imminent threat

to a person conducting himself lawfully, and said dog is not at large, but is inadequately confined to an owner's property while the owner is not present, and that has previously escaped or has the propensity and capacity to effect an escape from said property and cause grievous bodily harm.

The animal control and rescue center will respond to situations as set forth in (4) above in the following manner:

a. The animal control and rescue center or another law enforcement agency will have probable cause to investigate if a complaint is received from a citizen so affected and in the immediate proximity of said dog. Upon investigation, and after consultation with another law enforcement agency on scene, should the dog be considered to constitute a serious and imminent threat due to its propensity and/or capacity to escape, then it may be impounded.

b. The animal control and rescue center will leave notification of impoundment, setting forth the manner in which the dog may be reclaimed. The owner will be given sufficient time to repair or replace inadequacies required to prevent the dog from escaping, should that be all that is necessary to resolve the situation.

c. Said dog may be declared potentially dangerous, dangerous or vicious if evidence is collected from the complainant, by observation by the animal control and rescue center, or any other law enforcement agency. The owner shall have all appeal rights as set forth in section 14-208(b)(6).

(5) Any dog that is used as a weapon to threaten or intimidate persons conducting themselves peacefully and lawfully or that severely bites, mauls or disfigures a person or animal when not at large and while in compliance with this section, including but not limited to being on a leash no longer than six (6) feet, may be cause for the owner to be issued a misdemeanor summons requiring their presence in court. The owner may have his dog declared potentially dangerous, dangerous or vicious, as the facts of the case may determine.

(b) *Other provisions*. The owner or possessor of any dog or cat shall be held responsible and liable for any and all actions taken by said dog or cat, except community cats, including but not limited to ensuring that:

(1) All cats shall be kept, at all times, from running at large.

(2) Female dogs or cats in estrus shall be secured in such a manner so as to prevent contact with a non-neutered adult male of the same species except for planned breeding.

(3) No dog or cat shall cause a nuisance. The owner or possessor of a dog or cat shall be held responsible for any behavior of the dog or cat that is deemed a nuisance.

(4) The owner of a dog or cat shall be held responsible for any veterinary bills incurred by the animal control and rescue center or animal shelter as a result of veterinary care rendered to that animal.

(5) No dog shall cause any excessive noise making or excessive barking. The animal control and rescue center will respond to excessive noise making and excessive barking dog complaints in the following manner:

a. A complaint shall be logged into the dispatcher's log book, giving the owner's or possessor's address and the complainant's name, address and phone number.

b. The complainant shall then write a letter to the animal control and rescue center with the owner's or possessor's address and stating what the problem is and how it is affecting the complainant.

c. Upon receipt of complainant's letter, the animal control and rescue center may dispatch an officer to the owner's or possessor's address, advising the owner or possessor of the complaint and requesting that the nuisance be abated. A warning notice will be left as documentation.

d. If the complainant makes another complaint which is received by the animal control and rescue center within fifteen (15) days of the previously issued warning notice, an animal control officer will then be dispatched to the owner's or possessor's house to issue a summons regarding a violation of this part.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 14203, § 2, 10-24-07; Ord. No. 15237, § 1, 1-11-12; Ord. No. 15788, § 2, 9-24-14)

Sec. 14:205. Impounding procedure.

(a) It shall be the duty of the animal control and rescue center through its director and agents to seize and impound any dog or cat which is not inoculated, not licensed, not currently tagged, or is running at large as noted below:

(1) Upon a park, school ground or into a public building, airport or bus terminals, hotels, restaurants, public conveyances, or places of like character, unless the dog is held by a leash not longer than six (6) feet in the case of a dog or in the case of a cat in the physical possession of its owner.

(2) No dog or cat, whether licensed, registered or otherwise, shall be permitted to run or be at large on any street, road or other public place within the city-parish. The provisions of this subsection shall not apply to community cats.

(3) The animal control and rescue center through its agents, upon call, complaint or otherwise, shall answer complaints and patrol the streets, roads, private or public places of the city-parish with proper and suitable equipment and shall have the authority to perform all such acts that may be deemed necessary to catch and impound all dogs or cats which are found running at large in the streets or roads or public or private property in the city-parish.

(b) *General provisions:*

(1) The animal control and rescue center shall charge a reasonable fee to be set by the director for a copy of any departmental complaint or impoundment record or other records, and a receipt shall be given to the person requesting said information.

(2) A complainant's name, address or phone number can not be given out over the telephone.

(3) Cruelty or dangerous animal complaints can be processed based on an anonymous complainant. All other complaints shall require the complainant's name, address and phone number.

(4) Any animal control officer in hot pursuit of any animal may follow said animal onto private property to seize such animal if said animal is, in the judgment of said officer, deemed a nuisance or a threat to public health or safety.

(5) If any animal deemed a threat to public health or safety is seized by the owner and put inside a place of residence to prevent impoundment, the following course of action may be undertaken:

a. A search and seizure warrant may be obtained from a judge empowering a law enforcement officer to accompany an animal control officer to seize such animal.

b. A warning notice notifying the owner of the above procedures can be left at the door, giving the owner forty-eight (48) hours to turn said animal over to the animal control and rescue center.

(6) No animal shall be left unattended in a vehicle if it subjects the animal to cruel conditions. An animal control officer, upon a complaint of this nature and in the presence of at least one (1) witness, shall

be permitted to use all reasonable means, including breaking a window, in order to free a suffering animal in the following circumstances, all of which must be met:

a. The animal shows physical signs of heat exhaustion, convulsions, or other symptoms which require immediate action by the animal control and rescue center in order to save the animal's life.

b. Any such action by the animal control officer will require prior approval from a supervisor; provided that a supervisor is readily available and obtaining prior approval will not seriously impede the rescue of the animal. Prior approval is not necessary if, in the judgment of the animal control officer, the delay in obtaining such approval would jeopardize the life of the animal.

c. Reasonable effort to contact the owner or driver of the vehicle has been attempted and unsuccessful.

d. If all of the above circumstances are met, the animal control officer, animal control and rescue center supervisor, the animal control and rescue center and the city-parish of will be immune from liability for any property damage as a result of such action taken so long as the intent was to save the animal from suffering and the damage to the personal property was limited to what was reasonably necessary.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12; Ord. No. 15788, § 2, 9-24-14)

Sec. 14:206. Notification of owner.

Whenever an animal has been impounded and the owner thereof is known or can be ascertained from the registration tag or identifying collar, or any other means such as a tattoo or brand, the animal control and rescue center must, within a reasonable period of time, advise the owner of the conditions upon which the animal may be released.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:207. Redemption of impounded animals.

(a) All redemptions shall be payable in cash, cashier's check or money order.

(b) Impounded dogs and cats may be released to the owner or keeper upon payment of all relevant fees and fines as set forth:

(1) Board, per day or part of a day, shall be charged a reasonable rate set and published by the animal shelter pursuant to Code of Ordinances section 14:101.1.

(2) First infraction by owner requiring impoundment of any animal for running at large:

Infertile	$30.00
Fertile	40.00

(3) Second infraction within a two-year period:

Infertile	60.00
Fertile	80.00

(4) Third infraction within a two-year period:

Infertile	120.00
Fertile	160.00

(5) Each subsequent infraction within a two-year period ... 160.00

(6) Failure to license or vaccinate for rabies 50.00

(7) Euthanasia and disposal, shall be charged a reasonable rate set and published by the Animal Shelter pursuant to Code of Ordinances section 14:101.1.

(8) Litter pickup 15.00

(9) Adult animal pickup 15.00

(10) Impoundment of animals other than dogs, cats, livestock, wildlife or exotics, shall be

charged a reasonable rate set and published by the animal shelter pursuant to Code of Ordinances section 14:101.1.

(11) Animals dropped off from other parishes, shall be charged a reasonable rate set and published by the animal shelter pursuant to Code of Ordinances Section 14:101.1.

(12) Fee for license, fertile dog, cat, or ferret. 20.00

(13) Fee for license, spayed/neutered dog, cat, or ferret. 10.00

(14) Fee for vaccination. 6.00

(15) Impoundment fee for potentially dangerous or dangerous dogs or dogs that threaten, bite, or attack a human or animal:

	Spayed or neutered	*Unaltered*
a. First offense, per animal	$ 50.00	$ 75.00
b. Second offense, per animal	$250.00	$300.00
c. Per day, per dog boarding at animal shelter	Shall be charged a reasonable rate set and published by the animal shelter pursuant to Code of Ordinances section 14:101.1.	

(c) Owners of dogs and cats impounded at the animal shelter who cannot produce proof of rabies vaccination and licenses will be required to pay the fees as established by state law and/or the animal shelter in addition to any fines imposed for failure to vaccinate the animal(s).

(d) Upon proof of current rabies inoculation from other parishes or states, the animal shelter will apply only those requirements as stated in section 14:201.

(e) Any animals that are seized, except dogs and cats, livestock or wildlife and exotics, may be released to the owner upon payment of a thirty dollar ($30.00) fine.

(f) All other animals, except dogs and cats and livestock, may be held for a period of time as determined by the director of the animal shelter before disposing of said animal in the reasonable discretion of the animal shelter.

(g) The director of the animal shelter may reduce the adoption cost of animals for special events in which the animal control and rescue center or animal shelter is involved, as long as the licensing, vaccination and spay/neuter requirements are met.

(h) Any animal which has no identification and has been held for three (3) days or any animal which has identification and has been held for five (5) days, inclusive of the day of impoundment, and which is not reclaimed, redeemed and physically removed after payment of fees or fines by the owner or keeper, is considered abandoned and may be forfeited and disposed of by the animal shelter, in the reasonable discretion of the animal shelter. Holidays are not included in the calculation of this holding period. All cats that do not have positive, traceable identification through a currently registered microchip (RFID), license tag, or private identification tag may be assessed by a veterinarian, sterilized immediately upon intake, vaccinated against rabies, ear-tipped, and released as a community cat in accordance with the provisions of the Code of Ordinances.

(i) Any animal impounded in the animal shelter which is not weaned and has no mother at the time of impoundment and is considered stray or abandoned may be cause for the animal shelter to humanely dispose of such animal as soon as possible after impoundment in the reasonable discretion of the animal shelter.

(j) A stray, seriously injured, diseased or terminally ill animal impounded the animal shelter shall be cause for the animal shelter to waive the six- or four-day holding period, as the case may be, and euthanize said animal in a humane man-

ner as soon as possible. Euthanasia shall only be performed in the reasonable discretion of the animal shelter director.

(k) The animal control and rescue center is empowered to euthanize severely injured, terminally ill, stray or untagged animals in the field whose owners are unknown and which animals are suffering severe pain without having to hold said animal for the required four- or six-day period. Euthanasia shall only be performed after a decision is made by the impounding officer if in the field. Euthanasia shall only be performed in the reasonable discretion of the animal shelter, if the animal is in the shelter.

(l) The animal shelter shall not be required to accept or hold animals from other parishes. Animals from other parishes may be accepted at a reasonable rate set and published by the animal shelter pursuant to Code of Ordinances section 14:101.1.

(m) Any stray dog that has been impounded, has no identification and presents a clear and present threat to the life and/or limb of employees or other animals in the animal control and rescue center or animal shelter, may be cause for the animal to be humanely euthanized as soon as possible after impoundment in the reasonable discretion of the animal shelter and its director.

(n) A photograph of the dog shall be taken and held as evidence with other official records of the case.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 9766, § 4, 11-24-93; Ord. No. 11627, § 1, 12- 8-99; Ord. No. 11920, §§ 2, 3, 12-13-00; Ord. No. 13097, §§ 1, 2, 10-27-04; Ord. No. 13791, § 3, 10-25-06; Ord. No. 14203, §§ 3, 4, 10-24-07; Ord. No. 15237, § 1, 1-11-12; Ord. No. 15788, § 2, 9-24-14)

Sec. 14:207.1. Adoptions.

(a) All animals to be adopted from the animal shelter shall be spayed or neutered prior to leaving the animal shelter. This shall be the responsibility of the veterinarian under contract with the animal shelter. Adoption fees will be set at a reasonable rate set and published by the animal shelter pursuant to Code of Ordinances section 14:101.1.

(b) The owner must have the adopted animal examined, licensed, and vaccinated against rabies by a private veterinarian within the time period established by the animal shelter veterinarian within the adoption contract, but in no event shall this time period exceed twenty-one (21) days after the date of adoption. Failure to do so may result in the seizing of the animal by the animal control and rescue center and/or legal action being taken in a court of competent jurisdiction.

(c) Within fourteen (14) days of adoption, the owner may return the adopted animal for exchange or refund from the animal shelter if the animal becomes sick or dies due to any reason other than traumatic injury, nonmedical problems, the owner's negligence, or owner's lack of knowledge of general pet care.
(Ord. No. 11920, § 4, 12-13-00; Ord. No. 13097, § 3, 10-27-04; Ord. No. 15166, § 1, 8-10-11; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:208. Potentially dangerous dog, dangerous dog, vicious dog.

(a) *Level 1—Potentially dangerous dog:*

(1) A dog may be classified as "potentially dangerous" if such dog constitutes a menace to public health or safety. In order for a dog to be classified as "potentially dangerous," one (1) of the following incidents shall occur:

a. Said dog has killed or injured a domestic animal without provocation while such dog is at large.

b. Any dog's behavior, while on or off the dog owner's property, which constitutes a substantial threat of bodily harm to a person when such person is conducting himself peacefully and lawfully.

c. An attack occurs which results in injury to a person or a dog bites a person when such person is conducting himself or herself peacefully and lawfully.

d. A dog which on two (2) separate occasions within a twelve-month period has been observed at large, on or off the owner's property, or has been impounded at least one (1) prior occasion for being at large.

e. An animal that, in the opinion of the animal control and rescue center, constitutes a threat to public health or safety.

f. An employee of the animal control and rescue center or a law enforcement officer recommends declaration as "potentially dangerous."

(2) A dog will not be classified as "potentially dangerous" if the threat, injury or damage was sustained by a person who, at the time, was unlawfully on the property with the intent to commit a crime or tort upon the premises occupied by the owner of the dog, or was tormenting, abusing, or assaulting the dog or if the dog was defending or protecting its owner from unjustified attack or assault, or was protecting or defending its young or other animals from harm or attack.

(3) The animal control and rescue center may investigate reported incidents involving dogs that may be "potentially dangerous." Upon such investigation, if the animal control and rescue center finds the dog to constitute a menace to public health or safety, such dog shall then be classified as "potentially dangerous." the owner shall receive written notification of the animal control and rescue center's classification of the animal. The classification of "potentially dangerous" shall be added to registration records of the dog.

(4) The owner of a dog that has been classified as "potentially dangerous" shall take whatever measures are necessary to confine or restrain such animal to prevent any future incidents from occurring that constitute a menace to public health or safety.

(5) A citation may be issued to the owner of any potentially dangerous dog alleged to be in violation of this part. The investigating officer may issue such citation upon the receipt of one (1) sworn affidavit of complaint. Said affidavit shall specify the address or location of the alleged violation, the nature, time and date(s) of the act, the name and address of the owner, if known, and a description of the animal.

(6) Any dog that has been declared "potentially dangerous" shall be micro- chipped at the owner's sole expense. Any dog already tattooed prior to the enactment of the micro-chip requirement of this section need not have a microchip implanted or be re-tattooed if the existing tattoo is legible and can properly identify the dog. The micro-chip or tattoo number shall be reported to the animal control and rescue center for entry into the owner's record within fourteen (14) days of the dog being declared "potentially dangerous."

(b) *Level 2—Dangerous dog:*

(1) A dog may be classified as "dangerous" under any of the following circumstances:

a. If the dog has attacked, caused serious injury or otherwise endangered the safety of human beings, or has a known propensity, tendency, or disposition to attack, to cause serious injury or to otherwise endanger the safety of a person who is conducting himself or herself peacefully and lawfully.

b. If the dog has attacked, caused serious injury or death to a domestic animal.

c. If the dog has previously been classified as "potentially dangerous," and one (1) additional but separate incident has occurred as set forth in subsection (a), level 1.

d. If the dog has been owned or kept primarily or in part for the purpose of dog fighting.

e. If the dog has upon recommendation by a law enforcement agency or an employee of the animal control and rescue center.

(2) A dog will not be classified as "dangerous" if the threat, injury or damage was sustained by a person who, at the time, was unlawfully on the property with the intent to commit a crime or tort upon the premises occupied by the owner of the dog, or was tormenting, abusing, or assaulting the dog or if the dog was defending or protecting its owner from unjustified attack or assault, or was protecting or defending its young or other animals from harm or attack.

(3) The animal control and rescue center may investigate reported incidents involving dogs that may be "dangerous." upon such investigation, if the animal control and rescue center finds the dog to constitute a "dangerous dog" as defined in this section, said dog shall be impounded and so classified. The owner shall receive written notification of the animal control and rescue center's classification of the dog. Said notification shall include the procedure for appeal. The classification of "dangerous" shall be added to the registration records of the dog.

(4) The owner of a dog that has been classified as dangerous shall abide by the following mandates within thirty (30) days after the dog has been so classified:

a. A "dangerous" dog tag supplied by the animal control and rescue center shall be purchased annually and affixed to the dog's collar to be worn at all times.

b. A micro-chip shall be obtained at the owner's expense for each dog that has been classified as "dangerous."

c. The owner shall immediately notify the animal control and rescue center when a "dangerous" dog:

1. Is loose or unconfined;

2. Has bitten a human being or attacked another animal;

3. Was sold, given away, or died; or

4. Has moved to another address.

Prior to a dangerous dog being sold or given away, the owner shall provide the name, address, and phone number of the new owner to the animal control and rescue center. Each owner shall execute a document to be supplied by the animal control and rescue center, acknowledging that said owner is aware of the "Dangerous" dog classification, and that said owner shall comply with the requirements of this title.

d. A dangerous dog must be securely confined indoors or in a securely enclosed and locked pen or structure, suitable to prevent the dog from coming into contact with either a human being other than the owner or any other animal, and designed to prevent the animal from escaping. The pen or structure must have minimum dimensions of four (4) feet by ten (10) feet. Such pen shall have secure sides and a secure top to prevent the dog from escaping over, under, or through the structure. The enclosures shall provide a humane existence for the dog and protection from the elements. The pen shall meet all of the requirements of a dog pen and the pen sides shall be embedded securely in concrete.

e. The owner shall prominently display a sign to be provided by the animal control and rescue center at the owner's expense on his premises at all entry points warning that there is a dangerous dog on the property.

f. A dangerous dog may be off the owner's premises or out of its enclosure only if it is muzzled and restrained by a substantial chain or leash not exceeding four (4) feet in length and

under the control of an able-bodied person. The muzzle must be made in a manner that will not cause injury to the dog or interfere with its vision or respiration, but must prevent it from biting any person or animal.

g. The animal control and rescue center, in its discretion, may require a dangerous dog to be spayed or neutered.

h. The animal control and rescue center, in the exercise of its discretion, shall have the authority to make whatever inspections are deemed necessary to ensure that the provisions recited herein are complied with.

i. A dangerous dog shall not be used as a guard dog.

j. An owner of a dangerous dog shall have the option to have said dog humanely euthanized at his expense by the animal control and rescue center, animal shelter, or licensed veterinarian if said owner is unable to comply with the requirements recited herein.

k. It shall be unlawful for any person to keep, harbor or possess a dangerous animal on a porch, patio or in any part of a house or building that would allow the animal to exit or escape on its own volition. Screened windows or screened doors alone are considered inadequate.

1. The animal control and rescue center shall have the right to inspect the premises of dangerous animals' enclosures to ensure compliance with this part.

m. The owner or keeper shall sign a hold-harmless and indemnification clause in favor of the city-parish.

n. The owning, keeping or harboring of a dangerous animal in violation of this title is deemed a public nuisance.

o. If the animal control and rescue center reasonably believes that an owner cannot or will not abide by the above requirements, a seizure warrant may be requested, pending final disposition of the case.

(5) A "dangerous dog" that is impounded for any violation of this section, may be reclassified as a "vicious dog."

(6) *Appeal process:*

a. The owner of a dog that has been classified as "dangerous" may appeal this classification to the animal classification appeals committee within the ten-day period after the animal control and rescue center so classifies said dog. A notice of appeal must be filed with the director of the animal control and rescue center within ten (10) days of the receipt of notice of classification. The director shall then notify the animal classification appeals committee.

b. The appeal must be heard by the animal classification appeals committee within thirty (30) days after the owner has submitted a notice of appeal.

c. The classification of a dog as "dangerous" shall be revoked only by a majority vote of the animal classification appeals committee.

d. All decisions by the animal classifications committee shall be final and binding, unless an appeal is made to a court of competent jurisdiction. Notification of said appeal must be received by the animal control and rescue center within ten (10) days of the animal classifications appeal committee upholding the decision to classify the dog as "dangerous." Should an injunction be received within the ten-day period, then the owner will be responsible for payment of all boarding costs and other fees as may be required to humanely and safely

keep the animal at the animal shelter through the court appeal process.

e. All decisions by the animal classification appeals committee shall be final and binding.

(c) *Level 3—Vicious dog:*

(1) A dog may be classified as "vicious" if said dog has:

a. Attacked and caused severe and gross injuries or death to a human being; or

b. Previously been classified as "dangerous" or "potentially dangerous" and an incident has occurred as set forth in subsection (a), or (b).

(2) A dog will not be classified as "vicious" if the threat, injury or damage was sustained by a person who, at the time, was unlawfully on the property with the intent to commit a crime or tort upon the premises occupied by the owner of the dog, or was tormenting, abusing, or assaulting the dog or if the dog was defending or protecting its owner from unjustified attack or assault, or was protecting or defending its young or other animals from harm or attack.

(3) The animal control and rescue center may investigate reported incidents involving dogs that may be vicious. Upon such investigation, if the animal control and rescue center finds the dog to constitute a vicious dog as defined in this title, said dog shall be so classified. The owner shall receive written notification of the animal control and rescue center's classification of the animal. Said notification shall include the procedure for appeal. The classification of "vicious" shall be added to the registration records of the dog.

(4) Any dog that has been classified as "vicious" shall be impounded by the animal control and rescue center. The animal will be kept at the animal shelter and placed in rabies quarantine, if necessary, for the proper length of time, or held for ten (10) days after the owner's receipt of notification, and then shall be returned to the animal control and rescue center for euthanasia unless the owner initiates an appeal procedure within this ten-day period.

(5) *Appeal process:*

a. The owner of a dog that has been classified as "vicious" may appeal this classification to the animal classification appeals committee within the ten-day period after the animal control and rescue center impounds such dog.

b. The animal will remain impounded at the animal shelter until such time as the animal review committee hears and decides the appeal of the owner. The appeal must be heard by the animal classification appeals committee within ten (10) days after the owner has submitted a notice of appeal.

c. The classification of a dog as "vicious" shall be revoked only by a majority vote of the animal classification appeals committee. If the committee does not revoke the "vicious dog" classification, the dog will be kept an additional ten (10) days and then be humanely euthanized at the expense of the owner by the animal control and rescue center or animal shelter. If the committee revokes the "vicious" dog classification, such dog shall then be classified as "dangerous"; and its owner shall be required to comply with subsection (b) of this section. The committee shall provide the owner with written notice of its decision by mailing same to the dog's owner at his last known address.

d. The owner will be responsible for payment of all boarding costs and other fees as may be required to humanely and safely keep the animal at the animal shelter through the appeals process.

e. Written notice is prescribed in paragraph c above in order to give the owner of a dog classified as "vicious" time to apply to a court of competent jurisdiction for any remedies which may be available. Should the owner of a dog that has been classified as "vicious" wish to appeal the decision of the animal classification appeals committee to uphold the "vicious" classification, then a court injunction must be obtained within ten (10) days of said decision in order to delay the euthanasia of such dog. Should an injunction be obtained, the owner will be responsible for payment of all boarding costs and other fees as may be required to humanely and safely keep the animal at the animal shelter through the court appeal process. Applicable fees shall be paid in advance.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 14203, §§ 5—7, 10-24-07; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:209. Animal classification appeals committee.

(a) The city-parish metropolitan council shall appoint a three-member animal classification appeals committee which in its judgment shall fairly represent the animal control and rescue center, animal owners, and citizens of the parish. The committee shall make decisions relating to appeals that have been initiated concerning dangerous dogs and vicious dogs.

(b) The animal classification appeals committee shall be appointed from nominations submitted to the city-parish metropolitan council. One (1) member shall be a licensed Louisiana veterinarian, one (1) member shall be a commissioned law enforcement officer, and one (1) member shall be a member of a private animal welfare society. All members must be residents of the parish.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:210. Liability insurance, liability bond, property surety bond for dangerous dogs.

(a) The owner or keeper shall present to the director of the animal control and rescue center proof that the owner or keeper has procured liability insurance in the amount of at least one hundred thousand dollars ($100,000.00), covering any damage or injury which may be caused by such dangerous dog during the twelve-month period for which licensing is sought, which policy shall contain a provision requiring the city-parish to be named as an additional insured and the city-parish shall be notified by the owner or keeper of any cancellation, termination or expiration of the liability insurance policy. In lieu of the above insurance requirement, the owner or keeper may procure a dangerous dog liability bond as defined by subsection (b) hereof, or property surety bond as set forth in subsection (c).

(b) *Dangerous dog liability bond* means a bond conditioned:

(1) That the obligor shall, within thirty (30) days after the rendition thereof, satisfy:

a. 1. All judgments rendered against him or against any person responsible for actions of the dog in actions to recover damages for property damage or for bodily injuries, including death at any time resulting therefrom; and

2. Judgments rendered as aforesaid for consequential damages consisting of expenses incurred by a husband, wife, parent, or tutor for medical, nursing, hospital, or surgical services in connection with or on account of such bodily injuries or death sustained during the term of the bond by any person; and

b. Arising out of the ownership, control or use of said dangerous dog.

(2) To the amount of not less than one hundred thousand dollars ($100,000.00) for damages to the property of others and/or on account of injury to or death of any person.

(c) In the discretion of the animal control and rescue center, if an owner can adequately demonstrate current equitable value or ownership of

property of at least one hundred thousand dollars ($100,000.00), then a surety bond may serve in lieu of liability insurance.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 14203, §§ 8, 9, 10-24-07; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:211. Guard dogs.

Guard dogs must be kept within a structure or a fenced enclosure at all times, and any guard dog found at large may be processed as a "potentially dangerous" or "dangerous" dog pursuant to the provisions of this title. Any premises guarded by a guard dog shall be prominently posted with a sign containing the wording "guard dog" or words of similar import. It shall be the owner's responsibility to immediately notify the animal control and rescue center when a guard dog has escaped and is running at large.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:212. Dog and cat bite cases.

(a) *Dog and cat bite case in general:*

(1) The breaking of the skin of a human being by a dog or cat shall be considered a bite case; except that if a dog or cat which is currently vaccinated and licensed scratches a human being, that animal shall not be required to be held for observation. All unvaccinated dog or cat scratch cases shall be held for observation. Stray dogs or cats may be sacrificed for testing or held for ten (10) days' observation.

(2) All bite cases shall be reported to the animal control and rescue center or to the city police department or parish sheriff's office as soon as possible and in no case more than twenty-four (24) hours after such bite. It shall be the responsibility of the owner of the animal and/or the person bitten to report such fact to the proper authorities as stated above.

(3) Any dog or cat that has bitten a human shall be impounded at the animal shelter or licensed veterinarian of the owner's choice in the for a period of not less than ten (10) days from the date of the bite.

(4) Any dog or cat which is suspected of being rabid may be destroyed and its head shall be submitted for proper testing at a suitable facility or may be held for ten (10) days' rabies observation at a licensed veterinarian or at the animal shelter.

(5) No animal shall be held for ten (10) days' rabies observation outside of the without the prior approval of the director of the animal control and rescue center.

(6) Any dog or cat in violation of this title at the time of the bite shall be cause for said animal to be impounded and taken to the animal shelter. After any applicable fees or fines are paid in cash, the animal may then be transferred to a veterinarian by an agent of the animal control and rescue center for the remainder of the ten-day period.

(7) In the event of extenuating circumstances, an animal control officer may permit the owner to produce proof, within twenty-four (24) hours of the bite, that the animal was currently licensed and vaccinated and not at large at the time of the bite, before requiring that the animal be delivered to a licensed veterinarian in the parish.

(8) No animal shall be returned to the owner prior to the expiration of the ten-day observation period.

(9) The day of the bite shall be considered day one (1) of the observation period.

(10) All animals shall be released by a licensed veterinarian after the ten-day observation period, either at the animal shelter or within twenty-four (24) hours after being redeemed by the owner. Results of the post-rabies observation examination and the name and location of the attending veterinarian shall be reported to the animal control and rescue center within twenty-four (24) hours after redemption, or the end of the ten-day rabies observation period.

(11) Animals shall be redeemed by the owner within twenty-four (24) hours after the ten-day observation period is finished. Fail-

ure to redeem animals within this time period shall be cause for the animal shelter to dispose of said animal, in the reasonable discretion of the animal shelter, as they would then be considered abandoned and shall be property of the animal shelter.

(12) Stray animals may be disposed of after the expiration of the ten-day observation period or may be sacrificed for testing at the reasonable discretion of the animal shelter.

(13) All animals which have broken the skin of a human being and are found dead are to be immediately impounded and their heads sent to the parish health agency or appropriate facility for rabies examination.

(14) When an animal, not otherwise in violation of this title and upon being provoked, breaks the skin of a human being, there will be no fees applicable if the animal is held for observation at the animal shelter.

(b) *In-home rabies observation:*

(1) The animal control and rescue center may consider in-home ten (10) days' rabies observation only if the following criteria are met:

a. The owner of the animal agrees to the in-home observation and signs a form recognizing such agreement.

b. The animal was in full compliance with the requirements under sections 14:200 and 14:201 at the time of the bite.

c. The animal was not at large at the time of the bite.

d. The owner signs an indemnity clause holding the animal control and rescue center, animal shelter, and city-parish harmless from any and all liability which might arise while the animal is undergoing in- home observation.

e. The animal control and rescue center may inspect the facilities at any time to determine compliance.

f. The animal is secured on the property at all times during observation in a room, pen, or other structure to prevent escape and contact with other animals or humans other than the owner.

g. Animals shall be examined by a licensed veterinarian within twenty-four (24) hours after the end of the observation period, and the animal control and rescue center shall be notified of release within twenty-four (24) hours thereof.

h. The animal control and rescue center shall be notified within twenty-four (24) hours if the animal dies, escapes or becomes ill during the observation period.

i. If the animal control and rescue center observes any violation of this exception, the animal shall then be seized and taken to the animal shelter or a licensed veterinary facility; and the owner may be issued a summons for violation of this part.

(2) All law enforcement agencies are exempt from this requirement. Vaccination status of all K-9 or enforcement dogs shall be retained by the agency involved.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 9766, §§ 5, 6, 11-24-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:213. Dog fighting.

(a) No person shall intentionally do any of the following:

(1) For amusement or gain, cause, allow, engage or make any dog fight with another dog or cause any dogs to injure each other.

(2) Permit any act in violation of this part to be done on any premises under his charge or control, or aid or abet any such act.

(3) Promote, stage, advertise, or be employed at a dog fighting exhibition.

(4) Sell a ticket of admission or receive money for the admission of any person to any place used, or about to be used, for any activity described in paragraph (2).

(5) Own, manage, or operate any facility kept or used for the purpose of dogfight.

(6) Own or train a dog with the intent that the dog be used in an exhibition of dog fighting.

(7) Attend as a spectator, observer, attender or witness an exhibition of dog fighting.

(8) Bait, attack with violence, provoke or harass an animal with one (1) or more animals for the purpose of training an animal for or to cause or allow an animal to engage in fights with or among other animals.

(b) *Seizure of dogs and equipment used in dog fighting:*

(1) Any law enforcement officer may lawfully take possession of all dogs and all paraphernalia, implements, equipment or other property or things used or employed in violation of this section. Such officer, after taking possession of such dogs, paraphernalia, implements, equipment or other property or things, shall file with the court of the parish within which the alleged violation occurred an affidavit stating therein the name of the person charged, a description of the property so taken, and the time and place of the taking thereof, together with the name of the person who claims to own such property, if known, and that the affiant has reason to believe and does believe, stating the ground of such belief, that the property so taken was used or employed in such violation. He shall thereupon deliver the property so taken to such court which shall, by order in writing, place such dogs, paraphernalia, implements, equipment or other property in the custody of a licensed veterinarian or other suitable custodian, to be kept by such custodian until the conviction or final discharge of the accused and shall send a copy of such order without delay to the appropriate prosecutor. The veterinarian or custodian so named and designated in such order shall immediately thereupon assume the custody of such property and shall retain the same, subject to the order of the court before which the accused shall be required to appear for trial. Upon the certification of a licensed veterinarian that, in his professional judgment, a dog which has been seized is not likely to survive the final disposition of the charges or that, by reasons of the physical or temperamental condition of the dog, it should be humanely euthanized before such time, the court may order the dog humanely euthanized. The owner of a dog which is euthanized without an order of the court with such certification of a licensed veterinarian shall have a right of action for damages against the department or agency by which the arresting or seizing officer is employed. Upon conviction of the person so charged, all dogs so seized shall be adjudged by the court to be forfeited and the court shall order a humane disposition of same. In the event of the acquittal or final discharge, without conviction, of the accused, the court shall, on demand, direct the delivery of the property so held in custody to the owner thereof. All reasonable expenses incurred by the veterinarian or other party as custodian of seized dogs and property shall be charged as costs of court.

(2) In the event no owner claims or can prove ownership of the dog within ten (10) days after such custody begins, the agency or individual, may, at their reasonable discretion, humanely dispose of the dog in custody. No agency or individual acting under the provisions of this subsection shall be held liable for civil or criminal damages.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:214. Animal establishment permits.

(a) No person shall operate an animal establishment without first obtaining a permit from the animal control and rescue center.

(b) The animal control and rescue center director may adopt animal establishment regulations such as those set forth in title 9, animal and animal products, chapter 1, animal and plant health services, United States Department of Agriculture Animal Welfare Act of 1970 (Public Law 91579) or revisions thereto, or statutes of the state, or may promulgate and use any such nutritional or environmental standards which may be considered applicable and standard husbandry practices by expert opinion or literature, or by such organizations as the American Veterinary Medical Association (AVMA), the Humane Society of the United States (HSUS), the American Association of Zoological Parks and Aquariums (AAZP&A), or a qualified veterinarian.

(c) The animal control and rescue center will provide a copy of the standards adopted, as provided in subsection (b), to applicants with application for a permit. The applicant shall acknowledge receipt of the standards in the application.

(d) The permit period shall begin on the day the permit application is approved by the director. All applications for renewal of a permit for the ensuing year shall be filed with the animal control and rescue center no later than the day of the annual inspection and a remittance therefor in cash, cashier's check or money order, in the proper amount as set forth hereinafter, payable to the animal control and rescue center.

(e) Any person who maintains or operates an animal establishment shall pay an annual permit fee as provided hereinafter. If any person shall own or operate more than one (1) facility, he shall be required to have a permit for each facility.

(f) The annual permit fee shall be one hundred dollars ($100.00).
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 13097, § 4, 10-27-04; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:215. Issuance and revocation of animal establishment permits.

(a) The animal control and rescue center director shall conduct all inspections of animal establishments, and the animal control and rescue center shall issue permits in compliance with this part and revoke permits for establishments not in compliance with this part.

(b) The animal control and rescue center shall have the right of entry, at reasonable hours, on premises affected by this title and into all areas where animals are kept and maintained, for inspection to ascertain if the permittee is in compliance with the standards as set forth in section 14:214. Failure of the owner to comply with the standards as stated therein shall be cause for the revocation of the permit and/or a misdemeanor summons to be issued.

(c) If the animal control and rescue center, after inspection, determines that the permittee is in violation of this part, it shall advise the permittee in writing of the violations and shall further inform the permittee that its failure to comply with the standards as provided in section 14:214 shall be cause for the removal of animals from such premises or areas and/or a misdemeanor summons may be issued. The animal control and rescue center shall give the permittee fourteen (14) days from receipt of the written notice to comply with the standards. Extended periods may be granted for good cause shown. If it shall be necessary for the animal control and rescue center to remove or cause to be removed any animals as provided herein, it shall return the animals to the permittee upon compliance with this part. The permittee shall compensate the animal control and rescue center or boarder at the daily rate per animal.

(d) Any person aggrieved by the decision of the animal control and rescue center regarding violations of this part and its decision to suspend or revoke the permit upon the failure of the permittee to comply with this part, may take an appeal to a court of competent jurisdiction with fifteen (15) days of receipt of written notification. The decision of the animal control and rescue center and/or the animal establishments committee shall be final unless appealed within the time and in the manner as set forth above.

(e) If an applicant is shown to have withheld or falsified any material information on his application, the animal control and rescue center may refuse to issue a permit or license or may revoke a permit or license.

(f) A person denied a permit may not reapply for a permit until after a period of thirty (30) days has elapsed. Each application shall disclose any previous denial or revocation and shall be accompanied by a fee as set forth in this part.

(g) The animal establishment permit shall be displayed in a conspicuous place, so as to be plainly visible to any member of the general public.

(h) Any animal establishment selling avians, reptiles, amphibians, rodents, rabbits or other small animals must make a substantial effort to educate the prospective owner on the environmental and dietary requirements of each species being considered. Written materials regarding environmental and dietary requirements of said species and general counseling shall be considered as adequate educational tools.

(i) No pet shop or animal establishment may sell a wild or exotic animal as defined in this title. Any pet shop or animal establishment that sells avians, reptiles, amphibians, rodents, rabbits or other small mammals shall post a sign in a conspicuous place and manner and in plain view of the general public, supplied by the animal control and rescue center stating:

> "All living creatures have specific dietary and environmental needs. The East Baton Rouge Parish Animal Control And Rescue Center recommends consultation with the seller and careful evaluation of an owner's responsibilities towards these animals prior to purchase."

(j) No turtle with a carapace of less that four (4) inches may be offered for sale by any animal establishment.

(k) The sale, ownership or possession of poisonous snakes in the parish, except by an institution of higher education, zoo, or governmental agency is prohibited.

(l) The sale, possession or ownership of any venomoid snakes in the parish, except by an institution of higher education, zoo, or governmental agency is prohibited.

(m) The animal control director shall be empowered to inspect and issue temporary permits that shall be valid, unless revoked, until the annual inspection occurs.

(n) It shall be unlawful for any animal establishment to offer for sale or trade any animal that is known or suspected to be ill, sick, injured, diseased or the carrier of a disease.

(o) Animal establishments shall keep all sick, injured, or diseased animals in a separate area away from healthy animals until they become healthy or are destroyed.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:215.1. Prohibition on animal sales in restricted areas.

No person shall sell, exchange, barter, trade, lease, rent, give away or display any live animal on any roadside, public right-of-way, parkway, median, park, playground, swimming pool, or other recreational area, flea market, commercial or retail parking lot, or property adjacent to such locations, that is generally accessible to the public, regardless of whether such access is authorized or not.

Exception: This section shall not apply to humane societies, animal welfare groups, animal control agencies or non-profit organizations sponsoring animal adoption events.

Violation: Penalties for violation of this section are proscribed in section 14:218.
(Ord. No. 14499, § 1, 8-24-08; Ord. No. 15384, § 2, 9-12-12)

Sec. 14:216. Transportation of dogs and cats.

(a) No dog or cat three (3) months of age or older shall be delivered by any out-of-state carrier of freight, express bus, motor car, or other public carrier into the city-parish unless there is a health certificate of a licensed veterinarian at the point of shipment accompanying the dog or cat showing that the dog or cat has been currently rabies inoculated within the previous twelve (12) months.

(b) All dogs or cats less than three (3) months of age entering the city-parish by any out-of-state carrier must be accompanied by a health certificate signed by a veterinarian practicing at the place of origin.

(c) No animal shall be moved, transferred or transported in a cruel or inhumane manner.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 2, 9-12-12)

Sec. 14:217. Interference with enforcement.

(a) It shall be unlawful for any person to knowingly hinder, resist or oppose any officer or employee of the animal control and rescue center or animal shelter in the performance of his duties.

(b) It shall be unlawful for any person to knowingly interfere with or damage any animal trap owned or used by the animal control and rescue center or to molest or release an animal caught therein.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:218. Penalties.

(a) Any person who violates any provisions of the sections of this chapter or who shall hinder or molest or interfere with any officer or agent of the animal control and rescue center or animal shelter in the performance of any duty provided for by this chapter shall, upon conviction by a court of competent jurisdiction, be deemed guilty of a misdemeanor and may be fined any amount up to five hundred dollars ($500.00) or imprisoned for not more than one hundred eighty (180) days, or both fined and imprisoned, in the discretion of the court.

(b) The owner of a dog at large that severely bites, mauls, or disfigures any person shall, upon conviction by a court of competent jurisdiction, be deemed guilty of a misdemeanor and shall be fined no less than five hundred dollars ($500.00), or imprisoned for not more than thirty (30) days, or both fined and imprisoned, in the discretion of the court.

(c) The animal control and rescue center, or its agents, may enforce any provision of this chapter by instituting a suit for injunctive relief and use of summary process, including all temporary restraining orders permitted by law.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 14203, § 10, 10-24-07; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:219. Reserved.

PART II. LIVESTOCK RAISING AND KEEPING RESTRICTED

Sec. 14:220. Movement of animals.

(a) It shall be unlawful for any person to drive livestock through the streets of the city-parish.

(b) It shall be unlawful for any person to tie or anchor livestock or any other domestic animal for grazing or such like purposes, or to drive, ride or otherwise cause to be manned any livestock upon or across any grass lawns, golf grounds or parks of the city-parish.

(c) It shall be unlawful for any person to knowingly bring into the city-parish any animal affected with any infectious or contagious disease.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 3, 9-12-12)

Sec. 14:221. Livestock prohibited.

(a) It shall be unlawful for any person to keep, possess or maintain any livestock unit on any parcel of land unless such parcel of land shall have a minimum of one (1) acre for the first livestock animal plus a minimum of one-half (½) acre for each additional livestock animal within the city and/or in recognized subdivisions in the parish.

(b) No livestock shall cause a nuisance to any resident in the parish.

(c) The restrictions as set forth in subsection (a) shall not apply, provided livestock remain on or about their premises as noted below:

(1) In a building or structure such as a stable, barn, shed or pen being a minimum of one hundred (100) feet, measured in a straight line, from the nearest point of a neighbor-

ing structure used for human habitation other than that of the owner, such as a residence, public eating place, church, school or hospital.

(2) In a fenced area, the perimeter being a minimum of one hundred (100) feet measured in a straight line from the nearest point of a neighboring structure used for human habitation other than that of the owner, such as a residence, public eating place, church, school or hospital.

(d) The provisions of subsections (a) and (b) notwithstanding, such restriction may be waived if a petition is submitted by any property owner requesting permission to keep livestock, which petition has been signed by more than fifty (50) percent of the property owners within a three hundred (300) feet radius of the location of the property.

(e) This section shall only apply upon receipt of a written letter of complaint, including the complainant's name, address and telephone number.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 9766, § 7, 11-24-93; Ord. No. 10264, §§ 1, 2, 4-26-95; Ord. No. 15384, § 3, 9-12-12)

Sec. 14:222. Livestock at large prohibited.

(a) It shall be unlawful for any livestock thereof to run, roam, or be at large or on any of the public highways, commons or lands, either public or private, within the limits of the city-parish. The owner or keeper is liable for any damages caused by such animals. Staked or secured animals shall not be permitted to reach any road or highway or cause any danger or obstruction.

(b) The animal control and rescue center, or any other law enforcement officer, may seize and impound all and any livestock found at large in the parish, using all manners and means necessary.

(c) Impounded animals shall be held at the animal shelter for six (6) days and the owner notified of impoundment within twenty-four (24) hours by letter or warning notice. If not redeemed in six (6) days, the animal shall be sold.

(d) If the owner is unknown, the animal shelter shall publish an advertisement in a newspaper of general circulation shall set forth the following information.

(1) The name and address of the impounding organization.

(2) Species, sex, size, marks, brands, color, and approximate age of animal.

(3) Date, time and location of impoundment.

(4) Applicable fines and fees.

(5) The holding period on the animals and the fact that the animal will be sold if not claimed.

(6) That the person claiming ownership must appear in person to prove claims of ownership.

(e) If, after advertisement in the newspaper, the owner does not appear by the time specified, the animal control center shall proceed to sell the animal at public auction to the highest bidder.

(f) Each day a violation of this section is continued shall be deemed a separate violation.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 9766, § 8, 11-24-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:223. Penalty.

(a) Any person who violates any provisions of the sections of this chapter or who shall hinder or molest or interfere with any officer or agent of the animal control and rescue center or animal shelter in the performance of any duty provided for by this chapter shall, upon conviction by a court of competent jurisdiction, be deemed guilty of a misdemeanor and may be fined any amount up to two hundred dollars ($200.00) or imprisoned for not more than sixty (60) days, or both fined and imprisoned, in the discretion of the court.

(b) The animal control and rescue center, or its agents, may enforce any provision of this chapter by instituting a suit for injunctive relief and use of summary process, including all temporary restraining orders permitted by law.

(c) Each animal that shall run or otherwise be at large in violation of section 14:222 shall constitute a separate offense by the owner of such animal.

(d) The owner shall pay any other incidental costs associated with the animal being at large or impounded, including the costs of containing and impounding the animal.

(e) Any livestock which is severely injured at the time of impoundment may, at the discretion of the animal shelter supervisor or director, be destroyed in a humane manner immediately and without waiting the prescribed six (6) days if the owner is unknown or unavailable. This action may be taken if, in the opinion of the animal shelter supervisor or director, the livestock's condition is such that imminent destruction is necessary, as a humane gesture, and for the protection of other livestock or animals or humans with which the livestock may have come into contact. Any animal so destroyed may be disposed of at the discretion of the animal shelter. The supervisor may authorize a law enforcement officer to euthanize said animal.

(f) Fees and fines, per animal, running at large:

First offense	$ 40.00
Second offense	60.00
Third offense	120.00

Per day boarding shall be charged a reasonable rate set and published by the animal shelter pursuant to Code of Ordinances section 14:101.1 (Ord. No. 9634 § 1, 5-26-93; Ord. No. 9766, § 9, 11-24-93; Ord. No. 13097, § 5, 10-27-04; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:224. Chickens, other fowls, and birds.

(a) The keeping of more than three (3) chickens within a recognized residential subdivision on a lot of less than one (1) acre is prohibited.

(b) The keeping of roosters, geese, guinea fowl, ducks, turkeys, or peacocks is similarly prohibited in recognized residential subdivisions on lots of two (2) acres or less.

(c) (1) Any chicken or other fowl or avian kept in a residential subdivision shall be maintained as follows.

a. All chickens, or other fowl, or avians shall be confined to the owner's property at all times.

b. Pens, coops, flight cages, or other enclosures shall be located a minimum of ten (10) feet from the nearest property line and minimum of fifty (50) feet from any residence other than that of the owner.

c. All enclosures shall be cleaned regularly to prevent an accumulation of food, fecal matter, or nesting material from creating a nuisance or unsanitary condition due to odor, vermin, debris, or decay.

d. Appropriate food, water, shelter and housing shall be provided to meet the requirements of the particular fowl or avian in question.

(2) No fowl or bird shall cause a nuisance. Owners of fowl or birds will be held responsible and liable for any damages they cause in the parish.

(d) The provisions of this section shall apply upon receipt of written and signed complaint by the director of the animal control and rescue center. When a violation is determined to exist, the owner or keeper shall be ordered to correct the violation within seventy-two (72) hours of receiving such notice. Failure to correct the violation may result in the owner or keeper being issued a summons to appear in court for the violation(s). Each day a violation of this section is continued shall be deemed a separate violation.

(e) Registered Four-H and Future Farmers of America (F.F.A.) club members may be allowed to keep fowl otherwise prohibited in this section provided that they:

(1) Meet all provisions of subsection (c)(1)c. and d.; and

(2) Obtain prior written approval and permission from all adjoining property owners or

residents and file such approvals with Four-H or F.F.A. club supervisors or agents.

(f) Properly licensed raptor owners shall be exempted from this section provided that they meet all provisions of subsection (c)(l)c and d.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 9766, § 10, 11-24-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:225. Penalties.

(a) Any person who violates any provisions of the sections of this chapter or who shall hinder or molest or interfere with any officer or agent of the animal control and rescue center in the performance of any duty provided for by this chapter shall, upon conviction by a court of competent jurisdiction, be deemed guilty of a misdemeanor and may be fined any amount up to five hundred dollars ($500.00) or imprisoned for not more than one hundred- eighty (180) days, or both fined and imprisoned, in the discretion of the court.

(b) The animal control and rescue center, or its agents, may enforce any provision of this chapter by instituting a suit for injunctive relief and use of summary process, including all temporary restraining orders permitted by law.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

CHAPTER 3. OWNING AND KEEPING OF WILD, EXOTIC ANIMALS AND REPTILES

Intent: The metropolitan council finds and declares that wild or exotic animals often pose serious threat to human health and safety and can cause severe environmental damage. These animals have very specific biological requirements best met in their natural environment. When it is necessary to confine them in captivity, they should be under the supervision of qualified zoological or otherwise competent professional caretakers. Furthermore, it is unsuitable and cruel to involve them in any display, act, or exhibit which causes them to engage in unnatural behavior or expose the public to potential injury. Because these animals constitute a threat if inadvertently set free, and because they cannot legally be vaccinated against rabies at this time, their presence in a community should always be known to government officials.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 4, 9-12-12)

Sec. 14:300. Definitions.

For the purpose of this chapter, the following definitions shall apply.

(a) *Minimum care standards* means those standards for animal care promulgated by the animal control center.

(b) *Unnatural behavior* means behavior which is not part of a wild animals natural habits or behavioral repertoire, or in which it would not engage in its natural habitat.

(c) *Resident* means a person legally residing in the parish.

(d) *Enhance the species* means to add significantly to the overall welfare, health and well-being of the species in question through a program that includes, at a minimum, controlled breeding, formal public education presentations, membership and participation in such professional organizations as state and national wildlife rehabilitators associations, the American Association of Zoological Parks and Aquariums (AAZP&A), American Association of Zookeepers, American Association of Zoo Veterinarians, and other such requirements as the director of the animal control and rescue center may deem necessary.

(e) *Wildlife rehabilitator* means any person who has possessed, a valid state or federal permit for the capture and possession of injured, infirm, orphaned wild or exotic animals for purposes of treatment or sanctuary, provided that the wild animals and/or under the persons care are not used primarily for any public display, whether or not a fee is charged, or are being kept as pets or does not keep or harbor the wild or exotic animals in a recognized subdivision.

(f) *Agent* means any authorized employee of the animal control and rescue center or such other persons as designated by the director of the animal control and rescue center, which may include veterinarians, zoo professionals, law enforcement officers, or others involved in the field of captive wildlife or exotic animal care and husbandry.

(g) *Pet* means any animal kept primarily for pleasure rather than for utility.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:301. Jurisdiction.

(a) The director of the animal control and rescue center shall enforce provisions of this title and is authorized to issue or deny permits for the ownership, possession or custody of wild or exotic animals in accordance with requirements of this title.

(b) The director of the animal control and rescue center shall make investigations or inspections to determine whether any permit holder under this title has violated or is violating any provisions of this title or any regulations issued thereunder. The director of the animal control and rescue center and his agents shall, at all reasonable times, have access to all facilities where wild or exotic animals are held pursuant to permits issued under this title. The director of the animal control and rescue center is specifically authorized and directed to make random and unannounced inspections of such facilities at any reasonable time.

(c) The director of the animal control and rescue center is authorized to establish rules and regulations necessary and appropriate for the particular species of animal and for the administration and enforcement of this title in cooperation with a qualified and licensed veterinarian.

(d) The director of the animal control and rescue center is authorized to release any wild or exotic animal or reptile to the wild. In addition, wild and exotic animals may be released to a zoological park or to any other person or agency deemed appropriate.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:302. Prohibitions.

(a) No person shall own, possess or sell or keep a wild or exotic animal as a pet in the parish.

(b) No person shall keep or permit to be kept on his or any other premises any wild or exotic animal for display or for exhibition purposes, whether gratuitously or for a fee. This section shall not apply to zoological parks accredited by AAZPA, circuses or veterinary clinics, performing animal exhibitions not in violation of section 14:301(c), or governmental institutions.

(c) No person may own, possess, or have custody of any wild or exotic animal unless that person first obtains a permit from the director of the animal control and rescue center or is exempted from obtaining such a permit as set forth herein.

(d) No person may sponsor, promote, or train a wild or exotic animal in, or attend as a spectator, any activity or event in which any wild or exotic animal engages in unnatural behavior or is wrestled, fought, mentally or physically harassed or displayed in such a way that the animal is abused or mentally or physically stressed or has the potential to injure a human being. This prohibition applies to events and activities taking place in either public or private facilities or property, and applies regardless of the purpose of the event or activities and irrespective of whether gratuitously or for a fee.

(e) No person shall own, keep or harbor any poisonous or venomoid snake in the parish, except institutions of higher learning, zoos or governmental agencies.

(f) No person shall allow a wild or exotic animal to escape.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:303. Permits.

All applicants shall complete and submit an animal control and rescue center application form prior to licensing.

(a) *Exemptions; standards for issuing permits:*

(1) The following persons are exempt from the permit requirement of section 14:302(c):

a. A person possessing or having temporary custody of a sick, orphaned or injured wild animal solely for the purpose of temporarily keeping or transporting the animal to a licensed veterinarian or permitted wildlife rehabilitator or animal shelter, or an organization that is an accredited member of AAZP&A or similar organization or to a federal, state, or local governmental official with authority to handle the animal.

b. Licensed veterinarians tending to injured or sick wild and/or exotic animals.

c. Any "research facility" within the meaning of section 2(d) of the Federal Animal Welfare Act, 7 USC section 2132(e), licensed by the Secretary of Agriculture of the United States pursuant to that act.

d. The animal control and rescue center or any agent or official thereof, acting in an official capacity.

e. Any agency or official of the federal, state, or local government, acting in an official capacity.

f. A zoo that is an accredited member of the AAZP&A.

g. State universities or other state agencies working with wild or exotic animals.

h. Circuses.

i. Performing animal exhibitions that do not violate section 14:301(c).

j. Agricultural operations as defined in R.S. 3:3602.

(2) Persons applying for permits must demonstrate to the director of the animal control and rescue center:

a. That the facility is not in a recognized subdivision in the parish.

b. That the proposed ownership, possession or custody of the wild or exotic animal will enhance the species in question within the meaning of section 14:300(d).

c. That the applicant possesses the scientific and animal husbandry credentials and material resources to implement the proposed species enhancement program.

d. That the applicant will be able to comply with the minimum care standards.

e. That the wild animal or exotic will not be kept as a pet.

f. That the applicant will be able to comply with any other applicable state, local or municipal laws, titles or regulations, including those issued by the director of the animal control and rescue center under authority of this chapter.

g. That the wild or exotic animal in question will not be used, directly or indirectly, in activities or events prohibited by section 14:302(d).

h. That the applicant can comply with all other terms, conditions and requirements as set forth by the director of the animal control and rescue center.

i. That every animal be inspected by a licensed veterinarian ev-

ery year who, upon a determination that the animal is in good health, shall issue a health certificate, and shall forward said certificate to the animal control and rescue center.

j. That the animal will not endanger the public health and safety and will be housed in a manner to prevent escape and to enable species-typical activities.

(b) *Requisite provisions of the permit:*

(1) Any permit issued shall be consistent with the purpose and other provisions of this title.

(2) The permit must specify:

a. The number, species and exact identification of the individual animals authorized to be owned, possessed or held by the permit.

b. The location where each animal will be kept.

The director of the animal control and rescue center may promulgate by rule making any additional conditions or restrictions to be contained in permits consistent with the purpose and provisions of this title.

(c) *Application procedure:*

(1) Each applicant for a permit shall submit a written application to the director of the animal control and rescue center, prior to possessing any animals in the parish.

(2) The director of the animal control and rescue center may conduct a hearing with respect to any permit application at the request of any interested party or at the discretion of the director in order to issue or deny a permit. If a hearing is conducted notice must be published in a newspaper of general circulation, and notice must be mailed to the applicant at least twenty (20) days prior to the hearing.

(3) The director of the animal control and rescue center shall issue or deny the application for a permit as soon as possible, but no later than thirty (30) days after the thirty-day period for comments has expired, or if a hearing is held, no later than thirty (30) days after the hearing. Notice of the issuance or denial of a permit shall be published in a newspaper of general circulation within seven (7) days of issuance or denial.

(d) *Duration of permit:* The permit shall authorize the applicant to own, possess, or have custody of all animals specified in the permit for a period of one (1) year or for a shorter period if deemed necessary by the director of the animal control and rescue center and specified on the permit.

(e) *Renewal of permits:* The director of the animal control and rescue center may renew a permit annually, after inspection, upon the applicant showing that the applicant' continues to comply with all the requirements of this title.

(f) *Fees:* The fees, per permit, are one hundred dollars ($100.00) annually.

(g) *Modification or revocation of permit.*

(1) The director of the animal control and rescue center shall have the power to modify or revoke any permit issued pursuant to this section for any of the following reasons:

a. In order to make the permit conform to any regulation promulgated by the director of the animal control and rescue center.

b. In any case where the terms and conditions of the permit are violated.

c. Where a wild or exotic animal owned or possessed pursuant to a valid permit is found in the

custody, care, possession or control of any person other than the permit holder or his agent or other persons specified on the permit, except when such animals are involved in formal breeding or propagation, loan agreements between zoological parks, aquariums, private breeders or rehabilitators with proper permits.

d. In any case where the permit holder or other person with possession or custody of the animals is found not to meet the minimum care standards or has violated any provisions of R.S. 14:102.

e. When the number of animals listed on the permit changes, except in regard to animals who have given birth or have died; and these changes must be reported to the animal control and rescue center within one (1) month of the event.

f. In any case where the permit holder or his agents denies the animal control and rescue center director or his agents access for inspection.

g. For nonpayment of any fees due under the provisions of this chapter.

(2) a. The animal control and rescue center director or his agent shall afford the permit holder an opportunity for a hearing and shall mail notice of the hearing to the permit holder at least twenty (20) days prior to the hearing.

b. The permit shall not be modified or revoked and the permit holder shall retain custody of the wild or exotic animal until the director has rendered a decision following a hearing and a copy of the decision is mailed to the permit holder, except where the animal control and rescue center director determines that the health or welfare of the animal or humans may be adversely affected by leaving the animal in the custody of the permit holder, in which case the director may order the animal temporarily removed to the custody of a facility able to house the animal.

(3) If the animal control and rescue center director revokes the permit, the animal shall be permanently removed from the custody of the permit holder and forfeited to the animal shelter to be disposed of accordingly, but in any case, not less than fifteen (15) days after the revocation.

(4) The director's decision to revoke the permit can be appealed to a court of competent jurisdiction within fifteen (15) days after the revocation.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:304. Grandfather clause.

Any currently permitted wild or exotic animal which is housed or kept in the parish prior to this title becoming law, must meet all requirements of this title and be inspected and permitted or denied a permit by the animal control and rescue center director within six (6) months of the effective date of this title. No wild or exotic animal grandfathered in shall be allowed to breed. The grandfather permit shall expire after the animal dies, is sold, or is transferred out of the parish.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:305. Wildlife and exotics in transit.

(a) No nonresident person of this parish may bring any wild or exotic animal into this parish or travel with any wild or exotic animal in this parish, without obtaining a permit from the director, before entering this parish. To obtain a

permit to enter or travel with any wild or exotic animal, such nonresident shall notify or submit an application to the director, which shall describe the number and species of animals, anticipated itinerary, and purposes for bringing the animal or animals into the parish. The animal control and rescue center director may issue the permit provided that the applicant can demonstrate, in advance, compliance with the minimum care standards. The permit shall be valid for no more than thirty (30) days and may not be renewed.

(b) This section shall not apply to:

(1) Common carriers.

(2) Animal suppliers transporting wildlife or exotics to zoos.

(3) Animal suppliers to institutes of higher education.

(4) Local, state or federal agencies.

(5) Other individuals or groups which have been granted a waiver by the director of the animal control and rescue center for good cause shown.

(6) Nonresidents traveling with any wildlife or exotic animal which shall be in the parish not more than seventy-two (72) hours, provided that such wild or exotic animal is not employed for or involved directly or indirectly in any exhibition or commercial purpose in conflict with this title.

(7) Circuses meeting minimum humane standards.

(8) Zoos meeting minimum humane standards.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:306. Contingency plan.

All owners shall have a written contingency plan for animal escape and retrieval and shall notify the city police and/or parish sheriff's office and animal control and rescue center immediately if an escape occurs. A copy of the written contingency plan shall be submitted to the animal control and rescue center before a permit can be issued.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:307. Wildlife or exotic escapes and impoundments.

(a) In the event a wild or exotic animal escapes from the custody of the owner and/or possessor, the owner and/or possessor, as the case may be, shall, upon conviction by a court of competent jurisdiction, be deemed guilty of a misdemeanor and shall be fined and/or imprisoned, in the discretion of the court, according to the provisions of the schedule of subsection (b) below.

(b) The fine and imprisonment schedule for conviction of violations of subsection (a) above shall be as follows:

(1) First offense within a one-year period:

Fine	$100.00
Term of imprisonment, days	10

(2) Second offense within a one-year period:

Fine	$200.00
Term of imprisonment, days	30

(3) Third offense within a one-year period:

Fine	$300.00
Term of imprisonment, days	60

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 4, 9-12-12)

Sec. 14:308. Wild or exotic bite cases.

(a) For the purpose of this section, the term "bite" means the breaking of the skin of a human being by a wild or exotic animal.

(b) Any wild or exotic animal, provoked or unprovoked, that bites a human shall be disposed of as follows:

(1) The animal shall be euthanized and the head sent off for rabies testing.

(2) The animal control and rescue center shall deliver said wild or exotic animal head to the appropriate authority for testing.

(3) Wild or exotic animals that are found dead and that have bitten a human shall be impounded and their head shall be sent for testing to the parish health officer or other testing agency.

(c) *Exception:* The animal control and rescue center may consider a six-month to one-year rabies quarantine period for rare, endangered or threatened or other exotic or wild animals if the following criteria are fully met.

(1) A letter is received from a licensed veterinarian requesting observation rather than euthanasia.

(2) The victim agrees to the observation of the animal rather than euthanasia. Parents or legal guardians may act on behalf of minors.

(3) The owner and/or possessor shall agree to indemnify and hold harmless the animal control and rescue center, animal shelter, and city-parish.

(4) The animal was bred and raised in captivity.

(5) The animal was licensed according to all federal, state or local laws.

(6) The six-month holding period shall be considered a minimum time period.

(7) After the observation period, a licensed veterinarian can release the animal and the animal control and rescue center will be notified, in writing, thereof.

(8) Animals shall be quarantined under conditions as required by the animal control and rescue center and the veterinarian involved.

(d) *Other mammal bite cases:* For any other animal bite cases, the animal control and rescue center may recommend those standards that are advised by the NASPHV compendium of animal rabies control.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:309. Liability insurance for wild or exotic animals.

The owner or keeper shall present to the director of the animal control and rescue center proof that the owner or keeper has procured liability insurance in the amount of at least five hundred thousand dollars ($500,000.00), covering any damage or injury which may be caused by such animal during the twelve-month period for which licensing is sought, which policy shall contain a provision requiring the city-parish to be named as an additional insured and the city-parish shall be notified by the owner or keeper of any cancellation, termination or expiration of the liability insurance policy.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:310. Poisonous or venomoid snakes.

(a) The sale, possession or ownership of poisonous snakes in the parish, except by an institution of higher education, zoos or governmental agencies, is prohibited.

(b) The sale, possession or ownership of venomoid snakes in the parish, except by an institution of higher education, zoos or governmental agencies, is prohibited.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 4, 9-12-12)

Sec. 14:311. Penalties.

(a) Except as provided in section 14:307, any person who violates any provisions of the sections of this chapter or who shall hinder or molest or interfere with any officer or agent of the animal control and rescue center or animal shelter in the performance of any duty provided for by this chapter shall, upon conviction by a court of competent jurisdiction, be deemed guilty of a misdemeanor and may be fined any amount up to five hundred dollars ($500.00) or imprisoned for not more than one hundred eighty (180) days, or both fined and imprisoned, in the discretion of the court.

(b) The animal control and rescue center, or its agents, may enforce any provision of this chapter by instituting a suit for injunctive relief and use of summary process, including all temporary restraining orders permitted by law.

(c) Any wild or exotic animal owned, possessed or in the custody of any person so convicted shall be forfeited to the animal control and rescue center. Every violation of this title and/or any regulations promulgated thereunder shall be considered a separate offense.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

CHAPTER 4. PROTECTION OF BIRDS

Sec. 14:400. City designated bird sanctuary.

The area embraced within the corporate limits of the City of Baton Rouge as they now exist or may hereafter be amended from time to time is hereby designated as a bird sanctuary.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 5, 9-12-12)

Sec. 14:401. Trapping, hunting, shooting, molesting of birds prohibited, exception.

Within the corporate limits of the city it shall be unlawful to trap, hunt, shoot or molest in any manner any bird or wildfowl or to rob bird nests or wildfowl nests. Exceptions include the following:

(1) If starlings or similar birds are found to be congregating in such numbers in a particular locality that they constitute a nuisance or menace to health or property in the opinion of the health authorities of the city-parish and the director of the animal control and rescue center, such health authorities and director shall have the right to order the destruction of the birds in such numbers and in such manner as may be deemed advisable for the purpose of abating such nuisance.

(2) If the state department of wildlife and fisheries issues a scientific collecting permit, a permittee may collect, capture, and possess the types and number of organisms as indicated by the permit. The permittee is further limited to the method of collection, collection area, purpose of collection, specimen storage, and personnel, as indicated on the permit.

This section shall not apply to the trapping or recapturing of an owned or permitted bird.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 9766, § 11, 11-24-93; Ord. No. 15237, § 1, 1-11-12; Ord. No. 17281, § 1, 3-11-20)

Sec. 14:402. Penalty.

Any person who violates any provisions of the sections of this chapter shall, upon conviction by a court of competent jurisdiction, be fined up to two hundred dollars ($200.00) or imprisoned for not more than sixty (60) days or both.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 5, 9-12-12)

CHAPTER 5. ANIMAL CRUELTY PROHIBITED

Sec. 14:500. Definitions.

The following words, phrases, and terms as used in this section shall be defined and construed as follows:

(a) *Proper food:*

(1) Food should be wholesome, palatable, and free from contamination. Food shall be provided in sufficient quantity and be of adequate nutritive value to maintain all animals in good health.

(2) The diet shall be prepared with consideration of the age, species, condition, size and type of animal.

(3) Animals should be fed at least once a day- except as dictated by veterinary advice or other professionally accepted practices for the safety and well-being of the animal.

(4) All food receptacles shall be kept clean and sanitary. Receptacles used to store food shall be kept covered.

(5) If more than one (1) animal is fed at one (1) time or in one (1) place, it shall be the

responsibility of the owner/custodian to ensure that each animal receives enough food.

(b) *Proper water:*

(1) "Proper water" shall mean clean, drinkable water available at all times for all animals.

(2) Exceptions shall be determined by veterinary consultation or professionally accepted practices for the safety and well-being of the animal.

(3) Animals who are being worked or are in transport shall be provided water as often as necessary for the health and comfort of the animal. Frequency of watering shall consider age, species, condition, size and type of animal. Activity levels and climatic conditions must also be considered.

(4) All water receptacles shall be kept clean and sanitary, be of appropriate design and size for the animal, and be positioned or affixed to prevent spills.

(c) *Proper shelter:*

(1) *Indoor:*

a. Facilities shall be sufficiently regulated by heating and cooling, if necessary, to protect animals from extremes of temperature and to provide for their health and well-being. Temperature shall not be below fifty (50) degrees Fahrenheit.

b. The ambient temperature shall not be allowed to fall below or rise above temperatures compatible with the health and well-being of the animal.

c. Facilities shall be adequately ventilated by natural or mechanical means to provide for the health and well-being of the animal at all times. Such facilities shall be provided with fresh air by means of windows, doors, vents, fans, or air conditioning and shall be ventilated so as to minimize drafts, odors, and moisture condensation.

(2) *Outdoor:*

a. All animals kept outdoors shall have access to shelter that provides protection from the weather, i.e., wind, precipitation, or other inclement weather conditions.

b. Shelter shall be well constructed and appropriate for the species. Consideration shall be given to the animal's age, physical condition, and hair coat when determining whether or not available shelter is proper.

c. All animals shall have access to shade from the sun during hot weather.

d. If shelter is provided for community cats, it shall be unobtrusive, safe, and of the proper size for the cat(s).

(3) *Outdoor shelter for dogs:*

a. The shelter for a dog shall have a roof, enclosed sides, a doorway, and a solid, level floor.

b. If there are no artificial heat sources, structures shall be small enough to permit normal postural adjustments.

(d) *Proper space:*

(1) All animals shall be able to stand to their full height, stretch out, turn around, lie down and make normal postural adjustments comfortably.

(2) Animals shall be allowed to exercise and have freedom of movement as necessary to reduce stress and maintain good physical condition. Space and provisions for exercise must be appropriate for the species and sufficient to meet the needs of the animal.

(3) Space available to the animal must be useable, i.e., maintained in a safe and healthful manner and be free of standing water, accumulated waste and debris.

(e) *Caging of dogs and cats:*

(1) Cage confinement of dogs and cats is abnormally restrictive and stressful and is only acceptable for temporary confinement. Dogs and cats should not be caged except upon veterinary advice, transport, or for other professionally accepted practices.

(2) Dogs kept in cages for the above reasons shall be removed from them and exercised a minimum of twice a day—once in the morning and once in the afternoon.

(3) Dogs in cages shall be monitored as necessary to keep the cage free of urine and fecal matter.

(4) Cats confined in cages must be provided with litter pans and litter material. Litter

pans shall be cleaned and litter materials changes as necessary to prevent odor and accumulation of urine and fecal matter.

(f) *Small mammals in cages:* Caging for small mammals and rodents, such as guinea pigs, rabbits, and hamsters, shall be of a size sufficient to permit foraging activities, contain a place to burrow or nest, and space necessary for the animal to exercise.

(g) *Dogs in pens:*

(1) The size of the pens is determined by the size and number of dogs housed therein. Dogs housed together must be socially compatible. It is recommended that no more than four (4) compatible dogs be housed in a single pen.

(2) Minimum space for dogs in pens shall be same as pen requirements of this title.

(h) *Dogs on tethers; improper confinement:*

(1) The continuous maintenance of a dog on a chain, rope or other kind of tether is abnormally restrictive and stressful and often result in health and temperament problems. In most cases such long-term confinement will cause the dog to suffer unnecessarily.

(2) However, tethering may be acceptable in cases where adequate daily socialization and exercise are allowed.

(3) If a dog is confined on a tether, the tether shall be positioned to prevent tangling and hanging. The tethered dog shall wear a properly fitted harness or buckle-type collar. A properly installed and positioned running line is preferable to a stationary tether.

(4) No other animals shall be tethered unless under the supervision of a custodian capable of handling the animal, and the animal is not a threat to public safety and health concerns.

(i) *Proper light:*

(1) All animals shall have at least eight (8) hours of light a day, except as directed by hibernation, veterinarian advice or professionally accepted practices for the safety and well-being of the animal.

(2) Lighting of primary enclosures shall be designed to protect animals from excessive illumination. The duration of illumination shall be appropriate for the species involved.

(j) *Unnecessary suffering:* Situations that expose an animal to prolonged:

(1) Fear.

(2) Injury.

(3) Pain.

(4) Physical abuse

(k) *Adequate grooming, hoof care, etc.:* Animals shall be groomed in such a manner to maintain health. Animals shall be provided with hair, hoof, claw, nail, tooth and beak care as appropriate and as necessary to maintain health and comfort.

(l) *Adequate collars, etc.:* Collars, harnesses, halters and the like shall be monitored so as to ensure proper fit and prevent discomfort or injury.

(m) *Proper veterinary care:*

(1) *Emergency treatment:*

a. An animal shall be afforded veterinary care if known or suspected to have suffered an injury, accidental or deliberate, and exhibits such signs as shock, swelling, broken bones, open wounds, blistering, partial or total paralysis, bleeding, or other such signs.

b. Animals who are debilitated and weakened or those exhibiting symptoms of bloat or other life- threatening illnesses—symptoms such as persistent vomiting or diarrhea— should be afforded veterinary care.

(2) *Treatment within forty-eight (48) hours:* An animal who has exhibited signs of severe parasitic infestation or disease such as infection, discharge, weight loss, abnormal skin condition or hair loss, tremors,

inability to bear weight on a limb or lameness, or any other such sign over a period of forty-eight (48) hours or more should be afforded veterinary care within the next forty-eight (48) hours. This does not apply to conditions that are chronic or permanent and that have previously been diagnosed and treated or are under veterinary care.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 6, 9-12-12; Ord. No. 15788, § 3, 9-24-14)

Sec. 14:501. Cruelty to animals.

Any person who intentionally or with criminal negligence commits any of the following shall be guilty of cruelty to animals:

(1) Overdrives, overloads, drives when overloaded, or overworks a living animal.

(2) Tortures, torments, cruelly beats or unjustifiably injures, causes unnecessary suffering, maims, mutilates, or kills any living animal whether belonging to himself or another.

(3) Having charge, custody, or possession of any animal, either as owner or otherwise, unjustifiably fails to provide it with proper food, property water, property shelter, proper veterinary care, proper space, proper light, proper confinement, adequate grooming, adequate care, or adequate collars.

(4) Abandons any animal.

(5) Carries, or causes to be carried, a living animal in or upon a vehicle or otherwise, in a cruel or inhumane manner.

(6) Unjustifiably administers any poisonous or noxious drug or substance to any domestic animal or unjustifiably exposes any such drug or substance, with intent that the same shall be taken or swallowed by any domestic animal.

(7) Kills or injures any animal belonging to another person without lawful authority or consent of the owner.

Exception: If a person is being actively attacked by an animal, they may kill such animal as a means of self- defense.

(8) Mistreating any living animal by any act or omission whereby unnecessary suffering or unjustifiable physical pain, suffering, or death is cause to or permitted upon the animal.

(9) Causes or procures to be done by any person any act enumerated in this section.

(10) Fights, causes or allows to fight any animal or procures to fight, or is a spectator or onlooks at a fight any animal as defined, including birds and/or other fowl.

This section shall not apply to the lawful hunting or trapping of wildlife as provided by law, accepted veterinary practices, accepted livestock and poultry production practices, and activities carried on for scientific or medical research governed by accepted standards. Steel leg hold traps are banned in recognized subdivisions in the parish, except if permitted by the animal control and rescue center, to remove dangerous or nuisance animals and permits are current from any other pertinent agency.

(Ord. No. 9634 § 1, 5-26-93; Ord. No. 12670, § 1, 6-25-03; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:502. Seizure and disposition of animal cruelly treated.

(a) When a person is charged with cruelty to animals, said person's animal may be seized by the arresting officer and held pending final disposition of the charge. The seizing officer shall appoint a licensed veterinarian or other suitable custodian to care for any such animal. The custodian shall retain custody of the animal for the purpose of evidence upon the trial, subject to order of the court. All costs incurred in boarding and treatment for any seized animal pending disposition of any animal cruelty charge, upon conviction of the accused, shall be borne by the person so convicted. If a seized animal is unable to humanely survive the final disposition of the animal cruelty charge, the court may order that such animal be humanely put to death, but only upon the certification of a licensed veterinarian either that the animal is not likely to survive or

that in his professional judgment, by reason of the physical condition of the animal, it should be humanely euthanized.

(b) Upon a person's conviction of cruelty to animals, it shall be proper for the court, in its discretion, to order the forfeiture and final determination of the custody of any animal found to be cruelly treated as part of the sentence.

(c) In the event of the acquittal or final discharge of the case without conviction of the accused, the court shall, on demand, direct the delivery of any animal held in custody to the owner thereof.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 6, 9-12-12)

Sec. 14:503. Search warrant; animal cruelty offenses.

If the complaint is made, by affidavit, to any judge authorized to issue search warrants in criminal cases, that the complainant has reason to believe that an animal has been or is being cruelly treated in violation, in any building or place, such judge, if satisfied that there is reasonable cause for such belief, shall issue a search warrant to any law enforcement officer authorized by law to make arrests for such offenses, authorizing any such officer to make a search of said building or place, and to arrest any person found in violation of this chapter. Said warrant may also authorize said officer to seize any animal believed to be cruelly treated and to take custody thereof. This section shall not be construed as a limitation on the power of law enforcement officers to seize animals as evidence at the time of the arrest.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15384, § 6, 9-12-12)

Sec. 14:504. Confined animals; necessary food and water.

When a living animal is impounded or confined, and continues without necessary food and water or proper veterinary care for more than twenty-four (24) consecutive hours, any law enforcement officer may, as often as is necessary, enter any place in which the animal is impounded or confined and supply it with necessary food and water, so long as it shall remain impounded or confined.

If the owner or keeper of said animal does not respond within twenty-four (24) hours to official notification by the animal control and rescue center relative to the animal's abandonment or conditions, the animal control and rescue center shall than seize the animal and deliver it to the animal shelter. If the animal is not claimed within a reasonable time as determined by the animal shelter director, but not less than six (6) days, it is then considered abandoned and forfeited to the animal shelter and shall be disposed of accordingly.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

Sec. 14:505. Penalties.

(a) Any person who violates any provisions of the sections of this chapter or who shall hinder or molest or interfere with any officer or agent of the animal control and rescue center or animal shelter in the performance of any duty provided for by this chapter shall, upon conviction by a court of competent jurisdiction, be deemed guilty of a misdemeanor and may be fined any amount up to five hundred dollars ($500.00) or imprisoned for not more than one hundred eighty (180) days, or both fined and imprisoned, in the discretion of the court.

(b) The animal control and rescue center, or its agents, may enforce any provision of this chapter by instituting a suit for injunctive relief and use of summary process, including all temporary restraining orders permitted by law.
(Ord. No. 9634 § 1, 5-26-93; Ord. No. 15237, § 1, 1-11-12)

CHAPTER 6. MISCELLANEOUS FEES

Sec. 14:600. Miscellaneous fees.

(a) Forfeited trap deposits $40.00

(b) Outside sales: Fees to be established by director of the animal control and rescue center.
(Ord. No. 13097, § 6, 10-27-04; Ord. No. 15237, § 1, 1-11-12)

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Title 15

MISCELLANEOUS

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CHAPTER 1. CIVIL EMERGENCIES*

Sec. 15:1. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

Civil emergency means:

(1) A riot or unlawful assembly characterized by the use of actual force or violence or any threat to use force, accompanied by immediate power to execute by three (3) or more persons acting together without authority of law; or

(2) Any natural disaster or man-made calamity, including flood, conflagration, cyclone, tornado, earthquake, or explosion, within the city-parish, resulting in death or injury of persons, or the destruction of property to such an extent that extraordinary measures must be taken to protect the public health, safety and welfare.

Curfew means a prohibition against any person walking, running, loitering, standing or motoring upon any alley, street, highway or public property or vacant premises, or otherwise moving about, within the city-parish, excepting persons officially designated to duty with reference to the civil emergency, and physicians, nurses, and ambulance operators performing medical services.
(City Code 1951, Title 15, § 1; Parish Code 1962, Title 16, § 1)

Sec. 15:2. Proclamation of civil emergency.

Whenever any civil emergency or the threat of same shall occur in the city-parish, and it is deemed necessary in order to suppress the civil emergency, and to protect the public health, safety and welfare, the mayor-president, or in the event of his absence or inability to act, the president pro tempore of the council, shall forthwith proclaim in writing the existence of such civil emergency.
(City Code 1951, Title 15, § 2; Parish Code 1962, Title 16, § 2)

Sec. 15:3. Time proclamation effective.

The proclamation of a civil emergency, provided for in section 15:2, shall be effective upon its issuance and dissemination to the public by appropriate news media.
(City Code 1951, Title 15, § 3; Parish Code 1962, Title 16, § 5)

Sec. 15:4. Curfew.

After the proclamation of a civil emergency, the mayor-president, or in the event of his absence or inability to act, the president pro tempore of the council, may order a curfew applicable to such geographical areas of the city-parish, or the city-parish as a whole, as he deems advisable, and applicable to such hours of the day or night as he deems necessary in the interest of the public safety and welfare.
(City Code 1951, Title 15, § 4; Parish Code 1962, Title 16, § 3)

Sec. 15:5. Orders mayor-president authorized to issue.

After the proclamation of any civil emergency, the mayor-president, or in the event of his absence or inability to act, the president pro tempore of the council, may also in the interest of the public safety and welfare make any or all of the following orders:

(1) Order the closing of all retail liquor stores;

(2) Order the closing of all places licensed to sell beer and liquor under applicable ordinances of the city-parish;

(3) Order the closing of all private clubs or portions thereof wherein the consumption of intoxicating liquor and/or beer is authorized to be sold;

(4) Order the discontinuance of the sale of beer and liquor;

*__Cross references—__Municipal and parish organization, Title 1; civil defense, § 1:75 et seq.

__State law references—__State civil defense agency, R.S. 29:601 et seq.; Louisiana Disaster Act of 1974, R.S. 29:701 et seq.

(5) Order the discontinuance of the selling, distribution or giving away of gasoline or other liquid flammable or combustible products in any container other than in a gasoline tank properly affixed to a motor vehicle;

(6) Order the closing of gasoline stations and other establishments, the chief activity of which is the sale, distribution or dispensing of liquid flammable or combustible products;

(7) Order the discontinuance of selling, distributing, dispensing or giving away of any firearms, or ammunition of any character whatsoever;

(8) Order the closing of any or all establishments or portions thereof, the chief activity of which is the sale, distribution, dispensing or giving away of firearms or ammunition;

(9) Issue such orders as are imminently necessary for the protection of life and property;

(10) Designate any public street, thoroughfare or vehicle parking areas closed to motor vehicles and pedestrian traffic;

(11) Call upon regular and auxiliary law enforcement agencies and organizations within or without the city-parish to assist in preserving and keeping the peace within the city-parish.

(City Code 1951, Title 15, § 5; Parish Code 1962, Title 16, § 4)

Sec. 15:6. Penalty for violating orders of authorized personnel.

Any person who fails or refuses to comply with the orders of duly authorized law enforcement officers, or personnel charged with the responsibility of enforcing the proclamation of a civil emergency, shall be deemed guilty of a misdemeanor, and upon conviction therefor, shall be punished by a fine of not more than two hundred dollars ($200.00) or by imprisonment for a period not to exceed sixty (60) days, or both such fine and imprisonment.

(City Code 1951, Title 15, § 6; Parish Code 1962, Title 16, § 6)

Sec. 15:7. Basis for establishing the areas of special flood hazard.

The areas of special flood hazard identified by the Federal Emergency Management Agency in a scientific and engineering report entitled, "The Flood Insurance Study for East Baton Rouge Parish, Baton Rouge and Vicinity," dated May 17, 1993, with accompanying flood insurance rate maps and flood boundary-floodway maps (FIRM and FBFM) and declared to be a part of this chapter, and as determined by the floodplain administrator where there appears to be a conflict between a mapped boundary and actual field conditions.

(Ord. No. 11363, § 1, 2-24-99)

Editor's note—Ord. No. 11363, § 1, adopted February 24, 1999, amended the Code by repealing former § 15:7 and adding a new § 15:7 to read as herein set out. Former § 15:7 pertained to penalty for violation of chapter or executive order, and derived from the City Code of 1951, Title 15, § 7; and the Parish Code of 1962, Title 16, § 7.

Sec. 15:8. Emergency facilities dedicated to housing or sheltering of registered sexual offenders prohibited.

(a) Notwithstanding any local or state provision to the contrary, it shall be unlawful for any person to locate or operate an emergency facility dedicated exclusively for the housing or sheltering of registered sexual offenders during a declaration of emergency in the parish.

(b) It is the stated purpose of this section to prevent the establishment of an emergency facility dedicated to the housing or sheltering of registered sexual offenders during a declaration of emergency in the parish. The establishment of such a facility will cause irreparable harm and injury to the citizens of the parish. In the event the city and parish are successful in enforcing the mandate of this section, the city and parish are entitled to recover costs and attorney's fees incurred in enforcement.

(Ord. No. 13773, § 1, 10-11-06)

CHAPTER 2. AIRPORT DISTRICT*

Sec. 15:10. Definitions.

Throughout this chapter the following words and phrases shall in the absence of clear indicating herein otherwise, be given the following respective interpretations herein:

Act 151 of 1969 means Act 151 adopted by the 1969 session of the Legislature of Louisiana.

Action and *action of commission* means proceedings of commission, whether in the form of a motion, resolution or ordinance, authorized to be adopted hereunder.

Authority means the council as more fully defined in section 15:11.

Commission means nine (9) qualified electors appointed and hereinafter to be appointed by the council having delegated powers as provided in this chapter.

District means the Greater Baton Rouge Airport District created in section 15:11.

Final means action of the commission that has become legally binding upon the district, authority and commission as provided in section 15:21.

Final date means the date on which action of the commission has become final.
(Parish Code 1962, Title 15, § 1)

Sec. 15:11. Creation of district; designation, governing authority.

(a) There is hereby created pursuant to the authority of Article 14, Section 14(d.2) and Act 151 of 1969, an airport district entitled "Greater Baton Rouge Airport District," the district to be composed of the whole of the city-parish and to constitute a subdivision of the state within the meaning of Article 10, Section 10, and Article 14, Section 14 of the Constitution of Louisiana.

(b) The governing authority of the airport district shall consist of:

(1) An airport authority; and

(2) A board of commissioners;

as provided hereinafter and as is provided for in Act 151 of 1969. "Airport authority," subject to the requirements of Section 5 of Act 151 of 1969, consists of the mayor-president and council and shall be known and herein referred to as "authority." The officers of the council and the city-parish under the Plan of Government shall be the officers of the authority. The board of commissioners shall be known as "Board of Commissioners of Greater Baton Rouge Airport District" and is hereinafter referred to as "commission."
(Parish Code 1962, Title 15, § 2)

Sec. 15:12. Powers of district and authority.

The airport district acting through its governing authority as herein provided shall have all the powers of a public corporation, including the rights to incur debt, to contract obligations, to issue bonds, to sue and be sued, to grant permits, franchises and enter into leases and other agreements, to have a corporate seal, and to perform in its corporate capacity and in its corporate name all action necessary and proper for the purpose of financing, acquiring, constructing, maintaining and operating airports and airport facilities, including both movable and immovable property. The district shall have all the powers authorized by Act 151 of 1969, and all powers generally pertaining to airport districts in the state. The district is fully authorized to cooperate financially and otherwise with the Government of the United States, the State of Louisiana, and with any political subdivisions, instrumentalities or agencies of the state and federal government in carrying out any of their powers hereunder.
(Parish Code 1962, Title 15, § 3)

Sec. 15:13. District constituted public agency; exemption from taxes and assessments.

The district shall constitute an instrumentality and agency of the state, exercising public and essential governmental functions. As the exercise of power granted hereby will in all respects be for the benefit of the people of the state and of the area for the increase of their commerce and pros-

*Cross reference—Airport zoning, § 7:12.101 et seq.
State law reference—Airport zoning, R.S. 2:381 et seq.

perity, the district shall not be required to pay any taxes or assessments upon the property acquired and used by it under the provisions of state law.
(Parish Code 1962, Title 15, § 4)

Sec. 15:14. Accounting system and budget for district; annual audit of books and records; availability of financial reports and information.

The office of director of finance shall maintain an accounting system and annual budget for the district in accordance with the best recognized practices in governmental accounting consisting of the "enterprise fund" system of accounting for airports as described in the publication of the Municipal Finance Officers Association by Joseph M. Cunningham, CPA, entitled "Airport Accounts." The books and records for the district shall be subject to audit annually in the same manner as is provided in the Plan of Government for the audit of departments and agencies of the city-parish. Financial reports and information shall be made readily available to director of aviation and commission as is necessary for the efficient day-to-day operation of the district.
(Parish Code 1962, Title 15, § 5)

Sec. 15:15. Employees in classified service; personnel subject to Code of Ethics.

Except as provided in Section 3 of Act 151, the district's employees shall be members of the classified service established by Chapter 9 of the Plan of Government, and its officers and employees shall be subject to the provisions of the Code of Ethics of the city-parish.
(Parish Code 1962, Title 15, § 6)

Sec. 15:16. Officers of district, authority and commission designated.

The mayor-president shall serve as president and presiding officer of the district and authority; the council administrator shall serve as secretary of the district and authority; the treasurer shall serve as treasurer of the district, the authority and the commission; and the office of parish attorney shall serve as general counsel for district, authority and commission.
(Parish Code 1962, Title 15, § 7)

Sec. 15:17. Rules of procedure.

The authority shall be governed by an act with regard to procedure pursuant to those provisions of the Plan of Government applicable to the council, and may adopt such additional rules of procedure as may be consistent with the Plan of Government.
(Parish Code 1962, Title 15, § 8)

Sec. 15:18. Board of commissioners—Created, designated; membership, meetings.

The creation of a board of commissioners to be known as "board of commissioners," herein referred to as "commission," is hereby confirmed. The present members of the airport commission shall be the initial commission members hereby appointed, and shall serve out their respective remaining terms of office for which they were originally appointed and are now serving. The commission shall meet at its domicile in the city, which is hereby designated as the municipal building, or shall meet in the administration building at any airport operated by the district.
(Parish Code 1962, Title 15, § 9)

Sec. 15:19. Same—Officers.

The board of commissioners shall elect from their members a chairman and a vice-chairman and such other officers as may be considered appropriate, subject to the designation of officers provided in sections 15:11 and 15:16.
(Parish Code 1962, Title 15, § 10)

Sec. 15:20. Airport director; appointment, powers, authority.

The authority (composed of members of the council) reserves the right to appoint and employ an airport director who shall have general administrative and supervisory powers. The airport director, acting as secretary of the commission, is empowered with the chairman or other authorized officer of commission, to attest to instruments executed on behalf of commission, to be custodian of the official seal of the commission herein authorized and certify to the correctness and authenticity of documents comprising a part of the official minutes and records of commission in airport director's official possession as secretary.
(Parish Code 1962, Title 15, § 11)

Sec. 15:21. Rules of procedure, records, compensation of commission.

(a) The commission shall adopt such rules and regulations as may be necessary for its government. A majority of the commission shall constitute a quorum for the transaction of business, but in no event shall a resolution, ordinance or other action of the commission become effective unless:

(1) Such action shall have been approved by not less than a majority of the entire membership of the commission; and

(2) Such action has become "final" as defined in and authorized by section 15:22.

(b) The commission shall keep a record of its proceedings and provide written copies thereof to authority as required in section 15:22. Members of the commission shall not receive any compensation.
(Parish Code 1962, Title 15, § 12)

Sec. 15:22. Notice and "final" action by commission.

(a) The state legislature by the adoption of Act 151 of 1969 delegated all powers to commission herein authorized to be exercised. Such Act 151 requires that authority shall retain the power to suspend or rescind any action or proposed action of commission (section 15:12). In order to establish a procedure to insure effectiveness of the legislative intent, this section is adopted.

(b) There is reserved on behalf of the authority the right to receive in writing from the commission copies of all motions, resolutions or ordinances (herein sometimes referred to as "actions") taken by the commission promptly after the adoption thereof by the commission and in any event a written copy of such action will be mailed to the office of council administrator, secretary of authority, by no later than ten (10) calendar days measured from (but not including) the date of adoption thereof. A written copy of action adopted by the commission received by the office of council administrator shall be distributed to each member of authority. The date on which a written copy of action of commission is received by council administrator's office is hereinafter referred to as "filing date."

(c) Authority shall have a period of ten (10) calendar days next following and exclusive of filing date within which to approve the minutes of the commission and may suspend or rescind any action of commission, provided that if a regular meeting of the council is not conducted during the ten (10) days, such period shall be extended to and include the date on which a regular meeting of the council is conducted; further provided that the date following the expiration of the period of time described in the preceding portion of this sentence (whether the ten (10) day or a longer period as shown) shall be defined as and hereinafter referred to as "final date."

(d) If the authority has not adopted a resolution or ordinance suspending or rescinding an action of commission prior to final date, such action shall become "final" on final date. The term "final" as used in the preceding sentence shall herein mean and refer to any action of the commission, whether in the form of a motion, resolution or ordinance, which has become legally binding and enforceable on district, authority and commission under the laws of the state and Act 151 of 1969. Action of commission may become final at any time as a result of the adoption of a resolution or ordinance by authority ratifying and approving action of commission.

(e) In case of an emergency affecting the public health, welfare and safety, commission action may become final immediately upon:

(1) Adoption of emergency action by the commission as herein provided; and

(2) Obtaining from authority approval and ratification thereof as is authorized by Section 2.12 of the Plan of Government.

(f) No action of the commission, whether in the form of a motion, resolution or ordinance, shall become final or be legally binding on the district, authority or commission until such action has become final as or be legally binding on the district, authority or commission until such action has become final as herein defined. The certificate of the council administrator, acting as secretary of authority, shall be conclusive as to filing date and final date.

(g) Special meetings of the authority may be convened (as provided for under the Plan of Government for the convening of special meetings of the council) and any regular or special meeting of the council may be recessed and a meeting of the authority convened (whether such meeting of the authority appears on the council agenda or not) for the purpose of taking up and considering the question of whether any action of the commission should be suspended, rescinded, ratified or approved. Written copies of actions taken by the commission whether in the form of a motion, resolution or ordinance, shall contain a reference to the time, date and place of the meeting at which the action was adopted, the names of the members of the commission present and voting and a clear and concise statement of the action adopted. When requested by authority, commission shall give notice to parish clerk of the time, date and place of meetings of commission. Notice of meetings of commission shall be given to each commission member and the public in the manner and posted as required by general law. All meetings of commission shall be open to the public as provided by R.S. 42:5 et seq.

(h) The provisions hereof notwithstanding all fiscal matters must follow the established policies and procedures for making budget supplements. (Parish Code 1962, Title 15, § 13)

Sec. 15:23. Powers of commission enumerated; limitations; budget.

(a) The commission shall be responsible for recommending to authority the selection of airport sites and facilities for the operation and administration of the same, and shall have all powers to act as governing authority of the district as authorized by Act 151 of 1969 except as herein prohibited or reserved to authority.

(b) The commission is empowered to employ all persons necessary for efficient and economical operation and maintenance of airport facilities owned or operated by the district for which funds are appropriated in the annual operation budget.

(c) The commission shall have the power, subject to the requirements of Act 151 of 1969 and general law, to enter into contracts for the lease of land, warehouses, terminal building rental space and any other properties and facilities owned or operated by the district and to grant franchises, leases and permits for use of airport properties and facilities, as, for example:

(1) Lease of land, buildings and improvements to fixed base operators and other lessees;

(2) Lease of land for parking facilities;

(3) Granting of permits or franchises for operation of limousine services;

(4) Lease of facilities for operation of restaurant services;

provided that any action of commission authorizing execution or issuance of a lease, franchise or permit on behalf of the district shall be subject to limitations and requirements of section 15:21 providing for the giving of notice to authority, and section 15:22 reserving to the authority the right to suspend or revoke any action of the commission within a designated period of time.

(d) The commission shall not be empowered under the authority of this chapter to adopt any proceedings which would have the effect of exercising powers reserved to the authority, including, for example, the employment of an airport director, the calling of any election for the issuance of bonds or the levy of taxes, purchase of land for a new airport or employment of engineers, architects, consultants or attorneys, which powers are reserved to the authority.

(e) The commission may, with the assistance of the director of finance and council budget officer, recommend to the authority a proposed annual budget for operation and capital improvement pur-

poses, including expenditure of self-generated revenues as well as all other moneys lawfully available to district from all sources; provided that authority reserves the right and shall retain the power to adopt the annual budget of estimated receipts and expenditures for operation as well as capital improvement purposes of district.

(f) The commission is empowered to amend annual operating budget after its adoption as is necessary for efficient management of district's purposes but the commission shall not have the power to adopt any action which commits or binds the district to any contract, committal or obligation for the payment of money that is not included in the annual operating budget as amended.

(g) The authority may initiate and take any action vested in the district by the constitution and laws of the state without the necessity of any prior proceedings of the commission in connection therewith. Nothing herein shall be construed as preventing authority from adopting a resolution or ordinance which has the effect of repealing action of the commission which has become "final" within the meaning of section 15:22 or preventing authority from repealing prior action of the authority provided that such repeal shall not have the effect of impairing the rights of any party relying upon final action of the commission or action of authority.
(Parish Code 1962, Title 15, § 14)

Sec. 15:24. Interpretation.

This chapter shall be given the interpretation consistent with the intent of the council that any delegation of power hereunder shall be in strict compliance with the authority of Act 151 of 1969 and the constitution and laws of the state. Should any delegation of power be held by a court of competent jurisdiction to be invalid, the remaining authorizations, powers and delegations provided for in this chapter under the authority of Act 151 of 1969 and the constitution and laws of the state shall continue to be given full force and effect, and this resolution is declared to be severable.
(Parish Code 1962, Title 15, § 15)

Sec. 15:25. Greater Baton Rouge Airport District Police Force.

(a) There shall be as provided by Legislative Act 151 of 1969 a Greater Baton Rouge Airport District Police Force. It shall be headed by the director of aviation. The force shall be responsible only within the airport district for the Greater Baton Rouge Metropolitan area except when directed off the area by the director or other law enforcement official in response to an airport emergency or incident for the preservation of public peace and order, the prevention of crime, the apprehension of criminals, the protection of the rights of persons and property and the enforcement of the laws of the state, and the ordinances of the city-parish, as they exist now and as they shall be amended. All members of the force shall have the same powers and duties with respect to the enforcement of criminal laws as are now or may hereafter be conferred by the laws of the state on police officers.

(b) The airport district shall have the powers and duties relating to the organization and activities of the police force that are not in conflict with Legislative Act 151 of 1969 and the general laws of the state. The director of aviation shall be in direct command of the force, and shall have the power to appoint and remove all other officers and employees of the force. He shall assign all members of the force to the respective posts, shifts, details and duties.

(c) The district shall make rules and regulations consistent with the Plan of Government, the ordinances of the city-parish, and laws of the state, concerning the operation of the police force, the conduct of its officers and employees, and their equipment, training and discipline, and the penalties to be imposed for infraction of such rules and regulations, which when approved by the district shall be binding on all members of the force.

(d) The officers of the Greater Baton Rouge Airport District Police Force are hereby recognized as municipal police officers as defined in R.S. 33:2218.1 et seq.
(Parish Code 1962, Title 15, § 16; Parish Ord. No. 5977, 9-8-82)

CHAPTER 3. ART IN PUBLIC PLACES PROGRAM

Sec. 15:40. Creation; administration.

(a) There is hereby created an art in public places program in order to regulate the placement of monuments, works of art and commemorative installations on public property under the jurisdiction of the city-parish government.

(b) The program shall be administered by the Arts Council of Greater Baton Rouge, the community's agency specifically concerned with the arts and humanities in the city and parish, as publicly mandated in City Resolution 9830 and Parish Resolution 16258.

(c) The arts council board of directors shall oversee the program through an advisory body, to be known as the art in public places advisory committee (APPAC). APPAC activities shall be coordinated by an art in public places coordinator, who shall be a member of the arts council staff assigned to the program by the arts council's executive director. The members of the APPAC shall be appointed by the arts council board of directors via public nominations (except as noted), and shall include the following:

(1) One (1) design professional.

(2) One (1) urban planner.

(3) One (1) fine artist.

(4) One (1) business community member.

(5) One (1) arts professional (academic, administrator, curator, etc.).

(6) One (1) City-parish representative (appointed by the mayor-president).

(7) One (1) Metro council representative (appointed by the metro council).

(8) One (1) representative (serving on a revolving basis) of the neighborhood where artwork is to be sited.

(9) One (1) Arts council board member.

(d) The committee members may serve up to three (3) two-year terms, except that the members chosen by the mayor-president and the metropolitan council shall serve at the pleasure of their appointers, and the civic association's representative shall serve on a project basis. Terms of the six (6) remaining members shall be staggered to ensure continuity of the committee. In order to effect the staggering, initially three (3) members shall serve one (1) three-year term, then may be eligible for two (2) more two-year terms. The three (3) members who will serve three-year terms will be selected randomly.
(Ord. No. 9390, § 1, 1-22-92)

Sec. 15:41. Purpose and function of the APPAC.

(a) The APPAC shall be charged with carrying out the policies and procedures of this chapter and any further policies adopted by the arts council board regarding the art in public places program. Further, the APPAC shall endeavor to promote and promulgate the art in public places policy and to generate and maintain a receptive climate for the undertaking of projects to integrate works of art into public places in the Baton Rouge area.

(b) The APPAC shall hold open meetings bimonthly or as needed. Upon notification of interest in placing a work of art, monument or commemorative installation at a particular site, the arts in public places coordinator shall place the proposed site on the agenda of the next meeting of the APPAC. Before this meeting, the city-parish representative shall see that each city-parish department concerned with the site has the opportunity to submit a written reaction to the proposed project outlining any warranted restrictions, potential difficulties, existing plans, etc.

(c) The APPAC, in consultation with the project sponsor, shall review the proposed artist, artwork and site. Artists shall be approved on the basis of their professional qualifications and their ability to complete the project. Sites and artwork shall be approved based on appropriateness according to the criteria below. Although it is not necessary for a site to meet all the criteria, at least two (2) of the criteria should strongly apply. Artwork at the proposed site shall have the potential to:

(1) Help to define an area or link adjacent areas.

(2) Illustrate the city's cultural heritage or highlight a cultural artifact.

(3) Enhance the visual environment for commuters, pedestrians, workers and/or residents.

(4) Make a statement about the values, interests and/or character of the city or an area of the city and its people.

(5) Respond to a practical need of the area.

(6) Engage the public in a contemplative, spiritual or entertaining way.

(7) Memorialize an important person or event.
(Ord. No. 9390, § 1, 1-22-92)

Sec. 15:42. Public hearings.

(a) If the APPAC grants preliminary approval of the site, artwork and/or artist, it shall call at least one (1) public hearing regarding the planned work, in the neighborhood of the site. Every reasonable effort must be made to notify and include in the discussion area residents, property owners, users of services, businesses and their employees and clients and all persons who feel a sense of ownership in the site. Such notice shall include, if feasible, the posting of notice at the proposed site at least ten (10) days before the hearing.

(b) The hearing should address the plans that are being made for the site. If a specific piece has been chosen or is being commissioned, the discussion should include:

(1) The desire of the people in the neighborhood to have the work sited in their area.

(2) Goals and/or problems that the work will address.

(3) The work's effect on the visual environment.

(4) The potential for interaction between the work and passers-by, both positive and negative.

(5) The safety, durability and security of the work.

(c) If available, sketches and/or a model should be presented.

(d) If a specific piece has not yet been chosen, the hearing should address the above-mentioned issues and should explore the characteristics of the area and how they may be addressed in a work of art.
(Ord. No. 9390, § 1, 1-22-92)

Sec. 15:43. Decisions of the APPAC and board of directors.

A record of the discussion at the meeting should be reviewed with the project sponsor at a succeeding APPAC meeting. If objections sufficient to cause reconsideration have been raised, the APPAC may recommend restructuring of the project or a part of the project and/or, if warranted, another public hearing.
(Ord. No. 9390, § 1, 1-22-92)

Sec. 15:44. Acceptance of the work of art; ownership; maintenance.

(a) When the APPAC formally recommends and the arts council board of directors approves the artist, site and artwork, a contract between the sponsor and the city-parish shall be prepared by the APPAC. The contract shall define the work to be produced, transfer ownership of the completed work to the city-parish and provide for maintenance of the work. The sponsor shall retain ownership of and responsibility for the work until its completion. Final acceptance of the completed work will be made by the APPAC after verification that the terms of the contract have been fulfilled and that the project has met city-parish site requirements established during preliminary planning.

(b) The city-parish shall agree to give the artist the first opportunity to perform any repairs or conservation that may become necessary. The city-parish shall reserve the right to move the work, if necessary. Should it become necessary for the city-parish to relinquish ownership of the work, the sponsor shall be given the first opportunity to remove it. A work may be integrated into a larger structure and may not be removable. At the time

of completion of such a work, the artist shall grant permission for the city to destroy the work in the event that destruction of the whole structure becomes necessary.
(Ord. No. 9390, § 1, 1-22-92)

Sec. 15:45. Inventory and evaluation of works of art.

The condition of works of art acquired by the city-parish shall be monitored through a regular inventory and evaluation process. In even-numbered years the APPAC or its assigned agent shall conduct an inventory, recording the location of each work of art, its city-parish identification number, the author(s), medium, dimensions, completion date, acquisition date, and period of time at current location. The evaluation shall include photographic and written documentation of any damage or deterioration and assess the need for maintenance/conservation. It shall also suggest corrective measures, if necessary. This inventory shall be completed by the last day of the year.
(Ord. No. 9390, § 1, 1-22-92)

Sec. 15:46. Removal and relocation of works of art.

(a) Adjunct to the acquisition of works of art is the deaccession and relocation of such works. The following policy has been included to provide a consistent method for determining if a work has remained relevant and/or useful in the context of its original purpose. It also provides a mechanism for the proper removal of a work that has deteriorated or been damaged beyond repair. In this document, deaccession means permanent removal of a work of art and relocation means reinstallation of a work at a new site. Works of art may be considered from deaccession only after five (5) years have passed from the date of acquisition unless the installation site has been substantially altered or the work has deteriorated or been damaged.

(b) Petitions for deaccession or relocation shall be acted on through the following process:

(1) Petitions for deaccession or relocation may be submitted to the mayor-president's representative by a city agency or representative or by a recognized civic group with evidence of community support.

(2) The mayor-president's representative shall review the petition and forward it to the APPAC with a recommendation.

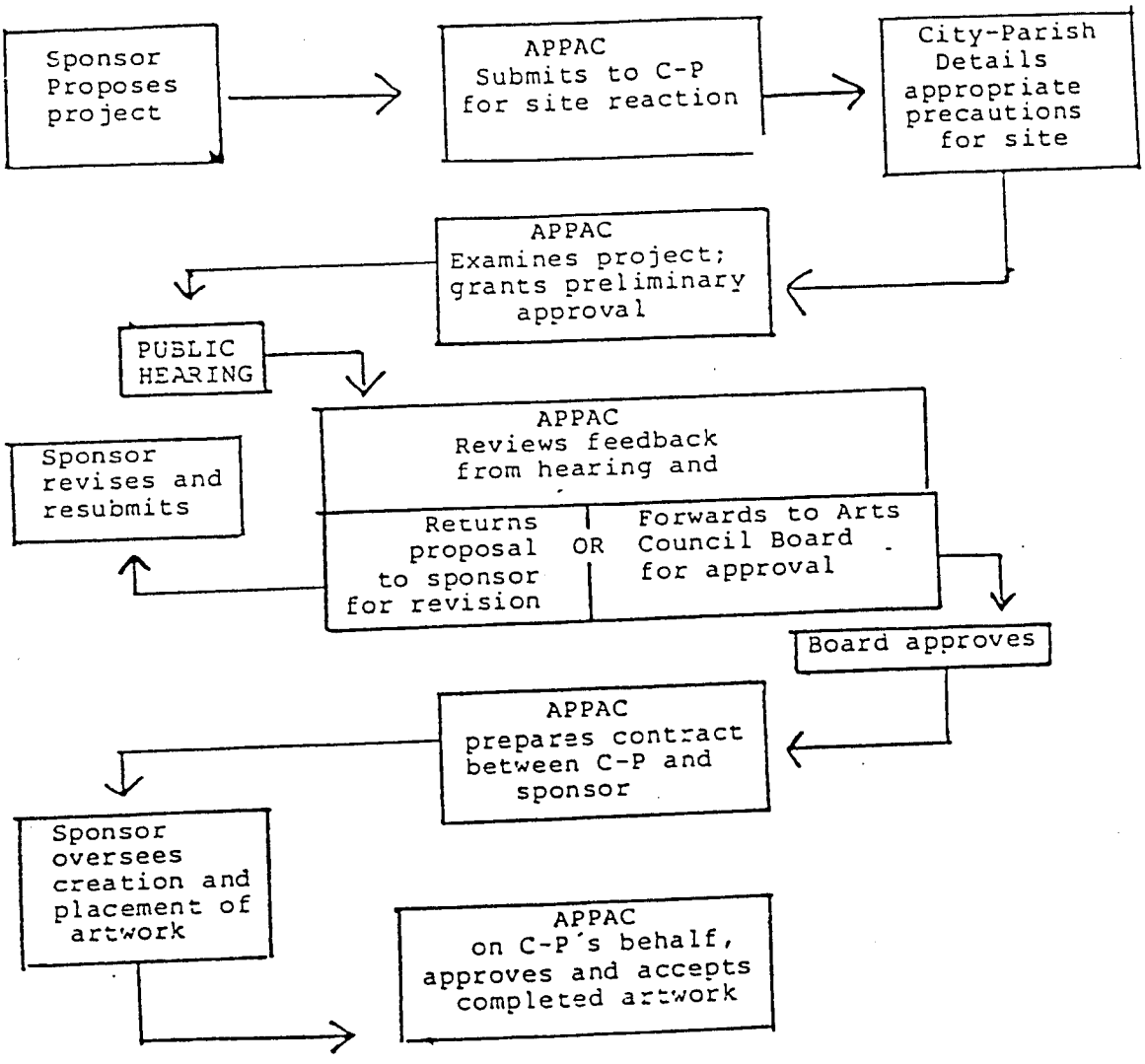
(3) The APPAC shall evaluate the petition and present a formal recommendation to the mayor-president's representative. In evaluating a relocation or deaccession petition, the APPAC shall take the following measures:

a. A three-member subcommittee shall be formed by the APPAC to review the petition. The original project sponsor, the artist, city agencies, and concerned neighborhood and community groups shall be notified and/or invited to the subcommittee meeting for comments and consultation.
b. To evaluate the petition, the subcommittee shall acquire documentary evidence such as:
    1. Public reaction to the work and the petition.
    2. Visual record of alteration of, damage to or deterioration of the site or work of art.
    3. Cost estimates for repair, relocation or disposal.
    4. A new site plan for relocation.
c. In the case of a relocation petition, a hearing must be held regarding the new site.
d. The subcommittee shall report its findings to the APPAC with a recommendation.
e. The APPAC shall review the subcommittee's report and approve, amend, revise and/or reverse its recommendation.

(4) The mayor-president's representative shall carry out the APPAC's recommendation or forward the recommendation and any objections to the city-parish metropolitan council for a final ruling.
(Ord. No. 9390, § 1, 1-22-92)

Sec. 15:47. Schematic for Public Art Proposal.

ROUTE OF PUBLIC ART PROPOSAL



CHAPTER 4. MISCELLANEOUS PROVISIONS

PART I. POULTRY DEALERS

Sec. 15:225. Petition required. (City)

(a) No poultry dealers shall be installed anywhere in the city without first obtaining a petition of the majority of the property owners within three hundred (300) feet of the proposed site, and one hundred (100) percent on both sides of the street within the block that the proposed site is to be located.

(b) A new petition shall not be required when the licensed business has been continuously operated, such as in the sale of a going concern, but in every instance where there has been a cessation of operation a new petition must be obtained.
(Ord. No. 10772, § 1, 11-20-97)

PART II. ADDITIONAL INDUSTRIAL AREA

Sec. 15:250. Certain petition and agreement approved. (Parish)

The petition and agreement of United States Rubber Company, Foster Grant Company, Inc. and W.R. Grace & Company seeking the establishment of an additional industrial area, pursuant to the provisions of section 1.10 of the plan of government is hereby approved.
(Ord. No. 10772, § 1, 11-20-97)

Sec. 15:251. Created and established. (Parish)

Pursuant to the cited provisions of the plan of government, there is hereby created and established an additional industrial area within the parish, which additional industrial area is more particularly described as follows:

A certain contiguous tract or parcel of real estate (comprised of the three (3) tracts or parcels separately owned by United States Rubber Company, Foster Grant Company, Inc. and W.R. Grace & Company, totaling 376.649 acres, more or less) lying and being in Sections 48 and 49, T-5-S, R-1-W; and Section 56, 57 and 58, T-6-S, R-1-W, of the Greensburg Land District of Louisiana, East Baton Rouge Parish, Louisiana, and being more particularly described as follows:

Beginning at the northwest corner monument of Section 56 proceed South 53°00′ West and along south line of Section 57 for a distance of 525.36 feet and corner, said corner being the southwest corner of Section 57;

(1) Thence North 37°48′ West a distance of 300.00 feet and corner;

(2) Thence North 53°00′ East a distance of 350.03 feet and corner;

(3) Thence North 37°48′ West a distance of 3,515.22 feet and corner;

(4) Thence North 66°14′37″ East a distance of 791.69 feet and corner;

(5) Thence North 73°30′ East a distance of 3,499.53 feet and corner, said corner being on the westerly right-of-way line of U.S. Highway No. 61 (Old Bayou Sara Road);

(6) Thence South 24°12′ East along said westerly right-of-way of U.S. Highway No. 61 a distance of 2,661.60 feet and corner;

(7) Thence South 27°12′ East and continuing along said westerly right-of-way line of U.S. Highway No. 61 a distance of 1,648.57 feet and corner;

(8) Thence South 73°30′ West a distance of 186.60 feet and corner, said corner being on the westerly servitude line of the South Shore Railroad Company;

(9) Thence South 24°15′ West a distance of 300.00 feet and corner;

(10) Thence South 73°30′ West a distance of 1,465.43 feet and corner;

(11) Thence North 24°15′ East a distance of 300.00 feet and corner;

(12) Thence South 73°30′ West a distance of 1,051.47 feet and corner; said corner being on the westerly line of Section 56;

(13) Thence North 62°45′ West and along said westerly line of Section 56 a distance of 960.70 feet to the point of beginning; more fully shown on plat by Barnard & Burk,

Inc., Consulting Engineers, Baton Rouge, Louisiana, dated March 26, 1959, a copy of which is made a part hereof and is on file in the office of the council administrator.

(Ord. No. 10772, § 1, 11-20-97)

Sec. 15:252. Responsibilities. (Parish)

The companies designated in section 15:250 shall devote the property contained in the additional industrial area predominately to industrial purposes, and shall provide from and after August 26, 1959, at their own cost and expense, all necessary streets within the area, including the maintenance and cleaning thereof, sewers, sewerage works, fire protection, police protection and garbage and refuse collection and disposal. All such services shall be provided to the extent required by section 1.08(b) of the plan of government, and in the event such services are not provided, or the other agreements contained in the petition and agreement be not faithfully carried out, said area, shall cease to be an industrial area if these facts be so determined after public hearing by the council.

(Ord. No. 10772, § 1, 11-20-97)

PART III. RURAL MEMBERS OF PLANNING COMMISSION

Sec. 15:275. Membership.

(a) As vacancies occur in the appointive membership of the planning commission from the rural area, the council shall make its appointments so that at all times, of the two (2) appointive members from the rural area, there shall be at least one (1) member who is a qualified voter and resident of ward 2 and one (1) member who is a qualified voter and resident of ward 3.

(b) The council administrator is hereby authorized and directed to maintain proper records concerning appointments from the rural area so that the council will be properly advised of the membership of the planning commission and the areas represented by the appointive members thereof in the making of all future appointments to that commission.

(Ord. No. 10772, § 1, 11-20-97)

PART IV. FISH MARKETS

Sec. 15:280. Petition required. (City)

(a) No fish market shall be installed anywhere in the city without first obtaining a petition signed by a majority of the property owners within three hundred (300) feet of the proposed site, even in a zoning district wherein such an establishment is permitted, said petition to be filed within the building official.

(b) A new petition shall not be required when the licensed business has been continuously operated, such as in the sale of a going concern, but in every instance where there has been a cessation of operations a new petition must be obtained.

(c) For the purpose of this part "fish market" shall be defined as one where live fish are received, cleaned and sold, either at retail or wholesale, as distinguished from the receipt and sale of frozen fish at retail or wholesale.

(Ord. No. 10772, § 1, 11-20-97)

PART V. MULTI-MODAL ACCESS

Sec. 15:285. Required for drive-through facilities.

For any and all businesses operating drive-through facilities, when a drive-through facility is open and customer entrances to the business are unavailable or locked, the facility must serve customers who arrive in modes other than an automobile such as pedestrians, bicyclists and those using mobility aids such as wheelchairs.

(Ord. No. 18377, § 1, 1-12-22)

CHAPTER 5. STREET LIGHTING

Sec. 15:301. General requirement of street lights.

The department of public works shall not approve a construction plan for the subdivision of land until a street light plan as required by this chapter has been submitted and approved and shall not subsequently accept for maintenance a subdivision of land as defined in chapter 2 of

title 7 unless street lights are installed as required by this chapter or if installation is guaranteed by a bonding company or franchised utility company.
(Ord. No. 10772, § 2, 11-20-97)

Sec. 15:302. Local residential subdivisions.

(a) Local residential roadways shall be characterized by few pedestrians and a low parking demand or turnover at night. This definition shall include areas with single-family homes, townhouses and/or small apartments. Regional parks, cemeteries and vacant lands shall also be included. The roadways shall be used primarily for direct access to residential property or other abutting property, and shall not include roadways carrying through traffic.

(b) The local franchised utility company shall design the lighting systems. Equipment used shall be manufactured specifically for street light application, and repair parts shall be available for the projected life of the installation. Any equipment other than the standard equipment used by the franchised servicing utility shall require that utility's approval prior to that utility's accepting maintenance and operation. The maximum spacing of lighting fixtures shall be two hundred (200) feet and the minimum shall be sixty (60) feet. The minimum initial lumens shall be ninety-five hundred (9,500). The utility company shall ensure that the degree of illumination in divided or boulevard type streets is consistent with the degree of illumination required by this paragraph for undivided streets.

(c) The provisions of this chapter shall not be construed to impose a duty on either the city-parish or a franchised servicing utility as to the public, regardless of the activity in which the public or any member thereof is engaged.
(Ord. No. 10772, § 2, 11-20-97)

Sec. 15:303. All other subdivisions.

In all other subdivisions street light illuminations shall meet all requirements, set forth by the American Association of State Highway and Transportation officials in its publication "An Informational Guide to Roadway Lighting Districts" or its successor.
(Ord. No. 10772, § 2, 11-20-97)

Sec. 15:304. Application for creation of street lighting districts.

(a) Any subdivider desiring to install street lighting facilities in a subdivision not then situated within a road lighting district authorized to levy taxes for the operation and maintenance of street lighting facilities may make private arrangements with a franchised utility company or may submit a proposal for inclusion in the consolidated road lighting district, including the property sought to be subdivided and such adjacent property or properties as he may deem desirable or appropriate.

(b) If the subdivider chooses to attempt to be included in the consolidated road lighting district, the proposal shall include not only the area to be encompassed within the district but also a plant for proposed street lighting facilities in the area, showing the estimated cost of operating and maintaining the facilities, and the anticipated assessed values in the area. Where it appears from the information submitted that the size of the area, the anticipated growth therein, and the anticipated increase in resulting assessments, its location and proposed future development justify the inclusion in the consolidated road lighting district, for the purpose of maintaining and operating street lighting facilities installed in the subdivision, the parish attorney may recommend to the council that the consolidated road lighting district be expended and an election called thereon for the purpose of approving the levy not to exceed fourteen (14) mills on the assessed valuation of all property within the district for street lighting purposes. If such millage is approved at an election called therefor, and if the contract with the utility company is approved, as hereinabove provided, the department of public works may authorize the installation of street lights as requested in the application therefor. If the millage is not voted, as herein required, the application for the installation of street lighting facilities shall be automatically denied.
(Ord. No. 10772, § 2, 11-20-97)

Sec. 15:305. Existing subdivisions; application for inclusion in the consolidated street lighting district.

Any subdivision who has already installed street lighting facilities in any subdivision outside the city limits, and not in the consolidated road lighting district, shall also have the right to submit to the council administrator-treasurer a petition signed by a majority in number and amount of property tax payers as certified by the assessor in the existing subdivision for the inclusion in the consolidated road lighting district, including the property already subdivided and in which street lights have been installed along with any adjoin-

ing or adjacent property which he may deem desirable and appropriate, which petition shall include, in addition to the area to be encompassed within the consolidated street lighting district, a plan showing the street lighting facilities that have been installed and which are proposed to be installed, showing the cost that has been expended thereon and the cost of operating and maintaining the system, the assessed values in the area as well as the anticipated assessed valued therein. The metropolitan council shall fix a time, not less than ten (10) nor more than thirty (30) days after the submission of the petition, at which it shall hold a public hearing on the proposal to make an addition to the consolidated road lighting district. Notice of such hearing and of its time, place, objects and purposes, shall be given by publication twice in the official journal of the parish, which publication shall be completed not less than five (5) days prior to the hearing. After the conclusion of the hearing the metropolitan council may in its discretion make an addition by ordinance to the consolidated road lighting district. Any addition to the consolidated road lighting district shall be subject to the ad valorem property tax then in effect for the consolidated road lighting district in accordance with law.
(Ord. No. 10772, § 2, 11-20-97; Ord. No. 15719, § 1, 6-18-14)

Sec. 15:306. Installation prohibited until approval obtained.

No street lighting facilities shall be installed by any person or by any utility company within dedicated rights-of-way in any approved subdivision until and unless an application therefor has been submitted to and approved by the department of public works under the conditions and circumstances hereinabove provided.
(Ord. No. 10772, § 2, 11-20-97)

Sec. 15:307. Notice to remove facilities.

If any person or any utility company shall install street lighting facilities in any subdivision in violation of the provisions of this chapter, the director of public works shall give such person or utility company, as the case may be, ten (10) days' written notice to remove the street lighting facilities from the dedicated rights-of-way, and upon the failure of such person to so remove such facilities, the director of public works is authorized to remove same without further notice. All costs of such removal shall be chargeable to the owner of such facilities or to the person installing same, as the case may be. This provision shall be supplemental and in addition to the penalties hereinafter provided.
(Ord. No. 10772, § 2, 11-20-97)

Sec. 15:308. Penalty.

Any person violating any of the provisions of this chapter shall be guilty of a misdemeanor, and upon conviction by a court of competent jurisdiction, fined in an amount not to exceed two hundred dollars ($200.00) or sixty (60) days in jail, or both, at the discretion of the judge before whom such person is tried.
(Ord. No. 10772, § 2, 11-20-97)

CHAPTER 6. SIDEWALK CAFES

Sec. 15:325. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Permit holder* means the recipient of a sidewalk café permit under the terms and provisions of this chapter.

(2) *Restaurant* means an eating establishment, including but not limited to, coffee shops, cafeterias, sandwich stands, and school cafeterias, which gives or offers for sale food to the public, guests, or employees. A restaurant shall not include an establishment holding a Class A (bar) license from the city-parish ABC office.

(3) *Sidewalk* means that portion of the street between the curb lines or the lateral lines of a roadway and the adjacent property lines intended for use by pedestrians.

(4) *Sidewalk café* means portion of a restaurant located on a public sidewalk or mall which functions as an extension

of the use of the adjacent public property by a restaurant as approved by the development director.

(5) *Temporary* means that the entire arrangement on the sidewalk can be removed immediately as required for emergencies and pedestrian use.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:326. Permit required.

Operating a sidewalk café on city-parish sidewalks shall be unlawful without a permit from the city-parish. It shall be unlawful for any person to operate a sidewalk café on any sidewalk within the city-parish except as provided by this chapter.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:327. Permit requirements.

Permits shall be issued only to validly licensed restaurants within the territorial limits of the Downtown Development District as defined by R.S. 33:2740.8. Under no circumstances shall a permit be issued to a business licensed to sell alcohol by the city/parish which has been sanctioned by the parish alcohol beverage control board for violation of the wine, beer and liquor ordinance of the parish within the six (6) months prior to the date of application for the permit.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 13098, § 1, 10-27-04; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:328. Authority to issue permit.

The director of the department of development may approve and issue revocable permits for the placement of a sidewalk café on the public sidewalk area adjacent to an established restaurant on such terms and conditions as provided in this chapter.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:329. Application for permit; fee.

Each application for a permit to place a sidewalk café in front of a restaurant shall state the name of the applicant, the name and address of the establishment, the area to be occupied by the sidewalk café and the hours that the area is to be occupied. A set of drawings showing the location of the sidewalk café must accompany the application. Each application must be accompanied by a check or money order in the amount of one hundred fifty ($150.00) payable to the city-parish to be submitted to the department of development of the city-parish to defray the cost of review and processing of the application.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:330. Design drawings.

Design drawings and specifications for all elements of the sidewalk café equipment and the location of such equipment, or other structures temporary or permanent, proposed for placement upon the public sidewalk shall conform to the minimum city-parish standards as provided for in this chapter and as prescribed by the director of the department of development. Design drawings and specifications shall be subject to design review and alteration for the protection from damage to the sidewalks, and for protection of the health, safety and welfare of the general public. The director of the department of development shall submit the design plans and specifications to the downtown development district staff for review and approval. Once the design elements are approved by the downtown development district staff, the proposed design shall be attached to the permit.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:331. Standards and criteria for application review.

The following standards and criteria shall be used in reviewing the application and design drawings required in section 15:330:

(1) Dimensions:

a. Sidewalk cafés should be located in such a manner that a distance of not less than five (5) feet is maintained at all times as a clear and unobstructed pedestrian path.

The director of development, in his/her reasonable discretion, and on a case-by-case basis, may approve and allow for a pedestrian path of less than five (5) feet when an applicant/permittee's sidewalk café operation would be significantly impacted and if the proposal meets American with Disabilities Act (ADA) requirements for the purpose of this section, "unobstructed" shall mean that nothing shall exist within the designated clear zone except the sidewalk paving and underground utilities. In areas of congested pedestrian activity, the director of the department of development is authorized to require a wider pedestrian path, as circumstances dictate.

b. A minimum clearance of (1) foot from the café seating boundaries to the edge of curb shall be maintained at all times. A minimum clearance of (2) feet from the café seating boundaries to the edge of curb shall be maintained at all times if the sidewalk café is located adjacent to on street parking or loading zone(s).

c. A clearance of three (3) feet shall be maintained between any element of a sidewalk café and a fire hydrant.

d. A clearance of three (3) feet shall be maintained between any element of a sidewalk café and a fire department sprinkler/standpipe Siamese connection.

(2) No element of a sidewalk café shall reduce or impede the effectiveness or unobstructed use of a fire escape.

(3) Sidewalk cafés shall be restricted to the sidewalk frontage of the licensed restaurant to which the permit is issued, provided written approval is supplied by the building owner and any affected lessee.

(4) Tables, chairs, umbrellas and any other objects provided with the sidewalk café shall be of sufficient quality, design, materials, and workmanship to ensure the safety and convenience of users, and to enhance the visual and aesthetic quality of the urban environment. Design, materials, and colors shall be sympathetic and harmonious with the urban environment, as determined by the reviewing entities provided for in section 15:330.

(5) All material shall be fire retardant, pressure-treated or manufactured of fire resistant material.

(6) No element of a sidewalk café shall reduce or impede the effectiveness or unobstructed use of a fire escape.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:332. Permit fee.

No owner or operator of a business establishment shall occupy any portion of a public sidewalk with tables and chairs for the convenience of customers without first obtaining a permit to do so and paying the fees for such permit in accordance with the provisions of this chapter. The fee for a permit shall be one dollar ($1.00) per square foot per year. Each permit shall be effective for one (1) year, beginning on January 1 and ending on December 31, and shall be prorated for partial years on a monthly basis. The permit fee shall be paid annually, in advance, by the permit holder of the sidewalk café permit granted under this chapter.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:333. Permit forms, conditions of and restrictions.

The permit shall be issued on a form deemed suitable by the director of the department of development. In addition to naming the permit holder, the location of the sidewalk café, and the hours of operation, the form shall contain any other information deemed appropriate by the director. The permit must be prominently displayed for public view by the permit holder. The issuance of permits and the maintenance of

tables and chairs in front of restaurants by the permit holder shall be subject to the following conditions and restrictions:

(1) Each permit shall be subject to unilateral revocation by the city-parish at any time.

(2) The permit issued shall be personal to the permit holder only and shall not be transferable in any manner.

(3) The permit shall state that the permit holder, property owner, and proprietor accept the prevailing site conditions with regard to ambience, including loading and passenger zones and/or automobile traffic and its consequential exhaust fumes, noise, and pedestrian generation. Prior to the issuance of a permit, the applicant shall furnish the director of the department of development with a signed statement and the permit holder shall hold harmless the city-parish, its officers, agents and employees and shall defend and indemnify the city-parish, its officers, agents and employees for any claims for damages to property or injury to any person which may be occasioned by any activity carried on under the terms of the permit.

(4) The permit may be suspended by the director of the city-parish when necessary to clear sidewalk areas for a "community or special event" authorized by a permit issued by the city-parish. The notification of suspension shall list the date, time, and estimated duration of such closure.

(5) Along parade routes and during special events where crowd control is likely to be necessary, sidewalk café hours shall be scheduled and allowed to operate in accordance with crowd control procedures established by the police department. The police department shall have the authority to order the clearing of all tables and chairs from the sidewalk by the permit holder in accordance with crowd control needs.

(6) The police department, fire department or other emergency service personnel representing the city-parish may require the immediate removal or relocation of all or parts of the sidewalk café in emergency situations.

(7) The city-parish may require the temporary removal of sidewalk cafés when street, sidewalk, or utility repairs necessitate such action.

(8) The city-parish and its officers and employees and/or private or public utility companies, their officers and employees shall not be responsible for sidewalk café components relocated during emergencies.

(9) The sidewalk café shall be confined to the area shown on the drawing submitted by the permit holder. The permit shall be specifically limited to the area shown on the drawing attached to and made a part thereof.

(10) The permit holder shall keep the sidewalk area not occupied by the sidewalk café free of obstruction at all times. Elements of the sidewalk café cannot obstruct passage along the sidewalk not permitted as a sidewalk café, or any building passageway. The permit holder shall use positive action to assure the use of the sidewalk in no way interferes with sidewalk users or limits their free and unobstructed passage.

(11) The sidewalk area and the sidewalk café shall be in good repair and shall be maintained in a neat and orderly appearance at all times and the area shall be cleared of all debris on a periodic basis during the day, and again at the close of each business day. The permittee shall also be responsible for cleaning the ground or floor surface on which the sidewalk café is located and the gutter area immediately adjacent to the sidewalk café. Such cleaning shall include, but not be limited to hosing and pressure cleaning. In no event shall any debris from the sidewalk café be swept or hosed into

gutters or storm drains. If the area covered by the permit is not maintained in a neat and orderly appearance after ten (10) days written notice, the city-parish may then take steps necessary to place the property in a neat and clean order and charge the permittee with the reasonable cost of repairs. Such action by the city-parish does not create a continuing obligation on the part of the city-parish to make further repairs or to maintain the property and does not create any liability against the city-parish for any damages to the property if such repairs were completed in good faith. A litter abatement program shall be adopted by each sidewalk café. A contact person shall be named to be notified in case of a violation.

(12) A maximum of one A-frame sign shall be permitted per sidewalk café. The locations, size, and materials of the A-frame sign shall be approved by the Downtown Development District prior to the issuance of a sidewalk café permit, and the A-frame sign shall be shown on the sidewalk café site map. A-frame signs shall be restricted to the frontage of the licensed sidewalk café for which the permit is issued. A-frame signs shall comply with the following standards:

a. Shall be no larger than four (4) feet in height and two (2) feet in width;

b. Shall be kept in good condition;

c. Shall be located within ten (10) feet of the sidewalk café's main entrance;

d. Backdrop night lighting may be incorporated, but must be integrated within the A-frame sign and shielded to reduce glare.

(13) No tables and chairs nor any other parts of the sidewalk café shall be attached, chained, or in any manner affixed to any tree, post, sign, or other streetscape fixtures, curb, or sidewalk within or near the permitted area.

(14) The permit covers only the public sidewalk. Tables and chairs on private property are governed by other applicable regulations.

(15) The issuance of a sidewalk café permit does not grant or infer vested rights to the use of the sidewalk area by the permit holder nor does it constitute a deed or grant of an easement by the city-parish. The city-parish retains the right to deny the issuance or continuation of a permit for noncompliance with the provisions of this chapter.

(16) No cooking or fire apparatus shall be allowed on the public sidewalk whether or not such area is permitted as a sidewalk café.

(17) Food trays or carts, receptacles for waste and dirty dishes, trays or carts for linen and utensils, and cooking appliances shall not be placed or stored on any portion of the sidewalk area of a public street.

(18) Tables, chairs, umbrellas, and other permissible objects placed within a sidewalk café shall be maintained in a clean appearance and remain in good repair at all times.

(19) The sidewalk area shall not be painted or altered in any way without prior written approval of the director of the department of development.

(20) The city-parish and/or its agents may schedule general cleaning and maintenance operations. If such work is scheduled, the city-parish and/or its agents shall give notification of its scheduled cleaning times, at least two (2) days in advance of such operations, to all sidewalk café permit holders. Each permit holder, in the affected area, shall remove all portions of the sidewalk café operations so that they do not inhibit the scheduled sidewalk cleaning, repair, and/or maintenance operations.

(21) All property/building ingress and egress where a sidewalk café exists must remain unobstructed (including queuing lines)

for clear, barrier-free pedestrian passage, consistent with the fire department regulations and ANSI standards for barrier-free access. Queuing space proportional to the seating capacity of the sidewalk café shall be provided within the legal boundaries of the property to which the sidewalk café is adjacent.

(22) Raised platforms and/or flooring of any kind, in association with a sidewalk café, are not permitted to be placed on the sidewalk at any time.

(23) Accessways between the indoor and outdoor dining areas shall remain unobstructed, excepting swinging doors which shall remain operable during the simultaneous hours of operation of the indoor restaurant and outdoor sidewalk café.

(24) All costs incurred and associated with the necessary installation, maintenance and repairs of the sidewalk, as required herein, shall be incurred by the permit holder and/or the proprietor of the sidewalk café.

(25) All repairs and maintenance to the sidewalk that may become necessary shall be done in a timely manner to protect the health, safety and welfare of the general population using the sidewalk. If such repairs are not done in a timely manner, then the city-parish and/or its agents may perform such necessary repairs or cause them to be performed, and charge the permit holder a penalty fee and the cost of such repairs.

(26) A sidewalk café permit holder may serve alcoholic beverages within the sidewalk café area if the permit holder has a class "R" permit from the alcohol beverage control office and the sidewalk café area has been approved by the director of the department of development and the director of the Downtown Development District and is clearly defined. If an alcoholic beverage is served to a patron, the patron must be advised that he is not allowed to leave the sidewalk café area with the alcoholic beverage, except to go inside the premises.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 12858, § 1, 2-11-04; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:334. Umbrellas, canopies and awnings.

Overhead weather protection devices, such as table umbrellas, canopies or awnings, shall be permitted in conjunction with sidewalk cafés. Such devices shall not extend beyond the boundaries of the sidewalk café permit area as established in the permit, as follows:

(1) Weather protection devices shall conform to the design and construction standards set forth in the city-parish building code, and shall be permitted and inspected periodically by the department of development.

(2) Individual table umbrellas supported by the particular table each umbrella protects shall be permitted.

(3) Overhead canopies, fixed or retractable and attached to the building wall but not supported from the ground in any way, shall be permitted and inspected by the department of development.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:335. Liability and insurance.

(a) There shall be no liability on the city-parish or upon any of its officers, agents or employees of the city or parish for any damage sustained by the permit holder from any cause whatsoever.

(b) Prior to the issuance of a permit, the applicant shall furnish the director of the department of development with a signed statement that the permit holder shall hold harmless the city-parish, and the officers, agents and employees of same and shall defend and indemnify the city-parish, and the officers, agents and employees of same for any claims, including claims brought through or under the applicant by way of subro-

gation, for damages to property or injury to persons which may be occasioned by any activity carried on under the terms of the permit.

(c) Each permit holder shall, at his/her own expense, maintain in full force and effect an insurance policy or policies underwritten by a carrier rated by Best's as A or better and they must be licensed to do business in the state. Such insurance coverage shall afford liability coverage for any and all claims against the permit holder, the adjacent property owner and the city and parish, and the employees or agents of the city and parish, arising out of or in any way connected or associated with the sidewalk café or any of its operations, including but not limited to premises, products, personal injuries, and injury to property with limits of no less than one million dollars ($1,000,000.00) for any one (1) occurrence and if a general aggregate limit is used, it shall not be less than twice the occurrence limit applying to bodily injuries, personal injuries and property damage or a combination of such injuries. Such policy or policies shall name the city and parish as additional insureds. Permit holders which serve alcoholic beverages will also be required to carry a policy of liquor liability insurance with limits of no less than one million dollars ($1,000,000.00) for any one (1) occurrence and if a general aggregate limit is used, it shall not be less than twice the occurrence limit. A copy of the certificate of insurance shall be on file with the department of development and maintained current at all times. Such policy or policies shall provide thirty (30) days' notice to the director of the department of development if the policy or policies should be canceled or materially changed. In the event that the required insurance coverage is cancelled, the permit shall be immediately suspended as of the date of such cancellation.

(Ord. No. 12006, § 1, 4-25-01; Ord. No. 12935, §§ 1—4, 4-28-04; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:336. Denial, revocation or suspension of permit; removal and storage fees; emergencies.

(a) The director of the department of development may deny, revoke, or suspend a permit for any sidewalk café authorized in the city-parish if it is found that:

(1) Any necessary business or health permit has been suspended, revoked or cancelled.

(2) The permit holder does not have insurance which is correct and effective in the minimum amount described in section 15:335.

(3) Changing conditions of pedestrian traffic cause congestion necessitating the removal of the sidewalk café. Such decisions shall be based upon the findings of the director of the department of development that the minimum pedestrian path is insufficient under existing circumstances and represents a danger to the health, safety, or general welfare of pedestrian traffic.

(4) The permit holder has failed to correct violations of the article or conditions of his permit within three (3) days of receipt of the director of the department of development notice of same delivered in writing to the permit holder.

(5) The permit holder has failed to take positive actions to prohibit violations from reoccurring.

(6) The permit holder has failed to make modifications within three (3) days of receipt of the director of the department of development notice of same delivered in writing to the permit holder.

(7) If there is a documented history of repeated violations, the director of the department of development may revoke the permit.

(b) Permission to encroach upon a portion of a public sidewalk with tables and chairs granted under this chapter shall be subject to the suspension or revocation by the director of the department of development when the permit holder violates any of the restrictions and conditions set

forth in this chapter, or any rule or regulation adopted in pursuance of the provisions of this chapter or as provided in section 15:331. Such permission shall be automatically terminated upon the termination or lapse of the insurance stipulated under section 15:335.

(c) All vestiges of such sidewalk café may be removed by the city-parish and a reasonable fee charged for labor, transportation, and storage should the permit holder fail to remove such items within thirty-six (36) hours of the city-parish's final notice to do so for any reason provided under this section. If the action is taken based on subsection (a)(1), (2), or (3) of this section, the actions shall become effective upon receipt of such notice and the permit holder shall have four (4) hours to remove such items.

(d) Upon suspension or revocation, the director of the department of development shall give notice of such action to the permit holder in writing stating the action which has been taken and the reason therefor. If the action is based on subsection (a)(1), (2), or (3) of this section, the action shall be effective upon giving such notice to the permit holder. Otherwise, such notice shall become effective after ten (10) working days unless appealed to the metropolitan council.

(e) The acceptance of a permit granted to a permit holder by the city-parish constitutes a waiver of any claims that the permit holder has, may have, or will have against the city-parish for the denial, revocation or suspension of its permit as provided for herein.

(f) Upon denial of the permit under this section, the director of the department of development shall give notice of such action to the applicant in writing stating the action which has been taken and the reason for denial. Upon denial, an applicant may within ten (10) working days file a notice of appeal to the metropolitan council with the director of the department of development.
(Ord. No. 12006, § 1, 4-25-01; Ord. No. 16361, § 1, 10-26-16)

Sec. 15:337. Penalties.

(a) Any person who violates any of the provisions of this article or regulations promulgated hereunder shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for each offense, and each day such violation continues shall be deemed a separate and distinct offense.

(2) Any sidewalk café in operation without a valid sidewalk café permit is subject to removal from the public right of way by the director of development or his/her designee.
(Ord. No. 16361, § 1, 10-26-16)

Editor's note—Ord. No. 16361, § 1, adopted October 26, 2016, repealed §§ 15:337 and 15:338, and enacted a new § 15:337 as set out herein. Former §§ 15:337 and 15:338 pertained to suspension or revocation of permit and denial of permit and derived from Ord. No. 12006, adopted April 25, 2001.

[The next page is 2561]

CODE COMPARATIVE TABLE

ORDINANCES CONTAINED IN 1951 CODE OF THE CITY OF BATON ROUGE

This table gives a list of the ordinances and resolutions of the City which were included in the 1951 Code of the City. The last column of this table contains an indication as to the location of those ordinances which were included in the new Code, a dash indicates that the ordinance was omitted from the new Code.

NOTE—Numbers preceded with the letter "R-" are resolutions of that date.

Ord. No.	Date	Section	1951 Code Title	1951 Code Section	Section this Code
R-88	2- 6-52		1	1	1:1
			1	7	1:7
R-92	3- 5-52		1	1	1:1
R-105	4- 9-52		1	450	1:450
130	5-14-52		14	200—205	14:201—14:205
				206	14:207
				207	14:207
				208—215	—
147	7-30-52		9	192	9:186
163	10- 8-52		12	260—262	12:260—12:262
164	10-22-52		10	300	10:300
				301	10:301
R-201	11-26-52		1	304	—
R-219	12-22-52		1	301	1:301
				308	1:308
219	2-25-53		1	180	1:180
				200	1:200
241	5-13-53		10	203(C)	10:204(3)
				204	10:205
				205	10:206
				206(1)	10:207(1)
				208(2)—(4)	10:209(2)—(4)
				209(8)	10:210(8)
				211	—
				212	—
				214—217	10:211—10:214
				218	—
274	10-14-53		10	209(5)	10:210(5)
276			1	250—259	1:251—1:261
				260	1:250
				261	—
				262	1:262
				263	1:264
284	10- 9-53		3	90—93	3:90—3:93
291	12-23-53		13	412	—
				413	—
298-A	1-13-54		10	203(C)	10:204(3)
299-B	1-27-54		6	401	6:375
				402	6:376
				402.1	6:377
				403—416	6:378—6:391
310	3-10-54		5	929	—
				1806	—

Ord. No.	Date	Section	1951 Code Title	1951 Code Section	Section this Code
319	4-28-54		6	500—513	6:500—6:513
				514	6:515
				515	—
				516	—
324	6-23-54		1	601—607	1:602—1:608
				608	—
				609	—
				610	—
325	7-14-54		8	501—510	8:500—8:509
327	7-14-54		13	414	—
				415	—
342	9-22-54		13	181—188	—
346	9-22-54		12	301	12:301
360	11-24-54		10	Ch. 2	—
363	12- 8-54		12	50	—
401	4-27-55		7	2—18	7:2—7:18
410	5-25-55		10	154	—
429	8-10-55		2	325—330	2:325—2:330
				331	—
498	2- 8-56		10	208(6)	10:209(6)
503	3-28-56		11	153	11:153
				236—239	—
				240	11:240
				305	11:305
				307	11:307
				312	11:312
521	5-31-56		1	250(2)	1:251
				255(d)	1:257(1)d.
				255(e)	—
				255(2)	1:257
				255(8)	—
				256(1)	—
				256(2)(b)	—
				256(2)(g)	—
				256(2)(l)	—
				256(6)(a)	—
				265	1:265
			2	53(1)(a), (b)	—
527	6-27-56		7	6	7:6
532	7-25-56		7	2	7:2
				5	7:5
538	8-18-56		11	225	11:225
541	8-22-56		7	6	7:6
545			11	307	11:307
546	9-12-56		11	248	—
557			11	312	11:312
567	10-10-56		11	70	11:70
570	10-24-56		7	250	7:200
				260	7:225
571			2	328	2:328
573			1	255(9), (10)	—
577	11-14-56		2	340—342	2:340—2:342
				343	—
				344	—
582	12-12-56		8	4	8:5
583				124	—
601			11	307	11:307
602				312	11:312

Ord. No.	Date	Section	1951 Code Title	1951 Code Section	Section this Code
608	1-23-57		13	175	—
609			5	2107	—
622	3-13-57		7	4	7:4
630	3-27-57		11	305	11:305
				312	11:312
633	4-10-57		8	103	—
643	5-22-57		6	406	6:381
655	6-26-57		6	412	6:387
656			10	252	10:252
658			8	195—197	—
667			11	255, 256	—
R-2474	8-14-57	1	1	1	1:1
		2	1	2	1:2
		5	1	7	1:7
670	8-14-57		11	226	11:226
681	9-25-57		6	420—425	—
697	11-27-57		1	250(15)	1:251
721			11	307	11:307
745	3-26-58		8	302	8:302
754	4-23-58		8	101	8:101
				105(a)	—
				117(b)	—
756			11	307	11:307
759			11	307	11:307
760	6-11-58		6	301—306	6:301—6:306
				307	—
761	6-25-58		6	56	6:53
				57	6:53
767	7- 9-58		11	252	11:252
775	7-23-58		11	308	11:308
780	8-13-58		5	2901—2906	—
782			2	170—173	2:170—2:173
				174	—
783			1	252(2), (5)	1:253(b), (e)
785			11	307	11:307
786			11	307	11:307
789	10- 1-58		13	416—418	—
793	10-22-58		1	255(11)	—
794			7	15	7:15
799	11-12-58		11	62	11:62
800	11-26-58		13	250	13:1015
				251	13:1015
				252—254	—
801			8	187	—
802			1	10	1:10
803			11	192	11:192
				193	11:193
803				311	11:311
819	12-17-58		7	4.1	7:4.1
				4.3	7:4.3
829	1-14-59		1	255(5)	1:257(6)
860	3-25-59		8	117(c)	—
864	4- 8-59		1	255(2)(e), (f)	1:257(2)e., f.
				264	1:264
865			6	600—612	6:600—6:612
				613	—
				614	—
				615	6:613

Ord. No.	Date	Section	1951 Code Title	1951 Code Section	Section this Code
868	4-15-59		2	2	2:2(a)
875	5-13-59		5	1907	—
877			6	630	6:630
878			9	111	9:111
901			11	312	11:312
904	7- 8-59		6	640—643	6:640—6:643
905			11	307	11:307
912	7-22-59		11	77	—
922	9- 9-59		7	9	7:9
923			8	300(a)	8:300(a)
931	10-14-59		1	255(2)(g)	1:257(2)g.
932			11	305	11:305
933			7	13	7:13
937			11	312	11:312
938	10-28-59		6	609	6:609
944	11-12-59		6	608	6:608
952			11	307	11:307
953	11-25-59		8	1	8:1
				5	—
				6	8-6
				7	8:7
				8	—
				9	—
				10	—
963	12- 9-59		8	318	8:318
			8	334	8:331
971			11	307	11:307
972	12-23-59		6	406	6:381
974		2	1	66	—
975	1-13-60		7	280	—
976			1	255(2)(e)	1:257(2)e.
979			11	307	11:307
980	1-27-60		6	406	6:381
1005	4-13-60		11	187	—
1006	4-27-60		1	705	1:707
1007		1—3	1	70—72	—
1010			11	307	11:307
1014	5-25-60		1	9	1:9
1020	6-22-60		11	198	—
1024	6-26-60		10	400—414	10:400—10:414
1027			11	312	11:312
1028			11	307	11:307
1037			11	312	11:312
1047	9-28-60		7	17	7:17
1050	10-12-60		7	17	7:17
1051			10	154	—
1057			11	307	11:307
1058	11- 9-60		10	206	10:207
1059		1	11	180, 309	11:180, 11:309
1070			11	307	11:307
1071	11-23-60		10	414	10:414
1078	12-14-60		1	264	1:264
R-1543	12-14-60	1, 2	1	236	1:233
1079		1	9	87	—
		2		88	—
		3		89	—
		4		90	—
		5		91	—

Ord. No.	Date	Section	1951 Code Title	1951 Code Section	Section this Code
1080		1	9	81	—
		2		82	—
		3		83	—
		4		84	—
1083		1	9	121	—
		2		122	—
		3		121	—
				124	—
				126	—
		4		125	—
				131	—
		5		126	—
		6		130	—
		7		127	—
				129	—
				131	—
				132	—
				149	—
				161	—
		8		129	—
				131	—
				132	—
				133	—
		9		127	—
				128	—
		10		134	—
				135	—
				137	—
		12		138	—
				145	—
		13		139	—
		14		158	—
		15		160	—
		16		155	—
		17		128	—
		18		152	—
		19		153	—
		20, 21		154	—
		21		136	—
		22		162	—
		23		140	—
		24		141	—
		25		142	—
		26		143	—
		27		156	—
		28		144	—
		29		146	—
		30		147	—
		31		148	—
		32		150	—
		33		151	—
		34		157	—
		35		159	—
		37		123	—
		38		120	—
1084		1	9	31	—
		2		32	—
		3		33	—

Ord. No.	Date	Section	1951 Code Title	1951 Code Section	Section this Code
		4		34	—
		5		35	—
		6		36	—
		7		37	—
		8		38	—
		9		39	—
		10		40	—
		11		41	—
		12		42	—
		13		43	—
		14		44	—
		15		46	—
		16		47	—
		17		48	—
		18		49	—
		19		50	—
		20		51	—
		21		52	—
		22		53	—
		23		54	—
		24		55	—
1085		1	9	1	—
		2		2	—
		3		3	—
		4		4	—
		5		5	—
		6		6	—
		7		7	—
		8		8	—
		9		9	—
		10		10	—
		11		11	—
		12		12	—
		13		13	—
		14		14	—
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		17		17	—
		18		18	—
		19		19	—
		20		20	—
		21		21	—
		22		22	—
		23		23	—
1086		1	9	61	—
		2		62	—
		3		63	—
		4		64	—
		5		65	—
		6		66	—
		7		67	—
		8		68	—
		9		69	—
		10		70	—
		11		71	—
		12		72	—
		13		73	—

Ord. No.	Date	Section	1951 Code Title	1951 Code Section	Section this Code
		14		74	—
		15		75	—
1087		1	9	94	—
		2		95	—
		3		96	—
		4		97	—
		5		98	—
		6		99	—
		7		100	—
		8		101	—
	1-25-61		7	5	7:5
1091			11	312	11:312
1092				307	11:307
1104	2- 8-61		11	225	11:225
1113	3- 8-61	1	14	150	—
		2		151	—
1115	3-22-61		6	600	6:600
				613	—
				614	—
				617	—
1121	4-12-61		7	5	7:5
1123	4-26-61		11	86	11:86
1125			2	52	2:52
1126			11	309	11:309
				311	11:311
1127	5-10-61		7	5	7:5
R-4019	5-10-61	1	1	9	1:9
1134	5-24-61	1	1	705	1:705
1135	6-14-61	1	11	192	11:192
		2		193	11:193
		3		311	11:311
1136	6-14-61		11	240	11:240
1141	6-28-61		7	4.2	7:4.2
1142	6-28-61	1	7	6.208	7:6.208
		2		6.304	7:6.304
		3		4.307	7:4.307
1143	6-28-61	1	13	419	—
		2		420	—
		3		421	—
		4		422	—
		5		423	—
1146	6-28-61	1	6	617	—
1147	6-28-61	1	11	305	11:305
1151	7-12-61		5	2107	—
1152	5-24-61	1	1	705	1:705
1153	7-26-61	1, 2	7	4.410(6)	—
1154	7-26-61	1	7	3.303	7:3.303
		2		4.302	7:4.302
		3		4.311	7:4.311
1161	8- 9-61		14	216	—
1162	8- 9-61		11	312	11:312
1166	9-27-61	1	7	2.204(a)	—
		2		3.204	7:3.204
		3		4.2	7:4.2
		4		5.1	7:5.1
1178	10-25-61	1	7	2.113	7:2.113
		2		4.201	7:4.201

Ord. No.	Date	Section	1951 Code Title	1951 Code Section	Section this Code
		3		5.101	7:5.101
		4		6.210	7:6.210
1179	10-25-61		7	17	7:17
R-1645	11- 8-61	1	11	36.1	—
		2		36.2	—
		3		36.3	—
1192	12-13-61	1	9	81	—
		2		82	—
		3		83	—
		4		84	—
1193	12-13-61	1	9	87	—
		2		88	—
		3		89	—
		4		90	—
		5		91	—
1196	12-13-61	1	9	120	—
		2		121	—
		3		122	—
		4		123	—
		5		124	—
		6		125	—
		7		126	—
		8		127	—
		9		128	—
		10		129	—
		11		130	—
		12		131	—
		13		132	—
		14		133	—
		15	9	134	—
		16		135	—
		17		136	—
		18		137	—
		19		138	—
		20		139	—
		21		140	—
		22		141	—
		23		142	—
		24		143	—
		25		144	—
		26		145	—
		27		146	—
		28		147	—
		29		148	—
		30		149	—
		31		150	—
		32		151	—
		33		152	—
		34		153	—
		35		154	—
		36		155	—
		37		156	—
		38		157	—
1197	12-13-61	1	9	31	—
		2		32	—
		3		33	—
		4		34	—
		5		35	—

Ord. No.	Date	Section	1951 Code Title	1951 Code Section	Section this Code
		6		36	—
		7		37	—
		8		38	—
		9		39	—
		10		40	—
		11		41	—
		12		42	—
		13		43	—
		14		44	—
		15		46	—
		16	9	47	—
		17		48	—
		18		49	—
		19		50	—
		20		51	—
		21		52	—
		22		53	—
		23		54	—
		24		55	—
1198	12-13-61	1	9	1	—
		2		2	—
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1199	12-13-61	1	9	61	—
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		7		100	—
		8		101	—
1201	12-13-61		11	184	11:184
R-1658	12-13-61		6	413	6:388
1207	12-27-61	1	1	255	1:257
R-1659	12-27-61	1, 2	1	501	1:501
Motion	1-10-62		1	1	1:1
1209	1-10-62	1	7	4.409	7:4.409
		2		8.403	7:8.403
1220	1-24-62	1	10	154	—
1221	1-24-62	1	11	198	—
1222	1-24-62	1	13	409	—
1224	2-28-62	1	8A	1	8A:100
		2		2	8A:101
		3		3	8A:102
		4		4	8A:103
		5		5	8A:104
		6		6	8A:105
		7		7	8A:106
		8		8	8A:107
		9		9	8A:108
		10		10	8A:111
		11		11	8A:109
		12		12	8A:110
		13		13	—
1227	2-28-62	1	7	4.401	7:4.401
		2		4.305	7:4.305
1230	3-14-62	1	6	617(c)	—
1235	3-28-62	1	7	2.204	7:2.204
		2		7.501	7:7.501
1236	3-28-62	1	7	4.410(1)(c)	—
1239	4-11-62		7	5.1	7:5.1
1240	4-11-62	1	1	718	1:718
1251	6-13-62		7	7.501	7:7.501
1254	6-13-62	1	11	305	11:305
1258	6-27-62	1	10	154(1), (2)	—
1259	6-27-62	1	8	603(i), (j)	8:602
1262	7-25-62		11	312	11:312
1271	8- 8-62		9	123(d), (e)	—
1279	9-12-62		9	63	—
1282	9-26-62		7	4.401(c)	—
1283	9-26-62	1	7	1.202	7:1.202
		2		2.204(b)	—
		3		4.2	7:4.2
		4		5.1	7:5.1
		5		6.304(b)	7:6.304(b)
1284	9-26-62		7	4.2	7:4.2
1289	9-26-62		6	617(c)	—
1292	9-26-62		2	50(a)	2:50
1293	9-26-62	1	1	255(c)	1:257
1295	10-10-62		11	307	11:307

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1302	10-24-62	1, 2	5	301(c)	5:203
				310(b)	5:203
1308	11-14-62	1, 2	7	4.410(1), (2)	—
1309	11-14-61	1	7	3.201	7:3.201
		2		3.202	7:3.202
		3		7.201	—
		4		7.202(a)	—
		5		7.203	—
		6		3.304	—
1310	11-14-62		11	307	11:307
1318	11-14-62	1, 2	7	4.410(1)	—
1320	12-12-62		8	318	8:318
1321	12-12-62	1—5	9	87—91	—
1322	12-12-62	1—4	9	81—84	—
1325	12-12-62	1—38	9	120—157	—
1326	12-12-62	1—24	9	30—55	—
1327	12-12-62	1—23	9	1—23	—
1328	12-12-62	1—15	9	61—75	—
1329	12-12-62	1—8	9	94—101	—
1344	2-27-63	1	9	Rpld 179	—
		2		Rpld 180	—
1346	2-27-63		8	11—21	8:11—8:21
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				23—27	8:23—8:27
R-1843	2-27-63	1	1	304	1:304
		2		306	1:306
1354	3-13-63		8	6(d)(5)	—
1356	3-27-63		8	3	8:3
1361	3-27-63		13	20	—
1363	3-27-63		11	184	11:184
1365	4-10-63	1	8	102-b	—
		2		130-a—130-e	—
		3		Rpld 131	—
		4, 5		139	—
1370	4-24-63		9	15	—
1371	4-24-63		9	47	—
1374	5- 8-63		9	120(b)(2)	—
1375	5- 8-63		11	307	11:307
1376	6-12-63	1	9	62(b)	—
1379	6-12-63	1	11	311 Sched. V, "A", "B", "C"	11:311
1390	7-10-63	1	7	6.205	7:6.205
1391	7-10-63	1	11	311 Sched. V, "A", "B", "C", "F"	11:311
1395	7-24-63		10	208(6)(a)	10:209
1401	7-24-63	1	8	130-a(4)	—
1414	8-28-63	1	10	154	—
1419	9-25-63	1	6	401(f)—(j)	6:375
		2	6	417	6:392
				418	—
		3	6	414	6:389
1420	9-25-63		1	704.1	1:705
1429	10-23-63	1	7	2.309(1)	7:2.309(1)
1436	10-23-63	1	8	1.6	—
1444	12-11-63	1	11	77(b)	—
1445	12-11-63	1—5	9	87—91	—

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1451	12-11-63	1—23	9	1—23	—
1452	12-11-63	1—15	9	61—75	—
1453	12-11-63	1—8	9	94—101	—
1464	1-22-64	1	6	500—513	6:500—6:513
				514	—
1467	2-12-64		9	47	—
1468	2-12-64		9	15	—
1475	3-11-64		8	303	8:303
1482	3-25-64	1	7	8.402(c)	7:8.402(c)
1483	3-25-64		7	4.410(1)(b)	—
1485	4- 8-64		11	240	11:240
1486	4- 8-64		10	252(b)	10:252
1488	4-22-64	1	7	10.6	7:10.6
1490	5-13-64	1	7	8.403(b)	7:8.403(b)
1491	5-13-64	1	1	253(2)	1:254
		2	1	255	1:257
		3	1	254	1:255
		4	1	250	1:251
1493	5-27-64	1	11	47(c)	11:46
1494	5-27-64		11	228	11:229
1497	6-10-64		7	10.8	7:10.8
1498	6-10-64		7	4.410(7)	—
1511	6-24-64	1	7	2.208	7:2.208
		2	7	4.2	7:4.2
		3	7	5.1	7:5.1
1512	6-24-64	1	6	610(f)	6:610
		2	6	612(c)	6:612
1513	6-24-64		7	2.211—2.213	—
1516	7-22-64	1	1	715(2)(c)	—
1523	8-12-64		11	184(b)(1)	—
1524	8-26-64		7	4.410(2b)	—
1533	9- 9-64		8	128	—
1543	10-14-64		8	6(d)(1.1)	8:6
1545	10-28-64	1	1	701(b)	1:701
R-2107	10-28-64	1	1	2(11)	1:2
1559	12- 9-64	1—23	9	31—54	—
1560	12- 9-64	1—23	9	71—23	—
1561	12- 9-64	1—8	9	87—91	—
1562	12- 9-64	1—4	9	81—84	—
1565	12- 9-64	1—38	9	120—157	—
1566	12- 9-64	1—16	9	61—75	—
1576	12-23-64	1	1	255(3)	1:257(3)
1583	1-13-65	1	7	2(e)	7:2
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1584	1-13-65	1	1	171	1:171
1587	1-27-65	1	9	Rpld 121(f)	—
				Rpld 126(i)	—
1599	2-10-65	1—9	8	6	8:6
1601	2-10-65	1	1	605(b)	1:605(2)
R-5740	2-10-65	1	1	304(b), (c)	—

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1618	3-24-65	1	6	508	6:508
		2	6	509(b)	6:509(b)
1619	4-14-65	1	7	6(4)	7:6(d)
		2	7	9(10)	—
1620	4-14-65	1	14	213(a)	—
		2	14	213(b)	—
1629	5-12-65	1	1	255(2)d	—
1657	7-14-65	1	2	102	2:132
		2		103	2:133
1663	7-28-65	1	7	9(1)	7:9(1)
		2		11(1)	7:11(1)
		3		13(7)	7:13
1669	8-11-65	1	8	12(d)	8:12
R-1303	8-16-65	1	1	2(c)(2), (5)	1:2
1674	8-25-65	1—6	1	701—704	1:701—1:704
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				704.2	1:706
				705	1:707
				706	1:708
		7		709	1:711
		8		711	—
		9		715(2)(a)	—
		10		715(2)(c)	—
		11		715(2)(e)	1:715(b)(5)
		12		719	1:719
1677	8-25-65	1	9	21(a)	—
1678	8-25-65	1	9	53(a)	—
1694	9-22-65	1	7	4.410(1)(h)	—
1697	10-13-65	1	7	4.410(1)(h)	—
1714	11- 1-65	1	7	9(5)	7:9(5)
		2		11(8)	7:11(8)
		3		14	7:14
		4		15	7:15
1721	12- 8-65	1—14	9	31—55	—
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1722	12- 8-65	1—23	9	1—23	—
1723	12- 8-65	1—5	9	86—91	—
1724	12- 8-65		9	165	—
1725	12- 8-65	1—4	9	80—84	—
1727	12- 8-65	1—36	9	120—157	—
1728	12- 8-65	1—15	9	60—75	—
1729	12- 8-65	1—8	9	93—101	—
1737	12-22-65	1	7	6(8)	7:6(h)
		2		11(7)	7:11(7)
1738	12-22-65	1	8	318	8:318
1757	1-26-66		7	4.404	7:4.404
1758	1-26-66		7	2.205	7:2.205
1764	2- 9-66	1—5	1	460	1:460
1765	2- 9-66		11	305	11:305
1766	2- 9-66	1, 2	8	501, 502	8:500, 8:501
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		7		551—558	8:551—8:558
1777	3-23-66	1—6	7	6.2	7:6.2
1789	3-23-66	1	8	554(a)(1)	8:554
1799	4-27-66	1—3	9	121—123	—
		4		158	—
1801	5-11-66	1	7	4.410(1)(e)	—

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1804	5-11-66	1	8		328(b)	8:326(b)
1805	5-11-66	1	9		47	—
		2	9		50	—
1806	5-11-66	1	9		15	—
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1820	6- 8-66	1, 2	1		93, 94	1:75, 1:76
1828	6-28-66	1	8		11(e)(1)	—
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1834	7-13-66	1	1		705(c)	1:707(c)
1851	8-24-66	1	3		70—79	3:70—3:79
1858	9-14-66	1	1		704.1(a)	1:705(a)
		2	1		707	1:709
1864	9-28-66	2, 3	7		4.410(5)	—
		4	7		4.410(b), (c)	—
1865	9-28-66	1	10		203(C)	10:204(3)
		2	10		203(E)	10:204(5)
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		4, 5	10		205(A), (B)	10:206
1870	10-12-66	1	7	Rpld	2(e), (f)	7:2
		2, 3	7		4	7:4
		4	7		6(1)(b)	7:6(a)(2)
		5	7		10	7:10
1877	10-26-66	1	9		62(d)	—
1883	11- 9-66	1	7		4.410(6)	—
		2	7		4.410(6)(d)	—
1884	11- 9-66	1	1		254(8)	—
		2	1		255(1)(a)	—
					255(1)(b)	1:257(1)b.
		3	1		255(1)(d)(ii)	—
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		8	1		255(2)(c)(ii)	—
		9	1		255(8)	—
		10	1		256(1)(a)	—
1889	11-23-66	1, 2	11		307	11:307
1892	12-14-66	1—14	9		31—44	—
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1893	12-14-66	1—23	9		1—23	—
1894	12-14-66	1—5	9		86—91	—
1895	12-14-66	1—4	9		80—84	—
1898	12-14-66	1—39	9		120—158	—
1899	12-14-66	1—16	9		61—75	—
1900	12-14-66	1—8	9		94—101	—
1901	12-14-66	1	11		185	11:185
		2	11		313	11:313
1910	12-28-66	1	8		400	8:400
1911	12-28-66	1, 2	11		307	11:307
1922	1-25-67	1, 2	11		312	11:312
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1931	2- 8-67	1	11		238	—
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		6	11	230	11:230
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1964	4-26-67	1	2	350—355	2:350—2:355
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1978	5-24-67	1	11	226	11:226
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1981	6-14-67	1	14	204	14:204
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2008	9- 6-67	1	8	300	8:300
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2022	10- 1-67	1	10		205(A)	10:206(a)
2023	10- 1-67	1	1		9(c)	1:9
R-2803	10-11-67	1	1		1	1:1
		2	1		7	1:7
2026	10-25-67	1	8		308(a)(note)	8:308
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2067	1-10-68	1	11		227	11:227
2073	1-24-68	1	10		208(5)(A)(1)	10:209(5), (6)a.
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2089	2-28-68	1, 2	11	305	11:305
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2910	11- 8-72	1		8	5.1.3(1)	—
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		14		8	17.2.5	—
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2923	11-22-72	1		11	172	11:172
2934	12-12-72	1		7	1.201, 1.202	—
		2		7	2.115	—
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2941	12-13-72	1—23		9	31—53	—
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2944	12-13-72	1—38		9	120—157	—
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2946	12-13-72	1—15		9	61—75	—
2947	12-13-72	1—5		9	87—91	—
2948	12-13-72	1—4		9	81—84	—
2951	12-13-72	1		9	349	—
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2959	12-27-72	1—12		9	381—392	—
2960	12-27-72	1		8	5.5(Table)	—
		2		8	8:10.3.1	—
2961	12-27-72	1		1	255(1)(b)	1:257
2972	2-14-73	1—5		14	200—204	14:200—14:204
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2983	2-28-73	1	8	17(a)	8:17
2984	2-28-73	1	8	6(g.1)	8:6
2985	2-28-73	1	10	219—225	10:215
2986	2-28-73	1	1	701	1:701
2987	2-28-73	1	5	76, 77	5:90, 5:91
2988	2-28-73	1	11	335	11:335
3005	3-20-73	1	8	6(b.1)	—
3011	4-11-73	1	8	3.9	—
3012	4-11-73	1	13	189—196	—
3019	4-25-73	1	13	427	—
3034	5-23-73	1	9	9(a)(2)	—
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3035	5-23-73	1	9	39(a)(2)	—
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3047	7-11-73	1	6	617(b)	—
3048	7-11-73	1	10	207	10:208
3049	7-11-73	1, 2	11	336	11:336
3054	7-26-73	1, 2	10	203(C)	10:204
		1	7	25	7:25
3055	7-26-73	1	10	208(5)(A)(1)(a)	10:209
3069	8- 8-73	1			
3070	8- 8-73	1	11	337	11:337
3085	9-12-73	1	8	2.3.3	—
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3086	9-12-73	1	8	350—353	—
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3092	9-26-73	1	7	2.116, 2.117	—
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3097	10-10-73	1	10	416	10:416
3098	10-10-73	1	6	617(C)	—
3103	10-10-73	1	9	381	—
3104	10-10-73	1	9	381	—
3112	11-14-73	1	5	Rpld 50, 51	
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3123	11-28-73	1	10	203(F)	10:204
		2		208(5)(A)(1)(b)	10:209(5), (6)
3124	11-28-73	1—4	1	704.1(a), (a)(9), (10), (b)	1:705(a)(9), (10), (b)
		5	1	709(b)	1:711(b)
3127	12-12-73	1	9	413	9:414
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3128	12-12-73	1—8	9	94—101	—
3129	12-12-73	1	8	6	8:6
3130	12-12-73	1	7	11(7)	7:11(7)
3131	12-12-73	1—23	9	30—53	—
3132	12-12-73	1—23	9	1—23	—
3133	12-12-73	1—38	9	120—157	—
3134	12-12-73	1—40	9	160.1—160.40	—
3135	12-12-73	1—15	9	61—75	—
3136	12-12-73	1—5	9	87—91	—
3137	12-12-73	1—4	9	81—84	—

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3153	12-19-73	1, 2	1		255(1)(b), (1)(e)(VII)	—
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3154	12-19-73	1	6		406(c)	6:381(a)(3)
3158	1- 9-74	1	9		34(j)	—
3159	1- 9-74	1	9		4(l)	—
3160	1- 9-74	1	1		254(6)(a)	1:255
3167	1-23-74	1	7		4.410(5), (5)(a)	—
3176	2-27-74	1	11		336	11:336
3177	2-27-74	1	13		190	—
3179	2-27-74	1, 2	8A		01	8A:1
3182	3-13-74	1	1		308	1:308
		2		Rpld	309	
3183	3-13-74	1	10		5(A)(1)(a)	10:5
3195	3-26-74	1	7		17(3)	7:17
3196	3-27-74	1	8		6	8:6
3204	4-10-74	1	8A		6.10, 6.11	—
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3208	4-25-74	2	10	Rpld	101—111	—
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		3		Added	101—120	10:101—10:120
3209	4-24-74	1	12		350—353	12:351—12:354
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3211	5- 8-74	1	8		4.2.4	—
3212	5- 8-74	1	8A	Title	8A(title)	—
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3222	6-12-74	1	7		3	7:3
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3223	6-12-74	1	7		4(15)	7:4
3224	6-12-74	1	8		1(b)(1)	8:1
3229	6-12-74	1	8		4.2.4	—
3233	6-25-74	1	7		2.205	—
3240	7-24-74	1, 2	13		53, 54	—
3241	7-24-74	1, 2	10		203(C), 206(1), (6)	10:204
3251	8-28-74	1	11		336	11:336

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3278	11-27-74	1	14		250, 251	—
3279	11-27-74	1	1		701(a)	1:701
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		4	1		705(a)	1:707
		5	1		709(a), (c)	1:711
3280	11-27-74	1, 2	9		440	—
3285	12-11-74	1	8		318	8:318
3311	12-18-74	1	10		405(b)—(d)	10:405
3316	1- 8-75	1	8		12(A)	8:12
		2	8		19	8:19
3317	1- 8-75	1	11		172(d), (e)	11:172
3324	2-12-75	1	14		200	14:200
		2	14		204	14:204
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3325	2-12-75	1	8		19(d)	8:19
3336	2-26-75	1	1	Rpld	255(2)(d)	1:257
3339	3-12-75	1	6		302(a)	6:302
3353	3-26-75	1	10		2, 3	10:2, 10:3
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3354	3-26-75	1	14		200	14:200
		2	14		216	—
3360	4- 9-75	1	10		206(1)	10:207
3370	5-14-75	1	10		103(B)(4)	10:103
3378	5-28-75	1	8		6(a)(1)(g.1)	8:6
3379	5-28-75	1	7		6(5)(g)	7:6
		2	7		9(6)	7:9
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3390	6-11-75	1	13		189—196	—
3392	6-30-75	1	14		220	—
3395	7- 9-75	1	1		255(9)	1:257
3396	7- 9-75	1	8		308(c)	8:308
3424	9- 8-75	1	10		208(5)(A)(1)(a)	10:209
3437	10- 8-75		8		11—21	8:11—8:21
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3454	11-25-75	1	7		1.104	—
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3455	11-26-75	1	1	704.1(6)	1:705
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3456	11-26-75	1	11	330	11:330
3461	12-10-75	1—23	9	30—53	—
3462	12-10-75	1—23	9	1—23	—
3463	12-10-75	1—8	9	94—101	—
3464	12-10-75	1—38	9	120—157	—
3465	12-10-75	1—40	9	160.1—160.40	—
3466	12-10-75	1—15	9	61—75	—
3467	12-10-75	1—7	9	349—355	—
3468	12-10-75	1—5	9	87—91	—
3469	12-10-75	1—12	9	381—392	—
3470	12-10-75	1—13	9	427—439	—
3471	12-10-75	1—4	9	81-84	—
3475	12-10-75	1	9	70	—
3476	12-10-75	1—8	9	450—457	—
3477	12-10-75	1	8	6(a)(1)(k)(e)	8:6

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3483	12-10-75	1	9	21(c)	—
3486	12-22-75	1	10	208(5)	10:209
3487	12-22-75	1	1	250—254	1:251—1:255
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3497	1-28-76	1	8	101	8:101
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3501	2-11-76	1	9	160.5(g)	—
3506	2-25-76	1	2	101	2:131
3521	3-26-76	1	1	265(1)(b)	1:265
		2, 3	1	266(1)(a), (b)	1:266
3522	4-14-76	1	8	6(m)	8:6
3524	4-14-76	1	9	450	—
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3540	4-28-76	1	9	124(g)	—
3541	4-28-76	1	9	160.5(g)	—
3546	5-12-76	1	10	208(1)	10:209
3547	5-12-76	1	9	111	9:111
3558	5-26-76	1	11	204	11:204
3561	6- 9-76	1	9	34(1)	—
3562	6- 9-76	1	9	4(k)	—
3574	7-14-76		6	517	6:514
3575	7-14-76	1	10	203(c)	10:204
3580	7-28-76	1	9	457	—
3592	9- 8-76	1	9	350, 351	—
3608	10-27-76	1	11	173	11:173
3614	11-10-76	1	10	17	10:8
3623	11-24-76	1	11	45(c)	11:44
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3627	12- 8-76	1—23	9	1—23	—
3628	12- 8-76	1—8	9	93—101	—
3629	12- 8-76	1—38	9	120—157	—
3630	12- 8-76	1—40	9	160.1—160.40	—
3631	12- 8-76	1—15	9	60—75	--
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3633	12- 8-76	1—5	9	86—91	—
3634	12- 8-76	1—12	9	381—392	—
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3636	12- 8-76	1—8	9	450—457	—
3637	12- 8-76	1—4	9	80—84	—
3655	1-12-77	1	1	255(2)(a)	1:257
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3666	2- 9-77	1	13	189—196	—
3679	2-23-77	1	8	301(c)	8:301
3686	3- 9-77	1	11	336	11:336
3690	3-22-77	1	7	2.203	—
3691	3-22-77	1	7	4.404	—
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3695	3-23-77	1	8	6	8:6

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		4	1	267	1:267
3717	5-24-77	1	7	6.208(1)	—
3718	5-25-77	1	11	337	11:337
3724	6- 8-77	1	11	27	11:27
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3725	6- 8-77	1	13	24	—
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3737	7-22-77		7	13(7)	7:13
3738	7-22-77	1	1	704.1(a)(6)	1:705
3739	7-22-77	1	7	11(7)	7:11
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3740	7-22-77	1	8	5(c)	—
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3741	7-22-77	1	1	255(b)(a)	1:257
3762	8-10-77	1	11	337	11:337
3770	8-24-77	1	1	267(a)	1:267
3771	8-24-77	1	7	9(4)	7:9
3779	9-28-77	1	11	1	11:1
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3781	9-28-77	1	11	175	11:175
3785	10-12-77	1—4	14	200—203	14:200—14:203
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3794	10-26-77	1	9	7(g)(3)	—
3795	10-26-77	1	9	37(G)(3)	—
3796	10-26-77	1	9	9(A)(2)(a)	—
3797	10-26-77	1	9	39(A)(2)(c)	—
3798	10-26-77	1	11	330	11:330
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3799	10-26-77	1—4	2	334—357	—
3806	11- 9-77	1	8	6(g.1)	8:6
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3819	12-14-77		9	160.1—160.40	—
3820	12-14-77		9	60—75	—
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3825	12-14-77	1—8	9	450—457	—
3826	12-14-77		9	80—84	—
3834	12-21-77	1	10	208(5)(A)(1)(a)	10:209(5), (6)a.i
3835	12-21-77	1	1	701(a)	1:701
3840	1-11-78	1	12	350(a)	12:351
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3842	1-11-78	1	8	318	8:318

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3861	3-22-78	1	7		11(8)	7:11
3862	3-22-78	1	7		11(2)	7:11
3863	3-22-78	1	8		6(1.1)	8:6
3864	3-22-78	1	8		6(1.2)	8:6
3865	3-22-78	1	7		11(6)	7:11
3866	3-22-78	1	7		13(7)	7:13
3872	4-12-78	1	11		330	11:330
3876	4-12-78	1	8A		01	8:1
3883	4-26-78	1	13		416—418	—
3896	5-23-78	1	7		1.201	—
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3898	5-23-78	1	7		6.101(f)	—
3898-A	5-24-78	1, 2	10		208(5)(A)(1)	10:209(5), (6)a.
3913	6-28-78	1—38	9		475—512	—
3914	6-28-78	1	9		427	—
3922	7-26-78	1	9		111	9:111
3937	8-22-78	1, 2	7		8.402(e), (f)	—
3948	9-27-78	1	13			
3956	10-24-78	1	7	Rpld	8.401(b)	
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3958	10-25-78	1	11		45, 46	11:44, 11:45
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3960	10-25-78	1	11		216	11:217
3961	10-25-78	1	11		310	11:310
3962	10-25-78	1	2		352(d)	2:352
3970	11- 8-78	1	11		293	11:293
3977	11-22-78	1	9		61(b)(1)	—
3981	12-13-78	1—23	9		30—53	—
3982	12-13-78	1—23	9		1—23	—
3983	12-13-78	1—8	9		93—101	—
3984	12-13-78	1—38	9		120—157	—
3985	12-13-78	1—40	9		160.1—160.40	—
3986	12-13-78	1—15	9		60—75	—
3987	12-13-78	1—7	9		349—355	—
3988	12-13-78	1—5	9		86—90	—
3989	12-13-78	1—12	9		381—392	—
3990	12-13-78	1—13	9		427—439	—
3991	12-13-78	1—8	9		450—457	—
3992	12-13-78	1—4	9		80—84	—
3999	12-13-78		13		600	13:33, 13:35
		1	7		2.119	—
4004	12-19-78	2	7		2.201	—
		3	7		2.203(&3)	—
		4	7		2.210(D)	—
4005	1-10-79	1, 2	13		30, 31	—
		3	13		45.1, 45.5	13:56, 13:56.1
					45.8	13:69
		4	13		103	13:1008
		5	13		609	13:1018
		6	13		83	13:95.3
		7	13	Rpld	41	—
		8	13	Rpld	401	—

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4008	1-24-79	1	10	407(c)	10:407
4009	1-24-79	1	9	455(a)	—
4017	1-30-79	1	7	2.210(A)	—
4018	2-14-79	1	7	13(2)	7:13
4025	2-28-79	1	6	417	6:392
4028	3-14-79	1	13	250, 251	13:1015
4029	3-14-79	1	1	303	1:303
4035	3-28-79	1	8	304(e)	8:304
4039	4-11-79	1, 2	11	160	11:160
4047	4-25-79	1	1	7(e)	1:7
4049	5- 9-79		6	449	6:448
4050	5- 9-79	1	8	1(b)	8:1
4063	6-13-79	1	8	6(b)(8)	8:6
4064	6-13-79	1	8	404(5)	8:402
4065	6-13-79	1	8	5(c)	—
4066	6-13-79	1	8	Rpld 101(2.7.3)	8:101
4067	6-13-79	1	10	208(5)(A)(1)(a)	10:209
4068	6-13-79	1	11	336	11:336
4086	6-27-79	1	5	201(a)	5:201
		2	5	122	5:169
		3—8	5	304—309	5:203
4087	6-27-79	1	5	300—303	4:300—4:303
4091	7-11-79	1	1	308	1:308
4094	7-25-79	1	1	264(8), 265(10)	1:264, 1:265
				266(10)	1:266
4095	7-25-79		14	400—409	—
4107	9-12-79	1	8	Rpld 6(k)(b)	8:6
4119	9-26-79		8	701—705	—
4126	10-10-79		7	2.202.5	—
4135	10-24-79	1	11	336	11:336
4144	11-14-79	1	7	2.120	—
4145	11-14-79	1	1	712	1:713
		2	1	712(note)	1:713
4146	11-14-79	1	14	213(a)	—
4147	11-14-79	1	1	715(1)(f)	1:715
4152	11-28-79	1, 2	8	6(b)(3), (4)	8:6
4153	11-28-79	1	11	330	11:330
4154	11-28-79	1	1	507	1:507
4158	12-12-79	1	8	13.1	—
		2	8	21.1(f)	—
		3	8	25(16)—(18)	8:25
		4	8	Rpld 701—705	—
4180	1- 9-80	1	7	4.411	—
4189	1-23-80	1	13	251(d)	13:1015
4193	2-13-80	1	6	58	6:56
4202	2-26-80	1	7	6.302	—
4203	2-26-80	1	7	4.412	—
4204	2-27-80	1	10	208(5)(A)(1)(a)	10:209
4205	2-27-80	1	1	51	—
4206	2-27-80	1	8	6(b)(3)	8:6
4211	3-12-80	1	12	102(h)	12:102
4212	3-12-80	1	13	251(d)	13:1015
4217	3-26-80	1	11	336	11:336
4222	4- 9-80	1	11	335	11:335
4223	4- 9-80	1	11	330	11:330
4229	4-23-80	1	9	700—707	—
4230	4-23-80	1—6	13	700—705	13:1019
4243	5-28-80		13	45.6.1	—

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4244	5-28-80	1	6		415(5)	6:390
4248	6-11-80	1	8		4	8:5
		2	8		21.1	—
		3	8		338	8:332
4249	6-11-80	1	11		335(c)	11:335
4262	6-25-80	1	8		1, 2	8:1, 8:2
		2	8	Rpld	5	—
					6(102.5), (103.1)	—
		3	8		6(101.3(c))	8:6(101.3(d))
		4	8		6(105.3a)	8:6(105.3a)
		5	8		6(105.6)	—
		6, 7	8		6(106.2), (106.3)	8:6(106.2), (106.3)
		8	8		6(109.5)	8:6(109.5)
		9—11	8		6(111.1)—(111.3)	8:6(111.1)—(111.3)
		13	8		6(114)	8:6(114)
		14	8		6(301.3(f))	—
		15	8		6(304(a)11., 12.)	8:6(304(a) 11., 12.)
		16	8		6(413), (414)	8:6(413), (414)
		17	8		6(509)	—
		18	8		6(706.6)	8:6(706.6)
		19	8		6(804.3(i))	—
		20	8		(1205.1)	8:6(1205.1)
		21	8		6(1304)	—
		22	8		6(1701.1(c))	8:6(1701.1(c))
		23	8		6(2203.1)	8:6(2203.1)
		24	8		6(2401.2(e))	8:6(2401.2(f))
		25	8		6(App. N)	8:6(App. N)
4265	7- 9-80	1	11		336	11:336
4266	7- 9-80	1	11		309	11:309
4274	7-22-80	1	7		6.603	—
		2	7		7.401	—
		3	7		7.403	—
4277	8-13-80		11		336	11:336
4282	8-27-80	1	7		13(2)(e)	7:13
4283	8-27-80	1	11		45(f)	11:44
		2	11		160(a)(18)	11:160
		3	11	Rpld	41	—
4295	9-10-80	1(1)	8		101(1.2)	8:103(a)
		(2)	8		101(2.2.3)	8:103(b)(3)
		(3)	8		101(2.2.4)	8:103(b)(4)
		(4)	8		101(2.2.8)	8:103(b)(8)
		(5)	8		101(2.3.3)	8:103(c)(3)
		(6)	8		101(2.3.4)	8:103(c)(4)
		(7)	8		101(2.3.5)	8:103(c)(5)
		(8)	8		101(2.3.7)	8:103(c)(7)
		(9)	8		101(2.4.1(a))	8:103(d)(1)
				Rnbd	(a)—(d) as (b)—(e)	—
		(10)	8		101(2.4.1(d))	8:103(d)(4)
		(11)	8		101(2.6.1)	8:103(f)(1)
		(12)	8		101(2.7.3)	8:103(g)(3)
		(13)	8		101(3.1.6)	8:104(a)(6)
		(14)	8		101(3.7)	8:104(f)
		(15)	8		101(3.9)	8:104(h)
		(16)	8		101(4.6.1)	8:105(f)(1)
		(17)	8		101(8.2)	8:109(b)

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		(18)	8	101(8.8.1)	8:109(h)(1)
		(19)	8	101(8.9.2)	8:109(i)(2)
		(20)	8	101(8.20.2(c))	8:109(t)(2)c.
		(21)	8	101(9.1.2)	8:110(a)(2)
		(22)	8	Rnbd 101(9.1.2) as (9.1.3)	—
		(23)	8	101(9.5.5(b), (c))	8:110(e)(5)b., c.
		(24)	8	101(9.5.7)	8:110(e)(7)
		(25)	8	101(10.3.1)	8:111(c)(1)
		(26)	8	101(10.3.4)	8:111(c)(4)
		(27)	8	101(11.6.4)	8:112(f)(4)
		(28)	8	101 (11.9(diagrams))	—
		(29)	8	101(13.8.1)	8:114(g)(1)
		(30)	8	101(13.8.4)	8:114(g)(d)
		(31)	8	101(13.13.4)	8:114(m)(4)
		(32)	8	101(16.1.1)	8:117(a)(1)
		(33)	8	101(17.2.4)	8:118(b)(4)
4296	9-10-80	1	13	1	13:2
		2	13	610—615	13:1018
				616	13:91.1
				617	13:91.2
				618	—
4297	9-10-80	1—9	9	1—9	—
4303	9-10-80		8	Rpld 6(b)(3)	8:6
4306	9-24-80	1	1	167—170	1:150—1:153
4309	10- 1-80	1	9	1(a)(2), (b)	—
		2	9	1(b)(note)	—
4310	10- 1-80	1	9	1(a)(2a), (b)	—
4311	10- 8-80	1	11	330	11:330
4318	10-22-80	1	14	100—114	14:100—14:114
				115	—
			14	116—119	14:117—14:120
			14	200—205	14:200—14:205
				206	14:207
				207	14:206
				208	—
			14	300	14:300
				301	14:301
				302	—
				303	14:303
4319	10-22-80	1	1	167(6)	1:150
		2	1	170.1	1:154
		3, 4	1	168(a), (b)	1:151
4334	11-26-80	1	1	250(150)	1:251
4335	11-26-80	1	8	315	8:315
4341	12-10-80	1—9	9	1—9	—
4342	12-10-80	1—8	9	94—101	—
4343	12-10-80	1—38	9	120—157	—
4344	12-10-80	1—40	9	160.1—160.40	—
4345	12-10-80	1—15	9	60—74	—
4346	12-10-80	1—7	9	349—355	—
4347	12-10-80	1—5	9	87—91	—
4348	12-10-80	1—13	9	381—392	—
4349	12-10-80	1—13	9	427—439	—
4350	12-10-80	1—8	9	450—457	—
		11	9	458	—
4351	12-10-80	1—8	9	700—707	—

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4352	12-10-80	1—11	9	475—485	—
4356	12-10-80	1	11	336	11:336
4370	1-14-81	1	6	415(2)(a), (b)	6:390(b)(1), (2)
4375	1-28-81	1	1	1(a)	1:1
4376	1-28-81	1	2	101	2:131
4377	1-28-81	1	8	318	8:318
4378	1-28-81	1	11	337	11:337
4379	1-28-81	1	11	336	11:336
4380	1-28-81	1	11	336	11:336
4392	3-11-81	1	1	1(c)	1:1
4393	3-11-81	1	10	208(5)(A)(1)(a)	10:209
4394	3-11-81	1	13	800	—
4408	3-25-81	1	8	26.15(a)	8:26(15)a.
4411	4- 8-81	1	7	6(3)(d)(1)	7:6
4412	4- 8-81	1	7	13(2)(b)	7:13
4413	4- 8-81	1	7	14(b)(7)	7:14
4414	4- 8-81	1	9	477(b)(3)	—
4415	4- 8-81		9	477(d)(2)	—
4422	4-22-81	1	9	1(b)(6)	—
4423	4-22-81	1, 2	8	2.3.3	8:103(c)(3)
		3	8	2.3.5	8:103(c)(5)
		4	8	3.9	8:104(h)
		5	8	4.15	8:105(o)
		6	8	5.5	8:106(e)
		7	8	6.2.12	8:107(b)(14)
		8	8	13.8.1	8:114(h)
		9	8	13.13.4	8:114(m)(4)
		10	8	13.13.6	8:114(m)(6)
4429	4-22-81	2	14	100—114	14:100—14:114
			14	115—118	14:116—14:119
			14	200—205	14:200—14:205
				206	14:207
				207	14:206
				208	—
				209	—
			14	300	14:300
				301	14:301
				302	—
				303	14:303
4430	5-13-81	1	11	330	11:330
4435	5-26-81	1	7	2.120	—
4436	5-26-81	1	7	6.211	7:6.211
4437	5-26-81	1	7	6.208(k)	7:6.208(k)
4443	5-27-81	1	9	427	—
4449	6-10-81	1	1	167, 168(a), (c), 169(a)—(g), 170	1:150, 1:151 1:152, 1:153
4450	6-10-81	1	9	1(a)(1), 7(c)	—
4451	6-10-81	1	10	416	10:416
4453	6-23-81	1	7	5.4(a)	—
4457	6-24-81	1	6	59	6:55
4458	6-24-81	1	1	704.1(a)(4)	1:705
		2	1	704.1(a)(6)(i)	1:705
		3	1	704.2	1:706
		4	1	715(2)(a), (b), (c)(i), (ii)	1:715
4459	6-24-81	1	11	330	11:330
4465	7- 8-81	1		21—25	11:21—11:25
4476	7-22-81	1	6	417	6:392

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4483	7-22-81	1	1		703	1:703
4496	8-26-81	I—XI	1		726—736	1:800—1:810
4497	8-26-81	1	12		100—104	12:100—12:104
4498	8-26-81	1	11		337	11:337
		2	11		200—203	11:200—11:203
4499	8-26-81	1	11		336	11:336
4500	8-26-81	1	12		252	12:252
4512	9- 9-81	1	7		6(2)(b), (3)(b), (7), (10)	7:6
4524	9-23-81	1	5		310	—
4528	10-14-81	1	9		474—484	—
4529	10-14-81	1	11		174	11:174
4539	10-27-81	1	7		6.101	—
4551	10-28-81	1	9		111—116	9:111—9:116
4552	10-28-81	1	8		1(a)	8:1
		2	8		4(b)(8), (9)	8:4
		3	8		6(103.1)	—
		4	8		6(201.2)	8:6(201.2)
		5	8		6(508)	8:6(508)
		6	8		6(1115.3)	—
		7	8		6(1204.5)	—
		8	8		6(2301.10)	8:6(2301.10)
		9	8		6(1108.1(b))	—
4553	10-28-81	1	1		69	—
		2	11		34	11:34
		3	11		102	11:102
		4	11		140	11:140
		5	11		300	11:300
		6	13		4	—
4557	11- 9-81	1	7		11(2)	7:11
		2	7		11(8)	7:11
		3	7		12	7:12
4558	11- 9-81	1	1		701—703, 705, 709, 715(2)(e)	1:701—1:703, 1:707, 1:711 1:715
4562	11-24-81	1	7		2.203(A3.3), (A3.4)	—
		2	7	Rpld	2.210(D)	—
		3	7		5.1	7:5.1
		4, 5	7		6.209	—
4563	11-24-81	1	7		6.101(f)	—
4567	11-25-81	1	7		25	7:25
4568	11-25-81	1	1		252(15), (16)	1:253
		2	1	Rpld	264(1)(c), 265(1)(c)2. 266(1)(c)2.	1:264 1:265 1:266
4569	11-25-81	1	1		264(1)(d), 4., 5.	1:264
4570	11-25-81	1	11		284	11:284
4571	11-25-81	1	11		210(a)	11:210
4572	11-25-81	1	11		336	11:336
4573	11-25-81	1	13		608—610	13:1018
4575	11-25-81	1	9		474(3)	—
4593	12- 9-81	1	6		415(2)	6:390
		2	6		417	6:392
4600	12- 9-81	1	6		415(9)	6:390
4619	1-27-82	1	9		3(b)(4)c	—
4622	2-10-82	1	1		300—308	1:300—1:308
4628	2-24-82	1	7		4.413	—

Ord. No.	Date	Section	1951 Code Title	1951 Code Section	Section this Code
4629	2-24-82	1	7	8.402(i)(1)	—
4642	3-10-82		8	800—803	8:700—8:703
4643	3-10-82	1	13	204	13:1014
4644	3-10-82	1	13	619	13:1018
12366(Res.)	3-10-82		7	Note	—
4655	3-24-82	1	9	1(a)(1), 7(c)	—
4656	3-24-82	1	1	264(2)(c), 265(2)(c), 266(2)(c)	1:264 1:265 1:266
4660	4-14-82	5	13	84, 85	—
4661	4-14-82	1	9	476(1)(1)c	—
4662	4-14-82	1	14	118, 119	14:119, 14:120
4672	5-12-82	1	5	50—53	5:50—5:53
4673	5-12-82	1	10	208(5)(A)(1)(a)	10:209
4674	5-12-82	1	8A	12	—
		2	8A	10	8A:111
4675	5-12-82	1	9	117	9:117
4676	5-12-82	1	11	336	11:336

CODE COMPARATIVE TABLE

ORDINANCES CONTAINED IN 1962 CODE OF THE PARISH OF EAST BATON ROUGE

This table gives a list of the ordinances and resolutions of the Parish which were included in the 1962 Code. The last column of this table contains an indication as to the location of those ordinances which were included in the new Code, a dash indicates that the ordinance was omitted from the new Code.

NOTE—In the following table wherever the letter "R" precedes a number, it indicates that the number is a resolution of that date.

Date	Ord. No.	Section	1962 Code Title	1962 Code Section	Section this Code
	77		2	2	2:2(b)
	234	1, 2, 4	14	275	—
10-11-21		1	14	110	14:110
				111	14:111
		5		112	14:112
1- 9-23			14	111	14:111
8-13-29		1	5	75	5:76
		1		78	5:79
		2		76	5:77
		3		77	5:78
5- 8-34			2	62	2:59
10- 8-34			12	100	12:100
12-15-36		1	2	61	2:58(b)
2- 9-43		1, 2	12	300	12:300
5-11-43		1	14	111	14:111
9-19-44		1	9	175	9:175
		2		176	9:176
9-10-46		1	12	350	—
		2		351	—
		3		354	—
12-31-48		Art. 3	1	3	1:3
		Art. 4		4	1:4
		Art. 8		8	1:8
2-16-49		1	15	1	15:10
		2		2	15:11
		3		3	15:12
		4		4	15:13
		5		5	15:14
		6		6	15:15
		7		7	15:16
9-29-50		1	2	300	2:300
		2		301	2:301
		3		302	2:300
		4		303	2:302
		5		304	2:303
		6		305	2:304
		7		306	2:305
		9		308	2:307
7-18-51	35	1	15	10	15:19
		2		11	15:20
		3		12	15:21
		4		13	15:22
		5		14	15:23
		6		15	15:24

Date	Ord. No.	Section	1962 Code Title	1962 Code Section	Section this Code
		7		16	15:25
		8		18	—
8-15-51	40	2	1	21	1:20
		3		22	1:21
		4		23	1:22
		6		25	1:24
9-19-51	44	1	1	675	1:750
	93	1—17	14	199	—
				200—205	14:200—14:205
				206	14:207
				207	14:206
				208—215	—
		19	14	219	—
4-22-53	189	1	2	60	2:50
		1		69.1	2:76
		2		69.2	2:77
		3		69.3	2:78
		4		69.6	2:81
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CODE COMPARATIVE TABLE

1951 BATON ROUGE CITY CODE

This table gives the location within this Code of those sections of the 1951 City Code as supplemented through 5-12-82, which are included herein. Sections of the 1951 City Code not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see tables entitled Ordinances of East Baton Rouge Parish and Consolidated Ordinances.

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Title	Section	Section this Code
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	191	11:191
	192	11:192
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	195	11:195
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	201	11:201

Title	Section	Section this Code
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	241	11:241
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	243	11:243
	244	11:244
	245	11:245
	250	11:250
	251	11:251
	252	11:252
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	261	11:261
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Title	Section	Section this Code
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	292	11:292
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	202	12:202
	203	12:201
	204	12:210
	205	12:211
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	251	12:251
	252	12:252
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	262	12:261
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	504	12:503
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	45.5	13:56.1
	45.6	13:67
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	45.7	13:68
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	45.9	13:1001
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	51	13:104
	63	13:1002
	70	13:108
	71	13:110
	72	13:112
	73	13:1003
	74	13:1004
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	83	13:95.3
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	104	13:1009
	106	13:1010
	107	13:1011
	108	13:1012
	200	13:1013
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	204	13:1014
	250	13:1015
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	101	14:101
	102	14:102
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	106	14:106
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CODE COMPARATIVE TABLE

1962 PARISH OF EAST BATON ROUGE CODE

This table gives the location within this Code of those sections of the 1962 Parish Code as supplemented through 5-12-82, which are included herein. Sections of the 1962 Parish Code not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the following tables entitled Ordinances of East Baton Rouge Parish and Consolidated Ordinances.

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	3	1:3
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	10	1:10
	11	1:11
	21	1:20
	22	1:21
	23	1:22
	24	1:23
	25	1:24
	100	1:150
	101	1:151
	102	1:152
	103	1:153
	104	1:154
	171	1:171
	180	1:180
	181	1:181
	182	1:182
	183	1:183
	200	1:200
	201	1:201
	202	1:202
	203	1:203
	230	1:230
	234	1:231
	235	1:232
	236	1:233
	450	1:450
	460	1:460
	601	1:602
	602	1:603
	603	1:604
	604	1:605
	605	1:606
	606	1:607
	607	1:608
	608	1:601
	675	1:750
	682	1:751
	685	1:775
	686	1:780
	687	1:781
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	689	1:783
2	2	2:2(b)

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	62	2:59
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	69.3	2:78
	69.4	2:79
	69.5	2:80
	69.6	2:81
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	69.8	2:83
	69.9	2:84
	69.10	2:85
	71	2:90
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	73	2:92
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	78	2:97
	79	2:98
	80	2:99
	81	2:100
	100	2:130
	101	2:131
	102	2:132
	103	2:133
	104	2:134
	170	2:170
	171	2:171
	172	2:172
	173	2:173
	300	2:300
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	311	2:312
	312	2:313
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	314	2:315
	315	2:316
	316	2:317
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Title	Section	Section this Code
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	341	2:341
	342	2:342
	350	2:350
	351	2:351
	352	2:352
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	355	2:355
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	92	3:92
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	88	5:403
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	93	5:452
	94	5:453
	95	5:454
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	503	5:702
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	415	6:415
	416	6:416
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	418	6:418
	419	6:419
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Title	Section	Section this Code
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	610	6:610
	611	6:611
	612	6:612
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	12.103	7:12.103
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	12.110	7:12.110
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	3	8:4
	4	8:5
	6	8:6
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	300	8:300
	400	8:400
	404	8:402
	501	8:500
	502	8:501
	503	8:502
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	554	8:554
	555	8:555
	556	8:556
	557	8:557
	558	8:558
	601	8:600
	602	8:601
	603	8:602
8A	01	8A:1
	1	8A:100
	2	8A:101
	3	8A:102
	4	8A:103
	5	8A:104
	6	8A:105
	7	8A:106
	8	8A:107
	9	8A:108
	10	8A:111
	11	8A:109
	12	8A:110
9	76	9:111

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	183	9:252
	184	9:253
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	186	9:255
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	110	10:110
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	102	12:102
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	104	12:104
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	203	12:201
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	205	12:211
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	300	12:300
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	409	12:509
	410	12:510
	501, 502	12:400
	520	12:520
	521	12:521
	522	12:522
	523	12:523
	524	12:524
	525	12:525
	526	12:526
13	20	13:56
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	53	13:1017
	54	13:1017
	104	13:1009
	150	13:106.1
	153	13:106.2
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	417	13:1011
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	105	14:105
	106	14:106
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	117	14:118
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	119	14:115
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CODE COMPARATIVE TABLE

ORDINANCES OF EAST BATON ROUGE PARISH AND CITY OF BATON ROUGE

This table gives the location within this Code of those ordinances of the City and Parish adopted since 5-12-82. Ordinances adopted prior to such date were incorporated into the preceding tables. Ordinances not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

City Ord. No.	Parish Ord. No.	Adoption Date	Section	Section this Code
4336	5582	11-26-80	1	9:250—9:266
4686	5913	5-26-82	2	12:359
4687	5914	5-26-82	1	1:264—1:266
				1:470
4688	5915	5-26-82	1	1:254
				1:450
4693	5929	6- 9-82	1	1:264—1:266
4694	5930	6- 9-82	1	12:501
4706	5938	6-23-82	1	8:6
4713	5954	7-27-82	1	7:6.2
4714	5955	7-27-82	1	7:10.4
4726	5960	7-28-82	1	1:809
			2	1:810
				1:811
4729	5962	8-11-82	1	14:102
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4791	5998	10-27-82		2-308
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4793	6000	10-27-82	1	7:10
4794	6001	10-27-82	1	7:2
4805	6010	11-24-82	1	8:6
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4838	6038	12-14-82	1	7:2.1
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CODE COMPARATIVE TABLE

CONSOLIDATED ORDINANCES

This table gives the location within this Code of those ordinances of the consolidated City of Baton Rouge and East Baton Rouge Parish adopted since January, 1983. Ordinances adopted prior to such date were incorporated into the preceding tables. Ordinances not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

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7003	1-12-83	1	1:256
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7008	1-25-83	1	7:2.121, 7:2.122, 7:2.206.1,
7016	1-26-83	2	72.207(a)
7017	1-26-83	1	8:6
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7051	2-23-83	1	8:403
7052	2-23-83	1	8:6
7054	2-23-83	1	8:505
7055	2-23-83	1	11:336
7062	3- 9-83	1	8:6
7077	3-22-83	1	1:803
7078	3-22-83	1	7:8.5
7092	3-23-83	1	7:2.1
7101	3-23-83	1	13:94
7102	4-13-83	1	8:6
7103	4-13-83	1	11:174
7104	4-13-83	1	13:68.1
7123	4-27-83	1	1:150
7125	5-11-83		1:701
7126	5-11-83		13:500
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7127	5-11-83	2	8:21
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7128	5-11-83	2	8:326
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7192	**6-22-83**	**1**		**10:400—10:414**
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7202	**6-22-83**			**11:28**
7203	**7-13-83**			**1:150(d)(8)**
7204	**7-13-83**			**1:151(d)**
7207	**7-13-83**			**13:91(c)**
7208	**7-13-83**	**1**		**7:13(b)(1st ¶)**
7209	**7-13-83**	**1**		**11:86**
7210	7-13-83			12:5
7229	**8-10-83**			**6:392**
7230	**8-10-83**	**2**		**8:5**
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		4		**8:332**
		5		**8:104(h)**
7231	**8-10-83**	**1**		**14:118**
7256	**8-24-83**	**1**		**1:151(d)**
7257	**8-24-83**	**1**		**11:86(b), 11:357(b)**
7259	**9-14-83**	**1**		**7:13(b)(1st ¶)**
7271	**9-27-83**	**1**		**7:6.208(1)**
7272	**9-27-83**	**1**		**7:6.212**
7273	**9-27-83**	**1**		**7:7.404(C)(1)(c)**
7278	**9-28-83**			**12:4**
7279	**9-28-83**	**1**		**10:9**
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7323	**10-26-83**		**Rnbd**	**11:41—52 as 11:42—11:53**
7332	**11-23-83**	**1**		**11:96**
7372	**12-13-83**	**1**		**7:2.206.1**
7373	**12-13-83**	**1, 2**		**7:2.207, 7:2.208**
7389	**12-14-83**	**1**		**13:1018(k), (l)**
7390	**12-14-83**	**1**		**5:31, 5:32**
7391	**12-14-83**			**11:285**
7400	**12-14-83**	**1**		**1:711(c)**
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7403	1-11-84	1		3:74(c), 3:77(a)
7404	1-11-84	1		8:318
7417	1-25-84	1		11:337
7418	1-25-84	1		11:352
7419	1-25-84	1		11:140(a)
7420	1-25-84	1		13:91.4
7421	1-25-84	1		13:93
7422	1-25-84	1		13:39.1
7423	1-25-84	1		8:26(8), (9)
7427	2- 8-84	1		1:702
7428	2- 8-84	1		9:111(f)
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7429	2- 8-84	1		9:118—9.120
7445	2-22-84	1		7:13(a)
7451	3-14-84	1		10:412
7454	3-14-84	1		8:103(d)
7461	3-14-84	1		8:300(a), (h)

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7504	4-25-84	1		11:1
		2		11:21
		3	Rpld	11:27(d)
		4	Rpld	11:73
		5	Rpld	11:141
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		7	Rpld	11:145(b)
		8	Rpld	11:150—11:153, 11:160—11:175, 11:180—11:185, 11:190—11:196
		9	Rpld	11:204(c)
		10	Rpld	11:210—11:217
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		12	Rpld	11:252(b)
		13	Rpld	11:283(b)
		14	Rpld	11:284
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		18	Rpld	11:300
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		21	Rpld	11:332—11:335
		22		11:400—11:433
7505	4-25-84			2:250—2:263
7523	4-25-84			1:151(a)
7525	5- 9-84	1		1:802
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		3		1:808
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7526	5- 9-84	1		9:325—9:327
7549	5-23-84	1		9:111(g)
		2		9:118(b)
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7554	5-23-84	1		8:300(h)
7555	6-13-84	1		6:392
7556	6-13-84	1		6:422(f)
		2		6:420
7581	6-27-84	1		4:58
7582	6-27-84	1		7:9(10)
7583	6-27-84			9:950—9:953
7584	6-27-84	1		14:112(b)
7611	8- 8-84			11:286
7612	8- 8-84	1		11:337
7634	8-21-84	1		7:4.401
7635	8-22-84	1		11:30(a)
7636	8-22-84			11:246
7640	9-12-84	1		1:805(f)
7655	9-25-84	1		7:2.202.5
		2		7:2.207(11), (14)

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		5		7:2.202.6
		6		7:4.2
		7		7:5.1
		8		7:4.2
7664	10-10-84	1	Added	7:16
			Rnbd	7:16—7:18 as 7:17—7:19
7705	11-28-84	1		1:264(d), 1:256(d), 1:266(d)
7706	11-28-84	1		Tit. 12, Ch. 5(note)
7744	12-18-84			6:455, 6:456
7761	1- 9-85	1		1:150(a), (b)
7763	1- 9-85	1		1:287
7775	1-23-85			11:330
7776	1-23-85	1		1:254(a)(2)
7777	1-23-85	1		10:510
7799	2-26-85	1		7:2.207
7800	2-27-85	1		13:1018, 13:1018.1
7801	2-27-85			11:73
7819	4-10-85	1		7:2(a), 7:6(g), 7:13(c), 7:15(1)f, 7:17(b)(4)f
7820	4-10-85	1		12:350
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7821	4-10-85	1		12:502(b)
7825	4-10-85	1—11		9:970—9:980
7841	4-24-85	1		1:253(b)(7)
7842	4-24-85	1		1:264(b)(2), (4), 1:265(b)(2), (4), 1:266(b)(2), (4)
7901	6-25-85	1		7:2.205
7902	6-26-85			2:275
7903	6-26-85	1		1:264(a), 1:265(a), 1:266(a), 1:268
7913	7-10-85	1		12:201
7914	7-10-85	1		7:2.211
7959	8-27-85	1		7:2.207(a)
7960	8-28-85	1		4:52
		2		13:108.2
7968	9-11-85			8:6(106.2(c))
7969	9-11-85	1		8:13(a)
7987	9-25-85	1		1:808(a)(2)
7991	10- 9-85	1		10:507, 10:510
8000	10-22-85	1		1:269
8007	11-13-85	1		10:400
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8074	12-11-85	1		6:375
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		4		6:382(c)
		5		6:386
		6		6:387(f)
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8095	1-22-86			8:200—8:207
8102	2-12-86			6:422(a), (e)
8110	2-26-86			10:501, 10:509(b), 10:510
8116	2-26-86	1		10:215(a), (c)
8117	3-12-86	1		11:109, 11:140(a)(3), 11:205, 11:251.1, 11:253, 11:254, 11:281.1, 11:287.1, 11:409
8118	3-12-86	1		13:35.1, 13:35.2, 13:39.1, 13:59, 13:95.4
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8132	4- 9-86	1		11:246
8133	4- 9-86	1		9:111(f), 9:116(2nd¶), 9:118(a), 9:119(a)
8141	4-23-86	1		13:68.2(b)(1)
8149	5-14-86			10:511
8167	6-25-86	1		8:6(109.5)
8168	6-25-86	1		7:2.208
8173	7- 9-86			13:215.1
8184	8- 5-86	1		7:7.4
8196	8-27-86	1		12:502—12:504
8197	8-27-86	1		5:201(a)
8198	8-27-86	1		5:801
8205	9-10-86	1		1:264(j), 1:265(k), 1:266(k)
8206	9-10-86	1	Rpld	9:413—9:415
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8222	9-23-86	1		7:2.201
		2		7:2.203
8228	10- 8-86	1		9:433

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		3		8:555
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8323	12-10-86	1		8:103(c)(4)a
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8324	12-10-86	1		8:16(d)
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8325	12-10-86	1		10:514
8338	12-16-86	1		7:7.401(21), 7:7.403(12)
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8341	1-14-87			11:1
8343	1-14-87			7:7.401(21), 7:7.403(12)
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8352	2-11-87	1		2:275(e)(3)
8383	4- 8-87	1		1:1(c)
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8390	4-22-87	1		7:4
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8391	4-22-87	1	Rpld	9:413–9:433
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8392	4-22-87	1		13:1020–13:1024
8400	5-13-87	1		5:550(a)
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		3	Rpld	5:400–5:403, 5:450–5:456
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8416	5-20-87	1	Rpld	7:5.4
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8420	5-27-87	1		9:1100–9:1116
8421	5-27-87	1		10:412
8454	7- 8-87	1		9:420(c)
8455	7- 8-87	1		13:67.1
8466	8-12-87			13:1025
8473	8-26-87			6:420
8483	9- 9-87	1		Tit. 9, Ch. 6(note)
		2		Tit. 9, Ch. 18(note)
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8500	9-23-87		Rpld	9:1050–9:1064

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8513	10-28-87	1		6:392(4th¶), 6:422(d)
8519	11-10-87	1		11:430(e)
8525	11-25-87	1		11:330
8567	12- 9-87	1	Added	11:34(c)
			Rnbd	11:34(c) as (d)
			Rpld	11:287(h)
			Added	11:288
8572	12- 9-87	1		6:375
		2		6:393
8580	1-13-88			1:251
8598	2-10-88	1		11:288
8599	2-10-88			11:255
8600	2-10-88			1:900—1:902, 1:925—1:927, 1:950, 1:951, 1:975—1:977
8615	2-24-88	1		6:393
8631	3-23-88	1		2:255
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		5		2:263
8632	3-23-88	1	Rpld	6:393
		2		6:393(note)
8634	4-13-88	1		6:406(3)
8640	4-27-88	1		10:412
8648	5-11-88	1		8:27(c)
8655	5-18-88	1		7:2.203
8669	6- 8-88	1	Added	11:232
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8670	6- 8-88	1, 2		11:200, 11:201
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8671	6- 8-88			11:434
8672	6- 8-88	1		12:201
8678	6-22-88	1		13:1050—13:1053
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8681	6-22-8			13:91.5, 13:91.6
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8837	1-11-89	1		13:59(a)(9), (10), 13:63.4, 13:63.5, 13:67.1, 13:67.2, 13:67.4, 13:67.5, 13:68.3, 13:95(a)(5)
8849	1-25-89			1:234
8864	2-22-89	1		10:507
8880	3-22-89	1		9:413(a), (d), 9:415—9:417, 9:419, 9:426(c)
8894	4-26-89		Rpld	1:900—1:977
8895	4-26-89	1		1:1(c)
8921	5-24-89	1		1:301
		2		1:303
		3		1:305(a)(1st ¶), (b)(2nd ¶), (c)
		4		1:307
8922	5-24-89	1		1:271.1
		2		1:254(b)
		3	Rpld	1:254(c), 1:264(c), (d), 1:265(c), (d), 1:266(c), (d)
8923	5-24-89	1		1:271.2
8924	5-24-89	1		1:271.3
		2	Rpld	1:264(h), 1:265(h), (j), 1:266(h), (j)
8926	5-24-89	1		1:803(e)
8933	6-14-89	1	Rnbd	13:67.1 as 13:67.6
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8934	6-14-89	1		13:12.1(note)
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8946	7-12-89	1		13:67.3
8960	8-23-89	1		2:255
		2		2:259(e), (g)
8966	9-13-89	1		8:12(a), (b)(7)
		2		8:13(b)(1), (c)
8967	9-13-89	1		8:103(c)(3)b, d, (4)b
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8996	11-22-89	1		14:300
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		4		9:63(a), (b)
		5		9:63(c)
9024	12-13-89	1		9:360
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		5—13		9:362—9:370
9025	12-13-89	1—7		9:490—9:496
9026	12-13-89	1—8		9:520—9:527
9027	12-13-89	1—7		9:50—9:56
9028	12-13-89	1—14		9:540—9:553
9029	12-13-89	1—6		9:954—9:959
		7—11		9:959.1—9:959.5
9030	12-13-89	1—19		9:413—9:431
9031	12-13-89	1—12		9:980—9:991
9032	12-13-89	1—5		9:325—9:329
9033	12-13-89	1—17		9:1100-9:1116
9035	12-13-89	1		9:1150—9:1154
9041	1-10-90	1		8:105(l)(3), (4)
9048	1-24-90	1	Rpld	13:94
9056	2-28-90	1		1:305(c)
9061	3-28-90	1		1:271.3
		2	Rpld	1:264(a)(2)d, 1:265(a)(3)c, 1:266(a)(3)c
9064	4-11-90	1		1:804(d)
		2		1:807(h)
9065	4-11-90	1	Rpld	8:1—8:7
		2	Added	8:1—8:5
9067	4-11-90			8:900—8:915
9077	4-18-90	1		7:8.403(a)
		2		7:8.404
9078	4-25-90	1		7:9(11)
		2		7:11(1)
		3	Rnbd	7:11(8) as (9)
			Added	7:11(8)
		4		7:12(h)
		5		7:14(Intro. ¶)
		6		7:14(2)k
		7		7:15(1)k
		8		7:15(1)q
		9		7:15(1)s
		10		7:16(22)
9070	4-25-90	1		8:3(b)—(e)
		2, 3		8:821
		4		8:852
9080	4-25-90	1		13:1010(a)

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		9		8:114(a)(1), (j)(4)
8968	9-13-89	1		8:304(e)
		2		8:318
8990	11- 8-89	1		12:600—12:605
8991	11- 8-89	1		1:803(e)(3)
8996	11-22-89	1		14:300
9000	12-12-89	1		Title 7, Ch. 3(note), Title 7, Ch. 3, Pt. VIII(note), 7:4.409(a), 7:5.1, 7:8.1—7:8.5, 7:9.1, 7:12.101, 7:12.106—7:12.110
9021	12-13-89	1—8		9:70—9:77
9022	12-13-89	1—7		9:340—9:346
9023	12-13-89	1—3		9:60—9:62
		4		9:63(a), (b)
		5		9:63(c)
9024	12-13-89	1		9:360
		2—4		9:361
		5—13		9:362—9:370
9025	12-13-89	1—7		9:490—9:496
9026	12-13-89	1—8		9:520—9:527
9027	12-13-89	1—7		9:50—9:56
9028	12-13-89	1—14		9:540—9:553
9029	12-13-89	1—6		9:954—9:959
		7—11		9:959.1—9:959.5
9030	12-13-89	1—19		9:413—9:431
9031	12-13-89	1—12		9:980—9:991
9032	12-13-89	1—5		9:325—9:329
9033	12-13-89	1—17		9:1100-9:1116
9234	2-13-91			10:400— 10:424
9035	12-13-89	1		9:1150—9:1154
9041	1-10-90	1		8:105(l)(3), (4)
9048	1-24-90	1	Rpld	13:94
9056	2-28-90	1		1:305(c)
9061	3-28-90	1		1:271.3
		2	Rpld	1:264(a)(2)d, 1:265(a)(3)c, 1:266(a)(3)c
9064	4-11-90	1		1:804(d)
		2		1:807(h)
9065	4-11-90	1	Rpld	8:1—8:7
		2	Added	8:1—8:5
9067	4-11-90			8:900—8:915
9077	4-18-90	1		7:8.403(a)
		2		7:8.404
9078	4-25-90	1		7:9(11)
		2		7:11(1)
		3	Rnbd	7:11(8) as (9)
			Added	7:11(8)
		4		7:12(h)
		5		7:14(Intro. ¶)
		6		7:14(2)k
		7		7:15(1)k
		8		7:15(1)q
		9		7:15(1)s
		10		7:16(22)
9070	4-25-90	1		8:3(b)—(e)
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		4		8:852
9080	4-25-90	1		13:1010(a)

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9269	4-10-91	1		9:111(f)
		2		9:116(2nd ¶)
		3		9:118(a)
		4		9:119(a)
9278	5- 8-91	1		11:337
9279	5- 8-91	1		12:610, 12:611
9283	5-22-91	1		5:36
9286	6-12-91	1		10:218(c), (d)
9287	6-12-91	1		8:833
9304	6-26-91	1		1:253(b)(1)–(3)
		2		1:271.4, 1:271.5
		3	Rpld	1:268
9307	6-26-91	1		1:251
		2		1:254(a)(3)
9320	8-28-91	1		9:111(f)
		2		9:116(2nd ¶)
		3		9:118(a)
		4		9:119(a)
9321	8-28-91	1		8:25
9322	8-28-91	1		10:403(j)(3)
9339	9-25-91	1		13:1054
9340	9-25-91	1, 2		6:427, 6:427.1
		3		6:432
		4, 5		6:448, 6:448.1
		6		6:449
		7	Rpld	2:56–2:58, 2:92(d)
		8	Rpld	3:53, 3:75
		9	Rpld	6:51
		10	Rpld	11:274, 11:280
		11	Rpld	12:400(a)(1), 12:402
		12	Rpld	13:1001
9360	12-11-91	1		2:90–2:102
9361	12-11-91	1		6:636
9388	1-15-92	1		7:8.6
9389	1-22-92	1		8:904(c)
		2		8:908
9390	1-22-92	1		15:40–15:47
9392	2-12-92	Pt. I, §§ 1–14		9:451–9:464
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9405	3-11-92	1		9:341–9:351
9406	3-11-92	1		9:1050–9:1070
9407	3-11-92	1		9:1200–9:1217
9418	4- 8-92	1		12:401
9419	4- 8-92	1		9:111(a)
9420	4- 8-92	1		8:855
9425	4-15-92	1		7:7.501
9426	4-22-92	1		1:250–1:270
9427	4-22-92	1		2:252(a)(1)
		2		2:257(a)
		3		2:261
9429	5-13-92	1		1:100–1:105
9430	5-13-92	1		9:360–9:370
9432	5-13-92	1		12:102(b)
9439	5-27-92	1		8:21(a)(15)
9441	6-10-92	1		11:1
		2		11:435
9442	6-10-92	1		9:456(j)
9449	6-24-92	1		6:660–6:671
9451	6-24-92	1		1:901–1:909
9452	7- 8-92	1		12:405

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9455	7- 8-92	1	Rpld	7:301—7:303
9481	9-16-92	1		7:2.120
9482	9-16-92	1	Added	7:301—7:308
			Rpld	7:304—7:307
9492	10-14-92	1		1:251
		2		1:254(c)
9483	9-23-92	1		6:395
		2		6:423
9514	10-28-92	1	Added	12:102(b)(2)
			Rnbd	12:102(b)(2)—(4) as (3)—(5)
9515	10-28-92	1		9:417(4)
		2		9:419
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		8		9:427(1st ¶)
9255	11-10-92	1	Rpld	1:701—1:720
		2	Added	1:701—1:710
9532	11-18-92	1		7:2.127
		2		7:2.206
		3		7:2.207(a)
9534	11-25-92	1		5:801
9535	11-25-92	1		13:1055
9559	12- 8-92	1		7:11.1
9560	12- 8-92	1		7:10(Intro ¶)
		2		7:16(12)
9561	12- 8-92	1		7:1.121
		2		7:2.212
9562	12- 8-92	1		7:1.202(a)
		2		7:2.214
9564	12- 9-92	1		9:1052
		2, 3		9:1057, 9:1058
		4	Rpld	9:1060
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		6		9:1064
		7		9:1069
		8	Added	9:1070
		9	Rnbd	9:1070 as 9:1071
9572	1-27-93	1		13:1055
9574	1-27-93	1		8:1—8:5, 8:821
9575	1-27-93	1	Rpld	1:800—1:811
9576	2-10-93	1, 2		8:101, 8:102
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9585	2-24-93	I 1—7		9:451—9:457
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9588	2-24-93	1		1:236
9590	3-10-93	1		10:5(c)
9595	3-24-93	1		8:602(1)
9600	4-14-93	1		12:401
9601	4-14-93	1		7:2.207.2

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9610	4-21-93	1		7:1.202(A2.7)
		2		7:1.302
		3		7:2.202.7
		4		7:4.2(A2.7)
		5		7:5.1(A2.7S/F)
9611	4-28-93	1		13:1013
9612	4-28-93	1		6:450
961..	4-28-93	1		8:800—8:855
9614	4-28-93	1		12:152(a)(1)b.4
		2		12:522.1
9615	4-28-93	1		13:205
9619	5-12-93	4		1:150(c)(2)
9620	5-12-93	1, 2		1:702(f), (g)
9621	5-12-93	1		8:318
9634	5-26-93	1	Rpld	14:100—14:302
			Added	14:100—14:110, 14:200—14:218, 14:220—14:225, 14:300—14:311, 14:400—14:402, 14:500—14:505, 14:600
9635	5-26-93	1		9:131(d)(2)
9636	6- 9-93	1		13:1060
9637	6- 9-93	1		12:350
		2		12:351(a)
9661	7-28-93	1		7:6.101
		2		7:6.603
9662	7-28-93	1		10:412
9669	8-11-93	2	Rpld	13:205
		2	Added	13:40.2
9670	8-11-93	1		8A:200—8A:205
9692	8-18-93	1		7:2.207(a)
9693	8-18-93	1		7:4.2
9694	8-18-93	1		7:4.4
9695	8-18-93	1		7:6.304(c)
9696	8-18-93	1		7.2.214(a)
9697	8-25-93	1		8:13(g)
9698	8-25-93	1		1:151(b)
9699	8-25-93	1		11:201(c)
9700	8-25-93	1		11:428.1
9705	9- 8-93	1		5:501—5:506
		4		Title 5, Ch. 5(note)
9706	9- 8-93	1		5:901—5:906
		4		Title 5, Ch. 9(note)
9707	9- 8-93	1		5:851—5:856
		4		Title 5, Ch. 8(note)
9708	9- 8-93	1	Rpld	9:341—9:358
			Added	9:341—9:348
9716	9-22-93	1	Rpld	6:455, 6:456
9717	9-22-93	1		11:337
9718	9-22-93	1		13:67.10
9722	10-13-93	1		1:256E
9731	10-27-93	1		13:95(a)(5)
		2		13:95(c)
9732	10-27-93	1	Added	13:108(c)
			Rnbd	13:108(c) as (d)
9733	10-27-93	1		13:71
9734	10-27-93	1		13:37(c)
9735	10-27-93	1		13:90(c)—(f)
9736	10-27-93	1		13:35.1(b)
9737	10-27-93	1		11:140(e)

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		2		11:140(g)
9744	11-10-93	1		7:13(b)
9745	11-10-93	1		12:270—12:272
9746	11-10-93	1		13:1005(d)
9765	11-17-93	1		7:7.303
9766	11-24-93	1, 2		14:110, 14:111
		3		14:203(a)(3), (10)
		4		14:207(b)(6)
		5		14:212(a)(7)
		6		14:212(b)(1)a, c
		7		14:221(e)
		8		14:222(f)
		9		14:223(f)
		10		14:224(a)
		11		14:401
9782	12- 7-93	1		7:4.2
9801	1-12-94	1		13:1057
9802	1-12-94	1		11:246
9803	1-12-94	1		9:415.1
		2		9:416
		3		9:422(a), (i)
		4		9:423(e), (f)
		5		9:426(a)
9804	1-12-94	1		10:253(a)
		2		10:259
9805	1-12-94	1		13:1018(o)
9808	1-19-94	1	Added	7:13.1—7:13.12
9809	1-26-94	1		12:500—12:509
9810	1-26-94	1		2:350—2:355
9811	1-26-94	1		13:40.2(a)
9815	2- 9-94	2	Rpld	9:980—9:981
9816	2- 9-94	1		12:353(a)
		2	Rpld	12:357, 12:359
9833	2-16-94	1		7:2.210
		2		7:4.2
		3		7:5.1
		4		7:5.311
9834	2-23-94	1		2:252(f)
9835	2-23-94	1		5:169(b)
9836	2-23-94	1		7:11(10)
9837	2-23-94	1	Rpld	12:201
9838	2-23-94	1		6:386.1
9861	3-23-94	1		1:901—1:909
9875	4-27-94	1	Added	11:29
9876	4-27-94	1		11:416(b)
9877	4-27-94	1		Title 1, Ch. 8(note)
		2		1:901—1:909
9881	5-11-94	1		8:2(101.2.2(g)(4))
		2	Rpld	8:401
		3		8:800—8:509, 8:551—8:558
9882	5-11-94	1		2:350(4)
9922	5-18-94	1		7:7.4
9924	6- 8-94	1		7:2.119
		2		7:2.206
9948	6-22-94	1	Rpld	11:362
		2	Added	11:289
9977	7-27-94	1	Added	7:2.127
		2		7:2.206
9978	7-27-94	1	Amend	13:1018.1(a)—(c)
10010	8-17-94	1		7:2.305
10011	8-17-94	1	Added	7:2.118(a)

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10012	8-17-94	1	Added	7:2.210(k)
10013	8-24-94	1	Added	13.1014(b)(4)
10019	9-14-94	1	Rpld	9:900—9:971
		2	Added	13:86
10041	9-28-94	1		12:406
10044	10-12-94	1	Added	12:152(a)(1)c.
		2	Added	12:152(d)
10045	10-12-94	1	Added	12:201
10065	10-26-94	1	Rpld	11:140(d)
		2		11:140(a)(2)
10069	11- 9-94	1		2:308
10126	12-13-94	1		7:6.1—7:6.7
10128	12-14-94	1		1:233
10132	12-14-94	1		13:1010(a)
10156	1-25-94	1		1:153
10159	1-25-95	1, 2		9:417, 9:418
		3		9:426
10160	1-25-95	1		12:600—12:602
10166	1-25-95	1		7:6.201
10167	2- 8-95	1		8:1(c)
10168	2- 8-95	1		1:705(e)
10196	2-22-95	1		7:6.201
10197	3- 8-95	1		13:1056
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10198	3- 8-95	1	Rpld	13:40.1, 13:110
10199	3- 8-95	1		13:103(b)
10200	3- 8-95	1		13:91.1(b)
		2		13:91.3(b)
10201	3- 8-95	1, 2		11:330
10229	3-15-95	1		7:2.207(a)
10230	3-22-95	1		11:289
		2	Rpld	11:416
10234	4-12-95	1		12:200.1
10263	4-26-95	1—3		14:110
10264	4-26-95	1, 2		14:221(a), (b)
10269	5-10-95	1	Added	13:1058
10270	5-10-95	1	Added	13:1059
10348	6-28-95	1	Rpld	12:406
			Added	12:406—12:406.1
10434	8-16-95	1		7:2.206
		2	Rpld	7:200
10435	8-23-95	1		9:1210
10436	8-23-95	1		5:801
10438	8-23-95	1	Rpld	13:91—13:91.6
			Added	13:91—13:91.7
		2		13:1018(f)
10440	9-13-95	1	Added	2:308(c)
10440	9-27-95	1		12:406.3(d)
14087	10-25-95	1		8:800—8:803
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10496	10-25-95	1		5-1001—5-1005
10498	11- 8-95	1		12:406(a)(3)
10499	11- 8-95	1		1:233(a)
10500	11- 8-95	1		6:670(b), 6:671(c), (e)
10501	11- 8-95	1		1:606(1)
10502	11- 8-95	1		2:80
10503	11- 8-95	1		7:6(c)(4)
		2	Rpld	7:6(c)(6)

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		3		7:6(e)
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		5		7:9(4), (6), (10)
		6		7:10(2)(b)
		7		7:13(b)(5)c.
		8		7:15(1)n., r.
		9	Added	7:15(1)t., v.
		10		7:15
		11	Rpld	7:15(2)a., b., (3)e.
		12		7:16(13), (22)
10516	11-15-95	1	Added	7:13.3(n)—(q)
		2		7:13.4(2)(e)—(g)
		3		7:13.4(3)(c)—(i)
10554	1-10-96	1, 2		4:59, 4:60
10563	1-24-96	1		7:2.127
		2		7:2.210(l)
10564	1-24-96	1	Rpld	11:2, 11:3, 11:5, 11:9
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		6		11:10
10565	1-24-96	1	Added	8:1(d)
10570	2-14-96	1		8:844(1)
		2		8:852(5)—(7)
10582	2-28-96	1		6:448
10583	2-28-96	1		10:415
10584	2-28-96	1		10:218(a)(5)
10595	3-27-96	1		13:63.6
10596	3-27-96	1		13:1061
10597	3-27-96	1		13:1055
10598	3-27-96	1		11:107
10599	3-27-96	1	Rpld	13:1057
		2		11:297
10615	4-17-96	1		7;7.401.2
		2		7:7.401.5.D.
		3		7:7.402.1.A.(9)
		4		7:7.402.1.E.(6)
		5		7:7.403.2.D.
		6		7:7.404.1.B.
		7		7:7.404.1.D.(1)
		8		7:7.404.3.B.
		9		7:7.405.3.I.
		10		7:7.406.3.A.(4)
10616	4-17-96	1		7:7.405.5
10617	4-24-96	1	Rpld	1:267.A.2
10618	4-24-96	1		6:450
10621	5- 8-96	1		7:2.1
10622	5- 8-96	1		2:86
10623	5- 8-96	1		8:300—8:333
10645	6-12-96	1—3		1:701—1:703
		4, 5		1:705
		6		1:706(d)
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		9		1:710(a)
10657	6-26-96	1		1:100—1:105
10658	6-26-96	1	Rpld	9:360—9:370
10669	8-14-96	1		8A:108
10670	8-14-96	1		11:201
10671	8-14-96	1		13:91.1—13:91.7
10691	8-28-96	1	Added	8A:105.A
10696	9-11-96	1		10:410(8)
10717	9-25-96	1		2:350—2:354
10718	9-25-96	1		12:500—12:509

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10744	10-23-96	1		11:287.1(h)
10745	10-23-96	1	Added	11:35
10746	10-23-96	1	Rpld	11:31
10747	10-23-96	1		11:30
10748	10-23-96	1		11:140
10749	10-23-96	1	Added	11:274
10750	10-23-96	1	Added	13:63.7
10751	10-23-96	1, 2		13:59(a)(2), (11)
10771	11-20-96	1		7:1
10772	11-20-96	1	Added	15:225, 15:250—15:252, 15:275, 15:280
		2	Added	15:301—15:308
10773	11-20-96	1	Rpld	8:800—8:803, 8:821, 8:831—8:837, 8:841—8:844 8:851—8:855
10774	11-20-96	1	Rpld	2:90—2:102
		2	Rpld	2:325—2:330
		3	Rnbd	Tit. 2, Ch. 7
			as	Tit. 2, Ch. 6
		4	Rnbd	Tit. 2, Ch. 8
			as	Tit. 2, Ch. 7
10779	12-11-96	1	Rpld	1:250—1:270
			Added	1:250—1:278
10780	12-11-96	1		8:5
10809	1-22-97	1		13:1056.5
10826	2-26-97	1		11:330
10827	2-26-97	1		12:105
10828	2-26-97	1		8:2
10834	3-12-97	1		6:387
		2		6:395
		3		6:411.1
		4		6:423
10863	4- 9-97	1	Added	11:207
10912	6-11-97	1	Added	13:1062
10913	6-11-97	1		10:252
10949	7-23-97	1		11:232
10966	9-10-97	1	Added	2:360—2:372
10983	9-24-97	1	Rpld	12:600—12:602
			Added	12:600—12:605
10999	10-22-97	1, 2		10:401, 10:402
		3, 4		10:405, 10:406
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11019	11-25-97	1		1:264.A.6.
11020	11-25-97	1		1:264.A.1.
11021	11-25-97	1		1:253.B.1.
11022	11-25-97	1		11:207
11033	12-10-97	1	Rpld	8:900—8:915
			Added	8:900—8:903
11060	1-28-98	1		1:100—1:106
11061	1-28-98	1		8:1(d)

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			Rpld	9:414, 9:415, 9:416—9:419 9:421, 9:425, 9:426, 9:430, 9:431
11134	4-22-98	1		12:200
		2	Rpld	12:201
		3	Rnbd as	12:200.1 12:201
		4		12:202
11135	4-22-98	1		8:1—8:5
11136	4-22-98	1	Rpld	8:11—8:25
			Added	8:10—8:24
11139	5-13-98	1	Added	13:502
11140	5-13-98	1		10:101
		2		10:103(b)
		3	Rpld as	10:103(b)—(g) 10:103(c)—(h)
		4—10		10:201—10:207
		11—13		10:209—10:211
		14		10:215
		15	Rpld	10:300, 10:301
11180	7- 8-98	1		10:415
11212	9- 9-98	1		1:58
11244	10-14-98	1	Added	13:134
11330	1-13-99	1		6:432
		2		6:433
		3		6:450(b)
11350	1-27-99	1	Rpld	9:427
		2		9:423(e)
		3		9:428
11355	2-10-99	1		1:606(2)
11363	2-24-99	1		15:7
11384	3-24-99	1		1:251
11505	8-11-99	1	Rpld	9:20—9:46
		2	Rpld	9:50—9:56
		3	Rpld	9:70—9:77
		4	Rpld	9:130—9:161
		5	Rpld	9:341—9:348
11528	8-25-99	1	Added	13:63
11561	9-22-99	1	Added	9:360—9:367
11567	10-13-99	1	Added	2:319
11568	10-13-99	1		2:308
11569	10-13-99	1	Added	2:309
11570	10-13-99	1	Added	2:320
11571	10-13-99	1		11:145
11590	11-10-99	1	Rpld	11:363
		2	Rpld	11:424
		3	Added	11:450—11:453
11623	12- 8-99	1		1:271 C.3.(c)
11624	12- 8-99	1	Added	1:480
11625	12- 8-99	1	Added	11:451
		2—4	Rnbd	11:451—11:453

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			as	11:452—11:454
11627	12- 8-99	1		14:207(b)(12), (13)
11648	1-26-00	1	Added	11:141
11651	2- 9-00	1		12:610
11652	2- 9-00	1		1:2
		2		1:5
		3		1:11
		4	Added	1:12
11668	2-23-00	1, 2	Added	8:1(c), (d)
11669	2-23-00	1		1:251
		2	Added	1:280—1:288
11679	3- 8-00	1		10:510
11680	3- 8-00	1		11:140
11681	3- 8-00	1		11:356
11682	3- 8-00	1		13:35.1
		2		13:59(a)(5)
		3		13:67
		4		13:69(b)
		5		13:108(c)
		6	Added	13:285
		7	Rpld	13:1061
11697	3-22-00	1	Rpld	12:100—12:105
			Added	12:100—12:103
11706	4-12-00	1		8:501(c)
11723	4-26-00	1		5:1
		2	Rpld	5:25
		3, 4		5:35, 5:36
		5		5:102
		6, 7	Added	5:105, 5:106
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		12		5:155
		13—16		5:157—5:160
		17		5:164(a)
		18	Rpld	5:166
		19, 20		5:168, 5:169
		21		5:173
		22—24		5:201—5:203
		25	Rpld	5:301—5:306
11724	4-26-00	1		14:201(b)
11725	4-26-00	1		10:209(6)a.1.
		2		10:210(2)
11772	6-28-00	1		1:251
11773	6-28-00	1		1:265.B.
11774	6-28-00	1		1:901—1:909
11827	8-23-00	1		1:251
		2		1:253.N
		3		1:264.A
11920	12-13-00	1	Added	14:112
		2	Rpld	14:207(l)
		3	Rnbd	14:207(m)
			as	14:207(l)
		4	Added	14:207.1
11922	12-13-00	1		1:153
11923	12-13-00	1	Rpld	11:356
		2	Rpld	11:364
11960	1-24-01	1	Rpld	13:92

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12005	4-25-01	1	Added	1:271.1
		2	Added	1:271.2
12006	4-25-01	1	Added	15:325—15:338
12010	5- 9-01	1		12:100—12:103
			Added	12:104
12053	6-27-01	1		1:251
12055	6-27-01	1		13:1010
12118	9-26-01	1		13:67.6(b)(3)
12122	10-10-01	1		11:428.1
12171	11-28-01	1		1:262.D
12172	11-28-01	1		1:267.C
12173	11-28-01	1		1:150(c)(4)
12180	12-12-01	1		10-415
12254	2-27-02	1		11:428
12257	3-13-02	1	Added	13:91.8
12267	3-27-02	1	Rpld	11:452(g)
12268	3-27-02	1		1:901—1:909
12310	5- 8-02	1		2:350
		2		12:501
		3		12:503
		4		12:505
12322	5-22-02	1		1:270.B.
12323	5-22-02	1		1:271.B.
12333	6-12-02	1	Added	13:91.9
12337	6-12-02	1		1:251
12353	6-26-02	1		11:140(a)(2)
12387	8-14-02	1		6:390(f)
12552	1-22-03	1	Added	1:490
12570	2-26-03	1		1:102(a)(2)
12601	4- 9-03	1		1:7(a)
12650	6-11-03	1	Added	13:1063
12670	6-25-03	1		14:501(3)
12695	7-23-03	1		8:1(d)
12696	7-23-03	1	Added	12:650—12:657
12710	8-13-03	1	Added	10:401.1
12724	8-25-03	1—6		13.1018
12725	8-25-03	1		11:415
12753	10- 8-03	1		5:151
		2, 3		5:203
12755	10- 8-03	1	Added	13:35.3
12774	10-22-03	1		11:140(a)
12814	11-25-03	1	Added	1:269.1
12858	2-11-04	1	Added	15:333(27)
12859	2-11-04	1		13:91.1(b)
		2		13:1018
12899	2-25-04	1		13:35.1(b)
12900	2-25-04	1	Rpld	13-107
12901	3-10-04	1		11:287
12904	3-10-04	1		13:91.9
		2	Added	13:92
12910	3-24-04	1		13:91.2(b)
		2	Added	13:91.2(c), (d)
12914	3-24-04	1		1:102(a)(3)
12935	4-28-04	1—4		15:335
12936	4-28-04	1		1:265.E
		2	Added	1:265.G

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12945	5-12-04	1		1:902.I
12946	5-12-04	1		12:651
12977	6- 9-04	1		13:1063
12993	6-23-04	1		8A:202(6)
13008	7-28-04	1		10:209(6)a.1.
		2		10:210(2)
13033	8-25-04	1		5:201
13040	8-25-04	1		1:271.C.3.(b)
13041	8-25-04	1		1:253.B., C.
13042	8-25-04	1		1:251
		2		1:272.A.
		3		1:273
13092	10-27-04	1	Rpld	13:1055
13097	10-27-04	1		14:207(b)
		2		14:207(e)
		3		14:207.1(a)
		4		14:214(f)
		5		14:223(f)
		6	Added	14:700
13098	10-27-04	1		15:327
13208	3- 9-05	1	Rpld	13:40.2
13266	5-11-05	1—3		1:150
13268	5-11-05	1		1:231
13296	6- 8-05	1		8:1
13319	6-22-05	1		1:2(c)(8)
13349	8-10-05	1	Rpld	12:600—12:605
			Added	12:600—12:605
13361	8-24-05	1		9:118, 9:119
13362	8-24-05	1	Rpld	8:1—8:5
			Added	8:1—8:5
13418	10-12-05	1		1:5
13419	10-12-05	1	Added	1:3(d)
13436	10-26-05	1		12:351(a)
13453	11-22-05	1		8:2
13454	11-22-05	1		8:332
13455	11-22-05	1		8:21
13456	11-22-05	1		8:102
13552	4-12-06	1		12:101(9)
13568	4-26-06	1		2:363(e)
13624	5-30-06	1		1:2(a)
13625	5-30-06	1		10:209
13688	7-26-06	1		11:400—11:423
				11:425—11:435
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13721	8-23-06	1		12:521(a)
		2		12:522
		3		12:524(a)
13760	9-13-06	1		1:269.1
13770	10-11-06	1		12:406(a)(3)
		2		12:406(b)
13771	10-11-06	1		11:401(c)
13772	10-11-06	1	Added	1:259.G.
13773	10-11-06	1	Added	15:8
13791	10-25-06	1		14:200
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		3		14:207(b)(12), (13)
13798	11- 8-06	1		10:415

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13863	1-10-07	1		8:1—8:5
13864	1-10-07	1		12:350—12:356
			Rpld	12:358
13865	1-10-07	1		13:1019
13998	4-25-07	1		11:96(b)
14022	5-16-07	1	Added	5:1101—5:1106
14050	6-27-07	1	Added	12:353(d)
14099	8- 8-07	1	Added	11:54
14100	8- 8-07	1		9:450—9:463
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			Rpld	9:464
			Added	9:464
14170	10-10-07	1		11:428(b)
14191	10-10-07	1		11:54(a)(4)e.
14203	10-24-07	1		14:110
		2		14:204
		3	Added	14:207(b)(15)
		4	Added	14:207(m), (n)
		5		14:208(a)(1)d.
		6		14:208(a)(6)
		7		14:208(b)
		8		14:210(a)
		9	Added	14:210(c)
		10		14:218(b), (c)
14242	11-28-07	1		5:201
14272	1- 9-08	1		12:352(a)
				12:353(b)
14274	1- 9-08	1		1:2
14403	4-23-08	1		8:3(c)
14419	5-28-08	1		13:91.5
		2		13:91.7
14457	8-13-08	1		1:2(c)(8)
14470	8-27-08	1		11:114
14473	8-27-08	1		1:150—1:154
14474	8-27-08	1	Added	13:91.10
14496	9-24-08	1		8:1—8:5
14499	9-24-08	1	Added	14:215.1
14586	2-11-09	1		9:456(e)
14638	3-25-09	1		1:702
14654	4-22-09	1		1:480
14681	6-10-09	1		12:300
		2		12:302
		3		12:351
		4		12:354
		5		12:405
		6		12:406
14682	6-10-09	1	Added	1:609—1:609.12
14683	6-10-09	1	Added	6:381.1
		2		6:384
		3		6:387
		4	Added	6:406.1
		5		6:409
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		7		6:442
14684	6-10-09	1		1:507(a)

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14705	6-24-09	1	Added	11:500—11:505
14722	7-22-09	1		10:415
14723	7-22-09	1		12:405
		2		12:351
14742	7-22-09	1		11:502.A.
14769	9- 9-09	1		11:400, 11:401
		2	Added	Tit. 11, Ch. 28, Pt. I(title)
				11:436—11:444
14791	10-14-09	1		14:201(b)
14792	10-14-09	1		11:60
14801	10-28-09	1		11:428
		2		11:442
14894	4-14-10	1		11:504
		2	Rpld	11:505
14928	5-26-10	1		11:415
		2		11:437
14929	5-26-10	1		12:200
14937	6- 9-10	1		12:405
			Added	12:405.1, 12:405.2
14972	8-11-10	1		6:432
15001	10-13-10	1		9:60—9:63
		2		10:201—10:218
				10:250—10:259
			Added	10:204.1, 10:209.1
15011	10-27-10	1		11:416
15012	10-27-10	1		13:67
		2		13:67.10
		3		13:108
15021	11-10-10	1	Added	11:55—11:55.10
15022	11-10-10	1		5:201, 5:202
15034	11-23-10	1	Added	9:960—9:979
15036	11-23-10	1		11:400—11:414
15037	11-23-10	1	Added	1:603(b)
15062	12- 8-10	1		1:251, 1:258.A
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15071	1-26-11	1	Added	8:1(d)
15072	1-26-11	1		13:82
15094	2-23-11	1		11:287.1(g)
15100	3- 9-11	1	Added	13:966
15099	3- 9-11	1	Added	9:160—9:166
15121	5-11-11	1		9:165
15137	5-25-11	1		10:209
15138	5-25-11	1	Added	11:134
		2	Added	11:356
15166	8-10-11	1		14:207.1(a)
15216	11- 9-11	1		5:1001, 5:1006
15221	11-22-11	1		11:207
15225	11-22-11	1		1:702(e)
15227	11-22-11	1	Added	13:1006A

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15237	1-11-12	1	Rpld	14:100—14:700
			Added	14:101—14:600
15238	1-11-12	1		8:1—8:5
15270	2- 8-12	1		6-381.1
		2		6:384
		3		6:387
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15271	2- 8-12	1		12:302
		2		12:351
		3		12:405
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15272	3-14-12	1		9:423
15274	3-14-12	1		13:1006A
15284	3-28-12	1		12:521
15285	3-28-12	1		10:400—10:424
15302	4-25-12	1		9:413, 9:415.1
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15307	5- 9-12	1	Added	8:1001—8:1034
15308	5- 9-12	1		2:350—3:354
			Added	2:355, 2:356
15309	5- 9-12	1	Rpld	13:1016
15312	5-23-12	1	Added	1:309
15323	6-13-12	1	Rpld	1:309
15338	6-27-12	1		14:202
15339	6-27-12	1	Added	6:376.1
		2	Added	6:402.1
15367	8- 8-12	1		9:456(g)
15375	8-22-12	1		12:200
15383	9-12-12	1		1:273.A
15384	9-12-12	1	Added	14:100
				14:102—14:109
		2	Added	14:215.1, 14:216
		3	Added	14:220, 14:221
		4	Added	Tit. 14, Ch. 3, intro ¶
				14:307, 14:310
		5	Added	14:400, 14:402
		6	Added	14:500, 14:502
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15405	10-24-12	1	Added	9:1000—9:1017
15407	10-24-12	I	Rpld	1:100—1:106
			Added	1:100—1:102
15413	11-14-12	1		12:405(b)(1)
		2		12:351(a)
15419	11-28-12	1		9:1008
		2		9:1009
15420	11-28-12	1		9:1005
15425	12-12-12	1		9:1000—9:1017
15458	2-27-13	1		9:1003
		2		9:1005
		3		9:1006
		4		9:1007.E
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		6		9:1009
		7		9:1011.D
15469	3-27-13	1	Added	9:1003(j), (k)
		2		9:1006(b)
		3		9:1008(a)
		4		9:1010(b)
		5		13:1010
		6		13:1018(p)
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